

the RPE contain only very rudimentary procedural regulations about the sanctioning of misconduct before the Court. The basic notions are:

- Pursuant to rules 170 and 171(1), sanctioning any misconduct before the Court under article 71 requires a prior warning about an impending sanction in case of breach;
- Ordering a ‘normal’ sanction rests with the Presiding Judge of the Chamber (rules 170, 171(1) and (2)). Ordering the ‘exceptional’ interdiction of a person from the proceedings for a period of more than 30 days or even banning that person permanently, rests with the Presidency (rule 171(3)).
- The person to be sanctioned shall be given an opportunity to be heard before a sanction for misconduct is imposed (rule 171(5)).
- If conduct covered by article 71 also constitutes one of the offences defined in article 70, the Court shall proceed in accordance with article 70 and rules 162 to 169 (rule 172).

2. Sanctioning procedure without the RPE

33 The rules thus do in no way manage to fill the gaps or regulate satisfactory what has been left open in the preparatory work, especially as regards the applicability of the Statute and the Rules in cases of article 71. This failure comes as a surprise, because it would have been easy and sufficient to merely confirm the (non) applicability of certain principles and regulations, like those relating to a fair hearing. Where the sanctioning procedures cannot be found within the RPE, one has to do without. This means:

- As concerns **standards of proof**, one may cautiously draw on the contempt jurisprudence of the ICTY (although a mere administrative proceeding may allow for lower standards); as it was noted by the ICTY, the Court ‘must be satisfied beyond reasonable doubt that he [the perpetrator] conducted himself in the way alleged and that such conduct constitutes contempt of the Tribunal’⁵⁶.
- As concerns the **principles of sanctioning** as such: Article 71 deals with ‘administrative measures’ only, and not ‘penalties’ in the sense of Part 7 of the Statute. Therefore, articles 76 (‘Sentencing’) and 78 (‘Determination of the sentence’) are not directly applicable. But *mutatis mutandis*, article 76(1), mentioning ‘the appropriate sentence’ to be imposed, and article 78(1), referring to ‘the gravity of the crime [in our case: misconduct] and the individual circumstances of the convicted [in our case: sanctioned] person’ provide general guidelines for the imposition of a sanction under article 71. – Drawing on general principles of law, one may add that a regulatory sanction under this provision needs to be proportionate, i.e. appropriate, necessary and reasonable to achieve the goal intended (e.g. to induce compliance with a Court order *etc.*). – The principle of proportionality also comes into play with regard to the use of force, which only is *ultima ratio*. Only if the sanctioned person does not leave the courtroom voluntarily, she or he may be removed by security, *etc.*⁵⁷
- As concerns **legal recourse against article 71 sanctions**, neither the Statute nor the RPE exclude an appeal against sanctions for misconduct. Rule 77 RPE ICTY/ICTR provide in detail for such an appeal, and there are many good reasons (like the basic idea to guarantee checks and balances) to see such a process implemented at the ICC, too. Article 81 should thus be applied by way of analogy.⁵⁸
- As concerns the **enforcement of sanctions**, Part 10 (‘Enforcement’) is not directly applicable. However, since fines are covered in article 71 and in rule 171, the Court may be dependent on States confiscating these fines; in this respect, article 109 should be applied by way of analogy.

⁵⁶ *Prosecutor v. Tadić*, IT-94-I-A-R77, Judgement, Appeals Chamber, 31 January 2000, para. 131.

⁵⁷ For a discussion of all these principles see Ambos, *Treatise on ICL II* (2014) 277 *et seq.*

⁵⁸ We are not convinced by Gut, *Counsel Misconduct before the International Criminal Court* (2012) 262 arguing that ‘[a]llowing an appeal under article 81 of the Statute similar to criminal convictions would potentially undermine the promise of a rapid sanction because of ensuing satellite litigation.’ Due to the administrative nature of article 71 sanctions, they should be construed as provisionally enforceable so that their appeal would not diminish their regulatory effectiveness.

Article 72

Protection of national security information

1. This article applies in any case where the disclosure of the information or documents of a State would, in the opinion of that State, prejudice its national security interests. Such cases include those falling within the scope of article 56, paragraphs 2 and 3, article 61, paragraph 3, article 64, paragraph 3, article 67, paragraph 2, article 68, paragraph 6, article 87, paragraph 6 and article 93, as well as cases arising at any other stage of the proceedings where such disclosure may be at issue.

2. This article shall also apply when a person who has been requested to give information or evidence has refused to do so or has referred the matter to the State on the ground that disclosure would prejudice the national security interests of a State and the State concerned confirms that it is of the opinion that disclosure would prejudice its national security interests.

3. Nothing in this article shall prejudice the requirements of confidentiality applicable under article 54, paragraph 3 (e) and (f), or the application of article 73.

4. If a State learns that information or documents of the State are being, or are likely to be, disclosed at any stage of the proceedings, and it is of the opinion that disclosure would prejudice its national security interests, that State shall have the right to intervene in order to obtain resolution of the issue in accordance with this article.

5. If, in the opinion of a State, disclosure of information would prejudice its national security interests, all reasonable steps will be taken by the State, acting in conjunction with the Prosecutor, the defence or the Pre-Trial Chamber or Trial Chamber, as the case may be, to seek to resolve the matter by cooperative means. Such steps may include:

- (a) Modification or clarification of the request;
- (b) A determination by the Court regarding the relevance of the information or evidence sought, or a determination as to whether the evidence, though relevant, could be or has been obtained from a source other than the requested State;
- (c) Obtaining the information or evidence from a different source or in a different form; or
- (d) Agreement on conditions under which the assistance could be provided including, among other things, providing summaries or redactions, limitations on disclosure, use of in camera or ex parte proceedings, or other protective measures permissible under the Statute and the Rules of Procedure and Evidence.

6. Once all reasonable steps have been taken to resolve the matter through cooperative means, and if the State considers that there are no means or conditions under which the information or documents could be provided or disclosed without prejudice to its national security interests, it shall so notify the Prosecutor or the Court of the specific reasons for its decision, unless a specific description of the reasons would itself necessarily result in such prejudice to the State's national security interests.

7. Thereafter, if the Court determines that the evidence is relevant and necessary for the establishment of the guilt or innocence of the accused, the Court may undertake the following actions:

- (a) Where disclosure of the information or document is sought pursuant to a request for cooperation under Part 9 or the circumstances described in paragraph 2, and the State has invoked the ground for refusal referred to in article 93, paragraph 4:
 - (i) The Court may, before making any conclusion referred to in subparagraph 7 (a) (ii), request further consultations for the purpose of considering the State's representations, which may include, as appropriate, hearings in camera and ex parte;

- (ii) If the Court concludes that, by invoking the ground for refusal under article 93, paragraph 4, in the circumstances of the case, the requested State is not acting in accordance with its obligations under this Statute, the Court may refer the matter in accordance with article 87, paragraph 7, specifying the reasons for its conclusion; and
- (iii) The Court may make such inference in the trial of the accused as to the existence or non-existence of a fact, as may be appropriate in the circumstances; or
- (b) In all other circumstances:
 - (i) Order disclosure; or
 - (ii) To the extent it does not order disclosure, make such inference in the trial of the accused as to the existence or non-existence of a fact, as may be appropriate in the circumstances.

Directly relevant Rules of Procedure and Evidence: Rule 81.

Literature: Ambos, K., 'Confidential investigations (article 54(3)(e) ICC Statute) vs. disclosure obligations: The Lubanga case and national law', (2009) 12 *NCLRev* 543; id., 'The transnational use of torture evidence' (2009) 42 *IsLRev* 362; id., 'The European Court of Human Rights and extraordinary renditions', (2015) 5 *EuCLR* forthcoming; Behrens, H., 'Protection of National Security Information in the ICC: a Guide to Article 72 of the Rome Statute', in H. Roggemann and P. Šarčević (eds.), *National Security and International Criminal Justice* (2002) 115; Friman, H., 'Procedural Law of the Criminal Court – An Introduction', in: F. Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, ii (1999, reprint 2000) 229; Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014); Jacobsen, A. L., *National Security and the Right to Information in Europe* (2013); Keller, H. and Heri, C., 'Enforced Disappearance and the European Court of Human Rights: A 'Wall of Silence', Fact-Finding Difficulties and States as 'Subversive Objectors'', (2014) 12 *JICJ* 735; Malančuk, P., 'Protection of National Security Interests', in: A. Cassese, P. Gaeta and J. R.W.D. Jones, *The Rome Statute of the International Criminal Court: A Commentary*, ii (2002), 1371; Piragoff, D.K. 'Protection of National Security Information', in: R. Lee (ed.), *The ICC* (1999), 270; Rastan, R., 'The Responsibility to enforce: Connecting justice with unity', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2008); Rastan, R., 'Review of ICC Jurisprudence 2008', (2009) 7 *NJIHumRts* 229; Schabas, W., 'Article 72: Protection of National Security Information', *The International Criminal Court: A Commentary on the Rome Statute* (2010) 861; Triffterer, O., 'Security Interests of the Community of States, Basis and Justification of an International Criminal Jurisdiction, versus 'Protection of national Security Information', Article 72 Rome Statute', in H. Roggemann and P. Šarčević (eds.), *National Security and International Criminal Justice* (2002) 53

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A. Introduction/General remarks

Article 72 represents one of the most difficult provisions to draft, interpret and apply. Its negotiating history grappled with the core of the Court's relationship with domestic authorities at the crossroad where national interest, in the protection of national security information, intersects with the interests of the international community as a whole, in ending impunity for the most serious crimes of international concern.¹ Diametrically opposed positions during the negotiations sought, on the one hand, to exclude any scope for judicial review over a State's stated prerogative to refuse cooperation based on a claim of national security prejudice, and on the other, to reduce the scope for abuse by recalcitrant States and the undermining of the Court's authority with respect to its own process. There was common agreement, nonetheless, that a State may well have legitimate concerns over the disclosure of sensitive information that affected its vital interests, making it necessary to devise a scheme that minimized the adverse consequences thereof. There was also the practical recognition of the Court's inability to coercively secure compliance by way of, for example, the issuance of a production order to the national authorities concerned, meaning that the *de jure* obligation of States to cooperate with the ICC might have little consequence *de facto* if a State refused to comply.² Thus, the remedies flowing from a Chamber finding against a State's plea had to be agreed upon. The final result is an elaborately worded provision that seeks to exhaust all reasonable steps to resolve the matter through the combined, creative and collaborative efforts of the State concerned, counsel before the Court and the judges to avoid a stand-off. Failing that, where the information is solely in the hands of the requested State, there is effectively no resolution on the question of access: the State will retain its information even where the Chamber has deemed that it relevant and necessary. The Chamber will then have to determine whether the requested State's actions and explanations, in the circumstances, are contrary to the expected obligations of States Parties and decide whether any inference may be drawn as to the facts being sought be to established from the withheld material. By contrast, where the information is not under the exclusive control of the State concerned, and are in the hands of one of the parties for example, the Chamber can order disclosure over the objection of that State.

Although the specific notion of national security interests does not appear in the 1994 ILC draft Statute, the idea that the Court should protect confidential information, of which national security is a sub-species, appears in provisions of the 1994 draft: including measures that the Prosecutor, the Trial Chamber or the President could take to ensure the confidentiality of information or the protection of persons, or for the conduct of hearings in closed session 'for the purpose of protecting confidential or sensitive information which is to be given in evidence'.³ The earlier 1992 ILC draft Statute had similarly referred, under the draft provisions dealing with international cooperation, to the 'confidentiality of information in the request and provided pursuant to the request'.⁴ During the Ad Hoc and Preparatory Committee discussions topics related to the confidentiality of state materials were generally treated in a disparate manner in various places throughout the text. France did introduce a proposal during the 1996 session of the Preparatory Committee specifically designed to address 'secrecy on defence grounds' which would have granted States wide discretion in withholding information from the Court. However, the Preparatory Committee merely recorded that '[w]hile the view was expressed that national security interests should

¹ Triffterer, in: Roggemann and Šarčević (eds.), *National Security and International Criminal Justice* (2002) 74–75.

² Piragoff, in: Lee (ed.), *ICC* (1999) 282. See below fn. 10.

³ See articles 26(2)(d), 27(5)(d), 38(4), 38(5)(e) and 43, 1994 ILC Draft Statute, A/49/10 (1994); and discussion in Piragoff, in: Lee (ed.), *ICC* (1999) 270–271.

⁴ A/47/10, para. 152 under other provision in the treaty related to cooperation (draft article 11).

constitute a valid exception, as in existing conventions, concerns were expressed about recognizing a broad exception based on public or national security interests. It was suggested that consideration should be given to addressing the legitimate concerns of States regarding requests for information or evidence relating to national security interests or other sensitive information while limiting the possibility of abuse which could impede the effective functioning of the Court'.⁵ As Donald Piragoff, the coordinator of the Working Group on Procedural Matters, summarises, 'the protection of national security information was never directly and comprehensively discussed as a separate item. The issue arose in the context of other subjects related to disclosure of information or documents, or the ability of a State to refuse to provide assistance to the Court if such assistance involved the provision of information that would prejudice its national security interests if disclosed to unauthorized persons'.⁶

Discussions on national security concretised during the March-April 1998 session with the introduction of a separate provision (draft Article 71) containing three options based on proposals made by France, the United Kingdom and the United States. The French proposal allowed a person to invoke national security restrictions to prevent disclosure of information connected with national defence or national security, subject to confirmation by the State of the person's claim to secrecy, similar to current paragraph 2. The lodging of a claim was final and there was no scope for judicial review of the claim.⁷ The United Kingdom text was modelled on the taking of practical steps and procedures, following those outlined by the ICTY Appeals Chamber in its seminal interlocutory appeals judgment in the *Blaškić* case. The judgment had issued the previous October and exerted significant influence over subsequent negotiations.⁸ The UK proposal included a section which directed the attention of the Court to assessing the bone fides of the claim and whether the State had acted in good faith. If it had not, the proposal allowed the Court to make an order for disclosure. The United States text also focused on practical modalities to hear a State's claim and to seek cooperative resolution, but focused instead on the right of the affected State to deny the request, coupled with the possibility for the Court to communicate its views to the Assembly of States Parties or the Security Council, rather than allowing for an order for disclosure.⁹ While the UK text generated broad support, concerns remained as to how exactly the Court would engage in a good faith assessment of a State's motivation. Although the concept sought to mirror the 'genuineness' test to be applied in the context of admissibility assessments under article 17, it remained unclear for many delegations how the Court would assess the bone fides of a State's own perception of a national security prejudice or the results that might flow therefrom.¹⁰

⁵ *Report of the Preparatory Committee on the Establishment of an International Criminal Court, Vol. I, A/51/22(1996)*, para. 332. The French proposal provided: '1. Any person heard or examined by the Trial Chamber may invoke restrictions provided for in his national law and designed to prevent the divulgation of confidential information connected with national defence./2. The Trial Chamber may ask the State of which the persons being heard or examined are nationals whether it confirms their claim to be bound to secrecy. If the State confirms to the Trial Chamber that an obligation of secrecy exists, the Chamber shall note this fact./3. The provisions of the preceding paragraphs shall also apply to execution of a request for judicial assistance made under article 72'; *ibid*, ii, pp. 220 and 255.

⁶ Piragoff, in: Lee (ed.), *ICC (1999)* 274.

⁷ This was drawn from a French proposal on draft Article 44 *ter* introduced during the December 1997 Preparatory Committee, A/AC.249/1997/L.9/Rev.1 (1997) 39–40, which itself was based on the earlier 1996 French proposal.

⁸ *Prosecutor v. Tihomir Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 Oct. 1997.

⁹ Article 71, PrepCom draft Statute, March-April 1998.

¹⁰ Piragoff, in: Lee (ed.), *ICC (1999)* 281–282, aptly summarising the situation as follows: 'Canada, supported by a number of other delegations, noted that the debate was too philosophical as to which entity had the final word on the issue if disclosure and, further, did not take into account the practical realities and nuances of the situation. The proposal confused the situations of having the final word, *de jure* and *de facto*. If a State possessed the information and the Court was seeking assistance to obtain it from that State, the State always had the final word, *de facto*, regardless of what the Statute might say about grounds of refusal. Even if the Court were to make

In Rome the UK circulated a revised text that incorporated elements from the French and US options and also introduced the right of a State to intervene in the proceedings, similar to current paragraph 4. Croatia, against whom the ICTY judgment had issued, lent support for the approach set out in *Blaškić* of allowing the Court to test the legitimacy of the national security claim.¹¹ A combined French and US text of 1 July 1998, which built on the UK text, included a number of further elements and clarifications, including a provision that ultimately led to current paragraph 2, although the final remedy focussed again on referral to the ASP and the Security Council rather than the ordering of disclosure.¹² As debates continued on the nature of the Court's assessment of the bone fides of a State's national security claim and the remedies available in case of established bad faith, Singapore introduced a proposal to remove any references to good faith assessments. Instead, it distinguished between two different scenarios: (i) where the information was already in the possession of a third party, and (ii) where the Court had sought the information from the State pursuant to Part 9. In the former the Court could order disclosure, whereas in the latter, it could not. Instead, the Court could either refer the matter as one of non-compliance or make 'such inferences that relate to the guilt or innocence of the accused as may be appropriate in the circumstances'.¹³

As the text started to take its final shape, key differences remained over whether the Court should assess the bone fides of a State's national security claim. To break the deadlock, the coordinator of the Working Group on Procedural Matters proposed that the Court's determination as to the level of cooperation rendered by the State in seeking to resolve the matter should return back to those same duties of cooperation set out in Part 9: i. e. whether 'in the circumstances of the case, the requested State is not acting in accordance with its obligations under this Statute'.¹⁴ As Piragoff explains, 'the key issue was whether a State acted in accordance with its obligations in the circumstances of the case; the manner or motives in refusing to comply with a request could be, but were not necessarily, the determinative considerations in ascertaining whether the State did not act in accordance with its obligations'.¹⁵ With that, the remaining impasse was removed and the text was submitted to the Bureau for finalisation. Much, however, remains open to interpretation and is yet to be applied.

an order for disclosure, and have the final word, *de jure*, a State could always choose to refuse to comply with both the request and the order, and breach its obligations under the Statute. The State would have the final word, *de facto*, although it might be subject to measures decided by the Assembly of States Parties. However, if the information was already in the possession of the Prosecutor (and was not obtained pursuant to an agreement of confidentiality), or in the possession of a third party such as a witness before the Court, the Court had the power to control its own process and make binding orders on the Prosecutor or a witness. In this case, it had the final word on the matter, both *de jure* and *de facto*."

¹¹ A/CONF.183/C.1/WGPM/L.32, 29 June 1998.

¹² A/CONF.183/C.1/WGPM/L.39, 1 July 1998.

¹³ A/CONF.183/C.1/WGPM/L.49, 3 July 1998. The relevant provisions read: '7. Thereafter, where disclosure of the information or document is other than pursuant to a request for cooperation under Part 9, the Court may, if it determines that the evidence is relevant and necessary for the establishment of the guilt or innocence of the accused, order disclosure.

8. Where the disclosure of the information or document is sought pursuant to a request for cooperation under Part 9, the Court may, if it determines that the evidence is relevant and necessary for the establishment of the guilt or innocence of the accused: (a) Refer the matter in accordance with article 86, paragraph 6; and (b) Make such inferences that relate to the guilt or innocence of the accused as may be appropriate in the circumstances.'

¹⁴ A/CONF.183/C.1/WGPM/L.76, 13 July 1998.

¹⁵ Piragoff, in: Lee (ed.), *ICC* (1999) 286; See generally Piragoff, in: Lee (ed.), *ICC* (1999) 268–294, for a fuller and more comprehensive treatment of the drafting history of article 72 and the associated provisions related to national security. See also Malanczuk, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, ii (2002) 1371–1386; Behrens, in: Roggemann and Šarčević (eds.), *National Security and International Criminal Justice* (2002), pp. 115–126.

B. Analysis and interpretation of elements

I. Paragraph 1: Scope of application

1. ‘disclosure of information or documents of a State’

- 3 Article 72 applies to the “disclosure of information or documents of a State...”. The term ‘disclosure’ as applied throughout the Court legal instruments relates to the process governing the exchange of materials between the parties and/or participants to the proceedings. The term ‘disclosure’ may also logically extend to public submissions by the Prosecutor even where there are no other parties or participants to the proceedings, such as in the context of an article 15 application. However, the term does not apply to the provision of information to a Chamber, whose task rather is to supervise the execution of disclosure obligations.¹⁶ This is brought out by Rule 121(2)(c) which distinguishes between ‘disclosure’, a process that is *inter partes*, and the ‘communication’ of material to the Chamber, and by rules 76–84 which regulate the disclosure obligations of the prosecution and defence, set against the supervisory role of the Chamber. That disclosure does not apply towards the Chamber has also been borne out in practice, with the Court distinguishing disclosure from the ‘provision’ or ‘communication’ of material to the Chamber.¹⁷

An alternative reading would suggest that the term ‘disclosure’ within the meaning of article 72 should be construed broadly to govern the divulging of material to any third party,¹⁸ including the judges. In particular, it might be argued that the intended scope of the provision is to insulate a State against the consequences that may flow from a Chamber decision with respect to the onward handling of its information or documents. However, this would arguably disrupt the ordinary usage of the term throughout the Statute, including those provisions cross-referenced within paragraph 1. Indeed, article 72 locates the term ‘disclosure’ in connection with ‘proceedings’, suggesting that the term should be understood within the context of the Court’s own legal regime and not in a more generic sense. The risk

¹⁶ See Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014), pp. 37–39.

¹⁷ See e.g., in the *Lubanga* case, where the Appeals Chamber uses the term ‘disclosure’ to refer to the duty of the Prosecutor vis-à-vis the defence under article 67(2) versus the term ‘provision’ to refer to the submission or communication of such material to a Chamber for its review. That ‘provision’ to the Chamber does not equal ‘disclosure’ is further suggested by the finding of the Appeals Chamber that the Prosecutor cannot extend non-disclosure agreements towards a Chamber of the Court, since this would undermine its essential supervisory functions; *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled ‘Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008’, ICC-01/04-01/06 OA 13 (21 October 2008), para. 48. In line with the distinction contained in rule 121(2)(c), Pre-Trial Chambers have similarly distinguished between inter-parties ‘disclosure’ of evidence, versus ‘communication’ to the Chamber: see e.g. *Prosecutor v. Bemba*, Pre-Trial Chamber III, “Decision on the Evidence Disclosure System and Setting a Timetable for Disclosure between the Parties”, 31 July 2008, ICC-01/05-01/08-55 para. 42: “The Chamber observes that the provisions on disclosure, especially rule 121(2)(c) of the Rules, draw a clear distinction between “disclosure” which is *inter partes* and “communication” to the Chamber. Therefore, the Chamber is of the view that the concept of “disclosure” should not be confused with the concept of “communication” of evidence to the Chamber. The Chamber is not a party to the proceedings and does not take part in the disclosure process.” See similarly *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, ICC-01/09-01/11-44, 7 April 2011, paras 4–5; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, Pre-Trial Chamber II, “Decision Setting the Regime for Evidence Disclosure and Other Related Matters”, ICC-01/09-02/11-48, 6 April 2011, paras. 4–5; *Prosecutor v. Bosco Ntaganda*, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, ICC-01/04-02/06-47, 12 April 2013, paras. 8 and 21; *Prosecutor v. Dominic Ongwen*, Pre-Trial Chamber II, Decision Setting the Regime for Evidence Disclosure and Other Related Matters, ICC-02/04-01/15-203, 27 February 2015, para. 10.

¹⁸ This is how the term ‘disclosure’ is used e.g. in the *Security Regulations of the Council of the European Union* (2001/264/EC), 19 March 2001.

that the Chamber might order disclosure of materials held by a party to the proceedings is, moreover, already foreseen in paragraph 7(2)(b); therefore no heightened risk can be anticipated by the *ex parte* communication of such material to the Chamber. At the same time, the Chamber so receiving materials will be required to protect its confidentiality pending resolution of the article 72 procedure,¹⁹ since the very purpose of the provision is to determination whether disclosure is necessary: thereby negating the risk that the Chamber could pre-empt this procedure without following the steps outlined therein. More importantly, a broad reading would impede the supervisory functions of the Chamber with respect to disclosure issues.²⁰ Indeed, one of the key pillars of the Appeals Chamber's interlocutory decision in the *Lubanga* case on the non-disclosure of exculpatory materials was that the Court must be able to exercise judicial control over decisions restricting the disclosure of evidence (see below mn. 35). The fact that this decision was framed in the context of the specific obligations arising under article 54(3)(e) and article 67(2) does not alter the underlying rationale for such judicial control.²¹ By contrast, were the Chamber required to obtain the permission of a State to enable a party to communicate to it material in its possession or control, the Court's supervisory powers would be subjected to State control, thereby undermining an essential function to ensure that a trial is fair.²²

Accordingly, where the disputed material is not in the exclusive hands of the State concerned, nothing in article 72 appears to prevent a party or participant from providing such material to the Chamber for its *ex parte in camera* review, even while the State's intervention to prevent actual disclosure is in process.

As to the object of a national security claim, article 72 uses interchangeably the terms 'information', 'document' and 'evidence' without apparent distinction. At different points, and sometimes within the same sub-provision, article 72 refers variously to "information or documents", "information", "information or evidence", "evidence".²³ Although the Statute and Rules do not define these terms, the term 'document' may be understood to extend to any medium capable of capturing a record, whether written or diagrammatic, in either physical or

¹⁹ Article 64(6)(c).

²⁰ It would also arguably impede the operation of the Chamber's remedial powers under article 72(7)(b)(i).

²¹ This appears to be supported by the Appeals Chamber's reliance on ECtHR case law in *Rowe and Davis v. United Kingdom*, N° 28901/95, European Court of Human Rights, Judgment, 16 February 2000, and *Jasper v. United Kingdom*, N° 27052/95, European Court of Human Rights, Judgment, 16 February 2000, which both concern judicial review over the non-disclosure of 'sensitive' material on the grounds of public interest pursuant to the Attorney General's 1981 Guidelines – a provision that notably relates, inter alia, to the disclosure of informant identities (at issue in both cases) as well as national security; *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', ICC-01/04-01/06 OA 13 (21 October 2008), paras. 46–47.

²² *Ibid.*, paras. 45–48. Arguably this conclusion is not altered by fact that article 72(5)(d) foresees as a possible condition to be agreed upon between the Court and the State the use of *in camera* or *ex parte* proceedings. This is because this sub-provision is framed in the context a Part 9 request for judicial assistance, i. e. where the State has exclusive control of the material concerned, as denoted by the terms "Agreement on conditions under which the assistance could be provided..." (emphasis added); see also below mn. 26. Essentially, the scenario foresees that the State concerned might agree to providing the requested material to the Chamber for its *in camera* or *ex parte* review in order to enable it to rule on issues of relevance and necessity and/or the proportionality of the proposed protective measures.

²³ Arguably the distinction in article 72(2) between 'information' and 'evidence' relates to the difference between oral testimony before the Court, which is *ipso facto* entered into the evidentiary record, and a statement given in the context of an interview during investigations (see article 99(5)). Nonetheless, other parts of the provision appear to use the terms interchangeably: e.g. article 72(4) refers to "information or documents"; the chapeau of article 72(5) refers to "information", while subparagraph (b) of the same sub-provision refers to "information or evidence" and "evidence" interchangeably, and subparagraph (c) refers to "information or evidence"; article 72(6) refers to "information or documents"; and the chapeau of article 72(7) and its accompanying sub-paragraphs use the terms "evidence" and "information or documents". The term 'information', moreover, appears in the title of the article.

electronic form.²⁴ The term ‘information’ may be understood more broadly to encompass any knowledge or data, whether recorded in documentary form or not, whether written, diagrammatic or oral.²⁵ The term ‘evidence’ may embrace both information and documents and governs principally the value of the material, rather than its form, in establishing a particular fact in context of the proceedings.

- 5 The last part of the opening clause of article 72(1) refers to the disclosure of the information or documents *of a State*. Article 72(4) similarly refers to where a State learns that ‘information or documents *of the State* are being, or likely to be, disclosed’. This means that the information or documents at issue must belong to or have originated from the State raising the claim: a State cannot claim that disclosure of information or evidence generally might prejudice its national security interests. Since the information or documents must be those *of the State*, a sufficient link will therefore have to be established between the information or documents in question and the intervening State.²⁶ Article 72 does not extend to information or documents in a State’s custody, possession or control which was disclosed to it in confidence by a third party, which is governed by article 73. It also does not extend to information or documents lawfully in the public domain, since a protective measure is incapable of being given effect.²⁷

In this context, a national security claim may be brought by any State, including by a State not Party to the Statute. Indeed, all of the provisions of article 72 find equal application to non-Party States, with the partial exception of a finding of non-compliance which is treated separately below (see below mn. 42).²⁸

As to information or documents held by private or public institutions within a State’s territory, if the State has been requested by the Court pursuant to Part 9 to assist in producing the information, e.g. by seeking a domestic production order to obtain the information from a broadcaster or a banking institution under a judicial warrant, the State may also deny the request pursuant to articles 72 and 93(4) combined, where the requested material, in its opinion, prejudices its national security. If the Court’s request for cooperation has been sent directly to the private or public institution in question and that institution has agreed to cooperate,²⁹ i.e. the request was not channelled through Part 9 of the Statute, the State might nonetheless intervene after learning about such intended cooperation or, if cooperation has happened, any intended disclosure, pursuant to articles 72(2) and 72(4), as discussed below.

²⁴ See e.g. Regulation 22, Regulations of the Court (in relation to submissions to the Court): “The term ‘document’ shall include any motion, application, request, response, reply, observation, representation and any other submission in a form capable of delivering a written record to the Court.”

²⁵ In contrast see *Security Regulations of the Council of the European Union* (2001/264/EC), 19 March 2001, Part I, para. 3, which includes oral recordings under the definition of ‘document’ to govern all media by which information is recorded: “by ‘document’ is meant any letter, note, minute, report, memorandum, signal/message, sketch, photograph, slide, film, map, chart, plan, notebook, stencil, carbon, typewriter or printer ribbon, tape, cassette, computer disk, CD ROM, or other physical medium on which information has been recorded”.

²⁶ Dixon *et al.*, *Commentary* (2008) art. 72, mn. 13.

²⁷ A national security claim could conceivably be brought by a State with respect to information or documents which, though publicly accessible, has been unlawfully disclosed in the opinion of the State, particularly where it is seeking judicial measures to limit its dissemination and therefore has an interest to intervene also before the ICC. The Court would have to determine whether such a claim properly falls within the scope of article 72. See also *Janowiec and Others v. Russia*, para. 206, and *Nolan and K. v. Russia*, no. 2512/04, para. 56, cited below at fn. 65 and accompanying text in mn. 16.

²⁸ Although article 93(4) refers to States Parties only, this is because that provision is directed towards the duties and obligations of States Parties under Part 9 to cooperate fully (article 86) and thus governs permissible exceptions to that duty, including right or refusal. The availability of the provision should be understood to extend also to non-Party States who have been requested to cooperate.

²⁹ E.g. under article 54(3)(d) the Prosecutor may ‘[e]nter into such arrangements or agreements, not inconsistent with this Statute, as may be necessary to facilitate the cooperation of a State, intergovernmental organization or person’; the provision is not designed to enable the Prosecutor to avoid Part 9 procedures, as the phrase ‘not inconsistent with this Statute’ suggests, but enables direct interactions with cooperation providers where recourse to judicial assistance from States under Part 9 is not required.

Some inconsistency might be suggested by the wording of article 93(4), which provides that a State Party may deny a request for assistance ‘only if the request concerns the production of any documents or disclosure of evidence *which relates to its national security*’ (emphasis added), suggesting that the pronoun attaches to the State’s generic national security assessment, rather than to its specific documents or evidence. The scope for any such discrepancy is overcome, however, by the express subordination of article 93(4) to article 72 ([i]n accordance with article 72...).³⁰ Thus, article 93(4) does not expand upon the possible range of information, documents or evidence that can be the subject of a national security claim under article 72, nor does it provide an extended right of refusal for cooperation requests that go beyond the purposes which may be invoked in accordance with article 72.

2. ‘in the opinion of that State’

The right to lodge a claim on the basis of national security prejudice is predicated on the ‘opinion’ of the State. The term appears four times in the article, at paragraphs 1, 2, 4 and 5, to emphasize that it is the State’s own perception and subjective assessment as to the cause and impact of the prejudice that serves as the relevant standard to trigger a claim, rather than an objective assessment that can be put to test.³¹ Accordingly, a State cannot be denied the right to intervene because other parties or the Chamber appreciate the assessment of prejudice differently. As the drafting of the Statute shows, there was a concern that the Court should not be empowered to second guess a State’s determination to trigger a claim, since the State itself will be uniquely placed to assess any such prejudice against all other information and variables available to it.³² Nonetheless, while the opinion of the State is sufficient to activate the procedure, it is the Court that will make the final determination on the relevance and necessity of the material at issue and the reasonableness of the actions taken and explanations offered by the State in seeking resolution of the matter (see below, mn. 37 *et seq.*).

3. ‘national security’

While the title of the provision refers to the protection of ‘national security information’,³³ the text of article refers more generically to the concept of ‘national security interests’. Neither term is defined in the Statute, indicative of the reality that States have such varied conceptions as to what impacts on their vital strategic interests.³⁴ This is why the focus of the provision is the ‘opinion of the State’, rather than the content of the assessment as described above.

³⁰ See also Dixon *et al.*, *Commentary* (2008), art. 72, p. 1367, fn. 23 and mn. 27.

³¹ As Hall adds ‘but that subjective standard cannot be unreasonable or in bad faith’ (2nd ed., p. 1368). This might conceivably arise where the State decides to explain its national security claim in terms that are manifestly inapplicable, possibly requiring the Chamber to rule upon, or inquire further as to, whether an article 72 claim has been properly brought. The Court could also dismiss a claim that fails to comport with the preconditions of article 72(1), e.g. as described above because the information or document in question is not in fact ‘of the State’, but belongs to a third party and therefore requires recourse to article 73. As the ICTY Appeals Chamber has stated, ‘it is generally for the State to present its argument to the Chamber than [sic] an interest is a national security interest that warrants a Chamber ordering non-disclosure of the material sought. It is then for the Chamber to consider whether that claim is justified and warrants an order of protective measures. It is not the case [...] that a Chamber must accept the qualification presented by a State’; *Prosecutor v. Slobodan Milosevic*, Case No. IT-02-54-ARISbis.2, ICTY Appeals Chamber, Decision on Serbia and Montenegro’s Request for Review, 20 September 2005 (Confidential), para. 14, cited in *Prosecutor v. Milan Milutinović et al.*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, at fn. 79.

³² Piragoff, in: Lee (ed.), *ICC* (1999) 281–282.

³³ The same phrase appears in art. 57(3)(c).

³⁴ One of the coordinators on procedural matters at the Rome Conference suggests that ‘The term “national security” is meant to somewhat limit the scope of application to serious national interests’; Friman, in: Lattanzi and Schabas (eds.), *Essays on the ICC* (1999/2000) 229.

- 8 The dangers of providing carte blanche discretion to States in withholding information on the basis of national security interests is evident from the scope and variability of domestic practice. For example, a 2013 study surveying reports from national experts from 20 European countries found considerable variation regarding what, exactly, is meant by ‘national security’ – with national laws referring (often interchangeably) not only to ‘national security,’ but also to ‘state security,’ ‘public security,’ ‘public safety,’ ‘national defense,’ ‘national interests,’ ‘state secrets,’ and related terms such as ‘security of the realm,’ ‘security of [the country] or its allies,’ ‘defense of the country,’ ‘national safety,’ and other ‘special public issues’ – while other States did not provide a definition at all for the purpose of justifying the non-disclosure of government-held information, leaving this to be deduced from other domestic legal sources.³⁵ As the report notes, ‘where a definition of national security has been provided in the law, the term tends to be broadly defined to encompass any threats to the independence, sovereignty, or territorial integrity of the nation, as well as to its internal safety or constitutional order’, and encompasses both ‘international relations and protection against domestic security threats (e.g., law enforcement)’.³⁶ Similarly, among the recommendations contained in the 2013 Global Principles on National Security and the Right to Information (‘The Tshwane Principles’) is that the term ‘national security’ as well as the categories of information that may be withheld on national security grounds should be set forth clearly in law.³⁷
- 9 Human rights instruments generally permit States to take measures to legitimately limit the exercise of certain other rights, including the right to a public trial.³⁸ In addition to respecting the principles of equality and non-discrimination, such limitations, however, must be prescribed by law; be in pursuance of one or more specific legitimate purposes; and be ‘necessary in a democratic society’.³⁹ Prescription by law has been interpreted to mean that the law must

³⁵ Jacobsen, *National Security and the Right to Information in Europe* (2013), pp. 7–8.

³⁶ *Ibid.*, p. 8. Unsurprisingly, the same broad scope applies in other regions. The United States Department of Defence, for example, defines ‘national security’ as ‘A collective term encompassing both national defense and foreign relations of the United States with the purpose of gaining: a. A military or defense advantage over any foreign nation or group of nations; b. A favorable foreign relations position; or c. A defense posture capable of successfully resisting hostile or destructive action from within or without, overt or covert.’ and *national security interests* as ‘The foundation for the development of valid national objectives that define United States goals or purposes’; Joint Publication 1–02, Department of Defense Dictionary of Military and Associated Terms, 8 November 2010 (as amended through 15 March 2015).

³⁷ See Principle 2 and 3, Global Principles on National Security and the Right to Information (‘The Tshwane Principles’), 12 June 2013. The Principles were drafted by 22 organizations and academic centres in consultation with more than 500 experts from more than 70 countries, facilitated by the Open Society Justice Initiative and in consultation with the United Nations (UN) Special Rapporteur on Freedom of Opinion and Expression, the African Commission on Human and Peoples’ Rights (ACHPR) Special Rapporteur on Freedom of Expression and Access to Information, the Organization of American States (OAS) Special Rapporteur on Freedom of Expression, and the Organization for Security and Cooperation in Europe (OSCE) Representative on Freedom of the Media. See also Report of the Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, Martin Scheinin: ‘While the understanding of national security varies among States, it is good practice for national security and its constituent values to be clearly defined in legislation adopted by parliament’; Compilation of good practices on legal and institutional frameworks and measures that ensure respect for human rights by intelligence agencies while countering terrorism, including on their oversight, A/HRC/14/46, 17 May 2010, para. 9.

³⁸ Article 14(1) ICCPR e.g. allows for the exclusion of the press and public from all or part of a trial for reasons of ‘morals, public order (ordre public) or national security in a democratic society’, while article 12(3) ICCPR provides ‘[t]he above-mentioned rights shall not be subject to any restrictions except those which are provided by law, are necessary to protect national security, public order (ordre public), public health or morals or the rights and freedoms of others, and are consistent with the other rights recognized in the present Covenant’. Although the rights enumerated under article 14 are not among the list of non-derogable rights protected by article 4 of the Covenant, the Human Rights Committee has stated that the procedural safeguards of the ICCPR may never be made subject to measures that would circumvent the protection of non-derogable rights (such as imposition of the death penalty during a state of emergency without observing the provisions of articles 14 and 15 of the Covenant); Human Rights Committee, General Comment 29, States of Emergency (article 4), U.N. Doc. CCPR/C/21/Rev.1/Add.11 (2001), para. 15.

³⁹ See articles 12(3), 14(1), 19, 21 and 22 ICCPR. See also Council of Europe, *Guidelines on human rights and the fight against terrorism* (2002), guideline III(2); and Inter-American Commission on Human Rights, ‘Report on terrorism and human rights’, OEA/Ser.L/V/II.116, Doc. 5 rev. 1 corr., paras. 51 and 55.

be adequately accessible so that individuals have an adequate indication of how the law limits their rights and the law must be formulated with sufficient precision so that individuals can regulate their conduct.⁴⁰ The legitimate purpose criteria may attach to national security, public safety, public order, health, morals, and the human rights and freedoms of others.⁴¹ In this regard, the *Siracusa Principles* on the limitation and derogation provisions of the ICCPR suggests that national security: (i) may be invoked to justify measures limiting certain rights only when they are taken to protect the existence of the nation or its territorial integrity or political independence against force or threat of force; (ii) cannot be invoked as a reason for imposing limitations to prevent merely local or relatively isolated threats to law and order; (iii) cannot be used as a pretext for imposing vague or arbitrary limitations and may only be invoked when there exists adequate safeguards and effective remedies against abuse; and that (iv) a state responsible for the systematic violation of human rights cannot invoke national security as a justification for measures aimed at suppressing opposition to such violation or at perpetrating repressive practices against its population.⁴² The phrase 'necessary in a democratic society' may be qualified as relating to limitations that are necessary in the pursuit of a pressing objective legitimately pursued, and whose impact on other rights and freedoms is proportionate to that aim.⁴³ The ECtHR has summarised its own case law thus:

'... the entitlement to disclosure of relevant evidence is not an absolute right. In any criminal proceedings there may be competing interests, such as national security or the need to protect witnesses at risk of reprisals or keep secret police methods of investigation of crime, which must be weighed against the rights of the accused (see, for example, the *Doorson v. the Netherlands* judgment of 26 March 1996, *Reports of Judgments and Decisions* 1996-II, p. 470, § 70). In some cases it may be necessary to withhold certain evidence from the defence so as to preserve the fundamental rights of another individual or to safeguard an important public interest. However, only such measures restricting the rights of the defence which are strictly necessary are permissible under Article 6 § 1 (see the *Van Mechelen and Others v. the Netherlands* judgment of 23 April 1997, *Reports* 1997-III, p. 712, § 58). Moreover, in order to ensure that the accused receives a fair trial, any difficulties caused to the defence by a limitation on its rights must be sufficiently counterbalanced by the procedures followed by the judicial authorities (see the *Doorson* judgment cited above, p. 471, § 72, and the *Van Mechelen and Others* judgment cited above, p. 712, § 54).'⁴⁴

Responding to the variation in State practice in this field, the three thematic mandate holders on the freedom of expression of the United Nations, the Organisation for Security and Cooperation in Europe and the Organisation of American States issued a Joint Declaration in 2004, stating, *inter alia*: '[t]he right to access information held by public authorities is a

⁴⁰ See e.g. *Sunday Times v. United Kingdom*, N° 6538/74, European Court of Human Rights, Judgment, 26 April 1979, para. 49. The *Siracusa Principles on the Limitation and Derogation Provisions of the ICCPR* define 'proscribed by law' as requiring: (i) no limitation on the exercise of human rights shall be made unless provided for by national law of general application which is consistent with the Covenant and is in force at the time the limitation is applied; (ii) laws imposing limitations on the exercise of human rights shall not be arbitrary or unreasonable; (iii) legal rules limiting the exercise of human rights shall be clear and accessible to everyone; and (iv) adequate safeguards and effective remedies shall be provided by law against illegal or abusive imposition or application of limitations on human rights; *Siracusa Principles on the Limitation and Derogation Provisions in the International Covenant on Civil and Political Rights*, UN Doc. E/CN.4/1985/4, Annex (1985).

⁴¹ See articles 12, 13, 14, 19, 21 and 22 ICCPR. Christopher Hall, in *Commentary* (2008), art 72, mn. 7, observes that none of the human rights treaties provide that a state may refuse to supply evidence to a court on the ground that it would prejudice national security. Any such withholding would therefore need to be assessed in the light of the principles of necessity and proportionality.

⁴² *Siracusa Principles on the Limitation and Derogation Provisions in the International Covenant on Civil and Political Rights*, UN Doc. E/CN.4/1985/4, Annex (1985), paras. 29–32. See *ibid* paras 22–37 for working definitions of public safety, public order, health, morals, and the human rights and freedoms of others. See generally *Johannesburg Principles on National Security, Freedom of Expression and Access to Information, Freedom of Expression and Access to Information*, U.N. Doc. E/CN.4/1996/39 (1996).

⁴³ *Siracusa Principles*, paras 10, 19–21. The Principles define the term 'democratic society' as referring, *inter alia*, to a society 'which recognizes and respects the human rights set forth in the United Nations Charter and the Universal Declaration of Human Rights'; *Siracusa Principles*, para. 21.

⁴⁴ *Rowe and Davis v. United Kingdom*, N° 28901/95, European Court of Human Rights, Judgment, 16 February 2000, para. 61.

fundamental human right which should be given effect at the national level through comprehensive legislation (for example Freedom of Information Acts) based on the principle of maximum disclosure, establishing a presumption that all information is accessible subject only to a narrow system of exceptions'; '[t]he right of access should be subject to a narrow, carefully tailored system of exceptions to protect overriding public and private interests, including privacy. Exceptions should apply only where there is a risk of substantial harm to the protected interest and where that harm is greater than the overall public interest in having access to the information. The burden should be on the public authority seeking to deny access to show that the information falls within the scope of the system of exceptions'; '[t]hose requesting information should have the possibility to appeal any refusals to disclose to an independent body with full powers to investigate and resolve such complaints'; '[n]ational authorities should take active steps to address the culture of secrecy that still prevails in many countries within the public sector', and '[c]ertain information may legitimately be secret on grounds of national security or protection of other overriding interests. However, secrecy laws should define national security precisely and indicate clearly the criteria which should be used in determining whether or not information can be declared secret, so as to prevent abuse of the label "secret" for purposes of preventing disclosure of information which is in the public interest'.⁴⁵

- 11 More recent high profile revelations in the context of counter-terrorism cases have increased the level of public scrutiny on these issues. Nonetheless, national law continues generally to exhibit deference to the assessment of State authorities over the disclosure of information when national security is invoked. As the 2013 survey on national security and the right to information in Europe demonstrates, this occurs even where such assessments are subject to institutional oversight; while at other times certain public offices and officials, in particular those working in the national security sector, may be exempt, either in law or in practice, from disclosure obligations altogether upon a minimal showing or assertion of national security prejudice.⁴⁶ Moreover, while many States recognize the right of the public to

⁴⁵ *Joint Declaration by the UN Special Rapporteur on Freedom of Opinion and Expression, the OSCE Representative on Freedom of the Media and the OAS Special Rapporteur on Freedom of Expression*, 6 December 2004, available at <http://www.oas.org/en/iachr/expression/showarticle.asp?artID=319&ID=1>. The OAS Special Rapporteur on Freedom of Expression, in a framework document on the right to access information, further summarised the requirements of necessity and proportionality thus: 'The limitations imposed upon the right of access to information – like any limitation imposed on any aspect of the right to freedom of thought and expression – must be necessary in a democratic society to satisfy a compelling public interest. Among several options for accomplishing this objective, the one least restrictive to the right must be chosen, and the restriction must: (i) be conducive to the attainment of the objective; (ii) be proportionate to the interest that justifies it; and (iii) interfere to the least extent possible with the effective exercise of the right. With specific regard to the requirement of proportionality, the Inter-American Commission has asserted that any restriction to access to information held by the State, in order to be compatible with the Convention, must overcome a three-part proportionality test: (a) it must be related to a legitimate aim that justifies it; (b) it must be demonstrated that the disclosure of the information effectively threatens to cause substantial harm to this legitimate aim; and (c) it must be demonstrated that the harm to the objective is greater than the public's interest in having the information'; *Right to access to information in the Inter-American legal framework*, Special Rapporteur on Freedom of Expression, Inter American Commission on Human Rights, OEA/Ser.L/V/II, CIDH/RELE/INF. 1/09, 30 December 2009, para. 53. See also *Ricardo Canese v. Paraguay*, IACtHR, Judgment (Merits, Reparations and Costs), 31 August 2004, para. 96; *Palamara Iribarne v. Chile*, IACtHR, Judgment (Merits, Reparations and Costs), 22 November 2005, para. 85; *Gomes Lund et. al. v. Brazil*, IACtHR, Judgment (Preliminary Objections, Merits, Reparations, and Costs), 24 November 2014, para. 229.

⁴⁶ Jacobsen, pp. 9–11, 36–37, 42, noting that States generally do provide for some type of oversight over a public body's national security claim against disclosure with authority to review classification decisions. This may be possible by means of independent judicial review, which may be restricted to only certain courts or judges with special clearance may examine classified information, and who may additionally have the authority to order the release of classified information if they deem that the information does not need to be withheld despite the government's claim to the contrary, although in practice judges normally defer to the public authority's assessment that disclosure would harm national security. Alternatively, review may only be possible via another type of oversight authority, such as parliament, an Ombudsperson, an Information Commissioner, or another national agency or inter-departmental committee, the powers and degree of autonomy of which may vary considerably.

access government-held information, the scope of such access varies considerably, including on the preliminary issue of confirming or denying whether the information sought exists, since this in itself may be classified.⁴⁷

A welcome practice of some States is to list specific categories of information which may be classified on national security grounds and those that may not. For example, in certain States the law either expressly prohibits, or judicial oversight practice prevents, claims of national security prejudice in relation to human rights violations, government corruption, the existence of a government entity, the budget or expenditures of a government entity, the existence of a law (or portion of a law), emergency response plans, accidents and disasters threatening the health and security of the citizens, and the state of the environment, or information which has been classified in order to conceal a criminal offense, abuse of power, or other unlawful behaviour.⁴⁸ However, in many States there is no such restriction.

As emphasised in several decision of regional bodies, executive claims of exemption from the normal rules of disclosure in legal proceedings on national security grounds require independent judicial scrutiny.⁴⁹ Failure may result in a finding of an abuse of power. As the ECtHR observed in *El Masri*, concerning the practice of extraordinary renditions and the failure of the Macedonian authorities to provide satisfactory responses, '[t]he concept of "State secrets" has often been invoked to obstruct the search for the truth'.⁵⁰

Similarly, in *Myrna Mack Chang v. Guatemala*, the Inter-American Court of Human Rights (IACtHR) held in relation to the intentional withholding of documents on the basis of state secrecy: 'in cases of human rights violations, the State authorities cannot resort to mechanisms such as official secret or confidentiality of the information, or reasons of public interest or national security, to refuse to supply the information required by the judicial or administrative authorities in charge of the ongoing investigation or proceeding'.⁵¹ The IACtHR went on to recall with approval the following statement of the Inter-American Commission:

'[i]n the framework of a criminal proceeding, especially when it involves the investigation and prosecution of illegal actions attributable to the security forces of the State, there is a possible conflict of interests between the need to protect official secret [*sic*], on the one hand, and the obligations of

⁴⁷ *Ibid.*, pp. 11, 15.

⁴⁸ *Ibid.*, pp. 34–35.

⁴⁹ See also Report of the Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, A/HRC/22/52, 1 March 2013, para. 38.

⁵⁰ *El-Masri v. Macedonia*, N° 39630/09, ECtHR, Judgment, 13 December 2012, para. 191. The judgment also cited, at para. 46, the words of Swiss Senator Dick Marty in his 2007 report on extraordinary renditions to the Council of Europe, that secrecy was often invoked in order 'not to provide explanations to parliamentary bodies or to prevent judicial authorities from establishing the facts and prosecuting those guilty of offences'; *Secret detentions and illegal transfers of detainees involving Council of Europe member States: second report*, Council of Europe, Doc. 11302 rev., 11 June 2007, para. 5. See also *Abuse of state secrecy and national security: obstacles to parliamentary and judicial scrutiny of human rights violations*, resolution 1838 (6 October 2011), Parliamentary Assembly of the Council of Europe, adopted on debate of the 2011 Marty Report, at para. 4: '...information concerning the responsibility of state agents who have committed serious human rights violations, such as murder, enforced disappearance, torture or abduction, does not deserve to be protected as secret. Such information should not be shielded from judicial or parliamentary scrutiny under the guise of "state secrecy".'

⁵¹ *Myrna Mack Chang v. Guatemala*, IACtHR, Judgment (Merits, Reparations and Costs), 25 November 2003, para. 180. In that case, the Ministry of National Defense had refused to provide certain documents relating to the operation and the structure of the Presidential General Staff after repeated requests from the Attorney General's Office and federal judges in the investigations of an extrajudicial execution, invoking state secrecy pursuant to article 30 of the Guatemalan Constitution. The IACtHR held this refusal amounted to an obstruction of justice; *Myrna Mack Chang v. Guatemala*, para. 172. In *Gomes Lund et. al. v. Brazil*, recalling its earlier judgment in *Myrna Mack Chang v. Guatemala*, the IACtHR similarly held that State authorities cannot resort to citing State secrecy, the confidentiality of information, or public interest or national security in order to avoid turning over information required by the judicial or administrative authorities responsible for an investigation into human rights violations. In this regard, the Court held that when the information sought relates to a criminal investigation, the decision to classify the information as secret or to refuse to hand it over – or to confirm its existence – cannot stem solely from a State organ whose members are charged with committing the wrongful acts; *Gomes Lund et. al. v. Brazil*, IACtHR, Judgment (Preliminary Objections, Merits, Reparations, and Costs), 24 November 2014, para. 202, citing to *Myrna Mack Chang v. Guatemala*, IACtHR, Judgment (Merits, Reparations and Costs), 25 November 2003, paras. 180–181.

the State to protect individual persons from the illegal acts committed by their public agents and to investigate, try, and punish those responsible for said acts, on the other hand.

[...P]ublic authorities cannot shield themselves behind the protective cloak of official secret to avoid or obstruct the investigation of illegal acts ascribed to the members of its own bodies. In cases of human rights violations, when the judicial bodies are attempting to elucidate the facts and to try and to punish those responsible for said violations, resorting to official secret with respect to submission of the information required by the judiciary may be considered an attempt to privilege the “clandestinity of the Executive branch” and to perpetuate impunity.’

Likewise, when a punishable fact is being investigated, the decision to define the information as secret and to refuse to submit it can never depend exclusively on a State body whose members are deemed responsible for committing the illegal act. ‘It is not, therefore, a matter of denying that the Government must continue to safeguard official secrets, but of stating that in such a paramount issue its actions must be subject to control by other branches of the State or by a body that ensures respect for the principle of the division or powers...’ Thus, what is incompatible with the Rule of Law and effective judicial protection ‘is not that there are secrets, but rather that these secrets are outside legal control, that is to say, that the authority has areas in which it is not responsible because they are not juridically regulated and are therefore outside any control system...’⁵²

In *Gomes Lund et. al.*, the IACtHR similarly held ‘given the denial of access to determined information under State control, the State must guarantee the existence of a simple, quick, and effective remedy before an independent organ, distinct from the one that denied the request, that can determine if their [sic] was a harm to the right to access information, and where applicable, resolve that the corresponding authority present said information’.⁵³

- 14 The ICC will clearly have to develop its own understanding of the scope and content of the term ‘national security’ in the context of specific claims put before it. Nonetheless, if the Court were to follow the practice of some States when using this term it could lead to the absurd result that disclosure of information concerning almost any matter involving an armed conflict or military activity would be considered prejudicial to national security and, therefore, protected from disclosure.⁵⁴ For example, one practice cited with concern by the United Nations Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, and recalled in the *El Masri* case, concerns the blanket invocation of State secrets privilege with reference to complete policies, such as the United States’ secret detention, interrogation and rendition programme.⁵⁵ The danger inherent to an overly broad construction of, and deference to, the term ‘national security’ is evident the ICTY interlocutory appeal in *Blaškić*.⁵⁶ Rejecting Croatia’s claim that the Tribunal had no authority to review its claim that information concerning its military operations would harm its national security, the Appeals Chamber observed: ‘to allow national security considerations to prevent the International Tribunal from obtaining documents that might prove of decisive importance to the conduct of trials would be tantamount to undermining the very essence of the International Tribunal’s functions’.⁵⁷ As the Appeals Chamber went on to hold:

‘[T]o grant States a blanket right to withhold, for security purposes, documents necessary for trial might jeopardise the very function of the International Tribunal, and “defeat its essential object and purpose”. The International Tribunal was established for the prosecution of persons responsible for war crimes, crimes against humanity and genocide; these are crimes related to armed conflict and military

⁵² *Myrna Mack Chang v. Guatemala*, IACtHR, Judgment (Merits, Reparations and Costs), 25 November 2003, para. 181.

⁵³ *Gomes Lund et. al. v. Brazil*, IACtHR, Judgment (Preliminary Objections, Merits, Reparations, and Costs), 24 November 2014, para. 231, recalling *Claude Reyes et al. v. Chile*, IACtHR, Judgment (Merits, Reparations and Costs), 19 September 2006, para. 137.

⁵⁴ Hall, *Commentary* (2008), art 72, mn. 7; Triffterer, in: Roggemann and Šarčević (eds.), *National Security and International Criminal Justice* (2002), pp. 64–69.

⁵⁵ Report of the Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, 4 February 2009, UN Doc. A/HRC/10/3, para. 60; cited in *El Masri v Macedonia*, European Court of Human Rights, Application No. 39630/09, Judgment, 13 December 2012, at para. 103.

⁵⁶ *Prosecutor v. Tihomir Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 Oct 1997.

⁵⁷ *Ibid.*, para. 64.

operations. It is, therefore, evident that military documents or other evidentiary material connected with military operations may be of crucial importance, either for the Prosecutor or the defence, to prove or disprove the alleged culpability of an indictee, particularly when command responsibility is involved (in this case military documents may be needed to establish or disprove the chain of command, the degree of control over the troops exercised by a military commander, the extent to which he was cognisant of the actions undertaken by his subordinates, etc.). To admit that a State holding such documents may unilaterally assert national security claims and refuse to surrender those documents could lead to the stultification of international criminal proceedings: those documents might prove crucial for deciding whether the accused is innocent or guilty. The very *raison d'être* of the International Tribunal would then be undermined'.⁵⁸

Framing the parameters that were to guide the negotiations of article 72, the ICTY Appeals Chamber emphasised that rather than allowing States a unilateral right to withhold documents because of national security concerns, the solution lay in an approach that enabled the Tribunal to adopt practical methods and procedures to scrutinise the validity of a State's national security claim, while mindful of legitimate State concerns (see below mn. 26).⁵⁹

4. 'prejudice to national security'

Unlike earlier proposals which included references to documents or information that 'relate to' the national security of a State, the article 72 standard requires that disclosure would, in the opinion of the State, 'prejudice' its national security (see also mn. 5). As such, the provision anticipates that a State must consider the actual harm or 'prejudice' to its national security that would result from the disclosure in question, rather than a mere link between the information and its national security interests.⁶⁰ In this regard, Chambers of the ICTY have held it does not suffice for a State to claim national security in general terms: it must provide specific arguments related to its national security with reference to the particular document affected.⁶¹

In the *Muthuara, Kenyatta and Ali* case before the ICC, Pre-Trial Chamber II rejected for lack of specificity a request by the Government of Kenya to participate in the confirmation hearing based on the concern that 'sensitive information regarding Kenya's security interests within the meaning of article 72 of the Statute may arise in the Hearing'. As recounted by the Chamber, 'The Government of Kenya purports, in particular, that the Prosecutor alleges that the "State House" was involved in the commission of alleged crimes. Therefore, the Government of Kenya advances, it "must be present in the courtroom to hear the [Prosecutor's] submissions and evidence" whether in public or private session so that the "Government can be in a position to determine whether the disclosure of any materials would prejudice its national security interests and to take appropriate steps as provided for in the Statute"'.⁶² Rejecting the application, the Chamber noted that the

⁵⁸ *Ibid.*, para. 65. In the context of the decision at issue, the Appeals Chamber went on to observe that national implementing legislation which permits States to decline to comply with requests of the Tribunal if such requests would prejudice the 'sovereignty, security or national interests' were not compatible with their obligations under the Statute; *Ibid.*, para. 64, citing implementing legislation of Australia and New Zealand.

⁵⁹ *Ibid.*, para. 67 *et seq.* These same principles were recalled by the Trial Chamber in the *Karadžić* case concerning a request to Germany for the production of documents that triggered a national security claim: 'The Trial Chamber first notes that a state does not have a blanket right to withhold the production of documents on the basis that this raises national security concerns ... However, the Rules do not leave the concerned states without any alternative because their concerns may be addressed by recourse to Rule 54 bis (F) to (I), which provide for various protective measures for the documents at issue, should they be requested'; *Prosecutor v. Radovan Karadžić*, Decision on the accused's application for binding order pursuant to rule 54 bis (Federal Republic of Germany), ICTY Trial Chamber, IT-95-5/18-T, 19 May 2010, para. 41. See also *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders Pursuant to Rule 54bis, IT-05-87-PT, 17 November 2005, para. 31.

⁶⁰ Dixon and Duffy, *Commentary* (1999), art. 72, mn. 8. See also above mn. 5 at fn. 30 and accompanying text.

⁶¹ *Prosecutor v. Radovan Karadžić*, Decision on the accused's application for binding order pursuant to rule 54 bis (Federal Republic of Germany), ICTY Trial Chamber, IT-95-5/18-T, 19 May 2010, para. 43.

⁶² *Prosecutor v. Francis Kimiri Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, Decision on the Request by the Government of Kenya in respect of the Confirmation of Charges Proceedings, ICC Pre-Trial Chamber II, ICC-01/09-02/11-340, 20 September 2011, para. 10.

disclosure of evidence in question had already occurred *inter partes* without the Government of Kenya raising any concerns during the pre-confirmation disclosure phase.⁶³ It also considered Kenya's request to be based on a particular interpretation of the Prosecutor's allegation, which was insufficiently precise to attract a specific national security prejudice.⁶⁴

The burden on the State to provide satisfactory explanations in relation to claimed national security prejudice has been emphasised by both the ECtHR and the IACtHR. In *Husayn (Abu Zubaydah) v. Poland*, the ECtHR observed that while '[t]he judgment by the national authorities in any particular case that national security considerations are involved is one which the Court is not well equipped to challenge', nonetheless in relation to its own powers '... in cases where the Government have advanced confidentiality or security considerations as the reason for their failure to produce the material requested, the Court has had to satisfy itself that there were reasonable and solid grounds for treating the documents in question as secret or confidential'.⁶⁵ In *Janowiec and Others v. Russia*, the ECtHR also took into account whether the document in question was known to anyone outside the secret intelligence services and the highest State officials, after it became clear that lay persons, such as counsel for the claimant in a civil case, could take cognisance of the document in question.⁶⁶ In *Gomes Lund et. al. v. Brazil*, the IACtHR similarly held that 'all denials of information must be motivated and founded, to which the State is responsible for the burden of proof on the impossibility of presenting said information, and given doubts or empty legal arguments, the right to access to information will be favoured'.⁶⁷

5. Interaction with other statutory provision

- 17 The last part of opening paragraph of article 72 specifies that the provision applies to all instances where information or documents may be disclosed during the course of proceedings.⁶⁸ A number of such instances are specified, albeit concluding with the catch-all phrase 'at any other stage of the proceedings where disclosure may be at issue'. The express citation to the most important provisions dealing with the Court's disclosure regime, nonetheless, removes any

⁶³ *Ibid.*, para. 11. The Chamber nonetheless accepted for sake of argument that the Government of Kenya might be only learning now 'at this late stage' of the fact of such disclosure, pursuant to article 72(4); *ibid.*

⁶⁴ *Ibid.*, para. 11: 'The assertion put forth by the Government of Kenya, namely the purported implication of the "State House", seems to be based on a particular reading of the document containing the charges and is not convincing in itself to justify an automatic reference to national security interests. Further, the simple mention of the word "State House" in the document containing the charges cannot compensate the lack of any proper substantiation of the existence of "information or documents of a State" which would satisfy the legal requirements of article 72 of the Statute. Therefore, the argument as presented by the Government of Kenya must fail.'

⁶⁵ *Husayn (Abu Zubaydah) v. Poland* (no. 7511/13), Judgment, 24 July 2014, para. 357. In cases concerning disappearances in the Chechen Republic, where the Russian Government relied on a provision of the Code of Criminal Procedure which, in their submission, precluded the disclosure of documents from the file of an ongoing investigation, e.g., the Court noted that the provision in question did not contain an absolute prohibition but rather set out the procedure for, and limits to, such disclosure; *Janowiec and Others v. Russia*, Judgment (Merits and Just Satisfaction), 21 October 2013, para. 205. The Court also noted that in many similar cases the Russian Government had submitted the documents requested without mentioning that provision, or had agreed to produce documents from the investigation files even though they had initially invoked that provision; *ibid.* In other cases, the ECtHR was not satisfied with a State's explanation according to which regulations relating to the procedure for review of prisoners' correspondence constituted a State secret or, in another instance, that the State concerned could not communicate information classified as a State secret to an international organisation such as the ECtHR because there was no provision in domestic law laying down a procedure to do so; *Ibid.*, para. 206, citing *Davydov and Others v. Ukraine*, nos. 17674/02 and 39081/02, 1 July 2010, para. 170 and *Nolan and K. v. Russia*, no. 2512/04, ECtHR, Judgment, 12 February 2009, para. 56.

⁶⁶ *Janowiec and Others v. Russia*, para. 206, citing *Nolan and K. v. Russia*, no. 2512/04, para. 56.

⁶⁷ *Gomes Lund et. al. v. Brazil*, IACtHR, Judgment (Preliminary Objections, Merits, Reparations, and Costs), 24 November 2014, para. 230.

⁶⁸ The wording of article 72(1) says that it applies 'in any case where... as well as cases at any other stage of the proceedings...'. Nonetheless, the use of the term 'case' here refers properly to the notion of 'instances', 'occurrences' or 'occasions', rather than the technical term as used elsewhere in the Statute referring to proceedings instituted against a specific person for particular conduct.

doubt as to the permissible scope of application of a national security claim. As articulated in paragraph 1, this includes article 56(2) and (3), which relate to the measures that may be ordered by the Pre-Trial Chamber pursuant to a unique investigative opportunity. In particular, the taking testimony or a statement from a witness or the examination, collection or testing of evidence during the investigative phase, under the direction of the Chamber and with the participation of the parties, could give rise to national security considerations similar to those arising during ordinary pre-trial or trial proceedings. Referenced is also made to articles 61(3) and 64(3), which include the powers of the Pre-Trial Chamber and the Trial Chamber respectively to issue orders regarding the disclosure of information, as well as article 67(2), which governs the disclosure of potentially exonerating information. This means that the Chamber's authority to issue orders for the disclosure of information or evidence, as well as the Prosecutor's own disclosure obligations towards the Defence, can be made subject to the operation of article 72. The provision further references article 68(6), which relates to measures requested by a State for the protection of its servants or agents or the protection of confidential or sensitive information, and which may intersect with the inter-related provisions of article 72(2) and (4).

Two further provisions related to cooperation are cross-referenced in the opening paragraph. Article 87(6) relates to cooperation that may be requested from an intergovernmental organization, since that organization may have been requested to provide information or evidence which originates from the State concerned.⁶⁹ Intergovernmental organizations will normally refuse to provide classified information which originates from one of its member States, since such information will typically be regarded as belonging to the originating State and not the organisation itself.⁷⁰ Alternatively, the organisation might offer or agree to seek to the views of member State concerned before its release. The other cited cooperation provision is article 93, which governs all possible forms of cooperation that the Court may request of a State, other than arrest, and hence relates to material that has been sought from that State 'pursuant to a request for cooperation under Part 9'. As noted above, article 93(4) likewise contains a cross-reference back to article 72, which governs permissible grounds for refusal of a request.⁷¹

In all of the above instances, as well as in any others where disclosure may be at issue at any other stage in the proceedings, the State concerned has a right to intervene, to be heard and to seek resolution of the matter before the competent Chamber. The term 'proceedings' in this context includes the full range of activities where information, documents or evidence may be disclosed, from preliminary examination and pre-trial to trial, sentencing, appeal, reparations and revision hearings.⁷²

II. Paragraph 2

Article 72(2) treats the situation where an individual, rather than a State, has been requested to give information or evidence. The individual may have refused to provide the

⁶⁹ See also article 73, this volume.

⁷⁰ See e.g. article 3(1) of the *Agreement between the International Criminal Court and the European Union on Cooperation and Assistance*, ICC-PRES/01-01-06, 10 April 2006, which provides: 'This Agreement, including any agreements or arrangements concluded under Article 11, shall not apply to requests for information from the Court which relate to information, other than EU documents including EU classified information, originating from an individual Member State. In such circumstances, any request shall be made directly to the relevant Member State.'

⁷¹ See above mn. 5.

⁷² At the preliminary examination stage, although normally there will be no proceedings until an application is brought for authorization to proceed, disclosure may occur in the context of a decision not to proceed with a referral (article 53(3) review proceedings), see rule 107(3), or possibly in the context of proceedings initiated under Regulation 46(3) of the Regulation of the Court; see e.g. Pre-Trial Chamber II, *Request Under Regulation 46(3) of the Regulations of the Court*, Decision on the 'Request for review of the Prosecutor's decision of 23 April 2014 not to open a Preliminary Examination concerning alleged crimes committed in the Arab Republic of Egypt, and the Registrar's Decision of 25 April 2014', ICC-RoC46(3)-01/14, 12 September 2014.

information in question or, instead of refusing, s/he may have referred the matter to the State concerned for its assessment. In both scenarios the national security claim is only valid if confirmed by the State.⁷³ A State might otherwise intervene in the proceedings pursuant to paragraph 4 of article 72 where it learns that its information or documents might be disclosed, *inter alia*, by the individual referred to in paragraph 2 informing such State in advance.

- 20 Paragraph 2 protects ‘a person who has been requested to give information or evidence’. It may therefore be invoked in the context of any procedure where disclosure might result, including in the course of testimony before the Court or in the context of a unique investigation opportunity (article 56) or a rule 68 procedure. It could also arise in the context of statement taking during investigations, since such statements would later be subject to disclosure pursuant to rule 76 or might otherwise fall within the scope of inspection under rule 77.
- 21 The provision aims to relieve persons so requested of the burden of committing a criminal offence domestically by violating national secrecy laws.⁷⁴ In the context of trial proceedings, it also averts placing such witnesses or experts in potential contempt of court by refusing to comply with a direction of the Chamber.⁷⁵ The onus thus falls on the Court and the State concerned to resolve the matter, and not on the person so questioned; whether by means of the procedures outlined in article 72 or by the State concerned clarifying that its national security interests would not in fact be prejudiced. As discussed below, the Court cannot compel a person before it who falls within the scope of paragraph 2 to provide testimony when s/he has raised a national security objection that has been confirmed by the State, as this falls within the regime of article 72(7)(a) (see below, mn. 39).

III. Paragraph 3

- 22 Paragraph 3 separates out the treatment of national security from the separate confidentiality regimes created by article 53(3)(e), article 53(3)(f) and article 73.⁷⁶ It clarifies that nothing in article 72 prejudices the requirements applicable in those other provisions, meaning that they are neither restricted nor affected by the conditions and procedures stipulated in article 72. Thus, for example, the requirement of confidentiality under article 53(3)(e), article 53(3)(f) and article 73 is not dependent on a claimed national security prejudice. Conversely, the regime created under article 72 for the examination of confidentiality claims by a State with respect to a particular document, including the consequences that may attach where the matter is not resolved, are not directly transferable to the regime of non-disclosure created under those other provisions. Thus, while the Court may choose in its discretion to apply by analogy some of the mechanism described in article 72 in other contexts, or *visa versa*, nothing in article 72 *per se* prejudices the requirements of confidentiality applicable under those other provisions.

In relation to article 54(3)(e), the Appeals Chamber of the ICC has held that a non-disclosure undertaking agreed to between a State and the Prosecutor under that provision is inviolable, holding that any article 54(3)(e) materials provided to a Chamber for its *in camera*, *ex parte* review must be treated in confidence by the Chamber pursuant to own obligation to provide for the confidentiality of information under article 64(6)(c) of the Statute and rule 81(3), and cannot be disclosed without the provider’s consent.⁷⁷ By contrast,

⁷³ Thus, the phrase ‘and the State concerned confirms that it is of the opinion that disclosure would prejudice its national security interests’ attaches to both scenarios described above.

⁷⁴ Dixon and Duffy, *Commentary* (1999), art. 72, mn. 11.

⁷⁵ See article 71, rules 65 and 171.

⁷⁶ Piragoff notes that the origin of article 54(3)(e) comes from the 1997 Preparatory Committee session in the context of a number of proposals with regard to national security and the disclosure of confidential information (in: Lee (ed.), *ICC* (1999) 272–273).

⁷⁷ *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled ‘Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008’,

under article 72(7), under certain conditions, the Chamber can order the disclosure of information over the objections of the State concerned. The 'without prejudice' application of paragraph 3 would mean that a Chamber order under article 72(7)(b)(i) for the prosecution to disclose information in respect of which a State has unsuccessfully claimed national security prejudice cannot cause the Prosecutor to breach a confidentiality undertakings separately agreed to with that State pursuant to article 54(3)(e).⁷⁸ Similarly, if the Chamber has taken necessary measures under article 54(3)(f) for the confidentiality of information, the protection of any person or the preservation of evidence, unless those measures are modified, any order by the Chamber under article 72 must be consistent with them.⁷⁹ This includes measures adopted by the Pre-Trial Chamber which remain in force during trial proceedings unless otherwise modified. Moreover, pursuant to article 73, although a State may possess information which was provided to it in confidence by a third party, the Chamber may not order the requested State to disclose such information, but must instead direct its inquiry, via the requested the State, to the third party in question.⁸⁰

The difference in regimes between article 54(3)(e) and article 72, in particular, deserves some additional treatment. As described earlier, while it is for the State concerned to bring a national security claim under article 72, it is the Chamber that will rule on the proportionality of the measures sought by the State (whether to refuse cooperation or prevent disclosure *in toto* or to subject this to proposed protective measures) and the Chamber may ultimately hold the State in breach of its obligations, draw an inference, or, depending on who has possession, order that the material be disclosed. Article 54(3)(e) cannot be applied unilaterally, it requires prior agreement between the information provider and the Prosecutor. However, where such an agreement is in place, article 54(3)(e) enables the State to control thereby the information's classification level as well as its subsequent use other than as lead information, without needing to either justify its so doing on the basis of national security or having to subject the information's confidentiality to the review of the Court.⁸¹

The obvious potential for conflict between these two confidentiality regimes, and the possibility for their misuse, was addressed by the ICTY in *Milutinović et al.* In that case, the

ICC-01/04-01/06 OA 13 (21 October 2008), para. 48. See generally Rastan, (2009) 7 *NJIHumRts* 229, 270-276; Ambos (2009) 12 *NCLRev* 543 *et seq.*

⁷⁸ It is doubtful whether the same considerations and underlying logic would apply to non-disclosure obligations that have been unilaterally imposed on the Prosecutor by the requested State pursuant to article 93(8) as opposed to those that have been agreed to in advance under article 54(3)(e). In any event, the provision is not expressly referred to in article 72(3) as enjoying 'without prejudice' application. See similarly contrasting ICTY rule 70 with ICTY rule 54bis, *Prosecutor v. Milan Milutinović et al.*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, paras. 33-35.

⁷⁹ In this context, Trial Chamber I has confirmed that although article 54 is entitled 'Duties and powers of the Prosecutor with respect to investigations', the provision applies also at the prosecution stage; *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, ICC Trial Chamber I, Reasons for Oral Decision lifting the stay of proceedings, ICC-01/04-01/06-1644, 23 January 2009, para. 38.

⁸⁰ See commentary for article 73, mn. 7 *et seq.* Third-party information could not, in any event, form the basis of a national security claim since by definition the information which forms the basis of such a claim must be a State's own.

⁸¹ See similarly treatment by the ICTY Appeals Chamber of near analogous provisions contained in rule 54bis, which allows a Chamber to issue binding orders for disclosure, and rule 70, which relates to non-disclosure agreements entered into by the Prosecutor with an information provider: 'Under Rule 54bis, the application of protective measures to the documents or information produced by a State are at the discretion of a Judge or the Trial Chamber who may impose them only after determining that national security interests warrant them. Furthermore, it is at the discretion of the party requesting the information as to the purposes for which it will subsequently be used in proceedings before a Judge or Trial Chamber. Whereas, under Rule 70, a State controls the confidentiality of the information it provides and makes its own determination that this material should be subject to certain protections – for national security interest reasons or otherwise. In addition, the State has control over how it may be used, whether or evidence generation purposes only or also as evidence at trial. Thus, Rule 70 allows for a State to avail itself of control and protections that it is able to maintain over that material in exchange for assisting parties before the International Tribunal in providing confidential material either of its own volition or at their request'; *Prosecutor v. Milan Milutinović et al.*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 35.

defendant Dragoljub Ojdanić had sought the production of intercepted communications from NATO and a number of its Member States.⁸² The United States had invoked prejudice to its national security interests against disclosure, but following further consultations with the Defence, offered to disclose certain parts of the requested information for leads purposes only pursuant to rule 70, meaning that the Defence could not adduce the information as evidence at trial without the latter's consent. The Defence rejected the offer and requested the Tribunal to instead order the United States to disclose the information by utilising its rule 54*bis* powers.⁸³ The Trial Chamber accepted Ojdanić's arguments that the steps it had taken to secure the assistance of the United States were reasonable under the circumstances, and concurred with the defendant that he should not be required to accept information that the States are empowered to prevent from being disclosed at trial. It held that where the material is relevant to and necessary for a fair determination of the issues at trial, an applicant is entitled to seek an order pursuant to rule 54 *bis* rather than be dependent on the willingness of a State to agree to the use at trial of material over which it has the final say under Rule 70.⁸⁴

The Appeals Chamber reversed this part of the decision, holding that, while it was apparent in the case at hand that the United States wished to retain control over the disclosure of the requested material and to prevent it from being used as evidence at trial, '[r]ule 70 does not presuppose that a State will, in fact, decide to retain all of that control at all times or prevent disclosure of all of the requested information at trial.' In this respect, the Appeals Chamber noted that a State's willingness to have recourse to rule 70 in assisting a party with requested information does not equal that State declining to provide assistance such that seeking mandatory action from the Chamber under rule 54*bis* was warranted. Specifically it held: 'A party may not bypass a State's cooperative efforts to assist it with gaining access to certain confidential information simply because that party does not want the State to be able to utilize the protections afforded to it through Rule 70'.⁸⁵ Accordingly it reversed the Trial Chamber's finding that Ojdanić had met the reasonable steps requirement in his rule 54*bis* application. Clearly mindful of the dangers inherent in such an approach, the Appeals Chamber went on to observe, citing the earlier *Blaškić* interlocutory appeal judgement:

'That being said, the Appeals Chamber emphasizes that Rule 70 should not be used by States as "a blanket right to withhold, for security purposes, documents necessary for trial" from being disclosed by a party for use as evidence at trial as this would "jeopardise the very function of the International Tribunal, and defeat its essential object and purpose." Indeed, "those documents might prove crucial for deciding whether the accused is innocent or guilty." Furthermore, such an interpretation of Rule 70 would be contrary to States' obligation to cooperate with the International Tribunal under Article 29 of the Statute.'⁸⁶

It is difficult to reconcile the caution expressed in these sentiments with the obvious risk that States may try to avoid judicial scrutiny by seeking to change the confidentiality regime from the national security track to that of non-disclosure. Before the ICC, it is unlikely that a State that found itself in the midst of a national security claim, possibly undergoing the consultation procedures foreseen in articles 72(5)-(7), could unilaterally trump such processes by simply offering to provide the sought document or information under article 54(3)(e), since the latter is conditioned upon an agreement. While the Chamber would be

⁸² *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders pursuant to Rule 54*bis*, ICTY Trial Chamber, IT-05-87-PT, 17 November 2005.

⁸³ Canada had responded to the request in similar terms; *ibid*, para. 22.

⁸⁴ *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders pursuant to Rule 54*bis*, ICTY Trial Chamber, IT-05-87-PT, 17 November 2005, para. 22.

⁸⁵ *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08*bis*.2, 12 May 2006, para. 37.

⁸⁶ *Ibid.*, para. 38; citing *Prosecutor v. Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 October 1997, para. 65.

free to consider the proportionality of such an offer to the prosecution in the context of a possible 'agreement on conditions under which the assistance could be provided', pursuant to article 72(5)(d), it would remain within the discretion of the Chamber to consider whether such a proposal would, in the circumstances of the case, suffice. In this content, it is doubtful that the right of the prosecution to pursue the other steps under article 72 would be automatically extinguished were it to decline such an offer.⁸⁷

Moreover, structurally, ICTY rule 54*bis* and ICC article 72 are different in their content and requirements. ICTY rule 54*bis* concerns the making of an order directed to States for the production of documents: the Chamber will only make such an order if, inter alia, the party seeking the order has taken reasonable steps to obtain the document or information from the State concerned. Thereafter, once the order is made, the State may object on the basis of national security. Under the ICC Statute, by contrast, the general power of the Trial Chamber to require the production of documents of other evidence through States assistance resides in its powers under article 64(6)(b), not article 72.⁸⁸ Under the former provision, the Chamber may well require the moving party to demonstrate that a request from the Chamber is necessary.⁸⁹ However, while the article 72 procedure might be triggered as a result of such a request, it may also arise independently thereof. As such, whether the prosecution or defence has taken reasonable steps to obtain the information from the State concerned is not a precondition for the application of article 72, but rather a possible factor to be considered in the resolution of the procedure. Such a reading would mean that whereas an extant agreement under article 53(3)(e) would prevent the Chamber from ordering disclosure of the material in question under article 72(7) in breach of applicable confidentiality obligations, a State could not unilaterally side-step the national security procedure by offering the information under article 54(3)(e). Instead, as discussed, such an offer would need to be considered within the context of the article 72 procedure itself.

Notwithstanding the above, uncertainty might arise if agreement is reached, in the midst of the article 72 procedure, for the State to provide the materials sought under the conditions set out in article 54(3)(e) to enable the Chamber's *ex parte* review.⁹⁰ In theory, the ability of

⁸⁷ As noted above at fn. 78, it is doubtful whether the confidentiality requirements applicable under article 93(8)(b) would similarly be without prejudice to the operation of article 72, notwithstanding their close affinity with the wording of article 54(3)(e). If it was, the danger of such an approach is even more pronounced, since article 93(8) allows a State to unilaterally provide requested documents or information under conditions of strict non-disclosure and its exclusive control without prior notification to or agreement of the Prosecutor.

⁸⁸ Article 64(6) provides, 'In performing its functions prior to trial or during the course of a trial, the Trial Chamber may, as necessary: ... (b) Require the attendance and testimony of witnesses and production of documents and other evidence by obtaining, if necessary, the assistance of States as provided in this Statute.' Such a request would be channeled pursuant to article 93(1)(b) or (i).

⁸⁹ *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on 'Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan', ICC Trial Chamber IV, ICC-02/05-03/09-169, 1 July 2011, paras. 17, 26–33; *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on 'Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union', ICC Trial Chamber IV, ICC-02/05-03/09-170, 1 July 2011, paras. 14, 25–28; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, Situation in the Republic of Kenya, Decision on Prosecutor's Application for Witness Summonses and resulting Request for State Party Cooperation, ICC Trial Chamber V(A), ICC-01/09-01/11-1274-Corr2, 17 April 2014, paras. 185–192.

⁹⁰ Such conditions might be agreed to, e.g., within the framework of para. 5(d) of article 72. The most obvious way would be by way of an agreement with the Prosecutor under article 54(3)(e). The rules foresee that the Defence might also enter into similar agreements with information providers to accept materials under the same conditions as those set forth in article 54(3)(e); see rule 82(5). While these similar agreements would not fall within the scope of article 54(3)(e) as such, the Chamber could conceivably decide to provide for the *mutatis mutandis* application toward them of other provisions related to the operation of article 54(3)(e); see e.g. the procedure in rule 82(5) which provides that the Chamber may order 'upon application of the defence' and if 'in the interest of justice' for the *mutatis mutandis* application of sub-rules 1,2,3 in rule 82 as they relate to particular processes derived from article 54(3)(e). The Chamber would also have the prerogative to decide whether it wished to receive such material from the State directly and under similar conditions, which might be granted by virtue of a decision to regulate its own procedure with respect to the confidentiality of confidential information

the Chamber to so review the materials in closed session might enable it to better assess the relevance or necessity to the trial or to assess the protective measures proposed by the State. The fact that provision of such materials could not occur without the State's consent (a condition of article 54(3)(e)), however, means that the State would control the onward disclosure process and not the Court. This would limit the actions the Chamber could take under article 72. Thus, the Chamber would be unable to proceed with making an order for disclosure under paragraph 7(b)(i) in these circumstances, since it would be bound to respect the confidentiality undertaking agreed to by the Prosecutor in the light of the Chamber's own duty to provide for the protection of confidential information.⁹¹ It might also be unable to make a finding of non-compliance, since it might be held that the State has not denied the request pursuant to article 93(4), but has cooperated under the confidentiality conditions set out in article 54(3)(e).⁹²

Such a procedure might also cause ambiguities for the drawing of an inference as to the existence or non-existence of a fact, since the Chamber will have had cognisance of its actual existence.⁹³ Where the information is exculpatory in nature, the Chamber may be able to explore possible counter-balancing measures similar to the process outlined in the *Lubanga* interlocutory appeal, to resolve the matter.⁹⁴ However, where the information is unique in nature, quality and origin, as may be the case with intelligence sourced material, there may be limited counter-balancing options available short of requiring withdrawal of the count to which the information relates or the making of an appropriate stipulation. The prospect of such an outcome could conceivably persuade a State acting in bad faith to manipulate the process in order to sabotage a case. But it is also possible that in the particular circumstances of the procedure the Chamber might decide that the onus to resolve the matter falls on the State, and not the moving party, since it is the State that has conditioned its cooperation under article 72 on the acceptance of information under the conditions of article 54(3)(e), bearing in mind also its duty to cooperate fully with the Court.

These ambiguities are not resolved where the materials the that Chamber has had access to under article 54(3)(e) conditions is incriminating, since clearly the Chamber cannot rely on secret evidence that is deemed 'necessary and relevant for the establishment of the guilt [...] of the accused' which the accused has not had access to. While the Chamber may decide to set aside such evidence and not take it into consideration as part of its judgment, the material in question may nonetheless be highly relevant to central issues at stake in the case, thereby impinging on the Chamber's truth seeking function.

Furthermore, such a process might be open to abuse by an opposing party, which again could conceivably enter into article 54(3)(e) conditions with the State concerned in order to pre-empt the other party seeking relief from the Chamber under article 72(7); although the

under e.g. article 64(3)(a), 64(6)(c) and/or article 72(5)(d). See e.g. undertaking by Trial Chamber I towards information providers (but ultimately not taken up) in *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Trial Chamber, Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008, ICC-01/04-01/06-1401, 13 June 2008, para. 45.

⁹¹ Applying the reasoning of the Appeals Chamber in *Prosecutor v. Lubanga*, ICC-01/04-01/06 OA 13 (21 October 2008), para. 48.

⁹² This would be a similar situation to that facing the ICTY Appeals Chamber in *Milutinović et al.*: 'a State's availment of Rule 70 protections in assisting a party with requested information does not equal a State declining to "lend the requested support" such that seeking mandatory action from a Judge or Trial Chamber under Rule 54bis is warranted'; *Prosecutor v. Milan Milutinović et al.*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 37. See discussion above, mn. 23.

⁹³ See similarly Dixon *et al.*, *Commentary* (2008), art. 72, mn. 26.

⁹⁴ *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', ICC-01/04-01/06 OA 13 (21 October 2008), para. 48; see also *ibid.*, para. 28.

Chamber could also consider whether such efforts designed to intentionally stymie the article 72 procedure might amount to an abuse of process.⁹⁵

The above considerations suggest that the Court should be highly wary of interjecting the article 54(3)(e) procedure into conditions for the resolution of an article 72 dispute under paragraph 5 of the provision.

By contrast, there appears to be less scope for abuse where the State has offered, but not yet provided the materials under article 54(3)(e) conditions, and the Court has declined to accept the offer. Paragraph 6, which operates as a precursor for the operation of paragraph 7, requires the State to have declared (and the Court to be satisfied) that ‘there are no means or conditions under which the information or documents could be provided or disclosed without prejudice to its national security interest’. The State might argue that there are such means and conditions, and that they are to be found in article 54(3)(e). However, for the reasons set out above, conditioning the resolution of a provision dealing with the disclosure of information on an agreement not to disclose such material without the provider’s consent would turn article 72 on its head. The Court might even deem that a State that insisted on limiting its cooperation under paragraph 5 to measures aimed to prevent disclosure was, in the circumstances of the case, acting inconsistently with its cooperation obligations.⁹⁶

IV. Paragraph 4

This paragraph provides an automatic right for States to intervene to raise a national security claim after learning that disclosure is currently or about to occur. In line with paragraph 1, this may occur at any stage of the proceedings where disclosure may be at issue. The State concerned may have been alerted by the person referred to in paragraph 2, or it may have so learned by means of public submissions as to intended testimony of a particular witness or documents the party seeks to tender. The State claiming national security prejudice may believe, for example, that a document obtained from another State, entity, organization or individual properly belongs to it. As the paragraph 4 emphasises, ‘that State shall have the right to intervene in order to obtain resolution of the issue in accordance with this article’, meaning that such intervention, properly brought, will have the consequence of halting further disclosure until the Chamber has reached a final determination on the matter. 25

V. Paragraph 5

Paragraph 5 provides an indicative example of practical methods and procedures to enable all those affected by the national security claim – the State, the Court and the parties – to seek amicable resolution of the matter. Several of the steps outlined appear to assume the scenario where the material in dispute is in the exclusive hands of the State concerned and its assistance has been sought pursuant to a request for cooperation under Part 9. Thus, subparagraph (a) refers to modification of clarification ‘of the request’; subparagraph (b) considers whether the Court can ‘obtain’ the material from a source other than ‘the requested State’; subparagraph (c) refers to ‘obtaining’ the material from a different source of in a different form, suggesting it has not been otherwise obtained; while subparagraph (d) refers to agreement on conditions by which ‘the assistance could be provided’, again suggestive of a Part 9 request for judicial assistance. Nonetheless, a number of the steps would also find ready application in circumstances where the State might seek to prevent or limit the scope or manner of disclosure by others. While the list of measures is non-exhaustive, they provide some ready criteria to assess whether all reasonable steps have been taken to resolve the matter through cooperation means pursuant to paragraphs 6 and 7. 26

⁹⁵ See above fn. 90.

⁹⁶ This would be in line with the approach of the ICTY Trial Chamber in *Milutinović et al*, see above mn. 23.

The list draws inspiration in large part from the considerations set out by the ICTY Trial and Appeals Chambers in the *Blaškić* case.⁹⁷ In accordance with the Rome Statute, States Parties must be capable of giving effect to cooperation with the Court, including the possibility of seeking resolution of the matter through the consultative and collaborative means foreseen in paragraph 5.⁹⁸ As set out in the provision, the object of the provision is to enable resolution of the matter by cooperation means. States cannot, from the outset, refuse to explore reasonable steps in order to forestall the matter, nor engage in a mere pretence of consultation without substantive and timely collaboration.⁹⁹ Nor can a State plead structural deficiencies of its domestic law, for example, by arguing that it is impossible to communicate sensitive documents to international jurisdictions; or that there is no established procedure available; or that any such decision requires a special decision by a different agency of the requested State, without the State running afoul of both the Statute and article 27 of the Vienna Convention on the Law of Treaties.¹⁰⁰ A breach of duties might also arise where the State refuses to provide the information *a priori* due to the alleged structural deficiencies of the ICC.¹⁰¹ Nonetheless, this should not preclude a State from being able to seek clarification on how the Court will handle information at the classification level designated by it.¹⁰² This might relate to several ICC Administrative Instructions, including the Court's information protection policy,¹⁰³ its protection policy for protectively marked

⁹⁷ See below mn 33.

⁹⁸ In this regard, it should be recalled that the obligation of States Parties under article 86 to cooperate fully with the Court extends to the Statute as a whole and not just to those provisions set out in Part 9. See also *Gomes Lund et. al. v. Brazil*, Inter-Am. Ct. H.R., Judgment (Preliminary Objections, Merits, Reparations, and Costs), 24 November 2014, para. 231, 'the Court highlights the obligation to guarantee the effectiveness of an appropriate procedure for the processing and resolution of the requests for information, that sets the dates for the resolution and presentation of information, and that this is done under the responsibility of officials that are duly qualified'. See similarly *Claude Reyes et al. v. Chile*, IACtHR, Judgment (Merits, Reparations and Costs), 19 September 2006, para. 163.

⁹⁹ On promptness, see the general requirements of consultation set out in article 97 which require States to act 'without delay'. Lack of timeliness might call into doubt the reasonableness of steps being pursued or a State's adherence to its cooperation obligations.

¹⁰⁰ See similarly *Prosecutor V. Uhuru Muigai Kenyatta*, Decision on the Prosecution's revised cooperation request, ICC Trial Chamber V(B), ICC-01/09-02/11-937 29 July 2014, para. 42; *Janowiec and Others v. Russia*, Judgment, para. 207; *Nolan and K. v. Russia*, No. 2512/04, ECtHR, Judgment, 12 February 2009, para. 56. The ECtHR has recalled in this regard that 'Governments are answerable under the Convention for the acts of any State agency since what is in issue in all cases before the Court is the international responsibility of the State'; *Janowiec and Others v. Russia*, para. 211.

¹⁰¹ In the case of *Shakhgiriyeve and Others*, the ECtHR rejected the Russian Government's contention that the procedure of the ECtHR provided no guarantees of the confidentiality of documents in the absence of sanctions for applicants in the event of a breach of confidentiality, and that the applicants were represented by foreign nationals who could not be brought to account in Russia in the event of such a breach; *Shakhgiriyeve and Others v. Russia*, no. 27251/03, ECtHR, Judgment, 8 January 2009, para. 136–140. See also *Husayn (Abu Zubaydah) v. Poland* (no. 7511/13), ECtHR, Judgment, 24 July 2014, para. 364, stating: '[t]he absence of specific, detailed provisions for processing confidential, secret or otherwise sensitive information in the Rules of Court – which, in the Government's view justified their refusal to produce evidence – does not mean that the Court in that respect operates in a vacuum'; going on to cite the experience of Convention institutions over the years in adopting 'sound practice in handling cases involving various highly sensitive matters, including national-security related issues ... by adopting a wide range of practical arrangements adjusted to the particular circumstances of a given case'.

¹⁰² For example, in concluding a cooperation agreement with the ICC, the EU required the Court to ensure that EU classified information released to it keeps the security classification given to it by the EU and for the Court to safeguard such information in accordance with an equivalent level of protection to that foreseen in its own security regulations. See Annex to *Agreement between the International Criminal Court and the European Union on Cooperation and Assistance*, ICC-PRES/01-01-06, 1 May 2006, available on ICC Official Journal. The regulations referred to are contained in the EU Council Decision 2001/264/EC of 19 March 2001, adopting the Council's security regulations, (EU Official Journal L 101, 1.4.2001, p. 1). The ICC-EU cooperation agreement was followed by a further *Security arrangements for the protection of classified information exchanged between the EU and the ICC*, 8349/1/08 REV 1, 15 April 2008, available on ICC Official Journal, which regulates the procedure for the requesting, accessing and release of EU classified information.

¹⁰³ *ICC Information Protection Policy*, Administrative Instruction, ICC/AI/2007/001, 19 June 2007, unclassified on 22 November 2012 under ICC/INF/2012/020.

information provided by governmental and intergovernmental organizations,¹⁰⁴ or its policy on personnel security clearances.¹⁰⁵

Although to date the steps outlined in paragraph 5 have not been put to test before the ICC in the context of an article 72 procedure, Trial Chamber I in the *Lubanga* case adopted a number of similar measures to resolve the stay of proceedings instituted as a result of the non-disclosure by the Prosecutor of information obtained on the basis of article 54(3)(e).¹⁰⁶ Thus, in its decision lifting the stay of proceedings the Trial Chamber recalled the range of protective measures it considered, either singly or in combination, as consisting of: 'a) Non-redacted versions of the documents, save for the identity of the information-provider; b) Redacted versions of the documents, limited to names and identifying information; c) Redacted versions of the documents removing other types of information; d) Summaries instead of the original documentation, and including verbatim quotes of the relevant areas; e) Admissions of fact; f) Alternative evidence; and g) Documents disclosed in full, with restrictions as to the extent of their publication', with explanations given for each modality used.¹⁰⁷ These it considered, in line with the requirement of the Appeals Chamber, following an *in camera ex parte* review of the materials at issue in unredacted form, and in tandem with *ex parte* status conferred held with the Prosecution who was requested by the Chamber, on several occasions, to revert to the information provider concerned to obtain relevant updates or clarifications or to provide further particulars.¹⁰⁸

As noted elsewhere in this chapter, outside of national security, other Chambers of the ICC have also entered various rulings with respect to information or evidence sought by national authorities generally where the State authorities have pleaded unavailability of the materials sought, the lack of specificity, necessity or relevance of the request, its burdensome nature, or other restrictions based on national law to deny provision of the materials sought, drawing in part on relevant case law of other courts and tribunals on the disclosure of information for which an official secrecy or national security prejudice has been raised.

1. Modification or clarification of the request

Under this heading, the State concerned may propose that the request is modified or clarified to avoid or minimise the impact on its national security interests. This might be by limiting the scope of the request, by requesting greater specificity as to the location or identification of particular sought items, or by inviting the moving party to identify in greater

¹⁰⁴ ICC Information Protection Policy For Protectively Marked Information Provided By Governmental And Intergovernmental Organizations, Administrative Instruction ICC/AI/2006/002, 20 December 2006, unclassified on 22 November 2012 under ICC/INF/2012/020. According to the Annex A to this Administrative Instruction the ICC's classification system corresponds to that of other international organizations such as EU, NATO and Europol; Annex A to Administrative Instruction ICC/AI/2006/002: ICC mapping table for international security classifications.

¹⁰⁵ ICC Policy on Personnel Security Clearances, Administrative Instruction ICC/AI/2007/006, 19 June 2007, Unclassified on 22 November 2012 under ICC/INF/2012/020.

¹⁰⁶ *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', ICC-01/04-01/06 OA 13 (21 October 2008), para. 48, referring to the use of *ex parte*, *in camera* proceedings to review materials obtained under article 54(3)(e) in order to assess their relevance and to thereafter consider possible counter-balancing measures that may be adopted in spite of non-disclosure. Apart from disclosure with redactions, a number of other possible measures are referred to elsewhere in the Judgment as including 'the identification of new, similar exculpatory material, providing the material in summarised form, stipulating the relevant facts, or amending or withdrawing the charge'; *ibid*, para. 28. See also Rastan (2009), 7 *NJIHumRts* 229, 274–276; Ambos, (2009) 12 *NCLRev* 543 *et seq*.

¹⁰⁷ *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, ICC Trial Chamber I, Reasons for Oral Decision lifting the stay of proceedings, ICC-01/04-01/06-1644, 23 January 2009, para. 35.

¹⁰⁸ *Ibid.*, para. 22.

detail the purpose of the request or the essential facts underlying it, corresponding to the general requirements for cooperation requests set out in article 96.¹⁰⁹

In terms of clarification, where the State does not know which exact documents are at issue and for that reason cannot clearly identify the particular national security interest in need of protection, for example because the request is insufficiently precise, the Court, through the moving party, may first need to provide greater clarity as to the parameters of the request.¹¹⁰ In this respect, the ICTY Appeals Chamber has stated that while a request should seek to ‘identify specific documents and not broad categories’ that the use of categories is not prohibited as such. This is because the ‘underlying purpose of the requirement of specificity is to allow a State, in complying with its obligation to assist the Tribunal in the collection of evidence, to be able to identify the requested documents for the purpose of turning them over to the requesting party’. Therefore, a category of documents may be requested as long as it is ‘defined with sufficient clarity to enable ready identification’ by a State of the documents falling within that category.¹¹¹ It further found a request is not invalidated because the moving party cannot specify the exact time, place, date or content the sought-after information, holding that a Chamber may consider it appropriate to allow the omission of those details if it is satisfied that the party requesting the order, acting bona fide, has no means of providing those particulars, but has nonetheless identified the specific documents in question in some appropriate manner.¹¹² ICC Trial Chamber IV has endorsed a similar approach

¹⁰⁹ See generally *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on ‘Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union’, ICC Trial Chamber IV, ICC-02/05-03/09-170, 1 July 2011, para. 14, setting out the threefold requirements of (i) specificity (ii) relevance and (iii) necessity for the issuance of a Chamber request. The same criteria were recalled by Trial Chamber V(B) in the *Kenyatta* case in the context of a Prosecution request to the Government of Kenya, which characterised them ‘as essential prerequisites for cooperation requests under Part 9 of the Statute’; *Prosecutor v. Uhuru Muigai Kenyatta*, Decision on Prosecution’s applications for a finding of non-compliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, ICC-01/09-02/11-908, 31 March 2014, at fn. 216. In relation to requests impacting on national security, the ICTY Appeals Chamber has held that a request should ‘set out succinctly the reasons why such documents are deemed relevant to the trial; if that party considers that setting forth the reasons for the request might jeopardise its prosecutorial or defence strategy it should say so and at least indicate the general grounds on which its request rests’; *Prosecutor v. Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 October 1997, para. 34.

¹¹⁰ *Ibid.*; *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders Pursuant to Rule 54bis, IT-05-87-PT, 17 November 2005, para. 32. For this purpose, the ICTY Appeals Chamber in the same case stated: ‘a request for production under Rule 54bis should seek to “identify specific documents and not broad categories” but that the use of categories is not prohibited as such. This is because “[the] underlying purpose of the requirement of specificity is to allow a State, in complying with its obligation to assist the Tribunal in the collection of evidence, to be able to identify the requested documents for the purpose of turning them over to the requesting party”. Therefore, a category of documents may be requested as long as it is “defined with sufficient clarity to enable ready identification” by a State of the documents falling within that category.’ (footnotes omitted); *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 15.

¹¹¹ *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 15, recalling its earlier case law. See also *Prosecutor v. Dario Kordić & Mario Cerkez*, Decision on the Request of the Republic of Croatia for Review of a Binding Order, ICTY Appeals Chamber, Case No. IT-95-14/2-AR108 bis, 9 September 1999, para. 38: ‘The underlying purpose of the requirement of specificity is to allow a State, in complying with its obligation to assist the Tribunal in the collection of evidence, to be able to identify the requested documents for the purpose of turning them over to the requesting party. The question then is whether “documents which are only identifiable as members of a class, however clearly defined this may be and however readily the identification of its content may be made”, fall afoul of the requirement of specificity. The requirement of specificity clearly prohibits the use of broad categories, which, of course, in itself is a relative term. It does not, as correctly asserted by the Prosecution, prohibit the use of categories as such.’.

¹¹² *Prosecutor v. Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 October 1997, para. 32; *Prosecutor v. Dario Kordić & Mario Cerkez*, Decision on the Request of the Republic of Croatia for Review of a Binding Order, ICTY Appeals Chamber, Case No. IT-95-14/2-AR108 bis, 9 September 1999, para. 34; *Prosecutor v. Milan Milutinović*

towards cooperation requests generally, holding that for any request for the production of documents issued pursuant to Part 9 of the Statute the request must identify specific documents and not broad categories, meaning that 'documents must be identified as far as possible and in addition be limited in number', while citing the ICTY in stating that '[a] category of documents may be requested as long as it is 'defined with sufficient clarity to enable ready identification' by the requested party of the documents falling within that category'.¹¹³

The ICTY Appeals Chamber has also held that the moving party does not need to establish that the item sought actually exists, as this might prove overly onerous in circumstances where the information was protected, but there were reasons to believe its existence: 'The necessity requirement obliges the applicant to show that the requested materials, if they are produced, are necessary for a fair determination of a matter at trial. Requiring an additional showing of actual existence would be unreasonable and could impinge upon the right to a fair trial given that these materials are State materials, often of a confidential nature. In many cases, it would be impossible for an applicant to prove the existence of these materials. All that is required is that an applicant make a reasonable effort before the Trial Chamber to demonstrate their existence'.¹¹⁴ Similarly, in *Gomes Lund et. al. v. Brazil*, the IACtHR ruled that State authorities cannot rely on the lack of evidence presented from the victims or their family members that the documents requested exist, but must justify any such denial by 'demonstrating that it has adopted all the measures under its power to prove that, in effect, the information sought did not exist'.¹¹⁵ It added, based on its earlier case law in *Claude Reyes et al. v. Chile*, that '[t]o argue in a judicial proceeding ... the lack of evidence regarding the existence of certain information, without at least noting what procedures were carried out to confirm the nonexistence of said information, allows for the discretionary and arbitrary actions of the State to provide said information, thereby creating legal uncertainty regarding the exercise of said right'.¹¹⁶

As to modification and whether a State may propose, for example, a more limited scope of inquiry, the ICTY Appeals Chamber has observed that a request should also not be unduly onerous, such that 'a party cannot request hundreds of documents, particularly when it is evident that the identification, location and scrutiny of such documents by the relevant national authorities would be overly taxing and not strictly justified by the exigencies of the trial'.¹¹⁷ Thus, while the execution of a request might be burdensome, it must not be unduly so. In this regard, referring to cooperation requests generally, ICC Trial Chamber IV in the *Banda & Jerbo* case recalled the same in observing that a request must not be unduly onerous,¹¹⁸ while ICC Trial Chamber V(B) in the *Kenyatta* case nonetheless observed that

et al, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 17.

¹¹³ *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on 'Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union', ICC Trial Chamber IV, ICC-02/05-03/09-170, 1 July 2011, paras. 16 and 19.

¹¹⁴ *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 23.

¹¹⁵ *Gomes Lund et. al. v. Brazil*, IACtHR, Judgment, 24 November 2014, para. 211.

¹¹⁶ *Ibid.*, recalling without citation *Claude Reyes et al. v. Chile*, IACtHR, Judgment (Merits, Reparations and Costs), 19 September 2006, para. 98. The Court went on to observe that it considered it essential in this context that the public powers act in good faith and diligently carry out the necessary actions to assure the effectiveness of the right to information, particularly, as in *Gomes Lund et. al.*, when it dealt with the right to the truth of what occurred in cases of gross violations of human rights such as those of enforced disappearances and extrajudicial executions.

¹¹⁷ *Prosecutor v. Dario Kordic & Mario Cerkez*, Decision on the Request of the Republic of Croatia for Review of a Binding Order, ICTY Appeals Chamber, Case No. IT-95-14/2-ARI08 bis, 9 September 1999, para. 34.

¹¹⁸ *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on 'Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union', ICC Trial Chamber IV, ICC-02/05-03/09-170, 1 July 2011, para. 16: '... a request must not be unduly onerous, in the sense that, a party cannot seek to obtain hundreds of documents,

‘[p]ractical difficulties will also not invalidate a request which otherwise objectively meets the requirements of specificity, relevance and necessity’.¹¹⁹

- 29 Moreover, as the provision indicates, the process leading to possible modification is consultative and cooperative: a State cannot unilaterally narrow the scope of a request. In *Milutinović*, for example, the Trial Chamber (confirmed on appeal) rejected the approach of the United States in deciding to limit its search of requested materials protected by national security to only those that it deemed to be exculpatory for the applicant, on the grounds that only this information would be necessary for a fair hearing. As the Trial Chamber emphasised, a State ‘cannot arrogate to itself the right to limit the request of an applicant to material that it considers to be favourable to the Applicant’s case’, since it is ‘for the Applicant to determine which documents, if any, of those produced should be used in his case’.¹²⁰
- 30 The State might also seek modification in relation to the response time. Nonetheless, ‘this should not authorise any unwarranted delays by that State’, such that reasonable and workable deadlines should be set by the Chamber after consulting the requested State.¹²¹ Any modification in the timelines must in any event respect the new time-limit fixed by the Court, since any further substantial or unexplained delay might lead the Court to treat the State’s explanations with suspicion, which might reflect negatively on its compliance with its cooperation duties.¹²² As observed by ICC Trial Chamber V(B), ‘non-compliance arising from, *inter alia*, unjustified inaction or delay, or a clear failure to have in place appropriate procedures for effecting the cooperation, as required under Article 88 of the Statute, constitutes failure to comply under Article 87(7) of the Statute’.¹²³

2. Ruling on relevance or on obtaining from another source

- 31 The determination of the relevance of information or evidence sought from a State must rest with the Chamber, and not the requested State. For example, in the *Kenyatta* case, the Trial Chamber held that ‘while the Kenyan Government may be in a position to raise arguments relating to the specificity of the requests, it is not – save in cases of seemingly blatant irrelevance – well placed to dispute their relevance or necessity in relation to the Prosecution’s inquiries’.¹²⁴ The ICTY Appeals Chamber has also rejected the contention that the requested State may either comment on relevance of the requested item or to pass opinion on the ability of the Chamber to determine relevance based on lack of alleged

particularly when it is evident that the identification, location and scrutiny of such documents by the requested party would be overly taxing and not strictly justified by the exigencies of the trial’.

¹¹⁹ *Prosecutor v. Uhuru Muigai Kenyatta*, Decision on the Prosecution’s revised cooperation request, ICC Trial Chamber V(B), ICC-01/09-02/11-937 29 July 2014, para. 34, recalling the tripartite test set out by Trial Chamber IV, above at fn. 109.

¹²⁰ *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders Pursuant to Rule 54bis, IT-05-87-PT, 17 November 2005, para. 23, further noting ‘If a specific request is made for the production of material relevant to an issue in the case, then the primary obligation of a State is to cooperate with the Applicant by searching for any material falling within the terms of the Request.’; *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 27.

¹²¹ *Prosecutor v. Blaškić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 October 1997, para. 32.

¹²² See *Janowiec and Others v. Russia*, Judgment, para. 203, citing Damir Sibgatullin, para. 68; Tahsin Acar, para. 254; and *Enukidze and Girgylani*, paras. 297 and 301. The ECtHR has observed that States should be expected to cooperate in good faith, to provide timely information on any obstacles and to provide any reasonable or convincing explanations for a failure to comply; *Janowiec and Others v. Russia*, Judgment, para. 208, citing *Davydov and Others*, para. 174; *Nevmerzhitsky v. Ukraine*, no. 54825/00, para. 77, ECHR 2005-II (extracts); and *Ireland v. United Kingdom*, 18 January 1978, para. 210, Series A no. 25).

¹²³ *Prosecutor V. Uhuru Muigai Kenyatta*, Decision on the Prosecution’s revised cooperation request, ICC Trial Chamber V(B), ICC-01/09-02/11-937 29 July 2014, para. 42.

¹²⁴ *Prosecutor V. Uhuru Muigai Kenyatta*, Decision on the Prosecution’s revised cooperation request, ICC Trial Chamber V(B), ICC-01/09-02/11-937 29 July 2014, para. 34.

specificity. In the *Kordić* case it stated: '[t]he Appeals Chamber takes the view that it falls squarely within the discretion of the Trial Chamber to determine whether the documents sought are relevant to the trial. Furthermore, the State from whom the documents are requested does not have *locus standi* to challenge their relevance. Having found that the criterion of specificity has indeed been met, the Appeals Chamber rejects the argument of the Requesting State that the Trial Chamber, because of lack of specificity, was unable to accurately determine the relevance of the documents sought'. Similarly, in *Milutinović*, the Appeals Chamber dismissed the submissions of the United States on relevance, holding, 'a State may not challenge whether, on the basis of the request, the Trial Chamber was able "to accurately determine the relevance of the documents sought". Such a determination is an integral part of the Trial Chamber's competence to determine relevancy. The Appeals Chamber holds that the same rule applies with regard to challenging the necessity of documents or information for a fair determination of the trial.'¹²⁵ In the same vein the ECtHR has held that a State's assessment as to the evidentiary value of material sought cannot justify its non-submission since only the Court may decide on the relevance of calling a particular witness or the production of particular piece of evidence, stating it is sufficient that the Court considers the material relevant for the establishment of the facts in the case before it.¹²⁶

There appears to be some overlap between subparagraph (c) and the possibility for a determination by the Chamber under subparagraph (b) that the information or evidence, though relevant, could be or has been obtained from a source other than the requested State. The distinction in subparagraph (b) appears to rest in the Chamber's determination on whether pursuing the matter with the requested State continues to be necessary since such information or evidence has already been obtained from another source or could be so obtained, leading to the potential application of subparagraph (c).

3. Obtaining from a different source or in a different form

Subparagraph (c) directs the State, the Chamber and the parties to consider other avenues to obtain the same information – whether from a different source or by obtaining from the requested State in a different form. The provision should not be confused with a requirement on the moving party to show that it has exhausted all other possible avenues to access the information sought. Nonetheless, the Chamber could require that the moving party demonstrate that: (i) it has exercised due diligence in obtaining the requested materials elsewhere and has been unable to obtain them; or (ii) the information obtained or to be obtained from other sources is insufficiently probative for a fair determination of a matter at trial.¹²⁷ For example, in the *Banda and Jerbo* case, Trial Chamber IV found that the defence had not explained what steps, if any, it had undertaken to explore whether the specific documents sought or documents of similar value were already in the possession of the Prosecutor, since if this were indeed the case the assistance of the Chamber, and by implication of the information provider, would not be necessary.¹²⁸

Subparagraph (c) also envisages the prospect of the material being obtained in a different form. In some circumstances, there may be analogous or alternative information that is

¹²⁵ *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 21.

¹²⁶ *Janowiec and Others v. Russia*, ECtHR, Judgment, para. 208; *Dedovskiy and Others v. Russia*, no. 7178/03, ECtHR, Judgment, 15 May 2008, para. 107; *Husayn (Abu Zubaydah) v. Poland* (no. 7511/13), ECtHR, Judgment, 24 July 2014, para. 355.

¹²⁷ The above factors were applied in *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, ICTY Appeals Chamber, IT-05-87-ARI08bis.2, 12 May 2006, para. 25, in the context of the necessity criterion under ICTY rule 54bis.

¹²⁸ *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on 'Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union', ICC Trial Chamber IV, ICC-02/05-03/09-170, 1 July 2011, para. 27.

available which is assessed by the Chamber as having the same or similar evidential value in establishing the fact in dispute.¹²⁹ In this regard, the State concerned will typically be able to suggest relevant alternative sources or different forms in which the information could be provided. As Trial Chamber V(B) observed in the *Kenyatta* case, the requested State may often be best placed not only ‘to identify potential difficulties in executing the cooperation requests’ but also ‘to advise on the alternative possibilities presented by the [...]domestic framework for obtaining the information sought’, noting ‘[t]he provision of such guidance forms part of the essence of good faith cooperation’.¹³⁰

4. Agreement on conditions

- 33 The final subparagraph of the non-exhaustive steps listed in paragraph 5 outlines a further subset of non-exhaustive conditions that could be agreed upon to enable the provision and disclosure of the requested material: ‘including, among other things, providing summaries or redactions, limitations on disclosure, use of *in camera* or *ex parte* proceedings, or other protective measures permissible under the Statute and the Rules of Procedure and Evidence’. It should be recalled in this regard that the object of these provisions is to enable the disclosure, in one form or another, of the substantive underlying facts that have been deemed relevant.

In relation to summarised information, this modality will only serve as an alternative to full disclosure if its content corresponds with sufficient quality to the substantive information contained in the original.¹³¹ Another alternative could be for the State to provide verbatim extracts from portions of the document deemed relevant by the Chamber, while summarising the surrounding text to place the passage in context.¹³² Summarised information that does not contain verbatim extracts might otherwise be complemented by other modalities, such as the availability of analogous or alternative evidence that similarly corresponds to the same content.

Redactions might be sought by the State with respect to irrelevant information concerning, for example, the identity of third persons or other extraneous content. In other instances, the proposed redaction may relate to information that is actually relevant, requiring the Chamber to assess the scope and impact of the redaction on the facts being sought to be established, as well as whether other counter-balancing measures are possible. Requested ‘limitations on disclosure’ might be sought with respect to the public record, requiring that the material is only used in closed session or that pseudonyms are applied. Limitations on disclosure might also extend to the parties or participants, for example in the context of *ex parte in camera* review of the materials by the Chamber to determine relevance.¹³³ On the question of whether there can be disclosure of information to an accused’s counsel which is withheld from the accused, any such request would require highly specific justification based

¹²⁹ In the *Lubanga* case, when considering proposed analogous or alternative information, the Trial Chamber assessed the evidential value of the non-disclosed evidence against the replacement value of the suggested alternative evidence as compared to the original information; see *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, ICC Trial Chamber I, Reasons for Oral Decision lifting the stay of proceedings, ICC-01/04-01/06-1644, 23 January 2009, para. 47.

¹³⁰ *Prosecutor V. Uhuru Muigai Kenyatta*, Decision on the Prosecution’s revised cooperation request, ICC Trial Chamber V(B), ICC-01/09-02/11-937 29 July 2014, para. 42.

¹³¹ See concerns expressed in the second edition by Dixon et al. at mn. 14 if such summaries are prepared by the State concerned without Chamber oversight.

¹³² Such modalities were applied in the *Lubanga* case; see Annex 3 to *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, ICC Trial Chamber I, Reasons for Oral Decision lifting the stay of proceedings, ICC-01/04-01/06-1803-Anx3, 23 March 2009, pp. 32–33.

¹³³ See article 64(6)(c). In *Al Nashiri v. Poland*, no. 28761/11, ECtHR, Judgment, 24 July 2014, paras. 17–19, having regard to the particular circumstances of the case, the alleged involvement of the applicant in terrorist activities, the secrecy of the CIA rendition operations, the fact that many events still remained undisclosed and that a large part of the potentially relevant documentary evidence was classified, and mindful that the evidence requested was liable to be of a sensitive nature or might give rise to national-security concerns, the Court gave the Polish Government an explicit guarantee as to the confidentiality of any sensitive materials they might have produced.

on sufficiently demonstrable risks. For example, the *Lubanga* Trial Chamber rejected the prosecution's contention that, as a general rule, article 8(3) of the Code of Professional Conduct for Counsel, relating to the dissemination of confidential information within defence teams, also restricted defence counsel from revealing to the accused information protected, *inter alia*, by article 72. As the Chamber held, citing to article 67(1)(b), 'there is no sustainable statutory interpretation to support the conclusion that it was contemplated under the Rome Statute framework that the accused could be routinely denied access to relevant confidential, sensitive, privileged or national security material that has been served on his or her counsel'. While the Chamber refrained from delineating the circumstances when exceptions may properly be applied, it recalled in this context the submission made by defence counsel that in exceptional circumstances restrictions may be appropriate, for instance if it is sufficiently demonstrated that an accused has been misusing confidential or protected information to intimidate witnesses or participating victims.¹³⁴

The measures outlined above might be applied in combination, such that, for example, redaction of a relevant passage might be counter-balanced by other satisfactory alternative measures, such as the provision of analogous information. Such measures may, moreover, be explored during *in camera ex parte* consultations between the State concerned and the Chamber to enable the State to submit such clarification and explanations as it is prepared to provide.¹³⁵ Where the State is unable to refer to the actual content of the sought after material, depending on the nature of the information contained therein, it might be able to elaborate on the perceived prejudice that is likely to arise as a consequence of disclosure. Such explanation might enable the Chamber to better assess the proportionality of the measures proposed pursuant to paragraph 5 as well as the reasonableness of steps taken by the State to resolve the matter pursuant to paragraph 6, prior to the Chamber's considerations of further action under paragraph 7.

In the *Blaškić* case, the ICTY Appeals Chamber had approved of a similar *in camera, ex parte* procedure for the review of sensitive documents for which a State asserted national security prejudice. In particular, the Appeal Chamber outlined the following practical steps: designation of a single Judge rather than the full bench; provision by the State of certified translations of documents not in an official language of the Tribunal to avert the need for ICTY translators to view the documents; that transcripts need be kept of the *in camera ex parte* hearings; that any documents deemed irrelevant, as well as those the relevance of which is outweighed by legitimate national security interests, should be returned to the State without being filed with the Registry; and that relevant documents could be redacted by the State, subject to a signed affidavit briefly explaining the reasons for any such redaction. The measures were to be adopted through a process of consultation, while account was to be taken throughout the process of whether the State concerned has acted and is acting bona fide. The Appeals Chamber further stated allowance should be made for an exceptional case where a particular document need not be provided at all. This, it stated, might arise 'where a State, acting bona fide, considers one or two particular documents to be so delicate from the national security point of view, while at the same time of scant relevance to the trial proceedings'. In such case, the minimum requirement set out by the Appeals Chamber required 'the submission of a signed affidavit by the responsible Minister: (i) stating that he has personally examined the document in question; (ii) summarily describing the content of the documents; (iii) setting out precisely the grounds on which the State considers that the

¹³⁴ *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, ICC Trial Chamber I, oral decision of Trial Chamber I on whether there can be disclosure of information to an accused's counsel which is withheld from the accused, Transcript of 6 May 2010, ICC-01/04-01/06-T-282-Red-ENG, paras. 11-13. Article 8(3) of the Code of Professional Conduct for Counsel provides: 'Counsel may only reveal the information protected under paragraphs 1 and 2 of this article to co-counsel, assistants and other staff working on the particular case to which the information relates and solely to enable the exercise of his or her functions in relation to that case', referring *inter alia* to article 72 under the preceding provision; ICC-ASP/4/Res.1.

¹³⁵ See also Art. 72(7)(a)(i).

document is not of great relevance to the trial proceedings; and (iv) concisely indicating the principal reasons for the desire of the State to withhold those documents'. The Single Judge could assess the grounds offered, including by requesting a more detailed affidavit or a detailed explanation during *in camera*, *ex parte* proceedings, in the light of their validity and persuasiveness, on pain of making a finding of non-compliance as appropriate.¹³⁶ As noted earlier, the approach of the ICTY Appeals Chamber was largely replicated in the UK proposal that provided the framework for negotiations in Rome (see above mn. 2) and was retained as Option 2 in the rolling text of the coordinator of the working group as late as 13 July 1998.¹³⁷

- 34 Finally, in relation to the clause 'other protective measures permissible under the Statute and the Rules of Procedure and Evidence', a number of such permissible measures are foreseen in rule 81(4) which permits the Chamber on its own motion or at the request of the Prosecutor, the accused or any State, to take necessary steps, *inter alia*, to ensure the confidentiality of information in accordance with article 72 and the protection of witnesses in accordance with article 68. In this regard it is worth recalling that article 68(6), whose drafting was connected to that of article 72,¹³⁸ provides: '[a] State may make an application for necessary measures to be taken in respect of the protection of its servants or agents and the protection of confidential or sensitive information'. In the context of non-disclosure of information on account of danger to a particular person under rule 81(4), the Appeals Chamber of the ICC has stated, 'the alleged danger must involve an objectively justifiable risk to the safety of the person concerned' and that 'the risk must arise from disclosing the particular information to the Defence, as opposed to disclosing the information to the public at large', further holding '[t]he Chamber should consider, *inter alia*, whether the danger could be overcome by ruling that the information should be kept confidential between the parties. In making this assessment, the circumstances of the individual suspect should be considered, including, *inter alia*, whether there are factors indicating that he or she may pass on the information to others or otherwise put an individual at risk by his or her actions'.¹³⁹

A number of further protective measures with respect to witness testimony are provided in rule 87(3), which permits the ordering of measures to prevent the release to the public or press and information agencies, of the identity or the location of a victim, a witness or other person at risk on account of testimony given by a witness by ordering, *inter alia*: (a) withholding from public records the name of the witness or other person at risk on account of such testimony or any information which could lead to their identification; (b) prohibiting disclosure of such information to third parties; (c) provision of testimony with visual or

¹³⁶ In so doing, the Appeals Chamber cited to a number of past precedents for the submission of classified documents for judicial scrutiny, including the *Sabotage* cases before the United States-German Mixed Claims Commission in the 1930s (reproduced in: Sandifer, *Evidence Before International Tribunals* (1939) 266); the *Ballo* case decided by the Administrative Tribunal of the International Labour Organization in 1972 (Judgement No. 191, 15 May 1972, ILO, *Official Bulletin*, Vol. LV, Nos. 2, 3 and 4, p. 224); *Cyprus v. Turkey* decided by the European Commission on Human Rights in 1976 (Application 6780/74, Report of 10 July 1976, pp. 21–24); and, the *Godínez Cruz* case decided by the Inter-American Court of Human Rights on 20 Jan. 1989 (Series C, No. 5, Judgement of 20 Jan. 1989, pp. 96–97). See *Prosecutor v. Blaškić*, ICTY Appeals Chamber, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 Oct 1997, paras. 62–68. See similarly *Husayn (Abu Zubaydah) v. Poland* (no. 7511/13), ECtHR, Judgment, 24 July 2014, para. 357: 'Furthermore, such concerns may, depending on the document, be accommodated in the Court's proceedings by means of appropriate procedural arrangements, including by restricting access to the document in question [...], by classifying all or some of the documents in the case file as confidential vis-à-vis the public and, in extremis, by holding a hearing behind closed doors'.

¹³⁷ See A/CONF.183/C.1/WGPM/L.12, 25 June 1998; A/CONF.183/C.1/WGPM/L.76, 13 July 1998.

¹³⁸ Piragoff, in: Lee (ed.), ICC (1999) 273.

¹³⁹ *Prosecutor v. Germain Katanga*, Situation in Democratic Republic of the Congo, ICC Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled, 'First Decision on the Prosecution Request for Authorisation to Redact Witness Statements', 13 May 2008, ICC- 01/04-01/07-475, paras. 71–72.

audio distortion, audio only, videoconferencing or closed circuit television; (d) use of pseudonyms; or (e) *in camera* proceedings.

In terms of other possible conditions under which assistance could be provided, another option could be to explore whether a requested relating to a category of document could be made more specific through a screening process. This might be done by means of the State allowing an individual, whether a representatives of the requesting party or staff of the Chamber or Registry, or an independent counsel appointed by the Chamber, to have access to the relevant portion of the State archives, or in the case of single items to a particular document, to review its contents for objective relevance in terms of its incriminating or exonerating value. This might allow for the filtering out of material that is irrelevant, to better refine the scope of the request. The use of, for example, independent counsel might prove contentious where issues of relevance are best assessed by the requesting party. However, such a process might prove helpful where the person conducting the review needs to have an appropriate national security clearance that relevant prosecution or defence team members do not have. Such review might also be preceded by a process of consultation to clarify the scope of the materials to be accessed in the first instance.¹⁴⁰

In the various examples described above, the Chamber would need to be able to scrutinise the adequacy of the proposed measure in order to verify that it would appropriately 'resolve the matter'. This might occur, for example, by the Chamber viewing during *ex parte*, *in camera* session the original document(s) or receiving oral or written submissions from representatives of the State concerned. The inability of the Chamber to suitably supervise in any manner the imposition of redactions and its sole reliance on the discretion of the authorities in question would undermine its ability to control the process and arrive at a satisfactory outcome.¹⁴¹ The ability of the Chamber to perform such supervisory functions was a key element of the Appeals Chamber's decision in the *Lubanga* case concerning the non-disclosure of article 54(3)(e) materials, in that context in relation to the duty of the prosecution to discharge its article 67(2) obligations.¹⁴² In the case of a national security claim, the fact that the Chamber may rule on the level of a State's compliance with its cooperation duties under the Statute, may draw inferences as a result of non-disclosure, or

¹⁴⁰ A similar phased procedure is foreseen in the security arrangements between the ICC and EU for accessing classified information. Under the arrangements: (1) the EU is to a liaison officer who will interact with a designated ICC contact point, to identify documents which may be relevant based on information set out in the ICC's request and any clarifications sought thereon. (2) The ICC contact point will then be invited to consult at EU premises any documents identified as potentially relevant which are classified 'RESTREINT UE' or have been downgraded to 'RESTREINT UE' or declassified. The EU is further able to apply redactions to portions of documents that are deemed not to be relevant for the ICC request, presumably through mutual agreement as to issues of relevance. The ICC contact point is permitted to divulge the content of what s/he has accessed to other staff members on a need-to-know basis. (3) The ICC contact point can then address a request for the release of the materials accessed to the EU, which, if it accedes, will release the documents if it is classified 'RESTREINT UE' or has been downgraded to 'RESTREINT UE' or declassified. For information classified 'CONFIDENTIEL UE' or above, access is only granted to persons in possession of a valid personnel security clearance. See Art 12–20, *Security arrangements for the protection of classified information exchanged between the EU and the ICC*, 8349/1/08 REV 1, 15 April 2008, available on ICC Official Journal. The arrangements do not deal with the scenario where the ICC contact point has accessed materials, has possibly divulged their content to other prosecution staff, but the EU later refuses to accede to a release request. The ICC will have to consider, for example, whether constructive knowledge, as opposed to actual custody, by a prosecution staff member of potential exonerating material that has not been released to the Office of the Prosecutor constitutes possession and control within the meaning of article 67(2).

¹⁴¹ See Hall, *Commentary* (2008), revised art. 72, mn. 14, expressing concerns where the proposed measures are to be left solely in the hands of the proposing State, with the risk, for example, of summaries being incomplete, inaccurate or even biased, as well as other concerns with regard to the publicity and fairness of proceedings.

¹⁴² *Prosecutor v. Lubanga*, Situation in Democratic Republic of the Congo, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by Article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', ICC-01/04-01/06 OA 13 (21 October 2008), paras. 2,3 and 48.

may order disclosure where the information is not solely in the hands of the State, combine to confirm that the Chamber does play a supervisory role with respect to the behaviour of national authorities during the article 72 procedure. Accordingly the Article 72(5) procedure will need to be applied in a manner that will allow the Court to resolve the potential tension that may arise between a national security claim and the requirements of a fair trial, since it is the Chamber that must conduct the final assessment as to whether the sought after material should have been disclosed, subject to appropriate conditions, notwithstanding the asserted national security prejudice.

VI. Paragraph 6

- 36 Paragraph 6 constitutes an important marker that the consultative process in the search for a solution has ended. This assessment is to be made by the State through a notification to the Prosecutor or the Court where it considers that there are ‘no means or conditions under which the information or document could be provided or disclosed without prejudice to its national security’. The notification must provide the specific reasons for the State’s decision, ‘unless a specific description of the reasons would itself necessarily result in such prejudice to the State’s national security interests’. In this regard, the State is only relieved from providing ‘a specific description of the reasons’, not from providing any reasons at all. Although the structure of the provision requires the State to make a final decision that all steps have been exhausted and so notify the Court, arguably the Chamber should not always be bound by the requirement to receive such notification before it can proceed under paragraph 7. For example where the State effectively withdraws from the proceedings prior to the paragraph 6 stage or refuses to participate in further litigation, it may be deemed to have waived the notification requirement.¹⁴³ Moreover, it is ultimately for the Chamber to assess whether ‘all reasonable steps have been taken to resolve the matter through cooperative means’, and not the State, which might make empty promises of further cooperation to avert proceedings under paragraph 7. Indeed, the Chamber’s assessment of the reasonableness of the steps explored pursuant to paragraph 5 will be an important indicator of whether the State has acted in accordance with its obligations under the Statute, pursuant to paragraph 7.

VII. Paragraph 7

1. Determination of relevance and necessity

- 37 Following the procedure described in paragraph 6, the Court may take a number of actions. In doing so, the Court must have determined that the material ‘is relevant and necessary for the establishment of the guilt or innocence of the accused’. The phrase appears to impose a higher threshold than previously required rulings on relevance under paragraph 5, by suggesting that the withheld material must go to core issues at the heart of the case. Nonetheless, the exact nature of the test remains to be determined (see below mn. 49). Moreover, it may be difficult in practice to distinguish between evidence that is relevant, but is not strictly necessary for establishing guilt or innocence, particularly where the Chamber has already explored other options, including the presentation of analogous, alternative or summary evidence, and concluded that the request remains necessary. Nonetheless, if it has not done so already, paragraph 7 invites the Chamber to dispose of situations where the material sought does not in fact appear to be relevant or necessary to the proceedings.¹⁴⁴

¹⁴³ The comparable provision under the Regulations of the Court allows for the imposition of time limits, which may be extended, after which the Court may proceed with entering a ruling on non-compliance; Regulation 108–109, Regulations of the Court.

¹⁴⁴ As Hall observes, while the provision is geared towards the article 74 judgment, similar considerations will apply for sentencing, in the event of a conviction, for the determination of mitigating or aggravating

2. Two-track approach depending on who has the material

The actions that are available to the Court are distinguished along two tracks. Track A 38 deals with the scenario where the information resides solely with the State concerned and has been sought by means of a request for judicial assistance, or the matter has otherwise been referred to the State in the circumstances described in paragraph 2, and the State has invoked the grounds for refusal referenced in article 93(4). The actions that the Chamber may undertake in the context are threefold: (i) it may hold final last-minute consultations with the State prior to proceedings with non-compliance; (ii) it may move to hold the State in non-compliance; and (iii) it may draw an inference as to the existence or non-existence of a fact. By contrast, under Track B, where the material is not in the sole possession of the State, denoted by the phrase ‘in all other circumstances’, the Chamber may proceed to order disclosure of the material notwithstanding the objections of the State; or if decides not to order disclosure, it may draw an inference. Whereas under Track A the actions may be cumulative, under Track B they are in the alternative. Moreover, Tracks A and B are themselves phrased in the alternative, meaning that the Chamber cannot proceed under both tracks simultaneously, since they represent two different factual scenarios: based on who has actual possession of the materials.

a) **Where material resides solely with the State.** As the result of the two track approach 39 described above, an order for disclosure cannot be directed to a State that has been requested to cooperate pursuant to Part 9 or to whom a national security claim has been referred by a person who has been requested to give information pursuant to paragraph 2. Thus, for example, a person who is on the stand, possibly recalled after the article 72 procedure, cannot be directed by the Chamber to answer a question with respect to an asserted national security prejudice that has been confirmed by the State pursuant to paragraph 2.¹⁴⁵ As a consequence, the only sanctioning power that the Court has in these circumstances is to make a judicial finding to that effect and to refer the matter to the Assembly of States Parties or to the Security Council, as appropriate.

The finding of non-cooperation results from the Chamber finding that the State, by 40 invoking the ground for refusal under article 93(4), in the circumstances of the case, is not acting in ‘accordance with its obligations under this Statute’. As described above (mn. 2), this phrase was introduced to replace a requirement of demonstrated good faith – an assessment that a number of States considered inappropriate in the context of an asserted national security prejudice.¹⁴⁶

As to the content of a State’s obligation towards the Court, it should be recalled that the 41 duty of a State Party to cooperate fully with the ICC is not negated by a claim of national security prejudice.¹⁴⁷ States Parties remain under a general obligation, including under

circumstances, to the extent that such evidence has not already been tendered during the trial in order to establish; *Commentary* (2008), revised art. 72, mn. 21, fn. 36: ‘Despite the fairly comprehensive regulatory scheme of article 72, there would appear to be no express restriction on the Court’s ability under its inherent powers to ensure that justice is done to express the view that information or documents are necessary to determine whether mitigating or aggravating factors are present and to urge the State concerned to disclose them to the Court to prevent an injustice to the accused or harm to the public interest. However, the Court might not in that case be able to invoke the procedures for enforcement in paragraph 7.’

¹⁴⁵ The chapeau text in article 72(7)(a) provides: ‘Where disclosure of the information or document is sought pursuant to a request for cooperation under Part 9 or the circumstances described in paragraph 2, and the State has invoked the ground for refusal referred to in article 93, paragraph 4:’ (emphasis added). See similarly Dixon *et al.*, *Commentary* (2008), art. 72, mn. 22–23.

¹⁴⁶ Piragoff, in: Lee (ed.), ICC (1999) 281–285; Dixon *et al.*, *Commentary* (2008), art. 72, mn. 24.

¹⁴⁷ It should also be recalled that the duty of States Parties under article 86 to cooperate fully with the Court in its investigations and prosecutions applies ‘in accordance with the provisions of this Statute’. As such, it applies across the whole Statute and not only to those forms of cooperation listed in Part 9. The same duties apply to non-Party States that have lodged a declaration accepting the exercise of jurisdiction by the Court under article 12(3), pursuant to rule 44. They also apply to non-Party States that are subject to a Security Council Chapter VII

article 72 of the Statute, to consult with the Court without delay in order to resolve any matter which has impeded the execution of a request.¹⁴⁸ Notwithstanding the final phrasing of the provision, that a requirement of cooperation, performed in good faith, prevails is evident from the persisting power of the Court to make a finding of non-cooperation under article 72, linked as it is to the performance of a State's duties under Part 9. Thus, the procedural failure on a State's part to explore 'all reasonable steps' that could resolve the matter could lead the Court to conclude that the State has not acted in accordance with its obligations under the Statute.¹⁴⁹ In turn, the substantive failure of a State to submit such information that is in its sole possession without a satisfactory explanation may give rise to the drawing of inferences as to the well-foundedness of the requesting party's allegations concerning the existence or content of the information sought (see below mn. 45).¹⁵⁰ More generally, the duty of States Parties to cooperate fully with the Court under article 72 is a corollary of the undertaking of States Parties not to hinder the effective exercise of the Court's jurisdiction.¹⁵¹

Although the triggering of the procedure relies on a subjective assessment by the State as to the prejudice caused to its national security interests, the steps taken in conjunction with the Chamber to resolve the matter must be objectively reasonable. At the same time, the provision grants considerable discretion for the Chamber to make a case-by-case assessment that considers the particular and possibly complex or unique factors 'in the circumstances of the case', including possibly the nature of the material, the explanations provided by the State, the steps it has taken and its impact on the proceedings.¹⁵²

- 42 The non-compliance mechanism referred to in subparagraph (a)(iii) cross-references article 87(7), which relates to non-cooperation by States Parties.¹⁵³ By contrast, the provision does not refer to article 87(5) which deals with non-Party States that have been invited to cooperate pursuant to an ad hoc agreement, arrangement or any other appropriate basis. It is thus unclear to what extent the non-compliance procedures in article 72 can attach also to non-Party States. In the case of a non-Party State that has lodged a declaration under article 12(3) accepting the exercise of jurisdiction by the Court, article 87(7) would apply since rule 44 clarifies that 'the provisions of Part 9, and any rules thereunder concerning States Parties, shall apply'. A similar situation would arguably arise with respect to States that have been placed by the Security Council under Chapter VII obligations to cooperate fully with the Court, thereby binding the UN Member State so directed to cooperate.¹⁵⁴ In the Darfur and Libya situations, for example, Pre-Trial Chambers have pursued non-cooperation findings under article 87(7), rather than article 87(5), based on the finding that the referral of a situation by the Security Council triggers the application of the entire legal framework of the ICC vis-à-vis the State concerned, including by implication any rules attendant on States Parties.¹⁵⁵ This places a non-Party States obligated under a Security Council Chapter VII

resolution requiring the relevant UN Member State to cooperate fully with the Court. With respect to other 'third-party' non-Party States, they may be invited to cooperate pursuant to article 87(5) and found in breach of such agreement where a failure to cooperate occurs.

¹⁴⁸ See e.g. Article 97, ICC Statute.

¹⁴⁹ The phrase 'all reasonable steps' occurs both in paragraph 5 and 6 of the provision.

¹⁵⁰ Article 72(7)(a)(iii) and Article 72(7)(b)(ii). In similar terms see *Janowiec and Others v. Russia*, Judgment (Merits and Just Satisfaction), 21 October 2013, para. 202, recalling also ECtHR case law from a number of cases against Turkey.

¹⁵¹ See e.g. paragraph 11 of the Preamble to the Statute. See also *Janowiec and Others v. Russia*, Judgment, para. 209, holding that the effective exercise of right protected by the Convention may be thwarted by a State's failure to assist the ECtHR in conducting an examination of all circumstances relating to the case, including in particular by not producing evidence which the Court considers crucial for its task.

¹⁵² See also Dixon *et al.*, *Commentary* (2008), art. 72, mn. 24.

¹⁵³ Similarly, the provision also references article 93(4), which speak of request denial by a 'State Party'.

¹⁵⁴ Article 25 and 103, UN Charter.

¹⁵⁵ See *Prosecutor v. Omar Hassan Ahmad Al Bashir*, Situation in Darfur, Sudan, ICC Pre-Trial Chamber I, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, ICC-02/05-01/09-3, 4 March 2009, para. 248, foreshadowing possible recourse to a finding of non-compliance against

resolution to cooperate fully with the Court in an equivalent position to a non-Party State that lodges an ad hoc declaration under article 12(3) – a position that promotes internal coherence with respect to non-Party States that have been placed within the jurisdictional scope of the Court, even if such States could equally have been considered to be subject to cooperation obligations under the ‘any other appropriate basis’ clause of article 87(5).¹⁵⁶ However, it remains doubtful whether the Court may respond to non-compliance by third States that are neither States Parties, nor declaring States under article 12(3), nor States subject to Chapter VII cooperation duties.¹⁵⁷ In these circumstances it would appear that the Court does not have the possibility to make a formal finding of non-compliance and refer the matter to the ASP or the Security Council; although the Court could still choose to bring the matter of non-cooperation by third States to the attention of the ASP or the Security Council as an issue that has impeded its work, for example in the context of reports by the President or the Prosecutor to either body.¹⁵⁸

The practical impact of referring a judicial finding to a political body remains uncertain. In particular, it may have little impact on ongoing proceedings before the Court,¹⁵⁹ even though it might remain highly relevant for ongoing investigations into similar conduct or in view of possible revision proceedings. Among the more robust models where non-compliance findings are pursued by the parent political body, the experience of the Committee of Ministers of the Council of Europe, which is entrusted with the enforcement of judgments by the ECtHR, shows that enforcement can take years, where it is effected.¹⁶⁰ In other circumstances, although a judicial finding of non-compliance might not lead to direct enforcement action from the political body to which it has been referred, it may exercise considerable influence in the context of other bi- and multilateral processes aimed to bring about changes in the behaviour of the State concerned.¹⁶¹

Sudan pursuant to article 87(7); and *Prosecutor v. Saif Al-Islam Gaddafi*, Situation in Libya, ICC Pre-Trial Chamber I, Decision on the non-compliance by Libya with requests for cooperation by the Court and referring the matter to the United Nations Security Council, ICC-01/11-01/11-577, 10 December 2014, paras. 20–22, where the Chamber proceeds to find Libya in non-compliance under article 87(7). See also *Prosecutor v. Banda and Jerbo*, Situation in Darfur, Sudan, Decision on ‘Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan’, ICC Trial Chamber IV, ICC-02/05-03/09-169, 1 July 2011, para. 15; and *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, Situation in Libya, ICC Pre-Trial Chamber I, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, ICC-01/11-01/11-163, 1 June 2012, paras. 28–30, recalling that ‘the Court has consistently held that the legal framework of the Statute applies in the situations referred by the Security Council in Libya and Darfur, Sudan, including its complementarity and cooperation regimes.’

¹⁵⁶ The difficulty with article 87(5)(a) lies in the fact that 87(5)(b) does not provide an express basis for the Court to make a finding of non-compliance in relation to a State that has been invited to cooperate under ‘any other appropriate basis’: a somewhat flawed result of the drafting process, but possibly answered by the logic that in such a scenario the power of the Court to invite the State to cooperate resides in a legal framework outside of its own regime (i.e. not the Statute, nor an ad hoc agreement or arrangement with the Court). The ability of the Court in these circumstances to make a finding of non-compliance could nonetheless be based on an inherent powers approach, given the necessity of the Court to be able to fulfil its mandated duties. See discussion in Kress and Prost, art 87, in this volume, at mn. 37 *et seq.*, on the variable applicability of articles 87(5) and 87(7) to non-Party States.

¹⁵⁷ See also Piragoff, in: Lee (ed.), *ICC* (1999) 293–294, who opines, ‘[T]he remedial action where a request is made to a State not party to the Statute is uncertain in the context of Article 72(7) ...’. By contrast, it does not seem reasonable to propose that if non-Party States fall outside the scope of subparagraph 7(a), they could be ordered to disclose pursuant to the ‘in all other circumstances’ clause of subparagraph 7(b); since the Court could not reasonably enjoy greater powers vis-à-vis non-Party States than States Parties; see Dixon *et al.*, *Commentary* (2008), art. 72, mn. 24.

¹⁵⁸ See similarly Dixon *et al.*, *Commentary* (2008), art. 72, mn. 24. at fn. 43.

¹⁵⁹ See article 87, this volume; Dixon *et al.*, *Commentary* (2008), art. 72, mn. 24.

¹⁶⁰ On general challenges to the enforcement of ECtHR preliminary rulings and final dispositions see Keller and Heri (2014) 12 *JICJ* 735–750.

¹⁶¹ See Rastan, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2008) 165–171, noting in the context of the ICTY that although formal notification of non-compliance seldom led to enforcement action by the Security Council, it did bring about changes in the behaviour of the States of the

- 44 **b) Where the material is held by others.** Subparagraph (b) of paragraph 7, relates to ‘all other circumstances’. The most obvious import of the provision is to denote that it is with exception to the scenario described in subparagraph (a). The other circumstances that would exclude those set out in subparagraph (a) include situations where the material is already in the hands of the prosecution or the defence or the legal representative of victims. For example, the prosecution may have obtained the information from a State that did not receive it in confidence from the originating State (i.e. not subject to article 73); from intercepted communications; or from a cache of physical or electronic material seized during an arrest operation.

Alternatively, the material may be in the possession of a third party.¹⁶² This may include a witness that has opted not invoke the grounds for refusal set out in paragraph 2 and decided to testify, notwithstanding the State’s objection under paragraph 4. In such circumstances, the Chamber could order for the witness to proceed with the intended testimony, having considered and rejected the State’s claim.

3. Drawing of inferences

- 45 The final action that the Court may take under both sub-paragraphs (a) and (b) is to ‘make such inference in the trial of the accused as to the existence or non-existence of a fact, as may be appropriate in the circumstances’. In subparagraph (a) this inference may be drawn in addition to making a finding of non-compliance, while in subparagraph (b) it can be made only to the extent that the Chamber does not order disclosure (thereby rendering the utility of an inference obsolete).

The provision is based on the proposal by Singapore which provided that the Court could ‘[m]ake such inferences that relate to the guilt or innocence of the accused as may be appropriate in the circumstances’, to be drawn where the State refused a cooperation request and the Court had determined that the evidence was relevant and necessary for the establishment of the guilt or innocence of the accused.¹⁶³ It thereby provided one additional action that the Court could take where it could not order disclosure, to supplement its authority to make a finding of non-compliance. In particular, the addition appears to have been designed to address the substantive aspect of the non-provision of information that the Chamber deems relevant and necessary, by allowing the Court to draw certain conclusions in the case at hand as to contested facts at issue.

The proposal was modified by the coordinator of the Working Group on Procedural Matters towards the end of the negotiations in Rome. First, it was replicated in the separate track reflected in current subparagraph 7(b) to enable the Court to draw an inference also where it declines to order disclosure in deference to the State’s national security claim. Second, the provision was restricted to the drawing of inferences as to ‘the existence or non-existence of a fact’ instead of the guilt or innocence of the accused. This was made in response to concerns that inferences made as to the guilt of an accused person based on information which he or she has had no access to or an opportunity to refute may run counter to the rights of the accused enshrined in the Statute.¹⁶⁴ As Piragoff explains, ‘[i]t seems that such “fact” would likely be those which are relevant to the requested information. The inference should not be to the ultimate issues of guilt or innocence’.¹⁶⁵

former Yugoslavia towards the ICTY by virtue of measures taken by others. This was by means of issue linkage strategies seeking to link a State’s cooperation record with the Tribunal to its participation in other areas of international activity, such as the European Union’s Stabilisation and Association Process, NATO’s Partnership for Peace programme, and with respect to the lifting of economic sanctions and the rendering of multilateral and bilateral assistance, notably by the World Bank and the U.S.

¹⁶² See above fn. 10, citing Piragoff, in: Lee (ed.), *ICC* (1999) 281–282.

¹⁶³ A/CONF.183/C.1/WGPM/L.49, 3 July 1998.

¹⁶⁴ Dixon *et al.*, *Commentary* (2008), art. 72, mn. 25.

¹⁶⁵ Piragoff, in: Lee (ed.), *ICC* (1999) 287.

At the same time, a number of uncertainties remain. As noted in the 2nd edition of this Commentary, it would seem that the correct approach would be that inferences may only be drawn from the absence of information, not from information which the Chamber has in fact had access to (because the Chamber has the information and has chosen not to order its disclosure or because it transpired in the course of an *ex parte* hearings), but which has not been made available to the accused as a result of non-disclosure.¹⁶⁶ However, the drawing of inferences from the absence of information or documents, if adverse to the accused, could prove highly challenging weighed against the fundamental presumption of innocence.¹⁶⁷

As is well known, the drawing of inferences from the lack of information provided by a State, including on the basis of pleas of official secrecy or national security prejudice, has been firmly established in the case law of the ECtHR and the IACtHR. As restated by the ECtHR in the recent case of *El Masri v. Macedonia*, where the events in issue lie within the exclusive knowledge of the authorities, as in the case of persons under their control in custody, strong presumptions of fact will arise in respect of injuries and death occurring during that detention. As a result, the burden of proof in such a case may shift on to the authorities to provide a satisfactory and convincing explanations, in the absence of which, the Court may draw the inference against the State that the allegation is proven.¹⁶⁸ For example, this approach has been applied where although it has not been proved that a person has been taken into custody by the authorities, it is possible to establish that he or she was officially summoned by the authorities, entered a place under their control and has not been seen since. The ECtHR has stated that in such circumstances, the onus is on the Government to provide a plausible and satisfactory explanation as to what happened on the premises and to show that the person concerned was not detained by the authorities, but left the premises without subsequently being deprived of his or her liberty.¹⁶⁹ In this context, the ECtHR has required proof in the form of ‘concordant inferences’ before the burden of proof is shifted to the respondent Government.¹⁷⁰ For example, as illustrated by the Court in *Creangă v. Romania*, in the case of alleged deprivation of liberty, the applicant will need to provide *prima facie* concordant evidence capable of showing that he was indeed under the exclusive control of the authorities on the day of the events, that is to say, that he was officially summoned by the authorities and entered premises which were under their control. If that condition is satisfied, the Court will be able to consider that he was not free to leave, particularly when investigative measures were under way. It could therefore require the Government to provide a detailed hour-by-hour report on what happened in the premises and to account for the time spent there by the applicant. The Government would then have to provide satisfactory and convincing written evidence to support their version of the facts. Failure to provide such evidence would enable conclusions to be drawn as to the merits of the

¹⁶⁶ Dixon *et al.*, *Commentary* (2008), art. 72, mn. 26. The authors go on to note that such an approach would be consistent with the result which the change in wording to ‘fact’ sought to achieve, namely, that information cannot be relied upon in the determination of guilt when the accused was denied access to it.

¹⁶⁷ *Ibid.* See similarly Behrens, in: Roggemann and Šarčević (eds.), *National Security and International Criminal Justice* (2002), p. 125; Triffterer, in: Roggemann and Šarčević (eds.), *National Security and International Criminal Justice* (2002) 77–77; Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010), pp. 868–869.

¹⁶⁸ *El Masri*, para. 152, citing *Çakıcı v. Turkey*, no. 23657/94, para. 85, ECHR 1999-IV; *Salman v. Turkey*, no. 21986/93, para. 100, ECHR 2000-VII; *Rupa v. Romania* (no. 1), no. 58478/00, para. 97, 16 December 2008; *Orhan v. Turkey*, no. 25656/94, 18 June 2002, para. 274. See thereto Ambos (2015) 5 *EuCLR* forthcoming and previously, *id.* (2009) 42 *Israel L.Rev.* 362, 393–6 (arguing, on the basis of a differentiation between burden and standard of proof, that for a final shifting of the burden of proof regarding human rights violations such as torture the applicant only has to present the injury (or injuries) in a plausible and convincing manner, and the respondent State then has to refute this presentation, with any doubts counting against it).

¹⁶⁹ *El Masri*, para. 154, citing see *Tamış and Others v. Turkey*, no. 65899/01, ECHR 2005-VIII, para. 160; *Yusupova and Zaurbekov v. Russia*, no. 22057/02, 9 October 2008, para. 52; *Matayeva and Dadayeva v. Russia*, no. 49076/06, 19 April 2011, para. 85.

¹⁷⁰ *Öcalan v. Turkey* [GC], no. 46221/99, para. 90.

applicant's allegations.¹⁷¹ The IACtHR has similarly allowed for a shift in the burden of proof in a series of well-known cases concerning enforced disappearance.¹⁷²

In explaining this shifting in burdens and for the drawing of inferences, the ECtHR has drawn a distinction between its role, in supervising State compliance with Convention obligations, and that of a criminal trial:

'In cases in which there are conflicting accounts of events, the Court is inevitably confronted when establishing the facts with the same difficulties as those faced by any first-instance court. It reiterates that, in assessing evidence, it has adopted the standard of proof "beyond reasonable doubt". However, it has never been its purpose to borrow the approach of the national legal systems that use that standard. Its role is not to rule on criminal guilt or civil liability but on Contracting States' responsibility under the Convention. The specificity of its task under Article 19 of the Convention – to ensure the observance by the Contracting States of their engagement to secure the fundamental rights enshrined in the Convention – conditions its approach to the issues of evidence and proof. In the proceedings before the Court, there are no procedural barriers to the admissibility of evidence or pre-determined formulae for its assessment. It adopts the conclusions that are, in its view, supported by the free evaluation of all evidence, including such inferences as may flow from the facts and the parties' submissions. According to its established case-law, proof may follow from the coexistence of sufficiently strong, clear and concordant inferences or of similar unrebutted presumptions of fact. Moreover, the level of persuasion necessary for reaching a particular conclusion and, in this connection, the distribution of the burden of proof, are intrinsically linked to the specificity of the facts, the nature of the allegation made and the Convention right at stake ... Furthermore, it is to be recalled that Convention proceedings do not in all cases lend themselves to a strict application of the principle *affirmanti incumbit probatio*.'¹⁷³

- 48 The ICC will have to consider whether any of the reasoning applied by the ECtHR and IACtHR for the drawing of inferences from State inaction or silence is applicable in its own context. Clearly, the specific circumstances concerning State responsibility with which both regional courts are engaged are not easily transferable to the criminal law context. While a Trial Chamber may look to whether sufficiently strong, clear and concordant inferences are available or whether unrebutted presumptions of fact exist to enable a finding under paragraph 7(a)(iii) or 7(b)(ii), any inference that relates to the existence or non-existence of a fact in dispute that is relevant and necessary to a determination of guilt or innocence would need to be treated with considerable caution.¹⁷⁴

- 49 At the same time, the drafting history indicates that the phrase 'relevant and necessary for the establishment of the guilt or innocence of the accused' in the chapeau text of paragraph 7 might not concern the ultimate issues at trial. As noted earlier, the wording of paragraph 7 originates from a proposal of Singapore, which provided in relevant part:

'8. Where the disclosure of the information or document is sought pursuant to a request for cooperation under Part 9, the Court may, *if it determines that the evidence is relevant and necessary for the establishment of the guilt or innocence of the accused*: (a) Refer the matter in accordance with article 86, paragraph 6; and (b) Make *such inferences that relate to the guilt or innocence of the accused* as may be appropriate in the circumstances.'¹⁷⁵

The same formulation was included in Option 1 of the coordinator's rolling text as late as 13 July 1998.¹⁷⁶ As discussed in mn. 45, the phrasing in limb (b) was modified towards the end

¹⁷¹ *Creangă v. Romania*, no. 29226/03, ECtHR, 23 February 2012, para. 90.

¹⁷² *Velasquez Rodriguez v. Honduras*, IACtHR Judgment, 29 July 1988, paras. 147–148; *Neira Alegria et al. v. Peru*, IACtHR, Judgment 19 January 1995, para. 65.

¹⁷³ *El Masri*, para. 151–152. See Keller and Heri (2014) 12 *JICJ* 741–742. On distinguishing between the standard and burden of proof as applied by the IACtHR set against that applied by domestic criminal courts see also *Velasquez Rodriguez v. Honduras*, IACtHR, Judgment, 29 July 1988, paras. 128–138.

¹⁷⁴ As Piragoff aptly observes in: Lee (ed.), *ICC* (1999) 294: 'Given the ambiguities of some of the provisions and their inter-relations, it is an open question whether the storm of the negotiation process in respect of the protection of confidential information, in particular national security information, has left the Court with clear or turbulent skies for the future'.

¹⁷⁵ A/CONF.183/C.1/WGPM/L.49, 3 July 1998, emphasis added.

¹⁷⁶ A/CONF.183/C.1/WGPM/L.76.

of the negotiations in Rome to ensure that the inference would not go to the ultimate issues of guilt or innocence as proposed in the earlier text, but instead would relate to ‘the existence or non-existence of a fact’. By contrast, the formulation in the first part relating to relevance and necessity, which used the same phrase, appears to have been carried over into the final text without detailed discussion. The difference in treatment is noticeable given the strong reservations that motivated the amendment in limb (b) and the equal validity of such concerns for both parts. Indeed, arguably the purpose of the amendment would be negated if the inference as to the existence or non-existence of a fact had to nonetheless constitute the sole factor necessary to establish the guilt or innocence of the accused. The absence of any indication in the drafting history that the distinction in the treatment of the two matching clauses was intentional tends to mitigate the emphasis that should be placed on the qualifier in the chapeau text in paragraph 7. If, instead, the inference is understood to apply in relation to evidence that has been deemed relevant and necessary in view of its potential incriminating or exonerating value, the Chamber could draw an inference ‘as may be appropriate in the circumstances’ in the same way as it would in relation to other circumstantial evidence and assign it, together with other relevant corroborating evidence, such weight and probative value as it may determine in the context of the totality of the evidence at the end of the trial.

Article 73

Third-party information or documents

If a State Party is requested by the Court to provide a document or information in its custody, possession or control, which was disclosed to it in confidence by a State, intergovernmental organization or international organization, it shall seek the consent of the originator to disclose that document or information. If the originator is a State Party, it shall either consent to disclosure of the information or document or undertake to resolve the issue of disclosure with the Court, subject to the provisions of article 72. If the originator is not a State Party and refuses to consent to disclosure, the requested State shall inform the Court that it is unable to provide the document or information because of a pre-existing obligation of confidentiality to the originator.

Directly relevant Rules of Procedure and Evidence: Rules 73, 81, see Annex 1.

Literature: Peter Malanczuk, *Protection of National Security Interests*, in: Antonio Cassese/Paola Gaeta/John R.W.D. Jones, *The Rome Statute of the International Criminal Court: A Commentary* 1371, Vol. 2 (2002); Donald K. Piragoff, *Protection of National Security Information*, in: Roy S. Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute – Issues – Negotiations – Results* 270 (1999).

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A. Introduction/General remarks

- 1 Article 73 seeks to protect the free flow of intelligence and other information between States, and between organizations and States. It ensures that where a State Party has a pre-existing obligation of confidentiality to another State or to an organization, it will not be obliged to violate that confidence in order to comply with its obligations under the treaty. It thus establishes a separate procedure to be followed in the event that a State Party is requested to provide the Court with information which was received by it on a confidential basis. In such cases, the focus shifts from the ‘requested State’ to ‘the originator’ of the information, who effectively becomes the object of the Court’s request. However, to the extent that such information is not subject to a legitimate privilege in the public interest, it remains as problematic as article 72 (concerning protection of national security information) and article 54 para. 3 (d) and (e) (protecting information given in confidence to the Prosecutor) in that it could deny an accused access to exculpatory and mitigating evidence and the Prosecutor incriminating and aggravating evidence. Indeed, unless it is strictly construed, it could seriously limit the ability of the Prosecutor to prosecute cases of genocide, crimes against humanity and war crimes.
- 2 The decision whether the information should be disclosed notwithstanding the pre-existing obligation becomes a matter for determination, not by the requested State Party, but rather by the originator of the information, or the originator and the Court, depending on the nature of the originator’s relationship towards the Court. The article recognizes that the consequences will vary depending on whether or not the originator is a State Party. If the

originator is a State Party, the originator is obliged to consent to the disclosure to the Court or, in the case of information it considers prejudicial to its national security, to resolve the issue of disclosure in accordance with the Statute. If a non-State Party, the originator clearly owes no obligation to the Court under article 73. If it so desires, it can, therefore, rely on the confidential basis on which it provided the information, and refuse to consent to disclosure, although it may be possible in certain circumstances for the State Party to disclose this information to the Court despite the confidential basis on which it was supplied or to do so when it has also obtained the information independently of the confidentiality agreement (see mn. 10 and 19).

The situation is a little bit more complex if the originator is an intergovernmental organization or an international organization. Article 87 para. 6 provides that '[t]he Court may ask any intergovernmental organization to provide information or documents', but it does not impose an obligation on such organizations to cooperate similar to the obligation of States Parties in article 86. Instead, it envisages that '[t]he Court may ask for other forms of cooperation and assistance which may be agreed upon with such an organization and which are in accordance with its composition or mandate'¹. The Court has availed itself of this opportunity. For example, the obligations of the United Nations to cooperate with the Court are spelled out in the Relationship Agreement between the International Criminal Court and the United Nations. Article 5 requires that the United Nations and the Court shall, 'to the fullest extent possible and practicable, arrange for the exchange of information and documents of mutual interest'; article 15 contains an undertaking by the United Nations 'to cooperate with the Court and to provide to the Court such information or documents as the Court may request pursuant to article 87, paragraph 6, of the Statute', article 16 contains an undertaking by the United Nations to cooperate with the Court in providing testimony by its officials and article 18 spells out obligations of the United Nations to cooperate with the Prosecutor. The Court has entered into similar cooperation agreements with the European Union and it is negotiating cooperation agreements with the African Union and other intergovernmental organizations². The term 'international organizations' is not defined, but its juxtaposition with intergovernmental organizations in this article suggests that it means here such special international organizations as the International Committee of the Red Cross (ICRC) and non-governmental organizations. Such non-governmental organizations may have provided information in confidence to States Parties, some of which would be protected independently of this article by a public interest privilege. Such a public interest privilege is recognized in Rule 73³.

Before the ICTY, the protection of third-party information went in an opposite direction at trial, later reversed on appeal to confirm the underlying logic contained in article 73. In the *Milutinović et al* case, the Trial Chamber found that it had the authority under ICTY Rule

¹ It is a separate question whether the Court may compel officials or former officials of an intergovernmental organization pursuant to article 64 para. 6 (b) to attend, testify and produce documents and to what extent they enjoy a public interest privilege or an immunity. For the position of the United Nations on this question, see *Prosecutor v. Brima, Amicus curiae* brief of the United Nations High Commissioner for Human Rights, Appeals Chamber, Special Court for Sierra Leone, filed 16 Dec. 2005.

² The International Criminal Court and the European Union sign an agreement on cooperation and assistance, The Hague, 10 Apr. 2006, ICC-CPI-20060410-132-En.

³ Rule 73 para. 2 provides that 'communications made in the context of a class of professional or other confidential relationships shall be regarded as privileged, and consequently not subject to disclosure, under the same terms as in sub-rules 1 (a) and 1 (b) if a Chamber decides in respect of that class that:

(a) Communications occurring within that class of relationship are made in the course of a confidential relationship producing a reasonable expectation of privacy and non-disclosure;
(b) Confidentiality is essential to the nature and type of relationship between the person and the confidant; and
(c) Recognition of the privilege would further the objectives of the Statute and the Rules'.

For the scope of the public interest privilege which can be asserted by non-governmental organizations, see *Prosecutor v. Brima, Amicus curiae* brief of Amnesty International concerning the public interest privilege, Document Number: SCSL-04-16-452, Appeals Chamber, Special Court for Sierra Leone, 16 Dec. 2005.

54bis to issue an order to NATO to provide information which the latter asserted belonged to its Member States. In so doing, it rejected NATO's arguments 'that a "non-originating" State or holder of material is not obliged under Article 29 of the Statute to produce documents or information that it received from an "originating" State, and that "ownership" rather than "possession" triggers the obligation to produce, or that intelligence-sharing agreements with States trump any obligation under Article 29 of the Statute'. Accordingly, the Trial Chamber found: 'The target of such an Order is material that the organisation possesses. Questions of ownership and whether the material was initially obtained by another are irrelevant.'⁴ In separate appeals brought by the United States and NATO, the Appeals Chamber reversed this finding, holding that the Trial Chamber erred in summarily dismissing issues of ownership and origination of information as irrelevant to a Rule 54bis order.⁵ In relation to the appeal by the United States, the Appeals Chamber stated:

'In this case, the Appeals Chamber has no reason to doubt the United States' assertion that it has a strong national security interest in maintaining the absolute secrecy of the intelligence information provided to it by other States and entities. The Appeals Chamber accepts as logical the United States' claim that, were it to divulge this information without the consent of the information providers, this could lead other States to doubt the United States' willingness and ability to keep secrets entrusted to it and therefore make other States less willing to share sensitive information with the United States in the future. Application of protective measures to this information handed-over by the United States would clearly not suffice to protect this national security interest. The Appeals Chamber notes, moreover, that the Trial Chamber issued Rule 54bis orders to other States that might have provided the United States with information responsive to Odjanić's requests. Rule 54bis orders to these States provide Odjanić with an alternate means of obtaining responsive information that may have been provided to the United States.'⁶

Accordingly, it held that a properly tailored Rule 54bis order should have necessarily avoided requiring production of information over which the United States did not have ownership.⁷

⁴ *Prosecutor v. Milan Milutinović et al*, Decision on Second Application of Dragoljub Ojdanić for Binding Orders Pursuant to Rule 54bis, IT-05-87-PT, 17 November 2005, paras. 35 and 38. The Trial Chamber relied on the finding of the Appeals Chamber in the *Prosecutor v. Tihomir Blaskić*, Judgment on the Request of The Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, ICTY Appeals Chamber, 29 Oct 1997, that 'the obligation under consideration [that of Article 29] concerns [inter alia] action that States may take only and exclusively through their organs (this, for instance, happens in case of an order enjoining a State to produce documents in the possession of one of its officials)', observing that '[t]his applies equally to material received by one State from another', although noting '[o]f course, should a third-party holder of sensitive material assert that its legitimate security interests would be adversely affected by an order for production, it may seek appropriate protective measures'.

⁵ *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, IT-05-87-ARI08bis.2, 12 May 2006, para. 43; *Prosecutor v. Milan Milutinović et al*, Decision on Request of the North Atlantic Treaty Organisation for review, IT-05-87-ARI08bis.1, 15 May 2006, para. 18. The Appeals Chamber went on to observe: 'Nothing in the text of Rule 54bis or the jurisprudence concerning the International Tribunal's power to issue compelling orders to States precludes consideration of these matters or indicates that the only question of concern for a Trial Chamber is whether or not the State is in possession of the requested information or documents. Furthermore, the Appeals Chamber recalls that the Rules of the International Tribunal have been intentionally drafted to take into account certain State interests and to provide safeguards for them in order to encourage States in the fulfilment of their obligation to cooperate with the International Tribunal under Article 29 of the Statute. Indeed, under Rule 54bis, a Judge or a Trial Chamber is required to consider the national security interests raised by a State in determining whether to issue a Rule 54bis order or whether to direct, on national security interests grounds, protective measures for the documents or information to be produced by a State under a Rule 54bis order.'; *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, IT-05-87-ARI08bis.2, 12 May 2006, para. 43.

⁶ *Ibid.*, para. 44. In this respect, the Appeals Chamber held that reliance on the *Blaskić* subpoena appeal decision was inapposite since the Appeals Chamber there 'was not considering the question of whether a State may be enjoined to produce documents in its possession that was shared with it by another State'; *ibid.*, at fn.102.

⁷ Although the Trial Chamber's decision had been issued in relevant part against NATO, not the United States, the Appeals Chamber accepted the United States' standing to challenge the issue given that the holding could directly affect it in two ways: (i) by requiring NATO, as a third-party holder of information originating from the United States, to provide that information to the ICTY, and (ii) because the Trial Chamber generally stipulated that its holding 'applies equally to material received by one State from another' and 'would require the United

Essentially the same findings were issued in response to NATO's complaint with respect to information it held from its Member States. The Appeals Chamber held that 'the Trial Chamber abused its discretion by issuing a Rule 54bis order requiring NATO to produce intelligence information that it did not own'.⁸ In particular, the Appeals Chamber added that 'the bona fide security interest asserted here by NATO is one that ... deserves the utmost consideration', since requiring NATO to produce certain intelligence information of which it is not the originator implicated 'serious security interests held by NATO and its Member States'.⁹ Although the two decisions relied on the prejudice to national security interest (of the United States and the security interests of NATO) in not sharing third-party information,¹⁰ the underlying reasoning is largely consistent with the rationale behind the drafting of article 73 and its inter-relationship with the drafting of article 72.

As noted below (see mn. 9 to 10), the information to which article 73 pertains is not limited to information of an objectively sensitive nature, but to information which was provided confidentially. Moreover, the article does not specify the reason for the confidentiality having been imposed in the first place. The scope of the article goes beyond information considered by a State to prejudice its 'national security' interests, covered by article 72.

It should be noted that articles 72 and 73 are, however, closely interrelated. Third party information provided on a confidential basis may often relate to national security concerns and the procedure embodied in article 73 was thought by negotiators to be particularly important where national security information is involved, in order to facilitate the operation of article 72.

The mechanism in article 73 ensures that when a State party is requested to provide information that was provided to it by a third party, the matter is resolved directly between the Court and the originator of the information, which will then have the opportunity to seek

States to produce any responsive information in its possession that had originated with another State' in the future if served with a Rule 54bis order'; *Prosecutor v. Milan Milutinović et al*, Decision on request of the United States of America for review, IT-05-87-ARI08bis.2, 12 May 2006, para. 42. The United States had argued that even after a State shares information with other States, the originating State 'must control release of their own information' (the 'originator principle'), stating, '[w]hen a State decides to share intelligence or other sensitive information, it typically does so under an express and binding arrangement, with specific conditions on storage, access and use. That is, the originating State does not transmit absolute rights over the information, but retains residual rights and control. It remains the owner of the information'; *ibid.*, para. 39. It further argued that adherence to the originator principle was of 'paramount importance to information sharing' among States and their interests in national security and international relations; was widely shared by the United States, NATO and other States; and was reflected in State practice as demonstrated by its recognition in Article 73 of the Rome Statute; *ibid.*, para. 40.

⁸ *Prosecutor v. Milan Milutinović et al*, Decision on Request of the North Atlantic Treaty Organisation for review, IT-05-87-ARI08bis.1, 15 May 2006, para. 20.

⁹ *Ibid.*, paras.19–20. NATO claimed that the Trial Chamber erred 'because NATO has no independent intelligence gathering capacity and any intelligence information that NATO possesses remains in the control of its member States'; *ibid.*, para. 16. In particular, it argued that the decision negatively affected its ability to conduct relations with its Member States by 'ordering it to produce information which it did not originate and which remains under the control and authority of its Member States'; stating that as a consequence NATO Member States would be prevented from sharing intelligence information with NATO which would 'greatly impair NATO's ability to carry out its mission and to contribute to the maintenance of peace and security.' It further pointed to the Agreement between the Parties to the North Atlantic Treaty for Security where 'it is clear that any intelligence information possessed by NATO remains under the control and authority of the member State that originated it' ('originator principle'), while under the NATO Security Policy, the 'Originator', defined as the 'nation or international organization under whose authority information has been produced or introduced into NATO', has 'full authority to define the level of security classification and determine to what extent classified information may be disseminated.' It argued that these provisions were necessarily made for 'the mutual protection and safeguarding of any classified information that they may interchange', and thus that 'any binding orders issued in response to' Odžanić's Application 'should be directly addressed to the sovereign individual member States of the Alliance as appropriate'; *ibid.*, paras.14–16.

¹⁰ The same reasoning was recalled by the Trial Chamber in the *Karadžić* case, although there the Chamber observed that Germany, as the requested State, could not simply rely on the general assumption that the documents sought might raise, *inter alia*, third-party ownership issues, but should instead indicate 'which particular documents are owned by third states and thus cannot be disclosed to the Accused without that state's permission'; *Prosecutor v. Radovan Karadžić*, Decision on the accused's application for binding order pursuant to rule 54bis (Federal Republic of Germany), IT-95-5/18-T, 19 May 2010, paras.42–43.

to protect its national security information or documents in accordance with the complex procedure established in article 72. Shifting the focus of the request from requested state to originator in this way reflects that the originator of the document or information will have the greatest interest in its protection, and will be best placed to inform the Court of the reasons for wanting to avoid disclosure. It also ensures that, consistent with the framework of article 72, the relevant question remains whether the provider of the information – as opposed to the recipient of it – is a State Party and owes an obligation to the Court.

- 5 The proponents of article 73 – principally the United States of America and France, and later the United Kingdom – had, distinct, but related, interests in this provision. One objective was to retain a non-State Party's control over its own information. It has been argued that by so doing,

it serves another important objective, which is to ensure that the current practice of sharing intelligence information between States that would become party to the Statute and others that may not, would not be jeopardized by countervailing obligations owed by States Parties to the Court. However, from the perspective of the Prosecutor, the issue is whether the sharing of such intelligence information on a confidential basis insulated from disclosure to the Court will further the effective investigation and prosecution of genocide, crimes against humanity and war crimes. From the perspective of the defence, one of the issues is whether the accused will be denied access to potentially exculpatory or mitigating intelligence information, such as intercepts of the accused's statements or statements of witnesses contemporaneous with the alleged crimes. If article 73 had been designed to permit the Prosecutor to obtain such information, subject to the article 72 procedure and on the same basis as a confidentiality agreement under article 54 para. 3 (d) and (3) permitting the Prosecutor to use the information to generate admissible evidence, this claim might be more persuasive, although each of these provisions pose serious problems from the perspective of both the Prosecutor and the accused. An even more serious problem is that article 73 could deny the Court access to evidence of crimes, not just of those committed by nationals of third States, but also of crimes committed by nationals of the originating non-State Party on the territory of a State Party or in a situation referred by the Security Council involving a non-State Party. This problem becomes even more aggravated if the Court were to attempt to address multinational transnational criminality of nationals of both States Parties and non-States Parties, such as trafficking of persons by United Nations peacekeepers¹¹, the torture, enforced disappearances and extrajudicial executions which occurred in the extensive transnational police and military network in Plan Condor in the Southern Cone of Latin America in the 1970s and 1980s¹² or the same crimes committed during recent 'renditions' of suspected 'terrorists'¹³. Often the crucial evidence of the crimes and the conspiracy to commit them will be evidence provided in confidence, where the very confidentiality agreement was a crucial part of the conspiracy.

- 6 In its original incarnation, the principle embodied in article 73 formed part of a proposal by the delegations of France and the United States of America in relation to the protection of national security information (current article 72), submitted on 1 July 1998. The relevant paragraph, which appeared as an amendment to an earlier draft proposal, provided at paragraph 1 (d) that this article should not 'be interpreted as requiring a state to disclose information obtained under a pre-existing agreement of confidentiality from another State or an inter- governmental organization'¹⁴. On 10 July 1998, the delegation of the United

¹¹ Statement by the President of the Security Council, UN Doc. S/PRST/2005/21, 31 May 2005 (condemning, 'in the strongest terms, all acts of sexual abuse and exploitation committed by United Nations peacekeeping personnel').

¹² For an account of one state's involvement in the multinational Plan Condor, see I. Guest, *Behind The Disappearances: Argentina's Dirty War Against Human Rights And The United Nations* (1990).

¹³ See, e.g., *El-Masri v Macedonia*, ECtHR, (no. 39630/09), Judgment, 13 December 2012; *Husayn (Abu Zubaydah) v Poland*, ECtHR (no. 7511/13), Judgment, 24 July 2014.

¹⁴ UN Doc. A/CONF.183/C.1/WGPM/L.39.

Kingdom proposed a free-standing article that closely foreshadowed the current provision. It was approved by the working group without controversy¹⁵. Only one minor amendment was made to the U.K. proposal, which reflected the earlier U.S./French proposal, clarifying that the provision might apply to information provided by States as well as intergovernmental and international organizations.

B. Analysis and interpretation of elements

1. Requested States Parties

The provision relates only to requests to States Parties to the Statute, and does not apply to requests that may be made to States not party to the Statute, under article 87 para. 5. This is in large part due to the fact that the provision's objective was to avoid a conflict between the obligations a State Party might owe to a provider of information, and obligations owed by States Parties to the Court under articles 85 and 93 para. 1. The provision would, however, extend to a non-Party State that has lodged a declaration under article 12(3) accepting the exercise of jurisdiction by the Court, since rule 44 clarifies that 'the provisions of Part 9, and any rules thereunder concerning States Parties, shall apply'. The case law of the Court to date suggests that similar obligations would arise with respect to a State that has been placed by the Security Council under a Chapter VII obligation to cooperate fully with the Court, thereby placing the UN Member State so directed under equivalent cooperation obligations as that of States Parties.¹⁶

It is worthy of note that article 73 does not expressly govern the conduct of the Court, only of State Parties. It imposes an obligation on a State Party to seek the consent of the originator before disclosing documents or information provided to it in confidence. However, it does not restrict in any manner what the Court can request or receive. With respect to information from non-States Parties, therefore, the Court remains free to request and to accept such documents or information, should the non-State Parties decide to disclose information to the Court notwithstanding a pre-existing obligation of confidentiality owed to a third party. Article 73 does not, therefore, purport to protect the information as such, or the non-State Party originator's interest in its non-disclosure, but rather the relationship between a requested State Party and sources of information.¹⁷

2. Disclosure in confidence

Article 73 does not specify that the document or information covered by it need be confidential *per se*. Instead, it comes into play as a result of the subjective basis on which the information was provided by the originator, whatever the nature of the information. Alternative formulations, such as that proposed by Singapore during the diplomatic conference which suggested that the provision should apply to information obtained under an agreement to protect 'classified' information, garnered little support¹⁸. Nevertheless, there are significant limitations in the scope of the concept of 'in confidence', both with regard to the nature of the agreement and the legitimacy of the confidentiality under the Rome Statute and other international law.

¹⁵ UN Doc. A/CONF.183/C.1/WGPM/L.49.

¹⁶ See Articles 25 and 103, UN Charter. See ICC Pre-Trial Chambers have pursued e.g. non-cooperation findings against the Sudan and Libya under article 87(7), rather than article 87(5), based on the finding that the referral of a situation by the Security Council triggers the application of the entire legal framework of the ICC, including by implication any rules attendant on States Parties; Rastan, art 72, this edition, at mn. 42.

¹⁷ Although the Court could not find such third States in violation of a cooperation duty towards the ICC, the Court could chose to bring the matter of non-cooperation by third States to the attention of the Assembly of States Parties or the Security Council as an issue that has impeded its work, for example in the context of reports to either body by the President or the Prosecutor; *ibid*.

¹⁸ UN Doc. A/CONF. 183/C.1/WGPM/L.49.

First of all, concept of ‘in confidence’ under article 73 cannot be broader than the terms of the agreement between the originator and the requested State Party. Second, if either the originator or the requested State Party would provide the information supplied in confidence to a national court or administrative body or to another international body, then the concept of ‘in confidence’ cannot be more restrictive when the information is requested by the Court.

- 10 Third, the originator cannot use the concept of ‘in confidence’ for an illegitimate purpose, such as to protect evidence of crimes under international law committed by its own nationals. On a narrow reading, the application of article 73 is unaffected by the apparent need for or legitimacy of imposing the confidentiality requirement in the first place. Under such a restrictive reading, *vis-à-vis* an originator that is not a State Party, no matter how ill-founded or non-existent its reason for imposing the confidentiality requirement might appear to the Court, or to the requested State Party in possession of the document or information, the condition of confidentiality could not be set aside. However, such a narrow interpretation of the confidentiality agreement would not be consistent with the object and purpose of the Statute¹⁹. First of all, State Parties are bound by the general obligations to act in good faith²⁰ and to cooperate with the Court, as well as the specific obligation to consent to disclosure or, in the case of information covered by article 72, to resolve the matter with the Court. As such, if a State Party sought to prevent disclosure, it would have to convince the Court of the appropriateness of confidentiality, in accordance with the Statute²¹. The moment that a State Party should have known that the confidentiality agreement was designed to or in fact concealed genocide, crimes against humanity or war crimes committed by nationals of the originating non-State Party or of any other State, it could no longer agree to accept such information in the future in confidence in good faith and, if it did, it would breach its obligations under the Statute (indeed, the confidentiality agreement itself might be part of a crime) and the most effective remedy for that breach, particularly if it was unable or unwilling to prosecute the person suspected of these crimes itself or extradite the person to a state able and willing to exercise universal jurisdiction, would be to provide the information to the Court. In this context, the United Nations Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, in a passage recalled by the ECtHR in the *El Masri* case, has stated that ‘[t]he blanket invocation of State secrets privilege with reference to complete policies, such as the United States secret detention, interrogation and rendition programme or third-party intelligence (under the policy of ‘originator control’ ...) prevents effective investigation and renders the right to a remedy illusory.’²²
- 11 As a matter of practice, it will fall to the requested State initially to assess whether or not the information was in fact provided to it in confidence and whether it was under an ‘obligation of confidentiality’. If dispute should arise, the determination as to whether such an obligation existed – an issue that relates directly to the judicial functions of the Court – must ultimately be a matter for the Court²³.

¹⁹ The object and purpose of the Rome Statute are reflected in the Preamble, where the States Parties affirm ‘that the most serious crimes of concern to the international community as a whole must not go unpunished and that their effective prosecution must be ensured by taking measures at the national level and by enhancing international cooperation’, determine ‘to put an end to impunity for the perpetrators of these crimes and thus to contribute to the prevention of such crimes’ and recall ‘that it is the duty of every State to exercise its criminal jurisdiction over those responsible for international crimes’.

²⁰ A fundamental rule of international law, as recognized in article 26 (*pacta sunt servanda*), is that ‘[e]very treaty in force is binding upon the parties to it and must be performed by them in good faith’.

²¹ In assessing their obligations under article 73, States Parties, like the Court, will have to take into account article 21 (Applicable law), particularly paragraph 3.

²² *Report of the United Nations Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism*, A/HRC/10/3, 4 February 2009, cited in *El-Masri v Macedonia*, ECtHR (no. 39630/09), Judgment, 13 December 2012, at para. 103.

²³ Under article 119 para. 1, ‘[a]ny dispute concerning the judicial functions of the Court shall be settled by the decision of the Court’.

Fourth, the receipt by a State of information of documents 'in confidence' should be distinguished from the broader notion of 'originator consent' or the 'originator principle', whereby a State may need to first obtain the consent of a third State for the onward transmission of material obtained with its assistance without any condition of confidentiality having necessarily existed.²⁴ Nonetheless, information shared between States will typically be subject to express limitations as to its security classification and handling procedure.

3. States, intergovernmental and international organizations

In its earlier incarnation, as draft article 71*bis* presented by the United Kingdom²⁵, this provision provided no specification as to the nature of the 'originator'. Such a provision could, therefore, have covered all of the entities set out in article 73, plus individuals. The final version mirrors the earlier U.S./French proposal referred to above which did apply specifically to information provided by States, intergovernmental and international organizations. While the greatest concern that article 73 sought to address related to information sharing between States, one of whom is a non-State Party, concern was also expressed in the course of negotiations as to information provided by international organizations that may possess information the confidentiality of which is essential to its ability to continue to fulfil its function. Specific reference was made to the ICRC, for example. There is, however, no definition of the type of 'international organization' to which this article might apply, although it would appear to apply to any non-governmental organization (see mn. 2). In any event, the public interest privilege which they can assert with regard to certain confidential information is now partially protected by Rule 73 (see mn. 2).

Since adoption, article 73 has been largely replicated in article 20 of the Relationship Agreement between the International Criminal Court and the United Nations to govern requests concerning third party information provided in confidence to the Organisation by 'a State or an intergovernmental, international or non-governmental organization or an individual', thereby extending its specificity and scope.²⁶ Article 73 is also recalled with *mutatis mutandis* application in article 3 of the Cooperation Agreement with the EU.²⁷

4. States Parties as originators

Consistent with the other provisions of the Statute, in particular the obligation of States Parties to cooperate with the Court and to comply with requests for information in

²⁴ Such a formulation is used, e. g., in article 93(10)(b)(ii)(a) with regard to incoming requests for cooperation from States to the Court, in the light of the fact that the originating State will have provided the material to the Court for a specific purpose and therefore has an interest to control how such material may be made available to other entities.

²⁵ UN Doc. A/CONF.183/C.1/WGPM/L.70.

²⁶ Art. 20: 'If the United Nations is requested by the Court to provide information or documentation in its custody, possession or control which was disclosed to it in confidence by a State or an intergovernmental, international or non-governmental organization or an individual, the United Nations shall seek the consent of the originator to disclose that information or documentation or, where appropriate, will inform the Court that it may seek the consent of the originator for the United Nations to disclose that information or documentation. If the originator is a State Party to the Statute and the United Nations fails to obtain its consent to disclosure within a reasonable period of time, the United Nations shall inform the Court accordingly, and the issue of disclosure shall be resolved between the State Party concerned and the Court in accordance with the Statute. If the originator is not a State Party to the Statute and refuses to consent to disclosure, the United Nations shall inform the Court that it is unable to provide the requested information or documentation because of a pre-existing obligation of confidentiality to the originator'; *Negotiated Relationship Agreement between the International Criminal Court and the United Nations*, ICC-ASP/3/Res.1, entry into force 4 October 2004.

²⁷ Art. 3: '(1) This Agreement, including any agreements or arrangements concluded under Article 11, shall not apply to requests for information from the Court which relate to information, other than EU documents including EU classified information, originating from an individual Member State. In such circumstances, any request shall be made directly to the relevant Member State. (2) Article 73 of the Statute shall be applied, *mutatis mutandis*, to requests made by the Court to the EU under this Agreement'; *Agreement between the International Criminal Court and the European Union on Cooperation and Assistance*, ICC-PRES/01-01-06, entry into force 1 May 2006.

accordance with articles 86 and 93 respectively, an originating State Party is bound to provide the requisite consent, unless it invokes the terms of article 72. Should it refuse to consent, in violation of its obligations under the Statute as determined by the Court, the requested State Party could not then rely on this violation to withhold information or documents from the Court. The requested State Party must pass the information on to the Court, notwithstanding the pre-existing obligation of confidentiality, if so requested by the Court. It should be noted, therefore, that the condition of confidentiality does not ultimately prevail over the obligations to the Court. The Statute provides no absolute protection of pre-existing obligations of confidentiality, nor insulation against potential conflicts that may arise between States Parties where one of them seeks, inconsistently with the Statute, to withhold information or documents from the Court. What article 73 does ensure is that, where the originator State Party opposes the disclosure of the information to the Court, it has an opportunity to resolve the matter directly with the Court, in accordance with the Statute.

- 14 In setting forth the obligations of the originator State Party, article 73 distinguishes between documents or information subject to article 72 and all other documents or information. The only circumstance in which a State Party may refuse to consent to disclosure is where it invokes the article 72 procedure, on the basis that disclosure would prejudice its national security. In such circumstances the detailed provisions of article 72 take effect.

5. Non-States Parties refusing to consent

- 15 By contrast to the situation of an originator that is a State Party, the provision ensures that originators that are not States Parties retain ultimate control over the information they pass on to States Parties under condition of confidentiality. If they refuse to consent, the Court cannot oblige the requested State Party to disclose the information or document to it, subject to issues related to good faith (see *mn.* 10).
- 16 With regard to the requirement that the confidentiality be imposed by virtue of a ‘pre-existing’ obligation, the article does not specify what the obligation to the originator must pre-exist. In other words, must the obligation of confidentiality to the provider of information have pre-existed the State Party’s obligation toward the Court, or simply the request from the Court? The use of the term ‘pre-existing obligation’ might suggest the former: if the comparison is between the obligations owed to the Court and those ‘pre-existing’ obligations to the originator, the relevant time would be when the obligations were assumed, which *vis-à-vis* the Court would be upon ratification or accession.
- 17 Whatever the interpretation of ‘pre-existing’, it is clear from the reference to a document or information ‘disclosed to [a State Party] in confidence’ at the beginning of article 73 that the obligation of confidentiality must be assumed at the time when the originator discloses to the requested State and cannot be assumed subsequently. Article 73 excludes the possibility of agreements of ‘confidentiality’ being entered into after a request is made by the Court for the purpose of putting information beyond the Court’s grasp.

C. Additional remarks

- 18 Article 73 obliges States Parties to seek the consent of the originator. It does not provide that obtaining such consent is a pre-requisite either to passing on the information or document to the Court or to the Court’s use of it. If the originator no longer exists, for example, or it cannot or does not respond to the request for consent, article 73 does not impose an impediment to submitting the information or document to the Court, and the Court’s use of the material.

Similarly, there is no prohibition on the provision or use of material in circumstances where consent is unlawfully withheld, as noted above. States Parties should seek to avoid

some of the problems with article 73 by requiring that all States, particularly non-States Parties, intergovernmental organizations and international organizations agree when they provide information in confidence to waive that confidentiality whenever that information is requested by the Court, subject to any other provisions of the Statute, such as article 73, or the Rules, such as rule 73.

The article does not specifically address the situation where the request relates to documents or information that was provided to the requested State Party confidentially, but could also be obtained by that State Party by other means. However, consistent with the statutory obligation of State Parties towards the Court, and in line with the approach adopted in article 72, there would be no obligation to seek consent in circumstances where the same document or information was obtained by other means. Otherwise, confidentiality agreements could be used to obstruct or delay access to information or documents to which the Court would otherwise be able to obtain access, which is not the objective of article 73. 19

The applicability of article 73 was also raised in the context of negotiations on the crime of aggression, after doubt was expressed whether a requested State would still be bound by the provision where the State which had disclosed the confidential information was an aggressor State. The discussion noted that if the requested State had referred the situation, it would probably not have difficulties in disclosing third-party information – since the protection in article 73 aims to not disrupt relations between a requested State and a third State, the requested State would presumably be prepared to forego this. It was also observed that if the requested State was not a Party to the Statute, it would not be bound as such by article 73 and could choose how it responded to any ICC request. In the end, the informal inter-sessional meeting of the Special Working Group on the Crime of Aggression recalled that ‘the provisions on national security were the result of a delicate and difficult compromise and were best left unmodified’ and ‘agreed that there was no reason to look at these provisions again in light of the definition of crimes of aggression’.²⁸ 20

²⁸ ICC-ASP/4/32, Annex II, Special Working Group on the Crime of Aggression, Annex II.A, Informal inter-sessional meeting of the Special Working Group on the Crime of Aggression, held at the Liechtenstein Institute on Self-Determination, Woodrow Wilson School, Princeton University, New Jersey, United States, from 13 to 15 June 2005, paras.54–55, available at: http://crimeofaggression.info/documents//6/2005_Princeton.pdf.

Article 74

Requirements for the decision*

1. All the judges of the Trial Chamber shall be present at each stage of the trial and throughout their deliberations. The Presidency may, on a case-by-case basis, designate, as available, one or more alternate judges to be present at each stage of the trial and to replace a member of the Trial Chamber if that member is unable to continue attending.

2. The Trial Chamber's decision shall be based on its evaluation of the evidence and the entire proceedings. The decision shall not exceed the facts and circumstances described in the charges and any amendments to the charges. The Court may base its decision only on evidence submitted and discussed before it at the trial.

3. The judges shall attempt to achieve unanimity in their decision, failing which the decision shall be taken by a majority of the judges.

4. The deliberations of the Trial Chamber shall remain secret.

5. The decision shall be in writing and shall contain a full and reasoned statement of the Trial Chamber's findings on the evidence and conclusions. The Trial Chamber shall issue one decision. When there is no unanimity, the Trial Chamber's decision shall contain the views of the majority and the minority. The decision or a summary thereof shall be delivered in open court.

Literature: Beulke, *Strafprozessrecht* (Müller 12th edition 2012); Engisch, *Einführung in das juristische Denken* (Kohlhammer 10th edition 2005); Esser, R., *Auf dem Weg zu einem europäischen Strafverfahrensrecht* (De Gruyter 2002); Friman, Brady, Costi, Guariglia and Stuckenberg, 'Charges', in: Sluiter et al., *International Criminal Procedures*, (Oxford 2013), 381; Gosnell, Admissibility of Evidence, in: Khan, Buisman and Gosnell, *Principles of evidence in international criminal proceedings* (Oxford 2010) 375; Guerrero Palomares, S., *El principio acusatorio* (Thomson Reuters 2nd ed. 2009); Lozzi, G., *Lezioni di procedura penale* (Giappichelli 7th edition 2007); Maier, J. B.J., '¿Es la inmediación una condición de la condena penal?: un aspecto parcial de la lucha entre inquisición y composición', in: Jueces para la democracia (2004) 49, p.13–20; Nerlich, V. 'The Confirmation of Charges Procedure at the International Criminal Court, Advance or Failure?', (2012) 10 *JICJ* 1339; Peter Rieà, Die sogenannten Prozeßmaximen oder Prozeßgrundsätze, in: Löwe/Rosenberg, *StPO*, intro. (1999) 60; Schauer, F., *Formalism*, (1998) YaleLJ 509; Stahn, C. 'Modification of the legal characterization of facts in the ICC system: a portrayal of regulation 55', (2005), 16 *CLF* 1; Terrier, F., 'The Procedure before the Trial Chamber', in: A. Cassese et al. (eds.), *Rome Statute of the International Criminal Court* (OUP 2002), 1313; v. Weber, H., *Internationale Strafgerichtsbarkeit*, (F. Dümmler 1934).

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A. Introduction

I. Historical overview

Draft Statutes presented *before* the Second World War contain regulations to 'declare the hearing closed', when 'subject to the control of the Court, the case for the prosecution and defence is completed'; further they provided that such deliberations 'shall take place in private and remain secret'¹. For '[a]ll questions' a decision 'by a majority of the Judges present at the hearing' was demanded with the proviso, that '[i]n the case of equality, the Presiding Judge shall have a casting vote', article 42, 1926 Bellot Draft. With regard to the prerequisites for the judgment, article 43 demanded only that it 'shall state the reason on which it is based'. This Draft was revised and adopted by the 1926 ILA Vienna Conference and differentiated in a new article 35 in the sense that '[a]ll questions shall be decided by a majority of the Judges present at the hearing', but for 'the charge and the actual punishment ... a qualified majority of two-thirds of the Judges' was stipulated. With regard to the contents of the judgment it was added in article 36 that the reasons had to state also 'the law applicable', that, besides '[t]he judgment of the Court ... no other judgment shall be pronounced by any other Member of the Court' and that it 'shall be read in open Court'².

The AIDP Draft from the same year was with regard to the requirement for the decision on the same footing; however, it did not differentiate between a simple and a qualified two-third majority³. The same attitude was expressed in the 1937 League of Nation's Convention for the Creation of an International Criminal Court⁴.

Against this background the Nuremberg Charter appears much more detailed and attentive to practical needs. It provided, for instance, in article II for each of the members of the Tribunal to have a specific 'alternate' who in 'case of illness ... or his incapacity for some other reason ... shall take his place'. The reason behind this *personal assignment* of alternate judges was purely political: the four Allied powers each had one judge on the Tribunal and wanted to make sure that his incapacity would not change this composition of the Tribunal. Therefore, according to article III, each of the four Signatory States could replace 'its member of the Tribunal or *his* alternate for reasons of health or for other good reasons, except that no replacement may take place during a Trial, other than by an alternate' (emphasis added).

Article IV (c) demanded 'decisions by a majority vote', which was anyhow 3:1, but in addition 'that convictions and sentences shall only be imposed by affirmative votes of at least three members of the Tribunal'. This makes sense only because 'in case the votes are evenly

¹ Article 41 of the 1926 Bellot Draft, reprinted in: von Weber, *Internationale Strafgerichtsbarkeit* (1934) 136, 143.

² For the Vienna Draft see Weber, *Internationale Strafgerichtsbarkeit* (1934) 154.

³ For the AIDP Draft for a 'Projet de statut pour la création d'une Chambre criminelle au sein de la Cour permanente de Justice internationale' see Weber, *Internationale Strafgerichtsbarkeit* (1934) 168 *et seq.*

⁴ See articles 35–38, reprinted in: Bassiouni, *International Criminal Law, Enforcement*, iii (1987) 197.

divided, the vote of the President shall be decisive'; but this possibility was not applicable to convictions and sentences. The judgment 'shall give the reasons on which it is based', article XXVI, but no further details were prescribed in the Charter or the Rules.

- 3 The 1951 Draft *Code*, dealing with substantive international criminal law, did, along with later Draft *Codes* of the ILC, not propose any articles on the subject matter. However, the 1951 ILC Draft *Statute* contains articles 45 to 49, demanding a simple majority for the '[f]inal judgments and sentences of the Court ... of the judges participating in the trial' as well as for 'other decisions of the Court', mentioning in addition that 'the judgment shall state, in relation to each accused, the reasons upon which it is based' and that 'any judge shall be entitled to deliver a separate opinion'⁵.

The 1972 Bellagio-Wingspread Draft *Statute* proposed a two-thirds majority of votes for all questions at the trial under article 41, amounting to 4:2, and stated expressly in article 43 the right 'to deliver a separate opinion'⁶. The 1980 and 1984 ILA Drafts contain no new aspects⁷.

The Bassiouni Draft *Statute* 1987 offers in article (xx), 'Adjudication', a more detailed regulation, partly based on former Drafts as stated in the commentary to this article. It emphasizes *inter alia* that 'equal weight [should be given] to evidence and arguments presented by the Procurator and on behalf of the accused in accordance with the principle of "equality of arms" of the parties' (brackets added). Newly mentioned is also that '[t]he decisions of the Chambers shall be publicly announced orally, in summary or entirely, accompanied by written findings of fact and conclusions of law' and the setting of a deadline of '30 days from the date of pronouncement of the oral decision'⁸.

- 4 Article 23 of the Statute for the ICTY and its Rules correspond widely with the regulations in Nuremberg and the various Drafts presented since then. While rule 29 for the ICTY emphasizes the private and secret character of the deliberations, rule 87 states when the hearing shall be closed and that the majority of the Trial Chamber has to be 'satisfied that guilt has been proved beyond reasonable doubt'. Rule 98*ter* outlines the conditions and contents of judgments, permitting expressly under (C) 'separate or dissenting opinions' which have to be translated if necessary for the accused in a language which he understands, (D); because such separate opinion may contain valuable hints to decide upon reasons for and expectation of an Appeal.

The 1994 ILC Draft *Statute* concentrated all former articles in article 45. It clarifies in paragraph 1 that '[a]t least four members of the Trial Chamber must be present at each stage of the trial'. The commentary to this regulation explains that this number could be varied only 'by death or disability of one member'. It continues that '[e]very effort should be made (e.g. through the use of alternate judges under article 9 (6))' to ensure that the Court may not be blocked by a two-to-two-vote and provides in paragraph 3 that in the event of such an outcome the Chamber may 'order a retrial'. Deviating from previous Drafts, Article 45(5) established that 'it shall be the sole judgment issued'. The possibility of dissenting or separate

⁵ See articles 46, 47 and 48, 1951 Draft *Statute*, reprinted in: (1952) 1 *AJIL* 9 *et seq.*; in the 1953 Revised Draft *Statute* these regulations were repeated verbally in articles 45–47, see UN Doc. A/2654 (1954), reprinted in Bassiouni, *International Criminal Law, Enforcement*, iii (1987) 254 *et seq.*

⁶ See 1st and 2nd International Criminal Law Conferences, The establishment of an International Criminal Court (1975), 20 *et seq.*

⁷ See articles 39–42, Draft *Statute* for an International Criminal Court, ILA Belgrade Conference (1980), Third Interim Report, Appendix B, 19; articles 40–43 *Statute* for an International Criminal Court, ILA Paris Conference (1984), Sixth Interim Report, Appendix A1, 15.

⁸ See Bassiouni, *Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (1978), Annex, 231, and for the Commentary 231 and 232.

opinions was thereby rejected,⁹ even though the issue was expressly referred to during deliberations of the ILC.¹⁰

The Siracusa Draft reprinted the ILC's article 45 without any changes. However, after more deliberate consideration by the Committee of Experts the *Updated* Siracusa Draft added an article 45*bis* according to which '[t]he Prosecutor may within 30 days of a decision to acquit, petition the Trial Chamber for a rehearing of evidence concerning a miscarriage of justice'. This addition, however, did not seem desirable or justifiable, unless seen as a compensation for the reduction of the original Trial Chamber to '[a]t least four members' and in the event of the Chamber not using its power assigned by paragraph 3, to 'order a new trial'. In particular with regard to these aspects, however, it would have been necessary to include an equal right for the defence in cases where no appeal was admissible.

The Report on the Second Session of the Preparatory Committee 1996, Vol. I, did not comment on article 45 of the ILC Draft Statute 1994. However, by emphasizing that an odd number of judges would be preferable, the need for the last mentioned regulation became obsolete. Besides, it was proposed that:

'the Prosecutor should be present at all stages of the trial in the interests of due process and fair trial (the same judges should be present at all hearings when relevant evidence was given, for example). A temporary absence of a judge should result either in the continuation of the trial with the remaining judges or the suspension of the trial. In case of prolonged absence of a judge, replacement should take place'.

There was also a proposal related to the contents of the judgment, according to which they should be:

'as complete as possible, including the questions of the competence and admissibility, as well as reasons for the judgement. The view was also expressed that the Court should have power to convict the accused on the strength of evidence put forward of a crime different from that included in the indictment provided that the accused had an opportunity to defend himself or herself and that the punishment to be imposed would not be more severe than the punishment which may have been imposed under the original indictment'.

Dissenting or separate opinions were allowed, refusing the opinion that such a possibility 'would undermine the credibility and authority of the Court'¹¹. According to this approach the proposal contained in Vol. II of the Report on the Second Session of the Preparatory Committee amended or changed article 45 of the 1994 ILC Draft *Statute* leaving the final decision open for formal discussions in all directions. There was a new demand for separate reasons for each charge, the reference to detailed regulations to be provided in the Rules and that '[t]he judgement shall not exceed the facts and circumstances described in the indictment or in its amendment, if any'¹².

⁹ In line with Article 44 of the 1943 Draft Convention for the Creation of an International Criminal Court, setting out that '2. The decisions of the Court shall be by a majority of the judges sitting in the case, and the decisions shall be deemed to be the opinion of the Court as a whole. 3. Every judgment or order of the Court shall state the reasons therefore and be read at a public hearing by the Chairman. Only the reasons which carry the decision of the majority shall be included in the sentence, and no dissenting opinion shall be published or divulged in any way'; reprinted in Document-A/CN.4/7/Rev.1, *Historical Survey of the Question of International Criminal Jurisdiction – Memorandum submitted by the Secretary-General* (1949), page 97 *et seq.* <http://legal.un.org/ilc/documentation/english/a_cn4_7_rev1.pdf> accessed 18 February 2015.

¹⁰ It was pointed out that 'this was expressly allowed by article 23 (2) of the Statute of the International Tribunal for the Former Yugoslavia' and that 'these opinions would be important in the event of an appeal'; see document A/CN.4/SER.A/1994/Add.I (Part 2), Yearbook of the International Law Commission 1994, Volume II part two, ILC Draft Statute, commentary to article 45, p. 59 paras 3 and 5. <[http://legal.un.org/ilc/publications/yearbooks/Ybkvolumes\(e\)/ILC_1994_v2_p2_e.pdf](http://legal.un.org/ilc/publications/yearbooks/Ybkvolumes(e)/ILC_1994_v2_p2_e.pdf)> accessed 18 February 2015.

¹¹ See 1996 Preparatory Committee I, paras 290–293, p. 61, reprinted in: Bassiouni (ed.), *International Criminal Court Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 427.

¹² See 1996 Preparatory Committee II, pp. 222 *et seq.*, reprinted in: Bassiouni (ed.), *International Criminal Court Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 599 and 600.

- 6 The Fifth Session of the Preparatory Committee limited the subject matter to the Trial Chamber reference in footnote 36 that ‘[d]ecisions by the Pre-Trial Chamber ... and by the Appeals Chamber are dealt with elsewhere’ and that the present version ‘only deals with judgments’. Also new was a suggestion that the ‘evidence and the entire proceedings’ ought to be evaluated¹³.

The Zutphen Draft ‘does not constitute as such a new substantive proposal’ but merely served the purpose ‘to simplify the existing text and to show more clearly which are the various options’¹⁴. While the opinions of the Preparatory Committee only mentioned the presence of the allocated judges ‘at all stages of the trial’ later proposals clearly provided that all judges of the Trial Chamber have to be present also ‘throughout its deliberations’.

- 7 The *Consolidated Draft* kept the heading for what was then article 72 instead of 45, ‘Quorum and judgment’, and included only a few aspects presented in this Sixth and Final Session of the Preparatory Committee in April 1998, proposing in addition, for instance, that one of the judges could be ‘for a good cause ... unable to attend’¹⁵.
- 8 During the Rome Conference the whole scale of arguments and proposals were discussed and the value of most of them was not disputed. Nevertheless, in the interest of reaching a compromise over the adoption of the Statute, only the main issues were included in article 74 and some of the disputed ones left to be regulated by the then not yet adopted Rules.

II. General remarks

- 9 The heading of Article 74 reads ‘Requirements for the decision’. The Statute does not specify which decisions are covered by this provision. The indication that the decision shall be based on the ‘entire proceedings’ and on the ‘evidence submitted and discussed before [the Court] at the trial’ and that it shall contain a ‘full and reasoned statement of the Trial Chamber’s findings on the evidence and conclusions’ suggest that article 74 is applicable to the decision on the guilt or innocence of the accused. This interpretation is confirmed by the term used in the Spanish version of this provision ‘fallo’, which usually designates the judgment. Convictions following proceedings on admission of guilt, pursuant to article 65(2), are covered by article 74. It also includes acquittals entered as a result of successful ‘no case to answer’ motions,¹⁶ and thus these acquittals are appealable under article 81. It does not necessarily include the decision on the sentence given the explicit regulation of the sentencing proceedings in article 76 and the language of article 81(1) and (2), which separates for the purposes of an appeal the decision under ‘Article 74’ from ‘[a] sentence’. In addition to the decision on the merits of the guilt or innocence of the accused, some procedural decisions may also dispose of the trial proceedings with a degree of finality (i.e. decisions discontinuing or terminating the proceedings and decisions on requests for withdrawal of charges). In these scenarios, the judges may decide to adjust to any applicable requirements set out in article 74.

¹³ See Decisions Taken by the Preparatory Committee at its Session Held from 1 to 12 December 1997, UN Doc. A/AC.249/1997/L.9/Rev.1, article 45, pp. 42 and 43, reprinted in: Bassiouni (ed), *International Criminal Court Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 283, 284.

¹⁴ See Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13 (1998).

¹⁵ See Preparatory Committee (Consolidated) Draft, p. 138, reprinted in: Bassiouni (ed), *International Criminal Court Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 88.

¹⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-1334, Decision No. 5 on the Conduct of Trial Proceedings (Principles and Procedure on ‘No Case to Answer’ Motions), Trial Chamber V(A), 3 June 2014, para. 22. A decision granting a no case to answer motion and acquitting the accused reveals some specific features. In the evaluation of the evidence, the Chamber is required to take the prosecution evidence ‘at its highest’ and to ‘assume that the prosecution’s evidence was entitled to credence unless incapable of belief’ on any reasonable view. Issues which go to the strength of evidence rather than its existence, especially as regards exhaustive questions of credibility or reliability, are to be weighed in the final deliberations in light of the entirety of the evidence presented (see para. 24). These evidentiary principles will inform the deliberations preceding the acquittal decision.

The heading refers to ‘the decision’ and not to ‘the judgment’, unlike the counterpart provisions in the ICTY and ICTR Statutes.¹⁷ The latter expression has been reserved in the ICC framework to the decisions of the Appeals Chamber, under article 83. The underlying rationale of this denomination is unclear. Final decisions of the Appeals Chamber on the guilt or innocence of the accused may be sufficiently distinguished as ‘*final Judgement*’, as set out in article 84(1) and notably in article 24(2), which deals with circumstances of changes in the law applicable to a given case prior to a ‘*final Judgement*’. In practice, all article 74 decisions that have been handed down by the ICC thus far have been denominated ‘*Judgment*’.¹⁸

B. Analysis and interpretation of elements

I. Paragraph 1:

1. Presence of the judges at each stage of the trial

The Trial Chamber’s decision on the merits, on the guilt or innocence of the accused in relation to the charges brought by the prosecution and confirmed by the Pre-trial Chamber, is one the most important manifestations of the exercise of international jurisdiction over persons. Pursuant to Article 74(1), the decision shall be taken by judges that have been, all of them, present ‘at each stage of the trial and throughout their deliberations’. This safeguard tends to ensure that the trial judges possess the highest level of information and knowledge about the evidence submitted and discussed at trial and the procedural issues that have arisen during the different stages of the trial proceedings.

Article 74 requires that all judges participating in the judgment were present during ‘each stage of the trial’. The ‘[c]onfirmation of the charges before Trial’ pursuant to article 61 is not yet ‘the trial’. Different opinions have been expressed as to the procedural step which marks the ‘commencement of the trial’, ranging from the point in time when the Trial Chamber is constituted¹⁹, through the hearing where the charges are read to the accused according to article 64(8)(a)²⁰, to the commencement of the hearings on the merits.²¹ The notion ‘commencement of the trial’ is elusive and escapes a uniform definition, applicable to all the provisions of the Statute. Importantly, the judgment will be based on the evidence submitted and discussed before the judges at the trial. It is intended that those entrusted with the determination of the truth receive and perceive directly or immediately the information submitted in support of the relevant facts (immediacy principle). Hence, the decisive factor is the point in time when the judges begin their engagement with the evidence upon which they will build their *conviction intime* as to the guilt or innocence of the accused. Therefore, from the commencement of the evidentiary hearings, all judges have to be present when the Trial Chamber exercises its functions according to the Statute and the Rules.

International Trials are lengthy and there may be situations of unforeseen or insurmountable difficulties as a result of which a judge may be unable to be present at a hearing or a status

¹⁷ Articles 23 and 22, respectively.

¹⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012; *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-3-tENG, Judgment pursuant to article 74 of the Statute, Trial Chamber II, 18 December 2012; *Prosecutor v. Katanga*, ICC-01/04-01/07-3464, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 7 mars 2014.

¹⁹ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 June 2009, para. 38.

²⁰ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 June 2009, para. 40.

²¹ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-999, Décision fixant la date du procès (règle 132-1 du Règlement de procédure et de preuve), Trial Chamber II, 27 March 2009.

conference. In the *Katanga and Ngudjolo* case, Trial Chamber II decided not to conduct a hearing before a two judge bench in circumstances where one of the judges was unable to be physically present in Court.²² The hearing was scheduled to receive witness's evidence and the (expert) witness had not yet commenced his testimony.²³ Conversely, a two judge bench proceeded to conduct a hearing in the temporary absence of a judge in circumstances where another witness (a former child soldier) had already testified for six days and counsel was expected to complete his cross-examination on that same day.²⁴ The Presiding judge noted that the Chamber was confronted with exceptional circumstances; that the hearing would be recorded using audio and video equipment; and that a transcript would be provided, which would permit the absent judge to become familiar with the entirety of the proceedings conducted in her absence. The Chamber sought the approval of the parties and participants to sit as a two judge bench and upon agreement, the testimony proceeded and concluded before a two judge bench.²⁵ Concerns may be raised from the perspective that the absent judge would be unable to question the witness or otherwise intervene actively in the course of the evidentiary debate.²⁶ However, this reason alone is not persuasive for such prerogative is also not conferred upon alternate judges pursuant to Rule 39 and they are capable of participating in a valid verdict despite their lack of power to actively engage with the evidence, even potentially during the entire trial.²⁷

- 14 In the *Lubanga* case, the issue arose as to whether a two judge bench may validly conduct a status conference scheduled to discuss witnesses' protective measures, a typical trial preparatory issue. A two judge bench heard oral submissions, adjourned the hearing and invited written submissions to later decide that all three members of Trial Chamber I must be present for each hearing and status conference during the period following the confirmation of charges and leading up to the beginning of the trial, and thereafter during the trial and the Chamber's deliberations.²⁸ Therefore it held that 'any urgent issues that arise during

²² *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-89-ENG, Transcript of Trial Hearing, Trial Chamber II, 2 December 2009, p. 1. The witness was an expert witness who was located in The Hague. *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-90-ENG, Transcript of Trial Hearing, Trial Chamber II, 26 January 2010, p. 10.

²³ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-88-Red-ENG, Transcript of Trial Hearing, Trial Chamber II, 1 December 2009, p. 69.

²⁴ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-221-Red-ENG, Transcript of Trial Hearing, Trial Chamber II, 23 November 2010, p. 81-83. The witness in question had participated in the armed conflict and gave evidence about his experience as a child soldier and about the position of command of Germain Katanga. See *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-216-Red-ENG, Transcript of Trial Hearing, Trial Chamber II, 15 November 2010.

²⁵ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-T-222-Red2-ENG, Transcript of Trial Hearing, Trial Chamber II, 24 November 2010, p. 1-8. The evidence of the witness concluded the following day. Later in the session, the Prosecution sought to have the Chamber continue to receive the evidence of the witness as a deposition, which could be later incorporated as evidence into the record upon the return of the absent judge. The Chamber noted that the suggestion came rather late, and noted that the Chamber would continue its work within the framework of the decision issued earlier in the morning (p. 29-32).

²⁶ Notably, there has been a proposal from the ICC Working Group on Lesson Learnt to introduce a 'rule 140bis' providing that where a Trial Chamber judge is absent for illness or other unforeseen and urgent reasons, the remaining judges of the Chamber may continue hearing the case to complete a specific matter, provided that such continuation is in the interests of justice and the parties consent. Concerns were raised that this provision would infringe the 'principle of immediacy' for the absent judge would not be able to engage with the evidence, parties and participants in the proceedings or interact (question) the witness. Annex I: Report of the Study Group on Governance Cluster I in relation to amendment proposals to the Rules of Procedure and Evidence put forward by the Court, ICC-ASP/13/2828, November 2014, p. 14, para. 18. It was observed that proceedings in the courtroom are audio and video-recorded and that the recordings, as well as transcripts of testimony, would be made available to any judge who is temporarily absent. In addition, the evidence of witnesses can be received in a manner different than the physical location from the witness using video technology. This technology permits them to observe demeanor, body language and assess witness credibility.

²⁷ Other tribunals allow alternate Judges greater prerogatives, Rule 27(B) of the STL Rules sets out that: 'An alternate Judge may pose questions that are necessary to the alternate Judge's understanding of the trial or appeal'.

²⁸ *Prosecutor vs Lubanga*, ICC-01/04-01/06-1349, Decision on whether two judges alone may hold a hearing and Recommendations to the Presidency on whether an alternate judge should be assigned for the trial, Trial

the absence of a judge from the seat of the Court will be dealt with solely on the basis of written representations²⁹.

Later however, Rule 132 *bis* was adopted in 2012 to include the ‘Designation of a judge for the preparation of the trial’. The designated judge may hold status conferences and render orders and decisions, in consultation with the Trial Chamber, on preparatory issues related *inter alia* to disclosure, protective measures, victims’ participation, conditions of detention, etc. Central legal and factual issues in the case and those that significantly affect the rights of the accused or the substantive rights of victims cannot be decided upon by the designated judge. In order to maximize efficiency, more than one judge may be designated to divide the workload.³⁰ The judge adopts an analogous role to that of the single judge of the Pre-Trial Chamber, provided for in Article 39(2)(b)(iii), and in practice it has been denominated ‘Single Judge’.³¹ The designated judge may perform functions before or after the ‘commencement of the trial’. Thus, it may also render decisions for the purposes of any further hearing relevant to the sentence after the conviction of the accused, under Article 76, and certainly during the Reparations stage. By virtue of rule 149, the designation may also apply to Appeals Proceedings.³² During the negotiations of this amendment, a view was expressed that rule 132 *bis* was not consistent with article 39 (2)(b)(ii) and (iii) and that the preparatory work of the trial process involve issues that are as critical as other substantive issues of the trial process. However, it prevailed the opinion that Rule 132 *bis* merely sets out the precise details of one of the procedures that the Trial Chamber may implement in the exercise of its powers to adopt such procedures as are necessary to facilitate the fair and expeditious conduct of the proceedings under article 64(3)(a).³³

Frequently, witnesses will be heard by the use of video technology. Moreover, although regulating the presence of the ‘accused’, Rule 134 *bis* adopted in November 2013 suggests that the use of video technology is a valid means for an individual to be ‘present’ during the trial.³⁴ Depending on the circumstances, a judge who is not ‘physically’ in the courtroom may be present by the use of video technology. In addition, a physically present judge may be considered to have missed the evidence, and therefore to have been ‘absent’, if for some reason he or she is prevented from providing the necessary attention, as for instance if the judge has fallen asleep.³⁵ The judges are required to giving ‘full attention’ to the proceedings,

Chamber I, 22 May 2008, para. 15. The Chamber noted Article 39(2)(b)(ii), according to which the functions of the Trial Chamber shall be carried out by three judges and Article 74(1), pursuant to which all the judges of the Trial Chamber shall be present at each stage of the trial.

²⁹ *Prosecutor vs Thomas Lubanga*, ICC-01/04-01/06-1349, Decision on whether two judges alone may hold a hearing and Recommendations to the Presidency on whether an alternate judge should be assigned for the trial, Trial Chamber I, 22 May 2008, para. 15.

³⁰ Report of the Study Group on Governance on rule 132 *bis* of the Rules of Procedure and Evidence, ICC-ASP/11/411, November 2012, paras 14.

³¹ *Prosecutor v. Gbagbo*, ICC-02/11-01/11-700, Decision designating a Single Judge pursuant to Rule 132 *bis* of the Rules of Procedure and Evidence, Trial Chamber I, 23 October 2014.

³² Report of the Study Group on Governance on rule 132 *bis* of the Rules of Procedure and Evidence, ICC-ASP/11/41, 1 November 2012, para. 12.

³³ *Ibid*, paras 10 and 11.

³⁴ Rule 134 *bis*, as amended by resolution ICC-ASP/12/Res.7, dealing with the Presence through the use of video technology, sets out that (1). ‘An accused subject to a summons to appear may submit a written request to the Trial Chamber to be allowed to be present through the use of video technology during part or parts of his or her trial’. See also ICTY, *Prosecutor v. Delalić et al.*, IT-96-21-A, Appeals Judgement, 20 February 2001, para. 633.

³⁵ ICTY, *Prosecutor v. Delalić et al.*, IT-96-21-A, Appeals Judgement, 20 February 2001, para. 628: ‘The appellants have manifestly failed to establish [...] that [the] Judge [...] “was asleep during substantial portions of the trial”. The Extracts Tapes do, however, demonstrate a recurring pattern of behaviour where [the] Judge [...] appears not to have been fully conscious of the proceedings for short periods at a time. Such periods were usually of five to ten seconds only, but this pattern is repeated over extended periods of ten to fifteen minutes on a number of occasions. On very few occasions, this loss of attention lasted up to thirty seconds. On one occasion only, during the course of an excessively lengthy examination of a medical witness by counsel [...], the judge appeared to be asleep for approximately thirty minutes. On a different occasion, [another] Judge [...] leant over to touch [the] Judge [...] when his head had dropped. [The] Judge [...] can also be heard to be breathing very noisily at times, but such times include occasions where he is obviously very fully conscious of the proceedings’.

and they are under the obligation to seek medical assistance and, if necessary, withdraw from the case if they suffer from some condition which prevents them from providing such attention.³⁶

- 17 The sentence decision will have to be issued by the same judges that pronounced the conviction and were present during any additional hearing convened to receive evidence relevant to the sentence pursuant to Article 76(2). The Presidency of the Court confirmed this interpretation when deciding that the sentencing was a part of the trial for the purposes, set out in Article 36(10), of the extension of the judge's mandate to conclude any trial the hearing of which has already commenced before that Chamber.³⁷ Conversely, the reparations proceedings have not been considered to constitute a stage of the trial *stricto sensu* and thus they need not be addressed by the same Trial Chamber that issued the conviction and the sentence.³⁸
- 18 Attendance is required throughout the judges' deliberations. There is no reference in the Statute or the Rules as to the formalities or procedures to be followed for the purposes of the deliberations, except for the presence requirement, the secrecy of the deliberations and the need to strive at unanimity. Rule 142 states, that 'after the closing statements, the Trial Chamber shall retire to deliberate, in camera' and 'shall inform all those who participated in the proceedings of the date on which the Trial Chamber will pronounce its decision'. Usually, the deliberations occur by a combination of meetings, exchange of drafts and memoranda for written comments. Written voting, in-person conferencing and 'remote video or telephonic-conferencing' have also been considered valid means to conduct deliberations³⁹. A practical and collegial approach needs to be followed by the judges to enhance expeditiousness and favor unanimity. Meetings among two of the judges to discuss particular comments or issues are not prohibited and do not invalidate the decision, to the extent all the judges are generally involved throughout the deliberations of the Chamber.

2. Alternate judges

- 19 The drafting history of Article 74(1), second sentence, suggests that the underlying rationale for designating alternate judges is to ensure that the sudden inability of a member of the Trial Chamber to continue attending the trial does not prevent compliance with the 'principle of immediacy'.⁴⁰ The drafting history of Rule 39 tends to confirm this purpose.⁴¹ Proposals to admit the Presidency's designation of 'substitute judges' to act in cases where an alternate judge was not assigned were discussed during the negotiations,⁴² but were not accepted.
- 20 The designation of an alternate judge is merited on two basic factors, the availability of resources (judges) and the existence of an identifiable risk that a member of the bench may

³⁶ *Ibid*, para. 629.

³⁷ *Prosecutor v. Katanga*, ICC-01/04-01/07-3468-AnxI, Decision replacing two judges in Trial Chamber II, Presidency, 16 April 2014, para. 6.

³⁸ *Ibid*, para. 8. See also *Prosecutor v. Lubanga*, ICC-01/04-01/06-3129, Judgement on the appeals against the 'Decision establishing the principles and procedures to be applied to reparations' of 7 August 2012, Appeals Chamber, 3 March 2015, paras 233 to 236.

³⁹ SCSL, *Prosecutor v. Taylor*, SCSL-03-01-A, Appeals Judgment, 26 September 2013, para. 619.

⁴⁰ Preparatory Committee on the Establishment of an International Criminal Court, Rules of Procedure: Working Paper, submitted by Argentina, UN Doc. A/AC.249/1.6, 13 August 1996, rules 9 to 13.

⁴¹ Preparatory Commission for the International Criminal Court, Working Group on Rules of Procedure and Evidence, Proposal concerning Part 4, Section 2, of the Rules of Procedure and evidence: Inclusion of a new Rule 20 (F): Alternate and substitute Judges, submitted by Denmark, UN Doc. PCNICC/1999/WGRPE(4)/DP.3, 7 August 1999.

⁴² *Ibid*, paragraph 4: 'The present proposal, thus, provides for the possible designation of alternate judges, and for the appointment of substitute judges in case no alternate judge has been designated. In such cases, however, and in particular if presentation and examination of witnesses in Court has begun, there is obviously a risk of violation of the rights of the accused. To cover these situations, the proposal suggests that continuation of the trial after the beginning of the presentation of evidence can only be decided if the accused has given his or her consent'. <https://www.legal-tools.org/doc/26795>.

not be able to complete the trial.⁴³ The competent organ to assign an alternate judge is the Presidency of the Court. It is for the Presidency to conduct the case-by-case analysis on whether the conditions for the designation are met. This organ will have a better overview, compared to the relevant Chamber, as to the availability of judges. Regulation 16 of the Regulations of the Court clarifies that, when the Presidency designates alternate judges, it shall first take into account the availability of judges from the Trial Division and thereafter from the Pre-Trial Division. Although the responsibility rests with the Presidency, the Trial Chamber in charge of the case may receive submissions and recommend the Presidency to consider appointing an alternate judge.⁴⁴

Reading the first and the second sentences of Article 74(1) together it is unclear whether the alternate judges shall be present throughout the *deliberations*. The lack of clarity is however cured by Rule 39, which disposes that the alternate judge shall sit through all proceedings and deliberations of the case. This ensures that, although the judge shall not exercise any functions of the members of the Chamber hearing the case, he or she shall be put in a position to replace any member who becomes unavailable with, if at all, only minimal disruptions in the proceedings. The alternate judge needs to be enabled to participate in a valid verdict which means, critically, that the judge shall be present (immediacy) at the very least in all evidentiary hearings. That the alternate judge shall 'sit' through all proceedings and deliberations must be interpreted in accordance with the said underlying principle. The alternate judge is not allowed to formally interfere in the proceedings or influence the deliberations of the Trial Chamber, he is an '*observateur*'.⁴⁵ He serves as ('reserve') judge and not as a member of the Chamber. The substituted judge is replaced *permanently* for the rest of the trial and not just for a certain part of it. Alternate judges are not to be called upon in situations in which a judge is absent for a temporary period. The replaced judge would be unable 'to be present at each stage of the trial' and his position will be taken by the alternate judge.

If the *complete* decision already exists 'in writing' and a judge is merely 'unable to continue attending' during its delivery 'in open court', holding a repetition of the deliberations and preparing a decision that would reflect the views of an alternate judge would be overly formalistic and unnecessary. The same holds for situations where the decision lacks some final editing.

Pre-Trial Chambers need no alternate judges. The confirmation process is not a 'mini-trial' or 'trial before the trial'⁴⁶ and although the confirmation hearing is by its nature an 'evidentiary hearing'⁴⁷ the Pre-Trial Chamber can be recomposed even to the effect that the judges issuing the confirmation decision are not the same judges before which the confirmation process was conducted.⁴⁸

⁴³ *Prosecutor v. Lubanga*, ICC-01/04-01/06-1349, Decision on whether two judges alone may hold a hearing and Recommendations to the Presidency on whether an alternate judge should be assigned for the trial, Trial Chamber I, 22 May 2008, para. 17, requiring that: 'i) the Court has the resources for this purpose, particularly in terms of a judge who is available to attend the entirety of the trial; and ii) there is an identifiable risk that for reasons such as the length of the trial, or the personal circumstances of one or more of the judges, a member of the bench may not be able to complete the trial'. See also Terrier, F., in: A. Cassesse *et al.* (eds.), *Rome Statute of the International Criminal Court* (2002), 1313; Committee of the Whole, Working Group on Procedural Matters, A/CONF.183/C.1/WGPM/L.2/Add.5, 9 July 1998, page 2 footnote 1.

⁴⁴ *Prosecutor vs Lubanga*, ICC-01/04-01/06-1349, Decision on whether two judges alone may hold a hearing and Recommendations to the Presidency on whether an alternate judge should be assigned for the trial, Trial Chamber I, 22 May 2008, para. 23.

⁴⁵ Fernandez and Pacreau (Dir.), *Statut de Rome de la Cour Pénale Internationale, Commentaire article par article*, ii (2012), p. 1644.

⁴⁶ *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-717, Decision on the confirmation of charges, Pre-Trial Chamber I, 1 October 2008, para. 64; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 8 February 2010, para. 39.

⁴⁷ *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled 'Decision on the confirmation of charges', Appeals Chamber, 30 May 2012, para. 39.

⁴⁸ Indeed, the Pre-Trial Chamber conducted the confirmation hearing in the case of the Prosecutor vs Bemba from 12 to 15 January 2009; see *Prosecutor v. Bemba*, ICC-01/05-01/08-424, Decision Pursuant to Arti-

- 24 The Rules do not define the phrase ‘unable to continue attending’. Rule 38, dealing with ‘replacements’, mentions that a judge may be replaced for objective and justified reasons, which are *inter alia* resignation, accepted excuse, disqualification, removal from office and death.⁴⁹ The reasons underlying the judge’s inability are deliberately not defined in the Statute and the Rules and a flexible approach in this respect seems apposite. However, although the inability need not necessarily presuppose a *permanent* obstacle, it should be serious enough to justify losing the possibility for a later replacement in the event of a second judge becomes unable to continue. As a lesser measure, the Chamber may adjourn the hearing provided that, for instance, the judge should be absent for two weeks for medical reasons.⁵⁰

II. Paragraph 2: Basis for the decision

- 25 Article 74(2) spells out the procedural, evidentiary and factual parameters of the decision on the guilt or innocence of the accused. Accordingly, evidence that has not been submitted and discussed before the Court at the trial and evaluated by the Trial Chamber cannot properly be the basis for the judgment. Moreover, the Trial Chamber is not restricted to consider the trial proceedings but it is bound to evaluate the entire proceedings. Finally, the facts and circumstances described in the charges and any amendments to the charges shall not be exceeded. Failure to adjust to these parameters is a legitimate ground of appeal.

1. The Trial Chamber’s decision shall be based on its evaluation of the evidence and the entire proceedings

- 26 In relation to the evidence upon which the decision shall be based, Article 74(2) first and third sentences are sequentially interrelated. The judgment can only be based on evidence submitted and discussed before the Court at the trial and evaluated by the Trial Chamber. In addition, those pieces of evidence which have been ruled irrelevant or inadmissible shall not be considered by the Chamber, pursuant to Rule 64(3). Therefore, at ‘some point in the proceedings’ the Chamber is required to apply the criteria underlying the assessment of the admissibility of evidence.⁵¹ The main provisions, regulating the assessment of the relevance or admissibility of evidence, are reflected in articles 69(4) and (7). In any such determination, the relevance, probative value and the potential prejudice of each item of evidence shall be assessed.⁵² In addition, evidence obtained in violation of the Statute or internationally recognized human

cle 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009, para. 12. However, after the passing of one of the judges, the Presidency reconstituted the Chamber at a time between the Courtroom hearings and the decision on the confirmation of Charges; see *Prosecutor v. Bemba*, ICC-01/05-01/08-414, Decision reconstituting Pre-Trial Chamber II, Presidency, 29 April 2009.

⁴⁹ Rule 31 states, that ‘once removal from office has been pronounced, it shall take effect immediately’ and that ‘the person concerned shall cease to form part of the Court, including for unfinished cases in which he or she was taking part’. According to rule 37 sub-rule 2 ‘a judge ... shall endeavor to give notice of the date on which his or her resignation will take effect at least six months in advance’. In the meantime, the person concerned ‘shall make every effort to discharge his or her outstanding responsibilities’ before the resignation takes effect.

⁵⁰ The practice of the ICTY and the ICTR has shown that a suspension of up to one month is in most cases sufficient to overcome the need to replace one of the judges with an alternate judge; see Rules 15 (E) and (F) and the ICTY, *Prosecutor v. Blaskić*, IT-95-14, Order of the President for the assignment of a judge to the trial chamber, 29 Jan. 1999 as well as the ICTY *Prosecutor v. Miljković et al*, IT-95-9, Order of the President authorising a trial chamber to conduct a matter in the absence of one of its members, 23 Feb. 1999.

⁵¹ *Prosecutor v. Bemba*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, Appeals Chamber, 3 May 2011, para. 37.

⁵² *Ibid.*

rights is not admissible, under the conditions set out in Rule 69(7)(a) and (b).⁵³ Accordingly, the judgment is to be based only on evidence that has been (i) submitted; (ii) discussed; (iii) assessed on relevance, probative value and prejudice; and (iv) evaluated by the Trial Chamber.

Under normal circumstances, the ‘evaluation of evidence’ pursuant to article 74(2) takes place at the end of the trial,⁵⁴ during the deliberations and it is the basis for the decision on conviction or acquittal.⁵⁵ The Statute provides limited guidance as to the manner which evaluation shall be conducted. This guidance includes: (i) the presumption of innocence in article 66(1); (ii) the onus on the prosecution, in article 66(2); (iii) the threshold ‘beyond reasonable doubt’, in article 66(3); (iv) the non-reversal of the burden of proof or onus of rebuttal, pursuant to article 67(1)(i); (v) the rules of evidence in article 69; and (vi) inferences made in the absence of appropriate disclosure of information protected by reason of national security, pursuant to Article 72(7)(a)(3) and (b)(2).

The Rules of procedure and evidence also contain guidance for the evaluation of evidence (Rules 63 to 75). Importantly, Rule 63(2) establishes the principle of ‘free assessment of the evidence’. This emphasizes the fact-finding role of professional judges, weighing the totality of the evidence at the end of the Trial, followed by a reasoned decision whereby they reflect their evaluation.⁵⁶

The evidence may be introduced during the trial in oral, written and audiovisual form either during the oral evidence of witnesses or in the form of a bar table motion. As to the *witnesses’ evidence*, the rule is that it shall be provided orally, personally and in-court, giving effect to the principle of orality.⁵⁷ In exceptional (although not unusual) cases, video link evidence has been admitted and evaluated.⁵⁸ In the evaluation of the witnesses’ testimonies, in order to attach evidentiary weight to their evidence, an assessment of their ‘credibility’ and ‘reliability’ is required.⁵⁹ Importantly, contradictions between the oral evidence of a witness and his prior recorded testimony may be a legitimate part of the assessment of the Trial Chamber, to the extent the relevant portion of the prior statement is in evidence.⁶⁰ His within the discretionary powers of the Trial Chamber to choose which witness to believe, as long as it provides reasons as to why it finds one witness credible the other.⁶¹ Moreover, some accounts of one and the

⁵³ *Prosecutor v. Lubanga*, ICC-01/04-01/06-803-tEN, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, paras 70 to 90.

⁵⁴ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 207.

⁵⁵ *Ibid.*

⁵⁶ Creyer, Friman, Robinson and Wilmschurst, *An introduction to International Criminal Law and Procedure* (2010), p. 465.

⁵⁷ *Prosecutor v. Bemba*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission into evidence of materials contained in the prosecution’s list of evidence’, Appeals Chamber, 3 May 2011, para. 76.

⁵⁸ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 74.

⁵⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 57 and 239. As to the notions of ‘credibility’ and ‘reliability’, according to para. 239: ‘While the Statute and the Rules of Procedure and Evidence do not specifically refer to these concepts, they are part of the evaluation of evidence required of a Trial Chamber by article 74 (2) of the Statute. The Appeals Chamber notes that there is a strong link between the two concepts, as reflected in the jurisprudence of the ad hoc international criminal tribunals. This jurisprudence shows that, while credibility is generally understood as referring to whether a witness is testifying truthfully, the reliability of the facts testified to by the witness may be confirmed or put in doubt by other evidence or the surrounding circumstances. Thus, although a witness may be honest, and therefore credible, the evidence he or is the primary responsibility of the relevant Trial Chamber, which has heard all the evidences he gives may nonetheless be unreliable because, inter alia, it relates to facts that occurred a long time ago or due to the “vagaries of human perception” [footnotes omitted].’

⁶⁰ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 102.

⁶¹ *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-271-Corr, Judgment on the Prosecutor’s appeal against the decision of Trial Chamber II entitled ‘Judgment pursuant to article 74 of the Statute’, Appeals Chamber, 7 April 2015, para. 168.

same witness may be accepted while other aspects may be considered unreliable.⁶² As decided by the Appeals Chamber, although the evidence of a witness in relation to whose credibility the Trial Chamber has some reservations may be relied upon to the extent that it is corroborated by other reliable evidence, there may be witnesses whose credibility is impugned to such an extent that he or she cannot be relied upon even if other evidence appears to corroborate parts of the testimony.⁶³ Moreover, the credibility of a witness may be in part assessed by comparing its content with other evidence. However, a witness shall not be credible simply because other evidence appears to confirm the content of aspects of his or her testimony where there are other reasons for doubting the witness's credibility.⁶⁴

- 30 Relevant factors in the evaluation of the testimony of *expert witnesses* include: (i) the established competence of the particular witness in his or her field of expertise; (ii) the methodologies used; (iii) the extent to which the findings made were consistent with other evidence in the case; and (iv) the general reliability of the expert's evidence.⁶⁵ Whoever appointed the expert pursuant to regulation 44 of the Regulations of the Court, the scientific evidence may be considered objective.⁶⁶
- 31 Evidence other than in-court oral testimony of a witness may form part of the basis of the decision. These include written statements, documents and other material such as transcripts of interviews, videos, records of organisations, letters, photographs, maps, etc. The Statute accords a considerable degree of flexibility as regards the *documentary* evidence allowed, and the applicable admissibility criteria have been developed in the jurisprudence.⁶⁷ The chain of custody from the time of the document's creation until its introduction before the Chamber must be taken into account.⁶⁸ UN and NGO reports are not to be considered excluded *ab initio*;⁶⁹ neither hearsay.⁷⁰

⁶² *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 104; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 84.

⁶³ *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-271-Corr, Judgment on the Prosecutor's appeal against the decision of Trial Chamber II entitled 'Judgment pursuant to article 74 of the Statute', Appeals Chamber, 7 April 2015, para. 168.

⁶⁴ *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-271-Corr, Judgment on the Prosecutor's appeal against the decision of Trial Chamber II entitled 'Judgment pursuant to article 74 of the Statute', Appeals Chamber, 7 April 2015, para. 170.

⁶⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 112.

⁶⁶ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 94.

⁶⁷ *Prosecutor v. Katanga*, ICC-01/04-01/07-2635, Decision on the Prosecutor's Bar Table Motions, Trial Chamber II, 17 December 2010; *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 107 to 109.

⁶⁸ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 91.

⁶⁹ *Prosecutor v. Bemba*, ICC-01/05-01/08-2721, Decision on the admission into evidence of items deferred in the Chamber's 'Decision on the Prosecution's Application for Admission of Materials into Evidence Pursuant to Article 64(9) of the Rome Statute' (ICC-01/05-01/08-2299), Trial Chamber III, 27 June 2013.

⁷⁰ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 90; see also Gosnell, Admissibility of Evidence, in: Khan, Buisman and Gosnell, *Principles of evidence in international criminal proceedings* (2010) 375, 389. The Appeals Chamber confirmed that low probative value may be attributed to the evidence of a witness, if: (i) most of the testimony was hearsay, (ii) was not actually present in the relevant locations; (iii) provided very little detail, (iv) relates to a crucial point in the Prosecution's case; see *Prosecutor v. Ngudjolo* ICC-01/04-02/12-271-Corr, Judgment on the Prosecutor's appeal against the decision of Trial Chamber II entitled 'Judgment pursuant to article 74 of the Statute', Appeals Chamber, 7 April 2015, para. 204. In addition, it confirmed that the fact that evidence is hearsay does not necessarily deprive it of probative value, but does indicate that the weight or probative value afforded to it may be less, 'although even this will depend upon the infinitely variable circumstances which surround hearsay evidence' (para. 226).

As to *circumstantial* evidence, when there is only one reasonable conclusion to be drawn from particular facts based on the evidence, the fact-finders may properly conclude that it has been established beyond reasonable doubt.⁷¹

In instances where the *testimony of the accused* is in evidence, the Trial Chamber may rely on his testimony. It may evaluate that his evidence is credible in certain topics and insufficiently credible in relation to other topics, though dismissing it without any conclusion as to his guilt or innocence.⁷² Statements of the accused not provided under oath are not ‘evidence’ for the purposes of the Judgment – though they may be taken into account under Article 67(1)(h)⁷³ as part of the proceedings.

According to Rule 63(4), the Chamber shall evaluate the evidence without imposing a legal requirement of *corroboration*.⁷⁴ This means that *one piece of evidence standing alone* may be sufficient to prove a fact.⁷⁵

The responsibility for identifying specific pieces of evidence in support of their allegation may be placed on the parties and the participants.⁷⁶ However, in determining whether an allegation has been proved, the evaluation of the Trial Chamber is not restricted to the *evidence explicitly relied on by the parties and the participants* in their briefs. Evidence in the record, even if not referred to explicitly, could properly be evaluated by the fact-finders.⁷⁷

In the determination of the guilt or innocence of the accused, the standard of proof ‘beyond reasonable doubt’ is to be applied only to the facts constituting the elements of the crime and mode of liability of the accused as well as with respect to facts which are indispensable for the conviction.⁷⁸ In relation to the facts at issue, the decision must be based

⁷¹ *Prosecutor v. Al Bashir*, ICC-02/05-01/09-73, Judgment on the appeal of the Prosecutor against the ‘Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir’, Appeals Chamber, 3 February 2010, para. 33; *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 111; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 109.

⁷² *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 101 and 105; *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-3-tENG, Judgment pursuant to article 74 of the Statute, Trial Chamber II, 18 December 2012, para. 67.

⁷³ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 101. Statements of the accused not preceded by a solemn undertaking do not constitute ‘evidence’. In addition, the prosecution was not allowed to the accused based on a potential conflict with the accused’s right not to be compelled to testify or confess guilt and to remain silent pursuant to Article 67(1)(g) of the Statute. *Prosecutor v. Bemba*, ICC-01/05-01/08-2860, Decision on unsworn statement by the accused pursuant to Article 67(1)(h) of the Rome Statute, Trial Chamber III, 11 November 2013, para. 8; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, Pre-trial Chamber I, 8 February 2010, para. 53 to 55.

⁷⁴ In application of this principle, the Appeals Chamber found for instance that there is no strict legal requirement that the video excerpts had to be corroborated by other evidence in order for the Trial Chamber to be able to rely on them; *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 218.

⁷⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 110; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 110.

⁷⁶ The parties have been made aware that, if they failed to identify specific pieces of evidence in their final submissions, there is a very real risk that they will not be taken into consideration, see *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 95 and 96.

⁷⁷ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber II, 8 March 2014, para. 81.

⁷⁸ *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-3-tENG, Judgment pursuant to article 74 of the Statute, Trial Chamber II, 18 December 2012, para. 35. See also *Prosecutor v. Halilović*, IT-01-48-A, Appeal Judgment, 16 October 2007, para. 125; *Blagojević and Jokić*, IT-02-60-A, Appeal Judgement, 9 May 2007, para. 226; *Prosecutor v. Ntagerura et al.*, ICTR-99-46-A, Appeal Judgement, 7 July 2006, para. 174; *Kupreškić et al.* Appeal Judgement, para. 226. The ICC Appeals Chamber set out the most essential aspects of the “reasonable doubt” test, by reference to the ICTR Appeals Chamber in Rutaganda, as follows: The reasonable doubt standard in criminal law cannot consist in imaginary or frivolous doubt based on empathy or prejudice. It must be based on logic and common sense, and have a rational link to the evidence, lack of evidence or inconsistencies in the evidence; see *Prosecutor v. Ngudjolo*, No. ICC-01/04-02/12-271-Corr, Appeals Chamber, Judgment on the

on the Trial Chamber's *holistic evaluation and weighing of all the evidence taken together*.⁷⁹ It is recognized that the evaluation of evidence cannot proceed by a piecemeal approach.⁸⁰

- 37 Moreover, the Chamber is required to base its decision on the evaluation of the 'entire proceedings'. Proceedings taking place at stages other than the trial are not excluded from this evaluation. An overall view of the 'entire proceedings' may be more enlightening than the mere addition of single aspects, for instance, the appearance of the accused and his or her defense counsel during the whole trial or the interrelationship of evidence, given separately and perhaps during very different stages of the proceeding. Conclusions may be drawn from the change in strategies, attitude and behavior of the accused, a victim, counsel and the prosecution during the course of the trial.
- 38 There may be *facts* upon which the decision is based *requiring no evidence*. These include *facts of common knowledge* which, under article 69(6) of the Statute, the Chamber may take judicial notice of. In addition, in accordance with rule 69 of the Rules, the parties may enter *agreements* as to: (i) facts contained in the charges; (ii) contents of a document; (iii) the expected testimony of a witness; or (iv) other evidence is not contested.⁸¹ The Chamber may find such alleged facts as being proven or the evidence to be admissible.⁸² Moreover, the Chamber may draw conclusions from a *judicial site visit* to conduct, for instance, verifications *in situ* with a view to understanding the context and topography of locations involved. Any such findings may be taken into account in the Chamber's evaluation.⁸³

Prosecutor's appeal against the decision of Trial Chamber II entitled "Judgment pursuant to article 74 of the Statute", 7 April 2015, para 109.

⁷⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 22, referring to the ICTY jurisprudence that: 'It is certainly within the discretion of the Trial Chamber to evaluate any inconsistencies, to consider whether the evidence taken as a whole is reliable and credible and to accept or reject the "fundamental features" of the evidence'; *Prosecutor v. Kupreškić et al.*, IT-95-16-A, Appeal Judgment, 23 October 2001, para. 31.

⁸⁰ *Prosecutor v. Halilović*, IT-01-48-A, Appeal Judgment, 16 October 2007, para. 125 quoting the *Prosecutor v. Ntagerura et al.*, ICTR-99-46-A, Appeal Judgment, 7 July 2006, para. 174: 'At the first stage, the Trial Chamber has to assess the credibility of the relevant evidence presented. This cannot be undertaken by a piecemeal approach. Individual items of the evidence, such as the testimony of different witnesses, or documents admitted into evidence, have to be analysed in the light of the entire body of evidence adduced. Thus, even if there are some doubts as to the reliability of the testimony of a certain witness, that testimony may be corroborated by other pieces of evidence leading the Trial Chamber to conclude that the witness is credible. Or, on the other hand, a seemingly convincing testimony may be called into question by other evidence which shows that evidence to lack credibility. – Only after the analysis of all the relevant evidence, can the Trial Chamber determine whether the evidence upon which the Prosecution relies should be accepted as establishing the existence of the facts alleged, notwithstanding the evidence upon which the Defence relies. At this fact-finding stage, the standard of proof beyond a reasonable doubt is applied to establish the facts forming the elements of the crime or the form of responsibility alleged against the accused, as well as with respect to the facts which are indispensable for entering a conviction. – At the final stage, the Trial Chamber has to decide whether all of the constitutive elements of the crime and the form of responsibility alleged against the accused have been proven. Even if some of the material facts pleaded in the indictment are not established beyond reasonable doubt, a Chamber might enter a conviction provided that having applied the law to those material facts it accepted beyond reasonable doubt, all the elements of the crime charged and of the mode of responsibility are established by those facts'.

⁸¹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 245. The written statements would not have fallen under Rule 68.

⁸² See the *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 73, for agreed facts considered 'established'; and *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 245, for agreed written statements considered not credible. See also the *Prosecutor v. Katanga & Ngudjolo*, ICC-01/04-01/07-2681, Decision on Agreements as to Evidence, Trial Chamber II, 3 February 2011; *Prosecutor v. Banda & Jerbo*, ICC-02/05-03/09-227, Public Decision on the Joint Submission regarding the contested issues and the agreed facts, Trial Chamber IV, 28 September 2011.

⁸³ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 108.

2. The decision shall not exceed the facts and circumstances described in the charges and any amendments to the charges

a) **Function.** The trial can only be fair if the accused had a sufficient opportunity to exercise his right to defence. He will not be able to defend himself if he is not properly and timely informed about the allegations against him. Therefore, the accused has the right to know, through a clear, detailed and precise description, all the information of the facts in order to fully exercise his right and prove his version of the facts,⁸⁴ a right that is essential for the effective exercise of the right to defence.⁸⁵ This protection would not be authentic if the facts supporting the allegations could be exceeded in the decision; and this in turn calls for ‘correlation’ between the charges and the judgment.⁸⁶

According to international human rights instruments, accused persons have the right to be informed of the charges against them, and Article 67 incorporates this right by providing:

‘Rights of the accused 1. In the determination of any charge, the accused shall be entitled to a public hearing, having regard to the provisions of this Statute, to a fair hearing conducted impartially, and to the following minimum guarantees, in full equality: (a) To be informed promptly and in detail of the nature, cause and content of the charge, in a language which the accused fully understands and speaks.’

The right to be informed of the ‘nature’ and ‘cause’ is spelled out in the article 14(3)(a) of the International Covenant on Civil and Political Rights⁸⁷ and article 6(3)(a) European Convention on Human Rights.⁸⁸ The ‘cause’ of a charge has been defined to encompass ‘the acts [the accused] is alleged to have committed and on which the accusation is based’. In turn, the ‘nature’ is the legal characterisation of those alleged acts.⁸⁹ The information does not ‘necessarily [have to set out] the evidence on which the charge is based’.⁹⁰

During the preparatory works of the Rome Statute, it seemed uncontroversial that the facts and circumstances described in the charges and any amendments to the charges, despite all the specific issues arising in practice, provided the outer limit of the judgment. This consensus however was not shared with respect to the legal characterization of the facts. In this arena, a clash of legal cultures took place with delegations from romano-germanic systems advocating for the incorporation of the *jura novit curia* principle, resisted by

⁸⁴ Inter-American Court of Human Rights (‘IACtHR’) *Barreto Leiva v. Venezuela*, Judgment of 17 November 2009, para. 28. In the relevant part, article 8 of the American Convention on Human Rights ‘Pact of San José, Costa Rica’, reads: Right to a Fair Trial (2). During the proceedings, every person is entitled, with full equality, to the following minimum guarantees: (b). prior notification in detail to the accused of the charges against him.

⁸⁵ IACHR: *López Álvarez V. Honduras*, C No. 141, Judgment on Merits, Reparations and Costs, 1 February 2006, para. 149; *Palamara Iribarne v. Chile*, C No. 135, Judgment on Merits, Reparations and Costs, 22 November 2005, para. 225; *Acosta Calderón v. Ecuador*, C No. 129, Judgment on Merits, Reparations and Costs, 24 June 2005, para. 118; *Tibi v. Ecuador*, C No. 114, Judgment on Preliminary Objections, Merits, Reparations and Costs, 7 September 2004, para. 187.

⁸⁶ See about the necessary ‘correlation’ between the accusation and the judgment, Guerrero Palomares, *El principio acusatorio* (2009) p. 71; Armenta Deu, *Lecciones de derecho procesal penal* (2004), p. 56; Cordero, *Procedura Penale* (2006), p. 985; Lozzi, *Lezioni di procedura penale* (2007), p. 553 *et seq.*; Maier, J.B.J., *Derecho Procesal Penal, Fundamentos*, i (1996) p. 568 *et seq.*

⁸⁷ Pursuant to article 14(3). In the determination of any criminal charge against him, everyone shall be entitled to the following minimum guarantees, in full equality: (a) To be informed promptly and in detail in a language which he understands of the nature and cause of the charge against him.

⁸⁸ It has been reflected in similar terms in Articles 21 (4) of the ICTY Statute; 20 (4) of the ICTR Statute; 17 (4) (a) of the SCSL Statute, 16(4)(a) of the STL Statute.

⁸⁹ ECtHR, *LH. and others v. Austria*, Judgment of 20 April 2006, para. 30; *Ayçoban and others v. Turkey*, Judgment of 20 October 2005, para. 21; *Sipavilius v. Lithuania*, Judgment of 21 February 2002, para. 27; *Sadak and others v. Turkey*, Judgment of 17 July 2001, para. 48; *Dallos v. Hungary*, Judgment of 1 March 2001, para. 47; *Pélissier and Sassi v. France*, Judgment of 25 March 1999, para. 51; ECommHR, *X v Belgium*, No. 7628/76, Decision of 9 May 1977; *Sacramati v. Italy*, No. 23369/94, Decision of 6 September 1995.

⁹⁰ See ECommHR, *X v Belgium*, No. 7628/76, Decision of 9 May 1977; *Sacramati v. Italy*, No. 23369/94, Decision of 6 September 1995.

delegations from common law legal systems.⁹¹ Neither the Statute nor the Rules of Procedure and Evidence have addressed this particular issue. Instead, a Regulation was adopted in 2004, concerning the ‘Authority of the Chamber to modify the legal characterization of facts’, under Regulation 55 of the Regulations of the Court.⁹²

- 43 **b) Is a ‘factual allegation’ part of the facts and circumstances described in the charges?** As set out above, the ICTY, ICTR, SCSL and STL provide for the defence right to be informed promptly and in detail of the ‘nature’ and ‘cause’ of the charges.⁹³ The Prosecutor is under an obligation to prepare an indictment containing ‘a concise statement of the facts’ and the crime or crimes with which the accused is charged.⁹⁴ The pleadings of an indictment will be sufficiently particular when the ‘material facts’ are concisely set out with enough detail to inform the accused clearly of the nature and cause of the charges against him, such that he is in a position to prepare a defence.⁹⁵
- 44 In the Rome Statute framework, the right to be informed of the charges is regulated in Article 67(1)(a) in a manner virtually identical to the Statutes spelled out above, save for the explicit reference to the ‘Content’ of the Charge. The facts and circumstances (cause) and their legal characterization (nature) compose the charges (content).⁹⁶ Reference to the ‘statement of facts’ can be found in Regulation 52(b) of the Regulations, which describes what shall be included in the Document Containing the Charges to be presented before the Pre-Trial Chamber. This Regulation requires *inter alia* ‘a statement of the facts, including the time and place of the alleged crimes, which provides a sufficient legal and factual basis to bring the person or persons to trial, including relevant facts for the exercise of jurisdiction by the Court’. Regulation 52(c) makes reference to the ‘legal element’. It describes this element as the ‘legal characterisation of the facts to accord both with the crimes under articles 6, 7 or 8 and the precise form of participation under articles 25 and 28’.
- 45 Given this legal framework, it is useful to analyze the case law of the Tribunals to explore the principles which have emerged in discussions as to the sufficiency of the statement of facts and the ‘material facts’ to be reflected therein. Bearing in mind that providing an exhaustive overview of such principles is not possible, it follows from the jurisprudence that: the Prosecution must plead the material facts underpinning the charges with enough detail to inform an accused person clearly of the nature and cause of the charges to allow them to prepare a defence;⁹⁷ there is a clear difference between the material facts, which must be

⁹¹ Friman, Bradym Costi, Guariglia and Stuckenberg, *Charges*, in: Sluiter, Friman, Linton, Vasiliev, Zappala, *International Criminal Procedures, Principles and Rules*, (Oxford 2003), p. 381, 431, 467 *et seq.*

⁹² In the jurisprudence of the ICC Appeals Chamber, there are two important decisions setting out the parameters for the use of Regulation 55. These are: *Prosecutor v. Lubanga*, ICC-01/04-01/06-2205, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled ‘Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change’, Appeals Chamber, 16 December 2009 and *Prosecution v. Katanga*, ICC-01/04-01/07-3363, Judgment on the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 21 November 2012 entitled ‘Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons’, Appeals Chamber, 27 March 2013. See also Carsten Stahn, *CLF* (2005), 2 *et seq.*

⁹³ See above footnote 85.

⁹⁴ See for instance Article 18(4) of the ICTY Statute.

⁹⁵ *Prosecutor v. Kupreskić*, IT-95-16-A, Appeal Judgement, 23 October 2001, para. 88.

⁹⁶ In relation to the notion of ‘charge’, see *Prosecutor v. Lubanga*, Trial Chamber I, Judgment pursuant to Article 74 of the Statute, 30 March 2012, ICC-01/04-01/06-2842, para. 2; *Prosecutor v. Katanga*, Trial Chamber II, Jugement rendu en application de l’article 74 du Statut, ICC-01/04-01/07-3436, 18 March 2014, paras 1485 ‘From article 74(2) of the Statute and regulation 52 of the Regulations of the Court taken together, a ‘charge’ must be understood as: a statement of the facts and circumstances including the time and place of the alleged crimes, given that the term ‘fact’ denotes, as aforementioned, factual allegations underpinning each of the legal elements of the crime charged; and a legal characterisation of the facts, which must accord both with the crimes under articles 6, 7 or 8 of the Statute and the precise form of participation therein under articles 25 and 28 of the Statute’.

⁹⁷ ICTY, *Prosecutor v. Furundžija*, IT-95-17/1-A, Judgement, 21 July 2000, paras 61, 147; *Prosecutor v. Kupreskić*, IT-95-16-A, Judgement, 23 October 2001, para. 88; *Prosecutor v. Blaškić*, IT-95-14-A, Judgement,

pleaded, and the evidence proffered to prove them;⁹⁸ the Prosecution is not required to plead the evidence intended to prove the pleaded material facts;⁹⁹ it would be unworkable for an indictment to contain all the evidence the Prosecutor proposes to introduce at the trial;¹⁰⁰ an indictment must be considered as a whole, and select paragraphs should be read in context with the entire document;¹⁰¹ the materiality of a particular fact cannot be decided in the abstract and depends on the nature of the Prosecution's case;¹⁰² the alleged criminal conduct is decisive in determining the degree of specificity required in the indictment;¹⁰³ regarding the identity of perpetrators for whose acts an accused is charged, but without being charged with personally committing the crimes, it is sufficient to identify such perpetrators by category or group in relation to a particular crime site;¹⁰⁴ a date may be considered to be a material fact if it is necessary in order to inform a defendant clearly of the charges so that he may prepare his defence;¹⁰⁵ a reasonable range of dates may be pleaded where precise dates cannot be specified as to when the alleged criminal conduct occurred.¹⁰⁶

The ICC jurisprudence has reflected some of these principles. According to the jurisprudence of the Appeals Chamber, it is for the prosecution to plead the facts relevant to establishing the legal elements.¹⁰⁷ The facts must be identified with sufficient clarity and detail in the confirmation process, meeting the standard in article 67(1)(a) of the Statute. The term 'facts' refers to the 'factual allegations' which support each of the legal elements of the crime charged. These factual allegations must be distinguished from the evidence presented in support a charge as well as from background or other information that does not support the legal elements of the crime charged.¹⁰⁸

29 July 2004, para. 209; *Prosecutor v. Stakić*, IT-97-24-A, Judgement, 22 March 2006, para. 116; *Prosecutor v. Simić*, IT-95-9-A, Judgement, 28 November 2006, para. 20; see also, *Ntabakuze v. The Prosecutor*, ICTR-98-41A-A, Judgement, 8 May 2012, para. 30; STL, *Prosecutor v. Ayyas et al*, Decision on alleged defects in the form of the amended indictment of 21 June 2013, 13 September 2013, STL-11-01/PT/TC, para. 17.

⁹⁸ *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, 29 July 2004, para. 210; *Prosecutor v. Stakić*, IT-97-24-A, Judgement, 22 March 2006, para. 116.

⁹⁹ *Prosecutor v. Furundžija*, IT-95-17/1-A, Judgement, 21 July 2000, paras 61, 147, 153; ICTR, *The Prosecutor v. Ntagerura*, ICTR-99-46-A, Judgement, 7 July 2006, para. 21; *Prosecutor v. Simić*, IT-95-9-A, Judgement, 28 November 2006, para. 20; *The Prosecutor v. Uwinkindi*, ICTR- 01-75-AR72 (c), Decision on Defence Appeal Against the Decision Denying Motion Alleging Defects in the Indictment, 16 November 2011, para. 4.

¹⁰⁰ *Prosecutor v. Furundžija*, IT-95-17/1-A, Judgement, 21 July 2000, para. 153.

¹⁰¹ *Prosecutor v. Rutaganda*, ICTR-96-3-A, Judgement, 26 May 2003, para. 304; *Prosecutor v. Gacumbitsi*, ICTR-2001-64-A, Judgement, 7 July 2006, para. 123; *Prosecutor v. Seromba*, ICTR-2001-66-A, Judgement, 12 March 2008, para. 27.

¹⁰² *Prosecutor v. Kupreškić*, IT-95-16-A, Judgement, 23 October 2001, para. 89; *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, 29 July 2004, para. 210.

¹⁰³ *Ibid.*

¹⁰⁴ *Prosecutor v. Krnojelac*, IT-97-25-PT, Decision on the Defence Preliminary Motion on the Form of the Indictment, 24 February 1999, para. 46; *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, 29 July 2004, para. 218; *Prosecutor v. Simba*, ICTR-01-76-A, Judgement, 27 November 2007, paras 71–72; *Prosecutor v. Renzaho*, ICTR-97-31-A, Judgement, 1 April 2011, para. 64.

¹⁰⁵ *Prosecutor v. Ndindabahizi*, ICTR- 01-71-A, Judgement, 16 January 2007, para. 19.

¹⁰⁶ *Prosecutor v. Brđanin and Talić*, IT-99-36-PT, Decision on Objection by Momir Talić to the Form of the Amended Indictment, 20 February 2001, para. 22; *Prosecutor v. Ndindabahizi*, ICTR- 01-71-A, Judgement, 16 January 2007, para. 19–20.

¹⁰⁷ *Prosecutor v. Gbagbo*, ICC-02/11-01/11-572, Appeals Chamber, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 3 June 2013 entitled 'Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute', 16 December 2013, para. 47.

¹⁰⁸ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2205, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled 'Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change', Appeals Chamber, 16 December 2009, fn. 163. There was a suggestion by the Appeals Chamber that the notion of 'facts and circumstances described in the charges' as a whole may be 'narrowly or broadly understood', *Prosecution v. Katanga*, ICC-01/04-01/07-3363, Judgment on the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 21 November 2012 entitled 'Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons', Appeals Chamber, 27 March 2013, para. 50; The Appeals Chamber also indicated that the Prosecutor's investigation may be continued beyond the confirmation hearing; *Prosecutor v. Lubanga*, ICC-01/04-01/06-568, Judgment on the Prosecutor's appeal against the decision

- 47 By reference to the jurisprudence of the *ad hoc* tribunals, it has been accepted that different levels of specificity are required of the charges, depending on the form of individual criminal responsibility charged and the nature of the alleged criminal conduct charged.¹⁰⁹ If the accused is proximate to the events, as in cases of direct perpetration, the identity of the victim, the place, date and description of the events may be material facts and the Prosecution must to set out this detail ‘with the greatest precision’.¹¹⁰ In cases of accessorial liability, the Prosecution is required to identify the ‘particular acts’ or ‘the particular course of conduct’. In cases of co-perpetration, the accused must be provided with detailed information regarding: (i) the alleged conduct that gives rise to criminal responsibility, including the contours of the common plan and its implementation as well as the accused’s contribution; (ii) the related mental element; and (iii) the identities of any alleged co-perpetrators. The underlying criminal acts form an integral part of the charges, and sufficiently detailed information must be provided in this respect. The Prosecutor must provide details as to the date and location of the underlying acts and identify the alleged victims *to the greatest degree of specificity possible in the circumstances*.¹¹¹
- 48 c) **Where are the facts and circumstances described in the charges to be found?** The facts and circumstances are to be found in the decision on the confirmation of the charges. This decision defines the factual parameters of the charges at trial.¹¹² If it were otherwise, a person could be tried on charges that have not been confirmed by the Pre-Trial Chamber, or in relation to which confirmation was even declined.¹¹³
- 49 Where the Prosecution requested and obtained from the Pre-Trial Chamber permission to amend a charge, pursuant to article 61(9), it may amend the charges after notice to the accused ‘before the trial has begun’.¹¹⁴ In this situation the scope of the charges, including the amended

of Pre-Trial Chamber I entitled ‘Decision Establishing General Principles Governing Applications to Restrict Disclosure pursuant to Rule 81 (2) and (4) of the Rules of Procedure and Evidence’, Appeals Chamber, 13 October 2006, para. 56 and *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-514, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 16 December 2011 entitled ‘Decision on the confirmation of charges’, Appeals Chamber, 30 May 2012, footnote 89. Naturally, the resulting evidence can properly be submitted at trial and evaluated for the purposes of the judgment and it can generate additional detail as the facts.

¹⁰⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 122–123, quoting *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, 29 July 2004, paras 210–213.

¹¹⁰ For instance, in the *Banda and Jerbo* case, the charges were confirmed *inter alia* in relation to the war crime of violence to life pursuant to article 8(2)(c)(i) of the Statute. Banda and Jerbo were charged the killing of twelve AMIS peacekeeping personnel and attempt to kill eight AMIS peacekeeping personnel in the 29 September 2007 attack at the MGS Haskanita, the Sudan. The attack was allegedly committed together with forces under their command and control, acting pursuant to a common plan and orders issued by them. Moreover, as confirmed by the Pre-Trial Chamber, the suspects personally participated and led the actual attack; see the Corrigendum of the ‘Decision on the Confirmation of Charges’, 7 March 2011, ICC-02/05-03/09-121-Corr-Red, para. 146. This is good test situation to consider whether the identities of the victims may be material facts. If this was the case, the Trial Chamber would not be able to enter a conviction in relation to any additional instance of violence to life without the Prosecution requesting and obtaining permission from the Pre-Trial Chamber. It is useful to compare this circumstances with those described in the *Al Basir* warrant of arrest, where it was decided on reasonable grounds to believe that ‘GoS forces subjected, throughout the Darfur region, (i) hundreds of thousands of civilians, belonging primarily to the Fur, Masalit and Zaghawa groups, to acts of forcible transfer’ *Prosecutor v. Al Bashir*, ICC-02/05-01/09-1, Warrant of Arrest for Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, page 6 [emphasis added].

¹¹¹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, paras 122–123, quoting *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, 29 July 2004, para. 210–213.

¹¹² *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 124; see also Nerlich, *JICJ* 10 (2012), 1339, 1348.

¹¹³ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 124. See also Fernandez and Pacreau (Dir.), *Statut de Rome de la Cour Pénale Internationale, Commentaire article par article*, ii (2012), p. 1646 indicating that if the facts charged are exceeded, the rights of the defence and the prosecution would be profoundly unbalanced.

¹¹⁴ Permission to amend the charges may be requested in circumstances ‘which [...] does not entail the addition of new charges nor the substitution of more serious charges but rather an adjustment to the temporal

elements, will be clarified by the decision of the chamber or any ensuing document filed by the prosecution. If the Prosecution seeks to add additional charges or to substitute more serious charges, the additional or the substitute charges will be addressed in a Confirmation Decision.

In practice, Trial Chambers have experienced difficulties in identifying the facts and circumstances confirmed at the Pre-Trial stage as some Confirmation decisions did not provide a readily accessible statement of the facts underlying each charge.¹¹⁵ The facts and circumstances were reflected in the decision without separation from the narrative, the background information, the evidence put forward by the Prosecutor, or the reasoning which was developed in the consideration of each crime. In cases of ambiguity or silence as to whether certain facts and circumstances spelled out in the Document Containing the Charges were confirmed or not, there was a question on whether these are necessarily excluded from the facts and circumstances of the charges.¹¹⁶ As a reaction, it became common practice that Trial Chambers would request a post confirmation document from the Prosecution where they expect to have the factual parameters of the trial clearly set out; the so called ‘Amended or Updated Document Containing the Charges’.¹¹⁷ This in turn triggers litigation as to the correct understanding of the documents involved.¹¹⁸

The Appeals Chamber has recently condoned that ‘further details about the charges, as confirmed by the Pre-Trial Chamber’, may also be contained in other ‘auxiliary documents’.¹¹⁹ These auxiliary documents include a Pre-Trial brief,¹²⁰ an Updated or Amended DCC,¹²¹ submissions of the prosecution related to factual allegations providing additional detail,¹²² and the summary of evidence.¹²³ These additional details will assist in clarifying the facts and circumstances described in the charges and thus the scope of the trial, though they

scope of some of the alleged incidents underlying the charges by a matter of two days’, see *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-912, Decision on the Prosecutor’s Request for Leave to Appeal the Decision Rejecting the Amendment of the Charges (ICC-01/09-01/11-859), Pre-Trial Chamber II, 6 September 2013, para. 26.

¹¹⁵ *Prosecutor v. Bemba*, ICC-01/05-01/08-836, Decision on the defence application for corrections to the Document Containing the Charges and for the prosecution to file a Second Amended Document Containing the Charges, Trial Chamber III, 20 July 2010, paras 8 and 30.

¹¹⁶ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-522, Decision on the content of the updated document containing the charges, Trial Chamber V, 28 December 2012, para. 19; *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-584, Decision on the content of the updated document containing the charges, Trial Chamber V, 28 December 2012, para. 23. Trial Chamber V has taken the view that the confirmation decision is authoritative on those matters specifically addressed and/or those charges, including the facts, circumstances and their legal characterisation, expressly confirmed or rejected. Conversely, if the Pre-Trial Chamber was silent on certain facts and circumstances contained in the DCC, it does not mean that they were not confirmed. This interpretation was also adopted in *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-450, Decision on the updated document containing the charges, Trial Chamber IV, 6 February 2015, although following a rather stricter approach.

¹¹⁷ Prior to the commencement of the *Lubanga* trial, following disagreement between the parties as to the wording of the charges, Trial Chamber I found that an Amended DCC was ‘necessary to ensure that there is complete understanding of the “statement of facts” underlying the charges confirmed by the Pre-Trial Chamber, and to enable a fair and effective presentation of the evidence (as part of a fair and expeditious trial in accordance with Article 64 of the Statute).’; *Prosecutor v. Lubanga*, ICC-01/04-01/06-1548, Order for the prosecution to file an amended document containing the charges, Trial Chamber I, 9 December 2008, paras 9–10 and 12–13; *Prosecution v. Katanga*, ICC-01/04-01/07-1547-ENG, Decision on the Filing of a Summary of the Charges by the Prosecutor, Trial Chamber II, 21 October 2009, paras 14–19; *Prosecutor v. Bemba*, ICC-01/05-01/08-836, Decision on the defence application for corrections to the Document Containing the Charges and for the prosecution to file a Second Amended Document Containing the Charges, Trial Chamber III, 20 July 2010, para. 30.

¹¹⁸ See for the most recent example, *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-450, Decision on the updated document containing the charges, Trial Chamber IV, 6 February 2015.

¹¹⁹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 124.

¹²⁰ *Ibid.*, 131.

¹²¹ To clearly indicate the material facts and circumstances underlying the charges as confirmed or the provide, *inter alia*, sufficient detail, which was considered relevant, as to the identity of the victims of the attack; *Ibid.*, para. 125 and 126.

¹²² *Ibid.*, para. 130.

¹²³ *Ibid.*, para. 132.

need to stay within the parameters of the Confirmation decision.¹²⁴ To ensure notice, the Prosecution should be requested to point out that it is informing the defence of additional details as to the material facts charged. Adequate notice would not be provided if the Prosecution merely discloses evidence which reflect additional details, even if the evidence is summarized in the Prosecution's submission. Any such document providing additional details must be made available to the defence before the start of the trial hearings. A trial (meaning the evidentiary hearings) must commence based on a set of clearly defined charges. This results from the strong link between the right to be informed in detail of the nature, cause and content of the charges and the right to prepare one's defence.¹²⁵ However, the prejudice caused by the lack of detail of the charges may be cured during the trial.¹²⁶

- 52 In order to tackle this same issue, helpful efforts have been made at the Pre-Trial level to identify more clearly the facts and circumstances confirmed.¹²⁷ These efforts include indicating particular sections or paragraphs of the Confirmation decision as reflecting the charges confirmed¹²⁸ and other paragraphs as reflecting the facts not confirmed.¹²⁹ They also include setting out, in a *distinct section* of the decision, the facts and circumstances confirmed which in turn is preceded by an instruction to the Prosecution to properly identify the factual allegations that underlie the charges.¹³⁰

3. The Court may base its decision only on evidence submitted and discussed before it at the trial

- 53 As a manifestation of the immediacy principle,¹³¹ the judgment can only be based on evidence submitted; discussed; assessed on relevance, probative value and prejudice; and evaluated by the Trial Chamber. The Trial Chamber shall not rely, for the purposes of the

¹²⁴ And the parameters of the confirmation decision will necessarily depend on the case brought by the prosecution and the facts and evidence underpinning the case – see the example situations set out above in footnote 107. Clearly, where a Trial Chamber would be unable to enter a conviction in relation to additional instances or details without the Prosecution requesting and obtaining permission from the Pre-Trial Chamber, or the latter confirming additional charges, these requirements cannot be circumvented by including the details or instances in auxiliary documents at Trial – thereby escaping the Pre-Trial filter/authorization. For instance, details specifically rejected in the confirmation decision could not be reintroduced by their reflection in the auxiliary document; such reintroduction would require the permission of the Pre-Trial judge; see *Prosecutor v. Kenyatta*, ICC-01/09-02/11-700-Corr, Corrigendum to Decision on the 'Prosecution's Request to Amend the Final Updated Document Containing the Charges Pursuant to Article 61(9) of the Statute', Pre-Trial Chamber II, 21 March 2013, where the Chamber had rejected a factual allegation (namely that 'weapons were used in Naivasha') in the confirmation decision by reason of lack of evidence (para. 174) though post confirmation investigations produced evidence that, upon evaluation, did establish the relevant fact.

¹²⁵ *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 129.

¹²⁶ *Ibid.*

¹²⁷ Report of the Working Group on Lessons Learnt to the Study Group on Governance Cluster I: Expediting the Criminal Process Progress Report on Cluster B: 'Pre-Trial and Trial Relationship and Common Issues, ICC-ASP/13/28, 28 November 2014, page 43 paras 17 to 19.

¹²⁸ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-309, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014, p. 63; see the interpretation of the Trial Chamber in the same case, ICC-01/04-02/06-450, Decision on the updated document containing the charges, Trial Chamber IV, 6 February 2015, para. 36 *et seq.*

¹²⁹ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-309, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014, paras 13, 32, 37, 75 and 98.

¹³⁰ *Prosecution v. Gbagbo*, ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras 266–277; *Prosecutor v. Blé Goudé*, ICC-02/11-01/11-325, Decision on the confirmation of charges against Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras 182–193.

¹³¹ See Roxin/Schünemann, *Strafverfahrensrecht* (2014) 395 *et seq.*; Beulke, *Strafprozessrecht* (2012), p. 26. For a discussion of the 'principle of immediacy' (both in its 'formal' and 'material' understandings), in connection with the 'orality' and the 'concentration principle' see Rieß, in: Löwe/Rosenberg, Intro. (1999) mn 60 *et seq.* Maier, J. B.J., *¿Es la inmediación una condición de la condena penal?: un aspecto parcial de la lucha entre inquisición y composición*, in: Jueces para la democracia (2004) 49 p. 13–20.

judgment, on items that have come to the Chamber's knowledge but that have not been submitted and discussed at trial.¹³²

Several provisions of the Statute and the Rules of Procedure and Evidence refer to the 'submission of evidence' at trial, including article 69(3),¹³³ Article 64(8)(b),¹³⁴ Rules 140,¹³⁵ and 64(1).¹³⁶ The evidence is 'submitted' if it is presented to the Trial Chamber by the parties on their own initiative or pursuant to a request by the Trial Chamber for the purpose of proving or disproving the facts in issue before the Chamber. That the evidence is presented for other purposes such as part of a list of evidence to inform of the materials that are intended to be used at trial or any other 'case management tool' does not mean that it is 'submitted'.¹³⁷ The submission of evidence must conform to the directions of the Presiding judge or the manner agreed upon by the parties. Depending on the manner directed or agreed upon, the submission may also take place outside of the trial hearings; however, in such a case, the procedure for the submission of evidence must be clear.¹³⁸

In relation to the requirement that the Court is called to rely only on evidence 'discussed before it at the trial', it seems that in principle the evidence discussed before 'the Court' at the trial is the evidence discussed before the 'Trial Chamber'. However, in adopting such procedures as are necessary to facilitate the fair and expeditious conduct of the proceedings pursuant to article 64(3)(a), the Trial Chamber is not prevented from referring 'preliminary' evidentiary issues to the Pre-Trial Chamber pursuant to article 64(4)¹³⁹ – although any such evidence will have to be re-evaluated by the Trial Chamber in order to properly become the basis of the judgment.

Oral testimonies, documents and other exhibits such as video recordings may be discussed during the hearings and also in the written submissions at any stage of the trial. In relation to documents introduced by counsel pursuant to a written application the common practice indicates that they will not be discussed orally. However, the documents need to become part of the trial record.¹⁴⁰ In fact, there is no need for the parties and participants to have actually 'discussed' the evidence in the sense of effectively advanced arguments about it, but the parties need to have had an opportunity to make submissions as to each item of evidence.¹⁴¹

¹³² *Prosecutor v. Bemba*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled 'Decision on the admission into evidence of materials contained in the prosecution's list of evidence', Appeals Chamber, 3 May 2011, para. 45.

¹³³ Which provides that: '[t]he parties may submit evidence relevant to the case, in accordance with article 64' and that '[t]he Court shall have the authority to request the submission of all evidence that it considers necessary for the determination of the truth'.

¹³⁴ Which provides that: '[s]ubject to any directions of the presiding judge, the parties may submit evidence in accordance with the provisions of this Statute'.

¹³⁵ According to which, the parties shall agree on the order and manner in which evidence will be submitted to the Trial Chamber if the Presiding Judge does not give directions. If no agreement is reached, the Presiding Judge is required to issue directions on the matter.

¹³⁶ Which stipulates that: '[a]n issue relating to relevance or admissibility must be raised at the time when the evidence is submitted to a Chamber'.

¹³⁷ *Prosecutor v. Bemba*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled 'Decision on the admission into evidence of materials contained in the prosecution's list of evidence', Appeals Chamber, 3 May 2011, para. 44.

¹³⁸ *Ibid.*, para. 43.

¹³⁹ This may be appropriate in order to analyze the admissibility of certain pieces of evidence thereby preventing highly prejudicial evidence from becoming part of the record at trial. Although professional judges should be able to conduct this examination and exclude inadmissible the evidence from consideration in the article 74 decision, the ICC framework is not as rigid as to exclude this type of proceedings.

¹⁴⁰ *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 98; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 78.

¹⁴¹ *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 8 March 2014, para. 78.

III. Paragraph 3: Unanimity, majority and minority views

- 57 The drafting history of the Statute shows various instances where the possibility of dissenting opinions was rejected. These include Article 44(2) of the 1943 Draft Convention for the Creation of an International Criminal Court,¹⁴² the 1994 ILC Draft Statute¹⁴³ and the Siracusa Draft. Clearly however, Article 74(3) and (5) does accommodate this possibility.¹⁴⁴
- 58 The Statute provides that '[w]hen there is no unanimity, the ... decision shall contain the views of the majority and the minority' and that 'failing [unanimity] the decision shall be taken by a majority of the judges'. This means that, staying by the text of the law, the views of a majority and a minority are only accepted when there is no unanimous decision – separate or concurrent opinions where the judgment is unanimous are not part of this scheme. In practice however, this scheme has been interpreted flexibly.
- 59 There is a clear obligation in the ICC framework to at least 'attempt to achieve unanimity'. In the deliberations, one or more of the judges may try to convince one or the others to vote together in a proposed way or to find a compromise, accepted by some or by all. Since each judge has to take the responsibility for the decision themselves, none can be forced to vote with the others 'to achieve unanimity'. Therefore, if all endeavors are in vain, the majority of the judges decide. A minority opinion can be filed either together with the majority opinion or at a later stage, since it is not 'the decision' and as such it is not dispositive of the issues. The points of disagreement need to be clearly, and very respectfully (to prevent bringing the Court into disrepute), set out, as well as the outcome the decision would have had, had the dissenting judge prevailed in the voting. It is primarily an opportunity for the dissenting judge to explain how he or she would have dealt with a legal or factual issue rather than an arena to expose why the position of the majority is not agreeable or unconvincing to the dissenting judge.
- 60 Majority means two judges since the Trial Chamber is composed of three judges. Given the numerous legal and factual issues dealt with in judgments of international crimes, it is not uncommon that there will not be unfettered agreement as to each single issue addressed therein. It must be bared in mind that the order and manner the different issues to be considered are sequentially presented for voting may have an important effect on the outcome of the decision.¹⁴⁵ Although there is broad flexibility as to the order and manner of voting, at least two judges must be able to subscribe to the outcome of the decision.

¹⁴² In line with Article 44 of the 1943 Draft Convention for the Creation of an International Criminal Court, setting out that '2. The decisions of the Court shall be by a majority of the judges sitting in the case, and the decisions shall be deemed to be the opinion of the Court as a whole. 3. Every judgment or order of the Court shall state the reasons therefore and be read at a public hearing by the Chairman. Only the reasons which carry the decision of the majority shall be included in the sentence, and no dissenting opinion shall be published or divulged in any way'; reprinted in the 'Historical Survey of the Question of International Criminal Jurisdiction – Memorandum submitted by the Secretary-General', Document-A/CN.4/7/Rev.1, page 97 *et seq.*

¹⁴³ Article 45(5) established that 'it shall be the sole judgment issued'.

¹⁴⁴ In justification of this mechanism, it has been expressed that it assists the judges to maintain their intellectual integrity and independence of mind; assists in the development of the law; demonstrate to the parties, participants and public at large that a case has been thoroughly assessed; see *Prosecutor v. Katanga*, ICC-01/04-01/07-3504-Anx, Decision of the Plenary of Judges on the Application of the Legal Representative for Victims for the disqualification of Judge Christine Van den Wyngaert from the case of *The Prosecutor v. Germain Katanga*, Plenary of the Judges, 22 July 2014, para. 51. In addition, it has been considered to help reveal the deliberative process, thereby enhancing transparency, see Jørgsen and Zahar, *Deliberation, Dissent and Judgment*, in: Sluiter, Friman, Linton, Vasiliev, Zappala, *International Criminal Procedures, Principles and Rules*, (2003), p. 1152, 1156 *et seq.* Moreover, it has been considered important in the event of an appeal; See 1994 ILC Draft Statute, commentary to article 45, paras 3 and 5, p. 122; Fernandez and Pacreau (Dir.), *Statut de Rome de la Cour Pénale Internationale, Commentaire article par article*, ii (2012), p. 1648.

¹⁴⁵ For instance, if judge *a.* is of the view that the accused should be convicted of a crime against humanity; judge *b.* believes that although the contextual element and the individual crimes are established, the crimes are not attributable to the accused; and judge *c.* believes that the individual crimes occurred and they can be attributed to the accused however the contextual element is not made out. In the result, two judges believe that

IV. Paragraph 4: Secrecy of deliberations

Paragraph 4 expresses that '[t]he deliberations of the Trial Chamber shall remain secret'.⁶¹ What is implied is that all the arguments expressed during deliberations, unless there is an agreement of the Chamber to include them in its 'reasoned statement', are not divulged outside the respective Chamber. The purpose of this principle is to ensure that judge's building of their opinions remains an unhindered process. In the exchange of views, the judges must be able to analyze different perspectives and to freely use available arguments. This principle is of such importance that, pursuant to Rule 5(1)(a), is made explicit part of the solemn undertaking the judges are requested to provide before exercising their functions under the Statute.¹⁴⁶

It has been accepted that, under certain circumstances, when there are improprieties in the deliberative process the parties should be entitled to have the secrecy unveiled. However, a claim that the deliberative process is tainted must be supported by concrete evidence; general allegations are insufficient.¹⁴⁷ It is for the party questioning the propriety of the deliberative process to prove, at least, that evidence thereof exists. While the deliberation process is private and secret in order to ensure judicial independence, the outcome of the deliberative process is public and open. The Judgment itself may unequivocally attest and demonstrate that there were proper deliberations; given the manner the issues were reasoned by the Chamber.¹⁴⁸

The deliberations of the Trial Chambers may take place in the presence of staff members of the Court, whose roles and functions are dependent on the needs of the participating judges – theoretically, their roles may range from passive scribes to active advisors and drafters. Importantly, they are also subject to the rules on the secrecy of deliberations in the sense that they are banned from disclosing any elements of the deliberations.¹⁴⁹

Rule 142 states that the Trial Chamber '[a]fter the closing statements, the Trial Chamber shall retire, to deliberate in camera'. That the deliberations must take place after the closing statements which in turn must postdate the submission of the evidence (see Rule 141(1)) does not mean that preparatory work, analysis, memoranda etc. cannot be commenced before the closure of the evidence.¹⁵⁰ To the contrary, given the number of legal issues involved and the volume of evidence usually received in international trials, it is desirable that such preparatory work are advanced during the trial in order to ensure expeditiousness.

the contextual element is made out; two judges believe that the individual crimes have been committed and two judges are convinced that the accused is to be attributed the crimes; should they enter a conviction by majority?

¹⁴⁶ It is also part of the code of judicial ethics; Article 6, Confidentiality: 'Judges shall respect the confidentiality of consultations which relate to their judicial functions and the secrecy of deliberations'. Notably, it is also referred to in Principle 15 of the 1985 UN endorsed Basic Principles on the Independence of the Judiciary.

¹⁴⁷ See *Prosecutor v. Krajišnik*, IT-00-39-A, Appeal Judgment, 17 march 2009, para. 134; *Prosecutor v. Kvocka et al.*, IT-98-30/1-A, Appeal Judgment, 28 February 2005, para. 25. See also SCSL, *Prosecutor v. Taylor*, SCSL-03-01-A, Judgment, 26 September 2013, para. 618. It continued: 'While the deliberation process is private and secret in order to ensure judicial independence, the obligations imposed by Rule 87 are transparent and the outcome of the deliberative process is public and open. The Judgment, pronounced in public and set forth in writing [...], would show whether or not the Trial Chamber deliberated Taylor's guilt beyond a reasonable doubt and voted for separate convictions as to each count. The Judgment accordingly speaks for itself'; see paras 622–623, 625.

¹⁴⁸ *Prosecutor v. Taylor*, SCSL-03-01-A, Judgment, 26 September 2013, para. 621.

¹⁴⁹ Jørgsen and Zahar, *Deliberation, Dissent and Judgment*, in: Sluiter, Friman, Linton, Vasiliev, Zappala, *International Criminal Procedures, Principles and Rules*, (2003), p. 1152, 1156 *et seq.*

¹⁵⁰ Esser, *Auf dem Weg zu einem europäischen Strafverfahrensrecht* (2002) 733 *et seq.* discussing the ECHR precedent *Kremzow v. Austria* where a Judge Reporter of the Supreme Court of Austria had already produced a draft decision before the hearing of a case. The ECHR found no violation to the Convention.

V. Paragraph 5

1. The decision shall be in writing and shall contain a full and reasoned statement of the Trial Chamber's findings on the evidence and conclusions

- 65 Article 74(2) establishes the procedural, evidentiary and factual parameters of the decision on the guilt or innocence of the accused. As set out above, the judgment can only be based on evidence submitted; discussed; assessed on relevance, probative value and prejudice; and evaluated by the Trial Chamber. Article 74(5) requires that the judgment contain 'a full and reasoned statement of the Trial Chamber's findings on the evidence'. What is required is that reasons are fully and transparently provided to clearly show how the evidence evaluated by the judges supports all the findings of the Chamber underpinning the decision. The 'reasoned statement' is the basis for the parties' exercise of the right to appeal and for the Appeals Chambers' review.¹⁵¹
- 66 According to international human rights jurisprudence, Courts are required to 'indicate with sufficient clarity the grounds on which they based their decision'.¹⁵² Courts are obliged to give reasons for their decisions, but cannot be required a detailed answer to every argument.¹⁵³ However, where a party's submission is decisive for the outcome of the proceedings, it requires a specific and express reply.¹⁵⁴ The courts are therefore required to examine the litigants' main arguments.¹⁵⁵
- 67 The jurisprudence of the ICC and the ad hoc Tribunals has dealt with this issue in an analogous manner. The facts considered relevant in coming to the decision must be identified.¹⁵⁶ However, providing reasons has been found to be distinct from reciting each and every factor that has been brought before the Chamber.¹⁵⁷ In particular, the parties and participants cannot expect their submissions to be considered in detail if they are obscure, contradictory, vague, or suffer from other formal and obvious insufficiencies.¹⁵⁸ Moreover, the Chamber has discretion in selecting which submissions merit a detailed reasoned opinion in writing, and it may dismiss arguments which are evidently unfounded without providing detailed reasoning.¹⁵⁹ In relation to the evidence, often a Trial Chamber's failure to explicitly refer to specific witness testimony will not amount to an error of law (i) where there is significant contrary evidence on the record,¹⁶⁰ or (ii) when the disregarded testimony was confusing, biased, or contradicted by substantial and credible contrary evidence.¹⁶¹ The Trial Chamber is under no obligation to refer to the testimony of every witness or every piece of evidence on the record¹⁶² and it has been

¹⁵¹ See Roxin/Schünemann, *Straverfahrensrecht* (2014) p. 425.

¹⁵² *Hadjianastassiou v. Greece*, No. 12945/87, Judgment, 16 December 1992, para. 32.

¹⁵³ *Van de Hurk v. the Netherlands*, No. 16034/90, Judgment, 19 April 1994, para. 61; *Garcia Ruiz v. Spain*, no. 30544/96, Judgment, 21 January 1999, para. 26; see Frowein/Peukert, *Europäische Menschenrechtskonvention, EMRK-Kommentar* (2009), p. 213 *et seq.*

¹⁵⁴ *Ruiz Torija v. Spain*, 18390/91, Judgment, 9 December 1994, para. 30; *Hiro Balani v. Spain*, 18064/91, Judgment, 9 December 1994, para. 28.

¹⁵⁵ *Buzescu v. Romania*, 61302/00, Judgment, 24 May 2005, para. 67.

¹⁵⁶ *Prosecutor v. Lubanga*, ICC-01/04-01/06-773, Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81', Appeals Chamber, 14 December 2006, para. 20.

¹⁵⁷ *Ibid.*

¹⁵⁸ *Gotovina and Markač*, IT-06-90-A, Appeal Judgement, 16 November 2012, para. 15; Bošković and Tarčulovski, IT-04-82-A, Appeal Judgement, 19 May 2010, para. 17.

¹⁵⁹ *Prosecutor v. Perišić*, IT-04-81-A, Appeals Judgment, 28 February 2013, para. 12; *Gotovina and Markač* Appeal Judgement, para. 15; Bošković and Tarčulovski Appeal Judgement, para. 17.

¹⁶⁰ See *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Appeal Judgement, 28 February 2005, paras 23, 483–484, 487, 582–583; *Prosecutor v. Perišić*, IT-04-81-A, Appeals Judgment, 28 February 2013, para. 95.

¹⁶¹ *Ibid.*

¹⁶² *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Appeals Judgment, 28 February 2005, para. 23; *Čelebići* Appeal Judgment, para. 498; *Kuprešić et al.* Appeal Judgment, para. 39; *Kordić and Čerkez* Appeal Judgment, para. 382.

noted that where the Chamber did not refer to the evidence given by a witness, even if it is in contradiction to the Trial Chamber's finding, it is to be presumed that the Trial Chamber assessed and weighed the evidence, but found that the evidence did not prevent it from arriving at its actual findings.¹⁶³ This may be particularly relevant where, despite the existence of contrary evidence on the record, such evidence is not invoked by the parties to persuade the Chamber against the relevant factual finding. Nonetheless, there are sufficient instances where a Trial Chamber's insufficient analysis of evidence on the record has been found to amount to a failure to provide a reasoned opinion.¹⁶⁴

The 'conclusions' include those concerning the findings on the evidence and those on questions of law. The Appeals Chamber has previously held, albeit in a different context, that a Chamber must explain with sufficient clarity the basis of its decision. In other words, 'it must identify which facts it found to be relevant in coming to its conclusion'.¹⁶⁵ The conclusion on law is just the application of the law to the facts, which is needed to make the decision understandable and thereby acceptable. In circumstances where the law needs interpretation,¹⁶⁶ such interpretation must be developed in the judgment to the extent necessary. Rule 142 states that 'when there is more than one charge, the Trial Chamber shall decide separately on each charge' and 'when there is more than one accused, the Trial Chamber shall decide separately on the charges against each accused'.

The complete decision has to be handed down in writing. This implies that all parts referring to any charge raised against any accused as well as with regard to all findings and conclusions have to be covered. Without a written decision, the Prosecutor and the defence as well as the Appeals Chamber would be unable to discern whether the decision was materially affected by error of fact or law or procedural error as well as to establish the proportionality of the sentence to the crime.

2. Majority and minority views

The relevant sentence, which reads 'The Trial Chamber shall issue one decision. When there is no unanimity, the Trial Chamber's decision shall contain the views of the majority and the minority' has been commented on.¹⁶⁷

3. Delivery in open court

The public character of proceedings before judicial bodies protects litigants against the administration of justice in secret with no public scrutiny.¹⁶⁸ It is also a means of maintaining confidence in the courts.¹⁶⁹ In the words of the ECHR:

'By rendering the administration of justice visible, publicity contributes to the achievement of the aim of Article 6 § 1 (art. 6–1), namely a fair trial, the guarantee of which is one of the fundamental principles of any democratic society [...].'¹⁷⁰

Decisions of the Trial Chamber concerning the criminal responsibility of the accused shall be pronounced in public (see Rule 144(1)). In sub-rule 2, it is expressly stated that copies of the various decisions mentioned in sub-rule 1 shall be provided 'as soon as possible' to all those who participated in the proceedings in a working language of the Court and to the

¹⁶³ *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Appeals Judgment, 28 February 2005, para 23.

¹⁶⁴ *Prosecutor v. Perišić*, IT-04-81-A, Appeals Judgment, 28 February 2013, 95 and 96.

¹⁶⁵ *Prosecutor v. Bemba*, ICC-01/05-01/08-1386, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled 'Decision on the admission into evidence of materials contained in the prosecution's list of evidence', Appeals Chamber, 3 May 2011, para. 59.

¹⁶⁶ See Engisch, *Einführung in das juristische Denken* (2005), p. 101 *et seq.* 123, fn 47; Schauer (1998), 97 *Yale LJ* 538 *et seq.*

¹⁶⁷ See above, Paragraph 3: Unanimity, majority and minority views.

¹⁶⁸ *Fazliyski v. Bulgaria*, No. 40908/05, Judgment, 16 April 2013, para. 69.

¹⁶⁹ *Preto and Others v. Italy*, 7984/77, Judgment, 8 December 1983, para. 21.

¹⁷⁰ *Ibid.*

accused in a language he or she fully understands. Of course, the latter requirement applies only to the extent the language the accused fully understands is a written language; which is not the case with respect to certain African dialects currently being used before the ICC. The judgment has to be delivered in open court. However, the practice indicates that to save time and not to exhaust the attention of the parties and the audience, the Court may decide to deliver only a summary of its decision and sentence in open court.

- 73 In instances where the decision is issued by a majority of the judges, and since only the majority opinion constitutes 'the decision', only the majority opinion is required to be delivered in open Court pursuant to article 74(5). However, the practice indicates that a summary of the dissenting, separate, concurring, etc. views are also read in open court.

Article 75

Reparations to victims

1. The Court shall establish principles relating to reparations to, or in respect of, victims, including restitution, compensation and rehabilitation. On this basis, in its decision the Court may, either upon request or on its own motion in exceptional circumstances, determine the scope and extent of any damage, loss and injury to, or in respect of, victims and will state the principles on which it is acting.

2. The Court may make an order directly against a convicted person specifying appropriate reparations to, or in respect of, victims, including restitution, compensation and rehabilitation.

3. Where appropriate, the Court may order that the award for reparations be made through the Trust Fund provided for in article 79.

4. Before making an order under this article, the Court may invite and shall take account of representations from or on behalf of the convicted person, victims, other interested persons or interested States.

5. In exercising its power under this article, the Court may, after a person is convicted of a crime within the jurisdiction of the Court, determine whether, in order to give effect to an order which it may make under this article, it is necessary to seek measures under article 93, paragraph 1.

6. A State Party shall give effect to a decision under this article as if the provisions of article 109 were applicable to this article.

7. Nothing in this article shall be interpreted as prejudicing the rights of victims under national or international law.

Literature: Bassiouni, M.C., *The right to restitution, compensation and rehabilitation for victims of gross violations of human rights and fundamental freedoms – Final report of the Special Rapporteur*, UN Doc. E/CN.4/2000/62; van Boven, T., *Study Concerning the Right to Restitution, Compensation and Rehabilitation for Victims of Gross Violations of Human Rights and Fundamental Freedoms*, UN Doc. E/CN.4/SUB.2/1993/8; *id.*, *The Basic Principles and Guidelines on the Right to Reparation for Victims of [gross] Violations of Human Rights and International Humanitarian Law*, UN Doc. E/CN.4/1997/104; Clark, R.S., ‘The 1985 United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power’, in: G. Alfredsson and P. Macalister-Smith (eds.), *The Living Law of Nations* (N.P. Engel 1996) 355; Del Tufo, M., ‘La Riparazione alle Vittime e il Fondo di Garanzia’, in: G. Lattanzi and V. Monetti (eds.), *La Corte Penale Internazionale: Organi-Competenza-Reati-Processo* (Giuffrè 2006) 875; Dwertmann, E., *The Reparation System of the International Criminal Court – Its Implementation, Possibilities and Limitations* (Martinus Nijhoff Publishers, 2010); Donat-Cattin, D., ‘The Role of Victims in ICC Proceedings’, in: F. Lattanzi and W. A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, Vol. I (Editoriale Scientifica 1999) 251; FIDH, *Enhancing Victims’ Rights before the International Criminal Court* (Paris 2013); McCarthy, C., *Reparations and Victims Support in the International Criminal Court* (Cambridge University Press, 2012); Martínez Ventura, J.E., ‘Análisis del caso Lubanga. El Procedimiento de Reparaciones’, in: Ambos, K., Malarino, E., and Steiner, C. (eds.), *Análisis de la Primera Sentencia de la Corte Penal Internacional: El caso Lubanga* (KAS, 2014) 343; Muttukumaru, C., ‘Reparations to Victims: key issues facing the delegations’, in: F. Lattanzi and W. A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, i (Editoriale Scientifica 1999); Pérez León Acevedo, J. P., *Victims’ Status at International and Hybrid Criminal Court – Victims’ Status as Witnesses, Victim Participants/Civil Parties and Reparation Claimants* (Åbo: Åbo Akademi University Press, 2014); Redress, *Promoting the Right to Reparation of Survivors of Torture: What Role for a Permanent International Criminal Court?* (London 1997); United Nations Commission on Crime Prevention and Criminal Justice, *Handbook on Justice for Victims on the Use and Application of the United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power*, UN Doc. E/CN.15/1998/CRP.4/Add.1.

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A. Introduction/General remarks

- 1 The ‘ICC process’ has given a historical possibility to the world community to recognise and enforce the right of victims to reparations, which is a constitutive part of the right to justice¹.
- 2 The obligation for States to make reparations to victims of ‘serious’ violations of humanitarian law and human rights is enshrined in a number of universally binding international instruments, starting with the 1907 Hague Convention IV, article 3². Article 14 of the 1984 Torture Convention³ significantly reads as follows:

‘Each State Party shall ensure in its legal system that the victim of an act of torture obtains redress and has an enforceable right to fair and adequate compensation, including the means for as full rehabilitation as possible. In the event of the death of the victim as a result of an act of torture, his dependants shall be entitled to compensation.’
- 3 The European and Inter-American regional mechanisms of human rights protection impose a regime of reparations in favour of the victim and against the State(s) that fails to comply with its human rights obligations⁴.
- 4 Above and beyond all normative standards mentioned, the right to reparations is an essential part of the inalienable right to an effective remedy (*cf.* article 2 para. 3 ICCPR) which has already been referred to elsewhere in this Commentary⁵.
- 5 Conversely, article 75 is addressed only ‘against’ individual perpetrators convicted by the Court, even if the Court itself may make requests of co-operation to States on a case-by-case basis in order to ensure the implementation of its decisions on reparations⁶. It is therefore

¹ See Donat-Cattin, *article 68*, mn. 3. See van Boven, *Study*; Joinet, *Question* (see literature article 68).

² See van Boven, *Study*; Redress, *Promoting*.

³ Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, UN Doc. A/39/41 (1984), entered into force on 26 June 1987. For an excellent study on civil remedies against human rights abuses, see Dubinsky, *Proposals of the Hague Conference and their Effect on Efforts to Enforce International Human Rights through Adjudication*, Int. Ass. of Democratic Lawyers, Work. Doc. No. 117, 13 (1998). Concerning jurisprudence on article 14 (and article 16) of the Torture Convention, an exemplary case is represented by the civil action brought by the government of the Philippine in Switzerland to obtain the restitution of the former dictator Marcos’ assets deposited in Swiss banks. The Federal Supreme Court of Switzerland stated that, as a contracting Party under that Convention, Switzerland ‘[...] must ensure that the victim of torture receives indemnification and has an actionable right to fair and reasonable compensation, including the means for rehabilitation that is as complete as possible. These obligations apply accordingly to other forms of cruel, inhumane, or degrading treatment of punishment.’ *Cf. in re Federal Office for Police Matters*, Case IA.87/1997/err (10 Dec. 1997). The Swiss Supreme Court refused to allow the Marcos’ assets to be released without any provision for recovery by the victims of his regime, who had obtained a civil judgement in the United States. Thus, ‘the Court ordered the Marcos’ funds transferred to an escrow fund in the Philippines on the condition that the Philippine government agree to compensate human rights victims from the assets in the fund’. *Cf.* Dubinsky, *op.cit.*, p. 4.

⁴ See Articles 1, 13 and 41, ECHR, and Articles 1, 25, 44 and 63, IACHR. See also van Boven, *Study*; Redress, *Promoting*.

⁵ See D. Donat-Cattin, *article 68*, mn. 7.

⁶ This discretionary power of the Court may be inferred in the ‘reparations’ regime” of article 75 as such, and the consequent need to implement it by States Parties within the ‘self-contained’ treaty-based system of the *Rome Statute*. However, at least with respect to measures of enforcement – which may just constitute a part of the implementation of the Court’s decisions on reparations – the applicability of article 109 is expressly mentioned in paragraph 5 of article 75 (see below).

necessary to clarify at the outset that article 75 does not deal with any issue relating to States' responsibility, either in the sense of sanctioning the State for the benefit of the individual victim, or in respect of issuing orders against the State. As has been authoritatively stated by a key negotiator of article 75, '[...] the ICC Statute provides a framework conferring power on the judges to establish principles and to develop the jurisprudence of the Court with the view to doing justice before it'⁷. In such a normative procedural system, justice means not only a fair trial for the accused, but also justice for victims⁸.

The ILC decided to delete from its 1994 Draft Statute a provision on reparations, article 47, which was part of its 1993 preliminary draft⁹, with the argument that a criminal court was not the appropriate forum in which to

'order the return of stolen property, a remedy which [some members of the Commission] considered to be more appropriate in a civil than in a criminal case [...]. On balance the Commission considered that these issues were best left to national jurisdictions and to international judicial co-operation agreements [...].'¹⁰

As this author wrote before the Rome Conference¹¹:

'The ILC did not recognise the reality that where national systems have, by definition, been unwilling or unable to administer criminal justice, it is unlikely that those systems will be able or willing to give effect to the victims' right to reparations. Nor would mutual assistance schemes for judicial co-operation work. Therefore, the subsidiary role of an ICC must be affirmed in order to ensure that victims' rights are respected. Consequently, the brackets¹² surrounding article 73 [of the Draft Statute, corresponding to article 75 of the *Rome Statute*] attributing to the ICC the power to 'order reparations' for victims must be deleted.'

Governmental delegations made the same reasoning in Rome, and created the legal conditions for the first 'reparation regime' ever realised in the history of international criminal jurisdiction. It should be noted at the outset that the issue of victims' redress in the ICC has been central to the work of many NGOs participating in the Preparatory Committee and the Rome Conference, and constituting the Victims Rights' Working Group of the Coalition for an ICC¹³.

Concerning proposals of States that substantially contributed to the advancement of the law-making process leading to the *Rome Statute*, it is important to mention certain Preparatory Committee and conference 'papers' on reparations, apart from the sections on reparations in the reports of the relevant Preparatory Committee's sessions and of the Rome

⁷ Notes on file with the author: speech delivered by C. Muttukumaru (who represented the UK at the Rome Conference's Working Group on Procedural Matters) on 31 October 1998 at the British Institute of International and Comparative Law (Seminar on the ICC), London.

⁸ As stated by F. McKay (Redress) on behalf of the Victims' Rights Working Group to the Plenary of the Rome Conference, 17 June 1998: 'Punishing criminals is not enough. There will be no justice without justice for victims. And in order to do justice for victims for the ICC must be empowered to address their rights and needs.' Statement reproduced in: *The ICC Monitor – The Rome Treaty Conference Monitor*, Issue 5, p. 1 (19 June 1998) and available in the UN website section on the Rome Diplomatic Conference (<http://www.un.org/icc/speeches/>).

⁹ For an analysis of the 1993 ILC project for a Draft Statute, see Flavia Lattanzi, 'Riflessioni sulla competenza di una Corte Penale Internazionale' (1993) 56 *Rivista di Diritto Internazionale* 661.

¹⁰ Report of the International Law Commission on the Work of its Forty-Sixth Session, Draft Statute for an International Criminal Court, 2 May–22 July 1994, UN Doc. A/49/10 (1994).

¹¹ Cf. Donat-Cattin, in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica 1998) 251.

¹² Brackets are usually surrounding language upon which there is contention or substantial disagreement amongst negotiators (Governmental delegates) in the framework of a given treaty-making process, such as the Preparatory Committee (1996–1998) leading to the Rome Conference (1998).

¹³ Amongst the position papers of NGOs on reparations, reference is particularly made to: Redress, *Reparation for Victims in the International Criminal Court: Principles, Commentary and Recommendations for the Rome Diplomatic Conference* (London 1998); Women's Caucus for Gender Justice in the International Criminal Court, *Recommendations and Commentary on Penalties and Reparations* (NY 1997); Amnesty International, *The International Criminal Court: Making the Right Choices* (Part II, 40–42; Part III, 31–34) (London 1997); Redress, *Promoting*; International Society for Traumatic Stress Studies/International League for Human Rights, *Suggestions Regarding the Victim's Role in the ICC* (NY 1997).

Conference's Working Group on Procedural Matters¹⁴. At the December 1997 session of the Preparatory Committee, a proposal of France generated the amendment of the text of article 45*bis* entitled 'Reparations to victims'¹⁵, which was already envisaged by the French comprehensive text for the ICC Statute presented at the August 1996 session of the Preparatory Committee¹⁶. As a result of a joint proposal of France and the UK, the last Preparatory Committee before the Rome Conference brought to a preliminary draft consolidated text on reparations¹⁷, then reproduced as article 73 of the Draft Statute transmitted to the Diplomatic Conference¹⁸. Two competing proposals were tabled by France and the UK¹⁹ and by Japan²⁰ at the Rome Diplomatic Conference. After long and extenuating negotiations taking place in the Working Group on Procedural Matters, as well as in a number of informal meetings, the compromise was reached just few days before the conclusion of the Conference and incorporated in the seventh report of that Working Group to the Conference's Drafting Committee²¹.

- 8 The goal of the remaining part of this commentary is not to cover all aspects of the very complex Rome Conference's negotiations on article 75. Rather, these comments will be limited to the letter of this article, although an attempt will be made to reflect on some crucial elements of the Rome compromise as well as to consider the initial interpretation of article 75 that may be found in the first eleven years of practice before the ICC.

B. Analysis and interpretation of elements

I. Paragraph 1: General provisions

1. 'The Court shall establish principles'

- 9 The fact that the ICC is entitled to establish primarily principles relating to reparations constitutes a sufficient limitation to the activities of the Court in this delicate area of adjudication²². The term 'principles' provide the judges with an open-ended standard that permits the necessary flexibility on the consequences of the crimes within the Court's jurisdiction. Any element of redress for victims, including any measure capable of removing – where possible – the effects of the crime and of re-integrating victims in their *status quo*

¹⁴ See the UN documents referred to in footnotes 21, 22, 23 and 24 of the commentary on article 68.

¹⁵ Cf. UN Doc. A/AC.249/1997/WG.4/DP.3 (5 Dec. 1997) (Proposal of France, article 45*bis*).

¹⁶ Cf. UN Doc. A/AC.249/L.3, Preparatory Committee (12–30 Aug. 1996), Draft Statute for an International Criminal Court – Working paper submitted by France.

¹⁷ This heavily bracketed text is contained in UN Doc. A/AC.249/1998/WG.4/CPR.5 (25 Mar. 1998) (*article 66. Reparation to victims*) with Corr.1 (26 Mar. 1998). At the same session of the Preparatory Committee, also the Democratic Republic of Congo submitted a textual proposal for the article on reparations (Cf. UN Doc. A/AC.249/1998/WG.4/DP.38 (27 Mar. 1998)).

¹⁸ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute and Final Act, UN Doc. A/CONF.183/2/Add.1 (1998), reprinted in Bassiouni (ed.), *International Criminal Court. Compilation of UN Documents and Draft ICC Statute before the Diplomatic Conference* (TP 1998) 339–341.

¹⁹ Cf. UN Doc. A/CONF.183/C.1/WGPM/L.28 (26 June 1998) (Proposal submitted by the Delegations of France and the United Kingdom of Great Britain and Northern Ireland, article 73, Reparations to victims).

²⁰ Cf. UN Doc. A/CONF.183/C.1/WGPM/L.30 (28 June 1998) (Proposal submitted by Japan).

²¹ Cf. UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.7 (13 July 1998), reproduced in Donat-Cattin (ed.), *International Criminal Court Society, Compilation: Footnotes Relevant to the Rules of Procedure and Evidence Transmitted by the Committee of the Whole to the Drafting Committee At the Rome Diplomatic Conference on the Establishment of an International Criminal Court* (Rome 1998) 35. A preliminary compromise between different positions of Government delegation was reflected in the conference documents: UN Doc. A/CONF.183/C.1/WGPM/L.63 (8 July 1998), and UN Doc. A/CONF.183/C.1/WGPM/L.63/Rev.1 (11 June 1998). On 10 July 1998, the US delegation presented a proposal/footnote on article 73 para. 1 (UN Doc. A/CONF.183/C.1/WGPM/L.69 (10 July 1998)).

²² In fact, the following part of paragraph 1 states in just a permissive way that the Court 'may ... determine the scope and extent of any damage, loss and injury' on the basis of the principles relating to reparations, whereas the Court shall establish such principles; see mn. 15.

ante, are to be considered part of the principles relating to reparations. The language – originally proposed by France and the UK – indicating that reparations shall be made not only to victims, but also *in respect of* victims, extends the scope of application of article 75 to all categories of victims as defined in the UN Declaration of victims' rights of 1985²³. Such an interpretation is founded not only on the analysis of the preparatory works leading to the compromise amongst States on the text of article 75, but also on the footnote inserted (by general agreement) in the Working Group's report and designed at orienting the interpretation of the Statutory language '*in respect of victims*'. The footnote²⁴ reads as follows:

'Such a provision refers to the possibility for appropriate reparations to be granted not only to victims but also to others such as the victims' families and successors. For the purposes of interpretation of the terms "victims" and "reparations", definitions are contained in the text of article 44, paragraph 4 of the Statute [corresponding to article 43.6 of the *Rome Statute*], article 68, paragraph 1, and its accompanying footnote²⁵, the Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power (General Assembly resolution 40/34 of 29 November 1985, annex) and the examples in paragraphs 12 to 15 of the revised draft basic principles and guidelines on the right to reparation for victims of gross violations of human rights and humanitarian law (E/CN.4/Sub.2/1996/17).'

The Assembly of States Parties confirmed the decisions of the Rome Conference when it adopted a comprehensive and inclusive definition of victims in Rule 85 of the Rules of Procedures and Evidence, thus leaving no doubt as to the interpretation of the wording '*in respect to victims*'. And the UN General Assembly adopted the *Basic principles and guidelines on the right to a remedy and reparations for victims of gross violations of international human rights law and serious violations of international humanitarian law* on 16 December 2005 through Resolution 147 (A/Res/60/147), which includes almost the same definitions of reparations and its modalities contained in the basic principles and guidelines.

The Court is obliged to establish principles relating to reparations in each case before it that results in a conviction. Thus, its verdicts shall include prescriptions on the right to restitution, compensation and rehabilitation, even in cases in which the relevant Chamber would not decide to make any determination regarding specific mean(s) of restitution (*i. e.* the return of *certain* stolen property), the *quantum* of compensation or modalities aimed at contributing to rehabilitation. With respect to cases involving large numbers of victims and/or very limited assets of the convicted person(s), the principles established by the Court may be utilised as legal bases for national proceedings and/or *ad hoc* arrangements between National or international entities (*i. e.* the establishment of a claims' commission), as well as to secure the co-operation of States in which the assets of the perpetrators are located in accordance with the provisions set out in article 109²⁶, without forgetting the subsidiary role that the Trust Fund for Victims can play under article 79 of the Statute.

Principles on fair restitution to victims, their families and assigns 'should include: 1. the return of property, 2. the payment of the harm or loss suffered, 3. the reimbursement of expenses incurred as a result of the victimisation [including legal and medical assistance], 4. the provision of services and 5. the restoration of rights'²⁷.

²³ It is important to stress that the Rome Conference's Working Group on Procedural Matters reached general agreement on the text of the following footnote concerning the definition of victims under article 68. The footnote, included in its report to the Drafting Committee (see comments on article 68, mn. 36), reads as follows: 'In the exercise of its powers under this article, the Court shall take into consideration the United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power.' The ICC Draft Statute contained also a footnote to article 73 stating that for the purposes of defining 'victims' and 'reparations', reference should be made to the *Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power* and the *Draft Principles and Guidelines on the Right to Reparation for Victims of Violations of Human Rights and International Humanitarian Law* (see literature). See Donat-Cattin, article 68, margins No. 35 and 37.

²⁴ UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.7, p. 5, reprinted in: D. Donat-Cattin (ed.), see note 21, 39.

²⁵ Footnote reproduced in note 23.

²⁶ See mn. 23.

²⁷ See Clark, *Declaration* 361, commenting on the provisions on restitution of the UN Declaration on Victims' Rights. Regarding the necessary functions to be performed by the competent State(s) in a matter as complex as the restoration of civil, social or economic rights of individual victims, see mn. 13.

- 12 Rehabilitation means any form of assistance to victims as described in paragraphs 14 to 18 of the UN Declaration on victims' rights and in para. 14 (and, as appropriate, para. 15) of the revised basic principles and guidelines on the right to reparations²⁸. Rehabilitation of the individual victims may be attained both through individual or collective reparations, as recognised by the first decision on principles of reparations in the Lubanga case²⁹, which finds its legal basis also in rule 97 entitled 'Assessment of Reparation'. Rule 97 explicitly introduces the terms 'collective basis' for reparations in the ICC legal framework under article 21(1). Measures of rehabilitation should not be left to the very last moment of the

²⁸ See above the footnote reproduced in mn. 9 as approved at the Rome Conference, which contains an authentic interpretation of article 75 para. 1. That footnote refers to the concept of rehabilitation (or assistance) as reflected in paras. 14 to 17 of the 1985 UN Declaration on victims' rights, which are clearly addressed to States and their responsibility towards victims of crimes and abuse of power, and in para. 14 of van Boven's *Basic Principles*. Paras. 14 to 17 of 1985 Declaration read as follows:

- '14. Victims should receive the necessary material, medical, psychological and social assistance through governmental, voluntary, community-based and indigenous means.
- 15. Victims should be informed of the availability of health and social services and other relevant assistance and be readily afforded access to them.
- 16. Police, justice, health social service and other personnel concerned should receive training to sensitise them to the needs of victims, and guidelines to ensure proper and prompt aid.
- 17. In providing services and assistance to victims, attention should be given to those who have special needs because of the nature of the harm inflicted or because of factors such as those mentioned in paragraph 3 above [the principle of non-discrimination].'

Para. 14 of the revised draft basic principles and guidelines on the right to reparation for victims of gross violations of human rights and humanitarian law (E/CN.4/Sub.2/1996/17) reads:

- '14. *Rehabilitation* shall be provided and will include medical and psychological care as well as legal and social services.'

In addition, para. 15 of the Bassiouni *Basic Principles*, which regards '*satisfaction and guarantees of non-repetition*', may be partially applied by the Court's judges – as appropriate – in the context of rehabilitation. It reads:

- '15. Satisfaction and guarantees of non-repetition shall be provided including, as necessary:
 - (a) Cessation of continuing violations;
 - (b) Verification of the facts and full and public disclosure of the truth;
 - (c) An official declaration or a judicial decision restoring the dignity, reputation and legal rights of the victim and/or persons closely connected with the victim;
 - (d) Apology, including public acknowledgement of the facts and acceptance of responsibility;
 - (e) Judicial or administrative sanctions against persons responsible for the violations [author's note: the notion that certain penalties would have been 'appropriate forms of reparation' was rejected at the Rome Conference];
 - (f) Commemorations and paying tribute to the victims;
 - (g) Inclusion in human rights training and in history or school textbooks of an accurate account of the violations committed in the field of human rights and international humanitarian law;
 - (h) Preventing recurrence of violations by such means as:
 - (i) Ensuring effective civilian control of military and security forces;
 - (ii) Restricting the jurisdiction of military tribunals only to specifically military offences committed by members of the armed forces;
 - (iii) Strengthening the independence of the judiciary;
 - (iv) Protecting persons in the legal profession and human rights defenders;
 - (v) Conducting and strengthening, on a priority basis, human rights training to all sectors of society, in particular to military and security forces and to law enforcement officials.'

²⁹ Cf. paras. 218–221, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2904, Trial Chamber I, Decision Establishing the Principles and Procedure to be applied in Reparations, 7 August 2012. At para. 220, the Chamber finds that '[i]ndividual and collective reparations are not mutually exclusive, and they may be awarded concurrently', while at para. 221 the Chamber stipulates that, '[w]hen collective reparations are awarded, these should address the harm the victims suffered on an individual and collective basis. The Court should consider providing medical services (including psychiatric and psychological care) along with assistance as regards general rehabilitation, housing, education and training'. The '[o]ther types of reparations, for instance those with a symbolic, preventative or transformative value' (Cf. para. 222), which the Chamber considers 'appropriate' and not excluded by the language of Article 75, can be subsumed under the broad notion of rehabilitation. In fact, reparative measures such as (i) guarantees of non repetition and (ii) satisfaction (for the communities to which individual victims belong) may have a rehabilitative meaning for victims. Victims may seek such assurances and public acknowledgements of the truth in order to deter the emergence of negationist theories as part of the process of their full rehabilitation as members of a society that respects the Rule of Law and fulfils the political and legal imperative of the never again (*nunca mas*).

proceedings (the sentencing), but should be adopted in conjunction with protective measures *ex article 68* throughout the entire procedure before the Court, starting with the Pre-Trial stage. Participation in the proceedings *ex article 68(3)* may, in and of itself, constitute a form of rehabilitation for those victims who, as right-bearers, freely determine to exercise their right to access to justice. Therefore, rehabilitation cannot be limited to forms of reparations imposed on the convicted persons, but must be also conducted within society at large, in order to help victims to promptly recover from trauma. In this respect, (i) the ICC Assembly of the States Parties correctly attributed an ‘assistance mandate’ to the Trust Fund³⁰, (ii) the Rome Statute allows the Court’s Victims and Witnesses Protection Unit to assist victims, and (iii) any other independent and impartial body of governmental or non-governmental nature may assist victims with programmes of rehabilitation and support, including ‘emergency financial assistance, logistical help and expert advice’³¹.

Reparation is a broad and flexible concept, which has been introduced in the Statute to allow the judges to decide upon the widest possible range of means of remedy to victims’ rights violations. It follows that, especially in cases of mass or collective victimisation, ‘reparation’ may be better achieved through means other than restitution or monetary compensation. Indeed, such measures could be qualified as non-pecuniary forms of compensation or means of rehabilitation, insofar as they have a wider scope than compensating individual victims while they respond to the need to acknowledge publicly and transparently the causes, effects and remedies of international crimes, as well as to restore the dignity of victims in a societal context. Such measures – contained in the sentence of conviction as forms of reparations – may include: apology, commemoration, ‘public insurance’. The 1998 UN Handbook on Justice of Victims of Crime provides for the following descriptions of these means:

‘Apology. In some cultures, the admission of responsibility and an apology to the victim may help to satisfy the interests of justice and the needs of victims’³².

Commemoration. The commemoration of victims has an important moral significance. An example is a commemorative observance of an event (such as Holocaust day in Israel), the erection of a monument, or naming a park or other area in commemoration of the heroism or martyrdom of a victim or victims.

Public Insurance. In many jurisdictions, victims may have access to the basic social, health, mental health, and other public insurance systems for many of their victimisation-related needs. [...]’

These types of reparation need either the cooperation of the relevant State(s) or the voluntary collaboration of the convicted person, as recognised by the ICC Appeals Chamber

³⁰ See Khan, *article 79*.

³¹ See Clark, *Declaration 363*. Reference must also be made to the efforts of the ICTR Registry to achieve rehabilitation of victims under the extremely limited mandate of UN Security Council resolution 855/1995 establishing the ICTR. A.U. Okali (ICTR Registrar 1997–2000) presented the concepts of restorative justice and victims’ rehabilitation in the opening remarks of the III session of the Arusha School on International Criminal Law and Human Rights, 23 Feb. 1998. He reiterated them in a document submitted to the Victims Rights Working Group during the March–April 1998 meeting of the Preparatory Committee: Okali, *Note. Rwanda Genocide: Towards a Victims-Oriented Justice. The Case for an ICTR Assistance to Victims Programme* (on file with the author). In 2000, the plenary sessions of the ICTR and ICTY Judges considered a proposal on ‘victims’ compensation and participation’ of the Prosecutor – which was a common organ to both Tribunals until 2003 – and made submissions to the UN Security Council recommending the creation of an appropriate mechanism for the ‘compensation’ of victims within the UN system (Cf. ICTY, *Victims Compensation and Participation – Judges’ Report of 13 September 2000*, on file with the author, also referred to by De Brouwer, A.M., *Seenational Criminal Prosecution of Sexual Violence–The ICC and the Practice of the ICTY and ICTR* (Intersentia, 2006), 406). The Security Council failed to consider and support the *ad hoc* Tribunals’ proposals on victims’ rights, thus proving its unwillingness to remedy one of the most serious statutory pitfalls of the Tribunals.

³² An example of public apologies is given by the television-broadcasted apologies made by the President of the Serbian entity (*Republika Srpska*) of Bosnia and Herzegovina (at that time, Ms. Biljana Plavšić) to the Bosnian people for the crimes committed by the Serbian side in the Bosnian conflict of 1991–1995. Such a measure was imposed in the framework of the Dayton Peace Agreements and had a strong impact on the increasing isolation of the former Serbian-Bosnian authorities, including the former President, Karadžić, and the former head of the army, Mladić, who had been obliged to leave their public functions by the same Agreements as persons indicted by the ICTY for genocide, crimes against humanity and war crimes.

in connection with the Katanga's decision to apologise for his crimes after conviction³³. With respect to the fundamental rights of the convicted person, it would be unacceptable to oblige him/her to apologise unless the declaration of apology would be genuine and sincere vis-à-vis the victim(s). This is in line with the basic assumption that a Court's judgement may not oblige an individual to repent, thereby infringing upon his/her freedom of determination and inner moral sphere. In addition, orders of such a nature would not be enforceable. Conversely, the Court's decisions establishing principles relating to reparations can facilitate and be conducive to the perpetrators' determination to put in place conduct and behaviours that may bring about some level of satisfaction for, and in respect to, the victims.

- 14 Last, but not least, principles relating to compensation may just refer to the available national procedures under which individual victims may have effective access to an appropriate civil remedy. However, if this is not the case in a given situation (*i.e.*, the domestic legal system concerned is collapsed, or mechanisms of compensations are not available due to lack of political will to support victims), the Court should operate in accordance with the general principle of fairness ('equality of all before the law') and allow the access of victims to other sources of monetary compensation, including the ICC Trust Fund envisaged by article 79 and established, regulated and managed by the Assembly of the States Parties.
- 15 The first decision by a Trial Chamber on principles of reparations³⁴, while re-affirming the broad scope of reparations and their individualised character vis-à-vis the needs of the victims³⁵, has failed to directly establish principles for the benefit of the victims participating in the trial. In fact, child-soldiers entitled to participate under article 68(3) as victims of the war crime of 'enlisting and conscripting children under the age of 15 and using them to participate actively in the hostilities' obtained a pronouncement on certain principles applicable not only to them, but also to other child-soldiers and other victims who suffered harm as a consequence of the limited crimes for which Lubanga has been convicted: These victims are entitled to make representations in a procedure to be instituted by the Trust Fund for Victims, where ultimately the requests of reparations of Lubanga's trial participating victims will be considered, under the Trial Chamber's supervision. The standard proof to be used in these procedures, in which victims are parties (not participants) who must prove the harm suffered, is the 'balance of probabilities'³⁶, not the 'beyond reasonable doubt' standard

³³ See the Annex A to *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3497, Defence Notice of Discontinuance of Appeal against the 'Judgement rendu en application de l'article 74 du Statut' rendered by Trial Chamber II on 7 April 2014, Appeals Chamber (25 June 2014). The Prosecutor recognised the authenticity of 'Germain Katanga's expression of sincere regret to all those who have suffered as a result of his conduct, including the victims of Bogoro' and decided to discontinue her appeal against the 12 years' sentencing judgement: Cf. *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3498, Prosecutor, Notice of Discontinuance of the Prosecution's Appeal against the Article 74 Judgment of Conviction of Trial Chamber II date 7 March 2014 in relation to Germain Katanga, Appeals Chamber, 25 June 2014, para. 2. However, the legal representatives of victims expressed profound doubts concerning the validity of Katanga's expression of regret, given that it was formulated a few weeks after he had been found guilty beyond reasonable doubt for atrocity-crimes and had an interest in the discontinuance of the appeal made by the Prosecutor, which occurred on the same day of Katanga's quasi-apologies: Cf. *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3505, Decision on the victims' requests to participate in the appeal proceedings, Appeals Chamber, 24 July 2014, para. 8. A statement of principle on the voluntary nature of apologies is also contained in para. 179 of the Lubanga's Trial Chamber decision summarized at mn 15.

³⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2904, Trial Chamber I, Decision Establishing the Principles and Procedure to be applied in Reparations, 7 August 2012.

³⁵ *Ibid.* at paras. 180 and 181, which read as follows: '180. In the Chamber's view, reparations, as provided in the Statute and Rules, are to be applied in a broad and flexible manner, allowing the Chamber to approve the widest possible remedies for the violations of the rights of the victims and the means of implementation. The Court should have a real measure of flexibility in addressing the consequences of the crimes that Mr. Lubanga committed in this case (*i.e.* enlisting and conscripting children under the age of 15 and using them to participate actively in the hostilities). 181. Although in this decision the Trial Chamber has established certain principles relating to reparations and the approach to be taken to their implementation, these are limited to the circumstances of the present case. This decision is not intended to affect the rights of victims to reparations in other cases, whether before the ICC or national, regional or other international bodies.'

³⁶ *Ibid.* at para. 253, including its footnote 439 on the relevant definition, which is reproduced below in fn. 45.

required for conviction in article 66. The theory of 'proximate cause'³⁷ should replace the causation theory that is required for a sentence of conviction or acquittal. The Trust Fund for Victims should appoint a panel of experts to assess the harm suffered by the victims in a number of different localities, and shall decide on a 'reparation-plan'. At the end of this procedure, Trial Chamber I retains the prerogative to consider and approve 'proposals for collective reparations' presented by the Trust Fund³⁸, which received the instruction to apply and interpret the Chamber's principles on reparations and procedures, with the view to render reparation orders (margins 17 to 20 below), even if the Chamber anticipated that a newly constituted Chamber shall not 'issue specific orders to the TFV on the implementation of reparations that are to be funded using voluntary contributions'³⁹. But the Trial Chamber went beyond the establishment of principles, as required by Art. 75, and relevant procedures because it re-stated matters already defined in the legal framework of the Court, such as the definition of victims (paras. 194 to 197), the obligation to respect 'human dignity, non-discrimination and non-stigmatisation' (paras. 187 to 192) and the self-evident concept that '[v]ictims should receive appropriate, adequate and prompt reparations' (para. 242). More significantly, the Chamber inferred from the applicable law of the ICC that reparations' procedures shall ensure 'accessibility and consultations with victims' (paras. 202 to 206), including a 'gender-inclusive approach' in such procedures (para. 202), which must be 'multidisciplinary', 'gender sensitive' (paras. 207 to 209) and 'entirely voluntary' in nature, hence entailing that 'the informed consent of the recipient is necessary prior to any award of reparations' (para. 204). The Chamber also emphasised that reparations' procedures shall be 'in the best interests of children' and shall conform with children rights and needs (paras. 210 to 212). The actual principles established in the respect of Lubanga's victims are fewer than the above-cited restatements of the law and they may be identified as follows: (i) 'Reparations should secure, whenever possible, reconciliation between the convicted person, the victims of the crimes and the affected communities' (para. 193); (ii) most vulnerable victims shall have precedence over others, whereby the most vulnerable are identified with 'victims of sexual or gender-based violence, individuals who require immediate medical care (especially when plastic surgery or treatment for HIV is necessary), as well as severely traumatized children, for instance following the loss of family members', in respect of whom the Chamber stated that 'affirmative action' may be required to secure participation in reparations' procedures (para. 200); (iii) children's reparations must be rehabilitative in nature, along the specific lines prescribed in para. 213⁴⁰ and other sections devoted to child-soldiers' post-victimisation that, ultimately, can justify the interpretation of this decision given by the Appeals Chamber as entailing a reparations' order.⁴¹

³⁷ Cf. *ibid.* at paras. 249 (especially footnote 434 that refers to relevant IACtHR jurisprudence and literature) and 250, which stipulates that the TFV should determine that 'the crimes for which Mr Lubanga was convicted were the 'proximate cause' of the harm for which reparations are sought".

³⁸ Cf. *ibid.* at para. 289(c).

³⁹ Cf. *ibid.* at para. 289(d), to be read in combination with para. 254, which justifies a wider delegation of power to the TFV on the basis of the fact that the convicted person was found indigent and the resources for reparations to be decided by the TFV are expected to originate from voluntary contributions by States or other Parties and not from the convicted person against which the Chamber may make a reparations' order: see margins 19 and 20.

⁴⁰ Due to its relevance, para. 213 *ibid.* is hereby reproduced: 'Reparations proceedings, and reparations orders and programmes in favour of child soldiers, should guarantee the development of the victims' personalities, talents and abilities to the fullest possible extent and, more broadly, they should ensure the development of respect for human rights and fundamental freedoms. For each child, the measures should aim at developing respect for their parents, cultural identity and language. Former child soldiers should be helped to live responsibly in a free society, recognising the need for a spirit of understanding, peace and tolerance, showing respect for equality between the sexes and valuing friendship between all peoples and groups.'

⁴¹ Cf. *Prosecutor v. T. Lubanga Dyilo*, ICC-01/04-01/06-2953, Decision on the admissibility of the appeals against Trial Chamber I's Decision establishing the principles and procedures to be applied to reparations and directions on the further conduct of proceedings, Appeals Chamber, 14 December 2012, paras. 49–64 that fall under the rubric 'nature of the Impugned Decision and the admissibility of the appeals'. In these complicated paragraphs, the five Judges' panel finds that the Trial Chamber implicitly issued an order, without prejudice to the merits of the appeals' proceedings versus the Trial Chamber's decision. Given that a reparations' order must

- 16 The Trial Chamber invited a broad category of victims to participate in a separate procedure to be arranged before the Trust Fund for Victims out of a concern that attributing reparations only to a small number of child-soldiers' victims could have been seen as discriminatory or unfair by other victims not covered by the excessively focussed charges formulated by the Prosecutor. In particular, the Trial Chamber's decision may imply that victims of rape, sexual enslavement, murder and other Rome Statute crimes (materially committed by the child-soldiers as '*instrumenta criminis*' of Lubanga) would have access to reparations' procedures before the Trust Fund, even if they had been excluded from the trial due to the restricted charges. While several elements of this Lubangareparations' decision are still under appeal at the time of completion of this Commentary's III edition, it must be stressed that it is not the role of the ICC to create equal opportunities on access to reparations for all victims in a given situation, as also reflected by the Statute in the unequivocal language of para. 6, article 75, the non-prejudice clause. The mandate of the Court's organs is to apply the law in specific cases, which however should be representative of the 'most serious crimes of concern to the international community as a whole' committed by a given individual. If future ICC trials will regard a wider range of charges than the ones for which Lubanga was prosecuted and convicted in first instance, the relevant Chamber may be more comfortable in establishing principles applicable to, and in respect of, the victims of the crimes adjudicated before it, including the victims who participated in the trial proceedings. This appears to be the direction taken by Trial Chamber II in organising the reparations' hearings after the final conviction of Katanga.⁴²

2. Decision of the Court

- 17 In addition to the general rule, paragraph 1 allows the Court to *determine the scope and extent of any damage, loss and injury*. Thus, on the basis of the evidence obtained, the ICC may go beyond the establishment of principles relating to reparations and identify *in concreto* the means of reparation and make any relevant determination on the *quantum* of damage, loss and injury⁴³. Such a process may be initiated by the Court itself, in exceptional circumstances, or upon request of the parties. *Exceptional circumstances* should be identified by the judges when they examine the concrete situation of victims. Certain victims could suffer the dramatic consequences of criminal conduct, including continued offences (*i.e.*, enforced disappearances constituting crimes against humanity under article 7) or repeated offences. Others may have a non-sufficient level of understanding of their right of 'access' to the Court or any available domestic remedy, in accordance with the principle of complementarity.

be specific, only few elements of the Lubanga's decision on principles of reparation can be interpreted as entailing such an order. These elements of specificity can be found, in the view of this author, only in the following three paragraphs concerning rehabilitation measures, which give effect to para. 213:

'233. Rehabilitation shall include the provision of medical services and healthcare (particularly in order to treat HIV and Aids); psychological, psychiatric and social assistance to support those suffering from grief and trauma; and any relevant legal and social services. 234. Rehabilitation of the victims of child recruitment should include measures that are directed at facilitating their reintegration into society, taking into account the differences in the impact of these crimes on girls and boys. These steps should include the provision of education and vocational training, along with sustainable work opportunities that promote a meaningful role in society. 235. The rehabilitation measures ought to include the means of addressing the shame that child victims may feel, and they should be directed at avoiding further victimisation of the boys and girls who suffered harm as a consequence of their recruitment.'

(Cf. *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2904, Trial Chamber I, Decision Establishing the Principles and Procedure to be applied in Reparations, 7 August 2012).

⁴² *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3508, Order instructing the Registry to report on applications for reparations, Trial Chamber II, 27 August 2014, paras. 7 to 11, which succinctly anticipates a scenario in which the Trial Chamber may not delegate to the Trust Fund its judicial mandate to decide on reparations.

⁴³ It will be exclusively for the jurisprudence of the Court to set a coherent record of decisions concerning the qualification of concepts such as damage, loss and injury. The Court will make use of the sources of law enlisted in article 21: see deGuzman, *article 21 (Applicable law)* and Donat Cattin, '*Il Diritto Applicabile*', in: Lattanzi and Monetti (eds.), *La Corte Penale Internazionale: Organi-Competenza-Reati-Processo* (Giuffrè 2006) 269.

While the first pronouncement on reparations of the Lubanga Trial Chamber has been appealed also on the basis of the fact that the Chamber *de facto* delegated its authority to take a decision to the Trust Fund for Victims, the second Trial Chamber has taken the view of organising reparations' hearings to ascertain the harm suffered by victims willing to exercise their right to apply for reparations after the definitive conviction of Mr. Katanga.⁴⁴

It goes without saying that all decisions and determinations of the Court on concrete types, modalities and forms of reparation must be fully in line with the principles relating to reparations to be established by the Court itself at the very outset of this adjudication procedure. In line with the *travaux préparatoires* of article 75, the standard of proof concerning the causality-link between the crime for which the person has been found guilty beyond reasonable doubt and the harm suffered by the victim is the 'balance of probabilities', at least in accordance with the first jurisprudence of the Court on reparations.⁴⁵ This stems from a systematic interpretation of the Rome Statute's procedural law that is substantially in line with the prevailing practice in 'civil law' penal jurisdictions.

II. Paragraph 2: Orders 'directly against a convicted person'

Individual convicted persons may be the 'natural target' against whom the Court could make orders concerning restitution, awards of compensation and means of rehabilitation. The statutory language is once again of a permissive nature (the Court *may*), thus underlining the potential application of the provision, as it is deemed appropriate by the Court's judges. This may make sure that expeditiousness in adjudication is not jeopardised by complex decision-making in the area of reparations. Judges have, *inter alia*, to assess the concrete capacity of the convicted person(s) to provide reparations on the basis of his or her assets and prospective ability to generate income or other immaterial goods.⁴⁶

As affirmed above, the integrative role of the Trust Fund is absolutely essential, especially in light of the exclusion from the Statute of any direct form of State responsibility to provide means for reparations 'on behalf of' the convicted persons, including where the latter was acting in the official capacity of State agent in committing the offence, and he/she is unable to provide victims with reparations⁴⁷. Furthermore, article 79 was drafted precisely in order to integrate article 75, insofar as it affirms that the Trust Fund is *for the benefit of victims* [...]

⁴⁴ See *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3508, Order instructing the Registry to report on applications for reparations, Trial Chamber II (27 August 2014), paras. 7 to 11.

⁴⁵ Due to its relevance and interpretative importance, para. 253 of the Lubanga Reparations' Decision (see note 34) is hereby reproduced in its *entirety*, including its extremely significant footnote 439:

'253. Given the Article 74 stage of the trial has concluded, the standard of 'a balance of probabilities' is sufficient and proportionate to establish the facts that are relevant to an order for reparations when it is directed against the convicted person.[Footnote] 439: 'The term "balance of probabilities" is also described as a "preponderance of proof" or "balance of probability"'. Black's Law Dictionary defines it as: 'the greater the weight of the evidence, not necessarily established by the greater number of witnesses testifying to a fact but by evidence that has the most convincing force; superior evidentiary weight that, though not sufficient to free the mind wholly from all reasonable doubt, is still sufficient to incline a fair and impartial mind to one side of the issue rather than the other'. Black's Law Dictionary, Eighth Edition, Garner (ed.), 2004, page 1220. It is important to note that during the Preparatory Commission some delegations suggested that the evidence standard should be based on a 'balance of probabilities', as opposed to the 'beyond reasonable doubt' standard applied in criminal proceedings. Many reparations programmes dealing with mass claims have also adopted flexible evidential standards based on a 'plausibility test' in order to accommodate the situation of the victims, who usually have difficulties in providing the documentation that is required. See Lewis and Friman, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2000) 486.

⁴⁶ Reference is made to the Lubanga Reparations' Decision, see note 34, at para. 269, which states that '[t]he convicted person has been declared indigent and no assets or property have been identified that can be used for the purposes of reparations. The Chamber is, therefore, of the view that Mr. Lubanga is only able to contribute to non-monetary reparations.' The Appeals Chamber decided instead that Lubanga is liable even if found indigent, as he will be obliged to refund the Trust Fund for the 'advance' that the Fund may decide to pay for reparations (paras. 52 and 58), order for reparations (amended) annexed to the Lubanga Reparations' Appeal Decision.

⁴⁷ Article 73 para. 2 (b) of the ICC Draft Statute contained the following heavily bracketed provisions:

and of the families of such victims (cf. Article 79 para. 1), and that the Court may order money and other property collected through fines or forfeiture to be transferred [...] to the Trust Fund (cf. Article 79 para. 2). In fact, the penalties⁴⁸ of fines (cf. Article 77 para. 2 (a)) and forfeiture of proceeds, property or assets derived directly or indirectly from [a] crime (cf. Article 77 para. 2 (b)) have absorbed the so-called exemplary element or punitive element that could have been comprised in the awards of compensation according to the UK proposal on reparations presented at the Preparatory Committee, which was merged with the French proposal in the bracketed text of article 73 of the ICC Draft Statute⁴⁹. The Rules of Procedure and Evidence adopted by the Assembly of States Parties and the other regulatory instruments of the Court and of the Trust Fund have confirmed the functioning of a regime in which the assets collected by the Court must be directed to the victims and their families. In 2011, the ASP adopted a resolution on reparations in which States tried to influence the judicial interpretation of article 75 in order to avoid the unlikely scenario that orders for reparations against a convicted person would imply the use of assessed contributions or other direct financial contributions of States Parties⁵⁰. This resolution is, however, not legally binding for the Judges and other Court organs since ASP resolutions are no source of law within the meaning of article 21.

III. Paragraph 3: Invitation and account of representations

- 21 A literal interpretation of paragraph 3 of article 75 seems not to add anything, in the victims' perspective, to the general rule on victims' participation in the ICC proceedings contained in article 68 para. 3. To a certain extent, paragraph 3 of article 75 appears to reduce the victims' right of intervention into a mere faculty, as far as the particular stage of reparation hearings after conviction is concerned (cf. article 76 para. 3). The verb used is *may* ('the Court may invite [...] victims [...]'), whereas article 68 para. 3 states that 'the

'In accordance with the principles established by the Court: [...] (b) [The Court may also [make an order] [recommend] that an appropriate form of reparations to, or in respect of, victims, including restitution, compensation and rehabilitation, be made by a State]: [if the convicted person is unable to do so himself/herself; [and if the convicted person was, in committing the offence, acting on behalf of that State in an official capacity, and within the course and scope of his/her authority]].'

Just before the Rome Conference, I wrote: '[...] the authors of this proposal – namely, the French delegation to the Preparatory Committee – convinced neutral observers and a substantial number of negotiators with comments on the limited nature of the provision of para. 2 (b), article 73. This is strictly connected with the need, for instance, to ensure that rehabilitation for victims/survivors who have been expelled from a public office is fulfilled through the following measures under para 2 (b):

- (i) their re-assignment to that public office by the State,
- (ii) the apology on behalf of the State by the new regime for the crimes committed by the previous leader(s) of the State who was sentenced guilty before the ICC.

It is therefore only in situations in which this form of reparation cannot be made by the individual perpetrator, a former official of the State, that the ICC may request the necessary co-operation of State(s) in order to guarantee that justice for victims is done.' Cf. Donat-Cattin, in Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica, 1998), 251.

Unfortunately, the great majority of States participating in the ICC Statute negotiations firmly opposed any form of 'subsidiary State responsibility' in the framework of reparation to victims. Therefore, para. 2 (b) was deleted by consensus from the text of article 73 (now 75). Yet, the decision of the Court on reparations may still determine the appropriate cooperation of States under article 86 of the Rome Statute and general international law. For the relevant practice of States on responsibility and reparation, see: ICRC, *Customary International Humanitarian Law – Vol. I Rules* (2005) 530.

⁴⁸ Such types of penalties are defined as 'additional', because they may be imposed only after the principle penalties of imprisonment or life imprisonment. See Fife, *article 77*.

⁴⁹ *Ibid.* note 34.

⁵⁰ Cf. operative para. 2, Resolution ICC-ASP/10/Res.3, ICC-ASP/10/20, 20 December 2011, stressing 'that as liability for reparations is exclusively based on the individual criminal responsibility of a convicted person, under no circumstances shall States be ordered to utilize their properties and assets, including the assessed contributions of States Parties, for funding reparations awards, including in situations where an individual holds, or has held, any official position'.

Court *shall* permit their views and concerns to be presented and considered [...]’⁵¹. Such a contradiction confirms this author’s interpretation of article 68 para. 3, as it stresses that victims have – first of all – a general right to be ‘potential parties’ in the proceedings and may decide to make representations, upon invitation of the Court, in the post-conviction stage, in which the need to protect the interest of the convicted person prevails over the legitimate quest for punishment from victims⁵². It is, indeed, in the course of the trial and pre-trial stages of the penal process that victims or their representatives have the right to inform the Court of their views and concerns related to reparations, elements of evidence and any other issue connected to the crimes allegedly committed against them.

However, there is a substantial difference between this paragraph in the English version of the Statute and the corresponding one of, at least, other two official languages of the UN, namely, French and Spanish. The latter official texts do not include the wording ‘*may invite*’, but limits the content of article 75 para. 3 to the fact that *the Court shall take account of representations from or on behalf of the convicted person, victims, other interested persons or interested States*⁵³. Thus, serious doubts of interpretation arise as to the invitation by the Court before making an order on reparations. In fact, when the Court decides that representations from persons mentioned in the paragraph or States would be useful for its decisions, the Court may invite them to do so. In any case, once these representations take place, the Court is obliged to take them into account.⁵⁴

Not only victims, but also other interested persons, such as *bona fide* third parties (*i. e.*, 22 owners of property formerly belonging to victims), and the convicted person are entitled to be heard by the Court on measures concerning reparations. Such entitlement stems from the combined reading of article 75 para. 3 and article 76 para. 3, which provides that the potential ‘sentencing hearing’ may become the ‘reparations hearing’ where all representations under article 75 *shall* be heard⁵⁵. Whereas the possibility to grant locus standi to persons appears to be reasonable in the framework of a fair trial to individuals, as far as they could be affected by the Court’s decisions, the possibility for the Court to invite States to make representations is much more restricted, especially because States have a role *stricto sensu* in the penal process only when there is an issue of admissibility of a case before the ICC. Furthermore, the Draft Statute’s provisions related to orders against certain States to make appropriate forms of reparations⁵⁶ were not adopted. Yet, one case in which a State could be

⁵¹ See Donat-Cattin, *article 68*, mn. 24.

⁵² As I have written on several occasions, the role of victims in the proceedings is that of ‘guardians of the fairness of the prosecution, not agents in search for retribution’.

⁵³ The Spanish text, as negotiated and adopted in Rome, reads as follows:

‘La Corte, antes de tomar una decisión con arreglo a este artículo, tendrá en cuenta las observaciones formuladas por el condenado, las víctimas, otras personas o Estados que tengan un interés, o las que se formulen en su nombre.’

The French text, in the same vein, states:

‘Avant de rendre une ordonnance en vertu du présent article, la Cour tient compte de toutes observations formulées par la personne condamnée, les victimes, les autres personnes intéressées ou les Etats intéressés, ou au nom de ces personnes ou de ces Etats.’

⁵⁴ The initial practice of the Court has not been consistent on this point, suggesting that various interpretative avenues are plausible: In Katanga, Trial Chamber II issued an order that may be seen as a preparatory step to victims’ representations on reparations (see paras. 7 to 12 of the Decision cited in see note 42). In Lubanga, Trial Chamber I deferred all applications from, and relevant consultations with, victims to the Trust Fund (see para. 289(b) of the Decision cited in see note 34).

⁵⁵ The post-conviction hearing(s) on reparations are disciplined by rules 143 (‘Additional hearings on matters related to sentence or reparations’), 96 (‘Publication of reparation proceedings’) and 97 (‘Assessment of reparations’) of the Rules of Procedure and Evidence, while rules 94 (‘Procedure upon request’ [of the victims]) and 95 (‘Procedure on the motion of the Court’) regard the commencement of the reparations’ proceedings, which may take place at any stage of the proceedings in which victims have the right to participate. However, In accordance with Regulation 56 (‘Evidence under article 75’) of the Regulations of the Court, ‘*The Trial Chamber may hear the witnesses and examine the evidence for the purposes of a decision on reparations in accordance with article 75, paragraph 2, at the same time as for the purposes of trial.*’

⁵⁶ See the relevant text reproduced in see note 47.

reasonably entitled to intervene in reparations' proceedings may be when the State is a *bona fide* third party. Another instance of State's participation could be when the convicted perpetrator was a public official of such State, and measures of reparations may regard the restoration of rights or the public acknowledgement of the crimes. These measures, although addressed against the convicted person, could be effectively implemented only with the essential co-operation of Governmental institutions, including through judgements against the State by domestic civil Tribunals or regional human rights Courts, judgements that could be also based upon previous decisions on reparations of the ICC.

IV. Paragraph 4: Necessary 'measures under article 93, paragraph 1'

- 23 The apparently superfluous inclusion and repetition of the words *under this article* contained in this paragraph indicate the problematic nature of the compromise reached at the Rome Conference on this provision, aimed at linking reparations to co-operation of States with the ICC. Such a co-operation is particularly important with respect to the *identification, tracing and [above all] freezing or seizure of proceeds, property and assets and instrumentalities of crimes for the purpose of eventual forfeiture, without prejudice to the rights of bona fide third parties* (cf. Article 93 para. 1 (k)). It is obvious that, if appropriate protective measures of a provisional nature are not timely undertaken, the accused has the chance to hide or 'destroy' all means and results of any alleged criminal conduct. Indeed, to freeze assets makes justice effective and reparations possible.
- 24 Notwithstanding these compelling arguments in favour of effective protective measures, several States participating in the ICC negotiations had been extremely cautious in dealing with this matter. On one hand, they based their attitude against protective measures on the strict interpretation of the presumption of innocence, and more broadly, the right of the accused not to be potentially damaged by a provisional measure such as freezing of assets (with all problematic consequences in the area of compensation for damages in the hypothesis of acquittal or pre-trial dismissal of charges). On the other hand, some States' delegates feared that 'non-crime related property'⁵⁷ could have been subject to such measures, thus infringing upon prohibitions related to property rights under their domestic law. Therefore, in the intention of some States the above provision should have limited 'protective measures' to the very advanced procedural phase *after conviction*, and should have not allowed the Court to go beyond an order *under this article*. Conversely, the Draft Statute's article 73 para. 3 did not envisage any procedural threshold after which protective measures were possible, even though it was construed in a sufficiently precise manner to avoid provisional requests on matters not pertaining to reparations as enshrined in the Statute⁵⁸.

There is, however, a statutory norm that makes possible to take protective measures before conviction, namely, article 57 para. 3 (e), which relates to powers and functions of the Pre-Trial Chamber. It states that such a Chamber – 'having due regard to the strength of the evidence and the rights of the parties concerned' – has the power to 'seek the cooperation of States, pursuant to article 93 para. 1 (k), to take protective measures for the purpose of forfeiture in particular for the ultimate benefit of victims'. In addition, and most importantly, Rule 99 of the Rules of Procedure and Evidence clarifies that 'the Pre-Trial Chamber, pursuant to article 57, paragraph 3 (e), or the Trial Chamber, pursuant to article 75, paragraph 4, may, on its own motion or on the application of the Prosecutor or at the request of the victims or their legal representatives who have made a request for reparations

⁵⁷ Language used in footnote 24 to article 73 para. 3, ICC Draft Statute (1998) referred to in see note 18.

⁵⁸ Article 73 para. 3 of the Draft Statute (1998), read:

'In exercising its power under this article, the Court may determine whether, in order to give effect to any order it may make, it is necessary to request protective measures under article 90, paragraph 1.' This provision responded to the need of preventing perpetrators from dissolving their assets and properties before any order of confiscation be made by the Court in its final determination on penalties, including fines and forfeiture measures.

or who have given a written undertaking to do so, determine which measures should be requested.’ Rule 99 is therefore providing with an interpretation of article 75 para. 4 that empowers the Trial Chamber on the matter of protective measures.

The initial jurisprudence of the first eleven years of the ICC is confirming this interpretation 25 of para. 4, at least in connection with the pre-trial phase: When confirming the charges as first judicial acts following the execution of the first two arrests, the Pre-Trial Chamber ordered the Office of the Prosecutor to take all necessary steps to identify, trace, freeze or seize the property and assets of Mr. Lubanga and Mr. Katanga⁵⁹. These requests were made for the purpose of preserving the integrity of the assets, which may be utilised for reparative measures in case of conviction of the accused persons. Similar decisions, as revealed by a 2014 order of the Trial Chamber that rendered public Pre Trial Chamber’s pronouncements regarding the *Kenyatta* and – via citation – *Bemba* cases, have been taken in the other cases, but have been kept confidential in accordance with the letter of Art. 87, para. 3. The aim of these decisions was to obtain ‘the cooperation of States pursuant to article 93(l)(k) of the Statute, to take protective measures for the purpose of forfeiture, in particular for the ultimate benefit of victims.’⁶⁰

V. Paragraph 5: Effect of decisions

Paragraph 5 describes the right of victims to seek the enforcement by national Courts of 26 the decisions of the ICC, which is binding upon all States Parties according to a systematic reading of its Parts 9 and 10. Such a general rule is implied in the Statute as a whole: States Parties shall give effect to decisions of the Court (including measures on reparations) to fulfil their obligations within the normative framework of the ‘self-contained’ treaty-based system of international criminal justice⁶¹. It is hereby submitted that this is true even if Part 10 of the Statute does not include an explicit norm posing a general obligation for States Parties to

⁵⁹ See, in particular, paras. 140 and 141 of *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-37 (ICC-01/04-01/06-8-US-Corr.), Pre-Trial Chamber I, Decision concerning Pre-Trial Chamber I’s decision of 10 February 2006 and the Incorporation of Documents into the Record of the case against Mr. Thomas Lubanga Dyilo, 24 February 2006. In para. 141, the Pre-Trial Chamber calls for the full cooperation of the Office of the Prosecutor to realise the ‘effectiveness of the reparation system’, which ‘would highly benefit from the Prosecutor’s due consideration’ of measures ‘to identify, trace, and freeze or seize the property and assets belonging to Mr. T. Lubanga D. at the earliest opportunity’. See also: *Prosecutor v. G. Katanga*, ICC-01/04-01/07-3505, Urgent request to the Democratic Republic of the Congo for the purpose of obtaining the identification, tracing, freezing and seizure of the property and assets of Germain Katanga, Pre-Trial Chamber II, 6 July 2007. Almost identical, or very similar, decisions of the Pre-Trial Chambers have been issued in respect of other cases, at very early stages of each proceeding. Most of these decisions appear to be confidential.

⁶⁰ Cf. para. 6, *Prosecutor v. Kenyatta et al.*, ICC-01/09-02/11-42, Decision Ordering the Registrar to Prepare and Transmit a Request for Cooperation to the Republic of Kenya for the Purpose of Securing the Identification, Tracing and Freezing or Seizure of Property and Assets of Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, Pre-Trial Chamber II, 5 April 2011. Para. 7 of this decision, taken by a Single Judge, cites a previous decision relating to the Bemba case and is hereby reproduced, in light of its significance, including its footnote 6: ‘[...] the Single Judge stresses that the identification, freezing and seizure of property and assets ‘[...] is necessary in the best interests of the victims’ to guarantee that, in the event of a conviction, ‘the said victims may, pursuant to article 75 of the Statute, obtain reparations for the harm which may have been caused to them’ ([Footnote] 6: *Prosecutor v. Bemba*, ICC-01/05-01/08-9-US-Exp-tENG,] Decision and Request to the Democratic Republic of Congo for the Purpose of Obtaining the Identification, Tracing, Freezing and Seizure of Property and Assets, [date not available], Pre-Trial Chamber III, para. 7)’. The latter decision is not yet public at the time of writing (3 November 2014). Conversely, the above mentioned Kenyatta et al. 2011 decision has been reclassified as public due to repeated leaks attributed to the responsibility of the Government of Kenya: see *Prosecutor v. Kenyatta*, ICC-01/09-02/11-967, Order concerning the public disclosure of confidential information, Trial Chamber V(B), 21 October 2011.

⁶¹ Draft article 73 para. 5 contained an interesting norm on the relationship between the judgement of the ICC and the duty of enforcement of National jurisdiction: ‘Victims or their successors or assigns may seek enforcement of an order [or judgement] under the present article by competent national authorities [...]’. Notwithstanding the deletion of this language aimed at ensuring the possibility for victims to obtain reparations in a civil proceeding under domestic law, the following para. 6 of article 75 (see below) does not prejudice the right of victims to make civil claims before national Courts on the basis of an ICC verdict.

recognise and enforce Court's judgements⁶². Such an obligation is, however, entailed in the system of co-operation between the Court and its member States enshrined in the Statute⁶³. This interpretation of the legal framework on cooperation has been confirmed by Trial Chamber I in its first decision on principles relating to reparations, where it affirmed that 'State Parties have the obligation, under Parts 9 and 10 of the Statute, of cooperating fully in the enforcement of orders, decisions and judgments of the Court, and they are enjoined not to prevent the enforcement of reparations orders or the implementation of awards'⁶⁴.

- 27 If reparations at the national level have already been granted to the victim (*i.e.*, through civil proceedings), the ICC shall take them into account with the understanding that the Court should only complement domestic criminal justice systems. Therefore, the Court will not order the restitution of stolen property if this was already ordered against the perpetrator and duly enforced under domestic civil law and procedure.

As for the modalities of enforcement, reference is made to article 109.

VI. Paragraph 6: No prejudice of 'rights of victims under national or international law'

- 28 This clause, common in international human rights instruments, was considered necessary because of the potential differing standards provided by national and international law⁶⁵. Reparations' regimes applicable to a given case of victimisation may differ in quality and/or quantity if such a case is examined by the ICC and by a national Tribunal or, in the European, Inter-American and African regional human rights Courts'systems (after the exhaustion of available domestic remedies). In some circumstances, national law might go further than the standards (*principles relating to reparations*) established in the ICC framework. The opposite might also be true. For instance, a national system might provide for compensation but not for other forms of reparation, such as public apologies. Therefore, paragraph 6 responds to the need of affirming that rights under international law (as codified in the law of international courts and human rights bodies, and developed in their evolving practice, as well as in customary norms) are applicable in order to avoid national authorities choosing lower standards, and to ensure that the highest standard of protection prevails⁶⁶. This is true both when: (i) the principles relating to reparations as established by the Court go beyond restrictive domestic measures of reparation; (ii) the concrete forms of reparation

⁶² For a detailed explanation concerning the absence of a general obligation on recognition and enforcement of judgements in the *Rome Statute*, see Marchesi, in: Lattanzi and Schabas (eds.), *Essays vol. I*. Article 58 of the 1994 ILC Draft Statute (*States Parties undertake to recognise the judgements of the Court*) was extensively discussed at the 1996 sessions of the Preparatory Committee. As Marchesi (*op. cit.*) writes: 'the inclusion of a provision of a general character such as the one in article 58 of the International Law Commission's draft was questioned on different grounds. Some [delegations] felt it was unnecessary, being implicit in acceptance by States of the jurisdiction of the Court, unless it was extended to mean that all States Parties were under an obligation to enforce the Court's sentences. Others pointed out that if the Court was to impose only sentences of imprisonment, article 59 of the ILC Draft was sufficient, rendering the provision in article 58 useless [some parts of ILC Draft article 59 corresponds *grosso modo* to provisions contained in article 103, *Rome Statute*]. Draft article 58 was also questioned on the merits, especially by those concerned that it might imply adoption of the continued enforcement approach, as opposed to the conversion approach, based on National procedures of recognition. Cf. *Report of the Preparatory Committee on the Establishment of an International Criminal Court*, Vol. I (*Proceedings of the Preparatory Committee During March-April and August 1996*), GA, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996) (paras. 351–355).'

⁶³ The last *considerando* of the Preamble confirms that States Parties are '[r]esolved to guarantee lasting respect for the enforcement of international justice', thus undertaking to implement Court's decisions on reparations to victims.

⁶⁴ Cf. *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2904, Trial Chamber I, Decision Establishing the Principles and Procedure to be applied in Reparations, 7 August 2012, para. 256.

⁶⁵ Cf. Redress, *Reparation for Victims in the International Criminal Court: Principles, Commentary and Recommendations for the Rome Diplomatic Conference* (1998) 23.

⁶⁶ *Ibid.*

available at the domestic level translate the Court's principles into a much more comprehensive way than as envisaged by the Court, as far as specific measures of reparation are concerned, or even attribute to victims additional means to recover from trauma. The first Trial Chamber's jurisprudence on reparations in the Lubanga case reaffirmed the importance of this non-prejudice clause⁶⁷.

This norm appears to be perfectly in line with other Statutory provisions aimed at prohibiting the interpretation of the law of the ICC as crystallising developing legal standards and/or codifying existing rules in the area of international criminal law and procedure. Article 75 para. 6 has to be read in conjunction with article 10 – affirming that *nothing* in Part 2 of the Statute *shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law [...]* – and with the complex normative definition of *Applicable law* under article 21. The comparison of these regulatory frameworks results in an unequivocal interpretation of the intention of the ICC legislator; namely, to provide victims with the highest possible degree of protection of their right to reparations, whether within or outside the Court's system⁶⁸.

C. Conclusions and remarks on relevant rules and regulations

The flexible character of article 75 attributes a satisfactory margin of discretion to the judges of the Court regarding the mandatory decision on principles relating to reparations, on one hand, and the possible determination on the 'quality and quantity' of measures of reparation, on the other. This mandatory nature of the decision on principles is reflected in the verb 'shall' of the first sentence of article 75 para. 1, while the permissive nature of the determination on 'modalities' stems from the verb 'may' utilised in the second sentence of the same paragraph.

Article 75 covers a very serious *lacuna* of the Statutes of *ad hoc* Tribunals (Nuremberg, Tokyo, ICTY and ICTR), that did not properly address the issue of 'justice for victims'⁶⁹. Indeed, the punitive and preventative role of the Court *vis-à-vis* the most serious crimes of concern to the International Community as a whole⁷⁰ must not be confined to the prosecution and punishment of perpetrators. Conversely, it must bring about some feasible forms of satisfaction and guarantee of non-repetition⁷¹ for those who directly or indirectly suffered from the commission of such crimes. A 'victims' friendly Court' has been advocated and welcomed by all the most active players in the creation of the Court, including the Secretary General of the United Nations and the Chairperson of the Committee of the Whole of the Rome Conference⁷². The content of article 75, combined with that of article 68 and several

⁶⁷ See paras. 181 (entirely reproduced see note 35) and 201, Lubanga Reparations' Decision see note 64.

⁶⁸ The Court's system is composed of the criminal jurisdictions of States Parties and the complementary jurisdiction of the Court itself.

⁶⁹ See McKay's statement, reproduced see note 8.

⁷⁰ For details see Zimmermann, *article 5*.

⁷¹ See literature (e.g. van Boven, *Basic Principles*).

⁷² On 1 October 1998, at UN Headquarters in New York, Ambassador P. Kirsch of Canada, President of the Preparatory Commission for the ICC envisaged by Resolution F of the Rome Conference's Final Act, said: '[...] As we embark on the future work to try to make the Court as fair as effective as possible, it will be essential to recall that the fundamental objective of the creation of an independent Court was the protection of the victims. The development of the modalities of application of its Statute should not result in protecting, albeit inadvertently, the perpetrators of the truly horrifying crimes that are defined in its Statute: genocide, crimes against humanity, war crimes. It should not result either in extending unconditional protection to the interests of states when those interests may clearly conflict with the interests of the victims. In the context of the ICC, the victims themselves should remain the absolute priority of the international community, and this should be never forgotten.' The entire text of the above speech is reproduced in *No Peace Without Justice (quarterly)* (Rome, 1998) 4, on file with the author.

other statutory provisions⁷³, makes justice of this approach and renders the ICC an institution in which victims are a central element of the penal proceedings.

- 32 The Rules of Procedure and Evidence adopted by the Assembly of States Parties are a useful instrument to make article 75 fully operational, especially with respect to the list of elements that must be contained in a victim's request for reparation⁷⁴ and to the obligation for the Registry to 'take all the necessary measures to give adequate publicity of the reparation proceedings before the Court, to the extent possible, to other victims, interested persons and interested States'⁷⁵. More importantly, rules 89, 90, 91, 92 and 93 concerning the modalities of victims' participation in the proceedings under article 68 para. 3 are of essential relevance also for article 75⁷⁶. These rules have a tangible impact on the implementation of the victims' right to apply for reparations, insofar as without an effective mechanism of access to justice and the related right to intervene (through legal representatives), victims may not be in the position to express their *views and concerns* relating to their right to apply for reparations. On a separate but connected plain, the rules and regulations pertaining to the effective functioning of the Trust Fund can have a profound significance for the implementation of the principles relating to reparations that will be produced by the Court's jurisprudence. It is therefore necessary for the Assembly of States Parties, which is the organ entitled to establish and manage the Trust Fund, to perform its function in such a way as to empower the Fund to provide redress and reparations 'for the benefit of victims of crimes within the jurisdiction of the Court'⁷⁷, which encompasses the complementary jurisdiction of the Court itself and the primary jurisdictions of the States Parties to the Rome Statute. Such a function is not simply fulfilled through the adoption of a secondary instrument like the Regulations of the Trust Fund for Victims⁷⁸, but it requires a continued support of the ICC executive body for the Fund as well as an approach to the principle of complementarity that is not limited to the fight against impunity of the perpetrators as it should extend to the struggle for access to justice and reparation of the victims.

⁷³ A comprehensive list of provisions mentioning victims in the *Rome Statute* adopted by the Diplomatic Conference (cf. UN Doc. A/CONF.183/9 (17 July 1998)) reads as follows: article 15 para. 3; article 19 para. 3; article 43 para. 6; article 54 para. 1 (b); article 57 para. 3 (c), (e); articles 68, 75 and 79 in their entirety; article 82 para. 4; article 87 para. 4; article 90 para. 6 (b); article 93 para. 1 (j); article 109; article 110 para. 4 (b).

The articles mentioning victims in the ICC Draft Statute, see note 18, were the following: [12]; [13[1]]; 43[10] and fn. 23; 44[4] and fn. 24; 54[2(ii)bis]; 54[4]; 68; [73, and fn. 22, 23 and 24]; 75[(d) and fn. 6 and 7]; 76[(vi)] and fn. 12; 79 and fn. 16; 86 and fn. 3; 88[4] and fn. 25; 89.3; 90.1 (k), 90.7 (2) and fn. 3, 7 and 8 (b); 91[7 (c) and fn. 44 (d)]; 99.1 and fn. 8. Square brackets surrounded provisions upon which there was no general agreement among States participating in the UN/ICC Preparatory Commission (see see note 12).

⁷⁴ Cf. rule 94 ('Procedure upon request'). In the initial practice of the ICC, the requirements of Rule 94 had been further detailed in internal documents of the Court, including extremely complicated standard forms (questionnaires), which were often merging the requirements of victims' participation and reparation. Regulations 86, para 1, and 94, para. 1 mandated the Registry to prepare these forms, respectively on participation and reparation. As we anticipated in the 2nd edition of this Commentary, the day-to-day practise of the ICC has revealed the limited practicality of these regulatory provisions and, in particular, of the forms, which are so cumbersome and detailed for the victims that expert legal assistance is necessary from the very start of the relationship between the victims and the Court.

⁷⁵ Cf. Rule 96 ('Publication of reparation proceedings'), para. 1, which goes beyond the simple obligation of notification to victims who applied to participate in the proceedings and/or submitted requests for reparation in accordance with Rule 94, or victims notified by the Court regarding proceedings 'on the motion of the Court' *ex* Rule 95. In the latter situation, if 'a victim [notified by the Court on its own motion concerning his/her right to reparation] requests that the Court does not make an order for reparations, the Court shall not proceed to make an individual order in respect of that victim.' Cf. Rule 95, para. 2.

⁷⁶ See mn 39 to 46 of Article 68.

⁷⁷ Cf. article 79, para. 1.

⁷⁸ Cf. ICC-ASP/4/3/Res.3, adopted and entered into force on 3 December 2005.

Article 76

Sentencing

1. In the event of a conviction, the Trial Chamber shall consider the appropriate sentence to be imposed and shall take into account the evidence presented and submissions made during the trial that are relevant to the sentence.

2. Except where article 65 applies and before the completion of the trial, the Trial Chamber may on its own motion and shall, at the request of the Prosecutor or the accused, hold a further hearing to hear any additional evidence or submissions relevant to the sentence, in accordance with the rules of Procedure and Evidence.

3. Where paragraph 2 applies, any representations under article 75 shall be heard during the further hearing referred to in paragraph 2 and, if necessary, during any additional hearing.

4. The sentence shall be pronounced in public and, wherever possible, in the presence of the accused.

Literature: D'Ascoli, S., *Sentencing in International Criminal Law – The UN Ad Hoc Tribunals and Future Perspectives for the ICC* (Oxford, Portland: Hart, 2011); Henham, R., 'Developing Contextualized Rationales for Sentencing in International Criminal Trials – A Plea for Empirical Research', (2007) 5 *JICJ* 757–778.

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A. Introduction/General remarks

The final provision in Part 6 of the *Statute* establishes the principle of a distinct sentencing phase. The text is derived from a provision in the ILC Draft Statute of 1994 which stated that '[i]n the event of a conviction, the Trial Chamber shall hold a further hearing to hear any evidence relevant to sentence, to allow the Prosecutor and the defence to make submissions and to consider the appropriate sentence to be imposed'¹. The adoption of article 76 was almost perfunctory. Briefly considered by the Preparatory Committee in 1996², it was not addressed in any of its Working Groups³ and was adopted by the Rome Conference without difficulty⁴.

¹ 1994 ILC Draft Statute, article 46 para. 1, p. 123. A second sentence in the ILC Draft article concerned aggravating and mitigating factors to be considered in imposing sentence. The Zutphen Draft indicated that the issues were addressed elsewhere (Zutphen Draft, p. 124, *nota bene*). These considerations are now reflected in article 78 para. 1 of the Rome Statute.

² 1996 Preparatory Committee I, p. 46; 1996 Preparatory Committee II, p. 226.

³ See note 1, Zutphen Draft, p. 124.

⁴ Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.2 (4 July), p. 5; UN Doc. A/CONF.183/C.1/SR.24, paras. 203; Compendium of draft articles referred to the Drafting Committee by the Committee of the Whole as of 9 July 1998, UN Doc. A/CONF.183/C.1/L.58, p. 43; Report of the Working Group on Procedural Matters, UN Doc. A/CONF.183/C.1/WGPM/L.2/Add.8 (15 July), p. 10; UN Doc. A/CONF.183/C.1/L.88, p. 14; UN Doc. A/CONF.183/C.1/L.76/Add.6, p. 13.

B. Analysis and interpretation of elements

I. Paragraph 1

- 2 If the accused is convicted, the Trial Chamber is required to establish the ‘appropriate sentence’. In so doing, the *Statute* instructs it to consider the evidence presented and submissions made during the trial that are relevant to the sentence. Mitigating and aggravating factors relating to the commission of the crime itself, such as the individual role of the offender and of the treatment of the victims, will form part of the evidence germane to guilt or innocence and thus appear as part of the record of the trial. Paragraph 1 was not part of the ILC Draft, and appeared for the first time in the final draft adopted by the Preparatory Committee in April 1998⁵.

II. Paragraph 2

1. Distinct sentencing hearing

- 3 Paragraph 2 creates a strong presumption in favour of a distinct sentencing hearing following conviction. Though not mandatory, it must be held upon the request of either the Prosecutor or the accused, and failing application from either party, the Court may decide to hold such a hearing *proprio motu*. The *Statute* does not say how and when the application is to be made, and within what time limit, if it is at the request of one of the parties, or whether the parties may make representations before the Court should it be considering the convocation of such a hearing on its own motion. The Final Draft text adopted by the Preparatory Committee included the requirement that the request for such a hearing be ‘made before the completion of the trial’⁶, and the phrase was retained in the version adopted by the Working Group⁷. This seems superfluous, which must explain why the Drafting Committee eliminated the words ‘made before the completion of the trial’⁸. Obviously, the trial ends with imposition of sentence, and any application to hold a hearing on such questions must be made before sentence is pronounced. It would be appropriate, then, for the Court to inquire of the parties at the time it issues a verdict of guilt as to whether they seek a sentencing hearing. If one or other of the parties is not yet ready to make such a request, an adjournment could be requested of the Court. Should the Court be impatient, the prudent course would be to ask for a sentencing hearing; the applicant could later withdraw the request. The Court should provide the defence with adequate time to prepare materials, in accordance with article 67 para. 1 (c). The Working Group at the Rome Conference was concerned about notice to the parties of such a hearing, but expressed this in a footnote indicating that the matter should be dealt with in the rules of Procedure and Evidence⁹. The rules make specific provision for the distinct sentencing hearing. rule 143 states that the Presiding Judge is to set the date of the further hearing. The hearing may be postponed, ‘in exceptional circumstances’, by the Trial Chamber acting on its own motion, or upon the application of the Prosecutor, the defence or the legal representatives of the victims participating in the proceedings¹⁰. Given that the Article 76 and rule 143 only refer to the trial stage it follows that there is no separate sentencing hearing at the appeals stage¹¹.

⁵ Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/2/Rev.1, p. 143, article 74.

⁶ *Ibid.*, article 74 para. 2.

⁷ See note 4, Report of the Working Group on Procedural Matters (4 July), p. 5.

⁸ Report of the Drafting Committee to the Committee of the Whole, UN Doc. A/CONF.183/C.1/L.88 (16 July), p. 14.

⁹ See note 4, Report of the Working Group on Procedural Matters (4 July), p. 5, fn. 9.

¹⁰ Rules of Procedure and Evidence, Document ICC-ASP/1/3, pp. 10–107, rule 143.

¹¹ Crit. D’Ascoli, *Sentencing* (2011) 276–7, arguing that it should be compulsory for appeal as well.

Thus, in the first Appeals Judgment against Thomas Lubanga only one hearing has been held by the Appeals Chamber. However, the possibility of a separate sentencing hearing may be inferred from rule 149 according to which the provisions and rules governing the trial procedure shall apply *mutatis mutandis* to the appeals procedure. Of course, a separate sentencing hearing makes less sense at the appeal stage where normally no new evidence is produced. In any case, it remains to be seen how the future practice of the Court will deal with this question.

Before the International and the American Military Tribunals, there appears to have been no practice of holding distinct hearings to address matters concerning the sanction, once guilt had been established, although the British Military Tribunals seem to have followed this procedure in some cases¹². The *ad hoc* Tribunals held separate sentencing hearings and issued distinct sentencing decisions in their initial cases, although this was not mandated either by their statutes or their rules¹³. They have even refused to hear evidence that was germane only to sentencing prior to a verdict being issued. In the *Tadić* case, the Trial Chamber ruled that 'no information that relates exclusively to sentencing should be presented by a witness during the trial as to the guilt or innocence of the accused. So, if a witness is testifying about guilt or in the sense of the accused, that witness should not be able at the same time to offer evidence exclusively as to sentencing'¹⁴. But in July 1998, the rules of the two *ad hoc* Tribunals were amended in order to eliminate any suggestion of a separate sentencing phase¹⁵. Thus, in the *Celebici* judgment, rendered in November 1998, the accused were found guilty and sentenced immediately, and there is no suggestion that they were ever invited to submit evidence in mitigation of punishment¹⁶. In the ICC's first trial of Thomas Lubanga the judgment was delivered on 14 March 2012, the additional sentencing hearing took place, at the request of the defence¹⁷, on 13 June 2012 and the sentencing decision was delivered on 10 July 2012¹⁸. It has been confirmed by the Appeals Chamber on 1 December 2014.¹⁹

Failure to hold a separate sentencing hearing may put the accused at a real disadvantage during the trial. He or she may be in a position to submit relevant evidence in mitigation of sentence, for example concerning the individual's specific role in the crimes *vis-à-vis* accomplices, or efforts by the offender to reduce the suffering of the victim. The only way to introduce such evidence may be for the accused to renounce the right to silence and the protection against self-incrimination. Providing the accused with the right to a separate sentencing hearing, where new evidence and submissions may be presented, thereby enhances the right to silence of the accused at trial. It also gives him/her a 'second chance', at least if there is a different sentencing chamber (which is not the case at the ICC). From the prosecutor's standpoint, there are also advantages to a sentencing hearing. Aggravating evidence, such as proof of bad character or of prior convictions, might well be deemed

¹² *United Kingdom v. Eck et al.* ('Peleus Trial'), 1 LRTWC 1 (1947), 13; *United Kingdom v. Grumfelt* ('Scuttled U-Boats Case'), 1 LRTWC 55, 65 (1947); *United Kingdom v. Kramer et al.* ('Belsen Trial'), 2 LRTWC 1, 122-125 (1947). See Schabas (1997) 7 *DukeJComp&IL* 461.

¹³ *Prosecutor v. Tadić*, IT-94-1-S, Judgment, 14 July 1997; *Prosecutor v. Akayesu*, ICTR- 96-4-T, (on appeal), Judgment, 2 Oct. 1998. The original rule 100 (Rules of Procedure and Evidence, UN Doc. IT/32), entitled 'Pre-sentencing Procedure', stated: 'If a Trial Chamber finds the accused guilty of a crime, the Prosecutor and the defence may submit any relevant information that may assist the Trial Chamber in determining an appropriate sentence'. The Tribunal later amended rule 100, eliminating this text. Sentencing is now governed by Rule 98ter, which applies to the judgment on the merits of the case.

¹⁴ *Prosecutor v. Tadić*, IT-94-1-T, Transcript of trial, 3 May 1996.

¹⁵ Cf. rule 85 (A)(vi) (relevant information on sentencing to be presented at trial) and rule 86 (C) (sentencing matters to be addressed in closing arguments); crit. D'Ascoli, *Sentencing* (2011) 124-5.

¹⁶ *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, 16 Nov. 1998, para. 1285.

¹⁷ Cf. Lubanga, Judgment pursuant to Article 74 of the Statute, ICC ICC-01/04-01/06-2842, 14 March 2012, para. 12.

¹⁸ Lubanga Sentencing Judgment, ICC ICC-01/04-01/06-2901, 10 July 2012, para. 4, 11.

¹⁹ Lubanga Sentencing Appeals Judgment, ICC-01/04-01/06-3122, 1 December 2014 (stressing the broad discretion of the TC and, consequently, the limited scope of review by the AC, para. 1 *et seq.*).

inadmissible at trial, yet it would possibly pass the relevance test once guilt had been established and the only remaining issue was establishment of a fit penalty²⁰.

- 6 During the drafting, a proposed amendment set out in detail the conduct of the sentencing hearing: presentation by the Prosecutor; presentation by the defence; prosecution rebuttal; defence surrebuttal; argument by the Prosecutor on sentence; argument by the defence on sentence²¹. The suggestion was not incorporated in article 76. The Court might well decide to alter the order of submissions depending on which party had requested the sentencing hearing. In the Lubanga sentencing hearing the Chamber heard first the evidence of two witnesses and after that the submissions of the Prosecutor, the legal representative of victims and finally the defence were made.²² The Katanga Chamber also ordered a separate sentencing hearing but changed the order of the presentations to be made: after the Prosecutor the Defence and then the victims representatives should intervene; witnesses may be heard²³.

2. Procedure in case of guilty plea

- 7 This provision does not operate where article 65, which sets out a special procedure in the case of a guilty plea, applies. However, article 65 establishes no particular mechanism for the presentation of evidence pertinent to sentencing. It is concerned essentially with verification of the legal admissibility of the guilty plea, and a somewhat summary assessment of the facts and any applicable defences, in order to determine whether the accused should stand trial despite the admission of criminal responsibility. Indeed, article 64 suggests that the only relevant evidence to be considered by the Court is that pertaining to the charge itself. Obviously it cannot be the intent of the *Statute* to prevent the accused who has admitted guilt from submitting evidence in mitigation of sentence. Indeed, such evidence will be particularly relevant in cases where there is an admission of guilt²⁴. The final paragraph of article 65 refers to discussions between the Prosecutor and the defence concerning the penalty to be imposed, implying that relevant submissions and evidence on this subject will have been made before the Court in the course of the hearing on the guilty plea.

3. Relevant additional evidence

- 8 The purpose of the sentencing hearing is to provide for submission of additional evidence or submissions relevant to the sentence. The *ad hoc* Tribunals have considered such relevant information to include psychiatric and psychological reports, as well as testimony by the convicted person. In the *Erdemović* case, a commission of three experts was designated, two named by the Tribunal, a third from a list submitted by the defence²⁵. The *Erdemović* sentencing court also heard character witnesses, two of whom were granted protective measures by the Trial Chamber²⁶. Erdemović testified in the course of his own sentencing hearing. In *Tadić*, the Trial Chamber considered oral and written reports, including ‘victim impact’ statements. The Trial Chamber insisted that ‘it will receive only reports, written statements and oral statements which provide relevant information that may assist the Trial

²⁰ In favour of a separate sentencing stage/hearing from a human rights perspective also D’Ascoli, *Sentencing* (2011) 124–5; favouring a ‘mono-phase procedure’ Henham (2007) 5 *JICJ* 767–9.

²¹ See note 2, 1996 Preparatory Committee II, p. 226, article 46 para. 1*bis*.

²² Lubanga, Order fixing the date for the sentencing hearing, ICC-01/04-01/06-2871, 24 April 2012, para. 8; Lubanga Sentencing Judgment, ICC-01/04-01/06-2901, 10 July 2012, para. 11.

²³ Katanga, Ordonnance portant calendrier de la procédure relative à la fixation de la peine (article 76 du Statut), ICC-01/04-01/07-3437, 7 mars 2014, para. 7; on the subsequent hearing see <http://www.icc-cpi.int/iccdocs/doc/doc1779796.pdf>.

²⁴ See, for example, the two decisions in the *Erdemović* case: *Prosecutor v. Erdemović*, IT-96-22-T, Sentencing judgment, 29 Nov. 1996; *Prosecutor v. Erdemović*, IT-96-22-T, Sentencing judgment, 5 Mar. 1998. Also: *Prosecutor v. Kambanda*, ICTR-97-23-S, Sentencing judgment, 4 Sep. 1998.

²⁵ *Prosecutor v. Erdemović*, IT-96-22-T, Sentencing judgment, 29 Nov. 1996.

²⁶ *Prosecutor v. Erdemović*, IT-96-22-T, Order for protective measures for witness X, 18 Oct. 1996.

Chamber in determining an appropriate sentence and that it will reject any material relating to the guilt or innocence of Dusko Tadić²⁷.

In the view of the Lubanga Trial Chamber the interplay of paras. 1 and 2 entails that a Chamber may take into account additional evidence going beyond ‘the facts and circumstances set out in the Confirmation Decision, provided that the defence has had a reasonable opportunity to address them’²⁸. However, the Chamber allowed ‘for reasons of efficiency and economy ... that evidence relating to sentence could be admitted during trial’²⁹. In a way this goes against one of the core ideas of a separate sentencing hearing mentioned above (mn. 5), namely to allow the parties to submit additional, specific evidence relevant to sentencing exclusively during the sentencing phase.

III. Paragraph 3

Paragraph 3 extends the subject matter of the post-conviction hearing so that it encompasses reparations issues, in accordance with article 75. Thus, where there is a post-conviction hearing on sentence, the Trial Chamber will also hear evidence concerning reparations as well as possible orders of forfeiture³⁰. The reference to additional hearings was added by the Working Group at the Rome Conference³¹. The Regulations provide that evidence pursuant to article 75 may also be presented to a Trial Chamber ‘at the same time as for the purposes of trial’³². In any case, the representations regarding reparation (Article 75) may be heard during the same sentencing hearing or in an additional hearing. In Lubanga, there was no additional reparations hearing, the Chamber only received the written submissions³³.

IV. Paragraph 4

The trial must be held in public, article 67 para. 1, although there is no requirement that the judgment be read out. Reading the judgment of the Nuremberg Tribunal took two days. Before the *ad hoc* Tribunals, when the judgment is especially lengthy, a practice had developed whereby the Court reads a summary of its findings. This must be particularly important for the didactic effect of the Court’s judgment. For example, when the ICTR issued its judgment in the *Akayesu* case, President Laity Kama read such a summary, which was broadcast live throughout Rwanda, a measure of great positive effect considering the Tribunal’s mission to contribute to ‘the process of national reconciliation and to the restoration and maintenance of peace’³⁴. The same practice has been adopted by the ICC; the summary of the judgment usually appears immediately on the website of the Court and can be seen on the Court’s channel on youtube. With respect to the sentence, this paragraph 4 requires explicitly that it be ‘pronounced’ in *public*.

As a rule, the accused is to be *present* at trial (article 63(1)), except where he or she disrupts the proceedings (article 63(2)) or requests to be represented by counsel due to exceptional circumstances or extraordinary public duties (‘lex Kenyatta’)³⁵. In any case, a

²⁷ *Prosecutor v. Tadić*, IT-94-1-T, Scheduling order, 27 May 1997.

²⁸ Lubanga Sentencing Judgment, ICC ICC-01/04-01/06-2901, 10 July 2012, para. 29.

²⁹ *Ibid.*, para. 20 with reference to the resp. trial decision in fn. 38.

³⁰ See note 10, Rules of Procedure and Evidence, rule 147 para. 1.

³¹ See note 4, Report of the Working Group on Procedural Matters (4 July), p. 5.

³² Regulations of the Court, Document ICC-BD/01-01-04, Regulation 56.

³³ Lubanga, Scheduling order concerning timetable for sentencing and reparations, ICC ICC-01/04-01/06-2844, 14 March 2012, para. 12 (indicating that the Chamber will decide whether to hold a reparations hearing but this decision was not taken).

³⁴ SC Res.955 (1994), preamble.

³⁵ Cf. Rules 134*ter* and 134*quater* RPE introduced in the context of the Kenya proceedings, especially to meet the concerns of President Kenyatta (against whom the charges were later dropped); see also Rule 134*bis* providing for the possibility of a virtual presence through the use of video technology.

summary reading of article 76 para. 4 suggests a flexible view of the presence requirement regarding sentencing stating that this should only apply ‘wherever possible’. Such a flexible reading is difficult to reconcile with the *travaux*³⁶. However, the new ‘absentia rules’ mentioned above strengthen the more flexible reading of para. 4 (‘wherever possible’). Indeed, if the State Parties flexibilize the presence requirement during trial by amending the rules, this must, *a fortiori*, apply to the sentencing stage with the pronouncement of the sentence. Thus, at least regarding an excusal from presence due to ‘extraordinary duties’ (rule 134*quater*) the accused/convict’s presence is not required given that he or she will be excused for the whole trial – not only for parts of it as in the case of rule 134*ter* (‘during part or parts’) – and represented by counsel ‘only’.

³⁶ Cf. Schabas in the previous edition, article 76 mn. 11.

PART 7 PENALTIES

Article 77 Applicable penalties

1. Subject to article 110, the Court may impose one of the following penalties on a person convicted of a crime referred to in article 5 of this Statute:

- (a) Imprisonment for a specified number of years, which may not exceed a maximum of 30 years; or
- (b) A term of life imprisonment when justified by the extreme gravity of the crime and the individual circumstances of the convicted person.

2. In addition to imprisonment, the Court may order:

- (a) A fine under the criteria provided for in the Rules of Procedure and Evidence;
- (b) A forfeiture of proceeds, property and assets derived directly or the International Criminal Court, the Making of the Rome Statute: Issues, Ne indirectly from that crime, without prejudice to the rights of bona fide third parties.

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A. Introduction/General remarks

- 1 Article 77 establishes the power of the ICC to impose penalties on persons convicted by the Court of crimes referred to in article 5. It defines three possible penalties that may be applied by the Court. Imprisonment is the basic punishment, while fines or forfeiture may only be imposed as additional penalties. In accordance with the principle of *nulla poena sine lege* reflected in article 23¹, this list of applicable penalties is exhaustive.
- 2 The article builds on the principle of equality of justice through a uniform penalties regime for all persons convicted by the Court. Accordingly, the article makes no reference to national laws. The application of penalties will be made irrespective of the nationality of the convicted person or the place where the crime was committed. Acknowledging the need for flexibility in that it may be difficult to foresee all possible needs, the penalties provisions are formulated in a general way for all crimes enumerated under article 5, without specifying penalties for different categories of crimes. The approach also reflects the general principle of international law whereby very heavy penalties may be imposed for the most serious crimes against the person². The ordinary penalty to be applied by the Court for crimes under article 5 of the Statute is imprisonment. The possibility of life imprisonment is provided for on certain conditions, including the system for mandatory review specified in article 110. Fines and forfeiture of proceeds and property derived from the crime may be imposed as additional penalties to imprisonment.
- 3 Various purposes of penalties have been put forward in legal theory and practice, also in the particular context of international criminal justice. They include retribution, general prevention or deterrence, individual prevention, reformation of criminals, protection of society, collective reconciliation and reparation to crime victims³. At the Diplomatic Con-

¹ The provision stating the principle of *nulla poena sine lege* emanated from the discussions on article 77 in the Working Group on Penalties at the Diplomatic Conference. Nevertheless, this provision was included in Part 3 of the Statute, rather than in Part 7, because it was deemed to be a general principle of criminal law.

² This was confirmed with regard to crimes against humanity by the reasoning in the judgment of the Trial Chamber of the ICTY in *Prosecutor v. Erdemović*, IT-96-22-T, Judgment, Trial Chamber, 5 March 1998, para. 40. On this issue, see Schabas (1997) 7 *DukeJComp&IL* [479].

³ For a brief overview of the philosophical theories and justifications of legal punishment, see Tebbit, *Philosophy of Law – An Introduction* (2000) 162. On punishment as a concrete expression of society's disapproval of an act that helps to create conscious or unconscious inhibitions against committing crime, see Andenæs, *Punishment and Deterrence* (1974) 7–8. On the emergence of the nineteenth-century European prison, see Foucault, M., *Surveiller et Punir (Discipline and Punish)* (1975). On purposes of penalties in an international criminal law context, see general overviews in La Rosa, *Juridictions Pénales Internationales: La Procédure et la Preuve* (2003) 172; Schabas (1997) 7 *DukeJComp&IL* [479], 499. On the influence of comparative law studies on the practice of the international criminal tribunals in the field of penalties, see Delmas-Marty, in: Cassese and Delmas-Marty (eds.), *Crimes Internationaux et Juridictions Internationales* (2002) 120–128. In a national criminal law context, traditional criminal law arguments v. modern theories of punishment may be found in Duff, *Punishment* (1993) and Morawetz (ed.), *Criminal Law* (1991). A classical work in the Anglo-

ference, stressing that the penalties under consideration were related to the most serious crimes of international concern including in situations of armed conflict, a number of delegations stressed the importance of severe penalties commensurate to the gravity of the crimes. Against this background they supported the inclusion of the death penalty, or in some cases life imprisonment, as a prerequisite for the credibility of the Court and its deterrent functions. A number of other delegations underlined limitations derived from human rights law on the modes of punishment. They insisted on the paramount need for treating individual criminals humanely and maintaining the possibility for their eventual rehabilitation. On the discussions on the death penalty and life imprisonment, in addition to certain remarks below, see comments made under article 80 of the Rome Statute.

The ICC handed down its first sentence on 10 July 2012 in '*Prosecutor v. Thomas Lubanga Dyilo*' where a conviction for recruitment and use of child soldiers in armed conflict in the Democratic Republic of Congo led to the imposition of imprisonment for 14 years, which was confirmed on appeal on 1 December 2014. In 'considering the purposes of punishment of the ICC' Trial Chamber I notably 'took into account the Preamble of the Statute' and referred to paragraphs 4, 5 and 9 of the latter. These provide, respectively, that 'the most serious crimes of concern to the international community as a whole must not go unpunished', that the States Parties to the Statute are 'determined to put an end to impunity for the perpetrators of these crimes and thus to contribute to the prevention of such crimes' and that the ICC was established 'to these ends and for the sake of present and future generations'⁴. This line of reasoning has been supplemented, *inter alia* in the sentence on 23 May 2014 in '*Prosecutor v. Germain Katanga*', where Trial Chamber II in addition referred to the need to ensure truth and justice for victims and their relatives and emphasized both the aim of social reprobation of the conduct and deterrence⁵.

While international humanitarian law and criminal law treaties provide for individual criminal responsibility for certain violations, they give practically no guidance with regard to the modes of punishment⁶. International human rights law sets certain limitations on the application of the most severe forms of punishment, in particular with regard to the death penalty⁷ and through the prohibitions against torture as well as cruel, inhuman and degrading treatment or punishment⁸. Moreover, certain norms may be derived from human rights law with regard to the objectives of reform and social rehabilitation of prisoners⁹. Such

American tradition is Hart, *Punishment and Responsibility* (1968). In the French civil law tradition, see Merle, *La Pénitence et la Peine* (1985) and Pradel, *Droit Pénal Général* (2012). On purposes of penalties according to Islamic law, see Mansour, in: Bassiouni (ed.), *The Islamic Criminal Justice System* (1982) 195 and Bassiouni, in: Bassiouni (ed.), *The Islamic Criminal Justice System* (1982) 203.

⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Decision on Sentence Pursuant to Article 76 of the Statute, Trial Chamber I, 10 July 2012, para. 16. Judgement on the appeals, Appeals Chamber 1 December 2014.

⁵ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07, Decision on Sentence Pursuant to Article 74 of the Statute, Trial Chamber II, 23 May 2014, paras. 37–38.

⁶ Article V of the 1948 Genocide Convention requires that national penalties for persons guilty of genocide be 'effective'. Similar requirements apply to national penal sanctions for grave breaches of the 1949 Geneva Conventions, see for instance article 146 of the Geneva Convention relative to the protection of civilian persons in time of war. The requirement of effective punishment of war crimes and crimes against humanity is also reflected in preamble para. 5 of the Convention 26 Nov. 1968 on the non-applicability of statutory limitations to war crimes and crimes against humanity. For a discussion of the above issue, see Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 690–691.

⁷ See comments under article 80.

⁸ For these general prohibitions contained in article 7 of the United Nations Covenant on Civil and Political Rights (CCPR), see M. Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1994) 133–134. It may be noted that UN Standard minimum rules for the treatment of prisoners, ESC Res. 663 C (XXIV) 31 July 1957, may provide guidance in interpreting the prohibition against cruel, inhuman and degrading punishment in the context of imprisonment, see Rodley, *Treatment of Prisoners Under International Law* (1987) 221–223.

⁹ On the relevance of CCPR article 10 para. 3 and other instruments, see Schabas, in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (1998) 273, 286.

norms have, however, given room for interpretation as to what extent they constitute a basis for articulating concrete sentencing guidelines¹⁰.

- 6 While the statutes of earlier and existing international tribunals contain provisions on the application of penalties, they have to varying degrees given rise to criticism on the grounds of not meeting the requirements of the principle of legality¹¹. All are implicitly based on the general principle of proportionality, but do not provide for detailed sentencing principles¹². The Nuremberg and Tokyo Tribunals had broad discretion in the application of penalties. Their Statutes provided for the death penalty, life imprisonment or other punishments determined by them to be just. In addition they could order deprivation of stolen property¹³. At Nuremberg, most convicted persons were sentenced to death, while other sentences imposed terms of imprisonment ranging from ten years to life¹⁴. However, with the exception of Rudolf Hess, none of those sentenced to imprisonment actually served more than 21 years¹⁵. The only applicable penalty provided for by the Statutes of the ICTY and ICTR is imprisonment, with the additional possibility of an order for return of property or proceeds¹⁶. The Statutes do not themselves explicitly specify what the heaviest penalty of imprisonment may be, leading in the case of the ICTY to criticism by some commentators¹⁷. This was instead done in the Rules of Procedure and Evidence of both Tribunals, which explicitly include life imprisonment¹⁸. Several life imprisonment sentences have been delivered by the two tribunals¹⁹.

¹⁰ On the general development of human rights law applicable to punishment, see for instance van Zyl Smit (1998) 10 CLF [5], 5–9 and Schabas (1997) 7 *DukeJComp&IL* [461], 467–468, 474 and 505. With regard to the human rights law applicable to prisoners, see Rodley, *Treatment of Prisoners Under International Law* (1987).

¹¹ See Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 689, and Schabas (1997) 7 *DukeJComp&IL* [461], 469.

¹² See Morris and Scharf, *The International Criminal Tribunal for Rwanda* (1998) 584.

¹³ With regard to the Nuremberg Tribunal, article 27 of the Charter of the International Military Tribunal annexed to the London Agreement of 8 August 1945 states: 'The Tribunal shall have the right to impose upon a defendant on conviction, death or such other punishment as shall be determined by it to be just'. Article 28 states: 'In addition to any punishment imposed by it, the Tribunal shall have the right to deprive the convicted person of any stolen property and order its delivery to the Control Council for Germany'. Similar provisions are contained in the Charter of the Tokyo Tribunal, see Special Proclamation by the Supreme Commander for the Allied Powers at Tokyo, 4 Bevans 20, as amended, 4 Bevans 27.

¹⁴ Nuremberg judgement 189. See Taylor, *The Anatomy of the Nuremberg Trials* (1992) 559–611.

¹⁵ On early release of some prisoners, see Taylor, *The Anatomy of the Nuremberg Trials* (1992) 612–618. On the constitutionality of life- imprisonment see, e.g., Jescheck and Triffterer (eds.), *Ist Die Lebenslange Freiheitsstrafe Verfassungswidrig? Dokumentation über die Mündliche Verhandlung vor dem Bundesverfassungsgericht am 22. und 23. März 1977* (1978).

¹⁶ Article 24 para. 1 ICTY Statute states: 'The penalty imposed by the Trial Chamber shall be limited to imprisonment. In determining the terms of imprisonment, the Trial Chambers shall have recourse to the general practice regarding prison sentences in the courts of the former Yugoslavia'. Moreover, article 24 para. 3 states: 'In addition to imprisonment, the Trial Chambers may order the return of any property and proceeds acquired by criminal conduct, including by means of duress, to their rightful owners'. Analogous provisions are contained in article 23 ICTR Statute, with the sole exception that reference is naturally made to the general practice regarding prison sentences in the courts of Rwanda instead of the former Yugoslavia.

¹⁷ See van Zyl Smit (1998) 10 CLF [5], 11; Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 700; Morris and Scharf, *An Insider's Guide To The International Criminal Tribunal For The Former Yugoslavia: A Documentary History And Analysis* (1995) 274–275; Schabas (1997) 7 *DukeJComp&IL* [479].

¹⁸ Rule 101 (A) of the ICTY Rules states: 'A convicted person may be sentenced to imprisonment for a term up to and including the remainder of the convicted person's life'. A similar provision is contained in Rule 101 (A) of the ICTR Rules.

¹⁹ The ICTR has handed down sentences of life imprisonment in several cases, including for example *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 October 1998; *Prosecutor v. Kambanda*, ICTR-97-23-S, Judgment and Sentence, Trial Chamber, 4 September 1998; *Prosecutor v. Kayishema*, ICTR-95-1-T, Sentence, Trial Chamber II, 21 May 1999 and *Prosecutor v. Musema*, ICTR-96-13-A, Judgment and Sentence, Trial Chamber I, 27 January 2000. The ICTY has imposed terms of imprisonment ranging from 3 years to life imprisonment. Because of conviction for multiple crimes some terms of imprisonment were to be served concurrently. The following total terms of imprisonment constitute examples from the very first cases. In *Prosecutor v. Tadić*, IT-94-1-A, Sentencing Judgment, Trial Chamber, 11 November 1999 the total period imposed by the Trial Chamber was 20 years. In *Prosecutor v. Erdemovic*, IT-96-22, the total period of

The approach adopted by the ILC in its 1994 Draft Statute for an ICC was characterized by flexibility and limited sentencing guidelines. The ILC Draft's Article 47 para. 1 provided in general terms for imprisonment, including the possibility of life imprisonment, and fines²⁰. In 1995, the debates in the *Ad Hoc* Committee revealed important differences in national approaches on this account. Nevertheless, they also revealed a widespread desire for more specificity than what had been suggested in the ILC Draft²¹. In the Preparatory Committee, the main substantive discussions were held in two sessions in August 1996²² and December 1997 in the Working Group on Penalties²³. The two main issues that emerged concerned the type of penalties and the relevant laws for determining penalties. In the ensuing discussions in the Preparatory Committee a number of proposals were made, compiled and to the extent possible consolidated in alternative options and wording in square brackets²⁴. At the Rome Diplomatic Conference all issues related to applicable penalties were dealt with in a Working Group on Penalties.

Widely differing views as to the actual purposes and functions of the penal sanctions to be imposed by the Court were compounded by marked differences in national values, norms, standards and judicial practices. These made the negotiations at the Diplomatic Conference on the issue of modes of punishment difficult and time consuming. Discussions on whether or not to include the death penalty proved particularly contentious. In spite of acute differences in legal cultures and positions taken during the course of the negotiations, a consensually based solution ultimately emerged. The number of delegations who emphasized the relevance of appropriate penalties both to the credibility and to the perceived fairness of the Court was considerable. The main elements in the compromise package are the following:

Essential to the emergence of the overall compromise formula was the understanding that the inclusion of certain specific penalties and the non-inclusion of other penalties would not in any way prejudice the national application of penalties nor national laws. This follows already from the principle of complementarity between the Court and national criminal jurisdictions, whereby the latter retain the primary responsibility for prosecuting and punishing individuals, in accordance with applicable national laws. The compromise included, moreover, the formulation of an explicit non-prejudice provision to that effect in article 80 (see comments under that provision). This understanding was also instrumental in promoting a consensus on not including any reference to national laws in the article, thereby ensuring a uniform penalties regime for all persons convicted by the Court.

The consensus that emerged during the Preparatory Committee for having a single, general provision on imprisonment for all crimes, instead of setting precise maximum penalties for specific crimes, was confirmed during the Diplomatic Conference. Giving such flexibility to judges was not found to be inconsistent with any of the requirements of the principle of legality.

imprisonment imposed by the Trial Chamber was 10 years, reduced to 5 years by the Appeals Chamber. The first sentence of life imprisonment passed by the ICTY was the Trial Chamber Judgment in *Prosecutor v. Stakić*, IT-97-24-T, Judgment, Trial Chamber II, 31 July 2003.

²⁰ The ILC adopted a first draft in 1993, see Report of the ILC on the Work of its Forty-Fifth Session, UN Doc. A/48/10 (1993), para. 84. A revised draft was submitted in 1994, but did not significantly change the penalties provision, see UN Doc. A/49/355 (1994). The latter version of article 47 para. 1 constituted the basis for discussions in the preparatory work before the Conference:

'The Court may impose on a person convicted of a crime under this Statute one or more of the following penalties:

(a) a term of life imprisonment, or of imprisonment for a specified number of years;
a fine'.

²¹ *Ad Hoc* Committee Report, paras. 187–190.

²² For the debates in the August 1996 session, see 1996 Preparatory Committee I, pp. 63–64, paras. 303–309. For compilation of proposals made in August 1996, see 1996 Preparatory Committee II, pp. 227–234.

²³ On the results of the discussions of these issues in the December 1997 session, see Preparatory Committee Decisions Dec. 1997, pp. 81–90, and the Preparatory Committee Draft, pp. 119–124.

²⁴ On various proposals made in the Preparatory Committee, see *inter alia* Schabas, in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (1998) 273.

- 11 A carefully crafted compromise package is constituted by the inclusion of two alternative subparagraphs (a) and (b) in the article's first paragraph. All delegations agreed on the need to include imprisonment as the main penalty. It is therefore mentioned first. While opinions were sharply divided on the maximum lengths, all nevertheless recognized the need to reach a solution. A number of delegations had insisted on clarity as to maximum sentences. A number of other delegations had instead advocated a degree of flexibility for the judges, in view of the impossibility to foresee all the situations that may arise in practice. The result became that imprisonment may include two alternatives. As opposed to the Statutes of earlier Tribunals a degree of specificity was introduced, by forcing the judges to make a choice between two clear alternatives, namely imprisonment of not more than 30 years²⁵ and life imprisonment. This distinction stems from proposals originally submitted by France and other civil law countries in order to increase legal certainty with regard to the range of imprisonment sentences as compared to earlier international tribunals, while at the same time preserving a degree of discretion for judges.
- 12 An important element in the compromise package was the inclusion of the possibility of life imprisonment, albeit on certain strict conditions. Some delegations had submitted that inclusion of life imprisonment was necessary in order for them to be able to show flexibility as to non-inclusion of the death penalty. Irrespective of their position on the issue of the death penalty, other delegations insisted on the need to allow for the application of life imprisonment where particularly grave crimes were concerned. However, a number of delegations were opposed to this idea, or expressed serious doubts from a human rights perspective as to the acceptability of life imprisonment as the ultimate penalty against infringements of international criminal law²⁶. This issue and the question as to what limitations may derive from human rights principles on the application of life imprisonment, have been discussed in legal theory and judicial practice²⁷. A precondition for consensus on the issue of life imprisonment proved, yet again, to be the understanding on the complementarity principle mentioned above under margin point 9 and reflected in article 80 of the Statute. At the same time, against the background of concerns on the severity of a life sentence or long terms of imprisonment, it was suggested²⁸ to provide for mandatory re-examination of sentences by the Court after a certain period of time in order to consider the possibility of release. Such a mandatory mechanism was included in the part of the Statute dealing with enforcement. Thus, the Court would also ensure the uniform treatment of prisoners regardless of the State where they served their sentence. This approach was adopted at the Conference, and constitutes the background for key provisions in article 110 of Part 10, as well as the reference to the latter article in article 77. The possibility of life imprisonment was thus included on specific conditions, *i. e.* that it be justified by the extreme gravity of the crime and the individual circumstances of the convicted person, but also with a mandatory review mechanism as described. In addition, it was underlined that long terms have to be served before such a review may take place. Strict criteria have to apply for such a review.

²⁵ Proposals during the Preparatory Committee and the Diplomatic Conference for a maximum term of imprisonment for a specified number of years had ranged from 20 to 40 years, to a large extent reflecting maximum terms in different national systems. For proposals compiled during the Preparatory Committee, see references notes 21 and 22.

²⁶ See van Zyl Smit (1998) 10 *CLF* [5], 14–20 for a survey of the diversity of opinion in the ILC on this account.

²⁷ On the discussions within the United Nations on the conditions and treatments of prisoners serving terms of life imprisonment, see United Nations Office at Vienna, Crime Prevention and Criminal Justice Branch, *Life Imprisonment* (1994). On those issues seen from a human rights perspective, see van Zyl Smit (1998) 10 *CLF* [5], and Schabas, in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (1998) 273, 285. According to van Zyl Smit (1998) 10 *CLF* [5], 4, application of life imprisonment at the international level should be subject to constant reevaluation in light of any future developments of international human rights law.

²⁸ The suggestion was made in December 1997, see Preparatory Committee Decisions Dec. 1997, p. 119, note 1. On the aspect of conditional release see Jescheck and Triffterer (eds.), *Ist Die Lebenslange Freiheitsstrafe Verfassungswidrig? Dokumentation über die Mündliche Verhandlung vor dem Bundesverfassungsgericht am 22. und 23. März 1977* (1978).

Particular weight ought to be given to cooperation by the prisoner with the Court (see article 110 for further details). Lengthy terms of imprisonment are required before a review may take place (in the case of life imprisonment, 25 years). This may actually be longer than what in most cases of life imprisonment ordered by the Nuremberg Tribunal was the actual period of imprisonment before release. However, one should bear in mind that the harshest penalty open to the Nuremberg Tribunal was the death penalty, and that life imprisonment may only be imposed on strict conditions by the ICC²⁹.

Another issue was whether to include minimum periods of imprisonment as proposed 13 during the Preparatory Committee³⁰. Opinions were divided during the negotiations. On the one hand an indication of minimum periods would constitute a signal with regard to the gravity of the crimes concerned. On the other hand, one would in such cases have to consider factors which would lead to a reduction of the minimum period, including, for example, age or subsequent conduct of the convicted person. It was agreed to leave this to the discretion of judges, as the number and importance of possible mitigating and aggravating circumstances may in any case require concrete considerations.

Finally, article 77 reflects broad support for the inclusion of the possibility of fines and 14 certain forfeiture measures, but only as additional penalties. A common rationale behind both is to penalize the convicted person through his or her pocket, and such orders should be regarded as an integral part of the total penalty. With regard to forfeiture, there is in addition the traditional criminal law rationale that the offender should not profit from his wrongdoing³¹. Depriving persons engaged in international crimes under article 5 of the proceeds of their criminal activities may remove an incentive for so doing. It is reasonable to believe that such crimes may in certain cases lead to substantial unlawful profits, for example seizure of real property or valuable assets in cases of 'ethnic cleansing'. On-going work in tracing Jewish gold seized by Nazis before and during the Second World War provides another illustration. At the Conference there was agreement that provision should be made in the Statute for the forfeiture of proceeds and property derived from the commission of the crime. Moreover, collection of fines or forfeiture of property may benefit victims of crime and their families, through transfer to the Trust Fund in accordance with article 79 of the Statute.

This is the first time in international criminal justice that the possibility of ordering fines 15 for international crimes is explicitly provided for³². Such a possibility had been suggested in the ILC Draft Statute³³, as well as in other proposals³⁴. At the Conference, fines were widely considered as inadequate as a separate penalty, when seen in light of the seriousness of the crimes concerned. However, they were ultimately deemed appropriate as a possible supplementary sanction in addition to imprisonment. In order to promote legal certainty in conformity with the principle of legality it was decided to include in the Rules of Procedure and Evidence criteria necessary for the imposition of fines.

The ILC Draft Statute had not proposed any provision on forfeiture or similar penalties. 16 Proposals to include such a provision stem from the August 1996 session of the Preparatory

²⁹ This is further underlined in Rule 145 (3) on Determination of sentence of the Rules of Procedure and Evidence, which also requires evidence of the existence of one or more aggravating circumstances. See Fife, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 555, 558–565.

³⁰ See references in notes 21 and 22.

³¹ For an example of discussion of fines and forfeiture in a national context, see Ashworth, *Sentencing and Criminal Justice* (1992) 252–257 and 293–295.

³² See note 11 for the discretion afforded to the Nuremberg Tribunal, which however never imposed fines. See note 14 for the ICTY and ICTR, whose Statutes do not provide for fines. However, the judges adopted in both cases provisions on fines for procedural crimes such as contempt of the tribunal in the Rules of Procedure and Evidence, rules 77 (B) and 91 (E).

³³ Article 47 para. 1 (b), see note 19.

³⁴ In addition to proposals from delegations, it is noteworthy that such a possibility was suggested by Corell, Türk and Thune (Rapporteurs under the CSCE Moscow Human Dimension Mechanism to Bosnia- Herzegovina and Croatia), *Proposal for an International War Crimes Tribunal for the Former Yugoslavia* (1993) 180.

Committee, and were further discussed at the December 1997 session³⁵. Certain related, albeit not entirely analogous notions, are known from the statutes of the international tribunals. The Nuremberg Tribunal was authorized to deprive the convicted person of any stolen property and order its delivery to the Control Council for Germany³⁶. In the later Nuremberg trials, general confiscation of property was considered discriminatory and therefore was not applied by the United States Commissioner for Germany in the case of Alfred Krupp³⁷. Moreover, the ICTY and ICTR may order the return of stolen property or proceeds resulting from the sale of such property³⁸. Provisions of a more general scope, including forfeiture, are known both in international criminal law, particularly in the context of illicit traffic in narcotic drugs³⁹ and, significantly, in the national laws of certain States specifically with regard to crimes against humanity⁴⁰. Among the proposals considered in the Preparatory Committee were orders for forfeiture or seizure of instruments or objects of crime, property and proceeds of crime, and where forfeiture is impossible, collection of a sum of money equivalent thereto. A broad consensus was achieved at the Diplomatic Conference not to provide for the possibility of forfeiture of instruments of crime. The latter was widely considered give rise to a number of difficult legal and practical issues, in particular concerning the identification of title of ownership as regards instruments of crimes. Moreover, instrumentalities for war crimes and crimes against humanity, involving for instance military army equipment, could typically raise issues of State property governed by rules of State immunity. The debates in Rome highlighted furthermore possible constitutional problems and practical challenges, depending on the national legal traditions concerned, with regard to the notion of confiscation, particularly as regards issues of compensation. For such reasons, the notion (in English) of forfeiture was retained. In the consultations some delegations had also raised questions as to whether forfeiture could properly be treated as a penalty. For these and other reasons, some delegations would have preferred to leave the possibility of imposing forfeiture to national jurisdictions. On the other hand, a number of other delegations underlined the potential deterrent element in forfeiture, and stressed that forfeiture could in any case be considered at least as accessory to penalties. Ultimately, all delegations found that they could support the inclusion in the article of forfeiture of proceeds and property derived from the crime, but only as an additional and optional penalty.

B. Analysis and interpretation of elements

I. Paragraph 1

1. The chapeau

- 17 When considering the appropriate sentence to be imposed, the judges must first make a choice between two alternative penalties, namely imprisonment of not more than 30 years and life imprisonment. Reference is in this connection made to the relevant provisions in

³⁵ See in particular the final conference room paper, UN Doc. A/AC.249/1997/WG.6/CRP.8 (10 Dec. 1997).

³⁶ See note 13.

³⁷ This has been noted by Schabas, in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (1998) 273, 289 fn. 93. See 15 TWC 1180–1191 (1948).

³⁸ See note 14. It is also noteworthy that prior to the establishment of the ICTY, it was suggested to include a provision on 'confiscation of the proceeds of criminal conduct' in Corell, Türk and Thune, *Proposal for an International War Crimes Tribunal for the Former Yugoslavia* (1993) 180.

³⁹ See articles 1 para. 1 (f) and 5 of the UN Convention 20 December 1988 against illicit traffic in narcotic drugs and psychotropic substances. With regard to measures in order to deprive criminals of the proceeds from crime, reference is moreover made to articles 1 (d), 2 and 13 of the European Convention 8 November 1990 on laundering, search, seizure and confiscation of the proceeds from crime.

⁴⁰ See, for example, in French law, forfeiture of property as a compulsory additional penalty upon conviction of crimes against humanity, in article 213–1 of the Penal Code (Nouveau Code Pénal).

article 78, in particular with regard to factors in determining the sentence to be imposed and deduction of time previously spent in detention.

The system envisaged by the Rome Statute allows for a division between the phases of trial and sentencing after conviction, see articles 74 and 76. Information pertaining to the sentencing submitted by the parties before the Court may be relevant for the application of penalties under article 77, in addition to the assessment of any aggravating or mitigating circumstances pursuant to article 78. This includes determination of grounds necessary for justifying the imposition of a term of life imprisonment, the testing of criteria to be fulfilled to order a fine and the ordering of forfeiture.

a) ‘person’. As elsewhere in the Statute, the term ‘person’ has to be interpreted in light of article 25 para. 1, which makes it clear that the Court shall only have jurisdiction over natural persons. The term does not cover legal persons. In the preparatory work proposals had been made to include a provision on penalties applicable to the latter. Inclusion of such a provision depended however entirely on the outcome of considerations in the context of individual criminal responsibility for legal persons. It suffices here to note that debates not only showed major differences in national legal systems as to whether such responsibility could or should be applied to legal persons, but also as to which penalties might be applicable in such cases. While the Nuremberg Statute did contain provisions on criminal organizations⁴¹, it did not actually provide for penalties against such organizations. The Yugoslavia and Rwanda Statutes only provide for criminal responsibility for natural persons. In the preparatory work before the Diplomatic Conference particular penalties for legal persons were proposed. Those included fines, dissolution, prohibition of the exercise of activities, closure of premises, forfeiture of instrumentalities of crime and/or of proceeds, property and assets obtained by criminal conduct, and appropriate forms of reparation⁴². On the other hand, it was suggested that such provisions might give rise to issues of enforcement. Moreover, there were suggestions to adopt a unified approach as regards natural and legal persons both in relation to forfeiture and reparation provisions. At the Diplomatic Conference, it was ultimately decided not to include individual criminal responsibility for legal persons in article 25 of the Statute. As a consequence, no provision on penalties for legal persons was included either.

The term ‘person’ has also to be interpreted in light of article 26. This provision excludes persons under the age of 18 at the time of the alleged commission of a crime from the jurisdiction of the Court. In the preparatory work proposals had admittedly been made to include provisions on penalties applicable to juveniles. Inclusion of such provisions was however closely linked to the outcome of discussions on the (minimum) age of criminal responsibility in Part 3 on general principles of criminal law and opinions were deeply divided on this account. Should the Court be given the competency to prosecute minors, it was suggested that particular penalties would have to be provided for. Among proposals made was the setting of a maximum 20 year term of imprisonment for persons under the age of 18 at the time of the commission of the crime. Moreover, some delegations emphasized a particular need for appropriate measures for the rehabilitation of the offender. Difficulties related to the setting of appropriate penalties criteria and mechanisms for juveniles were perceived by some delegations as additional arguments for excluding minors from the jurisdiction of the Court, and setting a high age of responsibility to this end. At the Diplomatic Conference, persons under the age of 18 were excluded from the jurisdiction of the Court in article 26. As a consequence no provision on penalties for juveniles was ultimately included either.

b) ‘convicted of a crime referred to in article 5’. The article does notably not regulate the application of sanctions with regard to so-called offences against the administration of justice

⁴¹ Nuremberg Statute article 9. See Taylor, *The Anatomy of the Nuremberg Trials* (1992) 276.

⁴² See Preparatory Committee Draft, pp. 121–122.

and misconduct before the Court. Such sanctions have a separate regulation, in order to fulfill the requirements of the principle of *nulla poena sine lege*, as expressed in article 23. Reference is made to articles to 70 and 71 for such sanctions.

Should the person concerned be convicted of more than one crime, reference is made to the particular rules for determination of the total term of imprisonment in article 78 para. 3. It should be noted that this provision does not address the ordering of fines or forfeiture, which must be considered by the Court in a unified way taking into account all crimes of which the person concerned has been convicted.

- 22 c) **The reference to article 110.** The reference '[s]ubject to article 110' in the chapeau does not signify any automatic early release. Instead the language means that there has to be a mandatory consideration after a specified number of years of whether the required criteria have been met in order to allow such release. This understanding of non-automaticity of result was key to negotiators representing very diverse legal systems and traditions.

2. The different subparagraphs

- 23 a) **'Imprisonment for a specified number of years'.** The order in the listing of penalties, which mentions the above as the first alternative, signifies that such a term of imprisonment of not more than 30 years is the ordinary penalty unless the conditions in the next subparagraph are fulfilled. As noted above, no provision for minimum terms of imprisonment was included in the Statute. Should the ordinary meaning of the terms of the Statute on this point be read in isolation, the wording would seem to indicate, though, that terms of imprisonment have to be expressed in years, rather than months or days, and therefore exclude imprisonment expressed in less than years. Several proponents of heavy penalties reflective of the gravity of the crimes referred to in article 5, including proponents of the death penalty, indicated in the consultations with the Chair of the Working Group that penalties specified in less than years would not be understood in their national systems and would easily give rise to perceptions that the Court was too lenient and therefore lacked legitimacy. Others did not consider that such penalties would be very likely, in light of the gravity of the crimes concerned and the objectives of the Court. There was thus general agreement to reflect the particular gravity of crimes that are of concern to the international community as a whole. This contributes largely to explain the wording chosen. As clearly indicated under margin point 13 above, however, the intention of the drafters was clearly not to impose a minimum period of imprisonment. The Statute is a treaty that has to be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose, as required by the general rule of interpretation in article 31 of the Vienna Convention on the Law of Treaties of 23 May 1969. It may therefore, in spite of the plain wording, be reasonable to assume that the Court might in particular cases also impose imprisonment for less than one year.⁴³
- 24 b) **'A term of life imprisonment'.** The Court is given discretion to impose a term of life imprisonment. This power latter is, however, listed second and requires a particular justification. This signifies that life imprisonment is not ordinarily the main penalty, as also underlined in rule 145 (3) of the Rules of Procedure and Evidence⁴⁴. The nature and the objective circumstances of the crime as well as the individual circumstances of the convicted person must be taken into account in the determination of any sentence in accordance with article 78 para. 1 and rule 145. In order to impose a term of life imprisonment a particular justification must be made by the judges. The Statute establishes two cumulative requirements in this regard. In addition to a justification due to the individual circumstances of the convicted person, there must be a justification due to the 'extreme gravity of the crime'. With

⁴³ See Ambos, *Treatise on International Criminal Law* (OUP 2014) 281, 277, who drew the attention of the author to the need for flexibility.

⁴⁴ See note 29.

regard to the latter requirement, not all acts defined in articles 6 to 8 of the Statute would by their nature potentially fulfill this requirement of comparative gravity. Moreover, the judges must undertake a concrete consideration of the objective circumstances of the individual crime committed. For example, the jurisprudence of the ICTR provided early indications with regard to factors that may justify life imprisonment⁴⁵. As stated in rule 145 sub-rule 3 the above cumulative requirements must be ‘evidenced by the existence of one or more aggravating circumstances’.

II. Paragraph 2

1. The chapeau

This paragraph empowers the Court to impose the two following penalties in addition to imprisonment, either alternatively or in a cumulative way: 25

2. The different subparagraphs

a) ‘A fine under the criteria provided for in the Rules of Procedure and Evidence’. A fine 26 may be defined as an ordinary penalty whereby the convicted person is ordered to pay a sum of money to the Court. Criteria for their imposition are set out in rule 146 of the Rules of Procedure and Evidence. The Rome Statute provides for the possibility of fines, as an optional penalty, but only in addition to imprisonment. The Court thus has a power which has not been conferred on the ICTY and the ICTR. Pursuant to article 79 fines collected will be transferred to a Trust Fund for victims.

At the Diplomatic Conference several delegations stressed the need for some guidance and legal certainty before fines could be applied. Certain concerns raised in this connection shed some light on issues that were later considered in the context of criteria to be included in the Rules of Procedure and Evidence. The first issue was related to the levels or amounts of fines. It would in particular be necessary to ensure that the application of fines would not be excessive. Some delegations stressed during the Conference that nominating amounts in the Statute would lead to difficulties. There would be need for flexibility over time, and one should take into consideration the difficulties in amending the Statute. Moreover, there would be need for having regard to the circumstances and means of the convicted person, and in particular the ability of the convicted person to pay and the burden this may have on dependents of the person. 27

The other key issue is what to do in cases of non-payment. At the Conference there was, first of all, widespread agreement that sanctions should be limited to cases of wilful non-payment, while recognizing that there may be difficulties in ascertaining whether insolvency or actual lack of will to pay is the reason for non-payment. Several delegations indicated that there should, in cases of wilful non-payment, be the possibility of a sanction consisting in an additional period of imprisonment. Other delegations warned against instituting automatic prison penalties for debt. Among suggestions made in order to provide for the necessary flexibility, while at the same time satisfying the requirements of the principle of legality, were to provide for the possibility of re-sentencing by the Court in cases of intentional non-payment of a fine, in whole or in part. Among grounds upon which the Court may re-sentence the convicted person could be proof on the balance of probability that the person has the means available to satisfy the order 28

The formulation of rule 146, which was ultimately adopted, reads as follows:

- ‘1. In determining whether to order a fine under article 77, paragraph 2 (a), and in fixing the amount of the fine, the Court shall determine whether imprisonment is a sufficient penalty. The Court shall give due consideration to the financial capacity of the convicted person, including any orders for forfeiture in accordance with article 77, paragraph 2 (b), and, as appropriate, any

⁴⁵ See note 19.

orders for reparation in accordance with article 75. The Court shall take into account, in addition to the factors referred to in rule 145, whether and to what degree the crime was motivated by personal financial gain.

2. A fine imposed under article 77, paragraph 2 (a), shall be set at an appropriate level. To this end, the Court shall, in addition to the factors referred to above, in particular take into consideration the damage and injuries caused as well as the proportionate gains derived from the crime by the perpetrator. Under no circumstances may the total amount exceed 75 per cent of the value of the convicted person's identifiable assets, liquid or realizable, and property, after deduction of an appropriate amount that would satisfy the financial needs of the convicted person and his or her dependents.
3. In imposing a fine, the Court shall allow the convicted person a reasonable period in which to pay the fine. The Court may provide for payment of a lump sum or by way of installments during that period.
4. In imposing a fine, the Court may, as an option, calculate it according to a system of daily fines. In such cases, the minimum duration shall be 30 days and the maximum duration five years. The Court shall decide the total amount in accordance with sub-rules 1 and 2. It shall determine the amount of daily payment in the light of the individual circumstances of the convicted person, including the financial needs of his or her dependants.
5. If the convicted person does not pay the fine imposed in accordance with the conditions set above, appropriate measures may be taken by the Court pursuant to rules 217 to 222 and in accordance with article 109. Where, in cases of continued wilful non-payment, the Presidency, on its own motion or at the request of the Prosecutor, is satisfied that all available enforcement measures have been exhausted, it may as a last resort extend the term of imprisonment for a period not to exceed a quarter of such term or five years, whichever is less. In the determination of such period of extension, the Presidency shall take into account the amount of the fine, imposed and paid. Any such extension shall not apply in the case of life imprisonment. The extension may not lead to a total period of imprisonment in excess of 30 years.
6. In order to determine whether to order an extension and the period involved, the Presidency shall sit in camera for the purpose of obtaining the views of the sentenced person and the Prosecutor. The sentenced person shall have the right to be assisted by counsel.
7. In imposing a fine, the Court shall warn the convicted person that failure to pay the fine in accordance with the conditions set out above, may result in an extension of the period of imprisonment as described in this rule.⁷

A number of delegations referring to the need for certainty and predictability, in accordance with the principle of legality, had spoken in favour of clear provisions on a maximum amount for fines, a scale of punishment, and a subsidiary term of imprisonment for wilful non-payment of fines, as formulated in the above rule⁴⁶. Among cases where fines may be a particularly relevant additional penalty, are those where financial gain motivated the crime concerned. In such cases, fines may indeed serve a deterrent purpose in addition to imprisonment. The method of calculation as well as the method of payment are set out in rule 146 (3) and (4)⁴⁷.

- 29 A divisive issue proved to be the question of sanctions in case of non-payment of fines. Reservations were expressed with regard to automatic application of sanctions such as extension of the term of imprisonment. Other delegations maintained that the credibility of fines was contingent on sufficiently harsh sanctions for wilful non-payment. A compromise formula is contained in rule 147 (5–7), providing for the possibility of extending the term of imprisonment as a last resort and within certain limitations, including a maximum ceiling for the total period of imprisonment.

- 30 In its first sentencing by the ICC, in *Lubanga*, the Chamber considered it inappropriate to impose a fine in addition to the prison term, given the financial situation of the convicted person. Despite extensive inquiries by the Court, no relevant funds had been identified.⁴⁸ No fines have been imposed by the Court at the time of writing (2014).

⁴⁶ For a detailed account of the negotiations on the provisions in rule 146 on the imposition of fines, see Fife, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 555, 565–569.

⁴⁷ See La Rosa, *Juridictions Pénales Internationales: La Procédure et la Preuve* (2003) 204; Schabas, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: a Commentary* (2002) 1497, 1513.

⁴⁸ Lubanga (Decision on Sentence), see note 4, para. 106.

b) ‘A forfeiture of proceeds, property and assets derived directly or indirectly from that crime, without prejudice to the rights of bona fide third parties’. Article 77 para. 2 (b) of the Rome Statute provides on certain conditions for the possibility, as yet another penalty in addition to imprisonment, of a forfeiture of proceeds, property and assets derived from the crime. Implicitly it excludes the Court from ordering forfeiture of instrumentalities, *i. e.* any property used or intended to be used to commit the crime. Pursuant to article 79 property collected through forfeiture will be transferred to a Trust Fund for victims. Reference is here also made to the provision on reparations to victims in article 75 of the Statute.

Forfeiture may in this context be defined as the divestiture or permanent deprivation from the convicted person of specific property without compensation. At the Diplomatic Conference, since the notion gave rise to difficult questions of translation and legal interpretation in other languages it was ascertained that for the purposes of the Statute the equivalent term in French is ‘confiscation’⁴⁹ and in Spanish ‘decomiso’.

Definitions of ‘proceeds’ or ‘property’ are not contained in the Statute. However, guidance could be drawn from article 1 (a) and (b) of the 1990 European convention on laundering, search, seizure and confiscation of the proceeds from crime. Article 1 (a) defines ‘proceeds’ as any economic advantage from criminal offences. It may consist of any ‘property’ as defined in article 1 (b), which includes property of any description, whether corporeal or incorporeal, movable or immovable, and legal documents or instruments evidencing title to, or interest in such property. The inclusion of ‘assets’ underlines the broad scope of the forfeiture provision, and also creates possible overlap with the category of property.

Forfeiture presupposes also causation as to whether and to what extent the offender has benefited from the crime. The formulation ‘derived directly or indirectly from that crime’ is very broad, and lessens the evidentiary burden of the Court. Guidance could be drawn from relevant provisions on forfeiture of property derived from crime to be found in the 1988 United Nations Convention against illicit traffic in narcotic drugs and psychotropic substances (see article 5).

Forfeiture raises issues of determination of ownership⁵⁰. Those may include standards for burden of proof and choice of law in determining ownership⁵¹, and particular challenges may arise in particular in cases where victims, property and third parties are located in different jurisdictions. The Court may have the need to notify the State where the property is located. It may also be relevant for the Court to consider the relationship with national court systems, which may have the advantage of better legal and practical avenues for making such considerations⁵².

The proviso ‘without prejudice to the rights of bona fide third parties’ in article 77 para. 2 differs from the rule of restitution of property in the Statute of the ICTY, which extends the Tribunal’s jurisdiction to property that may be in the hands of third parties, even those not otherwise connected with the crime⁵³. A similar proviso is contained in the 1988 United Nations Convention against illicit traffic in narcotic drugs and psychotropic substances⁵⁴. Guidance may here be derived from general principles of law recognized by national legal systems with regard to protection of rights of third parties in good faith (*bona fide*), in particular with regard to concrete bona fide standards. Such standards may, however, not easily be met in the context of acquisition or possession of certain kinds of property in

⁴⁹ In French law, see, for example, Stefani, Levasseur and Boulloc, *Droit Pénal Général* (1997) 423–426.

⁵⁰ See in particular Morris and Scharf, *The International Criminal Tribunal for Rwanda* (1998) 594.

⁵¹ See Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 704.

⁵² See Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 594.

⁵³ Rule 105 (B). See Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 703.

⁵⁴ Article 5 para. 8 of the Convention states: ‘The provisions of this article shall not be construed as prejudicing the rights of bona fide third parties’.

situations of armed conflict or other situations where gross violations of humanitarian law have taken place. This would significantly be the case for real property or cultural property, more so than for instance certain movable goods whose origin may be difficult to ascertain.

Provisions on orders of forfeiture are contained in rule 147. In accordance with this provision, the Court may order a forfeiture of proceeds, property and assets derived directly or indirectly from that crime, without prejudice to the rights of *bona fide* third parties⁵⁵. Rule 147 on orders of forfeiture reads:

- ‘1. In accordance with article 76, paragraphs 2 and 3 and rules 63, sub-rule 1, and 143, at any hearing to consider an order of forfeiture, a Chamber shall hear evidence as to the identification and location of specific proceeds, property or assets which have been derived directly or indirectly from the crime.
2. If before or during the hearing, a Chamber becomes aware of any bona fide third party who appears to have an interest in relevant proceeds, property or assets, it shall give notice to that third party.
3. The Prosecutor, the convicted person and any bona fide third party with an interest in the relevant proceeds, property or assets may submit evidence relevant to the issue.
4. After considering any evidence submitted, a Chamber may issue an order of forfeiture in relation to specific proceeds, property or assets if it is satisfied that these have been derived directly or indirectly from the crime.’

C. Special Remarks

1. Relationship with cooperation issues

- 37 The application of penalties by the Court will in many cases presuppose international cooperation and judicial assistance in accordance with the relevant provisions of Part 9 of the Statute. In particular, it is reasonable to assume that the possibility to order forfeiture may to a large degree depend on effective prior assistance from States. In accordance with article 93 para. 1 (k), States Parties shall therefore comply with requests by the Court to provide assistance, *inter alia*, in the identification, tracing and freezing or seizure of relevant proceeds, property and assets. Other illustrations of the close relationship between aspects concerning forfeiture and State cooperation are to be found in article 93 para. 9 (b) concerning property which is subject to the control of a third State or an international organization and in article 98 with respect to the State or diplomatic immunity of property of a third State.

2. Relationship with enforcement issues

- 38 The penalties ordered by the Court are to be given effect through national enforcement by States. Moreover, the application of penalties gives rise to a number of consequences with regard to enforcement. The relevant enforcement provisions are contained in Part 10 of the Statute. Reference is in particular made to article 103 with regard to the role of States in enforcement of sentences of imprisonment and article 109 concerning enforcement of fines and forfeiture measures.

3. Likely impact of provisions on review by the Court concerning reduction of sentence on the possibilities to impose fines and forfeiture

- 39 It should be noted that in accordance with article 110 para. 4 (b) of the Rome Statute the Court may on certain conditions reduce a sentence if it finds that the person has voluntarily assisted the Court in other cases, notably in enabling it to locate assets subject to orders of fine or forfeiture which may be used for the benefit of victims. It may be reasonable to assume that this could in practice become a significant factor in enhancing the possibilities of the Court to impose fines and forfeiture.

⁵⁵ For an account of the negotiations on rule 147 concerning orders of forfeiture, see note 28, R. E. Fife, 569–570. See La Rosa, *Juridictions Pénales Internationales: La Procédure et la Preuve* (2003) 204; Schabas, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: a Commentary* (2002) 1497, 1515.

Article 78

Determination of the sentence

1. In determining the sentence, the Court shall, in accordance with the Rules of Procedure and Evidence, take into account such factors as the gravity of the crime and the individual circumstances of the convicted person.

2. In imposing a sentence of imprisonment, the Court shall deduct the time, if any, previously spent in detention in accordance with an order of the Court. The Court may deduct any time otherwise spent in detention in connection with conduct underlying the crime.

3. When a person has been convicted of more than one crime, the Court shall pronounce a sentence for each crime and a joint sentence specifying the total period of imprisonment. This period shall be no less than the highest individual sentence pronounced and shall not exceed 30 years imprisonment or a sentence of life imprisonment in conformity with article 77, paragraph 1 (b).

Literature: See literature listed under Articles 76 and 77; Rule 145; D'Ascoli, S., *Sentencing in international criminal law* (Hart Publishing 2011); *Final Report of the Preparatory Committee*, UN Doc A/CONF.183/2/Add.1 (1998)

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A. Introduction/General remarks

Sentencing is as much an art as a science. Despite the provision in Article 78 and its 1 corresponding rule – Rule 145 of the Rules of Procedure and Evidence – it is worth bearing this in mind. That said, Article 78 frames the issue of sentencing and sets out general factors that must be considered by a Trial Chamber when determining sentence. Whilst the adage that 'the punishment, should fit the crime' is of general applicability, and frequently heard in national systems, it provides limited guidance when dealing with crimes within the jurisdiction of the ICC which, by their very nature, are limited to crimes at the most serious end of any sentencing tariff. What is clear, however, is that a Trial Chamber has a 'broad discretion as to which factors it may consider in sentencing and the weight to attribute to them'¹.

¹ *Prosecutor v. Jelisić*, IT-95-10-A, Judgment, 5 July 2001, para. 100; see also *Prosecutor v. Nikolić*, IT-94-2-A, Judgment on Sentencing Appeal, 4 February 2005, para. 27.

- 2 As with other articles on penalties, aspects of Article 78 generated significant debate in the Preparatory Committee and at the Diplomatic Conference. This debate was driven, in part, by delegations seeking to reflect approaches taken in their national criminal justice systems to sentencing matters.
- 3 Paragraph 1 of Article 78 does not contain an exhaustive list of aggravating and mitigating factors, nor does it even use those terms. Specific reference is only made to ‘gravity of the crime and the individual circumstances of the convicted person.’ It is left to the Rules of Procedure and Evidence to set out in more detail a list of factors relevant when determining sentence. Rule 145 performs this function and details certain aggravating and mitigating factors that may be considered by a Trial Chamber. Given that Article 78(1) specifically requires recourse to the Rules of Procedure and Evidence it is clear that the factors detailed in Rule 145 will be particularly important when seeking to properly interpret and apply Article 78.

The Preparatory Committee saw a lengthy debate on aggravating and mitigating factors. The Preparatory Committee’s Working Group on Penalties addressed the issue both in formal and informal meetings. Delegations wrestled, *inter alia*, with the question of whether an illustrative or exhaustive list of factors should be included in the Statute. It was finally agreed that only a short illustrative list of factors should be included in the article with further factors to be elaborated in the Rules of Procedure and Evidence.

This position is reflected in footnote 13 on page 122 of the final Report of the Preparatory Committee², which provides as follows:

‘It may be impossible to foresee all of the relevant aggravating and mitigating circumstances at this stage. Many delegations felt that factors should be elaborated and developed in the Rules of Procedure and Evidence, while several other delegations expressed the view that a final decision on this approach would depend upon the mechanism agreed for adopting the Rules. Among the factors suggested by various delegations as having relevance were: the impact of the crime on the victims and their families; the extent of damage caused or the danger posed by the convicted person’s conduct; the degree of participation of the convicted person in the commission of the crime; the circumstances falling short of exclusion of criminal responsibility such as substantially diminished mental capacity or, as appropriate, duress; the age of the convicted person; the social and economic condition of the convicted person; the motive for the commission of the crime; the subsequent conduct of the person who committed the crime; superior orders; the use of minors in the commission of the crime’.

- 4 The matter was not reopened at the Diplomatic Conference, with the text of paragraph 1 being identical to the text submitted by the Preparatory Committee³.
- 5 Paragraph 1 of Article 78 is drafted in similar, but not identical terms, to Article 46(2) of the Draft Statute prepared by the ILC⁴, Article 24(2) the Statute of the ICTY⁵ and Article 23(2) of the ICTR⁶. Accordingly, the sentencing jurisprudence of the Tribunals may be of additional relevance when considering aggravating and mitigating factors in the context of the Court⁷. What is clear, however, is that when interpreting Article 78, close reference must be had to the express provisions of Rule 145(1) and (2) of the ICC Rules of Procedure and Evidence.

Rule 145(1) provides more detailed direction on determining sentences to the Court than Article 78(1). Sub-rule 1(b) requires the Court to ‘[b]alance all the relevant factors, including any mitigating and relevant factors’ in determining sentences. The word ‘balance’ does not appear in paragraph 1 of Article 78. Sub-rule 1(c) sets out a range of factors to be taken into account by the Court. A number of these factors are drawn from footnote 13 of the Preparatory Committee’s Final Report, for example, the effect of the crime on victims and their families.

² Preparatory Committee (Consolidated) Draft.

³ See article 77 para. 1 of the Preparatory Committee Draft, p. 122.

⁴ UN Doc. A/CN.4/L.491/Rev.2, p. 28.

⁵ Annex to UN SC Res. 827 (1993).

⁶ Annex to UN SC Res. 1168 (1994).

⁷ See, for example, the decision of the ICTY Appeals Chamber in *Prosecutor v. Erdemović*, IT-96- 22-A, 7 October 1997.

Rule 145(2) identifies mitigating and aggravating circumstances to be taken into account by the Court. Sub-rule 2 (a), concerning mitigating circumstances, draws on some elements of footnote 13, for example, sub-rule 2 (a) (i) – ‘circumstances falling short of constituting grounds for exclusion of criminal responsibility, such as substantially diminished mental capacity or duress’. Sub-rule 2(b), dealing with aggravating circumstances, picks up one factor from footnote 13: the motive for the commission of the crime. Sub-rule 2 (b) (v) lists any motive involving discrimination on any grounds referred to in paragraph 3 of article 21 as an aggravating circumstance.

Paragraph 2 of Article 78 generated less debate than paragraph 1 in the Preparatory Committee. Delegations accepted that it was fair to require the Court to take account of time spent in detention, as a result of its order, in determining a sentence of imprisonment. Delegations were also prepared to give discretion to the Court to deduct any time otherwise spent in detention in connection with conduct underlying the crime. This discretion would permit the Court to take into account time spent by a person in detention pursuant to a conviction under national law for conduct constituting a crime within the jurisdiction of the Court. It is necessary to provide the Court with this discretion as national convictions are not an absolute bar to prosecutions before the Court⁸.

The text of paragraph 2 was settled in the Preparatory Committee and not reopened at the Diplomatic Conference⁹. The deduction of time spent in custody by order of the ICTY is governed by Rule 101 (C) of the ICTY Rules of Procedure and Evidence¹⁰ which requires the Trial Chamber in sentencing to give ‘credit’ to the convicted person:

‘... for the period, if any, during which the convicted person was detained in custody pending surrender to the Tribunal or pending trial or appeal’.

The relevant provision in the ICTR Rules of Procedure and Evidence is Rule 101 (C), which is drafted in identical terms to Rule 101 (C) of the ICTY Rules.

Although the ICTY and ICTR Rules refer to a person being given ‘credit’ for time in custody and paragraph 2 refers to time in detention being ‘deducted’, the practical effect of the ICTY and ICTR provisions and paragraph 2 would appear to be the same. In the Sentencing Judgment of 5 March 1998 in *Erdemovic*¹¹, for example, the Trial Chamber imposed a sentence of imprisonment of five years on the count of a violation of the laws or customs of war, but ruled that the time Erdemovic had spent in custody from 28 March 1996 had to be deducted from the sentence. The Court would be expected to adopt this approach in applying paragraph 2 when sentencing a convicted person who has spent time in detention in accordance with a Court order.

As to time spent in detention because of a conviction under national law, Article 10(3) of the ICTY Statute requires the Tribunal in considering the penalty to be imposed on a convicted person to:

‘... take into account the extent to which any penalty imposed by a national court on the same person for the same act has already been served’.

The equivalent provision of the ICTR Statute is Article 9(3).

The text of paragraph 3 could not be settled in the Preparatory Committee. The purpose of the paragraph is to establish a mechanism for the imposition of sentences where a person is convicted of more than one crime. Some delegations supported a single sentence being imposed, with a limitation as to the length of that sentence. Other delegations favoured the approach that had been taken in the ICTY Rules¹², which required the Trial Chamber to determine whether multiple sentences were to be served consecutively or concurrently. The

⁸ See Article 20.

⁹ See Article 77 para. 2 of the Preparatory Committee text, note 1, p. 122.

¹⁰ Rev. 33.

¹¹ *Prosecutor v. Erdemović*, IT-96-22-T.

¹² See also Rule 101 (C) of the ICTR Rules.

views of the former group of delegations were reflected in option 1 under Article 77(3) of the Preparatory Committee text¹³, while the view of the latter group of delegations was reflected in option 2 under Article 77(3) of the Preparatory Committee text¹⁴.

The negotiations on paragraph 3 at the Diplomatic Conference centred on efforts to bridge between the two views outlined in the previous paragraph. These efforts proved fruitful. The final text of paragraph 3 requires a separate sentence to be pronounced for each crime, but a single sentence to be imposed on the convicted person. Conditions are also imposed in relation to the length of the single sentence.

B. Analysis and interpretation of elements

I. Preliminary considerations

1. Facts and circumstances described in the charges

- 10 Article 78 does not limit the factors that are properly to be considered during sentencing to those described in the document containing the charges. The evidence admitted at the sentencing stage can exceed the facts and circumstances set out in the Confirmation of Charges Decision, provided the defence has had a reasonable opportunity to address them¹⁵. Both aggravating and mitigating factors are therefore not limited to the facts and circumstances described in the Confirmation of Charges Decision. This finding departs, partially, from the ICTY jurisprudence which provides that although mitigating factors may include circumstances not directly related to the offence, aggravating factors must be directly related to the offence¹⁶. Regarding mitigating factors, this rule flows particularly from Rule 145(2)(a)(ii) of the Rules which refers to ‘the convicted person’s conduct after the act’¹⁷.

2. Standard of proof

- 11 Neither the Rome Statute nor the Rules of Procedure and Evidence define the applicable evidentiary standard for the factual elements considered at this stage. Following ICTY jurisprudence¹⁸, ICC judges have, in practice, differentiated between aggravating and mitigating circumstances. Thus, while aggravating factors must be established beyond reasonable doubt, mitigating circumstances must only be established on a balance of probabilities¹⁹. This reasoning is based on the appreciation that since aggravating factors may have a significant effect on the overall length of the sentence; they must be established to the criminal standard of proof to concur with the legality of penalties principle²⁰.

3. Double counting

- 12 Any factors that are to be taken into account when assessing the gravity of the crime will not additionally be taken into account as aggravating circumstances and *vice-versa*²¹. This

¹³ Preparatory Committee (Consolidated) Draft, p. 122.

¹⁴ *Ibid.*, p. 123.

¹⁵ *The Prosecutor v. Thomas Lubanga Dyilo*, ‘Decision on Sentence pursuant to Article 76 of the Statute’ (Lubanga Decision), ICC-01/04-01/06-2901, 10 July 2012, para. 29.

¹⁶ *Prosecutor v. Stakić*, IT-97-24-T, Judgment, 31 July 2003, paras. 911 and 920; *Prosecutor v. Kunarac et al.*, IT-96-23&23/1-T, Judgment, 22 February 2001, para. 850.

¹⁷ Lubanga Decision, para. 34.

¹⁸ *Prosecutor v. Babić*, IT-03-72-A, Judgment on Sentencing Appeal, 18 July 2005, para. 43; *Prosecutor v. Kunarac et al.*, IT-96-23&23/1-T, Judgment, 22 February 2001, para. 847.

¹⁹ Lubanga Decision, paras. 33–34; *The Prosecutor v. Germain Katanga*, ‘Décision relative à la peine (article 76 du Statut)’ (Katanga Decision), ICC-01/04-01/07-3484, 23 mai 2014, paras. 33–34.

²⁰ Lubanga Decision, para. 33.

²¹ Lubanga Decision, para. 35; Katanga Decision, para. 35.

rule is consistent with the law and practice of the *ad hoc* Tribunals²². In *Deronjic*, the Appeals Chamber found that the fact that the Trial Chamber had discussed the gravity of the crime and the relevant aggravating factors in the same section of its judgment was ‘unfortunate’²³. Similarly, in *Jokić*, the Appeals Chamber considered that:

‘[the Trial Chamber’s] consideration of the Appellant’s abuse of his position of authority as an aggravating circumstance may have been inappropriate in the light of the fact that it had convicted the defendant under Article 7(3) of the Statute, which essentially incorporates the Appellant’s authority as an element’²⁴.

It is similarly prohibited to double-count mitigating factors. In the ICTY case of *Limaj et al*, the Appeals Chamber found that the Trial Chamber had erred in considering the subordinate role of the accused Haradin Bala when assessing the gravity of the crimes and when determining the factors in mitigation²⁵. On this ground, the *Lubanga* Trial Chamber rejected the Prosecution’s submission that the young age of the children recruited should be considered as an aggravating factor. The Chamber found that since it already constituted a core element of the offence for which Lubanga had been found guilty, age could not be counted as an aggravating factor.²⁶

In the view of Kai Ambos, the prohibition of double counting flows from the basic rationale of achieving a just and adequate punishment.²⁷ Fairness thus requires double counting to be understood in a broad sense to include any factor, and not merely constituting elements of the offence. That said, distinction between factors belonging to the gravity of the crime and factors considered as mitigating or aggravating remains largely uncertain.²⁸ Such uncertainty is due, in particular, to the complexity of the concept of gravity addressed in section II(1) below.

II. Paragraph 1: Factors in determining sentence to be imposed

Unlike the Statutes of the *ad hoc* Tribunals²⁹, the Rome Statute does not require that recourse be had to the sentencing practice of the territory where the crime was committed. Article 78 (1) only requires the Court to take account of the two factors listed in the paragraph, ‘gravity of the crime’ and ‘individual circumstances of the convicted person’, in determining the sentence to be imposed. The Court must do so in accordance with the Rules of Procedure and Evidence (rule 145).

1. ‘gravity of the crime’

Gravity of the crime will be the critical factor in the determination of any sentence. Although the Court’s jurisdiction ensures that it deals only with the most serious crimes, all crimes will not be of equivalent gravity. The Court will have to consider the nature and scale of crimes in determining their gravity.

The sentencing jurisprudence of the ICTY and ICTR has emphasized the central importance of the gravity of a crime in determining the appropriate sentence for a convicted person. In the *Celibici*³⁰ Judgment, the Trial Chamber stated in paragraph 1225 that:

²² See for example: *Prosecutor v. Nikolić*, IT-02-60/1-A, Appeals Chamber, Judgment on Sentencing Appeal, 8 March 2006, para. 58; *Prosecutor v. Fofana and Kondewa*, SCSL-04-14-T, Judgment on the Sentencing of Moinina Fofana and Allieu Kondewa, 9 October 2007, para. 35.

²³ *Prosecutor v. Deronjic*, IT-02-61-A, Judgment on Sentencing Appeal, 20 July 2005, para. 106.

²⁴ *Prosecutor v. Jokić*, IT-01-42/1-A, Sentencing Appeal Judgment, 30 August 2005, para. 30.

²⁵ *Prosecutor v. Limaj*, IT-03-66-A, Appeal Judgment, 27 September 2007, para. 143.

²⁶ *Lubanga* Decision, paras. 77–78.

²⁷ See Ambos, K., *Treatise on International Criminal Law, Volume II: The Crimes and Sentencing* (Oxford University Press 2014), p. 265.

²⁸ *Ibid.*, p. 288.

²⁹ Article 23(1) of the ICTR Statute and Article 24(1) of the ICTY Statute.

³⁰ IT-96-21, Judgment, 16 November 1998.

‘the most important consideration, which may be regarded as the litmus test for the appropriate sentence, is the gravity of the offence’.

This statement was endorsed by the Appeals Chamber in its Judgment in *Aleksovski*³¹ at paragraph 182. Judges of the ICTY moreover considered that, when assessing gravity of the offense, one must consider the crime for which the accused have been convicted, their underlying criminal conduct, and their specific role in the commission of the crime³². The ICTY and ICTR sentencing jurisprudence also provides the Court with useful guidance on the comparative gravity of crimes. In the Judgement and Sentence in *Kambanda*, for example, the Trial Chamber took the view that:

‘...despite the gravity of the violations of Article 3 common to the Geneva Conventions and of the Additional Protocol II thereto, they are considered as lesser crimes than genocide or crimes against humanity’³³.

In the same paragraph, the Trial Chamber considered the ranking of genocide and crimes against humanity in terms of their respective gravity to be more difficult. In paragraph 17 the Trial Chamber found that the ‘extreme gravity’ of genocide and crimes against humanity requires persons who commit such crimes to be ‘punished appropriately’. This approach is justified by the fact that war crimes, crimes against humanity and genocide are distinguished by the systematic targeting of civilians and their additional contribution to a ‘broader scheme of violence’³⁴.

- 16 Rule 145 of the Rules of Procedure and Evidence provides further guidance when assessing the gravity of the crime, Sub-rule 1(c) contains at least one factor going to the gravity of the crime, namely ‘the extent of the damage caused, in particular the harm caused to the victims and their families’. Rule 145, sub-rule 2(b) also lists a number of aggravating circumstances relevant to the gravity of the crime, for example, ‘[c]ommission of the crime with particular cruelty or where there were multiple victims’.

A fair sentence is one that reflects the gravity of the offence committed by the convicted person³⁵. Thus, in determining the sentence against a convicted person, elements of the crimes should be taken into consideration as long as they are not double-counted³⁶. ‘Gravity’ must not be considered in the abstract, or in isolation but should always be assessed from both a quantitative and a qualitative perspective, in light of the particular circumstances of the case and of the degree of participation of the convicted person³⁷.

Thus, in assessing the gravity of the crimes of conscripting and enlisting children under the age of fifteen and using them to participate actively in hostilities, the *Lubanga* Trial Chamber took into account several factors, such as the vulnerability of children, their exposure to danger, the risk of being wounded and killed, and the risk of post-traumatic stress and disorder the children have been exposed to³⁸. The Trial Chamber in *Katanga* highlighted the violence and the widespread nature of the crime committed and the discriminatory nature of the attack³⁹. Additionally, the Chamber noted the current situation in the area where the crimes were committed and the consequences of the suffering of the victims on the society⁴⁰.

³¹ IT-95-14/1, Judgment, 24 March 2000.

³² *Prosecutor v. Tadić*, IT-94-1-A, Judgment in Sentencing Appeals, 26 January 2000, para. 55; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, 20 February 2001, para. 847.

³³ *Prosecutor v. Kambanda*, ICTR 97-23-S, Judgment and Sentence, 4 September 1998, para. 14.

³⁴ *Prosecutor v. Erdemović*, IT-96-22-A, Judgment, Joint and Separate Opinion of Judge McDonald and Judge Vohrah, 7 October 1997, para. 20–22.

³⁵ *Katanga* Decision, para. 42.

³⁶ *Katanga* Decision, para. 45–50.

³⁷ *Katanga* Decision, para. 43.

³⁸ *Lubanga* Decision, paras. 36–44.

³⁹ *Katanga* Decision, paras. 46–54.

⁴⁰ *Katanga* Decision, paras. 55–60.

2. 'individual circumstances of the convicted person'

Paragraph 1 of article 78 does not specify matters for the Court to consider under the rubric of the 'individual circumstances of the convicted person'. In this regard, rule 145, sub-rule 1(c) directs the Court to give consideration to 'the age, education, social and economic condition of the convicted person'. By way of example, the *Lubanga* Trial Chamber found that the level of awareness on part of the convicted person was a relevant factor in determining the appropriate sentence. In the particular circumstances of the case, the fact that Thomas Lubanga was 'an intelligent and well-educated individual, who would have understood the seriousness of the crimes of which he has been found guilty' increased the gravity of his crimes⁴¹. For additional factors, see C. below

III. Paragraph 2

1. Deduction from sentence of time spent in detention by order of the Court

The first sentence of Article 78(2) requires the Court to deduct from a sentence of imprisonment the time, if any, spent in detention by the convicted person in accordance with an order of the Court. The Court has no discretion as to whether it deducts time spent in detention on its order from a sentence of imprisonment. It is obliged to do so. In order to be deducted, the time spent by a convicted person in detention must be linked to an order by the Court, such as a warrant of arrest issued by the Pre-Trial Chamber under Article 58. Where, for example, such a warrant is acted upon by the national authorities of a State leading to the arrest and detention of the person sought prior to surrender to the Court, the period which he or she spends in detention in that State must be deducted from any sentence of imprisonment imposed on that person. Time spent in custody by the person after surrender to the Court must also be deducted from his or her sentence of imprisonment.

Although this provision does not raise difficulty, it must be noted that issues regarding prior detention are relevant where they are part of the process of bringing the person to justice for the crimes that form the subject-matter of the proceedings before the Court⁴². Thus, the *Katanga* Trial Chamber considered that Katanga was detained by order of the Court only from the time the Congolese authorities became aware that an arrest warrant against the detainee had been issued by the Court⁴³.

Regarding credit granted for time spent in detention during trial, the issue of provisional release, left at the discretion of the judges, remains to be clarified. The Trial Chamber in *Prlić*, for example, considered that time spent in provisional release must be deducted from time spent in detention⁴⁴. The Defence have appealed this finding as the significant periods of release from the United Nations detention Facility in the Hague that were granted to the various accused in that case, after the commencement of trial (during certain periods of court recess) were usually accompanied by a requirement of house arrest/confinement at a particular address. In this regard, the jurisprudence of the European Court of Human Rights provides useful guidance by stating that:

'to determine whether there has been a deprivation of liberty, the starting-point must be the specific situation of the individual concerned and account must be taken of a whole range of factors

⁴¹ *Katanga* Decision, paras. 54–56.

⁴² *Prosecutor v. Thomas Lubanga Dyilo*, 'Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled 'Décision sur la demande de mise en liberté provisoire de Thomas Lubanga Dyilo', ICC-01/04-01/06-824, 13 February 2007, para. 121..

⁴³ *Katanga* Decision, ICC-01/04-01/07, 23 mai, para. 158.

⁴⁴ *Prosecutor v. Perlić et al.*, IT-04-74-T, Judgment, Volume 4 of 6, 29 May 2013, paras. 1323–1324.

arising in a particular case such as the type, duration, effects and manner of implementation of the measure in question. The distinction between a deprivation of, and restriction upon, liberty is merely one of degree or intensity and not one of nature or substance.⁴⁵

2. Deduction from sentence of time otherwise spent in detention

- 19 The second sentence of paragraph 2 gives the Court the discretion to deduct from a sentence of imprisonment the time spent by a person in detention because of a conviction under national law for conduct constituting a crime within the jurisdiction of the Court. Although no factors are identified for the Court to take into account in exercising its discretion, the Court would no doubt consider the circumstances of the national conviction and the length of the sentence of imprisonment imposed by the national court. The ICTY jurisprudence moreover emphasised that such decision should be guided by fairness⁴⁶.

The *Lubanga* Trial Chamber held that in order to deduct time spent in national custody, the fact that detention was related to conduct underlying the crimes on the basis of which the person was convicted before the Court must be established on the balance of probabilities⁴⁷. This being said, the Chamber failed to define the notion of ‘conduct underlying the crimes’. In the words of the Trial Chamber, it seems that the accused must be detained for exactly the same crimes charged by the Court, in order for time spent in national custody to be deducted. More clarity would have been helpful, especially in the light of the words ‘in connection with’ in the wording of Article 78(2). Such provision seems to reflect the intent of the drafters to enable the Chamber to deduct from the overall sentence it imposes, periods spent in custody where such detention emanates from ‘substantially the same criminal conduct as that for which he now stands convicted’⁴⁸.

The *Katanga* Trial Chamber also declined to consider the period of time between Katanga’s arrest by the Congolese authorities and the notification of the arrest by the Court⁴⁹ as an Article 78(2) counting period. In the view of the Majority, the documents produced by the Defence did not establish that Katanga was detained for conduct related to the crimes for which the Chamber found him guilty on 7 March 2014⁵⁰. The reasoning of the Chamber is nonetheless ambiguous and has been criticised by Judge Christine Van den Wyngaert in her dissent. In that dissent, the learned judge was of the view that the Majority seemed to confuse the requirements of Article 78(2) and Article 17. The fact that the Congolese authorities were not actively investigating Katanga’s alleged involvement in the attack of Bogoro did not necessarily mean that Katanga was not detained on the basis of his alleged involvement in the attack⁵¹. The fact that national authorities lacked diligence in conducting their investigation should not affect the rights of the convicted person.

IV. Paragraph 3

1. Person ‘convicted of more than one crime’

- 20 Paragraph 3 deals with the situation where a person has been convicted of more than one crime. In such cases the Court is required to pronounce a separate sentence for each crime and then a joint sentence specifying the total period of imprisonment.

⁴⁵ ECtHR, *Case of H. L. v. United Kingdom*, App. No. 45508/99, Judgment, 5 October 2004, para. 89.

⁴⁶ *Prosecutor v. Tadić*, IT-94-1-A, Judgment in Sentencing Appeals, 26 January 2000, para. 38.

⁴⁷ *Lubanga* Decision, para. 102.

⁴⁸ *Prosecutor v. Tadić*, IT-94-1-A, Judgment in Sentencing Appeals, 26 January 2000, para. 38.

⁴⁹ *Katanga* Decision, para. 167.

⁵⁰ *Katanga* Decision, para. 161.

⁵¹ *Katanga* Decision, Dissenting opinion of Judge Christine Van den Wyngaert, ICC-01/04-01/07-3484-Anx 1, 23 mai 2014, para. 4.

2. Length of the joint sentence

The length of the joint sentence can be no less than the length of the highest individual sentence imposed by the Court. The joint sentence is not to exceed 30 years imprisonment or a sentence of life imprisonment⁵². If, for example, the Court imposes 5 separate sentences of 20 years imprisonment for crimes against humanity, it may not impose a joint sentence which is of a length less than 20 years. It may in such a case, for example, decide to impose a joint sentence of 30 years because of the serious nature and number of the crimes.

As for the rest of Article 78, this provision leaves a broad discretion to the judges. Trial Chambers may thus decide to impose a joint sentence corresponding to the highest individual sentence, a combination of the individual sentences, or none of the above. Although the Rome Statute requires judges to indicate specific penalties for each finding of guilt, the general *quantum* of penalty eventually falls within their discretion.

Rule 145 provide a welcome addition by stating that the totality of the sentence must reflect the culpability of the convicted person. Proportionality between the penalty imposed and the culpability of the person is not only desirable but necessary under the *nulla poena sine culpa* principle. Trial Chambers will, no doubt, provide some further clarity in the way they apply this general provision in the future.

C. Special remarks: Rules of Procedure and Evidence: elaboration of factors listed in rule 145, sub-rules 1 and 2

It is worth recalling that ‘as far as the individualisation of penalties is concerned, the judges of the Chamber cannot limit themselves to the factors mentioned in the Statute and Rules [...] their unfettered discretion to evaluate the facts and attendant circumstances should enable them to take into account any other factor that they deem pertinent’⁵³. Accordingly with this general rule, Rule 145, sub-rules 1 and 2 give scope to the Court to develop, through its jurisprudence, further factors which may be taken into account in sentencing. Rule 145(1)(c) thus provides that in addition to the ‘gravity of the crimes’ and ‘individual circumstances of the convicted person’, the Court shall give consideration to additional factors, such as:

‘the extent of the damage caused, in particular the harm caused to the victims and their families, the nature of the unlawful behaviour and the means employed to execute the crime; the degree of participation of the convicted person; the degree of intent; the circumstances of manner, time and location; and the age, education, social and economic condition of the convicted person’.

The list of factors in Rule 145 (1)(c) is not exhaustive, leaving it open to the Court to identify other factors which may be relevant in a particular case. For example, the *Lubanga* Trial Chamber thus took into consideration the widespread nature of the crimes committed⁵⁴ and the degree of participation and intent of the convicted person⁵⁵. The Chamber nevertheless did not explain how these factors inter-related with the ‘gravity of the crime’ and the ‘individual circumstances of the convicted person’. As demonstrated by Kai Ambos, difficulties arise only with regard to circumstances contemporaneous to the commission of the offence. Pre- or post-offence personal circumstances will always be considered as mitigating or aggravating factors and never affect the gravity of the crime.⁵⁶

⁵² See article 77.

⁵³ *Prosecutor v. Kamanda*, ICTR 97-23-S, Judgment and Sentence, 4 September 1998, para. 30.

⁵⁴ *Lubanga* Decision, paras. 45–50.

⁵⁵ *Lubanga* Decision, paras. 51–53.

⁵⁶ See Ambos, K., *Treatise on International Criminal Law, Volume II: The Crimes and Sentencing* (Oxford University Press 2014), pp. 295–296.

The factors to be taken into account in sentencing must reflect the principle of individualisation of sentences. Sentence must thus always be adapted to the individual circumstances of both the crimes and the convicted person⁵⁷. Regarding the degree of participation and intent of the convicted person, the Chamber further stated that they must be evaluated *in concreto*, depending upon the factual and legal findings of the Trial Chamber while ruling on the guilt of the convicted person⁵⁸.

- 23 The chapeau to sub-rule 2(a) contains the text '[m]itigating circumstances such as'. The use of the words 'such as' indicates that the list of mitigating circumstances provided is only illustrative. Although the chapeau of sub-rule 2(b) does not contain the words 'such as', the list of aggravating circumstances identified in that provision is not closed. Sub-rule 2(b)(vi) requires the Court to take into account, as appropriate, '[o]ther circumstances which, although not enumerated above, by virtue of their nature are similar to those mentioned'.

The factors to be taken into consideration as aggravating circumstances thus fall within the discretion of the Trial Chamber. These include *inter alia* the nature of the crime, its effect on the victims, the degree of responsibility of the convicted person as well as premeditation and motive. It is nevertheless to be noted that, pursuant to Rule 145(1)(a) of the Rules, aggravating circumstances may only be taken into account for the purposes of sentence if they can be attributed to the convicted person in a way that reflects his or her culpability⁵⁹. They must moreover be established beyond reasonable doubt⁶⁰.

Regarding mitigating circumstances, it must be noted that they only serve to purposes of reducing the sentence and do not alter in any way the gravity of the crime⁶¹. Additionally, as stated by the *Bralo* Appeals Chamber:

'any modification of sentence needs to be assessed in light of all the circumstances of the case and cannot be limited to a simple mathematical diminution of the sentence otherwise to be imposed'⁶².

The Statute and Rules do not provide for an exhaustive list of factors that may be considered in mitigation. The Trial Chambers will thus have discretion to determine what constitutes a mitigating factor in a particular case. They may take into account circumstances either contemporaneous with the crime or posterior to the crime, such as co-operation with the Court, admission of guilt, expression of remorse, or good behaviour. In the words of the *Babic* Appeals Chamber:

'[Trial Chambers] are not required to 'articulate every step' of their reasoning in reaching particular findings, and failure to list in a judgement 'each and every circumstance' placed before them and considered 'does not necessarily mean that [they] either ignored or failed to evaluate the factor in question'⁶³

⁵⁷ *Katanga* Decision, para. 39.

⁵⁸ *Katanga* Decision, para. 61.

⁵⁹ *Lubanga* Decision, paras 59, 68 and 74.

⁶⁰ *Lubanga* Decision, para. 75; *Prosecutor v. Delalic et al.*, IT-96-21-A, Judgment, 20 February 2001, para. 763.

⁶¹ *Katanga* Decision, para. 77; *Prosecutor v. Erdemovic*, IT-96-22-T, Sentencing Judgment, 29 November 1996, para. 46; *Prosecutor v. Kambandai*, ICTR-97-23-S, Judgment and Sentence, 4 September 1998, para. 56.

⁶² *Prosecutor v. Bralo*, IT-95-17-A, Judgment on Sentencing Appeal, 2 April 2007, para. 85.

⁶³ *Prosecutor v. Babic*, IT-03-72-A, Judgment on Sentencing Appeal, 18 July 2005, para. 43.

Article 79 Trust Fund

1. A Trust Fund shall be established by decision of the Assembly of States Parties for the benefit of victims of crimes within the jurisdiction of the Court, and of the families of such victims.

2. The Court may order money and other property collected through fines or forfeiture to be transferred, by order of the Court, to the Trust Fund.

3. The Trust Fund shall be managed according to criteria to be determined by the Assembly of States Parties.

Literature: See literature listed for articles 75 and 77; Rule 98; Regulations of the Trust Fund for Victims; Moffett, L., *Justice for victims before the International Criminal Court* (Routledge Research in International Law, New York, 2014)

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A. Introduction/General remarks

The Trust Fund and the possibility of reparations for victims constitute an important 1
hallmark of the Rome Statute. The right of victim representation in court proceedings is not
only in order that their ‘views and concerns’ can be presented during the pre-trial and trial
stage. Rather, the right of victim participation has a separate aspect which is linked to
reparations. Indeed, it has been said that:

‘The reparation scheme provided for in the Statute is not only one of the Statute’s unique features.
It is also a key feature. In the Chamber’s opinion, the success of the Court is, to some extent, linked to
the success of its reparation system’¹.

In the light of the opportunity afforded to the victims to obtain reparations for crimes
under the jurisdiction of the Court, article 79 provides for a Trust Fund to be established by
the Assembly of States Parties for the benefit of victims and their families. Aimed at
addressing the harm resulting from the crimes under the jurisdiction of the Court and to
assist the victims of such crimes, the Trust Fund for Victims has two mandates: (a) to
implement Court-ordered reparations; and (b) to provide physical and psychological rehabi-
litation or material support to victims.

Article 75 of the Rome Statute is also central to this regime. Article 75 provides that
reparation orders may be made against convicted persons. Article 75(2) permits the Court,
where appropriate, to order that an award for reparations be made through the Trust Fund.
Article 79 should be viewed alongside article 77(2) which provides for the possibility of fines
and forfeiture as penalties in addition to imprisonment.

The concept of a Trust Fund received strong support from a range of delegations in the 2
Preparatory Committee. The 1994 Draft Statute prepared by the ILC, which was the starting

¹ *Prosecutor v. Thomas Lubanga Dyilo*, ‘Corrigendum of Decision on the Prosecutor’s Application for a
Warrant of Arrest, article 58’, ICC-01/04-01/06, 10 February 2006, para. 150.

point for discussions in the Preparatory Committee, contained a proposal for a Trust Fund. Article 47 of that Draft² addressed the issue of applicable penalties providing, in part, for the imposition of a fine as a penalty. Paragraph 3 of that article dealt with the use which could be made of fines paid, specifying that they could be transferred by order of the Court to one or more of the following:

- The Registrar, to defray the costs of the trial;
- A State, the nationals of which were the victims of the crime;
- A trust fund established by the Secretary-General of the United Nations for the benefit of victims of crime.

Article 47(3) survived the debate in the Preparatory Committee in recognisable form (albeit with its fair share of square brackets) to provide the basis of article 79 of the Preparatory Committee text³ which was submitted to the Diplomatic Conference. The debate at the Conference focused on the purpose to which money and other property collected through fines or forfeiture should be put. A strong view emerged that the Trust Fund should be the beneficiary of such money and property. This option was chosen in preference to the other options of (i) the Court receiving the funds or assets in order to defray costs, or (ii) the States of which victims were nationals receiving any such funds or property.

After some debate, delegations also agreed that the detailed operation of the Trust Fund should not be provided for in the Statute. Rather, Delegations accepted that the operation of the Fund could be determined by the Assembly of States Parties in due course. The issues which were thus deferred to the ASP included what role, if any, should be given to the Secretary-General of the United Nations with regard to the establishment and/or functioning of the Fund.

The Assembly of States Parties took up the issue at its first session (3–10 September 2002), adopting two resolutions concerning the Trust Fund. The first resolution established the Fund⁴. The annex to the resolution addresses various matters concerning the operation of the Fund. A Board of Directors with five members of different nationalities was established, being elected by the Assembly for a term of three years (with re-election possible for another term). Members are to be persons of:

‘high moral character, impartiality and integrity and shall have competence in the assistance to victims of serious crimes’⁵.

The Board is charged with directing the activities and projects of the Fund and allocating the property and money available to it. Operative paragraph 3 of the resolution requested the Board to develop further criteria for the Fund’s management for consideration and adoption by the Assembly. The annex charged the Assembly’s Committee on Budget and Finance with examining the Fund’s annual budget.

The second resolution established the procedure for the nomination and election of Board members⁶.

At its second session (8–12 September 2003), the Assembly elected its first Board. It was composed of the following persons: Her Majesty Queen Rania Al-Abdullah (Jordan); Óscar Arias Sánchez (Costa Rica); Tadeusz Mazowiecki (Poland); Archbishop Desmond Tutu (South Africa); Simone Veil (France).

The term of office of three years began to run for each member from 12 September 2003 (date of election). The Board held its first meeting from 20 to 22 April 2004. At the meeting, the Board worked on preparing draft regulations for the Fund’s management, in response to the Assembly’s request⁷. The Board approved draft regulations, which were attached to its

² UN Doc. A/CN.4/L.491/Rev.2, p. 28.

³ Preparatory Committee (Consolidated) Draft, pp. 123–124.

⁴ ICC-ASP/1/Res.6.

⁵ ICC-ASP/1/Res.6, Annex, paragraph 3.

⁶ ICC-ASP/1/Res.7.

⁷ See ICC-ASP/1/Res.6, Operative paragraph 3.

report to the Assembly⁸. At the time of writing the Board is chaired by H.E. Motoo Noguchi of Japan and is composed of Mr. Sayeman Bula Bula (DRC), Mr. Denys Toscano Amores (Ecuador), Ms. Elisabeth Rehn (Finland), and Ms. Vaira Vike-Freiberga (Latvia).⁹

The draft regulations were divided into three parts: Part I – The Management and Oversight of the Trust Fund; Part II – Receipt of Funds; and Part III – The Activities and Projects of the Trust Fund.

Part I proposed that a secretariat be established both for the day-to-day administration of the Fund and to assist the Board¹⁰. Part II charged the Board with contacting governments, international organizations, individuals, corporations and other entities to solicit voluntary contributions to the Fund¹¹. The Board was authorized to refuse voluntary contributions deemed to be inconsistent with the goals and activities of the Fund¹². Part III established a range of processes and procedures to govern the Fund's disbursements to victims.

In relation to reparation orders, the Fund, subject to the Court's order, was directed to take into account, *inter alia*, the following factors in determining the nature and/or size of awards:

‘the nature of the crimes, the particular injuries to the victims and the nature of the evidence to support such injuries, as well as the size and location of the beneficiary group’¹³.

The Assembly considered the Board's report at its third session (6–10 September 2004), taking action on it by resolution¹⁴. The Assembly established the secretariat for the Fund¹⁵. It decided that Parts I and II of the draft regulations were to be applied provisionally and recognized that Part III provided a reference point for further work¹⁶. Further work on the draft regulations was entrusted to the Assembly's Bureau, with adoption being set for the Assembly's fourth session¹⁷.

At its fourth session (28 November – 3 December 2005), the Assembly of States Parties 3 thus adopted by consensus the Regulations of the Trust Fund for Victims.¹⁸ The Regulations are divided in five parts: Part I – Management and oversight of the Trust Fund; Part II – Receipt of Funds; Part III – The Activities and Projects of the Trust Fund; Part IV – Reporting Requirements; and Part V – Final Provisions.

As proposed in the Draft Resolution, the Trust Fund is managed by a Board of Directors assisted by a Secretariat¹⁹. The Trust Fund is funded by (a) voluntary contributions from governments and other public and private entities; (b) money and other property collected through fines or forfeiture transferred to the Trust Fund pursuant to article 79 of the Rome Statute; and (c) resources collected through awards for reparations pursuant to Rule 98 of the Rules of Procedure and Evidence²⁰. Projects and activities of the Trust Fund are carried out under the supervision of the Court. In conducting its activities, the Board may moreover consult victims and/or their families and legal representatives as well as any competent expert or expert organisation²¹.

The measures set up in the Regulations were in place in 2006, allowing the Fund to start its operations in 2007. To date, the Fund provides support to victims through two targeting strategies: (a) projects tailored to meet the needs of victims of specific crimes; and (b) large-

⁸ ICC-ASP/3/14.

⁹ Elected at the 10th Board Meeting TFFV, 19, 20 & 21 March 2013.

¹⁰ Paragraph 18.

¹¹ Paragraph 26.

¹² Paragraph 30.

¹³ Paragraph 59.

¹⁴ ICC-ASP/3/Res.7.

¹⁵ ICC-ASP/3/Res.7., Operative paragraph 1.

¹⁶ ICC-ASP/3/Res.7., Operative paragraph 5.

¹⁷ ICC-ASP/3/Res.7., Operative paragraph 6.

¹⁸ ICC-ASP/4/Res.3.

¹⁹ ICC-ASP/4/Res.3., paragraphs 1–19.

²⁰ ICC-ASP/4/Res.3., paragraph 21.

²¹ ICC-ASP/4/Res.3., paragraph 49.

scale projects to help communities rebuild themselves and establish peace and reconciliation. Up to the summer 2013, the Trust Fund focused its operations on Uganda, DRC and CAR. The Trust Fund moreover established a permanent field office in Northern Uganda²².

B. Analysis and interpretation of elements

I. Paragraph 1

1. Establishment by the Assembly of States Parties

- 4 Paragraph 1 provides for the Assembly of States Parties to establish the Trust Fund. The Trust Fund was established on 3 December 2005.

2. ‘for the benefit of victims ... and of the families of such victims’

- 5 Paragraph 1 makes clear that the Trust Fund can be used not only for the benefit of victims but for the families of victims as well. Article 47(3)(c) of the ILC Draft Statute, which proposed the establishment of a Trust Fund, only provided for victims to benefit from the Fund.

Rule 85 of the ICC Rules of Procedure and Evidence defines ‘victims’ to mean ‘natural persons who have suffered harm as a result of the commission of any crime within the jurisdiction of the Court’.

On 7 August 2012, Trial Chamber I further clarified that: ‘it would be inappropriate to limit reparations to the relatively small group of victims that participate in the trial and those who applied for reparations’²³. Chambers thus have a broad discretion in assessing who qualifies as a victim for the purpose of reparations awards. Pursuant to Rule 85, ‘reparations may be granted to direct and indirect victims, including the family members of direct victims; anyone who attempted to prevent the commission of one or more of the crimes under consideration; and those who suffered personal harm as a result of these offences, regardless of whether they participate in the trial proceedings’²⁴. Given the widespread nature of the crimes under consideration, such a broad definition will obviously present practical and financial challenges that will have to be addressed by the Trust Fund in due course.

Similarly, the term ‘families’ is not defined under article 79. The concept of ‘family members’ is only defined under Rule 75 of the Rules of Procedure and Evidence which refers to ‘spouse, child or parent’. It is however far from clear whether Rule 75 provides a definition of general applicability or whether that definition is limited to the specific issue of privileged testimony. Whilst the definition of ‘family members’ may receive more attention by the ICC in due course, it would seem that the definition in Rule 75 may provide a starting point – rather than the last word – in the definition of ‘family members’ for the purpose of reparations. Certainly, more clarity is needed. This is especially so bearing in mind national and cultural traditions and notions of ‘family’ and how these can, or should, be given expression to when it comes to reparations. According to the United Nations Human Rights Committee, the term ‘family’, ‘should be given broad interpretation to include all those comprising the family as understood in the society of the State party concerned’²⁵. The Court may therefore decide to adapt the meaning of the term to the tradition of the beneficiary group.

²² Trust Fund for Victims, Report of activities, Summer 2013.

²³ *The Prosecutor v. Thomas Lubanga Dyilo*, ‘Decision establishing the principles and procedures to be applied to reparations’ (Decision on Reparations), ICC-01/04-01/06-2904, 7 August 2012, para. 187.

²⁴ *Ibid.*, para. 194.

²⁵ United Nations Human Rights Committee, *CCPR General Comment No. 16: article 17 (Right to Privacy)*, 8 April 1998, para. 5.

Rule 85 also states that ‘victims’ may include:

‘organizations or institutions that have sustained direct harm to any of their property which is dedicated to religion, education, art or science or charitable purposes, and to their historic monuments, hospitals and other places and objects for humanitarian purposes’.

The inclusion of organizations and institutions within the definition of ‘victims’ expands the role of the Fund beyond providing disbursements to natural persons. The reference to ‘organizations or institutions’ is not qualified, leaving open the question of what types of organizations or institutions may be regarded as victims. For example, could government bodies and private companies fall within the definition? Neither the Regulations of the Trust Fund nor the first Decision on Reparations provide any clarifications in this respect.

Subject to the order of the Court, the Trust Fund shall take into account several factors 6 when determining the nature and/or size of awards to be granted as reparation. These factors include:

‘the nature of the crimes, the particular injuries to the victims and the nature of the evidence to support such injuries, as well as the size and location of the beneficiary group’²⁶.

One of the core issues to be dealt with by the Board of Directors and Chambers is how to prioritise resources for reparations where available funds are insufficient to redress the totality of harm. Although essential, the process of prioritisation raises a number of issues, in particular the selection of criteria as the basis for which priority is to be determined. In the context of the *Lubanga* case, the Registry addressed this question and examined various modalities of prioritisation.²⁷ The Chamber recognised that ‘priority may be given to certain victims who are in a particularly vulnerable situation or who require urgent assistance’²⁸.

Pursuant to Rule 98 of the Rules of Procedure and Evidence, the Court may order either individual or collective awards to victims. In cases where the Court identifies each beneficiary, the Board of Directors shall draft an implementation plan which sets out the names and locations of victims to whom the award applies²⁹. Where the Court does not identify the beneficiaries of an award, or where the number of victims is such that it is impossible or impracticable for the Secretariat to determine the names and locations of the victims with precision, the Secretariat shall set out all the relevant demographical and statistical data about the group of victims and shall list options for determining missing details. The Secretariat may use the data available to determine the members of the beneficiary group; target outreach to invite any potential members of the group to identify themselves; or develop further options by consulting victims, States and competent experts³⁰.

Regarding awards made to an organisation, the Regulations of the Trust Fund provides that where the Court orders such an award, the draft implementation plan shall set out (a) the concerned organisation(s) and a summary of their relevant expertise; (b) a list of specific functions that the concerned organisation is to undertake in fulfilment of the Court’s order; and (c) a memorandum of understanding and/or other contractual terms between the Board and the organisation setting out roles and responsibilities, monitoring and oversight³¹. The Regulations nevertheless do not provide further details as to what kind of organisation may be eligible for receiving awards.

Article 79 does not state at what stage of the proceedings assistance and reparations should 7 start being provided to victims. The terms ‘convicted person’, in the wording of article 75(3)(4), Rule 98(1)(4) and Regulation 54 implies that reparation orders may only be made after a judgment on guilt. Having in mind that money has already allocated to victims by the

²⁶ ICC-ASP/4/Res.3., paragraph 55.

²⁷ *The Prosecutor v. Thomas Lubanga Dyilo*, ‘Second Report of the Registry on Reparations’, ICC-01/04-01/06-2806, 1 September 2011, p. 18–28.

²⁸ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, para. 200.

²⁹ ICC-ASP/4/Res.3., paragraph 59.

³⁰ ICC-ASP/4/Res.3., paragraphs 60–61.

³¹ ICC-ASP/4/Res.3., paragraph 73.

Fund in DRC and Uganda, it nevertheless seems that the Trust Fund can provide assistance to victims without having to wait for conviction or judicial confirmation that a crime within the jurisdiction of the Court had been committed. It may be that the Fund can use the 'other resources' at its disposal to assist victims before the issue of the judicial proceedings engaged by the Court. Care is needed in this regard as awarding victims money prior to the outcome of trial may create undesirable expectations on the part of victims or act as inducements that may possibly infect a trial process. At the same time, it cannot be denied that in many situations open before court, victims are in dire need of support and assistance.

Pursuant to Regulation 50, it is for the Chamber to inform the Board whether a project would 'pre-determine any issue to be determined by the Court, including the determination of jurisdiction pursuant to article 19, admissibility pursuant to articles 17 and 18, or violate the presumption of innocence pursuant to article 66, or be prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial'³². Although this provision is consistent with the principle that victims should receive support without the need for the perpetrator to be convicted³³, it is unclear how this assistance will be provided in a manner consistent with the strictures of ensuring a fair trial. Addressing the concerns of counsel, Pre-Trial Chamber I considered that the activities proposed by the Fund in DRC did not prejudice the proceedings against the accused because, *inter alia*, (a) the Court had already initiated an investigation in DRC; (b) the proposed activities were not related to any national or international proceedings arising out of such investigation; and (c) because the Notification submitted by the Fund had no impact on the outcome of proceedings³⁴. In the light of this interpretation, reparations granted through the Fund appear less related to the crimes than the wording of articles 75 and 79 may suggest. The diversification of the Fund's projects and activities should not result in a lack of clarity as to how they relate with the Court's proceedings and purposes.

II. Paragraph 2: Court orders to transfer fines or forfeiture

- 8 Paragraph 2 permits the Court to order the transfer of money or other property collected through fines or forfeiture to the Fund. The Statute does not provide for States Parties to retain a share of the money or property obtained through the enforcement of fines and forfeitures ordered by the Court. Nor does it provide for the Court to draw on such money and property to defray its own costs. The Fund is intended to be the recipient of this money and property.

Rule 148 of the Rules of Procedure and Evidence provides that, before making an order under paragraph 2 of article 79, a Chamber may request representatives of the Fund to make written or oral submissions to it. This counterpart to this provision is found at paragraph 31 of the Regulations of the Trust Fund.

The financing of the Fund through fines and forfeiture is obviously an uncertain basis upon which to rely. Many accused – especially those granted legal aid themselves – may either be impecunious or have no assets traced or seized in order to be forfeited.³⁵ Bearing in mind the cost of the Fund's administration and operation, it is far from certain that its activities will be sustainable in the long run without significantly more attention being placed on financial crime investigation and asset tracing. If this is not done, it will continue to rely principally on voluntary contributions in a world where there are ever increasing demands for foreign aid and donations.

³² ICC-ASP/4/Res.3., paragraph 50.

³³ Annex to the UN General Assembly Resolution 40/34, *Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power*, 24 November 1983, para. 2.

³⁴ *Situation in the Democratic Republic of Congo*, 'Decision on the Notification of the Board of Directors of the Trust Fund for Victims in accordance with Regulation 50 of the Regulations of the Trust Fund', ICC-01/04, 11 April 2008, p. 9.

³⁵ *The Prosecutor v. Thomas Lubanga Dyilo*, 'Second Report of the Registry on Reparations', ICC-01/04-01/06-2806, 1 September 2011, para. 10.

Given the limitations on financing the Trust Fund through fines and forfeiture, the reality is that external donations have been the mainstay of the Fund's activities. The Assembly of States permitted this option.³⁶ In July 2014, the total contributions from countries were of 19.2 million euros. The Trust Fund's reparation reserve, which may be used to complement court-ordered awards in the case of a convicted person declared indigent, was of 3.6 million euros.³⁷

Having regard to Regulation 56, it remains unclear whether the Board of Directors is vested with an absolute discretion to use these other resources to complement reparations awards, or whether a Chamber has the authority to require the Fund to make available these resources for the purpose of granting reparations award.³⁸ Pursuant to Regulation 56, the Board of Directors shall only determine whether to complement the resources collected through awards for reparations with 'other resources of the Trust Fund' and shall advise the Court accordingly. The Board of Directors shall moreover make all reasonable efforts to manage the Fund taking into consideration the need to provide adequate resources to complement payments for awards under Rule 98 and taking particular account of ongoing legal proceedings that may give rise to such awards.³⁹

Properly considered, it is clear that the Trust Fund is not a mere recipient of money or assets collected through fines and forfeiture. 'Through,' in the context of article 79(2), should not be interpreted as excluding from the Fund other sources of finances. In the case where the convicted person is indigent, reparations awards should be supported by the Fund's own resources if the Chamber deems this appropriate. Rule 98(5) of the Rules of Procedure and Evidence supports such an interpretation by providing that 'other resources of the Trust Fund may be used for the benefit of victims subject to the provisions of article 79'.

Trial Chamber I have considered that the word 'through' in the context of article 79(2) and held that it should be given the meaning 'by means of'. The Court will thus 'be able to draw on the logistical resources of the Trust Fund in implementing an award.'⁴⁰ The Chamber further held that when the convicted person was impecunious, the award can be supported by the Trust Fund's own resources.⁴¹ That said, the Decision on Reparations provides that where reparations are funded by the Fund's own resources, collective reparation should be adopted rather than individual awards. Based on the limited nature of the Fund's incomes and the fact that collective awards 'does not require costly and resource-intensive verification procedures', this finding leaves little hope as to the amount to be awarded to victims in such situations.⁴² In the light of this finding, it must be noted that pursuant to Regulation 50 of the Trust Fund, the Fund may engage in activities outside the context of reparations awarded by the Court. Given the financial challenges faced by the Fund, it may have been more realistic if the activities of the Fund were limited to court-ordered reparations, leaving to Governments, humanitarian institutions and NGOs the role of assisting victims outside this category.

III. Paragraph 3: Management of the Trust Fund

It was agreed at the Diplomatic Conference that the criteria governing the operation of the Fund should not be contained in the Statute, given that the criteria were likely to be complex and to need adjustment over time. The stringent amendment requirements for the Statute

³⁶ ICC-ASP/4/Res.3., paragraph 21.

³⁷ Trust Fund for Victims, Financial information, available at [<http://www.trustfundforvictims.org/financial-info>], accessed 03 October 2014.

³⁸ *The Prosecutor v. Thomas Lubanga Dyilo*, 'Second Report of the Registry on Reparations', ICC-01/04-01/06-2806, 1 September 2011, paras. 2-3.

³⁹ ICC-ASP/4/Res.3., paragraph 56.

⁴⁰ Decision on Reparations, para. 270.

⁴¹ *Ibid.*, para. 271.

⁴² Decision on Reparations, para. 274.

would make such adjustments difficult. Paragraph 3 deals with the issue by requiring the Assembly of States Parties to determine the criteria.

The composition and administration of the Trust Fund is thus governed by the Regulations adopted on 3 December 2005. The Trust Fund is administrated by a Board of Directors assisted by a Secretariat. The members of the Board act in their personal capacity on a *pro bono* basis⁴³. The Registrar participates in sessions of the Board in an advisory capacity⁴⁴.

- 11 As stated above, it seems that the Trust Fund for Victims gained in independence since its creation. On 7 August 2012, Trial Chamber I additionally delegated to the Fund the task of selecting experts, to determine the appropriate forms of reparations and to implement them⁴⁵. Trial Chamber I further increased the autonomous work of the Fund by leaving it the task of assessing harm and identifying victims and beneficiaries of the awards under the oversight of a newly constituted Chamber⁴⁶.

⁴³ ICC-ASP/4/Res.3., paragraph 16.

⁴⁴ ICC-ASP/4/Res.3., paragraph 7.

⁴⁵ Decision on Reparations, paras. 265–266.

⁴⁶ Decision on Reparations, paras. 283–284.

Article 80

Non-prejudice to national application of penalties and national laws

Nothing in this Part affects the application by States of penalties prescribed by their national law, nor the law of States which do not provide for penalties prescribed in this Part.

Literature: See in addition to article 77: Delmas-Marty, M., *Les forces imaginantes du droit*, Vol. I: *Le relatif et l'universel* (Seuil 2004); Fife, R.E., 'Penalties', in: Lee (ed.), *The International Criminal Court, the Making of the Rome Statute: Issues, Negotiations, Results* (1999) 319; Merrills, J.G., *The Development of International Law by the European Court of Human Rights* (Manchester University Press 2nd edition 1993); Plawski, S., 'L'abolition de la peine de mort', (1981) *Revue Pénitentiaire et de Droit Pénal* 473; Schabas, W.A., 'Sentencing by International Tribunals: A Human Rights Approach', (1997) 7 *DukeJComp&IL* 461; id., 'War Crimes, Crimes Against Humanity and the Death Penalty', (1997) 60 *AlbanyLJ* 736; id., 'Punishing International Criminals', (1997) 6 *ICC Monitor* 5, 7; id., 'Penalties', in: Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (1998) 273; id., *The Abolition of the Death Penalty in International Law* (CUP 3rd edition 2002); id., 'Penalties', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1497; Screvens, R., *L'Interdiction Professionnelle en Droit Pénal* (Les Éditions de la Librairie Encyclopedique 1956); United Nations Office at Vienna, Crime Prevention and Criminal Justice Branch, *Life Imprisonment* (United Nations 1994).

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A. Introduction/General remarks

1. Background and contents of the provision

As noted in the commentary on article 77, the negotiations at the Diplomatic Conference on the issue of modes of punishment proved difficult and time consuming. Particularly contentious were the discussions on whether to include or not to include the death penalty, thus exacerbating differences of views on this subject that had already appeared in connection with the establishment of the ICTR in 1994¹. Other significant differences characterized discussions with regard to life imprisonment and whether to include references to penalties provided in national law.

Nevertheless, as noted under article 77, a consensual solution for the penalties regime was ultimately achieved at the Diplomatic Conference. Essential to its emergence was the understanding that the inclusion of some penalties and the non-inclusion of other penalties would not prejudice the national application of penalties nor national laws. This follows already from the principle of complementarity between the Court and national criminal jurisdictions, whereby the latter retain the primary responsibility for prosecuting and punishing individuals. With regard to the non-inclusion of the death penalty in the Statute, this understanding was reflected in a statement made by the President of the Conference in connection

¹ See Morris and Scharf, *The International Criminal Tribunal for Rwanda* (1998); Akhavan (1996) 90 *AJIL* 501; Schabas, *The Abolition of the Death Penalty in International Law* (2002).

with the adoption of the Statute on 17 July 1998 and which was included in the official records of the Conference:

‘The debate at this Conference on the issue of which penalties should be applied by the Court has shown that there is no international consensus on the inclusion or non-inclusion of the death penalty. However, in accordance with the principle of complementarity between the Court and national jurisdictions, national justice systems have the primary responsibility for investigating, prosecuting and punishing individuals, in accordance with their national laws, for crimes falling under the jurisdiction of the International Criminal Court. In this regard, the Court would clearly not be able to affect national policies in this field. It should be noted that not including the death penalty in the Statute would not in any way have a legal bearing on national legislations and practices with regard to the death penalty. Nor shall it be considered as influencing, in the development of customary international law or in any other way, the legality of penalties imposed by national systems for serious crimes’.

- 2 However, a number of delegations sought reassurances that the penalties provisions in the Statute would not be interpreted or construed in such a way as to influence national laws or the current state of international law in this field. It is against this background that the Chairman of the Working Group on Penalties introduced, as part of the final compromise package proposal², an explicit non-prejudice provision in article 80. This proposal also proved instrumental in achieving consensus on making no reference to national laws in the penalties provisions, thereby ensuring a uniform penalties regime for all persons convicted by the Court.
- 3 A non-prejudice clause as contained in article 80 is compatible with the purposes of the Rome Statute. As a point of departure, the Statute is not intended to constitute a codification or progressive development of international law. Arguably, its primary aim can best be described as institution building, namely the establishment of an ICC. Article 80 makes it clear that the solutions achieved in the Statute with regard to penalties do not influence national laws, and apply only to the Court. In a somewhat similar vein, it may be noted that article 10 of the Statute contains a non-prejudice provision with respect to Part 2 on jurisdiction, admissibility and applicable law, including, significantly, the definitions of the international crimes under the jurisdiction of the Court.

2. The controversies surrounding the issue of the death penalty

- 4 The provisions on the protection of the right to life that have been set down in international human rights instruments³ reveal a trend toward a progressive restriction and gradual prohibition of the death penalty⁴. As an illustration of this trend on a regional level, reference

² The compromise package is described in the comments under article 77 of the Rome Statute.

³ On article 6 of ICCPR and the 1989 Second Optional Protocol to the ICCPR, see, for example, Nowak, *UN Covenant on Civil and Political Rights, ICCPR Commentary* (1993) 113–122. Moreover, it may be noted that *inter alia* in a European Human Rights context the prohibition against cruel, inhuman and degrading punishment has also been invoked in this connection, see the discussion of the *Soering* case in Merrills, *The Development of International Law by the European Court of Human Rights* (1993) 81–82. One of the issues discussed in that case was whether in view of evolving practice in Western Europe the death penalty could be held to constitute an inhuman and degrading punishment, contrary to article 3 of the 1950 European Convention on Human Rights and Fundamental Freedoms, despite the fact that article 2 para. 1 expressly permits judicial executions. However, Protocol No. 6 to this Convention, which entered into force in 1983 and has been ratified by a large majority of Member States of the Council of Europe, provides for the abolition of the death penalty in peace time. Among other regional human rights instruments restricting or prohibiting the death penalty, reference is *inter alia* made to article 4 of the 1969 American Convention on Human Rights and article 1 of the 1990 Protocol to the American Convention on Human Rights to abolish the death penalty. For other instruments, see references in the next note.

⁴ For a brief introductory survey, see Schabas, (1997) 6 *ICC Monitor* 5 [7]. See also Schabas, *The Abolition of the Death Penalty in International Law* (3rd ed., 2003); Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 698; Plawski, (1981) *Revue Pénitentiaire et Droit Pénal* [473]; Wexler, *Model Draft Statute for the International Criminal Court based on the Preparatory Committee's text to the Diplomatic Conference, Rome, June 15–July 17 1998* (1998) 111–112. See also Schabas (1997) 60 *Albany LJ* [770], who analyzes trends toward the elimination of capital punishment in international criminal law. For

may be made to a recommendation of 1996 from the Parliamentary Assembly of the Council of Europe, which considered that the death penalty has no legitimate place in penal systems and that its application may well be compared to torture⁵. The United Nations Human Rights Commission passed in 1997 and 1998 resolutions on the question of the death penalty. Since 2007, it should however be noted that the United Nations General Assembly has passed several resolutions on a moratorium on the use of the death penalty. The resolutions called on all States that have not yet abolished the death penalty to establish a moratorium on executions, with a view to completely abolishing the death penalty⁶. In the context of international criminal justice, questions had furthermore been raised, *inter alia* in the deliberations of the ILC, as to the absence of the death penalty from the Statutes of the ICTY and ICTR, and whether that absence denoted a progressive development of international law⁷.

At the Diplomatic Conference, stressing that the penalties under consideration were related to the most serious crimes of international concern including in situations of armed conflict, a number of delegations maintained that the death penalty would in many cases be a penalty commensurate with the gravity of these crimes. Moreover, without the possibility to apply the death penalty the Court would have reduced deterrence and credibility. A number of delegations insisted that no comprehensive prohibition against the death penalty could be derived from customary international law, and that they were opposed to penalties provisions in the Rome Statute which would denote any progressive development of international law in favour of abolition. Among forceful proponents of an inclusion of the death penalty for the above reasons, were Rwanda, Saudi Arabia and other Arab States, Sierra Leone, Singapore, Trinidad and Tobago, Jamaica and other Caribbean States – among the latter some States had recently ended their long standing *de facto* moratoria on imposition of the penalty.

On the other hand, a number of States were totally opposed to the inclusion of the death penalty. States Parties to the 1989 Second Optional Protocol to the International Covenant on Civil and Political Rights made it clear that they could never support a Court that could impose the death penalty. Moreover, it was pointed out that States Parties to the 1969 American Convention on Human Rights are prohibited from re-establishing the death penalty if they earlier have abolished it⁸. States Parties to the European human rights instruments also referred to treaty obligations that would hinder their co-operation with the ICC, including significantly surrender of persons to the Court, if the death penalty were to be included in the Statute. Reference was in this connection also made to the Model Extradition Treaty between States, which has a death penalty exemption clause⁹. Insurmountable enforcement problems were also cited. It is noteworthy that several States whose national laws provide for the possibility of the death penalty, including the United States of America, did not support inclusion of the death penalty in the Statute.

The above-mentioned controversies had already characterized the preparatory work before the Diplomatic Conference. In the 1995 report of the *Ad Hoc* Committee it was stated that the exclusion of the death penalty was supported by many delegations. Some delegations suggested provisions for such exclusion, while one delegation proposed that the death penalty be included

numbers of States which apply or have renounced the death penalty, see, e.g., note 1; Morris and Scharf, *The International Criminal Tribunal for Rwanda* (1998) 581; Amnesty International, *The Death Penalty: List of Abolitionist and Retentionist Countries* (as of October 1997).

⁵ Parliamentary Assembly of the Council of Europe, Recommendation 1246 (1994), 4 October 1994.

⁶ See, for example, Res. 1998/9 adopted without a vote on 3 April 1998, contained in the Report on the Fifty-Fourth Session (16 March–24 April 1998) of the Commission on Human Rights, Supp. No. 3, ESC Official Records 1998. For the resolutions in the General Assembly, see A/RES/65/206 (2010), A/RES/63/168 (2008), A/RES/65/206 (2010), A/RES/67/176 (2012) and A/RES/69/186 (2014). Furthermore, on October 2014 Secretary-General Ban Ki-moon remarked that the death penalty has no place in the 21st century.

⁷ Quoted by Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 698, footnote 5 and 691–692. On issues related to harmonisation of domestic legal systems and legal globalization, see Delmas-Marty, *Les forces imaginantes du droit* (2004).

⁸ See American Convention on Human Rights article 4 para. 3.

⁹ 1990 United Nations Model Treaty on Extradition, UN Doc. A/RES/45/116.

in the list of possible penalties¹⁰. Furthermore, in the 1996 report on the proceedings of the Preparatory Committee it was noted that some delegations expressed their strong support for the exclusion of the death penalty from the penalties that the Court would be authorized to impose. At the same time, while the death penalty was ruled out by those delegations, others suggested that the death penalty should not be excluded *a priori* since it was provided for in many legal systems, especially in connection with serious crimes¹¹. The latter delegations made the following proposal: ‘The death penalty, as an option, in case of aggravating circumstances and when the Trial Chamber finds it necessary in light of the gravity of the crime, the number of victims and the severity of the damage’¹². This proposal was retained in the 1998 final Report of the Preparatory Committee as one option, the other being ‘No provision on death penalty’¹³. Ultimately, no provision on the death penalty was included at the Diplomatic Conference.

3. Other penalties which were not included in the Statute

- 8 In the comments made under article 77 it appears that certain other penalties had been proposed but were not included in the Rome Statute. These include loss or suspension of rights¹⁴, disqualification and disenfranchisement, *i. e.* loss of voting rights or right to seek public office. The prevailing view was that such penalties could in some cases raise questions as to limitations deriving from international human rights law, and should rather be dealt with within the context of national law by national courts.
- 9 Proposals were also made to include orders for reparation to victims and their families as a penalty. However, opinions were divided as to whether such orders should be dealt with in the context of penalties, or rather as civil remedies or reparation within the framework of procedural matters and the rules of enforcement. A number of delegations expressed the view that there might be merit in dealing with these issues in a unified way focusing on all the issues related to compensation. At the Rome Conference it was decided to deal with reparation to victims in the context of article 75 in Part 6 on the Trial, and not to include this issue in Part 7.

4. The issue of life imprisonment

- 10 Reference is made to comments concerning the background for the inclusion of life imprisonment made under article 77. It suffices here to note that a number of delegations at the Diplomatic Conference voiced strong opposition to the inclusion of life imprisonment in the Statute. Constraints pursuant to national constitutions as well as concerns derived from international human rights law were invoked. Among the strongest opponents were Portugal and a number of Latin-American States¹⁵. Other delegations indicated, however, that a compromise on the non-inclusion of the death penalty would presuppose an inclusion of life imprisonment. They maintained that the credibility of the Court would otherwise be jeopardized, when considering the gravity of the crimes within the jurisdiction of the Court. As explained in the comments under article 77, the inclusion of the possibility of life imprisonment became a central element of the final compromise package.

¹⁰ *Ad hoc* Committee Report, para. 187, comments on article 47.

¹¹ 1996 Preparatory Committee Report I, para. 306, p. 63.

¹² 1996 Preparatory Committee Report II, p. 229.

¹³ See article 75 *lit. e* of the Preparatory Committee Draft, p. 144.

¹⁴ Draft Statute article 75 *lit. c* (i) included the following proposals:

‘[d]isqualification from seeking public office for the person’s term of imprisonment and any further period of time that may be imposed [in the modality and to the extent that the penalty could be imposed in accordance with the laws of the State in which such a penalty is to be enforced]’.

Earlier drafts had included proposals about: suspension or loss of rights; disqualification, dismissal or suspension from office or employment; disenfranchisement in the modality and to the extent such penalty could be imposed in accordance with (relevant national) laws. See also La Rosa, *Juridictions Pénales Internationales: La Procédure et la Preuve* (2003) 209.

¹⁵ On constitutional restrictions of Portugal and Latin-American States, see van Zyl Smit (1998) 10 *CLF* [1], 23–24, including footnotes 103 and 104.

5. The issue of reference to national law

As opposed to the ICTY and ICTR¹⁶ the penalties provisions of the Rome Statute contain 11 no references to national law. The general issue of relevance of national law among applicable laws for the Court is discussed in the context of article 21 para. 1 (c) in Part 2 on jurisdiction, admissibility and applicable law. Nevertheless, it may be noted that there were particular aspects relating to references to national law with regard to penalties. First of all, this is an area of criminal law where there are particularly sharp differences and no unified standards. Before the Diplomatic Conference a general proposal had been made to allow for references to national law, but this was not included¹⁷. Moreover, in the context of discussions on the inclusion or non-inclusion of the death penalty a specific proposal was submitted by Saudi Arabia and other states, which would leave it to the discretion of the Court to take into consideration penalties provided in national laws¹⁸. In support of the proposal, it was suggested that in keeping with the principle of complementarity, the Court replaces the national courts which are unable to prosecute, and that logically the same law should be applied. Moreover, such an approach would ensure the largest possible degree of respect for different legal cultures. This view met, however, with strong resistance from other States. These held that such an approach would allow for different regimes of penalties to be applied by the Court and would mean the application of a discriminatory system of sanctions. Moreover, it would risk legitimizing certain methods of punishment. A number of States could not accept this approach because it would put the Court in an unsolvable situation with regard to respect for existing treaty obligations. The Court could be confronted with the issue of compatibility of national law in relation to penalties with international law – this would also run counter to the principle of complementarity. The outcome of the discussions was to let the penalties system of the Rome Statute build on an overarching principle of universality.

B. Analysis and interpretation of elements

The scope of this non-prejudice provision is limited to Part 7.

12

1. ‘the application by States of penalties prescribed by their national law’

This provision means that the penalties system in Part 7 only applies to the ICC and does 13 not affect national criminal justice systems, in particular with regard to the application of penalties other than those provided for in the Statute. This is relevant with regard to the non-inclusion in the Statute of provisions concerning the death penalty and other penalties such as loss of rights, disqualification and disfranchisement. This also applies, for example, to the non-inclusion of minimum terms of imprisonment, and the fact that in the Statute orders for reparation are not as such considered as a penalty. On the other hand, the provision in article 80 in no way influences existing or future limitations in international law on the national application of penalties, *inter alia* pursuant to international human rights obligations. The provision does, therefore, not bear on the legitimacy of particular forms of punishment not mentioned in the Statute.

¹⁶ See, for example, Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 700.

¹⁷ See comments under article 77.

¹⁸ See UN Doc. A/CONF.183/C.1/WGP/L.11:

‘The Court may impose on a person convicted under this Statute one or more of the penalties provided for by the national law of the State in which the crime was committed.

In cases where national law does not regulate a specific crime, the Court may apply one or more of the following penalties: ...’.

2. ‘the law of States which do not provide for penalties prescribed in this Part’

- 14 This wording is a corollary to the above formulation, and is also fully in keeping with the principle of complementarity between the Court and national criminal jurisdictions. It means that the inclusion of certain penalties and the choice of criteria for their application does not affect national justice systems which do not provide for such penalties. This is particularly relevant with regard to the inclusion in the Statute of the possibility of life imprisonment. It also applies to the maximum terms of imprisonment as well as the minimum periods to be served before release can be considered according to article 110 of the Statute. Moreover, it is relevant with regard to the inclusion of forfeiture in the Statute, as a penalty rather than a civil remedy, or the possibility of ordering fines as additional penalties for such grave crimes.

PART 8 APPEAL AND REVISION

Article 81*

Appeal against decision of acquittal or conviction or against sentence

1. A decision under article 74 may be appealed in accordance with the Rules of Procedure and Evidence as follows:
 - (a) The Prosecutor may make an appeal on any of the following grounds:
 - (i) Procedural error,
 - (ii) Error of fact, or
 - (iii) Error of law;
 - (b) The convicted person, or the Prosecutor on that person's behalf, may make an appeal on any of the following grounds:
 - (i) Procedural error,
 - (ii) Error of fact,
 - (iii) Error of law, or
 - (iv) Any other ground that affects the fairness or reliability of the proceedings or decision.
2.
 - (a) A sentence may be appealed, in accordance with the Rules of Procedure and Evidence, by the Prosecutor or the convicted person on the ground of disproportion between the crime and the sentence;
 - (b) If on an appeal against sentence the Court considers that there are grounds on which the conviction might be set aside, wholly or in part, it may invite the Prosecutor and the convicted person to submit grounds under article 81, paragraph 1 (a) or (b), and may render a decision on conviction in accordance with article 83;
 - (c) The same procedure applies when the Court, on an appeal against conviction only, considers that there are grounds to reduce the sentence under paragraph 2 (a).
3.
 - (a) Unless the Trial Chamber orders otherwise, a convicted person shall remain in custody pending an appeal;
 - (b) When a convicted person's time in custody exceeds the sentence of imprisonment imposed, that person shall be released, except that if the Prosecutor is also appealing, the release may be subject to the conditions under subparagraph (c) below;
 - (c) In case of an acquittal, the accused shall be released immediately, subject to the following:
 - (i) Under exceptional circumstances, and having regard, inter alia, to the concrete risk of flight, the seriousness of the offence charged and the probability of success on appeal, the Trial Chamber, at the request of the Prosecutor, may maintain the detention of the person pending appeal;
 - (ii) A decision by the Trial Chamber under subparagraph (c) may be appealed in accordance with the Rules of Procedure and Evidence.
4. Subject to the provisions of paragraph 3 (a) and (b), execution of the decision or sentence shall be suspended during the period allowed for appeal and for the duration of the appeal proceedings.

* Any views expressed in this contribution are those of the author alone and do not reflect the views of the International Criminal Court or any other institution to which the author is or was attached.

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A. Introduction/General remarks

Provisions for judgments of a court to be appealed to a higher instance are found in national legal systems generally, in both criminal and civil cases. In international courts and tribunals, they have been less common. For instance, article 60 of the Statute of the ICJ states expressly that judgments of that Court are 'final and without appeal'¹. Even in the case of the criminal trials conducted before the Nuremberg and Tokyo Tribunals, there was no appeal from the Tribunal's judgment to a higher judicial authority².

However, appeals are provided for in the Statutes of both the ICTY and the ICTR³, as well as in the Statute of the Special Court for Sierra Leone⁴. In proposing the Statute of the ICTY to the Security Council, the Secretary-General of the United Nations observed that a right of appeal 'is a fundamental element of individual civil and political rights and has, *inter alia*, been incorporated in the International Covenant on Civil and Political Rights'⁵. In the

¹ See also, e.g., Statute of the Permanent Court of International Justice, article 60 (available under <https://www.legal-tools.org/doc/a0bb78/>). In the case of the European Court of Justice, no provision was made for appeals against decisions of that Court in its original jurisdiction, but appeals can be taken to it from the Court of First Instance: see Kapteyn and VerLoren van Themaat, *Introduction to the law of the European Communities* (3rd ed. 1998)14; Arnulf, *The European Union and its Court of Justice* (3rd ed. 1999) 267–268. Since the entry into force on 1 November 1998 of Protocol No. 11 to the ECHR, article 43 and 44 of that Convention provide a mechanism under which a case before the European Court of Human Rights may, following the judgment of a Chamber, be referred to the Grand Chamber for a further judgment (available under <https://www.legal-tools.org/doc/cdc748/>).

² Article 26 of the Charter of the International Military Tribunal (*Nuremberg Tribunal*) (available under <https://www.legal-tools.org/doc/64ffdd/>) provided that '[t]he judgment of the Tribunal as to the guilt or the innocence of any defendant ... shall be final and not subject to review'. Article 17 of the Charter of the International Military Tribunal for the Far East (*Tokyo Tribunal*) (available under <https://www.legal-tools.org/doc/a3c41c/>) provided that the record of the trial was to be transmitted directly to the Supreme Commander for the Allied Powers, who could reduce or otherwise alter the sentence, except to increase its severity.

³ Article 25 ICTY Statute, article 24 ICTR Statute.

⁴ Article 20 SCSL Statute. Its para. 3 states that '[t]he judges of the Appeals Chamber of the Special Court shall be guided by the decisions of the Appeals Chamber of the International Tribunals for the Former Yugoslavia and for Rwanda. In the interpretation and application of the laws of Sierra Leone, they shall be guided by the decisions of the Supreme Court of Sierra Leone'.

⁵ Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808 (1993) (presented 3 May 1993) (S/25704), para. 116 (available under <https://www.legal-tools.org/doc/c2640a/>).

commentary to its original Draft Statute, which also included a provision for appeals, the ILC referred both to article 14 para. 5 of the ICCPR and to article 25 of the ICTY Statute⁶.

The ICCPR refers only to a **right of appeal** by a convicted person. As in the case of the ICTY and the ICTR, and the original ILC Draft Statute⁷, the Rome Statute also allows appeals by the Prosecutor against acquittals, a possibility recognised in some national legal systems, particularly civil law systems⁸, but not others⁹.

- 2 Articles 81–83 of the Statute are the principal provisions on appellate proceedings before the Court. Article 81 is the primary provision, dealing with appeals against a final judgment or sentence of a Trial Chamber¹⁰. Article 82 allows in addition for appeals to be brought against various interlocutory and other decisions of a Pre-Trial Chamber or Trial Chamber¹¹. Article 83 deals with the powers and procedures of the Appeals Chamber.
- 3 These three articles must be read together with other provisions in the Statute relating to appeals. Article 34(b) provides that one of the organs of the Court is an ‘Appeals Division’. Under article 39, para. 1, the Appeals Division is composed of the President and four other judges. Article 39, para. 2 (b) (i) further provides that the ‘Appeals Chamber’ is composed of all the judges of the Appeals Division.¹² It seems necessarily implicit from article 82 paras. 1 (d) and 3 and article 83 para. 1, that all appeals under articles 81–83 are heard and determined by the Appeals Chamber¹³.
- 4 In addition to article 81–83, other provisions of the Statute allow for appeals against certain decisions. Article 18, para. 4 provides for an appeal by the State concerned or the Prosecutor against a ruling of the Pre-Trial Chamber under article 18, para. 2. Under article 19, para. 6, appeals may be brought against decisions of a Pre-Trial or Trial Chamber with respect to jurisdiction or admissibility. Both of these provisions indicate that the relevant appeals are subject to article 82¹⁴.
Additionally, article 42, para. 8 (which provides that any question as to the **disqualification** of the Prosecutor or a Deputy Prosecutor shall be decided by the Appeals Chamber) appears to confer a form of ‘original’ jurisdiction on the Appeals Chamber, without further recourse to another instance¹⁵. Article 110 and rule 223 RPE confer jurisdiction on three judges of the Appeals Chamber to review whether to **reduce a sentence** imposed by the Court upon two thirds of a sentence being served.
- 5 Consideration is given below to whether other types of appellate proceedings, that are neither provided for nor envisaged by the Statute, might nonetheless be possible¹⁶.
- 6 Article 81, paras. 1, 2 (a) and 3 (c) (ii), and article 82, paras. 1, 3 and 4 indicate that appeals under these provisions are to be in accordance with the **Rules**. However, the extent of

⁶ 1994 ILC Draft Statute with commentaries, p. 61 (available under <https://www.legal-tools.org/doc/390052/>).

⁷ See *ibid.*; article 48.

⁸ See, e.g., Vogler, in: Hatchard et al. (eds.), *Comparative Criminal Procedure* (1996) 54, 56.

⁹ For instance, in England and Wales, the prosecution cannot appeal against an acquittal, but can appeal against sentence. A procedure also exists under which the Attorney-General may refer a point of law that has arisen during the trial to the Court of Appeal for its opinion (Criminal Justice Act 1972, section 36, available under <https://www.legal-tools.org/doc/16a896/>). The opinion of the Court of Appeal does not affect the acquittal in that case, but clarifies the law for the future (see, e.g., Hatchard, in: Hatchard et al. (eds.), *Comparative Criminal Procedure* (1996) 204).

¹⁰ See mn 7.

¹¹ See Nerlich, *article 82*, mn 8–21.

¹² See Staker and Eckelmans, *article 83*, mn 29.

¹³ It is, however, curious that article 81 in fact makes no mention of the Appeals Chamber, referring instead to appeal proceedings being heard by ‘the Court’ (see article 81 para. 2(b) and (c)), ‘in accordance with the Rules of Procedure and Evidence’ (chapeau to article 81 para. 1).

¹⁴ See also Nerlich, *article 82*, mn 11.

¹⁵ See the most relevant ICC Appeals Chamber decisions: *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al Senussi*, No. ICC-01/11-01/11-175 OA3, Decision on the Request for Disqualification of the Prosecutor, 12 June 2012 (available under <http://www.legal-tools.org/doc/3ea916/>); *Prosecutor v. Jean-Pierre Bemba et al.*, No. ICC-01/05-01/13-648-Red OA, Decision on the requests for the Disqualification of the Prosecutor, Deputy Prosecutor and the entire OTP staff, 22 August 2014 with dissenting and separate opinions.

¹⁶ See mn 84–89.

the matters which may be prescribed by the Rules is not made clear. Article 51 provides merely that the Rules shall be consistent with the Statute¹⁷ and that '[in] the event of conflict ..., the Statute shall prevail'¹⁸. It is uncontroversial that the Rules should deal with matters such as the time limits for an appeal¹⁹, and the manner of instituting appeals. It is less clear whether the Rules potentially could, for instance, impose limitations on the right to have appeals considered by the Appeals Chamber²⁰, or conversely, expand the rights of appeal beyond those provided for in the Statute²¹. The question is at present moot, since the relevant provisions of the Rules dealing with appellate proceedings (rules 149 to 158 RPE) do not appear to expand or restrict the scope of appeals provided for in the Statute. The procedure for appeals is further regulated by regulations 57 to 65 RoC and in more detail addressed below, Staker and Eckelmans, *article 83*, mn 21–60.

B. Analysis and interpretation of elements

I. Paragraph 1

This paragraph provides for appeals against a 'decision under article 74'. The wording of article 74 itself does not state unambiguously whether that article relates only to the final judgment of the Trial Chamber, pronouncing the verdict²², or whether references in article 74 to 'the decision' of the Trial Chamber could extend also to its interlocutory decisions and rulings. However, it seems clear that paragraph 1 of article 81 is in fact intended to apply only to a final judgment of a Trial Chamber, convicting or acquitting the accused. This is apparent from the title to article 81, which refers, in addition to appeals against 'sentence' (which are governed by paragraph 2 of this article), only to appeals against 'conviction or acquittal'. Also, the requirement in article 74 para. 2 that '[t]he Trial Chamber's decision shall be based on its evaluation of the evidence and the entire proceedings' would confirm that the references in article 74 to 'the Trial Chamber's decision' are confined to the Trial Chamber's final judgment²³.

A 'decision under article 74' would also include a final decision in proceedings under article 70 ('Offences against the administration of justice')²⁴. Rules 163, 165 RPE clarify that

¹⁷ Article 51 para. 4.

¹⁸ Article 51 para. 5.

¹⁹ 1994 ILC Draft Statute with commentaries.

²⁰ By way of comparison, it is noted that ICTY/ICTR RPE establish a filter mechanism for certain types of interlocutory appeals, under which an appeal can be brought only in cases where the Trial Chamber has granted certification that 'the decision involves an issue that would significantly affect the fair and expeditious conduct of the proceedings or the outcome of the trial, and for which, in the opinion of the Trial Chamber, an immediate resolution by the Appeals Chamber may materially advance the proceedings' (rules 72 *lit. B* (ii) and 73 *lit. B* ICTY; rules 72 *lit. B* (ii) and 73 *lit. B* ICTR). Another provision of the ICTR RPE provides for a different filter mechanism, under which certain interlocutory appeals are permitted only when leave is granted by a bench of three judges of the Appeals Chamber, 'upon good cause being shown' (rule 65 *lit. D* ICTR RPE). This latter type of filter mechanism was used for a period in a variety of provisions in earlier versions of the ICTY RPE. On the other hand, in the case of the ICC, rule 155 RPE requires leave to appeal only in the case of appeals under article 82 para. 1 (d) or article 82 para. 2, where the Statute itself contains a leave requirement.

²¹ See mn 84–89.

²² It would include an appeal against conviction following a plea of guilty: see Hartwig, in Safferling, *Towards an international criminal procedure*, 532, and cf. *Prosecutor v. Drazen Erdemović*, IT-96-22-A, Judgement, ICTY Appeals Chamber, 7 October 1997 (available under <https://www.legal-tools.org/doc/f49012/>).

²³ The addition of article 82 also supports this conclusion. However, even if article 81 were interpreted as applying to all decisions of a Trial Chamber, this would not make article 82 redundant, since the latter would provide for appeals against decisions of a Pre-Trial Chamber.

²⁴ See also for the ICTY/ICTR: *Léonidas Nshogoza v. Prosecutor*, ICTR-2007-91-A, Judgement, ICTR Appeals Chamber, 15 March 2010, para. 12 (available under <http://www.legal-tools.org/doc/a65fb0/>); *In the case against Vojislav Šešelj*, IT-03-67-R77.2-A, Judgement, ICTY Appeals Chamber, 19 May 2010 (public redacted version), para. 9.

the investigation and prosecution of conduct under article 70 adheres to the legal framework for the investigation and prosecution of article 5 crimes²⁵. The deviations from the regular procedural framework specifically foreseen in those provisions do not apply to the appeals scheme of article 81 to 83. Nevertheless, they clarify that its application is subject to a *mutatis mutandis* assessment²⁶.

- 8 Paragraph 1 provides three grounds on which the Prosecutor can appeal and four grounds on which an appeal can be brought by the convicted person or the Prosecutor on that person's behalf. It may be noted that the possibility of the prosecution **appealing on behalf of a convicted person** is one that is well-established in some legal systems²⁷, reflecting the prosecution's non-partisan duty to truth and justice²⁸.

The ILC was of the view that the right to appeal should exist equally for the Prosecutor and the convicted person²⁹. At the Preparatory Committee in 1996, there appeared to be a divergence of views on this issue, one view being to keep equality, another being to limit appeals by the Prosecutor to errors of law, and another being to allow the convicted person to appeal on any substantive grounds³⁰. The Zutphen Report included only the first three grounds (in square brackets) for both the Prosecutor and the convicted person, with an alternative square-bracketed proposal that would have allowed appeals by either 'without any specified grounds'³¹. The fourth ground of appeal, available only to the convicted person or the Prosecutor appealing on that person's behalf, was included in the 1998 Preparatory Committee Report³². It is however questionable whether this fourth ground adds significantly to the first three³³.

- 9 The definition of each of the specified grounds of appeal under this paragraph, and the corresponding standards of review on appeal, are considered at mn 34–63.

²⁵ See *Prosecutor v. Jean-Pierre Bemba Gombo et al.*, ICC-01/05-01/13-558 OA2, Judgment on the appeal of Mr Aimé Kilolo Musamba against the decision of Pre-Trial Chamber II of 14 March 2014 entitled 'Decision on the 'Demande de mise en liberté provisoire de Maître Aimé Kilolo Musamba'', Appeals Chamber, 11 July 2014, para. 14 (specifically for article 58 and 60); see also H. Brady, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 576 note 2.

²⁶ Rule 163(1) RPE.

²⁷ E.g., Germany: Code of Criminal Procedure (Strafprozeßordnung), § 296 para. 2 (available under <https://www.legal-tools.org/doc/ef2d9d/>); see also Instituto Iberoamericano de Derecho Procesal, *Código Procesal Penal modelo para Iberoamérica* (Model Code of Criminal Procedure for Latin America) article 332 (1989).

²⁸ See *Prosecutor v. Kupreškić et al.*, IT-95-16-T, Decision on Communication Between the Parties and their Witnesses, Trial Chamber, 21 Sep. 1998 (available under <https://www.legal-tools.org/doc/6e80ec/>) ('... the Prosecutor of the Tribunal is not, or not only, a Party to adversarial proceedings but is an organ of the Tribunal and an organ of international criminal justice whose object is not simply to secure a conviction but to present the case for the Prosecution, which includes not only inculpatory, but also exculpatory evidence, in order to assist the Chamber to discover the truth in a judicial setting'); *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision (Prosecutor's Request for Review or Reconsideration), Appeals Chamber, 31 March 2000, Separate Opinion of Judge Shahabuddeen, para. 68 (available under <https://www.legal-tools.org/doc/1c0fe7/>) ('The Prosecutor of the ICTR is not required to be neutral in every case; she is a party. But she is not of course a partisan. ... The implications of that requirement suggest that, while a prosecution must be conducted vigorously, there is room for the injunction that prosecuting counsel ought to bear themselves rather in the character of ministers of justice assisting in the administration of justice'). See also Staker and Nerlich, *article 84*, mn 6.

²⁹ 1994 ILC Draft Statute with commentaries, 125.

³⁰ Report of the Preparatory Committee on the establishment of an International Criminal Court, i, A/51/22 ('1996 Preparatory Committee Report I'), para. 295 (available under <http://www.legal-tools.org/doc/e75432/>).

³¹ Report on the inter-sessional meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, A/AC.249/1998/L.13, 4 February 1998, ('Zutphen Draft') (available under http://www.legal-tools.org/uploads/tx_ltpdb/doc21423.pdf), 134.

³² Report of the Preparatory Committee on the establishment of an International Criminal Court, A/CONF.183/2/Add.1, 14 April 1998, ('1998 Preparatory Committee Draft'), (available under http://www.legal-tools.org/uploads/tx_ltpdb/doc21486.pdf), 125.

³³ See mn 62.

II. Paragraph 2

Subparagraph (a) provides for **appeals against sentence** either by the Prosecutor or the convicted person. In contrast to paragraph 1, there is no express provision for the Prosecutor to bring an appeal on behalf of the convicted person³⁴, although nothing in the wording of paragraph 2 would prevent it.

Only one ground of appeal against sentence is provided for, namely that of ‘**disproportion between the crime and the sentence**’. The definition of this ground of appeal, and the corresponding standard of review on appeal, is considered at mn 64–67.

It seems surprising that no other grounds of appeal were included in this paragraph. In the course of the sentencing process other errors of the kind referred to in paragraph 1 could arise, in particular procedural errors (*e.g.*, failure to hold a hearing under article 76, para. 2 despite a request by the Prosecutor or the defence), errors of fact (*e.g.*, where the Trial Chamber, in determining the sentence, has regard to matters which are factually incorrect) or errors of law (*e.g.*, where the Trial Chamber, in determining sentence, misconstrues a provision of the Statute or the Rules, such as rule 145 RPE). In fact, article 83, para. 2 expressly acknowledges this, empowering the Appeals Chamber to grant an appellate remedy where the ‘sentence appealed from was materially affected by error of fact or law or procedural error’. It may therefore be that any appeal seeking to have the sentence itself reduced or increased on appeal, on any of these grounds, would be an appeal alleging ‘disproportionality’ of sentence within the meaning of article 81, para. 2(a).

Under *subparagraph (b)*, where there is an *appeal against sentence only*, the Appeals Chamber can of its own motion raise the question whether there may be grounds to set aside the conviction itself. *Subparagraph (c)* makes similar provision in cases where there is an *appeal against conviction only*. These provisions, enabling the Appeals Chamber to raise certain issues **on its own motion**, are expressed to operate only to the benefit of the convicted person. It may be that they merely give expression to what would in any event fall within the inherent powers of the Appeals Chamber³⁵. No similar provision is contained in the Statute or Rules of the ICTY, yet a similar power was exercised by the Appeals Chamber of that Tribunal³⁶.

III. Paragraphs 3 and 4

The general principle that execution of a judgment is **suspended** during appeal (subject to possible exceptions), which is familiar particularly to civil law systems³⁷, is given effect subject to the exceptions contained in paragraph 3.

Paragraph 3 establishes a general rule that a person who is convicted will remain in custody notwithstanding that he or she may have appealed against the verdict. Conversely, a person who has been acquitted is to be released immediately, even if the Prosecutor has appealed against the acquittal. These general principles are subject to a contrary order of the Trial Chamber, but in case of **acquittal**, such an order can be made only in ‘exceptional circumstances’, and is itself subject to **appeal** by the person affected³⁸.

³⁴ See mn 8.

³⁵ See mn 70.

³⁶ See *Erdemović* Appeal Judgement, IT-96-22-A, 7 October 1997 (in which the accused, who had pleaded guilty, appealed against his sentence, and the Appeals Chamber, *proprio motu*, raised issues concerning the validity of the plea of guilty).

³⁷ France: Code de Procédure Pénale, article 506, 569 (available under <https://www.legal-tools.org/doc/62c164/>); Germany: Code of Criminal Procedure (Strafprozeßordnung), §§ 316, 343 (available under <https://www.legal-tools.org/doc/ef2d9d/>).

³⁸ See *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-12 OA, Decision on the request of the Prosecutor of 19 December 2012 for suspensive effect, Appeals Chamber, 20 December 2012, (available under

- 16 *Subparagraph (a)* does not give any indication of the types of orders for release that may be made by the Trial Chamber. Such orders could arguably be made subject to conditions, such as bail, or periodic reporting³⁹. Presumably, under *subparagraph (c)(i)* the Trial Chamber could also, as an alternative to actual detention, order detention with conditional release subject to bail or reporting requirements.
- 17 Apart from the fact that a convicted person will thus normally remain in custody pending an appeal, under *paragraph 4* the effects of the conviction or sentence are **suspended** during the period allowed for appeal and for the duration of any appeal proceedings. The consequences are, for instance, that during this period the convicted person will not be transferred to the State of enforcement designated under article 103, and that no order can be enforced against the convicted person under article 75, para. 2.⁴⁰ There will also be a suspension of any fine imposed under article 77, para. 2(a) and of any order for forfeiture of assets under article 77, para. 2(b).

C. Special remarks

1. Nature of an ‘appeal’

- 18 **a) Introduction.** Although the Statute includes various provisions for appellate proceedings⁴¹, it does not define the concept of an ‘appeal’. In national legal systems, different forms of appellate proceedings may exist. In particular, in civil law systems generally there is a distinction between what in French is called ‘*appel*’ on the one hand⁴², and ‘*cassation*’ on the other⁴³. In the case of an *appel*, reconsideration of both questions of fact and questions of law are possible, and the merits of the case generally may be redetermined. This is usually the form of appeal from the court of first instance to an intermediate court of appeal⁴⁴. *Cassation* on the other hand is a form of appeal confined essentially to issues of law or procedural errors, and is normally the form of appeal to the court of highest instance in such systems⁴⁵.
- 19 The ILC observed, in relation to the position under the ILC Draft Statute, that the Appeals Chamber ‘combines some of the functions of *appel* in civil law systems with some of the functions of *cassation*’ and that this was ‘thought to be desirable, having regard to the existence of only a single appeal from decisions at trial’⁴⁶. The ILC was also of the view that ‘[i]t is not intended that the appeal should amount to a retrial. The Court would have power if necessary to allow new evidence to be called, but it would normally rely on the transcript of the proceedings at the trial’⁴⁷. At the Preparatory Committee in 1996, one view was that the

<http://www.legal-tools.org/doc/3578c4/>) paras. 22–25; cf para. 15 with respect to whether an appeal pursuant to article 81, para. 3(c)(ii) may be subject to a request for suspensive effect pursuant to article 82, para. 3).

³⁹ See article 83 para. 1 in conjunction with article 60 paras. 2–5 and rules 118–119 RPE. But cf. Roth and Henzelin in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1547.

⁴⁰ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2953 A A2 A3 OA21, Decision on the admissibility of the appeals against Trial Chamber I’s ‘Decision establishing the principles and procedures to be applied to reparations’ and direction on the further conduct of proceedings, Appeals Chamber, 14 December 2012 (available under <http://www.legal-tools.org/doc/2e59a0/>), para. 86.

⁴¹ See mn 2–5.

⁴² Proceedings of this type in other civil law systems include ‘*Berufung*’ in Germany, ‘*appello*’ in Italy, ‘*hoger beroep*’ in the Netherlands.

⁴³ Proceedings of this type include ‘*Revision*’ in Germany, ‘*ricorso per cassazione*’ in Italy, ‘*Cassatieberoep*’ in The Netherlands.

⁴⁴ See Van den Wyngaert (ed.), *Criminal procedure systems in the European Community* 46 (Belgium), 134 (France), 160 (Germany), 256 (Italy), 314–315 (Netherlands) (1993); Hatchard et al. (eds.) *Comparative Criminal Procedure* (1996) 54–55 (France), 132–133 (Germany).

⁴⁵ See Van den Wyngaert (ed.), *Criminal procedure systems in the European Community* 47 (Belgium), 134–135 (France), 160 (Germany), 256–257 (Italy), 314–315 (Netherlands), 398 (Spain); Hatchard et al. (eds.), *Comparative criminal procedure* (1996) 55–56 (France), 133 (Germany).

⁴⁶ 1994 ILC Draft Statute with commentaries, p. 127.

⁴⁷ *Ibid.*

Appeals Chamber should be able to re-examine the case in its entirety and that the right of appeal should be as broad as possible⁴⁸. The ultimate inclusion in article 81 para. 1 of specified grounds on which an appeal may be brought suggests that this view did not prevail.

The following discussion outlines the principles governing appeals as developed in the recent case law of the ICC, in contrasting juxtaposition with the case law of the *ad hoc* tribunals. Insofar as the ICC case law is not yet conclusive, reference is made to the principles developed by the *ad hoc* tribunals.

b) ‘Corrective’ nature of an appeal. Neither the legal framework of the ICC nor the 20 Statutes and Rules of the ICTY and ICTR do clearly indicate the nature of an appeal in any of these jurisdictions. However, this has been clarified in their case law. The ICC Appeals Chamber in deciding whether to admit additional evidence on appeal held:

‘The Appeals Chamber considers that appellate proceedings significantly differ in their nature and purpose from pre-trial and trial proceedings. Importantly, appellate proceedings at the Court are of a corrective nature, which finds expression in, *inter alia*, the standard of review on appeal ...’⁴⁹

Accordingly, the ICC Appeals Chamber has established that an appeal under article 81, para. 1 does **not require a *de novo*** consideration of the case but a review of the Trial Chamber’s decision under article 74 (on guilt or innocence).

Similarly, the Appeals Chamber of the *ad hoc* tribunals has made clear from the start that 21 it does not operate as a second Trial Chamber, and that an appeal does not involve a trial *de novo*⁵⁰. It is well established jurisprudence that:

‘[o]n appeal, parties must limit their arguments to errors of law that invalidate the decision of the trial chamber and to factual errors that result in a miscarriage of justice.’⁵¹

The ICC Appeals Chamber held further with respect to an appeal against a Trial 22 Chamber’s decision on sentence pursuant to article 76:

‘At the outset, the Appeals Chamber notes that article 83 (2) and (3) of the Statute clarifies that, with respect to appeals against sentencing decisions, the Appeals Chamber’s primary task is to review whether the Trial Chamber made any errors in sentencing the convicted person. The Appeals Chamber’s role is not to determine, on its own, which sentence is appropriate, unless – as stipulated in article 83 (3) of the Statute – it has found that the sentence imposed by the Trial Chamber is ‘disproportionate’ to the crime. Only then can the Appeals Chamber ‘amend’ the sentence and enter a new, appropriate sentence.’⁵²

This quote supports the conclusion that the ICC Appeals Chamber is primarily a chamber of review that analyses the **correctness** of the Trial Chamber’s decisions on the basis of specific grounds of appeal. However, it also shows that its task goes beyond establishing merely the correctness of the Trial Chamber’s decisions under article 74 and/or 76 in respect of ‘errors’ that the Trial Chamber may have committed. Rather, it also needs to decide,

⁴⁸ 1996 Preparatory Committee Report I, para. 295.

⁴⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red A5, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, 1 December 2014, para. 56 (available under <http://www.legal-tools.org/doc/585c75/>).

⁵⁰ *Prosecutor v. Tadić*, IT-94-1-A, Decision on Appellant’s Motion for the Extension of the Time-Limit and Admission of Additional Evidence, Appeals Chamber, 15 October 1998, paras. 41–42 (available under <http://www.legal-tools.org/doc/d360e7/>); *Prosecutor v. Anto Furundžija*, IT-95-17/1-A, Judgement, ICTY Appeals Chamber, 21 July 2000, para. 40 (available under <http://www.legal-tools.org/doc/660d3f/>); *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 203, 724 (available under <http://www.legal-tools.org/doc/051554/>); *Prosecutor v. Vasiljević*, IT-98-32-A, Judgement, ICTY Appeals Chamber, 25 February 2004, para. 5 (available under <http://www.legal-tools.org/doc/db7c4/>); *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgement, ICTY Appeals Chamber, 28 February 2005, paras. 424–425 (available under <http://www.legal-tools.org/doc/006011/>).

⁵¹ *Prosecutor v. Vujadin Popović et al.*, IT-05-88-A, Judgement, Appeals Chamber, 30 January 2015, para. 16.

⁵² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3122 A4 A6, Judgment on the appeals of the Prosecutor and Mr Thomas Lubanga Dyilo against the ‘Decision on Sentence pursuant to Article 76 of the Statute, 1 December 2014, para. 56 (available under: <http://www.legal-tools.org/doc/a9bd07/>).

within its powers, how to proceed with an ‘incorrect’ decision. In that respect, the Appeals Chamber’s powers are arguably more akin to those of a Trial Chamber⁵³.

- 23 **Grounds of appeal** are the basis for the Appeals Chamber’s review. The Statute reinforces this by providing in article 83, para. 2(b) and (c) that, where the Appeals Chamber decides to extend the review of the Trial Chamber’s decisions to either the conviction or the sentencing decision, it is required to seek grounds of appeal in relation to that decision from the parties. Accordingly, only those grounds establish the basis for the Appeals Chamber’s review of that decision⁵⁴.
- 24 In the practice of the ICC and international(ised) tribunals, the Appeals Chambers *dismiss* grounds of appeal if they a) do not meet the requirements of substantiation, or, in the language of the *ad hoc* tribunals, are subject to summary dismissal, see below mn 28–30 or b) fall under the ‘waiver’ principle; see below mn 31–32. When dismissing a ground of appeal, the Appeals Chambers do not consider the merits of the alleged error. The Appeals Chambers use a different terminology when considering the merits of a ground of appeal but finding it to be unfounded. In this case, it is their practice to **reject** a ground of appeal. If a ground of appeal is rejected, it is found not to meet the standard of review applicable to the alleged error.
- 25 The Rome Statute introduces grounds of appeal and the standard of review differently from the statutes of the *ad hoc* tribunals. Article 81, paras 1 and 2, list the grounds of appeal that appellants may raise against decisions pursuant to articles 74 and 76. The standard of review, however, is implicitly dealt with in article 83, para. 2, a provision addressing foremost the powers of the Appeals Chamber⁵⁵. It determines that the Appeals Chamber’s exercise of the powers described therein finds only application if ‘the proceedings appealed from were unfair in a way that affected the reliability of the decision or sentence, or that the decision or sentence appealed from was materially affected by error of law or procedural error’. On this basis, the ICC Appeals Chamber has described its scope of review for appeals under article 81, paras 1 and 2, in the following terms:

‘Pursuant to article 81 (1) (b) of the Statute, in an appeal against a conviction decision, the convicted person may raise (i) procedural errors, (ii) errors of fact, or (iii) errors of law, as well as (iv) ‘[a]ny other ground that affects the fairness or reliability of the proceedings or decision’. Article 83 (2) of the Statute also establishes that the Appeals Chamber may only interfere with a conviction decision if the error of fact or law or a procedural error ‘materially affected’ that decision, and, in respect of unfairness allegations, that the unfairness ‘affected the reliability of the decision’.⁵⁶

It is noteworthy that the ICC Appeals Chamber has applied a **similar standard of review** with respect to **article 82 appeals**, without, however, making explicit reference to article 83, para. 2. The Appeals Chamber has held from the issuance of the first article 82(1) judgment that the alleged (legal) error must ‘materially affect’ the impugned decision⁵⁷. In the first article 81 appeal judgment, the Appeals Chamber has acknowledged that the standards of review for appeals under article 81 and for those under article 82 are – with respect to the requirement that the alleged error must materially affect the impugned decision – the same⁵⁸.

- 26 The ICTY/ICTR Statutes address the grounds of appeal and the standard of review in one single provision requiring ‘an error on a question of law’ to invalidate the decision and ‘an error on fact’ to occasion ‘a miscarriage of justice’⁵⁹. The SCSL Statute adds to this list a ‘procedural error’ but without indicating the applicable standard of review⁶⁰. According to its

⁵³ See mn 36–39; see also Staker and Eckelmans, *article 83*, mn 5–13.

⁵⁴ See mn 71.

⁵⁵ See Staker and Eckelmans, *article 83*, mn 5.

⁵⁶ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 16.

⁵⁷ *Democratic Republic of the Congo*, ICC-01/04-169 OA, Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58’, 13 July 2006, para. 84.

⁵⁸ See *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 17.

⁵⁹ Article 25 ICTY Statute, article 24 ICTR Statute; see also rule 104 ECCC Internal Rules.

⁶⁰ Article 20 SCSL Statute.

jurisprudence, such errors must ‘vitiating the proceedings’⁶¹. In the practice of the ICTY/ICTR Appeals Chambers, procedural errors and errors relevant to the rights of the accused and a fair trial have been treated as ‘errors of law’, thereby stipulating the requirement that the error must invalidate the impugned decision⁶².

While awareness of these statutory differences is helpful, they matter little in detecting the differences in the case law of the international(ised) courts. Rather, before any of the Appeals Chambers, appellants may raise errors of law, errors relevant to the proceedings leading to the impugned decision as well as errors of fact and it is established that these errors must affect the impugned decision for the ground of appeal to be successful. A particular position is reserved in the Statute for unfairness allegations and in the jurisprudence of the *ad hoc* tribunals for issues of general importance/significance⁶³. On the precise standard of review applicable with respect to each of the errors, see below, mn 33–62.

2. Dismissal of grounds of appeal

a) **Substantiation of grounds of appeal.** Non-substantiation of a ground of appeal is a reason for the ICC Appeals Chamber to dismiss such an alleged error:

‘The Appeals Chamber notes that its jurisprudence relating to the requirement of substantiation in appeals under article 82 of the Statute adequately addresses the substance of the Prosecutor’s request. The Appeals Chamber recalls that, in appeals pursuant to article 82 (1) of the Statute, the appellant is required to set out the alleged error and how the alleged error materially affected the impugned decision. If an appellant fails to do so, the Appeals Chamber may dismiss the argument without analysing it in substance. The Appeals Chamber adopts this jurisprudence for appeals pursuant to article 81 (1) of the Statute.’⁶⁴

Accordingly, an appellant must explain how the Trial Chamber erred and how this error materially affected the impugned decision. This requirement applies to **all grounds of appeal**. The substantiation is of utmost importance to alleging an **error of fact** as well as a **procedural error**,⁶⁵ because in relation to both the scope of the Appeals Chamber’s review is limited and usually fully dependent on how the error is alleged and substantiated⁶⁶. In that regard the appellants are required to refer to the parts of the record that are relevant to the allegations raised because the Appeals Chamber will not do so *proprio motu*⁶⁷. The ICC Appeals Chamber has also established that a misnomer of a ground of appeal is inconsequential as long as the error is well-substantiated⁶⁸.

⁶¹ *Prosecutor v. Moinina Fofana and Allieu Kondewa*, SCSL-04-14-A, Judgement, SCSL Appeals Chamber, 28 May 2008, para. 35 (available under <http://www.legal-tools.org/doc/b31512/>) ([a]lthough not expressly so stated in Article 20 of the Statute, not all procedural errors vitiate the proceedings. Only errors that occasion a miscarriage of justice would vitiate the proceedings. Such are procedural errors that would affect the fairness of the trial. By the same token, procedural errors that could be corrected or waived or ignored [...] without injustice to the parties would not be regarded as procedural errors occasioning a miscarriage of justice’); see also *Prosecutor v. Sesay et al.*, SCSL-04-15-A, Judgement, SCSL Appeals Chamber, 4 August 2009, para. 34.

⁶² See mn 34–35.

⁶³ See mn 72–75.

⁶⁴ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 30, by reference to *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-408 OA3, Judgment on the appeal of the Defence against the ‘Decision on the admissibility of the case under article 19 (1) of the Statute’ of 10 March 2009, ICC Appeals Chamber, 16 September 2009, paras. 50–51; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-962 OA3, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 24 June 2010 entitled ‘Decision on the Admissibility and Abuse of Process Challenges’, 19 October 2010, paras. 103–104; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1019 OA4, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 28 July 2010 entitled ‘Decision on the review of the detention of Mr Jean-Pierre Bemba Gombo pursuant to Rule 118(2) of the Rules of Procedure and Evidence’ 5 March 2012, paras. 69–71.

⁶⁵ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 33.

⁶⁶ See mn 43, 53.

⁶⁷ See e.g. *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 134, see also para. 26 in respect of factual errors.

⁶⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 34.

- 29 The scope of the Appeals Chamber's review is, however, less limited by the submissions of the parties or the considerations of the Trial Chamber in relation to **errors of law**. The ICC Appeals Chamber held:

'[T]he Appeals Chamber will not defer to the Trial Chamber's interpretation of the law. Rather, it will arrive at its own conclusions as to the appropriate law and determine whether or not the Trial Chamber misinterpreted the law. If the Trial Chamber committed such an error, the Appeals Chamber will only intervene if the error materially affected the Impugned Decision.'⁶⁹

An analysis of the Appeals Chamber's jurisprudence shows that the substantiation requirements for legal errors appear to be **more relaxed** compared to those of factual or procedural errors. While the appellant is required to indicate where in the impugned decision the Trial Chamber erred, for which reasons and how this affected the impugned decision, the ICC Appeals Chamber has accepted that e.g. substantiating an error in the impugned decision may involve repetition of arguments raised earlier in the proceedings⁷⁰. Furthermore, when interpreting article 25, para. 3(a), the Appeals Chambers discussed arguments deriving from academic literature, without being limited in that regard by the parties' submissions⁷¹. Also in article 82 appeals, the Appeals Chamber has often taken an interpretatory approach to a solely legal issue. Accordingly, instead of discussing merely the arguments of the parties, it has resolved the legal issue before it by applying principles of statutory interpretation, thereby freely referring, where appropriate, to jurisprudence of other tribunals and domestic courts or to academic literature⁷². Arguably, this approach springs, be it only partly,⁷³ from the principle *iura novit curia* (i.e. the court knows the law). Accordingly, failure of the appellant to detect arguments that are conducive to resolving a purely legal question may not necessarily be fatal to the ground of appeal.

The approach of the ICC Appeals Chamber to the substantiation requirements of legal errors, as well as generally to other errors, is similar to that of the ICTY/ICTY Appeals Chambers. They have held:

'Errors of law do not raise a question as to the standard of review as directly as errors of fact. Where a party contends that a Trial Chamber made an error of law, the Appeals Chamber, as the final arbiter of the law of the Tribunal, must determine whether there was such a mistake. A party alleging that there was an error of law must be prepared to advance arguments in support of the contention; but, if the arguments do not support the contention, that party has not failed to discharge a burden in the sense that a person who fails to discharge a burden automatically loses his point. The Appeals Chamber may step in and, for other reasons, find in favour of the contention that there is an error of law'⁷⁴.

Thus, the ICTY Appeals Chamber accords **no particular deference to findings of law** made by the Trial Chamber, since the Appeals Chamber is as capable as the Trial Chamber of determining what the law is. However, in accordance with the general principle that it is for a party asserting a right or seeking relief to establish the existence of that right or

⁶⁹ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-295 OA2, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber IV of 12 September 2011 entitled 'Reasons for the Order on translation of witness statements (ICC-02/05-03/09-199) and additional instructions on translation', ICC Appeals Chamber, 17 February 2012, para. 20, referred to in *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 18.

⁷⁰ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 31.

⁷¹ See e.g. *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 445–451, 462–473.

⁷² See as an early example *Situation in the Democratic Republic of the Congo*, ICC-01/04-168 OA3, Judgment on the Prosecutor's Application for Extraordinary Review of Pre-Trial Chamber I's 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, ICC Appeals Chamber, 13 July 2006, paras. 33–34.

⁷³ In civil law jurisdictions, such as e.g. in Germany, the appellants are not required by law to further substantiate an alleged error of law if it concerns the material law ('Sachruege'); see Germany Strafprozeßordnung, § 344.

⁷⁴ *Prosecutor v. Anto Furundžija*, IT-95-17/1-A, Judgment, ICTY Appeals Chamber, 21 July 2000, para. 35. See also, e.g., *Prosecutor v. Kajelijeli*, ICTR-98-44A-A, Judgment, Appeals Chamber, 23 May 2005, para. 5 (available under <https://www.legal-tools.org/doc/2b7d1c/>); *Prosecutor v. Vasiljević*, IT-98-32-A, Judgment, ICTY Appeals Chamber, 25 February 2004, para. 6.

the entitlement to that relief, an appellant may be said to bear a burden of persuasion⁷⁵. Hence, it has been said that:

‘[A] party who submits that the Trial Chamber erred in law must at least identify the alleged error and advance some arguments in support of its contention. An appeal cannot be allowed to deteriorate into a guessing game for the Appeals Chamber. Without guidance from the appellant, the Appeals Chamber will only address legal errors where the Trial Chamber has made a glaring mistake. If the party is unable to at least identify the alleged legal error, he or she should not raise the argument on appeal. It is not sufficient to simply duplicate the submissions already raised before the Trial Chamber without seeking to clarify how these arguments support a legal error allegedly committed by the Trial Chamber’⁷⁶.

The ICTY/ICTR Appeals Chambers, including the ICTR MICT Appeals Chamber⁷⁷, have 30 established, as part of their long-standing case law⁷⁸, clear requirements to which appellants must adhere in raising their arguments; if not the Appeals Chamber may exercise their inherent discretion to dismiss arguments without considering their merits (‘summary dismissal’)⁷⁹. The parties are expected to provide focused contributions and to present their case ‘clearly, logically, and exhaustively’, by precisely referring to ‘relevant transcript pages or paragraphs in the decision or document to which the challenges are being made’. Arguments that are ‘obscure, contradictory, vague or suffer from other formal and obvious insufficiencies’ may be dismissed without the Appeals Chamber providing detailed reasoning⁸⁰.

Foremost with respect to **errors of fact**, the ICTY/ICTR Appeals Chambers have established certain ‘types of deficient submissions on appeal which need not be considered on the merits’ and allow them to summarily dismiss arguments⁸¹. Since the Appeals Chamber Judgment in *Prosecutor v. Dragomir Milošević*⁸², ten different reasons for summary dismissal have been mentioned, recently summarised as follows:

‘In particular the Appeals Chamber will dismiss without detailed analysis: (i) arguments that fail to identify the challenged factual findings, that misrepresent the factual findings or the evidence, or that ignore other relevant factual findings; (ii) mere assertions that the trial chamber must have failed to consider relevant evidence, without showing that no reasonable trier of fact, based on the evidence could have reached the same conclusion as the trial chamber did; (iii) challenges to factual findings on which a conviction does not rely, and arguments that are clearly irrelevant, that lend support to, or that are not inconsistent with the challenged findings; (iv) arguments that challenge a trial chamber’s reliance or failure to rely on one piece of evidence, without explaining why the conviction should not stand on the basis of the remaining evidence; (v) arguments contrary to common sense; (vi) challenges to factual findings where the relevance of the factual findings is unclear and has not been explained by the appealing party; (vii) mere repetition of arguments that were unsuccessful at trial without any demonstration that their rejection by the trial chamber constituted an error warranting the intervention of the Appeals Chamber; (viii) allegations based on material not on the record; (ix) mere assertions unsupported by any evidence, undeveloped assertions, or failure to articulate error; and (x) mere assertions that the trial chamber failed to give sufficient weight to evidence or failed to interpret evidence in a particular manner.’⁸³

⁷⁵ See, *Prosecutor v. Tadić*, IT-94-1-A, Decision on Appellant’s Motion for the Extension of the Time-Limit and Admission of Additional Evidence, Appeals Chamber, 15 Oct. 1998, para. 52.

⁷⁶ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 27. See also *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, paras. 43–48; *Prosecutor v. Milorad Krnojelac*, IT-07-25-A, Judgement, ICTY Appeals Chamber, 17 September 2003, para. 10.

⁷⁷ *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, paras. 22–23; *Prosecutor v. Augustin Ngirabatware v. The Prosecutor*, MICT-12-29-A, Judgement, MICT Appeals Chamber, 18 December 2014, paras. 11–12.

⁷⁸ See Staker, article 81, in O. Triffterer (ed.) *Commentary on the Rome Statute of the International Criminal Court*, Second Edition, mn 20.

⁷⁹ *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 22.

⁸⁰ *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 22, see also *Prosecutor v. Dragomir Milošević*, IT-98-29/1-A, Judgement, ICTY Appeals Chamber, 12 November 2009, para. 16.

⁸¹ *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 23.

⁸² *Prosecutor v. Dragomir Milošević*, IT-98-29/1-A, Judgement, ICTY Appeals Chamber, 12 November 2009, para. 17.

⁸³ *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 23.

- 31 The jurisprudence of the *ad hoc* tribunals is more specific and appears more limitative than that of the ICC, which is partly due to the *ad hoc* Tribunals' rich practice and a more precise delineation of the scope of the Appeals Chambers' review, especially in respect of factual errors. It is likely that the ICC Appeals Chamber will build on this jurisprudence, as it did, in essence, in the first final appeal judgments, in which it dismissed as unsubstantiated many factual submissions. However, in establishing any strict substantiation requirements, it needs to be kept in mind that under the ICC legal assistance scheme – or that of other international criminal tribunals – counsel need not have specialised in appeal proceedings. In some national jurisdictions, however, only **specialised lawyers** with specific certificates may address the highest judicial bodies, which facilitates not only the work of the court but also ensures that justified claims are likely to overcome formal hurdles. Having high pleading requirements may therefore make it advisable to include in the defence team, according to the legal assistance scheme, lawyers who are specialised in that specific area of law, or to take other compensatory measures⁸⁴.
- 32 **b) The 'waiver' principle.** The ICTY Appeals Chamber has said in the context of justifying the 'corrective' nature of appeal proceedings that:

'The appeal process of the International Tribunal is not designed for the purpose of allowing parties to remedy their own failings or oversights during trial or sentencing.'⁸⁵

Accordingly, parties are, in general, under an obligation to raise all relevant issues before the Trial Chamber. The Appeals Chamber of the ICTY has held that:

'The Appeals Chamber accepts that, as a general principle, a party should not be permitted to refrain from making an objection to a matter which was apparent during the course of the trial and to raise it only in the event of an adverse finding against that party.'⁸⁶

The same principle has been recognised by the ICTR Appeals Chamber⁸⁷ and has in essence been referred to as one reason for dismissing a ground of appeal by the ICC Appeals Chamber in its first final appeal judgment.⁸⁸

Thus, if a party fails to raise any **objection** to a particular issue before the Trial Chamber, in the absence of any special circumstances, the party is to be taken as having waived its right to present the issue as a valid ground of appeal. A concomitant of this principle is that the accused cannot raise a defence for the first time on appeal⁸⁹. The principle is based in part on judicial economy: if an issue is raised and dealt with at trial, an unnecessary appeal, with the ensuing possibility of a subsequent retrial, may be avoided. The Appeals Chamber has also

⁸⁴ Interesting in this context is the appeal of Kaing Guek Eav before the ECCC, who had dismissed his international co-lawyer and instead chose two national (Cambodian) co-lawyers; the Defence Support Section's amicus curiae requests that were meant to strengthen his defence were rejected by the Supreme Court Chamber; see *Case of Kaing Guek Eav (Case 001)*, 001/18-07-2007-ECCC/SC, Appeal Judgement, 3 February 2012, Annex 1, paras. 19–23.

⁸⁵ *Erdemović* Appeal Judgement, IT-96-22-A, 7 October 1997, para. 15; *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 408 (available under <http://www.legal-tools.org/doc/c6a5d1/>).

⁸⁶ *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 640 (referring to earlier case law) (also see at para. 351). See also *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 61 (available under <http://www.legal-tools.org/doc/029a09/>); *Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, paras. 21–22 (available under <http://www.legal-tools.org/doc/94b2f8/>). The waiver principle applies also to appeals against sentence: *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15 (available under <http://www.legal-tools.org/doc/8aae45/>).

⁸⁷ *Kambanda v. Prosecutor*, ICTR-97-23-A, Judgement, ICTR Appeals Chamber, 19 October 2000, paras. 25–28, 55 (available under <http://www.legal-tools.org/doc/9d7f75/>); *Kayishema and Ruzindana* Appeal Judgement, para. 91; *Musema v. Prosecutor*, ICTR-96-13-A, Judgement, Appeals Chamber, 6 November 2001, paras. 127, 341 (available under <https://www.legal-tools.org/doc/6a3fce/>).

⁸⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, 135.

⁸⁹ *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, para. 51 (available under <http://www.legal-tools.org/doc/176f05/>).

indicated that it may be difficult for it to determine precisely what prejudice has been caused to a party if the objection was not raised before the Trial Chamber⁹⁰.

Nevertheless, it appears that the ICTY/ICTR Appeals Chambers have, in exceptional cases, 33 not applied the waiver principle⁹¹.

3. Grounds of appeal and standards of review on appeal

a) **Procedural error vs. error of law.** The ICC Appeals Chamber has held in relation to 34 procedural errors ‘that they may occur in the proceedings leading up to an impugned decision’ and clarified that such errors may be based on ‘events which occurred during the trial proceedings and pre-trial proceedings’⁹². As set out above⁹³, the ICTY/ICTR Statutes do not itemise the ‘procedural’ error. Instead, errors relevant to the procedure have been addressed under the heading ‘error of law’. Hence, the ICTY/ICTY Appeals Chambers have not strictly distinguished between procedural errors and errors of law. **Lack of reasoning** in an impugned decision has been labeled as ‘error of law’ and would also be considered by the ICC Appeals Chamber as an error of law, if the ICC Appeals Chamber limited procedural errors also in future only to those errors that are ‘leading up to an impugned decision’⁹⁴. If this remained the distinguishing criterion between procedural errors and errors of law, the difference between the errors would be of a descriptive nature and would accordingly lie in whether errors relate to the proceedings leading up to the impugned decision or whether they concern the impugned decision itself. To give an example, an alleged error in a decision accepting *amicus curiae* observations included by the first-instance Chamber in the impugned decision, would be characterised as a procedural error and not fall within the category of an error of law.⁹⁵

⁹⁰ *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 641.

⁹¹ In the *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, paras. 51–56, the Appeals Chamber considered a defence raised by a convicted person for the first time on appeal, but very quickly concluded that the new defence had no merit. In *Kambanda v. Prosecutor*, ICTR-97-23-A, Judgement, ICTR Appeals Chamber, 19 October 2000, para. 55, the Appeals Chamber said that it was important for it to consider certain issues raised for the first time on appeal ‘as this is the Chamber of last resort for the Appellant facing life imprisonment ...’, and as the issues raised in this case are of general importance to the work of the Tribunal’. See also *Kamuhanda v. Prosecutor*, ICTR-99-54A-A, Judgement, Appeals Chamber, 19 Sep. 2005, paras. 21–23 (available under <http://www.legal-tools.org/doc/bd4762/>); *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision (Prosecutor’s Request for Review or Reconsideration), Appeals Chamber, 31 March 2000, Separate Opinion of Judge Shahabuddeen, para. 52 (‘Clearly, if the new defence was sound in law and convincing in fact, it would have to be entertained in the higher interests of justice notwithstanding the general rule’). See also *Prosecutor v. Simić*, IT-95-9-A, Judgement, Appeals Chamber, 28 November 2006, para. 25 (available under <https://www.legal-tools.org/doc/28524b/>) (accepting the general principle, but adding ‘... that the importance of the right of an accused to be informed of the charges against him and the possibility that he will incur serious prejudice if material facts crucial to the Prosecution are communicated for the first time at trial suggest that the waiver doctrine should not entirely foreclose an accused from raising an indictment defect for the first time on appeal’, that where ‘an appellant raises a defect in the indictment for the first time on appeal, he bears the burden of proving that his ability to prepare his defence was materially impaired’ and that when an accused has previously raised the issue of lack of notice before the Trial Chamber, the burden rests on the Prosecution to prove on appeal that the ability of the accused to prepare a defence was not materially impaired. See further *id.*, paras. 56–74, but see the dissenting opinion of Judge Shahabuddeen. On this point, see also *Prosecutor v. Bagosora et al.*, ICTR-98-41-AR73, Decision on Aloys Ntabakuze’s Interlocutory Appeal on Questions of Law Raised by the 29 June 2006 Trial Chamber I Decision on Motion for Exclusion of Evidence, Appeals Chamber, 18 Sep. 2006, para. 42 (available under <http://www.legal-tools.org/doc/13214f/>).

⁹² *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 20, making reference to *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-408 OA3, Judgment on the appeal of the Defence against the ‘Decision on the admissibility of the case under article 19 (1) of the Statute’ of 10 March 2009, ICC Appeals Chamber, 16 September 2009, paras. 46–47.

⁹³ See mn 26–27.

⁹⁴ On lack of reasoning, see mn 54–55.

⁹⁵ See *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-321 OA2, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I on jurisdiction and stay of proceedings, ICC Appeals Chamber, 12 December 2012, para. 36 (‘as both errors pertain to the procedure based on a challenge to

Having this in mind, both categories of errors may relate to violations of the **rights of the accused** or of **fair trial** requirements. In addition, both errors need to also ‘materially affect’ the impugned decision as clarified by article 83, para. 2 and the ICC Appeals Chamber⁹⁶. The main distinction lies, as in the practice of the ICTY/ICTR Appeals Chambers, in the **higher substantiation requirements** for procedural errors and the concomitant scope of review that is more limited. As indicated above⁹⁷, the appellant needs to refer to the record of the proceedings in order to substantiate the alleged error and to explain why the alleged error in the proceedings materially affected the impugned decision by showing that, ‘in the absence of the procedural error, the judgment would have substantially differed from the one rendered’⁹⁸. Furthermore, the ‘waiver’ principle is more relevant to procedural errors than to legal errors in the impugned decision itself.

- 35 An alternative way of addressing this matter is that proposed in the previous editions of this commentary on article 81, suggesting that procedural errors fall into two categories – those relevant to the non-compliance with mandatory procedural requirements of the Statute and the Rules including the rights of the accused on the one hand and those relevant to the exercise of discretion on the other.⁹⁹ Accordingly, while not clearly stipulated in those editions, errors of law alleged in decisions under article 74 would only be those relevant to the substantive law of the Court (the crimes and the individual criminal responsibility), while other errors would be defined as procedural errors; a distinction that would allow for a better categorisation of the different errors. However, different from the distinguishing criterion discussed under mn 34, such distinction would not be applicable to article 82 appeals as they usually address errors relevant to the ICC’s procedural law, to the ICC’s jurisdictional limits and interim release provisions. In addition, legal errors in sentencing may e.g. be those relevant to the Trial Chamber’s application of rule 145(1)(c) RPE.¹⁰⁰ Accordingly, such distinction would solely provide assistance in distinguishing between procedural and legal errors for the purposes of appeals against a conviction or an acquittal.

Below, errors relevant to the exercise of the Trial Chamber’s discretion are discussed under the heading ‘procedural errors’, even though such errors might – depending on the distinguishing criterion that is applied – fall within the category of ‘errors of law’¹⁰¹. In addition, having a good perception of errors arising in exercising discretion is also essential to ‘errors of fact’. Errors relevant to the rights of the accused and a fair trial are discussed separately, as they establish arguably a separate (sub-)category of errors. See mn 59 to 63.

- 36 **b) Error of law.** The error of law, as an error distinct from a procedural error, endows the Appeals Chamber with a **broad scope of review**. As discussed above, the Appeals Chamber in determining whether the Trial Chamber erred in its legal analysis is **not bound by the arguments** of the parties or the considerations of the Trial Chamber but will arrive at its own conclusions as to the appropriate law¹⁰². When the Appeals Chamber finds that the Trial Chamber committed such an error, the Appeals Chamber needs to decide whether this error had repercussions on the Trial Chamber’s overall conclusions (**material effect**). As to the material effect, the ICC Appeals Chamber held:

the jurisdiction of the Court pursuant to article 19 (2) of the Statute, they can be raised as errors in an appeal pursuant to articles 19 (6) and 82 (1) (a) of the Statute.’).

⁹⁶ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 20.

⁹⁷ See mn 28.

⁹⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 20.

⁹⁹ Staker, *article 18*, in: O. Triffterer (ed.) *Commentary on the Rome Statute of the International Criminal Court*, (2nd edition), paras. 23–27.

¹⁰⁰ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3122 A4 A6, Judgment on the appeals of the Prosecutor and Mr Thomas Lubanga Dyilo against the ‘Decision on Sentence pursuant to Article 76 of the Statute, 1 December 2014, para. 50.

¹⁰¹ In particular in respect of appeals under article 82 that often relate to discretionary decisions of the Pre-Trial or Trial Chamber.

¹⁰² See mn 29.

'A judgment is 'materially affected by and error of law' if the Trial Chamber 'would have rendered a judgment that is substantially different from the decision that was affected by the error, if it had not made the error'.¹⁰³

With respect to article 81 appeals, it is worth noting that the Trial Chamber's overall conclusions are usually a combination of factual and legal findings, because the Trial Chamber must assess, on the basis of the Trial Chamber's prior legal analysis, whether its factual findings fall under the elements of the crime and the modes of liability charged. Accordingly, the Appeals Chamber often needs to analyse whether the Trial Chamber's factual findings meet the correct(ed) legal standard. The Appeals Chamber would confirm the impugned decision if the Trial Chamber's factual findings (as they stand after the Appeals Chamber's consideration of the related factual errors) met the correct(ed) legal standard and if the alleged legal errors did not materially affect the legal characterisation of the crime or form of responsibility. However, the Appeals Chamber would usually amend the impugned decision if the factual findings (as they stand after the Appeals Chamber's consideration of the related factual errors) met the correct(ed) legal standard and if this legal standard related to a different crime or form of responsibility than that entered by the Trial Chamber¹⁰⁴.

If the Trial Chamber's factual findings (as they stand after the Appeals Chamber's consideration of the related factual errors) did not meet the correct(ed) legal standard, the error would usually materially affect the impugned decision. In that case, the Appeals Chamber needs to consider on the basis of the charges and the case as a whole whether to reverse and acquit on this charge, whether to reverse and order the hearing of evidence (or hear evidence itself), whether to reverse and order a new trial, or whether it falls within its scope of review to substitute its **own factual conclusions** for those of the Trial Chamber on the basis of a (limited) re-assessment of the evidence that had been presented before the Trial Chamber¹⁰⁵. The ICC Appeals Chamber did not need to directly approach this matter yet. However, the ICTY/ICTR Appeals Chambers have, in respect of final appeals, **case law** on that question:

'Where the Appeals Chamber finds that there is an error of law in the trial judgement arising from the application of the wrong legal standard, the Appeals Chamber will articulate the correct legal standard and review the relevant factual findings of the trial chamber accordingly. In so doing, the Appeals Chamber not only corrects the error of law, but when necessary applies the correct legal standard to the evidence contained in the trial record and determines whether it is itself convinced beyond reasonable doubt as to the factual finding challenged by the appellant before that finding is confirmed on appeal. The Appeals Chamber will not review the entire record *de novo*. Rather, it will in principles only take into account evidence referred to by the trial chamber in the body of the judgment or in a related footnote, evidence contained in the trial record and referred to by the parties, and, where applicable, additional evidence admitted on appeal.'¹⁰⁶

¹⁰³ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-295 OA2, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber IV of 12 September 2011 entitled 'Reasons for the Order on translation of witness statements (ICC-02/05-03/09-199) and additional instructions on translation', ICC Appeals Chamber, 17 February 2012, para. 20, referred to in *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 18; see also *Democratic Republic of the Congo*, ICC-01/04-169 OA, Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, 13 July 2006.

¹⁰⁴ See Staker and Eckelmans, *article 83*, mn 7, 9; this is in fact a reversal followed by an amendment. Whether this is possible on appeal and in line with the accused's right to be informed of the charges, depends on the charges that were at issue on trial.

¹⁰⁵ See Staker and Eckelmans, *article 83*, mn 7-9.

¹⁰⁶ *Prosecutor v. Vujadin Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para 18, by reference to *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para. 15; *Prosecutor v. Dario Kordić and Mario Čerkez*, IT-05-14/2-A, Judgement, ICTY Appeals Chamber, 17 December 2004, para. 17; see also *Prosecutor v. Stakić*, IT-97-24-A, Judgement, Appeals Chamber, 22 March 2006, paras. 9, 312 (but see the Partly Dissenting Opinion of Judge Shahabuddeen, paras. 2-7) (available under <http://www.legal-tools.org/doc/09f75f/>); the ICTR MICT has adopted this jurisprudence, see *Prosecutor v. Augustin Ngirabatware v. The Prosecutor*, MICT-12-29-A, Judgement, MICT Appeals Chamber, 18 December 2014, para. 9.

This case law seems to imply that, where there is a legal error, the Appeals Chamber may, within self-imposed limits, re-assess the evidence – and not merely legally reassess the factual conclusions of the Trial Chamber as they stand after the Appeals Chamber’s review. Accordingly, this jurisprudence implies that the Appeals Chamber may – to a degree – step into the shoes of the Trial Chamber, because the assessment of the evidence as well as entering findings beyond reasonable doubt usually are within the primary competence of a Trial Chamber. The appellant has a right to appeal against those findings¹⁰⁷. Arguably, the practice of the ICTY/ICTR Appeals Chambers shows that they have not yet found a common approach to this issue, not least because appeals differ in whether the appellant challenges the Trial Chamber’s underlying factual findings and alleges errors of fact in that respect. The different approaches extend not only to the role of the evidence in e.g. interpreting the (unchallenged) findings of the Trial Chamber,¹⁰⁸ but also to when this power is *not* applied leading e.g. to an acquittal.¹⁰⁹

- 38 In article 82 appeals, the ICC Appeals Chamber has followed different paths in dealing with an error of law. On many occasions, it did not find a legal error although it perhaps sharpened and implicitly corrected the Pre-Trial or Trial Chamber’s interpretation of the law. Accordingly it dismissed such appeals and confirmed the impugned decisions¹¹⁰. On other occasions, it remanded the case to the Pre-Trial or Trial Chamber when it determined that there was an error of law that materially affected the impugned decision¹¹¹. The first-instance Chambers were held to be in a better position, knowing fully the case before them, to apply the correct interpretation of the law to the specific facts. On some occasions, the ICC Appeals Chamber solely reversed the impugned decision without remanding the matter¹¹². In the first

¹⁰⁷ See mn 47; see also Staker and Eckelmans, *article* 83, mn 13.

¹⁰⁸ See e.g. *Prosecutor v. Seromba*, ICTR 2001 66A, Judgement, ICTR Appeals Chamber, paras. 161, 162, 163, that held that this means that, ‘the law should be applied to the factual findings of the Trial Chamber, taken as a whole. ... In cases of ambiguity reference may be made, pursuant to Rules 109 and 118(A) of the Rules, to the record on appeal.’ (para. 162); see also Book, *Appeal and Sentence in International Criminal Law* (2011), p. 248;

¹⁰⁹ *Prosecutor v. Ante Gotovina and Mladen Markač*, IT-06-90-A, Judgement, Appeals Chamber, 16 November 2012, Dissenting Opinion of Judge Agius, paras. 5–27, 83–90, see also Dissenting Opinion of Judge Pocar, paras. 13–14 (concentrating on the legal error); see also Staker and Eckelmans, *article* 81, para. 7.

¹¹⁰ See e.g. *Prosecutor v. Germain Katanga*, ICC-01/04-01/07-3363 OA13, Judgment on the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 21 November 2012 entitled ‘Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons’, Appeals Chamber, 27 March 2013 (available under <https://www.legal-tools.org/fr/doc/9d87d9/>), paras. 48–58; *Prosecutor v. Laurent Koudou Gbagbo*, ICC-02/11-01/11-321 OA2, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I on jurisdiction and stay of the proceedings, 12 December 2012, paras 72–84; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1432 OA9 OA10, Judgment on the appeals of The Prosecutor and The Defence against Trial Chamber I’s Decision on Victim Participation of 18 January 2008, 11 July 2008, paras 107, 109.

¹¹¹ See e.g. *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-501 OA4, Judgment on the appeal of Mr Abdallah Banda Abakaer Nourain and Mr Saleh Mohammed Jerbo Jamus against the decision of Trial Chamber IV of 23 January 2013 entitled ‘Decision on the Defence’s Request for Disclosure of Documents in the possession of the Office of the Prosecutor’, 28 August 2013, para. 46; ICC-02/05-03/09-295 OA2, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber IV of 12 September 2011 entitled ‘Reasons for the Order on translation of witness statements (ICC-02/05-03/09-199) and additional instructions on translation’, 17 February 2012, para. 28; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-365 OA3, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II dated 20 July 2011 entitled ‘Decision with Respect to the Question of Invalidating the Appointment of Counsel to the Defence’, 10 November 2011, paras 71–72; *Prosecutor v. Germain Katanga*, ICC-01/04-01/07-522 OA3, Judgment on the appeal of Mr Germain Katanga against the decision of Pre-Trial Chamber I entitled ‘Decision on the Defence Request Concerning Languages’, 27 May 2008, para. 69 with Dissenting Opinion of Judge Pikis on this issue.

¹¹² *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1386 OA5 OA6, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled ‘Decision on the admission of evidence of materials contained in the prosecution’s list of evidence’, 3 May 2011, para. 82; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2205 OA15 OA16, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled ‘Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court’, 8 December 2009, para. 112; see also Staker

reparation proceedings in the *Lubanga* case, the ICC Appeals Chamber amended the Trial Chamber's reparation order upon finding several errors¹¹³.

In relation to the standard of review to be applied in case where there is both an error of law and an alleged error of fact ('**mixed errors of fact and law**'), the ICTY Appeals Chamber has said that it will first examine the applicable law and then determine whether the factual conclusion of the Trial Chamber was one which no reasonable trier of fact could have reached¹¹⁴.

The proper **substantiation** of such combined errors is of particular difficulty. Not only should the appellant explain – to the high substantiation standards – where the factual error lies and how such an error affected the Trial Chamber's overall conclusion based on the Trial Chamber's – allegedly wrong – legal standard. But the appellant should also substantiate how the – allegedly correct – legal standard with and without the allegedly erroneous factual findings affected the overall conclusions. Problematic in respect of the latter is that the Appeals Chamber may possibly perceive the law in a slightly different way than the Trial Chamber on the one hand and the party or parties on the other.

c) **Procedural error.** As addressed above¹¹⁵, procedural errors pertain to the conduct of the trial proceedings. The management of the trial proceedings, however, is, except where **mandatory legal requirements** apply, within the **discretion** of the Trial Chamber that needs to take its decisions within the confines of the requirements of a **fair and expeditious trial** (article 64 (2)), respecting thereby the **rights of the accused** (article 67). The Trial Chamber's procedural decisions may also be based on its assessment of certain materials, e.g. in relation to disclosure, that may also lead to alleging **errors of fact** within a procedural error.

The ICC Appeals Chamber has held that the applicable **standard of review** with respect to **discretionary** decisions – be it in article 82 or article 81 (1) or (2) appeals – is:

'79. The Appeals Chamber will not interfere with the Pre-Trial Chamber's exercise of discretion [...] merely because the Appeals Chamber, if it had the power, might have made a different ruling. To do so would be to usurp powers not conferred on it and to render nugatory powers specifically vested in the Pre-Trial Chamber.

80. [...] [T]he Appeals Chamber's functions extend to reviewing the exercise of discretion by the Pre-Trial Chamber to ensure that the Chamber properly exercised its discretion. However, the Appeals Chamber will not interfere with the Pre-Trial Chamber's exercise of discretion [...], save where it is shown that that determination was vitiated by an error of law, an error of fact, or a procedural error, and then, only if the error materially affected the determination. This means in effect that the Appeals Chamber will interfere with a discretionary decision only under limited conditions. The jurisprudence of other international tribunals as well as that of domestic courts endorses this position. They identify the conditions justifying appellate interference to be: (i) where the exercise of discretion is based on an erroneous interpretation of the law; (ii) where it is exercised on patently incorrect conclusion of fact; or (iii) where the decision is so unfair and unreasonable as to constitute an abuse of discretion.'¹¹⁶

and Eckelmans, *article 83*, mn 13; *Situation in Darfur*, ICC-01/05-177 OA OA2 OA3, Judgment on victim participation in the investigation stage of the proceedings in the appeal of the OPCD against the decision of Pre-Trial Chamber I of 3 December 2007 and in the appeals of the OPCD and the Prosecutor against the decision of Pre-Trial Chamber I of 6 December 2007, 2 February 2009, para. 8.

¹¹³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3129 A A2 A3, Judgment on the appeals against the 'Decision establishing the principles and procedures to be applied to reparations' of 7 August 2012, 3 March 2015, see e.g. para. 76.

¹¹⁴ *Prosecutor v. Pavle Strugar*, IT-01-42-A, Judgement, ICTY Appeals Chamber, 17 July 2008, paras. 252, 269.

¹¹⁵ See mn 34–35.

¹¹⁶ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-408 OA3, Judgment on the appeal of the Defence against the 'Decision on the admissibility of the case under article 19 (1) of the Statute' of 10 March 2009, ICC Appeals Chamber, 16 September 2009, paras. 79–80; see *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307 OA, Judgment on the appeal of the Republic of Kenya against the decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', 30 August 2011, paras. 89–90; see also *Lubanga* Sentencing Judgment, ICC-01/04-01/06-3122 A4 A6, 1 December 2014, paras. 41–42, making this standard applicable to sentencing appeals.

- 42 The ICTY/ICTR Appeals Chambers apply a similar standard. They have held in relation to an alleged erroneous exercise of **discretion** by a Trial Chamber that the issue on appeal is not whether the decision is correct, in the sense that the Appeals Chamber agrees with that decision, but rather whether the Trial Chamber has correctly exercised its discretion in reaching that decision. Provided that the Trial Chamber has properly exercised its discretion, its decision will not be disturbed on appeal, even though the Appeals Chamber itself may have exercised discretion differently¹¹⁷. The test for determining whether the exercise of discretion by the Trial Chamber does or does not constitute an appealable error has been variously formulated, such as whether the Trial Chamber has ‘abused its discretion’¹¹⁸, or has ‘erred and exceeded its discretion’¹¹⁹, or whether the Trial Chamber’s discretion ‘miscarried’¹²⁰, or whether the Trial Chamber has committed a ‘discernible error’¹²¹, or whether the exercise of the discretion was ‘reasonably open’ to the Trial Chamber¹²². Deference to a Trial Chamber’s discretion is not only relevant to the conduct of the proceedings, but goes beyond that; it is also of the essence to understanding the Appeals Chamber’s more limited scope of review with regard to sentencing as well as with regard to errors alleged in the Trial Chamber’s factual determinations.

The applicable standard of review in respect of **trial management issues** at the *ad hoc* tribunals is:

‘It is well established in the jurisprudence of the International Tribunal that Trial Chambers exercise discretion in relation to trial management. The Trial Chamber’s decision in this case to reduce the time allocated to the Prosecution for the presentation of its evidence was a discretionary decision to which the Appeals Chamber accords deference. Such deference is based on the recognition by the Appeals Chamber of ‘the Trial Chamber’s organic familiarity with the day-to-day conduct of the parties and practical demands of the case.’ The Appeals Chamber’s examination is therefore limited to establishing whether the Trial Chamber has abused its discretionary power by committing a discernible error. The Appeals Chamber will only overturn a Trial Chamber’s exercise of its discretion where it is found to be ‘(1) based on an incorrect interpretation of governing law; (2) based on a patently incorrect conclusion of fact; or (3) so unfair or unreasonable as to constitute an abuse of the Trial Chamber’s discretion.’¹²³

- 43 A party alleging an error in the exercise of the Pre-Trial or Trial Chambers’ discretion carries a **high burden of substantiation**. The party must demonstrate that the Trial Chamber

¹¹⁷ See, e.g., *Prosecutor v. Milošević*, IT-02-54-AR73, Reasons for Refusal of Leave to Appeal from Decision to Impose Time Limit, Bench of the Appeals Chamber, 16 May 2002, para. 14 (available under <http://www.legal-tools.org/doc/1783bfl/>); *Bagosora et al. v. Prosecutor*, ICTR-98-41-A, Decision: Interlocutory Appeal from Refusal to Reconsider Decisions Relating to Protective Measures and Application for a Declaration of ‘Lack of Jurisdiction’, Bench of the Appeals Chamber, 2 May 2002, para. 10 (available under <http://www.legal-tools.org/doc/e88b00/>).

¹¹⁸ *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 533 (‘... the Appeals Chamber recalls that it also has the authority to intervene to exclude evidence, in circumstances where it finds that the Trial Chamber abused its discretion in admitting it’), and see also at para. 564 (finding that there was no abuse of discretion by the Trial Chamber in refusing to admit certain evidence, and in refusing to issue a subpoena that had been requested by a party at trial).

¹¹⁹ *Ibid.*

¹²⁰ *Ibid.*, para. 577.

¹²¹ See *Prosecutor v. Dragomir Milošević*, IT-98-29/1-A, Judgement, ICTY Appeals Chamber, 12 November 2009, para. 297, wherein it was held that to show a discernible error, the appellant must ‘demonstrate that the Trial Chamber gave weight to extraneous or irrelevant considerations, failed to give weight or sufficient weight to relevant considerations, made a clear error as to the facts upon which it exercised its discretion, or that the Trial Chamber’s decision was so unreasonable or plainly unjust that the Appeals Chamber is able to infer that the Trial Chamber must have failed to exercise its discretion properly’; see also *Prosecutor v. Alex Tamba Brima, Brima Bazzy Kamara and Santigie Borbor Kanu*, SCSL-2004-16-A, Judgment, SCSL Appeals Chamber, 22 February 2008, para. 309.

¹²² *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 274–275 (see also at para. 292, finding that the decision of the Trial Chamber not to exercise its discretion to grant an application was ‘open’ to the Trial Chamber).

¹²³ *Prosecutor v. Prlić et al.*, IT-04-74-AR73.4, Decision on prosecution appeal concerning the Trial Chamber ruling reducing time for the prosecution case, ICTY Appeals Chamber, 6 February 2007, para. 8; see also *Gaspard Kanyarukiga v. the Prosecutor*, ICTR-02-78-A, Judgement, ICTR Appeals Chamber, 8 May 2012, para. 26.

‘has misdirected itself either as to the principle to be applied, or as to the law which is relevant to the exercise of the discretion, or that it has given weight to extraneous or irrelevant considerations, or that it has failed to give weight or sufficient weight to relevant considerations, or that it has made an error as to the facts upon which it has exercised its discretion’¹²⁴, or that its decision was so unreasonable and plainly unjust that the Appeals Chamber is able to infer that the Trial Chamber must have failed to exercise its discretion properly¹²⁵.

Normally, the question whether the first-instance Chamber committed a procedural error can be determined by the Appeals Chamber from an examination of the pre-trial and trial record. However, a party may seek to introduce additional evidence on appeal to establish that a procedural error occurred at trial¹²⁶.

The ‘waiver’ principle is of particular importance to this category of errors,¹²⁷ insofar as the parties need to raise any issues – of which they are aware – during trial. The Rules provide certain opportunities for the parties to raise objections or observations relevant to the proceedings and require the Trial Chamber to address them.¹²⁸ They also preclude parties from raising matters relevant to the proceedings leading to the confirmation hearing after the start of the confirmation hearing or during trial.¹²⁹ Accordingly, it is doubtful whether such **Pre-Trial Chamber decision** may be the subject of a procedural error in a final appeal. Similarly, objections against the conduct of the trial preparation phase before the Trial Chamber need to be raised at the commencement of the trial, although the Trial Chamber may, and this is also within its discretion, decide to address such issues later.¹³⁰

The ICC Appeals Chamber has not yet resolved whether a party is required to seek leave to appeal against procedural decisions pursuant to article 82, para. 1(d) in order to be able to raise an error in this decision later on appeal. It is noted in this context that the legal texts do not require the parties to seek leave to appeal and that such a requirement would most likely raise the workload of the Trial Chamber in dealing with requests for leave to appeal and may therefore distort the expeditiousness of the proceedings. Where leave to appeal has been granted and the Appeals Chamber decided the appeal on the merits, this matter should be considered *res judicata* and preclude the parties from raising it again in a final appeal.

d) Error of fact. aa) Introduction. There are two main types of errors of fact. The first is where it is alleged that the Trial Chamber erred in reaching the conclusions of fact that it did on the basis of the evidence that was before it (see mn 47–58). The second is where the Trial Chamber was justified in reaching the factual conclusions it did on the evidence presented at trial, but where additional evidence presented on appeal casts doubt on those findings (see mn 59–63).

bb) Error of fact based on the unreasonableness of the Trial Chamber’s decision. In cases where an appellant claims that the Trial Chamber reached erroneous conclusions of

¹²⁴ *Prosecutor v. Milošević*, IT-99-37-AR73, Reasons for Decision on Prosecution Interlocutory Appeal from Refusal to Order Joinder, Appeals Chamber, 18 April 2002, para. 5 (also available under <http://www.legal-tools.org/doc/201a8d/>). See also *Prosecutor v. Milošević*, IT-02-54-AR73.6, Decision on the Interlocutory Appeal by the *Amici Curiae* Against the Trial Chamber Order Concerning the Presentation and Preparation of the Defence Case, Appeals Chamber, 20 January 2004, para. 7 (available under <http://www.legal-tools.org/doc/8220bc/>); *Prosecutor v. Bizimungu*, ICTR-99-50-AR50, Decision on Prosecutor’s Interlocutory Appeal Against Trial Chamber II Decision of 6 October 2003 Denying Leave to File Amended Indictment, Appeals Chamber, 12 February 2004, para. 11 (available under <http://www.legal-tools.org/doc/f25a2c/>); *Prosecutor v. Karemera*, ICTR-98-44-AR73, Decision on Prosecutor’s Interlocutory Appeal Against Trial Chamber III Decision of 8 October 2003 Denying Leave to File Amended Indictment, Appeals Chamber, 19 December 2003, para. 9 (available under <https://www.legal-tools.org/doc/381737/>).

¹²⁵ *Cf. Prosecutor v. Međaković et al.*, IT-02-65-AR11Bis, Decision on joint defence appeal against decision on referral under rule 11bis, 7 April 2006, para. 10.

¹²⁶ *Cf. Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 620–623; *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 60.

¹²⁷ See, mn 32–33.

¹²⁸ See rules 134(2), (3) RPE.

¹²⁹ Rule 122(4) RPE.

¹³⁰ See rule 134(2) RPE.

fact on the evidence before it, the ICTY/ICTR Appeals Chambers have held that they will not conduct an independent assessment of the evidence admitted at trial, or undertake a *de novo* review of the evidence¹³¹. The standard of review on appeal for an error of fact of this type has been articulated by the ICTY Appeals Chamber as follows:

‘Pursuant to the jurisprudence of the Tribunal, the task of hearing, assessing and weighing the evidence presented at trial is left primarily to the Trial Chamber. Thus, the Appeals Chamber must give a margin of deference to a finding of fact reached by a Trial Chamber. Only where the evidence relied on by the Trial Chamber could not have been accepted by any reasonable tribunal of fact or where the evaluation of the evidence is ‘wholly erroneous’ may the Appeals Chamber substitute its own finding for that of the Trial Chamber. It must be borne in mind that two judges, both acting reasonably, can come to different conclusions on the basis of the same evidence.

It is initially the Trial Chamber’s task to assess and weigh the evidence presented at trial. In that exercise, it has the discretion to ‘admit any relevant evidence which it deems to have probative value’, as well as to exclude evidence ‘if its probative value is substantially outweighed by the need to ensure a fair trial.’ As the primary trier of fact, it is the Trial Chamber that has the main responsibility to resolve any inconsistencies that may arise within and/or amongst witnesses’ testimonies. It is certainly within the discretion of the Trial Chamber to evaluate any inconsistencies, to consider whether the evidence taken as a whole is reliable and credible and to accept or reject the ‘fundamental features’ of the evidence. The presence of inconsistencies in the evidence does not, per se, require a reasonable Trial Chamber to reject it as being unreliable. Similarly, factors such as the passage of time between the events and the testimony of the witness, the possible influence of third persons, discrepancies, or the existence of stressful conditions at the time the events took place do not automatically exclude the Trial Chamber from relying on the evidence. However, the Trial Chamber should consider such factors as it assesses and weighs the evidence.

The reason that the Appeals Chamber will not lightly disturb findings of fact by a Trial Chamber is well known. The Trial Chamber has the advantage of observing witnesses in person and so is better positioned than the Appeals Chamber to assess the reliability and credibility of the evidence. Accordingly, it is primarily for the Trial Chamber to determine whether a witness is credible and to decide which witness’ testimony to prefer, without necessarily articulating every step of the reasoning in reaching a decision on these points. This discretion is, however, tempered by the Trial Chamber’s duty to provide a reasoned opinion, following from Article 23(2) of the Statute.¹³²

In other words, in an appeal against conviction, the Appeals Chamber does not determine whether it is *itself* satisfied beyond a reasonable doubt of the guilt of the accused. Rather, it applies a ‘**deferential standard**’ of review, under which it must decide whether a no reasonable Trial Chamber *could* have been satisfied beyond reasonable doubt as to the finding in question¹³³. In addition, the Appeals Chamber must determine whether the error of fact occasioned a miscarriage of justice.

This same standard of unreasonableness, and the same deference to factual findings of the Trial Chamber, applies also when the Prosecution appeals against an **acquittal**¹³⁴. However, the ICTY Appeals Chamber has said that:

¹³¹ E.g., *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 203–204.

¹³² *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, paras. 30–32 (footnotes omitted), referring to prior case law of the ICTY.

¹³³ See *Prosecutor v. Vujadin Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 19; *Prosecutor v. Augustin Ndirabatware v. The Prosecutor*, MICT-12-29-A, Judgement, MICT Appeals Chamber, 18 December 2014, para. 10; see also *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para. 22. In making this determination, ‘[t]he Appeals Chamber does not review the entire trial record *de novo*; in principle, it only takes into account evidence referred to by the Trial Chamber in the body of the judgement or in a related footnote, evidence contained in the trial record and referred to by the parties, and additional evidence admitted on appeal, if any’ (available under <http://www.legal-tools.org/doc/88d8e6/>).

¹³⁴ *Prosecutor v. Radoslav Brđanin*, IT-00-36-A, Judgement, ICTY Appeals Chamber, 3 April 2007, para. 14; *Prosecutor v. Fatmir Limaj et al.*, IT-03-66-A, Judgement, ICTY Appeals Chamber, 27 September 2007, para. 13; *Prosecutor v. Sefar Halilović*, IT-01-48-A, Judgement, ICTY Appeals Chamber, 16 October 2007, para. 11; *Prosecutor v. Vidjoe Blagojević and Dragan Jokić*, IT-02-60-A, Judgement, ICTY Appeals Chamber, 9 May 2007, para. 9.

‘since the Prosecution must establish the guilt of the accused at trial, the significance of an error of fact occasioning a miscarriage of justice takes on a specific character when alleged by the Prosecution. This is because it has the more difficult task of showing that there is no reasonable doubt about the appellant’s guilt when account is taken of the Trial Chamber’s errors of fact.’¹³⁵

Hence, considering that the Prosecutor bears the burden of proof in a trial, it held that the Prosecutor need to show that all reasonable doubt of the accused’s guilt has been eliminated.¹³⁶ Accordingly, the ICTY Appeals Chamber held with respect to acquittal appeals that ‘it will reverse only if it finds that no reasonable trier of fact could have failed to make the particular finding of fact beyond reasonable doubt and the acquittal relied on the absence of this finding’¹³⁷.

The ICC Appeals Chamber has adopted the ICTY/ICTR Appeals Chambers’ jurisprudence 48 on the review of errors of fact in its first final appeal judgments, holding:

‘when a factual error is alleged, the Appeals Chamber will determine whether a reasonable Trial Chamber could have been satisfied beyond reasonable doubt as to the finding in question. The Appeals Chamber will not assess the evidence *de novo* with a view to determining whether it would have reached the same factual conclusion as the Trial Chamber.’¹³⁸

According to the Appeals Chamber’s jurisprudence on article 82 appeals, factual errors have to meet the following standard of review:

‘Regarding factual errors, the Appeals Chamber has held that it will not interfere with factual findings of the first-instance Chamber unless it is shown that the Chamber committed a clear error, namely, misappreciated the facts, took into account irrelevant facts, or failed to take into account relevant facts. As to the ‘misappreciation of facts’, the Appeals Chamber has also stated that it ‘will not disturb a Pre-Trial or Trial Chamber’s evaluation of the facts just because the Appeals Chamber might have come to a different conclusion. It will interfere only in the case where it cannot discern how the Chamber’s conclusion could have reasonably been reached from the evidence before it.’¹³⁹

While the Statute does not spell out that a factual error should occasion a ‘miscarriage of 49 justice’, as the ICTY/ICTR Statutes do, article 83, para. 2 clarifies that it needs to materially affect the impugned decision. This sounds on the face of it like a lesser standard than that of a ‘miscarriage of justice’, but this remains to be seen on the basis of future case law.

The ICTY/ICTR jurisprudence stipulates in the following terms that the alleged factual 50 error can relate to any finding relevant to the case:

‘... a trier of fact is called upon to make findings beyond reasonable doubt based on all of the evidence on the trial record – direct or circumstantial – not only on facts which are essential to proving the elements of the crimes and the forms of responsibility. There might be other facts that need to be proven beyond reasonable doubt due to the way in which the case was pleaded in the indictment and presented during trial to the Defence and to the Trial Chamber. All facts underlying

¹³⁵ *Prosecutor v. Milorad Krnojelac*, IT-07-25-A, Judgement, ICTY Appeals Chamber, 17 September 2003, para. 14; also *Georges Anderson Nderubumwe Rutaganda v. The Prosecutor*, ICTR-96-3-A, Judgement, ICTR Appeals Chamber, 6 May 2003, para. 24.

¹³⁶ *Georges Anderson Nderubumwe Rutaganda v. The Prosecutor*, ICTR-96-3-A, Judgement, ICTR Appeals Chamber, 6 May 2003, para. 24; *Prosecutor v. Fatmir Limaj et al.*, IT-03-66-A, Judgement, ICTY Appeals Chamber, 27 September 2007, para. 13.

¹³⁷ *Prosecutor v. Vidjoe Blagojević and Dragan Jokić*, IT-02-60-A, Judgement, ICTY Appeals Chamber, 9 May 2007, para. 9; see also with respect to rule 98bis(B) RPE appeals: *Prosecutor v. Jelisić*, IT-95-10-A, Judgement, ICTY Appeals Chamber, 5 July 2001, stating ‘thus the test is not whether the trier would in fact arrive at a conviction beyond reasonable doubt on the prosecution evidence ... but whether it could’; this standard has been accepted by the ICC Appeals Chamber, see *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-271-Corr A, Judgement on the Prosecutor’s appeal against the decision of Trial Chamber II entitled ‘Judgment pursuant to article 74 of the Statute’, 7 April 2015, para. 26.

¹³⁸ *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 27.

¹³⁹ *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 21; making reference *inter alia* to *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307 OA, Judgement on the appeal of the Republic of Kenya against the decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, 30 August 2011, para. 56.

the elements of the crime or the form of responsibility alleged as well as all those, which are indispensable for entering a conviction, must be proven beyond reasonable doubt.¹⁴⁰

- 51 This conveys that every fact that is necessary to establishing the **elements of the crime and the individual criminal responsibility** of the accused needs to be proved beyond reasonable doubt, even if a certain fact only leads indirectly to the conclusion that a certain other fact (e.g. the death of a person, a certain state of mind) existed. In respect of such **circumstantial evidence**, the ICTY Appeals Chamber has held:

‘The Appeals Chamber also recalls that, in order to successfully challenge the trial chamber’s assessment of circumstantial evidence on appeal, an appellant must show that no reasonable trier of fact could have found that the conclusion reached by the trial chamber was the only reasonable inference.’¹⁴¹

- 52 The ICTY/ICTR Appeals Chambers have also consistently said that a Trial Chamber is entitled to rely, in relation to a crucial fact, on the **uncorroborated testimony** of a single witness¹⁴². However, a reasonable Trial Chamber must take into account the difficulties associated with identification evidence in a particular case and must carefully evaluate any such evidence, before accepting it as the sole basis for sustaining a conviction¹⁴³.
- 53 **Substantiating** a factual error requires the appellant to show that the Trial Chamber’s finding was unreasonable and that this had a material effect on the impugned decision. The Appeals Chambers have taken these requirements very seriously and have dismissed allegations that do not adhere to these requirements without considering, even partly, their merits¹⁴⁴. In that context, it is of the essence for the appellant to demonstrate that the overall conclusion of the Trial Chamber is based, at least to an essential part, on the allegedly erroneous factual finding. Where a plurality of factual errors is alleged that may only as a whole have a material effect on the impugned decision, an appellant may best allege one ground of appeal with different sub-sets of errors, setting out precisely their interrelation and the effect on the overall conclusions of the Trial Chamber.
- 54 Arguably, it is difficult to substantiate a ground of appeal if the Trial Chamber’s factual findings and conclusions are not properly **reasoned**. The Appeals Chamber’s task to review such findings is also harder in such a situation. According to the jurisprudence of the *ad hoc* tribunals, lack of reasoning should be alleged as a separate error, be it a procedural error or an error of law.¹⁴⁵ In this context, it is noted that article 74 establishes as a compulsory requirement that the decision on guilt or innocence shall ‘contain a full and reasoned statement of the Trial Chamber’s findings on the evidence and conclusions’. The ICTY Appeals Chamber has held that proper reasoning is part of the fair trial requirements¹⁴⁶. In particular with respect to the requirements of a Trial Chamber’s decision on guilt or innocence, it held:

¹⁴⁰ *Prosecutor v. Sefar Halilović*, IT-01-48-A, Judgement, ICTY Appeals Chamber, 16 October 2007, para. 129; see also *Prosecutor v. Vasiljević*, IT-98-32-A, Judgement, ICTY Appeals Chamber, 25 February 2004, para. 131.

¹⁴¹ *Prosecutor v. Milan Lukić and Sredoje Lukić*, IT-98-32/1-A, Judgement, ICTY Appeals Chamber, 4 December 2012, para. 149.

¹⁴² *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, para. 65 (available under <http://www.legal-tools.org/doc/8efc3a/>); *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 492, 506; *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 33; *Georges Anderson Nderubumwe Rutaganda v. The Prosecutor*, ICTR-96-3-A, Judgement, ICTR Appeals Chamber, 6 May 2003, paras. 27–29; see also *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 218.

¹⁴³ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, paras. 34–40; see also *Prosecutor v. Milan Lukić and Sredoje Lukić*, IT-98-32/1-A, Judgement, ICTY Appeals Chamber, 4 December 2012, paras. 118–119 on the difference between identification and recognition witnesses and the requirements of a reasoned opinion.

¹⁴⁴ See mn 31.

¹⁴⁵ See mn 34, 35.

¹⁴⁶ *Prosecutor v. Enver Hadžihasanović and Amir Kubura*, IT-01-47-A, Judgement, ICTY Appeals Chamber, 22 April 2008, para. 13; *Prosecutor v. Anto Furundžija*, IT-95-17/1-A, Judgement, ICTY Appeals Chamber, 21 July 2000, para. 69.

‘With regard to legal findings, this obligation does not require a trial chamber to discuss at length all of the case-law of the International Tribunal on a given legal issue but only to identify the precedents upon which its findings are based. With regard to factual findings, a Trial Chamber is required only to make findings on those facts which are essential to the determination of guilt on a particular count. It is not necessary to refer to the testimony of every witness or every piece of evidence on the trial record. In short, a Trial Chamber should limit itself to indicating in a clear and articulate yet concise manner, which, among the wealth of jurisprudence available on a given issue and the myriad of facts that emerged at trial, are the legal and factual findings on the basis of which it reached the decision either to convict or acquit an individual. A reasoned opinion consistent with the guidelines provided here allows for a useful exercise of the right of appeal by the Parties and enables the Appeals Chamber to understand and review the Trial Chamber’s findings as well as its evaluation of the evidence.’¹⁴⁷

The ICTY/ICTR Appeals Chambers have said that if a judgment is too vague, they will 55 have to determine themselves whether they are satisfied beyond reasonable doubt in regard to the disputed finding¹⁴⁸. If an appellant omits to allege lack of reasoning as a separate error, the Appeals Chamber may wish to consider whether to nevertheless address it, be it implicitly when considering a related factual error.

cc) **Error of fact based on additional evidence presented on appeal.** The second type of 56 error of fact arises where the decision of the Trial Chamber based on the evidence presented at trial is perfectly reasonable, but is subsequently shown to be incorrect as a result of additional evidence presented on appeal¹⁴⁹. Strictly speaking, this is not an error of fact by the Trial Chamber, but the Appeals Chamber **adjusts** the Trial Chamber’s factual assessment within the limits of the admissibility of such evidence¹⁵⁰. The criteria for the admissibility of additional evidence are discussed below in Staker and Eckelmans, *article 83*, mn 45 to 58. The ICC Appeals Chamber did not yet express itself on its scope of review of the impugned decision on the basis of admitted additional evidence, because it did not admit additional evidence in its first final appeals¹⁵¹. However, the ICTY/ICTR Appeals Chambers have developed the following case law:

‘Where additional evidence has been admitted, the Appeals Chamber is then required to determine whether the additional evidence actually reveals an error of fact of such magnitude as to occasion a miscarriage of justice.’¹⁵²

‘... miscarriage of justice may ... be occasioned where the evidence before a Trial Chamber appears to be reliable but, in the light of additional evidence presented upon appeal, is exposed as unreliable. It is possible that the Trial Chamber may reach a conclusion of guilt based on the evidence presented at trial that is reasonable at the time... but, in reality, is incorrect.’¹⁵³

‘... The test to be applied by the Appeals Chamber in deciding whether or not to uphold a conviction where additional evidence has been admitted before the Chamber is: has the appellant

¹⁴⁷ *Prosecutor v. Enver Hadžihasanović and Amir Kubura*, IT-01-47-A, Judgement, ICTY Appeals Chamber, 22 April 2008, para. 13; *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgement, ICTY Appeals Chamber, 28 February 2005, para. 23; *Prosecutor v. Dario Kordić and Mario Čerkez*, IT-05-14/2-A, Judgement, ICTY Appeals Chamber, 17 December 2004, para. 382; *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 39; *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 498; *Prosecutor v. Kunarać et al.*, IT-96-23 and IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 41.

¹⁴⁸ *Ferdinand Nahimana et al v. The Prosecutor*, ICTR-99-52-A, Judgement, ICTR Appeals Chamber, 28 November 2007, para. 736; *Naletilić and Martinović Appeal Judgement*, para. 603; *Prosecutor v. Fatmir Limaj et al.*, IT-03-66-A, Judgement, ICTY Appeals Chamber, 27 September 2007, para. 81.

¹⁴⁹ See the discussion in *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, paras. 42–47.

¹⁵⁰ The purpose arguably being an alignment with the real events, i.e. the truth.

¹⁵¹ See *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 65–113; on the admissibility of additional evidence, see Staker and Eckelmans, *article 83*, mn 45–58.

¹⁵² *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 72.

¹⁵³ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 44.

established that no reasonable tribunal of fact could have reached a conclusion of guilt based upon the evidence before the Trial Chamber together with the additional evidence admitted during the appellate proceedings.¹⁵⁴

- 57 This test has been further developed in appeals where the ICTY Appeals Chamber found that in light of the trial evidence and the additional evidence ‘a reasonable trier of fact could reach a conclusion of guilt beyond a reasonable doubt’¹⁵⁵. According to the case law, the Appeals Chamber must in such cases in ‘the interests of justice be convinced itself, beyond reasonable doubt, as to the guilt of the accused, before confirming a conviction on appeal’¹⁵⁶. Only then can it uphold the guilty verdict.

Accordingly, the guilty verdict can only be upheld ‘on the basis that a reasonable trier of fact could have arrived at a conviction on the evidence on the trial record in two cases: (i) if there is no additional evidence admitted; (ii) if additional evidence is admitted, but upon further review, is found to be not credible or irrelevant, so that it could not have been a decisive factor in reaching the decision at trial’¹⁵⁷.

- 58 The ICC Appeals Chamber might address the standard of review applicable to facts based on additional evidence in similar terms as the ICTY/ICTR Appeals Chambers, because the standard of review for factual errors appears to be essentially the same.

- 59 e) **Violation of the rights to a fair trial.** The Trial Chamber’s violations of the rights of the accused and any fair trial violations usually fall within the category of procedural errors or errors of law, as the case may be.¹⁵⁸ Article 83, para. 2 establishes a **specific standard of review** for such errors, in that it stipulates that the proceedings appealed from must have been unfair ‘in a way that affected the reliability of the decision or sentence’¹⁵⁹. Arguably, the standard is **lower** than the requirement that a procedural error or an error of law must have materially affected the impugned decision. Such a material effect may be difficult to establish because the trial proceedings are usually lengthy and effects of procedural decisions on the impugned decision cannot easily be detected, as many other factors may also come into the equation¹⁶⁰. The ‘reliability’ test, on the other hand, requires an assessment by the Appeals Chamber as to whether due to the **unfairness** that occurred in the proceedings, the impugned decision can still be relied upon. Such an assessment might require taking into account also the after-effects of the fair trial violation.

- 60 Establishing a violation of the right to a fair trial is, according to the jurisprudence of the ICTY/ICTR a **two-step process**. First, the right of the accused must have been infringed and second the violation must have ‘caused such prejudice to it as to amount to an error of law invalidating the judgement’¹⁶¹. ‘Thus, the element of prejudice forms an essential aspect of proof required of an appellant in relation to the appeal alleging a violation of his fair trial rights’¹⁶². In terms of the ICC Statute, it would arguably not be necessary to show that the

¹⁵⁴ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 75, see also para. 76; see also *Alfred Musema v. the Prosecutor*, ICTR-96-13-A, Judgement, ICTR Appeals Chamber, 16 November 2001, paras. 185–186, adopting this standard for the ICTR.

¹⁵⁵ *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para. 23.

¹⁵⁶ *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, paras. 23, confirmed by *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgement, ICTY Appeals Chamber, 28 February 2005, para. 426.

¹⁵⁷ *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgement, ICTY Appeals Chamber, 28 February 2005, para. 428.

¹⁵⁸ See mn 34–35.

¹⁵⁹ *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 28.

¹⁶⁰ See e.g. *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-321 OA2, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I on jurisdiction and stay of proceedings, ICC Appeals Chamber, 12 December 2012, para. 45.

¹⁶¹ *Prosecutor v. Stanislas Galić*, IT-98-29-A, Judgement, ICTY Appeals Chamber, 30 November 2006, para. 21, *Prosecutor v. Dario Kordić and Mario Čerkez*, IT-05-14/2-A, Judgement, ICTY Appeals Chamber, 17 December 2004, para. 119.

¹⁶² *Prosecutor v. Enver Hadžihasanović and Amir Kubura*, IT-01-47-A, Judgement, ICTY Appeals Chamber, 22 April 2008, para. 130.

prejudice led to an error of law that ‘invalidates’ the impugned decision. Essential is that the violation led to prejudice and that the unfairness as such (the prejudice suffered arguably being one aspect of it) makes the impugned decision **unreliable**, as required by article 83, para. 2.

If the rights of the accused were **violated only by the impugned decision**, the reliability standard would most likely not find application due to the formulation in article 83, para. 2 that ‘the proceedings appealed from’ needed to be unfair. Nevertheless in respect of such a violation, the formula applied by the *ad hoc* tribunals referred to in the previous margin number would most likely apply in ICC appeal proceedings too.

Arguably, the reliability standard in article 83, para. 1 is not applicable to the **Prosecutor appealing** an acquittal or sentence, because unfairness allegations could arguably only be raised in favour of the accused, as also indicated by article 81, para. 1(b)(iv)¹⁶³.

On the basis of the preceding paragraphs, the phrase in article 81, para 1(b)(iv), ‘any other ground that affects the fairness or reliability of the proceedings or decision’, may add little to the other specified grounds of appeal. The apparent intention was to include a ‘catch-all’ provision in the case of appeals by or on behalf of the convicted person, to ensure that any miscarriage of justice would be capable of correction on appeal. Arguably, the addition may have been out of an abundance of caution, since it is likely that any valid grounds of appeal would fall within one of the other categories. Room for applying this provision might be only where it was not the (Pre-) Trial Chamber that ‘erred’, an implicit precondition for the other ‘errors’ listed in article 81, para. 1, but were the **unfairness was caused e.g. by others**, such as the Prosecutor as a party to the proceedings. Usually, the ‘waiver’ principle would require the accused to raise any such issues during the trial and would thereby trigger a decision of the relevant Chamber. As a consequence, this decision of the first-instance Chamber would then become the focus of the unfairness violations and transform the alleged unfairness violation into an alleged error by that Chamber. Arguably, unfairness allegations that may still fall within this catch-all provision are those that only came to light after the closure of the trial proceedings. Hence, it can be expected that additional evidence be produced in relation thereto.

Finally, unfairness allegations under subparagraph (b)(iv) must be distinguished from requests for a **stay of proceedings** because of breaches of the fundamental rights of the accused.¹⁶⁴

f) **Appeals against sentence**. As set out above,¹⁶⁵ article 81, para. 2 only mentions one ground of appeal, that of ‘**disproportion between the crime and the sentence**’, while article 83, para. 2 clarifies that also errors of law and fact as well as procedural errors may be raised against a sentencing decision. The ICC Appeals Chamber did not even further address this discrepancy but found in the first sentencing judgment that it reviews ‘any errors’ of the Trial Chamber and incorporated in its review errors of law and of fact as well as procedural errors. It held:

‘At the outset, the Appeals Chamber notes that article 83 (2) and (3) of the Statute clarifies that, with respect to appeals against sentencing decisions, the Appeals Chamber’s primary task is to review whether the Trial Chamber made any errors in sentencing the convicted person. The Appeals Chamber’s role is not to determine, on its own, which sentence is appropriate, unless – as stipulated in article 83 (3) of the Statute – it has found that the sentence imposed by the Trial Chamber is ‘disproportionate’ to the crime. Only then can the Appeals Chamber ‘amend’ the sentence and enter a new, appropriate sentence.’¹⁶⁶

¹⁶³ It is noteworthy in this context that the ICC Appeals Chamber in the Prosecutor’s appeal against an acquittal did omit reference to the ‘reliability’-standard in article 83, para. 2; see *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-271-Corr A, Judgment on the Prosecutor’s appeal against the decision of Trial Chamber II entitled ‘Judgment pursuant to article 74 of the Statute’, 7 April 2015, para. 18.

¹⁶⁴ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 147–149.

¹⁶⁵ See mn 12.

¹⁶⁶ *Lubanga* Sentencing Judgment, ICC-01/04-01/06-3122 A4 A6, 1 December 2014, para. 39.

- 65 It further established the applicable **standard of review** for sentencing appeals on the basis of article 83 as well as by reference to its own jurisprudence relevant to discretionary decisions¹⁶⁷ and the jurisprudence of the *ad hoc* tribunals. It held:

‘44. Thus, the Appeals Chamber’s review of a Trial Chamber’s exercise of its discretion in determining the sentence must be deferential and it will only intervene if: (i) the Trial Chamber’s exercise of discretion is based on an erroneous interpretation of the law; (ii) the discretion was exercised based on an incorrect conclusion of fact; or (iii) as a result of the Trial Chamber’s weighing and balancing of the relevant factors, the imposed sentence is so unreasonable as to constitute an abuse of discretion.

45. Finally, Article 83 (2) of the Statute requires that the sentence be ‘materially affected by error of fact or law or procedural error’. The Appeals Chamber considers that the material effect of such an error is only established if the Trial Chamber’s exercise of discretion led to a disproportionate sentence.

46. The Appeals Chamber notes that the above standard of review applicable to a Trial Chamber’s determination of sentence is similar to the standard of review applied by other international tribunals. The Appeals Chamber notes that the ICTY/ICTR and SCSL Appeals Chambers review sentencing decisions as discretionary decisions and that these Appeals Chambers will only revise a sentence where the Trial Chamber has committed a ‘discernible error’ in exercising its discretion.’¹⁶⁸

- 66 This first jurisprudence of the ICC Appeals Chamber has clarified that, as at the ICTY/ICTR, an appeal against sentence is an appeal *stricto sensu*, i.e., a procedure of a ‘corrective nature’ and not a sentencing proceeding *de novo*¹⁶⁹. Furthermore, the ICC Appeals Chamber firmly built its jurisprudence on the ICTY/ICTR Appeals Chamber’s jurisprudence.
- 67 It is noteworthy that an appellant against sentence cannot simply resubmit arguments presented at trial to the ICTY/ICTR Appeals Chamber, but must **demonstrate**, upon the trial record, that the Trial Chamber made an appealable error¹⁷⁰. Furthermore, similar to the ICC, the *ad hoc* tribunals have held in relation to an appeal against sentence, that:

‘As a general rule, the Appeals Chamber will not substitute its sentence for that of a Trial Chamber unless ‘it believes that the Trial Chamber has committed an error in exercising its discretion, or has failed to follow applicable law’. The Appeals Chamber will only intervene if it finds that the error was ‘discernible’. As long as a Trial Chamber does not venture outside its ‘discretionary framework’ in imposing sentence, the Appeals Chamber will not intervene. It there-

¹⁶⁷ See mn 41.

¹⁶⁸ *Lubanga Sentencing Judgment*, ICC-01/04-01/06-3122 A4 A6, 1 December 2014, paras. 39–46; footnotes omitted; referring *inter alia* to *Prosecutor v. Dragan Zelenović*, IT-96-23/2-A, Judgement on Sentencing Appeal, ICTY Appeals Chamber, 31 October 2007, para. 24; *Prosecutor v. Alex Tamba Brima, Brima Bazzy Kamara and Santigie Borbor Kanu*, 22 February 2008, Judgment, SCSL Appeals Chamber, 22 February 2008, para. 314; *Prosecutor v. Dragomir Milošević*, IT-98-29/1-A, Judgment, ICTY Appeals Chamber, 12 November 2009, para. 316: ‘what constitutes a mitigating circumstance is a matter for the Trial Chamber to determine in the exercise of its discretion. The Trial Chamber is endowed with a considerable degree of discretion in making this determination, as well as in deciding how much weight, if any, to be accorded to the mitigating circumstances identified’ (footnotes omitted); *Prosecutor v. Vidjoje Blagojević and Dragan Jokić*, IT-02-60-A, Judgment, ICTY Appeals Chamber, 9 May 2007, para. 321: ‘Trial Chambers are vested with a broad discretion in determining an appropriate sentence, due to their obligation to individualize penalties to fit the circumstances of the accused and the gravity of the crime. As a rule, the Appeals Chamber will not revise a sentence unless the Trial Chamber has committed a discernible error in exercising its discretion or has failed to follow the applicable law. It is for the appealing party to demonstrate how the Trial Chamber erred in imposing the sentence’ (footnotes omitted).

¹⁶⁹ See mn 22; see also *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgment, ICTY Appeals Chamber, 23 October 2001, para. 408; *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-Abis, Judgment on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15, para. 11; *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, ICTY Appeals Chamber, 28 February 2005, para. 669.

¹⁷⁰ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgment, ICTY Appeals Chamber, 20 February 2001, para. 724; *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-Abis, Judgment on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15. Thus, according to the ICTY Appeals Chamber evidence of post-sentence behaviour is irrelevant to whether the Trial Chamber erred in the exercise of its sentencing discretion. It is only where it is established that the Trial Chamber made an appealable error in sentencing that there can be any issue of introducing further evidence relating to the appropriate sentence. The admission of further evidence in those circumstances is within the discretion of the Appeals Chamber, and the exercise of that discretion is dependent mainly upon the nature of the error.

fore falls on each appellant ... to demonstrate how the Trial Chamber ventured outside its discretionary framework in imposing the sentence it did.’¹⁷¹

The ICTY/ICTR Appeals Chambers has also made clear that:

‘Trial Chambers exercise a considerable amount of discretion (although it is not unlimited) in determining an appropriate sentencing. This is largely because of the over-riding obligation to individualise a penalty to fit the individual circumstances of the accused and the gravity of the crime.’¹⁷²

An appellant therefore cannot merely assert that a sentence was wrong, without demonstrating how the Trial Chamber either failed to follow the applicable law, or how it ventured outside its discretionary framework in imposing the sentence it did¹⁷³. For instance, a Trial Chamber’s decision may be disturbed on appeal if an appellant shows that the Trial Chamber either took into account what it ought not to have, or failed to take into account what it ought to have taken into account, in the weighing process involved in this exercise of the discretion¹⁷⁴.

It arguably follows from the ‘corrective’ nature of an appeal¹⁷⁵, and from the ‘waiver’ principle¹⁷⁶, that an appellant cannot raise factors relevant to sentencing for the first time on appeal¹⁷⁷, other, perhaps, than in exceptional circumstances where a miscarriage of justice would otherwise result¹⁷⁸. In cases where the accused stands convicted following the appeal proceedings, but the Appeals Chamber has reversed the Trial Chamber’s verdict in relation to one or some of several crimes, this may affect the sentence that was imposed by the Trial Chamber. Article 83 para. 2(a) suggests that in such cases the Appeals Chamber should itself amend the sentence within the confines of article 83, para. 3¹⁷⁹.

g) Remedies on appeal. On the remedies that can be ordered by the Appeals Chamber in the event of a successful appeal under this article, see below, Staker and Eckelmans, *article 83*, mn 5 to 9.

¹⁷¹ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 408. See also *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 724–725; *Kambanda v. Prosecutor*, ICTR-97-23-A, Judgement, ICTR Appeals Chamber, 19 October 2000, para. 115; *Prosecutor v. Anto Furundžija*, IT-95-17/1-A, Judgement, ICTY Appeals Chamber, 21 July 2000, para. 239; *Serushago v. Prosecutor*, ICTR-98-39-A, Reasons for Judgement, Appeals Chamber, 6 April 2000, para. 32 (available under <http://www.legal-tools.org/doc/bdc6b7/>); *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, paras. 186–187; *Prosecutor v. Tadić*, IT-94-1-A and IT-94-1-Abis, Judgement in Sentencing Appeals, Appeals Chamber, 26 January 2000, paras. 20–22 (available under <http://www.legal-tools.org/doc/df7618/>). For recent examples of appeal judgments finding that the Trial Chamber committed discernible errors in sentencing, see *Prosecutor v. Nikolić*, IT-02-60/1-A, Judgement in Sentencing Appeals, Appeals Chamber, 8 March 2006, paras. 6–8, 59–63, 98–103, 104–107, 108–111, 112–113 (available under <http://www.legal-tools.org/doc/d25035/>); *Prosecutor v. Stakić*, IT-97-24-A, Judgement, Appeals Chamber, 22 March 2006, paras. 388–393, 414–416, 421–423.

¹⁷² *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 717; see also *Prosecutor v. Vasiljević*, IT-98-32-A, Judgement, ICTY Appeals Chamber, 25 February 2004, paras. 9, 21–22.

¹⁷³ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 725.

¹⁷⁴ See mn 20.

¹⁷⁵ See mn 20.

¹⁷⁶ See mn 21–22.

¹⁷⁷ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001 paras. 410–414 (in which the Appeals Chamber concluded that ‘In these circumstances, the Appeals Chamber considers that no reason has been presented for it to consider and take into account any mitigating factors that, although available at the time, were not raised before the Trial Chamber’). See also *Prosecutor v. Nikolić*, IT-94-2-A, Judgement on Sentencing Appeal, Appeals Chamber, 4 February 2005, para. 107, for confirmation that the ‘waiver’ rule applies also to sentencing appeals (available under <http://www.legal-tools.org/doc/5bab22/>).

¹⁷⁸ See mn 32.

¹⁷⁹ See *Lubanga Sentencing Judgment*, ICC-01/04-01/06-3122 A4 A6, 1 December 2014; see also Staker and Eckelmans, *article 83*, mn 9.

4. Other aspects of the appeals process

- 70 a) The raising of new issues by the Appeals Chamber *proprio motu*. The Appeals Chamber of the ICTY has held in one case that there is ‘nothing in the Statute or the Rules, nor in practices of international institutions or national judicial systems, which would confine [the Appeals Chamber’s] consideration of the appeal to the issues raised formally by the parties’¹⁸⁰. In this case, involving an appeal against sentence, the Appeals Chamber *proprio motu* raised the question of the validity of the plea of guilty that had been entered by the appellant before the Trial Chamber¹⁸¹. The ICTR Appeals Chamber has, early in its jurisprudence, endorsed this holding of the ICTY Appeals Chamber and similarly affirmed its power to consider issues *proprio motu*, subject to the requirement that it do so ‘within the framework predefined by the Statute’¹⁸². The meaning of this qualification has not been the subject of further definition by the Appeals Chambers, although one of the judges has said:

‘The cases show that the leading principle is that the overriding task of the Tribunal is to discover the truth. Since this has to be done judicially, limits obviously exist as to permissible methods of search; and those limits have to be respected, for the Appeals Chamber is not an overseer. It cannot gratuitously intervene whenever it feels that something wrong was done: beyond the proper appellate boundaries, the decisions of the Trial Chamber are unquestionable. However, ... the Appeals Chamber can raise issues whether or not presented by a party, provided, I consider, that they lie within the prescribed grounds of appeal, that they arise from the record, and that the parties are afforded an opportunity to respond.’¹⁸³

The subsequent jurisprudence of the *ad hoc* tribunals shows that such powers have only been exceptionally applied; rather the focus of that jurisprudence was whether it would ‘address issues of general significance’, as discussed in the next section¹⁸⁴. Only the ECCC Supreme Court Chamber also found that its scope of review may extend to matters that it raised *proprio motu*¹⁸⁵.

- 71 Nevertheless, in that context, it is recalled that article 81, para. 2 explicitly allows the ICC Appeals Chamber to invite the parties to raise grounds of appeal in relation to either the related conviction or the related sentencing decision, as the case may be¹⁸⁶. The Appeals Chamber did not yet apply this provision. Generally, the ICC Appeals Chamber has been reluctant to raise or decide on appeal issues relevant to its merits *proprio motu* when the parties did not raise them explicitly; a contentious issue in the context of concrete cases¹⁸⁷. By contrast, an Appeals Chamber would routinely consider whether it has competence to consider the merits of an appeal, even where the parties have not contested the admissibility of the appeal¹⁸⁸. Accordingly, it considers *proprio motu* only whether the appeal is admissible. In that respect, the ICC Appeals Chamber has, at times, invited the parties to address specifically the admissibility of the appeal in their submissions, postponing hearing arguments on the merits¹⁸⁹.

¹⁸⁰ Erdemović Appeal Judgement, IT-96-22-A, 7 October 1997, para. 16.

¹⁸¹ See further mn 13.

¹⁸² *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, para. 17.

¹⁸³ *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision (Prosecutor’s Request for Review or Reconsideration), Appeals Chamber, 31 March 2000, Separate Opinion of Judge Shahabuddeen, para. 18.

¹⁸⁴ See mn 71, 72.

¹⁸⁵ *Kaing Guek Eav* (‘Duch’), 001/18-07-2007-ECCC/SCC-F28, Judgment, Supreme Court Chamber, 3 February 2012, 15; see also Eckelmann in: S. Meisenberg and I. Stegmüller (eds), *The Extraordinary Chambers in the Courts of Cambodia* (2015), Chapter 7.

¹⁸⁶ See mn 13.

¹⁸⁷ See e.g. in that respect e.g. the partly separate and dissenting opinions of respectively Judges Kourula and Ušacka, *Prosecutor v. Bemba et al.*, ICC-01/05-01/13-560 OA4, Judgement on the appeal of Mr Mangenda Kabongo against the decision of Pre-Trial Chamber II of 17 March 2014 entitled ‘Decision on the ‘Requête de mise en liberté’ submitted by the Defence for Jean-Jacques Mangenda’, 14 July 2014.

¹⁸⁸ See Eckelmann in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court*, 527, 536–541.

¹⁸⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-800 OA8, Directions and Decision of the Appeals Chamber, 1 February 2007; ICC-01/04-01/06-2923 A A2 A3 OA21, Directions on the conduct of the appeal proceedings, 17 September 2012.

b) ‘Issues of general significance’. The Appeals Chambers of the *ad hoc* tribunals as well as of the ICC have held respectively that they have no ‘advisory jurisdiction’¹⁹⁰ or are no ‘advisory body’¹⁹¹. Nevertheless, the Appeals Chambers of the ICTY/ICTR on the one hand and that of the ICC on the other have divergent approaches as to whether they would address issues that are not immediately relevant to the **invalidation of the impugned decision**.

Early on in its jurisprudence, the ICC Appeals Chamber has excluded such an approach and held in respect to a ground of appeal raised by a party:

‘Thus, even if the Appeals Chamber were to conclude that the Trial Chamber made an error in respect of its interpretation of the term ‘commencement of the trial’ in article 19 (4) of the Statute, this error would not, in itself, be a reason to reverse the Trial Chamber’s decision on the admissibility of the case. It is for these reasons that the Prosecutor correctly states that the findings of the Trial Chamber were mere *obiter dicta*. The Appeals Chamber considers it inappropriate to pronounce itself on *obiter dicta*. To do so would be tantamount to rendering advisory opinions on issues that are not properly before it. In these circumstances, the Appeals Chamber does not consider it necessary to determine the merits of the Appellant’s submissions under the first ground of appeal.’¹⁹²

Exceptionally, however, the Appeals Chamber has addressed issues that were not immediately relevant to the resolution of the appeal or an application before it. An example for that is one of the first judgments of the Appeals Chamber, where the Appeals Chamber interpreted the criteria of article 82, para. 1(d), i.e. those relevant to a Pre-Trial or Trial Chamber’s decision on a request for leave to appeal¹⁹³, although the application was dismissed for lack of jurisdiction.

The ICTY/ICTR Appeals Chamber have included in their appellate competence the power to address ‘**issues of general significance to the Tribunal’s jurisprudence**’, even though the issue ‘would not lead to the invalidation of the Trial Judgement’¹⁹⁴. However, this power is of an **exceptional** character and has been rarely applied¹⁹⁵. The most important example is the Prosecutor’s appeal in the case *Prosecutor v. Jean-Paul Akayesu*, which only turned around grounds of appeal raising issues of general significance¹⁹⁶. As those did not affect the impugned decision, in the operative part of that judgment the Appeals Chamber held that it ‘[f]inds that, with respect to the points of law in the Prosecution’s appeal, this Judgement sets out the relevant legal findings thereon’¹⁹⁷.

¹⁹⁰ *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, para. 23.

¹⁹¹ *Ibid.*; see also *Situation in Darfur*, ICC-02/05-138, Decision on Victim Participation in the Appeal of the Office of the Public Counsel for the Defence against Pre-Trial Chamber I’s Decision of 3 December 2007 and in the Appeals of the Prosecutor and the Office of the Public Counsel for the Defence against Pre-Trial Chamber I’s Decision of 6 December 2007, 18 June 2008, paras. 18–19; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-873 OA8, Decision of the Appeals Chamber upon the Registrar’s Requests of 5 April 2007, Appeals Chamber, 27 April 2007, para. 6.

¹⁹² *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1497 OA8, Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009, para. 38.

¹⁹³ *Situation in the Democratic Republic of the Congo*, ICC-01/04-168 OA3, Judgment on the Prosecutor’s Application for Extraordinary Review of Pre-Trial Chamber I’s 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, ICC Appeals Chamber, 13 July 2006, paras. 6–20.

¹⁹⁴ Recently: *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 16; see also *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, paras. 241, 247, 281; see also *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 221; *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 22; *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, paras. 16–27; *Prosecutor v. Milorad Krnojelac*, IT-07-25-A, Judgement, ICTY Appeals Chamber, 17 September 2003, paras. 6–9. Note that the MICT made no mention of it, *Prosecutor v. Augustin Ngirabatware v. The Prosecutor*, MICT-12-29-A, Judgement, MICT Appeals Chamber, 18 December 2014, paras. 6–12.

¹⁹⁵ See *Gaspard Kanyarukiga v. The Prosecutor*, ICTR-02-78-A, Judgement, ICTR Appeals Chamber, 8 May 2012, paras 264, 267.

¹⁹⁶ *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, paras. 23–24.

¹⁹⁷ *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, 143.

- 75 The ICTY/ICTR Appeals Chambers have justified their willingness to decide such questions in part on the basis that they are *ad hoc* and temporary tribunals, and that pronouncements on the law by the Appeals Chamber on such issues at an early stage of the Tribunals' development would 'ensure an effective and equal administration of justice' and be consistent with the role of the Appeals Chamber in unifying the law¹⁹⁸. The ICTR Appeals Chamber has however indicated that it will only exercise this power where the legal issue in question is of interest to the legal practice of the Tribunal and has a nexus with the case in question; furthermore, even where these requirements are satisfied, the exercise of this power is within the discretion of the Appeals Chamber¹⁹⁹. It also appears that the ICTY/ICTR Appeals Chambers will only exercise this power where the legal question concerned has been raised in accordance with the Rules of Procedure and Evidence (normally by being formally raised by a party as a ground of appeal), and that it is not open to appellants simply to point out errors in the trial judgement as and when they believe they have been identified²⁰⁰.
- 76 c) **Principles of precedent.** The Statute of the ICC does not give **binding effect** to the decisions of the ICC Chambers, including the Appeals Chamber. Article 21 para. 2 of the Statute states only that the Court *may* apply 'principles and rules of law as interpreted in its previous decisions'²⁰¹.
- 77 The ICTY and ICTR Statutes and Rules do not make provision in relation to this question either. Accordingly, the relevant Appeals Chambers have addressed this matter and concluded that in the interests of certainty and predictability, the Appeals Chamber should follow its previous decisions, but should be free to depart from them for **cogent reasons in the interests of justice**. Circumstances justifying such a departure from precedent would include cases where the previous decision has been decided on the basis of a wrong legal principle or where a previous decision has been given *per incuriam*. The *ad hoc* Appeals Chambers have further emphasised that departure from a previous decision will be the exception, and only after the most careful consideration has been given to it by the Appeals Chamber²⁰². It has also been said that the duty to follow previous decisions is not a reason for taking leave of the fundamental mission of the Tribunal to apply customary international law²⁰³. The ICTY Appeals Chamber has added that:

'What is followed in previous decisions is the legal principle (*ratio decidendi*), and the obligation to follow that principle only applies in similar cases, or substantially similar cases. This means less that the facts are similar or substantially similar, than that the question raised by the facts in the subsequent case is the same as the question decided by the legal principle in the previous decision. There is no obligation to follow previous decisions which may be distinguished for one reason or another from the case before the court.'²⁰⁴

¹⁹⁸ *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, paras. 21–22.

¹⁹⁹ *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, paras. 23–24.

²⁰⁰ *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, para. 470.

²⁰¹ See Staker and Eckelmans, *article 83*, mn 16.

²⁰² *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, paras. 107–109 (and see the discussion at paras. 89–111 generally). See also *Prosecutor v. Anto Furundžija* IT-95-17/1-A, Judgement, ICTY Appeals Chamber, 21 July 2000, para. 249; *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, paras. 8, 26, 54–55, 84, 117, 121, 129, 136, 150, 174; *Prosecutor v. Zoran Kupreškić et al.*, IT-95-16-A, Judgement, ICTY Appeals Chamber, 23 October 2001, paras. 418, 426; *Prosecutor v. Jean-Paul Akayesu*, ICTR-96-4-A, Judgement, ICTR Appeals Chamber, 1 June 2001, fn. 805; *Musema Appeal Judgement*, para. 15. See also *Georges Anderson Nderubumwe Rutaganda v. The Prosecutor*, ICTR-96-3-A, Judgement, ICTR Appeals Chamber, 6 May 2003, para. 26. For an example of a case in which the Appeals Chamber did depart from its own previous case law, see *Prosecutor v. Laurent Semanza*, ICTR-97-20-A, Judgement, ICTR Appeals Chamber, 20 May 2005, para. 92. For the view that it 'should not happen that due to shifting majorities the Appeals Chamber changes its jurisprudence from case to case', see *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgement, ICTY Appeals Chamber, 28 February 2005, Separate Opinion of Judge Shahabuddeen, para. 107.

²⁰³ *Prosecutor v. Laurent Semanza*, ICTR-97-20-A, Judgement, ICTR Appeals Chamber, 20 May 2005, Separate Opinion of Judge Shahabuddeen, para. 31.

²⁰⁴ *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, para. 110.

Where previous decisions of the Appeals Chamber are **conflicting**, the ICTY Appeals Chamber has said that it is obliged to determine which decision it will follow, or whether to depart from both decisions for cogent reasons in the interests of justice²⁰⁵. The ICTY Appeals Chamber applied this approach recently and decided to follow one of the two approaches that had been established previously²⁰⁶. At issue was whether 'specific direction' is an essential element of aiding and abetting under customary international law²⁰⁷.

For this purpose, the ICTY Appeals Chamber has also said that there is no reason why interlocutory decisions of the Appeals Chamber should be considered, as a matter of principle, as having any lesser status than a final decision on appeal, since the purpose of an appeal, whether on an interlocutory or on a final basis, is to determine the issues raised with finality²⁰⁸.

The ICTY Appeals Chamber has further held that the *ratio decidendi* of the Appeals Chamber's decisions is binding on Trial Chambers²⁰⁹, and that decisions of Trial Chambers, which are bodies with coordinate jurisdiction, have no binding force on each other, although a Trial Chamber is free to follow the decision of another Trial Chamber if it finds that decision persuasive²¹⁰.

The ICTR MICT Appeals Chamber has held in the following words that it is bound by the jurisprudence of the ICTY and ICTR:

'The Statute and the Rules of the Mechanism reflect normative continuity with the Statutes and Rules of the ICTR and ICTY. The Appeals Chamber considers that it is bound to interpret its Statute and Rules in a manner consistent with the jurisprudence of the ICTR and ICTY. Likewise, where the respective Rules or Statutes of the ICTR or ICTY are at issue, the Appeals Chamber is bound to consider the relevant precedent of these tribunals when interpreting them.'²¹¹

It is the practice of the ICC Appeals Chamber to follow its own jurisprudence. Likewise, the Trial and Pre-Trial Chambers usually adhere to the Appeals Chamber's jurisprudence. However, the Appeals Chamber's composition is subject to the judge's terms of office and may, at times, change considerably, which may lead to changes to some aspects of this jurisprudence. ICC Pre-Trial and Trial Chambers usually adhere to each other's jurisprudence or indicate where they do not. Trial Chambers may, at times, have divergent strategies and may also distance themselves from the case law of the Pre-Trial Chambers²¹².

The ICC is not bound by the **case law of other tribunals**, including that of the *ad hoc* tribunals, as it does not establish an 'autonomous source' of law for the ICC²¹³. However, such case law may assist it in ascertaining a principle or rule of international law (article 21,

²⁰⁵ *Ibid.*, para. 111; *Prosecutor v. Anto Furundžija* IT-95-17/1-A, Judgement, ICTY Appeals Chamber, 21 July 2000, paras. 240–243.

²⁰⁶ *Prosecutor v. Sainović et al.*, IT-05-87-A, Judgement, ICTY Appeals Chamber, 23 January 2014, 1622, note 5320; this approach has been followed since, see *Prosecutor v. Popović et al.*, IT-05-88-A, Judgement, ICTY Appeals Chamber, 30 January 2015, para. 16.

²⁰⁷ See *Prosecutor v. Mile Mrkić and Veselin Šljivančanin*, IT-05-13/1-A, Judgement, ICTY Appeals Chamber, 5 May 2009, paras. 49, 146; *Prosecutor v. Milan Lukić and Sredoje Lukić*, IT-98-32/1-A, Judgement, ICTY Appeals Chamber, 4 December 2012, para. 424 on the one hand and *Prosecutor v. Momčilo Perišić*, IT-04-81-A, Judgement, ICTY Appeals Chamber, 28 February 2013, paras. 37–40 on the other hand.

²⁰⁸ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-A, Judgement, ICTY Appeals Chamber, 20 February 2001, para. 122. Compare *Prosecutor v. Kajelijeli*, ICTR-98-44A-A, Judgement, Appeals Chamber, 23 May 2005, paras. 202–207.

²⁰⁹ *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, paras. 112–113. For an example where a decision of a Trial Chamber was overturned on appeal on the ground that the Trial Chamber erred in law in failing to follow an earlier decision of the Appeals Chamber, see *Prosecutor v. Blagojević et al.*, IT-02-60-AR65 and IT-02-60-AR65.2, Decision on Provisional Release of Vidoje Blagojević and Dragan Obrenović, Appeals Chamber, 3 October 2002, paras. 6–8 (available under <http://www.legal-tools.org/doc/a46322/>).

²¹⁰ *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, para. 114.

²¹¹ *Prosecutor v. Augustin Ngirabatware v. The Prosecutor*, MICT-12-29-A, Judgement, ICTR MICT Appeals Chamber, 18 December 2014, para. 6.

²¹² See Triffterer and Heinze, *Article 21*, mn 45–46.

²¹³ Nerlich in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court*, 305, 316.

para. 1)²¹⁴. Furthermore, the *ad hoc* tribunals rich case law often serves as a source of guidance with regard to the procedural law; while it may form an indispensable aid in interpreting the elements of the crimes²¹⁵.

- 84 **d) Whether other types of appellate proceedings are possible.** Article 81, and certain other provisions, provide for appeals only against specified types of decisions²¹⁶. The question arises whether it is possible to appeal against other types of decisions, where no appeal is provided for in the Statute.
- 85 At the ICTY and ICTR, the range of possible appeal proceedings has been expanded by the Rules²¹⁷. The Statutes of each of these Tribunals provide only for appeals by the ‘Prosecutor’ and by ‘persons convicted by the Trial Chambers’. Nevertheless, certain interlocutory appeals are provided for in the Rules of Procedure and Evidence of those Tribunals²¹⁸, and the validity of these provisions has always been accepted²¹⁹. The Rules of the Special Court for Sierra Leone have gone further, and provide for a Trial Chamber to refer certain preliminary motions to the Appeals Chamber for decision at the pre-trial stage, without any decision on the matter first being rendered by the Trial Chamber²²⁰. Furthermore, although the wording of the Statutes of these Tribunals suggests that only appeals by the parties are contemplated (*i.e.*, the ‘Prosecutor’ and by ‘persons convicted by the Trial Chambers’²²¹), the Rules of these Tribunals also allow for appeals by certain third parties²²². The STL jurisprudence has

²¹⁴ Ibid. 310.

²¹⁵ Ibid. 317–324; see also Bitti in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court*, 285, 299.

²¹⁶ See mn 2–5.

²¹⁷ Pursuant to article 15 of the ICTY Statute and article 14 of the ICTR Statute, the Rules of those Tribunals are made by the judges. Rule 6 of the Rules of each Tribunal further regulates the procedure for adoption of amendments to the Rules by the judges.

²¹⁸ Rule 54bis *lit.* C ICTY RPE (appeals against interlocutory decisions of a Trial Chamber relating to requests for orders that a State produce documents or information); rule 65 *lit.* D ICTY RPE (appeals against decisions of a Trial Chamber concerning requests for provisional release); rule 72 *lit.* B and C ICTY RPE (interlocutory appeals against decisions of a Trial Chamber on preliminary motions); rule 73 *lit.* B and C ICTY RPE (interlocutory appeals against decisions of a Trial Chamber on other motions). Rule 65 *lit.* D ICTR v(appeals against decisions of the Trial Chamber concerning requests for provisional release); rule 72 *lit.* B, C and E ICTR v(interlocutory appeals against decisions of a Trial Chamber dismissing an objection based on lack of jurisdiction); rule 73 *lit.* B and C ICTR v(interlocutory appeals against decisions of a Trial Chamber on other motions).

²¹⁹ *Cf. Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 6 (available under <http://www.legal-tools.org/doc/866e17/>) in which the Appeals Chamber suggested that the higher interest of justice would not be served by delaying an appeal against the Trial Chamber’s rejection of a challenge to jurisdiction until after the accused had undergone what might then have to be branded an unwarranted trial.

²²⁰ Rule 72 *lit.* E and F SCSL RPE (as amended 29 May 2004). The validity of these provisions was upheld by the Appeals Chamber in *Prosecutor v. Norman*, *Prosecutor v. Kallon* and *Prosecutor v. Gbao*, SCSL-2003-08-PT, SCSL-2003-07-PT, SCSL-2003-09-PT, Decision on the Applications for a Stay of Proceedings and Denial of Right to Appeal, Appeals Chamber, 4 November 2003 (available under <http://www.legal-tools.org/doc/4939a0/>). In that decision, the Appeals Chamber said that Article 20 of the Statute of the Special Court for Sierra Leone ‘does not purport to be an exhausting or limiting definition of the powers of the Appeals Chamber, which may function in many other respects that are important to the working of the Special Court’ (para. 4), and rejected an argument that these provisions violated Article 14.5 of the ICCPR (paras. 18–25).

²²¹ The expression ‘persons convicted by the Trial Chambers’ should not be read as excluding interlocutory appeals by an accused prior to a final judgement of conviction or acquittal: see, *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, Decision (Prosecutor’s Request for Review or Reconsideration), Appeals Chamber, 31 March 2000, para. 48.

²²² Rule 77 *lit.* J and K ICTY RPE (appeals by persons held to be in contempt of the Tribunal); rule 77bis *lit.* G ICTY RPE (appeals by persons held to be in contempt of the Tribunal for failure to pay a fine imposed by the Tribunal); rule 91 *lit.* I ICTY RPE (appeals by persons found to have given false testimony under solemn declaration); rule 108bis ICTY RPE (allowing a ‘State directly affected by an interlocutory decision of a Trial Chamber’ to request ‘review’ of the decision by the Appeals Chamber if that decision ‘concerns issues of general importance relating to the powers of the Tribunal’). Rule 77 *lit.* J and K ICTR RPE (appeals by persons held to be in contempt of the Tribunal), rule 91 *lit.* I ICTR RPE (appeals by persons found to have given false testimony under solemn declaration).

accorded victims a limited right to appeal interlocutory decisions²²³. However, the ICC Rules do not provide for any appeals not envisaged by the Statute. Hence, the question whether the ICC Rules could expand the types of appellate proceedings available is at this stage moot. In this context, it may be worth mentioning that the Rules and subordinate legislation of other international(ised) Tribunals enable certain other kinds of appeal or review to be requested by a forum other than the Appeals Chamber²²⁴, as does the legal framework of the ICC²²⁵.

On the question raised in this section, one judge of the ICTY has expressed the view that: 86

‘The law relating to appeals in most national jurisdictions is that no appeal lies unless conferred by statute. The right to appeal a decision is part of substantive law and can only be granted by the law-making body by specific enactment. Where the provision for an appeal or some form of review by a higher forum is not regulated by the statute under which an order is passed, there is usually some omnibus statute providing for appeals in such cases. The courts have no inherent powers to create appellate provisions or acquire jurisdiction where none is granted. Where the law provides for an appeal, the court may, by the adoption of reasonable and proper rules, supply deficiencies in the statutory provisions as to practice. Appellate courts have no jurisdiction over incompetent appeals other than dismiss them. It is thus clear that a tribunal or court cannot assume appellate powers under any concept of inherent jurisdiction or by expanding its jurisdiction through any amendment to its rules.’²²⁶

In another case, the ICTY Appeals Chamber rejected an application by a detained witness for leave to appeal against a ruling of the Trial Chamber that he be remanded to the authorities of the State, which had transferred him to the Tribunal. The Appeals Chamber observed that the ICTY had ‘a limited appellate jurisdiction’ which could not be invoked in this case by a non-party, since the relevant provision of the Rules provided only for appeals by parties²²⁷. Another decision of the Appeals Chamber of the ICTY appears to assume that prior to the adoption of rule 108*bis* RPE ICTY, ‘a State whose interests were intimately affected by a Decision of a Trial Chamber could not request that Decision to be submitted to appellate review’²²⁸. In a subsequent case, the Appeals Chamber rejected an application for interlocutory appeal and application for review brought by a State against the decision of a judge to confirm an indictment and issue an arrest warrant, on the ground that such applications by a State did not fall within any of the provisions of the Statute or Rules of the Tribunal²²⁹.

Two decisions of the ICTR are also of some relevance to this question. In one of these 87 cases, the defence sought to appeal against a decision of the Trial Chamber, requiring the Registrar of the Tribunal to have regard to certain criteria when assigning co-counsel to the

²²³ See *Prosecutor v. Salim Jamil Ayyash et al.*, STL-11-01/PT/AC/AR126.3, Decision on appeal by legal representative of victims against pre-trial judge’s decision on protective measures, STL Appeals Chamber, 10 April 2013; see also dissenting opinion.

²²⁴ Rule 44 *lit. B* ICTY provides for a review by the President of the Tribunal of a decision of the Registrar relating to the admission of a counsel who does not speak either of the two working languages of the Tribunal but who speaks the native language of the suspect or accused. Furthermore, under, for instance, the ICTY’s Directive on Assignment of Defence Counsel (IT/73/Rev.10), article 13, a suspect whose request for assignment of counsel has been denied by the Registrar may seek the President’s review of the Registrar’s decision, and an accused whose request for assignment of counsel has been denied by the Registrar may make a motion to the Chamber before which he or she is due to appear for immediate review of the Registrar’s decision. See also, *e.g.*, the ICTR’s Directive on Assignment of Defence Counsel, article 12.

²²⁵ See *e.g.* rule 21(3) RPE, regulations 72, 83(3), 85 RoC.

²²⁶ *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, Separate Opinion of Judge Sidhwa, para. 6.

²²⁷ In the case of *Dragan Opacic*, IT-95-7-Misc.1, Decision on Application for Leave to Appeal, Bench of the Appeals Chamber, 3 June 1997.

²²⁸ *Prosecutor v. Blaškić*, IT-95-14-AR108*bis*, Decision on the Admissibility of the Request for Review by the Republic of Croatia of an Interlocutory Decision of a Trial Chamber (Issuance of *Subpoena Duces Tecum*) and Scheduling Order, Appeals Chamber, 29 July 1997, para. 8.

²²⁹ *Prosecutor v. Bobetko*, IT-02-62-AR54*bis* and IT-02-62-AR108*bis*, Decision on Challenge by Croatia to Decision and Orders of Confirming Judge, Appeals Chamber, 29 November 2002 (available under <http://www.legal-tools.org/doc/f1b6bf/>).

accused. The defence sought to rely on the interlocutory appeal provision in rule 72 RPE ICTR, and in the alternative, advanced the theory 'that higher courts are vested with an inherent power to review *ultra vires* acts of lower courts'. The Appeals Chamber found that the requirements of rule 72 were not satisfied, and added that 'the Appellant has not shown good cause to merit consideration by the Appeals Chamber of the question of whether it may entertain the present appeal under the doctrine of inherent powers'²³⁰. This question thus appears to have been expressly left undecided.

In the other case, the Prosecutor of the ICTR sought to appeal against a decision of a judge, dismissing an indictment that had been presented by the Prosecutor for confirmation²³¹. No such appeal was expressly provided for in the Statute or Rules. The Appeals Chamber held that the Statute of the Tribunal did not confer an unlimited and unqualified right of appeal on the Prosecutor, and rejected each of the Prosecutor's arguments why the appeal should be permitted in the circumstances of that case. However, the decision of the Appeals Chamber contained no categorical statement that the only possible appeals are those specifically provided for in the Statute and Rules. The Appeals Chamber did consider that in circumstances where a matter affects the rights of the accused, it would be inconsistent with the principle of 'equality of arms' for the Prosecutor to have a greater right of appeal than the defence²³². The Appeals Chamber also rejected an argument by the Prosecutor that a decision of a confirming judge to dismiss an indictment was analogous to a decision finally disposing of a matter, since in the circumstances of this case, there were other avenues available to the Prosecutor to deal with the adverse effects of the decision²³³. In circumstances where a party has no other possible remedy against a decision of a judge or Trial Chamber, and where the appeal would be consistent with the principle of equality of arms, the argument that an appeal should be permitted even though not provided for in the Statute and Rules may thus not be entirely foreclosed by this decision²³⁴.

The Appeals Chamber of the Special Court for Sierra Leone has also held that where the Rules provide that a party can bring an interlocutory appeal if the Trial Chamber gives leave to do so, the Appeals Chamber has no inherent power to entertain such an interlocutory appeal if the Trial Chamber has refused leave to appeal²³⁵. In that decision, the Appeals Chamber noted that it could have recourse to the inherent power of the court 'when the Rules are silent and such recourse is necessary in order to do justice', but that the inherent jurisdiction 'cannot be invoked to circumvent an express Rule'²³⁶.

- 88 The ICC Appeals Chamber has taken a firm stance on the issue early on in its jurisprudence. It held that 'the Statute **defines exhaustively the right to appeal** against decisions of first instance courts, namely decisions of the Pre-Trial or Trial Chambers. No gap is noticeable in the Statute with regard to the power claimed [review of the Pre-Trial Chamber's decision not to grant leave to appeal under article 82, para. 1(d)] in the sense of an objective not being given effect to by its provisions. The lacuna postulated by the

²³⁰ *Prosecutor v. Nyiramasuhuko and Ntahobali*, ICTR-97-21-A, Order Dismissing Appeal, Appeals Chamber, 28 October 1998. *Prosecutor v. Norman et al.*, SCSL-04-14-T, (finding that in circumstances where the RPE require the Trial Chamber to give leave for the bringing of an interlocutory appeal, the Appeals Chamber has no inherent jurisdiction to hear an interlocutory appeal in the absence of the grant of such leave by the Trial Chamber).

²³¹ *Prosecutor v. Bagosora and 28 Others*, ICTR 98-37-A, Decision on the Admissibility of the Prosecutor's Appeal from the Decision of a Confirming Judge Dismissing an Indictment against Théoneste Bagosora and 28 Others, Appeals Chamber, 8 June 1998 (available under <http://www.legal-tools.org/doc/093636/>).

²³² *Ibid.*, paras. 34–35.

²³³ *Ibid.*, paras. 37, 41.

²³⁴ See also Staker and Nerlich, *article 84*, mn 13.

²³⁵ *Prosecutor v. Norman et al.*, SCSL-04-14-T, Decision on Prosecution Appeal Against the Trial Chamber's Decision on 2 August 2004 Refusing Leave to File an Interlocutory Appeal, Appeals Chamber, 17 January 2005 (available under <http://www.legal-tools.org/doc/a301a4/>).

²³⁶ *Ibid.*, para. 32.

Prosecutor is inexistent²³⁷. Accordingly, it has consistently rejected appeals and motions that do not fall within the detailed legal framework of article 81 and 82²³⁸.

In the same vein, the ICC Appeals Chamber rejected appeals that were raised by the Host State in relation to the situation of witnesses in the cases *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui* and *Prosecutor v. Thomas Lubanga Dyilo*, who remained in the ICC's detention centre since their transfer to the ICC from detention in the Democratic Republic of the Congo and the filing of their asylum requests before Dutch authorities.²³⁹ It is worth pointing out that one of the first-instance Trial Chambers had specifically granted leave to the Host State to address the Appeals Chamber, but not on the basis of article 82, para. 1(d). About two and half years later, the Appeals Chamber was seised of an appeal by some of the detained witnesses themselves requesting their release from the ICC's detention centre in the case *Prosecutor v. Germain Katanga*; an appeal that was also dismissed as inadmissible by the Appeals Chamber²⁴⁰. On the same day, the Appeals Chamber addressed the situation of the very same witnesses in the parallel case of *Prosecutor v. Mathieu Ngudjolo Chui* on its own motion, ordering their immediate transfer to the Democratic Republic of the Congo. The Appeals Chamber assumed this jurisdiction on the basis that the case was at the stage of an article 81 appeal, where the Appeals Chamber is seised, like a Trial or Pre-Trial Chamber, of all issues arising during the proceedings²⁴¹. Therefore, the Appeals Chamber acted in a capacity akin to a first-instance Chamber and not, as in relation to the dismissed appeals, as a second-instance court²⁴².

Different from the above-described approaches, the ICTY Appeals Chamber has **allowed** 89 appeals in the absence of any statutory provision in the early days of its existence.

In one case, a defence counsel had been found guilty of contempt of the Tribunal by the Appeals Chamber ruling in the first instance. Although the Rules at that time made no provision for an appeal against such a decision of the Appeals Chamber, such an appeal was in fact entertained by a differently constituted Appeals Chamber²⁴³. In its decision on the appeal, the differently constituted Appeals Chamber observed that the 'preferred course in this case would have been for the contempt trial to have been initially referred to a Trial Chamber, thereby providing for the possibility of appeal, rather than being heard by the Appeals Chamber, ruling in the first instance'²⁴⁴. Nevertheless, it considered that the provisions of the RPE dealing with contempt of the Tribunal were penal in nature, given that contempt was punishable by imprisonment of up to seven years, that article 14, para. 5

²³⁷ *Situation in the Democratic Republic of the Congo*, ICC-01/04-168 OA3, Judgment on the Prosecutor's Application for Extraordinary Review of Pre-Trial Chamber I's 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, ICC Appeals Chamber, 13 July 2006, para. 39.

²³⁸ See e.g. *Prosecutor v. Gaddafi and Al Senussi*, ICC-01/11-91/11-74 OA, Decision on the admissibility of the 'Appeal against decision on application under rule 103' of Ms Mishana Hosseinioun of 7 February 2012, ICC Appeals Chamber, 9 March 2012; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2823 OA20, Decision on the 'Registrar's Submissions under regulation 24bis of the Regulations of the Court in relation to Trial Chamber I's decision ICC-01/04-01/06-2800' of 5 October 2011; ICC Appeals Chamber, 21 November 2011.

²³⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo*, ICC-01/04-01/07-3132 OA12, Decision on the 'Urgent Request for Directions' of the Kingdom of the Netherlands of 15 July 2011, ICC Appeals Chamber, 26 August 2011; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2799 OA19, Decision on the 'Urgent Request for Directions' of the Kingdom of the Netherlands of 17 August 2011, ICC Appeals Chamber, 26 August 2011.

²⁴⁰ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07-3424 OA14, Decision on the admissibility of the appeal against the Decision on the application for the interim release of detained witnesses DRC-D02-P0236, DRC-D02-P0228 and DRC-D02-P0350', ICC Appeals Chamber, 20 January 2014; see also Dissent of Judge Song.

²⁴¹ *Prosecutor v. Ngudjolo Chui*, ICC-01/04-02/12-158 A, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of the Congo concluded pursuant article 93 (7) of the Statute, ICC Appeals Chamber, 20 January 2014; see Staker and Eckelmans, *article 83*, mn 42–44.

²⁴² It should be noted that at that time the trial proceedings in the parallel case *Prosecutor v. Germain Katanga* were still ongoing.

²⁴³ *Prosecutor v. Tadić*, IT-94-1-A-AR77, Appeal Judgement on Allegations of Contempt by Prior Counsel, Appeals Chamber, 27 February 2001 (available under <http://www.legal-tools.org/doc/0216ed/>).

²⁴⁴ *Ibid.*

of the ICCPR therefore required that a person convicted of contempt have a right of appeal, and that due to the special circumstances of this case, it was appropriate for the Appeals Chamber to consider the merits of the appellant's complaints²⁴⁵. However, in a dissenting opinion, one member of the Appeals Chamber said that to allow such an appeal 'goes against the plain language of the Statute and Rules', and that the goal of providing an appeal from all convictions for criminal contempt 'must be accomplished without wrenching all meaning from the constraints on the jurisdiction of the Appeals Chamber as set out in the Statute and Rules'²⁴⁶. Under the legal framework of the ICC, such issue could not arise, because article 70 ('offences against the administration of justice') and the related rules set down a separate legal framework that would not allow the Appeals Chamber to convict a person for offences against the administration of justice.

In another case, a Trial Chamber had issued a subpoena against a journalist. The journalist filed a motion before the Trial Chamber seeking to have the subpoena set aside, asserting a testimonial privilege for journalists. The Trial Chamber rejected this motion. Although there was no provision in the Statute or Rules, which allowed the journalist to bring an appeal, the Appeals Chamber permitted the journalist to appeal against the decision, and ultimately allowed the appeal²⁴⁷.

- 90 e) **Reconsideration by the Appeals Chamber of its own final judgements.** The Appeals Chamber of the ICTY has held that it has an **inherent power to reconsider** any decision that it has given, whether an interlocutory decision, or a final judgment. This power may be exercised where the Appeals Chamber is persuaded that a **clear error of reasoning** in the previous judgement has been demonstrated by, for example, a subsequent decision of the Appeals Chamber itself, the International Court of Justice, the European Court of Human Rights or a senior appellate court within a domestic jurisdiction, or where the previous decision was given *per incuriam*. Whether or not the Appeals Chamber exercises this power is a discretionary matter, and the Appeals Chamber must be persuaded that the judgment sought to be reconsidered has led to an injustice²⁴⁸. The Appeals Chamber has said that this power is an aspect of its inherent jurisdiction, deriving from its judicial function, to ensure that its exercise of the jurisdiction which is expressly given to it by the Statute is not frustrated and that its basic judicial functions are safeguarded. The power to reconsider has been held to be necessary to address the prospect of any injustice resulting from the fact that the ICTY has only one level of appeal, which is not a *de novo* hearing²⁴⁹. However, the ICTY

²⁴⁵ *Ibid.*

²⁴⁶ *Ibid.*, Separate Opinion of Judge Wald. The ICTY/ICTR Rules were subsequently amended to provide expressly that where a decision on contempt of the Tribunal is given by the Appeals Chamber sitting as a Chamber of first instance, an appeal shall be decided by five different Judges as assigned by the President: see present rule 77 *lit. K*.

²⁴⁷ *Prosecutor v. Brđanin and Talić*, IT-99-36-AR73.9, Decision on Interlocutory Appeal, Appeals Chamber, 11 December 2002 (available under <http://www.legal-tools.org/doc/af7b61/>). See also *Prosecutor v. Milošević*, IT-02-54-AR73.6, Decision on the Interlocutory Appeal by the *Amici Curiae* Against the Trial Chamber Order Concerning the Presentation and Preparation of the Defence Case, Appeals Chamber, 20 January 2004, paras. 4–5, in which, on an exceptional basis, the Appeals Chamber entertained an interlocutory appeal brought by *amici curiae*, notwithstanding that the Appeals Chamber recognized that '[n]ot being a party to the proceedings, the *amici* are not entitled to use Rule 73 [ICTY] to bring an interlocutory appeal'.

²⁴⁸ *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15, para. 49; and also the Separate Opinion of Judge Shahabuddeen, paras. 10–15 (specifying that a 'clear error' justifying an exercise of this power would be 'something which the court manifestly or obviously overlooked in its reasoning and which is material to the achievement of substantial justice') (but see the Separate Opinion of Judges Meron and Pocar, who considered that it was unnecessary to decide this question in this case). In relation to the ICC, there is also some doctrinal support for the view that other remedies of 'reconsideration' or 'review' could be fashioned in the exercise of the Appeals Chamber's inherent jurisdiction: Schabas, *An Introduction to the International Criminal Court*, (2001) 135.

²⁴⁹ *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15, paras. 50–52, *Prosecutor v. Kajelijeli*, ICTR-98-44A-A, Judgement, Appeals Chamber, 23 May 2005, paras. 202–207.

Appeals Chamber has warned against '[o]ver-enthusiastic counsel who file frivolous applications for reconsideration'²⁵⁰.

The ICC Appeals Chamber as well as other ICC Chambers have so far been extremely **reluctant** to grant a request for reconsideration of their decisions²⁵¹. Nevertheless, the Pre-Trial and Trial Chambers developed a standard according to which they would reconsider their prior decision either upon a Chamber's own motion or prompted by a party but also stipulated the exceptionality of the measure²⁵². According to this jurisprudence decisions are reconsidered only when they are manifestly unsound and when their consequences are manifestly unsatisfactory²⁵³. The ICC Appeals Chamber has not yet expressed itself on when it would reconsider a decision²⁵⁴. However, it has not yet been confronted with scenarios similar to those before the ICTY/ICTR Appeals Chambers.

Additionally, the ICTY Appeals Chamber has indicated that it has a power to grant a motion for **clarification** of a decision, but only in exceptional circumstances, for example, where the operative part of the decision is involved, and where the motion does not require a reconsideration of the decision²⁵⁵. The ICC Appeals Chamber has consistently held that it is not an advisory body and rejected such requests, including motions for clarification²⁵⁶. Any Chamber also has a management duty with respect to the proceedings before it. That may, at times, necessitate clarification or further orders and directions²⁵⁷. However, more procedural clarity for the parties may also be achieved, e.g. by amending the Regulations of the Court that address the ICC's routine functioning²⁵⁸.

²⁵⁰ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, para. 15, para. 53.

²⁵¹ But see *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863, Decision on the Prosecution's motion for reconsideration of the decision excusing Mr Kenyatta from continuous presence at trial, Trial Chamber V(B), 26 November 2013; see also Dissenting Opinion of Judge Eboe Osuji.

²⁵² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2705, Decision on the defence request to reconsider the 'Order on numbering of evidence' of 12 May 2010, Trial Chamber I, 30 May 2011, para. 18; *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-863, Decision on the Prosecution's motion for reconsideration of the decision excusing Mr Kenyatta from continuous presence at trial, Trial Chamber V(B), 26 November 2013, para. 11.

²⁵³ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-01/11-863, Decision on the Prosecution's motion for reconsideration of the decision excusing Mr Kenyatta from continuous presence at trial, Trial Chamber V(B), 26 November 2013, para. 11; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-511, Decision on the request to present views and concerns of victims on their legal representation at the trial phase, Trial Chamber V(A), 13 December 2012, para. 6.

²⁵⁴ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-993 OA5, Decision on Mr Ruto's request for reconsideration of the 'Decision on the request for suspensive effect', Appeals Chamber, 27 September 2013, para. 8.

²⁵⁵ *Prosecutor v. Nikolić*, IT-94-2-AR73, Decision on Motion Requesting Clarification, Appeals Chamber, 6 August 2003 (available under <http://www.legal-tools.org/doc/a49989/>). But see, e.g., *Prosecutor v. Ljubičić*, IT-95-14-A, Decision on Prosecution's Motion for Clarification of the Appeals Chamber's Decision Dated 4 December 2002, Appeals Chamber, 8 March 2004 (available under <http://www.legal-tools.org/doc/40df15/>).

²⁵⁶ See *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1497 OA8, Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009, para. 38.

²⁵⁷ See e.g. *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-179 A, Decision on the 'Registry's urgent request for guidance' and further order in relation to the Appeals Chamber's 'Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of the Congo concluded pursuant article 93 (7) of the Statute', Appeals Chamber, 21 May 2014, paras. 7, 8.

²⁵⁸ Article 52, para. 1.

Article 82

Appeal against other decisions*

1. Either party may appeal any of the following decisions in accordance with the Rules of Procedure and Evidence:

- (a) A decision with respect to jurisdiction or admissibility;
- (b) A decision granting or denying release of the person being investigated or prosecuted;
- (c) A decision of the Pre-Trial Chamber to act on its own initiative under article 56, paragraph 3;
- (d) A decision that involves an issue that would significantly affect the fair and expeditious conduct of the proceedings or the outcome of the trial, and for which, in the opinion of the Pre-Trial or Trial Chamber, an immediate resolution by the Appeals Chamber may materially advance the proceedings.

2. A decision of the Pre-Trial Chamber under article 57, paragraph 3 (d), may be appealed against by the State concerned or by the Prosecutor, with the leave of the Pre-Trial Chamber. The appeal shall be heard on an expedited basis.

3. An appeal shall not of itself have suspensive effect unless the Appeals Chamber so orders, upon request, in accordance with the Rules of Procedure and Evidence.

4. A legal representative of the victims, the convicted person or a bona fide owner of property adversely affected by an order under article 75 may appeal against the order for reparations, as provided in the Rules of Procedure and Evidence.

Literature: See article 81.

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A. Introduction/General remarks

- 1 Interlocutory appeals have the potential to **disrupt the first-instance proceedings**, particularly once trial has actually commenced. In many national jurisdictions, interlocutory appeals are unknown or rare, and parties may be required to defer any appellate proceedings until after final judgment at first instance, by which time, depending on the course that the proceedings have taken, many issues may have become moot or irrelevant. Nevertheless, in some cases, **early resolution of, in particular, a point of law** may render unnecessary a lengthy and costly trial on certain allegations of fact. It may also avoid a situation in which a complex case needs

* The original commentary was written by Christopher Staker whose contribution is greatly acknowledged and served as a basis for this new version of the commentary. The views expressed are those of the author and cannot be attributed to the ICC or the United Nations.

to be retried as a result of the original conviction being overturned in a post-judgment appeal on an issue that might have been dealt with in an interlocutory appeal during the trial¹.

Article 82 is the **central provision** in the Statute regulating **appeals against ‘other decisions’**, i.e. decisions other than acquittals, convictions, and sentences issued by a Trial Chamber at the end of a trial (which are appealable under article 81). Nevertheless, article 81 para. 3 (c) (ii) provides for another appeal against ‘other decisions’, namely against decisions of a Trial Chamber to continue the detention of an acquitted person pending the outcome of the Prosecutor’s appeal against the acquittal. Conversely, the appeal provided for in article 82 para. 4 against reparation orders issued by a Trial Chamber under article 75 is better qualified as a ‘final’ appeal and therefore systematically incorrectly included in article 82.

Article 83 para. 1, which provides that ‘the Appeals Chamber shall have all the powers of the Trial Chamber’,² does not apply to appeals under article 82, leaving the **powers of the Appeals Chamber** under this article to be governed solely by the Rules. In that regard, Rule 149 makes the relevant provisions of the Statute and of the Rules governing proceedings and the submission of evidence before the Trial Chambers applicable *mutatis mutandis* to the proceedings before the Appeals Chamber, including in respect of appeals against ‘other decisions’. In addition, Rules 154–158 sets out the procedure for those appeals, including appeals brought under article 81 para. 3 (c) (ii). Further procedural provisions governing appeals against ‘other decisions’ are to be found in Regulations 64 and 65. As regards appeals against reparation orders under article 82 para. 4, they are treated in the Rules – systematically correctly – as appeals against ‘final decisions’.

Rule 158 para. 1 stipulates that the Appeals Chamber may ‘**confirm, reverse or amend the decision appealed**’. The practice of the Appeals Chamber has established a fourth possibility: the Chamber may, depending on the circumstances, remand a decision that it has reversed to the first-instance Chamber for that Chamber to issue a new decision in light of the Appeals Chamber’s judgment.³

Neither article 82 nor any of the other provisions applicable specifically to appeals against ‘other decisions’ sets out the errors that an appellant may raise on appeal. Nevertheless, the Appeals Chamber has accepted that appellants raise the errors referred to in article 81 para. 1 (a) in relation to ‘final appeals’, namely **errors of law, errors of fact, as well as procedural errors**.⁴ The showing of an error in the impugned decision is not sufficient for a reversal or amendment by the Appeals Chamber: in addition, the error must have ‘**materially affected**’ the decision, in the sense that, without the error, the decision would have been ‘substantially different’.⁵ Appellants are obliged to substantiate in their filings on appeal not only the alleged error of law, fact, or procedure, but also how the alleged error materially affected the impugned decision; failure to do so may lead to a summary rejection of the ground of appeal or indeed the appeal as a whole.⁶

¹ See, e.g., *Prosecutor v. Popović et al.*, IT-02-57-PT, IT-02-58-PT, IT-02-63-PT, IT-02-64-PT, IT-04-80-PT, IT-05-86-PT, Decision on Motion for Certification of Joinder Decision for Interlocutory Appeal, Trial Chamber, 6 October 2005 (available under <http://www.legal-tools.org/en/doc/8bfac0/>).

² Article 83 para. 1.

³ See, for instance, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-774, Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘Second Decision on the Prosecution Requests and Amended Requests for Redactions under Rule 81’, Appeals Chamber, 14 December 2006, paras. 64–66 (available under <http://www.legal-tools.org/en/doc/2b7ca3/>) in which the Appeals Chamber reversed a decision and directed the Pre-Trial Chamber to decide the matter anew.

⁴ *Situation in the Democratic Republic of the Congo*, ICC-01/04-169 (OA), Judgment on the Prosecutor’s appeal against the decision of Pre-Trial Chamber I entitled ‘Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58’, Appeals Chamber, 16 July 2006, para. 33. (available under <http://www.legal-tools.org/en/doc/8c20eb/>); for a discussion of these errors, see Eckelmans and Staker, article 81, mn 34 et seq.

⁵ Judgment ICC-01/04-01/06-169 (OA), see note 4, para. 84.

⁶ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-408, Judgment on the appeal of the Defence against the ‘Decision on the admissibility of the case under article 19 (1) of the Statute’ of 10 March 2009, 16 September 2009, paras. 48, 51 (available under <http://www.legal-tools.org/en/doc/c40d73/>).

- 6 Except in respect of appeals brought under article 82 para. 1 (a), the initial jurisprudence of the Appeals Chamber found that **participation of victims** in appeals against ‘other decisions’ was not automatic. According to that jurisprudence of the Appeals Chamber, victims have to apply to participate in a given interlocutory appeal, and this within the time limit for the submission of the response to the document in support of the appeal.⁷
- 7 The original ILC Draft Statute 1994 provided only for appeals against final judgments of conviction, acquittal and against sentence. Proposals for an additional provision dealing with interlocutory appeals had emerged by the 1996 Preparatory Committee.⁸ In the 1997 Preparatory Committee Report and in the Zutphen Report, no such provision was included, and interlocutory appeals were addressed in the proposed article dealing with the functions and powers of the Trial Chamber (which was ultimately adopted as article 64).⁹ In the 1998 Report of the Preparatory Committee, a proposal for this provision was included in the part on ‘Appeal and Review’, with the title ‘Appeal Against Interlocutory Decisions’.¹⁰ The ultimate deletion of the word ‘interlocutory’ from the title reflects the fact that, while most appeals under this article will be taken in the course of the pre-trial and trial proceedings, some may be taken after final judgment has been given by the Trial Chamber.¹¹ Furthermore, some decisions that are appealable under article 82 (for instance, decisions finding a case to be inadmissible) put an end to the proceedings and are therefore not ‘interlocutory’.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Chapeau elements

- 8 Unlike article 81, which provides for appeals by the ‘convicted person’ or the Prosecutor, article 82 para. 1 provides for appeals by ‘either party’. The term ‘party’ is not defined in the Statute; the Regulations use the (potentially broader) term ‘participant’. The Court being a criminal court, the accused person and the Prosecutor are the principal parties to the proceedings before it. Nevertheless, depending on the circumstances, ‘either party’ may refer to other participants than the accused person and the Prosecutor and may include, in particular, States.¹² This would explain the need for the separate provisions in article 18 para. 4 and article 19 para. 6, which also enable States to appeal certain decisions. In addition,

⁷ See *Prosecutor v. Laurent Gbagbo and Charles Blé Goudé*, ICC-02/11-01/15-172 (OA 6), Reasons for the ‘Decision on the “Request for the recognition of the right of victims authorized to participate in the case to automatically participate in any interlocutory appeal arising from the case and, in the alternative, application to participate in the interlocutory appeal against the ninth decision on Mr Gbagbo’s detention”’, Appeals Chamber, 31 July 2015, paras. 16–20 (available under <http://www.legal-tools.org/doc/23da6c/>). The system for victim participation in interlocutory appeals was first established in *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-824 (OA7), Judgment on the appeal of Mr Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘Décision sur la demande de mise en liberté provisoire de Thomas Lubanga Dyilo’, Appeals Chamber, 13 February 2007, paras. 11 *et seq.* (available at <http://www.legal-tools.org/doc/54fec3/>). See also the dissenting opinion of Judge Sang-Hyun Song to this decision, according to Judge Song, victims’ participation is automatic as victims are participants in terms of Regulation 64 of the Regulations of the Court and they are therefore entitled to file a response to the document in support of the appeal, provided that they participated in the first-instance proceedings that gave rise to the appeal. In the Appeals Chamber’s decision of 31 July 2015, it specifically adopted Judge Schg’s view to victim participation.

⁸ 1996 Preparatory Committee Report II 1996, pp. 239–240.

⁹ Preparatory Committee Decisions Aug. 1997, p. 31; Zutphen Draft, pp. 111–112 (which stated that the Trial Chamber had the power to ‘rule on any preliminary motions, and such ruling shall not be subject to interlocutory appeal except as provided for in the Rules’).

¹⁰ Preparatory Committee (Consolidated) Draft, p. 151.

¹¹ Notably reparation orders under article 75, which are appealable under article 82 para. 4.

¹² See generally Brady, in: Lee (ed.), *The International Criminal Court/Elements of Crimes and Rules of Procedure and Evidence* (2001), 575 at 593.

in respect of some appeals, the accused person is arguably not entitled to appeal. These peculiarities are noted below, in the discussion of the individual decisions that are subject to appeal under article 82 para. 1.

The chapeau of this article, in referring to ‘**decisions**’, contemplates only appeals against decisions issued by a Pre-Trial or Trial Chamber of the Court. Decisions by other authorities provided for in the Statute (such as a decision of a ‘competent authority’ of a custodial State under article 59) are thus not subject to appeal to the Appeals Chamber under paragraph 1.

Appeals must be brought ‘**in accordance with the Rules of Procedure and Evidence**’. As noted above, the relevant Rules governing interlocutory appeals are Rules 154–158. These Rules set out the time limits for the filing of the notice of appeal or, where applicable, of applications seeking leave to appeal; they are complemented by Regulations 64 and 65. Depending on whether the appeal in question lies as of right or requires the leave of the first-instance Chamber, the appellate procedure varies slightly. In the former case, the first step is the filing of the **notice of appeal** by the appellant within the time limit stipulated in the Rules. According to the jurisprudence of the Appeals Chamber, this time limit cannot be extended.¹³ After the filing of the notice of appeal, the appellant has to set out the arguments on appeal in the **document in support of the appeal**,¹⁴ to which the opposing party may file a **response**.¹⁵ In contrast, for appeals requiring the **leave of the first-instance Chamber**, the first step is the filing of the request for leave to appeal before that Chamber. If leave is granted, the appellant has to file directly the document in support of the appeal, to which the opposing party may respond.¹⁶

2. Subparagraph (a)

The decisions ‘with respect to **jurisdiction or admissibility**’ that are appealable under subparagraph (a) are primarily those taken under article 18 para. 2, second sentence, and article 19 paras 1 to 3. Appeals are expressly provided for in articles 18 para. 4 and 19 para. 6. Other decisions in Part 2 that are potentially appealable under this provision include, for instance, those under article 15 para. 4, and decisions on whether a particular investigation or prosecution falls within the terms of a Security Council resolution under article 13 (b) or article 16¹⁷. Thus far, however, the Appeals Chamber has given the term ‘decision with respect to jurisdiction or admissibility’ a **narrow interpretation**. The Appeals Chamber explained that ‘that the operative part of the decision itself must pertain directly to a question on the jurisdiction of the Court or the admissibility of a case. It is not sufficient that there is an indirect or tangential link between the underlying decision and questions of jurisdiction or admissibility.’¹⁸ On that basis, the Appeals Chamber rejected as inadmissible¹⁹ an appeal

¹³ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-189 (OA), Decision on the ‘Requête aux fins de suspension des délais prévus par la Règle 154(1) du Règlement de procédure et de preuve et par la Norme 64(5) du Règlement de la Cour jusqu’à la fin des vacances judiciaires, fixée au lundi 6 août 2012’, Appeals Chamber, 19 July 2012, para. 5 (available under <http://www.legal-tools.org/en/doc/8cc4f7/>).

¹⁴ See Regulation 64.

¹⁵ *Ibid.*

¹⁶ See Regulation 65.

¹⁷ But see Brady, note 12, 578–579, indicating that it is uncertain whether this provision extends to decisions under article 53 para. 3 (a) and article 15 para. 4; and cf. ICTY, *Prosecutor v. Krizic*, IT-95-14-R77.4-AR72.1, Decision on Interlocutory Appeal Challenging the Jurisdiction of the Tribunal, Appeals Chamber, 2 March 2006, holding that a challenge to jurisdiction in contempt of court proceedings is not a challenge to ‘jurisdiction’ for the purposes of ICTY Rule 72 (available under <http://www.legal-tools.org/en/doc/61d1bf/>).

¹⁸ *Situation in the Republic of Kenya*, ICC-01/09-78 (OA), Decision on the admissibility of the ‘Appeal of the Government of Kenya against the “Decision on the Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence”’, Appeals Chamber, 10 August 2011, para. 15 (available under <http://www.legal-tools.org/en/doc/872314/>).

¹⁹ The Appeals Chamber has developed the concept of ‘inadmissibility’ of appeals through its jurisprudence. If an appeal does not fall under the Appeals Chamber’s jurisdiction or is otherwise not properly before it, the Chamber will dismiss the appeal as inadmissible. In that case, the Appeals Chamber does not consider the merits

brought by the Republic of Kenya against a decision of a Pre-Trial Chamber that had rejected Kenya's request that the Court and the Prosecutor should provide Kenya assistance in respect of its own investigations of the post-election violence.²⁰

- 12 Similarly, in relation to '**jurisdiction**', the Appeals Chamber dismissed as inadmissible an appeal brought by the two accused persons in the *Ruto et al.* case that was directed against the Pre-Trial Chamber's interpretation of the term 'organizational policy' as a component of the contextual element of crimes against humanity (see article 7 para. 2 (a) of the Statute).²¹ The Appeals Chamber noted that the two accused did not question the Court's **temporal, territorial or personal jurisdiction** over the case, nor did they challenge that the Court had **subject-matter jurisdiction** over the crimes in question, and that the 'organizational policy' element was part of the definition of those crimes.²² The Appeals Chamber found that the interpretation of the term 'organizational policy' and whether there was sufficient evidence to find that there was such a policy was not a question of the jurisdiction of the Court, but of whether or not the charges against the accused could be confirmed. It noted that, if it were to consider the merits of the submissions of the accused any further, 'it would, in fact, be assessing the correctness of the decision to confirm the charges against them, insofar as it related to the existence of an "organizational policy"', and this notwithstanding the fact that the accused had neither sought nor obtained leave to appeal the confirmation decision.²³
- 13 Article 19, which governs the procedure for admissibility proceedings, is also relevant to determining the **potential appellants** against decisions with respect to jurisdiction or admissibility. Article 19 para. 2 (b) and (c) grants States the right to challenge, under certain conditions, the Court's jurisdiction or the admissibility of a case. It follows that States must also be entitled to bring an appeal against a decision in respect of jurisdiction or admissibility. Thus, in the context of appeals under article 82 para. 2 (a), 'either party' must be understood as including not only the suspect and the Prosecutor, but also States.²⁴ This is expressly set out in article 18 para. 4. The specific reference to States in that provision suggests that potential suspects of an investigation by the Prosecutor do not have a right to appeal against preliminary admissibility rulings taken pursuant to article 18, even though it is conceivable that suspects will have been identified by the Prosecutor already at the early stages of an investigation.
- 14 The victims' right pursuant to article 19 para. 3 to submit observations in proceedings with respect to jurisdiction and admissibility extends to the ensuing appeals proceedings. Thus, a **specific victim participation regime** applies.²⁵ To facilitate their participation, the Appeals Chamber usually issues a decision at the outset of the proceedings, stipulating the time lines for the submission of the victims' observations and the responses thereto.²⁶ Furthermore,

of the appeal and does not specifically confirm the impugned decision. Furthermore, instead of rendering a 'judgment' on the interlocutory appeal, the Appeals Chamber usually issues a 'decision' to dismiss an inadmissible appeal. On the concept of 'inadmissibility' see Eckelmans, in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court* (2009), 527 at 538 *et seq.*

²⁰ Decision ICC-01/09-78 (OA), see note 18, paras 1–2.

²¹ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-414 (OA3, OA4), Decision on the appeals of Mr William Samoei Ruto and Mr Joshua Arap Sang against the decision of Pre-Trial Chamber II of 23 January 2012 entitled 'Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute', Appeals Chamber, 24 May 2012 (available under <http://www.legal-tools.org/en/doc/6934fb/>).

²² *Ibid.*, para. 23.

²³ *Ibid.*, para. 29.

²⁴ See Boas *et al.*, in: Sluiter *et al.* (eds.), *International Criminal Procedure/Principles and Rules* (2013) 967; for a differing view see Roth and Henzelin, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court/A Commentary* (2002), Volume II, 1551.

²⁵ See above, margin number 6.

²⁶ See, for example, *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-393 (OA3), Order on the re-filing of the document in support of the appeal and Directions on the filing of observations, Appeals Chamber, dated 8 April 2009 and registered on 9 April 2009, (available under <http://www.legal-tools.org/en/doc/1002ab/>); *Prosecutor v. Germain Katanga and Mathieu Ngudjolo*, ICC-01/04-01/07-1295 (OA8), Directions on the submission of observations pursuant to article 19 (3) of the Rome Statute and rule 59 (3) of the Rules of Procedure and

pursuant article 19 para. 3 of the Statute, not only victims, but also ‘those who have referred the situation under article 13’ may make observations. Accordingly, where applicable, the Appeals Chamber has invited the referring State to make observations.²⁷ In relation to the admissibility challenges brought by Libya in relation to the case *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, the Appeals Chamber invited victims to make observations,²⁸ but not the Security Council, which had referred the situation to the Court; while the Pre-Trial Chamber had invited the Security Council to make observations in these cases,²⁹ none were received.

3. Subparagraph (b)

Under subparagraph (b), decisions ‘granting or denying release of the person being investigated or prosecuted’ may be appealed as of right. In the main, these are decisions on requests for interim release and reviewing detention under article 60 paras. 2 to 4. Otherwise, the Appeals Chamber has interpreted the scope of the provision narrowly. Notably, it has rejected attempts to bring appeals against decisions on the confirmation of charges under subparagraph (b). In *Lubanga*, it found that a decision confirming the charges against an accused was not a decision denying his release.³⁰ The Appeals Chamber reasoned that ‘[t]he decision confirming the charges neither grants nor denies release. The effect or implications of a decision confirming or denying the charges do not qualify or alter the character of the decision.’³¹ Similarly, in the *Mbarushimana* case, the Appeals Chamber found that a decision denying the confirmation of charges did not amount to a decision granting the suspect release.³² The Appeals Chamber concluded that neither article 61 para. 10, according to which any warrant ceases to have effect if charges are not confirmed, nor the fact that the Pre-Trial Chamber specifically ordered Mr Mbarushimana’s release changed the character of the decision on the confirmation of charges or made it a decision granting release.³³ In addition, the Appeals Chamber dismissed the Prosecutor’s appeal, also brought under subparagraph (b), against the Pre-Trial Chamber’s decision rejecting the Prosecutor’s request to stay the release of Mr Mbarushimana pending the determination of

Evidence, Appeals Chamber, dated 10 July 2009 and registered on 13 July 2009 (available under <http://www.legal-tools.org/en/doc/76e410/>).

²⁷ See, for example, Decision ICC-02/04-01/05-393, note 26; Decision ICC-01/04-01/07-1295, see note 26.

²⁸ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-383, Order in relation to the filing of victims’ observations and the request pursuant to rule 103 of the Rules of Procedure and Evidence, Appeals Chamber, 16 July 2013 (admissibility challenge in relation to Mr Gaddafi) (available under <http://www.legal-tools.org/en/doc/92a718/>); *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-481, Order in relation to the filing of victims’ observations, Appeals Chamber, 22 November 2013 (admissibility challenge in respect of Mr Al-Senussi) (available under <http://www.icc-cpi.int/iccdocs/doc/doc1686786.pdf>).

²⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-134, Decision on the Conduct of the Proceedings Following the ‘Application on behalf of the Government of Libya pursuant to Article 19 of the Statute’, Pre-Trial Chamber I, 4 May 2012 (admissibility challenge in respect of Mr Gaddafi) (available under <http://www.legal-tools.org/en/doc/bfc19d/>); *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-325, Decision on the conduct of the proceedings following the ‘Application on behalf of the Government of Libya relating to Abdullah Al-Senussi pursuant to Article 19 of the ICC Statute’, Pre-Trial Chamber I, 26 April 2013 (admissibility challenge in respect of Mr Al-Senussi) (available under <http://www.legal-tools.org/en/doc/f2522d/>).

³⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-926 (OA8), Decision on the admissibility of the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I entitled ‘Décision sur la confirmation des charges’ of 29 January 2007, Appeals Chamber, 13 June 2007 (available under <http://www.legal-tools.org/en/doc/d0b8dd/>).

³¹ Decision ICC-01/04-01/06-926, see note 30, para. 15 (footnote omitted).

³² *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-482 (OA3), Reasons for ‘Decision on the appeal of the Prosecutor of 19 December 2011 against the “Decision on the confirmation of the charges” and, in the alternative, against the “Decision on the Prosecution’s Request for stay of order to release Callixte Mbarushimana” and on the victims’ request for participation’ of 20 December 2011, Appeals Chamber, 24 January 2012 (available under <http://www.legal-tools.org/en/doc/fa1127/>).

³³ Decision ICC-01/04-01/10-482 (OA3), see note 32, paras. 21–22.

the Prosecutor's application for leave to appeal the confirmation decision. The Appeals Chamber found that, even though the granting of a stay would have affected Mr Mbarushimana's release, the decision denying such a stay was merely 'a procedural decision that did not address the substance of whether release should be granted or whether Mr Mbarushimana should remain in detention'.³⁴ In light of this jurisprudence, it is questionable whether other decisions that have a bearing on detention but are not taken under article 60 paras. 2 to 4 are appealable under subparagraph (b). For instance, **decisions on the review of sentence** taken under article 110 arguably do not fall under subparagraph (b), since they are not, strictly speaking, decisions 'granting or denying release', nor are they decisions taken in respect of a person 'being investigated or prosecuted'. In that regard, it must also be noted that, pursuant to Rule 224 para. 1, decisions on the review of the sentence are taken by a panel of three judges of the Appeals Chamber. This suggests that no appeal is possible.

- 16 The Appeals Chamber has developed a specific jurisprudence on appeals relating to interim release. Notably, the Appeals Chamber has adopted a **deferential standard of review**, in particular in view of the fact that whether the (continued) detention of an individual appears necessary for one or more of the grounds listed in article 58 para. 1 (b) of the Statute involves 'an element of prediction'.³⁵ This appears to be appropriate, not least because the first-instance Chamber is more familiar with the case record.

4. Subparagraph (c)

- 17 Subparagraph (c) provides for appeals against decisions of the Pre-Trial Chamber under article 56 para. 3 (b) to take measures on its own initiative in relation to a unique investigative opportunity. Article 56 para. 3 (c) clarifies that only the Prosecutor is entitled to appeal such a decision.³⁶ This stands to reason, as the issue concerns primarily, if not exclusively, the relationship between the Prosecutor and the Pre-Trial Chamber and their respective powers in the investigation of crimes.

5. Subparagraph (d)

- 18 Subparagraph (d) gives the Pre-Trial and Trial Chambers the power to grant leave to appeal their decision if certain criteria are met. Unlike in case of appeals under subparagraphs (a)-(c), an appeal under subparagraph (d) does not lie as of right. It can be brought **only with the leave** of the Chamber that rendered the decision against which it is sought to appeal.³⁷ The jurisprudence of the Court indicates that an application to appeal under this provision must be examined in the light of three principles, namely: 'the restrictive character of the remedy provided for in article 82 (1) (d) of the Statute; the need for the applicant to satisfy the Chamber as to the existence of specific requirements stipulated by this provision; [and] the irrelevance of or non-necessity at this stage for the Chamber to address arguments relating to the merit or substance of the appeal'.³⁸ In particular, this jurisprudence has

³⁴ Decision ICC-01/04-01/10-482 (OA3), see note 32, para. 31.

³⁵ Decision ICC-01/04-01/06-824 (OA7), see note 7, para. 137.

³⁶ See also Brady, note 12, 579–580.

³⁷ The Appeals Chamber has held that the leave of the Trial Chamber 'constitutes the definitive element for the genesis of the right to appeal': *Situation in the Democratic Republic of the Congo*, ICC-01/04-168 (OA 3), Judgment on the Prosecutor's Application for Extraordinary Review of Pre-Trial Chamber I's 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, Appeals Chamber, 13 July 2006, para. 20. See also Rules 154 and 155 (available under <http://www.legal-tools.org/en/doc/a60023/>).

³⁸ *Situation in the Democratic Republic of the Congo*, ICC-01/04-135-tEN, Decision on the Prosecution's Application for Leave to Appeal the Chamber's Decision of 17 Jan. 2006 on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 31 March 2006, para. 19 (and see also paras. 25, 29–31) (available under <http://www.legal-tools.org/en/doc/902494/>); *Situation in Uganda*, ICC-02/04-01/05-20, Decision on Prosecutor's Application for Leave to Appeal in Part Pre-Trial Chamber II's Decision on the Prosecutor's Applications for Warrants of Arrest under Article 58, Pre-Trial Chamber, 20 August 2005, para. 15 (and see also paras. 22–23) (available under <http://www.legal-tools.org/en/doc/cae449/>).

emphasized that leave to appeal is to be granted only under **limited and very specific circumstances**, and that it is insufficient that the proposed appeal raises an issue of general interest or importance.³⁹ Under subparagraph (d), an applicant for leave to appeal must meet both of two cumulative criteria. The first criterion is that the decision sought to be appealed involves an issue that would significantly affect *either* (1) the fair and expeditious conduct of the proceedings (in the sense that the issue significantly affects the proceedings both in terms of fairness *and* in terms of expeditiousness) *or* (2) the outcome of the trial. The **merits of the eventual appeal** are not a consideration when deciding whether or not to grant leave to appeal.⁴⁰ The second criterion is that an immediate resolution of such issue by the Appeals Chamber may materially advance the proceedings. If the conditions of the first criterion are not met, a Chamber considering an application for leave to appeal under this subparagraph need not examine the second criterion.⁴¹

The Appeals Chamber has defined ‘**issue**’ in terms of subparagraph (d) as ‘an identifiable **19** subject or topic requiring a decision for its resolution [...] An issue is constituted by a subject the resolution of which is essential for the resolution of a matter arising in the judicial cause under examination. The issue may be legal or factual or a mixed one’.⁴² The issue must arise from the decision that is to be appealed and ‘cannot represent a hypothetical concern or an abstract legal question’.⁴³ In the practice of the Court, the ‘issue’ is not only relevant for the question of whether leave to appeal should be granted, but also for the subsequent appeals proceedings. The Appeals Chamber has refused to consider arguments on appeal that fall outside the ‘issue’ in relation to which leave to appeal was granted, in particular, if the first-instance Chamber has rejected leave to appeal in respect of the argument now raised on appeal.⁴⁴ Nevertheless, while the ‘issue’ therefore limits – at least

³⁹ Decision ICC-01/04-135, see note 38, paras. 21–24; Decision ICC-02/04-01/05, see note 38, paras. 16–18, 55.

⁴⁰ *Situation in Uganda*, ICC-02/04-01/05-20, Decision on Prosecutor’s Application for Leave to Appeal in part Pre-Trial Chamber II’s Decision on the Prosecutor’s Applications for Warrants of Arrest under Article 58, Pre-Trial Chamber II, 19 August 2005, para. 22 (available under <http://www.legal-tools.org/en/doc/cae449/>).

⁴¹ Judgment ICC-01/04-168, see note 37, paras. 6–19; Decision ICC-01/04-135, see note 38, paras. 25–28; Decision ICC-02/04-01/05-20-US-Exp, see note 38, paras. 20–21 (and see also *Situation in the Democratic Republic of the Congo*, ICC-01/04-14, Decision on the Prosecutor’s Application for Leave to Appeal, Pre-Trial Chamber, 14 March 2005 (available under <http://www.legal-tools.org/en/doc/799eaf/>)). As to whether a decision affects the *fairness* of the proceedings, it has been said that fairness includes respect for the procedural rights of the Prosecutor, the Defence, and the Victims; and that, at the investigation phase of a situation, fairness to the Prosecutor means that the Prosecutor must be able to exercise the powers and fulfil the duties listed in article 54 (Decision ICC-01/04-135, see note 38, paras. 38–39, 43; see also Decision ICC-02/04-01/05-20-US-Exp, see note 38, para. 31). It appears that the burden is on the applicant for leave to appeal to produce any necessary evidence to establish that the fairness of the proceedings would be significantly affected by the decision (see note 23, Decision ICC-01/04-135, see note 38, paras. 44, 51), and that it is insufficient to cite merely hypothetical examples of how the fairness of the proceedings may be affected (*ibid.*, para. 48, 55). See also generally Judgment ICC-01/04-168, see note 37, para. 11. As to whether a decision affects the *expeditious conduct* of the proceedings, it has been suggested that this will be the case if failure to provide for an immediate resolution of the issue at stake by the Appeals Chamber would entail the risk that lengthy and costly trial activities are nullified at a later stage (Decision ICC-02/04-01/05-20-US-Exp, see note 38, para. 36 (see also para. 43)). As to whether an issue is one that may affect the *outcome of the trial*, it has been said that this expression does not encompass every issue that may influence the course of the proceedings in general terms, and that only those issues having a bearing on the Trial Chamber’s decision to convict or to acquit are of relevance in this context (*ibid.*, para. 48). As to whether an issue is one for which an immediate resolution by the Appeals Chamber may *materially advance the proceedings*, it has been said that there must be a specific link between the immediate resolution of the issue at stake and the impact on the *current* proceedings, as opposed to merely a potential impact on future proceedings (*ibid.*, paras. 52–55). See also generally Judgment ICC-01/04-168, see note 37, paras. 14–19.

⁴² Decision ICC-01/04-168, see note 37, para. 9.

⁴³ *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-464, Decision on the Prosecutor’s and Defence requests for leave to appeal the decision adjourning the hearing on the confirmation of charges, Pre-Trial Chamber I, 31 July 2013, para. 8 (www.legal-tools.org/en/doc/799eaf <http://www.legal-tools.org/en/doc/56ca30/>).

⁴⁴ See the references cited in *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-572 (OA5), Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I of 3 June 2013 entitled ‘Decision adjourning the hearing on the confirmation of charges pursuant to article 61(7)(c)(i) of the Rome Statute’, Appeals Chamber, 16 December 2013, footnote 142 (available under <http://www.legal-tools.org/en/doc/1bfda/>). This practice has led parties to discontinue appeals: in the *Banda and Jerbo* case, the Defence, having been granted leave to appeal

in practice – the Appeals Chamber’s consideration, it determines in appeals under subparagraph (d) whether the decision under appeal – in particular, its operative part – can stand, and does not merely decide the ‘issue’ in the abstract.

- 20 Although the decision as to whether to grant leave to appeal lies with the first-instance Chamber, the Appeals Chamber exercises a degree of **control** as to whether **leave was properly granted**. In the *Lubanga* case, the Appeals Chamber rejected an appeal as inadmissible, noting that the Trial Chamber had granted leave to appeal ‘on an exceptional basis’, even though the conditions under subparagraph (d) had not been fulfilled.⁴⁵ Also in the *Lubanga* case, the Appeals Chamber rejected an appeal as inadmissible even though the Trial Chamber had granted leave to appeal under subparagraph (d): it found that, contrary to the Trial Chamber’s own characterization of the decision, the ‘Decision establishing the principles and procedures to be applied to reparations’⁴⁶ was appealable under article 83 para. 4 because it was deemed to be a reparations order, and that, therefore, the appeal brought under article 82 para. 1 (d) was inadmissible.⁴⁷ The Appeals Chamber found that ‘[w]here necessary, the Appeals Chamber itself has to establish the true nature of an impugned decision, in order to ensure that the decision in question is appropriately before it, and that the appeal is determined pursuant to the correct legal basis.’⁴⁸ In contrast, decisions of the Pre-Trial or Trial Chamber rejecting requests for leave to appeal cannot be reviewed by the Appeals Chamber.⁴⁹

II. Paragraph 2

- 21 Under paragraph 2, a Pre-Trial Chamber’s decision under article 57 para. 3 (d) to ‘[a]uthorize the Prosecutor to take specific investigative steps within the territory of a State Party without having secured the cooperation of that State under Part 9’ may be appealed. Neither the Statute nor the Rules stipulate the **criteria for the granting of leave to appeal**. The procedure and time limits for the application for leave to appeal and the ensuing appeal are the same as for appeals under article 82 para. 1 (d). This paragraph (like articles 18 para. 4 and 56 para. 3 (b)) provides for the relevant appeals to be heard ‘on an expedited basis’. The procedure for ‘expedited’ appeals is not spelled out in the Statute, leaving this to be governed by the Rules.⁵⁰

in relation only to one of two issues in relation to which leave to appeal had been sought, decided not to pursue the appeal, stating that, given that leave to appeal the second issues had been denied, ‘it is prevented from proceeding to explore the adequacy of the Trial Chamber’s decision to proceed to trial and keep the Defence complaints in mind’; *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-435 (OA3), Defence Notice to the Registrar of the Discontinuance of the Defence appeal against the Decision on the defence request for a temporary stay of proceedings (ICC-02/05-03/09-410), 21 December 2012, para. 11 (available under <http://www.legal-tools.org/en/doc/9e4e1e/>).

⁴⁵ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2799 (OA19), Decision on the ‘Urgent Request for Directions’ of the Kingdom of the Netherlands of 17 August 2011, Appeals Chamber, 26 August 2011 (available under <http://www.legal-tools.org/doc/88d2f4/>).

⁴⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2904, Decision establishing the principles and procedures to be applied to reparations, Trial Chamber I, 7 August 2012 (available under <http://www.legal-tools.org/en/doc/a05830/>).

⁴⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2953 (A1, A2, A3, OA21), Decision on the admissibility of the appeals against Trial Chamber I’s ‘Decision establishing the principles and procedures to be applied to reparations’ and directions on the further conduct of proceedings, Appeals Chamber, 14 December 2012, paras. 51 *et seq.* (available under <http://www.legal-tools.org/en/doc/2e59a0/>).

⁴⁸ Decision ICC-01/04-01/06-2953, see note 47, para. 50.

⁴⁹ See Decision ICC-01/04-168, see note 37.

⁵⁰ Rules 154 and 155 impose short time limits for such appeals. Rule 156 provides that such appeals shall be in writing unless the Appeals Chamber decides to convene a hearing, and that the appeal shall be heard ‘as expeditiously as possible’.

III. Paragraph 3

The filing of an appeal suspends the execution of the first-instance decision only if the Appeals Chamber orders, pursuant to article 82 para. 3 read with Rule 156 para. 5, that the appeal should have **suspensive effect**. The application for suspensive effect must be contained in the notice of appeal or, in case of appeals under article 82 para. 1 (d) or para. 2, in the document in support of the appeal.⁵¹ Failure to do so may lead to a rejection of the request for suspensive effect.⁵²

The granting of suspensive effect leads to the ‘non-enforcement of a decision, the subject of the appeal’.⁵³ However, the Appeals Chamber cannot, by granting suspensive effect, order provisional measures to protect the interests of the appellant.

The decision of the Appeals Chamber on the granting of suspensive effect is **discretionary**.⁵⁴ In exercising its discretion, the Appeals Chamber takes into account, in particular, whether the implementation of the decision under appeal would create an irreversible situation that could not be corrected, even if the Appeals Chamber were eventually to find in favour of the appellant.⁵⁵

IV. Paragraph 4

Paragraph 4 provides for appeals against **reparations orders**. As noted above, this type of appeal belongs systematically to the category of ‘final’ appeals. Accordingly, Rules 150 to 153, governing the procedure for ‘final’ appeals, also apply to appeals against reparations orders. Rule 153 fills the gap that arises because of the fact that article 83 para. 2 sets out the powers of the Appeals Chamber only in respect of appeals against acquittals, convictions and sentencing decisions, stipulating that the Appeals Chamber, upon appeal, may ‘reverse or amend’ the impugned decision, or order a new trial before a new Trial Chamber. Under Rule 153, the Appeals Chamber has the same powers in appeals against reparations orders, except that the Appeals Chamber cannot order a new trial. This stands to reason, given the limited scope of an appeal against a reparations order.

The Appeals Chamber has clarified that the **convicted person** has a right to appeal a reparations order, irrespective of whether or not it specifically ordered him or her to pay reparations.⁵⁶ The Appeals Chamber found furthermore that the term ‘**victim**’ in paragraph 4 includes individuals who did not participate as victims in the trial proceedings, but only now claimed reparations.⁵⁷ This includes individuals whose requests for participation were rejected at trial, given that ‘reparations proceedings are a distinct stage of the proceedings

⁵¹ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-817 (OA3), Decision on the Request of Mr Bemba to Give Suspensive Effect to the Appeal Against the ‘Decision on the Admissibility and Abuse of Process Challenges’, Appeals Chamber, 9 July 2010, para. 8 (in relation to appeals that require the filing of a notice of appeal) (available under <http://www.legal-tools.org/en/doc/c4d631/>).

⁵² Decision ICC-01/05-01/08-817, see note 51, para. 10.

⁵³ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-92 (OA), Decision on the Prosecutor’s ‘Application for Appeals Chamber to Give Suspensive Effect of Prosecutor’s Application for Extraordinary Review’, Appeals Chamber, 13 July 2006, para. 3 (available under <http://www.legal-tools.org/doc/c1fc7d/>).

⁵⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1347 (OA9, OA10), Decision on the requests of the Prosecutor and the Defence for suspensive effect of the appeals against Trial Chamber I’s Decision on Victims’ participation of 18 January 2008, Appeals Chamber, 22 May 2008, para. 10 (available under <http://www.legal-tools.org/en/doc/093bc1/>).

⁵⁵ See, for example, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1290 (OA11), Decision on the request of Mr. Thomas Lubanga Dyilo for suspensive effect of his appeal against the oral decision of Trial Chamber I of 18 January 2008, Appeals Chamber, 22 April 2008, para. 8 (available under <http://www.legal-tools.org/en/doc/86650f/>).

⁵⁶ Decision ICC-01/04-01/06-2953, see note 47, para. 66.

⁵⁷ Decision ICC-01/04-01/06-2953, see note 47, paras. 69–70.

and it is conceivable that different evidentiary standards and procedural rules apply to the question of who is a victim for the purposes of those proceedings.⁵⁸ The Appeals Chamber also clarified that, despite the formulation of paragraph 4, the right to appeal lies with the victims themselves, not their legal representatives, although an appeal may only be brought with the assistance of a legal representative.⁵⁹ Finally, the Appeals Chamber found that the **Prosecutor** was not a party to appeals proceedings under paragraph 4 and therefore not entitled to make submissions before the Appeals Chamber.⁶⁰ In contrast, *bona fide owners of property* affected by a reparations order are entitled to appeal.

- 27 Although this provision only refers to an appeal against an ‘order for reparations’, presumably it would also be possible for victims to appeal against a decision refusing to make an order for reparations.

C. Special remarks

- 28 Article 82 empowers the Appeals Chamber to entertain appeals against certain decision of the Pre-Trial and Trial Chambers. Article 82 does not give the Appeals Chamber any **general power to supervise or intervene** in ongoing proceedings before a Pre-Trial Chamber or Trial Chamber. The Appeals Chamber has held that it does not have the power to entertain an application to stay all proceedings pending before another Chamber of the Court to enable the assignment of new counsel.⁶¹ The Appeals Chamber has also rejected the suggestion that the Pre-Trial and Trial Chambers are ‘inferior courts’ in the sense of English and Welsh law.⁶²

⁵⁸ Decision ICC-01/04-01/06-2953, see note 47, para. 70.

⁵⁹ Decision ICC-01/04-01/06-2953, see note 47, para. 67; for a differing view see Roth and Henzelin, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court/A Commentary* (2002), ii, 1551.

⁶⁰ Decision ICC-01/04-01/06-2953, see note 47, para. 74.

⁶¹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-844, Reasons for ‘Decision of the Appeals Chamber on the Defence application “Demande de suspension de toute action ou procédure afin de permettre la désignation d’un nouveau Conseil de la Défense” filed on 20 February 2007’ issued on 23 February 2007, Appeals Chamber, 9 March 2007 (available under <http://www.legal-tools.org/en/doc/67912e/>).

⁶² Decision ICC-01/04-168, see note 37, para. 30.

Article 83*

Proceedings on appeal

1. For the purposes of proceedings under article 81 and this article, the Appeals Chamber shall have all the powers of the Trial Chamber.

2. If the Appeals Chamber finds that the proceedings appealed from were unfair in a way that affected the reliability of the decision or sentence, or that the decision or sentence appealed from was materially affected by error of fact or law or procedural error, it may:

- (a) Reverse or amend the decision or sentence; or
- (b) Order a new trial before a different Trial Chamber.

For these purposes, the Appeals Chamber may remand a factual issue to the original Trial Chamber for it to determine the issue and to report back accordingly, or may itself call evidence to determine the issue. When the decision or sentence has been appealed only by the person convicted, or the Prosecutor on that person's behalf, it cannot be amended to his or her detriment.

3. If in an appeal against sentence the Appeals Chamber finds that the sentence is disproportionate to the crime, it may vary the sentence in accordance with Part 7.

4. The judgement of the Appeals Chamber shall be taken by a majority of the judges and shall be delivered in open court. The judgement shall state the reasons on which it is based. When there is no unanimity, the judgement of the Appeals Chamber shall contain the views of the majority and the minority, but a judge may deliver a separate or dissenting opinion on a question of law.

5. The Appeals Chamber may deliver its judgement in the absence of the person acquitted or convicted.

Literature: Baker M and Greenwood L., 'Dissent – But Only If You Really Feel You Must: Why Dissenting Opinions in International Commercial Arbitration Should Only Appear in Exceptional Circumstances', 7 No. 1 *DispResJ* 31; Jordash W. and Coughlan J., The right to be informed of the nature and cause of the charges: A potentially formidable jurisprudential legacy, in: S. Darcy and J. Powderly, *Judicial creativity at the International Criminal Tribunals* (2010) 286; Kelemen, K., 'Dissenting Opinions in Constitutional Courts', 14 *GLJ* 1345 (2013); Pikis, G. M., *The Rome Statute for the International Criminal Court, Analysis of the Statute, the Rules of Procedure and Evidence, the Regulations of the Court and Supplementary Instruments* (Brill 2010); Rasmussen H. and Rasmussen L.N., 'Comment on Katalin Kelemen', 14 *GLJ* 1373; Smith, H., 'Personal and Official Authority: Turn-of-the-century-lawyers and the Dissenting Opinion', 24 *YaleLJ&Hum* 507; Webb, P., *International Judicial Integration and Fragmentation* (OUP 2013).

For other literature see article 81.

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* The views expressed in this contribution are those of the author alone and do not reflect the views of the International Criminal Court or any other institution to which the author is or was attached.

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A. Introduction/General remarks

- 1 The relationship of this article to other provisions of the Statute is considered above¹.

B. Analysis and interpretation of elements

I. Paragraph 1

- 2 Para. 1 confers the powers of the Trial Chamber on the Appeals Chamber for the purposes of proceedings under article 81, paras. 1 and 2. Paragraph 1 is not applicable to proceedings under articles 82 and 84 of the Statute².
- 3 The powers of the Trial Chamber are laid down in Part 6 of the Statute (“The Trial”). Of particular relevance to appeal proceedings are articles 64, 68 and 69. The ICC Appeals Chamber has relied on the powers of the Trial Chamber in preparing hearings, deciding on disclosure and admitting evidence on appeal³. It did not interpret this provision as conferring power to hold a full re-trial on appeal⁴. Instead, in the *Lubanga* final appeal proceedings, the Appeals Chamber found appeal proceedings to be of a corrective nature⁵. This mirrors the jurisprudence of the *ad hoc* tribunals⁶. The ICTY Appeals Chamber has held that, in addition to the powers conferred on it by the Statute and the Rules, it also has an **inherent power** deriving from its judicial function, to control its proceedings in such a way as to ensure that justice is done⁷.
- 4 Article 83, para. 1 is complemented by rule 149 RPE that makes applicable *mutatis mutandis* ‘Parts 5 and 6 and rules governing proceedings and the submission of evidence in the Pre-Trial and Trial Chambers’ to all proceedings before the Appeals Chamber, including those under articles 82 and 84 of the Statute. This rule is similar to rule 107 ICTY/ICTR, adopted first in 1994⁸. Accordingly, subject to a *mutatis mutandis* assessment that may lead

¹ See Staker and Eckelmans, *article 81*, mn 2–6.

² See Nerlich, *article 82*, mn 3; see also *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-568 OA3, Judgment on the Appeal of Mr Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19 (2) (a) of the Statute of 3 October 2006, Appeals Chamber, 13 October 2006, paras. 15–18 (available under <http://www.legal-tools.org/doc/7813d4/>).

³ See e.g. *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3017 A5 A6, Decision on Mr Thomas Lubanga’s request for disclosure, Appeals Chamber, 11 April 2013 (available under <http://www.legal-tools.org/doc/2298fb/>), para. 9; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3067 A4 A5 A6, Scheduling Order for a hearing before the Appeals Chamber, Appeals Chamber, 21 March 2014 (available under <https://www.legal-tools.org/fr/doc/ba87df/>); *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red A5, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, 1 December 2014, para. 56 (available under <https://www.legal-tools.org/fr/doc/585c75/>), para. 54; see also below mn 21–60.

⁴ See Staker and Eckelmans, *article 81*, mn 20; see also Bohlander, *International Criminal Justice: A Critical Analysis of Institutions and Procedures* 494.

⁵ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 16–28, 56.

⁶ See Staker and Eckelmans, *article 81*, mn 20–27, note that the ICTY/ICTR Statutes do not have a provision similar to article 83, para. 1; see article 25 ICTY Statute, article 24 ICTR Statute.

⁷ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, paras. 16–19, 50, noting that this inherent power should not be exercised where any of the parties is thereby prejudiced.

⁸ They provide that ‘the rules of procedure and evidence that govern proceedings in the Trial Chambers shall apply *mutatis mutandis* to proceedings in the Appeals Chamber’.

to certain differences in the applicable law, there is legally little difference between the law applicable to the Appeals Chamber in appeals under article 81 and that under article 82, despite the prominent position of article 83, para. 1. Hence in practice, it may not be necessary to clarify certain minor points, such as whether a) the reference in article 83, para. 1 to article 81 of the Statute includes appeal proceedings pursuant to article 81, para. 3(c)(ii) of the Statute, and b) whether the legal provisions referenced by rule 149 RPE do or may exceed the scope of the powers conferred upon the Appeals Chamber pursuant to article 83, para. 1.

The Appeals Chamber has not interpreted these provisions as requiring it to hold an **appeals hearing**⁹. Nevertheless, in appeals raised pursuant to article 81, the Appeals Chamber has thus far called a hearing¹⁰.

II. Paragraph 2

Paragraph 2 has **three distinct elements**. First, it establishes the standard of review by which the Appeal Chamber is guided during the appeal proceedings and in its decision-making process. Second, it specifies the powers of the Appeals Chamber if the appeal is successful based on this standard of review. Third, it delimits the Appeals Chamber's powers in appeal proceedings raised solely pursuant to article 81, para. 1(b), i.e. by the convicted person or on his/her behalf.

The applicable **standard of review** is discussed in Staker/Eckelmans, *article 81*, mn 34–68.

As just set out, paragraph 2 also establishes the Appeals Chamber's **powers** upon reviewing the Trial Chamber's decision or sentence and allows the Appeals Chamber not merely to reverse such a decision, but also to amend it or to order a new trial before a different Trial Chamber. These powers apply when the Appeals Chamber establishes that one or several errors meet the relevant standard of review.

The *ad hoc* tribunals' Appeals Chambers have on many occasions *amended* a conviction by e.g. substituting a lesser crime or a different form of individual criminal responsibility for those found to exist by the Trial Chamber¹¹. Usually, any such amendment presupposes that the substituted crime or form of responsibility was part of the charges¹². It is an open question whether the ICC Appeals Chamber may change the legal characterisation of the facts pursuant to regulation 55 of the Regulations of the Court, e.g. in respect of the mode of liability or of a 'lesser' crime and which procedure it would need to adopt¹³. Regarding the additional fact-finding that may be required for an amendment, see below margin number 9.

⁹ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12-199 A, Scheduling Order for a hearing before the Appeals Chamber, Appeals Chamber, 18 September 2014, (available under <https://www.legal-tools.org/fr/doc/203990/>), paras. 12,13.

¹⁰ See below mn 41.

¹¹ See e.g. *Prosecutor v. Radislav Krstić*, IT-98-33-A, Judgement, Appeals Chamber, 19 April 2004, paras. 135–144 (convicted on appeal for aiding and abetting genocide instead of committing genocide); for a full reference to the ICTY/ICTR jurisprudence, see *Prosecutor v. Ante Gotovina and Mladen Markač*, IT-06-90-A, Judgement, Appeals Chamber, 16 November 2012, paras. 106–108; see also Staker/Eckelmans, *article 81*, mn 36–39.

¹² However, with respect to a 'lesser' crime, it was argued in *Prosecutor v. Delalic et al.* (Čelebići case), IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para. 866, that 'it is a principle of law' that a grave offence includes a lesser offence of the same nature'. Accordingly, where the accused was convicted by the Trial Chamber of the crime charged, the Appeals Chamber might in the event of a defence appeal be able to substitute a conviction for a lesser-included offence.

¹³ As to the scope of a change in the legal characterisation of facts pursuant to regulation 55 of the Regulations of the Court, see *Prosecutor v. Germain Katanga*, ICC-01/04-01/07-3363 OA13, Judgement on the appeal of Mr Germain Katanga against the decision of Trial Chamber II of 21 November 2012 entitled 'Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons', Appeals Chamber, 27 March 2013 (available under <https://www.legal-tools.org/fr/doc/9d87d9/>), paras. 48–58; and Dissenting Opinion of Judge Tarfusser.

The Appeals Chamber may also fully or partly reverse a conviction and consequently fully or partly **acquit** the accused, e.g. if it finds that amending the conviction would violate the rights of the accused¹⁴.

The ILC Draft Statute did not empower the Appeals Chamber to reverse or amend an *acquittal* by the Trial Chamber, but only to annul the decision of acquittal as a prelude to a new trial¹⁵. Under the provision as finally adopted, the Appeals Chamber can itself enter a guilty verdict instead of an acquittal, but only where an appeal for that purpose is brought by the Prosecutor pursuant to article 81 para. 1(a). The ICTY/ICTR Prosecutors usually appealed partial or full acquittals, but often without success.¹⁶ Noteworthy are two cases, where the ICTY Appeals Chamber found that, although the standard of review was met, it was not appropriate to reverse partial acquittals and enter convictions or order re-trial¹⁷. In others, it substituted partial acquittals by full convictions¹⁸.

- 8 The Appeals Chamber may order a **new trial** under subparagraph 2(b). The new trial needs to be conducted by a newly composed Trial Chamber. The statutory framework of other international tribunals does not specifically provide for the remedy of ordering a new trial, but limits the applicable remedies to affirming, reversing or revising the impugned decisions¹⁹. Nevertheless, the ICTY Appeals Chamber held since its early jurisprudence, in deciding to confirm an acquittal instead of ordering a new trial, that taking this decision lies within its discretion to be “exercised on proper judicial grounds, balancing factors such as fairness to the accused, the interests of justice, the nature of the offences, the circumstances of the case in hand and considerations of public interest”²⁰. The remedy of ordering a new trial, an ‘exceptional measure’²¹, has **rarely been imposed**. On one occasion, the ICTY Appeals Chamber ordered a new trial without even conducting full appeal proceedings²². On another, it remitted a case to a different Trial Chamber when it found the guilty-plea that was the basis for the conviction invalid²³. The **scope of re-trials** was discussed in the case *Prosecutor v. Haradinaj et al*²⁴. Finally, it is noteworthy that the ICTY/ICTR Appeals Chambers, in recent judgments, did not consider on their own motion (i.e. without a relief request of a

¹⁴ See *Gotovina and Markač* Appeal Judgement, IT-06-90-A, 16 November 2012, paras. 154–155; see also generally *Prosecutor v. Kupreškić et al.*, IT-95-16-A, Judgement, Appeals Chamber, 23 October 2001.

¹⁵ 1994 ILC Draft Statute with commentaries, 126 (available under <https://www.legal-tools.org/doc/390052/>).

¹⁶ For a statistical overview in this regard, see Re in: Reydam et al (eds.), *International Prosecutors* (2012), 797, 814–816 for statistics about ICTY appeals, 843–844 for statistics about ICTR appeals, 856 for statistics about SCSL appeals.

¹⁷ See *Prosecutor v. Zlatko Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, paras. 153–154; *Prosecutor v. Goran Jelisić*, IT-95-10-A, Judgement, Appeals Chamber, 5 July 2001, paras. 73–77.

¹⁸ See *Prosecutor v. Duško Tadić*, IT-94-1-A, Appeals Chamber, 15 July 1999.

¹⁹ Article 25, para. 2, ICTY Statute; article 24 ICTR Statute; article 20, para. 2, SCSL Statute; rule 104(2) ECCC Internal Rules.

²⁰ *Jelisić* Appeal Judgment, IT-95-10-A, 5 July 2001, para. 73, see Partially Dissenting Opinion of Judge Wald, paras. 3, 14.

²¹ See *Tharcisse Muvunyi v. Prosecutor*, ICTR-2000-55A-A, Judgement, Appeals Chamber, 29 August 2008, para. 148, where the Appeals Chamber ordered a re-trial on its own motion; see also Re in: Reydam et al (eds.) *International Prosecutors* (2012), 797, 810.

²² The ICTY Appeals Chamber has suggested that in cases where, during the appellate proceedings, a party presents substantial amounts of new evidence which could have been a decisive factor in reaching the decision at trial, the Appeals Chamber might order a new trial without first conducting any hearing or giving any judgement on the merits of the appeal: see *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Scheduling Order, Appeals Chamber, 31 October 2002; *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Decision on Evidence, Appeals Chamber, 31 October 2003, in which the Appeals Chamber said that ‘... Rule 117(C) of the Rules [of the ICTY] provides that ‘in appropriate circumstances the Appeals Chamber may order that the accused be retried according to law’; ... the decision whether to retain a case or to send it back for a re-trial lies within the discretion of the Appeals Chamber, in light of the circumstances of the case; and ... the interests of justice must be considered in such a decision’.

²³ *Prosecutor v. Drazen Erdemović*, IT-96-22-A, Judgement, Appeals Chamber, 7 October 1997; note the different legal framework re guilty plea at the ICC (article 65 of the Statute).

²⁴ *Prosecutor v. Ramush Haradinaj et al.*, IT-04-84bis-AR73.1, Decision on Haradinaj’s appeal on scope of partial retrial, Appeals Chamber, 31 May 2011, paras. 21–27.

party to that effect), whether ordering a new trial would have been an appropriate remedy; they decided to reverse the conviction and acquit the accused²⁵.

Para. 2 further stipulates certain powers that the Appeals Chamber has ‘for these purposes’, including remanding ‘a factual issue to the original Trial Chamber for it to determine the issue and to report back accordingly’ or to ‘itself call evidence to determine the issue’. The phrase ‘for these purposes’ may be most appropriately interpreted as meaning that these powers should only apply where the standard of review is met and the Appeals Chamber needs to determine which of the three remedies it should apply and how. It is therefore arguably distinct from matters relevant to additional evidence; see below, mn 45–59.

If, following the decision on appeal, there is no need to determine **additional facts** in order to reach a final verdict, it may be appropriate for the Appeals Chamber itself to amend the Trial Chamber’s judgment. Similarly, if as a result of the appeal, the final verdict depends only on one or more narrow issues of fact, it may be appropriate for the Appeals Chamber to use the powers laid down in the penultimate sentence of this paragraph, i.e. either to call evidence itself or to remand those issues of fact to the Trial Chamber. The Appeals Chamber is likely to use these powers rarely. On the one hand because the originally composed Trial Chamber may no longer exist as the term of office of some or all of the judges of that Chamber may have expired, as was the case in the *Lubanga* and the *Katanga/Ngudjolo* trials upon delivery of respectively the reparation and sentencing decision. In addition, if the original Trial Chamber were to make such findings, the parties would need to be heard by the Appeals Chamber on whether the Trial Chamber erred in coming to certain factual findings and on the impact of such findings on the outcome of the case. On the other hand, if the Appeals Chamber chose the unusual step²⁶ to itself make findings of fact at first instance, the defence could be considered deprived of any possibility of appeal against those findings; this could be regarded as contrary to article 14, para. 5 ICCPR, to which those provisions are intended to give effect²⁷. In addition, if such fact-finding before the Appeals Chamber was considered appropriate, it may need to be included in a second procedural appeals phase, disclosing to the parties that the appeal was (partly) successful and hearing their submissions. In any case, if wide-ranging new fact-finding was necessary, a new trial may be the more appropriate remedy. It is noteworthy that the ICTY Appeals Chamber remitted limited issues to a Trial Chamber in a sentencing appeal on the basis of its inherent powers²⁸.

Article 83, para. 2 does not spell out the Appeals Chamber’s power for the scenario that the appeal does not meet the standard of review. However, while not specified, the Appeals Chamber also has the power to reject the appeal and **confirm** the appealed decision where the appeal was not successful, rendering the impugned decision final²⁹. It is noteworthy in this context that rules 153 and 158 RPE relevant to article 82 appeals specifically stipulate that the Appeals Chamber may also confirm the impugned decision.

²⁵ See *Gotovina* and *Markač* Appeal Judgement that does not contain any such consideration, IT-06-90-A, 16 November 2012, see also Augustin Ndindiliyimana a. o. r. The Prosecutor, No. ICTR-00-56-A Judgement, 11 February 2014 and dissenting opinion of Judge Tuzmukhamedov, para. 6. Article 83, para. 2 may require a different approach of the ICC Appeals Chamber to reasoning in this respect.

²⁶ For instance, suggestions made by the United States of America in 1993 for the Rules of Procedure and Evidence of the ICTY observed that: ‘In most cases where further fact findings need to be made, it will be appropriate to permit the Trial Chamber which originally considered the case (and which has seen the demeanor of the witnesses) to carry out the fact-finding process. However, the Appeals Chamber has been given the power to hear evidence itself for the rare cases in which this would be more efficient.’ (IT/14, 17 November 1993, reproduced in: Morris and Scharf, *An Insider’s Guide to the International Criminal Tribunal for the Former Yugoslavia*, Vol.II (1995), 509, 556).

²⁷ See Staker and Eckelmans, *article 81*, mn 1. See also although in a different context Sidhwa in *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Separate Opinion of Judge Sidhwa, Appeals Chamber, 2 October 1995, paras. 121–123 and 124 (4).

²⁸ *Prosecutor v. Delalić et al.* (Čelebići case), IT-96-21-Abis, Judgement on Sentence Appeal, Appeals Chamber, 8 April 2003, paras. 7–16.

²⁹ See rule 150(4) RPE.

- 11 With respect to **sentencing**, the Appeals Chamber has essentially the same remedies as with respect to the verdict. It would usually fully reverse the sentencing decision without any further amendment, if the conviction decision was reversed and the accused acquitted. Article 78 para. 3 provides that, where a person is convicted of more than one crime, the Trial Chamber shall pronounce a separate sentence for each crime, as well as a joint sentence specifying the total period of imprisonment. In cases where one or more convictions are reversed on appeal, but other convictions stand, or where convictions were amended,³⁰ it may be necessary to determine whether this has any impact on the joint sentence, i.e. in terms of article 83, para. 3, whether the sentence is disproportionate due to the amendments or partial reversals of underlying convictions. Beyond that, even where the Appeals Chamber finds certain errors in the Trial Chamber's factual findings but nevertheless confirms the conviction as a whole, the Appeals Chamber may have to determine the impact of such errors on the sentence imposed. Conversely, where the Appeals Chamber reverses acquittals pronounced by the Trial Chamber in relation to one or more crimes, it will be necessary to determine the sentence for each of those crimes, as well as to consider whether these additional convictions have any impact on the joint sentence.

Sub-paragraph (a) clarifies that the Appeals Chamber may also amend a sentence, as the *ad hoc* tribunals did in many appeal judgments. Read together with paragraph 3, the Appeals Chamber will arguably amend a sentence by varying it, but only if it finds the sentence to be disproportionate to the crime. Accordingly, despite determining that the Trial Chamber erred in certain respects, the Appeals Chamber may confirm the sentence imposed if that sentence is ultimately not disproportionate. The Appeals Chamber may also determine that varying the sentence may not be the appropriate remedy and may accordingly **remand** that matter to a Trial Chamber for further sentencing proceedings. There are precedents for such a course of action at the ICTY and ICTR³¹. The relationship between the power to 'order a new trial' and to 'remand' a factual issue to the original Trial Chamber has not yet been addressed by the ICC Appeals Chamber and will depend on how sub-paragraph (b) is interpreted; that is whether it is understood as exclusively referring to the 'trial' as a whole and not also separately to a sentencing hearing³².

- 12 While not directly mentioned, paragraph 2 is only directly applicable to appeals under article 81, paras. 1 and 2³³. Rule 158(1) RPE is the parallel provision for **appeals under article 82**, paras. 1 and 2 (as well as article 81, para. 3(c)(2)). Rule 153(1) RPE is the parallel provision for appeals under article 82 (4) of the Statute. These provisions set out the power to confirm an appealed decision but do not specifically provide as a remedy the ordering of a new trial before a different Trial Chamber (i.e. in the context of article 82 appeals, ordering new proceedings before a different Pre-Trial or Trial Chamber). That this power is not specifically mentioned might be most relevant to those decisions appealable under article 82 that are not purely of an interlocutory character, such as decisions on admissibility or jurisdiction as well as to the reparation order.

³⁰ *Krstić* Appeal Judgment, IT-98-33-A, 19 April 2004, paras. 266–275.

³¹ Sentencing was remitted to a Trial Chamber in *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, paras. 710–713 and disposition, paras. 2–4; *Tadić* Appeal Judgement, IT-94-1-A, 15 July 1999, paras. 27–28, 327 (3) and (6); *Čelebići* Sentencing Appeal Judgement, IT-96-21-Abis, 8 April 2003, para. 3. Examples of where the Appeals Chamber itself revised the sentence include *Krstić* Appeal Judgment, IT-98-33-A, 19 April 2004, para. 266; *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para. 680; *Aleksovski* Appeal Judgement, IT-95-14/1-A, 24 March 2000, paras. 172–173; *Prosecutor v. Mladen Naletilić and Vinko Martinović*, IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, para. 632.

³² Where limited issues are remanded to the Trial Chamber, the Trial Chamber has no power to go beyond determining those limited issues, and cannot conduct a new trial: *Čelebići* Sentencing Appeal Judgement, IT-96-21-Abis, 8 April 2003, para. 17.

³³ See *Lubanga* OA 3 Judgment, ICC-01/04-01/06-568 OA3, 13 October 2006, (available under <http://www.legal-tools.org/doc/7813d4/>), paras. 15–18.

The Appeals Chamber, in reversing decisions appealed pursuant to article 82, para. 1, often³⁴ **remands** the matter to the first-instance chamber for it to apply the interpretation of the law as corrected by the Appeals Chamber to the concrete facts of the case. In conducting such proceedings, the first-instance Chamber needs to hear at times additional submissions from the parties and participants. While this remedy is not expressly foreseen in the legal texts, it is often a necessary addition to the power to reverse the impugned decision. This is arguably different from article 81, para. 1 appeals because the full reversal of a conviction entails acquittal, which is pronounced by the Appeals Chamber³⁵. The reversal though of an interlocutory decision without substitution may leave a gap in the proceedings if the proceedings were triggered by applications that would otherwise remain unresolved.

Where the appeal is raised only by or for the benefit of the convicted person, the last sentence of para. 2 clarifies that the conviction or sentence cannot be amended to his/her detriment. This incorporates the prohibition of a *reformatio in peius*, which is by reference to the **principle of fairness** also applied by the *ad hoc* tribunals. The ICTR Appeals Chamber held that this prohibition extends to the outcome of a re-trial if chosen as a remedy by the Appeals Chamber³⁶. According to the wording of this provision and also in line with the jurisprudence of the *ad hoc* tribunals, this prohibition does not apply if the Prosecutor also appeals. It may be mentioned in this context that Judge Pocar of the ICTY/ICTR Appeals Chambers has consistently held that imposing an additional or different conviction or higher sentence on appeal (or upon revision), usually on the basis of the Appeals Chamber's own assessment of the evidence, violates the right of the convicted person to appeal such a decision³⁷.

Detecting a *reformatio in peius* is usually straightforward with respect to sentencing, especially in the context of the ICC because article 78, para. 3 requires imposing a sentence for each crime as well as a joint sentence. Interpreting article 83, para. 3 in favour of the convicted person would arguably require applying this prohibition to each of the individual sentences and not only to the joint sentence. It is more difficult to detect whether a conviction to be entered on appeal is more detrimental than before, because the conviction decisions of international criminal tribunals often only contain a generally formulated operative part. Considering whether a conviction has become more detrimental to the convicted person solely on the basis of whether the operative part of a conviction decision has changed, might arguably not be sufficient for giving full protection to the rights of the convicted person on appeal. Rather, it might occasionally be necessary to consider in detail the findings of the Trial Chamber and compare them to those of the Appeals Chamber. Evidently, this comparison would be facilitated if the operative parts of conviction decisions and consequently of appeals judgments mirrored the detail required of charges laid against the convicted person and were accordingly more comprehensive³⁸.

³⁴ But see an example for a reversal without explicitly remanding the matter to the Trial Chamber: *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1386 OA5 OA6, Judgment on the appeals of Mr Jean-Pierre Bemba Gombo and the Prosecutor against the decision of Trial Chamber III entitled 'Decision on the admission of evidence of materials contained in the prosecution's list of evidence', 3 May 2011, para. 82; *Prosecutor v. Thoams Lubanga Dyilo*, ICC-01/04-01/06-2583 OA17, Judgment on the appeal of Prosecutor against the oral decision of Trial Chamber I of 15 July 2010 to release Thomas Lubanga Dyilo, 8 October 2010, para. 27; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2205 OA15 OA16, Judgment on the appeals of Mr Lubanga Dyilo and the Prosecutor against the Decision of Trial Chamber I of 14 July 2009 entitled 'Decision giving notice to the parties and participants that the legal characterisation of the facts may be subject to change in accordance with Regulation 55(2) of the Regulations of the Court', 8 December 2009, para. 112; see also Staker and Eckelmans, *article 81*, mn 38.

³⁵ See *Prosecutor v. Momčilo Perišić*, IT-04-81-A, Judgement, Appeals Chamber, 28 February 2013, ('Perišić Appeal Judgement') para. 122; *Gotovina and Markač* Appeal Judgement, IT-06-90-A, 16 November 2012, para. 158.

³⁶ *Muvunyi* Appeals Judgement, ICTR-2000-55A-A, 29 August 2008, para. 170, see also fn 382; it is noteworthy that the Appeals Chamber did not include this limitation in the operative part of the judgment but solely in the reasoning.

³⁷ See *Prosecutor v. Mile Mrkić and Veselin Šljivančanin*, IT-95-13/1-R.1, Review Judgement, Appeals Chamber, 8 December 2010, Partially Dissenting Opinion of Judge Pocar, paras. 1–13.

³⁸ While at the *ad hoc* tribunals the indictments are moulded in rather specific counts, this is more difficult e.g. at the ECCC that bases the trials on indictments contained in a judicial Closing Order or at the ICC where

III. Paragraph 3

- 14 Para. 3 is dealing with sentencing appeals and connects the ground of appeal in article 81, para. 2(a) with the standard of review and powers of the Appeals Chamber as laid down in article 83, para. 2. See Staker and Eckelmans, *article 81*, mn 64–68.

IV. Paragraph 4

- 15 Para. 4 stipulates that the ‘judgement’³⁹ of the Appeals Chamber needs to be taken by the majority of the Appeals Chamber’s judges and be delivered in open court. It further requires a reasoned judgment and sets out that the judgment “shall” contain the different views of the judges, but also allows for separate or dissenting opinions on questions of law. This provision is applicable to appeals under article 82 by virtue of rules 153(2) and 158(2) RPE⁴⁰.
- 16 The ILC Draft Statute did not provide for dissenting or separate opinions in the Appeals Chamber⁴¹. While some members of the ILC considered the possibility of dissenting or separate opinions ‘essential with respect to appellate decisions which deal with important questions of substantive and procedural law’⁴², the majority did not agree, apparently partly out of concern that they could undermine the authority of the Court and its judgments⁴³. Differences of opinion were also reflected in the 1996 Preparatory Committee Report⁴⁴. The principle of majority decisions was subsequently accepted, although the 1998 Preparatory Commission Report included an additional requirement in square brackets that the judges ‘shall attempt to achieve unanimity’, failing which a majority vote would be taken⁴⁵. This requirement was ultimately retained for Trial Chambers (article 74 para. 3), but, in cases where there is no unanimity, the Trial Chamber must still issue only one decision, which contains the views of both the majority and the minority (article 74 para. 5). Article 83 para. 4 imposes a similar requirement upon the Appeals Chamber, but adds that a judge of the Appeals Chamber may deliver a separate or dissenting opinion on a *question of law* as opposed to questions of *fact*⁴⁶.

It is the practice of the ICC Appeals Chamber that **separate and dissenting opinions** are delivered on all kinds of questions and in different manners, be it in relation to the entire appeal, i.e. as a completely separate opinion, or as an opinion directed only to one specific issue. They are also given on procedural decisions. Contrasting views on a subject have rarely

indictments (documents containing the charges) are not always formulated by counts and are subject to the confirmation of the Pre-Trial Chamber, but see recently *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-186, Decision on the confirmation of charges against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, (available under <https://www.legal-tools.org/fr/doc/0536d5/>), paras. 115–119, 183–194; on the specificity of indictments generally see Jordash and Coughlan, The right to be informed of the nature and cause of the charges: A potentially formidable jurisprudential legacy, in: Darcy, Powderly, *Judicial creativity at the International Criminal Tribunals* (2010), 286.

³⁹ In the practice of the Appeals Chamber the term ‘judgment’ is used instead of the term ‘judgement’. Accordingly, reference is made to ‘judgment’.

⁴⁰ The respective rules state that the judgment shall be ‘delivered in accordance with article 83, paragraph 4’. This reference is arguably best interpreted as not only referring to the delivery in court but also to the presentation of the judgment, i.e. reasoning and separate and dissenting opinions.

⁴¹ 1994 ILC Draft Statute with commentaries.

⁴² *Ibid.*

⁴³ *Ibid.*, 122, 127.

⁴⁴ Report of the Preparatory Committee on the establishment of an International Criminal Court, A/51/22, 297 (available under <http://www.legal-tools.org/doc/e75432/>).

⁴⁵ Report of the Preparatory Committee on the establishment of an International Criminal Court, A/CONF.183/2/Add.1, 14 April 1998, 152 (available under http://www.legal-tools.org/uploads/tx_ltpdb/doc21486.pdf).

⁴⁶ See Brady and Jennings, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (2001), 301.

been included into the main body of the judgment or decision⁴⁷. They were usually annexed to the decision or judgement, be it in at the same time as the majority decision or with some delay. This is in line with the practice followed by other tribunals.⁴⁸ Article 83, para. 4 could be read as requiring the Appeals Chamber to always include majority and minority views in the main body of the judgement, because of the use of the term 'shall'. Nevertheless, annexing the opinions to the judgment could be considered as fulfilling this requirement, on the basis that the provision aims at ensuring that such views be disclosed to the parties and the public including the legal community.

Article 74, para. 5 regulating the delivery of the Trial Chamber's verdict does not mention separate and dissenting opinions but only the requirement ('shall') to include diverging views into the decision. According to the drafting history, this was supposed to exclude separate and dissenting opinions.⁴⁹ Nevertheless, in practice, the views of the minority are not included in the main body of the decisions but are annexed thereto as separate and dissenting opinions. In addition, without any specific provision regulating the matter, ICC Trial and Pre-Trial Chambers include minority views in separate or dissenting opinions that are annexed to any kind of decision⁵⁰.

Reference is made in this respect to article 21, para. 2 that does not adopt the *stare decisis* principle, but leaves it within the discretion of the Court to 'apply principles and rules of law as interpreted in its previous decisions'. The ICC Appeals Chamber as well as the first-instance Chambers have relied on their own jurisprudence as well as on that of other Chambers to the extent that first-instance decisions were not reversed by the Appeals Chamber. *Pikis* argues that, in relying on the interpretation given in 'previous decisions', reference can be made not only to separate opinions, but also, insofar as reason requires, to dissenting opinions⁵¹. It can be added that, as long as different views are not yet directly included in the main body of the judgments and decisions, thereby directly juxtaposing the available arguments, different views that judges hold should be expressed in separate or dissenting opinions in order to enrich the **emerging jurisprudence** of the Court and to contribute to the development of the law generally⁵². As a further point it is noted that article 21, para. 2 does not relate to the factual findings and conclusions of another Chamber⁵³.

Paragraph 4 makes it abundantly clear that **reasoning** of an Appeals Chamber judgment is an important part of the Court's administration of justice. However, this does arguably not require the Appeals Chamber to provide full reasons or discuss the merits of each argument of the parties and participants. As referred to above in Staker and Eckelmans, *article* 81, mn 24, 28–31, arguments may be dismissed without addressing their merits. Apart from rejecting submissions for such reasons, the Appeals Chambers usually address all arguments of the parties and provide reasons for their findings. As an aside, in the *Lubanga* Appeal Judgment,

⁴⁷ An explicit example for such a course of action can be found in: *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-, Reasons for 'Decision of the Appeals Chamber on the Defence application 'Demande de suspension de toute action ou procedure afin de permettre la désignation d'un nouveau Conseil de la Défense' filed on 20 February 2007', Appeals Chamber, 23 February 2007, paras. 4–5 (available under <https://www.legal-tools.org/doc/67912e/>).

⁴⁸ Jorgesen and Zahar in: G. Sluiter et al.(eds), *International Criminal Procedure* (2014), 1161–1163, 1196

⁴⁹ Brady and Jennings, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (2001), 301.

⁵⁰ It is the recent practice of the Court to include separate and dissenting opinions as real annexes to the decisions/judgments (separate documents with separate page numbers, Anx1, Anx2 etc.).

⁵¹ *Pikis*, *The Rome Statute for the International Criminal Court, Analysis of the Statute, the Rules of Procedure and Evidence, the Regulations of the Court and Supplementary Instruments*, (2010) 86–87, but see Baker and Greenwood, 7 No.1 *DispRes* 31.

⁵² See also Webb, *International Judicial Integration and Fragmentation* (2013)192–198; Rasmussen and Rasmussen, 14 *GLJ* 1373; Jorgensen and Zahar in: G. Sluiter et al. (eds), *International Criminal Procedure* (2014), 1196. See also generally on dissenting and separate opinions Smith, 24 *YaleJL&Human*. 507 generally on article 21(2), see Staker and Eckelmans, *article* 81, mn. 76–83; de Guzmán, *article* 2 mn. 43–47.

⁵³ See also *Prosecutor v. Milan Lukić and Sredoje Lukić*, IT-98032/1-A, Judgement, Appeals Chamber, 4 December 2012, para. 260, accepting that two triers of fact can come to different reasonable conclusions.

the ICC Appeals Chamber did not set out in detail all submissions of the parties and participants⁵⁴, a deviation from its practice in article 82 appeals, but a course similar to that taken by the *ad hoc* tribunals.

- 18 It is the practice of the Appeals Chamber that final as well as article 82 appeal judgments have been **delivered in open court** with only a few exceptions with respect to article 82 appeal judgments⁵⁵.

V. Paragraph 5

- 19 Para. 5 permits the Appeals Chamber to **deliver** its judgment in the absence of the person acquitted or convicted. This paragraph can be contrasted with article 76, para. 4, that is not permissively formulated, that provides that the sentence of the Trial Chamber shall be pronounced ‘wherever possible, in the presence of the accused’. It may be concluded from those different formulations that under article 76, para. 4, in a case where the accused is temporarily prevented from attending proceedings, for instance by illness, the pronouncement of sentence would be adjourned until the accused is able to be present. Under article 83, para. 5, there is a presumption that the delivery of judgement would go ahead under such circumstances. Thus, there is no impediment to a judgment on appeal being pronounced in the absence of an acquitted person who, for instance, left the host state. On the other hand, it is within the Appeals Chamber’s discretion to require the presence of the convicted or acquitted person. In exercising its **discretion**, the Appeals Chamber will need to take into account the right of the accused to be present during his trial (Article 67, para. 1(d)).
- 20 Para. 5 is not made applicable to **appeals under article 82**, probably due to the diversity of the matters that can be brought before the Appeals Chamber under this provision, which makes regulating presence of specific persons or parties impractical. Whether the suspect or accused or other parties and participants should be present would arguably be determined on the basis of the law applicable to the proceedings appealed from. The requirement for the accused to be present during the trial laid down in article 63, para. 1 of the Statute and his/her corresponding right to be present stipulated in article 67, para. 1(d) arguably extend to the delivery of judgments arising from a decision rendered during the trial hearing.⁵⁶ Apart from that, the Appeals Chamber, in deciding whether to deliver judgment in the absence of the suspect or accused, needs to primarily weigh his/her right to be present against the need to conclude the interlocutory appeal proceedings expeditiously⁵⁷.

C. Special remarks

- 21 The heading of article 83 suggests that it addresses ‘Proceedings on appeal’. Except for clarifying in para. 1 that the Appeals Chamber has the powers of the Trial Chamber, this provision regulates primarily the remedies available to the Appeals Chamber in case of a

⁵⁴ See *Lubanga Appeal Judgment*, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 15.

⁵⁵ See e.g. *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-323 OA, Judgment on the appeal of Mr. Jean-Pierre Bemba Gombo against the decision of Pre-Trial Chamber III entitled ‘Decision on application for interim release’, 16 December 2008 (available under <https://www.legal-tools.org/fr/doc/5a1931/>), (*inter alia* because of the court recess – explanation given in *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-324 OA, Order concerning notification by way of personal service, Appeals Chamber, 16 December 2008, (available under <https://www.legal-tools.org/doc/9a053b/>); *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1937-Red2 OA 9, Judgment on the appeal of Mr Jean-Pierre Bemba Gombo against the decision of Trial Chamber III of 26 September 2011 entitled ‘Decision on the accused’s application for provisional release in light of the Appeals Chamber’s judgment of 19 August 2011’, Appeals Chamber, 23 November 2011, fn. 129 (available under <https://www.legal-tools.org/doc/0195e1/>) (*inter alia* because of the confidential character of the decision, the Appeals Chamber thereby indicating that the requirement to deliver judgment in open court derives from the principle of the publicity of the proceedings).

⁵⁶ See article 63 and rules 134*bis* and *ter* RPE.

⁵⁷ See rule 156(4) RPE.

successful appeal as well as matters relevant to the content and delivery of judgment. Final **appellate proceedings** are addressed in more detail only in the Rules and the Regulations, in particular in rules 150 to 152 RPE and regulations 57 to 63 RoC. These special remarks concentrate on the main features of final appellate proceedings on the basis of the first article 81 appeal proceedings in the cases *Prosecutor v. Thomas Lubanga Dyilo* and *Prosecutor v. Mathieu Ngudjolo Chui*. While the rules and regulations are also applicable to appeal proceedings triggered by appeals pursuant to article 82, para. 4, the focus of the below discussion lies on appeals under article 81, paras. 1 and 2.⁵⁸

I. Standing on appeal

According to article 81, paras. 1 and 2, the Prosecutor and the convicted person may 22 appeal a decision under articles 74 and 76. They are also the parties to the appeal proceedings.

If an appellant claims to be unfit to participate, he/she bears the burden of proving such 23 **unfitness** by a preponderance of the evidence⁵⁹. The ICTY Appeals Chamber held that **unfitness on appeal** is determined according to the same criteria as those applicable on trial. It stressed, however, that it might be sufficient for the appellant to understand the “essentials” of the appeal, stipulating that it is the role of defence counsel to process the wealth of complex information inherent in international criminal proceedings and to assist the client to meaningfully participating in appellate proceedings⁶⁰.

As much as international criminal proceedings cannot commence against a **deceased** 24 **person**, they usually end when the person subject to investigation and prosecution dies.⁶¹ Trial or pre-trial proceedings pending before the ICTY, ICC and ECCC were terminated because of the death of the defendants, as soon as the death was confirmed.⁶² At the two occasions that a convicted person died after the initiation of the appeal proceedings, the ICTY Appeals Chamber terminated the appeal proceedings, but found the conviction to be final, on the basis that the presumption of innocence is not anymore applicable to a person who was convicted on first instance⁶³; a course of action only rarely applied in domestic criminal proceedings⁶⁴.

II. The appeal and its discontinuance

The appeal⁶⁵ must be filed within 30 days after the decisions under articles 74 and 76 were 25 notified to the party (rule 150(1) RPE and the document in support of the appeal within 90 days of such notification. The **time limits** are calculated pursuant to regulation 33 RoC. It is recalled in this context that the decision under article 76 is usually rendered in a separate judgment, because the Trial Chamber is obliged to hold a sentencing hearing after the conviction decision has been delivered, when a party so requests (Article 76, para. 2)⁶⁶.

⁵⁸ See below Nerlich, *Article 82*, mn 25–27.

⁵⁹ *Prosecutor v. Popović*, IT-05-88-A, Public redacted version of 30 November 2012 Decision on request to terminate appellate proceedings in relation to Milan Gvero, 16 January 2013, para. 21; see rule 135 RPE.

⁶⁰ *Prosecutor v. Popović*, IT-05-88-A, Public redacted version of 30 November 2012 Decision on request to terminate appellate proceedings in relation to Milan Gvero, 16 January 2013, para. 22.

⁶¹ Elberling, *The Defendant in International Criminal Proceedings* (2012), Part I (1) (A).

⁶² Ibid.

⁶³ *Prosecutor v. Rasim Delić*, IT-04-83-A, Decision on the outcome of the proceedings, ICTY Appeals Chamber, 29 June 2010, paras. 5–17; *Prosecutor v. Vujadin Pović et al.*, IT-05/88-A, Decision terminating appellate proceedings in relation to Milan Gvero, ICTY Appeals Chamber, 7 March 2013, paras. 5, 6.

⁶⁴ Elberling, *The Defendant in International Criminal Proceedings* (2012), Part I (1) (A) (II), (III).

⁶⁵ See Boas et al., in: Sluiter et al. (eds) *International Criminal Procedure. Principles and Rules* (2013), 939, 956, giving an explanation why the term ‘appeal’ should be used instead of the term ‘notice of appeal’; see also generally on the formalities in appeals, Eckelmans in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court*, 527, 528.

⁶⁶ See Schabas and Ambos, *article 76* mn. 3.

- 26 At the ICTY/ICTR, the **notice of appeal** must contain the grounds of appeal and the relief sought by the appellant (rule 108 ICTY RPE). The ICC does not require the parties to set out the grounds of appeal but solely the relief sought and an indication as to whether the appeal is directed against the whole decision or only part thereof (reg. 57 RoC).
- 27 It is noteworthy that rule 154 RPE relevant to article 82 appeals does not provide for an **extension of time** to file the appeal, calling in question the applicability of regulation 35 RoC to such documents. The Appeals Chamber has also regularly dismissed requests of appellants for an extension of time to file such appeals⁶⁷. Rule 150(2) RPE, on the other hand, explicitly allows the Appeals Chamber, if good cause is shown, to extend the time limit for filing a final appeal. While this extension is solely with the Appeals Chamber's sphere, Trial Chamber I held in the *Lubanga* proceedings that the decision under article 74 be deemed considered notified at the time of the notification of the translation of the decision into French⁶⁸. While the verdict was rendered in English on 14 March 2012, the French translation was filed on 31 August 2012⁶⁹, which meant that the appeal could only be filed thereafter⁷⁰. In this context, it should be noted that the Appeals Chamber, upon an application for extension of time and good cause being shown, usually provides leeway for translation, in the sense that it makes sure that the content of the relevant decision or document is conveyed to the accused or lawyers; apparently however, it did not yet extend the start of a time limit for the filing of documents to the day of the notification of the fully revised translation of a document or decision⁷¹.
- 28 During the 30-day period foreseen for the filing of the appeal, the decisions under articles 74 and 76 are **not yet final and cannot be executed**, as provided for in rule 150(4) RPE and article 81, para. 4, respectively. These effects are perpetuated by a party filing an appeal. They continue for the duration of the appeal proceedings. Where only the conviction is appealed and not the sentence, arguably the same applies, because a sentence can only be enforced if the person is held guilty for the underlying acts. This is evidenced by e.g. the procedure foreseen in article 81, para. 2(c).
- 29 The appeal is filed before the Appeals Chamber. It is noted that in recent years, the Presidency often needed to **temporarily attach** a pre-trial or trial judge to the Appeals Chamber, because one or two of the judges had worked on the same case in pre-trial proceedings⁷².
- 30 Pursuant to rule 152 RPE, an appeal can be **discontinued** at any time before the delivery of judgment. A notice of discontinuance needs to be filed without conditions, as clarified by the Appeals Chamber in article 82 proceedings⁷³. In the proceedings *Prosecutor v. Germain Katanga*, both parties discontinued their appeals soon after the filing of the notices of appeal⁷⁴.

⁶⁷ See e.g. *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-189 OA, Decision on the 'Requête aux fins de suspension des délais prévus par la Règle 154(1) du Règlement de procédure et de preuve et par la Norme 64(5) du Règlement de la Cour jusqu'à la fin des vacances judiciaires, fixée au lundi 6 août 2012' 11 July 2012.

⁶⁸ *Prosecutor v. Thomas Lubanga Dyilo*, Decision, 15 December 2011; the Trial Chamber also held that, if Mr Lubanga were acquitted, the time limit for the Prosecutor would start to run with the delivery of the English decision.

⁶⁹ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, Annex 3, note 1.

⁷⁰ See Boas et al., in: Sluiter et al. (eds) *International Criminal Procedure. Principles and Rules* (2013), 939, 957, calling this approach of Trial Chamber I into question.

⁷¹ *Prosecutor v. Callixte Mbarushimana*, ICC-01/01-01/10-497 OA4, Decision on Mr Mbarushimana's request for time extension, 9 March 2012, paras 5,6; *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-01/12-130, Decision on Mr Ngudjolo's second request for translation and suspension of the time limit, 7 August 2013, para. 13; ICC-01/04-02/12-60, Decision on Mr Ngudjolo's request for translation and suspension of the time limit, 11 April 2013.

⁷² See e.g. *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2938 A4 A5 A6, Decision replacing a judge in the Appeals Chamber, Presidency, 11 October 2012 (available under <http://www.legal-tools.org/doc/9f1e05/>).

⁷³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-176 OA2, Decision on Thomas Lubanga Dyilo's Brief Relative to Discontinuance of Appeal, Appeals Chamber, 3 July 2006, para. 14.

⁷⁴ *Prosecutor v. Germain Katanga*, ICC-01/04-01/07-3497, Defence notice of discontinuance of Appeal against the 'Jugement rendu en application de l' article 74 du Statut' rendered by Trial Chamber II on 7 April 2014,

Where the Prosecutor **appeals on the convicted person's behalf**, rule 152(2) RPE provides the opportunity for the person to continue the appeal even though the Prosecutor discontinued the appeal and is not, anymore, be involved in the appeal proceedings. The Regulations of the Court do not specifically address the procedural scheme applicable to appeals of the Prosecutor on behalf of the convicted person. Surely, in such proceedings the Prosecutor would not, at the same time as appearing on behalf of the convicted person, also appear as a respondent. In addition, the Appeals Chamber might wish to hear the views of the convicted person too, but also not as a respondent. However, he or she might possibly fall within the realm of a “participant”, as referred to in reg. 59 RoC, a matter that may require procedural guidance from the Appeals Chamber when it arises.

III. Document in support of the appeal and response to the document in support of the appeal

The document in support of the appeal as well as the response thereto should not exceed 100 pages pursuant to reg. 58(5), 59(2) RoC⁷⁵; an extension of this page limit may be sought pursuant to reg. 37(2) RoC⁷⁶. Upon notification of the document in support of the appeal (within 90 days of the notification of the impugned decision⁷⁷), the respondent has another 60 days to file the response thereto (reg. 59 RoC). Reg. 58 RoC requires the appellant to set out clearly each ground of appeal and reasons in support thereof. Adhering to the format provided for this regulation assists an appellant in clearly defining the alleged error and in complying with the related **substantiation** requirements as discussed above in Staker and Eckelmans *article 81*, mn 24, 28–31. The respondent needs to follow the same format in developing his/her arguments (reg. 59 RoC).

IV. Reply

Pursuant to reg. 60 RoC, the Appeals Chamber needs to issue an order allowing a participant to file a reply. Although not specifically regulated, this power can be triggered by an application to that effect⁷⁸. According to reg. 60 RoC, the reply should not exceed 50 pages. However, the applicant should best indicate the required space and time frame in the application, because the Appeals Chamber may keep both to a minimum⁷⁹. This scheme is different from that applicable to appeals under article 82 that does not allow for the filing of

25 June 2014; ICC-01/04-01/07-3498, Notice of discontinuance of the Prosecution's Appeal against the Article 74 Judgment of Conviction of Trial Chamber II dated 7 March 2014 in relation to Germain Katanga, 25 June 2014.

⁷⁵ Note the Appeals Chamber's practice requiring the parties to include the following statement in their documents: 'It is hereby certified that this document contains a total of [] words and complies in all respects with the requirements of regulation 36 of the Regulations of the Court'; see *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-565 (OA 6), Judgment on the appeal of Libya against the decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the admissibility of the case against Abdulla Al-Senussi', 24 July 2014, para. 32; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11-1598 OA 7 OA 8, Judgment on the appeals of William Samoei Ruto and Mr Joshua Arap Sang against the decision of Trial Chamber V (A) of 17 April 2014 entitled 'Decision on Prosecutor's Application for Witness Summonses and resulting Request for State Party Cooperation', 9 October 2014, para. 26.

⁷⁶ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2946 A5, Decision on Mr Lubanga's request for an extension of the page limit, 28 November 2012 (available under <http://www.legal-tools.org/doc/5d6c5e/>).

⁷⁷ See mn 25.

⁷⁸ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2979 A5 A6, Requête de la Défense aux fins aux fins de solliciter l'autorisation de déposer une réplique, 15 February 2013 (available under <http://www.legal-tools.org/doc/f76f22/>).

⁷⁹ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2982 A5 A6, Order on the filing of a reply under regulation 60 of the Regulations of the Court, 21 February 2013, (available under <http://www.legal-tools.org/doc/43c92d/>).

a reply⁸⁰. In article 82 proceedings, the Appeals Chamber applies reg. 28 RoC, allowing it to seek further submissions on a certain issue. The participants may trigger this power by filing an application to that effect⁸¹.

- 34 In the *Lubanga* appeal proceedings, the Prosecutor requested leave to respond to certain points in the reply of Mr Lubanga. The Appeals Chamber provided for such an opportunity at the oral hearing⁸².

V. Victim participation in appeals under article 81

- 35 The Appeals Chamber's approach to victims' participation in appeals under article 81 has differed in several aspects from its approach in appeals under article 82. In the *Lubanga* final appeal proceedings, it did not await an application of victims to participate, but issued a decision on victim participation soon after having received the documents in support of the respective appeals⁸³. It held in that decision:

'The Appeals Chamber notes that under regulation 86 (8) of the Regulations of the Court, "[a] decision taken by a Chamber under rule 89 shall apply throughout the proceedings in the same case, subject to the powers of the relevant Chamber in accordance with rule 91, sub-rule 1". The Appeals Chamber notes that Mr Lubanga was convicted on all charges brought against him and that his appeal against the Conviction Decision is directed against the entirety of the decision. Therefore, the Appeals Chamber finds that the 120 victims who participated in the trial proceedings and whose right to participate in the proceedings was not withdrawn may participate in the appeal proceedings against the Conviction Decision, as their personal interests are affected by the appeal in the same way as during trial. For the same reason, the 120 victims who participated in the sentencing proceedings may participate in the appeal proceedings against the Sentencing Decision.'⁸⁴

- 36 While in appeals under article 82, the Appeals Chamber's majority found that reg. 86(8) RoC is not applicable⁸⁵ – or at least only to a limited extent⁸⁶ – the Appeals Chamber has clarified by this unanimous decision that it applies to appeals under article 81, paras. 1 and 2. This decision **simplifies** the final appeal proceedings, because it allows the Appeals Chamber to rely on the Trial Chamber's decisions on victim participation. The Appeals Chamber needs to direct its attention primarily to the question whether those victims who participated in the trial proceedings still fall within the scope of the respective appeals.
- 37 In the *Ngudjolo* appeals proceedings, the Appeals Chamber issued a decision to the same effect⁸⁷. Among the victims who participated on appeal, two were **anonymous** to the

⁸⁰ See Eckelmans in: Stahn and Sluiter (eds.) *The Emerging Practice of the International Criminal Court* (2009), 527, 547.

⁸¹ *Ibid.*

⁸² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3002 A5 A6, Decision on the 'Prosecution's request to strike Thomas Lubanga's Reply or, alternatively, for leave to respond to its new argument', 26 March 2013 (available under <http://www.legal-tools.org/doc/3898da/>); *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3068 A4 A5 A6, Further order regarding the conduct of the hearing of the Appeals Chamber, 25 March 2014, para. 2(d)(ii).

⁸³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2951 A4 A5 A6, Decision on the participation of victims in the appeals against Trial Chamber I's conviction and sentencing decisions, 13 December 2012 (available under <http://www.legal-tools.org/doc/9551a4/>).

⁸⁴ *Lubanga Victims Decision*, ICC-01/04-01/06-2951 A4 A5 A6, 13 December 2012, para. 3.

⁸⁵ See the first decision on victim participation, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-824 OA7, Judgment on the appeal of Mr. Thomas Lubanga Dyilo against the decision of Pre-Trial Chamber I' 13 February 2007, paras. 37–49 and the Dissenting Opinion of Judge Song thereto; see Eckelmans in: Bonacker and Safferling (eds) *Victims of international crimes: An interdisciplinary discourse* (2013), 189, 217–219; reg. 86(8) RoC provides that, '[a] decision taken by a Chamber under rule 89 shall apply throughout the proceedings in the same case, subject to the powers of the relevant Chamber in accordance with rule 91, sub-rule 1'.

⁸⁶ It is noteworthy that the Appeals Chamber does not consider in article 82 appeal proceedings whether the victims are falling within the scope of rule 85 RPE, but that it relies on the Pre-Trial or Trial Chamber's assessments in that respect.

⁸⁷ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-30 A, Decision on the participation of victims in the appeal against Trial Chamber II's 'Jugement rendu en application de l'article 74 du Statut', 6 March 2013.

acquitted person. In specifically referring to the limited scope of such participation, the Appeals Chamber allowed them to participate in the proceedings⁸⁸.

A specific feature of the *Lubanga* appeal proceedings was that the Registry brought to the Appeals Chamber's attention that the Trial Chamber had omitted to rule on certain victim applications⁸⁹. The Appeals Chamber held that this had happened by no fault of the applicants and found it to be in the interests of justice to consider their applications, putting itself in the shoes of the Trial Chamber and basing its decision on the Trial Chamber's jurisprudence⁹⁰. Accordingly, it did not itself establish any standards for deciding first-hand on victim applications.

While some of the victims' legal representatives' observations were challenged by the defence as not falling within the scope of the victims' personal interests, the Appeals Chamber did not find it necessary to explicitly rule on those challenges, but held in the *Lubanga* Appeal Judgment that it has only taken the victims' observations into account insofar as they related to their personal interests⁹¹. In the *Ngudjolo* Appeal Judgment, the Appeals Chamber held that it did not address errors alleged exclusively by victims⁹².

In the first article 81 appeals, victims' legal representatives were allowed to participate at the appeals hearings and to advance closing statements; however they were not allowed to question the witnesses heard by the Appeals Chamber⁹³.

VI. Hearing

The Appeals Chamber held appeals hearings in the first final appeal proceedings. It found, however, that calling such a hearing is within its **discretion**, although the Prosecutor had argued that it was mandatory⁹⁴. The hearing in the *Lubanga* proceedings was a combination of an evidentiary hearing and an appeals hearing with closing statements, but also gave the opportunity to the parties to address certain remaining issues that had arisen during the proceedings⁹⁵. In the first reparation appeal proceedings in the *Lubanga* case, the Appeals Chamber did not hold a hearing.⁹⁶

⁸⁸ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-154 A, Decision on further submissions regarding the anonymous victims in the appeal, 11 November 2013, para. 9.

⁸⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2977 A4 A5 A6, Request for guidance regarding applicants for participation in the appeal phase, Registry, 7 February 2013 (available under <http://www.legal-tools.org/doc/2cde3e/>).

⁹⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3026 A4 A5 A6, Decision on the request of the Registrar relating to the transmission of applications for participation in the appeal proceedings and on related issues, 6 May 2013, 3–4 (available under <http://www.legal-tools.org/doc/fe7c39/>); *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3045-Red2, Decision on 32 applications to participate in the proceedings, 27 August 2013, paras. 13–15 (available under <http://www.legal-tools.org/doc/af8699/>).

⁹¹ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 35–36.

⁹² See *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-271-Corr A, Judgment on the Prosecutor's appeal against the decision of Trial Chamber II entitled 'Judgment pursuant to article 74 of the Statute', 7 April 2015, paras 40–41.

⁹³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3083 A4 A5 A6, Scheduling order and decision in relation to the conduct of the hearing before the Appeals Chamber, 30 April 2014 (available under <http://www.legal-tools.org/doc/ea5495/>); *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-210 A, Order in relation to the conduct of the hearing before the Appeals Chamber, 8 October 2014.

⁹⁴ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-199 A, Scheduling Order for a hearing before the Appeals Chamber, 18 September 2014, paras. 12, 13.

⁹⁵ *Lubanga* Hearing Further Order, ICC-01/04-01/06-3068 A4 A5 A6, 25 March 2014, para. 2(d)(ii); *Lubanga* Hearing Decision, ICC-01/04-01/06-3083 A4 A5 A6, 30 April 2014.

⁹⁶ See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3129 A, A2 A3, Judgment on the appeals against the 'Decision establishing the principles and procedures to be applied to reparations' of 7 August 2012, 3 March 2015.

VII. Appeal proceedings

- 42 The appeal proceedings as such are usually rich on filings⁹⁷, because all matters relevant to the case file can only be addressed to the Appeals Chamber. In the *Ngudjolo* appeal proceedings issues arose that were relevant to Mr Ngudjolo as an individual who was released from ICC detention and stayed in The Netherlands pending his application for asylum⁹⁸. Furthermore, a specific feature of the *Ngudjolo* appeal proceedings was that the Appeals Chamber decided to address on its own motion the issue of witnesses who were held in the ICC's detention centre, ordering their immediate transfer to the Democratic Republic of the Congo (DRC) noting that they have been transferred nearly three years earlier from Congolese detention to the ICC detention centre in order to give testimony before Trial Chamber II⁹⁹.
- 43 In the *Lubanga* appeal proceedings, the Appeals Chamber rejected an *amicus curiae* request under rule 103 RPE, re-iterating that such requests should not contain any substantive observations¹⁰⁰.
- 44 While the legal texts do not explicitly provide for the possibility of a **single judge** in charge of certain procedural issues, it may be considered whether the newly amended rule 132*bis* RPE relevant to the single judge for trial preparation purposes could be applicable on the basis of rule 149 RPE also to appeal proceedings.

VIII. Additional evidence

- 45 Additional evidence is subject of a vast case law of the *ad hoc* tribunals. Accordingly their criteria for admitting **additional evidence** on appeal are well-established¹⁰¹. They are based on rule 115 of the ICTY/ICTR RPE, last amended in 2002 that establishes when the Appeals Chamber may find additional evidence admissible (*lit B*)¹⁰²:

'If the Appeals Chamber finds that the additional evidence was not available at trial and is relevant and credible, it will determine if it could have been a decisive factor in reaching the decision at trial. If

⁹⁷ Note the *Lubanga* appeal proceedings (including filings relevant to article 82(4) appeals) started at consecutive number ICC-01/04-01/06-2943 and ended with the judgments on conviction and appeal at consecutive number 3122; the *Ngudjolo* appeal proceedings started at consecutive number ICC-01/04-01/12-12 and were at the time of the scheduling order for the judgment on appeal at number 257.

⁹⁸ See e.g. *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-74-Red, Decision on Mr Ngudjolo's request to order the Victims and Witnesses Unit to execute and the Host State to comply with the acquittal judgment of 18 December 2012 issued by Trial Chamber II of the International Criminal Court, Date of the redacted version: 12 June 2013, paras. 11, 13.

⁹⁹ *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-158 A, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of the Congo concluded pursuant to article 93 (7) of the Statute, 20 January 2014, paras. 2, 5, 12, 13, 19–31.

¹⁰⁰ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3044 A4 A5 A6, Decision on the application by Child Soldiers International for leave to submit observations pursuant to rule 103 of the Rules of Procedure and Evidence, 16 August 2013, para. 9 (available under <http://www.legal-tools.org/doc/68b9de/>).

¹⁰¹ See most recently Tochilovsky, *The law and jurisprudence of the international criminal tribunals and courts* (2014), Chapter 16.

¹⁰² The current wording of rule 115 *lit. B* ICTY is the result of an amendment made to the rule in July 2002 (see IT/32/Rev.24), and the wording of rule 115 *lit. B* ICTR is the result of an amendment made in May 2003. Earlier versions of rule 115 ICTY and ICTR provided for the presentation on appeal by a party of 'additional evidence which was not available to it at the trial' if the Appeals Chamber 'considers that the interests of justice so require'. The Appeals Chamber interpreted the 'interests of justice' requirement to incorporate three conditions, namely (1) that the evidence is relevant to a material issue, (2) the evidence is credible, and (3) the evidence is such that it would probably show that the conviction or sentence was unsafe (*Kupreškić* Appeal Judgement, IT-95-16-A, 23 October 2001, paras. 52–54, 61–69 (observing, at para. 63, that the second of these requirements 'is linked to the danger that appellate proceedings can be abused by a party presenting evidence to the appeal body that appears to be relevant to a material issue, but that has not been tested in the crucible of a trial')).

it could have been such a factor, the Appeals Chamber will consider the additional evidence and any rebuttal material along with that already on the record to arrive at a final judgement in accordance with Rule 117.’

Rules 115 *lit.* B ICTY/ICTR RPE enable the Appeals Chambers to consider additional evidence on appeal if they find that the additional evidence ‘was not available at trial’, that it is ‘relevant and credible’, and that it ‘could have been a decisive factor in reaching the decision at trial’. In determining whether these criteria are met, the significance of the additional evidence must be considered in the context of the evidence which was given at trial and of that which was admitted on appeal, and not in isolation¹⁰³. According to the jurisprudence of the *ad hoc* tribunals, the Appeals Chamber ‘maintains an inherent power to admit such evidence even if it was available at trial, in cases in which its exclusion would lead to a miscarriage of justice’¹⁰⁴. However, if the additional evidence *was* available at trial or *could* have been discovered through the exercise of due diligence, the Appeals Chamber has held that the moving party will be required to undertake the additional burden of establishing that the exclusion of the additional evidence on appeal *would* lead to a miscarriage of justice – that is, it *would* have affected the verdict¹⁰⁵. The ICTY Appeals Chamber has indicated that these limitations apply only to evidence upon matters relating to a fact or issue that was litigated at the trial (in particular, but not exclusively, a fact or issue relating to the guilt or innocence of the accused), and that, when the Appeals Chamber is hearing evidence which relates to matters other than the issues litigated in the Trial Chamber (such as evidence seeking to establish that one of the judges of the Trial Chamber was disqualified from being a judge or was not impartial), the Appeals Chamber is in the same position as a Trial Chamber¹⁰⁶.

¹⁰³ *Prosecutor v. Radislav Krstić*, IT-98-33-A, Decision on Applications for Admission of Additional Evidence on Appeal, Appeals Chamber, ICTY Appeals Chamber, 5 August 2003, (*Krstić* Additional Evidence Decision’) para. 3 (available under <https://www.legal-tools.org/doc/e70877/>); *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Decision on Evidence, Appeals Chamber, ICTY Appeals Chamber, 31 October 2003 (available under <https://www.legal-tools.org/doc/79d5f7/>); *Prosecutor v. Miroslav Kvočka et al.*, IT-98-30/1-A, Decision on Appellants’ Motions to Admit Additional Evidence Pursuant to Rule 115, ICTY Appeals Chamber, 16 February 2004 (available under <https://www.legal-tools.org/doc/cfb240/>); *Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Decision on Naletilić’s Amended Second Rule 115 Motion and Third Rule 115 Motion to Present Additional Evidence, ICTY Appeals Chamber, 7 July 2005, paras. 11–15 (available under <https://www.legal-tools.org/doc/8ef3ae/>).

¹⁰⁴ *Prosecutor v. Goran Jelišić*, IT-95/10-A, Decision on Request to Admit Additional Evidence, 15 November 2000, 3; see also *Ferdinand Nahimana et al. v. The Prosecutor*, ICTR-99-52-A, Decision on Appellant Jean-Bosco Barayagwiza’s Motions for Leave to Present Additional Evidence pursuant to Rule 115 of the Rules of Procedure and Evidence, 8 December 2006, para. 6 (available under <http://www.legal-tools.org/doc/cdd843/>).

¹⁰⁵ *Prosecutor v. Tihomir Blaškić*, IT-95-14-A, Decision on Evidence, ICTY Appeals Chamber, 31 October 2003 (available under <https://www.legal-tools.org/doc/79d5f7/>); *Ferdinand Nahimana et al. v. The Prosecutor*, ICTR-99-52-A, Decision on Motions Relating to the Appellant Hassan Ngeze’s and the Prosecution’s Requests for Leave to Present Additional Evidence of Witnesses ABC1 and EB, ICTR Appeals Chamber, 8 December 2006, para. 6 (available under <http://www.legal-tools.org/doc/cdd843/>); *Prosecutor v. Vujadin Popović et al.*, IT-05-88-A, Decision on Vujadin Popović’s Motion for Admission of Additional Evidence on Appeal pursuant to Rule 115, ICTY Appeals Chamber, 20 October 2011, para. 10 (available under <http://www.legal-tools.org/doc/ee1184/>).

¹⁰⁶ *Prosecutor v. Delalić et al.* (*Čelebići case*), IT-96-21-A, Order on Motion of Appellant, Esad Landzo, to Admit Evidence on Appeal, and for Taking of Judicial Notice, Appeals Chamber, 31 May 2000 (available under <https://www.legal-tools.org/doc/e1dad2/>); *Prosecutor v. Delalić et al.* (*Čelebići case*), IT-96-21-A, Order in Relation to Witnesses on Appeal, Appeals Chamber, 19 May 2000 (available under <https://www.legal-tools.org/doc/fe2fb2/>); *Kupreškić Appeal Judgement*, IT-95-16-A, 23 October 2001, paras. 55–57. See also *Prosecutor v. Kambanda*, ICTR-97-23-A, Decision on the Appellant’s Motion for Admission of New Evidence, Appeals Chamber, 13 June 2000 (in which the additional evidence on appeal consisted of oral evidence by the convicted person relevant to the question whether his plea of guilty was voluntary, informed, unequivocal and based on sufficient facts for the crime and his participation in it) (available under <https://www.legal-tools.org/doc/eb90a6/>). The raising of facts or issues before the Appeals Chamber that were not litigated at trial would, however, be subject to the ‘waiver’ principle: see Staker and Eckelmans, article 81, mn 32. Furthermore, in the ICTY and ICTR, the possibility of raising totally new facts on appeal may be limited to facts pertaining to the fairness and correctness of the trial proceedings. In relation to facts bearing on the guilt or innocence of the accused, the Appeals Chamber of the ICTY has indicated that where an applicant seeks to present a totally new fact that was not litigated at trial (as

- 46 The ICC's legal framework does not contain a similar provision setting out a standard for admissibility of additional evidence, but only a procedural provision, reg. 62 RoC. However, in the *Lubanga* appeal proceedings, the Appeals Chamber has not only clarified the applicable procedure for additional evidence as well as substantiation requirements for an application to that effect but has also established the criteria for the admissibility of additional evidence.

1. Admissibility criteria

- 47 The ICC Appeals Chamber has found that the basis for the admissibility criteria of evidence on appeal lies in the ICC's legal texts and not in the first place in the jurisprudence of the *ad hoc* tribunals¹⁰⁷. Nevertheless, it has acknowledged that it may seek guidance from that jurisprudence insofar as the criteria are similar¹⁰⁸.
- 48 On the basis of article 83, para 4 and rule 149 RPE, it has found that the criteria laid down in article 69, para. 4 for the admissibility of evidence generally, i.e. relevance, probative value and potential prejudicial effect, are also applicable on appeal. The criterion of 'relevance' means in the context of appeal proceedings that the 'proposed additional evidence must be shown to be relevant to a ground of appeal raised pursuant to article 81 (1) and (2) of the Statute'¹⁰⁹.
- 49 Noting that article 69, para. 4 is not exhaustive, the Appeals Chamber found additional criteria limiting the admissibility of evidence on appeal in the 'distinct features of the appellate stage of proceedings'¹¹⁰. On the basis of the 'corrective nature' of the proceedings in appeals under article 81, paras. 1 and 2,¹¹¹ and the deferential nature of the Appeals Chamber's review of the Trial Chamber's factual assessments, it has established that the evidence must not have been available at trial:

'... the Trial Chamber is much better positioned to assess a piece of evidence in light of all the other evidence presented at trial than the Appeals Chamber. Accordingly, evidence relevant to a decision pursuant to article 74 (2) of the Statute should, with only limited exceptions, be presented before that decision is taken. The Appeals Chamber therefore considers that allowing the admission of additional evidence on appeal, without further restriction, entails a real risk of litigation strategies that contemplate the presentation of evidence for the first time on appeal, even if such evidence was available at trial or, with due diligence, could have been produced.

It follows from the above that the Appeals Chamber will generally not admit additional evidence on appeal unless there are convincing reasons why such evidence was not presented at trial, including whether there was a lack of due diligence.'¹¹²

- 50 In order to meet the requirement that the evidence was 'not available at trial', the ICTY Appeals Chamber has held that the party seeking to present additional evidence must demonstrate that his or her counsel exercised **due diligence** in seeking to obtain and present all relevant evidence at trial. This is an aspect of the 'duty to be reasonably diligent' imposed upon trial counsel under the Statute and Rules. The duty to act with reasonable diligence has

opposed to additional evidence of a fact that was in issue at trial), the appropriate procedure is to seek review (revision) of the trial judgment, rather than to present additional evidence on appeal (*Prosecutor v. Duško Tadić*, IT-94-I-A, Decision on Appellant's Motion for the Extension of the Time-Limit and Admission of Additional Evidence, 15 October 1998 ('*Tadić* Additional Evidence Decision') (available under <http://www.legal-tools.org/doc/834222/>), paras. 30, 32; *Kupreškić* Appeal Judgement, IT-95-16-A, 23 October 2001, paras. 48–49). It is suggested that in the ICC, no such distinction may be made, and that under article 81, additional evidence on appeal may relate either to facts that were litigated at trial or facts that were not, subject to the other requirements for the presentation of additional evidence on appeal: see below Staker and Nerlich, *Article 84*, mn 15; see also *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 61.

¹⁰⁷ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 53.

¹⁰⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 63.

¹⁰⁹ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 54.

¹¹⁰ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 55.

¹¹¹ See *supra* Staker and Eckelmans, *Article 81*, mn 20–27.

¹¹² *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 57, 58.

been held to include making ‘appropriate use of all mechanisms of protection and compulsion available under the Statute and the Rules of the International Tribunal to bring evidence on behalf of an accused before the Trial Chamber’¹¹³. This means, for example, that where a party experiences difficulty in calling a witness to testify at trial, due diligence will not have been exercised unless that party brought the matter before the Trial Chamber so that the Trial Chamber could consider imposing coercive or protective measures¹¹⁴. The **burden of proof** is on the party seeking to present the additional evidence to show that it should be admitted. The party must provide a reasonable explanation as to why it was not available at trial and as to any efforts he or she may have made to try to adduce it¹¹⁵. However, the ICTY Appeals Chamber has also recognised an **exception** to the requirement that the new evidence ‘was not available’ in cases where ‘gross negligence is shown to exist’ on the part of counsel at trial¹¹⁶.

On the basis that this evidence would have been available at trial, the majority of the ICC Appeals Chamber rejected the admissibility of the additional evidence of two witnesses who appeared on video evidence on which the Trial Chamber relied to determine their age.¹¹⁷

The ICC Appeals Chamber has derived a further admissibility criterion from the character of the appeal proceedings, i.e. that ‘the applicant [must] demonstrate the **impact of the additional evidence**’, in the sense that ‘it must be demonstrated that the additional evidence could have led the Trial Chamber to enter a **different verdict, in whole or in part**’¹¹⁸.

This criterion is very similar to that established by the *ad hoc* tribunals and laid down in rule 115 ICTY/ICTR RPE, i.e. that the evidence could have had an impact on the verdict. This means that it must be demonstrated that the additional evidence – considered in the context of the evidence presented at trial – could lead to the result that the verdict was unsafe¹¹⁹.

Additional evidence may not only relate to ‘material concretely relevant to the guilt or innocence of an accused’ but also to **unfairness** allegations.¹²⁰

Having developed these criteria, the ICC Appeals Chamber has nevertheless retained its **discretion** to admit evidence on appeal by holding:

‘The Appeals Chamber finds that, even beyond those criteria, it enjoys discretion to admit additional evidence, which should be done on a case-by-case basis and in light of the specific

¹¹³ *Tadić* Additional Evidence Decision, IT-94-1-A, 15 October 1998, para. 47.

¹¹⁴ See generally *ibid.*, paras. 36–45, 47, 62; *Kupreškić* Appeal Judgement, IT-95-16-A, 23 October 2001, para. 50.

¹¹⁵ *Tadić* Additional Evidence Decision, IT-94-1-A, 15 October 1998, paras. 52–53; *Semanza v. Prosecutor*, ICTR-97-20-A, Decision, Appeals Chamber, 31 May 2000 (‘*Semanza* Decision’), para. 37 (available under <https://www.legal-tools.org/doc/d38ef3/>). The Appeals Chamber of the ICTY has said that counsel have an obligation to report any difficulties in relation to obtaining evidence to the Trial Chamber as a first step in exercising due diligence, and also as a means of self-protection by creating a contemporaneous record of the difficulty: *Krstić* Additional Evidence Decision, IT-98-33-A, 5 August 2003; see also *Prosecutor v. Krstić*, IT-98-33-A, Decision on Applications for Subpoenas, Appeals Chamber, 1 July 2003, paras. 12–17.

¹¹⁶ *Tadić* Additional Evidence Decision, IT-94-1-A, 15 October 1998, paras. 48–50 (pointing out that counsel may have chosen not to present the evidence at trial because of the litigation strategy or because of the view taken of the probative value of the evidence, and that where counsel decides not to call certain evidence at trial, unless gross negligence is shown due diligence will be presumed), 65, 66 (‘Barring exceptional circumstances, which are not made out in this case, it is difficult to think of circumstances which would show that expert witnesses were not available to be called at trial despite the exercise of reasonable diligence’); *Kupreškić* Appeal Judgement, IT-95-16-A, 23 October 2001, para. 51; *Nikolić v. Prosecutor*, IT-02-60/1-A, Decision on Motion to Admit Additional Evidence, Appeals Chamber, 9 December 2004 (‘*Nikolić* Additional Evidence Decision’), paras. 29–41 (available under <https://www.legal-tools.org/doc/d1a1a9/>).

¹¹⁷ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 74–81; see also Dissenting Opinion of Judge Ušacka, Annex 2, para. 56.

¹¹⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 59.

¹¹⁹ See *Popović et al.* Additional Evidence Decision, IT-05-88-A, 20 October 2011, para. 9: ‘A decision will be considered unsafe if the Appeals Chamber ascertains that there is a realistic possibility that the Trial Chamber’s verdict might have been different if the new evidence had been admitted’; see also Dixon and Khan, *Archbold International Criminal Courts: Practice, Procedure & Evidence* (2013), 538–539.

¹²⁰ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 60, by reference to *The Prosecutor v. Gaspard Kanyarukiga*, ICTR-2002-78-T, Decision on Request to Admit Additional Evidence of 1 August 2008, 30 June 2006, para. 9 (available under <https://www.legal-tools.org/doc/27b6b9/>).

circumstances of each case. In this respect, the Appeals Chamber finds that it is within its discretion to admit additional evidence on appeal despite a negative finding on one or more of the above-mentioned criteria, if there are compelling reasons for doing so.¹²¹

- 56 The formulation chosen is different from the corresponding criterion developed by the *ad hoc* tribunals¹²² and time will show whether these differences have any practical impact. It is noteworthy that the ICTR Appeals Chamber puts a lot of emphasis on the substantiation of this exceptional admissibility requirement:

‘[...] where the evidence is relevant and credible, but was available at trial, or could have been discovered through the exercise of due diligence, the Appeals Chamber may still allow it to be admitted on appeal provided the moving party can establish that the exclusion of it would amount to a miscarriage of justice. That is, it must be demonstrated that had the additional evidence been adduced at trial, it would have had an impact on the verdict.’¹²³

2. Proceedings relevant to the admissibility of additional evidence

- 57 Reg. 62 RoC sets out some main features of the procedure applicable to an application for additional evidence. It establishes in sub-reg. 1 the **substantiation** requirements. The Appeals Chamber has clarified that, even though not mentioned in this legal provision, all admissibility requirements referred to in the previous section need to be substantiated¹²⁴.

According to reg. 62(2) RoC, the Appeals Chamber may deal with an application for admissibility in **two ways**. Either it may – as at the *ad hoc* tribunals – rule on the admissibility of the additional evidence before adducing the evidence, or it may decide ‘to rule on the admissibility of the additional evidence jointly with other issues raised in the appeal’. In the first article 81 proceedings with additional evidence applications, the Appeals Chamber proceeded according to the second avenue.¹²⁵ In the course of the proceedings, it decided to hear the testimony of two additional witnesses but heard, at the same time, additional arguments on the availability of these witnesses at trial.¹²⁶ In the final judgment, the Appeals Chamber by majority rejected all requests for additional evidence on the basis that they did not meet the admissibility criteria.¹²⁷

- 58 The ICC Appeals Chamber has established that **rebuttal** evidence only needs to be considered once the ‘underlying proposed additional evidence is admitted into evidence’¹²⁸. This is similar to the *ad hoc* tribunals’s jurisprudence. Regarding the standard for admissibility, there is no need for a party seeking to present rebuttal material to show that the material was unavailable at trial or that it could have affected the verdict of the Trial Chamber. Instead, the ICTY/ICTR Appeals Chambers held that the ‘rebuttal material is admissible if it directly affects the substance of the additional evidence admitted by the Appeals Chamber and, as such, has a different test of admissibility from additional evidence under Rule 115’¹²⁹.

¹²¹ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 62.

¹²² See mn 45.

¹²³ *Ferdinand Nahimana et al. v. The Prosecutor*, ICTR-99-52-A, Decision on Appellant Jean-Bosco Barayagwiza’s Motions for Leave to Present Additional Evidence pursuant to Rule 115 of the Rules of Procedure and Evidence, 8 December 2006, para. 6 (available under <http://www.legal-tools.org/doc/cdd843/>); *Popović et al.* Additional Evidence Decision, IT-05-88-A, 20 October 2011, para. 10.

¹²⁴ See *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 59.

¹²⁵ See *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 39, 80; Annex 3 see also Dissenting Opinion of Judge Ušacka, Annex 2, paras. 53–56, paras. 5, 16–18.

¹²⁶ See *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 66, 80.

¹²⁷ See *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, paras. 81, 95, 105, 113.

¹²⁸ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 64.

¹²⁹ *Ferdinand Nahimana et al. v. The Prosecutor*, ICTR-99-52-A, Decision on Prosecution’s Motion for Leave to Call Rebuttal Material, 13 December 2006, para. 7 (available under <http://www.legal-tools.org/doc/1a5743/>).

3. Additional evidence in article 82 appeal proceedings

The *ad hoc* tribunals apply rule 115 ICTR/ICTY RPE also to interlocutory appeals¹³⁰. The ICC Appeals Chamber has not decided to do so, but held:

‘In the context of interlocutory appeals pursuant to article 82 of the Statute, the Appeals Chamber recalls that it has considered requests to present additional evidence, namely in the Kenyatta et al. OA and the Ruto et al. OA proceedings, the Bemba OA 3 proceedings, and the Al-Senussi OA 6 proceedings. The Appeals Chamber considers that the Court’s current jurisprudence on additional evidence within the context of interlocutory appeals is specific to those appeals, particularly in light of the fact that the above-mentioned requests related to appeals against decisions on the admissibility of the case pursuant to article 82 (1) (a) of the Statute.’¹³¹

IX. Variation of grounds of appeal

The procedure relevant to **varying or adding a ground of appeal** is included in reg. 61 RoC. In the normal course of events, it requires the Appeals Chamber, after hearing the parties, to decide on the application for variation, whereupon the parties shall file respectively a document in support of this ground of appeal and a response thereto. The regulation is silent as to the standard applicable for granting an application for a variation of grounds of appeal. The ICC Appeals Chamber has ruled on a first request to add a new ground of appeal and held a) that the variation includes both a new ground of appeal and an amendment of a ground of appeal as also found by the jurisprudence of the *ad hoc* tribunals; b) that granting the request is ‘within its discretionary authority’; c) that if the other party does not respond within the time limit stipulated in reg. 61 RoC, the Appeals Chamber may proceed to consider whether to grant the request; and d) that if the application for variation already sets out sufficiently the legal and factual reasons in support of the additional ground of appeal, the Appeals Chamber may direct the other party to submit a response on the substance without getting a further document in support of this ground of appeal.¹³² The Appeals Chamber accordingly found that the proceedings for varying a ground of appeal are within its **discretion**. Similarly, granting such an application is also within the Appeals Chamber’s discretion. The jurisprudence of the *ad hoc* tribunals requires a **showing of ‘good cause’** as to why the arguments were not advanced at the time the document in support of the appeal was submitted.¹³³ In that respect, it is noteworthy that the later such an application is filed in the course of the appeal proceedings, the more it can be expected that this requirement is interpreted restrictively, in order to avoid changes in the appeal strategy or other interferences with the expeditious administration of justice¹³⁴.

¹³⁰ Rule 115 ICTY has also been held to govern the presentation of additional evidence in an appeal against a decision on provisional release: *Prosecutor v. Haradinaj et al.*, IT-04-84-AR65.2, Decision on Lahi Brahimaj’s Request to Present Additional Evidence Under Rule 115, Appeals Chamber, 3 March 2006, paras. 9–11 (available under <http://www.legal-tools.org/doc/505af8/>). Its application may extend to interlocutory appeals in general: cf. *Prosecutor v. Međaković et al.*, IT-02-65-AR11bis.1, Decision on Joint Defence Motion to Admit Additional Evidence Before the Appeals Chamber Pursuant to Rule 115, Appeals Chamber, 16 November 2005, para. 6 (available under <http://www.legal-tools.org/doc/94670f/>).

¹³¹ *Lubanga* Appeal Judgment, ICC-01/04-01/06-3121-Red A5, 1 December 2014, para. 41, making reference to several decisions, the most recent being *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-565 OA6, Judgment on the appeal of Mr Abdullah Al-Senussi against the decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on the admissibility of the case against Abdullah Al-Senussi’, 24 July 2014 (available under <https://www.legal-tools.org/doc/ef20c7/>).

¹³² *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3057-Corr, Decision and order in relation to the request of 23 December 2013 filed by Mr Thomas Lubanga Dyilo, 13 January 2014, (available under <http://www.legal-tools.org/doc/49fd51/>).

¹³³ Rule 108 ICTY/ICTR RPE.

¹³⁴ See Tochilovsky, *The law and jurisprudence of the international criminal tribunals and courts* (2014), Chapter 16, 2.6.2.

Article 84

Revision of conviction or sentence*

1. The convicted person or, after death, spouses, children, parents or one person alive at the time of the accused's death who has been given express written instructions from the accused to bring such a claim, or the Prosecutor on the person's behalf, may apply to the Appeals Chamber to revise the final judgement of conviction or sentence on the grounds that:

- (a) New evidence has been discovered that:
 - (i) Was not available at the time of trial, and such unavailability was not wholly or partially attributable to the party making application; and
 - (ii) Is sufficiently important that had it been proved at trial it would have been likely to have resulted in a different verdict;
- (b) It has been newly discovered that decisive evidence, taken into account at trial and upon which the conviction depends, was false, forged or falsified;
- (c) One or more of the judges who participated in conviction or confirmation of the charges has committed, in that case, an act of serious misconduct or serious breach of duty of sufficient gravity to justify the removal of that judge or those judges from office under article 46.

2. The Appeals Chamber shall reject the application if it considers it to be unfounded. If it determines that the application is meritorious, it may, as appropriate:

- (a) Reconvene the original Trial Chamber;
- (b) Constitute a new Trial Chamber; or
- (c) Retain jurisdiction over the matter, with a view to, after hearing the parties in the manner set forth in the Rules of Procedure and Evidence, arriving at a determination on whether the judgement should be revised.

Literature: Bitti, G., and Fernández de Gurmendi, S.A., 'Revision of Conviction or Sentence', in: R.S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 596; Boas, G., Jackson, J., Roche, B. and Taylor, D., 'Appeals, Reviews, and Reconsideration', in: G. Sluiter *et al.* (eds.), *International Criminal Procedure/Principles and Rules* (Oxford University Press 2013), 980; Brady, H. and Jennings, M., 'Appeal and Revision', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (Kluwer 2001) 294; Featherstone, Y., 'Additional Evidence in the Appeals Proceedings and Review of Final Judgement', in: R. May *et al.* (eds.), *Essays on ICTY Procedure and Evidence in Honour of Gabrielle McDonald* (Brill Nijhoff 2001) 495; La Rosa, A.-M., 'Revision Procedure under the ICC Statute', in: A. Cassese, P. Gaeta, J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (Oxford University Press 2002).

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* The views expressed are those of the authors and cannot be attributed to the ICC or the United Nations.

A. Introduction/General remarks

This article provides for the ‘revision’ of a final judgment of conviction or sentence in certain circumstances where new evidence has subsequently been discovered, or where it has emerged that evidence was false or forged, or that one of the judges trying the case committed serious misconduct in the case. Such proceedings are also provided for in the Statutes of the ICTY and ICTR, in the English text of which they are called ‘review’ proceedings (*‘revision’* in French).¹ Article 21 of the Statute of the Special Court for Sierra Leone also contains such a provision.² Nevertheless, review proceedings at the ICTY, ICTR and SCSL differ significantly from revision proceedings before the Court. At the ad hoc tribunals, review proceedings can be brought even if the judgment in question has not become final yet (for instance, because it is on appeal) and are determined by the Chamber that issued the decision in question. At the ICC, revision proceedings relate to *final* judgments only and are *always* heard initially by the Appeals Chamber. Revision proceedings are also known in other international courts and tribunals,³ although the analogy here is less direct, given that those courts and tribunals do not adjudicate criminal matters.

Proceedings of this kind are commonly found in jurisdictions following the **Romano-Germanic tradition**.⁴ In contrast, this type of procedure is not typically found in common law systems, in which proceedings would normally be brought before a court of appeal if fresh evidence is discovered after a conviction.⁵

A provision for revision proceedings was included in the original ILC Draft Statute. The ILC indicated that this provision reflected the provisions of article 14 para. 6 of the ICCPR, as well as article 61 of the Statute of the ICJ, and said that it is ‘a necessary guarantee against the possibility of factual error relating to material not available to the accused and therefore not brought to the attention of the Court at the time of the initial trial or of any appeal’.⁶

In national legal systems where this type of procedure exists, it is normally regarded as an **extraordinary remedy** that is seldom successfully invoked. In relation to the French legal system, it has for instance been said that:

¹ Article 26 of the ICTYS (*‘Review proceedings’*) provides: ‘Where a new fact has been discovered which was not known at the time of the proceedings before the Trial Chambers or the Appeals Chamber and which could have been a decisive factor in reaching the decision, the convicted person or the Prosecutor may submit to the International Tribunal an application for review of the judgement’. The procedure for review of judgments is set out in more detail in ICTY Rules 119 to 122. Similar provisions are found in article 25 of the ICTRS, and ICTR Rules 120 to 123. In these Tribunals, there is no express provision for review on the grounds referred to article 84 para. 1 (b) or (c) of the Rome Statute, although the expression ‘new fact’ in article 26 of the ICTYS and article 25 of the ICTRS may well extend to such grounds.

² UN Doc. S/2000/915, 4 October 2000, Annex.

³ See, e.g., Statute of the ICJ, article 61; and *Application for Revision and Interpretation of the Judgment of 24 February 1982 in the Case Concerning the Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*, (1985) ICJ Rep. 192.

⁴ E.g., Belgium (*‘demandes en révision’*: Code d’Instruction Criminelle, articles 443 *et seq.*); France (*‘demandes en révision’*: Code de Procédure Pénale, articles 622–626); Germany (*‘Wiederaufnahme eines durch rechtskräftiges Urteil abgeschlossenen Verfahrens’*: Strafprozeßordnung, §§ 359–373a); Italy (*‘Revisione’*: Codice di Procedura Penale, articles 629–647); Spain (*‘Revisión’*: Ley de Enjuiciamiento Criminal, articles 954–961); see also Instituto Iberoamericano de Derecho Procesal, *Código Procesal Penal modelo para Iberoamérica* (Model Code of Criminal Procedure for Latin America) (1989), articles 359–370 (*‘Revisión’*).

⁵ For instance, in England, Wales and Northern Ireland, a person who believes that he or she has been wrongly found guilty or wrongly sentenced may make an application to the Criminal Cases Review Commission, an independent body responsible for investigating suspected miscarriages of criminal justice. In cases where there is new evidence or some other consideration of substance has emerged since trial, the Commission may refer the case to the relevant Court of Appeal: see Criminal Appeal Act 1995; Taylor, *Taylor on Appeals* (2012), Chapter 12.

⁶ 1994 ILC Draft Statute, p. 128.

‘Since this procedure [*révision*] is exceptional and represents a challenge to the two principles of respect for public order and *res judicata*, successful applications are rare. Historically it has been only *causes célèbres* such as the Dreyfus case which have been considered.’⁷

In relation to the German legal system, it has similarly been said that:

‘In general, [German] courts are very reluctant to recognise new facts as grounds for re-openings ... Case law has determined that it must be shown that a re-trial will materially improve the position of the convicted person. This criterion, which establishes a presumption in favour of finality, makes it very difficult for a defendant to obtain a new trial.’⁸

- 5 The ILC contemplated that this provision would ‘not extend, for example, to alleged errors in the assessment of facts presented at the trial or to errors of law or procedure, which are a matter for the appeals process’.⁹ The precise **relationship** in practice between revision proceedings and **appeal proceedings** may not always be easy to draw,¹⁰ and may require elaboration in the case law. The distinction may be important in practice, since there are prescribed time limits for the bringing of appeals against final judgments of a Trial Chamber,¹¹ whereas there is no time limit for the bringing of an application for revision.¹²

B. Analysis and interpretation of elements

I. Paragraph 1

1. Revision generally

- 6 Only the convicted person, or certain other individuals acting on his or her behalf, can bring revision proceedings. This includes the Prosecutor, who, although he or she cannot seek revision of an *acquittal*,¹³ may seek revision of a *conviction* on behalf of the convicted person.¹⁴ This is consistent with the approach originally taken by the ILC. The ILC considered that revision proceedings should be available only in the case of a conviction, taking the view that it would be a violation of the principle of *ne bis in idem* for an acquittal to be revised on grounds of the discovery of new evidence.¹⁵ Nevertheless, the ILC considered

⁷ Vogler, in: Hatchard *et al.* (eds.), *Comparative Criminal Procedure* (1996) 57.

⁸ Huber, in: Hatchard *et al.* (eds.), see note 7, 136. See also Osner *et al.* (eds.), *The Royal Commission on Criminal Justice: Criminal Justice Systems in Other Jurisdictions*, HMSO (1993) 81 (the revision procedure in Denmark ‘has been rarely used, but is of preventive importance against any tendencies on the part of the courts to weaken the requirements of evidence in criminal cases’), 102–103 (in Germany it is estimated that approximately 150–350 court decisions per year are quashed on ‘*Wiederaufnahme*’), 190 (the number of successful applications for reopenings in Sweden ‘varies between 5 and 10 *per annum*’).

⁹ ILC Draft Statute 1994, article 50.

¹⁰ The ICTY and ICTR Rules envisage that appeal and review proceedings may be brought at the same time, since they provide that where a judgment is under appeal at the time the motion for review is filed, the Appeals Chamber may return the case to the Trial Chamber for disposition of the motion: ICTY Rule 122 ICTY; ICTR Rule 123.

¹¹ Rule 150 para. 1 imposes a 30-day time limit for the filing of an appeal against a final decision of conviction or acquittal. While the Appeals Chamber is empowered under rule 150 para. 2 to extend this time limit upon the application of the party seeking to appeal, rule 150 para. 4 states that if an appeal is not filed as set out in the previous provisions of that rule, the decision of the Trial Chamber ‘shall become final’. This suggests that an extension of the time limit for the filing of an appeal must be granted before the existing time limit has passed, and that once the Trial Chamber’s judgment has become final, no appeal is possible.

¹² In the ICTY and ICTR, any application for review by the prosecution must be brought within one year of the final judgment being pronounced, but no time limit is imposed on such applications brought by the defence: ICTY Rule 119; ICTR Rule 120.

¹³ This can be contrasted with the position in the ICTY and ICTR, where the Prosecutor can seek revision of an acquittal within one year of the judgment (article 26 of the ICTY; ICTY Rule 119; article 25 ICTR; ICTR Rule 120).

¹⁴ See also Eckelmans and Staker, *article 81*, mn 8.

¹⁵ ILC Draft Statute 1994, p 128.

that the right to apply for revision of a conviction should be extended to the Prosecutor in the same way as to the convicted person, 'on the ground that the Prosecutor has an equal interest with the defence in securing a just and reliable outcome in proceedings brought under the Statute'.¹⁶ This corresponds to the Prosecutor's right to appeal a conviction or sentence on behalf of the convicted person.¹⁷

While article 84 does not say so expressly, it is therefore clearly implicit that upon revision, the conviction or sentence cannot be revised to the **convicted person's detriment**. Article 83, paragraph 2, last sentence, of the Statute contains an express provision to that effect for appeals brought by or on behalf of the convicted person, which must be applied by analogy to revision proceedings. The principal purpose of revision proceedings is to correct miscarriages of justice suffered by the convicted person; it would be contrary to this if revision proceedings could lead to a conviction or sentence that is harsher than the original conviction or sentence.

Because revision proceedings may be brought only by or on behalf of a *convicted* person, it would not be possible for a person who has been *acquitted* to bring such proceedings merely in order, for instance, to correct perceived factual inaccuracies in the Trial Chamber's judgment. 7

There is no definition of what constitutes a '**judgment of conviction or sentence**'. The expression would obviously include a decision of a Trial Chamber under article 74 to convict an accused, or the pronouncement of a sentence by a Trial Chamber. It would similarly include a conviction or sentence as amended on appeal by the Appeals Chamber under article 83 paragraph 2 (a). It includes convictions under article 70, dealing with offences against the administration of justice.¹⁸ On a literal interpretation, at least, the expression would, however, exclude other types of decisions, such as an order for reparations made against a convicted person under article 75 paragraph 2,¹⁹ or a decision under article 85. The wording of the paragraph would allow an application to be brought for revision of the sentence only, without challenging the conviction on which it is based, for instance, where new evidence is discovered that relates solely to factors taken into account in sentencing. 8

In Romano-Germanic systems, it is common for revision proceedings to be considered as an extraordinary remedy that can be invoked only when all available avenues of appeal have been exhausted. Similarly, by restricting its application to '**final**' judgments, article 84 precludes revision of a judgment of a Trial Chamber that is at the time subject to an appeal.²⁰ A judgment of a Trial Chamber will only be a 'final' judgment if no appeal has been brought against it within the time limit for the bringing of an appeal or if the Appeals Chamber confirms it upon appeal. If the Appeals Chamber reverses or amends the Trial Chamber's judgment under article 83 paragraph 2 (a) upon appeal, it is the Appeals Chamber's judgment that becomes final. If the Appeals Chamber instead orders a new trial before a different Trial Chamber (pursuant to article 83 paragraph 2 (b)), the 'final' judgment will be the judgment of the Trial Chamber at the subsequent trial, or, in the event of an appeal, the subsequent judgment of the Appeals Chamber. If an application for revision is brought before the judgment in question has become final, the application should be rejected as inadmissible. If an appeal is brought against certain aspects of the Trial Chamber's judgment only, the judgment of the Trial Chamber may be the 'final' judgment in relation to some parts of a case, and the judgment of the Appeals Chamber the 'final' judgment in relation to others. 9

¹⁶ *Ibid.*

¹⁷ See article 81 para. 1 (b). Pursuant to regulation 70 of the Regulations of the Office of the Prosecutor, the Prosecutor shall consult with the convicted person or his or her counsel before appealing on that person's behalf or bringing a request for revision.

¹⁸ This follows from Rule 163 para. 1.

¹⁹ But see below, mn 29.

²⁰ This contrasts with the position in the ICTY and ICTR: see see note 10.

- 10 The ICTY and ICTR have held that a ‘final judgment’ for the purposes of review (revision) proceedings is a decision that puts an end to the proceedings.²¹ Thus, in those jurisdictions, there is in principle no possibility of review (revision) of an interlocutory decision of a Trial Chamber, or of a judgment of the Appeals Chamber in an interlocutory appeal, except in rare cases where the interlocutory decision puts an end to the proceedings.²² This question is unlikely to arise in practice in the context of the ICC, given that revision proceedings can only be brought by or on behalf of a convicted person, and given that an accused would normally have no interest in challenging an interlocutory decision that terminated the proceedings before final judgment.
- 11 Although an interlocutory decision that does not put an end to the proceedings is not subject to revision, in the practice of the ICTY and ICTR it may in some circumstances be open to ‘reconsideration’ by the Chamber that rendered it. Despite some statements to the effect that ‘motions to reconsider do not form part of the procedures of the International Tribunal’,²³ such motions have been entertained by Chambers of those Tribunals, and occasionally allowed, where particular circumstances exist that warrant reconsideration.²⁴

²¹ *Barayagwiza v. Prosecutor*, ICTR-97-19-AR72, Decision (Prosecutor’s Request for Review or Reconsideration), Appeals Chamber, 31 March 2000 (‘*Barayagwiza* Review Decision’), para. 49 (available at: <https://www.legal-tools.org/en/doc/1c0fe7/>); *Barayagwiza v. Prosecutor*, ICTR-97-19-AR72, Decision on Review and/or Reconsideration, Appeals Chamber, 14 September 2000 (available at: <https://www.legal-tools.org/en/doc/452305/>); *Prosecutor v. Bagilishema*, ICTR-95-1A-A, Decision: Motions for Review of the Pre-Hearing Judge’s Decisions of 30 November and 19 December 2001, Appeals Chamber, 6 February 2002 (available at: <http://ictarchive09.library.cornell.edu/ENGLISH/cases/Bagilishema/decisions/060202a.html>); *Prosecutor v. Delić*, IT-96-21-R-1119, Decision on Motion for Review, Appeals Chamber, 25 April 2002 (‘*Delić* Review Decision’), para. 8 (available at: <http://www.legal-tools.org/en/doc/81daad/>). See also *Prosecutor v. Tadić*, IT-94-1-R, Decision on Motion for Review, Appeals Chamber, 30 July 2002 (‘*Tadić* Review Decision’), para. 24 (available at: <http://www.legal-tools.org/en/doc/eb2b62/>); *Prosecutor v. Blaskić*, IT 94-14-R, Decision on Prosecutor’s Request for Review or Reconsideration, Appeals Chamber, 23 November 2006, paras. 22–23 (available at: <http://www.legal-tools.org/en/doc/f50d72/>).

²² See *Barayagwiza* Review Decision, see note 21. In this case, in an interlocutory appeal, the Appeals Chamber had dismissed the indictment with prejudice to the prosecution and directed the immediate release of the accused, on the ground that the rights of the accused had been seriously violated. In subsequent review proceedings, the Appeals Chamber found that new facts presented by the prosecution diminished the intensity of the violation of the rights of the accused, revised its original decision, rejected the application of the accused to be released, and decided that the accused was entitled to a different remedy for the violation of his rights. The prosecution of the accused thereafter continued before the Trial Chamber.

²³ *Prosecutor v. Kovacević*, IT-97-24-PT, Decision on Defence Motion to Reconsider, Trial Chamber, 30 June 1998, preambular para. 2 (available at: <http://www.legal-tools.org/en/doc/a0312e/>). See also, e.g., *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-PT, Decision on Prosecutor’s Motion for Reconsideration, Trial Chamber, 15 February 1999 (available at: <http://www.legal-tools.org/en/doc/76f07b/>); *Prosecutor v. Delalić et al. (Čelebići case)*, IT-96-21-T, Order on Esad Landžo’s Request for Definition of Diminished or Lack of Mental Capacity, Trial Chamber, 15 July 1998 (available at: <http://www.legal-tools.org/en/doc/5604e0/>).

²⁴ See, e.g., *Prosecutor v. Galić*, IT-98-29-AR73, Decision on Application by Prosecution for Leave to Appeal, Bench of the Appeals Chamber, 14 December 2001, para. 13 (‘A Trial Chamber may nevertheless always reconsider a decision it has previously made, not only because of a change of circumstances but also where it is realised that the previous decision was erroneous or that it has caused an injustice’) (available at: <http://www.icty.org/x/cases/galic/acdec/en/11214DE317061.htm>); *Prosecutor v. Milošević*, IT-02-54-AR73, Reasons for Refusal of Leave to Appeal from Decision to Impose Time Limit, Bench of the Appeals Chamber, 16 May 2002, para. 17 (‘It must be emphasised that a Trial Chamber may always reconsider a decision it has previously made, and not only because of unforeseen circumstances. Whether or not it exercises that power is a discretionary matter’) (available at: <http://www.legal-tools.org/en/doc/810d38/>); *Prosecutor v. Semanza*, ICTR-97-20-T, Decision on Defence Motion to Reconsider Decision Denying Leave to Call Rejoinder Witnesses, Trial Chamber, 9 May 2002, paras. 7–8 (‘The Rules do not explicitly provide for reconsideration of a previous decision. Nevertheless, according to the jurisprudence of the Tribunal, the Chamber possesses an inherent power to reconsider. ... In light of the principle of finality, which mandates that the parties should be able to rely and act on binding decisions of the Tribunal without fear that the decisions will be lightly overturned, this inherent discretion to reconsider a decision should be sparingly exercised’) (available at: <http://www.legal-tools.org/en/doc/2e0ebe/>); *Prosecutor v. Blaskić*, IT-95-14-T, Decision on the Defence Motion for Reconsideration of the Ruling to Exclude from Evidence Authentic and Exculpatory Documentary Evidence, Trial Chamber, 30 January 1998, esp. para. 12 (available at: <http://www.icty.org/x/cases/Blaskic/tdec/en/80130EV113316.htm>); *Prosecutor v. Stakić*, IT-97-24-PT, Order on Prosecution’s Motion for Reconsideration of Prior Motion for Variation of Length of Pre-Trial Brief, Trial Chamber, 15 January 2002 (available at: <http://www.legal-tools.org/en/doc/792d4e/>).

The first-instance Chambers of the ICC initially took a restrictive approach in that regard, finding that ‘outside the specific instances where the Statute and the Rules vest the right to seek review in one or more of the participants, the only remedy of a general nature is an interlocutory appeal against decisions other than final decisions, as set forth in article 82, paragraph 1 (d) of the Statute’.²⁵ In contrast, Trial Chamber I subsequently found that it had the power to reconsider not only ‘administrative’ decisions of a case-management nature, but also more substantive decisions, which ‘can be varied if they are manifestly unsound and their consequences are manifestly unsatisfactory’.²⁶

It has been said that in the case of review (or revision) proceedings, in contrast to 12 ‘reconsideration’:

‘... the motion has to be approached on the footing that the earlier findings of the ... Chamber stand, save to the extent to which it can be seen that those findings would themselves have been different had certain new facts been available to the ... Chamber when the original decision was made; under that procedure, it is not therefore possible to challenge the previous holdings of the ... Chamber as incorrect on the basis on which they were made.’²⁷

Paragraph 1 of article 84 provides for revision in three specified circumstances only. The 13 negotiating history of this article, in which it was expressly decided to exclude certain other grounds for revision, would appear to indicate an intention that revision on other grounds should not be permitted.²⁸ However, one member of the Appeals Chamber of the ICTR has contemplated that reconsideration of a final judgment may be possible in ‘a case in which the decision, although apparently *res judicata*, is void, and therefore non-existent in law, for the reason that a procedural irregularity has caused a failure of natural justice’,²⁹ and suggested that ‘certainly in the case of a court of last resort, there is inherent jurisdiction to reopen an appeal if a party had been ‘subjected to an unfair procedure’.³⁰

The party applying for revision bears the burden of satisfying the Appeals Chamber that 14 the requirements of paragraph 1 of this article are met. There is no burden on the other party to establish that the requirements are *not* met.³¹

2. Sub-paragraph (a)

Sub-paragraph (a) provides for the revision of a final judgment where certain new 15 evidence has been discovered. This wording contrasts with that of the Statutes of the ICTY

²⁵ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-60, Decision on the Prosecutor’s Position on the Decision of Pre-Trial Chamber II To Redact Factual Descriptions of Crimes from the Warrants of Arrest, Motion for Reconsideration, and Motion for Clarification, Pre-Trial Chamber II, 28 October 2005, para. 20 (available at: <http://www.legal-tools.org/en/doc/9dfa86/>). This decision was relied upon in subsequent decisions. See *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-123 (available at: <http://www.legal-tools.org/en/doc/365c0b/>), Decision on the Prosecution Motion for Reconsideration, Pre-Trial Chamber I, 23 May 2006, p. 2; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-166, Decision on the Prosecution Motion for Reconsideration and, in the Alternative, Leave to Appeal, Pre-Trial Chamber I, 23 June 2006, para. 10 (available at: <http://www.legal-tools.org/en/doc/a2d89a/>); *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-1010, Decision on the “Requête de la Défense aux fins d’obtenir de la Chambre de Première Instance III des décisions appropriées avant l’ouverture du Procès prévue pour le 22 Novembre 2010”, Trial Chamber III, 16 November 2010, para. 9 (available at: <http://www.legal-tools.org/en/doc/33d173/>).

²⁶ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2705, Decision on the defence request to reconsider the ‘Order on numbering of evidence’ of 12 May 2010, 30 March 2011, para. 18 (available at: <http://www.legal-tools.org/en/doc/998892/>). This decision was relied upon, for instance, in *Prosecutor v. Uhuru Murgai Kenyatta*, ICC-01/09-02/11-863, Decision on the Prosecution’s motion for reconsideration of the decision excusing Mr Kenyatta from continuous presence at trial, Trial Chamber V(b), 26 November 2013 (available at http://www.icc-cpi.int/en_menus/icc/situations%20and%20cases/situations/situation%20icc%200109/related%20cases/icc01090211/court%20records/chambers/Pages/863.aspx).

²⁷ *Barayagwiza* Review Decision, see note 21, Separate Opinion of Judge Shahabuddeen, para. 2.

²⁸ Brady and Jennings, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (2001) 302–303.

²⁹ *Barayagwiza* Review Decision, see note 21, Separate Opinion of Judge Shahabuddeen, para. 4.

³⁰ *Ibid.*, para. 5.

³¹ *Delić* Review Decision, see note 21, para. 17.

and ICTR,³² and article 21 of the Statute of the Special Court for Sierra Leone,³³ which provide for review proceedings where a ‘new fact’ has been discovered. Rule 115 ICTY and ICTR also make provision for the presentation on appeal of ‘additional evidence’ that was ‘not available at trial’. In the ICTY and ICTR, a body of case law has developed with respect to the distinction between a ‘new fact’ for the purposes of review proceedings and ‘additional evidence’ on appeal for the purposes of rule 115 of the Rules of those Tribunals,³⁴ a distinction which the case law has acknowledged may be difficult to draw.³⁵ The expression ‘new evidence’ in article 84 of the ICC Statute appears to obviate any such distinction, and it would seem that the ‘new evidence’ for the purposes of sub-paragraph (a) could be of any fact, whether it was in issue in the proceedings sought to be revised or not.³⁶ The ICC will have to determine whether there is any difference in the treatment to be given to new evidence in revision proceedings on the one hand, and to new or additional evidence presented by a party during appeal proceedings on the other. The Appeals Chamber has found the criteria for the **admission of new evidence** on appeal and for bringing revision proceedings under sub-paragraph (a) to be ‘similar’.³⁷ It has also found that ‘that additional evidence brought by a convicted person on appeal that would be considered in revision proceedings should, as a general matter, be admissible on appeal’.³⁸ If it were otherwise, appellants would be forced to bring revision proceedings, rather than presenting the new evidence in the course of an appeal. This is contrary to procedural efficiency.³⁹

- 16 Subsequent **developments in the jurisprudence** cannot constitute ‘new evidence’ for the purposes of this article. Thus, revision of an earlier judgment could not be sought where the accused was convicted on the basis of a finding of law that was departed from in the later case law of the Court.⁴⁰ A mistake in the **appraisal of the evidence** presented at trial would also not be a ground for revision.⁴¹ For such an argument would not be based on *new evidence*.
- 17 Sub-paragraph (a) requires that the new evidence was **not available at the time of trial**. This reflects the wording of rule 115 ICTY and ICTR (dealing with the presentation of

³² See see note 1.

³³ See see note 2.

³⁴ A ‘new fact’ has been defined as ‘new information of an evidentiary nature of a fact that was not in issue during the trial or appeal proceedings’ (*Prosecutor v. Jelisić*, IT-95-10-R, Decision on Motion for Review, Appeals Chamber, 2 May 2002 (‘*Jelisić* Review Decision’), p. 3 (available at: [http://sim.law.uu.nl/sim/caselaw/tribunales.nsf/41bcf2c89e69d10bc12571b500329d64/6c3fb9b07e146a7ac12571fe004be52a/\\$FILE/Jelisić%20ACD%202-05-2002.pdf](http://sim.law.uu.nl/sim/caselaw/tribunales.nsf/41bcf2c89e69d10bc12571b500329d64/6c3fb9b07e146a7ac12571fe004be52a/$FILE/Jelisić%20ACD%202-05-2002.pdf)); *Tadić* Review Decision, see note 21, para. 25 (adding that ‘The requirement that the new fact has not been in issue at trial means that it must not have been among the factors that the deciding body could have taken into account in reaching its verdict’); see also *Delić* Review Decision, see note 21, paras. 10–11. Even if the fact existed before the original proceedings took place, this does not prevent it from being a ‘new fact’ if the relevant Chamber and party did not know of it (see *ibid.*, para. 11; *Barayagwiza* Review Decision, see note 21, Separate Opinion of Judge Shahabuddeen, para. 47). In contrast, where a fact *was* in issue in the trial proceedings, additional evidence of that fact is not an appropriate basis for review proceedings in the ICTY or ICTR, but may constitute ‘additional evidence’ for the purposes of ICTY and ICTR Rule 115, dealing with the presentation of additional evidence on appeal (*Prosecutor v. Tadić*, IT-94-1-A, Decision on Appellant’s Motion for the Extension of the Time-Limit and Admission of Additional Evidence, Appeals Chamber, 15 October 1998 (‘*Tadić* Additional Evidence Decision’), paras. 30, 32 (available at: <http://www.legal-tools.org/en/doc/834222/>). See further *Prosecutor v. Niyitigeka*, ICTR-96-14-R, Decision on Request for Review, Appeals Chamber, 30 June 2006, paras. 5–7, 43–48 (available at: <http://www.legal-tools.org/en/doc/t70249/>); *Prosecutor v. Niyitigeka*, ICTR-96-14-R, Decision on Request for Review, Appeals Chamber, 6 March 2007, para. 5 (and see the Separate Declaration of Judge Shahabuddeen and Separate Opinion of Judge Meron) (available at: <http://www.legal-tools.org/en/doc/3dde05/>).

³⁵ *Delić* Review Decision, see note 21, para. 13.

³⁶ But cf. La Rosa, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1566–1577.

³⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3121-Red, Judgment on the appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, para. 61 (available at: <http://www.icc-cpi.int/iccdocs/doc/doc1876833.pdf>).

³⁸ *Ibid.*

³⁹ *Ibid.*

⁴⁰ See *Jelisić* Review Decision, see note 34; *Tadić* Review Decision, see note 21, para. 41.

⁴¹ La Rosa, see note 36, 1566.

additional evidence on appeal, as opposed to revision or review proceedings). It has been held that this requirement means that the party seeking to present the evidence must demonstrate that the evidence would not have been available at trial through the exercise of **due diligence** by that party or that party's counsel.⁴² This duty to act with reasonable diligence includes making use of all mechanisms of protection and compulsion available under the Tribunal's Statute and Rules to bring evidence on behalf of an accused before the Trial Chamber, so that, for example, if a party experiences difficulty in calling a witness to testify at trial, it must apprise the Trial Chamber so that the Chamber may consider imposing coercive or protective measures.⁴³ An exception may exist where there has been '**gross professional negligence**' on the part of defence counsel,⁴⁴ or where defence counsel was acting in contempt of court without the knowledge of the accused.⁴⁵ In the case of review (revision) proceedings, such a due diligence requirement is expressly incorporated in the Rules of the ICTY and ICTR.⁴⁶ In the case of the ICC, the application of a similar test is further indicated by the requirement in subparagraph (a) (i) that the non-availability of the evidence at trial be 'not wholly or partially attributable to the party making application'.

If counsel for the defence made in the course of the trial a conscious decision not to tender a given piece of evidence at trial, it cannot be said that the evidence is new. For that reason, it cannot be the basis for bringing review proceedings. As defence counsel is acting on behalf of the accused person, he or she must be taken to have acquiesced in the decision of the counsel, at least in the absence of any showing of professional negligence.⁴⁷

However, the Appeals Chamber of the ICTY and ICTR has held that there is an **exception** 18 to this requirement. In 'wholly exceptional circumstances', a Chamber may grant a motion for review (revision) based on the existence of a new fact, even though the fact was known to the moving party or could have been discovered through the use of ordinary diligence. The Appeals Chamber has indicated that it will do so only when the decision to be reviewed was of such a nature in the circumstances of the case as to have led to a miscarriage of justice. In such circumstances, the requirement will be regarded as directory in nature.⁴⁸ According to this jurisprudence, where this exception applies, a new fact can be relied upon as a basis for review of a final judgment of the ICTY or ICTR, not only where the new fact could have been ascertained at trial with due diligence, but also in circumstances where the new fact was actually known to the relevant party at the time of trial.⁴⁹ Furthermore, a Chamber will

⁴² *Tadić* Additional Evidence Decision, see note 33, paras. 36, 44–50; *Prosecutor v. Kupreskić et al.*, IT-95-16-A, Appeal Judgment, Appeals Chamber, 23 October 2001 ('*Kupreskić* Appeal Judgment'), para. 50 (available at: <http://www.legal-tools.org/en/doc/c6a5d1/>). For instance, where a witness statement was disclosed to defence counsel at trial, defence counsel knew or with due diligence could have known of the evidence (*Delić* Review Decision, see note 21, paras. 16–17).

⁴³ *Tadić* Additional Evidence Decision, see note 34, paras. 47, 60, 62; *Kupreskić* Appeal Judgment, see note 42, para. 50.

⁴⁴ Cf. *Tadić* Additional Evidence Decision, see note 34, paras. 48–50, 65; *Kupreskić* Appeal Judgment, see note 42, para. 51.

⁴⁵ *Tadić* Review Decision, see note 21, esp. paras. 45, 52 (and cf. paras. 32 and 56).

⁴⁶ ICTY Rule 119 *lit.* A; ICTR Rule 120. The *Delić* Review Decision, see note 21, para. 10, indicates that in the ICTY, the due diligence requirement for review (revision) proceedings is the same as the 'not available at trial' test for the presentation of additional evidence on appeal.

⁴⁷ *Tadić* Additional Evidence Decision, see note 34, para. 65; *Delić* Review Decision, see note 21, para. 15 ('The Appeals Chamber will not intervene because other counsel might have made different decisions as to the conduct of the trial or even because such decisions made at the trial are seen in retrospect to have been wrong. It is only when the decision made was of such a nature in the circumstances of the case as to have led to a miscarriage of justice that this Chamber will not hold the accused accountable for his counsel's conduct').

⁴⁸ *Barayagwiza* Review Decision, see note 21, paras. 65–69 (see also Separate Opinion of Judge Shahabuddeen, paras. 48–54); *Tadić* Review Decision, see note 21, paras. 26–27 (and see also at paras. 36–37, 44). In the former case, Judge Shahabuddeen explained this exception by reference to a more general principle that mandatory language in a statute may be deemed directory if its legislative purpose can best be carried out by adopting a directory construction, and said: 'Here, the overriding purpose of the provision is to achieve justice. Justice is denied by adopting a mandatory interpretation of the text; a directory approach achieves it' (Separate Opinion of Judge Shahabuddeen, para. 53).

⁴⁹ *Tadić* Review Decision, see note 21, paras. 36–37.

consider whether an application for review falls within such a situation of ‘wholly exceptional circumstances’, even where the applicant has not argued this to be the case.⁵⁰

The exception is a narrow one. The ‘wholly exceptional’ circumstances in which it will apply are likely to be confined to cases where the new evidence ‘would clearly have altered [the] earlier decision’,⁵¹ and where to ignore the new evidence would ‘be to close one’s eyes to reality’.⁵² A party seeking to invoke the exception should be required to demonstrate the credibility and probative value of the new evidence, and to explain why it was not called at trial or on any subsequent appeal.⁵³ It remains to be seen whether the ICC will recognize a similar exception; the text of sub-paragraph (a) (i) does not appear to leave room for it. Nevertheless, it would be undesirable if the ICC could not correct a judgment that is clearly wrong.

- 19 Sub-paragraph (a) further requires that the new evidence be ‘sufficiently important that had it been proved at trial it would have been **likely to have resulted in a different verdict**’. This threshold is a high one. As regards conviction decisions, a verdict would have been different if a (partial) acquittal instead of a conviction would have been entered, had the Chamber been aware of the evidence. The provisions of the ICTY and ICTR Statutes dealing with review (revision) proceedings refer instead to new facts that ‘could have been a decisive factor in reaching the decision’.⁵⁴ It is uncertain whether the test of ‘*likely* to have resulted in a different verdict’ in article 84 of the ICC Statute is a more difficult standard to satisfy than the test in the Statutes of the ICTY and ICTR. In the ICTY, it has for instance been held that subsequent discovery that aspects of witness statements were false would not satisfy the relevant test if the statements did not form part of the evidence upon which the conviction was based, and if the falsity would not have been considered a circumstance favouring the accused.⁵⁵ It has also been held that certain misconduct by defence counsel will not necessarily satisfy the test.⁵⁶
- 20 Arguably, even if the new evidence does not affect the conviction decision, but only the **sentence**, this could be the basis for revision proceedings. This is because proceedings under article 84 may also lead to a revision of the sentence; it would be illogical if new evidence that, had it been presented at trial, would have been likely to have resulted in a more lenient sentence could not lead to revision proceedings. In that regard, however, it must be recalled that a Trial Chamber enjoys broad discretion in its sentencing decision;⁵⁷ this will make it difficult to establish that the threshold has been met.

3. Sub-paragraph (b)

- 21 Sub-paragraph (b) requires a showing that it has been ‘newly discovered that **decisive evidence** [...] was **false, forged or falsified**’. Sub-paragraphs (a) and (b) differ in that in case of the former, ‘new’ evidence that has not been taken into account at trial has been discovered, while the latter concerns a situation where it is newly discovered that evidence relied upon at trial was, in fact, false. Nevertheless, there is overlap between the two provisions because presumably, in order to establish that evidence was ‘false, forged or falsified’, evidence of this fact will have to be presented. For that reason, it could be argued

⁵⁰ *Prosecutor v. Josipović*, IT-95-16-R2, Decision on Motion for Review, Appeals Chamber, 7 March 2003, paras. 14–15 (citing earlier jurisprudence).

⁵¹ *Barayagwiza Review Decision*, see note 21, para. 66; *Delić Review Decision*, see note 21, para. 19.

⁵² *Ibid.*, para. 69.

⁵³ *Cf. Delić Review Decision*, see note 21, paras. 19–22.

⁵⁴ See see note 1.

⁵⁵ *Tadić Review Decision*, see note 21, paras. 33, 39–40.

⁵⁶ *Ibid.*, paras. 48–50. For an example of a case where this test was satisfied, see *Barayagwiza Review Decision*, see note 21.

⁵⁷ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-3122, Judgment on the appeals of the Prosecutor and Mr Thomas Lubanga Dyilo against the ‘Decision on Sentence pursuant to Article 76 of the Statute’, Appeals Chamber, 1 December 2014, para. 1 (available at: <http://www.icc-cpi.int/iccdocs/doc/doc1877186.pdf>).

that the evidence relied upon under sub-paragraph (b) must not have been known at the time of the original decision and could not have been discovered through the exercise of due diligence. If the ICC recognized the exception to sub-paragraph (a) referred at mn 17 above, presumably it would also apply to sub-paragraph (b).

The terminology in subparagraph (a) and subparagraph (b) differs: The former refers to new evidence that is ‘sufficiently important that had it been proved at trial it would have been likely to have resulted in a different verdict’. The latter refers to evidence that is ‘decisive’ and ‘upon which the conviction depends’. This is explained by the fact that the perspective differs: for the determination under sub-paragraph (a), a prediction has to be made as to what might have happened, had the original Chamber been aware of the new evidence; in contrast, for sub-paragraph (b), the actual **importance of the false, forged or falsified evidence for the verdict** has to be determined; arguably, this will be done primarily on the basis of the reasoning of the decision in question.

4. Sub-paragraph (c)

Sub-paragraph (c) applies in case of **serious misconduct or a serious breach of duty** on the part of one or more of the **judges** ‘who participated in conviction or confirmation of the charges’. The judge in question need not have been a member of the Chamber that gave the final judgment in the case. Even if the final judgment was a judgment of the Appeals Chamber,⁵⁸ revision under this paragraph would be possible if there was serious misconduct or a serious breach of duty by a member of the Trial Chamber or of the Pre-Trial Chamber which confirmed the charges.

The misconduct or breach of duty must be ‘of sufficient gravity to **justify the removal of that judge or those judges from office** under article 46’.⁵⁹ A decision to remove a judge from office for serious misconduct or serious breach of duty is, pursuant to article 46 paragraph 2 (a), taken by a two-thirds majority of the Assembly of States Parties. However, the words ‘to justify’ in sub-paragraph (c) indicate that it is not necessary that the judge was actually removed from office under that provision, or even that procedures under article 46 have been set in motion. Thus, it should be possible for the Appeals Chamber to determine that the requirements for revision have been met, even if article 46 procedures were never commenced. It is unclear, however, whether an application for revision can also be brought in circumstances where the Assembly of States Parties, in accordance with the statutory provisions for the removal of judges from office, has already assessed and rejected the allegations of misconduct. It could be argued that, as a convicted person has a right to have his or her application for revision heard and determined *judicially* by a Chamber, his or her position should not depend upon a decision taken by the Assembly of States Parties in a non-judicial context. On the other hand, this could lead to the undesirable result that the decision of the Appeals Chamber on an application for revision may be at odds with an earlier decision of the Assembly of States Parties on the same subject. In such a situation the Appeals Chamber would effectively be reviewing the ASP’s decision.

Sub-paragraph (c) does not require that the judge’s misconduct or breach of duty affected the result. This would often be impossible to prove, in view of the requirement in article 74 paragraph 4 that ‘[t]he deliberations of the Trial Chamber shall remain secret’. Arguably, even if the judge in question issued a dissenting opinion to the judgment in relation to which revision is sought, the judge’s misconduct would justify revision. If it were otherwise, there would always be a doubt as to the impact that the judge’s misconduct or breach of duty might have had on the other judges of the Chamber.

⁵⁸ See mn 9.

⁵⁹ The definition of such misconduct for the purposes of article 46 is further dealt with in Rule 24.

II. Paragraph 2

- 26 This paragraph establishes a **two-step procedure for revision proceedings**, including a type of ‘filter’ mechanism as the first step. The ILC (which originally proposed conferring this filtering function on the Presidency) indicated that it was intended to prevent ‘frivolous applications’.⁶⁰ In the provision as finally adopted, the initial application for revision is made to the Appeals Chamber. The procedure for the application is further set out in Rule 159. The interplay of Rule 159 with Rules 160 and 161 indicates that the first step will usually be carried out **without the convicted person being present before the Court** (who will usually be serving the sentence in a State other than The Netherlands); transfer of that person to the Court is envisaged only for the second step of the procedure.

The Appeals Chamber ‘shall reject the application if it considers it to be unfounded’. If the Appeals Chamber finds the application to be ‘meritorious’, it may take one of the measures set out in the three sub-paragraphs of paragraph 2. The use of the terms ‘unfounded’ and ‘meritorious’ indicates that the **first step** involves an assessment of whether the **criteria set out in paragraph 1, sub-paragraphs (a) to (c) are actually met**. This is more than a *prima facie* evaluation. If they are, the substance of the matter is then either referred to the original Trial Chamber, or a new Trial Chamber, or may be dealt with by the Appeals Chamber itself. Pursuant to Rule 159, paragraph 2, the Appeals Chamber’s decision ‘shall be supported by reasons’. The application procedure is further set out in Regulation 66 of the Regulations of the Court.

- 27 If the application for revision is found to be meritorious, the **second step of the procedure** commences, ‘with a view to ... arriving at a determination whether the judgment should be revised’. For the purpose of making this determination the Appeals Chamber may ‘[r]econvene the original Trial Chamber’ (sub-paragraph (a)), ‘[c]onstitute a new Trial Chamber (sub-paragraph (b)),⁶¹ or ‘[r]etain jurisdiction over the matter’ (sub-paragraph (c)). Neither paragraph 2 nor the corresponding Rules provide any guidance as to the **criteria** according to which the Appeals Chamber should choose among the three possible options.

From the ILC’s commentary, it seems to have been originally envisaged that revision proceedings might be dealt with entirely by the Appeals Chamber itself ‘if the truth of the new fact relied on is not in issue’.⁶² Presumably, the Appeals Chamber would also retain jurisdiction over the matter where the revision is of one of the Appeals Chamber’s own decisions. If revision is sought of a judgment of a Trial Chamber, and if facts are in issue, the appropriate course could be to refer the matter to the same or a different Trial Chamber.

By way of comparison, the Rules of the ICTY and ICTR provide that applications for review (revision) shall be by way of motion to the Chamber that pronounced the original judgment. That Chamber is called upon to employ a similar two-stage process involving, first, a determination whether the new fact, if proved, could have been a decisive factor in reaching the original decision, and secondly, if the result of the first stage is affirmative, of a review the judgment and the pronouncement a further judgment after hearing the parties.⁶³ In practice, both stages may be combined into a single hearing and a single judgment on review.⁶⁴ The Appeals Chamber of the ICTY has indicated that where possible, a request for review should be heard by the same judges who originally heard the case, as these judges will

⁶⁰ See note 6.

⁶¹ It is unclear whether in the decision to ‘reconvene’ the original Trial Chamber or to ‘constitute’ a new Trial Chamber the Presidency has a role to play. In that regard, it is recalled that it is usually the Presidency that constitutes Pre-Trial and Trial Chambers (see Regulation 46, para. 1 of the Regulations of the Court and article 61, para. 11).

⁶² *Ibid.*, p. 129.

⁶³ ICTY Rule 120; ICTR Rule 121.

⁶⁴ See, e.g., *Barayagwiza Review Decision*, see note 21.

be familiar with the facts of the case.⁶⁵ That approach would seem equally apt to the circumstances of the ICC, in cases where revision is sought under sub-paragraphs (a) or (b) of paragraph 1 of this article. Revision is not a retrial, and does not involve any suggestion that the Chamber that rendered the original decision erred in deciding as it did on the basis of the material then before it.⁶⁶ There is therefore no reason in principle why the judges who rendered the original judgment should be disqualified from dealing with the revision proceedings.⁶⁷ However, in circumstances where revision is sought under sub-paragraph (c) of paragraph 1, it is evident that the application for revision could not be dealt with by the bench as composed at the time of the original decision.

The hearing in this **second stage is governed by Rules 160–161**. However, although Rule 161 paragraph 2 provides that the relevant Chamber ‘shall exercise, *mutatis mutandis*, all the powers of the Trial Chamber pursuant to Part 6 and the Rules governing proceedings and the submission of evidence in the Pre-Trial and Trial Chambers’, the role of the Chamber in revision proceedings is not to conduct a retrial of the case, but rather, to consider, in the light of the new evidence or newly discovered fact ‘whether the judgment should be revised’. At issue is whether the grounds for revision have any **impact on the conviction or sentence**. In certain cases, however, a complete retrial may be necessary (for instance, where serious misconduct by one of the judges vitiates the entire trial proceedings). As neither article 84 paragraph 2 nor Rule 161 confers on a Chamber conducting revision proceedings a power to order a retrial, the revision proceedings would themselves need to be in effect a new trial.

The role of a Chamber making a determination on revision is ‘to revise the final judgment of conviction or sentence’. Thus, the remedy, if any, to be granted on revision would be an **amended final judgment**, in which, for instance, acquittals are entered on any or all counts for which there were convictions in the original judgment, or in which a more lenient sentence is imposed, or in which fines or forfeitures under article 77 paragraph 2 that were included in the original judgment are omitted or reduced. If the Chamber revises a judgment by substituting one or more convictions with acquittals, it would seem to follow that the Chamber must also have the power to revise any **order for reparations** under article 75, which was based on those former convictions. If this is so, there would appear to be no reason why the Court should not have an independent power under article 84 to revise an order for reparations, even where the convicted person does not challenge the conviction on which it is based.

It is **unclear whether the revised judgment is subject to appeal** under article 81 of the Statute.⁶⁸ Rule 161 para. 3 states that ‘The determination on revision shall be governed by the applicable provisions of article 83, paragraph 4’. This rule thereby appears to equate a determination on revision with a final judgment of the Appeals Chamber (even if the determination on revision is made by a Trial Chamber). This suggests that no appeal from a determination on revision is possible, a result which can be justified by the exceptional character of revision proceedings. This exceptional character is disregarded by the opposing view,⁶⁹ which is based on the consideration that the decision on revision may be taken by a Trial Chamber and should therefore be subject to appeal.

⁶⁵ *Tadić* Review Decision, see note 21, para. 23.

⁶⁶ See mn 11.

⁶⁷ But cf. Bitti and Fernández de Gurmendi, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 598.

⁶⁸ ICTY Rule 121 and ICTR Rule 122 provide expressly that the judgment of a Trial Chamber on review may be appealed in accordance with the ordinary appeal provisions.

⁶⁹ See Boas *et al.*, in: Sluiter *et al.* (eds.), *International Criminal Procedure/Principles and Rules* (2013) 986.

Article 85

Compensation to an arrested or convicted person*

1. Anyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation.

2. When a person has by a final decision been convicted of a criminal offence, and when subsequently his or her conviction has been reversed on the ground that a new or newly discovered fact shows conclusively that there has been a miscarriage of justice, the person who has suffered punishment as a result of such conviction shall be compensated according to law, unless it is proved that the non-disclosure of the unknown fact in time is wholly or partly attributable to him or her.

3. In exceptional circumstances, where the Court finds conclusive facts showing that there has been a grave and manifest miscarriage of justice, it may in its discretion award compensation, according to the criteria provided in the Rules of Procedure and Evidence, to a person who has been released from detention following a final decision of acquittal or a termination of the proceedings for that reason.

Literature: Beresford, S., 'Redressing the Wrongs of the International Justice System: Compensation for Persons Erroneously Detained, Prosecuted, or Convicted by the Ad Hoc Tribunals', (2002) 96 *AJIL* 628; Bitti, G., 'Compensation to an Arrested or Convicted Person', in: R.S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 623; Brady, H. and Jennings, M., 'Appeal and Revision', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (Kluwer 1999) 294; Zappalà, S., 'Compensation to an Arrested or Convicted Person', in: A. Cassese, P. Gaeta, and J.R.W.D Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (Oxford University Press 2002) 1577.

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A. Introduction/General remarks

- 1 The ILC Draft originally contained no provision equivalent to this article. Proposals for such a provision in the Statute were put forward at the 1996 Preparatory Committee.¹
- 2 Nothing similar to this article was included in the Statute or Rules of the ICTY or ICTR.² In September 2000, the Presidents of the ICTY and ICTR separately submitted proposals to the Secretary-General of the United Nations for the addition of such an article to each Tribunal's Statute, with the request that the proposals be transmitted to the Security Council for consideration.³ However, no such amendments have been made. In December 2001 and

* The views expressed are those of the authors and cannot be attributed to the ICC or the United Nations.

¹ Preparatory Committee Report I 1996, para. 302; Preparatory Committee Report II 1996, p. 206.

² Nor in the Statute of the Special Court for Sierra Leone (UN Doc. S/2000/915, 4 October 2000, Annex). In relation to the trials for genocide, war crimes, crimes against humanity and other serious crimes in East Timor, provision was made for compensation for miscarriage of justice, corresponding to the first two paragraphs of article 85 only (UNTAET Regulation No. 2000/30 on Transitional Rules of Criminal Procedure, 25 September 2000, section 51; UNTAET Regulation 2001/25 on the Amendment of UNTAET Regulation No. 2000/11 on the Organization of Courts in East Timor and UNTAET Regulation No. 2000/30 on Transitional Rules of Criminal Procedure, 14 September 2001, section 52).

³ See UN Doc. S/2000/904, 26 Sep. 2000; UN Doc. S/2000/925, 6 Oct. 2000. See also text to fn. 15 below.

February 2002, the President of the ICTY received requests for compensation from two persons who had been acquitted on all counts by the Appeals Chamber. The President responded that without any specific provision in the Tribunal's founding texts relating to such compensation, it was not possible for the Judges of the Tribunal to rule on the matter.⁴ He also wrote to the Secretary-General in March 2002 requesting the opinion of the Security Council on the question once again.⁵

Despite the view expressed by the President of the ICTY, the Appeals Chamber of the ICTR has given judgments in two cases envisaging the payment of compensation to 3 accused persons, who had been found to have been detained in violation of their rights under the Statute and Rules.⁶ The Appeals Chamber held that the accused, who had not yet been tried by the Trial Chamber, were entitled to a remedy for the violation of their rights. It decided that if they were found not guilty, they should receive financial compensation, and that if found guilty, the sentence should be reduced to take account of the violation of their rights.⁷

⁴ See Ninth Annual Report of the ICTY (1 August 2001–31 July 2002), UN Doc. A/57/379-S/2002/985, 4 Sep. 2002, para. 28.

⁵ UN Doc. S/2002/304, 25 March 2002.

⁶ *Prosecutor v. Barayagwiza*, ICTR-97-19-AR72, *Decision (Prosecutor's Request for Review or Reconsideration)*, Appeals Chamber, 31 March 2000 ('*Barayagwiza Review Decision*') (rights violated because of the length of time that the accused was provisionally detained before being indicted, and the delay in his initial appearance following his transfer to the Tribunal) (available at: <http://www.legal-tools.org/en/doc/1c0fe7/>); *Semanza v. Prosecutor*, ICTR-97-20-A, *Decision*, Appeals Chamber, 31 May 2000 ('*Semanza Decision*') (violation of the accused's right to be informed promptly of the nature of the charges against him) (available at: <http://www.legal-tools.org/en/doc/d38ef3/>).

⁷ *Barayagwiza Review Decision*, see note 6, para. 75 (3); *Semanza Decision*, see note 6, disposition, para. 6. In the former case, the accused was convicted, and the Trial Chamber gave effect to the Appeals Chamber's decision by reducing the sentence from life imprisonment to 35 years: *Prosecutor v. Barayagwiza et al.*, ICTR-99-52-T, *Judgement*, Trial Chamber, 3 December 2003, paras. 1106–1107 (available at: <http://www.legal-tools.org/en/doc/45b8b6/>). In the latter case, the accused was also convicted, and the Trial Chamber reduced the sentence by six months to take account of the violation of his rights: *Prosecutor v. Semanza*, ICTR-97-20-T, *Judgement and Sentence*, Trial Chamber, 15 May 2003, paras. 579–580 (available at: <http://www.legal-tools.org/en/doc/7e668a/>), a remedy which the Appeals Chamber found consistent with its earlier decision: *Semanza v. Prosecutor*, ICTR-97-20-A, *Judgement*, Appeals Chamber, 20 May 2005, paras. 323–329 (available at: <http://www.legal-tools.org/en/doc/a686fd/>). In the *Barayagwiza Review Decision*, Judge Shahabuddeen added that despite authorities to the effect that the remedy for a breach of the principle that a trial is to be held within a reasonable time may take the form of payment of monetary compensation or of adjustment of any sentence ultimately imposed, it is necessary to contemplate a point of time at which the accused indisputably becomes entitled to release and dismissal of the indictment (*Barayagwiza Review Decision*, *Separate Opinion of Judge Shahabuddeen*, paras. 39–40). On the doctrine of abuse of process generally, see also *Barayagwiza v. Prosecutor*, ICTR-97-19-AR72, *Decision*, Appeals Chamber, 3 November 1999, paras. 73–112 (available at: <http://www.legal-tools.org/en/doc/ee7411/>) (a decision which was the subject of review (revision) by the Appeals Chamber in the *Barayagwiza Review Decision*). More recently, a Trial Chamber of the ICTR has held that 'while the Chamber acknowledges the importance of the principle provided for in article 85 para. 3 of the ICC Statute, it does not find that at present customary international law provides for a right to compensation for an acquitted person in circumstances involving a grave and manifest miscarriage of justice', and that in the absence of a provision in its Statute and Rules or any other applicable source of law in this regard, it therefore had to deny a claim for compensation on this basis: *Prosecutor v. Rwamakuba*, ICTR-98-44C-T, *Decision on Appropriate Remedy*, Trial Chamber, 31 January 2007, para. 31 (available at: <http://www.legal-tools.org/en/doc/7a84f3/>). In that decision, the Trial Chamber concluded, however, in light of instruments on human rights and their applications by human rights bodies, 'that its inherent power to give effect to an accused's or former accused's right to an effective remedy encompasses the power to grant financial compensation where, in the specific circumstances of a case, it constitutes the appropriate remedy to redress a violation of the human right in question' (*ibid.*, para. 58). In that case, the Trial Chamber ordered, *inter alia*, financial compensation of 2,000 US dollars for the moral injury sustained by an acquitted person as a result of a violation of his right to legal assistance.

B. Analysis and interpretation of elements

I. Paragraph 1

- 4 Paragraph 1 of this article adopts the wording of article 9 paragraph 5 of the ICCPR.⁸ In the context of the ICC, this provision would apply in cases where a person is arrested or detained in **violation of specific provisions of the Statute** (in particular, article 55 paragraph 1 (d)) or the Rules, and presumably, where the arrest or detention was unlawful under **other applicable rules of international law**.⁹ As arrests are executed by States, and in view of the requirement in article 59 paragraph 1 that the arrest of a person by a State shall be ‘in accordance with its laws’, this paragraph could arguably apply also to arrests or detentions by **State authorities** in connection with proceedings before the Court, which are unlawful under the national law of that State.¹⁰ Alternatively, given that the Court has no control over the conduct of the State authorities, it could be argued that in such circumstances requests for compensation must be addressed to the State authorities responsible for the breach of domestic law.

II. Paragraph 2

- 5 Paragraph 2 is in turn materially identical to article 14 paragraph 6 of the ICCPR.¹¹ This provision could obviously be of potential application in cases where a **conviction is reversed** as a result of a **revision of the final judgment** under article 84. Indeed, as this paragraph only applies where a conviction is actually ‘reversed’, successful proceedings on revision would in fact appear to be a pre-requisite. This paragraph is unlikely to apply in cases where a conviction by a Trial Chamber is overturned on appeal on the basis of new evidence presented in the appeal proceedings, since the conviction in such a case will not have been ‘by a final decision’ as required by the wording of this paragraph.¹² There is no clear definition of the type of circumstances that will amount to a ‘miscarriage of justice’, and in particular, whether the expression would encompass every case in which a final judgment of conviction is reversed upon revision.¹³

III. Paragraph 3

- 6 Unlike the first two paragraphs of this article, paragraph 3 confers **no right to compensation**, but allows for compensation to be awarded in the Court’s **discretion**. The requirement that the discretion be exercised only in ‘exceptional circumstances’ where there has been a ‘grave and manifest’ miscarriage of justice suggests that ordinarily no compensation will be paid to persons acquitted by the Court (even if only on appeal), or against whom proceedings are terminated before final judgment. Paragraph 3 is a provision without counterpart in the

⁸ See Nowak, *UN Covenant on Civil and Political Rights* (1993), 180–182.

⁹ Cf. the version of this article contained in the 1998 Report of the Preparatory Committee which referred to arrest or detention ‘in violation of the Statute, [the Rules] or internationally recognised human rights law’: Preparatory Committee (Consolidated) Draft, p. 155. See also mn 3.

¹⁰ See further mn 8.

¹¹ See Nowak, see note 8, 269–271.

¹² See Joseph et al., *The International Covenant on Civil and Political Rights* (2000) 336–337 para. 14.120 (referring to *WJH v. Netherlands* (408/90) (UN Human Rights Committee)). However, article 85 para. 3 might apply in this situation.

¹³ See Joseph et al., see note 12, 335 para. 14.118 (noting that ‘[i]t is uncertain whether a ‘miscarriage of justice’ can occur in the absence of some form of State malfeasance, such as police or prosecutorial misbehaviour during relevant investigations or proceedings’).

ICCPR or other major international human rights instruments, but provisions for the compensation of an accused in such circumstances exist in some national systems.¹⁴ In proposing the inclusion of such a provision in the Statutes of ICTY and ICTR, the Presidents of those Tribunals stated that a discretion to award compensation in this situation would be in the interest of the Tribunal and the United Nations in general because of the circumstances in which the Tribunals operate, including the fact that the accused are in pre-trial detention for long periods.¹⁵ More recently, a Trial Chamber of the ICTR found that paragraph 3 ‘reflects the current state of customary law with respect to compensation for acquitted person’.¹⁶

There is no definition of what would constitute a ‘grave and manifest miscarriage of justice’ for the purposes of this paragraph, but the words ‘grave and manifest’ suggest that this expression is narrower in scope than the expression ‘miscarriage of justice’ in paragraph 2.¹⁷ The above-mentioned decision of the ICTR Trial Chamber suggests that the threshold for compensation is indeed a high one.¹⁸

C. Special remarks

The curious feature of this article is its lack of detail. The provisions of the ICCPR to which the first two paragraphs give effect are statements of general principle, which require concrete procedures for their practical implementation in a given legal system. These two paragraphs in particular do not specify how claims for such compensation are to be made, by whom the claims are to be decided, by what criteria the quantum of compensation is to be determined, or by whom the compensation is to be paid.¹⁹ Nor do they even specify how or by whom the machinery for dealing with claims for compensation are to be established. Paragraph 3 is a little more specific, indicating that compensation is to be awarded by ‘the Court’, in accordance with the Rules.

Certain further details are now provided by the Rules of Procedure and Evidence. Rules 173–175 provide for a single mechanism for claiming compensation on *any* of the grounds indicated in article 85, under which claims are decided by a Chamber composed of three judges, who must not have participated in any earlier judgment of the Court regarding the person making the request. The Prosecutor has a right under rule 174 to make observations on requests for compensation. No provision is made for any appeal against such a decision.

The source of the funds from which the compensation is to be paid is not stated – presumably any compensation awarded under this article would form part of the ‘expenses of the Court’ payable from the funds of the Court pursuant to article 114.

As noted above,²⁰ the first paragraph of this article is ambiguous, in that it does not specify whether it is limited to unlawful conduct by Court officials, or whether it also extends to unlawful arrests and detentions by State authorities and other persons in connection with

¹⁴ E.g., Norway: Code of Criminal Procedure (Straffeprosessloven, 22 May 1981, No. 25), articles 444–451; Austria: Strafrechtliches Entschädigungsgesetz, § 2; see also Instituto Iberoamericano de Derecho Procesal, *Código Procesal Penal modelo para Iberoamérica* (Model Code of Criminal Procedure for Latin America) (1989), article 422.

¹⁵ See mn 2 above.

¹⁶ *Protais Zigiranyirazo v. Prosecutor*, ICTR-2001-01-073, Decision on Protais Zigiranyirazo’s Motion for Damages, Trial Chamber III, 18 June 2012, (*‘Zigiranyirazo Damages Decision’*), para. 19 (available at: <http://www.ictr.org/Portals/0/Case%5CEnglish%5CZigiranyirazo%5Cdecisions%5C120618.pdf>). But see Tochilovsky, *Jurisprudence of the International Criminal Courts and the European Court of Human Rights* (2014), 1332–1334.

¹⁷ See see note 13 above and accompanying text.

¹⁸ See *Zigiranyirazo Damages Decision*, see note 16, paras. 20–21.

¹⁹ The version of this article contained in the 1998 Report of the Preparatory Committee specified that compensation under paragraph 1 would be ‘from the Court, in accordance with the Rules’, and that compensation under paragraph 2 would be ‘in accordance with the Rules’: Preparatory Committee (Consolidated) Draft, see note 9.

²⁰ Mn 4.

proceedings before the Court. In the event that it extends to the latter, a further issue is whether the lawfulness of an arrest or detention by State authorities is a matter that can be determined by the Court, or whether paragraph 1 merely imposes an obligation on States Parties to establish their own machinery for compensating victims of unlawful arrests and detentions by their authorities in connection with ICC proceedings. If the former is the correct interpretation, presumably any compensation awarded by the Court in respect of unlawful conduct of State officials would be paid by the State concerned, rather than by the Court. Rules 173–175 shed no further light on these questions.

The second and third paragraphs of this article similarly do not address the situation where the miscarriage of justice is attributable to the conduct of a State and cannot be attributed to anything done by the Court. It may be an open question whether the Rules could provide for such compensation to be paid in whole or in part by the State concerned in such circumstances.²¹ No such provision is presently contained in the Rules.

²¹ Cf. the version of this article contained in the 1996 Preparatory Committee Report, which provided that 'Procedures and criteria for compensation shall be provided in the rules including the expenses to be borne by a complainant State if that State lodged a complaint without sufficient reason': Preparatory Committee Report II 1996, see note 1, p. 206.

PART 9

INTERNATIONAL COOPERATION AND JUDICIAL ASSISTANCE

Preliminary Remarks

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I. The importance of state cooperation

- 1 The first President of the ICTY made the following statement: '[...][T]he ICTY remains very much like a giant without arms and legs – it needs artificial limbs to walk and work. And these artificial limbs are State authorities'¹. This holds true for the ICC as well. Neither does the Statute explicitly endow the Court with enforcement powers nor can such a power be regarded as inherent in the Court's functions². At the same time, both suspected persons and indispensable evidence are usually located in territories under sovereign authority of States. This means, that if these States refuse to cooperate, the Court must – to borrow once more the words used by *Antonio Cassese* – turn out to be utterly impotent³. For this simple reason, the issue of cooperation goes to the heart of fair and expedient proceedings before the Court⁴. At the same time, the law on co-operation raises sensitive issues of State sovereignty and individual rights. Against this background it is readily explicable why Part 9 was amongst the Parts of the Statute where consensus was most difficult to achieve and why the finalization of an unbracketed text was only achieved just before the conference came to a close⁵. The first years of practice under the Rome Statute have demonstrated the accuracy of this assessment and unfortunately the frailties of a system dependent on States and external bodies for execution and enforcement. While there has been extensive use of Part 9 by Chambers, the Prosecution and the Defence, with success, there remain glaring cases of non-cooperation particularly with the arrest and surrender of persons sought by the Court. Even more disappointingly, the Assembly of States Parties and the Security Council have failed to undertake any action in response to the situations of non-cooperation despite their clear responsibilities under the Rome Statute and the Charter respectively. The evolution of the ICC in terms of its effectiveness and credibility is dependent in no small measure on enhanced State cooperation and action on the part of the Assembly of States Parties and the Security Council.

¹ Cassese (1998) 9 *EJIL* 13.

² The negative answer of the Appeals Chamber of the ICTY *Prosecutor v. Blaskić*, IT-95-14- AR108bis, Judgment on the Request of the Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, 29 Oct. 1997, para. 25, to the question whether an enforcement power can be seen as inherent function is rightly related to any *international judicial body*.

³ Cassese (1998) 61 *MLRev* 1.

⁴ Maogoto (5 May 2006) *Bepress Legal Series* 5, Paper 1350; Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2002) 6; Swart, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1589.

⁵ Mochochoko, in: R.S. Lee (ed.), *The International Criminal Court. The Making of the Rome Statute* (1999) 317.

II. Concept and forms of international cooperation and judicial assistance

In the inter-State context the term ‘international cooperation in criminal matters’ denotes the deliberate provision of support for criminal proceedings in a different *forum*. Such support may take different forms. Originally a threefold distinction was made between the *extradition* of a person for the purpose of prosecution or enforcement of a sentence of imprisonment, the *transit* of a person from the extraditing State to the State seeking extradition through a third State, and mutual assistance comprising other forms of support including, most importantly, the gathering of evidence. In the course of the development, the *transfer of the enforcement of sentences* evolved into a separate fourth category of assistance. More recent additions to the spectrum of cooperation measures are the *transfer of criminal proceedings* and the authorization of the execution of procedural acts by the requesting State in the requested State, the so called *passive cooperation*. There has been a lot of debate about the nature of the proceedings conducted by the requested State in order to comply with the request. It has traditionally been a matter of controversy, in particular, whether those proceedings form part of the law of criminal procedure. The prevailing contemporary view would appear to be that the proceedings in question are not formally part of the criminal proceedings in the requesting State and that extradition proceedings are rather administrative than criminal in nature⁶. The better view, though, is to avoid generalizations and to recognize the complex nature of the proceedings in question. This allows for the appropriate differentiated and tailor-made decisions as regards the body of law applicable to the legal issue at stake⁷. At the same time, a more differentiated approach makes it possible to view the proceedings conducted by the requested State also as part of one set of criminal proceedings that are being conducted in the form of an international division of labour.

As in the inter-State context, the international cooperation and assistance under Part 9 constitutes the deliberate provision of support by an international legal person (for most practical purposes: a requested State) for criminal proceedings in a different forum (for most practical purposes: the *forum* of the distinct international legal person ‘ICC’). It follows that the above mentioned questions of categorization arise *mutatis mutandis* and that they should, as a rule, receive a similarly differentiated treatment.

Part 9 deals with most of those forms known from the context of inter-State cooperation in criminal matters, but, in doing so, Part 9 in some respects uses different terminology: Most importantly, the term ‘surrender’ is used instead of that of ‘extradition’ (see, e.g., articles 89 para. 1 and 102) and ‘other forms of cooperation’ replace the term ‘mutual assistance’ (see, e.g., article 93 para. 1). Conversely, the traditional term ‘transit’ is kept in article 89 para. 3. Article 99 para. 4, which is widely referred to as the provision dealing with on-site investigations by organs of the Court, constitutes the corollary of ‘passive cooperation’ in the inter-State context.

Part 9 does not contain an equivalent to the inter-State concept of transfer of enforcement. Instead, the issue of enforcement of ICC sentences is dealt with in Part 10 ‘Enforcement’. In the course of the negotiations, the provisions that eventually became Parts 9 and 10 were for a long time discussed together under the general heading ‘international cooperation and judicial assistance’. Towards the end of the debate, however, the discussions on ‘international cooperation and judicial assistance’ developed separately and, partly, on the basis of a different approach regarding the obligatory nature of the type of interaction concerned. In line with the decision of the drafters to devote a separate Part to the enforcement of the sentences imposed by the Court, the Statute uses the term ‘enforcement’ as a distinct concept instead of classifying it as a sub-category of the term ‘international cooperation and judicial

⁶ Knoop, *Surrendering to International Criminal Courts: Contemporary Practice and Procedures* (2002) 111.

⁷ Vogel, in: Grützner et al. (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 et seq.) vor § 1, mn 4 et seq.

assistance'. The divorce between Part 9 and 10 is not fortunate in all respects and should not be construed so as to exclude the possibility of drawing analogies between the two areas altogether. This is particularly true with respect to the enforcement of fines and forfeitures: It is reasonable to interpret the regime which has been included in Part 10 (article 109) in light of a number of provisions of Part 9⁸. Therefore, Parts 9 and 10, on a higher level of abstraction, may well be seen as the two branches of legal cooperation between States and the ICC. In light of that fact, it is to be welcomed that the words 'in accordance of the provisions of the Statute' in article 86 include provisions in Part 10.

Neither Part 9 nor any other Part of the Statute touch upon the concept of transfer of proceedings. Other than article 9 para. 2 of the ICTY Statute and article 8 para. 2 of the ICTR Statute, the complementarity regime under the Statute precludes the Court from requesting a State to defer ongoing criminal proceedings to the international level because the conduct of international proceedings is deemed to be the preferable option. Interestingly, though, some States have included provisions on the transfer of proceedings to the Court in cases where it is decided not to challenge the admissibility of the international proceedings or where the Court has determined the international proceedings admissible⁹. Again due to the difference between a system based on the primacy of the international criminal court and a system with a complementary international criminal jurisdiction, neither the Statute nor the Rules include a referral power comparable to Rule 11*bis* of the Rules of Procedure and Evidence of both the ICTY and ICTR. Rule 185 para. 2, however, provides for the transfer of a surrendered person to a State whose investigation or prosecution has formed the basis of a successful admissibility challenge under article 17 para. 1 (a).

New forms of cooperation may be required in the context of the operation of the Statute's complementarity regime. In order to determine the unwillingness or the inability of a State to genuinely carry out an investigation or prosecution within the meaning of article 17, the Court may wish to request information about the conduct of national proceedings. Neither the Statute nor the Rules provide for details in this respect (but see articles 18 para. 5 and 19 para. 11; see also article 86, mn 13).

III. Part 9 within the overall framework of the Statute

- 3 Part 9 is intimately related to other Parts of the Statute. First of all, and seen from the perspective of the Court, Part 9 constitutes the external part of the Court's procedural law and complements the internal part which is largely contained in Parts 4, to 6 and 8¹⁰. The interplay between the internal and the external procedural law is particularly clear with respect to Part 5¹¹. Under the latter Part, the Court decides on the investigative measures to be taken and on the arrest of the suspect. These measures will, as a rule, have to be carried out in accordance with Part 9. To take the example of the arrest of a suspect: The issuance of an arrest warrant is governed by article 58 which is part of Part 5, whereas the provisions concerning the cooperation of the territorial State in the actual arrest of the person concerned and in the latter's surrender are located in Part 9 (see, in particular, article 89). Multiple decisions to date from various Chambers have dealt with the interrelationship of Part 9 and other parts of the Rome Statute most notably Part V as forecasted.¹²

⁸ For a detailed analysis, see Krefß and Sluiter, in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1751, 1831.

⁹ See, e.g., Lindemann and Thormann, in: C. Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders* (2005) 432 *et seq.*

¹⁰ Krefß (2003) 1 *JICJ* 603, 614.

¹¹ A direct link to Part 6 is established in article 93 para. 4 which must be read in conjunction with article 72 (for a detailed analysis *cf.* the commentaries on the respective provisions).

¹² See for example *Prosecutor v. Mathieu Ngudjolo Chui*, ICC-01/04-02/12-158, Order on the implementation of the cooperation agreement between the Court and the DRC concluded pursuant article 93 (7) of the Statute, Appeals Chamber, 20 January 2014, para. 23 (Article 97(b) and Article 21(3)) <<https://www.legal-tools.org/doc/>

The links between the cooperation regime and Part 2 are equally close. The need to create a set of rules on cooperation under Part 9 which is coherent with the jurisdiction and complementarity regime under Part 2 remained unquestioned throughout the negotiations. Correspondingly, a number of decisions to be taken in Part 9 had been suspended until the final outcome of the relevant negotiations on Part 2 became apparent. Again by way of example, there was a general understanding that it would be pointless to state in Part 2 that it is up to the Court and not to a State Party concerned to authoritatively determine the admissibility of a given case, and, at the same time, to concede to this very State Party a ground to refuse to cooperate with the Court on the basis that this State unilaterally judges the case inadmissible. Consequently, articles 89 para. 2 and 95 reflect the scheme of articles 17 *et seq.* and the same kind of interplay between provisions of Part 9 with such of Part 2 can be found elsewhere. Support for this interpretation is found in the Court's examination of the interplay between articles 19 and 95.¹³

As a matter of treaty interpretation, the following conclusion can be drawn: In so far as a legal problem of cooperation arises that is directly interrelated with issues covered in Parts 2 and 5 and that is not specifically dealt with in Part 9, it appears advisable to resort to a *systematical interpretation* that guarantees the coherency between the solution found in Part 9 and the relevant rule(s) in Parts 2 and/or 5.

IV. Structure of Part 9 and other legal sources on cooperation

Part 9 contains provisions of general scope, provisions relating to the surrender of persons, including one provision on transit, and provisions relating to other forms of cooperation. Unfortunately, there was not enough time at the end of the negotiations to bring the articles in an altogether logical order. Rules of general application can be found not only at the very beginning of Part 9 in articles 86, 87 and 88, but also in articles 95, 97, 98 para. 1, and article 100. The rules dealing exclusively with surrender, again are somewhat spread throughout Part 9. One finds them not only in articles 89 to 92, but also in articles 98 para. 2, 101 and 102. The remainder of Part 9, *i. e.* articles 93, 94, 96 and 99, relate exclusively to other forms of cooperation with the provision on on-site investigations in article 99 para. 4 having the specific nature of passive cooperation. The somewhat scattered organization of Part 9 became relevant in a case which looked at the proper interpretation of article 95¹⁴ and in particular whether its scope of application extended to requests for arrest and surrender as well as other forms of cooperation. While in the end the Court chose not to place any weight on its placement, the case illustrated that Part 9 could benefit from a reorganization which clearly delineates between specialized and general provisions for the two major types of cooperation addressed.

d554f7/;>; *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-169, Decision on 'Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan', Trial Chamber IV, 1 July 2011, paras.12–33 (Part 5 and Part 9) <<https://www.legal-tools.org/doc/891c96/>>; *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, Judgment on the appeals of William Samoei Ruto and Mr Joshua Arap Sang against the decision of Trial Chamber V (A) of 17 April 2014 entitled 'Decision on Prosecutor's Application for Witness Summonses and resulting Request for State Party Cooperation', 01/09-01/11-1598, Appeals Chamber, 9 October 2014, paras 106 -113 (Part 5 and Part 9).

¹³ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, ICC-01/11-01/11-163, Pre-Trial Chamber I, 1 June 2012, paras 27 to 30 <<https://www.legal-tools.org/doc/ae7c48/>>; *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No.: ICC-01/11-01/11-354, Decision on Libya's postponement of the execution of the request for arrest and surrender of Abdullah Al-Senussi pursuant to article 95 of the Rome Statute and related Defence request to refer Libya to the UN Security Council, Pre-Trial Chamber I, 14 June 2013, paras 23–26 <<https://www.legal-tools.org/doc/a400f4/>>.

¹⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, ICC-01/11-01/11-163, Pre-Trial Chamber I, 1 June 2012, paras 27 to 30 <<https://www.legal-tools.org/doc/ae7c48/>>.

Part 9 is complemented by Chapter 11 of the Rules of Procedure and Evidence (Rules 176 to 197) and by Regulations 107 to 112 of the Regulations of the Court. Furthermore, Regulations 76 to 78 of the Regulations of the Registry touch upon cooperation issues. Eventually, a number of bilateral agreements establish cooperation relationships between the Court and International Organizations. Reference can be made, for example, to articles 15 to 20 of the Negotiated Relationship Agreement between the International Criminal Court and the United Nations¹⁵ and the agreement between the Court and the European Union on Cooperation and Assistance¹⁶.

V. Part 9 as a (weak) vertical cooperation regime

- 5 In its landmark judgment of 29 October 1997 in *Prosecutor v. T. Blaskić*, the Appeals Chamber of the ICTY described the cooperation regime under its Statute as vertical in nature and contrasted this form of cooperation with the horizontal cooperation between States¹⁷. In the meantime, considerable scholarly thought has gone into the definition of vertical and horizontal cooperation and, as a result hereof, the obligations to cooperate, the degree of reciprocity and the dispute settlement mechanism have been identified as the three decisive factors to locate the place of a given cooperation regime on a sliding scale from horizontalism to verticalism in their purest forms¹⁸.

Throughout the negotiations there was a basic opposition between the adherents of a (more) horizontal and the proponents of a (more) vertical approach. The first group of delegations emphasized State sovereignty, *i.e.* to attribute decisive weight to State interests that may run counter a strict duty to cooperate with the Court and often referred to the *UN Model Treaties* on extradition and mutual assistance in criminal matters¹⁹. The opposed camp started from the assumption that only a cooperation regime that is essentially distinct from traditional inter-State concepts in that it attaches greater weight to the community interest in an international criminal prosecution, fully corresponded to the specific relationship between States Parties and the Court. This basic controversy is clearly reflected in the different terminological and substantive options in the Draft Statute's version of Part 9²⁰: As a matter of terminology the options 'extradition'/'surrender'/'transfer' run throughout the text. And with respect to the crucial question of the degree of rigidity of the obligations to cooperate a list of grounds for refusal sharply contrasts with the option to exclude any such ground. The final outcome of the negotiations on Part 9 must be seen in the light of the said controversy.

Taken as a whole the cooperation regime in Part 9, on the one hand, presents a considerable number of vertical elements that make it appear clearly different from a traditional horizontal

¹⁵ The Agreement entered into force on 4 Dec. 2004; ICC/ASP/3/Res.1, 300. Article 18 of the Agreement provides that more specific arrangements and agreements may be entered into. For the first example, see the Memorandum of Understanding between the United Nations and the International Criminal Court concerning Cooperation between the United Nations Organization Mission in the Democratic Republic of Congo (Monuc) and the International Criminal Court.

¹⁶ ICC-PRES/01-01-06; the Agreement entered into force on 1 May 2006; on the cooperation between the Court and the UN Mission in the Democratic Republic of the Congo (MONUC) on the basis of the Memorandum of Understanding between the ICC and the UN on cooperation from MONUC, see Rastan (2008) 21 *LeidenJIL* 431, 445 *et seq.*; for the complete list of cooperation agreements, see <http://www.icc-cpi.int/en_menus/icc/legal%20texts%20and%20tools/official%20journal/Pages/index.aspx> accessed 11 December 2014.

¹⁷ *Blaskić* (Judgment), see note 2, paras. 47 and 54.

¹⁸ For a particularly important contribution, see Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002) 82 *et seq.*; see also Krefß, in: H. Grützner *et al.* (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 *et seq.*) mn 205 *et seq.*

¹⁹ UN Doc. A/CONF.144/28/Rev.1, p. 64 *et seq.*, and p. 75 *et seq.* For a pure horizontal approach even in the context of the Statute of the ICTY *cf.* the *amicus curiae* brief of the Government of the People's Republic of China of 15 Sep. 1997 submitted in the *Blaskić* case.

²⁰ UN Doc. A/CONF.183/2/Add.1 (1998), p. 156 *et seq.*

regime as represented in the UN model treaties²¹. On the other hand, Part 9 does certainly not depart completely from traditional concepts and instruments of inter-State extradition and mutual legal assistance in criminal matters. In fact, quite a number of important concessions to the horizontal school had to be made to achieve consensus. On balance, article 91 para. 2 (c) is correct in underlining the ‘distinct nature of the Court’ and this statement of the drafters should be duly reflected in any teleological interpretation of provisions contained in Part 9. At the same time it remains true that the vertical cooperation regime in Part 9 is relatively weak.

The most clear cut vertical elements of Part 9 are the absence of strict reciprocity and the power of the Court to authoritatively settle any dispute with a State Party about cooperation. The absence of strict reciprocity results from the fact that Part 9, by and large, deals with the cooperation duties of States only. The only exception is article 93 para. 10 which is couched in discretionary terms. The power of the Court to authoritatively settle any dispute about cooperation is enshrined in article 87 para. 7 and in article 119 para. 1 of the Statute²². As regards the extent of obligations, the vertical starting point must be stressed that the cooperation regime under Part 9 is an essentially obligatory one which is underlined in article 86. Accordingly, Part 9 does neither leave room for a refusal to cooperate based on political discretion²³ nor does it retain traditional grounds to refuse cooperation such as, in particular, the double criminality requirement, a lack of reciprocity and the political nature of the offense. Moreover, grounds for refusal *stricto sensu* are virtually absent in Part 9²⁴. The Court’s interpretation of Part 9, has, in general, highlighted its vertical strength with decisions that have emphasized the sole responsibility of the Court to decide on issues related to article 98 relying on article 119(1) in support and in emphasizing a State’s obligation to either execute a request or consult with the Court in accordance with article 97.²⁵

At the same time, however, Part 9 reflects horizontal solutions in many respects. This is true, first of all, for the channels of communication because article 87 para. 1 leaves States Parties the option to have requests transmitted through the diplomatic channel. It is true, second, in terms of procedures. Both, article 89 para. 1 and article 93 para. 1 refer to the procedures of the law of the requested State and article 99 para. 1 only contains a half-hearted allusion to the modern principle of *forum regit actum*. As far as the extent of the obligations is concerned, Part 9, on a closer look, does not categorically reject all grounds for refusal of cooperation that one may find in a horizontal setting. Still, Part 9 generally replaces the rather categorical instrument of grounds for refusals *stricto sensu* by more flexible and refined solutions, such as consultation and postponement clauses as can be found, e.g., in

²¹ UN Doc. A/CONF.144/28/Rev.1, p. 64 *et seq.*, and p. 75 *et seq.* For a pure horizontal approach even in the context of the Statute of the ICTY *cf.* the *amicus curiae* brief of the Government of the People’s Republic of China of 15 Sep. 1997 submitted in the *Blaskić* case.

²² Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002) 86 *et seq.*; see also Krefß, in: H. Grützner *et al.* (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 *et seq.*) mn 220 *et seq.*; Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2002) 20 *et seq.*

²³ In that respect, the Australian implementing legislation is highly problematic; see Brady, in: Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 13, 14.

²⁴ For a more detailed account see Krefß/Prost, article 89 para. 1 and Krefß/Prost, article 93 para. 1.

²⁵ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-195, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, paras 15, 16, 21 and 22 <<https://www.legal-tools.org/doc/89d30d/>>; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-140, Décision rendue en application de l’article 87-7 du Statut de Rome concernant l’refus de la République du Tchad d’accéder aux demandes de coopération délivrées par la Cour concernant l’arrestation et la remise d’Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 13 December 2011, paras 10,11 <<https://www.legal-tools.org/doc/c33d51/>>; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-139, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 12 December 2011, paras 11,12 <<https://www.legal-tools.org/doc/476812/>>.

articles 89 paras. 2 and 4, 90, 91 para. 2 (c) in conjunction with paragraph 4, articles 93 paras. 3, 4, 5 and 9, 94, 95, 96 para. 2 (e) in conjunction with paragraph 3, articles 97 and 98²⁶. Most of these provisions contain elements of a carefully balanced compromise which should be reflected in any *genetical interpretation* of provisions in Part 9. On balance, the provisions regarding the other forms of cooperation are less vertical than those concerning the surrender of persons. In particular, the absence of a power to require State cooperation in compelling a witness to cross borders in order to appear before the Court and the restrictions on the Court powers to conduct on site investigations (article 99 para. 4), have been highlighted as the two most noteworthy shortcomings of Part 9 if judged from the ideal of effective cooperation²⁷.

VI. No need to attribute a direct effect to Court requests in the legal order of the requested State

- 6 The repeated reference to the procedures of the law of the requested State (see articles 88, 89, 93 and 99) means that Part 9 does not call for the attribution of a direct effect of Court requests in the domestic legal order of the requested State²⁸. In that regard, Part 9 does not establish a genuinely supranational cooperation regime. On the other hand, the – albeit limited – powers of the Court under article 99 para. 4 to conduct on site investigations may appear as a supranational element from the perspective of a national constitution²⁹. Furthermore, supranational elements which are situated in the proximity of Part 9 can be found in Parts 5 and 6 of the Statute³⁰; reference is made to the Court's powers to summon the suspect to appear under article 58 para. 7 and to require the attendance of a witness under article 64 para. 6 (b)³¹. Finally, the arrest warrant under article 58 para. 1 may be said to have certain direct legal effects *vis-à-vis* the person sought³² even before the surrender of that person to the Court³³.

VII. Part 9 and different national legal traditions on international cooperation in criminal matters

- 7 In an attempt to clarify fundamental differences of the common law and the civil law approach to extradition and mutual legal assistance Philip B. Heymann has contrasted a *Prosecutorial Model of Cooperation* with an *International Law Model*³⁴. Whereas the former entails as free, full and informal cooperation as possible, the latter consists in a carefully designed structure of rules with national sovereignty lying at its core. While recognizing that no State adheres to either model in its pure form, Heymann holds the view that the common

²⁶ For a more detailed account see the commentaries on the respective provision.

²⁷ Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002) 346 *et seq.*

²⁸ Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002) esp. 79 *et seq.*

²⁹ For France, see Buchet, in: Krefß and Lattanzi (eds.), *The Rome Statute and Domestic Legal Orders. I: General Aspects and Constitutional Issues* (Nomos 2000) 79.

³⁰ For a useful analysis, see Furuya (2000) 2 *NethILRev* 130 *et seq.*

³¹ In both cases, a service upon the person concerned under article 93 para. 1 (b) would be required, though, to make the respective international obligation of the individual effective.

³² This is not to question the right of the State that receives a request for arrest and surrender under article 89 para. 1 to 'transform' the international into a national arrest warrant.

³³ In this context, see rule 117 of the Rules of Procedure and Evidence; for the recognition of certain direct legal effects of the international arrest warrant within the German legal order, see Krefß and Jarasch, in: Krefß and Lattanzi (eds.), *The Rome Statute and Domestic Legal Orders. I: General Aspects and Constitutional Issues* (Nomos 2000) 91, 96 *et seq.*

³⁴ Heymann (1990) 31 *HarvILJ* 99, 102 *et seq.*; cf. also Markees in: Bassiouni and Nanda (eds.), *A Treatise on International Criminal Law, Vol. II: Jurisdiction and Cooperation* (1973) 171 *et seq.*

law world generally leans toward the Prosecutorial Model and the civil law systems tend to the International Law Model. While this basic difference may have made it easier for common law countries to swallow the (limited) powers of the Court to conduct on site investigations pursuant to article 99 para. 4, it is far more interesting to note that the main controversies on the Statute's cooperation regime cannot be equated with a conflict between different legal traditions because both, a more stringent and a more lenient approach to the formulation of state duties to cooperate attracted support from different national legal traditions.

Qualifying differences in national legal traditions as of secondary importance for the final outcome of the negotiations on Part 9 does not mean to deny their relevance completely. At least two important points can be identified where such differences played a more prominent role: Whereas many civil law countries faced constitutional legal problems with an obligation to surrender nationals to the Court, a number of States from the common law family did not find it easy to waive their national evidentiary requirements qualified for the purpose of the most effective cooperation with the Court. While the civil law countries eventually recognized that to insist on a ground for refusal based on the nationality of the person sought would be incompatible with the very purpose of the Statute, common law States such as Canada and the USA held firm to their national evidentiary requirements and conceded only not to formulate the references to those requirements (see article 91 para. 2 (c) in conjunction with paragraph 4, and article 96 para. 2 (e) in conjunction with paragraph 3) in the form of grounds for refusal *stricto sensu*.

VIII. Cooperation under Part 9 and human rights

Traditionally, inter-State cooperation in criminal matters was seen as an essentially 8 bilateral legal relationship between the two States concerned. More recently, however, the acceptance has grown that the relationship is a triangular one which includes the individual or individuals concerned with their individual and, most importantly, their human rights³⁵. Vertical cooperation under Part 9 must also be seen as a triangular legal relationship between the requesting Court, the requested State and the individual or individuals concerned. As part of that triangular relationship the ICC and the requested State have a joint responsibility for the rights of the individual or individuals concerned. While this joint responsibility does not entail an obligation to afford the most favorable treatment to the person or persons concerned, it implies the need to avoid loopholes in the protection of individual rights as a result of the international division of labor in the conduct of the criminal proceedings³⁶. Beyond that statement of principle, the difficulty remains to define the rights that the individual or individual hold at the different stages of the proceedings. In that respect, a difference must be made between the obligations of the Court, on the one hand, and those of the requested State, on the other hand.

In requesting cooperation, the Court is bound by those guarantees of individual rights that are contained in its own legal order, *i.e.*, most importantly, articles 55 and 67. In addition, under article 21 para. 3 the internationally recognized human rights possess the highest place of all applicable legal sources. These human rights obligations prevent the Court from requesting cooperation measures that would infringe upon internationally recognized human

³⁵ For the landmark case in the international human rights law, see ECtHR, *Soering v. UK*, Judgment of 7.7.1989, Series A, No. 161 (on that judgment, see Dugard and van den Wyngaert (1998) 92 *AJIL*. 187; the *Soering* judgment has later been endorsed by the UN Human Rights Committee; for detailed analyses, see Schrotz, *Individualrechtsverletzungen bei der Überstellung an die internationale Strafgerichtsbarkeit. Zu den Rechtsfolgen individualrechtswidrigen Vorgehaltens im internationalen Strafverfahren* (2006) 88 *et seq.*; Ziegenhahn, *Der Schutz der Menschenrechte bei der grenzüberschreitenden Zusammenarbeit in Strafsachen* (2002) 272 *et seq.*

³⁶ Vogel, in: Grützner et al. (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 *et seq.*) I 2, Vor § 1, mn 29 *et seq.*

rights of the person or persons concerned. The Court has faced challenges arising from the interplay between the obligations under article 21(3) and the obligations under 93(7) to return custodial witnesses who have been transferred to The Hague to testify to the Requested State in circumstances where claims for asylum were filed. As discussed in detail under article 93 the Appeals Chamber has clarified that the responsibility to fulfil the international human rights obligation to effective remedy in those circumstances rested with the Netherlands. Thus the Court's obligation under the Statute to return the witnesses to the requested State could be met without an infringement of human rights obligations.³⁷

These human rights obligations will also guide the Court in developing substantive criteria and procedural safeguards governing requests for investigative measures, in particular, where such measures are intrusive in nature. Such criteria, it must be acknowledged, are lacking in the Statute and Rules of Procedure and Evidence to a significant extent³⁸. Finally, the Court will be prevented to request for cooperation where it is clearly foreseeable that the requested State would commit gross violations of fundamental human rights in the execution of the request³⁹. If such violations occur unexpectedly and "are such as to make it impossible for him/her [the accused] to make his/her defence within the framework of its rights, no fair trial can take place and the proceedings can be stayed" again pursuant to article 21 para. 3: 'In those circumstances, the interest of the world community to put persons accused of the most heinous crimes against humanity on trial, great as it is, is outweighed by the need to sustain the efficacy of the judicial process as the potent agent of justice'⁴⁰. The Appeals Chamber, correctly, indicated that a stay of proceedings based on a human rights violation will not be decided upon lightly and that, in particular, not any kind of ill-treatment in the process of the arrest and conveyance of the accused before the Court will suffice⁴¹. This holding will also be relevant for cases of 'illegal alternatives to surrender' which amount to arbitrary arrest and detention⁴².

The requested State is, in the first place, to respect the human rights of the person or persons concerned in the course of the execution of the request. In the case of a request for a form of cooperation other than arrest and surrender, articles 93 para. 3 and 99 para. 1 allow the requested State to rely to that effect on human rights standards that form part of its own legal order. If taken together with the above mentioned duty of the Court to respect the human rights standards that form part of the international criminal procedure, the end result comes close to a standard of most favorable treatment.

Finally, it follows from the international human rights case law originating with the ECHR judgment in *Soering*⁴³ that, in the inter-State context, a requested State is bound to refuse cooperation where it has substantial grounds to believe that grave human rights violations (such as torture or a flagrant denial of a fair trial) will occur in the course of the criminal proceedings in the requesting State⁴⁴. In light of articles 55 and 67 as well as article 21 para. 3

³⁷ Cassese (1998) 9 *EJIL* 13 paras 29, 30.

³⁸ Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002) 109 *et seq.*

³⁹ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2002) 36 *et seq.*

⁴⁰ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-772, Appeals Chamber, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to Article 19 (2) (a) of the Statute of 3 October 2006, 14 Dec. 2006, para. 39 <<https://www.legal-tools.org/doc/1505f7/>>.

⁴¹ *Ibid.*, para. 40.

⁴² On such cases, see Sluiter (2003) 25 *LoyLAe&CompLRev* 605, 648 *et seq.* For a useful judicial analysis of the matter by the ICTY Appeals Chamber, see *Prosecutor v. Nikolić*, IT-94-2-AR73, Decision on Interlocutory Appeal concerning Legality of Arrest, 5 May 2003, in which the Chamber correctly distinguishes with the State sovereignty and the human rights aspects of an illegal arrest and also recognizes the collusion of organs of the requesting international criminal jurisdiction as a relevant factor in the latter respect; *ibid.*, paras. 20 *et seq.*, 28 *et seq.*

⁴³ Heymann (1990) 31 *HarvILJ* 99, 102 *et seq.*; cf. also Markees, in: Bassiouni and Nanda (eds.), *A Treatise on International Criminal Law, Vol. II: Jurisdiction and Cooperation* (1973) 171 *et seq.*

⁴⁴ For a recent restatement see ECtHR, *Al Moayad v. Germany*, Application no. 35865/03, Decision of 20 Feb. 2007, para. 58 *et seq.*

of the Statute, one would assume that a similar scenario, in which the international human rights obligations of the requested State and the latter's cooperation duties under the ICC Statute would clash, will not present itself in the cooperation practice between States and the Court⁴⁵.

IX. Enhanced cooperation

In many respects, Part 9 reflects the lowest common denominator. In the course of the negotiations, many States were prepared to go beyond the duties contained in Part 9 and they may well continue to be willing to do so. In fact, in a few cases, the implementing legislation already offers such voluntary cooperation in one or the other respect⁴⁶. It is thus worthwhile to underline, that Part 9, as a rule, does not preclude the capacity of States Parties to provide such voluntary cooperation. States Parties may be prepared to voluntarily grant enhanced cooperation for one or more categories of investigative measures, be it for the purpose of a concrete investigation or generally. For example, a State may be willing to allow the Prosecutor the autonomous taking of voluntary witness testimony without the restrictions contained in article 99 para. 4.

Enhanced cooperation may also be imposed upon States Parties (as well as States not party to the Statute) by way of a Security Council resolution adopted under Chapter VII of the UN Charter. Such action is open to the Council, in particular, in a referral under article 13 para. b. In the two instances of such a referral – resolution 1593 (2005) (Darfur, Sudan) and resolution 1970 (2011) (Libya), the Security Council has specifically imposed such an obligation on Sudan and Libya respectively. However, regrettably the Council has restricted the extension of the obligations in those instances to the two States subject to the referral and has not chosen to place a similar obligation on other non-State parties to cooperate with the Court. This has created significant gaps in the Court's ability to compel evidence and obtain the arrest of suspects despite the fact that the investigations in these cases should properly have the weight of a Security Council Chapter VII decision behind them.

⁴⁵ For a similar view, see Sluiter Sluiter (2003) 25 *LoyLA&CompLRev* 605, 647 *et seq.* who, however, adds the caveat 'that it would go too far [...] to categorically exclude the possibility of the *Soering* ground for refusal to international criminal proceedings'. In *Naletilic v. Croatia*, Application no. 51891/99, ECtHR (4 May 2000), a challenge based on the length of the international criminal proceedings, the alleged lack of impartiality and independence of the ICTY as well as the power of the Tribunal to impose a term of life imprisonment was rejected as manifestly unfounded and therefore inadmissible. In that context, the ECtHR stated that '[i]nvolved here is the surrender to an international court which, in view of the content of its Statute and Rules of Procedure, offers all the necessary guarantees including those of independence and impartiality'.

⁴⁶ For an overview, see Broomhall and Krefß, in: C. Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders, Vol. II: Constitutional Issues, Cooperation and Enforcement* (2005) 515, 540 *et seq.*

Article 86

General obligation to cooperate

States Parties shall, in accordance with the provisions of this Statute, cooperate fully with the Court in the investigation and prosecution of crimes within the jurisdiction of the Court.

Literature: Bosnjak, M. and Zagorac, D., 'Slovenia', in: C. Kreß et al. (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 320; Condorelli, L., 'Conclusions Générales', in: L. Condorelli (ed.), *Les Nations Unies et le droit international humanitaire* (Pedone 1996) 453; Dörr, O., 'Die Vereinbarungen von Dayton/Ohio. Eine völkerrechtliche Einführung', (1997) 35 AVR 160; Jones, J.R.W.D., 'The Implications of the Peace Agreement for the International Criminal Tribunal for the former Yugoslavia', (1996) 7 *EJIL* 226; Kreß, C. and Broomhall, B., 'Implementing Cooperation Duties Under the Rome Statute', in: C. Kreß et al. (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 515.

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A. Introduction/General remarks

- 1 Article 86 states the general obligation of States Parties to cooperate with the Court. The wording of this provision resembles article 29 of the Statute of the ICTY¹ and article 28 of the Statute of the ICTR². Article 86 can be contrasted with opening formulas widely used in the interstate context which contain qualifiers such as 'widest possible measure of assistance'³. In its article 85 the Draft Statute⁴ already contains a largely unbracketed version of what then became article 86. Only two questions remained to be settled, *i. e.* whether reference should be made to the provisions of 'this Statute' or of 'this Part' and whether the obligation to cooperate should be specified by adding words such as 'without delay'.

B. Analysis and interpretation of elements

I. 'States Parties'

- 2 The general obligation to cooperate in article 86 is confined to *States Parties*. The same is true, in principle, for the specific obligations that follow. This is in line with the basic principle of the law of treaties as embodied in article 35 of the Vienna Convention on the Law of Treaties of 23 May 1969⁵. The consequences are as follows.

¹ UN Doc. S/25704.

² UN Doc. S/RES. 955 (1994).

³ Cf. article 1 of the UN Model Treaty on Mutual Legal Assistance in Criminal Matters, U.N. Doc. A/CONF.144/28/Rev.1, p. 77.

⁴ UN Doc. A/CONF.183/2/Add.1 (1998), p. 156.

⁵ UN Doc. A/CONF.39/11/Add.2. Article 35 reads as follows: 'An obligation arises for a third State from a provision of a treaty if the Parties to the treaty intend the provision to be the means of establishing the obligation and the third State expressly accepts that obligation in writing'.

States that are not Party to the Statute are under no statutory⁶ obligation to cooperate. As 3
 their cooperation may well be of great importance in many instances article 87 para. 5 deals
 with the possibility to establish a special cooperation regime by way of agreement. This
 evident point has been considered and affirmed by the Court in the context of a request for
 cooperation in gathering evidence⁷. The Court further considered the matter in addressing a
 unique argument advanced by Abdullah Al-Senussi in support of a request for a finding of
 non-cooperation against the Islamic Republic of Mauritania for its extradition of Mr. Al-
 Senussi to Libya despite the existence of an ICC arrest warrant⁸. The defence for Al-Senussi
 had argued that Mauritania should be referred to the Security Council for this ‘non-
 cooperation’ on three grounds: breach of cooperation obligations to the Court, violation of
 the travel ban imposed by Security Council resolution 1970 (2011) and a wrongful act
 contrary to article 14 of the ICCPR. The Court restricted its analysis to the first point, noting
 that its jurisdiction was restricted to findings of non-cooperation with reference to obliga-
 tions *vis a vis* the Court. In determining that the obligation under article 86 relates only to
 State Parties the Court relied on the plain wording of Article 86, the contrasting language in
 article 87(5), and article 34 of the Vienna Convention on the Law of Treaties.

In the same two decisions⁹, the Court has recognized, however, the possibility for the
 Security Council to place States which are not Party to the Statute under the obligation
 contained in article 86 (as well as Part 9 in general) through a resolution adopted under
 Chapter VII of UN Charter. In these decisions the Court has interpreted the language of the
 Security Council in the cases of resolutions 1593 (2005) on Darfur (Sudan)¹⁰ and 1370 (2011)
 on Libya¹¹ to impose obligations under Part 9 on these two Non-State Parties. It is also
 relevant that the Court in the Sudan context has found that the resolution did not provide for
 an autonomous legal regime for cooperation, applicable to Sudan, which would replace the
 ICC regime or represent an alternative to it. Rather any application for cooperation would
 need to be made in compliance with Part 9 of the Statute¹².

Intergovernmental organizations, too, are not bound by the Statute as such¹³. Again, their 4
 assistance can prove to be of decisive value. Article 87 para. 6, therefore, specifically deals
 with cooperation between such organizations and the Court.

No statutory duty to cooperate with the Court exists for *entities* other than the ones 5
 mentioned in mn 2 *et seq.*¹⁴ The Statute does not address at all the issue of possible

⁶ For an indication of possible obligations for non-States Parties under customary international law to cooperate with the Court see article 87, mn 20.

⁷ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-169, Decision on ‘Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of Sudan’, Trial Chamber IV, 1 July 2011, para 14 <<https://www.legal-tools.org/doc/891c96/>>.

⁸ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-420, Decision on the request of the Defence of Abdullah Al-Senussi to make a finding of non-cooperation by the Islamic Republic of Mauritania and refer the matter to the Security Council, Trial Chamber I, 28 August 2013 <<https://www.legal-tools.org/doc/7342b3/>>.

⁹ Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus, ICC-02/05-03/09-169, TC IV Decision 1 July 2011; Saif Al-Islam Gaddafi and Abdullah Al-Senussi, ICC-01/11-01/11-420, TC I Decision 28 August 2013.

¹⁰ Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of Sudan, ICC-02/05-03/09-169, paras 14 and 15. <<https://www.legal-tools.org/doc/891c96/>>.

¹¹ Decision on the request made by Abdullah Al-Senussi for a finding of against the Islamic Republic of Mauritania, ICC-01/11-01/11-420, 28 August 2013, paras 13 and 14. <<https://www.legal-tools.org/doc/7342b3/>>.

¹² *Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-169, TC IV Decision 1 July 2011, para 15.

¹³ Again the situation may be different under customary international law, see article 87, mn 28.

¹⁴ Take the ‘*Republika Srpska*’ as a recent example for such an entity. It is interesting to note, however, that the Security Council has asked repeatedly this entity to cooperate with the ICTY. Arguably, this Security Council practice not only reflects the existing contractual cooperation framework (see *infra* note 9) but also expresses the idea of the extension of the relevant customary obligations to cooperate to such entities (see Condorelli, L. Condorelli (ed.), *Les Nations Unies et le droit international humanitaire* (1996) 453 *et seq.*).

cooperation between such entities and the Court. This *lacuna* does not preclude, however, the possibility to work out solutions on an *ad hoc* basis wherever the need arises¹⁵.

- 6 It is the State Party and *not State officials* individually that are under the obligation to cooperate. The *Appeals Chamber* of the ICTY has pointed out in its *Blaskić subpoena* judgment¹⁶ that any deviation from the ordinary rule of customary international law that international obligations are directed to States and not their officials individually had to be expressly stated. The *Appeals Chamber* added that such a deviation can not be deduced from the fact that the jurisdiction of an international criminal tribunal extends to crimes committed by State officials. Neither article 86 nor any of the subsequent provisions of Part 9 provides for a deviation from the said rule so that State officials as individuals cannot be the addressees of Court's requests for cooperation.
- 7 Finally, article 86 does not extend the obligation to cooperate to *individuals acting in their private capacity*. The same is true for the two basic obligations contained in article 89 para. 1 and article 93 para. 1. Consequently, the Court has no power *under Part 9*¹⁷ to directly *compel* individuals to produce documents or to appear before it¹⁸. The respective reasoning of the *Appeals Chamber* of the ICTY in the *Blaskić subpoena* judgment¹⁹ does not apply in the context of Part 9 of the Statute²⁰.

II. Full cooperation in accordance with the Statute

- 8 Unlike article 29 of the Statute of the ICTY and article 28 of the Statute of the ICTR article 86 does not contain a free-standing obligation to cooperate. Rather, the latter provision must be seen in the context of the subsequent rules in Part 9 which, in turn, may be directly intertwined with rules elsewhere in the Statute. Correspondingly, the reference to 'the provisions of this Statute' in article 86 indicates that the specific duties on cooperation are to be found elsewhere. It is not possible to modify these specific obligations to cooperate by reference to the general obligation in article 86.
- 9 One may therefore wonder whether article 86 is only a symbolic or declaratory provision. Certainly, the word '*fully*' explicitly alludes to the well-recognized principle of good faith²¹ which means in this context that States Parties must act promptly and with all due diligence to ensure proper and effective execution of the Court's requests to comply with their obligations under Part 9. It was, therefore, not necessary to spell out *explicitly* – as did the Draft Statute –, that States have to cooperate without delay.
- 10 Article 86, though, goes beyond a mere declaratory statement. According to the general principle of effective interpretation (*principe de l'effet utile*)²² this article cannot be construed as being redundant, but has to be given a normative impact of its own. The negotional

¹⁵ For a contractual cooperation framework of *non-state-entities* with the ICTY see Jones (1996) 7 *EJIL* 226; Dörr (1997) 35 *AVR* 160.

¹⁶ *Prosecutor v. Blaskić*, IT-95-14-AR108bis, Judgment on the Request of the Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, 29 Oct. 1997, paras. 41 *et seq.*

¹⁷ Under article 58 para. 7 of Part 5, though, the Court has the power to issue a summons to appear to a person if there are reasonable grounds to believe that this person has committed a crime within the jurisdiction of the Court. Similarly, the Court may, under article 64 para. 6 (b), require the attendance and testimony of witnesses before the Court.

¹⁸ For a more detailed analysis see the commentaries on article 93 and, above all, on article 99 para. 4.

¹⁹ *Blaskić* (Judgment), see note 10, paras. 46 *et seq.*

²⁰ Cf. UN Doc. S/25704, in particular the differences between article 18 para. 2 of the Statute of the ICTY, and article 99 para. 4 of this Statute.

²¹ In *Blaskić* (Judgment), see note 10, the Appeals Chamber of the ICTY has referred in para. 68 to the following passage of the judgment of the ICJ in the *Nuclear Tests* case (1974) ICJ Rep., para. 46): 'one of the basic principles governing the creation and performance of legal obligations, whatever their source, is the principle of good faith. Trust and confidence are inherent in international cooperation, in particular in an age when this cooperation in many fields is becoming increasingly essential'.

²² Reference has been made to this principle by the Appeals Chamber in *Blaskić* (Judgment), see note 10, para. 54.

history of Part 10 also points in this direction. Here, it was finally decided that a general obligation regarding recognition and enforcement of judgment as suggested in the Draft Statute²³ was no longer necessary because it added nothing substantial to the specific enforcement provisions.

There was no equivalent feeling in the context of cooperation which supports an *argumentum e contrario*. The importance of article 86 results from the fact that Part 9 contains several somewhat indeterminate compromise formulas which need to be solidified in practice. Reference can be made by way of example to article 89 para. 4 and article 94. In the end, such consultation clauses leave unanswered the question who has the last word, the State Party or the Court. With respect to such provisions article 86 is of considerable usefulness. It amounts to an overarching *interpretative guideline* pursuant to which, e.g., an obligation to consult must not be seen only as a formality that finally leaves all liberty to the State Party to refuse compliance, but as a joint responsibility to be shouldered in the spirit of *full cooperation*.

III. ‘investigation and prosecution’

The term ‘investigation’ does not extend to the preliminary examination under both article 15 para. 2 and rule 104 conducted in order to find out whether there exists a reasonable basis to proceed with an investigation²⁴. This rather restrictive interpretation is not entirely beyond question because the term ‘investigations’ in article 15 para. 1 may be read so as to include the preliminary examination under article 15 para. 2. In addition, it may be beneficial for the Prosecutor to be able to rely on the obligatory scheme under Part 9 when applying article 15 para. 2. Article 15 para. 3, however, is equally explicit in its use of the terms ‘proceed with’ an investigation as article 15 para. 4 is in its use of the terms ‘commencement’ of the investigation.

Furthermore, in the specific case of proceedings triggered *proprio motu* by the Prosecutor, it makes sense, in light of the sensitivities of a number of States vis-à-vis too broad a power of the Prosecutor to assume that the obligatory cooperation scheme comes into play only after the Prosecutor’s assessment has been confirmed by the Pre-Trial Chamber. In order to allow the Court to function properly, though, the rather narrow interpretation of the term investigation preferred in this commentary should go hand in hand with the acceptance that the test of ‘a reasonable basis to proceed’ in article 15 paras. 3 and 4 is so low that it can be met by the Prosecutor without relying on the Court’s powers under Part. 9.

The term ‘investigation’ encompasses both the investigation into a situation and into a case²⁵.

The term ‘investigation’ should be construed so as to extend to the admissibility of the criminal proceedings before the Court²⁶. The Court may therefore use its powers under Part 9 to find out whether a State is unwilling to genuinely carry out an investigation and/or prosecution within the meaning of article 17. This interpretation is supported by the language of article 53 para. 2 (b) and leads to the sensible result that the Court possesses the powers necessary to fulfill its function to make informed rulings on the admissibility issue.

On the basis of a systematic and a teleological interpretation, the terms ‘investigation and prosecution’ also extend to the forfeiture of proceeds, property and assets and to the reparation of victims. As far as forfeiture is concerned this follows both from the listing of

²³ Cf. UN Doc. A/CONF.183/2/Add.1 (1998) article 93, p. 180.

²⁴ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 54 et seq.

²⁵ On that distinction, see Pre-Trial Chamber I, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, ICC-01/04, 17.1.2006, para. 65.

²⁶ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 35.

the latter as an applicable penalty in article 77 para. 2 (b) and from the direct reference to forfeiture in article 93 para. 1 (k). The situation is less clear as regards reparation orders as their belonging to the realm of criminal law is far from obvious and no direct reference to reparation is made within article 93. Article 75 para. 4, however, contains a cross-reference to article 93 para. 1 and this reflects the fundamental decision taken by the drafters of the Statute to consider restorative justice as one goal to be attained through the proceedings before the Court. In light of this decision it would seem odd to keep reparation outside article 86's scope of application.

IV. 'crimes within the jurisdiction of the Court'

- 15 Article 86 clarifies that the obligation of States Parties to cooperate is limited to the area of the Court's jurisdiction. It is crucial to note, however, that States Parties are not in a position to free themselves from their duties under Part 9 by considering a request as falling outside the Court's jurisdiction²⁷. Article 19 leaves it to the Court to authoritatively rule on the issue of jurisdiction. This power of the Court must not be undermined in Part 9²⁸.

²⁷ In that respect, the implementing legislation of Slovenia contains a problematic element as is rightly observed by Bosnjak and Zagorac, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (2005) 320; cf. also Kreß and Broomhall, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (2005) 521.

²⁸ On the need to construe Part 9 coherently with Part 2 see Preliminary Remarks on Part 9, mn 3.

Article 87

Requests for cooperation: general provisions

1. (a) The Court shall have the authority to make requests to States Parties for cooperation. The requests shall be transmitted through the diplomatic channel or any other appropriate channel as may be designated by each State Party upon ratification, acceptance, approval or accession.
Subsequent changes to the designation shall be made by each State Party in accordance with the Rules of Procedure and Evidence.
(b) When appropriate, without prejudice to the provisions of subparagraph (a), requests may also be transmitted through the International Criminal Police Organization or any appropriate regional organization.
2. Requests for cooperation and any documents supporting the request shall either be in or be accompanied by a translation into an official language of the requested State or one of the working languages of the Court, in accordance with the choice made by that State upon ratification, acceptance, approval or accession.
Subsequent changes to this choice shall be made in accordance with the Rules of Procedure and Evidence.
3. The requested State shall keep confidential a request for cooperation and any documents supporting the request, except to the extent that the disclosure is necessary for execution of the request.
4. In relation to any request for assistance presented under this Part, the Court may take such measures, including measures related to the protection of information, as may be necessary to ensure the safety or physical or psychological well-being of any victims, potential witnesses and their families. The Court may request that any information that is made available under this Part shall be provided and handled in a manner that protects the safety and physical or psychological well-being of any victims, potential witnesses and their families.
5. (a) The Court may invite any State not party to this Statute to provide assistance under this Part on the basis of an ad hoc arrangement, an agreement with such State or any other appropriate basis.
(b) Where a State not party to this Statute, which has entered into an ad hoc arrangement or an agreement with the Court, fails to cooperate with requests pursuant to any such arrangement or agreement, the Court may so inform the Assembly of States Parties or, where the Security Council referred the matter to the Court, the Security Council.
6. The Court may ask any intergovernmental organization to provide information or documents. The Court may also ask for other forms of cooperation and assistance which may be agreed upon with such an organization and which are in accordance with its competence or mandate.
7. Where a State Party fails to comply with a request to cooperate by the Court contrary to the provisions of this Statute, thereby preventing the Court from exercising its functions and powers under this Statute, the Court may make a finding to that effect and refer the matter to the Assembly of States Parties or, where the Security Council referred the matter to the Court, to the Security Council.

Directly Relevant Rules of Procedure and Evidence: Rules 176 to 180.

Literature: See Preliminary Remarks on Part 9. Condorelli, L., 'Conclusions Générales', in: *id.* (ed.), *Les Nations Unies et le droit international humanitaire* (1996); *id.* and Boisson de Chazournes, L., 'Quelques remarques à propos de l'obligation des Etats de 'respecter et faire respecter' le droit international humanitaire 'en toutes circonstances'', in: C. Swinarski (ed.), *Etudes et essais sur le droit international humanitaire et sur les principes de*

la croix-rouge en l'honneur de Jean Pictet (1984) 17; Crawford, J., *The International Law Commission's Articles on State Responsibility. Introduction, Text and Commentaries* (2002); Ellis, A., Pisani, R.L. and Gualtieri, D.S., 'The United States Treaties on Mutual Assistance in Criminal Matters', in: M. C. Bassiouni (ed.), *International Criminal Law, Vol. II: Procedural and Enforcement Mechanisms* (2nd ed. 1999) 403; Eser, A. and Ambos, K., 'The power of national courts to compel the production of evidence and its limits', (1998) 6 *EJCLCJ* 3; Jones, J.R.W.D., 'The Implications of the Peace Agreement for the International Criminal Tribunal for the former Yugoslavia', (1996) 7 *EJIL* 226; Pictet, J.S., (ed.), *Les conventions de Genève du 12 août 1949: commentaire* (4 Vols. 1952–60); Sarooshi, D., 'The Powers of the United Nations International Criminal Tribunals', (1998) 2 *MPYbUNL* 141; Simma, B., 'Self-contained Regimes', (1985) *NethYbIL* 111; Vermeulen, G. and Van der Beken, T., 'New Conventions on Extradition in the European Union: Analysis and Evaluation', (1997) 15 *DickJIL* 265.

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A. Introduction/General remarks

- Article 87 contains the most significant general provisions for Part 9. It empowers the Court to make requests for cooperation to States Parties and indicates that the Court may seek the assistance of non-States Parties and intergovernmental organizations. The article contains some general provisions on the channels of communication of requests and the language requirements. It imposes obligations of confidentiality on requested States and recognizes that, in relation to such requests, the Court may take various measures which are necessary for the protection of victims, witnesses or their families. The article also outlines the options available to the Court in the case of non-compliance by a State Party or a non-State Party where the assistance has been sought under an agreement or arrangement entered into by a State.
- In contrast to the very brief and general provision found in the Statutes of the ICTY¹ and the ICTR² on the Tribunals' ability to seek assistance from States, article 87 is quite detailed. In its procedural content on language, communication and confidentiality it is akin to existing instruments for cooperation such as bilateral and multilateral mutual assistance and extradition treaties, the *United Nations Convention against Illicit Traffic in Narcotic Drugs*

¹ See article 29, UN Doc. S/25074, Annex.

² See article 28, UN Doc. S/RES. 955, Annex.

and Psychotropic Substances³ and the UN Model Treaties on Extradition and Mutual Assistance in Criminal Matters⁴. Given the nature of the Court as a permanent creature created by multilateral agreement as opposed to temporary Tribunals established by the UN Security Council, more detailed provisions were essential to ensure a cooperation regime which could function in practice.

The technical aspects of article 87 were basically agreed to at the Preparatory Committee as is evidenced by the similar text found in article 86 paras. 1, 3 and 5 of the Draft Statute⁵. What was left to be negotiated in Rome were the more political issues such as the appropriate remedy in the case of non-cooperation by a State Party, the availability of any remedy with respect to non-States Parties and the allocation of responsibility for the translation of requests and responses. These issues were resolved only after considerable debate and discussion.

Rules 176 to 180 address technical concerns related to the operation of article 87 in particular as to channels of communication and language requirements. These rules also specify which organs of the Court shall be responsible for transmission and receipt of requests and information and other actions that need to be taken under the Article.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Authority to make requests and ways of transmitting designated by each State Party

This paragraph authorizes the submission of requests by the Court to States Parties, for all forms of cooperation.

The use of the term 'Court' clearly envisages the presentation of cooperation requests by the individual constituent organs. Practice has reflected this interpretation with the Prosecution submitting requests directly to States Parties and the Chamber instructing the Registry for the presentation of its requests, for example in the context of arrest and surrender⁶.

Where the Prosecution encounters difficulties with the execution of a request, it can bring the matter before the relevant Chamber though an application under article 87(7) for a finding of non-cooperation⁷.

The Court, through the decision of various Chambers, has established that the criteria of relevance, specificity and necessity will be applied in reviewing cooperation requests brought before it for transmission. In the vast majority of cases, this assessment will be relevant to requests presented by the defence pursuant to article 57(3)(b), as most prosecution requests will be transmitted directly. However, the same criteria were used by the Trial Chamber in its decision on a revised cooperation request presented by the Prosecutor in the Kenyatta case⁸. In that instance the request was before the Chamber as a result of an application under article 87(7) and through the subsequent directions of the Chamber in relation to the same. The Trial Chamber in considering the request provided some important guidance with respect to the assessment of the applicable criteria. In considering arguments advanced that

³ UN Doc. E/CONF. 82/15.

⁴ Cf. article 3, article 5 para. 2 and article 9; UN Doc. A/CONF.144/28/Rev.1, pp. 78, 80 and 82.

⁵ Cf. UN Doc. A/CONF.183/2/Add.1 (1998), pp. 157 *et seq.*

⁶ Cf. commentary, on article 89, mn. 4.

⁷ See *Prosecutor v. Uhuru Muigai Kenyatta*, ICC -01/09-02/11-908, Decision on Prosecution's applications for a finding of non-compliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, TC V(b), 31 March 2014.

⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11, Decision on the Prosecution's Revised Cooperation Request, 29 July 2014 1/22 RH T.

the late stage of the proceedings should preclude further action on the request, the Trial Chamber accepted that the stage at which the request is presented can be a relevant consideration. However, it did not agree with the Defence and Kenyan Government submissions that arguments as to relevance and necessity were completely abrogated by the imminent trial date⁹. The Trial Chamber also specifically rejected arguments advanced by Kenya, purportedly on the basis of article 93(3), as to the challenges it faced with execution of the request under domestic law. The Chamber properly drew a clear distinction between fundamental legal principles of general application referenced in article 93(3) and the ‘practical difficulties’ with execution as described by the Kenyan authorities. The Chamber noted that the latter did not constitute a basis for non-compliance with the request. The Chamber also reiterated the findings it previously had made as to the relevance and necessity of the information sought by the Prosecution through the request¹⁰.

- 8 In considering the ‘relevance’ criteria with reference to the time period for which documents were requested, the Trial Chamber noted that investigative inquiries need not be limited to the immediate period of the violence. The Chamber recognized that depending on the facts, information might also be relevant to show preparatory or post violence acts of the accused¹¹.
- 9 The Chamber also recognized that in cases in which the financing of crimes was alleged, it would be relevant to seek information about corporate or other entities in which the accused may have an interest. This could be pertinent to the extent the accused may have acted through such ‘intermediaries’ to lessen traceability¹².
- 10 The Chamber also made an important finding with respect to the voluntary disclosure of information. In the particular case, all of the information provided by the Kenyan government, as of the time of the request, had been with the consent of the accused or provided by the defence. The Chamber recognized this had been done to expedite matters and also noted that unconditional consent to the provision of complete records might well negate the necessity of pursuing alternative avenues. However, the Court emphasized that in most cases, the voluntary disclosure of certain information ‘would not be a satisfactory alternative to obtaining complete and comprehensive information as contained in official records’¹³. The Court also emphasized that the ‘execution of the cooperation provisions in Part 9 of the Statute is not conditioned on the accused’s consent’¹⁴.
- 11 Further, in light of the article 88 obligation to have procedures available under national law for all forms of cooperation, the Trial Chamber was of the view steps should be taken in parallel to use those procedures – including compulsory measures – for a comprehensive response.
- 12 Though not specified in Part 9, article 57(3)(b) provides that upon the request of a person arrested or appearing in response to a summons, the relevant Chamber¹⁵ can order a request be made seeking cooperation from a State as necessary to assist the person in the preparation of a defence. Rule 116 sets out the criteria which must be satisfied notably that the order ‘would facilitate the collection of evidence that may be material to the proper determination of the issues being adjudicated, or to the proper preparation of the person’s defence’. Sub paragraph (b) of Rule 116 mandates that the information provided by the defence must comply with article 96(2), which sets out the requirements for requests for forms of cooperation other than surrender. Sub-paragraph (c) allows the Chamber to seek the views of the Prosecutor.

⁹ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 33.

¹⁰ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 34.

¹¹ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 37.

¹² *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 39.

¹³ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 47.

¹⁴ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 29 July 2014, para 47.

¹⁵ The power is vested in the Pre-Trial Chamber under article 57 (3) b but can also be exercised by the Trial Chamber after confirmation of charges in accordance with article 61 (11).

In deciding on one such request, Trial Chamber II had to consider if the Defence request could be categorized as a type of cooperation provided for in Article 93¹⁶. In that instance, part of the defence request sought answers from government officials to specified factual questions related to the issues in the case. Trial Chamber II found that such a request fell outside the types of cooperation enumerated in article 93(1). While the Chamber did not provide extensive reasons for its conclusion¹⁷, it appears consistent with the Part 9 Scheme where States are compelled to assist with the *gathering* of evidence through specified (para. 1 a-k) and general (para 1(l)) measures but are not compelled to *give* evidence as a State. The proper approach for the defence in seeking responses to questions would have been to seek the compelled evidence of specified individuals within the government, capable of responding to the particular questions. The decision is an important one in its restriction of requests to the type of cooperation specified in Part 9. With respect to the remaining Defence requests for documents the Trial Chamber found the assistance fell directly within article 93 (1)(i) (the provision of records and documents, including official records and documents), but went on to conclude that the vast majority of the requested documentation lacked the necessary specificity required by article 96(2) as incorporated through Rule 116(1)(b)¹⁸.

A contrasting successful application was presented by the Defence in the Katanga and Chui case¹⁹. After a revised request for assistance was prepared based on the instructions of a single judge, PTC I was prepared to partially grant²⁰ the defence application and transmit the request to the DRC in accordance with article 87(1). The Chamber considered the defence application *ex parte* without calling on the Prosecution for comment, a finding consistent with the rights of the defence. In assessing the application, the Chamber applied the criteria set out in Rule 116 specifically that the material sought would facilitate the collection of evidence that may be material to the proper preparation by the Defence. The Chamber also found that the requirements under article 96(2), for the content of the request, had been met and the type of assistance requested was provided for under article 93(1). The decision demonstrates the effective use of Part 9 for assistance to the defence. PTC I in the case of Callixte Mbarushimana and TC II in the case of Katanga and Chui, have similarly issued orders at the request of the defence²¹.

¹⁶ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on the second motion of the Defence for Germain Katanga seeking the cooperation of the DRC, TC II, 6 December 2010.

¹⁷ *Ibid.*, para 12.

¹⁸ See also *Prosecutor v. Abdallah Banda Abakaer Nourain & Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09, Decision on the 'Defence Application pursuant to article 57(3)(b) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of Sudan' 17 November 2010, PTC I (Single Judge) dismissing a Defence application for a request to Sudan in the Nourain and Jamus case on the basis of a lack of information showing necessity; see also *Prosecutor v. Charles Blé Goudé*, ICC 02/11-02/11, Decision on the 'Defence Application pursuant to article 57(3)(b) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of Sudan' 17 November 2010, PTC I (Single Judge) dismissing a Defence application for a request to Sudan in the Nourain and Jamus case on the basis of a lack of information showing necessity; see also *Prosecutor v. Charles Blé Goudé*, ICC 02/11-02/11, Decision on the Defence Request for State Party Cooperation, April 10 2014 similarly dismissing a defence request on the basis that necessity had not been established as an application should first be brought to the Prosecutor under Rule 77; see also *Prosecutor v. Charles Blé Goudé*, ICC 02/11-02/11, Decision on Second Defence Request for State Party Cooperation, Pre-TC I, 17 June 2014 dismissing a defence request on the basis that relevancy had not been established.

¹⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on the 'Defence Application pursuant to article 57(3)(b) of the Statute to Seek the Cooperation of the Democratic Republic of Congo (DRC)', PTC I, 25 April 2008.

²⁰ The Pre-Trial Chamber excluded from the request documents which were in the possession of the Prosecution and the Registry.

²¹ Ordonnance relative à la Requête urgente de la Défense visant à obtenir la coopération du Gouvernement de la République démocratique du Congo, 1 avril 2010, ICC-01/04-01/07-2019-Conf-Exp-tFRA (voir aussi ICC-01/04-01/07-2019-Conf-Exp-Red, version confidentielle expurgée, ex parte, réservée au Bureau du Procureur, à la Défense de Germain Katanga et à la Défense de Mathieu Ngudjolo), par. 7 à 9; Décision relative à la requête de la Défense de Germain Katanga visant à obtenir la coopération de la République démocratique du Congo en vue de la comparution de témoins détenus, ICC-01/04-01/07-2640-Conf-Exp, TC II, 7 janvier 2011.

- 15 As noted earlier²², the obligation to cooperate in the Statute is structured differently from the Statutes for the ICTY and the ICTR. In this Statute there is also a strong obligation to cooperate. However it is specific in nature so that the States Parties will know what they are required to do and it is created through a combination of provisions, rather than a single general statement. The opening paragraph of article 93 is a central provision and, as is clear from the cases referred to above, must be read together with articles 86, 89, 91, 93 and 96 as well as, for example, article 57(3)(b): The Court is empowered to make requests for cooperation to States Parties (article 87) and the States Parties are obliged to cooperate fully (article 86) and specifically by complying with requests for surrender (article 89) and other forms of assistance (article 93).
- 16 The second sentence gives practical information to the Court about the channels through which the requests should be presented – the diplomatic or a channel designated by the State Party. The provision, while relatively straight forward in content, was the subject of considerable discussion at the *Preparatory Committee* stage. The primary issue was the use of alternate channels to the diplomatic route. Several countries were opposed to the use of any alternatives to that which is traditional in the relations between States. Concerns were expressed about the ability to be certain of the veracity of the request and to maintain control of it outside of the diplomatic channel. There were many other States for which the inclusion of alternative direct channels, such as those found in modern mutual assistance and extradition treaties²³ was important for an effective cooperation regime. The compromise adopted was to maintain the diplomatic channel but to allow States Parties to designate at the time of ratification, acceptance, approval or adoption an alternative channel to the diplomatic channel. Any such designation can be changed in accordance with the process to be outlined in the Rules.
- 17 The compromise achieved was a balanced one in that the Court will always have a channel available for the submission of the request – the diplomatic channel and at the same time if a State Party considers that another routing – perhaps direct communication to a Justice department used in normal mutual assistance and extradition practice – will be more efficient, that will be available to the Court.
- 18 Sub-rules 1, 3 and 5 of Rule 176 obligate the Registrar to gather the relevant information on channels of communication obtained by the Secretary-General and to thereafter receive and distribute any information about changes to the designated channels or language of communication. Sub-rule 2 of Rule 176 dictates that in the case of requests for cooperation by the Chambers the Registrar will transmit them and receive the relevant responses²⁴ while the Office of the Prosecutor will be responsible for its own requests. A similar division of tasks is set out for requests seeking information and cooperation from intergovernmental organizations under sub-rule 4.

Sub-rule 1 of Rule 177 was a practical addition to the general obligation to designate a channel of communication which specifies that the communication should contain all relevant information about the designated authority presumably including contact details. Sub-rule 2 authorizes the Registrar to seek relevant information about channels and language from relevant intergovernmental organizations.

Rule 180 sets out the procedure for a change of designated channel providing that such changes must be communicated in writing to the Registrar as soon as possible. The change will take effect at a time agreed between the Court and the State or if there is no agreement 45 days after receipt. The change however will not affect any requests already presented or in progress.

²² Mn 2.

²³ In the European context see Vermeulen and Van der Beken, *Conventions 285 et seq.*; for the United States Treaties see Ellis *et al.*, *United States Treaties*.

²⁴ For such a case, see article 89 mn 4.

2. Transmission through the International Police Organization or regional organizations

This subparagraph reflects considerable discussion and debate at the Preparatory Committees surrounding the role, if any, for Interpol with respect to requests for cooperation between the Court and States Parties. Interpol, which is used by some States for the transmission of State to State extradition requests, particularly urgent provisional arrest requests, was identified as an important alternative for the Court to use, particularly in urgent circumstances. Interpol authorities were very interested in being involved in the Court's cooperation regime and they advocated for inclusion of an even stronger provision on the transmission of requests. However, there were some States, many of those which were also opposed to any designated channels of communication, which did not want Interpol included in the Statute. Once again, the compromise achieved is likely to be useful on the practical level. The Court can choose to use the Interpol channel in those instances where it is appropriate in the circumstances, so long as it is not inconsistent with subparagraph (a). Thus a State Party is free to indicate if or when requests for cooperation can be transmitted to it through Interpol or a regional organization. The reference to regional organizations was made in recognition of the various other agencies which States may use in their State to State practice which might be useful in this context as well.

II. Paragraph 2: Language requirements

Article 87 para. 2 specifies the language for requests for cooperation. By the general reference to requests for cooperation, the language requirement could be interpreted to apply to all requests under Part 9, including those to non-States Parties and intergovernmental organizations. However, given the reference to designation of language upon ratification, accession or approval, as well as the practical ramifications, the better view is that this requirement is specific to requests made to States Parties. The article mandates that not only the request but any supporting material must be provided in the requisite language. The issue of the application to supporting material was resolved only in Rome, but it was easily disposed of once general agreement was achieved on the appropriate approach to the language issue generally.

On a very practical note it is recognized that the request and supporting documents may be submitted as written, if they are in the appropriate language or that an appropriate translation may be prepared and submitted with the original document.

The most difficult issue with respect to language was whether the Court or the requested State Party would bear the responsibility for translating the documents into an appropriate language, when there was a difference in languages between the Court and the State. There were very strongly held and divided views. Some States supported the position that the Court should be able to present the request and supporting material in one of its working languages, leaving the requested State to translate the material if necessary. Other States believed it to be more equitable to apply the normal practice in international cooperation between States; the requesting party must submit the materials in an official language of the State to which they are directed. This of course would require the Court to bear the responsibility for any requisite translations. The compromise reflected in article 87 Para. 2, while favoring the latter approach, does provide some accommodation for the Court. While the choice of language is left to the State Party, some States with an official language different from the Court may well choose to allow the requests to be submitted in the Court's languages, where that would not impose a significant burden on the State. At the same time, for those States with different languages, for which translation would be difficult or which do not have the necessary resources, the requests can be submitted in the language of that State.

Rule 178 clarifies some points that were not evident under the general language of paragraph 2 of article 87. Because paragraph 2 makes reference to the designation of 'an'

official language, sub rule 1 makes it clear that States with more than one official language can indicate that requests may be drafted in any one of the official languages and no choice need be made as between those languages in the designation. Sub-rule 2 deals with the inevitable situation where a State has not specified a language for communication in which case one of the working languages of the Court will be used. Under rule 179 the same approach applies to non State parties which have agreed to cooperate with the Court but have not designated a language.

As with changes to a designated channel of communication (see mn 6), rule 180 provides identical rules for amendments to languages of communication.

III. Paragraph 3

1. Confidentiality

- 23 Article 87 para. 3 is similar to the provisions in many bilateral and multilateral mutual assistance treaties²⁵. The provision requires the State receiving a request to keep it confidential. Here again the protection applies to the request itself and the supporting material. By use of the term ‘requested State’, as opposed to State Party, it appears this requirement was meant to apply in principle to all requests submitted to States, including non-States Parties. Logically the need for confidentiality would be equally important in the case of a non-State Party. While there are clearly issues of enforceability with respect to non-States Parties, on a practical level, where necessary, the Court could seek some assurances on confidentiality in advance, when dealing with such States.
- 24 The requirements of paragraph 3 were considered briefly when Trial Chamber V(B) was considering submissions by the Government of Kenya with respect to its cooperation with the Court²⁶. The Prosecution submitted that the Kenyan submissions – filed publically – disclosed the existence and volume of Prosecution requests for assistance, as well as the specific information requested. The Prosecution requested that a caution be given to the Government of Kenya with respect to its confidentiality obligations. As Kenya had acknowledged the inadvertent disclosure in its filings and apologized in its reply, the Chamber considered the Prosecution request to be moot. In the case of Bosco Ntaganda, PTC I relied on this Article in asking the State to keep the request for arrest and surrender confidential²⁷. The Decision on the Prosecutor’s request for non-disclosure in relation to a request for assistance in the Lubanga case²⁸ clarifies that the content of such a request may be the subject of an application for non-disclosure by the Prosecutor, albeit in this case the Appeals Chamber was not satisfied with the factual basis for the requested redactions.

2. Exception

- 25 The obligation for confidentiality is not absolute. As is the case in similar mutual assistance instruments, it is recognized that in many States the request cannot be executed without some form of disclosure. For example, the request may have to be filed with a public court in order to obtain the requisite court order for arrest or to gather evidence. For this reason, disclosure in the course of the execution is permitted. There are two approaches to

²⁵ It is also similar in content to article 9 of the UN Model Treaty on Mutual Assistance, UN Doc. A/CONF.144/28/Rev.1.

²⁶ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11, Decision concerning the Government of Kenya’s Submissions on its cooperation with the Court, TC V(B), 3 July 2013; see also *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision concerning the Government of Kenya’s Submissions on its cooperation with the Court, TC V(A), 3 July 2013 (two decisions, issued the same date are in substance the same).

²⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-13, Request to the Republic of Uganda for the arrest and surrender of Bosco Ntaganda, PTC I, 8 February 2008.

²⁸ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, A 5 A 6, Decision on the Prosecutor’s request for non-disclosure in relation to document ‘OTP/DRC/COD-190/JCCD-pt, AC, 27, May 2013.

confidentiality provisions in the various mutual assistance instruments. The more restrictive approach, found in article 9 of the UN Model Treaty²⁹ is an absolute requirement for confidentiality with the proviso that if the request cannot be executed without disclosure, the requested State will advise the requesting party, which will then decide whether the request should nevertheless be executed. This approach, while providing a more stringent protection, is difficult to apply operationally because for many States it requires subsequent consultation in each and every case. The alternative approach, reflected here, is less cumbersome in practical application but it does not give an absolute protection against disclosure. It is recognized that disclosure may be necessary in the course of execution. Because this latter approach has been adopted, where the Court has particular concerns about confidentiality, it may wish to raise the issue with the requested State before submitting the request.

IV. Paragraph 4: Protection of victims, potential witnesses and their families

This paragraph is related to article 68 which provides for general protections for victims and witnesses within the Court's trial process. It reflects the need to protect witnesses, victims and their families in the course of seeking cooperation during an investigation or prosecution. In the Draft Statute, reference to these protections was repeated throughout Part 9 in article 88 para. 4, article 89 para. 3 and article 90 para. 8³⁰. As a result of the negotiations in Rome, the sections were merged into one general provision which has application to all requests for assistance under Part 9. This language makes it clear that the protection is applicable to all parts of the process for all requests – to States Parties, non-States Parties and international organizations – and in relation to any form of cooperation.

The negotiations at Rome led to the refinement of this provision from the language originally incorporated in the Draft Statute³¹. Rather than a specific reference to the Court withholding information, which was a troublesome reference for many States and which was also unduly limiting, a more general approach was adopted. Under this formulation, the Court has a broader power to take necessary measures, including protecting information, to ensure that the relevant individuals are protected. In practice this will give the Court much more flexibility in dealing with sensitive issues of witness or victim protection. It may choose not to include certain specific information in the request or ask for special steps with respect to confidentiality or choose to communicate information in a secure manner. This new language was viewed as more acceptable both with respect to an effective cooperation process and in allowing for the protection of the individuals concerned.

The latter part of the phrase – reference to safety and both physical and psychological well being of individuals – was drawn from article 68. It reflects the need to consider in the formulation and presentation of the requests not only the safety and physical protection of the person but also potential psychological damage. Thus the Court should also consider whether, for example, the inclusion of specific details of an alleged offence, where not critical to the execution of the request, could be psychologically damaging to the victim.

The second aspect of the protection, relating to the provision and handling of information obtained, remained very similar to that developed during the *Preparatory Committee*. The only substantive change was rather than an unqualified obligation on States in all cases, it is for the Court to identify concerns about protection of victims and witnesses and to request that the information be handled and provided in a specific manner to address this concern. On a practical level this is a much more workable formula in that the Court is in the best position to know the potential dangers to individuals and to highlight that concern to the requested State.

Here again the language has been left general such that the Court and the relevant State or organization have flexibility in deciding what steps should be taken with respect to the

²⁹ UN Model Treaty on Mutual Assistance, UN Doc. A/CONF.144/28/Rev.1.

³⁰ UN Doc. A/CONF.183/2/Add.1 (1998), pp. 168, 169 and 175.

³¹ Cf. references in *ibid*.

information. The language used also makes it clear that protective measures can be taken both in relation to how the information is obtained ('handled') as well as how it is transmitted ('provided'). As an example of its application, PTC I in the case of Bosco Ntaganda, requested that Uganda provide and handle information relating to the request in accordance with article 87(4)³².

V. Paragraph 5

1. Invitation to States not Parties

- 31 Paragraph 5 deals with the cooperation between the Court and non-States Parties. Pursuant to the general principle of the law of treaties, as embodied in article 34 of the *Vienna Convention on the Law of Treaties*³³, the obligations of Part 9 do not – as such – extend to non-States Parties³⁴. From the perspective of the Statute cooperation between the Court and non-States Parties can therefore only be a voluntary one and this is reflected by the basic scheme outlined in this paragraph. But this is without prejudice to legal consequences that may stem from other legal sources in certain cases. The empowering of the Court in this paragraph to contact a non-State Party for the sake of *ad hoc* cooperation should also be seen in the light of the two following hypotheses.
- 32 The Security Council – acting under Chapter VII of the *UN Charter* – may oblige all UN Member States to cooperate with the Court in a given case. The binding nature of such a cooperation regime for States not Parties to the Statute would then stem from the UN Charter which – according to article 103 of the UN Charter – takes priority.
- 33 Article 1 of the four Geneva Conventions on international humanitarian law of 12 August 1949³⁵ contains the very significant obligation to *ensure* respect of international humanitarian law. The implications of this wording are far-reaching. Essentially, the formula entails the obligation for States Parties to react by any appropriate means to any violation of an international humanitarian obligation even though the underlying act is not attributable to the State concerned³⁶. The duty enshrined in common article 1 has been confirmed and supplemented respectively, by articles 1 and 89 of the First Add. Prot. of 8 June 1977 to the four Geneva Conventions³⁷ and the relevant international practice adds weighty support to the view that the duty to ensure international humanitarian law has become part of customary international law³⁸. In the light of this legal development it is conceivable that in a given case some form of cooperation with the Court constitutes the only way for non-States Parties to discharge this obligation³⁹. Cooperation would then no longer be voluntary in character, rather it would assume the character of an obligation under customary international law.

2. 'assistance under this Part'

- 34 The phrase '*to provide assistance under this Part*' indicates that the *ad hoc* cooperation regime between the Court and a non-State Party shall reflect the cooperation regime of Part 9. Ideally the arrangement will contain a general reference to the provisions of Part 9. The phrase

³² *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06-13, Request to the Republic of Uganda for the arrest and surrender of Bosco Ntaganda, PTC I, 8 February 2008.

³³ UN Doc. A/CONF.39/11/Add.2.

³⁴ See Kreß and Prost, article 86, mn 3.

³⁵ (1950) 75 UNTS 31.

³⁶ This has already been pointed out by Pictet, *Commentaire* 27, and has been further developed by Condorelli and Boisson de Chazournes, *Quelques remarques* 26.

³⁷ (1979) 1125 UNTS 3.

³⁸ See Condorelli and Boisson de Chazournes, *Quelques remarques* 26 et seq., and for the more recent practice (including the increasingly significant one of the United Nations) Condorelli, *Les Nations Unies* 450 and 461.

³⁹ It deserves a thorough analysis whether the customary obligation 'to ensure respect' remains confined to war crimes or extends to the other crimes within the jurisdiction of the Court.

does not exclude, though, that the non-State Party renders only some of the forms of assistance provided for in Part 9. Paragraph 5 leaves all necessary room for flexibility in this respect.

3. Basis for cooperation and internal competences regarding cooperation treaties

The flexibility of the cooperation between the Court and non-States Parties is underlined further by the phrase ‘ad hoc arrangement, an agreement with such State or any other appropriate basis’. The cooperation pursuant to paragraph 5 can have every appropriate basis. Essentially, this basis can either take the form of a legally binding cooperation regime or retain a wholly informal character. Regulation 107 of the Regulations of the Court elaborates on the negotiation and conclusion of arrangements and agreements on cooperation falling under article 87 paras. 5 and 6. The Regulation draws a three-fold distinction between agreements ‘setting out a general framework for cooperation’, agreements referred to in article 54 para. 3 (d) and other agreements. The first category relates to agreements that establish a cooperation relationship serving as a substitute for (the inapplicable) Part 9 and thus having a broadly similar scope.⁴⁰ Those agreements, in line with the competences accorded to it in article 2 and in article 3 para. 2, will be concluded by the President on behalf of the Court while other competent organs may participate in the negotiation process in some for or the other under the authority of the President. The views of such organs and, importantly, those of one representative of counsel, may also be introduced into the negotiation process by way of consulting the Court’s Advisory Committee of Legal Texts⁴¹. Agreements referred to in article 54 para. 3 (d) will be negotiated and concluded by the Prosecutor and this will be possible also where a general framework for cooperation. Other cooperation agreements will be negotiated by the competent organ or organs and will be concluded by the President or, through delegation, by the organ or organs concerned⁴².

4. Obligatory cooperation

Subparagraph 2 of paragraph 5 deals with the consequences of a failure to cooperate by the non-State Party. At this point the distinction between cooperation on a binding or non-binding basis is crucial. This phrase indicates that this subparagraph covers only the former category. The name which is given to the ad hoc cooperation regime is of secondary importance here such that the references to ‘an ad hoc arrangement or agreement with the Court’ can only serve as examples. What matters is the non-State Party’s intent to assume an international obligation to cooperate with the Court. Subparagraph 2 should also apply – by way of analogy – in the two hypotheses of obligatory cooperation alluded to above⁴³.

5. Failure to cooperate despite an obligation to that effect

As paragraph 5 (b) deals exclusively with cases where a non-State Party is under an international obligation to cooperate with the Court the failure to act accordingly entails, in principle⁴⁴, the international responsibility of that State.

⁴⁰ For an agreement of that kind, see Agreement of the International Criminal Court and the European Union on Cooperation and Assistance of 10 April 2006, ICC-PRES/01-01-06; the Relationship Agreement between the International Criminal Court and the United Nations of 4 October 2004 (ICC-ASP/3/Res. 1), though being governed by article 2 in the first place, also comes within the scope of Regulation 107 as far as the provisions on cooperation are concerned.

⁴¹ See Regulation 4 of the Regulations of the Court.

⁴² For one example of an agreement falling in this residual category, see the Memorandum of Understanding between the United Nations and the International Criminal Court concerning Cooperation between the United Nations Organization Mission in the Republic of the Congo (MONUC) and the International Criminal Court of 8 November 2005.

⁴³ Mn 19 and 20.

⁴⁴ For the rare possibility of exceptions see the more detailed comments on article 87 para. 7, mn 32 et seq., where the attempt is made to analyze the latter provision within the general legal framework of State responsibility.

6. Consequences of such a failure to cooperate

38 This part has to be read together with article 112 para. 2 (f) pursuant to which the Assembly of States considers any question relating to non-cooperation and, in addition, it must be compared with the wording in paragraph 7 which deals with the failure to cooperate by a State Party. The Court may ‘inform’ (either the Assembly of States or the Security Council) about the State’s failure to cooperate. By contrast the term ‘finding’ to be found in paragraph 7 is not used here. The reason for this difference is the belief of some delegations that weaker language should be used with respect to non-States Parties. It is not easy, though, to find a solid justification for a distinction in substance as the international responsibility of the non-cooperating State is at stake in both hypotheses.

39 If the matter was referred to the Court by the Security Council the latter can be informed of the State’s failure to cooperate. The Security Council will then proceed in accordance with its competences under the UN Charter. Pursuant to article 13 (b) a referral by the Security Council will be made under Chapter VII. Under this chapter the Security Council may, for example, consider the appropriateness of the adoption of sanctions against the responsible State⁴⁵. The phrase can be read as precluding the Court from informing – apart from the Security Council – the Assembly of States Parties. However, the wording does not demand such an interpretation. The more sensible view appears to allow for parallel information of the two bodies concerned⁴⁶.

Paragraph 5, subparagraph b, deals only with the case where the State not party to the Statute has entered into an ad hoc arrangement or an agreement with the Court. It must, however, equally apply where the international obligation of the State not party directly follows from a Security Council resolution adopted under Chapter VII without any subsequent arrangement or agreement between the State concerned and the Court. This is to avoid the absurd result that the Court is precluded to inform the Security Council of a failure to cooperate if the international obligation to cooperate is enshrined (only) in the Security Council resolution and hereby benefits from the legal effect of article 103 of the UN Charter. The early practice under the Statute accords with this view.⁴⁷

40 In the context of the Security Council referral regarding Darfur, Sudan, the Court has faced several instances of non-cooperation on the part of States Parties where the matter has been referred to the Security Council and/or the Assembly of States Parties. On 25 May 2010, PTC I, 3 years after the issuance of arrest warrants, decided to inform the Security Council of the failure of the Republic of Sudan to cooperate with the arrest and surrender of Ahmad Muhammad Harun and Ali Muhammad Ali Abd-Al-Rahman⁴⁸. Factually, the decision details the issuance of the arrest warrant, followed by service and attempted service on Sudanese authorities of the request for cooperation in the arrest and surrender, as well as follow up documents. It notes the absence of any information from Sudan as to the action taken on execution of the request. This decision was the first through which information about non-cooperation by Sudan – a non-State Party – has been brought to the attention of the Security Council. In doing so the PTC did not rely on, or even make reference to article 87(7), which allows for circumstances of non-cooperation to be referred to the ASP and in the case of

⁴⁵ Cf. article 41 of the UN Charter.

⁴⁶ The effect of article 12 of the UN Charter is limited to the relationship between the two UN organs Security Council and General Assembly.

⁴⁷ The Prosecutor has informed the Security Council of a failure of the Government of Sudan contrary to operative paragraph 2 of Security Council Resolution 1593 to cooperate with the Court in the execution of requests for arrest and surrender in the absence of an arrangement or agreement between the Sudan and the Court; Sixth Report of the Prosecutor of the International Criminal Court to the UN Security Council pursuant to UNSCR 1593 (2005), 5 December 2007.

⁴⁸ *Prosecutor v. Ahmad Muhammad Harun & Ali Muhammad Ali Abd-Al-Rahman*, ICC-02/05-01/07, Decision informing the United Nations Security Council about the lack of cooperation by the Republic of the Sudan, PTC I, 25 May 2010.

referral by the Security Council, to that body. Presumably – given there is no analysis on the point – the Pre-Trial Chamber considered article 87(7) inapplicable because of its apparent restriction to States Parties only. As a result of this approach, the reasoning of the Pre-Trial Chamber was premised solely on the obligations flowing from article 25 of the UN Charter and resolution 1593(2005) which mandated that the ‘Government of Sudan and all other parties to the conflict in Darfur shall cooperate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution’⁴⁹. The Chamber went on to describe that the Security Council had ‘entrusted the Court with the task of investigating and prosecuting crimes within the Court’s jurisdiction in the situation in Darfur’ a phrasing which does not sit comfortably with the structure of the Court and its relationship to the Security Council. The Court held that because of resolution 1593 (2005), it had an ‘inherent power’ to inform the Security Council of the failure of Sudan to cooperate which was preventing the Court from executing the task entrusted to it by the Security Council. Instead of claiming such an ‘inherent power’ the Chamber should simply have relied on article 87(5), albeit by way of analogy.

In cases which do not involve the Security Council, the Court may inform the Assembly of States Parties only. The question of which options are open to this body and to the States Parties represented therein is not answered in article 112 para. 2 (f). The Statute is not unambiguous as to the precise legal status of the Assembly. One possibility is to see the Assembly as an organ *sui generis* of the Court notwithstanding the fact that it is not mentioned in article 34⁵⁰. On this – admittedly not altogether certain – basis the Assembly of States could – on behalf of the Court – invoke the international responsibility of the State by demanding its cooperation and by condemning its internationally wrongful behaviour⁵¹. 41

A difficult point remains whether the States Parties could take any action against the non-cooperating State on the basis of an Assembly’s recommendation to this effect. At this point, the question arises, whether the international responsibility of the non-cooperating State exists *vis-à-vis* the States Parties. Otherwise these States would not dispose of *legal* remedies *vis-à-vis* the non-cooperating State, a situation which could not be changed by a decision of the Assembly acting on behalf of the Court. 42

To the extent the non-State Party’s obligation to cooperate can only be based on an international treaty between that State and the Court – as it appears to be envisaged as the standard case in paragraph 5 – the non-cooperating State incurs international responsibility *vis-à-vis* the Court and – given the distinct international legal personality of the Court – not *vis-à-vis* the States Parties, the latter being, from a strictly legal perspective, third States *vis-à-vis* the treaty of cooperation between the Court and the non-State Party. Thus a *right* of the States Parties to demand and – if necessary – to enforce the non-State Party’s cooperation with the Court can be deduced from the cooperation treaty only if this treaty embodies the expression of the intent of both the Court and the non-State Party to create such a right⁵². In the latter hypothesis the regime of State responsibility discussed below⁵³ could apply *mutatis mutandis*.

The same is true to the extent that the non-States Parties’ obligation to cooperate stems from a decision of the Security Council under Chapter VII of the United Nations Charter or from customary international law. In both hypotheses the obligation applies *erga omnes* and as a consequence thereof every UN Member State⁵⁴ or, respectively, every State⁵⁵ has a legal interest in the non-States Parties’ cooperation.

⁴⁹ Security Council resolution 1593(2005) paragraph 2.

⁵⁰ From this perspective article 34 would specify the organs of the Court as judicial body. The Court as the international legal person within the meaning of article 4 para. 1 would have the Assembly of States as an additional – and partly political – organ.

⁵¹ For a more detailed analysis of the relationship between Part 9 and the international law on State responsibility see discussion on paragraph 7, mn 32 *et seq.*

⁵² Cf. article 36 of the Vienna Convention of the Law of Treaties, UN Doc. A/CONF.39/11/Add.2.

⁵³ See paragraph 7 mn 32 *et seq.*

⁵⁴ In the hypothesis of a binding Security Council decision.

⁵⁵ In the hypothesis of a customary obligation to cooperate.

VI. Paragraph 6: The Court asking intergovernmental organizations for cooperation and assistance

- 43 Similar to non-States Parties, intergovernmental organizations are not under the obligation to cooperate pursuant to Part 9⁵⁶. Cooperation between the Court and such organization may be of great use, though, and therefore this paragraph provides for such a possibility. The slightly different wording of the two sentences of paragraph 6 seems to suggest that a distinction has to be drawn between the provision of information or documents and other forms of cooperation and assistance. But in both hypotheses the cooperation, in principle, is a voluntary one as the Court and the intergovernmental organization are placed on the same level as distinct international legal subjects. Thus, in principle, the cooperation needs the consent of the organization concerned in every case. Again, the legal situation changes both, in case of a Security Council decision to cooperate under Chapter VII of the UN Charter⁵⁷ and where it is possible to establish an obligation to cooperate under customary international law⁵⁸.
- 44 In the case of Nourain and Jamus, the Defence brought two applications to the TC under 57(3)(b) and 64(6)(a)⁵⁹ seeking the preparation and transmission of a cooperation request to the African Union. With reference to the first application, the Chamber held that it could seek cooperation from an intergovernmental organization pursuant to article 87(6) for the types of assistance available under Part 9 of the Statute. It was further of the opinion that the AU was an intergovernmental organization within the terms of the article. However, the Chamber properly required that the criteria of specificity, relevance, and necessity be met for the transmission of the request. In this instance, only some of the documents sought had been identified to the requisite standard, while others did not meet the requirement of specificity because they were broadly categorized without limitations. Further, only a portion of the sufficiently specific documentation met the relevance criteria. The Chamber also held that while the Defence had exhausted the steps to obtain the material from the African Union, they had not explained what steps were taken, if any, to pursue the material from the Prosecution. As a result, the Chamber concluded that the Defence should first pursue the matter with the Prosecution through an application under Rule 77⁶⁰. The Defence brought a second application after having made a largely unsuccessful application to the Prosecution. In its decision, the TC reiterated its previous findings as to the applicability of article 86(7) and the need for specificity, relevance and necessity. Applying the latter criteria to the outstanding documentation the TC granted the application with respect to a portion of the material which met the specified requirements⁶¹. These two decisions are important in that the TC adopted a pragmatic interpretation limiting the scope of article 87(6) to otherwise unavailable material which is specifically described and relevant. This is parallel to the approach taken with respect to requests to State Parties. The effect of the decisions is to produce focused requests which have a far greater chance of successful execution, particularly in light of the absence of an obligation on intergovernmental organizations to respond.

⁵⁶ See Krefß and Prost, article 86, mn 4.

⁵⁷ The situation is more complex as in the case of *States* not Party to the Statute, discussed above, as the Security Council usually addresses its decisions to States, not to intergovernmental organizations. But see the interesting analysis by Sarooshi, *Powers* 162 et seq. Another way to create an obligation at least for the UNO would be to insert provisions to this effect in the agreement to be concluded pursuant to article 2.

⁵⁸ With respect to the UN see Condorelli, *Les Nations Unies* 460 et seq.

⁵⁹ This section empowers the TC to exercise the functions of a PTC under Article 61(11).

⁶⁰ *Prosecutor v. Abdallah Banda Abakaer Nourain & Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09-170, Decision on 'Defence Application pursuant to Articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the African Union', TC IV, 1 July 2011.

⁶¹ *Prosecutor v. Abdallah Banda Abakaer Nourain & Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09, Public redacted Decision on the second defence's application pursuant to Articles 57(3)(b) and 64(6)(a) of the Statute, TC IV, 21 December 2011, paras 12–30.

The reference to the competence or mandate of the organization as a limit for possible cooperation with the Court is by no means self-evident. Although it is clear that any intergovernmental organization must respect its competences when entering into a cooperation arrangement with the Court, this question is part of the internal law of the organization and would not normally concern the international legal relationship between the Court and the organization. The express reference to ‘competence or mandate’ must therefore be construed as attaching legal relevance to the competence structure of the relevant organization: The Court shall not ask an intergovernmental organization to cooperate in a way that would entail an *ultra vires* act.

In Rome there was a lengthy debate whether or not peacekeeping forces should be mentioned explicitly in the Statute. The discussion was focussed on the pertinent provision of Part 5. In article 54 para. 4 (f) of the Draft Statute⁶² there was a bracketed reference to ‘any peacekeeping force that may be present in the territory where an investigation is to be undertaken’. Some delegations objected to this formula without denying the urgent practical need to have such forces included⁶³. The compromise achieved in article 54 para. 3 (c) is to add the term ‘arrangement’ to ‘intergovernmental organization’ to make sure that all peacekeeping forces are included. A corresponding reference is missing in paragraph 6. This omission was not deliberate so that the general rule of systematical interpretation should apply pursuant to which the complementary rules in Part 5 and Part 9 must be coherent⁶⁴. The Court is thus in a position to cooperate with all kinds of peacekeeping forces within the latter’s mandates. This accords with the early practice of the Court.⁶⁵ Such a cooperation may extend, in particular, to the arrest and surrender of a person. While it is implicit in the legal scheme under articles 58 and 59 in conjunction with article 89 that such an arrest and surrender will, under normal circumstances, be carried out by the territorial State, there may be an imperative need to resort to the cooperation of a peace-keeping or peace-enforcement force on the ground in case the territorial State is either unable or unwilling to act pursuant to a request by the Court under article 89 para. 1. Nothing in the text of paragraph 6 or any other provision of the Statute precludes the power to seek such a form of cooperation. In particular, the fact that articles 58 and 59 spell out a detailed legal regime governing the execution of an arrest by a State Party does not yield an argument *e contrario* regarding the execution of an arrest by one of the forces in question. Instead, article 58 para. 5 refers generally to Part 9 as far as this form of cooperation is concerned. The cooperation of the forces concerned may take place with the consent or even upon the request of the territorial State⁶⁶, but where the mandate of the forces concerned so allows paragraph 6 also empowers the Court to seek the cooperation of such forces in cases of failed States or States hostile to the Court.

Paragraph 6 does not deal explicitly with the consequences of a failure of an intergovernmental organization to cooperate with the Court. Correspondingly, article 112 para. 2 (f) does not mention article 87 para. 6. This is somewhat surprising because it is perfectly conceivable that an international organization assumes an international treaty obligation to cooperate⁶⁷ and, consequently, incurs international responsibility in case of failure to cooperate.

⁶² UN Doc. A/CONF.183/2/Add.1, p. 91.

⁶³ On the cooperation between the ICTY and the International Implementing Force see Jones, *Implications* 238 et seq; on the ICTY’s cooperation with the Stabilisation Force, see Henquet, in: Boas and Schabas (eds.), *International Criminal Law Developments in the Case Law of the ICTY* (2003) 113.

⁶⁴ See Preliminary Remarks on Part 9, mn 3.

⁶⁵ See the Memorandum of Understanding between the United Nations and the International Criminal Court concerning Cooperation between the United Nations Organization Mission in the Republic of the Congo (MONUC) and the International Criminal Court of 8 November 2005.

⁶⁶ This is the legal framework for any cooperation of MONUC in the arrest and surrender of persons to the Court; cf. article 16 paragraph 1 (a) of the Memorandum quoted *ibid*.

⁶⁷ Or, again, is under a corresponding customary obligation or an obligation which results from a Security Council decision under Chapter VII of the UN Charter.

In light of the considerations of the *Appeals Chamber* of the ICTY in the *Blaskić subpoena* judgment⁶⁸ it is submitted that the Court has the inherent power to make a finding as to the organization's failure to cooperate.

VII. Paragraph 7

1. States Parties failing to comply with a request

- 48 Any Court's request to cooperate concretizes and activates the abstract treaty obligations of the States Parties to cooperate pursuant to articles 86, 89 para. 1 and article 93 para. 1. A Court's request is thus binding for the State Party addressed, entailing an international obligation for this State. Conceptually the (abstract) obligations under Part 9 are *primary* treaty law and any (concrete) obligation to comply with a request constitutes *secondary* treaty law. The legal situation thus corresponds with the relationship between Member States and such an intergovernmental organization which is empowered under its Charter to direct binding decisions to its Member States⁶⁹. The legally binding character of the Court's requests cannot be questioned by opposing the terms 'request' and 'order'. Although the term 'order' may sound stronger (even unusually strong in the relationship between an international body and States⁷⁰ so that the sole reference to 'request' may seem more appropriate within the contractual framework of the Statute) it cannot be doubted that the decisive common feature of both, 'order' and 'request' in this specific context is their legally binding force⁷¹.
- 49 A State Party's 'failure to comply with a request by the Court contrary to the provisions of this Statute', in the language of the 2001 *Articles of the International Law Commission on State Responsibility (ILC Articles)*⁷² constitutes the breach of an international obligation⁷³. Under customary international law the breach of an international obligation by a State constitutes an internationally wrongful act entailing the State's responsibility if no circumstance precluding wrongfulness can be invoked⁷⁴. It is doubtful whether reference to those circumstances precluding wrongfulness which are listed in articles 20 to 27 of the ILC Articles is at all conceivable in the context of the Statute. One possible view would be to consider the Statute – and more particularly Part 9 – as a so-called *self-contained regime* which offers an exhaustive set of rules concerning the international wrongfulness of

⁶⁸ *Prosecutor v. Tihomir Blaskić*, Judgment of 29 Oct. 1997 on the request of the Republic of Croatia for review of the decision of the Trial Chamber II of 18 July 1997, para. 33.

⁶⁹ This analogy can be pressed further in light of the *dictum* of the Appeals Chamber of the ICTY in the *Blaskić subpoena* judgment (see note 43, para. 28) according to which an international criminal judicial body in requesting the cooperation of States is not exercising its primary judicial function but 'an ancillary mandatory power vis-à-vis States'.

⁷⁰ The Appeals Chamber of the ICTY has pointed out in the *Blaskić subpoena* judgment (see note 43, para. 26) that the use of the term 'order' in article 29 of the Tribunal's Statute constitutes a terminological exception which can be explained by the distinctive nature of Chapter VII of the UN Charter as the Statute's legal basis. In its *amicus curiae* brief of 15 Sept. 1997 submitted in the *Blaskić* case the People's Republic of China appears to question the binding force even of an order under article 29 of the ICTY Statute. This view has been clearly rejected by the Appeals Chamber (*ibid.*).

⁷¹ Cf. the *amicus curiae* brief of the Max Planck Institute for Comparative Public Law and International Law of 11 Apr. 1997 submitted in the *Blaskić* case, at pp. 8 *et seq.*; for a subsequent *amicus curiae* brief of the Freiburg Max Planck Institute for Foreign and International Criminal Law on the power of national courts to compel the production of evidence see Eser/Ambos, (1998) 6 *EJCLCJ* 3.

⁷² Crawford, *The International Law Commission's Articles on State Responsibility* (2002) Introduction, Text and Commentaries.

⁷³ Article 2 (b) of the ILC Articles, *ibid.*, p. 61; article 12 of the ILC Draft (Crawford, *ibid.*, p. 63) clarifies that the origin of the breached obligation is irrelevant. Insofar as ILC Articles are quoted in the text they are taken to accurately reflect the current state of customary international law.

⁷⁴ Cf. articles 1, 2 and 20 *et seq.* of the ILC Articles, Crawford, *ILC's Articles on State Responsibility* (2002), pp. 61 and 65 *et seq.*

non-cooperation⁷⁵. The very careful determination of the scope of the obligations to cooperate⁷⁶ during the Rome negotiations certainly points in this direction. No doubt, none of the – in parts very delicate – compromises achieved when replacing possible grounds for refusals to cooperate by other solutions may be undermined by reference to a circumstance precluding wrongfulness under general customary international law. This is true, for example, for the state of necessity as reflected in article 25 of the ILC Articles⁷⁷. Additionally, the obligation to cooperate under Part 9 does not operate on the basis of the principle of reciprocity. Rather does the integral structure of these obligations imply that they have to be discharged ‘in all circumstances’ which would again be in line with common article 1 of the Four Geneva Conventions and exclude the applicability of articles 22 (consent), 22 (countermeasures) and 21 (self-defence) of the ILC Draft to the Statute’s cooperation regime⁷⁸. On the other hand, it may go too far to categorically deny the possibility that in a truly exceptional case the Court accepts that one of the grounds (virtually) excluding the State’s choice and listed in articles 23 (force majeure and fortuitous event) or 24 (distress) of the ILC Articles can be invoked. In conclusion, a ‘failure to comply with the request of a Court contrary to the provisions of this Statute’ should be construed as being tantamount to an internationally wrongful act in the sense of the ILC Articles on State responsibility⁷⁹.

The latter part of this phrase adds a further condition of the Court’s power to make a 50 finding. One may doubt the usefulness of this condition. In any event the condition will normally be fulfilled as it is very hard to think of a case where the non-cooperation would not prevent the Court from exercising its functions and powers.

2. Dispute regarding the legality of a request

In case of a dispute regarding the legality of a request for cooperation under article 93 that 51 has not been solved through consultations⁸⁰ Regulation 108 of the Regulations of the Court recognises the right of the requested State to apply for a ruling from the ‘competent Chamber’⁸¹ and sets up a procedure in that respect.⁸² Regulation 109, sub-regulations 1 and 2, make it clear that in case of such an application the procedure under Regulation 108 must be completed before a finding under paragraph 7 can be made.

⁷⁵ Article 55 of the ILC Articles, Crawford, ILC’s Articles on State Responsibility (2002), p. 73, alludes to the possibility of such a regime. The article is worded: ‘The provisions of the Part do not apply where and to the extent that the legal consequences of an internationally wrongful act of a State have been determined by other rules of international law relating specifically to that act.’ This article appears to confine the concept of a self contained regime to the legal consequences of an internationally wrongful act and it was in this respect that the International Court of Justice made use of this concept in the *Tehran Hostages Case*, United States Diplomatic and Consular Staff in Tehran, Judgment of 24 May 1980, (1980) ICJ Rep. 40. But a derogation by way of *lex specialis* is also possible at the level of circumstances precluding wrongfulness. For a detailed analysis cf. Simma, *Regimes*.

⁷⁶ See Kreß and Prost, article 89, mn 1, 5–13 and Kreß and Prost, article 93, mn 1–6.

⁷⁷ An essential element of this circumstance precluding wrongfulness is the balancing of conflicting interests. This is precisely what has been done in determining the precise scope of the obligations to cooperate under articles 89 and 93.

⁷⁸ For such an interpretation of the formula ‘in all circumstances’ in common article 1 see Condorelli and Boisson de Chazournes, *Quelques remarques* 22 *et seq.* This aspect of common article 1 may even have to be taken into consideration to the extent that the resulting obligations are congruent with the obligations of Part 9 of the Statute.

⁷⁹ Cf. the *amicus curiae* brief by Condorelli (11 Apr. 1997) submitted in the *Blaskić* case before the ICTY.

⁸⁰ In the case of a request under article 89, article 59 para. 4 in conjunction with rule 117, sub-rule 3 apply.

⁸¹ Which Chamber is competent depends on the relevant stage of the proceedings; it may be the Pre-Trial Chamber or the Trial Chamber and, rarely, even the Appeals Chamber.

⁸² By establishing such a procedure, Regulation 108 fills a lacuna that was left by the drafters of the Statute and the Rules of Procedure and Evidence; Meißner, *Die Zusammenarbeit mit dem internationalen Strafgerichtshof nach dem Römischen Statut* (2002) 258 *et seq.*; the competence of the Court to authoritatively settle such a dispute is explicitly recognised in article 119 para. 1; Meißner, *ibid.*, 259; Sluiter, *International Criminal Adjudication and the Collection of Evidence: Obligation of States* (2002) 88; Ochoa (2007) 7 *ICLRev* 17 *et seq.*

- 52 In the course of considering general submissions made by the Government of Kenya with respect to its cooperation with the Court⁸³, TC V(B) specifically noted the requirements of Regulation 109(3) giving Kenya the right to be heard prior to any determination under article 87(7). The Chamber also recognized Kenya's entitlement to be notified of relevant filings and to submit responses in accordance with Regulations 24(1)⁸⁴ and 31⁸⁵ of the Regulations. However, it did not apply any of these Regulations in the circumstances as they were not factually relevant. Notwithstanding this finding, the Chamber went on to find that where allegations of non-cooperation on the part of a State are relied upon in support of a request for relief, hearing from the relevant State (in this case the Kenyan Government) may be of benefit to the Chamber's decision in the case and overall duty to ensure a fair and expeditious trial. The Trial Chamber noted that its finding was without prejudice to requests for confidentiality which may be made with respect to the filings. On this basis the Trial Chamber found that formal notification of filings should be given to Kenya and it went on to direct the parties and participants to do so⁸⁶. Given the Trial Chamber's inherent powers to call for submissions from States, as may be relevant on a case by case basis, the necessity for imposing a blanket requirement of this nature, which appears to benefit the Government of Kenya as opposed to the Court, is unclear.

3. Finding of a failure to cooperate and its legal consequences

- 53 The relevant phrase – in conjunction with article 112 para. 2 (f) – constitutes the core part of the paragraph as it deals with the consequences of a State Party's failure to cooperate. It is said that the Court may make a finding to that effect. Regulation 109, sub-regulations 1 and 2, of the Regulations of the Court specify the competent chamber or the chamber that has made the request for cooperation as the competent body to make the finding. Pursuant to Regulation 109, para. 3, the Chamber shall hear from the requested State before making the finding. The Appeals Chamber of the ICTY in its *Blaskić subpoena* judgment has elaborated on the meaning of the term 'finding' in the context of article 29 of the Tribunal's Statute⁸⁷ and there is no reason to deviate from its reasoning in the context of the Statute. Hereafter the finding of the Court constitutes the formal⁸⁸ establishment of the existence of an internationally wrongful act⁸⁹ of the non-cooperating State. The Appeals Chamber has added that the ICTY has no power to go beyond such a finding and the consecutive referral of the matter. In particular the Appeals judges held that the finding must not include any recommendations or suggestions as to the course of action the Security Council may wish to take⁹⁰. This, too, should apply *mutatis mutandis* with respect to the Court's finding under this paragraph.

⁸³ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11, Decision concerning the Government of Kenya's Submissions on its cooperation with the Court, TC V(B), 3 July 2013.

⁸⁴ While the reference is to 24(1) it is likely intended to as a reference to 24(3) which allows States participating in the proceedings to file a response to any document, subject to any order of the Chamber.

⁸⁵ This regulation provides for notice to participants of documents registered by the Registry.

⁸⁶ *Prosecutor v. Kenyatta*, ICC-01/09-02/11, Decision 3 July 2013, para. 14.

⁸⁷ *Prosecutor v. Blaskić*, AC Judgment of 29 Oct. 1997, paras. 35 *et seq.*

⁸⁸ The Appeals Chamber (*Blaskić* Judgment of 29 Oct. 1997, para. 35) stresses that the Court in making a finding 'engages in a judicial activity proper'.

⁸⁹ The Appeals Chamber (*Blaskić* Judgment of 29 Oct. 1997, para. 35) uses the language 'breach of an international obligation' which will be for almost all practical purposes equivalent with 'internationally wrongful act'. Still, the latter term seems to be more precise and Condorelli uses it (the translation of the French word 'illicite' by 'unlawful' instead of 'wrongful' is of secondary importance here) in its *amicus curiae* brief of 11 Apr. 1997, *sub* 6., which is quoted affirmatively by the Appeals Chamber.

⁹⁰ *Prosecutor v. Blaskić*, AC Judgment of 29 Oct. 1997, para. 36.

The vast majority of non-cooperation cases have arisen from the travel of President Al-Bashir. Malawi⁹¹, Chad⁹², and Democratic Republic of the Congo⁹³ have all been referred to the Security Council and the Assembly of States Parties for non-cooperation relating to the travel of President Al-Bashir to those States. In each case, the States in question were given an opportunity to be heard and the relevant Chambers went on to make specific findings of non-cooperation in accordance with article 87(7). In one other case relating to Djibouti⁹⁴—which was an early consideration of the issue by a PTC, though not the first— it does not appear that the matter was actually ‘referred’ to the Security Council or the ASP in accordance with article 87(7). In that instance, the decision of the PTC was a summary one which noted the travel of Al-Bashir to Djibouti, and the obligation to cooperate. In these circumstances, the PTC considered it appropriate to ‘inform’ the Security Council and the ASP in order for these bodies to take whatever measures considered appropriate. No specific finding of non-cooperation was made, nor was the term ‘refer’ or ‘referral’ mentioned in the decision. In the DRC case the argument, apart from those based on the immunity right of Sudan, was advanced that the notification of the delegations attending the COMSEA summit was made quite late, leaving the DRC authorities with little time to address what was a very ‘ambiguous and major situation’. The Court rejected that argument noting that the warrants for Mr. Al-Bashir had been communicated to the DRC four years before, such that this issue could not be categorized as a ‘surprise’ to the authorities of that State. Moreover, the Chamber rejected the argument that Mr. Al-Bashir had left the jurisdiction the day after the DRC received the notification of the need to arrest and surrender him. Again, in light of the transmission of the requests four years earlier, the Chamber was of the view that the timing of his departure was irrelevant. The obligation to arrest and surrender already existed as of the transmission of the request four years earlier and the subsequent decision was nothing more than a reminder of an already existing obligation. In so finding the Court expressed doubt as to the argument advanced that the regional organization had not provided advance notice of the delegation lists and that the protocol department was not informed in a timely manner of the visit of a Head of State.

A strikingly distinctive approach was taken by a different PTC in the case of purported non-cooperation by Nigeria. In that instance, the Chamber accepted the explanation proffered by the Member State Nigeria⁹⁵ and did not refer the matter to the Security Council or the ASP. In the particular case, Mr. Bashir had attended an AU summit in Nigeria and had done so without an invitation from Nigeria. The Nigerian authorities asserted that upon learning of his attendance, they were in the process of considering the steps to take to fulfill their international obligations when Mr Al Bashir chose to suddenly leave the country. The Court considered that in these circumstances it was appropriate to use its discretion not to refer the matter. While the circumstances vary slightly, it is difficult to reconcile these two disparate findings.

⁹¹ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 12 December 2011.

⁹² *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision pursuant to article 87(7) of the Rome Statute on the refusal of the Republic of Chad to comply with the cooperation requests issued by the Court with respect to the arrest and surrender of Omar Hassan Ahmad Al Bashir, PTC I, December 13, 2011; Decision on the Non-compliance of the Republic of Chad with the Cooperation Requests Issued by the Court Regarding the Arrest and Surrender of Omar Hassan Ahmad Al-Bashir, PTC II, 26 March 2013.

⁹³ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, PTC II, 9 April, 2014.

⁹⁴ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision informing the United Nations Security Council and the Assembly of the States Parties to the Rome Statute about Omar Al-Bashir’s recent visit to Djibouti, PTC I, 12 May 2011.

⁹⁵ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-159, Decision on the Cooperation of the Federal Republic of Nigeria Regarding Omar Al-Bashir’s Arrest and Surrender to the Court, PTC II, 5 September, 2013.

- 56 In two cases related to Abdel Raheem Muhammad Hussein⁹⁶, Pre-Trial Chambers opted not to make findings of non-compliance against Chad and the Central African Republic despite Mr. Hussein's travel to those jurisdictions and the failure of the authorities to arrest him. In the case of Chad, the PTC determined that the timing was such that Chad was not in a position to execute the Court's decision⁹⁷. In the case of CAR, the PTC took into account the 'lack of capacity of the relevant authorities to react due to the circumstances prevailing in the country and, more so, their inability to promptly take action, given the short visit of Mr. Hussein'⁹⁸. In both cases the Chambers did not deem it necessary to make a finding on non-compliance and chose to only remind the States of their obligations under the Statute.
- 57 There have been several cases where possible travel by Mr. Al-Bashir implicated a non-member State such that no obligation to cooperate existed as between that State and the Court⁹⁹. Nonetheless, in a decision relating to the USA, the Court considered the matter in light of the Security Council resolution which had referred the situation to the Court. Highlighting the fact that the Council had urged – though not mandated – cooperation from non ICC member States, the Court decided to remind the US of the warrants for Mr. Bashir and to invite his arrest if he entered US territory. In so doing, the Court noted that that 'the ICC has no enforcement mechanism and thus relies on the States' cooperation, without which it cannot fulfil its mandate and contribute to ending impunity'¹⁰⁰. Similar action was subsequently taken by a Pre-Trial Chamber with reference to Ethiopia¹⁰¹, Saudi Arabia¹⁰² and Kuwait¹⁰³. The Appeals Chamber has held¹⁰⁴ that it was not competent to make a finding on non-cooperation with reference to a request for arrest and surrender or a failure to consult contrary to article 97, given that both were pre-trial matters falling within the jurisdiction of the Pre-Trial Chamber.
- 58 In the Kenyatta case, the Trial Chamber was called upon to consider for the first time the issue of a request for a finding of failure to comply pursuant to article 87(7) with respect to a request for cooperation under article 93 (relating to other forms of cooperation rather than arrest and surrender). The TC issued three substantive decisions of note with respect to the Prosecution request for the production of evidence in the case. On 31 March 2014, the TC adjourned the provisional trial date and its consideration of the request for a finding of non-cooperation in order to allow further time for resolution of the cooperation issues¹⁰⁵. In reaching this conclusion, the Chamber made a number of interpretive findings on the Part 9 regime applicable to other forms of cooperation (as distinct from requests for arrest and surrender). After finding that a request for cooperation had been validly issued by the

⁹⁶ *Prosecutor v. Abdel Raheem Muhammad Hussein*, ICC-02/05-01/12, Decision on the Cooperation of the Republic of Chad Regarding Abdel Raheem Muhammad Hussein's Arrest and Surrender to the Court, PTC II, 13 November 2013 (Chad); ICC-02/0501/12, Decision on the Cooperation of the Central African Republic Regarding Abdel Raheem Muhammad Hussein's Arrest and Surrender to the Court (CAR), PTC II, 13 November 2013.

⁹⁷ The Chad authorities indicated they became aware of the presence of Mr. Hussein at a conference on their territory only on 27 April 2013 and they were not in a position to execute the April 26 2013 order of the Court relating to that visit as Mr. Hussein had left the country before the authorities of Chad became aware of it.

⁹⁸ *Prosecutor v. Muhammad Hussein*, ICC-02/0501/12, Decision, 13 November 2013 para 13.

⁹⁹ The exception being the State of Sudan which the Security Council obligated to provide full cooperation.

¹⁰⁰ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-162, Decision Regarding Omar Al-Bashir's Potential Travel to the United States of America, PTC II, 18 September 2013, para 12.

¹⁰¹ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Regarding Omar Al-Bashir's Potential Travel to the Federal Republic of Ethiopia and the Kingdom of Saudi Arabia, PTC II, 10 October 2013.

¹⁰² *Ibid.*

¹⁰³ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-169, Decision Regarding Omar Al-Bashir's Potential Travel to the State of Kuwait, PTC II, 18 November 2013.

¹⁰⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11 OA 4, Decision on the 'Request for an immediate finding of non-compliance and referral to United Nations Security Council, AC, 17 September 2013.

¹⁰⁵ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-908, 'Decision on Prosecution's applications for a finding of noncompliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, TC V (B), 31 March 2014.

Prosecution¹⁰⁶, the TC went on to consider the Prosecution request for a finding of non-cooperation under article 87(7) in light of Kenya's protracted non-compliance with the request. The TC noted initially that the procedure for non-cooperation findings and referrals under article 87(7), as set out in regulations 108 and 109(1), had not been followed in the case. However, the Chamber considered it to be in the interests of justice, in the particular circumstances of the case, to proceed with a consideration of the merits of the application¹⁰⁷. The Trial Chamber also dismissed the array of arguments advanced by the Government of Kenya as to why its domestic law did not permit the rendering of the assistance sought. The Chamber stated that 'any purported deficiency in domestic legal procedures (or interpretation thereof), cannot be raised as a shield to protect a State Party from its obligation to cooperate with the Court, or to undermine any application for non-compliance under article 87(7) of the Statute that may result'¹⁰⁸. This finding is consistent with the intent and structure of Part 9 and in particular article 88, which mandates that States Parties shall ensure that there are procedures available under their national law for all of the forms of cooperation which are specified in Part 9. Following on from this finding, the Chamber was of the view that Kenya had failed to consult with Court as required by article 97 as to the challenges with execution and with respect to its opinion on the lack of competence of the Prosecutor to present requests. Moreover, it noted with significant concern, the unexplained delay on the part of Kenya in either responding to the request or consulting on the challenges, which delay had led to the necessity for an adjournment of the proceedings¹⁰⁹.

The Chamber went on to consider the issue of an adjournment of the case as sought by the Prosecution, as well as the request for a finding of non-cooperation. In its analysis the Chamber noted the 'fundamental dependence' of the Court on the cooperation of States Parties and the effect of the failure to provide cooperation on the effectiveness of the Court. In this context the Court expressed the need to take all judicial steps possible to ensure cooperation by States Parties before making a finding of non-cooperation and referring the matter to the ASP¹¹⁰. After analysis, the Chamber granted the adjournment sought and at the same time, based on the reasoning as to the importance of State cooperation, deferred resolution of the application for a finding and referral under article 87(7) until after the adjournment period. As discussed above¹¹¹, the Chamber subsequently considered a revised request by the Prosecution, deciding on questions of specificity, relevance and necessity in July 2014¹¹².

The deferred question of the Prosecution request for a finding of non-cooperation and referral was decided upon by the Chamber in December 2014¹¹³. Despite its multiple previous references to the Kenyan government failure to comply and the unresolved cooperation request, the application for a finding and referral was rejected. In an astounding and deeply troubling decision, the TC has read in to Part 9 multiple exceptions to the cooperation obligation, significantly altering the careful balance achieved in the Statute construction and fundamentally undermining the cooperation obligation on State Parties to the Rome Statute.

The Chamber placed considerable emphasis on the discretionary nature of the decision to make a finding of non-cooperation and to refer a matter to the ASP. In its stated view, even if a State Party has failed to cooperate and has thus prevented the Court from exercising its

¹⁰⁶ See discussion under article 93(1).

¹⁰⁷ *Prosecutor v. Kenyatta*, ICC-01/09-02/1 1–908, Decision 31 March 2014, para 45.

¹⁰⁸ *Prosecutor v. Kenyatta*, ICC-01/09-02/1 1–908, Decision 31 March 2014, para 47.

¹⁰⁹ *Prosecutor v. Kenyatta*, ICC-01/09-02/1 1–908, Decision 31 March 2014, paras 48–51.

¹¹⁰ *Prosecutor v. Kenyatta*, ICC-01/09-02/1 1–908, Decision 31 March 2014, para 91.

¹¹¹ *Prosecutor v. Kenyatta*, ICC-01/09-02/1 1–908, Decision 31 March 2014, paras 98–102.

¹¹² *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-937, Decision on the Prosecution's revised cooperation request, TC V (B), 29 July 2014.

¹¹³ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-937, Decision on Prosecution's application for a finding of non-compliance under Article 87(7) of the Statute, TC V(B), 3 December 2014.

functions and powers under the Statute, the Court still has to positively determine whether a finding under article 87(7) is appropriate in the circumstances¹¹⁴.

- 62 Further, the the Chamber goes on to ‘read in’ a requirement for non-compliance with a request to cooperate to meet some form of undefined ‘threshold’ before it constitutes a failure to comply under article 87(7). While reference is made to trivial or technical failures, as an example, the analysis leading to the adoption of the requirement is devoid of clarity and appears unsupported by the plain language of article 87(7). More alarming is the Chamber’s suggestion that in the face of some compliance and explanations from a State, a presumption of good faith will apply which would have to be rebutted for a finding of non-cooperation to be made¹¹⁵. This statement undermines fundamentally the vertical structure of Part 9 by allowing a State to offer partial compliance and explanations of its ‘challenges’ in place of the required full cooperation with a request. It is a puzzling proposition in light of the structure and content of Part 9 of the Statute.

- 63 The Chamber also interprets article 87(7) as allowing for consideration of a demonstrated lack of capacity or ability as a justification for non-compliance with a request¹¹⁶. Given that States voluntarily accept the obligations under the Rome Statute, including Part 9, in becoming State Parties, it is an astonishing proposition that they would then be allowed to plead lack of capacity or ability in response to a breach of their treaty obligation in a particular case.

The Trial Chamber moved on to apply the general principles it had defined to the facts of the case before it. After a lengthy factual discussion which only serves to highlight the extensive non-cooperation on the part of the Government of Kenya, the Chamber makes a clear finding that the approach of the Kenyan Government ‘falls short of the standard of good faith cooperation required under article 93 of the Statute’ and that ‘this failure has reached the threshold of non-compliance required under the first part of article 87(7) of the Statute’¹¹⁷. It also determined that ‘the Kenyan Government’s non-compliance has not only compromised the Prosecution’s ability to thoroughly investigate the charges, but has ultimately impinged upon the Chamber’s ability to fulfil its mandate under article 64, and in particular, its truth-seeking function in accordance with article 69(3) of the Statute’¹¹⁸.

- 64 Nonetheless, relying on its discretion, the Chamber goes on to consider the appropriateness of such a finding in the particular case. It purports to be guided first by the object and purpose of the finding and referral process though it fails to articulate the same beyond veiled references to possible rationales for the provisions¹¹⁹.
- 65 Examining these possibilities, the Chamber admits a rationale for referral might be to ‘further the proceedings’. However it finds that consideration to be moot in the particular case, given the Chamber’s parallel decision refusing to grant a further adjournment of the trial¹²⁰. This finding was evidently misplaced in that it pre-judged the Prosecution decision whether to withdraw or notify that the evidence supported proceeding to trial¹²¹. Moreover,

¹¹⁴ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 39.

¹¹⁵ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 40.

¹¹⁶ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 41.

¹¹⁷ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 78.

¹¹⁸ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 79.

¹¹⁹ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 82 (‘The Chamber notes that, for the purpose of enhancing the work of the Court, one of the primary rationales for making such a finding and a referral **might be** to further the proceedings in the main case, by, for example, securing compliance with the cooperation requests at issue.’ emphasis added); para 84 (‘The Chamber acknowledges that there **might be** situations where referral as a disciplinary measure is warranted, and that such a referral **might** also indirectly **enhance** the work of the Court by, for example, promoting future cooperation, or cooperation more generally.’) [emphasis added].

¹²⁰ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, paras 82 and 83.

¹²¹ While the Chamber made the statement that this finding was ‘without prejudice to a situation where the Prosecution might notify the Chamber that the evidentiary basis has improved to a degree which would enable the case to now proceed to trial’ it gave no indication how in practice such prejudice would be avoided given the determination on mootness had already been made.

it is difficult to understand the Chamber's logic in allowing a separate determination as to the state of the proceedings, to influence its decision as to whether the non-cooperation of the Kenyan government should be referred to the ASP. Such an approach appears to make non-cooperation acceptable in certain contexts. The Chamber also significantly minimizes the obvious and important rationale for the finding and referral process – sanctioning non-compliance in order to promote future cooperation by that State and cooperation with the Court generally. The Chamber acknowledged only that 'there might be situations where referral as a disciplinary measure is warranted, and that such a referral might also indirectly enhance the work of the Court by, for example, promoting future cooperation, or cooperation more generally'¹²². For the Chamber, this would be especially warranted where the non-cooperation and breach of international obligations was of a 'serious nature' though it provided no explanation as to how a distinction should be drawn between serious and non-serious conduct. Most astoundingly, without rationale, the Chamber held that an assessment as to whether the referral was merited on this basis should take into account the conduct of the State and that of the party requesting the referral¹²³. As this discretionary assessment takes place after determinations that a request for cooperation was properly made, a State has failed to comply and the non-compliance has prevented the Court from exercising its functions and powers, it is difficult to perceive how the conduct of the party seeking referral could have any possible relevance to the referral decision under article 87(7).

Applying that reasoning on the facts of the case, the TC points to its concerns about the Prosecution's conduct of the investigation and its pursuit of cooperation under the request, as the primary consideration in assessing whether Kenya's non-cooperation should be referred. In fact, while the Court purports to have considered the full record in its analysis, the only factors explicitly referenced are those relating to the actions of the Prosecution, making this the central consideration in the Court's determination not to refer the non-cooperation of the Government of Kenya to the ASP¹²⁴. While an evident purpose of article 87(7) is to sanction non-compliance of States, the Chamber has in essence used the refusal of a referral as a form of sanction against the Prosecution for its perceived failings.

From a practical point of view, whatever the rationale of the Chamber, in the face of the blatant, repeated and lengthy non-cooperation record on the part of the Government of Kenya as detailed by the Chamber itself, the decision constitutes an invitation to that State Party and others to follow a similar obstructive course in future cases. If the decision stands, the damage to the cooperation structure of the Rome Statute, which is central to the investigative capacity of the Prosecutor, will be extensive. On 19 August 2015 in Judgement on Prosecution appeal against TC V(b)'s Decision on Prosecution application for a finding of non-compliance under 87(7) of the Statute (ICC 01/09-11 OA 5, 19 August 2015) the Appeals Chamber referred the matter back to the Trial Chamber for a reconsideration.

If the matter was referred to the Court by the Security Council the comments made above concerning paragraph 5¹²⁵ apply. The Assembly of States Parties would not appear to be precluded from taking action as long as it does not conflict with a Security Council decision. According to Regulation 109, sub-regulation 4, the President is the competent body to refer the matter to the bodies concerned. The President shall so refer; there is thus no discretion once a finding has been made by the competent Chamber.

In all other cases the President shall refer the matter to the Assembly of States Parties only. As in the case of article 87 para. 5 article 112 para. 2 (f) remains silent about the course of action the Assembly of States Parties may wish to take. Given this lack of detailed provisions reference must be made to the general customary international law on State responsibility as reflected in the ILC Articles. The obligations under Part 9 of the Statute (concretized and

¹²² *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 84.

¹²³ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, para 84.

¹²⁴ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-937, Decision 3 December 2014, paras 85–88.

¹²⁵ See mn 31, 32.

activated by a Court's request) exist *erga omnes partes*.¹²⁶ As a consequence the Assembly of States Parties is entitled to ask for immediate compliance with the Court's request and may condemn the State Party's failure. It may go beyond this and consider the appropriateness of collective countermeasures, such as economic sanctions, against the non-cooperating State¹²⁷. By contrast, the termination of the treaty *vis-à-vis* the non-cooperating State is not an option given its integral nature and its overall humanitarian goal.

70 To date, neither the ASP nor the Security Council has taken any action in response to the situations of non-cooperation referred by the Court. This inaction represents perhaps the most significant blow to the effectiveness of the cooperation regime of the Rome Statute and correspondingly to the efficacy of the Court itself.

71 It is not an easy to answer the question, whether and to what extent a State Party may react individually to the failure to cooperate. The combined effect of article 87 para. 7 and article 112 para. 2 (f) certainly is to give priority to any collective reaction¹²⁸. The legal situation is less clear, however, in case the Assembly of States Parties does not reach the necessary majority to recommend an adequate collective measure to end the internationally wrongful act. One possible view would be that a State Party individually cannot go beyond the Assembly's recommendations. This would, for instance, exclude an individual countermeasure in the absence of a recommendation of the Assembly to that effect. Part 9 would hereby be construed as a partly self-contained regime as to the legal consequences of the relevant internationally wrongful acts. This interpretation, however, is by no means, a necessary one. It is at least as well arguable that failing the necessary collective response channeled through the Assembly of States Parties general customary international law applies. This would – as a last resort – include the adoption of individual countermeasures.¹²⁹ On the basis of the latter interpretation there would not be any deviation from the cooperation regime under article 89 of the First Add. Prot. to the Four Geneva Conventions. According to this provision States may act 'jointly or individually'.

¹²⁶ Article 48 para. 1 (a) of the ILC Articles (Crawford, ILC's Articles on State Responsibility (2002), p. 276).

¹²⁷ Cf. the *Blaskić subpoena* judgment of the Appeals Chamber (AC Judgment of 29 Oct. 1997, para. 36 (ii)). For the general limitations of countermeasures see articles 49 et seq. of the ILC Articles (Crawford, ILC's Articles on State Responsibility (2002), p. 71 et seq.).

¹²⁸ Cf. the reserved position of the Appeals Chamber in its *Blaskić subpoena* judgment (AC Judgment of 29 Oct. 1997, para. 36).

¹²⁹ The ILC has refrained from taking a stand on this issue; cf. paras. 6 and 7 of the commentary on article 54; Crawford, ILC's Articles on State Responsibility (2002), p. 305.

Article 88

Availability of procedures under national law

States Parties shall ensure that there are procedures available under their national law for all of the forms of cooperation which are specified under this Part.

Literature: Brady, H., 'Australia', in: C. Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 13; Broomhall, B. and Kreß, C., 'Implementing Cooperation Duties under the Rome Statute: A Comparative Synthesis', in: C. Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 515; Kreß, C., Lattanzi, F., Broomhall, B. and Santori, V. (eds.), *The Rome Statute and Domestic Legal Orders*. Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005); Paust, J.J., 'The Freeing of Ntakirutimana in the United States and 'Extradition' to the ICTR', (1998) 1 *YbHumL* 205; Prost, K. and Robinson, D., 'Canada', in: C. Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 57; Sluiter, G., 'To cooperate or not to cooperate?: The Case of the Failed Transfer of Ntakirutimana to the Rwanda Tribunal', (1998) 11 *LeidenJIL*383.

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A. Introduction/General remarks

Article 88 was a new provision inserted into the Statute during the Rome negotiations. It was an intricate part of the compromise achieved to resolve a critical issue in Part 9 – whether or not there should be a reference to national law in the cooperation provisions. The division of views on this particular question paralleled the position of States on the fundamental issue of whether the Statute should reflect a *horizontal* or *vertical* approach to cooperation¹. The question of national law was left to be resolved at the Rome negotiations, as is evidenced by the bracketed references to national law, procedures under national law and national procedural law in the Draft Statute articles 87 and 90². It was one of the last issues to be resolved in this Part and it was the subject of lengthy debates within the working group and sub-groups which considered the relevant articles.

States in favour of a *horizontal* approach to cooperation were of the view that compliance with the obligations should be in accordance with and ultimately, subject to national law, giving the requested State control and the 'final say'. States which supported a *vertical* approach, held the view that the requests of the Court should be executed essentially as if the Court was the extension of national authority. Control of the process would rest with the Court. This fundamental dissent underpinned the debate on this issue. On a practical level, most States were prepared to acknowledge that procedures under national law would have to be resorted to in order to meet the obligations of the Statute. However, there was concern that an express reference to national law or procedures could at the same time allow States to provide less than full cooperation to the Court. This concern was not limited to States which might apply the provisions in bad faith but also to those States which might

¹ See Preliminary Remarks on Part 9, mn 5.

² UN Doc. A/CONF.183/2/Add.1 (1998), pp. 159 and 170.

legitimately interpret such a reference as allowing for limitations on the kind or extent of assistance on the basis of national law³.

- 3 The compromise achieved, in the very late stages of the process, was to state in articles 89 and 93 that the obligation to comply with requests would be carried out ‘in accordance with the provisions of this Part and under the procedures of national law’. This phrasing, which was carefully crafted, emphasizes that procedures are to be used to meet, not to defeat, the obligation to comply with requests. In addition, to avoid any misuse or misunderstanding of these references, the compromise mandated the inclusion of article 88. This provision, inspired by article 5 para. 3 of the *United Nations Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances*⁴, is intended to ensure that States Parties have procedures under their national law for all the forms of cooperation specified in Part 9. It makes it clear that a State Party cannot use the absence of procedures under national law to refuse a request. Through this combined conclusion, a balance was achieved which recognizes the use of national procedures to effect cooperation but clarifies that the obligation to cooperate is the same for all States Parties and that it cannot be qualified through domestic law.

B. Analysis and interpretation of elements

1. Ensurance that there are procedures available under national law

- 4 This phrase requires States Parties to review their national law and procedures and where necessary, introduce through legislation, treaty implementation or administrative practice, procedures in their domestic regimes to meet the cooperation obligations. Thus while a State can resort to domestic court orders or process to arrest a person for surrender to the Court in response to a request under article 89 or to execute a search in response to a request under article 93, they must have the capacity under their domestic law for the arrest or search. By virtue of this provision, a State Party could not for example refuse to execute a request from the Court on the basis that search and seizure is not recognized or permitted under domestic law or that there is no procedure in place for arrest of a person sought by the Court⁵. The Court has confirmed this view in the following terms:

‘Any purported deficiency in domestic legal procedures (or interpretation thereof), cannot be raised as a shield to protect a State Party from its obligation to cooperate with the Court, or to undermine any application for non-compliance under Article 87(7) of the Statute that may result.’

This finding is consistent with the intent and structure of Part 9 and in particular article 88 which mandates that States Parties shall ensure that there are procedures available under their national law for all of the forms of cooperation which are specified in Part 9.⁶

2. All forms of cooperation specified under this Part

- 5 The obligation under article 88 is applicable to all the forms and measures of cooperation specified in Part 9 both with respect to surrender of persons and to the other forms of assistance. The word ‘specified’ was deliberately chosen to include all of the measures detailed in the Part, excluding those which are not particularized, such as the additional assistance provided for in article 93 para. 1 (l).

³ See the analyses by Paust (1998) *YbHumL* 205, and Sluiter (1998) *LeidenJIL*383, of a case of failure to cooperate with the ICTR. Here the failure was clearly not due to an interpretation in bad faith of the pertinent provision of the Tribunal’s Statute but to obstacles on the national level.

⁴ UN Doc. E/CONF.82/15.

⁵ See however article 93 para. 3 which permits a State to raise concerns about a request where in the particular circumstances of the case the action may be prohibited on the basis of a fundamental legal principle.

⁶ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-908, Decision on Prosecution’s applications for a finding of non-compliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, 31 March 2014, para. 47 <<https://www.legal-tools.org/doc/c2209e/>>.

C. Subsequent practice

In the meanwhile a good number of States Parties have adopted legislation implementing Part 9⁷ and, by and large, this legislation is in conformity with the text and spirit of the provisions in Part 9⁸. The one exception of Australia confirms this (positive) rule: the latter State Party's claim to retain 'absolute discretion' in dealing with ICC requests⁹ is fundamentally at odds with the premise that an ICC request under Part 9 is directed at States Parties as a matter of legal right, and therefore cannot be rejected by national authorities either in an unfettered exercise of sovereign discretion or following their own legal reassessment.

The overwhelming majority of States Parties¹⁰ have decided to adopt legislation which is in substance clearly distinct from existing laws on inter-State mutual legal assistance in criminal matters. This widespread preference for distinct ICC implementing legislation must be commended since it will, firstly, help national authorities to apply the provisions of such laws in a Court-friendly spirit and because it will, secondly, be easier to improve or adjust such laws in light of ICC case law or any new insights that might arise.

What is less clear at this stage is whether the procedures that states are employing to respond to requests have been simplified to the extent desirable. Some states have chosen to streamline the procedure by eliminating the 'dual' nature of the traditional cooperation procedure i.e. executive and judicial (France, Georgia, Spain, Switzerland).¹¹ This is a good way to ensure a direct process for addressing requests from the ICC. States that choose to stick to a two step procedure should reduce the executive stage to one of coordination so that only one decision remains to be taken. That decision should be judicial in nature and must not include traditional elements of (foreign policy guided) discretion.

⁷ In many cases, however, implementing legislation remains to be enacted.

⁸ See Broomhall and Kreß, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders* (2005) 515.

⁹ Sections 22 and 181 of the ICC Cooperation Act; Brady, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders* (2005) 13, 14.

¹⁰ Canada is the exception; see Prost and Robinson, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders, Vol. II: Constitutional Issues, Cooperation and Enforcement* (2005) 57, 58.

¹¹ Broomhall and Kreß, in: Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders* (2005) 515, 542.

Article 89

Surrender of persons to the Court

1. The Court may transmit a request for the arrest and surrender of a person, together with the material supporting the request outlined in article 91, to any State on the territory of which that person may be found and shall request the cooperation of that State in the arrest and surrender of such a person. States Parties shall, in accordance with the provisions of this Part and the procedure under their national law, comply with requests for arrest and surrender.
2. Where the person sought for surrender brings a challenge before a national court on the basis of the principle of *ne bis in idem* as provided in article 20, the requested State shall immediately consult with the Court to determine if there has been a relevant ruling on admissibility. If the case is admissible, the requested State shall proceed with the execution of the request. If an admissibility ruling is pending, the requested State may postpone the execution of the request for surrender of the person until the Court makes a determination on admissibility.
3. (a) A State Party shall authorize, in accordance with its national procedural law, transportation through its territory of a person being surrendered to the Court by another State, except where transit through that State would impede or delay the surrender.
(b) A request by the Court for transit shall be transmitted in accordance with article 87. The request for transit shall contain:
 - (i) A description of the person being transported;
 - (ii) A brief statement of the facts of the case and their legal characterization; and
 - (i) The warrant for arrest and surrender;
(c) A person being transported shall be detained in custody during the period of transit;
(d) No authorization is required if the person is transported by air and no landing is scheduled on the territory of the transit State;
(e) If an unscheduled landing occurs on the territory of the transit State, that State may require a request for transit from the Court as provided for in subparagraph (b). The transit State shall detain the person being transported until the request for transit is received and the transit is effected; provided that detention for purposes of this subparagraph may not be extended beyond 96 hours from the unscheduled landing unless the request is received within that time.
4. If the person sought is being proceeded against or is serving a sentence in the requested State for a crime different from that for which surrender to the Court is sought, the requested State, after making its decision to grant the request, shall consult with the Court.

Directly relevant Rules of Procedure and Evidence: Rules 181 to 185.

Literature: See Preliminary Remarks on Part 9; Bassiouni, M.C., 'Reflections on International Extradition', in: K. Schmoller (ed.), *Festschrift für Otto Triffterer* (1996) 715; Kushen, R. and Harris, K.J., 'Surrender of Fugitives by the United States to the War Crimes Tribunals for Yugoslavia and Rwanda', (1996) 90 *AJIL* 510; Sluiter, G., 'The Surrender of War Criminals to the International Criminal Court', (2003) 25 *LoyLAIE&CLRev* 605; *id.*, 'To cooperate or not to cooperate?: The Case of the Failed Transfer of Ntakirutimana to the Rwanda Tribunal', (1998) 11 *LeidenJIL* 383; Tanaka, T., 'Implementation of International Criminal Law – Reconsideration from the Perspective of Japanese Law', (1995) 38 *JapaneseAnnIL* 65; Young, S.N.M., 'Surrendering the Accused to the International Criminal Court', (2000) 71 *BYbIL* 317.

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A. Introduction/General remarks

Article 89 deals with the surrender of persons to the Court and is certainly one of the key provisions of the Statute. Paragraph 1 contains the pivotal obligation for States Parties to comply with requests by the Court for arrest and surrender of persons. The crucial question in the course of the negotiations was whether this obligation should be qualified by grounds for refusals. In the end no such ground has been retained *stricto sensu*. This makes the obligation to surrender a rigid one. Still, some of the State concerns behind grounds for refusals are met in different ways throughout Part 9 so that article 89 para. 1 has to be read in conjunction with a number of other provisions.

Article 89 paras. 2 and 4 offer examples for alternative techniques of dealing with state interests which may conflict with the duty to surrender a person to the Court. Paragraph 2, a provision which is intimately linked with Part 2 of the Statute, allows the requested State to postpone the execution of a request for surrender in case an admissibility ruling is pending. Paragraph 4 offers the requested State the possibility to enter into consultations with the Court in case of parallel national proceedings for a crime different from that for which surrender to the Court is sought.

Paragraph 3 is not directly related to the obligation of a State to surrender a Person to the Court but deals with a practical question regarding the execution of a request for surrender. More specifically, it covers the situation where the surrender entails the need for transportation of the person sought through another State.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Transmission of requests for the arrest

The first sentence of paragraph 1 must be read in conjunction with article 58 which lays down the requirements for the issuance of a warrant of arrest by the Trial Chamber. As is the

case in article 58 para. 5 the use of the word 'may' can be seen as the indication that the Court retains a measure of discretion in whether or not to transmit a request for the arrest and surrender. On the other hand, the sentence continues in saying that the Court 'shall request' the cooperation of the State concerned. As a general rule, the Court will transmit a request to any State on the territory of which the person sought may be found once the Trial Chamber has issued a warrant of arrest under article 58¹. Concerning the material supporting the request article 89 para. 1 refers to article 91 as the pertinent provision of the Statute. Finally, the term 'State' is used here to recognize that the Court has the power to transmit requests to all States – States Parties and non-States Parties. This is in contrast to the next sentence, which imposes obligations on States and is therefore limited in application to States Parties.

Pursuant to the first sentence of Rule 176, sub-rule 2, the Registrar is the competent organ of the Court to transmit a request for the arrest and surrender, the relevant Pre-Trial Chamber being the competent organ to make the request². While the latter competence is specified neither in article 89 para. 1 nor in article 58 para. 5, it follows from a systematic interpretation of the pertinent provisions. In particular, the Pre-Trial Chamber is the only competent organ to issue and amend a warrant of arrest³ and to deal with the national authorities of the requested State concerning any incident which might affect the surrender of the person to the Court once arrested. The Pre-Trial Chamber is also the only organ of the Court in a position to thoroughly follow up on the execution of cooperation requests for both arrest and surrender of the relevant person.⁴ Furthermore, rule 184 recognizes the Registrar's competence to deal with the requested State regarding the arrangements of surrender.

2. Compliance with requests for arrest and surrender

- 5 The second sentence of paragraph 1 contains one of the most important obligations for States Parties. At this juncture there was sharp opposition between advocates for the horizontal and vertical approach⁵ about the question of grounds for refusal. Consequently, the negotiations on the precise scope of the obligation to surrender were lengthy and complicated. When the Preparatory Committee concluded its work it had already become clear, though, that some of the traditional inter-state grounds for refusal could not even conceived of being retained in the Statute. The most obvious example in this respect was probably the political offence exception⁶.

Yet, article 87 para. 3 *Option 2* of the Draft Statute⁷ still contained quite a long list of grounds for refusal. In short, the candidates are as follows: 'Non acceptance of the Court's

¹ In *Prosecutor v. Ahmad Muhammad Harun and Ali Muhammad Ali Abd-Al-Rahman*, ICC-02/05-01/07-1, Decision on the Prosecution Application Under article 58(7) of the Statute, 27 Apr. 2007, pp. 56 *et seq.*, the Registrar is instructed to transmit the request for arrest and surrender to 'all States Parties to the Statute' and to 'all United Nations Security Council members that are not States Parties to the Parties'; it is neither explained in this decision nor apparent how this broad circulation can be reconciled with the limitation regarding the possible addressees of a request contained in article 89 para. 1.

² Situation in the Democratic Republic of the Congo in the Case of the *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Decision concerning Pre-Trial Chamber I's Decision of 10 February 2006 and the Incorporation of Documents into the Record of the Case against Mr Thomas Lubanga Dyilo, 24 Feb. 2006, para. 117; the first sentence of rule 176, sub-rule 2, does not suggest that the Pre-Trial Chamber has any discretion to delegate its competence to make the request for arrest and surrender and the ensuing transmission competence of the Registrar to the Prosecutor; yet, Pre-Trial Chamber II held that the delegation to the Prosecutor of the competence to transmit the request is possible in case of 'specific and compelling circumstances' (*Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo and Dominic Ongwen*, ICC-02/04-01/05-1-20, Decision on Prosecutor's Application for Leave to Appeal in part Pre-Trial Chamber II's Decision on the Prosecutor's Applications for Warrants of Arrest under Article 58, 19 Aug. 2005, p. 6). The Chamber did not give reasons for its position, nor did it indicate what could be 'specific and compelling circumstances'; in para. 119 of its above cited decision, PTC I left open whether it would endorse the exception in question.

³ See article 58 paras. 1 and 6.

⁴ See article 59 para. 6 and rule 117, sub-rules 2 to 5.

⁵ See Preliminary Remarks on Part 9, mn 5.

⁶ Cf. article 3 (a) of the UN Model Treaty on Extradition, UN Doc. A/CONF.144/28/Rev.1, p. 67.

⁷ UN Doc. A/CONF.183/2/Add.1, pp. 159 *et seq.*

jurisdiction by the requested State', 'the person sought is a national of the requested State', 'parallel national proceedings', 'the request does not meet the evidentiary requirements of the requested State', 'conflicting international obligations'. All these candidates were the object of intensive discussion. In every case it was asked whether it was possible to dispose of the respective ground for refusal without any substitute or whether there was a need to meet the State concern behind the respective ground for refusal in some other form.

The solutions finally arrived at vary from one case to the other. It follows that the precise scope of the obligation to surrender can only be ascertained by reading article 89 para. 1 together with article 89 para. 2 and para. 4, article 90, article 91 para. 2 (c) in conjunction with paragraph 4 and article 98. This interrelation is alluded to by the words 'in accordance with the provisions of this Part'.

Article 89 paras. 2 and 4 deal with the problem of parallel proceedings at the national level. Whereas the former paragraph brings the obligation to surrender in line with the principle of *ne bis in idem* as contained in article 20 of the Statute the latter paragraph covers the case of national proceedings for a crime different from that for which surrender to the Court is sought⁸.

Articles 90 and 98 contain the different hypotheses of (real or apparent) conflicting obligations for the requested State⁹.

Article 91 para. 2 (c) in conjunction with paragraph 4 relates to national evidentiary requirements for surrender¹⁰.

None of the cases mentioned gives a ground for refusal *stricto sensu*. Instead, the respective rules, varying in form and degree, provide for means to take State concerns into account without putting the obligation to surrender as such in question.

By contrast to the hypotheses referred to in mn 7 to 9, no means at all was found to be compatible with the principle of effective cooperation that could have accommodated the State concerns behind a ground for refusal to surrender a national. Thus the fact that the person sought is a national of the requested State does not afford that State a ground for refusal; nor does Part 9 provide for any substitute for such ground¹¹.

Finally, the original supporters of the Draft Statute's option of a ground for refusal in case of non acceptance of the Court's jurisdiction did not insist on its inclusion in Part 9 once the decision for a regime of automatic jurisdiction was taken in Part 2 of the Statute¹². In a somewhat less obvious form the problem subsists as article 124 introduces a qualified form of a seven year limited opt-out regime into the Statute. To the extent that this regime applies in a given case, inevitably, no obligation to cooperate exists. It appears, though, this is not so much a question of a ground for refusal to cooperate but rather a consequence from the general limitation of the Court's competence to request the cooperation of States Parties as alluded to in article 86¹³.

The fairly rigid obligation of States Parties to surrender under article 89 para. 1 resulting from the foregoing considerations may be seen as a focal point in a long historical evolution towards what has been called 'a duty to extradite for international crimes' in the state to state context¹⁴. In response to an order by the Pre-Trial Chamber, the Registry in the case of Omar Al Bashir prepared and transmitted a request for his arrest and surrender to all States Parties¹⁵. The Pre-

⁸ For a more detailed account see mn 15 *et seq.* and 33 *et seq.*

⁹ Cf. commentary *infra*.

¹⁰ Cf. commentary *infra*.

¹¹ For a more detailed account of the negotiations on this difficult question, see Kreß/Prost, *article 102*; for a misunderstanding of the legal situation, see Knoops, *Surrendering to International Criminal Courts: Contemporary Practice and Procedures* (2002) 216–217.

¹² See Zimmermann, *article 5*, mn 1 and Williams and Schabas, *article 12*, mn 1.

¹³ See Kreß/Prost, *article 86*, mn 11.

¹⁴ Bassiouni, in: Schmoller (ed.), *Festschrift für Otto Triffterer* (1996) 728 *et seq.* It is not possible to qualify this duty with respect to certain types of the Statute's core crimes (cf. for such an argument in the context of the ICTY T. Tanaka (1995) 38 *JapaneseAnnIL* 80 *et seq.*

¹⁵ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Request to all State Parties to the Rome Statute for the Arrest and Surrender of Omar Al Bashir, Registrar, 6 March 2009.

Trial Chambers have established this practice in the cases relating to Sudan and Libya, apparently as a result of the expectations arising from the Security Council reference and the possible travel of Al-Bashir as a Head of State or other government officials who are the subject of warrants. It appears that for other persons subject to arrest warrants, more targeted requests for arrest and surrender have been transmitted.

- 14 The Court has indicated that generally the States which reply to such requests advise that they have taken the necessary measures to arrest the person subject to an ICC arrest warrant, **in the event** that s/he enters their territory. Some States do not reply but the assumption is made that they too will take such appropriate measures.
- 15 While of limited application, this practice of Pre-Trial Chambers ordering – and the Registry transmitting – requests for arrest and surrender routinely to all States Parties to the Rome Statute, without regard to whether there is a basis to believe that the individual sought is, or will be found, on the territory of that State, is concerning.
- 16 Specifically it is a process which is contrary to the clear intent of article 89 and it is prejudicial to the cooperation structure for arrest and surrender and under Part 9 generally. The first two sentences of paragraph 1 of this Article are interrelated with the aim being that the transmission of a request for arrest and surrender would trigger the obligation on the State Party to comply with the request by locating, arresting and surrendering the individual sought.
- 17 As discussed, one of the most significant achievements in Part 9 was the elimination of all grounds of refusal for a request by the Court for arrest and surrender. The consequential expectation was that the transmission of the request would result in arrest and surrender, unless technical problems were encountered – such as those set out in article 97 – necessitating consultations with the Court. Evidently, however, the aim was not to trigger the obligation and generate consultations with 122 States, which were unable to execute the request because the person sought was not located in, or en route to, that State.
- 18 While some State Parties do respond to these requests, others do not and that is a practice which clearly undermines the strength of the cooperation obligation. It also allows a State which actually has custody of the individual to argue that transmission of the request alone does not trigger any obligations.
- 19 Paralleling State to State extradition practice, the scheme as envisaged was intended to place a real and urgent obligation on the State Party receiving a request to take action to find arrest and surrender the individual sought by the Court. The assumption was that the request would not be transmitted to trigger that requirement unless there was reason to believe the individual sought was present or would soon arrive in that State. Obviously, in cases where the whereabouts of the person sought is unknown, it would be reasonable for the Court to transmit the request to more than one State. However, even in these circumstances, only where there is a realistic prospect that the individual will be found in that State should the obligation be engaged.
- 20 Admittedly, this practice has been of practical value with respect to the situations of non-cooperation which have arisen. For example, in the Decision on the Non-Cooperation of the DRC, the PTC was able to point to the transmission of the requests for arrest and surrender for Al-Bashir years earlier to rebut the argument that there was insufficient time for the DRC to react to his presence in that State¹⁶.
- 21 However, if the aim of the transmission of the request is to put State Parties on notice, there are a number of methods which could be used to accomplish that goal without endangering the scheme under Part 9. The Registry could devise a system for ‘notifications’ of an arrest warrant to be sent to all relevant States. Arrangements could also be made to use the Interpol notice system.
- 22 Further, the entire purpose of the scheme for provisional arrest set out in Article 92 is to address urgent cases where the arrest needs to be carried out on short notice. Even if a State

¹⁶ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, PTC II, 9 April 2014, para 14.

is not put on notice at the time of the issuance of the warrant, an immediate request for a provisional arrest can be made when information comes to light indicating that the individual might be present in that State. All of these approaches would allow for States to be put on notice or be required to take urgent action without the necessity of global transmission of the request for arrest and surrender contrary to the intent of Part 9.

Arguments against this policy were advanced – for similar reasons – by the Prosecution in the case of the arrest warrants for Muammar Gaddafi, Saif Gaddafi, and Abdullah Al-Senussi without success¹⁷. However, in a welcome development, in the case of Warrant of arrest for Abdallah Banda Abakaer Nourain¹⁸ TC IV took a more limited approach in a case related to the situation in Darfur instructing that the warrant be sent to Sudan and any other State which may be appropriate (States where there is a basis to believe the individual might be found) as opposed to all States Parties. The Chamber also specifically directed the the Registry, in coordination with the prosecution, to prepare a request for transit and for provisional arrest which could be transmitted to any relevant state. This approach reflects the content and intent of Article 89 and Part 9 more generally.

3. Accordance with procedure under national law

This part of sentence 2 forms part of a compromise package and must be read in close conjunction with article 88. From the wording itself and from the systematic interplay with article 88 the three following points can be deduced. First, this part of the second sentence of paragraph 1 concerns exclusively procedure and not substantive law. Second, national procedures will have to be resorted to in order to execute a request for surrender. This is in no way prejudicial per se to effective cooperation and was, therefore, not questioned even by the adherents of a strict vertical approach to cooperation¹⁹. Third, national procedures must be used to meet, not defeat, the obligation to comply with a request to surrender. This is the necessary result of a combined interpretation of the reference to procedure under national law in point and article 88.

4. Surrender arrangements

While article 89 creates the essential obligation for States to comply with requests for arrest and surrender it does not address any of the details concerning the surrender itself and in particular the arrangements for it. This is picked up in rule 184 which sets out the relevant details of the surrender process²⁰. The procedure begins with an immediate notification to the Registrar by the State when the person is ready to be removed. The timing and manner of surrender will be worked out and will proceed as agreed. If for some reason surrender does not take place by the agreed date, new arrangements will be made and proceeded with. There will be ongoing communication by the Registrar throughout the surrender process.

5. Post surrender release other than under article 107 and the question of ‘re-surrender’

Rule 185 resulted from one of the most difficult and complex discussions in the negotiation of the Rules of Procedure and Evidence²¹. The challenge with it arose from the fact that

¹⁷ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11, Prosecutor’s Application Pursuant to Article 58 as to Muammar Mohammed Abu Minyar Gaddafi and Abdullah Al-Senussi, Prosecutor, 16 May 2011, paras 65–67.

¹⁸ *Prosecutor v. Abdallah Banda Abakaer Nourain*, ICC-02/05-03/09, Warrant of arrest for Abdallah Banda Abakaer Nourain, PTC I, 11 September 2014, paras 26 (iv) and (v).

¹⁹ Cf. Preliminary Remarks on Part 9, mn 5.

²⁰ For further details on the negotiations, see Harhoff and Mochochoko in: Lee (ed.), *The International Criminal Court. Elements of Crimes and Rules of Procedure and Evidence* (2001) 651 et seq.

²¹ For further details on the negotiations, see note 16, Harhoff and Mochochoko, *International Cooperation and Judicial Assistance* 652 et seq.; Gartner, in: Fischer et al., *International and National Prosecution of Crimes under International Law* (2001) 425 et seq.

it was designed to overcome some omissions in the Statute itself and its link to article 17 one of the most sensitive provisions of the Rome Statute. The Rome Statute deals with what will happen to a person once he or she has completed the service of a sentence in a state of enforcement under article 107. What is not addressed in the Statute, however, is what arrangements would be made if the person surrendered was released from custody as opposed to being convicted and serving a sentence. This could occur for a whole range of reasons from non confirmation under article 61 or acquittal to a negative ruling on jurisdiction or admissibility by the Court. In all but one circumstance there was general agreement that the principles for transfer arrangements adopted in article 107 should apply equally to a person released from custody, with some necessary modifications. Thus arrangements should be made, taking into account the views of the person, to transfer him or her to a state that is obliged to receive him or her or has agreed to do so or the person could be extradited. However because in this case the person is in the custody of the Court, as opposed to a State of enforcement, prior to his or her release, there was much debate as to who should be responsible to make the arrangements and decision on the transfer of the person. There were a number of difficult technical questions that had to be considered arising from the fact that no explicit provision had been made in the Statute to empower the Court to deal with this scenario. In particular there were serious questions as to what powers the Court would have to continue to hold the person in custody and remove him or her given that they would be *functus* after issuing the ruling leading to the release of the person. Thus some state powers would need to be employed to deal with the situation on a practical level. This left the host state in a very uncomfortable situation. In the end compromise language was inserted into sub rule 1 making the Court responsible for the decision and arrangements but obligating the host State to ‘facilitate’ the transfer in such cases in accordance with the host State agreement. In this way technical problems with custody and removal could be worked out on a case by case basis between the Court and the host State.

- 27 There is a further variation in sub-rule 1 of rule 185 from article 107. While both the Article and the Sub-rule recognize that a person released from custody may be extradited, the Article does not require any consultation with or consent from the state that originally surrendered the person for the extradition to take place. For some states, especially those which do not extradite nationals, this perceived omission in the Statute presented a serious problem. It meant that their nationals surrendered to the Court could end up ultimately being extradited to another state and there would be no way that they could prevent this from occurring. While it was not possible obviously to amend the provisions of article 107 through the rules of procedure and evidence, concerned delegations were determined to at least reduce the impact of the perceived omission in the Statute as much as possible. As a result, procedures were established under rules 213, 214, and 215 to ensure that the original surrendering state would be consulted and those views would be taken into consideration when a decision on prosecution or extradition was to be made. In addition, in the situation where the person is not convicted, sub-rule 1 of rule 185 provides that extradition will be subject to the consent of the original surrendering state.
- 28 There remained one controversial point that fell to be addressed in a separate sub rule which was the case where the person was released from the Court’s custody because of a ruling on admissibility premised on article 17 para. 1(a). In that case the Court would have ruled the case inadmissible because of a determination that a State with jurisdiction was investigating or prosecuting the matter. In such a situation for many states it was not acceptable to apply the general rules on transfer agreed in sub-rule 1. The person is being released from the custody not because of a lack of evidence or because of legal barriers to prosecution such as *ne bis in idem* but rather because he or she is the subject of an investigation or prosecution in a state and the principle of complementarity applies. As a result, some delegations argued that in such scenarios the person should be transferred to the state with the relevant investigation or prosecution. But again other delegations, particularly those for which the extradition of nationals is prohibited were not prepared to agree to any mandatory transfer another State

where the person would face possible prosecution. For them it was not acceptable to surrender a person including a national to the Court only to have him or her transferred to another state for prosecution as a result of an admissibility ruling. Such a procedure would circumvent the relevant protections for that person in the original state. This concern was met by conditioning the ‘re-surrender’ to the State successfully challenging the admissibility under article 17 para. 1 (a) by the proviso ‘unless the State that originally surrendered the person requests his or her return’. This, however, raises the question as to what will happen if the originally surrendering State does not take it upon it to itself institute criminal proceedings against the surrendered person. This hypothesis is by no means a theoretical one because it was only the absence of criminal proceedings in the latter State that allowed for the surrender of the person concerned in the first place. It would seem clear in light of the overarching goal of the Statute to reduce impunity that the release of the returned person by the originally surrendering State is no acceptable solution to the resulting dilemma. Though, on the basis of the applicable legal texts the preferable alternative is not easy to identify.

In light of the unqualified wording of rule 185, sub-rule 2, it is difficult to argue that the originally surrendering State may only prevent the re-surrender if it is willing and able to itself genuinely investigate into the case upon the person’s return. A much better case can be made for the procedural right of the Prosecutor to submit a request for a review of the prior decision on admissibility under article 19 para. 10 of the Statute either after the return of the person or, preferably, before such return if the originally surrendering State advises the Court of its unwillingness or inability to genuinely investigate or prosecute. It is true that a proposal to the effect to explicitly allow for such a review to be carried out before the return of the surrendered person²² was not accepted. This fact, however, can not forestall a sensible interpretation to the same effect if the applicable texts support that result. A strong argument that they do can be derived from rule 186 which deals with a similar scenario that may arise in a case of competing requests for surrender and extradition. In essence this rule recognizes that if precedence is accorded to the extradition request but such extradition ultimately fails, it would be open to the Prosecutor to make an application under paragraph 10 of article 19 for a review of the admissibility ruling taking into account this new information. The same logic would have to apply in the case covered by sub-rule 2 of rule 185.

While the review procedure under article 19 para. 10 can help avoiding the unacceptable result of a release of the person concerned by the originally surrendering State, it remains an extremely cumbersome solution. This leads to the question whether the dilemma underlying rule 185, sub-rule 2, is to arise by necessity where the originally surrendering State refuses a re-surrender. In fact, it does not so arise. Instead, the position of the originally surrendering State on the issue of re-surrender must be duly considered not only after the Court’s ruling on admissibility but before because, where this State objects to a possible ‘re-surrender’ to the State challenging the admissibility of the proceedings, this latter State is in fact precluded and thus unable to conduct criminal proceedings against the person concerned. For this reason this State’s admissibility challenge under article 17 para. 1 (a) must be rejected. Regulation 112 recognizes this legal situation and rightly instructs the Chamber to hear on the position of the originally surrendering State on a possible ‘re-surrender’ before making a decision on the challenge to admissibility.

II. Paragraph 2

1. Immediate consultation with the Court on admissibility

Paragraph 2 deals with the situation of a *ne is in idem* challenge by the person sought for surrender before a national court. This is not intended to recognize national court jurisdiction over the issue. It was accepted that it is *for the Court* to decide the issue of admissibility

²² UN. Doc. PCNICC/2000/WGRPE(9)/DP.5 (Germany).

and that the national laws on *ne is in idem* must be brought in line with the requirements under Parts 2 and 9. Furthermore, the person sought for surrender has a right to challenge the admissibility *before the Court* under article 19 para. 2 (a) as soon as a warrant of arrest has been issued. However, what the first sentence recognizes is that, regardless of the Court's jurisdiction, individuals might well bring applications of this nature in a national court and their ability to do so could not be excluded in many States. Where such a challenge is brought, it is critical that there be consultations between the Court and the authorities in the State to determine if there has been an admissibility ruling already. This opening phrase reflects that requirement. Sensibly, regulation 111 adds on this the obligation of the Registrar to enclose a copy on any relevant admissibility ruling of the Court already when transmitting a request for the arrest and surrender of a person in accordance with article 89 para. 1.

2. Proceeding with the execution

- 32 According to the pertinent rules in Part 2 of the Statute it is for the Court to decide the admissibility of the case. Therefore²³, the words 'if the case is admissible' in this paragraph must be understood to mean 'if the Court has ruled the case admissible'. This aspect of competence is clearly alluded to in the sentence which deals with the situation where an admissibility ruling is pending. The ways in which the Court may arrive at an affirmative ruling on the admissibility of the case are listed in article 19. In such case, the requested State shall proceed with the execution of the request.
- 33 One may wonder what is the situation under article 89 para. 2 if such an affirmative ruling is appealed pursuant to article 19 para. 6 in conjunction with article 82 para. 1 (a). Two interpretations are conceivable. One possibility would be to apply the third sentence of article 89 para. 2 to the effect that the requested State can postpone the execution of the request. The second view would be that this second sentence of article 89 para. 2 is applicable so that the requested State must proceed with the execution of the request irrespective of the appeal. The second view seems preferable.²⁴ The reason for this is that the effect of the affirmative decision on the admissibility is not suspended by the mere fact of the introduction of an appeal. Only if the Court orders under article 82 para. 3 that the appeal shall have suspensive effect should the requested State be in a position to postpone the execution of the request according to the third sentence of article 89 para. 2.
- 34 Article 89 para. 2 does not explicitly cover the situation where the Court decides a case inadmissible. In such a case there can be no obligation for the State Party to execute the request; also one would expect that the Court would usually withdraw its request in such instance. For the only exception see mn 23.

3. Postponement of execution

- 35 The third sentence of paragraph 2 explicitly deals with the hypothesis that the issue of admissibility is not yet clarified by a ruling of the Court. Here, the requested State is entitled to postpone the execution of the request until the Court makes its decision²⁵. It has been argued above²⁶ that this sentence should not normally apply to a situation in which an affirmative determination of the Court is appealed against.
- 36 This sentence should be applied, though, in case of an appeal to a *negative* Court decision on admissibility, if the Court does not withdraw its request. It is submitted, that after a negative ruling on admissibility under article 19, the Court will uphold its request only in

²³ On the need to assure coherency between Part 2 and Part 9 of the Statute see Preliminary Remarks on Part 9, mn 2.

²⁴ For the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 136.

²⁵ Where, in addition to a national *ne bis in idem* challenge, there is an admissibility challenge under articles 19, 89 para. 2 and 95 apply concurrently to the same effect.

²⁶ Mn 20.

exceptional circumstances. *Mutatis mutandis*, it will have regard, *in particular*, to the criteria contained in article 81 para. 3 (c) (i).

Sub-rule 1 of rule 181 expands slightly on paragraph 2 of article 89 in those cases where an admissibility ruling is pending. It provides that in such cases the Chamber dealing with the case must take steps to obtain all the relevant information about the *ne bis in idem* challenge from the State so that the Chamber can take this into account when ruling on the admissibility question.

III. Paragraph 3

1. Transportation through the territory of another State

Article 89 para. 3 addresses the practical problem of the transit through a third State of a person being surrendered to Court. The issue, which arises often in state to state extradition, is how to obtain authority to bring a person into a third State and maintain custody over them within the jurisdiction of that State, which is uninvolved in the surrender. As there could be many instances where transport to the Court could not be accomplished without stops in other States, a provision on transit was included to avoid any difficult practical problems with the physical surrender.

The provision is framed in mandatory terms, requiring each State Party to authorize the transit. The reference to transportation is general and covers all modes. As indicated above²⁷, reference is at the same time made to national procedural laws indicating States Parties will use their domestic law to authorize the transit. This, too, is subject to the general obligation of article 88, such that States are under an obligation to have such capacity in their domestic law.

The exception, where transit ‘would impede or delay the surrender’ was included in response to concerns raised by some States, that transit through their territory could be particularly problematic. For these States, because of constitutionally protected aspects of domestic immigration law or other fundamental legal concepts, such as principles on *habeas corpus*, even if transit is authorized, the ability of the person to pursue remedies before domestic courts could result in significant delay in the process or perhaps even the release of the person during transit.

In recognition of this problem, the proviso was included to allow a State to advise the Court not to transit through that State because of the potential for delay or other problems during transit. This was felt to be a reasonable compromise because transit may be refused but only where it is beneficial to the Court *and its process for transit not to be effected through that State*.

2. Transmission in accordance with article 87

Subparagraph (b) outlines the basic procedures for transit requests. By reference to article 87, the channels of communication, language and the confidentiality provisions for other requests apply to requests for transit²⁸. As well, by reference to all of article 87, including paragraph 5, the Court could seek permission from a non-State Party albeit on a non-obligatory basis in the absence of an alternative agreement or arrangement.

Subparagraphs (i)-(iii) describe the content of any request for transit. For the request to be effective on a practical level, certain critical information is needed such as particulars of the person, the case and the documents which authorize the detention of the individual. Those are listed here.

3. Custody during transit

This is a critical component of any transit provision. The nature of the surrender process is such that the person must be physically delivered to the Court. To accomplish this with

²⁷ See Kreß and Prost, *article 88*.

²⁸ For the details see Kreß and Prost, *article 87*.

certainly it is necessary that the person be held in custody from departure to arrival and this includes, during any period of transit through a third State. States Parties will have to ensure that their law permits such detention²⁹.

4. No authorization for transit

- 45 This subparagraph, standard to many bilateral extradition treaties and found in article 15 para. 1 of the UN Model Treaty on Extradition³⁰, is very useful on a practical level. The transportation of a person to the Court could be very difficult, if not impossible, if permission for transit had to be sought from all of the States, through which air space the plane transited. This provision makes it clear that consent to transit is not required unless the plane is scheduled to land in the territory of a State.

5. Unscheduled landing on the territory of the transit State

- 46 This subparagraph parallels subparagraph (d) by addressing the circumstance of an unscheduled landing on the territory of a State during transit. In such circumstances, because of subparagraph (c), the person will be physically present on the territory of the third State but no consent would have been sought from that State.
- 47 The phrase ‘that State may require a request for transit from the Court as provided for in subparagraph (b)’ allows that a request for transit *may* be necessary in such circumstances. For practical reasons, the requirement for a request is discretionary, as some States may be in a position to allow the transit without a formal request. This makes the transit as simple as possible in the case of an unscheduled landing.
- 48 The critical practical problem in such circumstances is addressed in the sentence: ‘The transit State shall detain the person being transported until the request is received and the transit effected.’; the person must be kept in custody pending approval of and actual transit. This provision, which is mandatory, obligates the transit State to have the ability to maintain the person in custody. While reference is made here to States, as opposed to States Parties, the obligation can – as in the case of article 89 para. 1³¹ – only relate to the latter category.
- 49 While accepting the importance of maintaining custody over the persons during an unscheduled stop, many States were concerned about domestic limitations on detention. For that reason, a proviso was included to place a limit on the time that the State would be obliged to hold the person in custody without a request. The 96 hour period was agreed upon as a reasonable period, taking into account the logistical problems which could arise because of the unexpected nature of the occurrence. At the same time it was viewed as not an overly lengthy period to keep the person in custody; one which could be implemented domestically.
- 50 Sub-rule 1 of rule 182 adds some procedural detail to the transit process in these urgent situations by specifying that the request may be transmitted by any means capable of delivering a written record recognizing the need to rely on speedy electronic communication.
- 51 Sub-rule 2 of rule 182 makes it clear that if a person has been released because the 96 hour time limit has expired it will be without prejudice to any subsequent arrest of the person by virtue of a request for arrest and surrender under article 89 or a provisional arrest request under article 92.

²⁹ The inability of a State to guarantee custody during transit because of constitutional or other fundamental legal provisions, is an example of the type of problem which might cause the State to advise the Court under subparagraph (a) (mn 27 *et seq.*) that transit would not be advisable.

³⁰ See note 4, p. 73.

³¹ See mn 4.

IV. Paragraph 4

1. Person being proceeded against or serving a sentence in the requested State

Paragraph 4 was the subject of considerable debate during the Preparatory Committee and in Rome. Once again the division on the fundamental principle of State as opposed to Court control underlay the debate on this particular issue. The question was what would occur in circumstances where there were domestic proceedings³² against the persons sought by the Court. Those States which favored State control advocated for a purely discretionary provision, where surrender could be postponed indefinitely pending completion of the domestic process, either prosecution or service of a sentence. Those of that view were particularly concerned that the orders of domestic courts could not be overridden in favour of a request from the Court. For other States this position was unacceptable, particularly when it related to both service of a sentence, as well as completion of a prosecution. This would have permitted a State to indefinitely postpone surrender, for example, for persons serving a life sentence.

In article 87 para. 8 of the Draft Statute³³ compromise had been achieved, almost, by including the possibility of temporary surrender to the Court (allowing the person to be temporarily surrendered for trial and returned to the State afterwards) as one option. If temporary surrender was not possible, then one of two compromises could form the alternative.

Limit the State's right to postpone to cases of prosecution but not service of a sentence or apply it to both but require the Court's consent.

As consensus could not be achieved on either from of compromise in New York, the matter was left to Rome for resolution. The debate continued. Many draft texts were proposed and debated but no agreement could be reached. Even the option of temporary surrender was redebated and ultimately rejected, as it was too novel a concept for many States. At the end, it was agreed to leave the precise result to be resolved between the State and the Court. The initial phrase makes the provision applicable to both the cases of a pending prosecution and the service of a sentence.

The application of article 89 para. 4 presupposes that the requested State acts genuinely within the meaning of article 17 and article 20 para. 3. While these provisions are not directly applicable to national proceedings for crimes different from those for which surrender is sought, the same logic must apply in the latter case. For there is not a legitimate interest of the requested State to be protected under article 89 para. 4 where this State invokes its national proceedings only to shield the person concerned from the international jurisdiction.

Article 89 para. 4 deals exhaustively with the issue at stake as far as requests for surrender are concerned; article 94 is confined to requests under article 93.

2. Crimes different from those for which surrender is sought

This phrase reflects that the problem arises only where the person is being prosecuted or serving a sentence for a crime different from that for which surrender to the Court is sought. Where the crimes are the same, the issue would be resolved by application of article 89 para. 2 in conjunction with articles 17 *et seq.*³⁴. The interplay between paras. 2 and 4 of article 89 makes it clear that the expression 'crimes different' does not pertain to

³² The term 'proceedings' should, despite some uncertainty in light of the French and Spanish version of article 89 para. 4, be construed broadly so as to include the investigative stage; this interpretation achieves harmony with article 94 para. 1 where specific reference is made to the investigation stage; for the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003), 139 *et seq.*

³³ UN Doc. A/CONF.183/2/Add.1, p. 163.

³⁴ See mn 13–18.

the legal qualification, but to a different case as is spelled out in greater clarity in the corresponding provision in article 94 para. 1.

3. Consultation with the Court after a decision to grant the request

- 59 This phrase was included to make it clear that the circumstances of domestic process would not prevent or preclude surrender and that any discussions about resolving the conflict did not relate to whether the request would be granted. Admittedly the language used is somewhat ambiguous, as it suggests that in the case of surrender there is a decision to be made by the requested State to grant the request. As there are no grounds for refusal in the Statute with respect to surrender, this language is somewhat confusing. However it is attributable to the fact that while the issue was resolved in the late stages of the negotiation, the question of inclusion of grounds for refusal was not resolved until the very final stage. In addition, the reference to a decision on the request could be referable to the decisions made under article 90. While not constituting grounds for refusal, that article raises the possibility that the Court's request would not necessarily have priority in the case of competing request³⁵.
- 60 As no consensus could be achieved on what precisely would occur in these circumstances, the decision was to leave the issue, unlikely to be a frequent occurrence, to be resolved on a case by case basis by the Court and the relevant State. Both sides were relatively comfortable since this arrangement gives neither the Court nor the State an automatic priority and presumes reasonableness on both sides³⁶.
- 61 Interestingly the concept of temporary surrender finally received acknowledgement in the Rules of Procedure and Evidence albeit it is not obligatory for States to provide for it. Rule 183 recognizes it as a possible action to be taken after the consultations. The rule does not provide any detail on the procedure for the temporary surrender other than specifying that the person will be kept in custody during his or her time before the Court and will be returned to the requested state when no longer needed with the latest time being at the end of the proceedings. All other details are left to be worked about between the court and the state.
- 62 While article 89 para. 4 does not conclusively answers the question of priority in the absence of agreement between the Court and the requested State, some valuable guidance may be derived from other provisions in Part 9. In particular, the idea underlying article 90 para. 7 (b) suggests that 'special consideration' should be given to the relative nature and gravity of the conduct in question which will, as a general rule, point to the priority of the international proceedings³⁷. Furthermore, the second sentence of article 94 para. 1 marks the outer limit of the requested State's right to postpone. The ultimate decision as to whether or not the requested State remains within these and other boundaries of reasonableness lies with the Court³⁸.

³⁵ See Kreß and Prost, *article 90*.

³⁶ In this context see also Kreß and Prost, *article 86*, mn 10.

³⁷ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003), 141.

³⁸ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003), 141.

Article 90

Competing requests

1. A State Party which receives a request from the Court for the surrender of a person under article 89 shall, if it also receives a request from any other State for the extradition of the same person for the same conduct which forms the basis of the crime for which the Court seeks the person's surrender, notify the Court and the requesting State of that fact.

2. Where the requesting State is a State Party, the requested State shall give priority to the request from the Court if:

- (a) The Court has, pursuant to article 18 or 19, made a determination that the case in respect of which surrender is sought is admissible and that determination takes into account the investigation or prosecution conducted by the requesting State in respect of its request for extradition; or
- (b) The Court makes the determination described in subparagraph pursuant to the requested State's notification under paragraph 1.

3. Where a determination under paragraph 2 (a) has not been made, the requested State may, at its discretion, pending the determination of the Court under paragraph 2 (b), proceed to deal with the request for extradition from the requesting State but shall not extradite the person until the Court has determined that the case is inadmissible. The Court's determination shall be made on an expedited basis.

4. If the requesting State is a State not Party to this Statute the requested State, if it is not under an international obligation to extradite the person to the requesting State, shall give priority to the request for surrender from the Court, if the Court has determined that the case is admissible.

5. Where a case under paragraph 4 has not been determined to be admissible by the Court, the requested State may, at its discretion, proceed to deal with the request for extradition from the requesting State.

6. In cases where paragraph 4 applies except that the requested State is under an existing international obligation to extradite the person to the requesting State not Party to this Statute, the requested State shall determine whether to surrender the person to the Court or extradite the person to the requesting State. In making its decision, the requested State shall consider all the relevant factors, including but not limited to:

- (a) The respective dates of the requests;
- (b) The interests of the requesting State including, where relevant, whether the crime was committed in its territory and the nationality of the victims and of the person sought; and
- (c) The possibility of subsequent surrender between the Court and the requesting State.

7. Where a State Party which receives a request from the Court for the surrender of a person also receives a request from any State for the extradition of the same person for conduct other than that which constitutes the crime for which the Court seeks the person's surrender:

- (a) The requested State shall, if it is not under an existing international obligation to extradite the person to the requesting State, give priority to the request from the Court;
- (b) The requested State shall, if it is under an existing international obligation to extradite the person to the requesting State, determine whether to surrender the person to the Court or to extradite the person to the requesting State. In making its decision, the requested State shall consider all the relevant factors, including but not limited to those set out in paragraph 6, but shall give special consideration to the relative nature and gravity of the conduct in question.

8. Where pursuant to a notification under this article, the Court has determined a case to be inadmissible, and subsequently extradition to the requesting state is refused, the requested State shall notify the Court of this decision.

Directly Relevant Rules of Procedure and Evidence: Rule 186.

Literature: See Preliminary Remarks on Part 9.

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A. Introduction/General remarks

- 1 While not the most controversial in substance, the negotiation of article 90 was the most complex in the cooperation section, because of the underlying issues addressed. Regardless of the position taken on some of the fundamental questions on cooperation, all States recognized the need to address the issue of competing requests for surrender, comprehensively and in a manner which properly respected the existing or subsequent international obligations of States.

However, there was substantial disagreement as to the proper approach in the case of a conflict between obligations to a State and obligations to the Court. Not surprisingly, one of the central points of dispute was whether the requested State's obligation to the Court was a greater, lesser or equal obligation to that owed to a State. A delegation's position on that fundamental point defined their approach to competing requests.

- 2 Much of the complexity of this issue resulted from all the variable factors such as whether the competing request was from another State Party or a non-State Party, whether the request was presented on the basis of treaty or other arrangement which imposed an obligation and whether the request was for the same alleged criminal conduct or not. Finally, this issue was directly related to complementarity. In particular, the appropriate action for

the requested State could also vary depending upon whether the Court had already ruled on the admissibility of the case or not.

The Draft Statute¹ attempted to address this difficult issue in various optional texts in article 87 para. 6. Unfortunately, while the alternatives did highlight the differing views to some extent, they did not address the issue either clearly or comprehensively. Further options put forward at the initial stages of the discussions in Rome only served to complicate the matter. In the result, little progress was made in the initial sub-group discussions of this issue. What became evident was the need to first identify all of the issues underlying the article and to negotiate agreement on the applicable principles with respect to those issues, before proceeding further with the negotiation of a text.

This approach proved to be the key to success on this very challenging question. Following a meeting of a small group of interested States brought together by the coordinator of the Working Group on International Cooperation², Singapore prepared a short paper identifying the alternative scenarios. Working from that, consensus was gradually achieved on the appropriate steps to be taken in each case of competing requests. Those scenarios and the consensus achieved were then incorporated into the paragraphs which form article 90.

In the first place, article 90 distinguishes between competing extradition requests for the same and for a different conduct compared to that which forms the basis of the crime for which the Court seeks the person's surrender, notify the Court and the requesting State of that fact.

While paragraphs 2 to 6 deal with former, paragraph 7 deals with the latter hypothesis. Regarding a competition of requests for the same conduct, a sub-distinction is drawn as to whether the request for extradition is made by a State Party or by another State. While paragraphs 2 and 3 deal with the former, paragraphs 4 and 5 deal with the latter scenario.

B. Analysis and interpretation of elements

I. Paragraph 1

1. States Parties receiving requests from the Court for surrender of a person under article 89 from any other State for the extradition of the same person for the same conduct

This paragraph applies to all situations where a State Party receives a request from the Court and a request from any State, for the same person, in relation to the same criminal conduct. The paragraph applies to all such competing requests, irrespective of whether the competing request emanates from a State Party or a non-State Party.

2. Notification of the Court and the requesting State

The obligation imposed is one of notification to both interested Parties. Some States had concerns about placing an obligation on the State Party to notify the Court, being of the view that it is the Court's responsibility to determine if there are conflicting investigations. However, in the end it was agreed that this practical step should be taken in each case, for the benefit of the requested State Party facing conflicting obligations and also to avoid ongoing duplicative process. The provision was drafted keeping in mind the notification provisions of article 18³.

¹ UN Doc. A/CONF.183/2/Add.1.

² Phakiso Mochochoko (Lesotho).

³ This notification provision must be viewed in conjunction with the article 18. Except with respect to Security Council referred cases (article 13 (b)) all States Parties and those non-States Parties which would appear to have jurisdiction over a matter will have received notification of the investigation by the Prosecutor and would have

II. Paragraph 2

1. Chapeau: ‘priority to the request from the Court’

- 7 This paragraph singles out the case of a competing request from a State Party and identifies the circumstances in which priority will be accorded to the request of the Court over that presented by the requesting State. Because the applicable principles of international law can vary, depending on whether the requesting State is a party to the Statute or not, it was important to deal with each scenario separately.

2. The two subparagraphs

- 8 a) **The Court’s determination that the case is admissible.** The paragraph makes reference to determinations on admissibility under articles 18 and 19. Article 18 para. 2 provides that the Prosecutor shall defer to a State’s investigation or prosecution if requested, unless the Pre-Trial Chamber authorizes otherwise. While the paragraph does not make specific reference to a ruling by the Chamber on ‘admissibility’, *per se*, given that articles 17, 18 and 19 embody the principle of complementarity, the intent of this paragraph must be to allow for the Pre-Trial Chamber to authorize the continuation of the investigation, where satisfied that the conditions for admissibility in the face of a State investigation or prosecution have been met. Article 19 addresses rulings on admissibility and refers to article 17 which sets out the grounds upon which the Court can rule the case admissible or inadmissible.

- 9 The grounds for inadmissibility of particular importance here are those detailed in subparagraphs (a) and (b). These provide that the Court must find a case inadmissible where there is an ongoing investigation or prosecution in a State, there has been an investigation and a decision by a State not to prosecute or the person has already been tried and the *ne bis in idem* principle applies. However, there are exceptions to each ground where the State is unwilling or unable to genuinely carry out the investigation or prosecution or the decision not to prosecute was based on one of those factors. In the case of *ne bis in idem*, it will not apply if the proceedings were for the purpose of shielding the person or were not conducted independently or impartially or were conducted in a manner not consistent with an intent to bring the person to justice.

Thus, where the Court has ruled the case admissible⁴, taking into account the investigation or prosecution which is being or has been conducted in the requested State, it would have found one of the exceptions applicable. In those circumstances, the requesting State must accord priority to the request from the Court. Any other result would completely undermine the ability of the Court to proceed with cases found to be admissible. Absent an obligation on the requested State Party to comply with the Court’s request in these circumstances, the requesting State Party would have the ability to indirectly overrule the Court’s determination on admissibility, through an extradition request⁵.

- 10 b) **‘determination ... pursuant to the ... notification under paragraph 1’.** While subparagraph (a) addresses the case where the Court already has made an admissibility ruling before the notification under paragraph 1, sub-para. (b) deals with the case where that determination is made, pursuant to the notice. This would include the situation where the

had an opportunity to advise of a domestic investigation or prosecution and request deferral of the matter by the Prosecutor. Therefore, there should be limited instances where a requested State would be faced with this situation. Some examples would be where notice was not provided to a non-State Party with jurisdiction or a State choose not to advise the Court of its domestic proceeding.

⁴ As noted above, given the reference to both articles this would include where the Pre-Trial Chamber has authorized the continuation of the investigation under article 18 para. 2.

⁵ This result is possible of course where the requested State is not a State Party as there would be no surrender relationship between the Court and the requested State, aside from any *ad hoc* arrangement. See article 87 para. 5.

Court has already ruled the case admissible, without knowledge of the requesting State's investigation or prosecution and then reconsiders the issue in light of the notification of this fact under paragraph 1.

Therefore, paragraph 2 gives the Court priority in all instances where the two States involved are States Parties and the case is ruled admissible by the Court, taking into account the investigation or prosecution in the requesting State Party.

III. Paragraph 3: Intermediate proceeding to deal with the request for extradition from the requesting State

This paragraph recognizes that where the Court has not ruled on the admissibility of a case in accordance with subparagraph 2 (a) and notice is given to the Court under paragraph 1, the Court will need to consider or reconsider the question of admissibility. Even if the Court proceeds expeditiously, as is mandated later in this paragraph, there will be some delay before a determination can be made. In that case, the requested State must decide what to do with the pending request from the other State.

There was considerable controversy as to whether this issue should be addressed at all in the Statute. Some delegations felt very strongly that it was a matter for the requested State, regulated only by the law of that State and any applicable obligations flowing from the extradition relationship between the two States. For those States, this was a purely domestic matter which should not be touched upon in the Statute. There were also concerns that any reference to a requested State being able to take action on a request could oblige the requested State to do so, when it might not have any obligation under domestic law to proceed with that request. On the other side, delegations were concerned that without reference to the issue in the Statute, the requested State would not know if acting on the request would put it in breach of its obligations to the Court.

Because of these conflicting positions, the compromise achieved was to provide some direction to the requested State but to make it clear that the decision was one for the requested State. For that reason, the words 'at its discretion' were included here.

The formulation 'proceed to deal with the request for extradition from the requesting State but shall not extradite the person until the Court has determined that the case is inadmissible' struck a necessary balance in response to the differing State concerns on this point. Those States concerned about bilateral obligations and in some instances, domestic law requirements to proceed expeditiously in extradition matters, found comfort in the fact that they could proceed with any relevant domestic proceedings before the Court's decision. At the same time, those delegations which did not want to see the requested State 'pre-empt' the Court's decision on admissibility, were prepared to accept this paragraph, provided that no actual surrender could take place before the Court's ruling.

Given the concerns of all delegations for early resolution of this issue, a requirement for the Court to *proceed 'on an expedited basis'*, in these circumstances, was included. While one would presume that the Court would do so in any event, this explicit reference was of particular importance to a number of States, in light of the prohibition on surrender provided for above.

IV. Paragraph 4: Priority to requests from the Court

To be properly interpreted, this paragraph must be read within the context of the entire article, which was drafted to consider scenarios in sequence (cf. mn 5). Thus, the conditions outlined in paragraph 1 are applicable to paragraph 4, in that both requests relate to the same conduct and the Court will have received notification.

The specific case addressed is where the requested State receives a competing request from a non-State Party, but it is not under any international obligation to extradite to that State.

Such an international obligation exists where the requested State is, by way of any bilateral or multilateral treaty or arrangement, bound to act upon the request for extradition without disposing of broad discretion in case of competing extradition requests⁶. In the absence of a so-defined international obligation, the requested State does not face conflicting obligations. Thus, the Statute can mandate priority to the Court, without placing the requested State in breach of international obligations to the non-State Party. At the same time, the obligation to give priority to the Court is limited to those instances where the Court has ruled the case admissible. This proviso was included even though a general obligation to the Court would not have resulted in a breach of international obligations, because it was viewed as consistent with the principles of complementarity. If the Court had not ruled on admissibility and there was a pending investigation or prosecution in the requesting State, the proper avenue for resolution was viewed to be an admissibility ruling, under the provisions of the Statute designed to address this precise issue⁷, as opposed to mandated priority for the Court's request for surrender. Otherwise the effectiveness of the complementarity regime would be impeded.

- 17 Interestingly, this provision does not go so far as to require the ruling on admissibility to have taken into account the particular investigation or prosecution. The difference must be interpreted in the overall context. In the circumstances of paragraph 2, if the Court rules the case admissible the requested State must give priority to the Court, even in the face of a competing international obligation. The only justification for overriding the competing obligation is where the Court has directed its mind to the issue and ruled on the requesting State's investigation or prosecution and that State is bound by the ruling.
- 18 When this paragraph applies, there is no competing obligation and given that the requesting State should have received notification and had a chance to challenge admissibility under article 18, it was viewed as sufficient that the Court has ruled the case admissible. In essence, if a non-State Party has chosen not to advise the Court of its investigation or prosecution, it should not be able to impede the execution of a Court's request for surrender, in a case ruled admissible, through a request for extradition which does not engage any international obligations. The paragraph strikes a delicate balance to protect and not impede the carefully structured complementarity regime established in articles 17, 18 and 19.

V. Paragraph 5: Cases under paragraph 4 not determined to be admissible by the Court

- 19 In situations not covered by paragraph 4, where the Court has yet to determine the admissibility of the case, the circumstances are similar to those underlying paragraph 3. The Court has received notification of the competing investigation or prosecution and either, on the challenge of the State or of its own motion, will consider the admissibility of the case. Similar to paragraph 3, the requested State is free to decide whether to proceed with the request for extradition, pending the determination by the Court.
- 20 However, unlike paragraph 3, the requested State in these circumstances is not precluded expressly from completing execution of the State's request and extraditing the person to that State, before a decision from the Court. That distinction appears to be based upon the principle that a treaty does not create obligations for a third State. Thus, it was viewed as inappropriate to mandate what steps the requested State could not take with respect to a request presented by a third State, not Party to the obligations of the Statute. However, in the

⁶ Many international treaties on extradition provide for such a broad discretion in case of competing requests. Irrespective of the terminology chosen under article 102 'for the purposes of the Statute', those treaty provisions should also be applied to the case of a competing request for surrender under the Statute (for the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 146 *et seq.*; the resulting broad discretion eliminates the risk for the requeste State to find itself in a situation of conflicting legal obligations so that paragraphs 4 and 5 instead of paragraph 6 should apply (for the same view, see *ibid.*).

⁷ See articles 17, 18, 19.

absence of a pre-existing (treaty) right to extradition, no third State can be adversely affected in law by the obligation of the State Party to the Statute not to extradite to such a third State. It follows that also in the absence of an express provision precluding extradition pending a decision from the Court, the combined effect of the obligations to cooperate (article 86) and to comply with requests for arrest and surrender (article 89) will, except perhaps in exceptional circumstances, preclude extradition.

VI. Paragraph 6

1. Chapeau

a) Cases under paragraph 4 except that the requested State is under an obligation to extradite to a requesting State not Party to this Statute. This paragraph deals with a competing request from a non-State Party in circumstances where there is an existing obligation to extradite between the two States. Here, the requested State faces conflicting international obligations while the requesting State, as a non-State Party

is not affected by the obligations imposed under the Statute. However, as the use of the word ‘existing’ already indicates, State Parties are not free to create new possible obstacles to their cooperation duties under Part 9. The international obligation the requested State is facing towards the requesting State must thus be one that predates the date of the requested State’s signature of the Statute⁸.

b) Determination to surrender to the Court or extradite to the requesting State. This was the most difficult scenario upon which to achieve consensus. It was resolved ultimately by resort to precedent within the context of extradition generally. It is not uncommon for States to face competing requests for extradition, within the context of its bilateral or multilateral extradition relations. As a result, the issue is addressed in many extradition treaties and instruments such as the *European Convention on Extradition* and in the *United Nations Model Treaty on Extradition*⁹. By that general practice, the requested State has the discretion to determine which State will be given priority. That solution has been incorporated in the Statute, but only to solve a genuine conflict of legal obligations (cf. mn 16).

While some would argue that this imports a *horizontal* approach to cooperation in Part 9, that is not the case. Unlike the circumstances addressed in paragraph 1, this issue does not relate to the obligation of States Parties to the Court. If the requested State were obliged to give the Court priority over a non-State Party, this would amount to affecting the rights of States not Parties to the Statute. This would be in conflict with the principles reflected in the *Vienna Convention on the Law of Treaties*¹⁰. Instead the obligations owed to the non-State Party are placed on equal footing with those owed to the Court and thereby, while the decision of the requesting State may be in favour of the Court as opposed to the State, nothing in the Statute itself affects the rights of non-States Parties.

c) The different subparagraphs. The paragraph mandates that the requested State must consider all the relevant factors in making its decision. This, while perhaps obvious, was stated to emphasize that the decision will be based on a fair consideration of all the pertinent circumstances of the particular case and not on the basis of according more weight to one requesting Party or another. Consistent with the practice in State to State extradition, the paragraph includes three examples of the relevant factors: ‘(a) The respective dates of the requests; (b) The interests of the requesting State including, where relevant, whether the

⁸ Cf. article 18 of the 1969 Vienna Convention of the Law on Treaties; for the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 147.

⁹ See for example article 17 of the European Convention on Extradition, 359 UNTS 273 and article 16 of the United Nations Model Treaty on Extradition, UN Doc. A/CONF.144/28/Rev.1.

¹⁰ UN Doc. A/CONF.39/11/Add.2.

crime was committed in its territory and the nationality of the victims and of the person sought; and (c) The possibility of subsequent surrender between the Court and the requesting State'. One additional factor, the requested State must consider is whether the requesting State is willing and able to genuinely pursue the criminal proceedings upon extradition. In the absence of such willingness or ability, there is no legitimate interest of that State to be protected and the discretion of the requested State will be reduced to an obligation to surrender¹¹.

VII. Paragraph 7: Competing requests for different conduct

- 25 The final scenario contemplated in this article is a competing request for extradition, for different conduct from that which forms the basis of the Court's request. Here, there were no differences in applicable principles dependent upon whether the requesting State was a State Party or not, so it was not necessary to address those issues separately.

1. Priority to the request from the Court

- 26 If the requested State is not under an existing international obligation to extradite the person to the requesting State it is not faced with any competing international obligations, subparagraph (a). In addition, the principles of complementarity are not engaged where the cases involve different conduct. Thus, there is an obligation in all such instances to give priority to the Court.

2. Determination whether to surrender or to extradite

- 27 Subparagraph (b) mirrors paragraph 6, except that the requested State is given the discretion to decide, both in relation to a request from a State Party and a non-State Party. During the initial discussions of this scenario, there was general support for an obligation to give priority to the Court, in the case of a State Party competing request, on the assumption that the nature of the crimes within the jurisdiction of the Court should be the overriding consideration. However, it was successfully argued that there could be exceptional situations where the crimes alleged by the requesting State were as serious perhaps more serious, than those alleged by the Court¹². On that basis, it was determined that the competing obligations should be resolved on a case by case basis, in accordance with the same principles as those applicable in State to State extradition relations.
- 28 Here, again, '[i]n making the decision', the requested State is required to take into account all the relevant factors and examples provided by reference to the enumerated factors in paragraph 6. In addition, particular emphasis is placed on considering the nature and gravity of the alleged conduct. Given the importance of this last factor, it is expected that, given the jurisdiction of the Court, in the overwhelming majority of cases, priority will be accorded to the Court.

VIII. Paragraph 8: Notification of the Court in cases ruled to be inadmissible after subsequent refusal of extradition

- 29 This paragraph contemplates that extradition to a State may fail. If that occurs in circumstances where the Court has determined a case inadmissible, on the basis of the investigation or prosecution in the State which has now failed to obtain the person, that fact will be brought to the Court's attention. This was viewed as an important requirement as the

¹¹ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 150 *et seq.*

¹² For example, if the Court was prosecuting for attacks on property and the State had several charges of murder.

ruling on admissibility may have to be reconsidered in light of this new information. This point is expanded upon in rule 186. The Prosecutor is identified as the authority within the Court who should receive the notification. As well, the rule clarifies that the notification is made in order for the Prosecutor to consider if an application should be made for a review of the admissibility ruling based on this new information following the procedure set out in article 19 para. 10.

Article 91

Contents of request for arrest and surrender

1. A request for arrest and surrender shall be made in writing. In urgent cases, a request may be made by any medium capable of delivering a written record, provided that the request shall be confirmed through the channel provided for in article 87, paragraph 1 (a).

2. In the case of a request for the arrest and surrender of a person for whom a warrant of arrest has been issued by the Pre-Trial Chamber under article 58, the request shall contain or be supported by:

- (a) Information describing the person sought, sufficient to identify the person, and information as to that person's probable location;
- (b) A copy of the warrant of arrest; and
- (c) Such documents, statements or information as may be necessary to meet the requirements for the surrender process in the requested State, except that those requirements should not be more burdensome than those applicable to requests for extradition pursuant to treaties or arrangements between the requested State and other States and should, if possible, be less burdensome, taking into account the distinct nature of the Court.

3. In the case of a request for the arrest and surrender of a person already convicted, the request shall contain or be supported by:

- (a) A copy of any warrant of arrest for that person;
- (b) A copy of the judgement of conviction;
- (c) Information to demonstrate that the person sought is the one referred to in the judgement of conviction; and
- (d) If the person sought has been sentenced, a copy of the sentence imposed and, in the case of a sentence for imprisonment, a statement of any time already served and the time remaining to be served.

4. Upon the request of the Court, a State Party shall consult with the Court, either generally or with respect to a specific matter, regarding any requirements under its national law that may apply under paragraph 2 (c). During the consultations, the State Party shall advise the Court of the specific requirements of its national law.

Directly Relevant Rules of Procedure and Evidence: Rule 187.

Literature: See Preliminary Remarks on Part 9.

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A. Introduction/General remarks

Article 91 provides essential information as to the content of a request for arrest and surrender. This article was substantially redrafted at the Rome negotiations, in light of the decisions taken with respect to the procedure for issuance of an arrest warrant by the Court¹. As a result of the streamlined procedural provisions, which eliminated the concept of an indictment, article 91 was simplified considerably, to include reference to two types of requests for arrest and surrender – pre and post conviction. There was no longer need for the complicated concept of pre and post indictment requests for arrest. Thus, the provision outlines the content of a request when the person is sought for prosecution, followed by the content of a request in the case of person already convicted.

While primarily a technical provision, designed to ensure complete and consistent requests, subparagraph 2 (c), raised the very controversial issue of evidentiary requirements for requests for surrender. As such, it required considerable debate before a compromise text was accepted.

While some would argue that this issue reflected the debate between horizontal and vertical systems of cooperation, it in fact was more a question of the division between States of differing legal tradition². For some common law States there was serious concern that the surrender of individuals, including nationals, to the Court, without some evidence being produced in support of the request, would violate fundamental legal precepts and in some instances constitutional requirements. While some of those States could accept that the system for surrender to the Court should be distinct from normal extradition, there still remained concerns about the physical removal of a person for prosecution without the production of evidence. Other States, particularly those of a civil law tradition, for which evidence is not necessary even in normal extradition relations, objected strongly to allowing States to require the production of evidence by the Court. This was viewed as an unnecessary and burdensome requirement to place on the Court. In particular, those States which had experienced significant problems in trying to meet evidentiary requirements within the context of extradition practice, did not want to see the Court facing similar onerous burdens with respect to its requests for surrender. In addition, such a requirement had the effect of creating different standards for the Court to meet, depending on the requested State. The debate on this issue, an extremely sensitive one, even in the normal relations between States, was extremely lively and on some occasions, volatile.

In the Draft Statute³, bracketed language had been included in article 88 subparas. 1 (b) (v) and (c) (ii) to reflect the requirement for the production of evidence by the Court, where necessary. However, there remained much opposition at Rome to the inclusion of this provision. After considerable work in informal subgroups, a compromise formula was agreed to, through a great concession by those delegations which did not require the production of evidence.

In recognition of the fundamental nature of the problem for some States, article 91 subpara. 2 (c) was included. It provides that the request contain or be supported by such material as may be required for the surrender process in the requested State. Deletion of any reference to the term evidence or the specific content of those materials made the provision more palatable to States opposed to evidentiary requirements. In addition, the inclusion of the qualification that the requirements should be the least burdensome possible also helped. This subparagraph was accepted on condition that paragraph 4 also be included, to help the Court in understanding what would be required and to obligate the requested State to assist through the provision of specific information.

¹ See article 58.

² See Preliminary Remarks on Part 9, mn 7.

³ UN Doc. A/CONF.183/2/Add.1, pp. 164 *et seq.*

B. Analysis and interpretation of elements

I. Paragraph 1: Requests in writing and urgent cases

- 5 This paragraph details the form of the request. It sets out the general rule that the Court must submit a *written* request for arrest and surrender.
- 6 The exception for ‘urgent cases’ is important on a practical level. It addresses situations where immediate transmission of the request may require the use of modern technology, such as a fax machine or electronic communication systems and permits the use of such technology, provided that there will be a written record. The only qualification is that it should be followed by confirmation, through the prescribed channel. This qualification, which is somewhat confusing because of the reference to channel, in essence requires that an original of the request be submitted, after the technological communication. No time period is specified to meet this requirement. It is reasonable to assume, though, that the confirmation will follow without undue delay.
- 7 Rule 187 links the transmission of a request for surrender with the obligation in article 67 para. 1 (a)⁴, which gives the person the right to be fully informed of the charges in a language understood by him or her. Rule 187 also elaborates on rule 117 sub-rule 1. By virtue of rule 187, the request must be accompanied, as appropriate, by a relevant translation of the warrant or judgment and any text from the Statute. Rule 187 thus imposes the obligation on the Court to translate the warrant of arrest into a language that the person sought fully understands or speaks.

This translation shall, as a rule, accompany the request for arrest and surrender, but the words ‘as appropriate’ allow for a subsequent provision of the translation if circumstances so demand.

II. Paragraph 2

1. Chapeau: Requests with warrants issued by the Pre-Trial Chamber under article 58

- 8 As noted above, the simplification of the procedures of the Court for the issuance of an arrest warrant⁵ permitted one simple provision on the content of all requests for arrest and surrender, in the case of a person sought for prosecution. Under the procedures agreed to, the arrest and surrender of the person will be sought on the basis of a warrant of arrest issued by the Pre-Trial Chamber. This process received general support amongst delegations, as it parallels the process for State to State extradition, which is uniformly commenced on the basis of an arrest warrant or other similar order. The latter part of the phrase recognizes that the necessary material may form part of the actual request or be attached to it.

2. The different subparagraphs

- 9 a) **Information describing the person sought and to his or her probable location.** As in the case of State to State extradition, the requested State must receive sufficient detailed information about the person sought, to permit identification. Without proper identification information there can be no arrest or surrender, for both practical and legal reasons.
- 10 This provision places a balanced obligation on the Court to provide the requested State with information on the probable location of the person. The use of the term, ‘probable’, reduces the nature of the burden, as it recognizes that the Court may not be in a position to

⁴ For an expression of doubt as to whether article 67 para. 1 (a) required such a link, see Gartner, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes* (2001) 428.

⁵ See article 58.

provide information on location to the level of certainty. On the other hand, the requirement to provide some information on location does mean that the Court cannot simply send requests to all States Parties, without any particular information which would suggest that person's location, within that State. This language also clarifies the intent of article 89 para. 1, which refers to requests being sent to States where the person 'may' be found, importing a need for the Court some information upon which it bases its request to that particular State.

The language of the provision is sufficiently general such that a State could go back to the Court, if the information were not particularly specific, *i. e.* if the only reference was to the person being located in a large State, but without any particularization of which part of the State. Such a request would not meet the requirement of information on 'location'.

b) **A copy of the warrant.** This requirement recognizes that the request for arrest and surrender will be submitted only once a warrant of arrest has been issued. It also acknowledges the practical realities of communication in that there is no requirement for the Court to provide the actual warrant; a copy will suffice.

c) **Other necessary documents, statements or information.** As described above, this was a compromise formulation arrived at to permit some States to require the production of evidence in support of the request. The specific reference to documents, statements or information ostensibly limits the form of material that can be sought, preventing a State from seeking the production of actual witnesses or exhibits. In addition, a State is not free to require what ever information it may be interested in. The requirement is limited to that which is necessary to meet the requirements of the surrender process in that State. Thus, in seeking any particular information from the Court, the State must be in a position to demonstrate why that is needed for the surrender process.

The phrase '... except that those requirements should not be more burdensome ...' limits the State's ability to require evidence by mandating that any requirements imposed upon the Court cannot be more burdensome than those applicable in the extradition practice of that State. This would prevent a State from creating a separate evidentiary scheme for the Court, more onerous and demanding than that which normally applies in State to State extradition. In case a requested State, while maintaining evidentiary requirements in its domestic extradition Statute, has abolished them in treaties concluded with certain States, that requested State must accord the more favorable treatment to the Court. The same holds true where a requested State requires the production of some evidence in its treaty relations with some States while no longer doing so in treaties concluded with other States.⁶

The phrase '..., if possible, be less burdensome ...' is an exhortation to States Parties to have in place the least burdensome requirements possible, in the case of requests for arrest and surrender from the Court. It emphasizes that the Court is a distinct creature and any evidentiary requirements should be similarly distinct and limited to that which is absolutely essential. This requirement, albeit imposed only to the extent possible, challenges those States Parties with legal and constitutional obstacles to no evidence, to require the bare minimum of evidence necessary to overcome the relevant legal hurdles.

A standard practice has been adopted in requests for the arrest and surrender of individuals whereby the PTC asks that the State inform the Court of any requirements for additional documentation under Article 91 (2) (c)⁷.

III. Paragraph 3: Cases for persons already convicted

This paragraph sets out the content of a request in the case of person who has already been convicted and is wanted for the imposition or service of a sentence, as opposed to

⁶ Swart, in: Cassese (eds.), *The Rome Statute of the ICC, Vol. II* (2002) 1691 et seq.

⁷ *Prosecutor v. Bosco Ntaganda*, ICC-01/04-02/06, Request to the Republic of Uganda for the arrest and surrender of Bosco Ntaganda, Pre-Trial Chamber I, 8 February 2008, 3.

prosecution. Because there is already a conviction, the type of material which must be supplied is different, necessitating a separate paragraph on content.

- 17 Subparagraph (a) recognizes that there may be circumstances where the Court has issued a *warrant of arrest* for the person – *post conviction*. A copy of any such warrant should be provided to the requested State. Again, for practical reasons only a copy need be submitted.
- 18 Subparagraph (b) requires ‘A copy of the judgment of conviction’. If the person has been convicted the Court will have made a decision pursuant to article 74, which will be in writing. This will be the document which forms the basis of the request in most instances.
- 19 On a practical level, subparagraph (c), ‘Information to demonstrate that the person sought is the one referred to in the judgment of conviction’, shall enable the requested State to connect the person sought to the judgement of conviction by the Court. Thus, the Court is required to provide sufficient information for the requested State to establish that connection. The types of information necessary would include identifying information or other particulars about the offence or offender that will ensure that the person sought is the convicted person.
- 20 Subparagraph (d) takes into account that under the procedures of the Court, the person may be sentenced immediately upon conviction or at a later point in time⁸. This reality is recognized here, in that the convicted person may or may not have been sentenced. If sentenced, it is necessary for the Court to include a copy of the sentence in or with the request⁹. This is standard practice in extradition between States and is information which will be relevant to the requested State in dealing with the request.
- 21 In cases of a sentence for imprisonment, a statement of any time already served and the time remaining to be served, the Court is required to advise the requested State of the length of the sentence imposed and any time remaining to be served. While probably of limited relevance in this context, given the absence of a provision mandating a specified amount of time left to be served before surrender can be effected, this information may still assist the requested State. For example, it may be useful from a security perspective to know the time the person faces in jail, in order to assess the lengths to which the person might go in avoiding arrest¹⁰.

IV. Paragraph 4: Consultations with the Court upon its request

- 22 This consultation clause was included as part of a package compromise in relation to evidentiary requirements. Many different formulations were proposed to try and make the clause a practical one. In recognition of the fact that the Court may not require specific information on the surrender process of a State in each and every case, it is for the Court to request the information, as it considers necessary.
- 23 The general nature of the obligation gives the Court the flexibility to approach a State Party for information either generally or with respect to a specific matter, regarding any requirements under its national law that may apply under paragraph 2 (c). The Court can do so at any time; it is not limited to circumstances where there is a request to be made or pending. This is a general obligation on the State Party to discuss this issue with the Court. Thus, it is open to the Court to ask all States Parties about evidence requirements within the surrender process, or to pursue the question with a particular State Party, within the context of a case.

⁸ While article 76 is vague on this point, it appears that as the Court must consider the issue of sentence and can hear additional evidence, the Court might well make a decision at a point in time after conviction.

⁹ Although article 76 makes no reference to a written record of the sentence imposed, from a practical perspective, such a record would be needed for administration of the sentence and for appeal purposes and could be provided for in the Rules of Procedure and Evidence.

¹⁰ In State to State extradition practice there is generally a requirement for States to advise of the time left to be served because the extradition treaty or arrangement may preclude surrender unless there is a prescribed minimum amount of time left to served. See for example article II Treaty of Extradition between Canada and Spain, Canada Gazette, Part I, Vol. 125, No. 11; UN Model Treaty on Extradition, article 2, note 8.

The consultations would focus on any requirements under the national law for the production of evidence.

As the State Party is only permitted to require such material as is mandated by its surrender process, paragraph 4 places a clear obligation on States Parties to describe to the Court those specific requirements in national law, which make the information necessary. A parallel intention of this paragraph is to ensure that the process is not unduly difficult or complicated for the Court by requiring the requested State to give the Court information, which will assist in the preparation of any request. The information so provided will enable the Court to determine whether the production of evidence demanded by the requested State respects the limits set in para. 2 (c)¹¹.

¹¹ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 118.

Article 92

Provisional arrest

1. In urgent cases, the Court may request the provisional arrest of the person sought, pending presentation of the request for surrender and the documents supporting the request as specified in article 91.

2. The request for provisional arrest shall be made by any medium capable of delivering a written record and shall contain:

- (a) Information describing the person sought, sufficient to identify the person, and information as to that person's probable location;
- (b) A concise statement of the crime for which the person's arrest is sought and of the facts which are alleged to constitute those crimes, including, where possible, the date and location of the crime;
- (c) A statement of the existence of a warrant of arrest or a judgement of conviction against the person sought; and
- (d) A statement that a request for surrender of the person sought will follow.

3. A person who is provisionally arrested may be released from custody if the requested State has not received the request for surrender and the documents supporting the request as specified in article 91 within the time limits specified in the Rules of Procedure and Evidence. However, the person may consent to surrender before the expiration of this period if permitted by the law of the requested State. In such a case, the requested State shall proceed to surrender the person to the Court as soon as possible.

4. The fact that the person sought has been released from custody pursuant to paragraph 3 shall not prejudice the subsequent arrest and surrender of that person if the request for surrender and the documents supporting

5. the request are delivered at a later date.

Directly Relevant Rules of Procedure and Evidence: Rules 188 and 189.

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A. Introduction/General remarks

- 1 Article 92 was included in the Statute because in some circumstances, it may be necessary for the person to be arrested on an urgent basis, before the submission of the formal request

for arrest and surrender. The provision was included in the Draft Statute¹ and it remained substantially unamended at Rome. While the article did not generate much debate, because of its practical, technical nature, some States which advocated for the elimination of any evidentiary requirements² questioned the need for provisional arrest at all. If there were no evidentiary requirements to be met, a request for arrest and surrender would not differ greatly from a provisional arrest request and thus there would be no need for the two distinct processes. However, when compromise was achieved on the evidentiary issue and it was clear that evidence may have to be adduced in some instances, there was general agreement that a process for provisional arrest was needed.

The article is similar in content to article 9 of the United Nations Model Treaty on Extradition³ and to provisions included in many State to State, extradition agreements⁴. It sets out clearly when such a request can be made, what the request should contain and the consequences of a failure to follow up with a full and complete request for surrender. Other than article 89 para. 1, the article does not spell out that the requested State Party is under a duty to comply with the request. However, this obligation is contained in article 59 para. 1.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Urgent cases

Consistent with general extradition practice, cases where provisional arrest may be sought are limited to circumstances of urgency. While no finite list of urgent circumstances exists, the most common would be where the arrest of the person is necessary to ensure that they will be available for surrender or where they may pose a danger to the community. In this context, the Court will most likely seek provisional arrest in the case of person who has taken steps to conceal his or her location or identity or where the existence of an arrest warrant is suspected or becomes known, such that the person might be motivated to flee. The term 'provisional arrest' is a term of art in international extradition practice. It connotes the interim arrest of the person pending the receipt of a formal request.

2. Provisional arrest 'pending the presentation of the request'

This phrase recognizes that provisional arrest is sought to avoid the delay which might occur in awaiting the preparation of a full request for arrest and surrender, in compliance with the content of request provisions in article 91. As noted above, because the Court may have to submit some documents, statements or information, which cannot be compiled on an immediate basis, the ability to seek the person's detention on an interim basis is an important power for the Court.

II. Paragraph 2

Given the urgent nature of provisional arrest, there is a slight departure from the requirements of article 87. All requests for provisional arrest may be transmitted through any mechanism that leaves a written record *i.e.* fax, electronic communication. In this instance, there is no need for subsequent transmission of an original.

¹ UN Doc. A/CONF.183/2/Add.1, pp. 166 *et seq.*

² See, however, article 91 para. 2 (c).

³ UN Doc. A/CONF.144/28/Rev.1.

⁴ For example article 16, European Convention on Extradition, 359 UNTS 273.

- 6 The content of the request is prescribed in mandatory terms. The subsections which follow outline information which, on a practical level, is essential for the execution of the request.

1. Information describing the person sought and to that person's probable location

- 7 This subparagraph is identical to subparagraph 2 (a) of article 91 and reflects that this information is essential to the execution of a provisional arrest request.

2. A concise statement of the alleged crimes

- 8 Unlike a request for arrest and surrender under article 91, in the case of provisional arrest, there is no variation between States as to the type of documents or information to be provided in support of the request. It is common extradition practice amongst States to require only a concise description of the crime and underlying facts when seeking provisional arrest. This subparagraph reflects that requirement in language which is similar to that found in article 9 para. 2 of the United Nations Model Treaty on Extradition⁵.

3. A statement on the founding decision

- 9 Again, in recognition of the urgent nature of the process, the Court is only required to state the existence of the relevant document. It is not necessary for time to be lost in obtaining and providing a copy of the warrant or judgment of conviction. This too is consistent with extradition practice⁶.

4. Announcement of a request for surrender

- 10 Provisional arrest is only viable when it is an interim measure to be followed by a full request for surrender. Thus, before any State would be prepared to action such a request, there would need to be an assurance from the Court that the arrest is being sought because of circumstances which make it urgent, pending the presentation of a request as described in article 91.

III. Paragraph 3

1. Release from provisional arrest

- 11 In most instances, a person provisionally arrested on the basis of a request from the Court will be detained in custody⁷. In the absence of a full request, it is recognized that the person cannot be detained indefinitely. Consistent with State to State extradition practice, this paragraph allows for the release of the person from custody where the request for surrender and relevant supporting materials are not received within a prescribed period. Because of the evidentiary requirements of some States, the language makes it clear that the obligation on the Court is to provide both the request and relevant materials outlined in article 91 within the set period.

2. Time limits specified in the Rules

- 12 At Rome, there was division amongst States as to the appropriate time period for submission of the full request. This reflected the fact that there is a variation in State to State extradition practice on this point as well. Ultimately, as the principles underlying this

⁵ UN Doc. A/CONF.144/28/Rev.1.

⁶ See UN Doc. A/CONF.144/28/Rev.1, article 9, United Nations Model Treaty on Extradition.

⁷ In accordance with article 59, there is a possibility that the judicial authorities in the requested State could order the interim release of the person. It is highly unlikely to occur in the case of a provisional arrest executed in urgent circumstances. However, if that were to occur than this provision should be interpreted to require the release of the person from the terms and conditions of release.

subparagraph were not in dispute, it was agreed that the relevant time period should be left to the Rules, which would allow for greater flexibility, permitting a change in the time period much more easily. The difficulties regarding an agreed time period were overcome in the discussions of the rules such that Rule 188 provides for a period of 60 days from the time of arrest within which the documents must be submitted.

3. Consent to surrender

In the interests of practicality, this incorporates the concept of simplified surrender into the cooperation regime. Based on article 6 of the Model Treaty on Extradition⁸, it permits the immediate surrender of the person after provisional arrest, where the person consents and such a process is permitted under the law of that State. Use of this provision avoids the preparation of the materials by the Court and the continued detention of the person in the requested State for a period of time, where the person is prepared to go before the Court immediately. It is beneficial to the Court and the person sought. 13

As simplified surrender is intended to avoid unnecessary delay, the wording makes it clear that where the person consents, surrender should be carried out as soon as possible. In addition Rule 189 notes that the Court is not required to submit the full documentation required for a normal surrender process unless the State involved specifically requests otherwise. 14

IV. Paragraph 4: No prejudice for subsequent arrest and surrender

This paragraph, similar to article 9 para. 5 of the Model Treaty⁹, reflects the principle that the release of a person after provisional arrest, in the circumstances outlined in paragraph 3, will not prevent the reinitiation of surrender proceedings against that person, upon receipt of a full request for extradition. This well accepted principle in State to State practice is incorporated here to prevent an individual from using a problem with respect to provisional arrest to shield himself or herself from facing prosecution before the Court. It provides that the arrest and release does not constitute a bar to subsequent proceedings. However, in recognition of the rights of the individual, it precludes repeated provisional arrests by indicating that a subsequent arrest can be carried out only upon receipt of the full request for surrender, with supporting documents. 15

⁸ UN Doc. A/CONF.144/28/Rev.1.

⁹ UN Doc. A/CONF.144/28/Rev.1.

Article 93

Other forms of cooperation

1. States Parties shall, in accordance with the provisions of this Part and under procedures of national law, comply with requests by the Court to provide the following assistance in relation to investigations or prosecutions:
 - (a) The identification and whereabouts of persons or the location of items;
 - (b) The taking of evidence, including testimony under oath, and the production of evidence, including expert opinions and reports necessary to the Court;
 - (c) The questioning of any person being investigated or prosecuted;
 - (d) The service of documents, including judicial documents;
 - (e) Facilitating the voluntary appearance of persons as witnesses or experts before the Court;
 - (f) The temporary transfer of persons as provided in paragraph 7;
 - (g) The examination of places or sites, including the exhumation and examination of grave sites;
 - (h) The execution of searches and seizures;
 - (i) The provision of records and documents, including official records and documents;
 - (j) The protection of victims and witnesses and the preservation of evidence;
 - (k) The identification, tracing and freezing or seizure of proceeds, property and assets and instrumentalities of crimes for the purpose of eventual forfeiture, without prejudice to the rights of bona fide third parties; and
 - (l) Any other type of assistance which is not prohibited by the law of the requested State, with a view to facilitating the investigation and prosecution of crimes within the jurisdiction of the Court.
2. The Court shall have the authority to provide an assurance to a witness or an expert appearing before the Court that he or she will not be prosecuted, detained or subjected to any restriction of personal freedom by the Court in respect of any act or omission that precede the departure of that person from the requested State.
3. Where execution of a particular measure of assistance detailed in a request presented under paragraph 1, is prohibited in the requested State on the basis of an existing fundamental legal principle of general application, the requested State shall promptly consult with the Court to try to resolve the matter. In the consultations, consideration should be given to whether the assistance can be rendered in another manner or subject to conditions. If after consultations the matter cannot be resolved, the Court shall modify the request as necessary.
4. In accordance with article 72, a State Party may deny a request for assistance, in whole or in part, only if the request concerns the production of any documents or disclosure of evidence which relates to its national security.
5. Before denying a request for assistance under paragraph 1 (l), the requested State shall consider whether the assistance can be provided subject to specified conditions, or whether the assistance can be provided at a later date or in an alternative manner, provided that if the Court or the Prosecutor accepts the assistance subject to conditions, the Court or the Prosecutor shall abide by them.
6. If a request for assistance is denied, the requested State Party shall promptly inform the Court or the Prosecutor of the reasons for such denial.
7. (a) The Court may request the temporary transfer of a person in custody for purposes of identification or of obtaining testimony or other assistance. The person may be transferred if the following conditions are fulfilled:

- (i) The person freely gives his or her informed consent to the transfer; and
 - (ii) The requested State agrees to the transfer, subject to such conditions as that State and the Court may agree.
- (b) The person being transferred shall remain in custody. When the purposes of the transfer have been fulfilled, the Court shall return the person without delay to the requested State.
8. (a) The Court shall ensure the confidentiality of documents and information, except as required for the investigation and proceedings described in the request.
- (b) The requested State may, when necessary, transmit documents or information to the Prosecutor on a confidential basis. The Prosecutor may then use them solely for the purpose of generating new evidence.
- (c) The requested State may, on its own motion or at the request of the Prosecutor, subsequently consent to the disclosure of such documents or information. They may then be used as evidence pursuant to the provisions of Parts 5 and 6 and in accordance with the Rules of Procedure and Evidence.
9. (a) (i) In the event that a State Party receives competing requests, other than for surrender or extradition, from the Court and from another State pursuant to an international obligation, the State Party shall endeavour, in consultation with the Court and the other State, to meet both requests, if necessary by postponing or attaching conditions to one or the other request.
- (ii) Failing that, competing requests shall be resolved in accordance with the principles established in article 90.
- (b) Where, however, the request from the Court concerns information, property or persons which are subject to the control of a third State or an international organization by virtue of an international agreement, the requested State shall so inform the Court and the Court shall direct its request to the third State or international organization.
10. (a) The Court may, upon request, cooperate with and provide assistance to a State Party conducting an investigation into or trial in respect of conduct which constitutes a crime within the jurisdiction of the Court or which constitutes a serious crime under the national law of the requesting State.
- (b) (i) The assistance provided under subparagraph (a) shall include, *inter alia*:
- a. The transmission of statements, documents or other types of evidence obtained in the course of an investigation or a trial conducted by the Court; and
 - b. The questioning of any person detained by order of the Court;
- (ii) In the case of assistance under subparagraph (b) (i) a:
- a. If the documents or other types of evidence have been obtained with the assistance of a State, such transmission shall require the consent of that State;
 - b. If the statements, documents or other types of evidence have been provided by a witness or expert, such transmission shall be subject to the provisions of article 68.
- (c) The Court may, under the conditions set out in this paragraph, grant a request for assistance under this paragraph from a State which is not Party to this Statute.

Directly Relevant Rules of Procedure and Evidence: Rules 190 to 194.

Literature: See Preliminary Remarks on Part 9. De Cesari, P., 'Taking of Evidence and other Forms of Cooperation', in: M. C. Malaguti (ed.), *ICC and International Cooperation in the Light of the Rome Statute* (2007) 55; Goia, F., 'Reverse Cooperation' and the Architecture of the Rome Statute: A Vital Part of the Relationship between States and the ICC?', in: M. C. Malaguti (ed.), *ICC and International Cooperation in the Light of the Rome Statute* (2007) 75; Sluiter G., *International Criminal Adjudication and the Collection of Evidence: Obligations of States* (2002).

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A. Introduction/General remarks

Article 93 addresses general assistance between the Court and States Parties, aside from the surrender of persons. 1

These provisions on legal assistance were designed to allow for a broad range of assistance of flexible application. Given the scope and nature of the cases that will be investigated and prosecuted by the ICC, these were essential characteristics for the cooperation regime. 2

The scheme for general assistance is similar to that relating to the surrender of persons with respect to the nature of the obligation imposed on States. Article 86, which creates the general obligation to cooperate, is equally applicable to other forms of cooperation as it is to surrender. Similarly article 87 applies, authorizing the Court to make requests for the whole range of cooperation measures set out in article 93(1). Importantly, with only three limited exceptions, States Parties are under an obligation to comply with article 93 requests for cooperation presented by the Court. In that respect, article 93 creates a rather strong regime for cooperation, essential to the effective operation of the Court. However, as practice has evidenced to date, it is dependent on States fulfilling their obligation to cooperate under the Statute and as in the case of arrest and surrender, it is ultimately reliant on the ASP and, where applicable, the Security Council, taking action in response to failures to cooperate. 3

In this regard, it remains regrettable that agreement could not be reached on the power for the Court to issue an international witness summon or subpoena, whereby States would be obliged to compel witnesses to travel ‘cross-border’ to testify live before the Court. However, it appears that even if that power had been included the Court would still face challenges in terms of effective enforcement, the same obstacle which prevents Part 9 from achieving its potential as a strong cooperation mechanism. 3 A State Party can deny a request by the Court only in two circumstances, which are narrow in application and scope: *First*, if it concerns interests of national security (article 93 para. 4) and *second*, if the type of assistance requested is *not* specified in the listed types of assistance (paragraph 1 (l)) *and* it is prohibited by the law of the requested State Party. 4

As discussed below, an examination of some of the authorities suggests that there is a lack of clarity surrounding the operation of article 93 and the interrelationship of the various provisions. In accordance with the basic structure of Part 9, assistance is sought by way of a request by the Court. Direct action on the territory of a State is permissible in the circumstances set out in articles 57(3)(d) and 99(4)¹. The counter balance to this – to ensure a strong cooperation regime – is that there is an unqualified obligation to provide the assistance in response to a request when it falls into one of the categories specified in article 93(1)(a) to (k). Where the request is for one of those types of assistance, in accordance with article 88, the State must have the ability under national law to provide it. As a result, in those instances the only possible basis of refusal is that related to national security; no issue of prohibition under domestic law should arise or be considered by the Court.

The one limitation which is applicable does not permit denial of a request for the types of assistance specified in subparas a–k inclusive. Rather, paragraph 93(3) provides that where a particular measure sought in a specific request is prohibited by national law, the requested State would still have to comply with the request, unless it successfully convinces the Court that the requested measure in the particular factual circumstances of the case violates an existing *fundamental* principle of general application with the consequence that the requested

¹ This does not however restrict the Court from directly securing voluntary appearances in The Hague by individuals willing to come to be interviewed or provide testimony where no assistance is required from the State. It also does not prevent voluntary disclosure of documents or materials to the Court. As in State to State cooperation, Part 9 is intended to allow for the use of compulsory or other measures to assist with the gathering of evidence; it is not meant to impair direct access which can be accomplished without a violation of sovereignty of a state.

State and the Court would consult in order to resolve the conflict. The types of situations contemplated under this paragraph were requests which would violate a fundamental privilege, such as a spousal privilege or that applicable in the context of a relationship with a religious authority. The exception was not intended to allow for a State response that its general laws do not allow for the compulsion of certain types of records or that compelled witness testimony is not available. Such a response would be contrary to article 88 and would defeat the intent to require full cooperation with the minute limitation of those situations tied to fundamental societal interests.

5 There is also an important distinction to be drawn between the broad types of assistance detailed in article 93(1)(a)–(k) and a request by the Court that the evidence be gathered or obtained in a particular way or manner. For example under article 93(1)(b) the Court can request that the testimony of a witness be obtained for use in a proceeding in the Court. Under the scheme of Part 9 the State must deliver that testimony in a form suitable for use before the Court though it has some discretion as to the manner in which it may choose to execute the request. However, that discretion is also limited by article 99(1) which provides that the Court can specify a manner of execution – for example, in the case of a document that it be certified in a particular manner. In those circumstances, the State must provide the document with the certification requested, unless in accordance with article 99(1) the law of the State prohibits gathering the evidence in the manner specified. However, the fact that a particular form of obtaining the evidence – such as a specific type of certification is prohibited, does not in any way relax the obligation on the State to provide the evidence. It only means that another mechanism will need to be found to deliver useable evidence to the Court. This distinction is essential to the effective operation of the Part 9 scheme for other forms of cooperation.

6 The basic structure of Part 9 should also be interpreted to restrict the types of submissions and input which the Court is prepared to receive in considering a request brought before it. For example, in considering the transmission of a request for a type of assistance specified in article 93(1)(a)–(k) no issue as to prohibitions under national law should be considered until after the request has been transmitted. At that point, it would be for the State to establish a prohibition of a fundamental nature with respect to the particular circumstances of the case in accordance with article 93(3) or a prohibition under article 99(1) relating to the manner in which the evidence is to be gathered.

There is a disturbing decision in the Ruto and Sang case² which appears contrary to the structure and intent of article 93. The Prosecution made a request to the Chamber for the issuance of a summons for witnesses within Kenya under article 64(6)(b), and to subsequently secure the attendance of the witnesses in accordance with article 93. Prior to the issuance of the substantive decision³, the Trial Chamber considered, *inter alia*, an application by the Defence for the Chamber to invite submissions from the Government of Kenya with respect to the Prosecution request for the summons. The Chamber – without hearing from the Prosecution on the point – granted this request. The Chamber's sole justification was the fact that the Prosecution had relied upon article 93(1)(1) of the Statute and thereby had made 'Kenyan national law an important component of the present litigation.' The Chamber went on to state: 'The Chamber considers that it would be of assistance prior to ruling to hear from the Government of Kenya on whether or not the relief sought by the Prosecution is prohibited by national law'. The decision by the Chamber is problematic in many respects. To begin with the application had two components to it – a request for the Court to require the attendance of the witnesses and a request to seek the assistance of Kenya in securing the attendance of the witnesses under Part 9 of the Rome Statute. Neither of these core requests

² *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11-11, Decision on status conference and additional submissions related to Prosecution's request under article 64(6)(b) and article 93 to summon witnesses, Trial Chamber, January 29, 2014.

³ The substantive decision on the application is considered below.

implicated article 93(1)(l). Evidently the views of a State should not be relevant to the question of whether a summons should be issued for a witness. That falls to be determined under 64(6)(b) on factors such as the relevance and necessity of the expected evidence. Moreover, with reference to assistance from Kenya with the testimony of the witness, there is an unequivocal obligation on Kenya as a State Party to serve a witness summon, as requested by the Prosecution, under article 93(1)(d), and to provide for the taking of the evidence under article 93(1)(b). The reference to national law in the chapeau of article 93(1) is solely a recognition that the procedures for delivering the assistance will be under national law, not an acknowledgement of the capacity for the State to decline the requested assistance on the basis of that law.

The fact that the Prosecution made reference to article 93(1)(l) in support of part of its argument or cited Kenyan law, does not, as the Chamber suggests, make the issue of Kenyan law so central to the Court's decision as to merit the intervention of that State in the proceedings. Given the structure and content of Part 6 and Part 9 of the Statute, the core issues to be adjudicated – whether to issue the summons or seek the assistance of Kenya with specified types of assistance – are not dependent in any way on the national law in the State to which the request is to be transmitted.

If with respect to a request presented by the Court there is a problem with implementation – be it as a result of a prohibition under article 93(1)(l) or article 93(3) or for reasons set out in article 97 – the obligation is on the State to immediately consult. It is only at that stage – after the transmission of the request – that the views of Kenya and any prohibitions under national law should properly be raised, with the onus being on the State to demonstrate their applicability. To do otherwise and allow for premature intervention by the requested State, weakens the structure of Part 9, tipping the delicate balance struck, in favour of States over the Court. There is also a danger that the burden will shift to the Prosecution or Defence (depending on which Party seeks assistance) to rebut the arguments raised by the requested State, prior to the issuance of the request for cooperation. This approach constitutes a fundamental encroachment on the powers of the Court to transmit requests for assistance and it is not consistent with the intent or structure of Part 9 generally or article 93 in particular.

Assistance may not be refused because the offense is characterised as a political, military or fiscal offense⁴ nor is there a general provision allowing for refusal where execution of the request would be contrary to the ordre public, sovereignty or public interest of the State, as is often found in traditional mutual assistance treaties⁵.

The debates surrounding the negotiation of article 93 reflected again the division of principle as to whether the Statute should reflect a *horizontal* or *vertical* cooperation regime. In the end, no single approach prevailed in totality, but the scheme reflects a creative and unique scheme for cooperation, primarily of a *vertical* nature.

Article 93 provides a detailed and broad list of the forms of legal assistance, outside of surrender, available to the ICC. In addition, it recognizes the availability of other forms of assistance not specified in the list, subject only to the limitation of a prohibition under the law of the requested State.

The general obligation of any State Party to cooperate with the Court, set out in article 86 of the Rome Statute, clearly applies to article 93. In addition, the opening phrase of article 93 para. 1 requires that States Parties comply with requests from the Court for the assistance outlined in paragraph 1. This obligation, which is part of the overall scheme for cooperation

⁴ Article 2 of the European Convention on Mutual Assistance in Criminal Matters, 472 UNTS 185 for instance, states that a State Party may refuse assistance if the request concerns an offence which the requested Party considers a political or a fiscal offence.

⁵ See, for example, United Nations Model Treaty on Mutual Legal Assistance in Criminal Matters, UN Doc. A/CONF.144/28/Rev.1, p. 75, article 4; Treaty between the United States of America and the Swiss Confederation on Mutual Assistance in Criminal Matters, 1977, UST 2019. Assistance in Criminal Matters, 1977, UST 2019.

in Part 9⁶, is fundamental to the effectiveness of the cooperation regime, as it details precisely what is included in the full cooperation obligation of article 86. The States Parties are required to comply with requests from the Court for the types of assistance which are listed in paragraph 1 (a)–(k). In addition, the Court can seek other types of assistance, not explicitly referred to in the catalogue in paragraph 1 by virtue of subparagraph (l). This subparagraph recognizes that other forms of assistance may be sought and can only be refused in the circumstance where that assistance is prohibited under the law of the requested State.

- 10 In addition to these fundamental provisions, article 93 covers an array of important practical issues. It provides for specialized procedures such as safe conduct assurances and temporary surrender. It addresses the issue of confidentiality with respect to documents or information received and provides for a procedure in the case of competing requests. Within this article there is also a provision for cooperation by the Court with States.

Overall, article 93, combined with the general obligation of article 86, provides for a comprehensive cooperation regime for the Court to rely upon in gathering evidence and information for its investigations and prosecutions.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Chapeau

- 11 a) ‘States Parties shall ... comply with requests by the Court’. By this phrase, all States Parties are obliged to comply with requests by the Court. This provision does not formulate a general obligation on the States Parties to cooperate with the Court as do articles 29 and 28 para. 1, respectively, of the Statute for the ICTY and ICTR. However it is the combined effect of article 86 (general obligation to cooperate), article 87 (authority for Court to make requests for cooperation) and this phrase mandating compliance, which makes Part 9 a broad scheme for obligatory cooperation with the Court. This phrase also makes it clear that assistance has to be provided on the basis of a request issued by the Court. The Statute does not call for a direct or spontaneous transfer of information from a national authority to the Court or vice versa though such a transfer may be very helpful and is not prohibited by article 93.
- 12 The Court summarily and rightly has dismissed an alarming argument by the Government of Kenya in the *Kenyatta* case⁷ that the Prosecution has no independent authority to issue requests for cooperation under the Statute. The Chamber found that a restrictive interpretation of the term ‘the Court’ in article 93 was not rationally sustainable and would be inconsistent with the division of statutory mandates in the Statute and the efficient and effective functioning of the Court. The Trial Chamber made note of the various relevant statutory provisions, in particular article 34 which defines the constituent organs of the Court to include the Prosecution, as well as the responsibilities of the Prosecutor for investigations and prosecutions under article 54 including paragraph 3 (c) which specifically authorizes the Prosecution to seek the cooperation of States. Turning to article 93(1) which was at issue in the case, the Chamber noted the language used (‘comply with requests by the Court to provide the following assistance in relation to investigations and prosecutions’) and concluded that if ‘read in light of article 34 of the Statute and the explicit mandate of the Prosecution, is sufficiently clear to confirm the independent authority of the Prosecution to make requests for cooperation⁸.’ Support from the drafting history was also referenced. Importantly, the Chamber specifically

⁶ See article 87.

⁷ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-908, Decision on Prosecution’s applications for a finding of non-compliance pursuant to Article 87(7) and for an adjournment of the provisional trial date, 31 March 2014.

⁸ *Prosecutor v. Kenyatta*, ICC-01/09-02/11-908, Decision 31 March 2014, para 27.

dealt with the argument advanced for the need for judicial intervention in the request for assistance. This argument is particularly troubling given it is reflective of a requirement that flows primarily from one legal tradition (civil law) while the Rome Statute is designed to blend elements of different traditions, as pointed out by the Trial Chamber. The Chamber drew a distinction between articles which require judicial intervention – such as article 89 on arrest and surrender where a warrant must be issued – and article 93 where there is no such requirement. The Chamber also noted the recognition of the authority for different organs of the Court to present the requests including the Prosecution, as reflected in article 93(5) and (6) of the Statute, Rule 176(2) and Regulation 109. Interestingly, the Chamber went on to note that if national procedures relied on in accordance with article 93(1) and article 99(1) of the Statute require judicial intervention that should be engaged at the national level, in a manner which facilitates and does not impede execution of the request.

Having concluded that the request met the specificity requirements factually, the Chamber held that the Prosecution has independent authority to make cooperation requests under article 93(1) of the Statute and the request in the case was validly issued.

b) ‘**accordance with the provisions of this Part and under procedures of national law**’. For 13
assistance between the Court and the States Parties, Part 9 of the Statute provides the necessary legal framework. Requests for assistance by the Court will be executed in accordance with Part 9 and pursuant to the procedures of the national law of the requested State Party. The phrase the ‘procedures of national law’ was inserted as part of the general compromise on the broad issue in Part 9 of the role of national law⁹. This reference to the *procedures* of national law, in combination with the obligation to comply, was carefully crafted to ensure that process under national law could be used to execute a request but not to refuse it.

c) ‘**assistance in relation to investigations or prosecutions**’. Paragraph 1 (a)-(k) sets up a 14
detailed list of the various types of assistance to be provided to the Court. It is qualified by the words ‘in relation to investigations or prosecutions’ which were included to restrict the specific obligation to comply with the request, to the circumstances where the Court is conducting an investigation or prosecution¹⁰.

While the Court may seek assistance on a broader base, for example, for cooperation in protecting witnesses in a particular geographic region, when that request does not relate to an investigation or prosecution and States are obligated by article 86 to cooperate fully in such matters, the specific obligation to comply is limited to the investigation or prosecution context. At the same time, the reference is to both stages, so similar to modern mutual assistances regimes¹¹ the request can be made at the investigative stage, before any charges have been laid or in this instance before any warrant of arrest has been issued.

The list of types of assistance was drawn to a great extent from the UN Model Treaty on 15
Mutual Legal Assistance in Criminal Matters¹² and the 1988 UN Convention Against Illicit Traffic in Narcotic Drugs and Psychotropic Substances¹³. The wording does not focus solely on legal assistance but refers broadly to any type of assistance, including measures that are not of a purely legal character such as, for instance, provision of space and the necessary infrastructure to conduct inquiries on the territory of the requested State.

2. The different subparagraphs

a) ‘**identification**’, ‘**whereabouts of persons**’ and ‘**location of items**’. The provision refers 16
to the identification of persons and to the investigation of their whereabouts. No distinction is made whether the person is a suspect, a victim or a witness.

⁹ For a comprehensive treatment, see commentary on article 88.

¹⁰ Cf. article 86, mn 11–14.

¹¹ See Bassiouni (ed.), *International Criminal Law*, Vol. II: Procedure 159 *et seq.*

¹² UN Doc. A/CONF.144/28/Rev.1, article 1.

¹³ UN Doc. E/CONF.82/15, article 7.

- 17 The obligation of States Parties to comply with requests to identify the location of items is rather vague. The use of the word ‘location’ suggests a request to check on or find items such as vehicles or objects sought for the purpose of search and seizure. It also appears to cover finding pieces of evidence in investigations and criminal proceedings. The use of the word item restricts this subparagraph to mobile objects only.
- 18 **b) Evidence taking and the production of evidence.** The wording pertains to any form of evidence. It could be the physical examination of a person, the taking of a blood sample, for instance, as well as a more general inquiry. Because of the very broad formulation, the question arises whether the provision operates as a catch-all clause covering also, e.g., intrusive and coercive measures. A systematic interpretation must yield a negative answer. Not only would the specific reference to searches and seizures in *littera h* be superfluous under such a construction, but also, and more importantly, such a wide interpretation would render *littera l* more or less meaningless. In fact, it was the agreed understanding during the negotiations that modern intrusive measures such as, e.g. telephone interception, would fall under the latter provision.
- 19 Given the absence of an international subpoena power, this provision is of particular importance in that it obligates States Parties to assist the Court in obtaining the testimony of witnesses under oath. This type of assistance is specifically referenced making it clear that the Court can request, and States Parties must provide, the testimony of witnesses necessary to the Court. There is also explicit reference to the fact that the production of evidence includes expert opinions and reports necessary to the Court to ensure that such material clearly falls within the scope of the obligation to assist. Both of these specific references are made to alert States Parties to this special form of evidence that may be requested by the Court under the Statute. The duty of States under *littera b* extends to the use of coercive powers, where necessary¹⁴. If evidence is gathered through an interview, in conducting the same the requested State must observe the guarantees enshrined in article 55(1). In terms of the procedures to be followed, article 99(1) would apply and while the procedures of national law would form the legal starting point, the Court could specify the manner in which it would like the request executed *i.e.* compelling testimony to be given via video link, allowing for verbatim transcription, permitting ICC prosecution and defence lawyers to directly question the witness. Such a request would have to be complied with, absent a prohibition under national law.
- 20 Again due to the absence of a State duty to compel witnesses to appear and testify before the Court, it will often wish to avail itself of the possibility to conduct a witness interview through video link from The Hague to the location of the witness. Despite its foreseeable practical importance, this technique to take and to produce evidence has not received an explicit treatment in article 93. In marginal no 33 of the second edition of this commentary, the view was argued that the taking of witness testimony by the Court through the establishment of a video-link from The Hague to the location of the witness falls under *littera l* of article 93, but exceptionally without the possibility for the State Party, on whose territory the witness is present, to rely on a prohibition under its national law to conduct a witness interview by video-link. The Appeals Chamber¹⁵ has reached the same result, but it has derived it from *littera b* of article 93(1). According to the AC, this provision covers not only requests that a State Party itself take evidence, but also the taking of evidence on a State Party’s territory, either by the Court sitting in situ or by way of video-link. While this broad interpretation of *littera b* instead of recognising *littera l* as *sedes materiae* has perhaps not

¹⁴ The existing implementing legislation confirms this interpretation; see Krefß and Broomhall, in: Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. 2 (2005) 527.

¹⁵ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09.01/11 OA 7 OA 8, Judgement on the Appeals of William Samoei Ruto and Mr. Joshua Arap Sang against the decision of Trial Chamber V (A) of 17 April 2014 entitled ‘Decision on Prosecutor’s Application for Witness Summonses and resulting Request for State Party Cooperation’, Appeals Chamber, 9 October 2014, para 130.

been compellingly explained by the AC, its decision is to be accepted. This finding is important not only with respect to the taking of evidence via video-link but also in affirming the obligation on States through the provision of the Statute itself to provide the testimony of witnesses. This convincingly countered submissions made during the proceedings that only voluntary appearances were contemplated in the regime under article 93¹⁶. In that respect, the AC corrected the reasoning adopted by the TC which had premised its analysis and conclusion in favor of a subpoena power on broad references to international law, despite the order of applicable law set out in Article 21¹⁷. The AC, however, considered¹⁸ that it was incorrect to explore ‘implied powers’ or ‘customary international criminal procedure’ with reference to the compulsion of witnesses given that the Court’s legal framework provides for a conclusive legal basis for the same.

This subparagraph makes reference to both the taking of evidence and the production of evidence for very practical reasons. There is no legal difference between the two notions used in the Statute. In practice, however, the distinction is between evidence already existing, such as bank or corporate records, which need only be produced and other evidence, such as a statement or the testimony of witness, which is not pre-existing and has to be ‘taken’. The two phrases make it clear that the Court can request both types of assistance.

c) ‘The questioning of persons’. This provision makes it clear that the Court may request the questioning of the suspect or accused. The obligation was carefully crafted to mandate that States Parties must permit the questioning of the person but not to oblige compelled answers from the suspect or accused, in violation of the protection against self incrimination, which is fundamental to many States. Thus, subparagraph (c) uses different language than (b), because the obligation under the latter includes an obligation to actually obtain evidence from the person – through compulsion or otherwise.

This subparagraph does not stipulate how the inquiry should be conducted. There are no rules specifying whether the questioning must be executed in a court before a judge or could be undertaken by the national police or a district attorney. However, the guarantees listed in article 55 and, in particular, in its paragraph 2 must be observed. In terms of the procedures to be followed, article 99(1) would apply and while the procedures of national law would apply, the Court could specify the manner in which it would like the request executed *i. e.* questioning before a judge and that request would have to be complied with, absent a prohibition under national law¹⁹.

d) ‘The service of documents’. The word ‘documents’ covers all forms of writs and judicial records, as well as any other documentation. The subparagraph does not refer to the means of transmission of the documents. Regarding current practice in legal assistance²⁰, the service may be effected either by simple transmission to the person to be served or in the manner provided for under the law of the requested State Party, for the service of analogous documents, including regular postal service²¹. Again, it is open to the Court to specify in the request the desired form of transmission. Regulation 31, sub-regulations 3 of the Regulations of the Court introduces the concept of personal service of document for specific important procedural documents including, in particular, warrants of arrest, summonses to appear and documents containing the charges, and Regulation 31, sub-regulation 4 specifies the then

¹⁶ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision 17 April 2014 para 25.

¹⁷ *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, ICC-01/09-01/11, Decision 17 April 2014, paras 61–93.

¹⁸ *Prosecutor v. Ruto and Sang*, ICC-01/09-01/11 OA 7 OA 8, Judgement on the Appeals of William Samoei Ruto and Mr. Joshua Arap Sang against the decision of Trial Chamber V (A) of 17 April 2014 entitled ‘Decision on Prosecutor’s Application for Witness Summonses and resulting Request for State Party Cooperation, Appeals Chamber, 9 October 2014, para 130.

¹⁹ Cf. article 99, mn 11.

²⁰ See article 7 para. 1 of the European Convention on Mutual Assistance in Criminal Matters.

²¹ See discussion in the Manual on the Model Treaty on Mutual Assistance in Criminal Matters, United Nations, *IRevCrimPol* Nos. 45 and 46, p. 45 (1995).

applicable requirements of prove. Regulation 110 clarifies that this scheme will have to be implemented in accordance with article 93(1) (d) and article 99(1).

- 25 e) ‘Facilitating the voluntary appearance’. The term ‘to facilitate’ connotes voluntariness and excludes an obligation on the part of the State Party to provide sanctions according to its national law, if a witness or an expert refuses to appear before the Court. This constitutes a serious weakness within a system of international criminal justice wherein the Court lacks direct enforcement power, while being built upon the aspiration that the testimony of a witness a trial shall be given in person (article 69(2))²². However, in such instances, the evidence would still be available to the Court by virtue of subparagraph (b) which permits the taking of evidence in the requested State.
- 26 As discussed, the Appeals Chamber has endorsed the position taken in this commentary in finding an obligation on the part of States to compel the testimony of witnesses in response to a request from the Court²³. Moreover, it is clear from the drafting history that the concern which led to the emphasis on voluntariness in this littera and in article 93(7), was not with the compulsion of witnesses to appear to testify generally, but rather compelling witnesses or others to travel across international borders²⁴.
- 27 The provision leaves open the scope of the obligation of States Parties, to ‘facilitate’ the voluntary appearance of witnesses and experts before the Court. As a rule, it means to encourage a witness or an expert to appear before the Court. This does not include bearing the costs of the trip of a witness or an expert to the ICC. Costs are covered by article 100. Yet, a number of States have taken a very encouraging approach to implement the duty in question and have included special provisions on the facilitation of the voluntary appearance of witnesses which in some cases include the right of the witness to (advance) compensation for losses incurred as a result of his or her travel to the Hague²⁵.
- 28 One of the most controversial rules negotiated was Rule 74 on self-incrimination which goes some way to translate the privilege against self-incrimination along the lines of the ‘immunity from use-approach’²⁶. Part of the compromise achieved through the discussions of that issue is reflected in Rule 190 which mandates that any request under article 93 paragraph 1(e) for the voluntary attendance of a witness before the court must include as an annex an instruction relating to Rule 74. This requirement in rule 190 was motivated by concerns that a person must fully understand the nature of the self-incrimination protection that will be available to him or her before making a decision on attendance.
- 29 f) ‘The temporary transfer of persons as provided in paragraph 7’. This was one of the few subparagraphs of article 93(1) which remained bracketed in the Draft Statute²⁷, primarily because it was not a concept that many states were familiar or comfortable with. In order to allay some of the concerns, a separate paragraph which details the procedure for this type of assistance was included as paragraph 7. The provision covers only those persons who are in custody of the requested State Party. Other persons could not be transferred by the requested State Party, but rather would fall within subparagraph (e).
- 30 g) ‘The examination of places or sites’. States Parties are obligated to comply with requests to examine sites and places on its territory. The specific reference to exhumation and examination of grave sites was included to highlight what is, regrettably, one of the most

²² For a pertinent critique, see Sluiter, *International Criminal Adjudication and the Collection of Evidence* (2002) 346 *et seq.*; see also Kreß (2003) 1 JICJ 616.

²³ *Prosecutor v. Ruto and Sang*, ICC-01/09.01/11 OA 7 OA 8, Decision 9 October 2014, para. 120.

²⁴ *Prosecutor v. Ruto and Sang*, ICC-01/09.01/11 OA 7 OA 8, Prosecution consolidated response to Mr. Ruto and Mr. Sang’s appeals against the ‘Decision on the Prosecutor’s Application for Witness Summonses and resulting Request for State Party Cooperation’, Prosecution, 9 October 2014, para 24.

²⁵ *Ibid.*

²⁶ See Kreß, in: Fischer *et al.*, *International and National Prosecution of Crimes under International Law* (2001) 326 *et seq.*

²⁷ A/CONF.183/2/Add.1, p. 170.

important and common types of assistance which the Court may seek. This particular subparagraph was included only at Rome and it was developed during the discussions of the broader issue of on site investigations²⁸.

h) ‘**The execution of searches and seizures**’. The Court may request searches and seizures. 31
The provision is general in nature, such that the search and seizure can be sought with respect to a variety of locations, including both businesses and residences. Such requests will be executed according to the procedures of the national law of the requested State. However by virtue of article 88, all States Parties must have a procedure in place for search and seizure. Thus, a State Party cannot refuse a request for search and seizure on the basis that the measure is prohibited under the national law of the requested State.

i) ‘**The provision of records and documents**’. According to this subparagraph, the Court 32
may demand the transmission of records and documents of States Parties. This is a general mandate for the production of all types of documents or records.

j) ‘**The protection of victims and witnesses**’ and the ‘**preservation of evidence**’. In cases 33
under investigation or prosecution by the ICC, the protection of victims and witnesses is primarily the responsibility of the Court. However, any such protection may require the assistance of States Parties, in particular, if the victims and witnesses reside or have taken refuge in that State. The provision does not specify what form of protection measures may be requested. Thus, a State Party may be obligated to adopt new measures to protect victims and witnesses, in order to comply with a request, if its national law does not provide for protection programs.

The preservation of evidence refers to steps which may be necessary to ensure that certain 34
evidence will be available for use by the Court. The types of measures that may be requested are not specified, leaving the Court some flexibility. The requested State, by virtue of article 88, must have procedures available for the preservation of evidence generally, but as the particular approach to preservation are not specified, the requested State also has the flexibility to determine the approach to be adopted in preserving the evidence.

k) ‘**The identification, tracing and freezing or seizure of proceeds, property and assets 35
and instrumentalities of crimes**’. These measures are an essential part of modern international cooperation. This provision obligates States Parties to have mechanisms in place which will allow for the freezing of any of the listed items, to ensure that they are available should the Court ultimately order forfeiture of them. This subparagraph is related to article 77(2)(b) which recognizes forfeiture as a possible Court imposed sanction. In this latter context, the instrumentalities of crimes had been deleted towards the end of the negotiations and while an according change was not made in *littera k*, a harmonious interpretation should be achieved through a systematic interpretation that precludes the Court from making a request for the restraint of instrumentalities. However, it would be open to the Court to apply under this subparagraph as well as subparagraph (j), to have instrumentalities traced and restrained in order that they can be preserved for evidentiary purposes. In addition, given that the Court may interpret the provisions on forfeiture of proceeds of crime to include presumptions with respect to assets and to allow for substituted assets, it is also appropriate to restrain instrumentalities with a view to ultimately fulfilling any such orders²⁹.

According to article 57(3)(e) the issuance of a warrant of arrest or a summons to appear 36
under article 58 constitute the earliest moments in the proceedings as from which on a request under *littera k* may be made. A request under *littera k* may also be made in conjunction with article 75 para. 4 to secure the enforcement of a reparation order to be

²⁸ See article 99 para. 4.

²⁹ [http://www.imolin.org/pdf/imolin/Model_Provisions_accessed 16 December 2014.](http://www.imolin.org/pdf/imolin/Model_Provisions_accessed%2016%20December%202014.pdf)

made under article 75 para. 2. A request under *littera k* in conjunction with article 75 para. 4 can only be made, though, after the conviction of the person concerned³⁰.

- 37 I) ‘assistance ... not prohibited by the law of the requested State’. In addition to the listed types of assistance, the States Parties are obligated to grant any type of assistance to the ICC that is not prohibited by their national law. This ‘catch all’ provision was included to accommodate emerging or varied types of assistance which might be required in any particular case. However, in fairness to States Parties, as the type of assistance is not specified under this paragraph, it would not be appropriate to place a general obligation on a State to comply with such requests, when the nature of the obligation cannot be specified. Thus, the obligation is limited to that which is not prohibited under national law. TC IV in deciding on a defence application for the transmission of a request for cooperation to Sudan³¹ endorsed this explanation of article 93(1)(l). Assistance under *littera l* includes the intercept of communications, the provision of forensic/DNA and other specialist expertise as well as the freezing of assets for the specific purpose (not covered by *littera k* to secure the arrest of a person sought³²). Other possible forms of cooperation may consist in the provision of logistical support, such as the transportation of a suspect.
- 38 As indicated above (see mn 20), the Appeals Chamber has decided that a request by the Court to conduct a witness interview through the establishment of a video-link from the Hague to the location of the witness also falls within *littera b*. In the second edition of this commentary, it had been argued that the same result was more convincingly reached on the basis of a special interpretation of *littera l*. While the Appeals Chamber’s preference for a broad interpretation of *littera b* was perhaps not compellingly explained, the practical result is correct and so there is no point not to accept the course chosen by the Appeals Chamber.

II. Paragraph 2: Authority to provide an assurance not to be prosecuted, detained or subjected to any restriction of personal freedom by the Court

- 39 The provision is similar to articles in bilateral and multilateral mutual assistance treaties³³, which provide that a witness or an expert, appearing in a requesting State Party by virtue of the applicable treaty, shall not be prosecuted or detained or subjected to any restriction of personal liberty in respect of acts or convictions anterior to his or her departure from the territory of the requested State.

Under this paragraph, persons who appear before the Court to provide testimony or other assistance may receive such a protection from the Court. However, unlike other conventions or treaties, the application of the protection is not automatic. The discretion for the Court to decide whether or not to grant safe conduct was inserted in the Statute at Rome, after discussion of the proposed language in article 91 para. 7 (d) of the Draft Statute³⁴. It was determined that there may well be situations where it would be unacceptable for a person to be able to appear before the Court, protected, in the face of outstanding charges against him

³⁰ For this reason, the motivation of the two requests made in *Prosecutor v. Lubanga Dyilo* lends itself to a misunderstanding in that it (also) refers to article 75; cf. Demande adressée à la République démocratique du Congo en vue d’obtenir l’identification, la localisation, le gel et la saisie des biens et avoirs de m. Thomas Lubanga, ICC-01/04-01/06, 9 Mar. 2006, p. 2 *et seq.*; Request to States Parties to the Rome Statute for the Identification, Tracing and Freezing or Seizure of the Property and Assets of mr. Thomas Lubanga Dyilo, ICC-01/04-01/06, 31 Mar. 2006, p. 2 *et seq.*

³¹ *Prosecutor v. Abdallah Banda Abakaer Nourain & Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09, Decision on ‘Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan, Trial Chamber IV, 1 July 2011, para 19.

³² For a so motivated request in the context of the ICTY, see *Prosecutor v. Slobodan Milosevic et al.*, IT-02-54, Decision on Review of Indictment and Application for Consequential Orders, 24 May 1999, para. 29.

³³ See, for example, European Convention on Mutual Assistance in Criminal Matters, article 12 para. 1; United Nations Model Treaty on Mutual Assistance in Criminal Matters, article 15.

³⁴ A/CONF.183/2/Add.1, pp. 171 *et seq.*

or her. Thus, it is for the Court to decide if or when to grant the protection. Like other similar provisions this type of immunity, provided by the Court, does not bind the requested State Party.

Rule 191 provides detail on the application of this Article by specifying that it is the Chamber dealing with the case, either on its own motion or upon the request of the prosecutor, defence or the witness shall decide whether or not to issue the assurance. It further specifies that the views of the Prosecutor and the witness should be taken into account before a decision is made.

III. Paragraph 3

1. Execution of a particular measure of assistance

Article 90 para. 2 of Draft Statute³⁵ contained an option of specified grounds of refusal for requests for other types of cooperation; subparagraph (b) of that option allowed refusal in circumstances where the authorities of the requested State would be prohibited by national law from carrying out the requested action in similar circumstances and subparagraph (c) which, in part, recognized refusal where *ordre public* or other essential interests would be prejudiced. Both grounds of refusal were the subject of heated debate. Those in favour of a horizontal approach to cooperation strongly advocated for their inclusion, as a necessary protection for the requested State. Those supporting a vertical system saw such a wide discretion to the requested State as completely contrary to the principle of effective cooperation and fundamentally unacceptable.

As with other grounds of refusal³⁶, the discussion of this issue ultimately focused on the underlying concern which these grounds were designed to address and then on finding an alternative solution to address the concern. What the discussion revealed, in this instance, was the concern of States about requests, which in certain specific circumstances, could come into conflict with fundamental principles of the legal system in the requested State. For example if the request from the Court would require compelled testimony which would violate a fundamental privilege such as that between a solicitor and client.

Paragraph 3 was included as a flexible alternative to the proposed broad, categorical grounds of refusal in the Draft Statute. It was included as a part of a package compromise, conditional on the deletion of the two grounds of refusal mentioned above. Given the strong opposition to grounds of refusal from those States advocating for a vertical system of cooperation, this paragraph was drafted in very circumscribed terms to ensure that it would have narrow application and a limited impact on the effectiveness of the cooperation regime.

The opening phrase acknowledges that a particular request made according to paragraph 1 (a)-(k) may conflict with national law. As the Court has wide discretion in formulating a request and in specifying what measures should be taken, the execution of a measure in certain circumstances could violate national law. Because article 88 requires that States Parties must have procedures available for all forms of cooperation listed in article 93, the provision is carefully drafted to reflect that it must be the *particular* measure asked for in a *specific* request which creates the problem. It cannot be that the form of cooperation generally *i.e.* compelling a witness to testify, is prohibited. Rather, it must be that in the specific circumstances, the measure is prohibited, for example, compelling a solicitor to testify about matters protected by solicitor- client privilege. In addition, it is not an absence of procedure for the particular measure which can form the basis of refusal. The requested State Party must be able to identify an actual prohibition at law.

Finally, the requested State Party may only resort to this paragraph where the requested measure is prohibited on the basis of an *existing, fundamental legal principle of general*

³⁵ A/CONF.183/2/Add.1, p. 169.

³⁶ Cf. article 89, mn 5.

application. This restriction has several related components. The prohibition and underlying legal principle must be in existence already. If there were no such limitations, a State Party could introduce legislation to prohibit certain investigative measures with respect to the Court, for instance, the provision of documents from national archives or the transmission of judicial records. In addition, it must be a *fundamental* principle which underlies the particular prohibition. It is not every prohibition including those which can be easily changed, which can be relied upon, the prohibition must rather possess a constitutional or quasi-constitutional position within the legal order concerned³⁷. While States Parties retain a certain margin of appreciation as regards the fundamental character of any prohibition concerned, the Court will have to decide whether the State's assessment remains within legitimate confines. Finally, the principle must be one of *general* application in the law of that State and not restricted to the context of the Court.

This provision was drafted in this limited way to balance the valid interest of States in preserving the fundamental aspects of their legal systems, with the interest of the Court in receiving a wide measure of assistance from all States, unhampered by the procedural and legal principles of individual States.

- 44 In its decision on a revised cooperation request presented by the Prosecutor in the Kenyatta case, the Trial Chamber importantly found that practical or administrative difficulties with effective execution did not equate to a prohibition on the basis of a fundamental legal principle of general application as contemplated in Article 93(3). While such circumstances might merit a discussion as to other ways in which the request might be executed, it did not justify non execution or invalidate the request³⁸.

2. Consultations to resolve the matter

- 45 Another important limitation of this paragraph is that, even if the requested measure is prohibited by the national law in accordance with the opening phrase, the requested State Party does not have the right to deny a request by the Court. This provision underscores the obligation of States Parties to comply with requests by the Court. The underlying assumption is that requests by the Court in principle cannot be denied. Thus, when these circumstances arise, the requested State Party is obliged to consult with the Court.

3. Consideration whether 'assistance can be rendered in another manner or subject to conditions'

- 46 The wording stresses the wide flexibility of the regime of legal assistance under the Statute. States Parties and the Court are supposed to cooperate in order to make the requested assistance possible. This provision, on consultation and pursuit of options, emphasizes the presumption that both the Court and the State will act in good faith and try to find acceptable solutions. In this particular context, both parties are obligated to try and find a way for overcoming the problem under domestic law. For example, if there is an issue of solicitor client privilege arising from the search of a lawyer's office, it may be that the request for a search can still be executed, with a condition that the documents seized will be vetted for privilege by a judicial authority.
- 47 The Lubanga TC peripherally considered article 93(3) in the course of granting two applications for leave to appeal brought by States – the Netherlands and the DRC. In light of the apparent lack of jurisdiction to grant the appeal of the States in accordance with article 82(1) d, the TC looked to various provisions of the Statute which supported the importance of considering the views of States and resolving conflicts which could impair the international

³⁷ Sluiter, *International Criminal Adjudication and the Collection of Evidence* (2002) 161; the picture emerging from the implementing legislation remains rather unclear; see Krefß and Broomhall, in: Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. 2 (2005) 531.

³⁸ *Prosecutor v. Uhuru Muigai Kenyatta*, ICC-01/09-02/11-937, Decision on the Prosecution's revised cooperation request, Trial Chamber V (B), 29 July 2014, para 34.

cooperation regime of the Court. In that context the TC referenced article 93(3) in support of that general principle. However, the interpretation of article 93(3) applied by the Chamber appears erroneous in two respects. The TC seems to suggest that article 93(3) was applicable to the facts of the case in that the Dutch authorities would be required to render assistance for the return of witnesses to the DRC specifically by transporting them to the airport in contravention of fundamental principles. This view is not supportable given that article 93(3) is limited in application to particular measures of assistance detailed in a request presented under paragraph 1 of Article 93. Nothing on the facts suggested that such a request had been made. Further, the Chamber advanced the view that article 93(3) places an obligation on the Court to consult in the face of a prohibition under an existing fundamental legal principle, despite the plain language of the article which places that responsibility on the State³⁹.

4. Modification of the request as necessary

The text assumes that any request could be modified in order to comply with the requirements of the fundamental legal principles of the national law of the requested State Party and in most instances that will be the case. While the provision does not address directly the rare case where a request for a specific measure cannot be modified, there is an implication that in such a case, the Court may not be able to obtain the evidence from that State or at least, not in the form sought. 48

IV. Paragraph 4: Denial of a request in accordance with article 72

This provision is the only explicit reason for denial in the Statute. However, even if the request impacts on the national security of a State Party, the requested State is not permitted to simply deny compliance with the request. Article 72 of the Statute sets out a detailed procedure to be followed in such cases, before invoking this ground of refusal. In addition, if the Court ultimately concludes pursuant to article 72(7)(a)(ii) that the State is not acting in accordance with its obligations under the Statute in refusing the assistance, the matter may be referred in accordance with article 87(7). Thus, even with respect to this very sensitive area of concern to most States, there is a balanced solution which does not allow for a simple denial of the request. 49

The phrase ‘which relates to its national security’ makes it clear that national security is the only basis for the application of this paragraph. It is up to the requested State Party in first place to determine which issues are related to its national security. In that respect, it disposes of a rather wide margin of appreciation. However, the procedures under article 72 allow the Court an opportunity to assess the denial of assistance and to take some recourse in certain circumstances. 50

In light of the inherent tension between the regime set up in paragraph 4 in conjunction with article 72 and the need to conduct fair and efficient proceedings⁴⁰, it bears emphasizing that nothing prevents States Parties from enhanced cooperation in the context of paragraph 4. Finland provides a first encouraging example for such a principled decision⁴¹. 51

³⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-2779, Decision on two requests for leave to appeal the ‘Decision on the request by DRC-D01- WWWW-0019 for special protective measures relating to his asylum application’, Trial Chamber, 4 August 2011, paras 16 and 21.

⁴⁰ For a powerful explanation of this tension, see *Prosecutor v. Tihomir Blaskić*, IT-95-14-AR108bis, Judgment on the request of the Republic of Croatia for review of the decision of Trial Chamber II of 18 July 1997, 29 October 1997, para. 47.

⁴¹ Eerola and Välimaa, in: Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. 2: *Constitutional Issues, Cooperation and Enforcement* (2005) 82 *et seq.*

V. Paragraph 5: Consideration of assistance subject to specified conditions, or at a later date or in an alternative manner

- 52 The wording makes it clear that, given the legal obligation of a State Party to comply with a request by the Court, apart from the cases referred to in paragraph 4, the only circumstance where a request can be denied is that prescribed in subparagraph 1 (l) *i.e.* a type of assistance not listed in paragraph 1; before denying the execution of a request, the State Party must try to find a means to provide for the assistance as requested by the Court, notwithstanding the prohibition.

The use of conditions or a different approach to gathering the evidence are some of the options to be considered before any refusal.

- 53 The Court is not obligated to accept any conditions offered by the requested State. However, if the Court agrees to a particular condition it must abide by that condition. As a consequence, the requested State and the Court would negotiate about the measures to be taken, how the request would be phrased so that the requested State can comply with it and steps which the Court may have to take with respect to the evidence once it is provided.

VI. Paragraph 6: ‘promptly inform the Court or the Prosecutor of the reasons for such denial’

- 54 If the requested State denies compliance with a request on the grounds stated in paragraphs 4 and 1 (l), it has to inform the Court about the reasons for it so that the Court can assess their validity. The underlying assumption is that a request only be denied, after consultations and that both sides have explored all possibilities to solve the problem, before this step was taken.

However, this requirement will ensure that every option is considered, as there could be further consultations after the reasons have been provided.

VII. Paragraph 7: Temporary transfer

1. Request ‘for purposes of identification or for obtaining testimony or other assistance’

- 55 Provisions on the temporary transfer of persons in custody are found in many mutual assistance instruments, however the process is not a familiar one to all States and in practice such transfers are still relatively rare for most countries⁴². The most common use of this provision will be to transfer persons in custody for the purpose of testimony before the Court.

However, other purposes are included such as identification, which should be broadly interpreted to apply to identification of people through procedures such as line ups, as well as confrontation with other witnesses and the accused. The person may also be transferred for the purpose of physical examination or any other type of assistance.

The most complex part of a request of this nature will generally be the logistical arrangements for the transfer. Evidencing the nature of the challenge, the Court appears to have adopted a practice of employing a written agreement with the relevant State pursuant to article 93(7) which sets out the terms and conditions agreed with respect to the transfer⁴³. Rule 192 assigns

⁴² See article 11 para. 1 European Convention on Mutual Assistance in Criminal Matters; article 13 United Nations Model Treaty on Mutual Assistance; article 7 para. 1 Treaty on Mutual Legal Assistance between the United States of America and the Kingdom of the Netherlands, 1983 T.I.A.S. 10734.

⁴³ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of the Congo concluded pursuant article 93 (7) of the Statute.

the Registrar the responsibility for the physical arrangements and oversight of the transfer to and from the Court as well as for the supervision of the person while in the custody of the Court. It also provides that the transfer should be carried out in liaison with representatives of the host state. The person is given a right under this rule to raise any issues concerning the conditions of his or her detention with the relevant Chamber. This was intended to allow a prisoner an avenue to pursue with respect to his or her physical situation etc. but not to allow for any possibility of release from custody which is obviously a matter governed by the state from which he or she was transferred. Rule 193 fills in a gap that was left in the Statute in that no provision had been made for the transfer of witnesses who may be in a State but serving a sentence imposed by the Court. In such a case it would not be possible for the state to authorize the transfer to the Court. Under rule 193 it is made clear that article 93(7) does not apply. Rather the Chamber dealing with the case is authorized to order the transfer with the Registrar again empowered to oversee all the arrangements for the transfer. The rule further notes that as in the case of other temporary transfers, the person must be kept in custody and the time spent at the seat of the Court will be deducted from the sentence being served.

2. Freely given informed consent to the transfer

The temporary transfer of a person in custody depends upon an informed consent. The Court has required that the consent of the witness be obtained in writing⁴⁴. The requirement of informed consent requires that the person is notified about the purpose of the transfer and its legal and factual consequences. He or she must be given information on the right to object to the transfer. While this constitutes a widespread and sensible requirement in the inter-State context, it is far less evident in the specific context of international criminal proceedings for crimes under international law. In fact, and as already indicated above (see mn 21) the requirement collides with the power of the Trial Chamber under article 64(6)(b) to require the attendance of witnesses at trial so that they can testify in person in line with article 69(2). In line with the overall principle of interpretation to minimize incoherencies in different parts of the Statute as much as possible, a strong case can be made for the admission of an exception of the consent requirement in case of an order made by the Chamber under article 64(6)(b). In any event, it is fallacious to even broaden the scope of paragraph 7(a)(i) into a general individual right not appear before the Court (*cf.* mn 21).

3. Agreement of the requested State to conditions

The requested State may deny the transfer or subject it to conditions. This exception to the general rule that requests cannot be denied, recognizes the very special and sensitive nature of temporary transfers. In particular, the transfer of a person in custody always raises security issues and in some instances, the security risk may be too great to permit the transfer. Also, it is important to note that the denial of this particular form of assistance will not preclude the Court from obtaining the relevant evidence, in most instances, as the Court can request the taking of evidence from the person under paragraph 1 (b), as an alternative.

The Statute does not provide grounds for the denial of transfer; but the general obligation to cooperate would mandate the need for clear and serious reasons for any such refusal.

In the alternative to denial, the Court and the requested State may choose to consult about conditions that would have to apply to the transfer for it to proceed.

4. Remaining in custody and returning without delay

This provision ensures that a person who has been transferred to the Court temporarily will not be released from detention by the Court.

⁴⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Version publique expurgée de 'Décision relative à la requête de la Défense de Germain Katanga tendant à l'amendement de la décision sur sa requête visant à obtenir la coopération de la République démocratique du Congo en vue de la comparution de témoins détenus', Trial Chamber II, 3 May 2011, para 6.

- 59 The purpose of a temporary transfer is to allow the Court to proceed with its investigation or prosecution, by having a person transferred there even when they are in custody in the requested State. Accordingly, the person has to return to the requested State once his or her presence at the Court is no longer necessary. It is up to the Court to decide when the purpose of the transfer has been fulfilled. However, the wording does not exclude consultations between the requested State and the Court about the period of time within which the person should be sent back⁴⁵.
- 60 There have been several interesting decisions related to temporary transfer arising from the fact that witnesses transferred to testify have brought asylum claims in the Netherlands. The resulting conflict as between the obligation to return under article 93(7), the requirements of article 68 relating to security and the duty under article 21(3) to ensure interpretations consistent with human rights principles have been vexing for the Court.
- 61 In the case of Katanga and Chui, issues related to the asylum request by three witnesses in that case who had been transferred in custody from the DRC to testify were brought to the attention of the TC through *amicus curiae* applications. The Trial Chamber in its decision on the applications⁴⁶ held that through article 68 ‘the Statute unequivocally places an obligation on the Court to take all protective measures necessary to prevent the risk witnesses incur on account of their cooperation with the Court⁴⁷.’ At the time of the decision no agreement had been reached as between the Registry and Counsel for the witnesses as to whether they could be returned to the DRC without undue risk to their security. The Court called for additional information on that issue. Trial Chamber II went on to examine the implications of the asylum claim on the return of the witnesses. The Chamber considered the applicable human rights principles, including the right to an asylum claim, the ‘*non-refoulement*’ principle, and the right to effective remedy as enshrined in several human rights instruments⁴⁸. On the basis of these principles, the Chamber was of the view that with the pending asylum claims, it was unable at that time to apply article 93(7) of the Statute in a manner consistent with internationally recognised human rights principles as required by article 21(3) of the Statute. Specifically, the TC was of the view that the removal of the witnesses would interfere with their right to pursue the asylum claim. Further obliging the Dutch authorities to transport the witnesses to the airport would be requiring them to violate the *non-refoulement* principle. With the Court apparently acting as arbiter, ultimately assurances were obtained from the DRC which satisfied its concerns in relation to its article 68 responsibilities. As a result, on 24 August 2011 the Court issued a second decision⁴⁹ holding that there were no longer security concerns which provided a basis to delay the return of the witnesses to the DRC. At the same time, Trial Chamber II remained of the view that it was legally impossible to do so, because of the pending asylum claim and the human rights obligations related to the same⁵⁰. In its decision, the Chamber called on the Registry to carry out consultations with the Dutch authorities to try and resolve the situation but to no avail. As a result, the Court was caught in the situation where it no longer had a reason to retain custody of the witnesses as they had completed their testimony and security issues were resolved. At the same time, their return to the DRC was not legally possible given the pending asylum claim. In the opinion of Trial

⁴⁵ For similar provision see article 11 para. 1 of the European Convention on Mutual Assistance in Criminal Matters that provides that the requested State and the requesting State stipulate a period of time within the person transferred shall return to the requested State.

⁴⁶ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on Amicus Curiae application and on the ‘Requête tendant à obtenir présentation des témoins’, Trial Chamber II, 9 June 2011.

⁴⁷ *Ibid.*, para 61.

⁴⁸ Article 8 of the Universal Declaration of Human Rights, article 2 of the International Covenant on Civil and Political Rights, and article 13 of the European Convention on Human Rights.

⁴⁹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on the Security Situation of witness DRC-D02-P-0236, DRC-D02-P-0228 and DRC-D02’, Trial Chamber II, 24 August 2011. P-0350’, ICC-01/04-01/07-3128, 24 August 2011.

⁵⁰ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-3128, 24 August 2011, para 15.

Chamber II the appropriate conclusion was for the Court to maintain custody of the witnesses pending the asylum claim.

In January 2012 the witnesses filed a request for convening a Status Conference. The witnesses sought to be released from custody on the basis that the Court no longer had the authority to detain them and indicating that there was no Congolese detention order in place for them. In its decision⁵¹ Trial Chamber II noted that the power to detain flowed from article 93(7) and a combination of the Congolese detention order and the asylum claim pending in the Netherlands. Importantly, the Chamber recognized that it had no ability to review the detention of the witnesses by the DRC. The Trial Chamber correctly relied on the fact that the Congolese authorities had not advised as to any change in detention status and as a result the Court remained under an obligation pursuant to article 93(7) to hold the witnesses in custody. This finding was critical to the effectiveness of article 93(7) in this and future cases.

At the same time the Court recognized that it should facilitate the ability of the witnesses to participate in any Congolese proceedings. Evidently, this was a pragmatic addition by the Trial Chamber, given the unexpected length of detention of the witnesses in the Netherlands. As to the continued detention arising from the asylum proceedings, the Trial Chamber reiterated the need for the same but did recognize that the situation could not be maintained indefinitely. In an effort to move forward the Trial Chamber requested the Dutch authorities to advise if they were prepared to take custody of the witnesses and if there was an obligation to do so under the Headquarters agreement.

In these series of decisions Trial Chamber II had to ‘prioritize’ Statute obligations which could not necessarily be reconciled. Properly, the Chamber interpreted article 68 to place an absolute obligation on the Court to ensure the security of witnesses who have cooperated with the Court, giving that requirement precedence over the obligation to return under article 93(7). While arguably a limitation which could in future weaken potential cooperation in witness transfers, on balance primacy to protection of the security of the witnesses appears appropriate. Less convincing is the Trial Chamber’s analysis as to the requirement for the Court to retain custody in apparent breach of its article 93(7) obligations, premised on principles associated to asylum claims, which were outside of the Court’s purview. Moreover these were claims brought through the action of the witnesses, independent of their status as ICC witnesses and unrelated to their cooperation with the Court. The reasoning of the decisions appears to give insufficient consideration to the direct obligations on the Court under article 93(7) and to the potential resulting damage to that particular cooperation mechanism of temporary transfer.

Ultimately the issue came to the attention of the Appeals Chamber. In February 2013, the witnesses who remained in custody in the Hague filed an application to be released. This post-dated the severance of the Katanga and Ngudjolo cases and the acquittal of Mr. Ngudjolo on 18 December 2012. The Trial Chamber dismissed the request as inadmissible on 1 October 2013⁵² and the Appeals Chamber similarly dismissed the appeal⁵³ However, simultaneously, the Appeals Chamber issued an order of 20 January 2014 to enforce the cooperation agreement with the DRC⁵⁴ Interestingly, the Appeals Chamber considered that as there was an appeal pending before it by the Prosecution with respect to the acquittal of

⁵¹ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on the Urgent Request for Convening a Status Conference on the Detention of Witnesses DRC-D02-P-0236, DRC-D02-P-0228, and DRC-D02-P-0350, Trial Chamber II, 1 March 2012.

⁵² *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on the application for the interim release of detained Witnesses DRC- D02-P-0236, DRC-D02-P-028 and DRC-D02-P-0350, Trial Chamber II, 1 October 2013.

⁵³ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07 A, Decision on the admissibility of the appeal against the Decision on the application for the interim release of detained Witnesses DRC- D02-P-0236, DRC-D02-P-028 and DRC-D02-P-0350’, Appeals Chamber, 20 January 2014.

⁵⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07 A, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of the Congo concluded pursuant article 93 (7) of the Statute, Appeals Chamber, 20 January 2015.

Mr. Ngudjolo it had the jurisdiction to deal with any matters related to that appeal, *proprio motu* if necessary, and including the question of the detention of the witnesses. On that basis it went on to issue an order in which it addressed the status of the detention of the witnesses. The analysis of the Appeals Chamber clearly highlights the competing interests which included the obligations under the Statute, the impact on future requests for cooperation in temporary transfers, the adverse effects with the relationship with the host country and the applicable human rights principles relating to asylum and *non-refoulement*. Though recognizing the need to apply and interpret the Statute in conformity with international human rights standards as set out in article 21(3) of the Statute, the Appeals Chamber rejected that this required the Court to violate the requirements of article 93(7) to return the person to the requested State. The Appeals Chamber rightly noted the potential damage to cooperation relationships and the ability to obtain critical witness evidence from such a conclusion. Importantly, the Chamber also recognized its ability to detain must be related to proceedings before the Court and that its powers in that respect did not extend to detention related to an asylum claim. Noting that the transfer of detained persons is a matter to be coordinated with the host state under the Host State agreement and rule 192, the Court was of the view that it was for the Netherlands to determine if it needed to take control of the witnesses in the course of those transport arrangements, until their asylum claims had been fully adjudicated. On this basis the Appeals Chamber ordered the immediate implementation of the requirement in article 93(7)(b) to return the witnesses in consultation with the Dutch authorities.

- 65 The interpretation of the Appeals Chamber is consistent with wording and intention of article 93(7) given that the return of the witness upon fulfillment of the purpose of the transfer – in this case testimony – is an essential component of a temporary transfer arrangement. While the asylum claims evidently complicated the situation, it appears appropriate that the decisions regarding the right to an effective remedy and the principle of *non-refoulement* should rest with the responsible authority which is the Host State, as opposed to the Court. The balance set by the Appeals Chamber is an appropriate one which gives proper weight and consideration to the Court's obligations under article 93(7) and the potential damage to the cooperation regime from failing to fulfil those obligations. It also represented an elegant solution to the apparent conflict between article 93(7) and article 21(3) by properly assigning responsibility for the human rights concerns related to the asylum claim to the responsible authority – the State to which the claim has been presented.
- 66 Four months later, despite the order, the Registry had failed to comply, necessitating a second order from the Appeals Chamber requiring immediate action to return the witnesses to the DRC. As the Registrar's submissions were confidential it is not known what the specific hurdles to implementation were, but the competing interests arising from the refugee claims and the Court's obligations under the agreement must have been at the root of the dilemma.

VIII. Paragraph 8

1. Confidentiality of documents and information

- 67 Documents and information available to the Court can only be used for the purposes of investigations and criminal proceedings⁵⁵. In addition, those documents and any such information have to be kept confidential, except to the extent the material must be disclosed within the context of the investigation or prosecution for which it was requested.

⁵⁵ The limited use of information only for the purposes of investigation and prosecution also pertains to personal data that has been transferred to the Court.

2. Transmitting ‘documents or information to the Prosecutor on a confidential basis’

Upon the request of the Court for the provision of documents, the requested State may 68
require that these documents be kept strictly confidential and not be used as evidence in
court or disclosed in any other manner. But it can be used as a source for pursuing other
leads in the investigation.

3. Subsequent disclosure of documents or information

The purpose of the provision is to allow for the disclosure of confidential data at a later 69
stage, *e.g.*, when the reason why the requested State claimed confidentiality is no longer valid
or if the use of the evidence becomes critical to the prosecution, such that it may now
outweigh the need for confidentiality. The requested State may authorize disclosure either at
its own initiative or upon request of the Prosecutor. In both cases, it is at the discretion of the
requested State whether the data will be disclosed. However, where the requested State is a
State Party, given the general obligation to cooperate with the Court, it is expected that if the
evidence is important, permission for disclosure would be given.

Disclosed data even if originally confidential can be used as evidence in the criminal
proceedings of the Court, in accordance with the Statute and the Rules.

IX. Paragraph 9

1. Competing requests, other than for surrender or extradition

a) **Consultation to meet both requests.** The provision only applies to requests for other 70
forms of assistance, not to requests for extradition or surrender as the latter are exhaustively
dealt with by article 90. It was difficult for the negotiators of the Statute to agree upon a
ranking of competing requests and in the case of other forms of assistance, unlike surrender,
in most instances the matter could be resolved by providing the requisite assistance to both
parties. For example, if a request is made for the production of the same documents, copies
can be provided to both requesting parties. Thus, this paragraph leaves the matter to be
resolved by the requested State, the Court and the requesting State in any single case.

In recognition of practical realities, the requested State shall try and comply with both
requests, in accordance with its international obligations deriving from this Statute and
multilateral or bilateral treaties between the requested State and the requesting State. If this
cannot be accomplished simultaneously, then postponement or conditions may be required.

b) **Resolving ‘in accordance with the principles established in article 90’.** Article 90 of the 71
Rome Statute establishes a detailed mechanism for dealing with competing requests for
extradition and surrender. If the competing requests for other assistance cannot be resolved
through the process outlined in (i), then the detailed provisions of article 90 will apply. For
the content of these provisions, reference is made to the commentary on article 90.

2. Information, property or persons subject to the control of a third State or an international organization

The requested State can only comply with a request, the execution of which is within its 72
responsibility. If the information, person or item required by the Court is subject to the
control of a third State or an international organization, the requested State is not obligated
to comply with the request. Instead it shall advise the Court of the problem and the Court is
then under an obligation to pursue the matter with the third State or international
organization. This provision recognizes that records or evidence sought may be within the

territory of a State, but outside of their control. Similar to article 98, this provision obligates the Court to pursue the request with the relevant controlling party.

X. Paragraph 10

1. Cooperation with and providing assistance to a State Party

- 73 This paragraph applies the article to requests directed to the Court by a State Party. The Court will provide assistance upon request only. While a State Party is obliged to comply with a request by the Court, the Court is not obligated to cooperate with a State Party. Pre-Trial Chamber II in considering a request for assistance submitted by Kenya to the Court pursuant to this article confirmed this noting ‘a literal reading of article 93(10) of the Statute makes clear that the Court is under no obligation to comply with a cooperation request submitted by a State. This is evident from the usage of the verb ‘may’ in the opening of article 93(10)(a) of the Statute⁵⁶.’ This discretion reflects a balance. States which advocated for mandatory assistance by the Court emphasized that the Court may have significant evidence for domestic cases. Other States noted that a mandatory requirement could place an onerous burden on the resources of the Court and could be used to disrupt the Court. The inclusion of a discretionary provision was a compromise of these two positions. Pre-Trial Chamber II went on to clarify that this interpretation did not mean that such requests would be automatically rejected. Rather, each request and its supporting material would have to be considered with reference to the provisions in the Statute and rules, and determined on its merits, a finding which is completely consistent with the discretionary nature of the power. The government of Kenya appealed the Pre-Trial Chamber decision but the Appeals Chamber dismissed it as inadmissible⁵⁷.
- 74 The Court will provide assistance only with respect to offenses within its jurisdiction⁵⁸ and to serious crimes under the national law of the requesting State. This is a further limit on the demands which can be made on the Court.
- 75 Rule 194 provides some procedural detail for the application of this paragraph by specifying that the request must be in or translated into one of the working languages of the Court. The request should be sent to the Registrar who will transmit it to the appropriate body within the Court. If a request is granted insofar as possible steps should be taken to execute it following any procedure outlined by the requesting state and allowing for relevant persons to participate in the evidence gathering process. This mirrors the important principles of cooperation which are captured in respect of State to Court assistance in article 99 para. 1.
- Special concern was expressed about situations where the cooperation sought might touch on scenarios where protective measures have been adopted. Sub-rule 2 of Rule 194 addresses this point by requiring that the views of the Chamber that issued the measures and of the relevant witness or victim be taken into account before a decision is made on the request.
- 76 Pre-Trial Chamber II in considering the application by Kenya pragmatically restricted its capacity to rule on such matters to instances where the request is directed to the Chamber or where the Chamber’s intervention is necessary for statutory reasons such as those set out in rule 194(3) and (4)⁵⁹. In so doing, the Chamber relied on the use of the word ‘Court’ with its

⁵⁶ ICC-01/09-63, Decision on the Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence, Pre-Trial Chamber II, 29 June 2011 para 29.

⁵⁷ Decision on the admissibility of the ‘Appeal of the Government of Kenya against the “Decision on the Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence”’ ICC-01/09 OA, Appeals Chamber, 10 August 2011.

⁵⁸ Goia, *ibid.*, 90 *et seq.*, this should be construed broadly so as to include conduct within the meaning of articles 5 to 8, while remaining outside the Court’s jurisdiction *ratione loci, personae vel temporis*.

⁵⁹ Rule 194 (3) addresses cases where protective measures are applicable to the evidence sought and Rule 194(4) relates to material for which State consent is required.

constituent organs and the specific references to both the Prosecutor and Chambers in rule 194, in finding that a request for cooperation can be properly addressed to either. Logically, the Pre-Trial Chamber went on to restrict its ability to order cooperation to those instances where the material sought is in the possession of the Chamber. The Chamber properly accords full power to the Prosecutor to respond to any request which seeks information which is solely in the possession of the Prosecutor. This appears to be an appropriate and pragmatic approach to the discretionary power arising under article 93(10) as it gives authority over the relevant decisions to the organ of the Court which will be best placed to determine if it is in the interests of the Court to disclose the material. Also in terms of undertakings given to States, it ensures that the relevant part of the Court which received the information from States will be the body responsible to fulfil any commitments made in terms of the subsequent release of the material. Applying these principles to the particular case, the Chamber considered which statements, documents, evidence related to the post-election violence in Kenya – as sought – were actually in its possession. It noted in that regard that material presented by the Prosecution or disclosed to the Pre-Trial Chamber under rule 121(2) c would be material within its possession. In accordance with the plain language of the article, the Court found that for such a request to be granted certain requirements had to be met by the requesting State Party. The State Party must have either conducted an investigation, or be doing so with respect to conduct which constitutes a crime within the jurisdiction of the Court or a serious crime under national law. Also, the request must satisfy the remaining relevant requirements set out in articles 93(10) and 96 of the Statute, and rule 194 of the Rules relating to the requirements for the content of such requests. In the specific case, the Chamber was of the view that the ‘unsubstantiated Cooperation Request’ submitted by Kenya failed to meet the first requirement of demonstrating that an investigation had been or was being conducted. On that basis the request was rejected. As indicated, the analysis of the PTC in the case confirms the discretionary nature of decisions under this article, while calling for a reasoned consideration of the facts in each case. It also properly attributes responsibility to the relevant organs of the Court as discussed. Finally, it accords due and full weight to the statutory language in setting out the specific requirements which must be met by the requesting State before consideration can be given to the exercise of the discretion in favour of the request presented by that State.

Pre-Trial Chamber II entertained a second request for assistance submitted by the Government of Kenya⁶⁰. On this occasion Kenya sought the disclosure of material contained in public annexes or filings before the Court. The Pre-Trial Chamber rightly dismissed these claims, noting no authorization was required for such information which was in the public domain. With reference to the remainder of the request which sought confidential material, the Chamber rejected the request based on the Prosecutor’s update report and the Victims and Witnesses Unit’s security report, both of which supported ongoing security concerns with respect to witnesses and the leakage of confidential material. The Chamber, relying on article 93(10)(b)(ii) and Rule 194(3), specifically recognized that ‘a key requisite for the release or transmission of any documents within the Court’s possession is to ensure that such an act would not, *inter alia*, put at risk the safety and physical well-being of victims and witnesses’. The decision establishes that in the exercise of the discretionary power under article 93(10), a priority consideration will be the protection of victims and witnesses in accord with the overarching responsibility of the Court in that regard.

2. Scope of cooperation

a) Assistance provided under subparagraph (a). The list of types of assistance under subparagraph (b) is not exclusive. In principle, a State Party may request any form of

⁶⁰ Decision on the Second Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence, ICC-01/09-97, Pre-Trial Chamber II, July 12, 2012.

assistance. The examples mentioned only illustrate the most common forms of assistance that may be needed by a State Party.

79 **aa) Transmission of statements, documents or other types of evidence.** Evidence already gathered by the Court may be of use to a State Party in a domestic investigation or prosecution. This provision, which allows the Court to share such information, will avoid duplication of effort and resources.

80 **bb) ‘questioning of any person detained by order of the Court’.** A State Party may request the questioning of a person detained by the Court in order to use the record of the questioning in its court proceedings or use the statement obtained to further its investigation or prosecution.

The provision does not provide how the questioning should be conducted. The State Party may specify in its request the conditions that are relevant under its national law. In the absence of such specification, the Court will conduct the questioning in accordance with the rules applicable if the person was to be questioned for the purpose of an investigation or prosecution by the Court.

81 **b) Assistance under subparagraph (b) (i) a.** The provision relates to statements or documents obtained by the Court, which are requested by a State Party.

82 **aa) Documents or other types of evidence obtained with the assistance of a State.** If evidence is transmitted to the Court by any State, the Court is obliged under paragraph 8 (a) to keep the documents confidential, except as required for its investigation or prosecution. Thus, the State which has provided the documents has an expectation that the material will not be disclosed by the Court to a third State. This provision recognizes that and requires the consent of the State which provided the documents originally. On a practical level, this provision recognizes that States would not provide the Court with information if it had to fear that this information could be transferred to other States, without its consent. It also allows the Court to meet its obligations under paragraph 8, unless released from them by the original State which transmitted the information.

Sub-rule 4 of rule 194 further clarifies that it is the relevant body responsible to respond to the request – the Prosecutor or the Chamber – that must seek the written consent of the relevant state.

83 **bb) Evidence provided by a witness or expert ‘subject to the provisions of article 68’.** Witnesses and experts who provide the Court with information and documents may need special protection⁶¹. The provision takes into account that they may need the same degree of protection if the information provided is disclosed to a third State for the purpose of investigation and prosecution in that State and applies that protection accordingly.

3. Request for assistance from a State which is not a Party to the Statute

84 This provision is the basis for States not Parties to the Statute to seek assistance by the Court. The Court has the complete discretion to comply with such a request or not.

The Rome Statute does not cover a request for assistance to the Court by international organizations as they do not normally have the power to conduct criminal investigations and proceedings. However, it does not prohibit the Court from disclosing information to an international organization upon its request for the conduct of investigations in relation to an armed conflict. The compliance with such a request is at the discretion of the Court. If the Court agreed to comply, it has to follow the rules laid out in Part 9 and in their Rules as applicable.

⁶¹ See article 68.

Article 94
Postponement of execution of a request in respect of ongoing investigation or prosecution

1. If the immediate execution of a request would interfere with an ongoing investigation or prosecution of a case different from that to which the request relates, the requested State may postpone the execution of the request for a period of time agreed upon with the Court. However, the postponement shall be no longer than necessary to complete the relevant investigation or prosecution in the requested State. Before making a decision to postpone, the requested State should consider whether the assistance may be immediately provided subject to certain conditions.

2. If a decision to postpone is taken pursuant to paragraph 1, the Prosecutor may, however, seek measures to preserve evidence, pursuant to article 93, paragraph 1 (j).

Literature: See Preliminary Remarks on Part 9.

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A. Introduction/General remarks

As noted, one of the central issues in the Part 9 negotiations was grounds of refusal, with 1
some States advocating for no grounds of refusal; others for enumerated specific grounds. One of the grounds in issue was reflected in the Draft Statute at article 90 para. 2 option 2 (e)¹, the need for a State to protect its own domestic investigations or prosecutions² by refusing assistance, where it would interfere with an ongoing domestic matter. Two issues were raised by this ground of refusal, which were ultimately addressed in this article and article 95. The first was the appropriate remedy where there was an ongoing domestic matter, different from that being conducted by the Court; the second the remedy in the case where the requested State is conducting an investigation or prosecution of the same matter. While article 95 covers all forms of requests under Part 9, article 94 only pertains to requests for forms of cooperation other than surrender with article 89 para. 4 being its counterpart as far as requests for surrender are concerned.

With respect to both issues, there was agreement that the appropriate remedy in either 2
instance would be some form of postponement, as opposed to refusal. As any interference with an ongoing domestic matter will end upon completion of that matter, it is not appropriate for a State to refuse assistance, since at a later time execution will not pose a problem. This position was also consistent with general international mutual assistance practice as evidenced by article 4 para. 3 of the United Nations Model Treaty on Mutual Assistance³.

¹ UN Doc. A/CONF.183/2/Add.1, p. 170.
² As in the case of article 89 para. 4 the national proceedings must be genuine; cf. Krefß and Prost, article 89, mn 55.
³ UN Doc. A/CONF.144/28/Rev.1.

- 3 However, the controversial issue which remained was what limitations, if any, should be placed on the requested State's ability to postpone. Again the views diverged as to whether the requested State or the Court should have the ultimate control. In the end, the compromise achieved was, neither or both, depending on perspective, would have an automatic priority. Postponement is for a period of time 'agreed upon with the Court'. This language, specially chosen, connotes that both the Court and the State will take a reasonable approach and will be able to reach an agreement on the length of any postponement. Where the requested State clearly acts unreasonably, the Court may so determine⁴. The provision includes other requirements intended to keep the instances of postponement to a minimum, including a requirement that in no case can postponement extend past completion of the domestic matter and one that encourages the requested State to consider alternatives to postponement.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Immediate execution interferes with different ongoing investigations or prosecutions

- 4 This phrase relates to an instance where the case being dealt with in the requested State is different from the case to which the request by the Court relates. This, of course, raises the scenario of lesser offences permitting postponement. For example, if a person who allegedly has committed the crime of genocide is being investigated by the Prosecutor and is also suspected of having committed a robbery within the jurisdiction of the requested State, the requested State may postpone immediate execution of a request by the Court, if the execution of that request could impede criminal proceedings in the robbery case.

However, if the requested State is a State Party to the Rome Statute, while there is no specific statement in this provision, the general obligation of a State Party under articles 86 and 93 of the Rome Statute, leads to the implication that the requested State Party will seriously examine whether the case under investigation is of such a gravity that it justifies the postponement of the execution of a request by the Court.

2. Postponement for a period agreed upon

- 5 If a State Party is of the opinion that the execution of the request by the Court would interfere with the investigation and prosecution of a case pending in the requested State Party, it may consult with the Court about the postponement of the execution of the request. A State Party is not permitted to simply refuse assistance but is obliged to seek a solution in cooperation with the Court. The use of the term 'agreed upon with the Court' implies that the time of postponement must be agreeable to both Parties acting reasonably.

3. Time limit

- 6 In any event, the postponement of execution of a request by the Court cannot be for a longer period than necessary to complete the investigation and prosecution of the case in the requested State. The wording of sentence two lays out a guideline for the consultations under sentence 1 of the paragraph.

⁴ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 238.

4. Immediate assistance subject to conditions

In accordance with its obligation to comply with a request by the Court under article 93(1)(a) requested State Party has to examine all possibilities to execute the request before postponing. It will consult about the conditions with the Court. 7

If the requested State is not a State Party, it is not under an obligation to comply with a request. However, if it has decided to do so in principle, it should postpone the execution of the request only if there are no other options to accommodate its own interest in the investigation and prosecution of its case.

II. Paragraph 2: Preservation of evidence, pursuant to article 93, paragraph 1 (j)

If the immediate execution of a request by the Court is postponed, the risk is that evidence may no longer be available when the request eventually will be executed. In such a case, the Prosecutor may request the preservation of evidence pursuant to article 93(1)(j). While it is not explicitly stated, the very purpose of the provision implies that the requested State Party cannot postpone the execution of that request. The purpose of the provision is to balance out the interest of the Court in collecting valuable evidence by means of legal assistance on the one hand, with the interest of the requested State to conduct its own investigations without interference, on the other hand. 8

Article 95

Postponement of execution of a request in respect of an admissibility challenge

Where there is an admissibility challenge under consideration by the Court pursuant to article 18 or 19, the requested State may postpone the execution of a request under this Part pending a determination by the Court, unless the Court has specifically ordered that the Prosecutor may pursue the collection of such evidence pursuant to article 18 or 19.

Literature: See Preliminary Remarks on Part 9.

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A. Introduction/General remarks

- 1 Article 95 was inserted as part of the overall resolution of the issue of a ground of refusal in the case of a challenge to admissibility or jurisdiction. Reflecting the position of a number of States, the Draft Statute contained as article 90 para. 2 option 2 (e)¹ a ground of refusal in the case of an ongoing domestic investigation or prosecution, into the same matter, unless the case had already been ruled admissible. Other States were strongly opposed to this ground of refusal both generally (being opposed to any grounds of refusal) and particularly, because of the potential for use of such a provision to undermine the effectiveness of the scheme provided for in articles 17, 18 and 19 to address issues of jurisdiction and admissibility. Such a ground of refusal would allow a State to ignore any notification provided to it under article 18, proceed with a domestic investigation or prosecution without advising the Court and then decline to provide assistance in that case to the Court. This could result in significant duplication of effort and would be contrary to the intent of the scheme of the Statute, to have complementarity issues dealt with as expeditiously as possible under the articles designed for that purpose.
- 2 At the same time, all States involved in the debate recognized that it would not be beneficial to the State or the Court to require compliance with a request where admissibility or jurisdiction were an issue and the matter was yet to be determined by the Court. For this reason, article 95 was included to allow for the postponement, as opposed to refusal, of the request in the limited circumstances where an actual challenge is before the Court. However, consistent with the content of articles 18 and 19, postponement will not be possible if the particular assistance sought has been authorized by the Pre-Trial Chamber pursuant to those articles.

B. Analysis and interpretation of elements

1. Postponement because of an admissibility challenge pursuant to article 18 or 19

- 3 The provision does not address the case where the Prosecutor determines that the case is inadmissible, but deals with those cases where the jurisdiction of the Court or the admissibility of the case has been challenged pursuant to article 18 or 19 of the Rome Statute.

¹ UN Doc. A/CONF.183/2/Add.1, p. 170.

While an admissibility or jurisdiction challenge is pending before the Court, the requested State may postpone the execution of a request be it for surrender or for another form of cooperation. The requested State may proceed with its own investigations according to its national law or take no action in the matter, until the question is resolved. This practical provision makes it clear that a State need not invest time and effort into a request, when it may be determined that the case is not admissible or that the Court does not have jurisdiction.

Pre-Trial Chamber I gave detailed consideration to the interpretation of article 95 in its June 2012 decision on an urgent application brought by Mr. Al-Senussi seeking an order to compel Libyan authorities to comply with their obligation to the ICC². The Chamber, relying on previous decisions³, reaffirmed that the cooperation obligation placed on Libya by Security Council Resolution 1970 (2011) means that the legal framework of the Statute, including Part 9, is applicable to Libya, including in this instance article 95.

The Chamber went on to interpret article 95, addressing an argument advanced, on the basis of its placement⁴, that it was applicable only to 'other forms of cooperation'. The Chamber convincingly relies on the plain wording of the article – which is general to requests made under this Part – in support of its interpretation that the article encompasses all forms of requests including those for arrest and surrender. Less compelling is the Chamber's explanation for the reference to 'such evidence' in article 95 which, by its plain reading, qualifies the request to be postponed as relating to evidence, as opposed to arrest and surrender. The Chamber's finding that article 95 simply mirrors the safeguards in articles 18 or 19 would be justified but for the word 'such' which qualifies the reference to evidence and clearly relates it to the nature of the request.

Nonetheless, while this reference and the placement provide some support for the limited interpretation, the Chamber's conclusion is best supported by the policy rationale articulated. The Chamber emphasised the central role of the principle of complementarity in the legal framework of the Rome Statute and adopted an interpretation most consistent with the same:

'The suspension of the investigation and the corresponding postponement of the cooperation requests is one major consequence of this principle. It would be untenable for the Court to insist on compliance with a request for arrest and surrender, even at the risk of hampering the national proceedings, while its own investigation is suspended⁵.'

Adopting this interpretation the Chamber was of the view that article 95 could be raised with respect to a request for arrest and surrender, as well as other forms of cooperation. It is worth noting the practical benefits of this interpretation which avoids the possible situation where resources are expended – perhaps in very difficult situations because of security concern – to effect an arrest and surrender, only to have a finding that the case is inadmissible and the prisoner needs to be returned.

On the facts of the case, the Chamber was satisfied that Libya had properly presented an admissibility challenge which was pending before the Court and, therefore, execution of the request for arrest and surrender could be postponed. The Chamber cautioned, however, that this was only a temporary postponement such that Libya must be in a position to immediately arrest and surrender Mr. Ghaddafi should the case be ruled admissible and further noted Libya's continuing obligation to cooperate with the Court.

² *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, Pre-Trial Chamber 1, 1 June 2012.

³ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision 1 June 2012, para. 12.

⁴ Articles 89 to 92 of Part 9 are all specific to requests for arrest and surrender. Articles 93 and 96 and arguably 94 are specific to requests for other forms of cooperation. Further, the reference in the last line of article 95 'the collection of such evidence' also supports the narrower interpretation that the article was intended to be applicable solely to requests for other forms of cooperation and not those related to arrest and surrender.

⁵ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision 1 June 2012, para. 36.

- 10 Sadly these two admonitions by the Chamber have been without effect. On 31 May 2013 the Pre-Trial Chamber decided that the case against Mr. Ghaddafi was admissible⁶ and this finding was upheld by the Appeals Chamber on 21 May 2014⁷. To date Libya has yet to comply with the obligation to surrender Mr. Ghadafi. Thus while the interpretation accorded by the Pre-Trial Chamber was strongly supportive of the principle of complementarity underpinning the Rome Statute, the actions of the State have rendered it meaningless in practical application.
- 11 Pre-Trial Chamber I has also affirmed⁸ that article 95 is only applicable on the basis of an admissibility challenge which is under consideration by the Court. Thus, it rejected the arguments advanced by Libya that its intention to present such a challenge in the case of Mr. Al-Senussi, as evidenced by various filings, was sufficient. The Chamber also clarified that particularly in light of the specific argument advanced by Libya at the time, an admissibility challenge advanced with reference to a different individual – Saif Al-Islam Gaddafi – could not form the basis for an article 95 postponement of execution with respect to the request for arrest and surrender relating to Mr. Al-Senussi. On this point, the Chamber also rejected the argument of Libya that there was an admissibility challenge pending against Mr. Al-Senussi (specifically the application made on 1 May 2012 in the case of Mr. Gaddafi) which required the addition of some further details. In support, the Chamber noted the Appeals Chamber decision which requires that States present admissibility challenges which are accompanied by sufficient evidence, without relying on any ‘right’ to supplement the record subsequently. In sum, the Chamber was of the opinion that the actions taken by Libya at that stage with reference to an admissibility challenge were not sufficient to trigger the postponement power in article 95. As a result the Chamber affirmed that Libya was under an obligation to proceed immediately with the arrest and surrender of Mr. Al-Senussi.
- 12 This decision, evidently consistent with the requirements of the Statute, had little practical effect. No action was taken by Libya to comply with the obligation stated by the Court to turn over Mr Al-Senussi. Instead, on 2 April 2013, seven months after Mr. Al-Senussi was extradited to Libya from Mauritania, Libya filed an admissibility challenge in his case. On a defence challenge, the Chamber was required then to consider the question of the applicability of article 95, in light of that development, in Decision on Libya’s postponement of the execution of the request for arrest and surrender of Abdullah Al-Senussi pursuant to article 95 of the Rome Statute and related Defence request to refer Libya to the UN Security Council⁹.
- 13 The Chamber clarified that a State does not have to seek ‘pre-authorization’ from the Court in order to rely on a statutory presumption – in this case allowing it to defer taking action on a request for surrender. However, postponement is provided for solely where the pre-requisite of an admissibility challenge before the Court is met. The Chamber found that when a dispute arises as to whether these pre-requisites for the application of article 95 of the Statute are met, such dispute cannot be unilaterally settled by the State. It is for the Chamber to determine whether an admissibility challenge has been duly made within the terms of the applicable statutory provisions. As a result, the Chamber, while recognizing the prerogative of the State to postpone surrender, went on to consider whether there was a proper admissibility challenge by Libya under consideration by the Court.

⁶ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision on the admissibility of the case against Saif Al-Islam Gaddafi, Pre-Trial Chamber 1, 31 May 2013.

⁷ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11 OA 4, Judgment on the Appeal of Libya against the decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the admissibility of the case against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014.

⁸ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision on the ‘Urgent Application on behalf of Abdullah Al-Senussi for Pre-Trial Chamber to order the Libyan Authorities to comply with their obligations and the orders of the ICC’, Pre-Trial Chamber 1, 6 February 2013.

⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision on Libya’s postponement of the execution of the request for arrest and surrender of Abdullah Al-Senussi pursuant to article 95 of the Rome Statute and related Defence request to refer Libya to the UN Security Council, Pre-Trial Chamber 1, 14 June 2013.

After a factual analysis, the Court was of the opinion that Libya had brought such a challenge which was pending before the Court¹⁰. Unfortunately, the Chamber summarily dismissed the 7 month delay in bringing the challenge as a factor to be assessed finding that ‘the information before the Chamber does not appear to indicate that Libya, despite being in a position to properly and timely challenge the admissibility of the case against Mr Al-Senussi, unduly failed to do so, in violation of article 19(5) of the Statute.’ There is no factual material referenced in support of this finding making it difficult to determine on what basis the Court considered that the extensive delay was consistent with the obligations on the State to immediately arrest and surrender or to bring an admissibility challenge in a timely manner. Evidently, it may well have been the factual circumstances in Libya at the time which justified this conclusion but it would have been helpful if the Chamber had pointed to the same by way of justification, rather than leaving an unexplained decision which allows States significant leeway in terms of the core obligations of Part 9.

The Chamber went on to address the defence argument that the previous non-cooperation by Libya in obtaining and maintain custody of Mr. Al-Senussi, despite the Court’s request for his arrest and surrender, should affect the availability of an article 95 postponement. The Chamber adopted a narrow and literal interpretation of article 95 noting that, whether the State had previously failed to cooperate was not the issue. Rather the sole question was whether there was now a proper admissibility challenge before the Court which allowed for the postponement under article 95. The Chamber stated that while the non-cooperation ‘might be relevant in another context and for other statutory purposes’ it did not have the potential to preclude the application of article 95 of the Statute on the basis of an admissibility challenge properly made.

Similarly, the Chamber did not consider that the failure of Libya to halt domestic proceedings while the admissibility challenge was pending should prejudice its article 95 submission. It also expressed the view that this did not equate to non-cooperation insofar as such proceedings did not prevent or delay arrest and surrender in future should the case be found admissible. The Chamber further emphasized that the decision with respect to the article 95 application in no way altered Libya’s continuing obligations to cooperate with the Court as mandated by the Security Council and in accordance with the Statute. Finally, the Chamber also rejected the argument advanced on whether Libya was investigating the same case on the basis that it was an issue which was integral to the article 17 determination and best left to be determined in that context.

While the interpretation accorded to article 95 is consistent with the wording of the Statute, it creates a dangerous precedent in terms of the policy behind it. In essence, it opens up the possibility for States to ignore the obligation to arrest and surrender, until such time that an application is brought to compel action. In this case, the facts were even more disturbing in that Libya failed to take any action in response to the Chamber’s finding in February that it was required to immediately arrest and surrender Mr. Al-Senussi to the Court. Instead, only as a result of the second defence application, seeking a finding and referral to the Security Council, did Libya take steps to launch an admissibility challenge. At the least, the cases illustrate the need for the Court to take action immediately in the face of non-compliance. In this instance, it would have been preferable if the Chamber had made a finding of non-compliance and referred the matter to the Security Council in its February decision which found article 95 to be inapplicable.

2. Orders for collection of evidence pursuant to article 18 or 19

This provision constitutes a restriction on the ability of the requested State to postpone assistance in the case of an admissibility challenge. It recognizes that a request which has been presented after the Pre-Trial Chamber or the Court authorizes the preservation or

¹⁰ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah al-Senussi*, ICC-01/11-01/11, Decision 14 June 2013, paras 29–33.

collection of evidence pursuant to articles 18 para. 6 and 19 para. 8, cannot be postponed because the admissibility ruling is pending. A request presented in these circumstances will have been determined already by the Court to be necessary for the reasons outlined in the provisions concerned. Therefore, it would be inappropriate to allow the requested State Party to overrule this finding by the Court.

- 19 This provision is distinct from article 94 para. 2 where the prosecutor can request solely the preservation of evidence in the face of postponement for a domestic matter. Here the range of requests is broader¹¹. In the former case, the prosecutor is restricted to a specific request for the preservation of evidence, presumably because the need for a wider range of options is not as pronounced when dealing with postponement in the face of an unrelated domestic investigation. The scope of application of article 95 para. 2 of the Statute extends beyond that to the types of measures outlined in article 19 para. 8.

¹¹ See articles 18 para. 6 and 19 para. 8.

Article 96

Contents of request for other forms of assistance under article 93

1. A request for other forms of assistance referred to in article 93 shall be made in writing. In urgent cases, a request may be made by any medium capable of delivering a written record, provided that the request shall be confirmed through the channel provided for in article 87, paragraph 1 (a).

2. The request shall, as applicable, contain or be supported by the following:

- (a) A concise statement of the purpose of the request and the assistance sought, including the legal basis and the grounds for the request;
- (b) As much detailed information as possible about the location or identification of any person or place that must be found or identified in order for the assistance sought to be provided;
- (c) A concise statement of the essential facts underlying the request;
- (d) The reasons for and details of any procedure or requirement to be followed;
- (e) Such information as may be required under the law of the requested State in order to execute the request; and
- (f) Any other information relevant in order for the assistance sought to be provided.

3. Upon the request of the Court, a State Party shall consult with the Court, either generally or with respect to a specific matter, regarding any requirements under its national law that may apply under paragraph 2 (e). During the consultations, the State Party shall advise the Court of the specific requirements of its national law.

4. The provisions of this article shall, where applicable, also apply in respect of a request for assistance made to the Court.

Directly Relevant Rules of Procedure and Evidence: Rule 190.

Literature: See Preliminary Remarks on Part 9.

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A. Introduction/General remarks

Article 96 is procedural in nature and in content. It provides important practical information for the requests for other forms of cooperation. It is similar in that respect to article 91, which outlines the content of a request for arrest and surrender. This article details what information must be included in a request for other forms of cooperation. 1

Like article 91, this article recognizes that cooperation will be effected through reliance upon national procedural laws and that therefore it will be necessary for the Court to provide sufficient information to comply with those procedures. Article 96 para. 2 (e), which parallels

article 91 para. 2 (c), requires that the request include such information as may be required by the law of the requested State for the request to be executed. Article 96(2)(e) however is more restricted than article 91(2)(c) in that the requirement is specific to information, in recognition of the practical differences between procedures for the production of evidence and those for the surrender of a person. This subparagraph raised similar concerns to those described under article 91, but here the matter was much less controversial as most States, of all legal traditions, require some minimum information to carry out measures such as a search or to compel a person to provide a testimony.

B. Analysis and interpretation of elements

I. Paragraph 1: Requests in writing, urgent cases and their confirmation

- 2 The provision states that, as a rule, requests for assistance should be in writing.
- 3 In *urgent cases*, a request may be delivered by means of modern telecommunication such as fax or e-mail, under the condition that a written record of the request will be created by that method of communication.
- 4 If the request was transmitted by fax or e-mail or any other means of communication referred to above, it has to be confirmed through the diplomatic channel or those channels that the State Party has designated upon ratification, acceptance, approval of or accession to the Rome Statute pursuant to article 87(1)(a).
- 5 A request submitted by a State Party or a non-State Party to the Court pursuant to article 93(10) of the Statute requires no such confirmation as article 87(1) only deals with requests issued by the Court.

II. Paragraph 2: Minimum requirements

- 6 The provision lists the various types of information that shall be contained in or attached to the request by the Court or by the requesting State¹.

1. Concise statements of the purpose and the assistance sought

- 7 The request has to depict the object of the request and the reason for the assistance sought, as well as the form of assistance and measures of execution required. Although the legal basis for the request is the applicable provisions of the Rome Statute, the request should explicitly refer to those articles.

2. ‘As much detailed information as possible’

- 8 In order to facilitate the execution of the request, the Court or the requesting State shall provide as much information available or disclosable about the location or identification of any person or place, where that information is critical for the execution of the request. This is important, on a practical level: it will not be possible to execute a search and seizure, unless the Court describes the precise location, which should be the subject of that search.
- 9 Trial Chamber IV in examining a Defence application for the transmission of a request for cooperation relied on Rule 116² and rejected the request because of its lack of compliance

¹ The provision is much more detailed than the comparable provision on the contents of a request in article 14 para. 1 of the European Convention on Mutual Assistance in Criminal Matters, however it is similar to article 5 of the UN Model Treaty and article 7(10) of the 1988 United Nations Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances.

² Rule 116(b) requires that requests for cooperation under Part 9 by the defence must contain sufficient information to comply with article 96, paragraph 2.

with the requirements for specific information as set out in article 96(2)(a) and (b)³. In the case the Defence sought assistance with a visit to a non-exhaustive list of places in Sudan for the purpose of an interview of unspecified witnesses. The Court rightly categorized this request as the defence seeking ‘permission to undertake an open-ended expedition to the Sudan in order to find out whether there might be something or someone potentially useful to the defence case⁴.’

The emphasis placed by the Chamber on the need for specificity provides important guidance with regard to cooperation applications. It is an interpretation which is essential to preserve the integrity and workability of Part 9, which is dependent on requests for cooperation being presented which have sufficient information for practical execution by States. At the same time, the Chamber, recognizing the importance of assisting the defence in gathering evidence for its case, offered the possibility to the defence of either ‘requesting an ex parte hearing to explore the avenues of investigation and details required by article 96(2) of the Statute with the Chamber or to set these out in ex parte submissions⁵’. In so doing the Trial Chamber in this instance sets a proper balance between safeguarding the essential requirements of article 96 and Part 9 generally while supporting the defence efforts to prepare its case.

3. Concise statements of the essential facts

A statement of the essential facts of the case, underlying the request, may enable the requested State to decide which measures are necessary and appropriate for its execution, as well as the appropriate approach to the same⁶. It also may be information required for the applicable procedures in the requested State. The Court or the requesting State may determine how much information can be shared without endangering the investigation or prosecution of the case. 10

4. Reasons for and details of procedure or requirement to be followed

The Court may specify in the request the measures to be taken and the procedures to be adopted for the execution of the request. If it does so, it should also give a reason for demanding such measures and procedures as specified in the request. The same applies to a requesting State, if it formulates specific procedures to be followed by the Court upon a request for assistance pursuant to article 93(10). 11

Pursuant to article 99(1), the requested State would have to follow the measures and procedures required in the request by the Court, unless those requirements are prohibited by its national law. This allows for the evidence to be gathered in a form that is useful for the Court, absent a prohibition at law which prevents execution in that manner.

5. Information required to execute the request

In order for the measures or procedures sought in a request by the Court to be carried out, it may be necessary to meet certain requirements of the law of the requested State. For example, for a search to be executed, the law of the State may require enough information to meet a defined standard, such as probable cause. Subparagraph (e) recognizes that reality and provides that such information will be part of the content of the request. This provision is 12

³ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, ICC-02/05-03/09, Decision on ‘Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan’, Trial Chamber IV, 1 July 2011.

⁴ *Prosecutor v. Abakaer Nourain and Jerbo Jamus*, ICC-02/05-03/09, Decision 1 July 2011, para. 22.

⁵ *Prosecutor v. Abakaer Nourain and Jerbo Jamus*, ICC-02/05-03/09, Decision 1 July 2011, para. 33.

⁶ Article 14 para. 1 of the European Convention on Mutual Assistance, for instance, does not explicitly require a statement of the facts underlying the request.

similar to that found in article 91(2)(c) relating to requests for arrest and surrender. However, this paragraph was much less controversial than the requirements in relation to the surrender of a person, as there was much less division between States with respect to the requirements for information in this context. While the standard may vary, most States do require some particular information for the relevant evidence to be produced. While not repeated here, the limits in article 91(2)(c) for reliance on national evidentiary requirements should be applied *mutatis mutandis* in the context of article 96(2)(e)⁷.

6. Any other relevant information

- 13 This provision reflects the practical reality that, in many instances, additional information may be necessary to comply with a request for assistance. The requested State and the Court may consult about what additional information may be needed for the execution of the request.

In the specific case of a request pursuant to article 93 para. 1 (e), the instruction concerning rule 74 on self-incrimination as set out in rule 190 is to be annexed to the request. Arguably, rule 190 also applies in case of a request pursuant to article 93 para. 7.

III. Paragraph 3: Consultations upon requests and advising the Court

- 14 This paragraph parallels article 91(4) and was included because of similar concerns that the requirement for the Court to produce certain information in support of a request could become very burdensome and difficult. It obligates a State Party to respond to a request from the Court, either generally or in a specific case, to provide information about the requirements of its national law with respect to information required in support of a request.
- 15 This provision is intended to reduce the burden on the Court in trying to comply with the various requirements of each State. It envisages that the specific requirements of the national law of the requested State may impede the immediate execution of the request. According to this paragraph, the requested State is obligated to advise the Court of those legal requirements, to enable the Court to provide the requisite information for the request to be executed and to determine whether what is being required by the requested State is justifiable.

IV. Paragraph 4: Applications to the Court

- 16 If a State Party requests assistance by the Court, the same rules shall generally apply pursuant to this article. Rather than listing separate requirements for requests from a State to the Court, this paragraph applies the general provisions in this article to requests from the State to the Court. Their application is qualified by the proviso ‘where applicable’ recognizing that not all the requirements of this article will be applicable in the case of reverse assistance.

⁷ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2003) 210.

Art. 97 Consultations

Where a State Party receives a request under this Part in relation to which it identifies problems which may impede or prevent the execution of the request, that State shall consult with the Court without delay in order to resolve the matter. Such problems may include, *inter alia*:

- (a) Insufficient information to execute the request;
- (b) In the case of a request for surrender, the fact that despite best efforts, the person sought cannot be located or that the investigation conducted has determined that the person in the requested State is clearly not the person named in the warrant; or
- (c) The fact that execution of the request in its current form would require the requested State to breach a pre-existing treaty obligation undertaken with respect to another State.

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A. Introduction/General remarks

Article 97 is of practical importance in that it creates a consultative mechanism which 1
should be used to resolve any problems which may arise in relation to a request under this
Part. It recognizes that regardless of the detailed nature of the provisions on cooperation and
the clear obligation to cooperate, on a practical level there can be various issues and problems
affecting the execution of the request.

In the Draft Statute¹ article 87(5) provided for a formal dispute resolution mechanism to 2
address circumstances where there were problems with execution of the request. However, it
became evident that it would be difficult, if not impossible, to reach consensus on such a
mechanism, as there was no agreement, once again, as to whether the Court or the State
should have the final say. In addition, to include or require resort to a formal mechanism was
viewed by some States as contrary to the very nature of the obligation in this Part –
cooperation.

As an alternative, a text on consultations was proposed by the Chairman of the Working
Group on International Cooperation in a discussion paper². The proposal, with minor
amendments was adopted ultimately as article 97. It obliges the States Parties to consult
with the Court without delay when any execution problems arise. It provides examples of
some types of problems but is not restricted in application to those circumstances. Article 97
signals a cooperative approach to the resolution of problems and presumes good faith efforts
on the part of the Court and the State. In a case where such a cooperative approach does not
yield a result, the Court will have to rely on its power under article 87(7) and article 119(1) of
the Statute to authoritatively settle the dispute.

¹ UN Doc. A/CONF.183/2/Add.1, at p. 159.

² UN Doc. A/CONF.183/C.1/WGIC/L.5 (26 June 1998).

B. Analysis and interpretation of elements

1. Identification of problems and consultations without delay

- 3 The provision states the general obligation of a requested State Party to consult with the Court about any problems that may impede or prevent the execution of a request from the Court. The rule applies also to those cases where the denial of the execution of the request is possible in accordance with article 93 paras. 4 and 5.

2. List of exemplified problems

- 4 States Parties shall engage in consultations with the Court in any case where a problem occurs relating to the execution of a request from the Court, no matter what the grounds for the problem. The provision states a few examples of such problems.
- 5 a) **‘Insufficient information’.** The paragraph pertains to a lack of factual information and data, as well as information on the legal basis or requirements of the request.
- 6 b) **The person sought cannot be located or is not the person named.** This subparagraph evidences a very practical problem which may arise. That is, despite following up on the information provided, the requested State is unable to locate the person sought for surrender. In such circumstances, compliance with the request is factually impossible and thus the requested State will need to consult with the Court to advise of the problem and determine if there is any additional information available with respect to the location of the person sought.
- 7 If the requested State determines that the person located on its territory is not the same person as named in a warrant issued by the Court, the requested State shall so inform the Court. In this context, consultation with the Court will be critical in order that both parties will be able to ensure that the determination made is the correct one and thus there is no basis for the arrest or continued detention of the person in the requested State.
- 8 c) **Breach of pre-existing treaty obligations.** The provision takes into account that the requested State may be bound by anterior international obligations. In the case of competing obligations, the Rome Statute recognizes that consultations will be necessary to determine how best to address the potential conflict in obligations.

3. Other problems

- 9 Various Chambers have recognized the obligation on States to consult with the Court when an issue arises as to a possible competing international law obligation which falls to be resolved under article 98(1)³. In the specific context of article 98(1), article 97 must be read together with rule 195 ICC RPE. As Pre-Trial Chamber II has put it in its decision of 9 April 2014:

‘Moreover, the DRC’s claim that the 26 February 2014 Decision placed the State ‘in a delicate and unmanageable situation’ proves that the Congolese authorities should have consulted or notified the Court in accordance with article 97 of the Statute and rule 195 of the Rules of the existence of a problem related to article 98(1) of the Statute which prevented it from discharging its obligations as a State Party to the Statute prior to and during the visit of Omar Al Bashir and before his departure⁴.’

³ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, para. 15; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 12 December 2011, paras 11–12.

⁴ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision 9 April 2014, para. 15.

Article 98

Cooperation with respect to waiver of immunity and consent to surrender

1. The Court may not proceed with a request for surrender or assistance which would require the requested State to act inconsistently with its obligations under international law with respect to the State or diplomatic immunity of a person or property of a third State, unless the Court can first obtain the cooperation of that third State for the waiver of the immunity.

2. The Court may not proceed with a request for surrender which would require the requested State to act inconsistently with its obligations under international agreements pursuant to which the consent of a sending State is required to surrender a person of that State to the Court, unless the Court can first obtain the cooperation of the sending State for the giving of consent for the surrender.

Directly Relevant Rules of Procedure and Evidence: Rule 195.

Literature: See Preliminary Remarks on Part 9. Ahlbrecht, H. and Ambos, K., *Der Fall Pinochet(s)* (1999); Akande, D., 'The Effect of Security Council Resolutions and Domestic Proceedings on State Obligations to Cooperate with the ICC', (2012) 10 *JICJ* 299 *id.*, 'The Legal Nature of Security Council Referrals to the ICC and its Impact on Al Bashir's Immunities', (2009) 7 *JICJ* 333; *id.*, International Law Immunities and the International Criminal Court, (2004) 98 *AJIL* 407; *id.* and Shah, S., 'Immunities of State Officials, International Crimes, and Foreign Domestic Courts', (2011) 21 *EJIL* 815; Benzing, M., 'U.S. Bilateral Non-Surrender Agreements and Article 98 of the Statute of the International Criminal Court: An Exercise in the Law of Treaties', (2004) 8 *MPYbUNL* 181; Bianchi, A., 'Immunity versus Human Rights: The Pinochet Case', (1999) 10 *EJIL* 237; Bogdan, A., 'The United States and the International Criminal Court: Avoiding Jurisdiction Through Bilateral Agreements in Reliance on Article 98', (2008) 8 *ICLRev* 1; Bosch, J., *Immunität und internationale Verbrechen* (2004); Broomhall, B., *International Justice and the International Criminal Court: Between Sovereignty and the Rule of Law* (2003); *id.* and Kreß, C., 'Implementing Cooperation Duties under the Rome Statute: A Comparative Synthesis', in: C. Kreß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders, Vol. II: Constitutional Issues, Cooperation and Enforcement* (2005) 525 *et seq.*; Byers, M., *Custom, Power and the Power of Rules* (1999) 157–160; Cassese, A., 'When may senior State officials be tried for international crimes?', (2002) 13 *EJIL* 853; Crawford, J., *The International Law Commission's Articles on State Responsibility. Introduction, Text and Commentaries* (2002); *id.*, Sands, P. and Wilde, R., *In the Matter of the Statute of the International Criminal Court and in the Matter of Bilateral Agreements Sought by the United States under Article 98(2) of the Statute*, (2003) <[http://www.amicc.org/docs/Art 98-14une03FINAL.pdf](http://www.amicc.org/docs/Art%2098-14une03FINAL.pdf)> accessed 23.01.2015; Dominicé, C., 'Quelques observations sur l'immunité de juridiction pénale de l'ancien chef d'état', (1999) 103 *RIDP* 297; Fleck, D., 'Are Foreign Military Personnel Exempt from International Criminal Jurisdiction under Status of Forces Agreements?', (2003) 1 *JICJ* 651; Frulli, M., 'The Question of Charles Taylor's Immunity', (2004) 2 *JICJ* 1118; Gaeta, P., 'Does President Al Bashir Enjoy Immunity from Arrest?', (2009) 7 *JICJ* 316 (2009); *id.*, 'Official Capacity and Immunities', in: A. Cassese, P. Gaeta and J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 975; Gartner, I., 'The Rules of Procedure and Evidence on Co-operation and Enforcement', in: H. Fischer, C. Kreß and S. R. Lüder, *International and National Prosecution of Crimes Under International Law* (2001) 431; Gornig, G., 'Immunität von Staatsoberhäuptern', in: J. Ipsen and E. Schmidt-Jortzig (eds.), *Festschrift für Dietrich Rauschning* (2001) 457; Harhoff, F. and Mochochoko, P., 'International Cooperation and Judicial Assistance', in: R. S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 666; Henzelin, M., 'L'immunité pénale des ministres selon la Cour internationale de justice', (2002) 120 *SchZStR* 249; Herdegen, M., 'Das "konstruktive Völkerrecht" und seine Grenzen: die Dynamik des Völkerrechts als Methodenfrage', in: P.-M. Dupuy *et al.* (eds.), *Völkerrecht als Wertordnung/Common Values in International Law. Festschrift für/Essays in Honour of Christian Tomuschat* (2006) 899; Iverson, J.M., 'The Continuing Function of Article 98 of the Rome Statute', (2012) 4 *GOJIL* 131; Karl, G., *Völkerrechtliche Immunität im Bereich der Strafverfolgung schwerster Menschenrechtsverletzungen* (2003); Kaul, H.-P., 'The Continuing Struggle on the Jurisdiction of the International Criminal Court', in: H. Fischer, C. Kreß and S.R. Lüder, *International and National Prosecution of Crimes Under International Law* (2001) 21; *id.* and Kreß, C., 'Jurisdiction and Cooperation in the Statute of the International Criminal Court', (1999) 2 *YbHumanL* 143; Keitner, C., 'Crafting the International Criminal Court: Trials and Tribulations in Article 98 (2)', (2001) 6 *UCLAJIL&ForeignAff* 215; Keppler, E., 'Managing Setbacks for the International Criminal Court in Africa', (2012) 56 *AfricanL* 4; Klingberg, V., '(Former) Heads of State Before International(ized) Criminal Courts: the Case of Charles Taylor Before the Special Court for Sierra Leone', (2003) 46 *GYbIL* 537; Kreicker, H., 'Der Präsident des Sudan vor dem Internationalen Strafgerichtshof – ein Verstoß gegen das

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A. Introduction/General remarks

The subject-matter of article 98 did not hold a prominent place in the negotiations on Part 1
9 for a long time. When the *Ad Hoc* Committee dealt with possible grounds for refusal in the
context of surrender, the immunity issue was not specifically mentioned. Instead, all
emphasis was placed on the competition between surrender and extradition requests¹ which
has received a detailed regulation in article 90. The 1998 Draft Statute then contained, in its
article 87, a bracketed ‘Option 2 (e)’ for a ground to refuse the execution of a request of
surrender where ‘compliance with the request would put it [the State Party] in breach of an
obligation that arises from [a peremptory norm of] general international law [treaty obliga-
tion] undertaken to another State’². This draft, on the one hand, indicates that the issue of
possible conflicting international obligations was now seen as going beyond the competition
of surrender and extradition requests; on the other hand, the series of brackets testify to the
fact that there was no unanimous view regarding this matter.

In fact, the issue of conflicting immunities was rather reluctantly addressed by some 2
delegations, which were of the view that developments in general international law had
substantively reduced, if not eliminated, immunities with respect to crimes under international
law as listed in article 5 of the Statute. However, on the insistence of some other delegations
and without there being time for a sufficiently thorough discussion in the course of the Rome
Conference, a provision on possibly conflicting immunities was included, and hereto was
added another provision referring, in particular (without spelling this out explicitly), to Status
of Forces Agreements³. In this latter respect, there was one additional reason for those States in
favor of an efficient cooperation regime to approach the matter with very considerable
reservation. It was thought that the right of every sending State – *i. e.* not only a sending State
that is a party to the Statute – to use the complementarity regime pursuant to articles 17 to 20
to invoke its primary right to exercise criminal jurisdiction both under the Statute and under
the relevant agreement constituted sufficient protection for such a State’s legitimate interests.

The solution found in article 98 is a rather complex one. It was recognized to be both 3
impossible in the time available and undesirable to set up a list of those international
obligations regarding immunities and primary treaty rights to criminal jurisdictions held by
sending States that would indeed conflict with the obligation to surrender under article 89
para. 1. It followed that the determination as to whether a real conflict existed had to be taken
on a case-by-case basis. With a view to the relevant future practice, the drafters once more
wished to emphasize the competence of the Court to authoritatively rule on the matter⁴. Thus

¹ See para. 218 of the *Ad Hoc* Committee Report; reprinted in: Bassiouni (ed.), *The Legislative History of the International Criminal Court*, Vol. II (2005) 654.

² The text and its earlier versions is reprinted in: Bassiouni (ed.), *The Legislative History of the International Criminal Court*, Vol. II (2005) 633.

³ Kaul and Kreß (1999) 2 *YbHumL* 164.

⁴ Benzing (2004) 8 *MPYbUNL* 199; Crawford *et al.*, (2003) [http://www.amicc.org/docs/Art 98-14une03FI-NAL.pdf](http://www.amicc.org/docs/Art%2098-14une03FI-NAL.pdf), para. 23; Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 1385; Meißner, *Die Zusammenarbeit* (2003) 120; Sluiter, *International Criminal Adjudication* (2002) 171.

article 98 places an obligation on the Court not to put a State in the position of having to violate its international obligations with respect to immunities. To the extent necessary to avoid the creation of conflicting international obligations, the Court is obliged to seek cooperation from the third or sending State, before pursuing the request. Rule 195, sub-rule 1, further elaborates on this pivotal role accorded to the Court in that it requires the State Party concerned to provide the Court with ‘any information relevant to assist the Court in the application of article 98’⁵. This competence was given to the Court in full recognition of the fact that the Court’s determination will not bind a State concerned that is not party to the Statute, and that for this reason, any determination by the Court, that no conflicting international obligation exists, will leave the requested State Party with the risk that the Court’s determination of the international legal obligation is wrong⁶. It was felt, however, that this risk is a tolerable one to bear in light of both the judicial expertise united on the bench and the persuasive authority that any relevant determination by the Court is bound to carry with it⁷. The Court’s case law is in full conformity with the foregoing considerations. The Court, in addition, relies on article 119(1) in support of this approach⁸. While it would appear that the implementing legislation of France, Germany⁹, New Zealand and Spain is fully in line with this basic scheme underlying the operation of article 98, the picture is less clear in other States¹⁰.

- 4 Compared to provisions such as, in particular, article 99(4), article 98 did not absorb too much negotiation time in Rome. It is also probably fair to say that the latter article was not considered to be of utmost political sensitivity by most participants in the negotiations. This also explains the rather short commentary devoted to article 98 in the first edition of this volume. This assessment has proven wrong for two reasons. First, shortly after the Rome conference, the U.S.A. made an attempt to use article 98(2) as one component of a more comprehensive strategy to, as it were, renegotiate the compromise on the Court’s jurisdiction that was finally struck in Rome. Second, the Court’s case law regarding the application of article 98(1) in the case of the (at the time: incumbent) head of state of Sudan, al Bashir, has provoked criticisms from African States.
- 5 In the course of the fourth and fifth session of the Preparatory Commission in 2000, article 98 received much unexpected attention because the US-delegation relied on it as part of its comprehensive approach to renegotiate the Statute’s jurisdiction scheme so as to make it more amenable in Washington¹¹. In fact, ‘[o]f all debates that took place in the Working Group on Cooperation, none engendered such interest and controversy as the discussions on rules under article 98’¹². Shortly before the fourth session the United States conveyed to other States a package proposal consisting of the following two parts dealing with cooperation and jurisdiction:

⁵ This sub-rule goes back to a French proposal; for the relatively uncontroversial drafting process on this sub-rule, see Harhoff and Mochochoko, in: Lee (ed.), *The International Criminal Court* (2001) 666.

⁶ This risk is rightly alluded to by Akande (2004) 98 *AJIL*. 431.

⁷ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 1385 *et seq.*

⁸ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 12 December 2011, para. 11; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, para. 16.

⁹ The German legislator has introduced a new section 21 into the *Gerichtsverfassungsgesetz* (Law on the Organization of the Judiciary) which makes it clear that German authorities will not enter into an autonomous examination of the international legal issue once the Court has made a request; the purpose of this section to recognize the Court’s decision-making power is correctly identified by Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 1386.

¹⁰ Broomhall and Kreß, in: Kreß *et al.* (eds), *The Rome Statute*, Vol. II (2005) 525 *et seq.*

¹¹ For more detailed information on this and on the following text, see Kaul, in: Fischer *et al.*, *International and National Prosecution* (2001) 21–41; Keitner (2001) 6 *UCLAJIL&ForeignAff* 215–264; Scheffer (2005) 3 *JICJ* 341–344.

¹² Harhoff and Mochochoko, in: Lee (ed.), *The International Criminal Court* (2001) 665.

'Proposed Text of Rule to Art. 98 of the Rome Treaty

'The Court shall proceed with a request to surrender or an acceptance of a person into the custody of the Court only in a manner consistent with its obligations under the relevant international agreement.'

Proposed Text to Supplement Document to the Rome Treaty

'The United Nations and the International Criminal Court agree that the Court may seek the surrender or accept custody of a national who acts within the overall direction of a UN Member State, and such directing State has so acknowledged, only in the event (a) the directing State is a State Party to the Statute or the Court obtains the consent of the directing State, or (b) measures have been authorized pursuant to Chapter VII of the UN Charter against the directing State in relation to the situation or actions giving rise to the alleged crime or crimes, provided that in connection with such authorization the Security Council has determined that this subsection shall apply'.

This initiative, that in some sort revived the United States' proposal at the end of the Rome Conference for an amendment on official acts¹³, proved unacceptable to the overwhelming majority of delegations that wished to preserve the integrity of the Statute as adopted in Rome rather than seeing it amended through the backdoor of the Rules of Procedure and Evidence¹⁴. At the fifth session the United States introduced the following amended version of the first part of its above cited proposal:

'The Court shall proceed with a request for surrender or an acceptance of a person into the custody of the Court only in a manner consistent with international agreements applicable to the surrender of the person'.

Again, the proposal raised widespread and serious doubts regarding its compatibility with article 98(2). Germany summarized its concerns and listed options for a compromise in conformity with the Statute in an analytical paper¹⁵. After some rounds of difficult negotiations the final version of what has become rule 195, sub-rule 2, was agreed upon. The provision reads as follows:

'The Court may not proceed with a request for the surrender of a person without the consent of a sending State if, under Article 98, paragraph 2, such a request would be inconsistent with obligations under an international agreement pursuant to which the consent of a sending State is required prior to the surrender of a person of that State to the Court'.

On the insistence of the like-minded States and, in particular, the European Union, the adoption of this sub-rule was complemented by the inclusion of the following proviso in the report of the proceedings of the Preparatory Commission:

'It is generally understood that Rule 9.19 (i.e. the later so adopted rule 195, sub-rule 2) should not be interpreted as requiring or in any way calling for the negotiation of provisions in any particular international agreement by the Court or any other international organization or State'.

This was meant to operate as an additional bar against possible attempts to later use the relationship agreement under article 2 of the Statute for indirect jurisdictional changes of the Statute¹⁶. Accordingly, the latter agreement was not so used.

The second US initiative took shape after the failure of that State to have the most 6 questionable Security Resolution 1487¹⁷ renewed. The initiative consists in a world wide campaign conducted by the United States and supported by a massive use of its economic

¹³ Harhoff and Mochochoko, in: Lee (ed.), *The International Criminal Court* (2001) 667.

¹⁴ Gartner, in: Fischer *et al.*, *International and National Prosecution* (2001) 431; Harhoff and Mochochoko, in: Lee (ed.), *The International Criminal Court* (2001) 668; Kaul, in: Fischer *et al.*, *International and National Prosecution* (2001) 33.

¹⁵ The paper is reprinted as an annex to Kaul, in: Fischer *et al.*, *International and National Prosecution* (2001) 42.

¹⁶ Kaul, in: Fischer *et al.*, *International and National Prosecution* (2001) 34.

¹⁷ S/RES/1487 (2003) of 12 June 2003 which in turn constitutes the renewal of S/RES/1422 (2002) of 12 July 2002; for a legal and legal policy critique of this (mis)use of Security Council powers, see Krefß, *The International Criminal Court and the United States, Reflections on Resolution 1422 of the UN Security Council*, in 77 *Art and Thought*, Fikrun Wa Fann 56 *et seq.* (2003).

power¹⁸ to induce States Parties to enter into what may best be called ‘bilateral non-surrender agreements’ with the United States. The head of the United States delegation in Rome describes the content of the agreements in questions as follows:

‘The standard form language of the Bush Administration’s bilateral non-surrender agreements (at least those that have been publicly disclosed) defines the ‘persons’ to be covered by the particular agreement to be ‘current or former Government officials, employees (including contractors), or military personnel or *nationals* of one Party (italics in the original)’¹⁹.

- 7 Seven years after the Rome conference, the head of the US delegation in Rome stated that ‘[t]he US delegation contemplated in its discussions pertaining to article 98(2) that particular agreements – either already in force or that would be negotiated and ratified in the future and which established jurisdictional responsibilities for investigating and prosecuting criminal charges against certain individuals before national courts – could be used to avoid surrender of particular types of suspects to the ICC’²⁰. It is impossible, in the absence of a complete set of published *travaux préparatoires* to either contradict or confirm this assertion. What must be said, though, that these contemplations were not disclosed to all participants in the negotiations and that, if this was indeed ‘America’s Original Intent’, it was most probably articulated very late in the day. For those and other reasons America’s alleged ‘Original Intent’ cannot be equated with ‘the drafters intent’ behind article 98 para. 2²¹.
- 8 A quite considerable number of States Parties have or are reported to have concluded one of the bilateral agreements in question. Many States Parties, however, have refused to enter into such an agreement despite all the pressure to which they had been exposed.
- 9 The second controversy about article 98 in the practice subsequent to its adoption concerns the application of article 98(1) in the case against al Bashir. On 31 March 2005, the Security Council, through resolution 1593, as adopted under Chapter VII of the UN Charter²², had referred the situation in Darfur (Sudan) to the Court. On 4 March 2009, Pre-Trial Chamber I determined that the position of al Bashir as the incumbent head of state of the non-State Party Sudan did not preclude the Court from exercising its jurisdiction in the case against that suspect²³. On 6 March 2009 and 21 July 2010, the Registry adhered to the Chamber’s instruction to request all States Parties to arrest and surrender al Bashir²⁴. In its decision of 12 December 2011, the same (but differently composed) Chamber found that the Republic of Malawi had failed to cooperate with the Court by failing to arrest and surrender al Bashir to the Court²⁵. This finding was based on the convictions that: (1) there is an international customary law exception (even) from incumbent head of state immunity for the purpose of proceedings before the Court²⁶ and (2) that the

¹⁸ Scheffer (2005) 3 *JICJ* 350: ‘The Bush Administration has been negotiating bilateral non-surrender agreements, not only as a reflection of its own reading of Article 98 (2) and the protection it can afford even non-party States (such as the United States), but also as a direct consequence of the conditionality for military, and, as recently amended, economic assistance to foreign governments set forth in extraordinarily punitive fashion in the American Service Members Protection Act (ASPA) (footnote omitted)’; see also Bogdan (2008) 8 *ICLR* 24–27.

¹⁹ Scheffer (2005) 3 *JICJ* 345; for more detailed information about the agreements, see Bogdan (2008) 8 *ICLR* 29–33.

²⁰ Scheffer (2005) 3 *JICJ* 336.

²¹ Both authors of this commentary took an active part in the negotiations of article 98; Krefß was member of the German and Prost was member of the Canadian delegation.

²² S/RES/1593 (2005), 31 March 2005.

²³ *Prosecutor v. Omar Hassan Ahmad Al Bashir* (‘Omar Al Bashir’), ICC-02/05-01/09-3, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, PTC I, 4 March 2009, para. 41.

²⁴ *Prosecutor v. Omar Hassan Ahmad Al Bashir* (‘Omar Al Bashir’), ICC-02/05-01/09-7, Request to All States Parties to the Rome Statute for the Arrest and Surrender of Omar Al Bashir, 6 March 2009; No ICC-02/05-01/09-96, Supplementary Request to All States Parties to the Rome Statute for the Arrest and Surrender of Omar Al Bashir, 21 July 2010.

²⁵ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 12 December 2011, *in fine*.

²⁶ *Id.*, para. 18 in conjunction with para. 43.

‘unavailability of immunities with respect to prosecution by international courts applies to any act of cooperation by States which forms an integral part of those prosecutions’²⁷. In its decision of 13 December 2011 pertaining to the Republic of Chad and presenting the same legal issues, the Chamber referred back to the decision it had rendered the day before²⁸. In its decision of 9 April 2014, Pre-Trial Chamber II found that the Democratic Republic of the Congo had failed to cooperate with the Court by deliberately refusing to arrest and surrender Omar Al Bashir²⁹. This finding was based on the conviction that, through Resolution 1593 (2005), the Security Council had ‘implicitly waived the immunities granted to Omar Al Bashir under international law and attached to his position as a Head of State’³⁰.

The decisions of 12 and 13 December 2011 provoked a vigorous dissent by the African Union Commission (for a detailed account, see mn 34). The press release dated 9 January 2012, by which this dissent was communicated, contains the following passage: ‘Following these Decisions of ICC Pre-Trial Chamber I, the African Union Commission expresses its deep regret that the decision has the effect of: (i) Purporting to change customary international law in relation to immunity *ratione personae*; (2) Rendering Article 98 of the Rome Statute redundant, non-operational and meaningless; (3) Failing to address the critical issue of the removal or non removal of immunities by the UN Security Council resolution 1593 (2005), which referred the situation in Darfur to the ICC.’ In July 2014, the AU members decided to include the following article 46*Abis* in the Protocol on Amendments to the Protocol on the Statute of the African Court of Justice and Human Rights: ‘No charges shall be commenced or continued before the Court against any serving African Union Head of State or Government, or anybody acting or entitled to act in such capacity, or other senior state officials based on their functions, during their tenure of office’³¹.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Third State

The reference to ‘third State’ is not altogether clear as, on the basis of a grammatical interpretation, ‘third State’ may mean ‘a State other than the requested State’ or – narrower – ‘a non-State Party’. The better case can be made for the first interpretation³². It is true, though, that article 2 para. 1 (h) of the Vienna Convention on the Law of Treaties defines the concept of ‘third State’ in the sense of ‘State not party to the treaty’. The drafters of the Statute were, however, free to use the same concept in a different way and this is what they did. A rather strong first indication pointing in this direction is the fact that other provisions

²⁷ *Id.*, para. 44.

²⁸ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09-140, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Chad to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 13 December 2011 para. 13.

²⁹ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, *in fine*.

³⁰ *Id.*, para. 29.

³¹ For explanation, see van Schaack (2010) <<http://justsecurity.org/12732/immunity-african-court-justice-human-peoples-rights-the-potential-outlier/>> accessed 10 January 2015.

³² For the same view, see Pedretti, Immunity of Heads of State and State Officials for International Crimes 277 (2015); for an alternative interpretation, see Gaeta, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court* (2002) 991–1000; perhaps the alternative interpretation also underlies the implementing legislation of the United Kingdom (see Lewis, in: Kreß *et al.* (eds.), *The Rome Statute*, Vol. II (2005) 463. This, however, would not appear to represent a strong trend in the subsequent State practice, but rather an isolated minority view; Broomhall and Kreß, in: Kreß *et al.* (eds.), *The Rome Statute*, Vol. II (2005) 525.

of Part 9 (*cf.*, in particular, article 87(5) explicitly speak of ‘a State not party to the Statute’. Apart from that systematical argument, it should be borne in mind that it was the inviolability of diplomatic premises that was at the heart of the debate on article 98(1). As it was widely felt during the negotiations, this inviolability could place an obstacle to the execution of a request for surrender, both *vis-à-vis* a State Party or a non-State Party³³. The term ‘third State’ in this paragraph thus means ‘a State other than the requested State’. Pre-Trial Chamber I has confirmed this interpretation in that it has recognised the possibility of a ‘third State which has ratified the Statute’³⁴.

2. Obligations under international law

- 12 As Pre-Trial Chamber I has confirmed³⁵, paragraph 1 is not concerned with immunities or privileges accorded to a person on the basis of national law. The Court is thus not prevented, on the basis of this provision, to request the arrest and surrender of a person and the search of a place because of provisions in the law of the requested State. The paragraph is relevant only where the requested State can demonstrate that the action sought by the Court would place it in violation of an obligation at international law.
- 13 Paragraph 1 contains an open reference to possible conflicting obligations under international law, but does not in and of itself contain a determination in that respect. In particular, the paragraph can by no means be construed so as to revive immunities that international law no longer accepts. In its application of paragraph 1, the Court must therefore establish the existence of an immunity protection under international law on the basis of the relevant legal sources which are for many parts to be found outside the Statute while including article 27. The case law of the Court confirms this interpretation³⁶.

3. With respect to the State or diplomatic immunity of property

- 14 Perhaps somewhat surprisingly at first sight, it was this type of immunity protection that was the main driving force behind paragraph 1, the paradigm case being the customary inviolability of diplomatic premises as codified in article 22 of the Vienna Convention on Diplomatic Relations³⁷. The reason for this prominence of the concern regarding premises and property is two-fold. First, there is little evidence in State practice that those immunities have suffered from an exception in the special case of investigative or other measures relating to criminal proceedings for crimes under international law. Second, article 27 does not deal with these immunities so that there can be no argument of an anticipated waiver expressed through the acceptance of the latter article by State Parties. It follows that paragraph 1 may well turn out to have some practical relevance in this context³⁸.

4. With respect to the State or diplomatic immunity of a person

- 15 a) **State or diplomatic immunity of a person.** The term ‘State immunity’, as used in article 98(1) covers not only the immunities rights of a State *ratione materiae*, but also those *ratione personae*. As the first Special Rapporteur of the ILC on the subject of ‘immunity of State

³³ Kaul and Krefß (1999) 2 *YbHumanL* 164.

³⁴ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 12 December 2011, para. 18.

³⁵ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, para. 20.

³⁶ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, paras. 22 *et seq.*; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, paras. 29 *et seq.*

³⁷ For a comprehensive contemporary analysis of the applicable international law, see Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 637–705.

³⁸ Concurring Iverson (2012) 4 *GOJIL* 140–141.

officials from foreign criminal jurisdiction' has rightly stated 'the State stands behind both the immunity *ratione personae* of its officials from foreign jurisdiction and their immunity *ratione materiae*³⁹'. It is therefore warranted to construe the term 'State immunity of a person' for the purposes of article 98(1) to include immunity rights *ratione personae* to the extent that they do not already fall under the heading of 'diplomatic immunity of a person'. To do otherwise would have the odd consequence that the most powerful international law immunity which, accordingly, is most likely to give rise to the conflict of duties that article 98(1) seeks to avoid, would, except for the diplomatic immunity *ratione personae*, remain uncovered. The resulting lacuna would then have to be filled by applying by way of analogy either the concept of 'State immunity of a person' or that of 'diplomatic immunity of a person' to, for example, the immunity right *ratione personae* with respect to a Head of State. The suggested broad interpretation of the term 'State immunity' in article 98(1) avoids the need to resort to such an artificial solution⁴⁰.

b) The third State is a State Party. As will be set out below (cf. *infra* mn 21, 36), the non-availability of international immunity rights *ratione materiae et personae* with respect to persons, as articulated in article 27(2), is declaratory of customary international law. But even if this were not the case, there would be no conflicting international obligations, because any (then) necessary waiver of an international immunity right would already be contained in article 27(2)⁴¹. The case law of the Court is in line with this interpretation⁴².

According to one view, any waiver contained in article 27 would, however, be confined to the exercise of the Court's jurisdiction in its narrow, technical sense. Under this view, the arrest by a State Party of a person enjoying an international immunity protection is not covered by article 27 even where such an arrest is based on a request made by the Court. As a consequence hereof, it is held that the arrest of a national of a State Party normally enjoying immunity protection under international law by another and so requested State Party requires a waiver under article 98(1) from the State Party normally entitled to international immunity protection⁴³. This position is unconvincing⁴⁴. It is true, though, that from a technical legal perspective the arrest and surrender by a State Party remains an exercise of its criminal jurisdiction even where it is based on a request by the Court. This technical perspective, however, is not the adequate one in our specific legal context; it fails to capture the substantial difference between the State arrest in a purely national or a traditional inter-State setting and in the context of the direct enforcement of international criminal law *stricto sensu*. Article 27(2) is situated in this latter context and its value in practice would risk to be significantly reduced if not more or less nullified if the general waiver of immunity rights contained therein would not be construed so as to include the State acts of arrest and surrender based on a request by the ICC⁴⁵. Pre-Trial Chamber I has endorsed that interpretation and has stated that 'acceptance of article 27(2) of the Statute, implies waiver of immunities for the purposes of article 98(1) of the Statute with respect to proceedings conducted by the Court'⁴⁶.

³⁹ Kolodkin, Preliminary report on immunity of State officials from foreign criminal jurisdiction, A/CN.4/601, 29 May 2008, para. 94.

⁴⁰ Krefß, in: Bergsmo and Yan (eds.), *State Sovereignty* (2012) 236–238.

⁴¹ Broomhall, *International Justice* (2003) 144 *et seq.*; Kuc (2012) 18 *NewEngl&CompL* 272–273; Ambos, *Internationales Strafrecht* (2014), § 8 mn. 77.

⁴² *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, para. 18; *Prosecutor v. Al Bashir*, No ICC-02/05-01/09, Decision 9 April 2014, para. 25.

⁴³ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 1391 *et seq.*

⁴⁴ For the same view as expressed in this commentary, see, e.g., Robinson, in: Cryer *et al.* (eds.), *Introduction* (2007) 441.

⁴⁵ For a concurring view, see Akande (2004) 98 AJIL 424: '[T]he removal of immunity from the exercise of the Court's jurisdiction contained in Article 27 would be nullified in practice if Article 98(1) were interpreted as allowing parties to rely on the same immunities in order to prevent the surrender of their officials to the Court by other states (footnote omitted). This argument is supported by the principle that '[a]n interpreter is not free to adopt a reading that would result in reducing whole clauses of paragraphs of a treaty to redundancy and inutility' (footnote omitted)'.

⁴⁶ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, para. 18.

- 18 c) **The third State is not a State Party.** In this context, article 27 cannot be relied upon as a general waiver because it has not been accepted by the third State concerned⁴⁷. The Court will thus have to decide the question of possible conflicting international obligations on the basis of the applicable international law outside the ICC Statute. In that respect, a distinction must be drawn between the functional immunity protection of State organs that forms part of State immunity and which is widely referred to as immunity *ratione materiae* and the personal immunity protection (immunity *ratione personae*) enjoyed by a limited number of highest representatives of the State⁴⁸.
- 19 aa) **Immunity *ratione materiae*.** The concept of immunity *ratione materiae* is well captured in the second sentence of article 39(2) of the Vienna Convention on Diplomatic Relations: It relates to the performance of official acts by an organ of a State and continues to exist after the person concerned has gone out of office. Immunity *ratione materiae* under customary international law extends throughout the whole State apparatus. By definition, international criminal law (*stricto sensu*) poses a fundamental challenge to this immunity protection because crimes under international law are very often committed by State organs in the apparent (and abusive) exercise of their official functions. For this reason, the development of international criminal law since the Nuremberg trial is inextricably linked with the recognition of an exception to the traditional immunity protection *ratione materiae* and there is a long line of national⁴⁹ and international (for these, see mn 24) judicial pronouncements that support the view that the said exception is firmly rooted in customary international law both with respect to national and international criminal proceedings. The most recent practice of African States has not changed this legal picture. In July 2014, the members of the African Union decided to include the following article 46*Abis* in the Protocol on Amendments to the Protocol on the Statute of the African Court of Justice and Human Rights: ‘No charges shall be commenced or continued before the Court against any serving African Union Head of State or Government, or anybody acting or entitled to act in such capacity, or other senior state officials based on their functions, during their tenure of office’. The words ‘based on their functions’ may be taken to suggest that this provision is meant (among other things) to provide immunity *ratione materiae*. But, first, it remains to be seen whether article 46*Abis* will enter into force. Second, it is unclear whether the adoption of article 46*Abis* implies the legal conviction of African States that the international criminal law exception to the international law immunity *ratione materiae* does not exist. Third, this international criminal law exception is already too firmly grounded in custom to be changed by the practice of States from one region. Accordingly, the widespread scholarly view that article 27(2) is declaratory of customary international law as far as immunities *ratione materiae* are concerned⁵⁰, is and remains correct.

⁴⁷ Akande (2004) 98 *AJIL* 421.

⁴⁸ The distinction between international law immunities *ratione materiae et personae* is, as the present Special Rapporteur of the ILC for the project ‘Immunity of State officials from foreign criminal jurisdiction’ states, ‘unquestionably a distinction that exists in practice’; Preliminary report on the immunity of States officials from foreign criminal jurisdiction. Prepared by Ms. Concepción Escobar Hernández, A/CN.4/654, 31 May 2012, para. 54.

⁴⁹ For a most recent meticulous analysis, see Pedretti, *Immunity of Heads of State* (2015) 167–190; for an earlier thorough study, see Kreicker, *Völkerrechtliche Exemtionen*, Vol. I (2007).

⁵⁰ See Pedretti, *Immunity of Heads of State* (2015) 156–192; Talmon (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 323–329; Kreicker, *Völkerrechtliche Exemtionen*, Vol. I (2007) 175–219; Cassese 13 *EJIL* 853 (2002); Kreß, in: Klip and Sluiter (eds.), *Annotated Leading Cases*, ix (2006) 203; Wirth (2002) 13 *EJIL* 877; Ambos, *Treatise on ICL I* (2013) 414; Robinson, in: Cryer et al. (eds.), *Introduction* (2007) 434 (with a small reservation on p. 433 based on the divergences amongst the Law Lords in *re Pinochet*); there is a question-mark, though, as regards diplomatic and consular immunities *ratione materiae*; for an extended argument that no customary international criminal law exception has evolved (and superseded the relevant treaty protections) in that specific respect, see Kreicker, *Völkerrechtliche Exemtionen*, Vol. I (2007) 570–588; for an exceptional scholarly opinion against an international criminal law exception from the immunity right *ratione materiae*, see Wuerth (2012) 106 *AJIL* 768, who does not, however, clearly distinguish between the international criminal law exception, which is the subject matter of this commentary, and a potentially far broader *human rights* exception, on which this commentary does not take a position.

Regrettably, the ICJ has failed to authoritatively settle the issue in the *Yerodia* case. In an *obiter dictum*, completely unsupported by legal reasoning, it said that after a person ceases to hold an office to which immunity *ratione personae* is attached,

‘he or she will no longer enjoy all of the immunities accorded by international law in other States. Provided that it has jurisdiction under international law, a court of one State may try a former Minister of Foreign Affairs of another State in respect of acts committed prior or subsequent to his or her period of office, as well as in respect of acts committed during that period of office in a private capacity’⁵¹.

In respect of the commission of crimes under international law during the period of office, this statement is fundamentally ambiguous: If conduct which is criminal under international law is, by definition, considered to be committed ‘in a private capacity for the purposes of the international law of immunity’, it would fall outside the immunity protection *ratione materiae*⁵². If the Court was of this view it should have said so because the said restriction of the term ‘official act’ for the distinct purpose of the international law of immunity is far from evident and subject to a significant amount of scholarly criticism⁵³. If the *dictum* is, accordingly, read with the understanding in mind that the international criminality of a certain conduct of a State official does not, in and of itself, affect the conduct’s official character⁵⁴, the meaning alters drastically: The *dictum* then suggests that the immunity protection *ratione materiae* before national courts prevails even in cases of crimes under international law. Although the *dictum* is confined to national proceedings and is supplemented by another and quite different *dictum* regarding international proceedings, it should be mentioned that the *dictum* in question is at odds both with State practice and with the very idea underlying international criminal law (*stricto sensu*). The point is worth mentioning because there is a widespread recognition of the fact that the issue of an exception from the immunity *ratione materiae* in cases of crimes under international law should receive a uniform treatment before national and international jurisdictions⁵⁵.

The ICJ will therefore be well advised to have a fresh look on the matter. The correct conclusion will be that no immunity *ratione materiae* exists under customary international law in the case of national and international proceedings for genocide, crimes against humanity, war crimes and the crime of aggression. This conclusion encompasses State measures of arrest and surrender of a person sought by the Court. It follows that no conflict of international obligations within the meaning of paragraph 1 exists in the hypothesis in question so that the Court is not precluded from making a request for arrest and surrender under article 98(1)⁵⁶. Pre-Trial Chamber I has endorsed this legal view, while it has confined the reach of its finding to international criminal proceedings⁵⁷. In view of the customary international criminal law exception to the international law immunity *ratione materiae*, there is no such immunity under customary international law to be eliminated by way of a Security Council decision with respect to proceedings before the Court.

bb) Immunity *ratione personae*. The picture is considerably less clear regarding immunities *ratione personae* enjoyed by heads of state, heads of government, foreign ministers,

⁵¹ ICJ, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 61.

⁵² Cf. in this direction, the Joint Individual Opinion of Judges Higgins, Kooijmans and Buergenthal, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 85, and the Dissenting Opinion of Judge van den Wyngaert, *ibid.*, para. 36.

⁵³ For a powerful recent critique, see Kreicker, *Völkerrechtliche Exemtionen*, Vol. I (2007) 120–138; for a shorter statement to the same effect, see Zahar and Sluiter, *International Criminal Law* (2007) 505; Ambos, *Treatise on ICL I* (2013) 417.

⁵⁴ This is the understanding of Judge Al-Khasaweh in his Dissenting Opinion, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 6.

⁵⁵ Robinson, in: Cryer *et al.* (eds.), *Introduction* (2007) 434.

⁵⁶ For the same view, e.g., Kreicker, *Völkerrechtliche Exemtionen*, Vol II (2007) 1387 *et seq.*

⁵⁷ *Prosecutor v Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, para. 36.

and, according to some commentators, the other members of a State cabinet, as well as diplomats, while in office⁵⁸.

- 23 **aaa) Customary international law.** The ICJ has rightly confirmed the absence of an international criminal law exception to this traditional immunity protection under international customary law for the purpose of national proceedings.⁵⁹ At the same time, the ICJ has opened the door for the recognition of a special exception pertaining to international criminal proceedings. It stated that a person who holds an office to which immunity *ratione personae* is attached ‘may be subject to proceedings before certain international criminal courts, where they have jurisdiction’. The ICJ goes on to specifically mention the ICTY, the ICTR and the ICC as examples of the ‘certain international criminal courts’ referred to⁶⁰. If strictly applied, this *dictum* would support the view that article 27 is declaratory of customary international law not only with respect to the immunity protection *ratione materiae* but also to that *ratione personae* to the extent that beneficiaries of the latter immunity category fall within the jurisdiction of the Court⁶¹. Due to the complete lack of supporting legal analysis, it must, however, remain a matter of speculation whether the ICJ had this far-reaching consequence in mind or whether it simply ‘forgot’ to qualify its legal proposition by an exception pertaining to non State parties in case of a treaty based international criminal court⁶². However, a strong argument against the idea of a ‘forgotten qualification’ or even an ‘implied exception’⁶³ of the kind just alluded to follows from a conjunctive reading of the *dictum* concerning ‘certain international criminal courts’ and the previous statement that persons who hold or formerly hold an office to which immunity *ratione personae* is attached

‘will cease to enjoy immunity from foreign jurisdiction if the State which they represent or have represented decides to waive that immunity’⁶⁴.

For only in its unqualified form, the ‘international courts *dictum*’ substantially adds to the ‘waiver *dictum*’.

- 24 Pre-Trial Chamber I has determined that an international customary law exception from the international law immunity of States *ratione personae* with respect to their Heads exists

⁵⁸ Unfortunately, the ICJ has not specified those ‘certain holders of high ranking office in a State’ (ICJ, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 51) that are beneficiaries of the immunity protection *ratione materiae*; at the time of writing, the ILC does not seem inclined to add State offices to the list of those explicitly recognised by the ICJ; see Draft article 3 of the draft articles on ‘Immunity of State officials from foreign criminal jurisdiction’, as repr. in A/CN.4/L.814, 4 June 2013; for a recent argument to include all members of government into the list of beneficiaries of the international immunity right *ratione personae*, see Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 727–729; for a scholarly pronouncement pointing in the same direction, see Talmon (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 352–353.

⁵⁹ ICJ, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 53–58; this determination was confirmed in *Prosecutor v. Omar Hassan Ahmad Al Bashir*, ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir’s Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, para. 25.

⁶⁰ ICJ, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 61.

⁶¹ For a similar reading of the formulation of the ICJ’s ‘international court *dictum*’, see Zahar and Sluiter, *International Criminal Law* (2007) 504.

⁶² Klingenberg (2003) 46 *GYbIL* 549, avoids the interpretation of the ICJ *dictum* one way or the other and argues ‘the judgment must be regarded as leaving open the question of whether article 27 para. 2 Rome Statute allows the ICC to derogate from immunities enjoyed by third state nationals’; Talmon, (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 360, prefers a narrow reading of the ICJ’s *dictum*, but he concedes that the formulation may be read differently.

⁶³ For such an implied exception, see Akande (2004) 98 *AJIL*. 418, who sums up his view that ‘the statement by the ICJ that international immunities may not be pleaded before certain international tribunals must be read subject to the condition (1) that the instruments creating those tribunals expressly or implicitly remove the relevant immunity, and (2) that the state of the official concerned is bound by the instrument removing the immunity [footnote omitted]’.

⁶⁴ ICJ, Case Concerning the Arrest Warrant of 11 April 2000, *Democratic Republic of Congo v. Belgium*, 14 Feb. 2002, para. 61.

with a view to proceedings before an international court, including the ICC⁶⁵. The Chamber has held further that ‘the unavailability of immunities with respect to prosecutions by international courts applies to any act of cooperation by States which forms an integral part of those prosecutions’ so that the kind of conflict of international legal duties article 98(1) is to avoid does not exist⁶⁶.

In light of the fundamental importance of this decision, the Chamber’s detailed reasoning in support of these two findings deserves to be set out in full. The Chamber has explained the existence of an international customary law exception from the international law immunity of States *ratione personae* with respect to their Heads in international law as follows:

‘The Chamber notes that as early as March 1919, in the aftermath of the First World War, the Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties recommended the establishment of a High Tribunal rejecting the idea of immunities for Heads of States:

“In these circumstances, the Commission desire to state expressly that in the hierarchy of persons in authority, there is no reason why rank, however exalted, should in any circumstances protect the holder of it from responsibility when that responsibility has been established before a properly constituted tribunal. This extends even to the case of heads of States. An argument has been raised to the contrary based on the alleged immunity, and in particular the alleged inviolability, of a sovereign of a State. But this privilege, where it is recognized, is one of practical expedience in municipal law, and is not fundamental. However, even if, in some countries, a sovereign is exempt from being prosecuted in a national court of his own country the position from an international point of view is quite different.”

In the aftermath of the Second World War, two international tribunals were established, respectively in Nuremberg and Tokyo. Article 7 of the Charter of the International Military Tribunal states as follows:

“The official position of defendants, whether as Heads of State or responsible officials in Government Departments, shall not be considered as freeing them from responsibility or mitigating punishment.”

The International Military Tribunal sitting in Nuremberg reaffirmed such a principle in its judgment issued on 1st October 1946:

“The principle of international law, which under certain circumstances protects the representatives of a State, cannot be applied to acts which are condemned as criminal by International Law. The authors of these acts cannot shelter themselves behind their official position to be freed from punishment in appropriate proceedings.”

Article 6 of the Charter of the International Military Tribunal sitting in Tokyo convicted defendant Hiroshi Oshima, the Japanese Ambassador in Berlin, despite his assertion that he was protected by his diplomatic immunity:

“OSHIMA’s special defence is that in connection with his activities in Germany he is protected by diplomatic immunity and is exempt from prosecution. Diplomatic privilege does not import immunity from legal liability, but only exemption from trial by Courts of the State to which an Ambassador is accredited. In any event this immunity has no relation to crimes against international law charged before a tribunal having jurisdiction. The Tribunal rejects this special defence.”

In 1950, the United Nations General Assembly adopted the ‘Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and the Judgment of the Tribunal’. Principle III states:

“The fact that a person who committed an act which constitutes a crime under international law acted as a Head of State or responsible Government official does not relieve him from responsibility under international law.”

Article 7(2) of the International Tribunal for the Former Yugoslavia Statute likewise states:

“The official position of any accused person, whether as Head of State or Government or as a responsible Government official, shall not relieve such person of criminal responsibility nor mitigate punishment.”

In several occasions, especially after the transfer of Slobodan Milosevic, the International Tribunal for the Former Yugoslavia (‘ICTY’) stated that article 7(2) was declaratory of customary international law:

⁶⁵ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, para. 36.

⁶⁶ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, paras. 37–43, 44.

"Individuals are personally responsible, whatever their official position, even if they are heads of State or government ministers: Articles 7(2) of the Statute and article 6(2) of the Statute of the International Criminal Tribunal for Rwanda (...) are indisputably declaratory of customary international law."

Article 6(2) of the International Tribunal for Rwanda ('ICTR') Statute is identical to article 7(2) of the ICTY Statute.

In its Draft Code of Crimes against the Peace and Security of Mankind, the International Law Commission adopted the same principle. Article 7 of the Draft Code, entitled 'Official position and Responsibility' indeed states:

"The official position of an individual who commits a crime against the peace and the security of mankind, even if he acted as Head of State or Government, does not relieve him of criminal responsibility or mitigate punishment."

The International Court of Justice ('ICJ') held, in the 'Arrest Warrant Case', that although customary international law provided for immunity with regard to *national courts*, for certain officials such as the incumbent Minister of Foreign Affairs, and *a fortiori* for Heads of State and Government, even in the case of a suspected commission of war crimes or crimes against humanity, such immunities could not be opposed by a criminal prosecution of an international court:

"Fourthly, an incumbent or former Minister for Foreign Affairs may be subject to criminal proceedings before certain international criminal courts, where they have jurisdiction. Examples include the International Criminal Tribunal for the former Yugoslavia, and the International Criminal Tribunal for Rwanda, established pursuant to Security Council Resolutions under Chapter VII of the United Nations Charter, and the Future International Criminal Court created by the 1998 Rome Convention. The latter's Statute expressly provides, in article 27, paragraph 2, that 'immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.'"

The ICJ in the 'Arrest Warrant Case' is concerned solely with immunity across national jurisdictions. The ICJ majority referenced the international tribunal provisions addressing immunity, including article 27 of the Statute, and conceded that these provisions 'do enable it to conclude that any such an exception exists in customary international law *in regard to national courts*.' The ICJ majority discussion of customary international law immunity is therefore distinct from the present circumstances, as here an *international court* is seeking arrest for international crimes. This distinction is meaningful because, as argued by Antonio Cassese, the rationale for foreign state officials being entitled to raise personal immunity before national courts is that otherwise national authorities might use prosecutions to unduly impede or limit a foreign state's ability to engage in international action. Cassese emphasised that this danger does not arise with international courts and tribunals, which are 'totally independent of states and subject to strict rules of impartiality.'

Following the ICJ ruling in the 'Arrest Warrant Case', the Appeals Chamber of the Special Court for Sierra Leone, applying article 6(2) of its Statute which is identical to article 6(2) of the ICTR Statute and article 7(2) of the ICTY Statute, held that 'the principle seems now established that the sovereign equality of states does not prevent a Head of State from being prosecuted before an international criminal tribunal or court'. As explained by that Court:

"A reason for the distinction, in this regard, between national courts and international courts, though not immediately evident, would appear due to the fact that the principle that one sovereign state does not adjudicate on the conduct of another state; the principle of state immunity derives from the equality of sovereign states and therefore has no relevance to international criminal tribunals which are not organs of a state but derive their mandate from the international community."

Therefore the Chamber finds that the principle in international law is that immunity of either former or sitting Heads of State can not be invoked to oppose a prosecution by an international court. This is equally applicable to former or sitting Heads of State not Parties to the Statute whenever the Court may exercise jurisdiction. (...)

The Chamber considers that the international community's commitment to rejecting immunity in circumstances where international courts seek arrest for international crimes has reached a critical mass. If it ever was appropriate to say so, it is certainly no longer appropriate to say that international law immunity applies in the present context.

For the above reasons and the jurisprudence cited earlier in this decision, the Chamber finds that customary international law creates an exception to Head of State immunity when international courts seek Head of State's arrest for the commission of international crimes⁶⁷.

⁶⁷ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, paras. 23–36, 42–43 (numbers of paragraphs and footnote in the original omitted, emphasis as in the original).

The Chamber goes on to explain why the Court is not precluded by virtue of article 98(1) to request a State Party, on whose territory an incumbent Head of a non-State Party sought by the Court is present, to arrest and surrender that Head of State:

‘Furthermore, the Chamber is of the view that the unavailability of immunities with respect to prosecutions by international courts applies to any act of cooperation by States which forms an integral part of those prosecutions.

Indeed, the cooperation regime between the Court and States Parties, as established in Part IX of the Statute, can not in any way be equated with the inter-state cooperation regime which exists between sovereign States. This is evidenced by the Statute itself which refers in article 91 of the Statute to the ‘distinct nature of the Court’, and in article 102 of the Statute which makes a clear distinction between ‘surrender’, meaning the delivering up of a person by one State to another as provided by treaty, convention or national legislation.

Indeed, it is the view of the Chamber that when cooperating with this Court and therefore acting on its behalf, States Parties are instruments for the enforcement of the *jus puniendi* of the international community whose exercise has been entrusted to this Court when States have failed to prosecute those responsible for the crimes within its jurisdiction⁶⁸.

These findings of Pre-Trial Chamber I are controversial. A significant part of international legal scholarship is of the view that the customary international law immunity *ratione personae* covers not only national proceedings, but also international criminal proceedings, including those for crimes under international law⁶⁹. According to this view, non-State Parties possess a customary immunity right *ratione personae* applicable both *vis-à-vis* the Court and *vis-à-vis* a State Party that receives a request for cooperation as part of proceedings before the Court. Pursuant to article 98(1), the Court would therefore be precluded from issuing a request for State Party cooperation with respect to any beneficiary of the immunity right in question. One argument in support of this position denies the possibility to distinguish between national and international criminal proceedings for the present purposes. A second argument, which may or may not be combined with the first, disputes the existence of a sufficient amount of State practice in support of the international customary law exception from the international immunity right *ratione personae*, as maintained by Pre-Trial Chamber I. 26

Some authors concur with the first finding of Pre-Trial Chamber I, but reject the second⁷⁰. 27 Those authors agree with the proposition of an exception from the international customary law immunity *ratione personae* for the specific purpose of international criminal proceedings, but they believe that this exceptions does not extend to the international legal relationship between the requested State and the non-State Party to which the beneficiary of the international immunity right *ratione personae* belongs. According to this position, the Court is not precluded by any conflicting immunity right *ratione personae* from exercising its jurisdiction over an incumbent Head of State, Head of Government or Foreign Minister of a non-State Party, but the Court is precluded from issuing a request to a State party for the arrest and surrender of such a person sought unless a waiver to that effect has been obtained by the non-State party concerned.

The second edition of this commentary on article 98, however, took the view which was adopted by Pre-Trial Chamber I and the Chamber’s reasoning, by and large, mirrors the considerations set out in that second edition. This third edition maintains this previous position and therefore agrees with both findings of Pre-Trial Chamber I. To this, however, it must be added that the subsequent practice of African States has prevented the law, as set out by Pre-Trial Chamber I, from consolidating. The following analysis proceeds in two steps. First, the argument in support of the findings made by Pre-Trial Chamber I will be summarised. Second, the subsequent practice of African States and its legal effect will be considered. 28

⁶⁸ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 12 December 2011, paras. 44–46.

⁶⁹ Pedretti, *Immunity of Heads of State* (2015) 274–299, 304–307; Talmon (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 359–364; Akande (2004) 98 *AJIL* 421 *et seq.*; Robinson, in: Cryer *et al.* (eds.), *Introduction* (2007) 441; Simbeye, *Immunity and International Criminal Law* (2004) 159.

⁷⁰ Tladi (2013) 1 *JICJ* 206–207, Kreicker (2008) *HuV-I* 162–163; *id.*, *Völkerrechtliche Exemtionen*, Vol II (2007) 759–766; Gaeta (2009) 7 *JICJ* 320–322, 325–326.

29 As was highlighted above (mn 23), the ICJ has given credit to the idea that the international law immunity right *ratione personae* suffers from an exception for international criminal proceedings for crimes under international law. More recently, the first Special Rapporteur of the ILC on the subject of 'Immunity of State officials from foreign criminal jurisdiction', lent his support to this idea and stated that '(i)munity from international criminal jurisdiction appears to be fundamentally different from immunity from national criminal jurisdiction'⁷¹. This, of course, provokes the question why international criminal proceedings should be seen as being 'fundamentally different' from their national counterparts. In fact, there would be no real difference at all if international proceedings were simply the collective exercise of State rights to conduct national proceedings. Such a delegation model, however, is not the most convincing manner to conceptualise international criminal justice *stricto sensu*. Instead, international criminal law in the true (and narrow) sense of the word⁷² is ultimately based on the idea of a *ius puniendi* of the international community as a whole⁷³ and, as a matter of principle, the exercise of this *ius puniendi* is therefore primarily entrusted not to States, but to organs of the international community. Those organs constitute the direct embodiment of the 'collective will' and offer the best guarantee that the enforcement of international community values does not lead to – notably: hegemonic – abuses. This does not rule out the power of States to exercise the *ius puniendi* of the international community in the case of crimes under international law, but it explains the possibility that an international criminal court, which acts as an organ of the international community in conducting proceedings for crimes under international law, has wider powers than a national criminal court, which acts as a mere fiduciary of the common good⁷⁴. Yet, not every international criminal court qualifies as an organ of the international community and the findings of Pre-Trial Chamber I must be nuanced in that respect. It is fairly clear, for example, that France and Germany cannot create an organ of the international community by setting up a joint criminal court on the basis of a bilateral treaty. The ICJ is likely to have alluded to this fact by confining its 'international tribunals *dictum*' to 'certain international criminal courts (emphasis added)'. This brings us to the question which international criminal courts may qualify as organs of the international community. On an abstract level, it can be said that only those courts should count which can make a compelling claim to directly embody the 'collective will'. This is certainly the case with international criminal tribunals set up by the Security Council and the same should hold true for international criminal tribunals which, as is the case with the Special Court for Sierra Leone, act with that Council's blessing. The case of the ICC is more difficult whenever this Court's exercise of jurisdiction has not been triggered by a Security Council referral. The obvious argument not to treat the ICC as an organ of the international community is the lack of (quasi-)universal adherence to the ICC Statute. On the other hand, it is difficult to deny that the ICC Statute constitutes a legitimate attempt to establish an organ to directly exercise the international community's *ius puniendi*, because the treaty has been negotiated on the universal level, contains a standing invitation for universal adherence and does not display elements lending themselves to a (hegemonic) manipulation of the collective will. The facts that the ICC Statute has attracted a very significant number of ratifications, that the Security Council has referred two situations threatening international peace and security to the ICC for investiga-

⁷¹ Kolodkin, Preliminary report on immunity of State officials from foreign criminal jurisdiction, A/CN.4/601, 29 May 2008, para. 103; China has made a similar statement in the Sixth Committee of the United Nations General Assembly in 2008. The relevant sentence reads as follows: 'Immunity from criminal jurisdiction of a foreign State was not the same as immunity from international criminal jurisdiction such as that of the International Criminal Court, and the two should not be linked'; A/C.6/63/SR.23, 21 November 2008, para. 35.

⁷² International criminal law *stricto sensu* must ultimately be rooted in customary international law of a general nature; for the full exposition of this view, see Kreß, in: Wolfrum (ed.), *MPEIL*, Vol. V. (2012) 719- 721 (paras. 10–14).

⁷³ Kreß, *ibid.*

⁷⁴ Concurring Zhong (2014) *FICHL Policy Brief Series* No. 20 2.

tion and that the UN have endorsed the vision behind article 2 of the Statute through the conclusion of the Relationship Agreement with the ICC, add further weight to the view that the ICC on substance, and despite its formal creation by treaty, derives its mandate from the international community. As a matter of principle, it is therefore possible to draw a distinction between national criminal proceedings and proceedings for the ICC with respect to international law immunities. It is important to add that the principles outlined so far are not merely scholarly speculations about 'natural' international law. Instead, the 'international community' is a point of reference not only in the fourth preambular paragraph of the Statute, but also in Art. 53 of the Vienna Convention on the Law of Treaties, in the famous ICJ's dictum on international obligations *erga omnes* in *Barcelona Traction* and in Art. 48(1)(b) of the ILC's Articles on State Responsibility⁷⁵ and there does not appear to be disagreement with the concept that international criminal law *stricto sensu* protects values belonging to the international community as a whole. The theoretical possibility that the ICC possesses wider powers than a national criminal court is therefore to be acknowledged.

It is now necessary to give a closer look to the issue of international law immunities and here again on the level of principles first. Almost by definition, international criminal law *stricto sensu* poses a fundamental challenge to traditional international law immunities. To criminalise what is typically State-related conduct tends to run counter to the old idea of shielding acts of states from foreign judicial scrutiny by means of a procedural bar. The difficulty to reconcile traditional international law immunities with the very idea of international criminal law *stricto sensu* becomes even more apparent once it is recognised that the use of the international criminal law instrument is most important in the cases of those persons who bear the greatest responsibility for what is typically macro-criminality. For, those persons will often be precisely the ones in respect of whom traditional immunity protection is strongest. It is therefore no surprise at all that the International Military Tribunal at Nuremberg addressed the challenge upfront and clearly articulated the idea that the acceptance of an international criminal law *stricto sensu* implies the retreat of traditional international law immunities:

'The principle of international law, which under certain circumstances, protects the representatives of a state, cannot be applied to acts which are condemned as criminal by international law. The authors of these acts cannot shelter themselves behind their official positions in order to be freed from punishment in appropriate proceedings. Article 7 of the Charter expressly declares: 'The official position of Defendants, whether as heads of State, or responsible officials in Government departments, shall not be considered as freeing them from responsibility, or mitigating punishment.' On the other hand the very essence of the Charter is that individuals have international duties which transcend the national obligations of obedience imposed by the individual state. He who violates the laws of war cannot obtain immunity while acting in pursuance of the authority of the state if the state authorizing action moves outside its competence under international law'⁷⁶.

Already the Nuremberg precedent therefore clearly sends out the message that international criminal law *stricto sensu* implies an important restriction on the traditional international law concept of State sovereignty. While it has been and continues to be the key function of this concept to allow scope for moral disagreement within a pluralist international legal order and while the international law concept of State sovereignty includes the protection of States against intrusions into their territory even in cases of violations of international law⁷⁷, the rules of international criminal law *stricto sensu* draw the red line beyond which State sovereignty no longer provides an impenetrable shield for those acting on behalf of the State. The very idea of international criminal justice *stricto sensu*, which again is not simply a scholarly speculation about 'natural' international law, but which has been accepted by States at Nuremberg and which has been revitalised by States since the 1990ies, therefore poses a formidable challenge to traditional international immunities. Yet, the ICJ has authoritatively determined in the *Arrest Warrant* case that the traditional international law immunity *ratione*

⁷⁵ James Crawford (ed.), *State Responsibility* (2002) 276.

⁷⁶ International Military Tribunal (Nuremberg), Judgment and Sentences, 1 October 1946, (1947) 41 *AJIL* 221.

⁷⁷ For a recent brilliant exposition of all this, see Roth, *Sovereign Equality and Moral Disagreement* (2011).

personae holds firm in national criminal proceedings for crimes under international law. It is oversimplified to explain the *Arrest Warrant* qualification of the rigorously worded rejection of immunities by the Nuremberg Tribunal on immunities by saying that, in criminal proceedings in a foreign State, the right of the State of the offender to sovereign equality trumps the *ius puniendi* of the international community. A more convincing explanation would refer to the sovereign right of States to be protected against an abusive (hegemonic) use of the criminal law instrument by another State in the name of the international community in those cases where such an abuse would have a seriously destabilising effect on international relations. The message underlying the *ratio decidendi* of the *Arrest Warrant* would seem to be that when it comes to persons enjoying international law immunity *ratione personae*, the State sovereignty interest to be protected against an abusive use of the criminal law instrument by a foreign State carries more weight than the international community's interest in the fiduciary exercise of this community's *ius puniendi* by such a state. At this point, the balance may be struck differently in criminal proceedings before a judicial organ of the international community. Such an organ may, of course, also fail in its attempt to serve the interests of justice, but the institutional safeguards against an abuse of the criminal law instrument are such that the international community's interest weighs heavier. In light of the preceding observations the truth would appear to lie between the two extremes of saying that the principle of sovereign equality has 'no relevance to international criminal proceedings which are not organs of a state but derive their mandate from the international community'⁷⁸ and that '[i]t makes little difference whether foreign states seek to exercise this judicial jurisdiction unilaterally or through some collective body that the state concerned has not consented to. The truth is that there is no 'fundamental' difference between proceedings for crimes under international law conducted by a State as the fiduciary of the international *jus puniendi* and by an international criminal court which qualifies as an organ of the international community. There is, however, an appreciable difference regarding the institutional framework for such proceedings which justifies treating the question of international law immunities differently in both fora.

- 31 The considerations so far were situated at the level of general principles. Although those principles are not the result of scholarly speculation, but could be derived from international practice, they are not sufficient *per se* to demonstrate that an 'international criminal proceedings exception' from the international law immunity *ratione personae* has come into existence through the customary process. More specific practice based on *opinio juris* is needed to crystallise the principles into law. This does not mean, however, that the above highlighted principles are irrelevant to the question whether new customary international law has come into existence. The development of international criminal law since the 1990ies provides clear evidence for the existence of what has been called 'modern custom'⁷⁹, the ascertainment of which usually involves a degree of deduction from broader principles such as those established above⁸⁰. Where such principles clearly point in the direction of new customary law, the latter may crystallise without the need to identify a huge amount of more concrete State practice and verbal State practice, which is almost indistinguishable from *opinio juris*, may largely take the place of 'hard' State practice in the traditional sense. Modern custom may thus come into existence without a solid body of 'hard' practice confirming the respective rule⁸¹. These considerations apply to the 'international criminal

⁷⁸ Special Court for Sierra Leone, SCSL-2003-01-I, *Prosecutor v. Charles Ghankay Taylor*, Decision on Immunity from Jurisdiction, 31 May 2004, para. 51.

⁷⁹ For two useful studies of these methodological issues with many further helpful references, see Roberts (2001) 95 AJIL 757; Seibert-Fohr, in: Zimmermann and Hofmann (eds.), *Unity and Diversity in International Law* (2006) 264–270.

⁸⁰ For some insightful reflections on the matter, see Herdegen, in: Dupuy *et al.* (eds.), *Völkerrecht als Wertordnung* (2006) 899. On the crystallization of war crimes committed in non-international armed conflicts, see Krefß (2001) 30 *IsYbHumRts* 104–109.

⁸¹ The methodological considerations set out in the above text form part of the subject-matter of the current ILC project 'Identification of Customary International Law'. In his second report, the Special Rapporteur cautions against the acceptance of the idea that the identification of customary law could be done only on the

proceedings exception' in question. This is all the more so because international criminal proceedings against beneficiaries of the traditional international law immunity *ratione personae* remain comparatively exceptional events and because it is obviously impossible to induce the exception in question from a series of *national* judicial decisions as instances of 'hard' State practice. It must, however, be conceded that an international customary law rule that has come into existence based on a combination of deductive and inductive reasoning will be the more vulnerable to change as a result of the occurrence of contrary 'hard' practice the more limited the amount of prior 'hard' practice in support of the new rule had been⁸².

In its analysis of the State practice in point, Pre-Trial Chamber I, as was done by the Special Court for Sierra Leone before⁸³, refers to article 7 of the Charter for the Nuremberg Tribunal, to article 6 of the Charter for the Tokyo Tribunal, to Principle III of the 1950 Nuremberg Principles, to article 7(2) of the ICTY Statute, to article 6(2) of the ICTR Statute and to article 7 of the 1996 ILC Draft Code of Crimes against the Peace and Security of Mankind (see above mn 25). One may wonder whether the Chamber was justified to rely on those documents despite the fact that they are all framed in terms of substantive law and thus do not directly address the immunity issue as does article 27(2) of the ICC Statute. While it is true that '[i]mmunity from criminal jurisdiction and individual criminal responsibility are quite separate concepts⁸⁴' so that the distinction drawn in the two paragraphs of article 27 of the ICC Statute marks a progress in the clarity of drafting, it is also true that the two concepts have not been neatly distinguished in the earlier practice of international criminal practice. Beginning with the Nuremberg judgment, as can be seen from the above citation (see mn 30), the immunity issue has been addressed in conjunction with the statutory provision that confirms the applicability of the substantive law. It is therefore in line with the historic development that the ILC states in its commentary on article 7 of the 1996 Draft Code of Crimes against the Peace and Security of Mankind that

'the absence of any procedural immunity with respect to prosecution or punishment in appropriate judicial proceedings is an essential corollary of the absence of any substantive immunity or defence⁸⁵'.

It is also true that the language of the texts cited by the Pre-Trial Chamber seem to extend to incumbent Heads of States etc. without drawing a distinction as to whether the State concerned can be said to have waived its immunity rights before the jurisdiction concerned. In light of this, the Pre-Trial Chamber was justified to refer to the documents as listed as relevant verbal State practice. At the same time, it must be recognised that until the *Charles Taylor* decision, this verbal State practice did not yield any international judicial decision as regards the international immunity *ratione personae* with the one single exception of the ICTY's arrest warrant against the then incumbent Head of State *Slobodan Milošević* and the ICTY's Trial Chamber's decision confirming the jurisdiction of the Tribunal⁸⁶. The precedential value of

basis of ascertaining an *opinio iuris* in certain legal contexts. The Special Rapporteur recognises, however, that the two-element approach (searching for State practice and *opinio iuris*) may be applied differently in different fields (A/CN.4/672, Second report on the identification of customary international law, 22 May 2014, para. 28). While the Special Rapporteur does not demonstrate a particular inclination towards recognising the relevance of deductive reasoning based on broader principles, it is submitted that such an approach is nothing but a particular application of the two-element approach provided that the broader principles are themselves derived from the practice of States.

⁸² On 'relative resistance to change' and customary international law, see Byers, *Custom* (1999) 157–160.

⁸³ Special Court for Sierra Leone, SCSL-2003-01-I, *Prosecutor v. Charles Ghankay Taylor*, Decision on Immunity from Jurisdiction, 31 May 2004, paras. 45–47.

⁸⁴ Roman Anatolevich Kolodkin, in International Law Commission *Preliminary report on immunity of State officials from foreign criminal jurisdiction*, 29 May 2008, A/CN.4/601, para 66.

⁸⁵ Para. 6 of the Commentary on article 7, as repr. in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law, Vol. II* (2000) part 1 354; in footnote 39, the ILC further notes: 'Judicial proceedings before an international criminal court would be the quintessential example of appropriate judicial proceedings in which an individual could not invoke any substantive or procedural immunity based on his official position to avoid prosecution and punishment.'

⁸⁶ ICTY, *Prosecutor v. Milošević*, IT-99-37-PT, Decision on Preliminary Motion, Trial Chamber, 8 November 2001.

the latter decision is somewhat weakened, however, by the fact that the *Milošević* decision did not confront the legal issue of the immunity *ratione personae* of the Federal Republic of Yugoslavia⁸⁷. as a distinct legal problem. To the contrary, the ICTY Trial Chamber placed the pertinent paragraphs of their decision under the title 'Lack of competence by reason of his status as *former* President (emphasis added)'. As a result, the decision does not clearly recognise that the *Milošević* precedent exceeds the denial of immunity *ratione materiae* concerning the conduct of a former Head of State before a judicial organ of the international community. The only judicial decision that explicitly acknowledges setting such a precedent before the 12 December 2011 Pre-Trial Chamber I Decision, is the Special Court for Sierra Leone's *Decision on Immunity from Jurisdiction* in the *Charles Taylor* case⁸⁸. Importantly, this precedent has not provoked a protest from the African Union. It is, of course, possible to have different views on these materials depending on the approach to the ascertainment of customary international law one chooses. Under the modern positivist approach to customary international law, as set out for reasons of methodological transparency above (mn 31), Pre-Trial Chamber I has made a convincing case for the crystallisation of a customary international criminal law exception from the international law immunity *ratione personae* in proceedings before a judicial organ of the international immunity. The case builds, as has been developed in the course of the preceding observations, on the combined effect of a set of 'guiding principles' pertaining to the concepts of 'international community' and 'international criminal law *stricto sensu*' as accepted by States over the last decades, on a consistent line of verbal State practice beginning with the Charter for the Nuremberg Tribunal, on the *Milošević* precedent before the ICTY (though with a somewhat limited effect), on the literal formulation of the 'International Criminal Court *dictum*' of the ICJ in the *Arrest Warrant* case and on the culmination of all this in the *Charles Taylor* decision by the Special Court for Sierra Leone.

- 33 Pre-Trial Chamber I has also made a convincing case for its second finding that the 'international criminal proceedings exception' extends to the triangular legal relationship between the Court, a requested State Party and the non-State Party covered by article 98(1). The argument advanced by the Chamber is situated at the level of principles and at this level it is convincing. While the State of arrest and surrender is formally exercising its national authority, it is on substance acting for the Court to assist the latter in the direct enforcement of the *jus puniendi* of the international community. For this reason, there is an important difference between the factual situation governed by the ICJ's judgment in the *Arrest Warrant* case, where a State conducts national criminal proceedings against a person suspected of having committed a crime under international law, and the factual situation governed by Pre-Trial Chamber I's decision in the *al Bashir* case, where a State party to the Statute has been requested by the ICC to arrest and surrender a person suspected of having committed a crime under international law for proceedings before the Court. There was, however, no precedent in the practice of international proceedings and the related vertical cooperation directly covering the extension of the 'international criminal proceedings exception' to the realm of vertical cooperation. While there is certainly room for legitimate disagreement, it is submitted that the second finding by Pre-Trial Chamber I did not amount to an inappropriate act of 'judicial legislation'. The vertical cooperation regime constitutes an external and vitally important part of the international proceedings before the Court as the latter proceedings, in the absence of direct enforcement powers of the Court, cannot be conducted without vertical State cooperation. The extension of the 'international criminal proceedings exception' from the international immunity law *ratione personae* to the realm of vertical cooperation is therefore not properly characterised as the acceptance of distinct new customary rule. This extension is better seen as the proper

⁸⁷ Importantly, the Federal Republic of Yugoslavia was not a UN member State at the time of *Milosevic's* indictment. The case can thus not be explained on the basis of an (indirect) waiver of immunity of the State concerned.

⁸⁸ Special Court for Sierra Leone, SCSL-2003-01-I, *Prosecutor v. Charles Ghankay Taylor*, Decision on Immunity from Jurisdiction, Appeals Chamber, 31 May 2004, para. 52.

delimitation of the one and the same 'international criminal law exception' in question. It follows that the lack of an international judicial precedent precisely on a vertical cooperation legal relationship such as that established through Part 9 of the ICC Statute does not constitute an insurmountable obstacle to the second finding reached by Pre-Trial Chamber I. This finding rather, and as foreshadowed in marginal no 23 in the second edition of this commentary, crystallised the proper scope of application of the 'international criminal proceedings exception' from the international customary law immunity right *ratione personae*.

The proper weight of Pre-Trial Chamber I's recognition of the 'international criminal proceedings exception' must be seen in light of the remarkably vertical manner in which article 98(1) operates (mn 3) and which, from the legal perspective of State parties, implies the Court's 'sole authority to decide whether immunities are applicable in a particular case'⁸⁹. In light of this verticality of the Statute's legal scheme, it may well be asked whether States Parties have agreed that the Court acts on their behalf when it comes to the identification of the 'international criminal law exception'. In any event, the Statute's verticality implies the duty for State Parties to be loyal to the Court when the latter has reached an attempt to clarify the relevant customary international law in a manner which is not manifestly mistaken. At the same time, there can be no denial that the 'international criminal law exception', as set out by Pre-Trial Chamber I in its two findings, is based in significant parts on deductive reasoning from broader principles. It therefore remains comparatively vulnerable to change as a result of the occurrence of subsequent contrary 'hard' practice (see mn 30) of non-State Parties. In that context, the subsequent practice of African States must be considered. The controversy about the 'international criminal proceedings exception' can be traced back to the thirteenth Ordinary Session (1–3 July 2009) of the Assembly of the African Union. The Assembly requested:

'(T)he Commission to convene a preparatory meeting of African States Parties at expert and ministerial levels but open to other Member States at the end of 2009 to prepare fully for the Review Conference of States Parties scheduled for Kampala, Uganda 2010, to address among others, the following issues, (...).

v.) Comparative analysis of the implications of the practical application of Articles 27 and 98 of the Rome Statute; (...).

The Assembly decided:

'(...) that in view of the fact that the request by the African Union (to defer proceedings initiated against President Bashir) has never been acted upon, the AU Member States shall not cooperate pursuant to the provisions of Article 98 of the Rome Statute of the ICC relating to immunities, for the arrest and surrender of President Omar El Bashir of The Sudan; (...)'⁹⁰.

It is not entirely clear which *opinio iuris* is implied in these statements. The Assembly's request to the Commission to prepare a legal analysis does not express a legal position on the issue, but the wish to form such a position at a later stage. It is not easy to harmonise this wish with the decision that AU Member States shall not cooperate with the Court. On close inspection, however, this decision cannot be read as the articulation of precisely that legal position which the request to the Commission was meant to prepare. Instead, the decision is explicitly made 'in view of the fact that the request by the African Union (to defer the proceedings initiated against President Bashir) has never been acted upon'. It is thus (and somewhat curiously so) drafted as a political reaction to a prior (political) decision by the Security Council. It is therefore not possible to read a sufficiently clear, let alone unambiguous position of the AU Member States (and in particular the Non-State Parties to the ICC Statute among these Member States) into Decision 245 (XIII). This assessment is confirmed by the Report of the Second Ministerial Meeting on the Rome Statute held on 6 November 2009 the pertinent passage of which states:

⁸⁹ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision, 12 December 2011, para. 11; *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 9 April 2014, para. 16.

⁹⁰ Assembly/AU/Dec. 245(XIII) Rev.1, paras. 8 and 10, 3 July 2009.

‘Articles 27 and 98 of the Rome Statute should be discussed by the Assembly of States Parties under the agenda item ‘stock taking’ in order to obtain clarification on the scope and application of these Articles particularly with regard to non State Parties. In this regard, there is need to clarify whether immunities enjoyed by officials of non state parties under international law have been removed by the Rome Statute or not.’

While perhaps not drafted with the utmost legal precision, this passage clearly does not contain the expression of a legal position on the subject matter. Instead, the Ministers once more emphasised the ‘need to clarify’ the law. This may reflect the fact that there appeared to be a lively discussion among AU Member States about the right course of action on the matter. While the subsequent decisions made in 2010 and 2011 sound more like the expression of the legal view that the State of Sudan’s immunity right *ratione personae* precludes the Court from issuing a request for arrest and surrender ‘pursuant to Article 98⁹¹’, the political background remains the same and therefore the practice of the AU Member States before 12 December 2011 did not amount to a sufficiently clear cut legal opposition to the ‘international criminal proceedings exception’.

On 9 January 2012, the AU Commission published its Press Release, as referred to in marginal no 10, criticising the decision of Pre-Trial Chamber I of 12 and 13 December 2011. This Press Release contains a protest against the Chamber’s recognition of the ‘international criminal proceedings exception’ because the Commission expresses its ‘deep regret that the decisions rendered by Pre-Trial Chamber I on 12 and 13 December 2011 have the effect of (...) (p)urporting to change customary international law in relation to immunity *ratione personae*’. This legal position cannot, however, be attributed to the AU Member States, because the African Union possesses an international legal personality which is distinct from that of its Member States, and because nothing in the African Union’s Constitutive Act suggests that the Commission is empowered to formulate and express its legal position on the international law of immunities on behalf of the Union’s Member States⁹². It is also not possible to attribute the conduct of the individual members of the Commission to their national States because the Commission constitutes an integrated (and not an intergovernmental) organ of the African Union. On 30 January 2012, the AU’s Assembly issued a statement pointing in the direction of the Commission’s legal view⁹³, but on 23 January 2012, the High Court of Kenya issued a provisional warrant of arrest against al Bashir and the Court based its decision of the request to arrest and surrender by the ICC⁹⁴. In June 2012, the new President of Malawi, Joyce Banda, announced that the State would not host al Bashir during the AU summit. The Republic Botswana supported Malawi’s change of position and stated:

‘The Government of Botswana is deeply concerned about the pressure exerted by the African Union Commission on the Government of Malawi to commit to hosting President Al Bashir at the forthcoming AU summit in July this year. Unfortunately, this pressure has consequently led to the Summit being moved to Addis Abeba, thus depriving Malawi to host the meeting. Botswana therefore condemns this action as it is inconsistent with the very fundamental principles of democracy, human rights and good governance espoused by the AU, and which Malawi upholds. It is our considered view that Malawi as a sovereign state has the right to make decisions it may deem necessary in fulfilment of her obligations under both the Rome Statute and the AU. In this regard, Botswana will take the opportunity at the forthcoming AU Summit to put its case across on this important matter of principle’⁹⁵.

⁹¹ Assembly/AU/Dec.366(XVII), 1 July 2011, para. 5; Assembly/AU/Dec.296(XV), 27 July 2010, para. 5.

⁹² In fact, as Keppler (2012) 56 *J African L* 4 has shown, the stand taken by the AU Commission was not shared by all Member States of the Union.

⁹³ Assembly/AU/Dec.397(XVIII), 30 January 2012, paras. 7–8.

⁹⁴ A copy of the arrest is on file with the authors.

⁹⁵ A copy of the Press Release of Botswana’s Ministry of Foreign Affairs and International Cooperation of 12 June 2012 is on file with the authors.

In July 2012, the Assembly

‘(e)ndorses the recommendation of the Meeting of Ministers of Justice/Attorneys General to approach the International Court of Justice (ICJ), through the United Nations General Assembly (UNAG), for seeking an advisory opinion on the question of immunities, under international law, of Heads of State and senior state officials from States that are not Parties to the Rome Statute of ICC (sic) and this regard (sic), requests the Commission to undertake a further study on the advisability and implications of seeking such advisory opinion from ICJ (sic) and to report thereon to the Executive Council’⁹⁶.

This decision does no more than to restate the view of the AU Member States that the immunity issue is in need of clarification and to point to a possible way to achieve such clarification. As already mentioned (mn 10), in July 2014, the AU Members decided to include the following article 46Abis in the Protocol on Amendments to the Protocol on the Statute of the African Court of Justice and Human Rights:

‘No charges shall be commenced or continued before the Court against any serving African Union Head of State or Government, or anybody acting or entitled to act in such capacity, or other senior state officials based on their functions, during their tenure of office’⁹⁷.

This provision establishes an immunity protection which includes beneficiaries of the international law immunity *ratione personae*, but which by far exceeds beyond the scope of application of the latter international law immunity. If and if yes to what extent this proposed treaty provision implies the expression of an *opinio iuris* contrary to the customary ‘international criminal proceedings exception’ is unclear and at the time of writing article 46Abis has not entered into force.

It is difficult to weigh the above-summarised practice of African States and, in particular, of African non-State Parties, with precision. It follows from the methodological position set out above (mn 31), that the rejection of the ‘international criminal proceedings exception’ to the international law immunity *ratione personae*, as set out by Pre-Trial Chamber I, by the subsequent practice of non-State Parties from one region would suffice to ‘roll back’ the still comparatively vulnerable crystallisation of the exception. But in order to exert this effect, such a practice would have to be unambiguous and consolidated. Clearly, the subsequent partice of African States, including that of non-State Parties to the ICC, has not embraced the findings made by Pre-Trial Chamber I. Instead, African States have doubted the legal validity of the Chamber’s findings and a number of statements made within the framework of the African Union even sound like the rejection of these findings. However, whether these statements can be completely divorced from the AU’s political protest against the proceedings in the case of *Al Bashir* and the political protest against the non-deferral of these proceedings by the Security Council, remains unclear⁹⁸. It should be remembered that the African States had not protested against the findings made in the *Charles Taylor* decision. In light of its ambiguities and its political overtones, the more recent practice of these States cannot be characterised as sufficiently clear and consolidated to ‘roll back’ the ‘international criminal proceedings exception’ as determined by Pre-Trial Chamber I. 35

In overall conclusion, the ‘international criminal proceedings exception’ to the international law immunity *ratione personae*, as set out by Pre-Trial Chamber I, remains a convincing statement of the existing law, but one that is under pressure and whose future is therefore uncertain. 36

bbb) Security Council Decisions. Should the customary ‘international criminal proceedings exception’ to the international law immunity *ratione personae*, as set out by Pre-Trial Chamber I, not prevail in the future because of a sufficiently strong subsequent non-State 37

⁹⁶ Assembly/AU/Dec.529(XXIII), 26–27 June 2014, para. 2(e).

⁹⁷ Assembly/AU/Dec.529(XXIII), 26–27 June 2014, para. 2(e).

⁹⁸ For a similar view, see Pedretti, *Immunity of Heads of State* (2015) 226: ‘Given the circumstances in which these decisions were taken, i.e. the current political campaign of African States against the ICC, the legal significance of these documents is, however, difficult to assess.’

Party practice to the contrary, it would be left to the Security Council to decide situation by situation through a binding resolution whether the international law immunity rights *ratione personae* of one or more States shall suffer from an exception for the purpose of proceedings before the Court. Nothing in the UN Charter and more particularly in its Chapter VII makes the validity of such a decision by the Council dependent on the fact that it has been expressed explicitly. Nor is the Court bound by its Statute and more particularly by article 98(1) to accept a Security Council decision on the non-applicability of an international law immunity right only if this decision has been made explicitly. Whether or not the Security Council has decided that an otherwise existing international law immunity shall not apply with respect to proceedings before the Court, including the vertical cooperation as a part of these proceedings, is therefore a matter of construction of the relevant Security Council resolution(s).

- 38 In the case against al Bashir, Pre-Trial Chamber II has recognised the possibility of an implicit decision by the Security Council to the effect that the international law immunity *ratione personae* of a certain State is inapplicable. The Chamber has found as follows:

‘(B)y issuing Resolution 1593(2005) the SC *decided* that the ‘Government of Sudan (...) *shall* cooperate fully with a provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution’. Since immunities attached to Omar Al Bashir are a procedural bar from prosecution before the Court, the cooperation envisaged in said resolution was meant to eliminate any impediment to the proceedings before the Court, including the lifting of immunities. Any other interpretation would render the SC decision requiring Sudan ‘cooperate fully’ and ‘provide any necessary assistance to the Court’ senseless. Accordingly, the ‘cooperation of that State (Sudan) for the waiver of the immunity’, as required under the last sentence of article 98(1) of the Statute, was already ensured by the language used in paragraph 2 of SC Resolution 1593(2005). By virtue of said paragraph, the SC implicitly waived the immunities granted to Omar Al Bashir under international law and attached to his position as a Head of State. Consequently, there also exists no impediment at the horizontal level between the DRC and Sudan as regards the execution of the 2009 and 2010 Requests.

(...) (T)he DRC maintains to be bound by the obligation that ‘no serving AU Head of State or Government (...) shall be required to appear before any international court or tribunal during their term of office’. However, it follows from the above that the conflicting obligations which the DRC claims to exist are not merely between the African Union and the Court. Rather, the conflict actually lies between the decision of the African Union to retain the immunity of Omar Al Bashir and the SC Resolution 1593(2005) which removed such immunity for the purpose of proceedings before the Court. In this case, the conflict is resolved by virtue of articles 25 and 103 of the UN Charter. According to article 25 of the UN Charter ‘(t)he Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the (...) Charter. In its advisory opinion on *Namibia* the ICJ stated, ‘when the Security Council adopts a decision under article 25 in accordance with the Charter, it is for member States to comply with that decision (...). To hold otherwise would be to deprive this principal organ of its essential functions and powers under the Charter.

Further, according to article 103 of the UN Charter ‘in any event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the (...) Charter shall prevail. Considering that the SC, acting under Chapter VII, has implicitly lifted the immunities of Omar Al Bashir by virtue of Resolution 1593(2005), the DRC cannot invoke any other decision, including that of the African Union, providing for any obligation to the contrary⁹⁹’.

- 39 The Chamber’s finding accords with the prevailing scholarly view and, assuming that the customary ‘international criminal proceedings exceptions’ does (no longer) exist, it is correct. There is, however, disagreement about the best reasoning to explain that finding. While there is support for the Chamber’s view that the instruction of the State of Sudan ‘to cooperate fully’ may be read so as implicitly to include the elimination of any international immunity law right *ratione personae* of that State with respect to the proceedings before the Court in the given situation¹⁰⁰, this view has also been criticised for reading more in the words ‘cooperate fully’ than Part 9 of the Statute, which includes article 98(1), requires. Instead, so

⁹⁹ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision 9 April 2014, para. 29–31 (nos of paragraphs and footnotes omitted; emphasis as in the original).

¹⁰⁰ Kreß, in: Bergsmo and Yan (eds.), *State Sovereignty and International Criminal Law* (2012) 241–243.

the critics hold, the inapplicability of international law immunity rights *ratione personae* results from very fact that the Security Council activates the Court's jurisdiction because the Court can only act in accordance with its Statute, including article 27(2). By virtue of conferring jurisdiction on the Court, so this explanation goes, the Security Council has placed the State of Sudan in the same legal position as a State Party to the Statute, including the unavailability of international law immunities pursuant to article 27(2)¹⁰¹. The criticism directed against the Chamber's reasoning is not compelling, because, as the Chamber argues, one may well read the words 'cooperate fully' to the effect that it implies to treat the non-State Party concerned as if it had already given the waiver of the immunity referred to in article 98(1). On the other hand, the alternative explanation appears to be the more straightforward legal avenue to reach the same result. It is therefore to be considered the preferable legal explanation. If the non-State Party concerned is accordingly placed, by virtue of a binding Security Council decision, in a legal position analogous to that of a State Party bound by article 27(2) it follows from the interpretation of that provision, as set out in marginal no 17 above, that the inapplicability of the international law immunity *ratione personae* extends to the realm of vertical cooperation covered by article 98(1)¹⁰².

5. Waiver of immunity

If the Court recognises that a request would conflict with an international obligation of the State concerned, it may either decide not to pursue the request or to engage in negotiations with that third State in order to obtain a waiver of immunity. The provision is framed in mandatory terms such that if the Court wishes to proceed with the request, it is the responsibility of the Court to obtain the requisite waiver from the relevant third State, before approaching the State where the person or place is located. Paragraph 1 does not address specifically the situation, where the Court, for some reason, does not recognise or know about the existence of the immunity and submits the request. Here, as rule 195, sub-rule 1 clarifies, the requested State will bring the matter to the attention of the Court and advise of the necessity for the Court to seek the relevant waiver. It is at the discretion of the Court to attain such a waiver.

As far as third States that are not party to the Statute are concerned, there can be no obligation under the Statute to express a waiver. Nor is there an explicit obligation for third States that are States Parties to waive their immunities. In the latter case, however, a strong argument based on article 86 and the overall purpose of the Statute can be made in favor of an implicit obligation to waive their immunity rights where the State concerned will not use its primary right to exercise criminal jurisdiction. On the basis of the foregoing analysis this implicit obligation has a limited scope of application; it may, in particular, become of some practical relevance regarding the inviolability of diplomatic premises¹⁰³.

6. Special missions

Any international immunity protection for members of special missions may also be considered as a case of a State immunity of a person within the meaning of paragraph 1. The relevant treaty provisions are contained in the 1969 Convention on Special Missions¹⁰⁴, which enjoys a rather limited number of ratifications and accessions¹⁰⁵. The customary status of this convention is controversial, but a careful recent scholarly study has made a strong case in support of the customary law status of the inviolability of members of high-level special

¹⁰¹ Pedretti, *Immunity of Heads of State* (2015) 288–290; Akande (2009) 7 *JICJ* 345–348 (2009).

¹⁰² In the same vein Ambos, *Treatise on ICL I* (2013) 415–6; for the contrary view, see Tladi (2013) 11 *JICJ* 211–212; Gaeta (2009) 7 *JICJ* 324–329.

¹⁰³ Kreicker, *Völkerrechtliche Exemtionen, Vol. II* (2007) 1394 *et seq.*

¹⁰⁴ The convention is in force as of 21 June 1985; for a detailed analysis of this Convention, see Kreicker, *Völkerrechtliche Exemtionen, Vol. II* (2007) 778 *et seq.*

¹⁰⁵ For a detailed analysis, see again Kreicker, *Völkerrechtliche Exemtionen, Vol. II* (2007) 793 *et seq.*

missions of a political nature¹⁰⁶. The point may become of increasing practical relevance in light of reports that United Kingdom has recently been according a ‘special missions protection’ to visiting incumbent and former foreign State officials¹⁰⁷. Assuming that the *noyau dur* of the Special Missions Convention reflects customary international law, the question arises whether such an international law immunity right is of legal relevance in proceedings before the Court. In light of article 27(2) this must be denied with respect to right holders which are State Parties to the Statute¹⁰⁸. With respect to non-State parties, the ‘international proceedings immunity exception’ (mn 36) would encompass persons on special missions and, failing that, the Security Council would be in a position to lift any such immunity (mn 39).

7. International organizations

- 43 Paragraph 1 does not address possible immunities of members of international organizations. This does not imply the conscious decision of the drafters that no immunity issues may arise. Rather it constitutes a *lacuna* that must be filled by careful consideration of the principles underlying article 98(1). The immunity protections of members of international organizations are functional in nature so that the question arises whether the customary international criminal exception regarding immunities *ratione materiae* referred to above (mn 16–18) applies. Yet, article 19 of the Relationship Agreement between the Court and the UN stipulates the following:

‘If the Court seeks to exercise its jurisdiction over a person who is alleged to be criminally responsible for a crime within the jurisdiction of the Court and if, in the circumstances, such person enjoys, according to the Convention on the Privileges and Immunities of the United Nations and the relevant rules of international law, any privileges and immunities as are necessary for the independent exercise of his or her work for the United Nations, the United Nations undertakes to cooperate fully with the Court and to take all necessary measures to allow the Court to exercise its jurisdiction, in particular by waiving any such privileges and immunities in accordance with the Convention on the Privileges and Immunities of the United Nations and the relevant rules of international law’.

This provision, that may acquire some practical importance in the context of forces of peace-keeping missions, may be seen as a corroboration of the view espoused in the literature¹⁰⁹ that the functional immunity of members of international organizations suffers from no customary international criminal law exception.

II. Paragraph 2

1. Request for surrender which would require the requested State to act inconsistently with its obligations under international agreements pursuant to which the consent of a sending State is required to surrender a person of that State to the Court

- 44 a) **Types of agreements *ratione personae*.** Paragraph 2 only covers inter-State agreements. To such an agreement the requested State must be a party. This follows from the explicit reference to ‘its obligations’, *i. e.* the obligations of the requested State under the agreement in question. Rule 195, sub-rule 2, does not contradict this result for the following reasons: First, while this provision does not repeat the specific reference to ‘its obligations’ and does not specify the inter-state nature of the agreement, it refers back to article 98, paragraph 2 which

¹⁰⁶ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 822; for a detailed report about the (widely divergent) scholarly opinions regarding the state of customary law, see *id.* 796–800.

¹⁰⁷ Talmon (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 344–347.

¹⁰⁸ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 844.

¹⁰⁹ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 913 *et seq.*

precludes an interpretation at variance with this latter provision¹¹⁰. Second, the intention of the United States to formulate a rule that would widen the scope of agreements under paragraph 2 so as to include agreements concluded by the Court, such as the agreement under article 2 of the Statute was rejected by an overwhelming majority of delegations at the Preparatory Commission (*cf. mn 5*)¹¹¹. Third, had rule 195, sub-rule 2, to be interpreted in line with the intention of the United States, that would create a conflict with paragraph 2, and pursuant to article 51(5) of the Statute, paragraph 2 would prevail.

Paragraph 2 covers bilateral as well as multilateral agreements.

According to one view¹¹², paragraph 2 only covers agreements between a State Party and non-party States because only the latter States can withhold their consent to enable the Court to exercise its jurisdiction. While such a view would certainly yield results conducive to effective cooperation it must be recognised that the wording of paragraph 2 is not so confined. Importantly, even on the basis of a broad construction of agreements within the meaning of paragraph 2 including those to the benefit of States Parties, results that run directly counter the overall purpose of the Statute can be avoided by recognising an implicit obligation of such States Parties to express their consent to the surrender upon being so approached by the Court (*cf. infra mn 58*).

b) Types of agreements *ratione materiae*. While the negotiations on paragraph 2 were conducted with a view to concerns raised by some delegations that the surrender obligation under Part 9 could conflict with obligations arising out of Status of Forces Agreements (SOFAs), the language chosen does not confine the paragraph to this category of agreements. Rather, the agreed upon formulation that refers to a ‘sending’ and, by implication, a ‘receiving’ State also includes treaty provisions on re-extradition and may include other agreements, including an agreement on a special mission, provided that they make use of the technical concept of a ‘sending’ and a ‘receiving’ State and give rise to the same conflict of international obligations¹¹³.

With a view to certain SOFAs it has been questioned whether they may create the conflict of obligations referred to in paragraph 2. The reasoning starts from the fact that the SOFAs concerned confine the primary or exclusive competence of the sending State to acts perpetrated in the performance of official duty. The argument then goes that in light of the recent development of international law it is no longer possible to argue that crimes under international law are perpetrated in that quality¹¹⁴. This reasoning, however, is open to the same kind of objections as the corresponding interpretation of the ICJ’s dictum on immunity *ratione materiae* in the *Yerodia* case (*cf. mn 17*). The widespread reference by States to SOFAs in the course of the negotiations leading to article 98 para. 2 further undermines the reasoning in question¹¹⁵.

c) Categories of persons. The combined effect of the reference to a ‘sending State’ and to ‘a person of that State’ in paragraph 2 is to confine this provision to persons that are present on the territory of a receiving State because they have been sent by a sending State.¹¹⁶ The

¹¹⁰ Benzing (2004) 8 *MPYbUNL* 208 *et seq.*; Gartner, in: Fischer *et al.*, *International and National Prosecution* (2001) 433; Harhoff and Mochochoko, in: Lee (ed.), *The International Criminal Court* (2001) 669; Keitner (2001) 6 *UCLAJIL&ForeignAff* 261 *et seq.*

¹¹¹ In that respect, the formulations in Scheffer (2005) 3 *JICJ* 343 are slightly misleading.

¹¹² Sendel (2007) *ZIS* 121; Akande (2004) 98 *AJIL* 428 *et seq.* holds the same view but it is based on the understanding (rejected in this commentary above mn 9) that article 98 para. 1 also applies only to the benefit of (third) non-party States.

¹¹³ Crawford *et al.* (2003) [http://www.amicc.org/docs/Art 98-14une03FINAL.pdf](http://www.amicc.org/docs/Art%2098-14une03FINAL.pdf), para. 42; the position taken by Bogdan (2008) 8 *ICLRev* 23, is not entirely clear.

¹¹⁴ Paust (2000) 33 *VandJTransnat’lL* 10 *et seq.*; Fleck (2003) 1 *JICJ* 662; the latter author then argues that the functional immunity of the persons covered by SOFAs fall within article 98 para. 1; this latter position is internally incoherent and at odds with existing international customary law as (*cf. mn 16–18*).

¹¹⁵ For the same view, see van der Wilt (2005) 18 *LeidenJIL* 102.

¹¹⁶ Crawford *et al.* (2003) [http://www.amicc.org/docs/Art 98-14une03FINAL.pdf](http://www.amicc.org/docs/Art%2098-14une03FINAL.pdf), para. 43–45; Benzing (2004) 8 *MPYbUNL* 210 *et seq.*; van der Wilt (2005) 18 *LeidenJIL* 104; Bogdan (2008) 8 *ICLRev* 22–24.

conclusion of a number of bilateral non-surrender agreements (*cf.* mn 6) that cover a far broader range of persons does not constitute subsequent practice evidencing an agreement to widen the scope of application of paragraph 2. Suffice it to say that the member States of the European Union have rejected this aspect of the US treaty practice. Instead, the EU guiding principles on the matter specify that ‘any solution should cover only persons present on the territory of the requested State because they have been sent by a sending State, *cf.* Article 98, paragraph 2 of the Rome Statute’¹¹⁷.

- 50 While the term ‘person of that State’ may suggest otherwise, it is clear from the context and the purpose of the provision that the persons covered need not be nationals of the sending State¹¹⁸.
- 51 **d) The time of the conclusion of the agreement.** Whether or not the paragraph covers not only pre-existing agreements, but also subsequent agreements is a matter of much controversy. Whereas a strong body of international legal scholarship¹¹⁹ and the Legal Service of the EU Commission¹²⁰ maintain that paragraph 2 does not extend to agreements entered into by the receiving State after the latter’s signature of the Statute or the Statute’s entry into force for the latter, an almost equal number of writers opine¹²¹ that no such time limit exists. In the joint statement of the latter position by J. Crawford, P. Sands and R. Wilde that has received much attention, an important qualification is made, though. Those commentators submit that any new agreement ‘should make clear provision to ensure that the ‘sending’ State subjects the person to effective investigation and, where warranted, prosecution. Additionally, any new agreement ought to also make provision for the re-transfer to the repatriating State of any person who is not subject to effective investigation or prosecution in a third State’¹²².
- 52 The broader construction of paragraph 2 is based on a literal and contextual reading. The point is made that the wording of paragraph 2 does not contain a limitation regarding the time of the conclusion of the agreements. Furthermore, an *argumentum e contrario* is drawn from the use of the word ‘existing’ in article 90(6) and in article 93(3). More recently, the head of the US delegation in Rome has referred to ‘America’s Original Intent’ to further support the broad interpretation (*cf.* mn 7).
- 53 While the latter argument is weak at best (*cf.* mn 7), the literal and contextual reasoning carry considerable weight. Yet, it is submitted that, on balance, the arguments to the contrary are stronger and must therefore prevail. The concern that guided the negotiations on article 98 was to eliminate any obstacle to ratification that could result from already existing treaty obligations. This ‘original intent’ is evidenced not only by the personal recollection of those who participated in the Rome debates within the working group on Part 9¹²³, but also, and, of course, more importantly, by the fact that the article 87 of the Draft Statute (*cf.* mn 1)

¹¹⁷ General Affairs and External Relations, 2450th Council session, Brussels, 30 Sep. 2002, 12134/02 (Presse 279), Annex.

¹¹⁸ Benzing (2004) 8 *MPYbUNL* 213; Scheffer (2005) 3 *JICJ* 346–349.

¹¹⁹ Benzing (2004) 8 *MPYbUNL* 214–220; Gartner, in: Fischer *et al.*, *International and National Prosecution* (2001) 430; Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 1383 *et seq.*; Kaul and Kreß (1999) 2 *YbHumL* 165; Meißner, *Die Zusammenarbeit* (2003) 132–134; Ambos, *Internationales Strafrecht* (2014), § 8 mn. 79.

¹²⁰ The Internal Opinion is reprinted in: 23 *HumRtsLJ* 158 (2002).

¹²¹ Crawford *et al.* (2003) http://www.amicc.org/docs/Art_98-14une03FINAL.pdf, para. 38; Scheffer (2005) 3 *JICJ* 340; Sendel (2007) *ZIS* 123; van der Wilt (2005) 18 *LeidenJIL* 100 *et seq.*; Zappalà (2003) 1 *JICJ* 122 *et seq.* (while with some reservations).

¹²² Crawford *et al.* (2003) http://www.amicc.org/docs/Art_98-14une03FINAL.pdf, para. 50.

¹²³ *Cf.*, apart from these commentators, the Austrian delegate, Gartner, in: Fischer *et al.*, *International and National Prosecution* (2001) 430: ‘The idea behind it [article 98 para. 2 of the Statute] was to solve legal conflicts, which might arise because of Status of Forces Agreements which are already in place. But it has to be emphasized that Art. 98, para. 2 was not designed to create an incentive for (future) State parties to conclude Status of Forces Agreements, which would amount to an obstacle to the execution of requests for co-operation issued by the Court’. Scheffer (2005) 3 *JICJ* 340, seeks to downgrade statements of that kind by attributing them to ‘some commentators, reflecting what they describe as the intent of certain delegates to the ICC negotiations’. This characterization of statements made by those who continuously participated in the actual negotiations and actively contributed to them is perhaps not entirely appropriate when at the same time so much is made of

treats the issue of possible conflicting obligations comprehensively and in so doing does not envisage the insertion of a provision that would follow the entirely different logic to provide State Parties with a tool to subsequently limit the Court's power to effectively exercise its jurisdiction. The brackets contained in article 87 of the Draft Statute make it plain that a number of States approached even this narrow issue of possible conflicts due to existing international obligations with reservation (*cf.* mn 2) and did certainly not intend to agree to a provision that would allow States Parties to create a situation of conflicting international obligations after the signature of the Statute and to hereby, in fact, shield broad categories of persons from the exercise of the Court's jurisdiction. This link between the controversy in question and the Court's jurisdiction leads to the most important argument against the broad construction; the argument being of a contextual and purposive character¹²⁴. The Court's jurisdiction was the 'question of questions' in Rome and, as it is generally known, the discussions pertaining to the jurisdiction issues lasted until the very end of the diplomatic conference¹²⁵. One cornerstone of the so hard-fought final solution contained in article 12(2) provides the Court with a limited jurisdiction over nationals of non-party States. The broad interpretation of article 98(2) would allow States Parties to renegotiate, on a bilateral basis, this cornerstone of the compromise on jurisdiction, and this with respect, in particular, to armed personnel, *i.e.* a category of persons the conduct of which is very much in the purview of international criminal law. States Parties would also be given a broad legal avenue to circumvent the development regarding international law immunities *ratione materiae* (mn 20) and *ratione personae* (mn 35) because of the possibilities to conclude bilateral agreements on special missions¹²⁶. Such results are hardly reconcilable with the overall interpretative goal to interpret the Statute as a coherent whole and it was therefore not contemplated in the course of the negotiations leading to the adoption of article 98. It would appear that the systematic point just made is of a much more substantial character than the undisputable fact that the word 'existing', the insertion of which would have clarified the matter, is absent from paragraph 2 while contained in article 90(6) and article 93(3). When measuring the comparable weight of the systematic reasoning set out in the preceding lines against the *argumentum e contrario* drawn from article 90(6) and article 93(3) the well known fact should also borne in mind, that the huge time pressure under which the Statute, including Part 9, had to be adopted in Rome, did not leave sufficient time, neither for the working group nor for the drafting committee, for a thorough consistency check. Eventually, the more narrow interpretation of paragraph 2 supported in this commentary duly reflects the fact that paragraph 2 constitutes an exception to the overarching obligation to cooperate in article 86 and, more specifically, to surrender in article 89(1), and keeps that exception to reasonable confines. It bears emphasising that in so doing, the narrow interpretation does not adversely affect any legitimate interest of a sending State that is not party to the Statute: the latter retains the unfettered right to assert, *vis-à-vis* the Court, its primary criminal jurisdiction through the complementarity scheme. Interestingly, the important qualification made by J. Crawford, P. Sands and R. Wilde and referred to above (mn 30) also, albeit somewhat more implicitly, recognises the fact that the conclusion of a 'non-surrender agreement' by a State Party only after the latter's signature of the Statute of the Statute makes a difference. The qualification advocated for by those three writers certainly is most welcome if the broad interpretation of paragraph 2 is adopted. From the perspective of the contrary view espoused here, one cannot fail to note that Crawford, Sands and Wilde, by qualifying their position on 'new agreements' concede that context and purpose of the Statute justify a distinction

'America's Original Intent' that is said to have been 'contemplated in its [America's] discussions pertaining to Article 98 (2)', but that was never clearly expressed in the working group on Part 9.

¹²⁴ Somewhat regrettably, the broad interpretation is nowhere based on a detailed reasoning and the arguments set out in the following text are not even discussed.

¹²⁵ For a detailed account, see Kaul and Kreß (1999) 2 *YbHumanL* 145–157.

¹²⁶ Talmon, (2014) 46 *Berichte der Deutschen Gesellschaft für Internationales Recht* 37, demonstrates that this a real possibility.

between old and new agreements even in the absence of an explicit basis in the wording of paragraph 2. If this is true, and this is precisely the position taken here, it is more plausible, however, not to adopt the broad interpretation in the first place.

- 54 The subsequent practice to paragraph 2 does not reveal an agreement of State Parties that the broad interpretation should prevail. Under the prevailing circumstances of high pressure and often secret negotiations, it is not even clear whether those States Parties, that have concluded a non-surrender agreement with the United States, were of the view to hereby remain within the confines of paragraph 2 or whether they simply hope that any treaty conflict will remain of a theoretical nature. In any event, the fact remains that many States Parties have rejected the conclusion of such an agreement. While the EU Guiding Principles mentioned above¹²⁷ do not confirm the narrow interpretation, they should not be interpreted as the expression of a unanimous *opinio juris* to the contrary, either. Rather, they formulate the lowest common denominator amongst EU member States while implicitly confirming a lack of agreement regarding the controversy about the issue of ‘new agreements’. Finally, the reference in the fourth preambular paragraph of Security Council Resolution 1593¹²⁸ to the ‘existence of agreements referred to in article 98–2 of the Rome Statute’ does not constitute evidence for an agreement on the broad interpretation by way of subsequent practice as it has been made clear at the adoption of the Resolution that this reference was not unanimously understood as the expression of an *opinio juris*, but was also seen as no more than a factual background statement¹²⁹. It remains thus to be seen whether the efforts undertaken by the United States to secure a subsequent agreement on the wide interpretation of paragraph 2 will prevail over the determination of at least a group of State Parties of some significance not to have a backdoor opened in Part 9 to undermine the integrity of the Court’s jurisdiction.
- 55 In conclusion, paragraph 2 only refers to existing agreements. With a view to the principle enshrined in article 18 of the Vienna Convention on the Law of Treaties, this means more specifically agreements concluded by a State Party before the latter’s signature of the Statute.
- 56 e) **Legal effect of concluding a non-surrender agreement outside the scope of paragraph 2.** It is difficult to argue that the conclusion by a State Party of a non-surrender agreement after the latter State’s signature of the Statute constitutes *per se* an internationally wrongful act. The better view is that the State Party concerned hereby maneuvers itself into a potential conflict of treaty obligation which will materialize in the case of an actual ICC request for surrender and the assertion of its treaty right to non-surrender by the non-State Party¹³⁰.

2. Consent of the sending State

- 57 As under paragraph 1, where a request would create a conflict of international obligations, the Court has only two choices – abandon pursuit of the particular request, or seek to obtain the consent of the third State.
- 58 Similar to what has been said in respect to paragraph 1 (mn 26), where the sending State is a State Party and does not exercise its own criminal jurisdiction, it is bound to give its consent to the surrender if so approached by the Court.

¹²⁷ See note 70.

¹²⁸ S/RES/1593 (2005), 31.3.2005.

¹²⁹ Zimmermann, in: Dupuy *et al.* (eds.), *Essays in Honour of Tomuschat* (2006) 691 *et seq.*

¹³⁰ For a more detailed exposition of the legal situation, see Benzing (2004) 8 *MPYbUNL* 221–235; Tallmann (2004) 92 *GeorgetownLJ* 1053; Bogdan (2008) 8 *ICLR* 41, argues that States Parties that have signed a potentially conflicting bilateral agreement should insist on the latter implying the ‘definitive obligation of the part of the US to investigate and/or prosecute’ with respect to an individual concerned.

Article 99

Execution of requests under articles 93 and 96

1. Requests for assistance shall be executed in accordance with the relevant procedure under the law of the requested State and, unless prohibited by such law, in the manner specified in the request, including following any procedure outlined therein or permitting persons specified in the request to be present at and assist in the execution process.

2. In the case of an urgent request, the documents or evidence produced in response shall, at the request of the Court, be sent urgently.

3. Replies from the requested State shall be transmitted in their original language and form.

4. Without prejudice to other articles in this Part, where it is necessary for the successful execution of a request which can be executed without any compulsory measures, including specifically the interview of or taking evidence from a person on a voluntary basis, including doing so without presence of the authorities of the requested State Party if it is essential for the request to be executed, and the examination without modification of a public site or other public place, the Prosecutor may execute such request directly on the territory of a State as follows:

- (a) When the State Party requested is a State on the territory of which the crime is alleged to have been committed, and there has been a determination of admissibility pursuant to article 18 or 19, the Prosecutor may directly execute such request following all possible consultations with the requested State Party;
- (b) In other cases, the Prosecutor may execute such request following consultations with the requested State Party and subject to any reasonable conditions or concerns raised by that State Party. Where the requested State Party identifies problems with the execution of a request pursuant to this subparagraph it shall, without delay, consult with the Court to resolve the matter.

5. Provisions allowing a person heard or examined by the Court under article 72 to invoke restrictions designed to prevent disclosure of confidential information connected with national security shall also apply to the execution of requests for assistance under this article.

Literature: See Preliminary Remarks on Part 9. Sluiter, G., *International Criminal Adjudication and the Collection of Evidence: Obligation of States* (2002)

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A. Introduction/General remarks

- 1 While most of the provisions of article 99 were uncontroversial, the issues raised by paragraph 4 made the negotiation of this article difficult, challenging and extremely volatile. While no calculation was done, those present would no doubt attest to the fact that this one paragraph consumed the most time and effort of all of Part 9.
- 2 From early on in the Preparatory Committee, it was clear that one of the most sensitive issues which had to be addressed in Part 9, was the ability of the Prosecutor to conduct on site investigations and in some instances, to do so outside the presence of national authorities. The line on this issue was drawn solidly. There were those States for which any such authority for the Prosecutor would be in conflict with the principles of sovereignty and would present significant problems on a practical level. There were other States which considered this a critical tool for the Prosecutor, necessary for an effective investigation and of sufficient importance to overcome any concerns with respect to sovereignty.
- 3 The critical issue was not so much whether the Prosecutor should have the ability to conduct certain investigative actions directly and on his or her own, but whether that ability should be entrenched as a right in the Statute or left to States Parties to determine on a case by case basis. Those States, which advocated for an entrenched right, feared that unless there was a statutory obligation, in most instances, the Prosecutor would be unable to carry out on site activity. States which were territorial States in relation to the alleged offences would simply refuse to cooperate. States steeped in the tradition that sovereignty precludes official acts, by foreigners, on their territory, would refuse as a matter of principle. Refusals could be particularly damaging in cases where, unless the Prosecutor is able to gather the evidence directly and on his or her own, the evidence simply will not be obtained. Officials from the existing Tribunals were able to provide examples in support of that position.
- 4 At the same time, States which argued against such a provision had concerns about the infringement of sovereignty both on the level of principle and practice. They noted that the requested State Party would have no opportunity to protect its interests or those of its citizens, if such a wide ranging power was given to the Prosecutor, without any requirement for State consent.

Several draft articles were prepared and debated¹. The formulation which was ultimately accepted represented a true compromise – no State liked the text, but a vast majority could support it. The text seeks to achieve a balance between State interests and the interests of the Prosecutor.

- 5 Some key elements to the compromise should be highlighted. The two different scenarios of concern – uncooperative territorial States and States concerned with the principles of sovereignty – are given separate treatment in subparagraphs (a) and (b). This permitted a more precise response in each case.

Secondly, to allay the concerns of some States, the Prosecutor's capacity to carry out on site investigations is limited to measures which do not require compulsion and cases where it is necessary for the Prosecutor to do so for the successful execution of a request.

¹ See, for example, Proposal by Canada, UN Doc. A/CONF.183/C.1/WGIC/L.12; 6 July, Rolling text of article 91 para. 4, UN Doc. A/CONF.183/C.1/WGIC/L.13; 10 July, Rolling text of article 91 para. 4, UN Doc. A/CONF.183/C.1/WGIC/L.13/Rev.1.

Finally, the Prosecutor's ability to carry out an investigative measure, outside the presence of national authorities, is limited to taking a statement or evidence from a witness. This was a critical proviso, which reduced the concerns of State about a Prosecutor carrying out a wide range of measures within a State, outside the knowledge and control of national authorities. At the same time, the ability for the Prosecutor to meet with witnesses and others, by him or herself, was viewed by States, which supported this power, as the most critical measure; one which had to be protected.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Requests for assistance

The requests referred to in this paragraph are those made under article 93.

6

2. Execution of requests

The provision deals exclusively with the execution of a request while article 93 concerns 7 the respective forms of cooperation as such or, as it has been said², the 'core' of the request. This distinction is of potentially great importance since article 93(3) sets a more stringent threshold for opposing to the execution of a request ('existing fundamental legal principle of general application') than article 99(1) contains with respect to the modalities of execution. Where to draw the line between the two may pose considerable difficulties in the cooperation practice under Part 9. The following example given by one learned commentator may provide some initial guidance: '[I]f the trial forum wishes to obtain testimony from a particular individual, this can be considered the core of the request. If it wishes furthermore that the testimony is obtained in the presence of the counsel of the accused, who should be allowed to submit questions to the witness, these 'wishes' can be preferred modalities of execution'³.

3. Accordance with the law of the requested State

The premise from which this formulation starts is the fact that requests of the Court will 8 be executed by organs of the requested State, except in the cases of article 57(3) (d) and article 99(4). The paragraph starts from the idea that the procedures of the law of the requested State will be used to execute the request. This accord with the traditional principle of *locus regit actum*. However, this requirement must be read in conjunction with article 88, which mandates that States must have procedures under national law for all the forms of cooperation specified. Therefore, there can be no question of general refusal because there is no such procedure under national law.

However, it may be that to carry out a specific measure in accordance with procedures of 9 its law, such as search and seizure, the requested State will need certain particular information *i. e.* enough to meet a domestic standard. This is recognized by the requirement for the Court to provide sufficient information as set out in article 96(2) (e). As well, the requested State is obliged to inform the Court about the requirements of the applicable law, pursuant to article 96(3), upon the request of the Court.

4. Procedural wishes expressed by the Court

The wording clarifies that the Court may specify certain modalities of execution to be 10 followed by the requested State. This constitutes a concession to the principle of *forum regit*

² Sluiter, *International Criminal Adjudication and the Collection of Evidence* (2002) 204.

³ Sluiter, *International Criminal Adjudication and the Collection of Evidence* (2002) 204.

actum which is the alternative to the *lex loci* principle. The Court will very often wish to make use of this option in order to ensure that the evidence collected by way of cooperation can subsequently be introduced into the trial. The provision alludes to one example of when it refers to the permission to be granted by the requested State that persons may be present and may assist in the execution process. In light of the requirement posed in rule 68 (a) this example may well prove to be of paramount practical importance in the context of the taking of witness testimony. For to meet the test in this rule, the Court will have to request not only the prosecutor but also counsel for the defence to be present and to be accorded the opportunity to examine the witness. Although it may thus quite often be highly desirable to follow the principle of *forum regit actum*, the latter's scope of application remains confined to those modalities of the execution of a request which are not prohibited by the law of the requested State. To have the reach of the *lex fori* principle so significantly curtailed, is all the more regrettable as there are instances of recent treaty practice in the field of inter-State judicial assistance where the principle has been embraced to a wider extent, subject only to a conflict with the requested State's *ordre public*⁴.

- 11 The law of the requested State may include provisions in international treaties to the extent that they are directly applicable within the respective legal order. This includes, in particular, article 55. Where this article is not directly applicable in the legal order of the requested State, such a State should still be precluded from invoking a prohibition in law to follow a procedural wish expressed by the Court when such a prohibition is contrary to the standard set in article 55. The reason is as follows: State Parties have accepted the standards set in article 55 'in respect of an investigation under this Statute'. They cannot then rely on national law contrary to these standards to reject a procedural wish expressed by the Court pursuant to article 99(1). It follows, to give one example, that States cannot oppose to the Court's wish that a request under article 93(1) (c) be executed in conformity with article 55(2) (d) even if the procedural law of the requested State conflicts with the latter standard.
- 12 In case of a conflict between a procedural wish expressed by the Court and the procedural law of the requested State, this would be a matter which should form the basis of consultations between the requested State Party and the Court pursuant to article 97, as the provision does not provide for a ground for refusal on this basis. As this relates to the manner in which the request will be executed and not whether or not it will be executed, it should allow for greater flexibility on the part of the State and the Court such that the issue should be resolvable through consultation.

II. Paragraph 2: Urgent requests

- 13 The paragraph states that the requested State has to respond to an urgent request by the Court in the same urgent manner. In such a case, it is not at the discretion of the requested State to decide whether the response should be sent urgently or not.

III. Paragraph 3: 'Replies ... in their original language and form'

- 14 Pursuant to this paragraph, the response to a request has to be sent in the original form. A translation of the documents, statements and records transmitted, into one of the working languages of the Court, is not required. However, the provision does not preclude the transmission of a courtesy translation if the requested State so chooses.

⁴ See, in particular, article 4(1) of the 2000 Convention on Mutual Assistance in Criminal Matters between the Member States of the European Union; OJ, C 197, 1. In light of the considerations in the text, it is desirable that States reduce possible obstacles to the fulfilment of procedural wishes expressed by the Court to the greatest extent possible. In particular, the right of counsel for the defence to be present during a rogatory commission and to examine the witness should be guaranteed as it is the case in a number of national laws of implementation; see Broomhall and Krefß, in: Krefß *et al.* (eds), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*. Vol. 2 (2005) 528.

IV. Paragraph 4

As is detailed in mn. 1 to 5 above, this paragraph was the most controversial one in the 15 discussions on international cooperation between the Court and the States Parties.

1. Chapeau

a) **Without prejudice to other articles and the exclusion of compulsory measures.** The 16 wording ‘without prejudice to other articles in this Part’ underscores the exceptional character of this provision. Contrary to traditional international cooperation law, the provision offers the possibility for the Prosecutor to conduct on site investigations on the territory of the requested State. At the same time, this wording emphasizes that, even in the case of direct execution by the Prosecutor, there will be a request presented by the Court.

The concept underlying the provision is drawn from article 29 of the Statute of the ICTY 17 and the broad interpretation accorded to it.

For this paragraph to apply, it must be clear that direct execution of the request by the 18 Prosecutor is necessary for the successful execution of a request. It is not because the Prosecutor would like to carry out the particular request on his or her own that this will be authorized.

Application of this exceptional provision is reserved for those circumstances where it is important to the proper execution of the request.

The Prosecutor may conduct on site investigations only as long as no compulsory measures 19 are necessary. It was generally accepted that compulsory measures, such as a search and seizure or the exhumation of a grave site can be executed only by or with the assistance of officials of the requested State⁵. The Prosecutor, however, can request to be present and participate in the execution of such requests and that must be permitted under paragraph 1, unless it is specifically prohibited by national law. In addition, this paragraph does not preclude any State or State Party from empowering the Prosecutor to conduct the execution of requests requiring compulsory measures pursuant to its national law. It is just that the general obligation imposed in this paragraph relates only to assistance which does not require compulsory measures.

b) **‘interview of or taking evidence from a person on a voluntary basis’.** The use of the 20 term ‘including’ makes it clear that the paragraph is not limited to the enumerated examples and the Prosecutor may execute any type of request which does not require compulsory measures, on the territory of the requested State, when necessary to the successful completion of the request. The sentence provides a few examples that are not exclusive, in particular, perhaps the most common scenario, the voluntary interview or examination of a witness.

c) **No ‘presence of the authorities of the requested State Party’.** As noted in the 21 introduction, giving the Prosecutor the ability to carry out a measure in the territory of the requested State, outside the presence of the authorities of that State, was one of the most controversial aspects of this paragraph. As a result, this ability is limited in the text to the interview or examination of witnesses, which was viewed as the most critical measure for direct action by the Prosecutor alone. Witnesses, victims and experts may feel intimidated by the presence of judicial or police authorities of the requested State. In some instances, the presence of anyone outside of the Prosecutor may cause the witness to refuse to participate in the interview. Examples of these problems were well evidenced by the experience of the existing war crimes Tribunals. It was therefore difficult for States to oppose the inclusion of this right given its critical importance on a practical level.

⁵ This is without prejudice to article 57 (3) (d), where the Pre-Trial Chamber orders the Prosecutor to take investigative action on the territory of the State, where a Part 9 request cannot be executed due to the unavailability of an authority or component of the judicial system. In those circumstances, the measures available to the Prosecutor would include those which require compulsion.

The Prosecutor's ability to conduct the interview or examination, without the presence of national authorities, arises when that is essential for execution of the request. Thus, it will most likely be invoked when the witness is not prepared to provide testimony or a statement, if authorities of the State are present or unless only the Prosecutor is present.

As the authorities of the requested State may be excluded from the actual interview, it follows that the Prosecutor can decide not to provide those authorities with access to official records and statements produced during those examinations, particularly where this condition is imposed at the request of the person being interviewed or examined.

- 22 d) **'essential for the request to be executed'**. The phrase does not specify who determines this factor, however, reading the paragraph as a whole and within the context of the intent, on a practical level it will be the Prosecutor, familiar with the case and the particular witness, who will determine whether this is essential for the request to be executed. As it is presumed that the Prosecutor will be acting in good faith, he or she will not invoke this provision, unless there is a basis for proceeding in this manner.
- 23 e) **Examination 'of a public site or other public place'**. The provision does not allow for the on site examination of any public place that would require work on the ground, such as the exhumation of a mass grave. This would require execution of the request under article 93(1) (g) by authorities of the requested State. The notion 'public' in this context refers to sites and places that are open to the public. While it may seem trivial to accord the Prosecutor such a limited capacity, with respect to the examination of sites, as the mere unauthorized presence of the Prosecutor on the territory of a State may have legal and political ramifications, this could prove to be a very important right in some circumstances.
- 24 f) **Direct execution on the territory of a State**. This is a key sentence of the paragraph, giving the Prosecutor the power to take investigative measures on the territory of the requested State directly. During the deliberations in Rome, it was unclear whether the provision was within the scope of legal assistance or rather should be considered as part of the rules on investigation⁶. The fact that eventually the negotiators agreed to insert the provision on site investigations, within the framework of international cooperation and legal assistance, emphasizes that the Prosecutor may exercise those powers, only after a request has been presented. This is consistent with the opening words of the paragraph. Such a request however from the start may be framed as seeking direct execution, hereby being a request for 'passive' cooperation by the requested State. Further while the term 'request' is used this does not import any ability on the part of the state to decide whether or not direct execution will be allowed. Provided there are no general impediments to the request itself under the other aspects of Part 9, the state is obligated to allow direct execution if the request relates to a type of measure recognised under article 99(4).
- 25 In addition this provision is distinct from article 57(3) (d) where the Pre-Trial Chamber can authorize direct action by the Prosecutor on the territory of a State, where the State is unable to execute a request for cooperation due to the unavailability of any authority or component of a judicial system. Under article 99(4) the circumstances in which the Prosecutor can act directly are broader, however, the actions which the Prosecutor may take are more limited.
- 26 As a consequence, the requested State may examine such a request in accordance with its obligation stated in articles 86, 93 and 97. It may not deny such a request unless it conflicts with concerns of national security (article 93(4)) or where the particular measure that the Prosecutor wishes to take, in the particular case, is prohibited by law pursuant to article 93(3) and (1) (l). However, given the very limited nature of the types of assistance which the Prosecutor can directly execute and in particular, the restriction to measures which do not require compulsion, it is very difficult to envisage circumstances where these basis for refusal could be invoked in relation to execution of a request under article 99(4)⁷.

⁶ Kaul and Kreß (2000) 3 *YbIHumL* 168.

⁷ For the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2002) 249.

Also, it is important to note that as the ability of the Prosecutor to conduct non compulsory measures on the territory of the State and an interview or examination outside the presence of the authorities of that State, is a specified form of cooperation, article 88 mandates that the requested State cannot refuse on the general basis that there are no procedures under national law for this nor that the procedures of national law prohibit this⁸.

Similarly, the requested State may not refer to concerns of national sovereignty in order to deny such a request, because there is no such ground of refusal and this would contradict the obligation of the requested State to comply with requests by the Court, as stated in articles 86 and 93.

The Court has drawn an important distinction between assistance sought pursuant Article 93(1) (and Article 99(1)) and that pursuant to article 99(4)⁹. The Chamber correctly identifies that for the general regime under Part 9 there is a presupposition that the execution of requests will be by 'States in accordance with national procedures pursuant to articles 93(1) and 99(1) of the Statute and that the direct execution of measures is *lex specialis* to be applied within the terms and conditions of article 99(4)¹⁰.

This was in response to the defence making an 'indiscriminate request to execute all measures unhindered and unmonitored by the Government of Sudan or any agency of the State'¹¹.

2. The different subparagraphs

a) **Determination of admissibility and direct execution following all possible consultations.** Two alternative situations are set out in these subparagraphs. The first relates to where the requested State Party is a territorial State for the alleged offences, and the Court has ruled the case admissible. It was recognised that in these particular circumstances, the authorities of the State Party may be uncooperative. It is also an instance where it may be particularly important that interviews or examinations take place outside the presence of national authorities. Thus, this set of circumstances merited separate consideration.

Given the likelihood that the Prosecutor will face uncooperative and perhaps hostile authorities in this situation, the only obligation imposed with respect to the State Party is for all *possible* consultations. This language was chosen to reflect that the Prosecutor should pursue consultations whenever possible, but at the same time it recognizes that consultations may not be *possible*, in which instance there will be no discussion with the State Party, prior to execution and, by the same token, no need to await that State's consent to the direct execution.¹² In such case, there can also not be a procedural right for the requested State to apply for a ruling from the competent Chamber regarding the legality of the Prosecutor's request. Accordingly, Regulation 108, sub-regulation 2 of the Regulations of the Court specifies that the State concerned may seek such a ruling within 15 days from the day on which the requested State is informed of or became aware of the direct execution. However, the State Party will be aware of the matter, generally, as a result of the request presented to initiate the process. A request is needed in every instance as the general provisions of this Part are still applicable because of the opening words of the article 'without prejudice to other articles'. But the request need not specify details which might defeat the intent of the process such as the time and place of any proposed interviews.

The provision tries to balance the interest of the Prosecutor to conduct the investigation without any interference from local authorities, with the interest of the requested State to be involved in the activities taking place on its territory.

⁸ For the same view, see Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof* (2002) 249.

⁹ *Prosecutor v. Abdallah Banda Abakaer Nourain & Saleh Mohammed Jerbo Jamus* Decision on 'Defence Application pursuant to articles 57(3)(b) & 64(6)(a) of the Statute for an order for the preparation and transmission of a cooperation request to the Government of the Republic of the Sudan', ICC-02/05-03/09-169, Trial Chamber, 1 July 2011.

¹⁰ *Prosecutor v. Abakaer Nourain & Jerbo Jamus*, Decision 1 July 2011, para. 23.

¹¹ *Prosecutor v. Abakaer Nourain & Jerbo Jamus*, Decision 1 July 2011, para. 23.

¹² Kaul and Kreß (2000) 3 *YbIHuML* 168.

- 31 **b) Other cases subject to any reasonable conditions or concerns.** This second subparagraph applies to requests directed to States other than the State described in subparagraph (a). With these States Parties there is no reason to anticipate that they will be uncooperative or hostile with respect to the Prosecutor's request. However, for many States the concept of an authority from a foreign State or body conducting official acts on their territory, and doing so in some circumstances outside the presence of national authorities, was revolutionary, contrary to the principles of sovereignty and to accepted practice in international cooperation. Rather than allowing for a refusal of a request on the basis of the application of these traditional principles, this language recognizes that the requested State has an interest in the proceedings. In particular, in a specific case there may be *reasonable* concerns, which they would want to raise or *reasonable* conditions they would like applied to the execution of the request¹³.
- 32 Because the ability to impose conditions or raise concerns can be construed as a restriction on the Prosecutor's ability to directly execute a request, the term *reasonable* is employed to qualify the restriction. Thus, by implication, the Prosecutor could proceed with execution without accepting conditions or in the face of concerns, when the same are not reasonable.
- 33 Although reasonable concerns or conditions are not defined, some examples would be that local authorities be notified of possible danger for victims and witnesses when they testify before officials of the Court, or, that national investigators be provided a record of the statement to be used for the investigation of related cases. However, what is clear is that the requested State Party may not raise a general objection to the process on the basis of sovereignty or normal practice. They are restricted to particular issues which are reasonable.
- 34 The phrase 'Where the requested State Party identifies problems with the execution of a request pursuant to this subparagraph it shall, without delay, consult with the Court to resolve the matter' is a parallel to article 97. It was repeated here as a part of the delicate balance that had to be struck to arrive at consensus. Admittedly, a mere reference to that article would have been as effective on a practical level but the intention was to emphasize the need for a consultative, cooperative approach to this sensitive issue.

3. Enhanced cooperation

- 35 In light of the considerable potential utility of the Prosecutor's power to conduct investigations on site, article 99(4) is one of those areas in Part 9 where enhanced cooperation¹⁴ by States would be most beneficial for both the fairness and the efficiency of the international criminal proceedings. Except for some positive examples, the initial implementing practice is not too encouraging in this respect¹⁵. Very regrettably, the legislation of the host State even stands for a rather complete 'failure to implement' article 99(4)¹⁶.

V. Paragraph 5: Application of 'restrictions designed to prevent disclosure of confidential information'

- 36 This paragraph makes it clear¹⁷ that the protections accorded to national security information under article 72 and article 93(4) apply to any evidence gathering process carried by the Prosecutor under this article. Thus, where a witness is to provide testimony or produce documents to the Prosecutor within the territory of a State Party, the witness or the State can raise objections on the basis of national security and the matter will fall to be determined in accordance with article 72.

¹³ For more information on the negotiations, Kaul and Kreß (2000) 3 *YbIHumL* 168.

¹⁴ Cf. Preliminary Remarks on Part 9, mn 9.

¹⁵ Broomhall and Kreß, in: Kreß *et al.* (eds), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*. Vol. 2 (2005) 534 *et seq.*

¹⁶ Sluiter, in: Kreß *et al.* (eds), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*. Vol. 2 (2005) 220–222.

¹⁷ This is in addition to the opening phrase which applies the general provisions of this Part to such circumstances.

Article 100

Costs

1. The ordinary costs for execution of requests in the territory of the requested State shall be borne by that State, except for the following, which shall be borne by the Court:

- (a) Costs associated with the travel and the security of witnesses and experts or the transfer under article 93 of persons in custody;
- (b) Costs of translation, interpretation and transcription;
- (c) Travel and subsistence costs of judges, the Prosecutor, the Deputy Prosecutor, the Registrar, the Deputy Registrar and staff of any organ of the Court;
- (d) Costs of any expert opinion or report requested by the Court;
- (e) Costs associated with the transport of a person being surrendered to the Court by a custodial State; and
- (f) Following consultations, any extraordinary costs that may result from the execution of a request.

2. The provisions of paragraph 1 shall, as appropriate, apply to requests from States Parties to the Court. In that case, the Court shall bear the ordinary costs of execution.

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A. Introduction/General remarks

While an important article on a practical level, this provision on costs was relatively uncontroversial. In substance it did not change significantly from the text incorporated in the Draft Statute article 91(6)¹. The provision divides responsibility for costs along the same lines as traditional mutual legal assistance between States, with general responsibility on the requesting Party, subject to specific exceptions which are listed. One issue that required some discussion was how to determine if costs would be extraordinary and what the result would be in such circumstances. The approach adopted was a consultative one to ensure that there were no surprises for the Court or the requested State in this area.

B. Analysis and interpretation of elements

I. Paragraph 1

The rule is based upon the principle that the execution of a request for assistance should not entail any refunding of normal expenses on the part of the requested State. This is similar

¹ UN Doc. A/CONF.183/2/Add.1, p. 174.

to the principle found in article 20 of the European Convention on Mutual Assistance in Criminal Matters as well as the United Nations Model Treaty and many bilateral mutual assistance treaties².

- 3 **a) Costs associated with the travel, security of witnesses and the transfer of persons.** Costs associated with the travel of *witnesses, experts* and *persons in custody* shall be borne by the Court³. This provision is similar to that found in most mutual assistance agreements. Costs associated to travel are generally borne by the requesting Party. Costs that occur to ensure the security of the witnesses or experts to be heard before the Court, shall also be borne by the Court. This provision takes into account that in cases over which the Court will have jurisdiction, the testimony of a witness or the opinion of an expert may conflict with the interest of governments or political groups in a country. In order to guarantee the safety of that person when testifying before the Court, special security arrangements may be necessary. The costs for such arrangements could overburden the requested State or could be considered an impediment to the execution of a request by the Court. Thus responsibility for them is assigned to the Court.
- 4 **b) ‘Costs of translation, interpretation and transcription’.** Pursuant to article 99(3), replies shall be sent in their original form and language. While a request shall be accompanied by a translation into the language of the requested State in accordance with article 87(2) of the Statute, the reply to that request need not be translated⁴. In addition to those general rules, this subparagraph makes it clear that if translation is required to take the evidence of a witness for example, any such costs will be borne by the Court. Again this is not uncommon to general mutual assistance practice.
- 5 **c) Travel and subsistence costs of organs and staff of the Court.** The costs for personnel of the Court are within the responsibility of the Court. This is the case also when staff members travel to other countries for the purpose of conducting an on site investigation pursuant to article 99 para. 4 or to take part in proceedings in the requested State.
- 6 **d) Costs of expert opinion or report.** The Court may demand expert opinions, either on its own motion during the proceedings or in the form of a request for legal assistance. If the demand is framed as a request for assistance, the Court shall bear the costs; the costs for an expert opinion are not considered ordinary costs of the execution of the request.
- 7 **e) Costs associated with the transport of persons being surrendered.** The provision refers to the costs of surrender, not to the transfer of a person pursuant to article 93(7) which is dealt with under subparagraph (a) of this provision.
- 8 **f) Consultations on extraordinary costs.** The term extraordinary costs refers to expenses occurring in a particular case because of the nature or volume of assistance requested. The opening language mandates that if there are any such extraordinary costs, the issue should be raised first with the Court through consultations.

Only then can the obligation for payment of these costs be relied upon. This avoids a situation where a State proceeds with the expenditure of an extraordinary nature and then advises the Court that they must assume that cost without any prior notice or consultation.

² See also article 7 para. 19 of the UN Convention of 20 Dec. 1988 against Illicit Traffic in Narcotic Drugs and Psychotropic Substances.

³ See also article 20 of the European Convention on Mutual Assistance in Criminal Matters.

⁴ The provision is in keeping with international usage. Replies to requests for legal assistance are usually transmitted in their original language.

II. Paragraph 2: ‘requests from States Parties to the Court’

The rules on financial burden sharing as laid out in paragraph 1, also apply to the 9 execution of requests by States Parties to the Court. The provision does not cover the costs for the execution of requests by non-States Parties or international organizations. This issue could be part of the *ad hoc* agreement on the basis of which legal assistance could be granted in accordance with article 87(5).

The provision clarifies that the Court is in charge of the ordinary costs for the execution of a request by a State Party.

Article 101

Rule of speciality

1. A person surrendered to the Court under this Statute shall not be proceeded against, punished or detained for any conduct committed prior to surrender, other than the conduct or course of conduct which forms the basis of the crimes for which that person has been surrendered.

2. The Court may request a waiver of the requirements of paragraph 1 from the State which surrendered the person to the Court and, if necessary, the Court shall provide additional information in accordance with article 91. States Parties shall have the authority to provide a waiver to the Court and should endeavour to do so.

Directly relevant Rules of Procedure and Evidence: Rules 196 and 197.

Literature: See Preliminary Remarks on Part 9. Bassiouni, M.C., *International Extradition: U.S. Law and Practice* (3rd rev. ed. 1996) 429; Grützner, H., Pötz, P.-G. and Kreß, C. (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (3rd ed., loose-leaf, 2007 *et seq.*); Knoops, G.-J. A., *Surrendering to International Criminal Courts* (2002); Kubiciel, M., *Auslieferung*, in Ambos et al., *Rechtshilferecht* (2015) 189; Meißner, J., *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 168–174; Poncet, D. and Gully-Hart, P., ‘The European Approach’, in: M. C. Bassiouni, *International Criminal Law, Vol. II: Procedural and Enforcement Mechanisms* (2nd ed. 1999) 277; Richardson, G.B., ‘The Principle of Speciality in Extradition’, in: *Extradition, Acts of the International Seminar held at the I.S.I.S.C., Siracusa, 4-9/12/1989*, (1991) 62 *Revue Internationale de Droit Pénal* 85; Vogler, T., ‘The Rule of Speciality in Extradition Law’, (1991) 62 *Revue Internationale de Droit Pénal* 231.

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A. Introduction/General remarks/Genesis

I. Speciality in extradition

- 1 In the arena of **extradition between States**, the rule (doctrine, principle) of speciality – outside Europe (and also in some of the UN working documents on the ICC Statute) sometimes referred to as ‘specialty’¹ – constitutes one of the basic principles. It provides that a person surrendered shall only be proceeded against by the requesting jurisdiction for the conduct which specifically furnished the grounds for his or her surrender, and is closely interconnected with other principles such as double criminality and reciprocity, the compliance with which it aims to ensure². Thus it belongs to those extradition principles which

¹ Cf. Bassiouni, *International Extradition: U.S. Law and Practice* (1996) 429; *Ad Hoc Committee Report*, quoted in: Bassiouni (ed.), *International Terrorism: A Compilation of UN Documents* (1972–2001), Vol. I (2002) 706.

² Poncet and Gully-Hart, in: Bassiouni, *International Criminal Law, ii: Procedural and Enforcement Mechanisms* (1999) 304.

are so commonly recognized in international law and practice that they can be regarded as rules of **customary international law**³.

Consequently, nearly all multilateral and bilateral **extradition treaties** – examples: article 14 of the European Convention on Extradition (1957), recently updated by article 3 of its 4th Additional Protocol, articles 27, 13 (1) European Union Framework Decision on the European Arrest Warrant (2002), article 22 U.S.-German Extradition Treaty (1978), article 14 UN Model Treaty on Extradition (1990) – and **national extradition laws** – example: section 11 German Law on Mutual Assistance in Criminal Matters (IRG, 1982) – contain speciality provisions following the same structure and worded more or less identically.

The speciality rule is linked to the notion of **State sovereignty** as the requesting State cannot exercise its jurisdiction over the person sought were it not for the cooperation granted by the requested State, implying a restriction of this State's sovereignty. If the requested State, by virtue of its sovereignty, had been entitled to refuse extradition for certain offences beforehand, it must also have the right to oppose these offences being included in the proceedings in the requesting State after extradition.

For the **extraditee** the surrender implies a massive infringement into his or her freedom. Thus the limitations of this infringement stemming from the observance of the speciality rule provide an important protection for the surrendered person's rights and interests. The 'classical' speciality concept – mainly based on the contractual nature of the extradition agreement between States and still prevailing in international legal doctrine⁴ – held that speciality provisions do not vest the extraditee with 'subjective rights' but just let him or her profit from a 'reflex' of the requested State's rights and interests. Modern doctrine⁵ however adjudicates rights to individuals by virtue of 'protective' clauses in extradition treaties and domestic laws⁶ without denying the character of the speciality rule as (mainly) being an issue of State sovereignty.

II. Application on surrender to the Court

In the context of this Statute, the crucial question is whether or not the principles governing extradition between foreign States can or must also be applied to the surrender of persons from a State to the ICC.

Insofar as the interests of the **requested State** are at stake, the answer to this question is linked to the basic decision on the nature of state cooperation with the Court, *i.e.* on the adoption of either the 'horizontal' approach which attributes decisive weight to State interests in their relation to the Court, or the 'vertical' approach stressing the 'distinct nature' of the Court (see Krefß and Prost Preliminary Remarks to Part 9, mn 5): If one follows the vertical approach, the requested state's sovereignty loses its importance and thus it could be argued that the speciality principle – which is mainly based on state sovereignty – can not be asserted against the Court's rulings.⁷

³ Bassiouni (1993) 10 *NEP* 95; Vogel and Burchard, in: Grützner *et al.* (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 *et seq.*), § 11, mn 2; Kubiciel, *Auslieferung*, in: Ambos *et al.* (eds.), *Rechtshilfe* (2015), mn 126.

⁴ Vogler, in: Grützner and Pötz (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2001), § 11, mn 3 and 53; Schultz, *Das schweizerische Auslieferungsrecht* (1953) 358; Gartner, in: Fischer *et al.*, *International and National Prosecution of Crimes under International Law* (2001) 423, 433; Poncet and Gully-Hart, see note 2, 304 *et seq.* with further citations in note 116.

⁵ Schomburg *et al.*, *Internationale Rechtshilfe* (2012); *Einleitung*, mn 43, § 11 IRG, 135, mn 2-3; Vogel and Burchard, see note 2, § 11, mn 16-18, 81; Kubiciel, in: Ambos *et al.* (eds.), see note 3, mn 126; see also Richardson (1991) 62 *Revue Internationale de Droit Pénal* 86 *et seq.*, ('The debate whether an individual is a subject of international law is largely academic ...').

⁶ The author presumes that it is rather a Freudian slip than partisanship to modern doctrine if in Bassiouni (ed.), *Compilation*, see note 1, 739, the rule is baptized 'rule of sociality'!

⁷ Cf. Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 171; for a very critical assessment of the inclusion of the rule of speciality in Part 9, see Swart, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. II (2002) 1700.

- 7 Without doubt, the rights and interests of **persons** to be surrendered have to be taken into consideration by the Statute as well⁸. Even if, however, one favours the horizontal approach and thus the basic principles governing extradition are applied to surrender of a person to an International Court, the rights and interests of that person do not deserve the same weight as in extradition cases between sovereign States, and that independently of whether one prefers the ‘classical’ speciality concept or the doctrine granting own rights to the person concerned (see mn 4): As the mandate of an International Court is, by virtue of its Statute, strictly limited to a catalogue of certain offences committed in a specific historical and geographical context, all of them being of a similar nature and gravity, there is no opportunity for the Court to extend proceedings to conduct that occurred in a totally different context than the one for which surrender was sought, and thus no corresponding risk for the person surrendered to be ‘cheated’ by an unexpected extension of the charges. Interestingly, Amnesty International’s comments on the Draft Statute⁹ – albeit recognizing the speciality principle in extradition practice as ‘an essential human rights enforcement mechanism’ – shared this reasoning and concluded that the Draft’s speciality article should be deleted as the person’s only legitimate interest in this context, *i.e.* the right to have sufficient time to prepare a defence to new charges, will be adequately protected by other provisions of the Statute.
- 8 Thus it comes to no surprise that, since the Court became operational in 2003, the principle of speciality has been invoked in its jurisprudence in very few cases only and in none of these cases it has been regarded as applicable (cf. mn 12, 19–22).
- 9 It seems that the peculiarities of proceedings before an International Court and not so much the stringent character of ‘sweeping’ State obligations under Chapter VII of the UN Charter also were the main reason why the Statutes of the ICTY and the ICTR – insofar differing from preliminary drafts¹⁰ – do not contain provisions on the rule of speciality¹¹.
- 10 The progress of **negotiations** on article 101 differed from the genesis of the *ad hoc* Tribunals’ Statutes. It is true that, as a consequence of the ‘battle’ between the horizontal and the vertical approach, there was an ongoing discussion during the negotiations on whether or not the speciality rule should be applied with respect to the Court. However, already the first and second versions of the ‘Bassiouni Draft’ (the second one edited after the adoption of the Security Council Resolution for the establishment of the ICTY)¹² contained a provision on the speciality rule that was very similar to the one adopted in the end, and none of the major drafts submitted to the ILC’s, Preparatory Committee’s, *Ad Hoc* Committee’s and working groups’ negotiations between 1994 and 1998¹³ proposed to leave out provisions of this kind altogether; the doubts expressed as to whether such provisions should be taken up at all were only reflected by bracketing some of these proposals and including respective remarks in the explanatory notes¹⁴. So, the discussions – and the **compromise** reached in the end – focused on scope and modalities of the principle – *i.e.* on elements of the type that will be dealt with under B. – rather than on its existence.

⁸ See, e.g., *Ad Hoc* Committee Report, quoted in: Bassiouni (ed.), *Compilation*, see note 1, 706, mn 219: ‘Some provision concerning specialty was required in order to safeguard the rights of the accused’. Cf. also mn 17, 21 and 22 with reference to Rules 196, 197 containing indications to the rights of the persons concerned.

⁹ Amnesty International, *The International Criminal Court. Making the Right Choices – Part III: Ensuring Effective State Cooperation* (1997) 46.

¹⁰ See, e.g., the Commission on Security and Cooperation in Europe Rapporteurs’ ‘Proposal for an International War Crimes Tribunal for the Former Yugoslavia’, article 57, p. 215 (1993).

¹¹ See also explanatory remarks to section 3 para. 2 of the respective German laws implementing these Statutes, Bundestag documents 13/57 and 13/7953, p. 9; for a different approach in Austrian implementing legislation see Klip (1997) 5 *EJCLCJ* 144, 154, note 50.

¹² Article XXXVII para. 8; 9 *NEP* (1992) 133 10 *NEP* (1993) 92.

¹³ See Bassiouni (ed.), *Compilation*, note 1, 112 – article 92; 253 – article 84 [57]; 301 – article 57; 634 – article 55; 739 – article 55.

¹⁴ Bassiouni (ed.), *Compilation*, see note 1, 112, mn 47; 254, mn 322; 302, mn 53; 706, mn 219.

B. Analysis and interpretation of elements

I. Paragraph 1: Scope of application

Given that the speciality rule is well-established in extradition law and practice the language of any of the proposals submitted during the negotiations and of the text finally adopted was necessarily inspired by the standards set by existing clauses in treaties and national laws on extradition¹⁵; therefore contents and scope of application of the article correspond *grosso modo* with the examples mentioned in mn 2.

It starts with the clarification that the speciality rule only applies to ‘persons surrendered to the Court’ (article 14 European Convention of Extradition: ‘person who has been extradited’, article 27 (2) EU Framework decision on European Arrest Warrant: ‘person surrendered’). This means that suspects who **appear voluntarily** before the Court following a summons to appear (article 58 (7) RS) do not enjoy the protection of article 101. In the *Muthaura* case, the Defence had argued that the Document Containing Charges was defect due to its ‘impermissible expansion of the temporal scope’ and thus incompatible with article 101. The Single Judge, while agreeing that the rationale of this article is to protect state sovereignty, ruled that it could not be applied in cases of suspects following a summons to appear¹⁶.

In a similar way, the verbs paraphrasing the essence of the limitations to the Court’s powers correspond with those used in extradition instruments: The person surrendered must not be **proceeded against, punished or detained** for other (= alternate or additional) than certain conduct. This language corresponds literally with article 14 of the European Convention on Extradition with the proviso that the latter uses the word ‘sentenced’ instead of ‘punished’, which in fact means no substantial divergence¹⁷. However, article 101 could dispense with including a provision (as, again, found in most extradition instruments) preventing the Court from **otherwise restricting** the surrendered person’s personal freedom, as insofar the Court’s power is, by its nature, anyway limited to the ‘criminal law options’ listed in this paragraph (examples for ‘other’ restrictions of freedom that can be imposed on a person by a State: measures based on the State’s military or civil sovereignty)¹⁸.

Similarly, the provision does not – as some of the respective clauses in extradition treaties and laws do¹⁹ – contain an exception to the extent that the Court may take any measures that can be performed in the **absence** of the person concerned, in particular measures aiming at preventing legal effects of lapse of time. In the context of the Statute, a provision of that kind was redundant because it clearly results from the provisions in Part 5 – ‘Investigation and Prosecution’ – which power is vested in the organs of the Court with respect to measures they can take in the absence of the offender.

Paragraph 1 defines the substantial point of reference of the Court’s power to proceed against, punish or detain the person surrendered as being ‘the **conduct or course of conduct**

¹⁵ See, for the ‘Bassiouni Draft’, mn 10, the explanations on article XXXVII para. 8, pp. 137 (1992), 95 (1993), expressly referring to the European Convention on Extradition.

¹⁶ *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta, and Mohammed Hussein Ali*, ICC-01/09-02/11, Decision on the ‘Preliminary Motion Alleging Defects in the DCC...’, Pre-Trial Chamber II, 12 September 2011, para. 16.

¹⁷ Slightly different language is introduced by article 3 of the 4th Additional Protocol to the European Convention on Extradition and by article 27 of the EU Framework Decision on the European Arrest Warrant, cf. mn 2, which does not imply any substantial difference either.

¹⁸ Vogel and Burchard, see note 3, § 11, mn 63.

¹⁹ Cf. article 14 para. 2 European Convention on Extradition and article 3 of its 4th Additional Protocol; article 27 (3)(c),(d) of the EU Framework Decision on the European Arrest Warrant, section 11 (1)(1) German Law on Mutual Assistance in Criminal Matters (1982); see Vogel and Burchard, note 3, § 11, mn 65–69; Poncet and Gully-Hart, see note 4, 305.

which forms the basis of the crimes for which that person has been surrendered'. Again, this language corresponds with speciality clauses in extradition treaties and laws, albeit one important variation was included in paragraph 1 during the last negotiations: Whereas any of the previous drafts of the Statute (mn 10), following the example set by nearly all 'classical' extradition instruments,²⁰ referred to the 'offence', the 'crime' or the 'criminal acts' for which the person has been surrendered, the final version of the Statute deliberately chose the more generic term 'conduct or course of conduct'. Thus it avoids the misunderstanding that the speciality principle was linked to the **legal qualification** of the offender's conduct rather than to the underlying **facts**, a misunderstanding frequently causing problems – not only in extradition procedures *strictu sensu*, but also in the context of the '*ne bis in idem*' principle – particularly in relation to countries applying a narrow procedural concept of criminal conduct.²¹

- 15 By clearing that divergences between the legal descriptions of the provable and the charged offence do not give rise to a violation of the speciality rule as long as both 'offences' are based on the same set of facts, the reference to 'course of conduct' has the additional advantage of allowing a 'leaner' wording of the provision without the need for a specific provision, as found in many extradition instruments²², stating the non-applicability of the rule of speciality in cases where 'the (legal) description of the offence charged is **altered** in the course of proceedings' (albeit restricted to cases where the offence under its new description also constitutes an extraditable offence). The latter restriction (extraditable offence) must not be confused with the concept of 'strict' (as opposed to 'classical') speciality developed in modern extradition practice which implies that the conduct must not be subsumed by the requesting state under an offence different from the one underlying its request (e.g. not as murder instead of manslaughter), a concept which has not been adopted by the drafters of the Statute²³.
- 16 The limitations stemming from the speciality rule also have to be distinguished from the specific limitations of the Court's power which are based on its **mandate**: Even if the conduct provable is essentially identical with the conduct for which the offender was surrendered, but it turns out during trial that it can only be qualified as an offence that does not belong to the crimes listed in Part 2 (example: 'normal' murder instead of wilful killing constituting a war crime), the Court has no jurisdiction over the offender – which, however, is not a legal consequence of the speciality rule *strictu sensu*²⁴.
- 17 The question whether, under which conditions, to what extent and at which stage of the proceedings the **legal qualification** of the facts alleged in the charging instrument can be **changed** (cf. Regulation 55) belongs to the issues which are repeatedly and controversially dealt with in the Court's jurisprudence²⁵.

²⁰ E.g., article 14 European Convention on Extradition, article 14 UN Model Treaty on Extradition, article 3 (2) of its 4th Additional Protocol and article 27 of the EU Framework Decision on the European Arrest Warrant. For the meaning of 'offence' in the latter instrument see EU Court of Justice, C-388-08 (case Leymann/Pustovarov).

²¹ As an example of a very wide interpretation, the German doctrine understanding 'offence' ('Tat') within the Code of Criminal Procedure – section 264 – means the totality of the underlying set of facts independently of how they are legally qualified (German Federal Court – Bundesgerichtshof –, NJW 2000, 227: 'a set of facts which, looked at from a natural viewpoint, constitutes a unitary event of life, in particular when several events are so closely linked under substantial, local and temporary aspects that splitting them into different acts would be perceived as unnatural'), in the context of extradition see Vogel and Burchard, note 3, § 11, mn 36; Kubiciel, in: Ambos *et al.* (eds.), see note 3, mn 129–130, cf. also Meißner, note 7, 169 and Poncet and Gully-Hart, see note 4, 305.

²² E.g., article 14 (3) European Convention on Extradition and article 3 (4) of its 4th Additional Protocol, 'Complementary Provisions' for the UN Model Treaty on Extradition (1997), article 14 (1) (a) note 10.

²³ Cf. Vogel and Burchard, note 3, § 11, mn 10–13. See also article 22 (3) U.S.-German Extradition Treaty (1978): violation of speciality principle if the new legal aspects would result in the applicability of a higher maximum penalty than for the offence underlying the request.

²⁴ Both items seem to be mixed up by Klip, see note 11, 154, note 50.

²⁵ Cf. insofar mn 39 *et seq.* to article 74; Ambos and Miller, *Structure and Function of the Confirmation Procedure before the ICC from a Comparative Perspective*, ICLR 7 (2007), p. 335, 358; Stahn (2005) 55 CLF 16, p. 1.

Here only the following examples shall be mentioned:

- *Prosecutor v. Thomas Lubanga Dyilo*, where the Trial Chamber (Judge *Fulford* dissenting), responding to a victims' submission aiming at qualifying the conduct as sexual slavery etc., determined that the limitation of Regulation 55 did not apply. The Appeals Chamber confirmed the majority's opinion, stating that the possibility of a Trial Chamber to modify the legal characterization of the facts was not incompatible with the Statute nor with general principles of international law nor with the rights of the accused as long as the facts and circumstances described in the charges and amendments were not exceeded. Already at an earlier stage of the proceedings the Pre-Trial Chamber had, without considering a speciality waiver, *sua sponte* amended the legal characterization of the charges (acts committed in an international as opposed to a non-international conflict), stressing that the criminal conduct remained the same.²⁶
- *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, where the Trial Chamber made use of Regulation 55 by dividing the case into two and giving the accused Katanga notice of a possible recharacterization of the facts to accord with a different form of criminal responsibility under article 25. In her dissenting opinion, Judge *Van den Wyngaert* strongly criticised the majority decision which in her mind encroached upon the right of the accused to a fair trial. However, her criticism is not based on the legitimacy of Regulation 55 as such but rather on the fact that it was invoked in a very late stage of proceedings, i.e. after the formal closing of the evidence and the closing arguments of the parties²⁷.

While in all these cases of legal re-characterization of the alleged conduct the speciality principle – rightly – was not invoked at all, in just a few cases the argument was raised by parties that such re-characterization could lead to the applicability of article 101. This argument was however so far rejected in all cases before the Court:

In the case *Prosecutor v. Omar Hassan Ahmad Al Bashir* the Prosecutor in his application for leave to appeal the denial of a charge of genocide in the original arrest warrant invoked the speciality principle, suggesting that if evidence were to emerge at trial justifying amendment of the charges so as to include the crime of genocide, this might delay proceedings while a speciality waiver had to be sought. Neither the Pre-Trial Chamber nor the Appeals Chamber which reversed the Pre-Trial Chamber's decision and confirmed the charges of genocide (based on the argument that the Pre-Trial Chamber had not applied the correct standard of proof under Article 58 RS) elaborated on this argument. (As a result of the Appeals Chamber's judgment, the Pre-Trial Chamber issued a Second Warrant of Arrest for Al Bashir, now including genocide²⁸.)

In the case *Prosecutor v. Callixte Mbarushimana* the Defence raised the argument that the inclusion of 'crimes which were not explicitly described or legally characterized in the warrant of arrest, but are otherwise implicit in the description of the course of conduct' (here: mutilation and pillaging as encompassed in attacks on the civilian population and destruction of property), violated the principle of speciality. The Single Judge declined the motion stressing that the rule of speciality only prevents the Prosecution from including a crime 'which has not been described in any way in the warrant of arrest, on the basis of which the requested State agreed to arrest and surrender the person'²⁹.

²⁶ ICC-01/04-01/06, decisions of Pre-Trial Chamber I, 29 January 2007, para 204, of Trial Chamber I, 14 July 2009, para 25 *et seq.*, and of Appeals Chamber, 8 December 2009, para 64 *et seq.*

²⁷ ICC-01/04-01/07, decisions of Trial Chamber II, 21 November 2012, para 10 *et seq.*, Appeals Chamber, 27 March 2013, para 25, 59 *et seq.*, Trial Chamber II, 7 March 2014, para 1441 *et seq.* (The co-accused *Ngudjolo* was acquitted, see *Prosecutor v. Mathieu Ngudjolo*, ICC-01/04-02/12, Trial Chamber II, decision of 18 December 2012).

²⁸ ICC-02/05-01/09-12, Prosecution's Application for Leave to Appeal the 'Decision on the Prosecution's Application for a Warrant of Arrest...', 13 March 2009, para 38, 50, Judgment on the appeal of the Prosecutor against the 'Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir', ICC-02/05-01/09-73, 3 February 2010, para 41, Second Warrant of Arrest for Omar Hassan Ahmad Al Bashir, ICC-02/05-01/09-95, 12 July 2010.

²⁹ ICC-01/04-01/10, Decision on the confirmation of charges, 16 December 2011, para 89–92.

- 22 Similarly, in the case *Prosecutor v Jean-Pierre Bemba-Gombo et al.* ('Bemba II') the Defence asked for rejection of the Prosecution's Document Containing the Charges with the argument that it listed new charges ('coaching witnesses' as opposed to 'bribing witnesses') under article 70, new modes of liability under article 25 (3) and new courses of conduct which were not contained in the Arrest Warrant and thus violated the speciality principle. Again, the Single Judge, referring, *inter alia*, to the Statute's drafting history, rejected the request as the 'new' charges were based on the same set of facts presented in the Arrest Warrant and thus part of the course of conduct for which the accused had been surrendered³⁰.
- 23 The speciality rule only applies to conduct 'committed prior to surrender' which means that the Court is not subject to speciality limitations when dealing with offences committed after surrender. The ratio for this provision which is another integral part of any speciality clause in extradition treaties and laws, is the fact that neither the requested State nor the extraditee can claim a legitimate interest to be protected against a foreign jurisdiction that could not yet have been exercised when the extraditee was still present on the territory of the requested State³¹.
- However, in the context of the Statute this provision has less relevance than in relations between States, because, as pointed out above (mn 16), the Court's jurisdiction is always limited – within or outside the scope of application of the speciality rule – to the crimes enumerated in Part 2 of the Statute. It is difficult to imagine crimes committed after surrender that could fulfil this condition, all the more so as the Court has no 'own territory' *strictu sensu* (there might be cases where the accused participates after surrender, e.g. by written communication, in such crime committed by third persons). Thus, the only types of offences with regard to which the 'prior-to-surrender' exception may have relevance in practice will consist in the Court's jurisdiction over offences committed on its premises, *i. e.* 'offences against the administration of justice' as listed in article 70 of the Statute³².
- 24 The fact that the Court has no 'territory' (and that the Statute only covers surrender to the Court and not from the Court to State Parties, *cf.* mn 25) also rendered unnecessary a clause as can be found in most extradition instruments according to which protection under the speciality rule ceases to apply if the person surrendered has not left, having had the opportunity to do so, the territory of the requesting Party within a certain period of time after final discharge, or if that person voluntarily returned to the territory of the requesting Party after leaving it³³.
- 25 Due to the same reasons the drafters of the Statute did not see a need to include provisions generally extending the effects of the speciality principle to cases of re-extradition to another State³⁴.

³⁰ ICC-01/05-01/13, 'Narcisse Arido's Request for an Order Rejecting the Prosecution's DCC...', 9 July 2014, para 18, 40, 54, and Decision on this Request, 15 July 2014, p. 5–6.

³¹ Vogel and Burchard, see note 3, mn 47–48.

³² See the case *Prosecutor v. Jean-Pierre Bemba-Gombo et al.* ('Bemba II', ICC-01/05-01/13, *cf.* mn 22): The accused had been surrendered to the Court by Belgium in 2008 under five counts of crimes against humanity and war crimes (ICC 01/05-01/08); in November 2013 an additional warrant of arrest was issued against him and four of his defence lawyers for allegedly having presented false and faked evidence and influenced witnesses. *Cf.* on this case M. Hiéramente/P. Müller/E. Ferguson, *Barasa, Bribery and Beyond...*, *ICLRev* 14 (2014), 1123. On the legislative history, *cf.* *Ad Hoc* Committee Report, quoted in: Bassiouni (ed.), *Compilation*, see note 1, 706, mn 219: '... possibly, the need to distinguish between crimes committed after surrender, to which the rule of speciality did not apply'. In the Preparatory Committee's last draft (*Compilation* 112) the clause 'except when he or she commits the criminal act after ... surrender' was still bracketed.

³³ *Cf.* article 14 para. 1 (b) of the European Convention on Extradition, article 14 (3) and article 3 (1)(b) of its 4th Additional Protocol, para. 3 UN Model Treaty; section 11 (2)(2) of the German Law on Mutual Assistance in Criminal Matters; for analysis see Vogel and Burchard, note 3, § 11, mn 84 *et seq.*, Kubiciel, in: Ambos *et al.* (eds.), note 3, mn. 141–142.

³⁴ For examples in extradition treaties and laws *cf.* article 15 of the European Convention on Extradition, article 4 of its 4th Additional Protocol, article 14 of the UN Model Treaty which directly integrates re-extradition into the speciality principle ('shall not be proceeded against, ... or reextradited'); section 11 (1)(2) German Law on Mutual Assistance in Criminal Matters. In the ICC context, see Bassiouni, note 3, (1992/1993) 9/10 *NEP*, article XXXVII para. 9, and the corresponding suggestion in the *Ad Hoc* Committee Report, quoted in: Bassiouni (ed.), *Compilation*, see note 1, 706, mn 219–220, to expand the speciality rule by encompassing the

The question how protection of the offender against proceedings instituted by the **host State** – The Netherlands – will be ascertained is dealt with by article 51 of the Headquarters Agreement between the ICC and the host State (ICC-ASP/5/32, part III, resolution ICC-ASP/5/Res.3, annex II, p. 350 *et seq.*).

The Statute itself addresses the re-extradition issue in the relations between the Court and States Parties only in connection with the **transfer of execution** of the Court's sentence to a State of enforcement, a transfer that is inevitable as the Court does not possess own prison facilities. It goes without saying that the State which accepts the sentenced person for the purpose of serving the imprisonment sentence must not be subject to less stringent limitations with respect to the speciality rule than the Court itself. This is why Part 10 (Enforcement) of the Statute contains a specific speciality clause on its own – **article 108** – which, as it primarily deals with rights and duties of national States, is structured along the lines of 'classical' extradition provisions much more than article 101, without, however, using the term 'speciality'. (With regard to article 108 see also Rule 214 and Regulation 115, the latter explicitly stating that the Court 'shall have due regard to the principles of international law on re-extradition' which means a direct reference to the classical concept of speciality.)

Not contained in the Statute is a re-extradition clause for cases where the transferred person is **released** from the Court's custody after the Court has determined the case inadmissible under article 17 para. 1. Insofar, Rule 185 states that re-transfer to a State (with regard to the original or to another offence) always requires the consent of the original surrendering State which means that the 'normal' law governing extradition between States will apply³⁵. While Rule 185 para. 1 deals with the cases listed in article 17 para. 1 (b) to (d), Rule 185 para. 2 covers the case of a third State's successful challenge to admissibility (article 17 para 1 *lit.* a). As concerns the latter case, the Rules unfortunately do not address the case that the surrendering State does not consent to the person's transfer to the challenging State and request his or her return although it (= the original surrendering State) is still unwilling or unable to properly carry out the investigation or prosecution³⁶.

The rights of the **person** surrendered are not expressly mentioned in the Statute. Rule 196, 26 however, states that this person has the opportunity to provide the Court with views on a perceived violation of the speciality principle. This seems to indicate that, in accordance with inter-State extradition doctrine, persons who are to be surrendered to international courts at least enjoy a 'reflex' of the requested State's rights³⁷.

II. Paragraph 2: Waiver

Paragraph 2 which provides for the possibility of waiving the rule of speciality, again, 27 corresponds to well-established extradition standards. With very few exceptions³⁸, bi- and multilateral extradition treaties and national extradition laws always include provisions enabling the requested State to either subsequently **extend** its decision by which extradition was granted to other conduct and/or subsequently (or even prior to surrender, *cf.* mn 32) waive the rule of speciality altogether³⁹. To that end, the first sentence of paragraph 2 presents the possibility for

'question of the ability of the court to surrender to a third State according to its own proceedings', including the question of continuing rights 'on the part of the custodial State'.

³⁵ *Cf.* Meißner, note 7, 170; Kreß, in: Grützner *et al.* (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen* (2007 *et seq.*) IV A 1, mn 252.

³⁶ *Cf.* note 35, and Kreß and Prost, art. 89 mn 26 *et seq.*

³⁷ *Cf.* mn 7, Kreß, note 35, IV A 1, mn 251, Meißner, note 7, 174.

³⁸ *E.g.* Brazil, see Grützner and Pötz (eds.), *Internationaler Rechtshilfeverkehr in Strafsachen*, Vol. II (2001) 25, mn 20.

³⁹ For subsequent waiver *cf.* article 14 (1) (a) of the European Convention on Extradition and article 3 (1) (a) of its 4th Additional Protocol, article (1) (b) of the UN Model Treaty on Extradition; for waiver prior to surrender article 27 (1) EU Framework Decision on the European Arrest Warrant.

the Court to request a waiver from the surrendering State whereas its second sentence deals with the authority and willingness of this State to provide such waiver to the Court⁴⁰.

1. Court's request

- 28 By allowing the Court to 'request a waiver of the requirements of paragraph 1' from the surrendering State, the provision by itself does not expressly state on the question whether such a request can only be made with respect to **certain** 'other conduct' than the one underlying the original request or whether the Court may also request an all-embracing '**indefinite**' waiver for any other conduct it may deem fit to be included in its proceedings. Indeed, the fact that the second half sentence provides for the Court's request being accompanied by 'additional information in accordance with article 91' – which necessarily includes reference to conduct exactly designated, see mn 29 – seems to indicate that a request for waiver can only be made with regard to certain 'new' crimes. On the other hand, the Court's obligation to provide such additional information is conditioned by the words 'if necessary' which, in the absence of further restrictions on the Court's side, seems to shift the discretion whether or not an unlimited waiver of paragraph 1 can be requested for to the requested State's side: At least in cases where this State under its law has the power to waive observance of the speciality rule with respect to any other conduct⁴¹ the Court may request and obtain such general waiver. It goes without saying that in any case the Court has to observe the limitations stemming from its mandate (*cf.* mn 16).
- 29 As concerns the **formal requirements** for additional information that is – 'if necessary', *cf.* mn 28 – to be provided to the requested State in support of a request for waiver, paragraph 2 refers to article 91. This implies in particular that the request shall be made in writing and contain or be supported by a copy of the warrant of arrest or of the sentence imposed – both with regard to the 'new' offence – and further information as may be necessary under article 91 paras. 2 (c) and 4. Insofar as under the law of the requested State a 'general' waiver without reference to certain other conduct is permitted (*cf.* mn 28), the written request may in itself be sufficient.
- 30 In defining scope and limits of a waiver of the speciality rule, the Statute does not refer to the **consent** or to the interests of the **person** surrendered, although nearly all extradition instruments – independently of whether they follow the 'classical' extradition doctrine relying exclusively on States' rights and conceding only a 'reflex' to the person concerned, or the more recent doctrine adjudicating own 'subjective' rights to individuals stemming from extradition instruments (*cf.* mn 4, 7 and 26) – make such a waiver dependent on the consent of the extradited person or at least on giving him or her the opportunity to be heard on the request for waiver and on submitting a legal record of his or her statement to the requested State⁴².

The reason for this omission cannot be sought in disregard of the surrendered person's rights and interests. It was repeatedly pointed out during the negotiations that exceptions to

⁴⁰ In the *Ad Hoc* Committee Report, see note 1, quoted in: Bassiouni (ed.), *Compilation* 706, mn 219, reference was also made to the possible need for a waiver by the *custodial* State (?).

⁴¹ *Cf.* section 35 para. 2, in connection with sections 29 and 41 para. 2 of the German Law on Mutual Assistance in Criminal Matters.

⁴² As examples for the latter model, *cf.* article 14 (1) (a), 2nd sentence of the European Convention on Extradition and article 3 (1) (a) 2nd sentence of its 4th Additional Protocol; article 14 para. 2, 2nd half sentence of the UN Model Treaty on Extradition; article 13 EU Framework Decision on the European Arrest Warrant. Similar provisions were contained in paragraph 3 of any of the Preparatory Committee's and Zutphen Draft articles on speciality; see Bassiouni (ed.), *Compilation*, note 1, 635, 302, 254, 112: 'request shall be accompanied by an additional warrant of arrest and by a legal record of any statement made by the accused with respect to the offence'. On German law *cf.* Vogel and Burchard, note 3, § 11, mn 81, as well as section 35 and – on simplified extradition – section 41 of the Law on Mutual Assistance in Criminal Matters. It is worth mentioning that in the more than 30 years of its existence this provision has proved to be a big success in German extradition practice: According to the official extradition statistics, in between one quarter and one third (in relation to neighbouring States up to one half) of all extradition cases the extraditee is consenting to simplified extradition including a waiver of the speciality rule.

the rule of speciality ‘should be based on the consent or waiver of the accused’⁴³, and **Rule 196** contains some indications concerning the legal position of the person surrendered with regard to the observance of the speciality rule (*cf.* mn 26). However, the Statute proceeds from the assumption that the question whether, to what extent and how the surrendered person is to be protected against violations of own legitimate interests shall insofar be exclusively governed by the laws of the requested State. In most countries these laws will allow for a waiver of the speciality rule in respect to certain ‘new’ offences only if the person concerned has had an opportunity to be heard on these charges, and all the more they will provide for an ‘indefinite’ waiver – if any – only with this person’s consent⁴⁴. As a consequence, **Rule 197** states that, when the Court has requested a waiver of the speciality principle, the requested State may ask the Court to obtain and provide the views of the person surrendered. Respective requirements stemming from the requested State’s domestic law will also be taken into account by the Court when determining the amount of ‘additional information’ to be furnished under paragraph 2, 1st sentence, 2nd half.

2. States Parties’ reaction

As opposed to the 1st sentence which attributes to the Court the power to make a request for waiver, the 2nd sentence deals with States Parties’ reactions on the Court’s request. Firstly, they ‘shall have the **authority**’ to **provide** such waiver. As mentioned above (mn 28–30), this refers to the Parties’ domestic legislations in the field of extradition which (with few exceptions, see mn 28) provide for the possibility to waive the speciality rule with respect to certain, exactly designated other conduct and, in more modern laws, also indefinitely with respect to any other conduct. The reference to domestic legislations shows again that substantial requirements and formal modalities of the procedure in the requested State are governed exclusively by the latter’s law.

Although closely connected with the 1st sentence, the 2nd sentence is not expressly limited to cases where the Court has requested a waiver of the speciality rule (which could have easily been accomplished by including the words ‘on request’). It also calls upon States Parties to create or at least make use of provisions according to which the speciality rule can be waived ‘**spontaneously**’ and prior to surrender⁴⁵. The most recent example for an international instrument providing for such option is article 27 of the EU Framework Decision on the European Arrest Warrant which enables (and encourages) the surrendering State to notify the Council ‘that, in its relations with other Member States that have given the same notification, consent is presumed to have been given’ for prosecution or enforcement with respect to other conduct than the one for which the person has been surrendered. Where a pre-surrender option exists it will also avoid cumbersome extension procedures as provided for under Rule 197.

The 2nd sentence invites States Parties not only to be able to waive the speciality rule but moreover – which is even more important – to ‘**endeavour** to do so’: This means that they shall not only possess or create the legal tools for a waiver decision but also be ready and willing to **apply** them in a given case.

At least for ‘classical’ cases where the Court asks a State Party to extend its original decision to certain other conduct, this clause is **less stringent** than corresponding provisions in extradition treaties which usually oblige the requested State to give its consent if only the ‘new’ offence is itself subject to extradition under the treaty⁴⁶. This weakness, however, is a consequence of the fact that a worldwide Convention necessarily has to catch up with a

⁴³ See (concerning speciality rule in respect of use of evidence) Bassiouni (ed.), *Compilation*, note 1, 438, mn 346.

⁴⁴ *Cf.* the instruments mentioned in mn 27; for quotations and waiver provided *prior* to surrender mn 32.

⁴⁵ See, e.g., section 41 (2) of the German Law on Mutual Assistance in Criminal Matters.

⁴⁶ *Cf.* article 14 (1) (a), 3rd sentence of the European Convention on Extradition and article 13 (3)(1)(a) of its 4th Additional Protocol; article 27 (4) EU Framework Decision on the European Arrest Warrant; article 14 (1), 2nd sentence of the UN Model Treaty on Extradition.

variety of very different domestic legislations some of which do not even know a concept of waiver of the speciality rule yet. Under no circumstances, however, the ‘soft’ wording can be interpreted in a sense that it would enable the surrendering State to base its refusal of a waiver on grounds of refusal as contained in classical extradition law but not recognized under the Statute⁴⁷.

Anyway, this problem seems to be rather academic as the Statute, when defining the scope of application of the speciality rule, does not refer to the narrow concept of ‘offence’ or ‘crime’ but uses the broad term ‘course of conduct’ (see mn 14) which means that many of the cases where under extradition treaties between States ‘new offences’ emerging after surrender would necessitate a request for waiver of speciality are solved under the Statute by interpreting the ‘new’ charges as just embracing a different **legal qualification** of the course of conduct for which the person was surrendered, and thus are already covered by the speciality rule. This is the reason why since the existence of the Court there has not been one single case in which a waiver of the speciality rule was requested by the Court nor granted by a State.

C. Related issues

- 34 The difficult question how the requested State can **secure observance** of the speciality rule by the requesting State is normally – unfortunately – not dealt with in extradition treaties⁴⁸. So it would – even if in relations between the Court and States Parties the ‘horizontal approach’ was accepted (see mn 6) – be too ambitious to expect a solution of this problem from the Statute – this all the more as **article 119** of the Statute contains a settlement of dispute clause.
- 35 For application of the speciality rule on **transfer of execution** of the Court’s sentence to third States (article 108 of the Statute: ‘Limitation on the prosecution or punishment of other offences’) cf. mn 25.
- 36 In legal doctrine and practice during the last decades, a growing tendency can be observed to use the term ‘speciality’, formerly reserved to the extradition area, also with regard to *other* forms of inter-State cooperation, in particular in the area of **mutual assistance** where it is meant to cover limitations on the use of evidence (furnished to the requesting State in execution of a request or to the requested State in support of a request, the latter clause more frequently referred to as ‘**confidentiality** clause’) for other purposes than those for which it was provided⁴⁹. Consequently, provisions of this kind relating to cooperation were also included in any of the articles on (surrender) speciality drafted during the negotiations on the Statute, interestingly always under the common heading ‘speciality’ which goes beyond the prevailing doctrine acknowledging this kind of limitations as integral part of mutual assistance schemes without, however, extending the term ‘speciality’ to them⁵⁰. The final text of the Statute seems to fall behind that scheme by only including a ‘confidentiality’ clause (directed at the requested State that has to keep request and supporting documents confidential) in the general provision on cooperation (article 87 para. 3) and another

⁴⁷ Meißner, see note 7, 173.

⁴⁸ Vogel/Burchard, see note 3, § 11, margin 28, Kubiciel, in: Ambos *et al.* (eds.), note 3, mn. 143. In extradition practice, the requested State may, if it deems necessary, include a respective condition (transmission of the final decision) in its *note verbale* granting extradition, see the respective provision in article 38 (1)(d) of the Swiss Law on International Mutual Assistance (ISRG). For one of the rare examples in treaty practice see article 28 of the former German-Yugoslav Extradition Treaty of 26 November 1970.

⁴⁹ Cf. Lagodny, Schomburg *et al.*, *Internationale Rechtshilfe* (2012), § 59, mn. 16, 19, Vogel/Burchard, note 3, § 11 mn. 3, German Constitutional Court (Bundesverfassungsgericht) NJW 2011, 591 (‘not yet customary law in the area of mutual assistance’). For international treaties, see (under the heading ‘limitation on use ...’), e.g., article 8 of the UN Model Treaty on Mutual Assistance in Criminal Matters (1990), article 25 of the (OAS) Inter-American Convention on Mutual Assistance in Criminal Matters (1992), and article 23 European Union Convention on Mutual Assistance in Criminal Matters (2000).

⁵⁰ Cf. already Bassiouni, note 3, (1992/1993) 9/10 *NEP*, article XXXVII para. 8 (b), as well as Bassiouni (ed.), *Compilation*, see note 1, 253, 301, 634, 739; in particular 112, 438, mn 346.

‘confidentiality’ clause (directed at the Court) in article 93 para. 8 (‘other forms of cooperation’) – in detail, see commentaries on these provisions. As, however, the risk for data provided to the Court being used for totally different purposes than those underlying the request is, due to the Court’s limited mandate (see mn 16), by far lower than in cases of data provided to a State – typical example in the area of inter-State cooperation: use of data in criminal proceedings concerning another type of offences, in particular fiscal ones, or in non-criminal, in particular taxation, proceedings⁵¹ –, the solution finally found in single cases will, in practical terms, sufficiently preserve the legitimate interests of requested States and of persons concerned.

⁵¹ Cf., e. g., Switzerland’s reservations on article 2 of the European Convention on Mutual Assistance (1959).

Article 102

Use of terms

For the purposes of this Statute:

- (a) ‘surrender’ means the delivering up of a person by a State to the Court, pursuant to this Statute.
- (b) ‘extradition’ means the delivering up of a person by one State to another as provided by treaty, convention or national legislation.

Literature: See Preliminary Remarks on Part 9. Deen-Racsmány, Z., ‘Lessons of the European Arrest Warrant for Domestic Implementation of the Obligation to Surrender Nationals to the International Criminal Court’, (2007) 20 *LeidenJIL* 167; Heymann, P.B., ‘Two Models of National Attitudes Toward International Cooperation in Law Enforcement’, (1990) 31 *HarvJIL* 99; Rinio, C., ‘Die Auslieferung eigener Staatsangehöriger’, (1996) 108 *ZStW* 354; Safarov, N.A., ‘The Commonwealth of Independent States (CIS)’, in: C. Kreß et al. (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders*, Vol. II: *Constitutional Issues, Cooperation and Enforcement* (Nomos 2005) 485; Vermeulen, G. and Van der Beken, T., ‘New Conventions on Extradition in the European Union: Analysis and Evaluation’, (1997) 15 *DickJIL* 256.

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1. Genesis and purpose

- 1 Article 102 is intimately linked with the question of surrender of nationals. Whether the general obligation of States Parties to surrender persons to the Court¹ should extend to nationals was disputed until the final days of the Rome Conference. A significant number of States², especially from continental Europe³, Latin America and the Arabic world, had pointed to national legal limitations – in almost all cases of constitutional character – on the extradition of nationals.

Some of these States, initially, found it very difficult to conceive of the possibility of overcoming these limitations even in the specific context of the Court. The situation was a delicate one as none could have the slightest doubt that a cooperation regime admitting a ground for refusal to surrender nationals had to be unworkable. In addition such a ground for refusal was in open contradiction with the very concept of the ICC complementary to national jurisdictions. There appeared to be no room for a compromise solution. The proposal⁴ to allow the surrender of nationals to be made conditional on the person’s return for the service of the sentence finally did not prove successful.

¹ See Kreß and Prost, article 89, mn 1 *et seq.*

² No such problems existed for the vast majority of the common law countries (see Preliminary Remarks on Part 9, mn 7), one exception being Israel. Heymann (1990) 31 *HarvJIL* 99, 101 suggests as one explanation for the said limitations in civil law countries the lack of strict evidentiary requirements as an alternative means of protection of nationals. For a recent comparative overview see Rinio (1996) 108 *ZStW* 534, 356 *et seq.*

³ In their relations *inter se* these States are moving towards permitting the extradition of nationals; see Vermeulen and Van der Beken (1997) 15 *DickJIL* 256, 294 and especially article 7 of the Convention of 27 Sept. 1996 on extradition between Member States of the European Union; OJ C 313/11 (23 Oct. 1996). Most recently, the latter group of States have agreed even on an obligation to ‘surrender’ nationals in their relations *inter se* and under certain conditions; see the Council Framework Decision of 13 June 2002 on the European Arrest Warrant and the surrender procedures between Member States (2002/584/JHA), OJ L 190 (18 July 2002); for a detailed comparison between the problem of nationals in this latter context and in the context of the ICC, see Deen-Racsmány (2007) 20 *LeidenJIL* 167–191.

⁴ Tabled by Denmark, Norway, Sweden and Switzerland; A/CONF.183/C.1/WGIC/L.18, 13 July 1998.

When it became apparent that no viable alternative existed to the rejection of a ground for refusal to surrender nationals some delegations expressed the wish to make it very explicit that they did not hereby consent to extradite nationals in general but accepted such an obligation only in the very specific context of the Court. The idea then emerged to clarify that point by contrasting (interstate) extradition and (State to Court) surrender by way of definition. Such a clear distinction at the *terminological* level should, as was the underlying thinking, at the same time contribute to a growing awareness on the national level for the *substantial* differences between *horizontal* and *vertical* cooperation⁵. It was hoped that such an awareness could help mobilize support for implementing legislation, where necessary.

Inserting the terms 'surrender' and 'extradition' implied putting terminological emphasis on the *vertical* approach. It therefore met with a reluctant response of those which, in principle, favoured a *horizontal* approach. Only after the controversies how to deal with State interests behind possible grounds for refusal had been resolved, the use of the term 'surrender' and the inclusion of an article on the use of terms in the Statute could be achieved.

2. Content

The definitions in article 102 clarify the Statute's terminological distinction between delivering up a person in the interstate context (subparagraph (b)), and in the relationship 'State to Court' (subparagraph (a)). In the former situation the traditional term 'extradition', in the latter the term 'surrender' is used.

In not referring to the term 'extradition' in the 'State to Court' context the Statute corresponds to the Statutes both, of the ICTY and the ICTR. In article 29(2) (e) of the former⁶ and in article 28(2) (e) of the latter⁷ the terms 'surrender' and 'transfer' are used instead of 'extradition'.

The definitions contained in article 102 are incomplete in that they do not specify the purpose of 'surrender' and 'extradition'. It is clear that the Statute uses both terms exclusively with respect to such a person of whom there are reasonable grounds to believe that it has committed a crime within the jurisdiction of the Court⁸. By contrast, the Statute makes use of the term 'transfer' when it comes to other types of persons, such as witnesses⁹.

3. Legal significance

In line with its purpose to clarify an important aspect of cooperation terminology the legal significance of article 102 is very limited. Article 102 cannot – and is not meant to – modify in any respect the content of provisions of Part 9. In addition, article 102 does not oblige States Parties to make use of the same terminological distinction in their respective national legislation.¹⁰ This is made clear by the opening wording 'for the purposes of this Statute'. Finally, it constitutes a matter of interpretation of the respective national constitution whether article 102 is referred to in order not to apply an existing prohibition on the *extradition* of nationals to the surrender of persons to the Court. To point to article 102 as *one* argument in this respect, as it has happened in the emerging constitutional case law on the issue¹¹, would certainly – seen from the perspective of the Statute – be legitimate. Though, the precise value of the statutory clarification of the use of terms in the context of national constitutional exegesis remains ultimately to be determined on the respective national level.

⁵ See Preliminary Remarks on Part 9, mn 5.

⁶ UN Doc. S/25704 (1993), Annex.

⁷ UN Doc. S/Res/955 (1994), Annex.

⁸ Cf. the language in article 58 para. 1 (a).

⁹ Cf. the language in article 93 para. 1 (f) in conjunction with para. 7.

¹⁰ Concurring Deen-Racsmány (2007) 20 *LeidenJIL*167, 168.

¹¹ See the opinion of the Constitutional Court of the Ukraine of 11 July 2001 in the Case of the Rome Statute (for an analysis, see Safarov, in: Krefß *et al.* (eds.), Safarov, in: Krefß *et al.* (eds.), *The Rome Statute of the International Criminal Court and Domestic Legal Orders* (2005) 485) and the opinion of the Constitutional Court of Moldova of 2 Oct. 2007; Monitorul Oficial no 161–161 (12 Oct. 2007).

PART 10 ENFORCEMENT

Article 103

Role of States in enforcement of sentences of imprisonment

1. (a) A sentence of imprisonment shall be served in a State designated by the Court from a list of States which have indicated to the Court their willingness to accept sentenced persons.
- (b) At the time of declaring its willingness to accept sentenced persons, a State may attach conditions to its acceptance as agreed by the Court and in accordance with this Part.
- (c) A State designated in a particular case shall promptly inform the Court whether it accepts the Court's designation.
2. (a) The State of enforcement shall notify the Court of any circumstances, including the exercise of any conditions agreed under paragraph 1, which could materially affect the terms or extent of the imprisonment. The Court shall be given at least 45 days' notice of any such known or foreseeable circumstances. During this period, the State of enforcement shall take no action that might prejudice its obligations under article 110.
- (b) Where the Court cannot agree to the circumstances referred to in subparagraph (a), it shall notify the State of enforcement and proceed in accordance with article 104, paragraph 1.
3. In exercising its discretion to make a designation under paragraph 1, the Court shall take into account the following:
 - (a) The principle that States Parties should share the responsibility for enforcing sentences of imprisonment, in accordance with principles of equitable distribution, as provided in the Rules of Procedure and Evidence;
 - (b) The application of widely accepted international treaty standards governing the treatment of prisoners;
 - (c) The views of the sentenced person;
 - (d) The nationality of the sentenced person;
 - (e) Such other factors regarding the circumstances of the crime or the person sentenced, or the effective enforcement of the sentence, as may be appropriate in designating the State of enforcement.
4. If no State is designated under paragraph 1, the sentence of imprisonment shall be served in a prison facility made available by the host State, in accordance with the conditions set out in the headquarters agreement referred to in article 3, paragraph 2. In such a case, the costs arising out of the enforcement of a sentence of imprisonment shall be borne by the Court.

Literature: Broomhall, B., 'The International Court: Overview, and Cooperation with States', in: M.C. Bassiouni (ed.) *ICC Ratification and National Implementing Legislation* (érès 1999) 45; Joyner, C.C. 'Strengthening Enforcement of Humanitarian Law: Reflections on the International Criminal Tribunal for the Former Yugoslavia' (1979) 6 *DukeJComp&IL* 79; Oehler, D., *Internationales Strafrecht* (Heymanns 1983); Schutte, J.E.J., 'Legal and Practical Implications, from the Perspective of the Host Country, Relating to the Establishment of the International Tribunal for the Former Yugoslavia' (1994) 5 *CLF* 423; Shelton, D., 'Reparations to Victims at the International Criminal Court', in: The Center on International Cooperation (ed.), *The International Criminal Court, Reparations to Victims of Crimes (article 75 of the Rome Statute) and the Trust Fund (article 79), Recommendations for the Court Rules of Procedure and Evidence* (1999) <<http://www.pict-cti.org/publications/>>

PICT_articles/REPARATIONS. PDF> accessed 11 September 2014, 6; Tolbert, D. 'The International Tribunal for the Former Yugoslavia and the Enforcement of Sentences' (1998) 11 *LeidenJIL* 655.

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A. General remarks

I. The legal status of the ICC-sentence

- 1 The first topic to be dealt with under this article is the question of the legal status of the ICC's sentences. In the Rome Statute no operative article is devoted to this basic issue. In the 1994 ILC Draft, article 58 stipulates the principle that States Parties should undertake to recognize the judgements of the Court¹. The content and meaning of this principle was felt to be quite unclear, as turned out especially during the 1996 Preparatory Committee sessions². What should be understood by the verb 'to recognize'? Some delegations were of the opinion that States Parties would be automatically bound to recognize the ICC-sentences as sentences handed down by their own national judiciaries. That obligation would emerge from their mere acceptance of the Court's criminal jurisdiction as having the primacy given the principle of complementarity: ICC should be considered as an emanation of the national legal system of the respective States Parties. In this view it would be incompatible to accept on one hand the ICC jurisdiction and to vindicate on the other any latitude to omit or delay enforcement of the irrevocable ICC sentence on designation by that Court. The yardstick should be: enforcement on the same footing as the enforcement of national irrevocable sentences in criminal matters. Looking at the enforcement issue from this angle, for the States Parties, there would be only room for direct, continued enforcement. Those delegations stressed that, at the national level, the rule of law dictates to the administration to execute sentences handed down in criminal matters without any delay. There is no latitude left to take into consideration whether the execution serves the criminal policy of the executive branch at that moment nor is there any margin for considerations of expediency.
- 2 In principle, it is not with the administrative branch to delay the execution and enforcement of sentences for reasons of logistics or capacity, for example, because of lack of penitentiary facilities. Direct enforcement is mandatory. That is the essence of the *auctoritas rei iudicatae*, the authority, the power of the irrevocable judicial decision in public matters. It would be inconsistent not to vest exactly the same power in the ICC. That should be spelled out in the Statute as the basic assumption for enforcement and the obligation thereof towards

¹ 1994 ILC Draft Statute; this document is also to be found in: Bassiouni (ed.), *International Criminal Court: Compilation of United Nations Documents and Draft ICC Statute Before the Diplomatic Conference* (1998) 721–741. This article 58 ILC Draft runs as follows: 'Recognition of judgments. States Parties undertake to recognize the judgments of the Court'.

² See the 1996 Preparatory Committee I, pp. 73–74; see also the *Ad Hoc* Committee Report, pp. 44–45.

States Parties. Those delegations felt that the ILC Draft failed to do that. Article 58 was merely stating the obvious, by stipulating in abstract that the States Parties should recognize ICC sentences. The principal introductory article to the enforcement part of the Statute should define the legal consequences of the recognition, which could only be that there would be no margin for any State Party to omit the enforcement or even to transform the ICC sentence by an *exequatur* procedure at the national level. Such should be valid irrespective of the content of the sentence, the nature and modality of the imposed penalty or compulsory measures ordered by the Court, such as restitution to victims, compensation and the like³. Therefore, it was proposed to add to article 58 the sentence: 'States Parties have to recognize the judgments of the Court as judgments rendered by their national judiciaries'. Later on in the discussions other proposals having principally the same gist and purview were inserted in the text under article 58⁴.

This stand gave rise to intense discussions during the 1996 sessions. The contrasting view – which turned out to be shared by an overwhelming majority of delegations – departed from the assumption that the ICC sentences were to be considered as **foreign** sentences, such by virtue of the legal definition of the Court as judiciary transcending the various national juridical systems, having crossboarding jurisdiction, defined by the principle of complementarity. The obligation incumbent on States Parties to enforce directly ICC sentences on their territory could only be justified if the ICC in any way could be considered as an UN organ, like the ICJ or ICTY and ICTR. One could argue that those entities hierarchically dispose of jurisdictional powers directly penetrating the domestic legal atmosphere. Originally, the ILC conception of an international criminal court with universal jurisdiction could rest upon such an hypothesis, which prompted the wording of article 58 of the ILC drafting, imposing an overall obligation 'to recognize' the ICC sentences, without any latitude for States Parties. During the 1995 *Ad Hoc* Committee sessions, some delegations, trying to define the enforcement obligations, could rely on that assumption, advocating the status of ICC as an UN organ⁵. During the subsequent Preparatory Committee sessions however, albeit inarticulately, the overwhelming majority of delegations began to consider the ICC to be a judiciary on its own, only to a certain extent affiliated with the UN – namely, with regard to the triggering mechanisms. As a foreign jurisdiction, the ICC has its own jurisdictional scope, not compatible with any national jurisdiction. This would be incontestable when one would realize that the ICC is supposed to apply its own substantive criminal and procedural law, which both hardly could be asserted to be 'emanations' of already existing national systems. That being so, the contention that States Parties should abide by the notion of the ICC as 'emanation' of their national judiciaries could not be based on any legal ground. Therefore, those delegations considered article 58 not only to be redundant, but even erroneous and

³ See article 75. During the 1996 Preparatory Committee discussions some delegations were of the opinion that the ICC should have the power to impose on **States** the obligation to implement and execute measures related to compensations, restitutions, compensations and the like. In their view, this resulted from the hierarchical relationship between the ICC and the States Parties: the latter should be considered as subordinates of the ICC, superseding their national jurisdictions. This, however, is not the current system of article 75. The compensatory orders, made by the ICC, are directed against the convicted **person**. The custodial State may act, on invitation of the ICC, as a facilitating intermediary with a view to the execution of the order. See article 75 para. 3. The ICC may invite that State as 'interested party' to give further effect to the order; if the State accepts the request it shall give effect to the order as if the provisions under article 109 were applicable. But as a matter of principle, the subject of the Court's order is the convictee, not the State. See: Shelton, in: The Center on International Cooperation (ed.), *The International Criminal Court, Reparations to victims of crimes (article 75 of the Rome Statute) and the Trust Fund (article 79), Recommendations for the Court Rules of Procedure and Evidence* (1999) <http://www.pict-pcti.org/publications/PICT_articles/REPARATIONS.PDF> accessed 11 September 2014, 6–18.

⁴ 'States Parties [shall] [undertake to recognize] [[and to]] enforce directly on their territory] [give effect to] the judgements of the Court [, in accordance with the provisions of this Part]. [The judgements of the Court shall be binding on the national jurisdictions of every State Party as regards the criminal liability of the person convicted and the principles relating to compensation for damage caused to victims and the restitution of property acquired by the person convicted and other forms of reparation ordered by the Court, such as restitution, compensation and rehabilitation]'. See article 85 of the Zutphen Draft.

⁵ See the *Ad Hoc* Committee Report, note 2, p. 3.

misleading, while fielding the idea that automatic recognition was an intrinsic part of the enforcement system of the ICC Statute.

- 4 It should be with the States Parties to scrutinize in each case whether the enforcement of the ICC sentence would be acceptable with certain constitutional bars, which should be done by the national judiciaries. In every case of a sentence of imprisonment, the convictee should have full access to the national habeas corpus-procedures to examine as to whether the detention was based on a '*iusta causa*' according to national jurisprudence. There should also be room for such a re-examination in cases of fines or forfeiture measures, ordered by the ICC, especially with a view to the rights of bona fide third parties. This implied, as a matter of principle, that after the ICC sentencing, States Parties should be entitled to apply, without any limitation whatsoever, a national exequatur procedure. If a State Party would prefer to introduce in its enabling legislation a system of continued enforcement, this would be up to that party. The result of this discussion was the deletion of article 58.
- 5 This final outcome elucidates the hybrid structure of article 103. In case the ICC imposes a sentence of imprisonment, there is no binding obligation on States Parties to enforce this penalty. The enforcement of such a sentence depends completely on the States' 'willingness'. One can hardly argue that this limitation of the authoritative power of the ICC sentences should be considered to be a matter of principle, whereas article 109 provides for a direct binding obligation of enforcement in cases of fines and forfeiture measures. The language of paragraph 1 of that article is a mandatory one, given the verb 'shall' in that part. While article 86 creates a binding obligation on all States Parties to cooperate with a view to the implementation of the ICC jurisdiction, the structure of Part X of the Statute makes clear that the steps for enforcement do not fall within the scope of the obligation to 'cooperate' albeit that, in the traditional framework of interstatal cooperation and assistance in criminal matters, the obligation to enforce is one of the intrinsic and essential parts⁶. Furthermore, the principle of complementarity seems to vest in the ICC a jurisdictional primacy. Completely in line with this, article 106 articulates the penitentiary principle that the Court will have 'the supervision' of the enforcement of sentences of imprisonment, which implies a hierarchical relationship between the ICC and the enforcing party⁷. However, as far as article 103 is concerned, this is certainly not true: States Parties seem to have the autonomous competence to decide whether or not they are willing to enforce. The ICC will be, like the ICTY and the ICTR, in the unenviable position of having to persuade States Parties to recognize the validity of the ICC sentences of imprisonment with a view to their **executability**. The only thing which could be upheld is, that, if a State has accepted the responsibility for the enforcement of such a sentence, it will act as a custodian on behalf of the ICC, which brings along that during the subsequent national transformation procedures it has to respect the underlying ICC factfindings, justifying the imposition of that penalty, and, thereupon, that it may not 'in any way, including by legislative amendment, alter the nature of the penalty to affect its truly international character', the standard laid down by the ICTY Trial Chamber in its judgement in the Erdemovic case⁸.
- 6 Part X as such is, given the structure and system of the Statute itself only directly applicable with regard to the crimes mentioned in article 5, by definition falling within the scope of the principle of complementarity. Nevertheless, in article 70 para. 3 the Court has been provided with the power to impose a sentence of imprisonment, the term of which may not exceed five years, to sanction offences against the integrity of the administration of

⁶ The ICTY Statute treats the enforcement separately from the cooperation and assistance in the respective articles 27 and 29, thus showing the same system of dualism with regard to phenomena which are intrinsically part of the same segment of international criminal law.

⁷ See Tolbert (1998) 11 *LeidenJIL* [655] 659: "Supervision" generally implies a relationship in which one party has authority over the other or at least has the right to decisively intervene'. One could question as to whether one could speak of 'authority', if the party, which has to obey the authority of the other simply could deny to comply with the rulings or orders of the latter.

⁸ *Prosecutor v. Erdemović*, IT-96-22-T, Sentencing Judgment, Trial Chamber II, 5 March 1998.

justice. Article 103, providing for the rules of enforcement of a sentence of imprisonment, does not envisage those 'collateral crimes'. The Rules of Procedure and Evidence however could contain a provision by virtue of which the enforcement provisions of article 103 are declared to be applicable to the penalty of deprivation of liberty as defined in article 70, under the proviso that this is an applicability *mutatis mutandis*⁹. This has indeed happened, by virtue of Chapter 9, Section I of the Rules of Procedure and Evidence, a specific section has been introduced which deals with the offences against the administration of justice under Article 70¹⁰. From this perspective, Rule 162 paragraph 2 (c), stipulates that the Court, in making a decision whether or not to exercise jurisdiction, may consider '[t]he possible joinder of charges under article 70 with charges under articles 5 to 8'¹¹. Interestingly enough, paragraph 3 of Rule 162 mentions the possibility to 'give favourable consideration to a request from the host State for a waiver of power of the Court to exercise jurisdiction in cases where the host State considers such a waiver to be of particular importance'¹².

II. The primacy¹³

Given that legal background, one could argue that the Court cannot exercise any primacy 7 with a view to the enforcement of its imprisonment sentences. Nevertheless, by glancing through Part X one can easily discover seven features to the contrary, which one has to bear constantly in mind when interpreting article 103.

a) After the acceptance of the responsibility to enforce, the penitentiary part of the ICC 8 sentence shall be binding on the party, which is not competent to modify that part on its own initiative. This principle has been laid down in article 105 para. 1. An example thereof can be found in Article 4 paragraph 1 of the Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court ('Austria Agreement' or 'Agreement'), which stipulates that '[s]ubject to the conditions contained in this Agreement, the sentence of imprisonment shall be **binding** on

⁹ Document PCNICC/1999/WGP/RT.5 (Preparatory Commission for the International Criminal Court, Working Group on Procedure and Evidence, New York, 26 July-13 Aug. 1999, 1 July 1999) contains a special Rule 6.32 with a view to the further elaboration of the imposition of the penalties mentioned in article 70. Nevertheless, this rule does not encompass a reference declaring article 103 applicable *mutatis mutandis*. A special amendment to that end has been presented on 30 July. On the other hand one could argue that Part III of this document seems to be drafted by authors who departed from the assumption that subsidiary Rules, meant to elaborate the Statute, could be drawn up on the basis of a hypothesis contrary to that on which the terminology and structure of the higher ranked instrument, the Statute itself, has been devised. Rule 6.27 as contained in that document seems to depart from the unarticulated assumption that Part X ICC Statute is straightforwardly, as a matter of course, applicable to the collateral crimes as listed under article 70. This Rule 6.27 runs as follows: 'Unless otherwise provided in Rules 6.26 to 6.36, the Statute and Rules shall apply *mutatis mutandis* to the Court's investigation, prosecution and punishment of the offences defined in article 70'. The meaning is unclear. The Statute speaks, with regard to the measures to be taken in connection with the execution as envisaged in Part X of 'enforcement' and not of 'punishment'. The latter noun could refer to the imposition of the penalty, envisaged in article 77. But if this Rule 6.27 is intended to encompass all the regulations laid down in Part X one could question whether one could, by virtue of a subsidiary regulation, come back from a stand clearly underlying a statutory provision of a higher level, which the Statute undoubtedly constitutes in relation to the Rules of Procedure and Evidence. But even when one deems such acceptable, the question remains whether the applicability of Part X on article 70 crimes is recommendable. It is foreseeable that article 70 crimes will occur on a massive scale, given the nature and character of the article 5 crimes to which they are related. For example, the retaliation of witnesses could easily amount to a great number of sentences, given the fact that the nature of a crime as genocide implies that the Prosecutor has to call upon a lot of witnesses. All those collateral sentences would have to be enforced according the Part X scheme which would overburden the penitentiary ICC-facilities.

¹⁰ Rules of Procedure and Evidence, Chapter 9 Offences and misconduct against the Court, Section I Offences against the administration of justice under Article 70, encompasses Rules 162 till 169. These Rules set the procedure and conditions with regard to Article 70 offences.

¹¹ Rule 162, entitled 'Exercise of jurisdiction', of the Rules of Procedure and Evidence.

¹² *Ibidem*, paragraph 3.

¹³ The ICTY Rules of Procedure and Evidence (version IT/32/Rev.13) contain in Part II the title 'Primacy of the Tribunal'.

Austria, which shall in no case modify it'¹⁴. Furthermore, any action that might modify the enforcement in any way, whether positively or negatively, must be communicated to the Court, which will then decide whether or not such modification is acceptable. If the Court decides that such modification does not uphold the object and purpose of the sentence, it may change the designation of the State of Enforcement. A final word on this subject matter is the provision that mentions that **even if** the Enforcement of Sentence Agreement is terminated, that will not 'affect sentences in force at the time of the termination'¹⁵. This seemingly entails that, once a State has accepted to enforce a sentence, the only method to be absolved of the enforcement is if the Presidency decides to change the designation of the State of Enforcement, see Article 104 for more on this subject.

- 9 b) Upon designation to accept enforcement of a sentence of imprisonment, the designated State has to inform the Presidency promptly whether it is willing to accept the sentenced person with a view to measures of detention, paragraph 1 (c). This obligation could be considered as a symptom of subordination of the State to the ICC.
- 10 c) After acceptance, the State Party has to execute the penalty without modification, unless new circumstances appear, which were objectively not existing at the time of the acceptance, albeit that they may have been foreseeable at that time, paragraph 1 (b) to paragraph 2 (a). Those circumstances must be of such a nature that they could materially affect the terms or extent of the imprisonment. Those nova have to be duly notified to the Court. In the Austrian Agreement, this has been codified in Article 6 paragraph 2, which has almost literally copied both paragraphs 2 (a) and (b) in full. An additional Article in the Agreement that expands these principles is Article 16, which stipulates that '[i]f...further enforcement has, for any legal or practical reasons and beyond the control of the competent national authorities, become impossible, Austria shall promptly inform the Presidency'¹⁶.
- 11 d) In the event as described under c, the Court has the competence to decide as to whether it can justify the decision of the administering party that the nova could justify the deductive or commutative penitentiary effect according to the domestic law or legislation of that party. If the Court cannot agree upon that with the administering party, it shall notify accordingly that State. In that case, the Court is entitled to decide to transfer the sentenced person to a third State, to which end the administering party has to provide the Court with due cooperation, paragraph 2 (b) to article 104 para. 1.
- 12 e) Apart from the cases as described under c and d above, the Court is at any time competent to transfer the sentenced person to a third State, in the event of which the administering party is again under the obligation to cooperate to that end, article 104. This principle has been codified in Article 13 of the Austria Agreement, stipulating that the Presidency, acting *proprio motu* or at the request of the sentenced person or the Prosecutor, may, at any time, decide to transfer a sentenced person to a prison of another State¹⁷.
- 13 f) The Court exercises full penitentiary supervision, article 106 para. 1. This principle has been codified in article 5 of the Austria Agreement, which elaborates the non-exhaustive powers of the Presidency in its role as supervisor of enforcement¹⁸.

¹⁴ Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court. ICC-PRES/01/01/05. Date of entry into force: 26 November 2005, <http://www.legal-tools.org/doc/0f5f9e/>. The International Criminal Court has, thus far, signed Agreements on the Enforcement of Sentences with Austria, Belgium, Columbia, Denmark, Finland, Mali, Serbia, and the United Kingdom. At the time of writing, only the Agreement with Columbia has not yet entered into force. For reasons of expediency, only one Enforcement Agreement will be used as an example, although the other Agreements contain similar provisions in their subsequent texts.

¹⁵ See Austria Agreement, note 14, article 22, entitled 'Termination of the Agreement'.

¹⁶ *Ibidem*, article 16, entitled 'Impossibility to enforce sentences'.

¹⁷ *Ibidem*, article 13, entitled 'Change in designation of State of Enforcement', for more on this subject, see the commentary of article 104 of the Rome Statute.

¹⁸ *Ibidem*, article 5, entitled 'Supervision of enforcement', the first sentence states that: '[i]n order to supervise the enforcement of sentences of imprisonment, the Presidency may, *inter alia*'. Due to this construction, it seems that the Presidency has more means to his disposal than those enumerated in this article.

g) Only the Court has the right of commutation of the sentence itself by reduction of the term of imprisonment, article 110 paras. 1 and 5. This view can be found in article 11 of the Austria Agreement, which elaborates on the conditions for appeal, revision and reduction of sentence¹⁹. 14

The final conclusion could be that, with a view to the enforcement, the Court enjoys before statal acceptance of the sentenced person no primacy at all, and after acceptance a moderate or diffuse primacy. 15

III. The authority of the sentence

Given this hybridity of the binding force of the sentence to the States Parties, could one maintain that the sentence has the significant *auctoritas* or authority which normally is the main feature of an irrevocable judicial decision at the national level? First and foremost, one has, with regard to this authoritative aspect, to distinguish between the factual part of the decision on one hand and the penitentiary part of it on the other, the latter containing the exact description of the imposed sanction to be enforced. Without any doubt, the factual part containing the Court's factual findings and identifying the sentenced person, is irrevocably authoritative, binding each State Party, at the very moment that no ordinary means of judicial recourse are available to contest the content and nature of the decision. The penitentiary part of the sentence on the contrary is only authoritative at the moment of the statal acceptance of the obligation to enforce. This authority is not an *auctoritas erga omnes*, but only binds the administering party. 16

IV. Positive and negative recognition

Traditionally, with a view to the legal authoritative force of a sentence handed down by a foreign judiciary (which the ICC has to be considered as, see mn 3), dogmatically one can distinguish between the positive and the negative recognition of the decision by a third State²⁰. Is the same distinction applicable to the sentences as defined in article 103? The positive recognition implies that the State, acting as administering State, mostly at request of the sentencing State, has to recognize the decision as a legal title under its domestic law to exercise the statal monopoly to use legitimate force against the individual. The decision automatically provides the recognizing party with a legal ground for a certain encroachment upon the common human rights enjoyed by the persons residing within the territorial jurisdiction of that State. The negative recognition implies the obligation to consider the decision as blocking the right to exercise that monopoly. Given the wording of article 20, rephrasing the consequences of the traditional *ne bis in idem* maxim to the States Parties, all States Parties are under the obligation to recognize negatively the sentence as defined in article 103 both in its factual and penitentiary aspects, irrespective of whether the penalty has been completely executed as imposed by the administering party. Normally, this negative recognition is only mandatory in international relations in case the penalty has been enforced as prescribed in the penitentiary part of the foreign sentence. The penitentiary obligations resulting from the positive recognition are only incumbent on that State Party which actually has accepted its enforcement obligation in conformity with paragraph 1. The recognitory effects of the ICC sentence as defined in article 103 are thus of a relative nature. 17

¹⁹ *Ibidem*, article 11, entitled 'Appeal, revision and reduction of sentence', for more on this subject, see the commentary of article 110 of the Rome Statute.

²⁰ See Oehler, *Internationales Strafrecht* (1983) 571–603.

V. Willingness decisive

- 18 Only a 'willing party' could be sought to act as a custodian on behalf of the ICC²¹. In this respect paragraph 1 (a) copies the enforcement scheme of article 27 ICTY Statute²². Furthermore, the first chapeau of the Preamble of the Austria Agreement, is written in an almost exact fashion as paragraph 1 (a)²³. This general approach obviously is based on the pragmatic stand that accepting convicted persons raises significant legal and logistical issues for the administering party and will have considerable cost implications. Nevertheless, as has been stated with regard to ICTY, this system, leaving all the imaginable latitude to the States Parties, puts the ICC in a penitentiary predicament²⁴. Article 103 leaves the Court in the position of constantly calling on States to cooperate on enforcement of sentences. It will be necessary for the ICC to make appropriate arrangements with willing States on the basis of special additional enforcement agreements, in which the willing party expresses the conditions to its acceptance. Of course, the Court has to agree upon those conditions, paragraph 1 (b), but whereas the Court will be in a position of relative helplessness, having no penitentiary administration to provide in its own enforcement measures with regard to irrevocable sentences, there will not be much margins within which to reject conditions. Of course, the conditions must be compatible with the object and goal of the Statute itself. They may not substantively affect the nature and modality of the penalty as prescribed in the sentence to be enforced. But the text of article 103 does not provide for criteria which conditions States Parties are entitled to put forward. The corresponding provision in the Rules of Procedure and Evidence, Rule 200, does not mention any specific conditions either, only stipulating that '[t]he Presidency shall not include a State on the list...if it does not agree with the conditions that such a State attaches to its acceptance. The Presidency may request additional information from that State prior to taking a decision'²⁵.

VI. System of enforcement agreements

- 19 The provisions of Part X only address the principles relevant to the enforcement of sentences. The Statute does not address the exact modalities of penitentiary enforcement. ICTY concludes additional enforcement agreements with willing parties based on the guidelines offered by a Model Agreement developed by the UN, establishing the main framework in which the enforcement of sentences could be carried out²⁶. It is likely that the ICC is to follow the same additional system, based on a number of bilateral agreements, which could enhance the flexibility amongst the willing parties and subsequently their preparedness to accept enforcement on a case bound basis. In this sense, it is interesting to note that Austria has enforcement of sentences agreements with both the ICTY and the ICC²⁷. If one were to compare these enforcement agreements, one can easily see that the agreements are very similar,

²¹ See Broomhall, in: Bassiouni (ed.), *ICC Ratification and national implementing legislation* (1999) 45.

²² This article 27 ICTY Statute runs as follows: 'Imprisonment shall be served in a State designated by the International Tribunal from a list of States which have indicated to the Security Council their willingness to accept convicted persons. Such imprisonment shall be in accordance with the applicable law of the State concerned, subject to the supervision of the International Tribunal'.

²³ See Austria Agreement, note 14, 'Recalling Article 103 of the Rome Statute of the International Criminal Court adopted on 17 July 1998 by the United Nations Diplomatic Conference of Plenipotentiaries (hereinafter referred to as 'the Rome Statute'), according to which sentences of imprisonment pronounced by the Court shall be served in a State designated by the Court from a list of States which have indicated their willingness to accept sentenced persons,'.

²⁴ See Tolbert (1998) 11 *LeidenJIL* [655] 658.

²⁵ Rule 200 of the Rules of Procedure and Evidence, entitled 'List of States of enforcement', paragraph 2.

²⁶ See YbICTY 227 (1996) and Tolbert (1998) 11 *LeidenJIL* [655] 664.

²⁷ See Agreement between the United Nations and the Federal Government of Austria on the Enforcement of Sentences of the International Criminal Tribunal for the Former Yugoslavia, signed the 23rd of July 1999.

thereby confirming the fact that the ICC follows a similar approach to that of the ICTY. On the other hand, this approach could lead to unjustifiable territorial dissimilarities with, for example, a view to standard minimum rules on detention, early release, conditional release, suspension of enforcement, parole or penitentiary programmes being integral part of the detention scheme of the administering party. Again, if the ICTY is used as an indicator of States willing and able to enforce sentences, all enforcement of sentences is in Europe, not one sentencee has been transferred to another region of the world. An additional note here is that the ICTY gives particular consideration to the proximity of the proposed State to the convicted person's relatives, which might explain why Europe is the main region thereof. However, thus far, the only two States, outside of Europe, that have signed enforcement of sentences agreements with the ICC, have been Columbia and Mali. The ICTY scheme of enforcement agreements shows a certain divergence thus far with regard to pardon or commutation. The UN Model Agreement builds on the provisions of the ICTY Statute. The Model provides that the Registrar, being the executive authority of the Tribunal, will contact the contemplated administering party requesting it to accept the responsibility for enforcement. The request has to contain the relevant information to acknowledge the party of the consequences of an eventual acceptance. These principles have been incorporated in Article 2 of the Austrian Agreement, which explains the procedural elements that will be taken into account between the State and the Court before designation of an enforcement of sentence. The main difference between the ICC and ICTY procedure is that it is the Presidency of the Court, as opposed to the Registrar of the ICTY, that will process the information and request. Each request will be treated on a case bound basis: the willing party is not bound to agree to any particular request. After the compliance with the request the sentenced person will be transferred to the administering party. The bilateral enforcement agreement may provide for special arrangements with a view to the transfer, the responsibility thereof and the travel costs. The costs associated with the imprisonment itself will be borne by the accepting party. Both the transfer – and the costs thereof – have been codified in articles 3 and 18 of the Austrian Agreement. Article 3 bestows upon the Registrar the duty to make appropriate arrangements for the transfer to the territory of Austria. Whereas paragraph 1 of Article 18 stipulates that the ordinary costs for the enforcement of sentence in Austria shall be borne by Austria, paragraph 2 stipulates that other costs, including transport of the sentenced person to and from the seat of the Court, shall be borne by the Court²⁸. That is also the underlying system of article 103, which only in paragraph 4 provides for a special regulation of those costs in case no willing party is prepared to accept in a concrete case. The ICTY enforcement agreements exclude a subsequent exequatur procedure upon acceptance, given the primacy of ICTY as laid down in its Statute and prompted from its status as UN suborgan. As pointed out above this is not true with regard to the ICC which will have to accept such transformation procedures.

VII. Equitable distribution

In exercising its discretion to make a designation under article 103 the Court shall take into account the principle that States Parties should share the responsibility for enforcing sentences, in accordance with principles of equitable distribution. Those principles have to be elaborated in the Rules of Procedure and Evidence which has been done by virtue of Rule 201²⁹. The terminology with regard to those rules of burden sharing has varied from Preparatory Committee session to Preparatory Committee session. Originally, especially geographical criteria were envisaged³⁰. In Rome it was felt that the Statute itself should not

²⁸ See Austria Agreement, note 14, Article 3 entitled 'Delivery' and Article 18, entitled 'Costs'.

²⁹ Rule 201 of the Rules of Procedure and Evidence, entitled 'Principles of Equitable Distribution'.

³⁰ See 1996 Preparatory Committee II, note 2, p. 291, option C, sub 1: '[States Parties shall enforce the judgement of the Court on designation by the Registrar on [geographical] criteria formulated by Rules of the Court in accordance with the rule of burdensharing. (...)]'. Later on it was felt that the drawing up of those criteria should be with the States Parties and not with the judges.

give substantive criteria governing the method of designation. When developing criteria the following could be taken into consideration.

- 21 a) The wealth of the States Parties, *i.e.* their capacity to pay. As already indicated, the acceptance of enforcement under article 103 will incur considerable cost, which will not be reimbursed by the funds as defined in articles 114 and 115. In this regard the rules on the financing of the ICC by contributions are of some relevance. Article 117 provides that the contributions of States Parties shall be assessed in accordance with an agreed scale of assessment, based on the scale adopted by the UN for its regular budget and adjusted in accordance with the principles on which that scale is based. One has to take into special consideration the role of the permanent members of the Security Council of the UN, whereas part of the ICC jurisdiction will be based on Security Council referrals. In the area of peacekeeping, permanent SC-members pay a larger share than in the regular UN budget. A final comment is that this has not been codified in Rule 201. Although paragraph 4 of said Rule does stipulate principles of equitable distribution shall include '[a]ny other relevant factors', which indirectly might be a confirmation of this principle.
- 22 b) The penitentiary capacity of the States Parties. This is a question of mere logistics, depending on the number of prison facilities, average number of inmates, and the quality of the penitentiary administration. In this regard, annual reports concerning the respective penitentiary systems made up by UN linked organizations or international Human Rights organizations³¹ could offer some guidance. Although this principle has not been incorporated in Rule 201, paragraphs (b) and (c) state that, on the one side, principles of equitable distribution shall include '[t]he need to afford each State on the list an opportunity to receive sentenced persons' while, on the other side, consideration must be given to '[t]he number of sentenced persons already received by that State and other States of enforcement'³².
- 23 c) The geographical location of the States Parties. It is highly recommendable that sentences should not be enforced on the territory of the territorial State, the State where the crimes have been committed. Furthermore, the scheme of designations to be observed by the ICC Registrar and the Presidency should be drawn up in such a way that concentration of enforcement in one geographical area will be avoided. As mentioned in mn 19, the ICTY practice shows that all sentenced persons, thus far, have been sent to penitentiaries within Europe, specifically western Europe and the Scandinavian countries. If this practice is any indicator, a real possibility exists that a somewhat similar distribution will crystallise.

B. Elements and conditions

I. Paragraph 1: Conditions of acceptance

- 24 The willing party may attach conditions to its acceptance in conformity with paragraph 1 (b). After acceptance, the party shall notify the Court whether it is going to exercise any of those conditions. This system of conditional acceptance has been introduced during the 1998 Rome sessions, in order to enhance at the level of acceptance the flexibility of the statutory enforcement scheme. The Statute does not define criteria for those conditions, but the proponents of this conditional acceptance referred to conditions linked with typical prerogatives of the Head of State of the administering party, like the right of pardon, abolition and amnesty. The idea was to devise a system which would be compatible with those prerogatives, thus lowering the threshold to be listed as a potential enforcing party, permitting States Parties to accept enforcement obligations without being obliged thereby to change their respective constitutions with regard to fundamental privileges to set aside the authority

³¹ Think of the European Steering Committee for Human Rights.

³² Rules of Procedure and Evidence, see paragraphs (b) and (c), note 29; paragraph (d) adds '[a]ny other relevant factors' to the equation.

of judicial decisions, privileges, mostly tightly interlinked to a certain balance of power within the administering State. During the 1997 Preparatory Committee sessions proposals had been inserted in the rolling text on the enforcement part, **prohibiting** administering parties to exercise the national rights of pardon or parole, which, in the opinion of the drafters, was felt to be incompatible with the authoritative force of the ICC sentence³³. In Rome, on the contrary, it was felt that this limitation would narrow the potential group of willing parties to such extent that it could undermine the effectiveness of the court considerably. That being so, it is regrettable that the Statute itself does not provide for any guidance with a view to the criteria the authors had in mind, limiting the category of the conditions. As it stands now, parties could formulate conditions of a penitentiary administrative nature, for example, connected with the capacity of a special secured prison facility where the ICC sentenced person is to be placed. A condition could be that, in case that unit is needed for national interests – to transfer seditious inmates from elsewhere, in order to curb tensions within the unit where they used to stay – the administering party is entitled to inform the ICC that it has to transfer its convict to a prison of another State. Paragraph 1 (b) has never been meant to be interpreted that way, but it could turn out to be abused as an overall escape-clause to withdraw via the backdoor from obligations formulated in enforcement agreements.

II. Paragraph 2: Notifications

Paragraph 2 obliges the State of enforcement and the Court to mutual information. They 25 may result in consultations to find an agreement acceptable for both. In the worst case scenario, if Austria would, for whatever reason envisaged by Article 6 paragraph (2) or Article 16 of the negotiated agreement, be unable to fulfil its enforcement obligations, it shall notify the Court thereof. If the Court, by virtue of the Presidency, cannot accept these changes, the procedure in paragraph 2 (b) will be set into motion. For more on this, see the commentary on Article 104 of the Rome Statute.

III. Paragraph 3: The designation

Rule 199 of the Rules of Procedure and Evidence stipulates that unless provided otherwise, 26 the Presidency shall exercise the functions of the Court under Part 10³⁴. Whereas the establishment and maintenance of the list of States of enforcement will be maintained by the Registrar, thereby following a similar approach as the ICTY, it is the Presidency who decides which States will be placed on the list and whether or not conditions of States will be accepted, as mentioned in paragraph 1 (a)³⁵. The method of designation will be governed by the bilateral agreement between the ICC and the envisaged administering party³⁶. Originally, the Statute articulated rather rigid criteria with regard to this designation, preventing the Registrar from designating the territorial State, the State of the active personality or nationality and the State of the passive personality or nationality, *i.e.* the State where the *locus delicti* is situated, the State the nationality of which the convict enjoys, or the State of which the victims were nationals, subjects, ordinary residents or inhabitants. The Zutphen

³³ On the other hand, some delegations kept feeling that the exclusion of that prerogative competence on the Statutory level would constitute an insurmountable obstacle to enter into enforcement negotiations; the option that parties might rely on that kind of commutative rights has been upheld in detail until the Zutphen Draft, referring explicitly, with regard to the acceptance conditions, to those prerogatives. See article 86[59], Option 2, bracketed (b).

³⁴ See Rules of Procedure and Evidence, Chapter 12 Enforcement, Section I Role of States in enforcement of sentences of imprisonment and change in designation of State of Enforcement under articles 103 and 104, Rule 199, entitled 'Organ responsible under Part 10'.

³⁵ See Rule 200 of the Rules of Procedure and Evidence, entitled 'List of States of Enforcement', paragraph 2.

³⁶ *Ibidem*, paragraph 5.

Draft shows a wide variety of those abstract criteria³⁷. It seemed the proponents of these kinds of criteria not recommendable to send convicted persons back to the country they originated from. It would be foreseeable that such persons, being considered by their compatriots or countrymen as national heroes, would be submitted to an enforcement regime having all the features of a *custodia honesta*, thus putting the local victims in a position of utter dismay. On the other hand, during the 1997 Preparatory Committee sessions there was a strong feeling that it should be entirely with the Registrar to decide as to whether a transfer to the State of the active nationality could not be preferable under certain circumstances for reasons of social rehabilitation. The Statute itself should not deprive the Registrar, or the Presidency, of adequate flexibility in this respect, to decide on a case bound basis. In the end, the Preparatory Committee decided to skip any criteria except the condition, that the administering party should be capable of coping with 'the application of widely accepted international treaty standards governing the treatment of prisoners', paragraph 3 (b).

- 27 The emphasis should be laid on the noun 'treaty' in this context. During the 1997 Preparatory Committee sessions many delegations wanted to refer to 'internationally recognized minimum standards', in order to limit the designated discretion of the Registrar to countries actually capable of coping with the UN Standard Minimum Rules for the Treatment of Prisoners³⁸. This was objected to, however, on the grounds that this would set the enforcement threshold so high, that only a very select club of penitentiary paragons would be fit to be designated for forthcoming decades. It was stressed that the UN Minimum Standards were formulated not with a view to be integrated in a multilateral treaty of a penitentiary nature to be implemented and observed by a State majority, but with a view to set standards for the most ideal penitentiary practice a specialist could imagine. In the preamble of the Rules, the founding fathers of the Standard Minimum Rules themselves indicated already the intent to describe ideals not yet ready of realization at short notice, given the social, economic and cultural dissimilarities throughout the world. In Rome it was ultimately decided to rely on standards being part of commonly accepted treaties like the UN Anti-Torture Convention, the ICPHR and the like. However, the wording of the Preamble of the Austria Agreement, 3rd chapeau, seems to create a somewhat open-ended reference to such treaties and conventions, as it is stated that the Court and Austria recall 'the widely accepted international treaty standards governing the treatment of prisoners **including...**'³⁹. The list is seemingly non-exhaustive and it might depend per State which treaties and conventions are, or are not, of importance.
- 28 The Presidency has to take into consideration with a view to the actual designation the view of the sentenced person and his nationality⁴⁰. There is no need to have the consent of that person, let alone that his nationality would be a casting factor. The question remains, for the time being, whether or not the proximity of the proposed State to the convicted person's relatives might play a role, as it has done so at the ICTY.

³⁷ See article 86[59], Option 2, 1*bis*, (a), second bracketed sentence: '[However, no such designation shall be made with respect to the State where or against which the crime was committed or the State of which the convicted person or the victim is a national [, unless the [Court] [Presidency] explicitly decides otherwise for reasons of social rehabilitation]]'.

³⁸ Standard Minimum Rules for the Treatment of Prisoners, adopted by the First United Nations Congress on the Prevention of Crime and the Treatment of Offenders on 30 Aug. 1955 at Geneva, approved by the Economic and Social Council in resolutions 663 (XXIV) on 31 July 1957 and 2076 (LXII) of 13 May 1977; see First United Nations Congress on the Prevention of Crime and the Treatment of Offenders: Report by the Secretariat (United Nations Publication Sales No. 1956 IV.4. annex I.A). To the Rules belong a great number of annexes.

³⁹ See Austria Agreement, note 14, Preamble, 3rd Chapeau.

⁴⁰ Rules 203, entitled 'Views of the Sentenced person' and 204 'Information relating to designation', of the Rules of Procedure and Evidence'. These provisions can also be found in the Austrian Enforcement Agreement, under Article 2, entitled 'Procedure', paragraphs 1 (a) and (d).

IV. Paragraph 4: The position of the host State

If the Registrar fails to find a willing party along the lines as set out in paragraph 3, the host State has to act as residual custodian on behalf of the Court, a price to be paid for having the undeniable privilege of hosting the legal capital of the world as defined in article 3 para. 1⁴¹. The sentence of imprisonment has to be served in a prison facility made available by the host State. In this context it should be noted that the drafters of article 103 para. 4 deliberately used the indefinite article ‘a’ in this sentence (‘a’ prison facility) to indicate clearly that the host State obligations are confined to the availability of the detention facility as defined in the Headquarters Agreement, together with the additional regulation as contained in the Host Arrangement, governing the residual penitentiary obligations of that particular State. It is, however, entirely with the ICC how it wants to use the facilities in this respect. If it deems it to be recommendable to use the detention units for pre-trial detention purposes, it is fully free to do so. The ICTY currently has no detention facilities at its disposal with a view to the enforcement of imprisonment sentences, although in the detention units situated at Scheveningen Prison Complex several irrevocable imprisonment sentences are being or have been executed, with the accompanying detriment to the pre-trial detention capacity. The prison as defined in paragraph 4 will be considered as an extension of the Court’s premises unless the ICC and the host State will contract otherwise. In divergence of the original ILC Draft, in which this residual obligation of the host State has been laid down as from 1994, the current statutory text of article 103 defers the conditions governing the residual penitentiary obligations to the Headquarters Agreement. See the commentary to article 3 para. 3. The costs arising out of this residual permanent obligation shall be borne by the Court. The current ICTY practice shows, that the concrete factors determining the costs will be governed not by the Headquarters Agreement itself, defining only the penitentiary premises set at the Tribunal’s disposal, but by the additional services-contracts regulating the services to be provided for by private personnel (think of psychiatrists, religious ministers, electricians, contractors, catering providers, maintenance personnel) and civil servants (mostly gratis officers) who will be given on loan upon request of the Tribunal on a case bound basis.

C. Special remarks

The new final Seat Agreement, considered in particular *infra* under article 3 para. C.III.2, mn 51 dealing with enforcement obligations incumbent on the host State by virtue of its article 49. However, this article 49 Seat Agreement does not add anything substantial to the Statute and, therefore, is superfluous.

An additional article in the Headquarters Agreement is article 50, which deals with short-term detention arrangements. Paragraph 2 explains two different scenarios in this regard, that relate to a change in designation of the State of enforcement. The first relates to the need for a change in designation to another State of enforcement, and where the period pending transfer to another State of enforcement does not exceed six months; in this case, the Court and the host State shall consult as to whether the sentenced person may be transferred to a prison facility made available by the host State under paragraph 4; thereby creating a certain leeway for the host State as to whether or not to accept and facilitate the sentenced person. The second scenario relates to a period exceeding six months; if this were the case, the

⁴¹ See the commentary to this article.

sentenced person **shall** be transferred to a prison facility made available by the host State under paragraph 4, upon a request by the Court⁴².

A final remark pertains to the Agreement between the ICC and the International Committee of the Red Cross ('ICRC')⁴³. By virtue of article 14 of this Agreement, entitled 'Obligations upon the ICC', it is stated that 'the ICC shall, to the extent possible, include in the agreements with States of Enforcement the possibility of visits by the ICRC according to its standard conditions and procedures'⁴⁴. Interestingly enough, two signatories have **not** included a provision in their negotiated Agreement, namely, Austria and the United Kingdom.

The Austria Agreement, by virtue of article 7, allows 'the inspection of the conditions of imprisonment and treatment of the sentenced person(s) by the Court, or an entity designated by it...the frequency of visits to be determined by the Court'⁴⁵; the Agreement with the United Kingdom stipulates that '[t]he competent national authorities of the United Kingdom shall allow the inspection of the conditions of imprisonment and treatment of the sentenced person(s)...by the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment (hereinafter 'the CPT' at any time and on a periodic basis, the frequency of visits to be determined by the CPT'⁴⁶.

It seems that the provision incorporated in the Austria Agreement entitles the Court to decide which entity may visit, and the frequency of visits thereof, thereby creating a certain executive decision-making power for the Court. This might be explained due to the fact that the Agreement was signed and entered into force before the ICC – ICRC Agreement entered into force. However, the United Kingdom Agreement, entered into force after the ICC – ICRC Agreement, has not opted for the same or a similar provision allowing the ICRC, instead of the CPT to visit; why is not known.

⁴² See Headquarters Agreement between the International Criminal Court and the Host State, ICC-BD/04-01-08, <http://www.legal-tools.org/doc/45e340/>, Article 50, entitled 'Short-term detention arrangements'. For a further analysis of the Headquarters Agreement see the Commentary on Article 3 of the Rome Statute.

⁴³ Agreement between the International Criminal Court and the International Committee of the Red Cross on Visits to Persons deprived of Liberty Pursuant to the Jurisdiction of the International Criminal Court, ICC-PRES/02-01-06. Dates of Signature: 29th March 2006 and 13th April. Date of entry into force: 13th April 2006, Publication of the Official Journal.

⁴⁴ ICRC Agreement, see note 43, Article 14, paragraph 1, entitled 'Obligations upon the ICC'.

⁴⁵ Austria Agreement, see note 14, Article 7, entitled 'Inspection, paragraph 1.

⁴⁶ Agreement between the Government of the United Kingdom of Great Britain and Northern Ireland and the International Criminal Court on the enforcement of sentences imposed by the International Criminal Court, ICC-PRES/04-01-07. Date of Entry into Force: 8 December 2007, Official Journal Publication, <http://www.legal-tools.org/doc/d70d91/>.

Article 6 of this Agreement, entitled 'Inspection'.

Article 104

Change in designation of State of enforcement

1. The Court may, at any time, decide to transfer a sentenced person to a prison of another State.
2. A sentenced person may, at any time, apply to the Court to be transferred from the State of enforcement.

General remarks

After what has been said with a view to the gist and purview of article 103, this article hardly needs further comment or explanation. For several reasons the Court can deem it opportune to transfer the sentenced person during the term of enforcement to another State. The latter can be a State Party, but this need not necessarily be the case. In case where the ICC decided to transfer to a third party, this would necessitate the conclusion of an additional enforcement agreement, the conditions of which under no circumstances may aggravate the penitentiary position of the sentenced person. This implies that the third party must be capable of answering to the conditions as set out in article 103 para. 3 which will apply *mutatis mutandis*.

The Statute originally did not provide for criteria with regard to this transfer decision. However, according to the negotiated agreements on the enforcement of sentences signed thus far, the main authority to decide on a change in designation will be the Presidency, whereas the Registry will maintain the executive authority of implementing said decision. One of the main reasons to decide for interim transfer will be the notification by the administering party that that State is going to exercise the conditions as set out in article 103 para. 1, materially affecting the terms or extent of the imprisonment. The administering party will be under the obligation to cooperate with a view to the transit of the convict. The State to which the sentenced person is to be brought has to accept the primacy as set out in mn 7 *et seq.* of the commentary to article 103. The convict has the right to ask for the application of the competence laid down in paragraph 1 of this article. This would be true without any specific regulation thereof. The sentenced person may do so 'any time', which implies that he may do so repeatedly. The authority to be addressed will be the Presidency.

A variety of articles are dedicated to the change in designation of State of enforcement in the Enforcement of Sentences Agreements that have been codified and entered into force thus far¹. The main Article in the Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court (hereinafter the 'Austria Agreement' or 'Agreement') is article 13. This Article is almost a literal copy of article 104 and consists of three paragraphs. Paragraph 1 stipulates that either '[t]he Presidency, acting on its own motion or at the request of the sentenced person or the Prosecutor, may, at any time, decide to transfer a sentenced person to a prison of another State'²; if this is the case, the Presidency shall notify the sentenced person, the Prosecutor, the Registrar and Austria. Paragraph 3 of said article stipulates that

¹ The International Criminal Court has, thus far, concluded enforcement of sentences agreements with Austria, Belgium, Columbia, Denmark, Finland, Mali, Serbia, and the United Kingdom. At the time of writing, the agreement with Columbia and Mali have not yet entered into force.

For reasons of expediency, only one Enforcement Agreement will be used as an example, even though the other agreements will have a similar provision in their subsequent texts.

² Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court, ICC-PRES/01/01/05, Date of Entry into force: 26 November 2005, <http://www.legal-tools.org/doc/0f5f9e/>. Article 13, entitled 'Change in designation of State of enforcement', paragraph 1.

'[i]f the Presidency decides not to change Austria as State of enforcement, it shall notify the sentenced person, the Prosecutor, the Registrar and Austria'³ Finally, paragraph 2 is an exact copy of article 104 paragraph 2 specifying that '[a] sentenced person shall be entitled, at any time, to apply to the Presidency to be transferred from Austria'⁴. This paragraph can be read in close conjunction with article 8 of the Austria Agreement, requiring that '[c]ommunications between a sentenced person and the Court shall be unimpeded and confidential'⁵, seemingly allowing him (or her) to apply at any time, as mentioned in mn 2.

Besides this main Article, there are several provisions that mention the possibility for a change in designation of State of enforcement. Two examples shall be given at this point.

First of all, article 6 paragraph 2 in conjunction with article 16 paragraphs 1 and 2. Article 6 stipulates in paragraph 2 that 'Austria shall notify the Presidency of any circumstances...which could materially affect the terms or extent of the imprisonment. The Presidency shall be given at least 45 days' notice of any such known or foreseeable circumstances. During this period, Austria shall take no action that might prejudice its obligations. Where the Presidency can not agree to the aforementioned circumstances, it shall inform Austria and transfer the sentenced person to a prison of another State'⁶. A somewhat similar wording has been included in article 16. Paragraph 1 of said article stipulates that '[i]f...further enforcement has...become impossible, Austria shall promptly inform the Presidency'⁷, followed by the second paragraph in which '[t]he Court shall make appropriate arrangements for the transfer of the sentenced person'⁸. These provisions can be said to have been included for the sole reason that '[s]ubject to the conditions contained in this Agreement, the sentence of imprisonment shall be binding on Austria, which shall in no case modify it'⁹. As the International Criminal Court, embodied by the Presidency, is the only entity that can change or modify a sentence, a derogation thereof, due to for example national laws and legislations, by a State that has accepted a convict, will set in motion the [possible] transfer to another State that would be willing to enforce the sentence as pronounced and envisaged by the ICC.

A second provision in the Austrian Agreement that mentions a possible change in designation of the State of enforcement is article 12. There is always a possibility that a convict escapes. If that were to happen, article 12 paragraph 4, explains the procedure that is set in motion once the convict has been apprehended and surrendered to the Court. Paragraph 4 states that '[i]f the sentenced person is surrendered to the Court, then the Court shall transfer him or her to Austria. Nevertheless, the Presidency may, acting on its own motion or at the request of the Prosecutor or Austria, designate another State, including the State to the territory of which the sentenced person has fled'¹⁰. For a further explanation of the Escape provisions, see the Commentary on article 111 of the Rome Statute.

Finally, there are two articles in the Austrian Agreement that absolve Austria of its obligations to enforce the sentence for a particular convict, namely articles 14 and 22 of the Agreement. The first is article 14. Paragraph 1 subparagraph (c) of said article stipulates that the enforcement of the sentence shall cease 'following a decision of the Court to transfer the sentenced person to another State in accordance with the Rome Statute and the Rules'¹¹, thereby absolving Austria of its obligations with regard to the convict. The corresponding Rules of Procedure and Evidence that should be taken into account are rules 209 and 210

³ See Austria Agreement, note 2, Article 13 paragraph 3.

⁴ *Ibidem*, Article 13 paragraph 2.

⁵ *Ibidem*, Article 8, entitled 'Communication'.

⁶ *Ibidem*, article 6, entitled 'Conditions of Imprisonment', paragraph 2.

⁷ *Ibidem*, article 16, entitled 'Impossibility to enforce sentences', paragraph 1.

⁸ *Ibidem*, article 16, paragraph 2.

⁹ *Ibidem*, article 4, entitled 'Enforcement', paragraph 1.

¹⁰ *Ibidem*, Article 12, entitled 'Escape'.

¹¹ *Ibidem*, Article 14, entitled 'Termination of Enforcement', paragraph 1 subparagraph (c).

read in conjunction with Rule 203, sub-rule 3¹². The final Article that points out a change in designation is Article 22 of the Austria Agreement. This article considers that '[u]pon consultation, either party may terminate this Agreement...and the provisions of this Agreement shall continue to apply until...if applicable, the sentenced person has been transferred in accordance with article 13 of this Agreement'¹³.

¹² Rule 209, entitled 'Change in designation of State of Enforcement' and Rule 210, entitled 'Procedure for change in the designation of a State of enforcement' of the Rules of Procedure and Evidence, set the ground procedural rules. From this perspective, Rule 203, entitled 'Views of the sentenced person', explains the procedures in place for the sentenced person.

¹³ See Austria Agreement, note 2, Article 22, entitled 'Termination of the Agreement'.

Article 105

Enforcement of the sentence

1. Subject to conditions which a State may have specified in accordance with article 103, paragraph 1 (b), the sentence of imprisonment shall be binding on the States Parties, which shall in no case modify it.

2. The Court alone shall have the right to decide any application for appeal and revision. The State of enforcement shall not impede the making of any such application by a sentenced person.

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A. Introduction/General remarks

1 The legislative history and the academic commentary on this article are not especially illuminating in taking the discussion much beyond the literal language. The article is derived by analogy from comparable provisions in prisoner exchange treaties¹. Such provisions make it clear (a) that the sentence carried out in the State of transfer should be substantially that imposed in the place where the trial took place, and (b) that any attack on the underlying conviction or the sentence imposed following it must be made at the place of trial². Here, of course, the conviction and sentence are the product of the ICC and it is crucial that, as an international body, its rulings not be subverted by the State of enforcement. As the language proceeded through the drafting process, the echoes of standard provisions in prisoner transfer treaties became fewer and the *sui generis* nature of the ICC became more pronounced. For example, the ILC Draft had provisions on pardon, parole and commutation obviously derived from such sources³. In the draft that was forwarded from the Preparatory Committee to Rome, there was still a (bracketed) provision in what became article 105 to the effect that a State of imprisonment might make its consent to act dependent upon the 'applicability' of its laws relating to pardon, conditional release and commutation of sentence⁴. These references disappeared in Rome, where the very idea of pardon, commuta-

¹ See, e.g., UN Model Agreement on the Transfer of Foreign Prisoners, Seventh UN Congress on the Prevention of Crime and the Treatment of Offenders, Milan, 26 Aug.-6 Sep. 1985, Report Prepared by the Secretariat, UN Doc. A/CONF.121/22/Rev.1 (1986), at p. 53. The Model Agreement is discussed in Clark, *The UN Crime Prevention and Criminal Justice Program: Formulation of Standards and Efforts at Their Implementation* (1994) 205-10. What was then the Crime Prevention and Criminal Justice Division of the UN in Vienna (now UNODC, the United Nations Office on Drugs and Crime) made available to the Preparatory Committee a very useful collection of model treaties and other instruments of relevance to the drafting.

² For the rationale behind such provisions in bilateral exchange treaties, see *Rosado v. Civiletti*, 621 F.2d 1179 (2nd Cir.1980), cert. denied, 449 U.S. 856 (1980) (considering Mexico-U.S. treaty).

³ Article 60 of 1994 ILC Draft Statute.

⁴ Preparatory Committee (Consolidated) Draft, article 94, Option 2, para. (b) (bracketed text).

tion and conditional release was also expunged. Effectively, all that remains of them is the language of article 110 on ‘Review by the Court concerning reduction of sentence’⁵ which uses none of the concepts just mentioned.

B. Analysis and interpretation of elements

I. Paragraph 1

1. ‘Subject to conditions which a State may have specified in accordance with article 103’

Some remarks have been made in the commentary on article 103 concerning the kinds of conditions that States may wish to impose in agreements with the Court⁶. One suspects that the most likely issues to arise in the present context are conditions concerning length of imprisonment in the case of States that have general constitutional or philosophical objections to life imprisonment. Since the Court is one of the parties to such agreements, it is unlikely that any fundamental assault on the general principle that what the Court says is obligatory will find its way into them.

2. ‘The sentence of imprisonment shall be binding on States Parties, which shall in no case modify it’

This is the key statement of the essential position that the State where the sentence is carried out must have its legislative and administrative house in order so that it can carry out the sentence as ordered (or modified) by the ICC. It will be noticed that, in accordance with its own terms and standard treaty law, the sentence is binding on ‘States Parties’. As we read the reference to ‘States’ in article 103 and to ‘a State’ in the first clause of paragraph 1 of the present article, it is possible that a non-State Party may, in exceptional circumstances, be designated as the State of imprisonment. In such a case, we would expect this to be done by means of a treaty between the State and the ICC and that this instrument would contain among its terms a stipulation to the same effect as paragraph 1.

II. Paragraph 2

1. ‘The Court alone shall have the right to decide any application for appeal or revision’

It will not be possible to litigate issues surrounding the original conviction, or the nature of the sentence itself in the courts of the State of enforcement.

2. ‘The State of enforcement shall not impede the making of any such application by a sentenced person’

The sentence will be that of the ICC and, as a matter of the fundamental rights of the convicted person, he or she is entitled to access to the Court and to the necessary legal representation to make that possible. While this sentence is negatively worded (‘shall not impede’) we see the obligation as functionally a positive one; the obligation on the State of enforcement is to facilitate generally any communications and applications made by the prisoner to the Court.

⁵ See Strijards/Harmsen, *article 110*.

⁶ Strijards/Harmsen, *article 103*, mn 24. None of the handful of Agreements reached between Member States and the Court at the time of writing late in 2014 (texts in the Court’s Official Journal) appears to contain any unusual conditions.

Article 106

Supervision of enforcement of sentences and conditions of imprisonment

1. The enforcement of a sentence of imprisonment shall be subject to the supervision of the Court and shall be consistent with widely accepted international treaty standards governing treatment of prisoners.

2. The conditions of imprisonment shall be governed by the law of the State of enforcement and shall be consistent with widely accepted international treaty standards governing treatment of prisoners; in no case shall such conditions be more or less favourable than those available to prisoners convicted of similar offences in the State of enforcement.

3. Communications between a sentenced person and the Court shall be unimpeded and confidential.

Literature: Clark, R.S. *The United Nations Crime Prevention and Criminal Justice Program: Formulation of Standards and Efforts at their Implementation* (University of Pennsylvania Press 1994).

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A. Introduction/General remarks

- 1 That the supervision of sentences should be under the auspices of the Court itself was a given, right from the time of the ILC Draft¹. It was equally understood from the time of the *Ad Hoc* Committee that prison conditions would need to comply with international standards².
- 2 The only serious question in the negotiations was how to state the second of these propositions. In its Report on its 1996 meetings, the Preparatory Committee³ made specific reference to the need to comply with the Standard Minimum Rules for the Treatment of Prisoners. The Draft Statute forwarded to Rome made several references to 'internationally recognized standards'. Instruments like the Standard Minimum Rules for the Treatment of Prisoners, plainly included in such language⁴, are not treaties, although they are widely

¹ 1994 ILC Draft Statute, article 59.

² *Ad Hoc* Committee Report, para. 241 ('terms and conditions of imprisonment should be in accordance with international standards').

³ 1996 Preparatory Committee Report, para. 357.

⁴ Article 96 paras. 1 and 2, Option 1 ('internationally recognized standards') and para. 2, Option 2 ('internationally recognized minimum standards'). Preparatory Committee Draft.

regarded as reflective of customary law⁵. Our impression was that a number of delegations at Rome shared a general philosophical antipathy to international customary law. In any event, the reference to international standards was modified in Rome by the word ‘treaty’ so that it is international treaty standards that apply. At the very least, treaty standards must include the principles contained in such treaties as the 1984 Torture Convention⁶ and its regional counterparts. Our view, however, is that the essence of the Standard Minimum Rules and similar instruments⁷ is effectively assimilated to general treaty provisions such as the Covenant on Civil and Political Rights. We note, for example, the way in which the Human Rights Committee routinely uses such material in its examination of State reports under the Covenant, utilizing them as ways in which to give concrete content to the generalities of the Covenant language⁸.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Sentence subject to the supervision of the Court

The first part of the paragraph asserts the primacy of the Court and that it is the body to make any important decisions of principle that have to be made in execution of the sentence. 3

2. Sentence to be ‘consistent with widely accepted international treaty standards governing treatment of prisoners’

Read along with paragraph 2, which seems to relate more to the day-to-day execution of the sentence, this language in paragraph 1 must be referring to conditions that might be laid down in the initial judgment of the Court. To take an extreme example, a sentence from the Court to hard labour wearing a ball and chain would simply not pass muster under such standards as article 7 of the ICCPR. The concept of ‘treaty standards’ has already been discussed in the Introduction of this note. 4

II. Paragraph 2

1. Conditions of imprisonment ‘governed by the law of the State of enforcement and shall be consistent with widely accepted international treaty standards governing treatment of prisoners’

The first part of this sentence is in part a nod of deference to national law of the State of enforcement, in part an acknowledgment that a State of enforcement must domesticate its commitment to the Court by making appropriate legislative provisions to fulfil its treaty obligations to the Court. The second part of the sentence is another reference to the 5

⁵ See Clark, *The United Nations Crime Prevention and Criminal Justice Program: Formulation of Standards and Efforts at their Implementation* (1994) 141 et. seq.

⁶ Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, GA Res. 39/46, UN GAOR, 39th Sess., Supp. No. 51, UN Doc. A/39/51 (1985), p. 197.

⁷ See, generally, *Compendium of United Nations Standards and Norms in Crime Prevention and Criminal Justice*, U.N. Sales. No.: E.92.IV.1 (1992). In addition to the Standard Minimum Rules for the Treatment of Prisoners, the enforcement agreements between States and the ICTY and ICTR include references to the UN Basic Rules for the Treatment of Prisoners, GA Res. 45/111 (1990) and the UN Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, GA Res. 43/173 (1988). On the ICTY/ICTR practice, see Kress and Sluiter, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: a commentary* (2002) 1757, 1779–80. On the history of the ICC negotiations, see *ibid.* at 1798–99. On the negotiations on the Statute, see also Strijards, article 103.

⁸ Clark, *The United Nations Crime Prevention and Criminal Justice Program: Formulation of Standards and Efforts at their Implementation* (1994), 273.

international treaty standards which were discussed in the Introduction to this note. Paragraph 2 is emphasizing what happens day to day in the State of enforcement rather than what may be specifically contained in any decree of the Court in an individual case, but obviously there is some overlap between the two paragraphs.

2. '[I]n no case shall conditions be more or less favourable than those available to prisoners convicted of similar offences in the State of enforcement'

- 6 This non-discrimination clause cuts both ways: conditions may be neither more nor less favourable. The clause is probably best viewed as yet another manifestation of the principle of complementarity. The first line of defence against crimes within the jurisdiction of the Court is national prosecution and those prosecuted either nationally or internationally should be in essentially the same situation. We realize, of course, that in respect of capital punishment, that is not the case. Those prosecuted nationally may well be subject to capital punishment in cases on all fours with those prosecuted before the ICC where that punishment is not available. Nevertheless, where imprisonment is concerned, the effort is at standardization of treatment. We suspect that in some cases, the levelling out that takes place will encourage an improvement of national standards as enforcement States are driven to give more attention to international standards.

III. Paragraph 3: 'Communications between a sentenced person and the Court shall be unimpeded and confidential'

- 7 Paragraph 3 is a procedural restatement of the point made in the opening words of paragraph 1: the Court is in charge of supervising the terms of incarceration. As in the similar case of article 105 para. 2⁹, the requirement that communications be 'unimpeded' perhaps understates the strength of the State of enforcement's obligation to facilitate communication between prisoner and the Court, a theme that is taken up in the Rules.

C. Special remarks

- 8 Two of the Rules of Procedure and Evidence, rules 211 and 212, relate specifically to article 106. Rule 211 spells out in a little more detail than the Statute some of the implications of supervision of sentences by the Court. The rule emphasizes the right of the sentenced person to communicate confidentially with the Court. At the same time, it insists that there be transparency in transmitting everyone's position (and useful information) to everyone else. Rule 212 adds an obligation on an enforcement State which is about to release the sentenced person. It is conceivable that, with release, will come access to funds that may be available for enforcement purposes. Thus the disposition of the person should be made known to the Court.

Rule 200 (5) provides that the Court may enter into bilateral arrangements with States with a view to establishing a framework for the acceptance of prisoners sentenced by the Court. Such arrangements must be consistent with the Statute. It is worthwhile noting that in the first bilateral agreement, between Austria and the Court, concluded late in 2005, the nature of the applicable standards governing the treatment of prisoners discussed in the Introduction to this entry is finessed nicely in the following preambular paragraph:

'RECALLING the widely accepted international treaty standards governing the treatment of prisoners including the Standard Minimum Rules for the Treatment of Prisoners approved by ECOSOC resolutions 663 C (XXIV) of 31 July 1957 and 2067 (LXII) of 13 May 1977, the Body of Principles for the Protection of all Persons under any Form of Detention or Imprisonment adopted by General Assembly resolution 43/173 of 9 December 1988, and the Basic Principles for the Treatment of Prisoners adopted by General Assembly resolution 45/111 of 14 December 1990'.

⁹ Clark, *article 105*, mn 5.

Similar language appears in later Agreements done between 2006 and 2012 with Belgium, Finland, Serbia, Mali and Denmark, while an Agreement with the United Kingdom refers specifically only to obligations under the 1950 European Convention for the Protection of Human Rights and Fundamental Freedoms.¹⁰

¹⁰ See the Court's Official Journal for the texts of these Agreements.

Article 107

Transfer of the person upon completion of sentence

1. Following completion of the sentence, a person who is not a national of the State of enforcement may, in accordance with the law of the State of enforcement, be transferred to a State which is obliged to receive him or her, or to another State which agrees to receive him or her, taking into account any wishes of the person to be transferred to that State, unless the State of enforcement authorizes the person to remain in its territory.

2. If no State bears the costs arising out of transferring the person to another State pursuant to paragraph 1, such costs shall be borne by the Court.

3. Subject to the provisions of article 108, the State of enforcement may also, in accordance with its national law, extradite or otherwise surrender the person to a State which has requested the extradition or surrender of the person for purposes of trial or enforcement of a sentence.

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A. Introduction/General remarks

- 1 Provisions along these lines, dealing with what to do with a sentenced person after completion of the sentence, were first introduced during the Preparatory Committee's 1996 meetings¹. The article has to be read along with article 108², which contains a modified version of the principle of specialty found in bilateral extradition treaties precluding trial for offences other than those for which the extradition took place.

Normally one would expect the now released person to be returned to his or her State of nationality. It is possible, but not highly probable, that the sentencing State and the State of nationality will be the same, so that no transfer will be necessary. Note in this respect that the article's transfer provisions deal with 'a person who is not a national of the State of enforcement'³.

¹ 1996 Preparatory Committee II, p. 293.

² See Schabas, *article 108*.

³ See also *article 103* which does not preclude on its face the designation of the State of nationality as the sentencing State, as did some of the earlier drafts.

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'in accordance with the law of the State of enforcement'

We do not read these words as in any way limiting the general obligation to send the released non-national somewhere else. The international obligation is not subordinated to domestic law. What the words mean here, as in similar provisions in other articles, is that the State of enforcement must have appropriate domestic cooperation legislation to deal with the details.

2. 'be transferred to a State which is obliged to receive him or her, or to another State which agrees to receive him or her'

Normally, the State of nationality will be obliged to receive the person in accordance with the fundamental right to return to one's own country. It may well be the case that, in the kind of national upheavals that are likely to give rise to events within the jurisdiction of the Court, those convicted of the crimes in question will have become effectively stateless, thus not having a place to return. There may in such instances be successor, or other, States who for political or humanitarian reasons are prepared to act. A factor that the parties will have to consider is the maximal way in which to seek the rehabilitation and social reintegration of the offender.

3. 'taking into account any wishes of the person to be transferred to that State'

It is not clear what the antecedent is of the words 'to that State'. It may be that the wishes of the person are to be sought both in the case where the issue is return to a State which is obliged to receive him or her and also in the case where there is some other willing, but not obligated, State. On the other hand, it could be that it is only where a willing 'volunteer' State is in question that the wishes are to be canvassed. Grammatically, the language refers only to the latter case, so that a person may be returned to the State of nationality without any effort to consider that person's wishes. Our impression of the understanding of the drafters was that the wishes should be 'taken into account' in all cases. That does not, as we shall see, mean that those wishes will always triumph.

'Taking into account' does not, as we understand it, mean that the firmly expressed views of the sentenced person will always prevail. They do, however, demand the strongest attention. Given that the sentenced person has now paid for the crime through completing a period of incarceration, there must be a strong presumption in favour of giving effect to that person's wishes. One can imagine situations in a State of nationality where it would be completely unconscionable to return a released person who, for example, stands a real risk of torture or death upon return.

4. 'unless the State of enforcement authorizes the person to remain in its territory'

One possibility that States agreeing to take such prisoners must contemplate is that they might, in the fullness of time, become what amounts to a state of asylum for former criminals. There must be cases where one who has completed a lengthy prison sentence in the State of enforcement will be most comfortably rehabilitated and reintegrated in that environment. On the other hand, it will be noted that the Statute does not obligate the State of enforcement to keep people of whom it would prefer to see the last, at least in those normal situations where someone else can be required to take them, even if the released prisoner might prefer not to go there.

II. Paragraph 2: ‘If no State bears the costs [of transfer] such costs shall be borne by the Court’

- 6 The hope is that the State of nationality will be so happy to receive its criminal back, or the State of enforcement so delighted to be rid of him or her, that they will cheerfully pay the freight. Otherwise the Court pays. We suspect that this paragraph was included out of an abundance of caution by analogy with provisions in Prisoner Transfer treaties that typically make an allocation of costs between the two parties involved in an exchange.

III. Paragraph 3

1. ‘Subject to the provisions of article 108’

- 7 Article 108⁴ generally prohibits prosecution, punishment or extradition to a third State for any conduct engaged in prior to that person’s delivery to the State of enforcement. Only if the Court approves of such action at the request of the State of enforcement is it possible.

2. ‘the State of enforcement may ... in accordance with its national law’

- 8 Again, as in the case of paragraph 1, the reference to national law is not to something which trumps international obligations. The words mean that the State of enforcement must have its legislative house in order.

3. ‘extradite or otherwise surrender ... to a State which has requested the extradition or surrender of the person for purposes of trial or enforcement of a sentence’

- 9 This paragraph will come into play when the State of enforcement’s bilateral extradition relationships give rise to the possibility of rendition. In many cases there will be bilateral or even multilateral extradition treaties in play; in others there will be mutual legislative provisions, including those giving effect to multilateral non-treaty arrangements such as the Commonwealth Extradition Scheme⁵. These relationships and the relationship with the ICC created under the Rome Statute will sometimes threaten to come into conflict. The intention of this paragraph is that the obligations under the Statute will prevail, and that the Court will have a broad discretionary power that enables it to be the arbiter responsible for doing substantial justice in individual cases.

C. Special remarks, relevant rule

- 10 As noted in the Introduction, a person who has completed a sentence may, in some circumstances, be subject to extradition or surrender to another State. These circumstances are covered by Article 108 of the Rome Statute. They, and the relevant Rules, Rules 214 and 215 to which Rule 213, which refers to article 107, paragraph 3, is merely a cross-reference, are discussed in the analysis of that Article.

⁴ See *infra*.

⁵ See Commonwealth Secretariat, *London Scheme for Extradition Within The Commonwealth* (as amended in 2002).

Article 108
Limitation on the prosecution or punishment of other offences

1. A sentenced person in the custody of the State of enforcement shall not be subject to prosecution or punishment or to extradition to a third State for any conduct engaged in prior to that person's delivery to the State of enforcement, unless such prosecution, punishment or extradition has been approved by the Court at the request of the State of enforcement.

2. The Court shall decide the matter after having heard the views of the sentenced person.

3. Paragraph 1 shall cease to apply if the sentenced person remains voluntarily for more than 30 days in the territory of the State of enforcement after having served the full sentence imposed by the Court, or returns to the territory of that State after having left it.

Literature: Kreß, C. and Sluiter, G., 'Imprisonment', in: A. Cassese, P. Gaeta and J. R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1809; Prost, K., 'Enforcement', in: R. S. Lee et al. (eds.), *The International Criminal Court, Elements Of Crimes and Rules of Procedure and Evidence* (2001) 673.

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A. Introduction/General remarks

This provision is a particular formulation of the rule of specialty that is dictated by the unique circumstances of international criminal prosecution. In bilateral relations between States, the rule of specialty operates to prevent the receiving State from prosecuting an offender for an offence other than the one for which extradition was sought. A norm derived from customary international law, it is codified in virtually all extradition treaties. The rule of specialty does not necessarily create an individual right susceptible of being invoked by the person who has been extradited. Rather, it establishes the right of the extraditing State to require that prosecution and punishment be confined strictly to the substance of the extradition request. However, article 108 of the *Rome Statute* is formulated as an individual right that protects a person whose sentence is being or has been served from prosecution within the enforcement State or extradition to a third State.

Although the situation envisaged by article 108 can also arise within the context of prosecutions before the *ad hoc* Tribunals for the Former Yugoslavia and Rwanda, there is no comparable provision in the Statutes of those institutions and it appears that the matter did not occur to the judges when they drafted the Rules of Procedure and Evidence¹. Article 108 of

¹ Difficulties in this respect arose sooner than might have been expected when the Prosecutor of the Rwanda Tribunal announced that she would not proceed with charges against Bernard Ntuyahaga, who was accused of involvement in the assassination of Prime Minister Agathe Uwilingiyimana and of several Belgian paratroopers in the early days of the Rwandan genocide. The Prosecutor asked the Tribunal to order that Ntuyahaga be transferred to the custody of Belgium, and the government of Belgium intervened in proceedings to support the request. The Tribunal concluded that it had no such power, and that from the moment it accepted the Prosecutor's motion to withdraw charges it was *functus officio*. *Prosecutor v. Ntuyahaga*, ICTR-90-40-T, Decision on the Prosecutor's Motion to Withdraw the Indictment, 18 Mar. 1999. Although the situation is not strictly comparable to the problem contemplated by article 108, it demonstrates the type of difficulty that may arise downstream, so to speak, when the Tribunal's role ceases and when national justice systems attempt to reassert

the *Rome Statute* is completed by rules 214 and 215 of the Rules of Procedure and Evidence². Rule 214 requires that when the State of enforcement wishes to prosecute or enforce a sentence against a sentenced person for any conduct engaged in prior to that person's transfer, it shall notify its intention to the Presidency and transmit to it a statement of the facts of the case and their legal characterization, a copy of any applicable legal provisions, including those concerning the statute of limitation and applicable penalties, a copy of any sentence, warrant of arrest or similar document, or of any other legal writ which the State intends to enforce, and a protocol containing views of the sentenced person obtained after the person has been informed sufficiently about the proceedings. In the event of a request for extradition made by another State, the State of enforcement shall transmit the entire request to the Presidency with a protocol containing the views of the sentenced person obtained after informing the person sufficiently about the extradition request. The Presidency may in all cases request any document or additional information from the State of enforcement or the State requesting extradition. If the person is surrendered to the Court by a State other than the State of enforcement or the State seeking extradition, the Presidency shall consult with the State that surrendered the person and take into account any views expressed by that State. Any information or documents transmitted to the Presidency in accordance with rule 214 shall be transmitted to the Prosecutor, who may comment. The Presidency may decide to conduct a hearing.

Under rule 215, a determination by the Presidency on a request to prosecute or enforce a sentence shall be made 'as soon as possible', and shall be notified to all parties who participated in the proceedings. If the request concerns enforcement of a sentence, the sentenced person may serve that sentence in the State designated by the Court to enforce the sentence pronounced by it or be extradited to a third State only after having served the full sentence pronounced by the Court, subject to the provisions of article 110. The Presidency may authorize the temporary extradition of the sentenced person to a third State for prosecution only if it has obtained assurances which it deems to be sufficient that the sentenced person will be kept in custody in the third State and transferred back to the State responsible for enforcement of the sentence pronounced by the Court, after the prosecution.

These provisions are made operational through agreements with States concerning detention. The first such agreement, made between the Court and the Federal Government of Austria, contains the following provision:

'Rule of Specialty

1. A sentenced person transferred to Austria pursuant to this Agreement shall not be subject to prosecution, punishment or to extradition to a third State for any conduct engaged in prior to that person's transfer to the territory of Austria, unless such prosecution, punishment or extradition has been approved by the Presidency at the request of Austria.
2. A request for approval shall be accompanied by the following documents:
 - a) A statement of the facts of the case and their legal characterization;
 - b) A copy of any applicable legal provisions, including those concerning the statute of limitation and the applicable penalties;
 - c) A copy of any sentence, warrant of arrest or other document having the same force, or of any other legal writ which the State intends to enforce;
 - d) A protocol containing views of the sentenced person obtained after the person has been informed sufficiently about the proceedings.
3. In the event of a request for extradition made by a third State, Austria shall transmit the entire request to the Presidency with a protocol containing the views of the sentenced person obtained after informing the person sufficiently about the extradition request.
4. The Presidency may, in relation to paragraphs 2 and 3 of this article, request any document or additional information from Austria or the third State requesting the extradition.

jurisdiction over an offender. It is to be noted that the situation contemplated in the *Ntuyahaga* case does not appear to have been envisaged by the *Statute's* drafters at Rome. Under Rule 11bis of the Rules of Procedure and Evidence of the *ad hoc* tribunals for the former Yugoslavia and Rwanda, as amended, it is now possible to refer cases to national jurisdictions. Debates about the rule of specialty have not arisen yet in the application of Rule 11bis.

² Rules of Procedure and Evidence, ICC-ASP/1/3, pp. 10–107, in this vol. Annex I.

5. The Presidency shall make a determination as soon as possible and shall inform the requesting State accordingly. If the request submitted under paragraphs 2 and 3 of this article concerns the enforcement of a sentence, the sentenced person may serve that sentence in Austria or be extradited to a third State only after having served the full sentence pronounced by the Court.
6. Paragraph 1 of this article shall cease to apply if the sentenced person remains voluntarily for more than 30 days in the territory of Austria after having served the full sentence imposed by the Court, or returns to the territory of that State after having left it.
7. The Presidency may authorise the temporary extradition of the sentenced person to a third State for prosecution only if it has obtained assurances which it deems to be sufficient that the sentenced person will be kept in custody in the third State and transferred back to Austria, after the prosecution'.

It seems likely that this clause will be a model for other agreements³.

The Draft Statute submitted by the International Law Commission to the General Assembly in 1994 contained a provision entitled the 'rule of specialty' that approached the problem in the more traditional sense. It barred the Court from prosecuting or punishing an individual for a crime other than the one for which the person was transferred⁴. It is the antecedent of the text now found in article 101 of the *Statute*. There is no evidence in the *travaux préparatoires* of concern about prosecution or extradition of an individual by the State of enforcement subsequent to sentencing until the December 1997 session of the Preparatory Committee. A new provision was proposed, labelled article 59*bis* and entitled 'limitation of prosecution/punishment for other offences'⁵. It protected a sentenced person in the custody of the State of enforcement from further prosecution and punishment or extradition to a third State for conduct committed prior to delivery to the State of detention. The provision would not apply if the sentenced person remained more than thirty days on the territory of the State of enforcement after having served the full sentence imposed by the Court. However, the draft article contemplated the waiver of this provision, either by the Court or by the Presidency, at the request of the State of enforcement. The sentenced person was to be entitled to be heard by the Court on the question. Footnotes stressed the relationship between article 59*bis* and the provision concerning the rule of specialty. Essentially the same text appeared in the Zutphen Draft⁶ and in the Final Draft Statute submitted by the Preparatory Committee to the Rome Conference⁷.

At Rome, the provision was considered by the Working Group on Enforcement. A working paper was submitted by the coordinator based on the Preparatory Committee text, but eliminating most of the square brackets⁸. The only unresolved issue was whether the power to waive the principle prohibiting prosecution, punishment or extradition to a third State would lie with the Court or the Presidency. The Working Group opted for the Court as the appropriate organ⁹. A footnote in its report indicates that some delegations had wanted the deletion of the provision altogether, but that they were prepared to accept it in a search for consensus.

Dissatisfaction among some delegations with the provision was linked to a more general opposition to the rule of specialty¹⁰.

³ Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court, Document ICC-PRES/01-01-05, 26 November 2005, article 10. Also relevant is article 15, concerning transfer of the sentenced person upon completion of the sentence. Article 15 para. 2 states: 'Subject to the provisions of Article 10, Austria may also, in accordance with its national law, extradite or otherwise surrender the person to a State which has requested the extradition or surrender of the person for purposes of trial or enforcement of a sentence'.

⁴ 1994 ILC Draft Statute, article 55.

⁵ Preparatory Committee Decisions Dec. 1997, p. 77.

⁶ Zutphen Draft, p. 165.

⁷ Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/2/Rev.1, pp. 183-184.

⁸ Working Paper on Articles 97 and 98, UN Doc. A/CONF.183/C.1/WGE/L.11 (3 July 1998), p. 2.

⁹ Draft Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.13 (4 July 1998), p. 5; Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.14 (7 July 1998), pp. 3-4.

¹⁰ Footnote 2 states: 'Some delegations who had wanted article 98 [article 108] deleted indicated a willingness to accept article 98 [article 108] if necessary to achieve consensus. However, they stressed that their position to

B. Analysis and interpretation of elements

I. Paragraph 1

- 4 A general rule is set out followed by an exception. The general rule prohibits prosecution, punishment or extradition to a third State for conduct engaged in prior to the person's delivery to the State of enforcement. The exception allows the Court to dispense with this requirement if it is so requested by the State of enforcement.
The term 'State of enforcement' is not defined, but it seems clear enough from article 103 para. 1 (a) of the *Statute* that this refers to the 'State designated by the Court from a list of States which have indicated to the Court their willingness to accept sentenced persons' and that has, in accordance with article 103 para. 1 (c), accepted that designation. Use of the term 'delivery' is curious, because in preceding provisions the *Statute* refers to the 'transfer' of the prisoner. However, this terminological anomaly does not seem to have any legal significance. It should be noted that the provision does not provide the sentenced person with total immunity from process. A civil claim, for example, or an administrative-type remedy, could be launched against the prisoner without any problem being posed by article 108.
- 5 The provision applies to a sentenced person 'in the custody' of the State of enforcement. The concept of 'custody', at least in common law and in the English version of the *Statute*, need not necessarily involve physical detention in prison but is synonymous with the idea of restraint of liberty¹¹. Thus, it is large enough to cover a sentenced person who is at liberty on some form of provisional release, and perhaps even one who has escaped from detention. However, the French version of article 108 uses the term 'détenu', which is considerably narrower and which leaves no doubt that the *Statute* requires physical detention. This raises an interesting problem of interpretation. Article 33 (d) of the *Vienna Convention on the Law of Treaties* states that 'the meaning which best reconciles the texts, having regard to the object and purpose of the treaty, shall be adopted'. Yet general principles of law suggest that the *Statute*, like all criminal legislation, should be interpreted narrowly, to favour the rights of the accused.¹² The term 'custody' must also be understood together with paragraph 3, which indicates that the provision applies to an individual who is on the territory for a thirty-day period subsequent to service of sentence. But in such a case, the sentenced person would no longer be in custody.
- 6 The Court may exercise its discretion to dispense the State from application of this prohibition. The request must come from the State of enforcement, however. This excludes a State seeking to obtain extradition pursuant to a treaty obligation with the State of enforcement. Nothing in the provision or in the *Statute* indicates the criteria upon which the Court may determine such questions. It has been suggested that these be spelled out in the Rules of Procedure and Evidence and indeed France, in its 'General outline' for the Rules prepared for the February 1999 session of the Preparatory Commission, provided for the possibility of norms on this subject. It proposed three subjects for specific norms: 'Transfer of

delete article 92 [article 101] (also dealing with the rule of specialty) remained unchanged. Some other delegations felt that article 98 [article 108] must be included, but also felt that article 92 [article 101] should be deleted'.

¹¹ *Black's Law Dictionary* (1979) 347.

¹² Early decisions of the International Criminal Court suggest that in interpreting the *Rome Statute*, judges will be guided by the relevant provisions of the *Vienna Convention on the Law of Treaties: Situation in the Democratic Republic of Congo*, ICC-01/04, Judgment on the Prosecutor's Application for Extraordinary Review of Pre-Trial Chamber I's 31 Mar. 2006, Decision Denying Leave to Appeal, para. 5. Also: *Prosecutor v. Lubanga*, ICC-01/04-01/06-8, Decision on the Prosecutor's Application for a Warrant of Arrest, 10 Feb. 2006, para. 42; *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision on the Practices of Witness Familiarisation and Witness Proofing, 8 Nov. 2006, para. 8; *Situation in Uganda*, ICC 02/-4-01/05, Decision on the Prosecutor's Application that the Pre-Trial Chamber Disregard as Irrelevant the Submission Filed by the Registry on 5 December 2005, 9 Mar. 2006, para. 25.

the person sentenced to another receiving State before completion of sentence'; 'Transfer of the sentenced person upon completion of sentence'; and 'Limitation on the prosecution or punishment of other offences'¹³. Australia's proposal for the Rules defined a procedural regime for determining the question, but made no mention of factors to be considered¹⁴.

Although the norm set out in article 108 is to some extent analogous to the rule of specialty, 7 it should be borne in mind that the *raison d'être* of specialty derives from the fundamental principles of reciprocity and double criminality which are the basis of the international law of extradition. The ICC is not a sovereign State and concepts of reciprocity derived from bilateral treaty rules are not easily applicable. A State that extradites an individual to another State consents to an infringement on its own sovereignty, and it is easy to understand not only why this should be so but also why the extradition must be subject to strict control. The same justification does not exist in the case of the ICC. Moreover, because the ICC is not a court of general jurisdiction but rather one whose subject matter jurisdiction is confined to 'the most serious crimes of concern to the international community as a whole', it may well be the rule rather than the exception that those found guilty of offences by the Court will also be subject to prosecution for other crimes. It can be argued that the ICC, as the competent organ of the community of nations, exercises the *ius puniendi* of the community in a way independent of the power of the national State to punish.

The criteria applied by the Court need to be rooted in its own prerogatives under the *Statute*. Thus, the Court should refuse authorization under article 108 where there is a real danger of abuse of its own process, for example, where the prosecution is politically motivated or is in some way vexatious, or where there appears to be a likely breach of the *ne bis in idem* rule set out in article 20 para. 2. In fulfilling this role, the Court should take into account evolving norms of international human rights law that may be applicable. For example, it should consider the conditions of detention to which the individual might be subject. The Court's complicity in a punishment that is cruel, inhuman and degrading would bring the entire institution into disrepute. The Court might require that conditions be imposed upon its consent in order to ensure that fundamental human rights be ensured, such as an assurance that capital punishment not be inflicted. It would certainly be hard to reconcile the Court's agreeing to prosecution, punishment or extradition involving penalties in excess of those permitted by the *Statute* itself. This suggests that despite the wording of article 108 para. 1, which seems to imply that prosecution, punishment or extradition are the exception, in reality they should be the rule. The Court should only deny the request from the State of execution in exceptional cases.

II. Paragraph 2

The Court can only rule on the request of the State of execution to dispense with the 8 prohibition of article 108 para. 1 'after having heard the views of the sentenced person'. An earlier version of this text spoke of the 'prisoner' rather than the 'sentenced person'. The final language in the provision is not only desirable in the interests of consistency with the first paragraph of the article, it also takes into account the fact that the 'sentenced person' may not in fact be a prisoner.

Article 108 para. 2 underscores the fact that the right set out in the article belongs to the accused, unlike the rule of specialty, which is a norm to be invoked by an extraditing State.

The nature of the hearing is not made explicit by article 108. Reference to a request by the 9 State of execution may be taken to suggest an adversarial proceeding at which the State of

¹³ Proposal by France, General Outline of the Rules of Procedure and Evidence, U.N. Doc. PCNICC/1999/DP.2.

¹⁴ Proposal submitted by Australia, Draft Rules of Procedure and Evidence of the International Criminal Court, UN Doc. PCNICC/1999/DP.1, p. 66.

execution and the sentenced person are the two parties. Because this may involve an extradition request from a third State, it is not inconceivable that the requesting State's presence might also be helpful in order to resolve the matter, although such participation would be at the discretion of the Court rather than of right, as is the case for the sentenced person. Furthermore, if questions concerning the legitimacy of certain forms of punishment or other treatment arise, the Court ought to consider allowing the intervention as *amici curiae* of non-governmental organizations with recognized expertise, such as Amnesty International. However, the words of paragraph 2 can also bear an interpretation that eschews any adversarial type hearing and only entitles the sentenced person to make submissions to the Court, although use of the word 'heard' would seem to indicate an oral hearing rather than mere written representations. This more narrow conception of a right to make submissions but no right to an adversarial hearing is reflected in the Rules of Procedure and Evidence.

III. Paragraph 3

- 10 The protection of the sentenced person ceases to apply if he or she remains voluntarily in the territory of the State of enforcement for more than thirty days after having served the full sentence imposed by the Court, or if the sentenced person returns to the territory of that State after having left it. This is a norm that is consistent with State practice in application of the rule of specialty as it obtains in bilateral extradition matters. The individual offender is, in effect, deemed to have renounced to any protection provided by the rule of specialty after remaining 'voluntarily' or after returning to the country. It seems relatively straightforward that a sentenced person whose term has been served and who wishes to leave the State of enforcement but who is unable to obtain entry into another State would not be remaining there 'voluntarily'. But this condition of voluntariness does not apply to the person who returns to the territory of the State after having left it. Thus, a sentenced person who had left the State of enforcement for a third State but who has subsequently been expelled from that State and sent back to the State of enforcement would not be able to invoke the protection of article 108 para. 1, even though the return to the State of enforcement could hardly be described as 'voluntary'.

Article 109
Enforcement of fines and forfeiture measures

1. States Parties shall give effect to fines or forfeitures ordered by the Court under Part 7, without prejudice to the rights of bona fide third parties, and in accordance with the procedure of their national law.

2. If a State Party is unable to give effect to an order for forfeiture, it shall take measures to recover the value of the proceeds, property or assets ordered by the Court to be forfeited, without prejudice to the rights of bona fide third parties.

3. Property, or the proceeds of the sale of real property or, where appropriate, the sale of other property, which is obtained by a State Party as a result of its enforcement of a judgement of the Court shall be transferred to the Court.

Literature: Kreß, C. and Sluiter, G., ‘Fine and Forfeiture Orders’, in: A. Cassese, P. Gaeta and J. R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1823; Prost, K., ‘Enforcement’, in: Roy Lee *et al.* (eds.), *The International Criminal Court, Elements of Crimes and Rules of Procedure and Evidence* (2001) 673.

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A. Introduction/General remarks

Article 109 deals with the enforcement of penalties that are additional to a sentence of imprisonment. These comprise fines, the regulation of which is delegated to the Rules of Procedure and Evidence by the *Statute*; and forfeitures of proceeds, property and assets derived directly or indirectly from the commission of the crime¹. Fines and forfeitures are described as penalties additional to imprisonment in article 77 para. 2 of the *Statute*. According to article 109, ‘[s]tates Parties shall give effect to fines or forfeitures ordered by the Court under Part 7 ... in accordance with the procedure of their national law’. Giving effect by States Parties to both fines and forfeitures shall be ‘without prejudice to the rights of bona fide third parties’. States which are ‘unable to give effect to an order for forfeiture’ may, alternatively, according to article 109 para. 2, ‘take measures to recover the value of the proceeds, property or assets ordered by the Court to be forfeited’, once again ‘without prejudice to the rights of bona fide third parties’. Article 109 para. 3 addresses the destination of the ‘property, or the proceeds of the sale of real property or, where appropriate, the sale of other property, which is obtained by a State Party as a result of its enforcement of a judgment of the Court’, indicating that it ‘shall be transferred to the Court’. According to article 79, the Court can decide that proceeds of fines and forfeitures go to the Trust Fund for victims.

Thus, the *Statute* lays down a very limited number of rules concerning enforcement of fines and forfeitures. Besides imposing a general obligation on all States Parties to give effect to the Court’s orders in this respect, without prejudicing the rights of bona fide third parties, it provides States Parties with an alternative way of enforcing forfeitures and indicates the

¹ Rome Statute of the International Criminal Court, UN Doc. A/CONF.183/9, (1998) 37 *ILM* 999, article 77 para. 2.

destination of all proceeds resulting from the enforcement of fines and forfeitures. These norms are likely to receive further specification in the Rules of Procedure and Evidence. The way in which States enforce fines or forfeitures is, in all events, left to the 'procedure of their national law'.

Article 109 is completed by several detailed provisions, set out in Rules 217, 218, 220 and 222 of the Rules of Procedure and Evidence. According to Rule 217, the Presidency is 'to seek cooperation and measures for enforcement in accordance with Part 9, as well as transmit copies of relevant orders to any State with which the sentenced person appears to have direct connection by reason of either nationality, domicile or habitual residence or by virtue of the location of the sentenced person's assets and property or with which the victim has such connection'. The Presidency shall also inform the State of any third-party claims or of the fact that no claim was presented by a person who received notification of proceedings conducted pursuant to article 75 of the Statute. Rule 218 indicates in detail the information that must be included in orders for forfeiture and requests for cooperation and measures for enforcement. Pursuant to Rule 220, when transmitting copies of judgments with fine orders for the purpose of enforcement, the Presidency is to inform the national authorities that the orders may not be modified. Under Rule 222, the Presidency is required to assist the State in the enforcement of fines, forfeiture or reparation orders, as requested, with the service of any relevant notification on the sentenced person or any other relevant persons, or the carrying out of any other measures necessary for the enforcement of the order under the procedure of the national law of the enforcement State.

- 2 The 1994 ILC Draft Statute authorized the Court to impose fines but did not contemplate the details of enforcement². The *Ad Hoc* Committee that was struck by the General Assembly considered the issue of enforcement under the heading 'Recognition of the judgments of the court, enforcement of sentences and mutual recognition of judgments'. Views were divided as to whether the *Statute* should provide for direct recognition and enforcement of orders from the Court or whether national authorities should be left to choose their own mechanisms³. In this context, the issue of the rights of third parties was also considered. Views were divided in the *Ad Hoc* Committee as to whether the rights of third parties should be determined by the Court or by national tribunals⁴. As for fines, it was already clear that there was a relationship between the advisability of including fines at all and the issue of enforcement⁵.
- 3 The *travaux préparatoires* indicate that these issues were not reconsidered until the December 1997 meeting of the Preparatory Committee⁶. The draft adopted at that time contained a provision entitled 'General obligation regarding recognition [and enforcement] of judgments'⁷. States were to undertake to enforce the Court's judgments directly on their territory. Article 59 *ter* adopted at the December 1997 session of the Preparatory Committee, which is the clear ancestor of article 109 of the *Rome Statute*, contained two paragraphs⁸. The

² 1994 ILC Draft Statute.

³ *Ad Hoc* Committee Report, para. 237.

⁴ *Ibid.*, para. 238.

⁵ *Ibid.*, para. 242.

⁶ There was a proposal concerning enforcement of fines and confiscatory measures presented during the 1996 session: 1996 Preparatory Committee II, p. 292.

⁷ Preparatory Committee Decisions Dec. 1997, p. 74, article 58:

'General obligation regarding recognition [and enforcement] of judgments States Parties [shall] [undertake to recognize] [[and to] enforce directly on their territory] [give effect to] the judgments of the Court [, in accordance with the provisions of this Part].

[The judgments of the Court shall be binding on the national jurisdictions of every State Party as regards the criminal liability of the person convicted and the principles relating to compensation for damage caused to victims and the restitution of property acquired by the person convicted and other forms of reparation ordered by the Court, such as restitution, compensation and rehabilitation]'

⁸ Preparatory Committee Decisions Dec. 1997, see note 7, p. 63. The text was reproduced in the Zutphen Draft (Zutphen Draft), as article 88, and in the final draft statute adopted by the Preparatory Committee (Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/2/Rev.1), as article 99.

debate as to whether the Court's judgments should be directly enforceable or whether there should be some reference to national law persisted. Paragraph 1 imposed a general obligation to enforce fines and forfeiture measures, but the words 'in accordance with their national law' were in square brackets. A second paragraph dealt with the disposal of property, requiring that it be handed over to the Court. A footnote accompanying the draft declared: 'There is a question whether this provision concerns enforcement of sentences, or rather the powers of the Court to order particular measures relating to enforcement of fines or confiscation. If it is meant to refer to States enforcing specific orders relating to fines or confiscation, then paragraph 1 might be amended to make clear that that enforcement by States Parties would include 'giving effect to orders of the Court relating to enforcement of fines or forfeitures, such as the seizure of particular property or the forced sale of property of the convicted person to satisfy a fine''⁹.

At the Rome Conference, the heart of the debate on enforcement concerned the general provision, draft article 93, which was ultimately dropped. There were two options reflecting different philosophical approaches to this provision, which was entitled 'General obligation regarding enforcement of judgments'. The first said that States Parties 'shall enforce directly on their territory the judgments of the Court', while the second said they 'shall give effect to the judgments of the Court in accordance with the provisions of this Part and their national law'¹⁰.

The Working Group ultimately decided to delete article 93¹¹; the philosophy of the second option appears to have prevailed. With respect to the more specific provision concerning enforcement of fines and forfeiture orders, the Chair proposed a reworded paragraph 1 which left the option, at the conclusion of the text, between 'the procedure of the national law' and 'their national law'. The compromise subsequently effected by the Chair was to water down the obligation of States from one 'to enforce' Court orders to one that required them to 'give effect to' such orders. In exchange for this concession, the conclusion of the paragraph read 'in accordance with the procedure of the national law', instead of the vaguer 'in accordance with the national law'¹². The second paragraph was added by the Working Group; it had not appeared in any of the earlier drafts¹³. Paragraph 2 of the Preparatory Committee's final draft was deleted altogether¹⁴. Paragraph 3 was adopted without any significant substantive modifications, although a footnote was included in the report to the Committee of the Whole: 'The Working Group noted that there were a number of potential complex problems which may arise in the implementation of this provision, including questions about the disposition of various types of property, which should be addressed in the Rules'¹⁵.

B. Analysis and interpretation of elements

I. Paragraph 1

The provision contains three elements: an obligation to give effect to fines or forfeitures ordered by the Court as a penalty, a protection of 'bona fide third parties', and the clarification that enforcement of such orders is to be carried out in accordance with the

⁹ *Ibid.*

¹⁰ Working Paper on article 93, UN Doc. A/CONF.183/C.1/WGE/L.12 (3 July 1998).

¹¹ Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.14/Add.1 (11 July 1998), para. 1.

¹² See: Draft Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.13 (4 July 1998), p. 5, esp. fn. 4; Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.14 (7 July 1998), p. 4.

¹³ Report of the Working Group on Enforcement, UN Doc. A/CONF.183/C.1/WGE/L.14 (7 July 1998), p. 4. Apparently Singapore insisted on adding the paragraph out of concerns its domestic system would not allow it to follow paragraph 1.

¹⁴ Report of the Working Group on Enforcement, see note 11, p. 4.

¹⁵ *Ibid.*

procedure of national law. The text clearly rejects a suggestion floated during the Preparatory Committee by which such orders of the Court would be enforceable directly, something that presumably would have required the Court to develop its own procedural regime in this area. The reference to national law confirms that the question of execution of such judgments is in a sense delegated to the national legal system, in the same way as other matters, such as arrest and issues pertaining to judicial cooperation.

- 6 The question that arises is whether paragraph 1 actually requires States to make changes to their domestic legislation in order to provide for execution of fines and forfeiture orders. The reference to ‘in accordance with the procedure of their national law’ could be taken to support such an interpretation by which they do not. It is possible to view an assumption implicit in article 109 by which States generally have adequate systems within their own civil law for the execution of judgments. But the better view should be that States are required to ensure that fine and forfeiture orders be enforceable, and that they are accordingly compelled by the *Statute* to enact the appropriate legislative amendments. Article 109 is thus a specific formulation of the general principle set out in articles 86 and 88, although it does not appear in the same Part of the *Statute*. That the subject matter of article 109 is as much an issue of judicial cooperation (Part 9) as it is of execution (Part 10) is confirmed by the reference to assistance in identification, tracing and freezing for the purpose of eventual forfeiture found in article 93 para. 1 (k), which is entitled ‘other forms of cooperation’¹⁶. Paragraph 2 of article 109, which offers an alternative for States that cannot or will not provide for execution of the Court’s orders, only confirms such an interpretation of paragraph 1.
- 7 The obligation of States Parties set out in paragraph 1 is subject to ‘the rights of bona fide third parties’. Nowhere in the *Statute* are these rights defined, nor is there any indication as to the scope of the concept of bona fide third parties. Article 109 para. 1 implies, then, that the *Statute* defers to national law. The absence of such an exception in the *Statute* might have been taken as the imposition of a rule that the Court’s orders in this area take precedence over any competing claim. An example of the latter might be a judgment debt belonging to an estranged spouse, intended to provide for maintenance of young children. It was surely not the intent of the drafters of the *Statute* to dismiss the significance of such a claim, hence the reference to the rights of bona fide third parties. The alternative would have been for the *Statute* or the Rules to provide detailed norms, a complex and daunting task. Yet the laconic reference to the rights of bona fide third parties is likely to create a situation where the *Statute* is applied unevenly, subject to the different rules that exist in national judicial systems with respect to the priority given various categories of creditors.
- 8 While the case of a debt for maintenance arouses our sympathies, is it so reasonable that claims for tax debts come before the rights of the Court, especially considering that the Court may direct the proceeds to the victims of serious human rights abuses? Furthermore, the ruses and techniques of judgment debtors to avoid execution are legion. One of the more well-known is the fraudulent disposal of assets, to a spouse or an accomplice. This explains the use of the words ‘bona fide’ in article 109. A State in breach of article 109 because it had given priority to a third party not in good faith over the order of the Court would have defaulted in its obligations under the *Statute*, and would be subject to the normal sanctions for such cases. But pursuant to article 109, the Court becomes in a sense a judgment creditor with a justiciable claim before the national courts. Depending on the legislation in force within each State, it is not inconceivable to imagine the Court itself intervening in civil proceedings to contest the priority given to another creditor over its own claim. The Court would invoke article 109 para. 1 and argue that the competing creditor was not in good faith, or that it had no rights to the money or other property in question. Given that those

¹⁶ Note the reference in article 93 para. 1 (k) to seizure of ‘instrumentalities’ of crimes. This must be a drafting oversight, because the Working Group on Penalties decided to exclude the possibility that instrumentalities of crimes be forfeited: Report of the Working Group on Penalties, UN Doc. A/CONF.183/C.1/WGP/L.14 (4 July 1998), p. 3.

convicted by the Court may be high ranking officials, perhaps even heads of State, the sums involved could be considerable.

The reference to the rights of bona fide third parties in article 109 is clearly applicable to both fines and forfeiture orders. Interestingly, the terms of article 77 para. 2 suggest that the rights of bona fide third parties are to be considered in the case of forfeiture, but *e contrario* not in the case of fines. This distinction, however, was not an issue during the debates in the Working Group on Penalties at the Rome Conference and, faced with this minor inconsistency, the clear terms of article 109 para. 1 ought to prevail.

II. Paragraph 2

Paragraph 2 requires a State to take measures to recover the value of proceeds, property or assets ordered forfeited where the State Party is unable to give effect to such an order. The provision does not apply in the case of fines. It may be interpreted in two ways. First, it may be viewed as an exception to the obligation set out in paragraph 1 to give effect to a forfeiture order. Thus, a State that did not provide for the forfeiture of ‘proceeds, property and assets derived directly or indirectly’ from crime would be required, in the alternative, to recover the value of such proceeds, property and assets. Therefore, the State would be obliged to ensure that its legislation provided for one or the other means of execution of forfeiture orders. The second plausible interpretation does not absolve the State of its obligation under paragraph 1 to enact legislation so as to ensure the execution of forfeiture orders, but it imposes a secondary obligation on all States Parties to provide an additional mechanism when the forfeiture order cannot be executed. A specific case where a forfeiture order cannot be executed is in fact described in paragraph 3, namely, the case of real property.

Whatever interpretation is adopted, the result is to prevent a State from throwing up its hands and refusing to proceed when the items ordered forfeited cannot be realized. This would be the case, for example, where the property right in something belonged to a bona fide third party.

Domestic legal systems may also provide that some forms of property are immune from judicial process or seizure, such as a family residence in which minor children reside. The Court would therefore be unable to insist upon the forfeiture of the proceed, property or asset. However, the Court would be entitled to expect the State to take other measures in order to recover the value, such as ordering a judicial sale of the proceed, property or asset contemplated by the forfeiture order and payment to the Court of the value out of the proceeds of the sale.

III. Paragraph 3

The requirement that property ordered forfeited or the proceeds from the sale of such property be transferred to the Court completes the terms of article 77 para. 2, which speaks of forfeiture orders but does not identify the beneficiary of such an order. The combination of articles 77 para. 2 and 109 para. 3 would seem to exclude a forfeiture order in favour of an individual or corporate body. The exception to this rule is found in article 79 para. 2 which allows the Court to order money and other property collected through fines or forfeiture to be transferred to the Trust Fund set up for the benefit of victims.

Article 110

Review by the Court concerning reduction of sentence

1. The State of enforcement shall not release the person before expiry of the sentence pronounced by the Court.

2. The Court alone shall have the right to decide any reduction of sentence, and shall rule on the matter after having heard the person.

3. When the person has served two thirds of the sentence, or 25 years in the case of life imprisonment, the Court shall review the sentence to determine whether it should be reduced. Such a review shall not be conducted before that time.

4. In its review under paragraph 3, the Court may reduce the sentence if it finds that one or more of the following factors are present:

- (a) The early and continuing willingness of the person to cooperate with the Court in its investigations and prosecutions;
- (b) The voluntary assistance of the person in enabling the enforcement of the judgements and orders of the Court in other cases, and in particular providing assistance in locating assets subject to orders of fine, forfeiture or reparation which may be used for the benefit of victims; or
- (c) Other factors establishing a clear and significant change of circumstances sufficient to justify the reduction of sentence, as provided in the Rules of Procedure and Evidence.

5. If the Court determines in its initial review under paragraph 3 that it is not appropriate to reduce the sentence, it shall thereafter review the question of reduction of sentence at such intervals and applying such criteria as provided for in the Rules of Procedure and Evidence.

General remarks

1 After what has been said in the commentary to article 103, this provision does not need any further far reaching comment. The article is clearly a symptom of the penitentiary primacy of the ICC during the phase of enforcement. The decision concerning the commutation of sentence is with the Court, although one should remember that administering parties could contract otherwise by virtue of additional enforcement agreements as set out under mn 19 and 24 of article 103.

2 Article 110 para. 3 formulates the minimum enforcement term to be observed by the Court itself. An administering party however is not bound to that minimum, provided only that it has reserved the right to exercise other conditions. The factors which could influence the Court's decisions to reduce sentence are listed non-exhaustively in paragraph 4 of this article.

Various articles have been codified in relation to the review by the Court concerning a possible reduction of sentence. The main provision in the Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court (hereinafter 'Austria Agreement' or 'Agreement')¹, embodying Article 110 is Article 11². Article 11 paragraph 1 of the Austria Agree-

¹ The International Criminal Court has, thus far, concluded enforcement of sentences agreements with Austria, Belgium, Columbia, Denmark, Finland, Mali, Serbia, and the United Kingdom. At the time of writing, the agreements with Columbia and Mali have not yet entered into force. For reasons of expediency, only one Enforcement Agreement will be used as an example, even though the other agreements will have a similar provision in their subsequent texts.

² Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court, ICC-PRES/01-01-05, Date of Entry into Force: 26 November 2005, <http://www.legal-tools.org/doc/0f5f9e/>, Article 11, entitled 'Appeal, revision and reduction of sentence'.

ment stipulates that '[t]he Court alone shall have the right to decide on any application for appeal and revision in accordance with Articles [Sic] 105 of the Statute'³. Paragraph 2 stipulates that '[t]he Court alone shall have the right to decide any reduction of sentence in accordance with Article 110 of the Statute and Rule 223. It shall rule on the matter after having heard the sentenced person and after having received any relevant information from Austria'⁴. Rule 223, entitled 'Criteria for review concerning reduction of sentence', falls within the ambit of the Rules of Procedure and Evidence, Chapter 12. Enforcement, Section V. Review concerning reduction of sentence under article 110, and consists of Rules 223 and 224. Whereas Rule 223 deals with the criteria for review concerning a reduction of sentence, Rule 224 encompasses the procedure for review concerning reduction of sentence⁵. Interestingly, although the chapeau of Rule 223 corresponds with paragraph 4 (a) and (b) of this Article, the subparagraphs of Rule 223 expand the factors that could be taken into account, thereby establishing certain factors as stipulated in paragraph 4 (c), whilst reviewing a possible reduction of sentence.

As mentioned in Article 104, the fact that it is solely for the Court to rule on the matter of review, can be seen by the wording of Article 4 of the Austria Agreement, stipulating that 'subject to the conditions contained in this Agreement, the sentence...shall be binding on Austria, which shall in no case modify it'⁶. Any possible modification or action that might influence the [reduction of the] sentence, must be communicated to the Court, after which it shall decide whether or not to change the designation of the State of enforcement⁷.

It seems that there are two provisions in the Austria Agreement that might influence a possible reduction of the sentence. These two examples can be found in Articles 6 and 12 of the Austria Agreement. A possible positive factor that can be taken into account when conducting a review is Article 6 paragraph 3 of the Agreement. This provision stipulates that '[w]hen a sentenced person is eligible for a prison programme or benefit available under the national law of Austria which may entail some activity outside the prison facilities, Austria shall communicate that fact to the Presidency, together with any relevant information or observation, to enable the Court to exercise its supervisory function'⁸. Although not obligatory, the Court could take into account the fact that the convict is participating in a programme, thereby demonstrating 'good behaviour', as a possible mitigating factor in its review under Article 110 paragraph 4 sub-paragraph c and Rule 223 paragraph a of the Rules of Procedure and Evidence.

A possible aggravating factor can be found in Article 12. Although Article 12 paragraph 5 states that 'the entire period of detention in the territory of the State in which the sentenced person was in custody after his/her escape and, where paragraph 4 of this article is applicable, the period of detention at the seat of the Court following the surrender of the sentenced person from the State in which he/she was located shall be deducted from the sentence remaining to be served'⁹. An escape from the prison facility will most likely be seen as an aggravating factor when reviewing a possible reduction of sentence.

A final provision in relation to the review of reduction of sentence is Article 14 of the Austria Agreement. Article 14 paragraph 1 sub-paragraph d stipulates that the enforcement of the sentence shall cease 'upon release following proceedings under Article 11'¹⁰. Although Article 11 does not only correspond to reduction of sentence reviews, it is one of the determining factors of that provision.

³ See note 2, Article 11, paragraph 1.

⁴ *Ibidem*, Article 11 paragraph 2.

⁵ For a concise reading of these Rules, please consult the Rules of Procedure and Evidence.

⁶ For a further detailed account of these provisions, please see the Commentary on Articles 103 and 104.

⁷ *Ibidem*, especially the Commentary on Article 104.

⁸ See note 2, Article 6, entitled 'Conditions of imprisonment', paragraph 3.

⁹ *Ibidem*, Article 12, entitled 'Escape', paragraph 5. For a further discussion of the Escape provision, please see the Commentary on Article 111.

¹⁰ *Ibidem*, Article 14, entitled 'Termination of Enforcement', paragraph 1 (d).

Article 111

Escape

If a convicted person escapes from custody and flees the State of enforcement, that State may, after consultation with the Court, request the person's surrender from the State in which the person is located pursuant to existing bilateral or multilateral arrangements, or may request that the Court seek the person's surrender in accordance with Part 9. It may direct that the person be delivered to the State in which he or she was serving the sentence or to another State designated by the Court.

- 1 In case of escape during the enforcement term, this article provides for some guidance. Most remarkably, the Statute seems to vest in the administering State a certain latitude to try to get the fugitive back within the jurisdictional scope of the ICC framework, given the auxiliary verb 'may' (the enforcing State 'may' request the surrender of the fugitive). If the State is going to request for surrender it will have to rely on the traditional framework of extradition treaties. Of course, the Court itself may request the person's surrender. In this case article 91 para. 3 will be applicable.
- 2 The wording of Article 111, and the corresponding Rule 225 of the Rules of Procedure and Evidence, has almost literally been copied into the co-relating Articles in the Enforcement of sentences agreements. Using the Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court (hereinafter 'Austria Agreement') as our example, the corresponding provision is Article 12¹.
- 3 Paragraph 1 of Article 12 states that '[i]f the sentenced person has escaped, Austria shall, as soon as possible, advise the Registrar by any medium capable of delivering a written record'². Not only has the State of enforcement the obligation to notify the Registrar, under Article 17, paragraph 1 sub-paragraph b, Austria shall also immediately notify the Presidency 'if the sentenced person has escaped'³, thereby creating a dual obligation of informing the Court.

If the escaped prisoner is apprehended in another country that is **not** the State of enforcement, two procedures exist for the escapee to be returned to the original State of enforcement.

The first procedure can be found in paragraphs 2 and 3 of Article 12 of the Austrian Agreement. Paragraph 2 stipulates that 'Austria may, after consultation with the Presidency, request the person's extradition or surrender from the State in which the person is located pursuant to any existing bilateral or multilateral arrangements...'⁴. Once Austria has requested the subsequent extradition or surrender, the other State will have to decide whether or not to extradite or surrender the person. In this regard, paragraph 3 of Article 12 stipulates that '[i]f the State in which the sentenced person is located, agrees to surrender him or her to Austria, pursuant to either international agreements or its national legislation, Austria shall so advise the Registrar in writing. The person shall be surrendered to Austria as soon as possible if necessary in consultation with the Registrar, pursuant to Rule 225'⁵.

¹ Agreement between the International Criminal Court and the Federal Government of Austria on the enforcement of sentences of the International Criminal Court, ICC-PRES/01-01-05, Date of entry into force: 26 November 2005, <http://www.legal-tools.org/doc/0f5f9e/>, Article 12, entitled 'Escape'. The International Criminal Court has, thus far, concluded enforcement of sentences agreements with Austria, Belgium, Columbia, Denmark, Finland, Mali, Serbia and the United Kingdom. At the time of writing, the agreements with Columbia and Mali have not yet entered into force.

² *Ibidem*. Article 12, paragraph 1.

³ *Ibidem*, Article 17, entitled 'Information', paragraph 1(b).

⁴ *Ibidem*, Article 12, paragraph 2.

⁵ See note 1, Article 12, paragraph 3.

The second procedure can be found in paragraphs 2 and 4 of Article 12 of the Austrian Agreement. Whereas the first part of paragraph 2 allows the State of enforcement to directly request the extradition or surrender from the State in question, the last part of paragraph 2 allows the State of enforcement to seek the assistance of the Court, stipulating that the State of enforcement 'may request that the Presidency seek the person's surrender, in accordance with Part 9 of the Rome Statute'⁶. If this procedure is to be followed, the sentenced person will first fall within the jurisdiction of the Court.

If this is the case, another two procedures are possible; as paragraph 4 states: '[i]f the sentenced person is surrendered to the Court, then the Court shall transfer him or her to Austria. Nevertheless, the Presidency may, acting on its own motion or at the request of the Prosecutor or of Austria, designate another State, including the State to the territory of which the sentenced person has fled'⁷. On the one side, the Presidency may send the prisoner back to the original State of enforcement or, on the other side, the Presidency may designate another State of enforcement altogether. If the latter procedure is followed, the procedures and provisions under Article 104 of the Rome Statute should be followed.

A final comment can be given on the costs of an escape. Codified in the Austrian Agreement under Article 18, paragraph 3 thereof states that '[i]n case of escape, the costs associated with the surrender of the sentenced person shall be borne by the Court if no State assumes responsibility for them'⁸. If this scenario ever occurs, it seems quite likely that the Court will be the entity who will have to pay the costs associated with the subsequent surrender.

⁶ *Ibidem*, Article 12.

⁷ *Ibidem*, Article 12, paragraph 4.

⁸ *Ibidem*, Article 18, entitled 'Costs', paragraph 3.

PART 11 ASSEMBLY OF STATES PARTIES

Article 112* Assembly of States Parties

1. An Assembly of States Parties to this Statute is hereby established. Each State Party shall have one representative in the Assembly who may be accompanied by alternates and advisers. Other States which have signed this Statute or the Final Act may be observers in the Assembly.
2. The Assembly shall:
 - (a) Consider and adopt, as appropriate, recommendations of the Preparatory Commission;
 - (b) Provide management oversight to the Presidency, the Prosecutor and the Registrar regarding the administration of the Court;
 - (c) Consider the reports and activities of the Bureau established under paragraph 3 and take appropriate action in regard thereto;
 - (d) Consider and decide the budget for the Court;
 - (e) Decide whether to alter, in accordance with article 36, the number of judges;
 - (f) Consider pursuant to article 87, paragraphs 5 and 7, any question relating to non-cooperation;
 - (g) Perform any other function consistent with this Statute or the Rules of Procedure and Evidence.
3.
 - (a) The Assembly shall have a Bureau consisting of a President, two Vice-Presidents and 18 members elected by the Assembly for three-year terms.
 - (b) The Bureau shall have a representative character, taking into account, in particular, equitable geographical distribution and the adequate representation of the principal legal systems of the world.
 - (c) The Bureau shall meet as often as necessary, but at least once a year. It shall assist the Assembly in the discharge of its responsibilities.
4. The Assembly may establish such subsidiary bodies as may be necessary, including an independent oversight mechanism for inspection, evaluation and investigation of the Court, in order to enhance its efficiency and economy.
5. The President of the Court, the Prosecutor and the Registrar or their representatives may participate, as appropriate, in meetings of the Assembly and of the Bureau.
6. The Assembly shall meet at the seat of the Court or at the Headquarters of the United Nations once a year and, when circumstances so require, hold special sessions. Except as otherwise specified in this Statute, special sessions shall be convened by the Bureau on its own initiative or at the request of one third of the States Parties.
7. Each State Party shall have one vote. Every effort shall be made to reach decisions by consensus in the Assembly and in the Bureau. If consensus cannot be reached, except as otherwise provided in the Statute:
 - (a) Decisions on matters of substance must be approved by a two- thirds majority of those present and voting provided that an absolute majority of States Parties constitutes the quorum for voting;

* Mr. Rama Rao wishes to thank Ms. Lolita Breyman, and Mr. Philipp Ambach thanks Ms. Freya Foster for their assistance in researching this contribution.

- (b) Decisions on matters of procedure shall be taken by a simple majority of States Parties present and voting.
8. A State Party which is in arrears in the payment of its financial contributions towards the costs of the Court shall have no vote in the Assembly and in the Bureau if the amount of its arrears equals or exceeds the amount of the contributions due from it for the preceding two full years. The Assembly may, nevertheless, permit such a State Party to vote in the Assembly and in the Bureau if it is satisfied that the failure to pay is due to conditions beyond the control of the State Party.
 9. The Assembly shall adopt its own rules of procedure.
 10. The official and working languages of the Assembly shall be those of the General Assembly of the United Nations.

Literature: Ambach, P., and Rackwitz, K. U., 'A Model of International Judicial Administration? The Evolution of Managerial Practices at the International Criminal Court', (2013) 76 *Law and Contemporary Problems* 119; Ambach, P., 'Assessing the International Criminal Court's major challenges in its 12th year: the "lessons learnt" initiative to increase efficiency of the criminal process', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (OUP, 2015), 1277; Assembly of States Parties to the Rome Statute of the International Criminal Court, *Official Records*; Clark, R. S., 'Negotiating Provisions Defining the Crime of Aggression, its Elements and the Conditions for ICC Exercise of Jurisdiction Over It', in: *EJIL* (2009) 20 (4), 1103; Martinez Vivancos, J., 'The Crime of Aggression Amendment Adopted at the ICC Review Conference in Kampala, Uganda' (AMICC 2010), <http://www.amicc.org/docs/Aggression.pdf> accessed 2 January 2015; O'Donohue, J., 'Financing the International Criminal Court', (2013) 13 *ICLRev* (1), 269; id., 'The International Criminal Court and the Assembly of States Parties', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (OUP, 2015), 105.

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A. General remarks

The idea of an Assembly of States Parties did not arise in the ILC during its preparation of the Draft Statute of an International Criminal Court. Nor did it come up before the Ad Hoc Committee on the Establishment of an International Criminal Court (*Ad Hoc* Committee) during the course of its deliberations on the ICC.¹ It was only in 1996 that a French Working Paper on the Draft Statute of the Court submitted to the Preparatory Committee contained for the first time a provision on the establishment of a ‘**general assembly of states parties**’.² It attracted the attention of the Preparatory Committee in 1997, and the first focused discussion took place in the relevant Working Group of the Preparatory Committee in its penultimate session in 1998.

The original proposal of an Assembly of States Parties continued to surface in a number of structural and institutional discussions. In the context of the relationship between the ICC and the UN, the French delegation, in its response to a background note circulated by the UN Secretariat,³ indicated the linkage between an Assembly of States Parties and the **financing** of the Court, and that the financing in turn depended on the **institutional nature** of the Court. The French preference was for the Court to be a specialized agency of the UN.⁴ The United States delegation in the subsequent discussion in the Preparatory Committee considered the Assembly useful as an oversight mechanism.

The draft provision encompassed several issues relating to participants, functions, composition and decision making in the Assembly of States Parties. The Working Group of the Preparatory Committee on the subject produced a draft text and the same was forwarded to the Rome Conference as a part of the Draft Statute.⁵

After a lengthy but a relatively uncontroversial debate, the Rome Conference agreed on article 112 of the Statute in its present form.⁶ Briefly, the salient features of article 112 are as follows. The Assembly is open to States Parties as members and to other States as observers.⁷ It has **seven functions**.⁸ They are: consider and adopt the recommendations made by the Preparatory Commission, conduct management oversight of the operations of the Court, consider the reports and activities of its Bureau, deal with the alteration of the number of judges, non-cooperation or any other function in accordance with the Statute (like the election of judges, article 36) and the Rules of Procedure and Evidence. The Bureau of the Assembly would consist of twenty-one members elected for three-year terms taking into account equitable geographical representation and adequate representation of principal legal systems.⁹ The President, Prosecutor and the Registrar or their representative may participate in the meetings of the Assembly and its Bureau.¹⁰ Every effort should be made to reach decisions in the Assembly by consensus, failing which substantive decisions should be taken by a two-thirds majority of those present and voting provided an absolute majority of the Assembly satisfies the quorum requirement, and procedural decisions should be taken by a simple majority.¹¹ A State Party will lose its right to vote in the Assembly for default of

¹ The *Ad Hoc* Committee heard some comments by delegations on the issue of administration and budget but not on the idea of an Assembly of States Parties as such. See Part F on ‘Budget and Administration’ in the Ad Hoc Committee Report, paras. 244–49.

² UN Doc. A/AC.249/L.3 (1997).

³ UN Doc. A/AC.249/1998/L.10.

⁴ UN Doc. A/AC.249/L.12. See also Ambach, commentary of *article 2*, mn. 12 et seq.

⁵ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102.

⁶ UN Doc. A/CONF.183/9 (1998).

⁷ *Ibid.*, Part 11 on the Assembly of States Parties, article 112 para. 1.

⁸ *Ibid.*, para. 2.

⁹ *Ibid.*, para. 3.

¹⁰ *Ibid.*, para. 5.

¹¹ *Ibid.*, para. 7.

payment of its contribution for two years or amount equal to it.¹² More than 13 years after its establishment, the Assembly has developed into a **dynamic inter-governmental body** fulfilling its mandates under article 112. In addition, over the years the Assembly has taken over a number of diplomatic and promotional functions that were not explicitly contemplated in the Statute.¹³ A permanent **Secretariat** of the Assembly provides services, legal, administrative and technical assistance to the Assembly, the Bureau and the subsidiary bodies.¹⁴

B. Analysis and interpretation of elements

I. Paragraph 1: ‘Each State Party’ and ‘Other States’

- 5 Paragraph 1 stipulates that each State Party participates in the Assembly with one representative, conferring **equal voting rights** among all States Parties independently from their monetary contribution. The inclusion of ‘alternates and advisers’ in paragraph 1 has led in practice to an increase in delegations’ size during the yearly Assembly meetings. During the negotiations regarding States’ participation in the Assembly, there were **initially two major trends**, the common thread of them being that States Parties have an inherent right to participate in the proceedings of the Assembly. However, there were differences regarding the non-States Parties’ role. One view was that equal entitlement of representation of non-States Parties and States Parties would not be legally fair to States Parties and it would serve as a disincentive to these third States to become parties to the Statute. The other view was that the Court should not be treated as a closed institution and that instead it should be promoted to acquire universality through wider participation of all States. The final position, reflecting a compromise, is contained in paragraph 1 as it enables the participation of the two categories of States in the Assembly but in distinct roles.
- 6 Accordingly, States Parties would be full members and all other States that signed the Statute or the Final Act would be **observers** in the Assembly. There are two implications here. *One*, it may be noted that the Final Act was open to all States that participated in the Rome Conference as well as those who were invited to participate in the Conference even if they could not attend it for any reason.¹⁵ These States not parties to the Statute could be observers in the Assembly. *Two*, the substantive distinction which flows from a cumulative interpretation of all other provisions of this article as well as the practice of similar recent processes in international law such as the Law of the Sea is that only States Parties have a right to vote¹⁶ while non-States Parties would **not be entitled to vote** in the Assembly. This is reflected in Rule 60 of the Rules of Procedure of the Assembly of States Parties.¹⁷
- 7 In addition, there are those States which are **neither States Parties nor observer States** since they have not signed the Statute or the Final Act. While these States likewise have no voting rights they are allowed to participate in the yearly Assembly meetings and may make submissions during the general debate upon invitation by the Assembly on a case-by-case

¹² *Ibid.*, para. 8.

¹³ See ICC Review Conference 2010 – Stocktaking of International Criminal Justice, featuring topics like (i) the impact of the Rome Statute system on victims and affected communities; (ii) peace and justice; (iii) complementarity; and (IV) cooperation, at: http://www.icc-cpi.int/en_menus/asp/reviewconference/stocktaking/Pages/stocktaking.aspx#Cooperation.

¹⁴ ICC-ASP/2/Res. 3, 12 September 2003, Establishment of the Permanent Secretariat of the Assembly of States Parties to the International Criminal Court (see also the Annex to the resolution). See also Rule 37 of the Assembly’s Rules of Procedure for the Secretariat’s specific Assembly-related functions.

¹⁵ UN Doc. A/CONF.183/10 (1998), Annex I, Resolutions adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court. See Resolution F, para. 2.

¹⁶ Law of the Sea Convention, 1982, Annex VI on Statute of an International Tribunal for the Law of the Sea, especially articles 4, 6 and 19.

¹⁷ ICC-ASP/1/3.

basis.¹⁸ The same goes for intergovernmental organisations and other entities that have received a standing invitation from the UN General Assembly to participate as observers,¹⁹ as well as non-governmental organisations.²⁰

II. Functions of the Assembly (Paragraph 2)

The second paragraph of article 112 outlines the major functions of the Assembly.

8

1. ‘recommendations of the Preparatory Commission’

Subparagraph (a) establishes the linkage between the Assembly and the Preparatory Commission for the International Criminal Court. The Preparatory Commission was created by Resolution F of Annex I the Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court in 1998.²¹ This subparagraph is of limited relevance today since the Preparatory Commission held its tenth and final session at United Nations headquarters from 1 to 12 July 2002 upon completion of its mandate.²²

The Assembly and the Preparatory Commission can be **distinguished** along a number of different axes: *One*, there are differences in **legal enablement** between the two. While the Assembly is established by the Statute itself, the Statute does not govern the Preparatory Commission, for it was established in the Final Act of the Rome Conference along the Statute itself. *Two*, there are temporal differences between the two bodies: the Assembly is a permanent body alongside the Court whereas the Commission was a **transient body** with its existence linked to a temporal mandate. *Three*, institutionally, there is a line of succession between the two. The Commission is a **precursor** to the Assembly. The Commission remained in existence only until the conclusion of the first meeting of the Assembly.²³ *Four*, there are obvious **functional differences** between the Assembly and the Commission. The Assembly is an administrative decision-making body for the Court whereas the purpose of the Commission was to prepare proposals for practical arrangements for the establishment and coming into operation of the Court.²⁴ *Five*, there was also a difference in terms of nature and **competence** between the Commission and the Assembly. While the Commission was only a recommendatory body to make proposals and prepare draft texts on the assigned subjects, the Assembly has decision making authority.

Subparagraph 2(a) establishes that the reports made by the Commission to the Assembly at its first meeting were to be considered and adopted by the Assembly ‘**as appropriate**’, meaning with or without changes. This is underlined by the language used in paragraph 5 of Resolution F of Annex I to the Final Act of the Rome Conference, stipulating that the ‘Commission shall prepare proposals’ for practical arrangements for the establishment of the Court.²⁵

The subject matter of these recommendations was determined by the mandate of the Commission as outlined in Resolution F relating to eight distinct areas.²⁶ These are the Rules

¹⁸ Rule 94 of the Rules of Procedure of the Assembly of States Parties (in the following: Assembly’s Rules of Procedure). At the 13th Assembly meeting in December 2014 in New York, the State of Palestine made remarks during the general debate on 15 December 2014 upon the Assembly’s invitation; see http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/GenDeba/ICC-ASP13-GenDeba-Palestine-ENG.pdf.

¹⁹ Rule 92 of the Assembly’s Rules of Procedure.

²⁰ Rule 93 of the Assembly’s Rules of Procedure.

²¹ See Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, Rome, 17 July 1998, UN Doc. A/CONF.183/10 (1998), Annex I, at: <http://legal.un.org/icc/statute/finalfra.htm>.

²² See <http://legal.un.org/icc/prepcomm/prepfra.htm>.

²³ Resolution F, UN Doc. A/CONF.183/10 (1998), para. 8.

²⁴ This included the preparation of the most essential legal texts of the Rome Statute legal framework. See in this Section and Resolution F, UN Doc. A/CONF.183/10 (1998), para. 5.

²⁵ Resolution F, UN Doc. A/CONF.183/10 (1998), paras. 5, 7.

²⁶ *Ibid.*, para. 5.

of Procedure and Evidence; the Elements of Crimes; the relationship agreement between the Court and the United Nations; basic principles governing a headquarters agreement between the Court and the Netherlands; financial regulations and rules; an agreement on privileges and immunities of the Court; the budget for the first financial year; and Rules of Procedure of the Assembly. In addition, proposals for a criminal provision on aggression were covered.²⁷ The Commission issued its **final report** to the Assembly during its tenth and final session at UN Headquarters from 1 to 12 July 2002 upon the entry into force of the Statute in accordance with article 126(1) of the Statute.

2. 'Management oversight'

- 13 The oversight function of the Assembly extends to the main representatives of the Court with fundamental management responsibilities, namely the Presidency, the Prosecutor and the Registrar. The Assembly, being a political body of States' representatives which meets only once per year, is not expected to perform a continuous oversight function in this area. For this purpose paragraph 4 of article 112 vests in the Assembly the power to establish necessary subsidiary bodies, and more specifically an independent oversight mechanism akin to the Office of Internal Oversight Services at the United Nations. Article 112 paragraph 2(b) and paragraph 4 have to be read together in this respect. The Assembly established the **Independent Oversight Mechanism (IOM)** in 2009²⁸ and issued its operational mandate in 2013.²⁹ To date, the IOM has still been not fully operational since the election of the new Head of the IOM still remains to be finalized by the Bureau in 2015, to be followed by the selection of staff.³⁰
- 14 There was some degree of controversy in the preparatory process of the Rome Conference as to whether the term 'administration' covers **judicial administration** in addition to the non-judicial operations of the Court. Some delegations strongly opposed this interpretation on the ground that the doctrine of judicial independence would not permit any intrusive oversight into the Court's judicial administration. In fact, the Draft Statute referred to by the Preparatory Committee to the Rome Conference in a corresponding article 102 employed two alternative terms 'non-judicial administration' and 'operations of the Court'.³¹ The compromise at Rome reflected in the Statute is on the term 'administration'. In the light of the negotiating history of this article, the term 'administration' does not lend itself to a wider interpretation so as to include judicial activities of the Court. This is reflected in the IOM's mandate as defined by the Assembly, stipulating that 'the IOM will fully respect the **judicial and prosecutorial independence** and its activities will not interfere with the effective functioning of the Court'.³² This is also consistent with the requirements in the Statute regarding the independence of both the Prosecutor and the Judiciary as enshrined in articles 40 and 42, respectively. However, the extent of the Assembly's administrative oversight is not defined; it is therefore left to article 112(4) and in particular the IOM with its mandate to conduct inspections, evaluations, and investigations at the ICC.³³ The IOM's present mandate will be addressed more in detail in paragraph 4 below.

²⁷ *Ibid.*, para. 7.

²⁸ Resolution ICC-ASP/8/Res.1, 'Establishment of an independent oversight mechanism', 26 November 2009.

²⁹ Resolution ICC-ASP/12/Res.6, 27 November 2013; the Operational Mandate of the IOM is attached as an annex to said resolution.

³⁰ The task of electing the Head of the IOM remains with States Parties who delegated this task to the Bureau. The 2014 Omnibus Resolution of the Assembly stops short of openly deploring that one year after issuing the operational mandate States Parties have not been in a position to elect a head of the office to fully operationalise the IOM. See Resolution ICC-ASP/13/Res.5, 'Strengthening the International Criminal Court and the Assembly of States Parties', 17 December 2014, para. 83.

³¹ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 3 (c).

³² Resolution ICC-ASP/12/Res.6, 'Independent Oversight Mechanism', 27 November 2013 (ICC-ASP/12/20), Annex 'Operational mandate of the Independent Oversight Mechanism', para. 27.

³³ O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015), p. 108.

The Assembly has assumed an important role in supporting transparent policy-setting and strategic planning in particular through a number of topical facilitations as part of its **The Hague Working Group**.³⁴ Examples are the Court's strategic planning process;³⁵ discussions on victims and affected communities, and the participation of victims in the proceedings, leading to the Court's strategy in relation to victims;³⁶ and cooperation. However, the Assembly has also taken slightly more aggressive approaches in areas where administrative oversight and judicial independence can be distinguished less easily, such as the question of principles relating to reparations;³⁷ the Court's obligations to fund family visits of indigent detainees;³⁸ and the Court's initiative to streamline and strengthen its criminal process.³⁹

Other facilitations in this regard include complementarity, universality, legal aid and policy issues.⁴⁰ Of note, the Assembly's **Study Group of Governance**, established in 2010 by the Assembly as a sub-group within the Hague Working Group, has since tackled a number of items of managerial relevance such as the relationship between the Court and the Assembly; the institutional framework within the Court; the Court's budgeting process; and, most importantly, efforts to increase the efficiency of the criminal process.⁴¹ In particular the latter aspect has led to a Court-internal 'lessons learned' project in close coordination with the Study Group of Governance.⁴² This process will be addressed more in detail in paragraph 4 below.

The construction of Court's **permanent premises** as well as the Court's transition in the end of 2015 are handled by the Oversight Committee on the Permanent Premises and will be addressed more in detail in Section IV below.

3. Consideration of activities of the Bureau and appropriate action

The legislative control of the Assembly over the Bureau, its executive body, is general but also specific to its reports and recommendations. For details, the discussion under Section III below of article 112 is pertinent.

³⁴ The Assembly entertains working groups in both New York and The Hague; see Report of the Bureau: Evaluation and rationalization of the working methods of the subsidiary bodies of the Bureau, ICC-ASP/12/59, para. 8: 'institutional questions whose discussion benefit from close interaction with the Court, such as the Court's budget, governance, oversight and host-state related issues are designated to The Hague. On the other hand, questions relating to the United Nations or that require the fullest possible representation on the part of States Parties are designated to New York'. Facilitators are elected by the yearly Assembly meetings.

³⁵ Strategic planning process of the Court, ICC-ASP/5/Res.2; Report of the Bureau on the Strategic Planning Process of the Court, ICC-ASP/7/29; common efforts resulted in the ICC's Strategic Plan 2013–2017 of 18 April 2013 (available at: <http://www.icc-cpi.int/iccdocs/registry/ICC-Strategic-Plan-2013-2017-190413.pdf>) and updated yearly since; this also lead to the ICC Office of the Prosecutor's Strategic Plan – June 2012–2015, 11 October 2013, with an update expected in the first half of 2015. See also the Report of the Bureau on the Strategic planning process of the International Criminal Court, ICC-ASP/13/27, 31 October 2014.

³⁶ Court's Revised strategy in relation to victims, ICC-ASP/11/38, 5 November 2012; see also Report of the Bureau on victims and affected communities, Trust Fund for Victims and reparations, ICC-ASP/13/32, 28 November 2014.

³⁷ See Report of the Court on principles relating to victims' reparations, ICC-ASP/12/39, 8 October 2013; Report of the Bureau on victims and affected communities, Trust Fund for Victims and reparations, ICC-ASP/13/32, 28 November 2014.

³⁸ Strengthening the International Criminal Court and the Assembly of States Parties, ICC-ASP/6/Res.2, para. 14.

³⁹ Study Group on Governance Working Group on Lessons Learnt: Second report of the Court to the Assembly of States Parties, ICC-ASP/12/37/Add.1, 31 October 2013. See Ambach, in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015), 1277.

⁴⁰ See only the list of reports of the different facilitations on the Assembly website for each year's Assembly meeting; for 2014: http://www.icc-cpi.int/en_menus/asp/sessions/documentation/13th-session/Pages/default.aspx.

⁴¹ Resolution ICC-ASP/9/Res. 2, of 10 December 2010, para. 6; Report of the Bureau on the Study Group on Governance, ICC-ASP/10/30, 22 November 2011.

⁴² Ambach, in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015).

4. ‘decide the budget’

- 19 This is a general clause on the **fiscal authority** of the Assembly to consider and decide the budget of the Court. It may be read together with paragraph 5(g) of Part F to Annex I of the Final Act which specifically deals with the first budget.⁴³ That process required that the Preparatory Commission submitted the draft budget for the first financial year to the Assembly at its first meeting.⁴⁴ Once it was placed before the Assembly, it was for the Assembly to consider and approve that budget in accordance with this general clause.
- 20 An issue that arose in this connection during the Preparatory Committee was whether the Assembly should **consult with the Registrar** in deciding on the budget. Different views were expressed on the merits and demerits of the proposal. Accordingly, the Draft Statute to the Rome Conference included the proviso ‘[in consultation with the Registrar]’.⁴⁵ However, the final text of the Statute omitted it, at least for two reasons. *One*, by virtue of paragraph 5 of this article, the Registrar, the President, the Prosecutor or their representatives, may participate in the meetings of the Assembly as well as the Bureau. Therefore, the Court’s principals anyway had a forum to provide the Court’s views. And, *two*, it was felt that the Financial Regulations and Rules and the Rules of Procedure of the Assembly could also be formulated to cover the matter, if necessary. As in the case of other international organizations including tribunals, it was considered reasonable to assume that in practice the draft **budget proposals would originate from the Court**, and the Assembly would perform the legislative function of considering and approving the budget. Hence, it was felt that the role for the Court and the Registrar to provide input on the Court’s financial requirements and to have an opportunity to clarify them are adequately built into the Court’s legal framework. The Draft Statute of the Preparatory Committee also contained an additional element under this clause, that is, ‘rule on any financial issue’. It was deleted in Rome mainly because it was considered superfluous.⁴⁶
- 21 The Financial Regulations and Rules⁴⁷ provide in Regulation 3.1 that ‘[t]he proposed programme budget for each financial period shall be prepared by the Registrar in consultation with the other organs of the Court referred to in article 34, subparagraphs (a) and (c), of the Rome Statute.’ Rule 103.2(2) then provides that upon finalization the draft budget shall be submitted to the **Committee on Budget and Finance (CBF)**, a subsidiary body of the Assembly consisting of financial experts that provide independent expert advice on the ICC’s annual budget request and other financial and administrative matters.⁴⁸ The CBF then consults with the Court and subsequently submits its recommendations to the Assembly. Further consultations between the Assembly and States Parties ensue during the budget facilitation in the Hague Working Group and, eventually, during the Assembly sessions. However, the final budgetary authority rests with the Assembly.⁴⁹

⁴³ UN Doc. A/CONF.183/10 (1998), Annex I, Resolutions adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court. See Resolution F, paragraph 5 (g).

⁴⁴ *Ibid.*, also see paragraph 9, which reads ‘The Commission shall prepare a report on all matters within its mandate and submit it to the first meeting of the Assembly of States Parties’.

⁴⁵ UN Doc. A/CONF.183/10 (1998), Annex I, Resolutions adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court. See Resolution F, article 102 para. 2 (d) reads ‘consider and approve the budget for the Court [in consultation with the Registrar] [and rule on any financial issue]’.

⁴⁶ *Ibid.*

⁴⁷ See also rule 88(1) of the Rules of Procedure of the Assembly.

⁴⁸ Establishment of the Committee on Budget and Finance, ICC-ASP/1/Res. 4. The Committee is made up of twelve experts of internationally recognized standing and experience in financial matters. It was established at the first session and currently meets twice a year.

⁴⁹ For a more detailed overview see Ambach and Rackwitz (2013) 76 *Law and Contemporary Problems* 119, 147 et seq., 156.

To date, the Assembly has approved 13 annual budgets of the ICC totaling more than €1,1 billion, including €130,665.6 million for 2015.⁵⁰ The Court's steadily increasing yearly programme budgets have in the recent past met criticism by some States Parties. Source of frustration was often times States' perceived lack of oversight over what the Court used its funds for. Increased initiatives of States to receive more detailed information on the Court's activities, strategies, expenditures, budgeting principles and governance threatened to overburden the Court with reporting requirements. At the Assembly's 10th session in 2011 some of the highest contributing members to the ICC budget called for '**zero nominal growth**', regardless of increases in a number of budget items of the Court, and notably the scale of its activities.⁵¹ This was met with strong opposition of other States Parties in the Assembly. Despite the election of six new judges at the 10th session, long debates on the budget became the dominating issue of the session. The compromise agreed upon by States by consensus did not reduce the Court's programme budget to zero nominal growth; however, the approved budget for 2012 included reductions that went significantly below the budget requested by the Court and, as a very rare occasion, even went further than the budget reductions recommended by the Assembly's committee of financial experts, the CBF.⁵²

Following the 10th session, a number of thematic facilitations by States Parties were created due to a perceived need to take stock of the institutional framework of the Rome Statute system and to improve the efficiency and effectiveness of the Court. The Study Group on Governance was created within the Hague Working Group of States Parties,⁵³ focusing on items such as the efficiency of the criminal process and the Court's budgeting process.⁵⁴ The mandate of the Study Group on Governance has been renewed ever since its inception.⁵⁵ As a result of such increased interaction, States' approach in relation to the Court's budget in the years following 2011 was more governed by reliance on the **recommendations of the CBF** and reflected agreements that had previously been prepared by The Hague Working Group budget facilitation in advance of the Assembly's session.⁵⁶ Accordingly, the programme budgets adopted by the Assembly for the years 2013, 2014 and 2015 followed previous recommendations of the CBF. Calls by some States for zero nominal growth did not gain any traction. The reliance on the CBF as the Assembly's most important subsidiary body in terms of financial expertise has two major advantages: first, the logic of budgetary reductions is based on recommendations of an **independent expert body** rather than considerations and discussions among States Parties which inevitably include political considerations;⁵⁷ second, disposing of the budget as a discussion item prior to the Assembly session leaves more space for other relevant issues on the Assembly's agenda such as, amongst others, universality, cooperation, complementarity and the efficiency of the criminal process. In addition, the Assembly honors its duty to 'consider and decide the budget for the Court' during the intense consultations between States Parties and the Court in the two months preceding the Assembly session.

⁵⁰ Resolution ICC-ASP/13/Res.1, 17 December 2014, para. 1; O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015), 114.

⁵¹ See O'Donohue (2013) 13 *ICLRev* 269, 279–81.

⁵² *Ibid.*

⁵³ ICC-ASP/9/Res.2, Establishment of a study group on governance, 10 December 2010. On the study group's mandate to increase the efficiency of Court proceedings see Ambach, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 1285.

⁵⁴ *Ibid.*; in 2012 and 2013, one of the clusters of the Study Group on Governance dealt with 'enhancing the transparency and predictability of the budgetary process': ICC-ASP/11/31, Report of the Bureau on the Study Group on Governance, 23 October 2012, paras. 8 et seq.; ICC-ASP/12/37, Report of the Bureau on Study Group on Governance, 15 October 2013, paras. 26 et seq.

⁵⁵ For 2015, see ICC-ASP/13/Res.5, annex I, paras. 6 (a), 10(a).

⁵⁶ O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 115.

⁵⁷ *Ibid.*

5. ‘to alter the number of judges’

- 24 a) **Increase in the number of judges pursuant to article 36 of the Statute.** Article 36(1) of the Statute provides that the default number of judges at the Court is 18. Article 36(2) stipulates that the Presidency may propose an increase to States Parties, to be decided upon by the Assembly. Article 112(2)(e) mirrors that provision.
- 25 This clause differs from the relevant provision of the Draft Statute sent to the Rome Conference by the Preparatory Committee. The Draft Statute considered, in addition to the proposal for an alteration of the number of judges, the possibility of the Assembly dealing similarly with the offices of the Registrar and the Prosecutor.⁵⁸ Owing to a lack of agreement on the latter proposition, the Conference dropped its inclusion in the Statute. Of note, the term used in the Statute for such authority of the Assembly to alter the number of judges is ‘decide’ while the Draft Statute suggested the term ‘determine’.⁵⁹ The change indicates recognition of the **finality of the competence** of the Assembly.
- 26 The method and procedure of the alteration of the number of judges of the Court has to be in accordance with the substantive provisions of the appointment of judges contained in article 36 of the Statute.⁶⁰
- 27 b) **Election of the judges, the Prosecutor and Deputy Prosecutor(s).** The Assembly of States Parties has the important responsibility to elect **highly-qualified** senior officials to the ICC, namely judges, the Prosecutor and Deputy Prosecutor(s).⁶¹ In its past thirteen sessions, the Assembly has conducted elections for 45 judges and elected two Prosecutors and three Deputy Prosecutors of the ICC.⁶² It has also provided recommendations for the election of the Registrar by the plenary of judges.⁶³
- 28 **Election of Judges:** In 2003, the Assembly issued a **procedure** for the election of judges at the ICC and developed an innovative voting system to achieve the representation of the **principal legal systems** of the world, **equitable geographic representation** and a fair representation of **female and male** judges, as required by Article 36(8)(a) of the Statute.⁶⁴ Article 36(5) requires that ‘at the first election of the Court, at least nine judges shall be elected from list A,’ which includes judges with established competence in criminal law and procedure, and ‘at least five from list B’, referring to experts in international law, international humanitarian law and law of human rights (article 36(3)(b) of the Statute). Article 36(5) continues that ‘[s]ubsequent elections shall be so organized as to maintain the equivalent proportion on the Court of judges qualified to the two lists.’ Following this matrix, the Assembly decided that State Parties were required to vote for a minimum number of candidates from each region, list A and B and a minimum number of women in the first four

⁵⁸ UN Doc. A/CONF.183/10 (1998), Annex I, Resolutions adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, Resolution F, article 102 para. 2 (e) reads as follows: ‘determine whether to alter, as appropriate, the number of judges [or members of the Office of the Prosecutor or the Registry] serving on a full or part-time basis, for such period as it shall determine’.

⁵⁹ *Ibid.*

⁶⁰ UN Doc. A/CONF.183/9 (1998), article 36 deals with ‘Qualifications, nomination and election of judges’. For a detailed discussion of this aspect, see Wen-qi/Chana, above, article 36.

⁶¹ Articles 36, 37, 42(4) of the Statute.

⁶² See the Assembly’s election webpage: http://www.icc-cpi.int/en_menus/asp/elections/Pages/election2014.aspx.

⁶³ ‘Recommendation concerning the election of the Registrar of the International Criminal Court’, ICC-ASP/6/Recommendation 1 (2007); Recommendation concerning the election of the Registrar of the International Criminal Court, ICC-ASP/11/Recommendation 1.

⁶⁴ ICC-ASP/1/Res. 3, Procedure for the election of the judges for the International Criminal Court, 9 September 2002, amended and specified by ICC-ASP/3/Res.6 (2004), Procedure for the nomination and election of judges, the Prosecutor and Deputy Prosecutors of the International Criminal Court – Consolidated version; see also the latest amendment in ICC-ASP/13/Res.5, 17 December 2014, Annex II, inserting new text in paragraph 27(b) of Resolution ICC-ASP/3/Res.6: ‘The nomination period shall open 18 weeks before the elections and shall last 6 weeks.’; see also generally O’Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015), 126–129.

rounds of an election; the requirements would thereafter be adjusted according to the overall composition of the elected and serving judges.⁶⁵ In its resumed 13th session on 24 and 25 June 2015, the Assembly elected the eighteenth judge, filling a judicial vacancy resulting from the resignation in 2014 of a previously elected judge in 2014.⁶⁶

Over time, a sound balance has emerged. Until recently, women held ten of the 18 judicial positions and States have been required in the 2011 elections to vote for a minimum number of men.⁶⁷ The minimum voting requirements have also contributed to ensuring that the requirements of Article 35(5) to elect at least nine judges from list A and at least five from list B are met. With 2014's elections, however, six male candidates were elected and therefore tilted the balance to a slight male overrepresentation.⁶⁸

In 2011, the Assembly established the **Advisory Committee on Nominations**, an important addition to the framework that examines the qualifications of nominees, helping States to consciously consider judges' qualifications when casting their votes.⁶⁹ The Advisory Committee builds on the work of the **Independent Panel on ICC Judicial Elections**, set up in by the non-governmental organisation Coalition for the International Criminal Court (CICC) in 2010 to raise awareness and assess the qualifications of ICC judicial candidates for the 2011 elections.⁷⁰

The Advisory Committee's first evaluation of candidates for the election of one judicial vacancy occurred at the twelfth session.⁷¹ Subsequently, the Advisory Committee issued recommendations for the election of six judges in 2014;⁷² further recommendations to fill a judicial vacancy pursuant to article 37 of the Statute were submitted in 2015.⁷³

Elections of the Prosecutor and Deputy Prosecutor(s): In the Assembly's first session it was decided that every effort should be made to elect the ICC Prosecutor by consensus despite the mere absolute majority requirement in article 42(4) of the Statute.⁷⁴ The nomination procedure follows *mutatis mutandis* the procedure foreseen for the judges.⁷⁵ The election of Deputy Prosecutors follows a process similarly outlined in article 42(4): the Prosecutor nominates three candidates for each position of Deputy Prosecutor who are presented to the Assembly for an election which follows the same rules as for the Prosecutor.⁷⁶

For the election for the second Prosecutor in 2011, the Bureau of the Assembly established a **Search Committee** mandated to 'facilitate the nomination and election, by consensus, of the next Prosecutor'.⁷⁷ The Search Committee was specifically mandated to: 1) receive

⁶⁵ See ICC-ASP/13/46, Report of the Advisory Committee on Nominations of Judges on 24 April 2015; ICC-ASP/1/Res. 3, 'Procedure for the election of the judges for the International Criminal Court', 9 September 2002, paras. 3 and 7.

⁶⁶ ICC-ASP/13/44, Election of a judge to fill a judicial vacancy of the ICC, 14 April 2015.

⁶⁷ Election of judges for the International Criminal Court: guide for fourth election, ICC-ASP/10/19.

⁶⁸ See for the 2014 election results on the Assembly homepage under: http://www.icc-cpi.int/en_menus/asp/elections/judges/2014/Nominations/Pages/2014-JE-results.aspx.

⁶⁹ See ICC-ASP/10/36, Report of the Bureau on the establishment of an Advisory Committee on nominations of Judges of the International Criminal Court, 30 November 2011.

⁷⁰ The panel operated independently from the CICC or the ICC. Regarding its members see http://www.coalitionfortheicc.org/documents/CICC_PR_Independent_Panel_31Mar2011.pdf.

⁷¹ Report of the Advisory Committee on Nomination of Judges on the work of its second meeting, ICC-ASP/12/47, Annex I.

⁷² ICC-ASP/13/22, Report of the Advisory Committee on Nominations of Judges on the work of its third meeting, 29 September 2014.

⁷³ ICC-ASP/13/Res.5, Strengthening the International Criminal Court and the Assembly of States Parties, 17 December 2014, para. 44 and Annex I, Mandates of the Assembly of States Parties for the intersessional period, para. 4.

⁷⁴ See ICC-ASP/3/Res.6 (2004), Procedure for the nomination and election of judges, the Prosecutor and Deputy Prosecutors of the International Criminal Court – Consolidated version, para. 33.

⁷⁵ *Ibid.*, para. 28.

⁷⁶ *Ibid.*, paras. 36–42.

⁷⁷ ICC-ASP/9/INF.2, Bureau of the Assembly of States Parties: Search Committee for the position of the Prosecutor of the International Criminal Court: Terms of Reference, 6 December 2010, para. 5.

expressions of interest from individuals, States, regional and international organizations, civil society, professional associations and other sources; 2) actively identify and informally approach individuals who may satisfy the applicable criteria, in particular those contained in Article 42 of the Statute; 3) review any expressions of interest in light of the relevant criteria; and 4) produce a shortlist of at least three suitable candidates for consideration by the Bureau.⁷⁸ From 52 candidates that had been included on the Search Committee's list, eight were interviewed.⁷⁹ A report was submitted to the Assembly containing a shortlist of four candidates on 22 October 2011, just before the tenth session.⁸⁰ At that point, informal consultations began to establish consensus which led to the formal nomination and election by consensus of Mme. Fatou Bensouda. There remains some tension between the wording of article 42(4) of the Statute stipulating an election process by secret ballot requiring an absolute majority of Assembly members, and the Assembly's – political – efforts to achieve consensus.⁸¹

6. 'non-cooperation'

- 34 Initially, different views were held on whether the issue of non-cooperation should be dealt with in the Statute generally as well as specifically in the context of the Assembly. The objections, at least as far as they related to non-States Parties, were based on the well-known doctrine of the law of treaties about the non-binding nature of treaty obligations on third parties unless the latter consent to them.⁸² That apart, in the event that the Assembly should deal with non-cooperation, it was not clear as to whether the Assembly could take up such cases on its own or whether they should be referred by the Court or by the Security Council or by any other body of the UN such as the General Assembly. The Draft Statute contained this provision in square brackets.⁸³
- 35 The Statute resolved the problem by making reference to the power of the Assembly to deal with the matter of non-cooperation, but by **leaving the definition** of the substance to Part 9 of the Statute dealing with cooperation. Consequently, article 112(2)(f) merely refers to article 87 paras. 5 and 7: the Court may refer cases of non-cooperation by States Parties or those non-States Parties that entered into an *ad hoc* arrangement or agreement to cooperate with the Court, to the Assembly, and to the Security Council in respect of those matters referred to it by the Security Council.⁸⁴
- 36 At its tenth session in 2011, the Assembly adopted the '**Assembly Procedures relating to non-cooperation**',⁸⁵ outlining the general procedure on Assembly level in case of a non-

⁷⁸ *Ibid.* para 6.

⁷⁹ Report of the Search Committee for the Position of the Prosecutor of the International Criminal Court, 22 October 2011, para. 31, at: http://www.icc-cpi.int/iccdocs/asp_docs/Elections/EP2011/EP2011-PSC-Report-ENG.pdf.

⁸⁰ *Ibid.* The Search Committee received praise for its work by the then outgoing President of the Assembly, Christian Wenaweser (Liechtenstein): Secretariat of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Tenth Session, 12–21 December 2011, New York, Closing remarks by Christian Wenaweser as ASP President (2009–2011), under: http://www.icc-cpi.int/iccdocs/asp_docs/ASP10/Statements/ASP10-ST-PASP-CW-CLRemarks-ENG.pdf.

⁸¹ See, for a critical view, O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 130–31.

⁸² See Art. 59 of the ICJ Statute; Vienna Convention on the Law of Treaties, Section 4, Part III, and Art. 34 in particular. However, also note Art. 38 of said Convention as well as the fact that rights can be conferred on third parties.

⁸³ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 2 (f) reads '[consider, upon recommendation [of the Court] [of the Bureau], any question relating to non-cooperation by States Parties [and non-States Parties] and take [necessary] [appropriate] measures, including referring the matter to [the Security Council] [the United Nations General Assembly] as provided in article 86]'.
⁸⁴ Art. 87(5) deals with requests of the Court to a non-State Party to cooperate with it on the basis of an *ad hoc* arrangement or an agreement. Paragraph 7 of that article provides for compliance by a State Party with a cooperation request by the Court. See a detailed discussion under article 87 in this Commentary.

⁸⁵ Assembly procedures relating to non-cooperation, annex to ICC-ASP/10/Res.5, Strengthening the International Criminal Court and the Assembly of States Parties, p. 419.

cooperation finding issued by the Court.⁸⁶ The Assembly's procedures on non-cooperation provide for different scenarios of non-cooperation and respective formal and informal measures on the diplomatic and political level to respond to situations of non-cooperation: (i) where the Court has referred a matter of non-cooperation pursuant to article 87(5) or (7) to the Assembly, requiring a formal response;⁸⁷ and (ii) an informal response without a referral from the ICC where 'there are reasons to believe that a specific and serious incident of non-cooperation in respect of a request for arrest and surrender of a person is about to occur or is currently on-going and urgent action by the Assembly may bring about cooperation.'⁸⁸ The above measures are to be taken and led predominantly by the President of the Assembly, in consultation with or as decided by the Bureau.⁸⁹ In the case of referrals from the ICC triggering a formal response procedure, the procedure provides for the possibility for the Bureau to schedule a public meeting on the matter to allow for an open dialogue with the requested State.⁹⁰ Finally, the Assembly can issue a resolution 'containing concrete recommendations on the matter'.⁹¹

The Court has repeatedly made **non-cooperation findings** and referred the matter to either the Assembly⁹² or the UN Security Council.⁹³

Promoting Cooperation: The Assembly recognized in 2007 that 'cooperation between the [ICC] and States Parties, international organizations and non-governmental organizations is an essential basis for the effective functioning of the Court.'⁹⁴ The Assembly has since promoted national implementation of the Rome Statute, cooperation with the United Nations in accordance with the Relationship Agreement,⁹⁵ and cooperation agreements with regional organizations.⁹⁶ In 2007, it adopted 66 recommendations on cooperation which were reviewed in 2015.⁹⁷

Promoting Universality: The Assembly established a **Plan of action for achieving universality and full implementation of the Rome Statute** at its fifth session in 2006. It held that both objectives are 'imperative if we are to end impunity for the perpetrators of the most serious crimes of international concern, contribute to the prevention of such crimes, and guarantee lasting respect for and enforcement of international justice.'⁹⁸ The Plan

⁸⁶ *Ibid.*, paras. 12–20. The focus at the time was the Sudanese President Omar al-Bashir and his travels after the ICC had issued an arrest warrant against him in March 2009. The African Union adopted decisions that its members should not cooperate with the ICC regarding his arrest, see Decision on the meeting of African States Parties to the Rome Statute of the International Criminal Court (ICC), Doc. Assembly/AU/13/(XIII), para. 10.

⁸⁷ Assembly procedures relating to non-cooperation, ICC-ASP/10/Res.5, Annex, paras. 7(a), 10.

⁸⁸ *Ibid.* at para. 7(b).

⁸⁹ *Ibid.* paras. 14–20.

⁹⁰ *Ibid.* paras. 14(c) and (d).

⁹¹ *Ibid.* para. 14(f).

⁹² For the latest filing see *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir's Arrest and Surrender to the Court, ICC-02/05-01/09-195, 9 April 2014; generally see http://www.icc-cpi.int/en_menus/asp/non-cooperation/Pages/default.aspx.

⁹³ For the latest filing see *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, Decision on the Prosecutor's Request for a Finding of Non-Compliance Against the Republic of the Sudan, ICC-02/05-01/09-227, 9 March 2015; see also *The Prosecutor v. Saif Al-Islam Gaddafi*, Decision on the non-compliance by Libya with requests for cooperation by the Court and referring the matter to the United Nations Security Council, ICC-01/11-01/11-577, 10 December 2014; generally see http://www.icc-cpi.int/en_menus/asp/non-cooperation/Pages/default.aspx.

⁹⁴ Report of the Bureau on cooperation, ICC-ASP/6/21, para. 1.

⁹⁵ Report of the Bureau on Cooperation, ICC-ASP/6/21, paras. 60–63. For details on the Negotiated Relationship Agreement between the International Criminal Court and the United Nations of 4 October 2004 see Ambach, commentary article 2, mn. 20 et seq.; see also generally ICC-ASP/12/42, Report of the Court on the status of ongoing cooperation between the International Criminal Court and the United Nations, including in the field, 14 October 2013.

⁹⁶ See ICC-ASP/13/29, Report of the Bureau on cooperation, 21 November 2014; see also ICC-ASP/13/Res. 5/, Annex I, Mandates of the Assembly of States Parties for the intersessional period, para. 2. Report of the Bureau on Cooperation, ICC-ASP/6/21, para. 32.

⁹⁷ ICC-ASP/6/21, pp. 7 et seq.; ICC-ASP/13/Res.5, Annex I, para. 2.

⁹⁸ Plan of action of the Assembly of States Parties for achieving universality and full implementation of the Rome Statute of the International Criminal Court, ICC-ASP/5/Res.3, Annex, para. 1.

underlines that it is States Parties that have the primary responsibility for promoting the above objectives.⁹⁹ This is a reminder for States regarding one of their most important activities short of cooperation duties under Part 9 of the Statute. The Plan outlines a comprehensive set of essential efforts that States Parties should engage in, going beyond mere diplomatic support and requiring focused action including of technical and financial nature.¹⁰⁰ The Secretariat of the Assembly has been given the role of focal point for information exchange (albeit absent additional resources to fulfil this role) and it is on the Bureau to periodically review the Plan of action.¹⁰¹ States Parties, civil society, academia, international (non-governmental) organizations and professional associations have been promoting the Plan's two main goals through seminars, advocacy, technical and other assistance.¹⁰² Also the Assembly President has taken a rather active role in promoting the goals of the Plan, alongside the President of the Court.¹⁰³ There are also to add country focal points on the Plan appointed by the Bureau (in 2015 Cyprus and Denmark).¹⁰⁴ Despite these efforts, doubts are being expressed whether any actions following the Plan has had a significant positive impact in advancing the goals of universality and full implementation of the Rome Statute.¹⁰⁵ The low, and since the Review Conference in 2010 in fact decreasing, number of States reporting on their activities seems to suggest that States Parties do not consider the implementation of the Plan as a priority – or at least the reporting thereon.¹⁰⁶ The Universal Periodic Review at the Human Rights Council has actually become a main venue for States to make Plan of Action-related recommendations (i.e. on ratification and full implementation) to other States.¹⁰⁷ A more effective and adequately resourced framework with direct incentives for States to engage could lead to greater success in the future.

- 40 **Promoting Complementarity:** As a result from the stocktaking exercise on complementarity at the **Review Conference 2010 in Kampala** (Uganda), the Assembly not only underlined the importance – and, indeed, obligation – of States Parties taking effective domestic measures to implement the Rome Statute, but also stressed the need for additional measures at the national level to enhance capacity and the desirability for States to assist each other.^{108,109} Interestingly, the Assembly encouraged not only States Parties and other stakeholders but also the Court to further 'explore ways in which to enhance the capacity of national jurisdictions to investigate and prosecute serious crimes of international concern'.¹¹⁰

⁹⁹ *Ibid.*, para. 3.

¹⁰⁰ *Ibid.*, para. 6.

¹⁰¹ *Ibid.*, paras. 7, 8.

¹⁰² See, e.g. Report of the Bureau on the Plan of action for achieving universality and full implementation of the Rome Statute of the International Criminal Court, ICC-ASP/13/36, 28 November 2014 (with a comprehensive list of activities undertaken by international and other organizations in paras. 27 et seq.), and the previous year's report with identical title, ICC-ASP/12/26, 15 November 2013. This report can be considered a standard item generating yearly Assembly reports also in the coming years.

¹⁰³ Report of the Bureau on the Plan of action for achieving universality and full implementation of the Rome Statute of the International Criminal Court, ICC-ASP/13/36, 28 November 2014, paras. 8 et seq.

¹⁰⁴ See Agenda and Decisions of the Bureau of the Assembly of States Parties, 2 March 2015, at: http://www.icc-cpi.int/iccdocs/asp_docs/Bureau/ICC-ASP-2015-Bureau-02b-02Mar2015.pdf.

¹⁰⁵ O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 134.

¹⁰⁶ For 2014, see the Assembly Secretariat's *note verbale* to States Parties: ICC-ASP/13/PA/45 of 7 July 2014 and responses of altogether 10 States Parties by December 2014; for a general overview see the relevant section on the Plan of action on the Assembly website: http://www.icc-cpi.int/en_menus/asp/sessions/plan%20of%20action/Pages/plan%20of%20action.aspx.

¹⁰⁷ Coalition of the International Criminal Court, *Seeking Universality of the Rome Statute of the International Criminal Court Through the United Nations Human Rights Council*, 22nd session of the UN Human Rights Council Universal Periodic Review (4 to 15 May 2015) at: https://www.iccnw.org/documents/ICC_at_the_22nd_UPR_session_4-5May_2015_WG_outcome01062015.pdf.

¹⁰⁸ Review Conference, Complementarity, RC/Res.1, 8 June 2010, para. 1; ICC-ASP/8/51, Report of the Bureau on stocktaking: Complementarity Taking stock of the principle of complementarity: bridging the impunity gap, 18 March 2010, paras. 5, 12, 28–29.

¹⁰⁹ Review Conference, Complementarity, RC/Res.1, 8 June 2010, paras. 1–5.

¹¹⁰ *Ibid.*, para. 8. See also ICC-ASP/8/51, Report of the Bureau on stocktaking: Complementarity Taking stock of the principle of complementarity: bridging the impunity gap, 18 March 2010, para. 28.

This wording can be understood to provide the Court at least to some degree with a mandate to engage in **positive complementarity**¹¹¹ efforts, however without adding ‘to the functions of the Court or fundamentally chang[ing] the way in which it interacts with domestic jurisdictions’.¹¹² The Bureau clarified in its 2010 report on complementarity that ‘the Court is **not a development agency**’ and that the Court’s role is one of a ‘catalyst’ of direct State-to-State or other indirect assistance through other actors.¹¹³ Any complementarity efforts would therefore have to be arguably (almost) budget-neutral.¹¹⁴ Cooperation pursuant to article 93(10) of the Statute is one example of such assistance.¹¹⁵

Relevant activities have so far focused on building capacity of States that are **unable** to genuinely investigate and prosecute Rome Statute crimes include support for implementing legislation; rule of-law activities (also in cooperation with specialised international and regional organisations); identification of donor (States); and an open dialogue between all actors, including the Court and civil society, on how to advance positive complementarity.¹¹⁶ In 2013, the European Union issued a helpful ‘EU complementarity toolkit’, exploring a number of areas of potential intervention.¹¹⁷ Yearly retreats hosted by the International Center for Transitional Justice bring different role players, including the Court, together to explore potential synergies between different development and capacity-building initiatives.¹¹⁸ Many other initiatives by States, international and regional actors exist.¹¹⁹ As regards States **unwilling** to provide adequate national venues and mechanisms of investigation and prosecution of ICC crimes, the EU complementarity toolkit considers that **diplomatic action**, preferably in relevant political and human rights-related fora, ‘offer an excellent opportunity to keep the pressure high’.¹²⁰ The Assembly has not yet explicitly picked up this ‘politically complex’¹²¹ matter other than acknowledging that ‘complementarity has a specific meaning relating to the **admissibility** of cases before the Court’, thus remaining an exclusively **judicial issue**.¹²²

The Secretariat of the Assembly is mandated to **facilitate the exchange of information** between the Court, States Parties and other stakeholders (including international organisations and civil society), albeit within its existing resources and without ‘any major role with regard to coordination and implementation of activities’.¹²³ These efforts include entertaining

¹¹¹ ICC-ASP/9/26, Report of the Bureau on complementarity, 17 November 2010, footnote 1: “‘positive complementarity’ [...] refers to all activities/actions whereby national jurisdictions are strengthened and enabled to conduct genuine national investigations and trials of crimes included in the Rome Statute.’”

¹¹² ICC-ASP/8/51, Report of the Bureau on stocktaking: Complementarity Taking stock of the principle of complementarity: bridging the impunity gap, 18 March 2010, para. 4. See also ICC-ASP/9/26, Report of the Bureau on complementarity, 17 November 2010, para. 23, mentioning the activities of the Court as an issue requiring further attention by the Assembly.

¹¹³ *Ibid.*, paras. 4. 42 et seq.; ICC-ASP/9/26, Report of the Bureau on complementarity, 17 November 2010, para. 13.

¹¹⁴ *Ibid.*, paras. 4, 16. See, however, also RC/ST/CM/INF.2, Review Conference of the Rome Statute – Focal points’ compilation of examples of projects aimed at strengthening domestic jurisdictions to deal with Rome Statute Crimes, 30 May 2010, Example A, indicating Court efforts to further complementarity which are *not* budget-neutral.

¹¹⁵ See ICC-ASP/13/30, Report of the Bureau on complementarity, 28 November 2014, para. 19.

¹¹⁶ *Ibid.*, paras. 34, 39, and Recommendation f), para. 54. See for further examples RC/ST/CM/INF.2, Review Conference of the Rome Statute – Focal points’ compilation of examples of projects aimed at strengthening domestic jurisdictions to deal with Rome Statute Crimes, 30 May 2010.

¹¹⁷ European Commission and the External Action Service, Joint Working Document on Advancing the Principle of Complementarity, SWD (2013) 26, 31 January 2013, at: http://www.icc-cpi.int/en_menus/asp/complementarity/Documents/joint-working-%20complementarity-Toolkit-ENG.pdf.

¹¹⁸ See ICC-ASP/9/26, Report of the Bureau on complementarity, 17 November 2010, para. 8.

¹¹⁹ See ICC-ASP/13/30, Report of the Bureau on complementarity, 28 November 2014, paras. 21 et seq.

¹²⁰ *Ibid.*, p. 10.

¹²¹ O’Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 137.

¹²² ICC-ASP/13/30, Report of the Bureau on complementarity, 28 November 2014, para. 18; an ‘unwilling’ situation country would therefore have to face judicial consequences as outlined in arts. 17 et seq. of the Statute.

¹²³ *Ibid.*, para. 52; Review Conference, Complementarity, RC/Res.1, 8 June 2010, para. 9. See already ICC-ASP/2/Res.3.

a complementarity website with a dedicated ‘resources page’ to ‘provide information on events relating to complementarity, identify the main actors and their relevant activities, and facilitate contact between donors and recipients.’¹²⁴ Within this mandate, the Secretariat reaches out to States, international and regional organizations and civil society, assists in workshops and seminars and reports thereon periodically to the Assembly.¹²⁵ The President of the Assembly also carries out a number of **complementarity-related initiatives**.¹²⁶

7. ‘any other function’

- 43 The clause is essentially of a **residual nature** and enables the Assembly to undertake any other function consistent with the Statute or the Rules. The other functions specifically discussed during negotiations were *inter alia* appeals for pardon, and review of the Statute or the Rules.¹²⁷ There was no agreement on an inclusion of review powers for the Assembly and the question of review of the Statute was dealt with elsewhere in the Statute.¹²⁸ Thus, the residuary clause is left vague without any specific content and still remains subject to the test of overall compatibility with the Statute.
- 44 The Assembly has some other **functions specified elsewhere** in the Statute. For instance it has the competence to settle disputes between States Parties on the interpretation or application of the Statute as contained in article 119, and to deal with amendments to the Statute and to convene a Review Conference under articles 121 and 122. It has the responsibility under article 79 to establish a Trust Fund for the benefit of victims of crimes covered within the jurisdiction of the Court.¹²⁹ Finally, pursuant to article 116, the Assembly has to adopt criteria governing the receipt and utilization of voluntary contributions towards the funds of the Court.¹³⁰ In the meantime, the Trust Fund for Victims has established regulations which also address the receipt of voluntary contributions from States and other entities.¹³¹

III. Paragraph 3: the ‘Bureau’

1. Members

- 45 The Bureau has a total membership of **twenty-one** representatives of States Parties; a President, two Vice-Presidents and eighteen members, elected by the Assembly for a period of three years.¹³² The wording used is ‘three year terms’ indicating that members of the

¹²⁴ ICC-ASP/14/SP/44, note verbale of the Secretariat pursuant to ICC-ASP/13/Res.5; ICC-ASP/13/30, Report of the Bureau on complementarity, 28 November 2014, Annex II (Report of the Secretariat on complementarity), paras. 27 et seq.; Report of the Secretariat on complementarity, ICC-ASP/10/2, 11 November 2011, para. 10.

¹²⁵ ICC-ASP/13/30, Report of the Bureau on complementarity, 28 November 2014, Annex II (Report of the Secretariat on complementarity), para. 4, section IV; see also RC/1 of 8 June 2010, para. 9, conferring the initial mandate on the Secretariat.

¹²⁶ *Ibid.*, paras. 6 et seq.

¹²⁷ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 (g) reads ‘perform any other function or take any other action as specified in this Statute or the Rules of Procedure and Evidence, [including consideration of requests for a review of these instruments] [including consideration of application relating to pardon submitted to it]’. See also fn. 3 to that draft provision.

¹²⁸ UN Doc. A/CONF.183/9 (1998), articles 123 and 124.

¹²⁹ The Assembly has followed up on this duty in Resolution ICC-ASP/1/Res.6, Establishment of a fund for the benefit of victims of crimes within the jurisdiction of the Court, and of the families of such victims, 9 September 2002, and Resolution ICC-ASP/4/Res.3, Regulations of the Trust Fund for Victims, 5 December 2005 and last amended by ICC-ASP/6/Res.3, 14 December 2007, on earmarked contributions.

¹³⁰ See also rule 88 of the Rules and regulation 7.2 of the Financial Regulations. See also ICC-ASP/1/Res.11, Relevant criteria for voluntary contributions to the International Criminal Court, however stopping short of establishing any criteria at that stage and leaving it to the Registrar to ‘assure himself/herself that any offered contributions [...] will not affect the independence of the Court [and] fulfil any criteria the Assembly of States Parties may establish’.

¹³¹ ICC-ASP/4/Res.3, Regulations of the Trust Fund for Victims, 3 December 2005, Annex, paras. 22–30 (para. 27 amended by ICC-ASP/6/Res.3, 14 December 2007).

¹³² See also rule 29 of the Rules of Procedure of the Assembly of States Parties, as amended by resolution ICC-ASP/3/Res.2, 9 September 2004, and ICC-ASP/12/Res. 8, 27 November 2013, annex III.

Bureau can be re-elected. An initial proposal made by the Preparatory Committee was to have only one Vice-President.¹³³ But further negotiations moved in the direction of a decision favouring **two Vice-Presidents**. Also, in early stages of negotiations, the question of participation of the Court's President, Prosecutor and the Registrar was considered under this clause but it was subsequently separated¹³⁴ and is now regulated in Rule 34 of the Assembly's Rules of Procedure. In particular during the Hague meetings of the Bureau, Court officials are often invited to and participate in these meetings.

The President, Vice-Presidents and Bureau in its new composition are elected by the Assembly upon recommendation by the Bureau.¹³⁵ The Bureau has a **representative character** and is designed to assist the Assembly in the discharge of its responsibilities.¹³⁶ Its membership takes into account, in particular, equitable geographical distribution and the adequate representation of the principal legal systems of the world.¹³⁷ It meets regularly throughout the year in both New York and The Hague and reports to the Assembly on its activities at each session. During the **intersessional period** it is the most important discussion and decision-making **forum of States Parties** on items of concern of the Rome Statute system as a whole.

In 2004 the Bureau established **two working groups** of equal standing, one based in The Hague and the other in New York.¹³⁸ On 14 February 2006, the Bureau updated its terms of reference. Each working group is headed by one of the two Vice-Presidents who report to the Assembly President on the respective mandated activities. The most prominent sub-cluster of the New York Working Group is the Working Group on Amendments, established for the purpose of considering amendments to the Statute and Rules.¹³⁹ The Hague Working Group comprises a large array of facilitations, ranging *inter alia* from strategic planning over cooperation, complementarity, the permanent premises, and victims and affected communities to the Study Group on Governance.¹⁴⁰ The President calls for and leads the meetings of the Bureau, and chairs Assembly sessions.¹⁴¹

2. 'representative character'

Due to the Bureau's representative character,¹⁴² elections must take into account equitable geographical distribution and adequate representation of the principal legal systems of the world. While the Bureau's representative character was commonly agreed upon in the Preparatory Committee, two different views were held on the application of criteria to realize this objective.¹⁴³ One view was to apply the doctrine of **principal legal systems** and the other was to invoke the principle of **geographical representation**. Even when it was eventually agreed that both criteria could be applied, differences persisted as to which of the two factors

¹³³ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 3 (a).

¹³⁴ *Ibid.*

¹³⁵ Rule 29 of the Rules of Procedure of the Assembly of States Parties, as amended by resolution ICC-ASP/3/Res.2, 9 September 2004, and ICC-ASP/12/Res. 8, 27 November 2013, annex III. See for the most recent election of H.E. Sidiki Kaba, Minister of Justice of Senegal, as Assembly President and H.E. Álvaro Moerzinger (Uruguay) and H.E. Sebastiano Cardi (Italy) as Vice-Presidents: Assembly of States Parties to the Rome Statute of the International Criminal Court, Official Records, 13th Session from 8 to 17 December 2014, Volume I, Part I 'Proceedings', paras. 10–12.

¹³⁶ Rule 29(1) of the Assembly's Rules of Procedure.

¹³⁷ Art. 112(3)(b) of the Rome Statute; Rule 29(2) of the Assembly's Rules of Procedure.

¹³⁸ ICC-ASP/3/Res.8, 1 December 2004.

¹³⁹ ICC-ASP/8/Res.6, 26 November 2011. The WGA also represents a 'subsidiary body' pursuant to Art. 112(4) of the Statute. See Section IV.

¹⁴⁰ See paras. 12–15 and Section IV.

¹⁴¹ Rule 30 of the Assembly's Rules of Procedure.

¹⁴² Art. 112(3)(b) of the Statute.

¹⁴³ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 3(b). It reads 'The Bureau shall [have a representative character] [be elected on the basis of ensuring its representative character], taking into account, in particular, equitable geographical distribution and bearing in mind the adequate representation of the principal legal systems of the world [as far as possible]'.

should be emphasised. One group proposed the phrase ‘*taking into account, in particular, equitable geographical representation and bearing in mind the adequate representation of principal legal systems of the world*’ (emphasis added). The other group suggested deletion of the phrase ‘bearing in mind’ as a prefix to ‘principal legal systems’ and instead to relate the entire clause with the phrase ‘as far as possible’, with a view to building flexibility in terms of representation of the members of the Bureau. The compromise reflected in this subparagraph places equal emphasis on both the criteria of equitable geographical distribution and the representation of all principal legal systems of the world in the composition of the Bureau.¹⁴⁴

3. Function and sessions

- 49 This subparagraph addresses the question of functional responsibility of the Bureau albeit in general terms. The second sentence sets out that the Bureau should ‘assist the Assembly in the discharge of its responsibilities’. The functions of the Assembly are outlined in paragraph 2 as discussed *supra*. The Bureau has **no independent functions** from that of the Assembly. Nevertheless it has the competence under article 112 paragraph 6 to convene **special sessions** of the Assembly on its own initiative or at the request of one third of the States Parties. But this competence is not exclusive for it is subject to the caveat ‘except as otherwise specified in this Statute’.
- 50 In its 2014 session the Assembly mandated the Bureau ‘to consider the practicalities of holding a resumed session’ to elect the last remaining judge in order to attain the full set of 18 judges as stipulated by article 36(1) of the Statute, and to ‘proceed with the convening of such a resumed session [...]’.¹⁴⁵ This act of **conferring a specific mandate** on the Bureau in the Assembly’s ‘Omnibus Resolution’¹⁴⁶ alongside many other items of strategic importance demonstrates the Bureau’s **increased relevance** as a strategic discussion forum in particular during the intersessional period. An illustrative example is its decision, on 23 June 2015 (during the resumed session of the 13th Assembly meeting), on the selection of the Head of the IOM.¹⁴⁷
- 51 Although the sub-clause states that the Bureau should meet as often as necessary but at least once a year, it is not clear from the Statute where it would meet. The practice of past years has been that the Bureau **meets regularly** throughout the year in both New York and The Hague. Minutes of the meetings are usually distributed to all States Parties; they are also publicly available on the Assembly website.¹⁴⁸ In particular towards the second half of the year Bureau meetings tend to pick up in frequency in preparation of the Assembly meeting. Occasionally, Bureau meetings are held in The Hague when the President of the Assembly visits the Court.

IV. Paragraph 4: ‘subsidiary bodies’

- 52 The authority of the Assembly to establish necessary subsidiary bodies for discharging its functions is well recognized. While the Independent Oversight Mechanism with its core functions of inspection, evaluation and investigation is mentioned explicitly in article 112(4) of the Statute, other, no less important subsidiary bodies have been created since the inception of the Court.
- 53 **Six relevant subsidiary bodies** have been established so far to assist the Assembly’s work:

¹⁴⁴ The Bureau of the Assembly is currently (2014–2017) composed of the following members: Chile, Colombia, Costa Rica, Czech Republic, Germany, Ghana, Hungary, Italy, Japan, Netherlands, Nigeria, Republic of Korea, Romania, Samoa, Senegal, Slovenia, South Africa, Sweden, Uganda, the United Kingdom and Uruguay.

¹⁴⁵ ICC-ASP/13/Res.5, 17 December 2014, Annex I, para. 16(c).

¹⁴⁶ The title of this yearly issued resolution is ‘Strengthening the International Criminal Court and the Assembly of States Parties’; see the most recent resolution under ICC-ASP/13/Res.5, 17 December 2014.

¹⁴⁷ Bureau of the Assembly of States Parties, Fifth meeting 23 June 2015, Agenda and Decisions, para. 3.

¹⁴⁸ See at: http://www.icc-cpi.int/en_menus/asp/bureau/decisions/2015/Pages/Decisions-of-the-Bureau-01.aspx.

1. The Committee on Budget and Finance (CBF)

The CBF was established at the first Assembly session to provide **independent expert advice** on the ICC's annual budget request and other **financial and administrative matters**.¹⁴⁹ The CBF is made up of twelve experts of different nationality, elected by the Assembly for a term of three years, all of whom have recognized standing and experience in financial matters at the international level.¹⁵⁰ The annex to the resolution of the Assembly establishing the CBF grants it a relatively wide mandate, stating that it 'shall be responsible for the technical examination of any document submitted to the Assembly that contains financial or budgetary implications or *any other matter* of a financial, budgetary or administrative nature, as may be entrusted to it by the [Assembly].'¹⁵¹ In recent years the CBF has taken on an **expanding role** within the framework of the Assembly's governance of the Court, beyond the consideration of the budget and directly related items such as audit; for example it has, in the recent past, requested reports from the Court on a number of policies with indirect financial consequences.¹⁵² It also followed up on the progress of the Registrar's '**ReVision**' project in 2014–2015 that has involved a major restructuring of the Registry.¹⁵³ The CBF may also examine proposed amendments to the Court's Financial Regulations and Rules.¹⁵⁴

Particularly noteworthy is the wording of the Assembly's 2013 budget resolution which signaled a desire on the part of States Parties to **increase** their level of **interaction** with the CBF.¹⁵⁵ It is clear that the CBF has become a particularly important and influential subsidiary organ for both the Court and States Parties.

The CBF meets twice a year, in the spring and in the autumn.¹⁵⁶ The Committee frequently makes **requests and recommendations** to the Court on issues it wishes to see addressed, for example regarding reports or proposals to be submitted at its next session.¹⁵⁷ The spring meetings generally deal with governance, review of the Court's performance in relation to the budget for the preceding year¹⁵⁸ and other issues that have financial implications for the Court, and subsequently the States Parties.¹⁵⁹ The autumn meeting of the CBF follows the submission of the Court's proposed budget for the following year. The CBF normally considers the Court's budget proposal, taking into account representations and views of the Court, States and representatives of civil society, and makes recommenda-

¹⁴⁹ ICC-ASP/1/Res. 4, Establishment of the Committee on Budget and Finance, 3 September 2002.

¹⁵⁰ Establishment of the Committee on Budget and Finance ICC-ASP/1/Res.4, Annex para. 1; Procedure for the nomination and election of members of the Committee on Budget and Finance, ICC-ASP/1/Res.5, para. 1.

¹⁵¹ *Ibid.*, Annex, para. 3 (emphasis added). See generally on the CBF's role in the financial management of the Court Ambach and Rackwitz (2013) 76 *LeContempProbs* 119, 147–153.

¹⁵² See ICC-ASP/13/9, Report of the Court on policy issues (Accruals, anti-fraud and whistleblower, and multi-year project), 23 May 2014.

¹⁵³ Report of the Committee on Budget and Finance on the work of its resumed twenty-fourth session, ICC-ASP/14/5/Add.1, 18 August 2015, paras. 9 et seq.; Report of the Committee on Budget and Finance on the work of its twenty-second session, ICC-ASP/13/5 paras. 42, 48. See also ICC-ASP/13/16, Report of the Court on the organizational structure, 23 May 2014.

¹⁵⁴ Report of the Committee on Budget and Finance on the work of its twenty-second session, ICC-ASP/13/5, para. 15; Report of the Committee on Budget and Finance on the work of its twenty-third session, ICC-ASP/13/15, para. 74.

¹⁵⁵ ICC-ASP/12/Res.1, 27 November 2013, Programme budget for 2014, the Working Capital Fund for 2014, scale of assessments for the apportionment of expenses of the International Criminal Court, financing appropriations for 2014 and the Contingency Fund, p 20, section H, para. 1(b).

¹⁵⁶ O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015).

¹⁵⁷ Report of the Committee on Budget and Finance on the work of its twenty-second session, ICC-ASP/13/5, paras. 50, 57; Report of the Committee on Budget and Finance on the work of its twenty-third session, ICC-ASP/13/15, paras. 27, 74, 94.

¹⁵⁸ See, for instance, Report on activities and programme performance of the International Criminal Court for the year 2014, ICC-ASP/14/8, 4 May 2015.

¹⁵⁹ See, for instance, Report of the Committee on Budget and Finance on the work of its twenty-fourth session, ICC-ASP/14/5, 18 June 2015.

tions for the consideration of the Assembly. Although States Parties are not bound by these recommendations, the autumn report of the CBF normally forms the basis for budget discussions among States Parties at the annual Assembly meeting. Prior to each Assembly session, a working group on the budget is normally established in the Hague Working Group to prepare the budget discussion and resolution for that session.

2. Oversight Committee

- 57 In 2007, the Assembly established the Oversight Committee on the **permanent premises** of the ICC to provide strategic oversight over the project to construct the permanent premises which the ICC is expected to move into in the last quarter of 2015.¹⁶⁰ The Committee consists of ten representatives of States Parties with at least one member from each regional group, elected by the Assembly upon recommendation by the Bureau for a renewable term of two years.¹⁶¹ It is not only mandated to monitor the financing the construction of the permanent premises and related costs but also the functioning and operations of the governance structure for the project.¹⁶² The Oversight Committee submits periodic progress reports to the CBF and status updates to the Bureau.¹⁶³ It also reports to the Assembly's yearly meetings on its progress.¹⁶⁴

3. Advisory Committee on Nominations (ACN)

- 58 Established in 2012 and composed of nine persons with established competence and experience in criminal or international law, the ACN advises on nominations of judges of the ICC and assesses candidates prior to judicial elections at the Assembly.¹⁶⁵ The Committee's mandate as per its Terms of Reference is 'to facilitate that the highest-qualified individuals are appointed as judges'.¹⁶⁶ It must base its assessment of candidates on the **requirements listed in article 36(3)** of the Rome Statute.¹⁶⁷ The ACN convenes following the nomination of candidates by States Parties and communicates with the potential nominees, including through conducting interviews.¹⁶⁸ Committee members are designated for three year terms, with the possibility of being re-elected once.¹⁶⁹ Although communications of the ACN are kept confidential, the Committee is required to report to the Bureau regularly, while States Parties are informed of its work both through the Bureau and through briefings to Working Groups in The Hague and New York.¹⁷⁰ Upon completion of its work, the ACN's findings and analysis, which are strictly limited to technical information on the suitability of candidates, are presented to the Bureau.¹⁷¹ The information is made available through the Bureau to States Parties in time for consideration before the elections at the Assembly meeting in order to inform the decisions of States Parties, although they are **not bound** by the findings of the ACN.¹⁷² Elections of six ICC judges during the 2014 Assembly

¹⁶⁰ ICC-ASP/6/Res. 1, 14 December 2007, Permanent premises, para. 5.

¹⁶¹ *Ibid.*, Annex II paras. 4–5.

¹⁶² *Ibid.*, para. 6 and Annex II, paras. 2, 3.

¹⁶³ *Ibid.*, Annex II paras. 14, 15.

¹⁶⁴ See for 2014 Report on the activities of the Oversight Committee, ICC-ASP/13/39, 1 December 2014.

¹⁶⁵ Strengthening the International Criminal Court and the Assembly of States Parties, ICC-ASP/10/Res. 5, paras. 19–20; Report of the Bureau on the establishment of an Advisory Committee on nominations of judges of the International Criminal Court, ICC-ASP/10/36, 30 November 2011, Annex paras. 1–2.

¹⁶⁶ Terms of reference for the establishment of an Advisory Committee on nominations of judges of the International Criminal Court, Annex to Report of the Bureau on the establishment of an Advisory Committee on nominations of judges of the International Criminal Court, ICC-ASP/10/36, 30 November 2011, para. 5.

¹⁶⁷ *Ibid.*, para. 7.

¹⁶⁸ *Ibid.*, paras. 8–9.

¹⁶⁹ *Ibid.*, para. 6, as modified through ICC-ASP/13/Dec.2 Decision: Waiver of the impediment of four members of the Advisory Committee on Nominations of Judges to be re-elected, 25 June 2015.

¹⁷⁰ *Ibid.*, paras. 8, 10.

¹⁷¹ *Ibid.*, para. 11.

¹⁷² *Ibid.*, paras. 11–12.

session have demonstrated that States may indeed **deviate** from the ACN's recommendations when it comes to voting.¹⁷³

4. Independent Oversight Mechanism (IOM)

The IOM was created as a subsidiary body at the 8th session of the Assembly to inspect, evaluate and investigate the Court to ensure 'effective and comprehensive oversight of the Court in order to enhance its efficiency and economy.'¹⁷⁴ Although the IOM was envisaged in the Rome Statute itself, its establishment has been a **lengthy process**. The most essential steps towards operationalization of the IOM were only taken at the Assembly's twelfth session.¹⁷⁵ The process of selection of the first head of the IOM by the Bureau took over a year to complete and was finalised only in 2015.¹⁷⁶ The IOM will become *de facto* operational in 2016.

Initially, States did not focus much on the mechanism. Discussions in the Assembly on the establishment of an IOM kicked off properly only in 2008. During informal consultations, it was proposed to establish an independent unit with investigative capacity within the Office of Internal Audit to perform the function of oversight; also, it was considered to 'outsource' the investigative capacity to the United Nations Office of Internal Oversight Services (OIOS).¹⁷⁷ Finally, it was decided to meet the requirements of article 112(4) in creating an in-house mechanism with functional independence to any of the organs of the Court enhanced professional investigative capacity situated within the Court's existing internal disciplinary structures.¹⁷⁸ At the outset, the focus was on the independent professional investigative capacity for misconduct in the general understanding that additional elements of oversight such as inspection and evaluation would be added in due course.¹⁷⁹ An especially appointed working group submitted a report containing 10 recommendations to the Assembly in April 2009,¹⁸⁰ following which the Assembly established the IOM during its eighth session in November 2009.¹⁸¹ The IOM's terms of reference followed the working group's recommendations in permitting investigation into misconduct – excluding staff management issues¹⁸² – by ICC elected officials, ICC staff and contractors. The IOM's inspection and evaluation functions were decided to be brought into operation at a later stage.¹⁸³ Concerns raised by

¹⁷³ For the election in 2015 of the 18th judge (Raul C. Pangalangan) however, States Parties indeed followed the ACN's recommendations in that one of the two candidates to fill a judicial vacancy was elected. See Report of the Advisory Committee on Nominations of Judges on the work of its fourth meeting, ICC-ASP/13/46, 24 April 2015.

¹⁷⁴ ICC Statute art. 112(4); ICC-ASP/8/Res.1, Establishment of an independent oversight mechanism, 26 November 2009, para. 1 and Annex para. 6(a); ICC-ASP/12/Res.6, Independent Oversight Mechanism, 27 November 2013, para. 1 and Annex para. 3.

¹⁷⁵ ICC-ASP/12/Res.6, Independent Oversight Mechanism, 27 November 2013. See also ICC-ASP/9/Res.5, Independent Oversight Mechanism, 10 December 2010, and its Annex ('Operational Mandate of the Independent Oversight Mechanism'), operationalizing only the investigation function in the absence of a proper framework of inspection and evaluation functions.

¹⁷⁶ Bureau of the Assembly of States Parties, Fifth meeting 23 June 2015, Agenda and Decisions, para. 3; Independent Oversight Mechanism ICC-ASP/12/Res.6, paras. 5–6; Report of the Committee on Budget and Finance on the work of its twenty-third session, ICC-ASP/13/15, para. 72.

¹⁷⁷ ICC-ASP/8/2, Report of the Bureau on the establishment of an independent oversight mechanism, 15 April 2009, para. 4.

¹⁷⁸ *Ibid.*, paras. 13, 14. A strong preference was expressed by a specially designated Working Group of States' representatives on the matter for a 'lean, cost-effective mechanism which could be expanded on a needs basis' (*ibid.*, para. 16).

¹⁷⁹ *Ibid.*, paras. 43, 44.

¹⁸⁰ *Ibid.*, section G, paras. 41 et seq.

¹⁸¹ ICC-ASP/8/Res.1, Establishment of an independent oversight mechanism, 26 November 2009.

¹⁸² Staff management issues such as underperformance of duties are considered distinct from misconduct and therefore excluded from the IOM's mandate; they are covered by the Court's Staff Regulations. ICC-ASP/8/Res.1, Establishment of an independent oversight mechanism, 26 November 2009, Annex, para. 7 et seq.

¹⁸³ ICC-ASP/8/Res.1, Establishment of an independent oversight mechanism, 26 November 2009, Annex, para. 6, followed by ICC-ASP/9/Res.5, Independent Oversight Mechanism, 10 December 2010, and its Annex

the Office of the Prosecutor that certain elements of the terms of reference of the IOM's three functions risked to infringe its **independence under article 42(2) of the Statute**,¹⁸⁴ however, rendered the process difficult and progress was slow up until 2013.

- 61 In 2012 and 2013, the Bureau's Hague Working Group continued to engage with the ICC with a view to resolving the outstanding issues to operationalize the IOM regarding all three functions. Finally, at the twelfth session of the Assembly in 2013, a comprehensive operational mandate of the IOM was agreed upon by **consensus** also with the organs of the Court, including the Office of the Prosecutor.¹⁸⁵ According to the new operational mandate adopted at that session,¹⁸⁶ the IOM can carry out investigations, inspections and evaluations.¹⁸⁷ Specific to investigations and cognizant of negotiations between the Assembly and the Court over the past years, there are safeguards that the IOM fully respects judicial and prosecutorial independence.¹⁸⁸
- 62 There has been a **clear UN influence** on the establishment of this subsidiary organ; the Assembly seconded personnel from the UN Office of Internal Oversight in the early days of the IOM's establishment, and definitions of 'inspection', 'evaluation' and 'investigation' were inspired by various UN documents.¹⁸⁹ The IOM operates independently from the Court, so that it can deal with misconduct in a manner that is 'objectively credible'.¹⁹⁰ It has the authority to act on a *proprio motu* basis, and may carry out and report 'on any action which it considers necessary to fulfil its responsibilities'.¹⁹¹ IOM staff have significant access rights, including access to a wide range of Court documents and staff who are obliged to cooperate fully, in order to carry out their functions.¹⁹² In the exercise of all its functions, the IOM must have regard for fairness and due process and act in accordance with 'recognised best practices and adhere to the highest ethical standards'.¹⁹³ It reports on its activities to both the Bureau and the Assembly.¹⁹⁴
- 63 The **first function** which the IOM performs is **inspection** of premises or processes. Inspections are 'special, unscheduled, on the spot verifications made of an activity directed towards the resolution of problems' and can be requested by the Bureau or the Head of an Organ of the Court.¹⁹⁵ If the Bureau has made the request for an inspection, the relevant Head of Organ must be notified and consulted and may appoint a representative to witness the inspection.¹⁹⁶
- 64 **Secondly**, the IOM may provide an **evaluation** or coordinate an external evaluation of programmes, projects or policies at the request of the Assembly, the Bureau or a Head of Organ.¹⁹⁷ In the case of a request by the latter, if the IOM has insufficient resources to

('Operational Mandate of the Independent Oversight Mechanism'). See also the Report of the Bureau on the Independent Oversight Mechanism, ICC-ASP/7/28.

¹⁸⁴ For details, see negotiations O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015), 112–113.

¹⁸⁵ Report of the Bureau on the Independent Oversight Mechanism, ICC-ASP/12/27, para. 12.

¹⁸⁶ ICC-ASP/12/Res.6, Independent Oversight Mechanism, 27 November 2013.

¹⁸⁷ ICC-ASP/12/Res.6, Independent Oversight Mechanism, Annex: Operational mandate of the Independent Oversight Mechanism, paras. 6 et seq.

¹⁸⁸ ICC-ASP/12/Res.6, Independent Oversight Mechanism, Annex: Operational mandate of the Independent Oversight Mechanism, paras. 27 et seq.

¹⁸⁹ Establishment of an independent oversight mechanism ICC-ASP/8/Res.1, Annex paras. 3 and 17; Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex fns. 2, 3 and 7.

¹⁹⁰ Report of the Bureau on an Independent Oversight Mechanism, ICC-ASP/7/28, paras. 11 and 15; Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex, para. 2.

¹⁹¹ Independent Oversight Mechanism ICC-ASP/12/Res.6 Annex, para. 4; Independent Oversight Mechanism, ICC-ASP/9/Res.5, Annex, para. 11.

¹⁹² Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex paras. 42–45.

¹⁹³ *Ibid.*, paras. 8, 21, 31 and 59.

¹⁹⁴ *Ibid.*, para. 46.

¹⁹⁵ *Ibid.*, paras. 6–7.

¹⁹⁶ *Ibid.*, paras. 9–11.

¹⁹⁷ *Ibid.*, paras. 16–18; external evaluations can be carried out by a consultancy or by a peer-review panel established by the Assembly, Bureau or a Head of Organ for this purpose.

undertake the evaluation it must provide ‘technical guidance’ for an internal evaluation or suggest options for outsourcing the process.¹⁹⁸ The relevant resolution copies the definition of the evaluation process laid out in the UN Development Programme’s Evaluation Policy: ‘Evaluation is judgement made of the relevance, appropriateness, effectiveness, efficiency, impact and sustainability of development efforts, based on agreed criteria and benchmarks among key partners and stakeholders. It involves a rigorous, systematic and objective process in the design, analysis and interpretation of information to answer specific questions. It provides assessments of what works and why, highlights intended and unintended results, and provides strategic lessons to guide decision-makers and inform stakeholders.’¹⁹⁹

The IOM may also assist an Organ of the Court in establishing or maintaining internal monitoring or evaluation mechanisms and has ‘unrestrained access’ to all internal evaluations conducted by the Court.²⁰⁰

Both inspection and evaluation have similar requirements in terms of **confidentiality** and **reporting** requirements. Requests for action and information gathered in the process of carrying out either an inspection or evaluation must be kept confidential.²⁰¹ Once the action is completed, a report on the inspection or evaluation must be presented to the head of the organ that requested the action or, in the case of Bureau requests, to the President of the Assembly who may forward it to the Assembly or the Bureau.²⁰² The Court must provide the Head of the IOM with a ‘written update’ on the implementation of any IOM recommendations on an annual basis.²⁰³

The **third function** of the IOM, **investigation**, was the first to be formally operationalised in 2010.²⁰⁴ However this was modified by the 2013 resolution which formally operationalised all three of the IOM’s functions.²⁰⁵ The IOM can receive and investigate reports of misconduct and serious misconduct, including illegal acts, by elected officials, ICC staff, contractors or consultants.²⁰⁶ An investigation is defined as ‘a legally based and analytical process designed to gather information in order to determine whether wrongdoing has occurred and, if so, the persons or entities responsible.’²⁰⁷ States Parties were careful to emphasise that the IOM should not interfere with the authority or independence of the organs of the Court and that the IOM’s mandate does not extend to investigation of contractual disputes, issues of human resource management or offences under article 70 of the ICC Statute.²⁰⁸ The detailed procedure for investigations set out by the 2013 Assembly resolution requires that the relevant Head of Organ be notified and in some cases consulted before the investigation commences.²⁰⁹ Then again, the

¹⁹⁸ *Ibid.*, para. 21.

¹⁹⁹ UN Development Programme, Evaluation Policy, UN Doc DP/2011/3, 15 November 2010, para. 9.

²⁰⁰ Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex, paras. 19–20. Note that the Assembly was inspired by the definition of ‘evaluation’ from the UNDP Evaluation Policy which is careful to distinguish ‘evaluation’ and ‘monitoring’ (see UN Development Programme, Evaluation Policy, UN Doc DP/2011/3, 15 November 2010, para. 10); the 2013 IOM mandate includes the ability to assist with internal monitoring of Court projects, policies or initiatives.

²⁰¹ Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex, paras. 12–13 and 23–24.

²⁰² *Ibid.*, paras. 14–15 and 25–26.

²⁰³ *Ibid.*, para. 50.

²⁰⁴ Independent Oversight Mechanism, ICC-ASP/9/Res.5, para. 1.

²⁰⁵ Independent Oversight Mechanism ICC-ASP/12/Res.6, para. 7 and Annex; cf. ICC-ASP/9/Res.5, Annex, paras 2–6.

²⁰⁶ Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex para. 28. Interestingly, resolution ICC-ASP/12/Res.6 refers specifically to rules 25(1)(b) and 24(1)(b) in footnotes 4 and 5 of the Annex regarding definitions of misconduct. However, ‘misconduct’ and ‘serious misconduct’ are defined in rules 24(1) and 25(1) of the Rules, not just the (b) subsections. In contrast, the original resolution establishing the IOM appears to refer to the rules in their entirety (Annex to ICC-ASP/8/Res.1 (2009), para. 11 fns 5 and 6, and also ICC-ASP/9/Res.5 (2010), para. 2).

²⁰⁷ Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex, para. 28 citing UN Office of Internal Oversight Services Investigations Manual, March 2009, available at: http://www.un.org/Depts/oios/pages/id_manual_mar2009.pdf, p. 2.

²⁰⁸ Independent Oversight Mechanism ICC-ASP/12/Res.6, Annex, paras. 27, 29–30.

²⁰⁹ *Ibid.*, paras. 32, 34–35.

IOM may proceed with an investigation also without an organ head's consent.²¹⁰ If an organ head believes the proposed investigation is outside of the IOM's legal mandate, it 'shall report such concerns to the bureau and may seek a determination on the matter from the Presidency of the [ICC].'²¹¹ The confidentiality requirements for an investigation by the IOM are somewhat more stringent than those for inspections or evaluations; the IOM must be careful not to identify the source of the initial report of misconduct when notifying the head of organ and the resolution provides detailed procedures designed to maintain confidentiality.²¹² Furthermore, the conclusion of an investigation by the IOM does not result in a report, but rather in a transmission of findings and recommendations to the Court.²¹³ The relevant organ of the Court is required to provide the Head of the IOM with bi-annual updates on how the Court has followed-up on investigations.²¹⁴

5. Working Group on Amendments (WGA)

- 68 At the eighth session of the Assembly, the WGA was established to consider and identify **potential amendments to the Statute and the Rules** in order to submit these to the Assembly for its debate. The WGA's mandate also encompasses to inform the decision of the Assembly as to whether to adopt a proposal and to suggest by which method the amendment should be adopted.²¹⁵ The WGA reports periodically to the Assembly on its discussions and attempts to reach decisions by consensus.²¹⁶ The amendment procedure follows the general lines as established in articles 51, 121 and 122 of the Statute for amendments to the Statute or the Rules.²¹⁷
- 69 The WGA forms one part of the framework designed to streamline and facilitate necessary amendments to the Statute and Rules in order to improve Court procedures. In order to create a comprehensive, stable and sufficiently rigid legal framework, the drafters of the Statute and Rules have conferred the power to modify these instruments to the **Assembly only**.²¹⁸ However this has made it difficult to amend the ICC's procedural framework with a view to improving its efficiency.
- 70 Through the establishment of various subsidiary bodies and groups, the Court and States Parties have attempted to overcome some of the regulatory obstacles to implementing the necessary changes. The **Study Group on Governance** was established by the Assembly to facilitate a structured dialogue between them and the Court with a view to strengthening the institutional framework of the Rome Statute system and enhancing efficiency and effectiveness at the Court.²¹⁹ Initially established for a period of one year, the Study Group's mandate **continues to be extended**.²²⁰ The Study Group consists of representatives of States Parties;

²¹⁰ *Ibid.*, para. 28.

²¹¹ *Ibid.*, para. 35.

²¹² *Ibid.*, paras. 32, 38–39.

²¹³ *Ibid.*, paras. 40–41.

²¹⁴ *Ibid.*, para. 49.

²¹⁵ ICC-ASP/8/Res.6, Review Conference, 26 November 2009, para. 4; ICC-ASP/11/Res.8 'Strengthening the International Criminal Court and the Assembly of States Parties', para. 80; Report of the Working Group on Amendments, ICC-ASP/11/36, Annex II paras. 1, 6 and 10.

²¹⁶ Report of the Working Group on Amendments, ICC-ASP/11/36, Annex II paras. 5 and 11.

²¹⁷ Report of the Working Group on Amendments, ICC-ASP/11/36, 13 November 2012, para. 6 and Annex II, para. 2; Report of the Working Group on Amendments ICC-ASP/10/32, 9 December 2011; Official Records of the Ninth Session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, ICC-ASP/9/20 (2010), Volume I, Annex II, para. 1.

²¹⁸ B. Broomhall, article 51 paras. 8, 47, and R S Clark, article 121 para. 4, in: O. Triffterer (ed.), *Commentary on the Rome Statute of the International Criminal Court – Observers' Notes, Article by Article* (2nd edition 2008).

²¹⁹ Establishment of a study group on governance, ICC-ASP/9/Res.2. See generally on the lessons learnt process at the ICC Ambach, in C. Stahn (ed), *The Law and Practice of the International Criminal Court* (2015), 1277, 1284.

²²⁰ Establishment of a study group on governance, ICC-ASP/9/Res.2, para. 2; ICC-ASP/12/Res.8, Annex I para. 7; ICC-ASP/13/Res.5, para. 53 (referring also to previous mandate extensions in ICC-ASP/10/Res.5 and ICC-ASP/11/Res.8).

representatives of the organs of the Court are regularly invited.²²¹ Stakeholders such as representatives of counsel before the ICC and the NGO-community may also take part as appropriate. To date, it has considered the following issues: the relationship between the Court and the Assembly; strengthening the institutional framework within the Court; increasing the efficiency of the criminal process; and enhancing the transparency and predictability of the budgetary process.²²² The amendment of Rule 4 and the addition of Rule 4*bis* to the Rules resulted from the work of the Study Group, and having been endorsed by the WGA, was adopted at the 10th Session of the Assembly.²²³

In order to facilitate the review of the criminal process, the Court established a ‘**Working Group on Lessons Learnt**’. This working group considers and proposes potential Rule amendments to the Study Group on Governance, which in turn submits it to the WGA.²²⁴ This chain of processes and actors led the Study Group to adopt a ‘**Roadmap**’ regulating the procedure from the Court’s preparation to the assessment by the WGA and final adoption (or not) by the Assembly.²²⁵ The introduction of Rule 132*bis* to the Rules is a prime example of an amendment that went through this system.²²⁶

However the roadmap and the subsidiary bodies are only one of many possible ways to put forward and bring to adoption amendment proposals of the Rules; rules 134*bis*, 134*ter* and 134*quater* were introduced at the 12th Session of the Assembly without the involvement of the WGA, the Working Group on Lessons Learnt, or the Study Group on Governance.²²⁷ These changes were introduced by States Parties at the Assembly in what is generally accepted to have been a reaction to procedural and other developments at the time in one of the cases in the Kenya situation before the ICC.²²⁸ There is a general rule for law-makers not to devise an **abstract-general legal provision** in order to fit the circumstances of a specific case. Events such as the developments at the 12th Assembly in November 2013 could create a precedent devaluing the Roadmap.²²⁹ At the 13th Assembly in December 2014, two Rule amendment proposals that had been submitted by the Court in early 2014 were finally not accepted by the Assembly.²³⁰ The rather complex system established by the Roadmap and the many different actors involved throughout the process render a **more frequent** or dynamic occurrence of **Rule changes improbable**. Since 2014, the Working Group on Lessons Learnt has also focused on procedural **practice innovations** not requiring rule changes;²³¹ the **Pre-Trial Practice Manual** of September 2015 is one example.²³²

6. Special Working Group on the Crime of Aggression (SWGCA)

The Special Working Group on the Crime of Aggression was created by the Assembly in 2002 to prepare and submit proposals for a provision on aggression, in accordance with the

²²¹ Establishment of a study group on governance, ICC-ASP/9/Res.2, para. 5.

²²² Report of the Bureau on Study Group on Governance, ICC-ASP/12/37.

²²³ Report of the Bureau on the Study Group on Governance, ICC-ASP/10/30, 22 November 2011, para. 21; Report on the Working Group on Amendments, ICC-ASP/10/32, paras. 25–26; Amendments to rule 4 of the Rules of Procedure and Evidence ICC-ASP/10/Res.1.

²²⁴ Study Group on Governance: Lessons learnt: First report of the Court to the Assembly of States Parties ICC-ASP/11/31/Add.1, paras. 13–16.

²²⁵ Report of the Bureau on the Study Group on Governance, ICC-ASP/11/31 Annex I paras. 5–9.

²²⁶ Report of the Study Group on Governance on rule 132*bis* of the Rules of Procedure and Evidence, ICC-ASP/11/41, Annex I and Annex II; Amendments to the Rules of Procedure and Evidence ICC-ASP/12/Res.7, para. 3.

²²⁷ Amendments to the Rules of Procedure and Evidence, ICC-ASP/12/Res.7 para. 3.

²²⁸ Situation in the Republic of Kenya, case no. ICC-01/09.

²²⁹ Resolution ICC-ASP/12/Res.8, ‘Strengthening the International Criminal Court and the Assembly of States Parties’, 27 November 2013, para. 39.

²³⁰ Report of the Working Group on Amendments, ICC-ASP/13/31, 7 December 2014, paras. 14 et seq. (as noted in ICC-ASP/13/Res.5, para. 92 albeit without any further evaluation).

²³¹ See Report of the Working Group on Lessons Learnt to the Study Group on Governance Cluster I: Expediting the Criminal Process Progress Report on Cluster B: ‘Pre-Trial and Trial Relationship and Common Issues’, Annex II to ICC-ASP/13/28, Report of the Bureau on Study Group on Governance, 28 November 2014.

²³² Available at: [http://www.icc-cpi.int/iccdocs/other/Pre-Trial_practice_manual_\(September_2015\).pdf](http://www.icc-cpi.int/iccdocs/other/Pre-Trial_practice_manual_(September_2015).pdf).

previous paragraph 2 of article 5 of the Statute, to the Assembly for its consideration at a ‘Review Conference’ pursuant to article 123 of the Statute²³³ – which was held in Kampala in 2010. The Working Group was **open to all UN member States** on an equal footing, and met periodically throughout the years up until 2009 at Assembly sessions and at informal inter-session meetings, known as the **Princeton Process**, to continue efforts to reach an agreement a) on the definition of the crime and b) on the conditions for the exercise of the Court’s jurisdiction. Chaired by the President of the Assembly, the Working Group submitted various reports.²³⁴ In 2009, the Special Working Group was discontinued due to the **completion of its mandate**²³⁵ which resulted in the 2010 Kampala amendments on the crime of aggression.²³⁶

V. Paragraph 5: Participation of Court organs in the Assembly and the Bureau

- 74 While article 112 paragraph 5 provides that the President, Prosecutor or the Registrar may participate in meetings of the Assembly and the Bureau, it does not specify the capacity in which they so partake except to state ‘as appropriate’. In the Preparatory Committee negotiations regarding the participation in Assembly meetings, there was a division of opinion on this between treating them as ‘observers’ and as ‘members’.²³⁷ In Rome, the negotiators agreed to delete both terms, and hence the provision **remains silent** on the issue. The dividing line between the two categories is the **right to vote**. Standard practice since the early days has been to include Court officials in Assembly and Bureau meetings. This is reflected in Rule 34 of the Assembly’s Rules of Procedure.²³⁸ During Assembly meetings, the ICC President is usually given some time for opening remarks and both the Prosecutor and the Registrar are also given time slots to address the Assembly. Further, senior Court officials are admitted to and assist in all working groups and informal discussions. The ICC has **no voting right** during Assembly meetings. This is understandable since States Parties would be reluctant to confer a voting right to the Court in its main (and only) decision-making body. Further, the wording of article 112 itself speaks against such a possibility since it confers, in paragraph 2, a number of decisions to ‘the Assembly’ which excludes the Court.²³⁹
- 75 Regarding the Bureau, a similar logic applies.²⁴⁰ While the Court has no voting rights whatsoever, it is regularly represented through a senior Court official in its meetings both in New York and The Hague.

²³³ ICC-ASP/1/Res.1, Continuity of work in respect of the crime of aggression, 9 September 2002, paras. 2–3; ICC-ASP/7/Res.3, Strengthening the International Criminal Court and the Assembly of States Parties, 21 November 2008, para. 60. For the wording of the old Art. 5(2) of the Statute see Resolution RC/Res.6, annex I, of 11 June 2010.

²³⁴ See, for instance, ICC-ASP/6/SWGCA/1, 13 September 2007, and ICC-ASP/7/20/Add.1, Annex II (2009).

²³⁵ See ICC-ASP/7/Res.3, para. 60. But see also ICC-ASP/7/20/Add.1, Annex II (2009), p. 38 (section IV ‘Future work on aggression’).

²³⁶ Resolution RC/Res.6, 11 June 2010, and its annexes.

²³⁷ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102. The second sentence of paragraph 3 (a) of article 102 reads ‘The President of the Court, the Prosecutor and the Registrar or their representatives may, as appropriate, participate as [observers] [members] in meetings of the Bureau.’

²³⁸ ‘The President of the Court, the Prosecutor and the Registrar or their representatives may participate, as appropriate, in meetings of the Assembly and the Bureau in accordance with the provisions of these Rules and may make oral or written statements and provide information on any question under consideration.’

²³⁹ The exclusion of the Court from the definition of ‘Assembly’ follows from article 112(1) which fails to mention the Court as a member; and article 112(5) itself, clearly distinguishing between Court officials and the Assembly.

²⁴⁰ Rule 34 of the Assembly’s Rules of Procedure applies.

VI. Paragraph 6: Regular and special Assembly sessions

The Assembly meets either at the seat of the Court, in the Netherlands, or at the UN Headquarters, in New York. The recent practice has been to hold the session in New York in particular when judges' elections are on the schedule. Accordingly, the 2011 and 2014 Assembly meetings were held in New York whilst 2012, 2013 and 2015 were and will be held in The Hague. 76

When circumstances so require, 'special sessions' of the Assembly can be held. There is little indication in the Statute as to the nature of the 'circumstances' that would require holding such special sessions. Article 51(3) of the Statute foresees that any provisional Rules complementing the Rules of Procedure and Evidence drawn up in order to fill a procedural lacuna shall be put 'before the next ordinary or special session of the Assembly for its decision as to their adoption, amendment or rejection'.²⁴¹ Also regarding the removal from office of a judge, the Prosecutor or a Deputy Prosecutor, Rule 81(3) of the Assembly's Rules of Procedure foresees the holding of a special session. Finally, at the 2014 Assembly meeting, the Assembly mandated the Bureau to 'consider the practicalities of holding a resumed session to fill the remaining judicial vacancy', and to 'proceed with the convening of such a resumed session' if appropriate.²⁴² Neither the Statute nor the Assembly's Rules contain the term 'resumed' session; it can therefore be considered that what is meant by the Assembly in this regard is indeed a special session. 77

Regarding special sessions 'as otherwise specified in the Statute', another relevant area to consider could be Part 13 on Final Clauses.²⁴³ However, that part of the Statute clearly envisages a role for the Assembly in articles 121 and 122 to deal with the amendments to the Statute in a regular session or by convening a 'Review Conference' pursuant to article 123 of the Statute;²⁴⁴ no specific mention is made of a 'special' session. It may be noted that pursuant to article 123 of the Statute it is the Secretary-General of the United Nations that convenes the Review Conference. It is therefore not clear whether Part 13 and the envisaged Review Conference in particular offers any evidence for a 'special session' of the Assembly or should procedurally be treated as such.²⁴⁵ Further practice of the Assembly may clarify the usage of the terms 'resumed session', 'special session' and 'Review Conference' and their procedural handling. 78

The Bureau is the **principal organ to convene** special sessions: either on its own initiative; or at the request of one third of the States Parties; or where 'otherwise specified in this Statute'.²⁴⁶ Rule 8 of the Assembly's Rules of Procedure addresses the issue of special sessions, stating that '[t]he Assembly may hold special sessions and fix the date of commencement and the duration of each such special session.' The provision then continues that special sessions 'may also be convened by the Bureau' in accordance with article 112(6). The wording of the provision is somewhat out of tune with the provision of article 112(6) as it seems to introduce the Assembly as the principal convener *in addition to the Bureau*. However, rule 3 of the Assembly's Rules of Procedure clarifies that special sessions will be held 'in accordance with paragraph 6 of article 112 of the Statute'; the wording of the Rules thus has to be interpreted in the light of article 112(6) of the Statute; the first sentence could therefore be read to merely reflect the 'otherwise specified in this Statute' clause. 79

²⁴¹ Rule 73(3) of the Assembly's Rules of Procedure.

²⁴² ICC-ASP/13/Res.5, para. 95 and Annex I (Mandates of the Assembly of States Parties for the intersessional period), para. 16(c).

²⁴³ For details, see discussion under Part 13 in this commentary.

²⁴⁴ Articles 121(2) and 122(2) of the Statute.

²⁴⁵ The Assembly's Rules of Procedure apply *mutatis mutandis* to a Review Conference, see rule 2 of the Assembly's Rules of Procedure. Since a Review Conference does not represent a regular annual Assembly meeting, it is to be expected that the regulatory framework on special sessions is applicable.

²⁴⁶ Article 112(6), second sentence, of the Statute.

- 80 Rules 14 to 22 of the Assembly's Rules of Procedure contain further provisions *inter alia* on the provisional agenda of special sessions, the adoption of the agenda and discussions on the deletion or inclusion of items.

VII. Paragraph 7: Majority requirements

1. General rule

- 81 The general rule for decision making in the Assembly is that effort should be made to reach **consensus**.²⁴⁷ This received universal support of all delegations in the preparatory process leading to the Statute. Up to the present, the Assembly has consistently striven for consensus in all its relevant decisions, including in particular amendments of the Statute, the Rules of Procedure and Evidence or the adoption of the budget as well as relevant resolutions.²⁴⁸

2. When 'consensus cannot be reached'

- 82 There was however difference in views on the method of adopting decisions on matters of substance in the event of failure to achieve consensus. **Several alternatives** were proposed in the Preparatory Committee.²⁴⁹ They included a) 'a two-thirds majority of those present and voting, representing the absolute majority of States Parties'; b) 'a two-thirds majority of those present and voting'; and c) 'an absolute majority of States Parties'. These alternatives were incorporated in paragraph 5 of article 102 of the Draft Statute (today's article 112) referred by the Preparatory Committee to the Rome Diplomatic Conference. Negotiations in Rome yielded convergence of positions on 'a two-thirds majority of those present and voting provided that an absolute majority of States Parties constitutes the quorum for voting'. Article 112(7) subparagraph (a) contains this rule. Procedural matters would be decided by simple majority in the absence of consensus, as stated in article 112(7) subparagraph (b).
- 83 The two-thirds majority has also been specifically indicated as a minimum voting requirement in separate Assembly resolutions.²⁵⁰

3. Chapeau: 'Except as otherwise provided'

- 84 The third sentence of article 112 paragraph 7 also contains the clause 'except as otherwise provided in the Statute'. Accordingly, specific majority requirements prescribed in provisions of the Statute prevail over the general rule laid down here. There are different provisions in the Statute that provide **different majority requirements** on what are clearly matters of substance. Two examples are the election and removal of judges and the Prosecutor, and the matters concerning amendments to the Statute and a Review Conference.
- 85 For instance, judges shall be elected by the Assembly by the 'highest number of votes and a two-thirds majority of the States Parties present and voting', not requiring any specific quorum.²⁵¹ A judge may be removed from office, for reasons specified in the Statute, 'by a two-thirds majority of the States Parties upon a recommendation adopted by a two-thirds majority of the other judges'.²⁵² Furthermore, the Prosecutor shall be elected by 'an absolute majority the members of the Assembly of States Parties'; the same majority requirement is applicable to the election of the Deputy Prosecutor.²⁵³ The Prosecutor may be removed from

²⁴⁷ See rule 61 of the Assembly's Rules of Procedure.

²⁴⁸ See, for 2014, under: http://www.icc-cpi.int/en_menus/asp/resolutions/sessions/Pages/2014%20-%2013th%20session.aspx.

²⁴⁹ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 5.

²⁵⁰ ICC-ASP/3/Res.6 (2004), Procedure for the nomination and election of judges, the Prosecutor and Deputy Prosecutors of the International Criminal Court – Consolidated version, para. 15.

²⁵¹ UN Doc. A/CONF.183/9 (1998), see article 36 para. 6 (a).

²⁵² Article 46 para. 2 (a) of the Statute.

²⁵³ *Ibid.*, article 42 para. 4.

office, in accordance with the provisions of the Statute, ‘by an absolute majority of the States Parties’.²⁵⁴ In the case of removal of the Deputy Prosecutor, the same majority rule will apply upon the recommendation of the Prosecutor.²⁵⁵

The majority required for adoption of an amendment to the Statute at the Assembly of States Parties or a Review Conference would be ‘a two-thirds majority of States Parties’, independently of the number of States Parties voting and therefore representing the highest threshold.²⁵⁶ The same majority is also required for amendments to provisions of an institutional nature.²⁵⁷ In respect of convening of a Review Conference, the UN Secretary-General could do so upon a request of a State Party and ‘upon approval by a majority of States Parties’.²⁵⁸

A holistic and harmonious interpretation of the chapeau of the third sentence of article 112 paragraph 7 read together with other relevant provisions of the Statute would establish that the two-thirds majority rule based on a quorum of an absolute majority is applicable to the main functions of the Assembly contained in article 112, particularly to decide on the functions outlined in paragraph 2 thereof.

VIII. Paragraph 8: Default to pay contributions

The principle underlying this paragraph is aimed at **promoting financial responsibility** of States Parties towards the Court in order to make the institution viable. The principle is indicated in negative terms. Accordingly, if a State Party does not pay its contribution to the Court, it shall have no vote in the Assembly. The exception recognized to this is if the failure to pay were due to conditions beyond the defaulting State’s control.

In the Preparatory Committee there were **different views** as to the need to include the provision and, if it were to be included, regarding the duration of default in order to sanction disenfranchisement to the defaulting State Party.²⁵⁹ Proposals were made ranging from ‘two full’ to ‘three’ to ‘five’ years. The negotiations in Rome recorded a convergence on the inclusion of the provision to insert a threshold of ‘two full years’. These need not be necessarily two consecutive years, it suffices ‘if the amount of its arrears equals or exceeds the amount of the contributions due from it for the preceding two full years’.

The **exception** to the principle was made in line with the practice of the UN General Assembly under article 19 of the UN Charter where from time to time the General Assembly adopted conscious decisions permitting voting rights to member States in arrears on grounds of **natural disasters or severe economic hardship** that disabled the otherwise willing member States from payment of their assessed contributions to the UN.

It needs no emphasis that the exception does not cover situations of those States Parties that are economically capable paying their contributions but do not do so for reasons other than fiscal inability or for ‘conditions’ that are not beyond their control.²⁶⁰ Particularly in the earlier years, States Parties have been forthcoming with their contributions. In light of a slight decline in the more recent general promptness of payments, the 2014 Assembly mandated the Bureau to ‘consider additional measures to promote payments by States Parties’.²⁶¹

²⁵⁴ *Ibid.*, article 46 para. 2 (b).

²⁵⁵ *Ibid.*, article 46 para. 2 (c).

²⁵⁶ *Ibid.*, article 121 para. 3.

²⁵⁷ *Ibid.*, article 122 para. 2.

²⁵⁸ *Ibid.*, article 123 para. 2.

²⁵⁹ UN Doc. A/CONF.183/2/Add.1 (1998), Part 11, article 102 para. 6 *inter alia* reads ‘[A State Party that is in arrears in the payment of its financial contributions to the costs of the Court shall have no vote in the Assembly and in the Bureau if the amount of its arrears equals or exceeds the amount of the contributions due from it for the preceding [two full] [five] years]’.

²⁶⁰ The point is unprecedented in reality for under the Charter law and practice, such a consideration has not so far become imminent despite the threat looming large.

²⁶¹ ICC-ASP/13/Res.5, Annex I, para. 13(b).

IX. Paragraph 9: Assembly's Rules of Procedure

- 92 The Assembly's Rules of Procedure were adopted on the 2002 Assembly session²⁶² and have been repeatedly amended since.²⁶³

X. Paragraph 10: Assembly's working languages

- 93 Article 112 paragraph 10 provides that the Assembly's working languages shall be those of the UN General Assembly, and accordingly Arabic, Chinese, English, French, Russian and Spanish.²⁶⁴

XI. Legislative decisions

- 94 In the Assembly's first session, States Parties adopted important supplementary texts required by the Rome Statute—drafted by the Preparatory Commission—including the Rules of Procedure and Evidence (article 51(1)), the Elements of Crimes (article 9(1)), the Financial Regulations and Rules (article 113) and an Agreement on Privileges and Immunities (article 48). The Assembly went on to complete other agreements and texts required by the Rome Statute in its early sessions—this early legislative framework enabled the functioning of the ICC in its first decade and there was no urgency for further legislative changes until the 2010 Review Conference. However, new initiatives have emerged since 2012 to amend the Rules to expedite criminal proceedings and other proposals for Statute amendments have emerged.²⁶⁵
- 95 In the lead up to the **2010 Review Conference of the Rome Statute**, the Assembly played an important role in filtering out more than ten initial proposals for amendments.²⁶⁶ Only those amendments which attained consensus or would carry broad support were taken forward to the Review Conference. It was stressed that it would not be the last opportunity to amend the Rome Statute and that the proposals not considered at the Conference could be taken up at future sessions of the Assembly.²⁶⁷ A Working Group of the Assembly on amendments²⁶⁸ was therefore established to consider proposals not taken forward to Kampala and other proposals to amend the Statute and the Rules.²⁶⁹ This approach ensured that the agenda of the first Review Conference was not overburdened and established mechanisms for the Assembly to consider the remaining proposals.
- 96 The inclusion of the crime of aggression in the Rome Statute in 1998 was part of the effort by the international community to prevent atrocities like the ones committed during World War II from happening again. However, States were unable to agree on a definition for the crime and the exercise of jurisdiction over the crime of aggression in the Rome Statute in 1998 and thus agreed to continue discussions with a view to defining the crime and establishing jurisdictional conditions.²⁷⁰
- 97 To conduct these discussions, the Assembly established the **Special Working Group on the Crime of Aggression (SWGCA)** which existed from 2003 until 2009. In 2009, the SWGCA

²⁶² Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, First session, New York, 3–10 September 2002 (United Nations publication, Sales No. E.03.V.2 and corrigendum), part II.C.

²⁶³ See for instance Rule 29, last amended in ICC-ASP/12/Res.8, 27 November 2013, Annex III.

²⁶⁴ See Rule 51 of the UN General Assembly's Rules of Procedure, available at: <http://www.un.org/en/ga/about/roppga/lang.shtml>.

²⁶⁵ Report of the Working Group on Amendments, ICC-ASP/13/31, 7 December 2014, paras. 6 et seq.

²⁶⁶ See Report of the Working Group on the Review Conference (n 102).

²⁶⁷ O'Donohue, in: C. Stahn (ed), *The Law and Practice of the International Criminal Court* (OUP, 2015), 16.

²⁶⁸ On the Working Group on Amendments, see above under Section IV.

²⁶⁹ ICC-ASP/8/Res.6, para. 4.

²⁷⁰ See the previous Art. 5(2) of the Statute, amended in Resolution RC/Res. 6, Annex I, 11 June 2010.

proposed an amendment to be considered by the 2010 Review Conference which contained a definition, elements of crimes, and conditions for the exercise of jurisdiction over the crime of aggression.²⁷¹ Following the conclusion of the SWGCA, the Assembly leadership convened several informal meetings which set the stage for the negotiations at the Review Conference.

At the Review Conference in Kampala, Uganda, from 31 May to 11 June 2010, the Assembly achieved many milestones that permanently impact the Court and its Member States. The Conference worked through several proposals in order to bridge the gap between those countries seeking to limit the ways in which aggression could be brought before the Court and those seeking a more expansive approach to the Court's jurisdiction over the crime. The amendments regarding the crime of aggression were adopted by consensus on the last day of the conference, but no country will be affected by the exercise of the Court's jurisdiction over this crime before January 2017 at the earliest.²⁷²

The conditions for the exercise of jurisdiction over the crime of aggression constituted the most controversial and contentious question in the negotiations in the SWGCA leading up to the Review Conference. At the center of the debate was the role of the UN Security Council.²⁷³ On one hand a number of States at Kampala held the view that the Security Council should be denied any role in the ICC's jurisdiction as they believed the role would politicize the Court and compromise its independence and legitimacy. On the other hand, the Security Council's permanent members and some others insisted that all situations about aggression should only go to the Court through the Security Council. After eight years of negotiations in the SWGCA, the participants of the Review Conference were able to reach a final outcome, with many States moving sharply away from their previously declared positions.²⁷⁴

The organization and conclusion of the Kampala Review Conference was the **first major act** in the practice of the Assembly which for the first time operationalized a statutory provision and approved other Statute amendments,²⁷⁵ in addition to an important **stock-taking exercise**.²⁷⁶ This has a **precedent-setting value**. Although the conference dealt primarily with the substantive crime of aggression, there were other proposals made and discussed relating to international terrorism, use of nuclear weapons, other weapons and international drug trafficking. In the future, some of these proposals or any new issues that may arise may lead to convening of similar review conferences pursuant to article 123(2) of the Statute. Such a process may help the Statute become more inclusive regarding the **recent and future developments** of international criminal and humanitarian law.

²⁷¹ On the SWGCA see also above, Section IV.

²⁷² RC/Res. 6, Annex I, sections 3, 4. The amendments included two conditions to the ICC's ability to exercise jurisdiction over the crime of aggression. First, the ICC cannot exercise jurisdiction over this crime until one year after thirty states have ratified the amendment and secondly, States Parties need to authorize the exercise of jurisdiction over the crime of aggression at some point after January 1, 2017, even if the required number of ratifications is achieved before that day. There will be a review of the aggression amendments seven years after the beginning of the Court's exercise of the jurisdiction. See RC/Res. 6.

²⁷³ Clark, 'Negotiating Provisions Defining the Crime of Aggression, its Elements and the Conditions for ICC Exercise of Jurisdiction Over It', in: *EJIL* (2009) 20, 1113.

²⁷⁴ Martinez Vivancos, AMICC (2010), p. 1 et seq. The then Assembly President and Liechtenstein's Ambassador to the UN, Christian Wenaweser, noted that '[t]he discussions in Kampala were not easy, but they resulted in what not many had believed was possible: a consensual agreement on all aspects relating to the crime of aggression including on the jurisdictional aspects which had been particularly difficult [...] Part of the agreement was also to delay the activation of the regime until 2017. And, importantly, to make activation conditional on the ratification of 30 States. This seemed to be the appropriate level of political acceptance by States to move forward with a regime that represents such a significant advance for international law.' Statement of H.E. Mr. Christian Wenaweser on the Workshop on Ratification and Implementation of the Kampala Amendments to the Rome Statute of the International Criminal Court, Gaborone, 15 April 2013. Available at: http://crimeofaggression.info/documents/8/Bots_2013-04-15_CW_Opening_Remarks.pdf.

²⁷⁵ RC/Res.5, Amendments to article 8 of the Rome Statute, 10 June 2010.

²⁷⁶ RC/11, Stocktaking of international criminal justice (23 September 2010), on the following core topics: a) the impact of the Rome Statute system on victims and affected communities; b) peace and justice; c) complementarity and d) cooperation. Available at: http://www.icc-cpi.int/en_menus/asp/reviewconference/stock-taking/Pages/stocktaking.aspx.

PART 12 FINANCING

Article 113 Financial Regulations

Except as otherwise specifically provided, all financial matters related to the Court and the meetings of the Assembly of States Parties, including its Bureau and subsidiary bodies, shall be governed by this Statute and the Financial Regulations and Rules adopted by the Assembly of States Parties.

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A. Introduction/General remarks

It is not surprising particularly in the background of current financial situation of the United Nations that the establishment of a new international organization, the ICC, gave rise to a delicate debate on its funding. Financing of the Court was discussed more intensely in the penultimate session of the Preparatory Committee and during the final stage of the Rome Conference.¹

The substantive issues that arose in the negotiations included the following: Who should contribute to the expenses of the Court? Whether the Court should be funded from out of the regular budget of the Court? Should it be provided from the UN but from a special account similar to the budget for peacekeeping operations? Should the United Nations pay when the Security Council refers matters to the Court? Or should it have a separate funding mechanism based on the contributions of its States Parties? Whether voluntary contributions from individuals and private organizations and institutions should be allowed to the funds of the Court? If so, should they be subject to strict conditions? How should the contributions be assessed? That is, what method of assessment should be applied for financing the Court? Should it be the UN scale of assessment or the multi-unit or multi-class system followed in the Universal Postal Unit (UPU) and the International Telecommunication Union (ITU)? Should the accounts of the Court be audited by the UN auditors or by external auditors?

Broadly, on the fundamental issue of sources of funding, two different approaches were recorded in the negotiations.² One school of thought preferred the UN regular budget as the source of funding the Court and consequentially would follow the UN scale of assessment. The other school would have only States Parties pay for the Court. On the issue of voluntary contributions, while one group would encourage them, others would not permit for they are not predictable, and some others could permit them only subject to strict standards governing them.

¹ See the *Ad Hoc* Committee Report, paras. 244 to 249. Also see the 1996 Preparatory Committee I, para. 32.

² *Ibid.*

The Draft Statute referred by the Preparatory Committee to the Rome Conference provided for alternative texts on the divisive issues.³

- 3 The scheme agreed in the Conference and contained in Part 12 of the Rome Statute⁴, articles 113 to 118, provides for a single financial framework for the Court as well as for the Assembly and its organs⁵, and has the following salient features. The funds of the Court would include assessed contributions by the States as well as those provided by the United Nations, particularly to meet the expenses for referrals made by the Security Council⁶. States Parties' contributions would be assessed on the basis of UN scale of assessment and the principles underlying it⁷. Voluntary contributions are permitted subject to relevant criteria laid down by the Assembly of States Parties.⁸ There would be an annual independent audit of the Courts' funds and expenditures⁹.

B. Analysis and interpretation of elements

1. 'all financial matters'

- 4 During the Preparatory Committee, the negotiations focused only on the financing of the Court¹⁰. But in the Conference, the question of finances for the meetings of the Assembly, Bureau and other subsidiary organs of the Assembly arose. The article now provides for a single framework for all the financial matters to be governed by the Statute and the Financial Regulations and Rules¹¹.
- 5 One obvious implication of this would be that this will be different from the Meetings of the States Parties to the Law of the Sea Convention which oversee the International Tribunal for the Law of the Sea. The expenses for those meetings are met from out of the regular budget of the United Nations although the budget of the Tribunal itself is independent of the UN and consists of the assessed contributions of the States Parties to the UN Convention on the Law of the Sea.
- 6 The ICC would also be different from the ICJ in terms of funding and accountability. The ICJ being one of the principal organs of the United Nations is factored into the UN regular budget and hence are subject to the scrutiny of the Committee on Administrative and Budgetary Questions (ACABQ) and the Fifth Committee. The President of the World Court makes annual reporting of the activities of the Court directly to the General Assembly. In addition to the UNGA, the matters relating to the ICJ, including its workload and financial needs, are discussed in the Sixth Committee and on occasion in the Charter Committee.
- 7 As provided in article 113 of the Rome Statute, all financial matters of the Court and the meetings of ASP, including its Bureau and subsidiary bodies, shall be governed by the Rome Statute and the Financial Regulations and Rules adopted by the Assembly. Expenses of the Court and the ASP, including its Bureau and subsidiary bodies, shall be paid from the funds of the Court (article 114). An annual audit of the records, books, and accounts of the Court, including its annual financial statements, shall be done by an independent auditor, pursuant to article 118.¹²

³ Preparatory Committee (Consolidated) Draft, Part 12, 'Financing of the Court', articles 103 to 107.

⁴ Rome Statute of the International Criminal Court, UN Doc. A/CONF.183/9 (1998), Part 12, 'Financing', articles 113 to 118.

⁵ *Ibid.*, article 113.

⁶ *Ibid.*, article 115.

⁷ *Ibid.*, article 117.

⁸ *Ibid.*, article 116.

⁹ *Ibid.*, article 118.

¹⁰ *Supra* note 3. The title of Part 12 was 'Financing of the Court'. Article 103 addressed 'Payment of Expenses of the Court'. And article 104 used the terminology 'Funds of the Court'. (Emphasis added).

¹¹ *Supra* note 4. Article 115 is titled 'Funds of the Court and of the Assembly of States Parties'. The title of Part 12 is 'Financing'.

¹² Rome Statute, Retrieved from UN.org: [http://legal.un.org/icc/statute/english/rome_statute\(e\).pdf](http://legal.un.org/icc/statute/english/rome_statute(e).pdf) (p. 61).

The Court has established clear Financial Regulations and Regulations for the running of the court and on financial accountability.¹³ They govern the financial administration of the ICC for a given financial period. The Registrar prepares the programme budget for each of the organs of the Court, in consultation with the concerned and shall submit it to the Committee on Budget and Finance. That Committee submits its comments and recommendations to the Assembly of States Parties which considers takes a final decision on the budget. The Registrar arranges for its publication. Supplementary budget proposals for meeting unforeseen circumstances, if any. Appropriations decided by the Assembly of States Parties constitute authorizations for the Registrar to administer appropriations and incur expenditure and make payments. The basic sources of funds for the ICC are assessed contributions made by States Parties, funds provided by the UN in accordance with article 115(b) of the Statute for the situations referred by it to the Court, voluntary contributions by governments, international organizations, corporations, individuals or other entities in accordance with article 116 of the Statute, and such other funds to which the Court may be entitled to receive.¹⁴

The Registrar has been given the clear responsibility for financial management. By the authority so vested, the Registrar has further delegated authority in 2005 to other concerned officers in the Registry to perform specific functions under his authority such as for procurement purposes, entering into authority. The delegated authority regulations contain provisions of specific authority for concerned officers and with clearly set out financial limits for such contracting. The main purpose of this is to ensure accountability as well.¹⁵

2. ‘governed by this Statute and the Financial Regulations’

‘This Statute’ would mainly mean the provisions in Part 12, especially other articles of this part of the Statute. The Financial Regulations and Rules would deal with the details of all aspects of management of funds as in the case of the United Nations Financial Regulations and Rules. The authority for adopting them rests with the political body that is the Assembly of States Parties to the Statute.

3. ‘Except as otherwise specifically provided’

This is more a cautious phrase of the Statute in this case, for there are not many places where financial matters were handled elsewhere in the Statute. Yet another place which could have financial implications is article 79 which provides for establishment of Trust Fund for the victims of crimes.¹⁶

C. Next budget process

The next ASP session will take place on 8–17 December 2014 at the United Nations Headquarters in New York. Regarding finances, the Assembly will consider the Report of the Committee on Budget and Finance on the work of its twenty-second session,¹⁷ Report on Budget Performance of the ICC as at 30 June 2014,¹⁸ the Proposed Programme Budget for

¹³ http://www.icc-cpi.int/en_menus/icc/legal%20texts%20and%20tools/vademecum/vademecum/Financial%20Regulations%20and%20Rules.pdf.

¹⁴ *Ibid.* Regulation 5.

¹⁵ http://www.icc-cpi.int/en_menus/icc/legal%20texts%20and%20tools/vademecum/vademecum/Financial%20Regulations%20and%20Rules.pdf.

¹⁶ *Ibid.*, article 79.

¹⁷ Report of the Committee on Budget and Finance on the work of its twenty-second session ICC-ASP/13/5 Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-5-ENG.pdf.

¹⁸ Report on Budget Performance of the International Criminal Court as at 30 June 2014 ICC-ASP/13/8, Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-8-ENG.pdf.

2015 of the Court and its supplementary budget, and financial statements for the period 1 January to 31 December 2013¹⁹.

The Assembly is also scheduled to consider reports submitted to it from the Court, its bodies, and subordinate committees including a report on the activities of the Bureau and of the Board of Directors of the Trust Fund for Victims. The Registry's first, fourth, and sixth quarterly reports on legal aid²⁰ and its report on ways to improve the legal aid procedures will be considered as well as the report of the Court on policy issues, human resources management, cooperation, and organizational structure.²¹ Finally, consideration of the report on activities and programme performance of the International Criminal Court for the year 2013 is on the provisional agenda.

The Proposed Programme Budget for 2015 of the International Criminal Court²² will be proposed by the Registry to the ASP for its approval in December, 2014 at the United Nations Headquarters in New York. The Assembly approves appropriations²³ totaling €135,391,700 in the following scheme (in thousands of euros): Judiciary 12,714; Office of the Prosecutor 41,667.5; Registry 66,257.3; Secretariat of the Assembly of States Parties 3,360.3; Interim Premises 6,000; Secretariat of the Trust Fund for Victims 1,931; Project Director's Office (permanent premises) 1,374.9; and the Independent Oversight Mechanism 463.

The ASP resolves that the Working Capital fund for 2015 shall be established in the amount of €7,405,983 and authorizes the Registrar to make advances from the Fund in accordance with the relevant provisions of the Financial Regulations and Rules of the Court.²⁴ The ASP welcomes continuous contributions of the host State to the rent of the interim premises of the Court in the amount of 50 percent, up to a maximum of €3,000,000 per year for the period of 2013, 2014, and 2015 according to the agreed terms and conditions. The ASP decides that for 2015, the contribution of States Parties shall be assessed in accordance with an agreed scale of assessment, based on the scale adopted by the UN for its regular budget applied for 2013–2015, and adjusted in accordance with the principles on which the scale is based. Regarding the financing of appropriations for 2015, the Assembly notes that the contributions to the interim premises by the host States and the payments corresponding to Major Programme VII-2 Permanent Premises Project – Interest will reduce the level of the budget appropriations to be assessed for contributions by States Parties to €130,768,400. Recalling previous resolutions, the Assembly decides to maintain the Contingency Fund at a level consistent with €7 million threshold for 2015.²⁵

Finally, the ASP will decide to establish the special account for the advance of defense costs relating to Mr. Bemba. Taking note that the Court requests that the ASP establish a special account in the amount of €2,067,982, exceptionally funded out of the income generated as a result of the payment of Mr. Bemba's debt to the Court for its advance of his legal fees upon a State Party having implemented a seizure order, and that the Assembly

¹⁹ Financial statements for the period 1 January to 31 December 2013, ICC-ASP/13/12, Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-12-ENG.pdf.

²⁰ Registry's fourth quarterly report on legal aid, ICC-ASP/13/2 Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-2-ENG.pdf.

²¹ ICC Website lists all documentation of relevant reports for the Assembly's thirteenth session: http://www.icc-cpi.int/en_menus/asp/sessions/documentation/13th-session/Pages/default.aspx.

²² Proposed Programme Budget for 2015 of the International Criminal Court ICC-ASP/13/10, Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-10-ENG.pdf.

²³ ICC-ASP/13/10, p. 153; Annex I: Draft Resolution of the Assembly of States Parties on the proposed programme budget for 2015, the Working Capital Fund for 2015, the scale of assessment for the apportionment of expenses of the International Criminal Court, financing appropriations for 2015 and the Contingency fund.

²⁴ *Ibid.*

²⁵ Resolutions: ICC-ASP/3/Res.4, establishing the Contingency Fund in the amount of €10,000,000 and ICC-ASP/7/Res.4, requesting the Bureau to consider options for replenishing both the contingency Fund and the Working Capital Fund.

authorize the Court to use the funds in the special account to finance the continued advance of funds to Mr. Bemba.²⁶

The Assembly recognizes potential developments which could impact on the 2015 proposed programme budget – including procedural developments provided for by the Rome Statute, leading to delays in ongoing proceedings, and procedural developments currently unforeseeable.²⁷

²⁶ Cases ICC-01/05-01/08 (main case for Mr. Bemba) and ICC-01/05-01/13 (article 70 case for Mr. Bemba) pending before the Court, as of January 2015.

²⁷ ICC-ASP/13/10, p. 158; Annex IV: List of potential developments which could impact on the 2015 proposed programme budget.

Article 114

Payment of expenses

Expenses of the Court and the Assembly of States Parties, including its Bureau and subsidiary bodies, shall be paid from the funds of the Court.

- 1 The article lays down the principle that the expense of the Court, the Assembly, including its Bureau and other subsidiary organs, should be paid from the funds of the Court. It is the first time this Part uses the term ‘funds’. It is a redrafting of article 104 of the Draft Statute prepared by the Preparatory Committee to suit the structure of this part,¹ particularly warranted by new article 113 on single framework for all financial matters which was not there earlier.
- 2 Another place in the Statute where the term fund is used is in article 79. But there the term is different in scope and content from the term ‘Funds’ used in this part of the Statute. It refers to the establishment of a Trust Fund for the benefit of victims of crimes.
- 3 The substance and contents of the funds are governed by the next article. It may however be noticed that while the phrase used in article 114 is ‘funds of the Court’, the title of the next article is ‘Funds of the Court and of the Assembly of States Parties’. There is no conflict in the intention and purport of these two articles despite the apparent difference in phraseology. They deserve to be construed harmoniously in the light of negotiating history.
- 4 The thirteenth session of the Assembly of States Parties is schedule to occur on 8–17 December 2014 at the United Nations Headquarters in New York. Regarding the expenses of the court, the Assembly will consider summary amounts to be paid out of the proposed 2015 budget. The expenses² include (in thousands of euros): Judges 5,727.6; Staff 66,406.9; Consultants, assistance, and overtime expenses 26,193.3; Travel, hospitality, trainings, counsel, furniture, supplies, and other materials and equipment expense 27,063.9. The total amount allocated from the 2015 Budget equals €135,391.7.
- 5 In line with resolution ICC-ASP/9/Res.4,³ IX of the Assembly of States Parties, no resources have been allocated to the African Union Liaison Office (AULO) in the proposed programme budget for 2015. Should the African Union agree to the Court’s request to open a Liaison Office in Addis Ababa, the Court will notify the Committee of the need to access the Contingency Fund up to the amount in the Court’s proposed budget for 2015 of €370,700 in order to proceed with the establishment of the said Liaison Office.⁴

¹ Preparatory Committee (Consolidated) Draft. See article 104.

² Proposed Programme Budget for 2015 of the International Criminal Court, ICC-ASP/13/10, p. 163, Annex VII Summary table by object of expenditure, Retrieved from: http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-10-ENG.pdf.

³ Official Records, Ninth Session, 2010, ICC-ASP/9/20, vol. I, part III, ICC-ASP/9/Res.4.

⁴ *Ibid.* at 165, Annex IX Proposed budget for 2015 for the African Union Liaison Office (AULO).

Article 115

Funds of the Court and of the Assembly of States Parties

The expenses of the Court and the Assembly of States Parties, including its Bureau and subsidiary bodies, as provided for in the budget decided by the Assembly of States Parties, shall be provided by the following sources:

- (a) Assessed contributions made by States Parties;
- (b) Funds provided by the United Nations, subject to the approval of the General Assembly, in particular in relation to the expenses incurred due to referrals by the Security Council.

Literature: Amnesty International, *The International Criminal Court: Making the Right Choices – Part IV: Establishing and Financing the Court and Final Clauses*, AI Index: IOR 40/04/98 (1998); Arsanjani, M.H., ‘Financing’, in: A. Cassese et al (eds), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (OUP 2002) 324–327; Clark, R.S., *The Proposed International Criminal Court: Its Establishment and its Relationship with the United Nations* (Paper prepared for the Society for Reform of Criminal Law Conference, London, 27 July–1 Aug. 1997); Dicke, K., ‘Deciding upon the Budget of the United Nations: A Comparison’, in: R. Wolfrum (ed.), *Law Of The Sea At The Crossroad* (1991) 189; Fletcher, G.P. and Ohlin, J.D., ‘The ICC-Two Courts in One’, (2006) 4 *JICJ* 428–433; O’Donahue, J., ‘Financing the International Criminal Court’, (2013) 13 *ICLRev* (Special Issue: the realities of international criminal justice), 269–296; Reisman, W.M., ‘On Paying the Piper: Financial Responsibility for Security Council Referrals to the International Criminal Court’, (2005) 99 *AJIL* 615; Schermers, H.G. and Blokker, N.M., *International Institutional Law – Unity In Diversity* (1995) 583–705; Singer, J.D., *Financing International Organization: The United Nations Budget Process* (1961); Stoessinger J.G., *Financing The United Nations System* (1964); Warrick, T.S., ‘Organization of the International Criminal Court: Administrative and Financial Issues’, in: *The International Criminal Court: Observations and Issues before the 1997–98 Preparatory Committee; Administrative and Financial Implications*, (1997) 13 *NEP* 5; Wolfrum, R., *United Nations: Law, Policies And Practice* (1994) 78–86; Provisional Estimates of the Staffing, Structure and Costs of the Establishment and Operation of an International Criminal Court, Preliminary report of the Secretary- General to the Ad Hoc Committee on the Establishment of an International Criminal Court, New York, 3–13 April 1995, UN Doc. A/AC.244/L.2 (20 Mar. 1995)

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A. Introduction/General remarks

In conjunction with article 114, article 115 sets forth the financing mechanism of the Court. It establishes the two sources of income, identifies the budgetary authority and sets forth the obligation of States Parties to pay contributions to the Court. Moreover, it allows some conclusions to be drawn concerning the budgetary process. This process is examined hereunder in detail, including in light of subsequent decisions taken by the Assembly of States Parties, in particular the adoption of the Financial Regulations and Rules.

Article 114 (which links the funds and the expenses of the Court and the Assembly of States Parties) and article 115 represent the core budgetary and financial provisions of the Statute. They are the two pillars of what can be considered a ‘closed system’ of financing (common to most public international organizations). This system requires that the amount

of funds is determined exclusively by the level of approved expenditures. In other words, income must follow the expenses¹, or: expenses = funds.

- 2 Does this mean that the sources of income of the Court are listed exhaustively in article 115 and that no other means of generating funds are allowed? The answer is not straightforward. There can and most likely will be other types of income such as fines (but see also further below), reimbursement for services rendered, bank interest, rental of premises, etc.². Moreover, savings could be accomplished in the course of a budgetary cycle through favourable changes in exchange rates, the discontinuation of certain activities, or simply because of overly high cost estimates made at the beginning of the cycle. Such income, however, is different in nature from the funds listed in article 115: in the first place, there is no obligation on the part of States Parties to provide them. In addition – with the exception of voluntary contributions, discussed under article 116 – these do not have budgetary implications, only financial ones. That is, they can only affect the cash flow of the Court, not the actual budgeted expenditures made in support of the Court's operation. Other sources of income and savings may be used at the end of a budgetary cycle to reduce the actual amount that will be needed to be transferred by States Parties to the Court's account, but the amount of funds required should always be budgeted for at the level of the approved expenses³.
- 3 It is important to note that the term 'funds' has a much narrower meaning than 'income' or 'revenue'. Article 115 gives the former a defined and exhaustive meaning: 'funds' are those two sources of revenue which are used to pay for the approved expenses. This 'closed' nature of articles 114 and 115 has two important implications. *First*, income other than the funds identified in article 115 will not affect the legal obligation of States Parties to contribute the share for which they have been assessed in order to cover all of the approved expenses (although for bookkeeping purposes the actual payment may be reduced). *Second*, this income cannot increase the total of funds available (and thereby the level of expenses that can be paid for). They are simply not part of the mandatory equation between expenses and funds.

This is not to say that all other forms of revenue will only be of interest to the accountants of the Court. Pursuant to article 116, voluntary contributions may be accepted by the Court and used as additional funds. Voluntary contributions are not 'funds' within the meaning of article 115, but they can be used to pay for additional activities.

- 4 An unusual form of income that is not a 'fund' within the meaning of article 115, nor a voluntary contribution within the meaning of article 116, but which *can* be used for additional activities is provided in Part 7 of the Statute (articles 77 through 80) relating to penalties. Paragraph 2 of article 77 lists two ways of acquiring income: fines and the forfeiture of proceeds, property and assets. Again, given the closed system of articles 114 and 115, any money obtained through such measures will not be considered as 'funds' within the meaning of article 115, and in principle cannot be used to pay for the activities approved in the budget or for any additional activities. This would be different, however, if use is made of the option – provided in article 79 – to transfer money and property collected through fines or forfeiture to the Trust Fund set up for the benefit of victims and their families. Given the way in which these assets are obtained, they cannot be considered as 'voluntary' contributions. Nevertheless, such assets are similar to voluntary contributions in the sense that the Statute allows

¹ Schermers and Blokker, *International Institutional Law – Unity In Diversity* (1995) 583–584.

² For other types of miscellaneous income, see *ibid.*, 669, and Wolfrum, *United Nations: Law, Policies And Practice* (1994) 80.

³ The discussion of the financial mechanisms in this paragraph has been confirmed by the Financial Regulations and Rules, adopted by the Assembly of States Parties at its first session, see PCNICC/2001/1/Add.2 and the Official Records of the first session, ICC-ASP/1/3. Financial regulation 7.1 provides, briefly summarized, that all income other than the contributions reflected in article 115 of the Rome Statute and other than voluntary contributions will be recorded as miscellaneous income. Regulation 5.4 indicates how such miscellaneous income affects the Court's financial flows.

the money in both cases to be used for additional activities. In the case of fines and seizures, there is no reason why this should only benefit States Parties in the form of savings or an increased cash flow. It would therefore seem desirable to make as much use as possible of the option to transfer such funds to the Trust Fund identified in article 79.

The issue of the financing mechanism of the Court was raised in a late stage of the work of the Preparatory Committee, during its last session in March/April 1998. The three bracketed financing options included in the Preparatory Committee's Final Draft in the article relating to the funds of the Court⁴ are reflective of the main considerations on the appropriate financing mechanism. These three options were: a) funding exclusively through assessed contributions of States Parties; b) funding exclusively through the budget of the United Nations; and c) a combination of these two sources, with the proviso that in the initial phase of the Court all expenses would be borne by the UN.

A common concern underlying most of the views expressed during the Preparatory Committee was the impact the financing could have on the effectiveness of the Court. Regardless of the competence and powers given to it, there was a general understanding that its authority would be undermined if hampered by a lack of adequate, long-term and secure funding. The discussion in the Preparatory Committee therefore focused on finding a mechanism that would be able to guarantee the independence and impartiality of the Court, while at the same time avoiding a situation in which the prospective financial burden could be a prohibitive factor for States considering accession to the Statute.

Representatives who focused on the financial security aspect favoured a budget funded primarily through the UN regular budget, as this would present fewer problems of collection. A further argument advanced in favour of UN funding involved the notion that the Court would be acting on behalf of the entire international community⁵. As long as universality of the Court is still a mere aspiration, however, exclusive funding by the UN raises serious issues of state sovereignty and equity, as a (potentially large) number of UN Member States would be funding an organization they do not belong to. Such a financing method, even if it would have been approved by the Diplomatic Conference, is unlikely to have been approved by the UN General Assembly.

If funding through the UN regular budget can be considered as the best or only option for ensuring a consistent source of income, article 115 in its final form indicates that concerns about sovereignty and equity, mixed perhaps with a dose of realism, have prevailed over those of security. Nevertheless, an enforcement mechanism – the potential loss of voting rights – has been included in article 112(2)(d) to meet concerns about secure funding. Moreover, as discussed below, the possibility of UN funding has been retained, although it is clearly of secondary importance. In addition, the formula for determining the proportion of a UN contribution still needs to be worked out.

Finally, it is of interest to note that this article touches implicitly upon certain institutional aspects of the relation between the Court and the Assembly of States Parties. Whereas a terminological distinction is made between the funds and expenses of the Court and those of the Assembly of States Parties, article 115 also suggests that these are covered in one single budget.

The Assembly of States Parties and Bureau are not organs or in any other way part of the Court. Nor are the Court and the Assembly of States Parties part of one overarching legal entity. The budgetary unity of article 115 therefore leads to the peculiar situation that the budget of a particular organization (the Court) also covers the expenses and funds of another – closely linked – entity. This, however, does not need to present any practical problems, but rather seems to be the most viable approach. Although the Court and the Assembly of States Parties are different in nature (the former is an international organization, the latter an

⁴ Preparatory Committee (Consolidated) Draft, article 104.

⁵ See, e.g., Amnesty International, *The International Criminal Court: Making the Right Choices – Part IV: Establishing and Financing the Court and Final Clauses* (AI Index: IOR 40/04/98) (1998).

intergovernmental body with a supervisory and budgetary role) they are inseparable. The establishment of a third entity simply for the sake of a true budgetary unity or the adoption of two completely separate budgetary mechanisms would not have been efficient. Financial regulation 3.1 has since confirmed this budgetary unity in providing that the proposed programme budget of the Court shall include funding for the expenses of the Assembly of States Parties, including its Bureau and subsidiary bodies⁶. Rule 90 of the Rules of Procedure and Evidence also refers to ‘the budget’ as comprising the expenses of both the Court and the Assembly, including its Bureau and subsidiary bodies.

B. Analysis and interpretation of elements

1. ‘Funds of the Court and of the Assembly of States Parties’

- 8 Within the context of the closed financing mechanism established by articles 114 and 115, the limited meaning of the term ‘funds’ has already been examined (see above). The term is therefore an important element in the Court’s budgetary framework.

A minor inconsistency appears in the use of the term in articles 114 and 115. Whereas the title of article 115 suggests two distinct but related funds (‘funds of the Court *and of* the Assembly of States Parties’ (emphasis added)), article 114 only mentions the ‘funds of the Court’. This can only have been an oversight, as article 114 uses this phrase in connection with the expenses of both the Court and the Assembly of States Parties. The budgetary inseparability of the Court and the Assembly of States Parties, now also reflected in financial regulation 3.1, has been addressed above.

2. ‘the budget decided by the Assembly of States Parties’

- 9 a) **The budget document.** The concept of ‘budget’ has been described as ‘the legal act by which the yearly income and expenditure of an organization is estimated’⁷. It is, however, more than simply a list of estimates. The budget provides the legal basis for an organization to incur expenditures and to collect contributions from its members. In the UN system, the development of the budget from an ‘object of expenditure’ budget (in which costs are classified according to the means by which activities are implemented: staff, buildings, equipment and so on) to a programme budget (where costs are listed by field of activity, based on pre-determined programme of work, such as human rights, political affairs, etc.) has increased its importance as a policy orientation document for the Organization and as a basis on which to conduct evaluations of performance. Our assessment, reflected in the first edition of this commentary, that the introduction of programme budgeting for the Court was unlikely has proven to be incorrect. Financial regulation 3.1 refers to the preparation of the proposed *programme* budget for each financial period, and the rules corresponding to this regulation, particularly financial rules 103.2 and 103.3, contain detailed specifications as to the programmatic content of the proposed programme budget. Financial rule 103.3(3) provides that the budget narrative shall set out, where possible, concrete objectives, expected results and key performance indicators, reflecting an orientation towards results-based budgeting that is in keeping with budgetary developments in the UN system of organizations in the period 2003–2008. Introductory remarks in the proposed programme budget for 2004 prepared by the Registrar⁸ also suggest that these concepts have been firmly embraced by the organs of the Court as a means to engage in a planning dialogue with the Assembly of States

⁶ One of the purposes for which the Contingency Fund was established, was to ensure that the Court can meet the costs associated with an unforeseen meeting of the Assembly. See financial rule 6.6 (c).

⁷ Schermers and Blokker, *International Institutional Law* (2005), 678. Singer, *Financing International Organization: The United Nations Budget Process* (1961) 54–55, lists further functions of the budget document.

⁸ Originally issued as ICC-ASP/2/2 and also reflected in the Official Records of the second session of the Assembly of States Parties, ICC-ASP/2/10.

Parties. It is worth noting, however, that the start-up phase of the Court, with its emphasis on institution- and capacity building, may lend itself much better to such programme and results-oriented budgeting than a fully operational phase. At such a later stage, the risk of jeopardizing the Court's independence through programme budgeting would increase, allowing room for efforts to use the budget as a vehicle for mandating specific – and politically opportune – prosecutorial and judicial activities.

b) The budget period. The length of the budgetary cycle has been addressed by the 10 Assembly of States Parties in the financial regulations and rules. As article 118 of the Rome Statute on the annual audit already appeared to presage, financial regulation 2.1 provides that the financial period shall consist initially of one calendar year, unless otherwise decided by the Assembly of States Parties for the first-year budget. This regulation also provides that the Assembly shall keep this period under review. At its first session, the Assembly of States Parties resolved that, as an exception to financial regulation 2.1, the first financial period would extend from 1 September 2002 to 31 December 2003⁹. The first programme budget thereafter was prepared for the calendar year 2004, and adopted as such by the Assembly of States Parties¹⁰. Since then, the Assembly has approved the programme budget on an annual basis for the calendar year. No further decisions have been taken by the Assembly with regard to the financial period.

Obviously, an annual budget allows more budgetary flexibility than longer cycles, as it is easier to adapt to increases or reductions in the caseload of the Court, but it is also more labour- intensive for both the Court and the Assembly of States Parties, including its Committee on Budget and Finance. The UN (and specialised agencies) follow a two-year cycle¹¹. Effective 1 January 2002, the two *ad hoc* Tribunals have 'biennialized' their formerly annual budgets, pursuant to decisions of the General Assembly¹².

There has been some occasional discussion in the Assembly's subsidiary body, the Committee on Budget and Finance, and among States Parties on moving to a biennial budget. The Court has faced many challenges in determining its budgetary needs for the following year, so projecting those needs two years in advance poses even greater uncertainties.¹³ The fact that the Court has yet to complete a full judicial cycle was another factor for deferring further consideration of the possible biennialization of the budget.

Having the dates of Assembly sessions fixed for November/December each year allows the Court to prepare its budget on a more accurate basis than would be the case for Assembly sessions taking place earlier in the year.

c) Stages and responsibilities in the budgetary process. Article 115 identifies the Assem- 11 bly of States Parties – the only body in which all contributing States are represented – as the sole budgetary authority of the Court, indicating that it is the Assembly which 'decides' on the budget. This wording is echoed in rule 90 of the Rules of Procedure and Evidence, which provides that the Assembly shall 'decide' on the budget, comprising the expenses of both the Court and the Assembly, including its Bureau and subsidiary bodies. Article 112, on the competence of the Assembly of States Parties, provides a fuller description in paragraph 2 (d), pursuant to which the Assembly shall 'consider and decide the budget for the Court'. This minor discrepancy is not likely to have any practical consequences.

⁹ Res. ICC-ASP/1/Res.12, section A, para. 1.

¹⁰ Res. ICC-ASP/2/Res.1.

¹¹ UN Financial Regulation 1.2, UN Doc. ST/SGB/2003/7.

¹² See General Assembly Resolutions 55/225 of 23 Dec. 2000 and 55/226 of the same date, respectively, both of which cite the use of two-year employment contracts as one of the benefits which this reform would make possible.

¹³ See for example the Report of the Bureau of the Study Group on Governance, annex II, paras. 38 and 39, ICC-ASP/11/31. In para. 39 the Study Group requested the Court to prepare, as a medium term project, a discussion paper on the biennial budgets option articulating fully the implications, both positive and negative, on the option of transitioning from annual to biennial budgets. The Study Group urged the Court to draw also on the lessons learned by other organisations, including other international courts and tribunals.

In the absence of any provisions that indicate otherwise, the decision-making process for approving the budget is that to be followed for all other decisions taken by the Assembly: each State has one vote (*i.e.* no weighted voting corresponding to contribution) and ‘every effort’ shall be made to reach a decision by consensus. Failing that, a decision on the budget – clearly a matter of substance rather than of procedure – will require a two-thirds majority of those present pursuant to article 112(7)(a).

In order to assist it in the consideration and adoption of the budget, the Assembly decided at its first session to establish a Committee on Budget and Finance, and entrusted it with the responsibility to undertake ‘the technical examination of any document submitted to the Assembly that contains financial or budgetary implications or any other matter of a financial, budgetary or administrative nature as may be entrusted to it by the Assembly of States Parties’¹⁴. More specifically, financial regulation 4.7 provides that the Committee shall consider the programme budget proposed by the Registrar and shall submit its comments and recommendations thereon to the Assembly. The Committee resembles the Advisory Committee on Administrative and Budgetary Questions (ACABQ) of the UN General Assembly in its mandate and in the fact that its members serve in their individual capacity rather than as representatives of Member States. The consideration and adoption of the budget forms only one of the stages that constitute a full budgetary cycle or process. An entire cycle generally includes preparation and presentation, consideration and adoption, implementation, monitoring, evaluation and audit (the latter is addressed in article 118). Various aspects of the budgetary process have been addressed by the Assembly of States Parties in the adoption of the Financial Regulations and Rules¹⁵ as well as other decisions, and will be examined here.

- 12 The *Rome Statute* leaves open the question of who or what is responsible for preparing the budget document. In the UN, all budgetary estimates are prepared by the Secretariat and nominally presented by the Secretary-General – as chief administrative officer – to the General Assembly¹⁶. It is ‘his proposed programme budget’¹⁷, and the Secretary-General bears responsibility for the financial estimates. This procedure has also been followed for the two *ad hoc* Tribunals. Estimates are drawn up by the tribunals and, following review by the Secretariat, are presented to the General Assembly as the ‘Secretary-General’s report on the financing of’ the international tribunals. This unity in presenting financial estimates within the UN ensures consistency and clarity in the lines of accountability *vis-à-vis* the budgetary authority.
- 13 Following the adoption of the *Rome Statute*, the question arose for the Court as to who or which organ would be authorised to prepare and present the budget proposal and consequently bear responsibility for planning and making financial estimates. As already indicated, the Statute does not contain an express provision on this point. The various answers presented different institutional problems. It is evident that the Prosecutor could not have assumed budgetary responsibility for the two other organs. Moreover, entrusting the preparation and presentation to the President (as the nominal head of the Court) or the Presidency (as the entity responsible for the ‘proper administration of the Court’)¹⁸ would have created complications as it would have subjected part of the judiciary to the administrative and political supervision of the States Parties¹⁹. In addition, as is clearly indicated by

¹⁴ Res. ICC-ASP/1/Res.4, Annex, paragraph 3.

¹⁵ For the United Nations, a number of budgetary principles are set out in the Financial Regulations and Rules, while the whole process is elaborated in the Regulations and Rules Governing Programme Planning, the Programme Aspects of the Budget, the Monitoring of Implementation and the Methods of Evaluation (see U.N. document ST/SGB/2000/8). The Assembly of States Parties could adopt similar regulations for the Court in keeping with the practice of the UN, although the wording of article 113 of the *Rome Statute* seems to exclude the possibility of any additional Regulations outside the Financial Regulations.

¹⁶ UN Financial Regulation, see note 33, 2.1.

¹⁷ Article 3.2 para. 5, of the UN Regulations Governing Programme Planning, the Programme Aspects of the Budget, the Monitoring of Implementation and the Methods of Evaluation.

¹⁸ Article 38 para. 3 (a).

¹⁹ See in this connection the observations of the Registrar of the ICTY in her address during the March/April 1998 Session of the Preparatory Committee, on 19 Mar. 1998. Highlighting the fact that the Draft Statute

article 38 para. 3 (a), the Presidency could not and would not have been responsible for the administration of the Office of the Prosecutor.

The Financial Regulations and Rules have consequently accorded the authority to prepare and submit the programme budget and monitor its implementation to the Registrar. He or she is, after all, the principal administrative officer of the Court²⁰, responsible for ‘the non-judicial aspects of the administration and servicing of the Court’²¹, performing his or her functions under the authority of the President²². Nevertheless, here too there are institutional questions to address and overcome. Both article 115 and article 112(2)(d) indicate that there is only one budget: the budget for the Court. In practical terms, this budgetary unity would also suggest that one office or official is responsible for its preparation. This budgetary unity, however, needs to be aligned with the strongly developed independence and autonomy of the Prosecutor. According to article 42(2), the Prosecutor shall have ‘full authority over the management and administration of the Office [of the Prosecutor], including the staff, facilities and other resources thereof’. How then have the administrative responsibilities of the Registrar been reconciled with the autonomy of the Prosecutor on the one hand, and the unity of the budget of the Court on the other? Moreover, how has the administrative authority of the President and the Presidency (even though this does not extend to matters concerning the administration of the Office of the Prosecutor²³) been accommodated?

Financial regulation 3.1 simply requires the Registrar to prepare the budget ‘in consultation’ with the Presidency and the Office of the Prosecutor. Financial rule 103.2 indicates that the preparation process starts with a request for budget proposals from the Registrar the Prosecutor and other heads of units or other organs of the Court. The Registrar may prescribe when and how such proposals are to be submitted. On the basis of these proposals, the Registrar then prepares a consolidated draft programme budget and submits it to the Committee on Budget and Finance (on which see further below). The manner in which the consultations referred to in financial regulation 3.1 are to be held, how differences of opinion are to be resolved, and whether the Registrar has a final say as to the level and contents of the consolidated budget, is not further addressed. In practice, an internal Court body called the Coordination Council, which is composed by the three heads of organs (the President of the Court, the Prosecutor and the Registrar), provides a forum for senior level decision-making on the proposed programme budget.

The *Rome Statute* is silent on other budgetary phases identified above: the implementation of the budget approved by the Assembly of States Parties, and the monitoring and evaluation thereof. On implementation issues, financial regulation 4.1 provides that the decisions taken by the Assembly on the budget – also known as appropriations – constitute authorizations to the Registrar to incur obligations and make payments in accordance with those appropriations. Other regulations and rules further underline the central role of the Registrar in budgetary measures, despite articles 48(2) and 38(3)(a) already signaled above. In the same vein, on monitoring and evaluation aspects, financial rule 103.2(3) indicates that the Registrar is responsible for monitoring the achievement of objectives and service delivery during the financial period, and for reporting on actual performance attained in the context of the following budget proposals.

3. The different subparagraphs

a) ‘assessed contributions’. The fact that contributions are ‘assessed’ implies that the share of each State Party is calculated or weighed according to certain principles. The method for

appeared to establish a link of accountability between the Presidency and the States Parties, the Registrar commented that ‘[t]he independence and effectiveness of an international criminal court would be seriously hampered if the judicial organ and individual judges would be made subject to administrative accountability’.

²⁰ Article 43 para. 2.

²¹ Article 43 para. 1.

²² Article 43 para. 2.

²³ Article 38 para. 3 (a).

determining these contributions – the scale of assessment – is provided for in article 117. ‘Assessment’ also implies that the contributions from States Parties are mandatory. The wording of article 115 (‘the expenses [...] shall be provided by [...] assessed contributions’) indicates that if expenses have been approved there is no other option than for States Parties to pay their dues. Moreover, article 112 establishes an enforcing mechanism: States Parties which are in arrears in the payment of their contributions for a period of two or more years lose their right to vote, unless the Assembly of States Parties can be convinced that this situation is due to conditions beyond the control of the State Party in question²⁴. The conclusion is that, although not expressly formulated in article 115, States Parties are under a legal obligation to pay their assessed contributions.

- 17 **b) ‘Funds provided by the United Nations’.** The second source of funds of the Court and of the Assembly of States Parties will be those provided by the United Nations.

The phrase ‘subject to the approval of the General Assembly’ appears to have no legal significance in the sense that it seems to confirm the obvious: budgetary provisions for the payment of expenses by the UN require the General Assembly’s approval. The budgetary primacy of the General Assembly is anchored in the Charter of the United Nations and does not, from a legal point of view, require confirmation whenever funds are to be paid by the United Nations. Nor does ‘approval’ imply a more stringent decision-making process than that applicable to the regular UN budget²⁵. It is possible, therefore, (although the wording is ambiguous) that the purpose of this phrase is to subject the whole *funding modality* provided in paragraph (b) to the approval of the General Assembly. That is, this provision intends to create a general financial obligation on the part of the United Nations but cannot do so, of course, without the approval of the General Assembly²⁶. It is thus not a reference to the UN budgetary process in which the contribution to the Court in any given year or biennium are to be decided upon by the General Assembly (even if such expenses flow from referrals of the Security Council) but a reflection of the fact that an agreement cannot create obligations on behalf of third parties. The Relationship Agreement between the Court and the United Nations,²⁷ which is provided in article 2 of the Statute, contains an article 13 on ‘financial matters’ wherein the UN and the Court agree that ‘the conditions under which any funds may be provided to the Court by a decision of the General Assembly pursuant to article 115 of the Statute shall be subject to special arrangements.’ Other than a number of incidental references which do not provide further details, the Assembly of States Parties has not addressed this funding modality in the Financial Regulations and Rules.

- 18 It is noteworthy that paragraph (b) provides for funds paid by the UN ‘in particular in relation to referrals by the Security Council’. This choice of words implies that there may be other, as yet undefined situations, in which the UN could be called upon or required to contribute to the Court’s funds.

The first question is why the UN should pay at all. One way of analysing this is to consider referrals by the Security Council as services rendered by the Court to the UN. In this light, it is clearly justifiable that expenses incurred due to those services should be borne by the referring organization. For situations other than referrals, the justification for payment by the UN is less evident. An answer may be found in the discussions leading to the financial provisions of the Statute. Views expressed in favour of a budget funded exclusively by the UN were based, among others, on the argument that, since the Court would act on behalf of the entire international community, it was more appropriate that the UN should bear the costs (see the discussion above).

²⁴ Article 112 para. 8 is similar to the procedure provided in article 19 of the UN Charter.

²⁵ Pursuant to article 18 para. 2 of the UN Charter, budgetary questions are to be decided upon by a two-thirds majority. In resolution 41/213 of 19 Dec. 1986, however, the General Assembly agreed to decide budgetary questions, to the extent possible, by consensus.

²⁶ UN Financial Regulations, see note 33, 3.10 and 13.2.

²⁷ UNTS, vol. 2283.

In addition, how could one determine the share of the UN? A formula for establishing the proportion of UN funds to the total funds of the Court cannot be made on the basis of any budgetary or legal principles. This will rather be a matter for negotiation. Nevertheless, it is clear that referrals should be calculated on the basis of the ‘expenses incurred’, although that may still create some difficulties in practice. Standard administrative and other overhead costs may not necessarily increase due to referrals, and certain operating expenses cannot always be linked to a particular case or trial. Nevertheless, it should not be impossible to arrive at adequate approximations. Situations other than referrals, in which a clear link between expenses due to referral and corresponding reimbursement is absent, will be more problematic.

The ill-defined extent of the UN contribution to the Court’s budget suggests that the wording is a compromise between the two main views on the financing mechanism. While exclusive payment through the UN regular budget did not receive sufficient political support, particularly from the largest contributors to the UN budget, a complete exclusion of UN involvement was also not acceptable to many States. There simply was not a sufficient consensus, however, to define the role of UN funding in the Court’s budgetary framework. To a certain degree the matter was addressed by the States Parties, within the general context of the bringing the Court into relationship with the United Nations on the basis of article 2 of the Statute via the Relationship Agreement.

What had previously been a theoretical matter became a reality when the UN Security Council referred the situation in Darfur (Sudan) and in Libya to the Court in 2005 and 2011, respectively. The costs which the Court would incur with regard to those referrals were to be borne by the States Parties to the Rome Statute, as the Security Council resolutions did not provide any funding for the referrals, but rather contained a provision expressly indicating that no such funding would be provided.²⁸ In 2011, the Assembly resolution on the budget included a new section specifically referring to the issue of UN contributions to the Court, with similar language being included in the annual resolution on the budget since then²⁹:

Referrals by the Security Council

‘The Assembly of States Parties,

Noting the financial implications of the situations referred to the Court by Security Council resolutions 1593 and 1970,

Recalling that, pursuant to article 115 of the Rome Statute, expenses of the Court and the Assembly shall be provided, inter alia, by funds of the United Nations, subject to the approval of the General Assembly, in particular in relation to the expenses incurred due to referrals by the Security Council,

Mindful that, pursuant to article 13, paragraph 1, of the Relationship Agreement between the Court and the United Nations, the conditions under which any funds may be provided to the Court by a decision of the General Assembly of the United Nations shall be subject to separate arrangements,

Invites the Court to include this matter in its institutional dialogue with the United Nations and to report thereon to the eleventh session of the Assembly.’

The issue of the financing of referrals has been raised in different fora³⁰, including during the consultations on the annual UN General Assembly resolution on the Court, the consultations on the proposed programme budget of the Court³¹ and in the UN Security

²⁸ UN Doc. S/RES/1593 (2005), paragraph 7: ‘that none of the expenses incurred in connection with the referral including expenses related to investigations or prosecutions in connection with that referral, shall be borne by the United Nations and that such costs shall be borne by the parties to the Rome Statute and those States that wish to contribute voluntarily’. UN Doc. S/RES/1970 (2011), paragraph 8: ‘Recognizes that none of the expenses incurred in connection with the referral, including expenses related to investigations or prosecutions in connection with that referral, shall be borne by the United Nations and that such costs shall be borne by the parties to the Rome Statute and those States that wish to contribute voluntarily; ...’.

²⁹ ICC-ASP/10/Res.4, section G.

³⁰ See for example the 15 July 2011 non-paper which Liechtenstein circulated to UN Member States wherein it called for the UN to fund previous referrals and for the Council to avoid its practice of placing all resulting financial obligations on the Court in the future. http://www.securitycouncilreport.org/atf/cf/{65BFCF9B-6D27-4E9C-8CD3-CF6E4FF96FF9}/Financing_of_situations_referred_to_the_ICC_by_the_UNSC.pdf.

³¹ The budget consultations take place via The Hague Working Group on the Bureau and then continue in the annual Assembly session.

Council.³² Despite such discussions over the course of several years, there has been no substantive progress on the matter. At the UN, only a short paragraph on the issue may be found in the General Assembly resolution on the Court,³³ though some States have continued to encourage discussion on the financing of referrals.³⁴ The issue generates new interest every time a possible new referral is mentioned, as the financial constraints being faced by major contributors to the Court's budget pose challenges to the continued absorption of such costs by the ASP. Nonetheless, it would seem that, at least for the time being, supporters of the Court see the externalization of the costs of referrals as a political reality they are willing to accept if that is necessary for a referral.³⁵

³² Some States made comments during the open debate on 'Peace and Justice with a Special Focus on the Role of the International Criminal Court.', which was held on 17 October 2012.

³³ Operative paragraph 14 of UN General Assembly resolution 69/279 reads: *Recalls* the Relationship Agreement, and notes that expenses related to investigations or prosecutions incurred by the International Criminal Court in connection with situations referred by the Security Council or otherwise continue to be borne exclusively by States parties to the Rome Statute.

³⁴ Statements made on 9 September 2014 when the General Assembly adopted the resolution on the Court may be found in the respective summary record, A/68/PV.107. See also the statements made on 8 May 2015 contained in summary record A/69/PV.89.

³⁵ The 22 May 2014 draft resolution concerning the referral of the situation in the Syrian Arab Republic contained similar language to that found in the two referrals by the Security Council. The resolution was co-sponsored by 65 States; it was vetoed by China and the Russian Federation when put to a vote in the Security Council on that date. Draft operative paragraph 8 of the proposed resolution read as follows: 'Recognizes that none of the expenses incurred in connection with the referral, including expenses related to investigations or prosecutions in connection with that referral, shall be borne by the United Nations and that such costs shall be borne by the parties to the Rome Statute and those States that wish to contribute voluntarily and encourages States to make such contributions, noting the need for funding of expenses related to investigations or prosecutions of the International Criminal Court, including in connection with situations referred to the Court by the Security Council, as stated in General Assembly resolution 67/295'; UN Doc. S/2014/348. See also UN Doc. S/PV.7180 for the statement by Argentina on the issue of financing of Security Council referrals.

Article 116

Voluntary contributions

Without prejudice to article 115, the Court may receive and utilize, as additional funds, voluntary contributions from Governments, international organizations, individuals, corporations and other entities, in accordance with relevant criteria adopted by the Assembly of States Parties.

Literature: See article 115.

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A. Introduction/General remarks

In addition to the funds listed in article 115, article 116 provides a third, but distinct, ¹ source of income for the Court, allowing States and other interested parties to make donations to the Court outside its main budget.

The authority to accept and utilize voluntary contributions is commonplace among international organizations, particularly within the UN system, although the degree of reliance on non-assessed contributions varies. Organizations active in the areas of development, humanitarian aid, technical assistance, etc., are generally more or wholly reliant on such donations (e.g. UNDP, UNRWA, UNHCR, UNICEF). Within the UN itself the total of voluntary contributions is only a fraction of the regular budget funded by assessed contributions. Similarly, although important and large-scale projects of the ICTY and the ICTR have been funded with voluntary contributions, voluntary funds represent a small value relative to their respective regular budgets¹. The International Court of Justice has never accepted voluntary contributions in support of its own work², although a trust fund has been established by the UN to help poorer States defray their own costs ensuing from proceedings before the Court.

As mentioned in the discussion relating to article 115, the way in which the Court was to ² be funded did not enter the foreground of the discussions until the last session of the Preparatory Committee (March-April 1998). Among the various financing modalities proffered, practically none of the participating States were in favour of a financing mechanism that relied exclusively on voluntary contributions. The Preparatory Committee's Final Draft provided for a separate provision to cover voluntary contributions³. This provision remained virtually the same in the *Rome Statute*. The Assembly of States Parties addressed issues relating to voluntary contributions at its first⁴ (September 2002) and second⁵ (September

¹ Tenth Annual Report of the ICTY, UN Doc.A/58/297, S/2003/829 (20 Aug. 2003), pp. 62–65, paras. 292–306. Budget for the ICTR for the biennium 2004–2005: report of the Secretary-General, UN Doc. A/58/269, page 7.

² Peck and Lee (eds.), *Increasing the Effectiveness of the International Court of Justice, Proceedings of the ICJ/UNITAR Colloquium to Celebrate the 50th Anniversary of the Court* (1997) 212.

³ Preparatory Committee Draft.

⁴ Peck and Lee (eds.), *Increasing the Effectiveness of the International Court of Justice, Proceedings of the ICJ/UNITAR Colloquium to Celebrate the 50th Anniversary of the Court* (1997) 212.

⁵ At its second session, the Assembly adopted resolution ICC-ASP/2/Res.6 on the establishment of a trust fund for the participation of the least developed countries in the activities of the Assembly of States Parties.

2003) sessions. Provisions relevant to voluntary contributions – other than those relating specifically to the Trust Fund for the benefit of victims established pursuant to article 79 of the *Rome Statute* – are discussed throughout this article.⁶

- 3 Obviously, there is no obligation on behalf of the States Parties (let alone the other donors mentioned) to make voluntary contributions, and failure to donate such funds is not penalized, unlike the failure to pay assessed contributions, which is punished by the loss of voting rights in the Assembly, as provided in paragraph 8 of article 112 of the *Rome Statute*. It should also be noted that article 116 refers to contributions in the form of monies ('funds') only. This should not, however, be interpreted as an exclusion of other forms of donations, for example contributions in kind, e.g. donations of materials, equipment and services. The *ad hoc* Tribunals have greatly benefited from such in kind contributions (including several courtrooms)⁷ and the Court may take advantage of such offers of contributions under article 116. The contribution of *gratis* personnel is, of course, subject to a separate regime.⁸
- 4 In the practice of the UN and the *ad hoc* Tribunals, donations are held in trust funds. Similarly, voluntary contributions to the Court, with the exception of contributions for which no purpose is specified, are to be held in trust funds or special accounts pursuant to financial regulation 7.3⁹. The authority to establish and close trust funds and special accounts funded wholly by voluntary contributions has been granted to the Registrar pursuant to financial regulation 6.5. Moreover, financial regulation 7.2 provides that only the Registrar may accept voluntary contributions, indicating that others, such as the President and the Prosecutor, do not have such authority.

Article 79 of the *Rome Statute* allows money collected through fines to be transferred to a Trust Fund for the benefit of victims of crimes within the jurisdiction of the Court, and of the families of such victims, but this article appears to use the concept of a trust fund in a different meaning, as article 79 makes no specific mention of voluntary contributions, and, conversely, article 116 does refer to this particular Trust Fund. Nevertheless, our observation, noted in the first edition of this publication, that voluntary contributions could be used in practice to the benefit of victims and witnesses mentioned in article 79¹⁰, and that therefore funding for this Trust Fund would not necessarily be limited to fines, has since been borne out: the terms of reference for the Trust Fund adopted by the Assembly of States Parties provides that it shall be funded by a variety of resources, including voluntary contributions from the same kinds of donors listed in article 116¹¹. Articles 79 and 116 have thereby been aligned with each other.

B. Analysis and interpretation of elements

1. 'without prejudice to article 115 ... additional funds'

- 5 Voluntary contributions are 'additional funds' – additional, that is, to those listed in article 115. Since voluntary contributions are not covered by article 115, they are not 'funds of the

⁶ A list of voluntary contributions may be found in the annual Financial Statements. See for example Financial Statements for the period 1 January to 31 December 2014, ICC-ASP-14/12, schedule 6.

⁷ See, for example, Fifth Annual Report of the ICTY, UN Doc. A/53/219 – S/1998/739 (10 Aug. 1998), para. 263.

⁸ The ASP adopted guidelines for the selection and engagement of *gratis* personnel in resolution ICC-ASP/4/Res.4, annex.

⁹ Financial regulation 7.3: '[v]oluntary contributions accepted for purposes specified by the donors shall be treated as trust funds or special accounts'. Financial regulation 7.4: '[v]oluntary contributions in respect of which no purpose is specified shall be treated as miscellaneous income and reported as "gifts" in the accounts of the financial period'.

¹⁰ See also R.S. Clark/D. Tolbert, 'Toward an International Criminal Court', in: Y. Danieli et al. (eds.), *The Universal Declaration Of Human Rights: Fifty Years and Beyond* 107 (1998).

¹¹ See resolution ICC-ASP/1/Res.6 on the establishment of a fund for the benefit of victims of crimes within the jurisdiction of the Court, and of the families of such victims, paragraph 2.

Court and of the Assembly of States Parties' within the meaning of that article. As discussed under article 115, articles 114 and 115 provide for a 'closed system' of approved expenses and approved funds, with the underlying principle that the resources should follow – and be equal to the costs, rather than the other way around. In this system, voluntary contributions do not form part of the equation between expenses and funds. They are not included in the budget, nor can they affect that budget on either the expenses or the funding side. This is what is meant by the phrase 'without prejudice to article 115'. The generosity of certain parties cannot relieve States Parties of their obligation to pay their assessed contributions, nor can voluntary contributions be used to meet the expenses of the Court within the meaning of article 114. In other words, funds received through voluntary contributions are not used to arrive at lower assessments of the States Parties, but can and should only be used to fund additional activities – additional to those approved in the budget.

Since the adoption of the Financial Regulation and Rules of the Court by the Assembly at its first session, however, these comments require an additional observation. As mentioned above, financial regulation 7.4 distinguishes between voluntary contributions received for purposes indicated by donors and those contributions in respect of which no purpose is specified: while the former shall be held in trust funds to be established by the Registrar, the latter will be treated as miscellaneous income. Pursuant to financial regulation 5.4(c), miscellaneous income (i.e., including the voluntary contributions considered as such pursuant to financial regulation 7.4.) are used to reduce the net amount States Parties need to pay as their assessed contributions, and cannot, therefore, be used to fund additional activities of the Court¹².

In part, excluding voluntary contributions from the correlation between expenses and funds is desirable because of the unpredictable and uncontrollable way donations are generally made. Voluntary contributions cannot provide the guarantee of long-term secure funding. There are also other institutional considerations. A too heavy reliance on voluntary donations could lead or could be perceived to lead to an undue dependence on affluent States or other parties. The underlying argument is that an international organization should be able to carry out all its mandated functions with use of the assessed contributions provided by its members. This argument carries even more weight for an international judicial organ, for which independence and impartiality are crucial. Indeed, these considerations have been taken into account by the Assembly of States Parties in the adoption of criteria governing donations to the Court (see section 3 below).

2. 'Governments, international organizations, individuals, corporations and other entities'

This is perhaps the only example of a constitutive document of an international organization in which the possible sources of voluntary contributions are expressly spelt out. The use of the phrase 'Governments' also allows voluntary contributions from States which are not Party or signatory to the Statute, unlike contributions of gratis personnel, which under article 44 are limited to Governments that are States Parties. Contributions from 'individuals' is a somewhat novel inclusion, and may remain a rare occasion. For obvious reasons, budgets that mainly contain administrative expenses as opposed to substantive or operational costs are less likely to attract contributions from the general public. In general, those organizations relying to a large extent on voluntary contributions (such as UNICEF and UNDP) are more likely to receive donations from individuals. An extensively publicized donation to the UN by an individual was made by Ted Turner in 1998. Contributions by individuals, corporations and other entities also raise the question of whether contributions should be accepted if these

¹² In the practice of the *ad hoc* Tribunals, voluntary contributions in respect of which no purpose is specified by a donor have been rare, most Governments and other donors preferring to support particular activities considered to be of particular value or interest to them. Prospective donors of the Court should, however, be advised of the consequences of not specifying a purpose for their contributions.

are from a source which is obviously trying to influence the Court in some way, or from a source that is suspect for some reason, *e.g.* due to a certain involvement in human rights abuses. These issues may be addressed in the rules governing the acceptance of contributions.

3. 'relevant criteria adopted by the Assembly of States Parties'

- 8 As noted above, in order to ensure that the contributions are in all respects proper, this provision places responsibility on the Assembly of States Parties to develop appropriate criteria to govern such contributions. These criteria could govern, for example, the purposes for which voluntary contributions can be made and the way in which funds are used and accounted for. Such criteria need not be adopted separately, but could be incorporated in the Financial Regulations and Rules of the Court, to be adopted by the Assembly of States Parties pursuant to article 113.
- 9 Two such criteria have since been adopted by the Assembly of States Parties. The first, contained in financial regulation 7.2, stipulates that acceptance of contributions which directly or indirectly involve additional financial liability for the court shall require the prior consent of the Assembly. A similar rule – sometimes formulated as the rule that regular budgetary funds cannot be used to subsidize extrabudgetary activities – applies to the United Nations. In the practice of the UN, the application of this rule has meant that, given that the use of regular budgetary funds in utilizing donations is often inevitable (for example, regular budget-funded posts would be involved in administering and accounting for donations), a certain percentage of voluntary contributions are used to offset those overhead costs that would otherwise be incurred at the expense of the regular budget, rather than requiring approval of the budgetary authority for each donation.

The second criterion was adopted by the Assembly in its resolution ICC-ASP/1/Res.11 on the relevant criteria for voluntary contributions to the International Criminal Court, and requires the Registrar to assure himself/herself that any offered contributions will not affect the independence of the Court. This could be the case, for example, if the prospective donor makes acceptance of the donation subject to conditions that are contrary to the aims of the Court or to the principles of the UN Charter, or that could jeopardize the independence and impartiality of the Court. The same resolution also requires the Registrar to determine whether offered contributions fulfill any other criteria the Assembly of States Parties may establish. The Assembly has not yet adopted such further criteria.

Article 117

Assessment of contribution

The contributions of States Parties shall be assessed in accordance with an agreed scale of assessment, based on the scale adopted by the United Nations for its regular budget and adjusted in accordance with the principles on which that scale is based.

Literature: See article 115.

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A. Introduction/General remarks

As noted above, article 115 exhaustively lists the two sources of income or funds of the Court, and sets forth the legal obligation of States Parties to pay assessed contributions (as opposed to voluntary contributions, covered by article 116). Article 117 addresses the question of how the burden of the first source of funding is to be distributed between the States Parties. Assessed contributions are not to be shared equally. Instead, in keeping with the practice of the UN and all major international organizations, a system is to be adopted which apportions a different share to each State Party¹. The wording of article 117 is such that, while it provides for a clear model or basis, it does not pin down the Court by promulgating a pre-defined scale of assessment in its constitutive document.

The Preparatory Committee's Final Draft² provided two alternate scales of assessment as a model for the Court's scale. The first, which was adopted in the *Rome Statute*, is examined further below. The rejected option provided that the scale would be based upon 'a multi-unit class system along the lines of that used in the International Telecommunication Union or the Universal Postal Union'. In these organizations, each member selects one of a limited number of 'classes', each class corresponding to a different contribution expressed in units. Moreover, each class can be defined in terms of the contribution of the last class. Thus, States in the first class pay a multiple of the amount paid by States in the last class, States in the second class pay a smaller multiple, and so on. In both organizations each member is free to choose its own class. While the practice of these organizations indicates that such an approach may be viable, it has been pointed out that larger and expensive organizations would not be served by such a class system, as its voluntary element does not provide an incentive for members to pay as much as they can³. In rejecting this second proposal, the drafters of the Statute have opted for a system based on percentages (rather than units, although this distinction does not fundamentally affect the nature of the scale), which provides for an unlimited variation of assessments (rather than a limited number of classes), and in which States are not free to choose their own assessment (although the scale of assessment will, of course, need to be agreed upon). The Assembly of States Parties addressed

¹ Schermers and Blokker, *International Institutional Law* (1995) 607, lists a handful of organizations in which all members pay equal shares. The authors conclude that such a system is not generally acceptable to the international community.

² Preparatory Committee Draft.

³ Schermers and Blokker, *International Institutional Law* (2005), 609.

issues relating to the scale of assessments and to assessed contributions at its first regular⁴ (September 2002) and second⁵ (September 2003) sessions. Both the Financial Regulations and the Rules of Procedure of the Assembly include provisions relating to the role of the Assembly of States Parties in the adoption of the scale of assessment. In addition, the Financial Regulations address how the scale is to be applied in assessing individual contributions and how it can be adjusted (see financial regulations 5.4 and 5.5, discussed below). The Court also submitted a report in 2012 explaining how it calculates the assessments.⁶

B. Analysis and interpretation of elements

1. ‘an agreed scale of assessment’

- 3 Although not specifically provided for in this article or in article 112 relating to the Assembly of States Parties, it is clear that the authority to adopt (and adjust) the scale of assessment vests in the Assembly of States Parties as the sole budgetary authority of the Court. This has subsequently been confirmed by the adoption of the Financial Regulations, specifically financial regulation 5.2, which provides that ‘the scale shall be adopted by the Assembly of States Parties’. A similar provision is now found in rule 91 of the Rules of Procedure of the Assembly. For the adoption of the scale of assessment, every effort should – in view of article 112 of the Statute – be made to reach decisions by consensus. Failing that, such decisions (being a matter of substance) would need to be taken by a two-thirds majority.

Neither the Financial Regulations nor the Rules of Procedure of the Assembly address the possible role of the Committee on Budget and Finance in the adoption of the scale of assessment. The Committee on Budget and Finance, established by resolution ICC-ASP/1/Res.4, is responsible for ‘the technical examination of any document submitted to the Assembly that contains financial or budgetary implications or any other matter of a financial, budgetary or administrative nature as may be entrusted to it by the Assembly of States Parties’⁷. While the adoption of the scale of assessment under financial regulation 5.2 would appear to be a matter of a financial and budgetary nature within the meaning of the terms of reference, the Assembly did not, at either its first or second session, entrust the Committee with an advisory role on this issue. Both scales of assessment for the first (2002/2003) and second (2004) financial periods were agreed upon by the Assembly without reference to the Committee⁸.

- 4 Since States’ contributions are expressed in terms of percentages of the total budget, adjustments will be required to accommodate the subsequent accession (and withdrawal) of each State Party. However, it would be impractical to have the Assembly adopt a new scale of assessment each time a change in membership occurs. Instead, financial regulation 5.4 suggests that a scale of assessment will be adopted for each financial period (the financial period having been set initially at one calendar year, pursuant to financial regulation 2) and not more frequently than that. Pursuant to financial regulation 5.10, new States Parties will be required to make contributions for the year in which they become party, at rates to be determined by the

⁴ In addition to its Rules of Procedure and the Financial Regulations (adopted on the basis of the report of the Preparatory Commission as contained in documents PCNICC/2001/1/Add.4 and PCNICC/2001/1/Add.2, respectively), the Assembly adopted resolution ICC-ASP/1/Res.12 on the financing of appropriations for the first financial period; resolution ICC-ASP/1/Res. 13 on the Working Capital Fund for the first financial period; resolution ICC-ASP/1/Res.14 on the scales of assessments for the apportionment of expenses of the Court for the period 2002–2003; and decision ICC-ASP/1/Decision 1 on the provision of funds for the Court.

⁵ Resolution ICC-ASP/2/Res.1 C, on the scale of assessments for the apportionment of expenses of the ICC for the year 2004.

⁶ Report of the Court on the methodology for its scale of assessment, ICC-ASP/11/44.

⁷ Resolution ICC-ASP/1/Res.4, Annex, paragraph 3.

⁸ Compare, in contrast, the role of the Committee on Contributions, established by United Nations General Assembly resolution 14(I) (1946), which advises the General Assembly on the apportionment among members of the expenses of the UN, assessments for new members, appeals by members for a change of assessment, and cases of arrears of payment of assessments.

Assembly. Such contributions would then, pursuant to financial regulation 5.4 (b), be offset as credit against assessments paid by States Parties, that is, they would result in a lower net payment for current States Parties, rather than increase the budget available to the Court in that period⁹. The Assembly has not yet taken decisions on such rates at which new States Parties should make contributions under financial regulation 5.10. In practice, the admission of new parties has not posed complications as the Court has based its calculations for new States Parties on the practices of the UN Contributions Service. Accordingly, a new State Party is assessed the full share of the Working Capital Fund when it becomes a Party to the Statute. Contributions to the regular budget are assessed on a pro-rata basis based on remaining months of the year.

2. 'the scale adopted by the United Nations for its regular budget'

The UN scale of assessment for the years 2013–2015 was adopted by the General Assembly in December 2012¹⁰. The application of the principle underlying this scale – see further below – is constrained by floor and ceiling assessments. These floor and ceiling percentages, which have fluctuated over the years, are set at 0,001 % and 22 % respectively¹¹. In 2006, the Assembly introduced a paragraph in its annual budget resolution that referred to the ceiling percentage set by the UN, which was of particular importance as it established the limit to be paid by one major contributor State which became a party in 2007¹². The UN scale of assessment for 2013–2015 is currently applicable. In 2012 the Assembly introduced a specific reference to the maximum ceiling also being applicable to the least developed countries.¹³

The reference to the regular budget is relevant as special accounts exist for UN peace-keeping operations, separate from the regular budget and governed by a different scale of assessment. This scale reflects a different combination of underlying principles, including the principle that the responsibility and authority of the five Permanent Members of the Security Council in the area of international peace and security carries with it a relatively higher financial burden¹⁴.

Other international organizations, particularly those belonging to the UN system of organizations which operate on an assessed, rather than voluntary, budget, also follow the UN scale of assessments.

3. 'adjusted in accordance with the principles on which that scale is based'

Given that not every UN Member State will automatically be State Party to the Statute, the UN scale of assessment cannot be applied directly to the Court as the respective assessments

⁹ In the distribution of such cash surpluses resulting from contributions of new States Parties, the scale of assessments is also relevant: pursuant to financial regulation 4.7, surpluses at the end of the financial period are apportioned to States Parties in proportion to the applicable scale of assessments.

¹⁰ See resolution A/RES/67/238 of 24 December 2012.

¹¹ The major contributors to the UN regular budget in the period 2013–2015 (> 5 %) are: United States (22 %), Japan (10.833 %), Germany (7.141 %), France (5.593 %), the United Kingdom (5.179 %) and China (5.148 %). The major contributors to the regular budget of the ICC in the period 2013–2015 (> 5 %) are: Japan (17.216 %), Germany (11.348 %), France (8.888 %), the United Kingdom (8.230 %) and Italy (7.068 %).

¹² Notes that, in addition, any maximum assessment rate for the largest contributor applicable for the United Nations regular budget will apply to the International Criminal Court's scale of assessments." ICC-ASP/5/Res.4, section C.

¹³ 1. Decides that for 2014 the contributions of States Parties shall be assessed in accordance with an agreed scale of assessment, based on the scale adopted by the United Nations for its regular budget applied for 2013–2015, and adjusted with the principles on which the scale is based,

2. Notes that, in addition, any maximum assessment rate for the largest contributors and for the least developed countries applicable for the United Nations regular budget, will apply to the Court's scale of assessments.

¹⁴ Under the scale of assessment for the peacekeeping budget, Member States are placed in 10 groups or levels, each level corresponding to a discount that is applied to the respective regular budget assessment rates of Member States in that level in order to calculate the peacekeeping rate. Permanent members of the Security Council – 'level A' – pay at a premium or higher rate, and developed countries – 'level B' – receive no discount on their regular budget rate. See, for more details, the report of the Secretary-General on the implementation of General Assembly resolutions 55/235 and 55/236, contained in document A/57/157 and Add.1.

of States Parties would not add up to 100 per cent. In particular, universality of membership was not to be expected at the time of the adoption of the initial scale of assessment. The Rome Statute therefore foresees the need for an adjustment mechanism¹⁵. Adjustments to the scale of assessments, following the same principles referred to here, are also required at the beginning of each financial period as and when States become parties to the Rome Statute. The connection between differences in membership and the adjustment mechanism is now also spelled out in financial regulation 5.2¹⁶, as well as the annual resolutions on the scale of assessments¹⁷.

- 8 The guiding principle of the UN scale of assessment is the financial capacity of each Member State¹⁸. The capacity to pay is measured by means of estimates of gross national product, adjusted, as applicable, by other elements and criteria, including conversion rates, levels of external debt, and low per capita national income¹⁹. Moreover, as already mentioned, the capacity-to-pay principle is constrained by a maximum (22 %) and a minimum (0,001 %) assessment rate. The plural in article 117 – ‘principles’ – may have been used in this context to refer not only to the main capacity principle but also to the elements and criteria underlying the calculation of this capacity, including the floor/ceiling values.

¹⁵ Dicke, in: Wolfrum (ed.), *Law of the Sea at the Crossroad* (1991) 203–204, on the issue of not reaching universality of membership.

¹⁶ ‘This scale shall be based on the scale adopted by the United Nations for its regular budget, and adjusted in accordance with the principles on which that scale is based, in order to take into account the differences in membership between the United Nations and the Court’.

¹⁷ Resolution ICC-ASP/13/Res. 1 of 17 December 2014.

¹⁸ Principles sometimes used in the apportionment of expenses of other international organizations are based on interest in the work of the organization (measured, for example, by the length of railway lines, gross ship tonnage, share in total trade), the number of subsidiary bodies in which members participate, the total population of each member, or simply no principle at all but rather an outcome of negotiations, see Schermers and Blokker, *supra* note 1, 613–617.

¹⁹ The elements and criteria on which the scales of assessments for the period 2013–2015 are based are listed in UN General Assembly resolution A/RES/67/238 of 24 December 2012.

Article 118

Annual audit

The records, books and accounts of the Court, including its annual financial statements, shall be audited annually by an independent auditor.

This article lays down the principle of annual audit of the accounts of the Court by an independent auditor. The term ‘independent auditor’ became a compromise in the context of other proposals in favour of others especially ‘UN auditors’, ‘external auditors’ and ‘internal auditors’. The wording of this provision remained the same from the stage of the Draft Statute in the Preparatory Committee to the Rome Statute.¹

In its meeting in 2013, the Assembly of States Parties accepted the recommendation of the Committee on Budget and Finance to amend the Financial Rules and Regulations to work towards implementation of International Public Sector Accounts Standards (IPSAS). These areas include discussion and review of accounting policies, review of pro-forma financial statements, discussion of complex accounting areas, and the review of opening balances. The Court was to implement them from the beginning of 2014.

The Registrar of the Court has made the Court’s financial statements available to the auditors regularly as required, and the Auditors examined them and made relevant comments and recommendations from time to time for consideration of the Budget and Finance Committee and the Assembly of States Parties. For the year 2013–2014, for instance, the Registrar has included the Statement of Financial Accounts in his Report to the Assembly of States Parties to be held in New York in December 2014.

The same system of auditing is applied to the Trust Fund for Victims.

¹ UN Doc. A/CONF/183/2/Add.1, article 107.

PART 13 FINAL CLAUSES

Preliminary remarks

Literature: Amnesty International, *The International Criminal Court. Making the Right Choices, Part IV: Establishing and Financing the Court and Final Clauses* (1998) 21–38; id., *Making the Right Choices, Part V: Recommendations to the Diplomatic Conference* (1998) 84–7; Clark, R.S., ‘Ambiguities in Articles 5(2), 121 and 123 of the Rome Statute’, (2009) 41 *Case Western Reserve JIL* 413; Gerber, S.J., Commentary on Parts 10 and 11, in: L. Sadat Wexler (special ed.) and M.C. Bassiouni (general ed.), *Observations on the Consolidated ICC Text before the Final Session of the Preparatory Committee*, (1998) 13bis *NEP* 105; id., Parts 11, 12 and 13, in: L. Sadat Wexler (special ed.) and M.C. Bassiouni (general ed.), *Model Draft Statute for the International Criminal Court Based on the Preparatory Committee’s Text to the Diplomatic Conference, Rome, June 15– July 17 1998*, (1998) 13ter *NEP* 141; Human Rights Watch, *Commentary for the March–April Preparatory Committee Meeting on the Establishment of an International Criminal Court* (1998) 9; International Commission of Jurists, ‘The Final Clauses and the Final Act’, (1998) *ICJ Brief* No. 3; Lawyers Committee for Human Rights, *Establishing and Financing the International Criminal Court* (1998) 15–16; Neroni Slade, T. and Clark, R.S., ‘Preamble and Final Clauses’, in: Lee, R.S. (ed.), *The International Criminal Court: The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 421.

The draft of what became Part 13 of the Rome Statute, on Final Clauses, was not part of the original material before the Preparatory Committee. The ILC, noting that its standard practice is ‘not to draft final clauses for its draft articles’, had merely suggested that issues that would need to be dealt with included entry into force, administration, financing, amendment and review, reservations and settlement of disputes¹. The Part was first discussed, and then only briefly, on the basis of a Secretariat Draft, at the very last meeting of the Committee before the Rome Conference.

Most of the negotiation, therefore, took place in Rome and there is less discussion of this part of the Draft in the otherwise voluminous literature leading up to the Diplomatic Conference than there is of other parts. In Rome, Ambassador Tuiloma Neroni Slade of Samoa (later elected as a judge of the Court) acted as Coordinator for the negotiations on this part. A number of issues which he was not able to settle, largely because they were contingent on what was decided elsewhere, were resolved by the Bureau of the Committee of the Whole in the final package which it presented to the Diplomatic Conference. This included, in particular, the prohibition of reservations (article 120), the majorities required for amendment (article 121), the transitional opt-out provision for war crimes (article 124), and the number of parties (60) required to bring the Statute into force (article 126).

¹ 1994 ILC Draft Statute, p. 146.

Article 119

Settlement of disputes

1. Any dispute concerning the judicial functions of the Court shall be settled by the decision of the Court.

2. Any other dispute between two or more States Parties relating to the interpretation or application of this Statute which is not settled through negotiations within three months of their commencement shall be referred to the Assembly of States Parties. The Assembly may itself seek to settle the dispute or may make recommendations on further means of settlement of the dispute, including referral to the International Court of Justice in conformity with the Statute of that Court.

Literature: Clark, R.S., 'The Case against the Bomb', in: R.S. Clark and M. Sann (eds.), *The Case Against The Bomb: Marshall Islands, Samoa and Solomon Islands Before the International Court of Justice in Advisory Proceedings on the Legality of the Threat or Use of Nuclear Weapons* (Rutgers University School of Law 1996) 1; Keith, K.J., *The Extent of the Advisory Jurisdiction of the International Court of Justice* (Sijthoff 1971); Leary, V., 'The WHO Case: Implications for Specialised Agencies', in: de L.B. Chazournes and P. Sands (eds.), *International Law, The International Court of Justice and Nuclear Weapons* (Cambridge University Press 1999) 112.

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A. Introduction/General remarks

1 There was a strongly expressed belief during the negotiation of this article that, for the Court to be taken seriously, it must have the competence to determine the limits of its own jurisdiction, including issues concerning cooperation with it. For some delegations and NGOs this meant that any disagreement or difference of opinion¹ of any kind concerning the Court was for it alone to decide. This would be the situation whether, for example, the disagreement was one between Prosecution and Defence, or whether it concerned a disagreement between an organ of the Court and a State Party (or even a non-Party). The same principle would apply where the disagreement arose between two or more States Parties to the Statute but in which neither a defendant nor the Court itself could be said to be directly involved.

Others took the view that there might well be different classes of disagreements. For some of these, other modes of settlement than referral to the Court itself might be appropriate. In

¹ I have deliberately used the neutral terms 'difference of opinion' and 'disagreement' here to capture the essence of the way in which 'dispute' is ultimately to be understood in this article. I explore the matter further below under the heading 'disputes', mn 4.

this context, reference was made to article 33 of the United Nations Charter, which is to be found in Chapter VI of the Charter, dealing with the Pacific Settlement of Disputes. It emphasizes the principle of the choice of means for resolution available to parties to a dispute. Paragraph 1 provides:

'The parties to any dispute, the continuation of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice'².

A number of delegations expressed considerable enthusiasm for having a role for the International Court of Justice (ICJ), at least as one of the choices. Others objected to such a role, for sometimes diametrically opposed reasons: some because they are generally opposed to using that Court, some because they were reluctant to give any impression of undercutting the International Criminal Court (ICC) itself³, and some because of their belief, already noted, in a class of potential disputes that would be of a more political nature, suitable to resolution through the Assembly of States Parties rather than by judicial means.

The result of the negotiations is a nuanced compromise of these various positions which has a strong statement on the power of the Court itself to settle disputes on its 'judicial functions' but leaves a flexible role for the Assembly of States Parties and for the ICJ, while leaving open other possibilities. There will inevitably be some hotly debated areas in which it is not clear where the competence lies to resolve a particular difference. There may be some possibilities for demarcation disputes between the ICC judges and the Assembly of States Parties. In making recommendations for means of settlement, the Assembly of States Parties will no doubt consider possibilities like those suggested in article 33 of the Charter⁴.

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'Any dispute'

Paragraphs 1 and 2 both use the same term 'dispute', thus creating a context which suggests that the term is to be viewed broadly. Whether or not there is a 'dispute' in a concrete instance, so as to bring a particular dispute-settlement provision into play, has itself sometimes been a subject of great contention, especially in the jurisprudence of the ICJ and its predecessor the Permanent Court of International Justice⁵. Reference is often made in the literature to the Permanent Court's statement in the Case of the Mavrommatis Palestine Concessions that: 'A dispute is a disagreement on a point of law or fact, a conflict of legal views or of interests between two persons'⁶. This definition might be thought to reflect an excessively bilateral approach to disputes. Accordingly, a more recent statement by the ICJ is perhaps more apposite to the range of possibilities that are likely to arise in respect of the ICC. In the East Timor Case, the Court suggested that 'a dispute is a disagreement on a point of law or fact, a conflict of legal views or interests between parties'⁷. Some of the disagreements that will arise under the Rome Statute will be more of a multilateral nature than the two 'person' disagreements the Mavrommatis Palestine definition seems to contemplate as

² UN Charter article 33, para. 1.

³ Some in this group were also troubled by the possibility of conflicting decisions on the same issue between the two courts.

⁴ See note 2.

⁵ For some thoughts on its companion phrase 'interpretation or application' see note 34.

⁶ Case of Mavrommatis Palestine Concessions, P.C.I.J., Ser. A, No. 2, 1, 11 (1924).

⁷ Case Concerning East Timor (*Port v. Aust.*) 1995 I.C.J. 90, 99.

the paradigm. Not only may there be more than two parties, the disagreements will often be between ‘persons’ of different legal categories – a prosecutor and a defendant, an organ of the Court and a government – although some could be between two States, or a majority of the States Parties and a State or group of States. The very broad approach of the East Timor Case appears to be consistent with the range of situations the negotiators of article 119 had in mind when using the term ‘disputes’.

2. ‘concerning the judicial functions of the Court’

- 5 In a few instances, the Rome Statute specifically confers jurisdiction to resolve disputed issues either on the Court⁸, or elsewhere⁹. But, for the most part, one is left to try to infer allocation of decision-making in particular instances from the nature of the function being exercised. My understanding, from participating in the drafting process, is that, at the least, anything that could be said to have some relationship, however tenuous, to prosecution of an individual or a group of individuals on the basis of a concrete complaint of a breach of the Statute, would be included in the notion of judicial functions. In the absence of any definitive lists in the preparatory work of the issues to which this language might refer, I have gone through the Rome Statute and made some tentative suggestions on which side of the line various possible sources of disagreement might fall. In the immediately following paragraphs, I suggest some that fall on the ‘judicial functions’ side of the line. In the discussion below of paragraph 2 of article 119, I suggest some that fall on the ‘other’ side¹⁰. Obviously the list is merely suggestive. Since it is quite impossible to foresee all the potential areas of disagreement, the list does not purport to be exhaustive even as a typology of possible disagreements.
- 6 On the judicial functions side of the line are probably:
 - questions of jurisdiction and interpretation of the definitions of crimes within the jurisdiction of the Court¹¹,
 - whether the preconditions to the exercise of jurisdiction have been met¹²,
 - issues of admissibility¹³,
 - whether the case is one of *ne bis in idem*¹⁴,
 - questions involving what law applies¹⁵,
 - issues involving the independence of the judges, the compatibility of any of their other activities with their judicial functions, and excusing and disqualifying them in particular cases¹⁶,
 - disqualification of the Prosecutor or a Deputy Prosecutor¹⁷,
 - some issues involving the Registry¹⁸,

⁸ See, e.g., articles 17 and 18 (issues of admissibility), article 19 (challenges to jurisdiction).

⁹ See, e.g., article 46 (whether prosecutors should be removed for cause decided by Assembly of States Parties), article 87 para. 7 (Assembly of States Parties has some, ill-defined, function in respect of failure of a State Party to comply with a request to cooperate with the Court). See also note 29.

¹⁰ See at notes 35–43.

¹¹ See generally articles 5–8, 11, 19 and the whole of Part 3 (General Principles of Criminal Law) of the Statute. This would include interpreting the Elements of Crimes adopted by the Assembly of States Parties (article 9) and determining whether such elements are ‘consistent with [the] Statute’ (article 9 para. 3). On the inherent competence of a tribunal to decide upon its own competence, see *Prosecutor v. Tadić*, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, No. IT-94-1-AR72, Appeals Chamber 2 October 1995, reprinted in: (1996) 7 *CLF* [51].

¹² See article 12.

¹³ See articles 17, 19.

¹⁴ See article 20.

¹⁵ See article 21.

¹⁶ See articles 40 and 41. These issues were among the first to which the judges directed their attention after being sworn in.

¹⁷ See article 42.

¹⁸ See article 43. The judges elect the Registrar and must have some control over him or her. On the other hand, the Assembly of States Parties may recommend candidates (article 43 para. 4), must ultimately approve Staff Regulations drafted by the Registrar with the agreement of the Presidency and the Prosecutor (article 44

- removal of the Registrar or Deputy Registrar from office for serious misconduct, breach of duties or inability to exercise functions¹⁹,
 - discipline of a judge, Prosecutor, Deputy Prosecutor, Registrar or Deputy Registrar²⁰,
 - some questions involving privileges and immunities²¹,
 - questions involving the Rules of Evidence and Procedure, including their compatibility with the Statute²²,
 - interpretation and application of the Regulations of the Court²³,
 - review of a decision of prosecutor not to proceed²⁴,
 - rulings on various pre-trial situations²⁵,
 - making rulings on contentious issues during a trial²⁶, at sentencing²⁷, and in proceedings for appeal or revision²⁸,
 - questions concerning cooperation with and judicial assistance to the Court²⁹ and
 - questions of the modalities of enforcing sentences (mostly of imprisonment, but perhaps of monetary penalties also)³⁰.
- The broad nature of these possibilities underscores the wide judicial mission of the Court.

3. 'shall be settled by the decision of the Court'

A decision which has been definitively reached by the Appeal Chamber is meant to be final and binding on the parties³¹, as will be one where the losing party chooses not to appeal from the trial level. It may not be reviewed or appealed elsewhere in some other forum. This principle is occasionally spelt out in the Statute in a particular instance. Thus article 105 para. 2, which is in the Part of the Statute dealing with Enforcement, provides:

para. 3) and must establish guidelines for the utilization of gratis personnel (article 44 para. 4). This suggests that the Assembly may have an overlapping, or possibly cooperative, dispute-settlement role in this area.

¹⁹ See article 46 paras. 1 and 3. An absolute majority of the judges is required. In the case of removal of a judge, the Prosecutor or a Deputy Prosecutor, the judges may make a recommendation by a two-thirds majority (not including, in the case of judicial removal, the judge whose removal is sought) which may then be carried out by a two-thirds majority of the States Parties, article 46 para. 2.

²⁰ See article 47. This is to be spelt out further in the Rules.

²¹ See article 48. The judges, the prosecutors, the registrars and the staff are all entitled to various privileges and immunities. Counsel, experts and witnesses are entitled to 'such treatment as is necessary for the proper functioning of the Court, in accordance with the agreement on the privileges and immunities of the Court' (article 48 para. 4). There is room for disputes here, which are closely related to the functioning of the Court. There may, on the other hand, be some overlapping with other modes of settlement. Consider a generalized disagreement between the Assembly of States Parties and the Court, or between the Court and the host country, as to what is required. Then the Court might be regarded as a party to the dispute and thus an inappropriate vehicle to resolve it.

²² See article 51.

²³ See article 52.

²⁴ See article 53 para. 3.

²⁵ See articles 56–61.

²⁶ See articles 62–75. Article 70 (Offences against the administration of justice) might be regarded as giving quite broad powers to the Court to rule on disputes about the propriety of the prosecutorial and defence functions, to say nothing of issues of venal corruption.

²⁷ See articles 76–78. See also article 75 (reparations to victims).

²⁸ See articles 81–85.

²⁹ See articles 86–101. In the event that the Court is unable to achieve what it wants from a State Party, some questions may end up before the Assembly of States Parties or the Security Council for 'enforcement'. See article 87 para. 7 (referral to Assembly of States Parties, or Security Council where the Council rather than a State or the Prosecutor made the original referral to the Court, following finding by Court of failure to cooperate). The judges would no doubt take the view that this would not be an opportunity for the Assembly or the Council to resolve the dispute by second-guessing the Court on matters of law. The Prosecutor has made several references in his Reports to the Security Council to the failure of the Government of Sudan to cooperate with the Court's warrants of arrest. The Council had done nothing concrete to assist by late 2014.

³⁰ See articles 103–111.

³¹ It may also have some precedential effect in subsequent cases. See article 21 on 'applicable law'. Article 21 para. 2 provides that 'The Court may apply principles and rules as interpreted in its previous decisions.'

‘The Court alone shall have the right to decide any application for appeal and revision. The State of enforcement shall not impede the making of any such application by a sentenced person’³².

Notwithstanding the specific statement of the principle in such instances, it would appear to be a general principle, applicable even in instances where it is not specifically asserted in the relevant article.

II. Paragraph 2

1. ‘Any other dispute ... relating to the interpretation or application of this Statute’

- 8 Again³³, the term ‘dispute’ appears, its breadth perhaps tempered a little by the modifier ‘relating to the interpretation or application of this Statute’. ‘Interpretation or application’ is something of a term of art in the jurisprudence of the ICJ, creating its own problems of interpretation³⁴.
- 9 The following are some suggestions of disagreements that might fit the category ‘any other dispute ... relating to the interpretation or application’ of the Statute:
- disagreements about whether a particular candidate for election as a judge has the necessary qualifications³⁵,
 - similar questions about potential prosecutors³⁶ or registrars³⁷,
 - decisions on removal from office of a judge, the Prosecutor or Deputy Prosecutor, the Registrar or Deputy Registrar³⁸,
 - some questions of privileges and immunities (?)³⁹,
 - claims to protection of national security information where the State concerned and the Court have reached an impasse⁴⁰,
 - disagreements concerning management of the Trust Fund which is to be created for the benefit of victims⁴¹,
 - a failure by a State to comply with a request to cooperate⁴² and
 - disagreements concerning the finances of the Court⁴³.

³² Article 105 para. 2.

³³ See notes 5–7.

³⁴ See generally the excellent discussion in Judge Higgins’s Separate Opinion in *Oil Platforms (Iran v. U.S.)*, Preliminary Objection, 1996 I.C.J. 803, 847.

³⁵ See article 36. The whole structure of the article seems to place such questions in the hands of the Assembly of States Parties, and note the power in para. 4 (c) to create an Advisory Committee on nominations. This Committee became operational in November 2012. See Terms of reference for the establishment of an Advisory Committee on nomination of judges of the International Criminal Court, ICC-ASP/10/36-annex, adopted by resolution ICC-ASP/10/Res.5.

³⁶ See article 42.

³⁷ See article 43.

³⁸ See article 46. See also note 19 on the role of the judges in recommending removal of a fellow judge before the Assembly may act.

³⁹ See article 48. The question-mark reflects the discussion, see note 21, suggesting that many of such questions belong with the Court itself.

⁴⁰ Author’s characterization of a very complicated process under article 72. See especially paragraph 7 (a) (ii) under which the Court may conclude that the State is ‘not acting in accordance with its obligations under the Statute’ and refer the matter to the Assembly of States Parties. The requirement that the Court specify the reasons for its conclusion suggests, at least weakly, that the Assembly may re-examine the reasons rather than simply trying to give effect to the Court’s conclusion.

⁴¹ See article 79. Paragraph 3 provides that the Fund is to be ‘managed according to criteria to be determined by the Assembly of States Parties’. Some questions involving the application of such criteria might end up before the Court, since it may order money collected by fines or forfeiture to be transferred to the Fund (article 79 para. 2) and thus may have a colourable claim that its judicial functions are involved in dealing with the money. On the other hand, depending upon how the criteria are drafted, the issues may be more suitable for resolution elsewhere.

⁴² See article 87 para. 7, providing for referral to Assembly of States Parties or to the Security Council, as the case may be. See also note 29.

⁴³ See articles 113–118. Most of these issues will be resolved in the Assembly of States Parties which considers and decides the budget for the Court (article 112 para. 2 (d)), or in the General Assembly of the United Nations

The brevity of this list, compared with the length of the list of disputes that are apparently within the jurisdiction of the ICC itself, suggests that for the most part, the Court is master of its own house.

2. ‘which is not settled through negotiations’

The words ‘which is not settled through negotiations within three months of their commencement’ were inserted in an effort to avoid delays caused by arguments about the status of negotiations to resolve a problem. Once the three months are over, only a successful resolution of the difference can prevent one or other of the parties from referring the matter to the Assembly⁴⁴.

3. ‘shall be referred to the Assembly of States Parties’

The article does not state expressly who is responsible for making a referral to the Assembly. Presumably if the dispute is a bilateral one, each party owes the obligation to refer it, and certainly either *may* do so. The same would be true of disputes involving more than two parties. At least, this seems to be the obvious import of the language in context.

The Preparatory Commission was required to draft Rules of Procedure for the Assembly of States Parties⁴⁵ and the Assembly will have power to adapt those rules to the exigencies of experience⁴⁶. I suspect that rules dealing with dispute settlement will emerge with the passage of time; there is nothing relevant in the Assembly’s rules as adopted at the first meeting of the Assembly.

4. Assembly may seek to settle

One can perhaps imagine some disputes involving, say, disagreements on financing or the management of the Trust Fund for Victims that can be dealt with at a plenary meeting of the Parties. Other items, such as claims involving protection of national security information, or the fact-finding part of decisions on removal from office lend themselves to consideration by a less cumbersome group. The Assembly of States Parties has explicit powers to ‘establish such subsidiary bodies as may be necessary’⁴⁷ which would include committees or working groups for such purposes. It should be added that such groups need not necessarily be created as quasi-judicial entities; they might appropriately be set up in some instances to exercise conciliation or mediation functions.

5. Assembly may make recommendations on further means of settlement

In exercising this power, the Assembly will pay careful regard to the range of options suggested by article 33 of the United Nations Charter, to which reference has already been made⁴⁸.

which is expected to provide some of the money (article 115). There is also the possibility of third-party examination along the lines of the advisory opinion of the ICJ in *Certain Expenses of the United Nations* (article 17 para. 2 of the Charter), Advisory Opinion, 1962 I.C.J. 151.

⁴⁴ For some discussion of the possible parameters of the obligation (based either on custom or treaty) to negotiate before going to adjudication, see *Case Concerning United States Diplomatic and Consular Staff in Iran* (U.S. v. Iran) (Judgment) 1980. I.C.J. 3, 25–27 and Dissenting Opinion of Judge Morozov, at 52–53; *Nicaragua v. U.S.* (Jurisdiction and Admissibility) 1984 I.C.J. 392, 440; Questions relating to the Obligation to Prosecute or Extradite (*Belgium v. Senegal*), 2012 I.C.J., paras. 56–9.

⁴⁵ See Resolution F. of the Conference of Plenipotentiaries, paragraph 5 (h).

⁴⁶ See article 112 para. 9 (‘The Assembly shall adopt its own rules of procedure’). The initial rules are contained in Doc. ICC-ASP/1/3 C (2002).

⁴⁷ See article 122 para. 4.

⁴⁸ See note 2.

6. Referral to ICJ as contentious proceeding⁴⁹

- 14 There is a range of scenarios arising out of article 36 of the Statute of the ICJ which could provide a route for some State against State disputes to find their way into the Court. These possibilities depend, not upon what is specifically in the Rome Statute, but upon the contesting States' own choices and on their existing framework of dispute-settlement obligations. Article 36 para. 1 of the Statute of the ICJ provides that the jurisdiction of that Court comprises all cases which the parties refer to it and all matters provided for in the Charter of the United Nations or in treaties and conventions in force. Article 36 para. 2 permits States to make declarations by which they recognize as compulsory the jurisdiction of the Court in classes of disputes in which the other party to the dispute has made a similar declaration.

Thus, two or more States which are parties to an appropriate dispute involving the ICC might agree to a *compromis* referring the particular issue to the ICJ. This could well be a scenario which the Assembly of States Parties would encourage under its power to make recommendations on further means of settlement. On the other hand, the parties to the dispute may be subject to an existing bilateral or multilateral treaty commitment to take disputes to the Court, including the compulsory clause of article 36 para. 2, that would enable one of them to insist on referring the dispute to the ICJ.

7. Referral to ICJ as an advisory proceeding

- 15 Some States, notably Mexico and Spain, contemplated that the General Assembly of the United Nations would empower the Assembly of States Parties to request advisory opinions from the ICJ. Whether or not a disagreement could find its way to the ICJ in its advisory jurisdiction, in fact, turns out to be controversial.

Article 96 of the United Nations Charter provides that the General Assembly or the Security Council may request the ICJ to give an advisory opinion 'on any legal question'⁵⁰. It goes on to provide that

'[o]ther organs of the United Nations and specialized agencies, which may at any time be so authorized by the General Assembly, may also request advisory opinions of the Court on legal questions arising within the scope of their activities'⁵¹.

- 16 It is not hard to imagine that the Assembly of States Parties would find itself faced under article 119 para. 2 with what could fairly be described as a legal question arising within the scope of its activities on which it might desire legal advice. In the Nuclear Weapons Cases, however, the Court took rather a narrow view of what such a question was in relation to the World Health Organization⁵². This decision may limit the possibilities open to organizations other than the United Nations itself for the use of the advisory opinion option. Another difficulty is whether the Assembly of States Parties (or any other organ of the ICC) can be regarded as an organ of the United Nations or of the specialized agencies within the meaning of article 96 of the Charter. If it is not, then the General Assembly appears to have no power

⁴⁹ See, generally, article 36 Statute of the ICJ.

⁵⁰ UN Charter, article 96 para. 1. See also Statute of the ICJ, articles 65–68 (empowering the Court to render such opinions, and outlining the procedure to be followed).

⁵¹ *Ibid.*, para. 2.

⁵² See *Legality of the Use by a State of Nuclear Weapons in Armed Conflict*, 1996 I.C.J. (Court refuses to respond to question posed by World Health Organization on basis that issues of the legality of nuclear weapons, as opposed to their health effects, are outside the competence of the Organization). The Court made reference to a 'principle of specialty' which is said to keep organizations from moving into the turf of other organizations. I have criticized the Court's decision in: Clark and Sann (eds.), *The Case Against The Bomb: Marshall Islands, Samoa and Solomon Islands Before the International Court of Justice in Advisory Proceedings on the Legality of the Threat or Use of Nuclear Weapons* (1996) 1, 9–13. See also Leary, in: de Chazournes and Sands (eds.), *International Law, The International Court of Justice and Nuclear Weapons* (1999) 112.

to authorize it to ask directly for advisory opinions on its own behalf. The Preamble to the Rome Statute speaks of an 'independent permanent International Criminal Court in relationship with the United Nations system' and article 2 of the Rome Statute says that the Court 'shall be brought into relationship with the United Nations through an agreement to be approved by the Assembly of States Parties to this Statute and thereafter concluded by the President of the Court on its behalf'⁵³. For most purposes, therefore, it is hard to regard the ICC as a UN organ. It is created by a free-standing treaty rather than by amendment to the UN Charter. It is not, to state the obvious, created by an existing organ of the UN. Its origin is in the action of the States Parties. Further, while the relationship agreement has some similarities with the relationship agreements between the UN and the Specialized Agencies, it was not, like them, entered into with ECOSOC pursuant to articles 57 and 63 of the Charter⁵⁴. Instead, like the arrangements with the International Atomic Energy Agency and the Human Rights Treaty Committees, it was done under the Assembly's inherent powers to enter into arrangements with other organizations to cooperate within the Assembly's broad sphere of activities. Thus, as neither an 'organ' of the United Nations nor a 'specialized agency', understood as terms of art, it is difficult to conceive of any general authority to ask questions being conferred upon the Assembly of States Parties. None is granted in the relationship agreement concluded in 2004.

There is some, as yet inconclusive, practice to be placed alongside these considerations of principle. In 1957, the General Assembly authorized the International Atomic Energy Agency to request advisory opinions of the ICJ⁵⁵. The validity of this authorization has been debated⁵⁶, and the Agency has never tested the waters by seeking an advisory opinion. More recently, the 1993 Chemical Weapons Convention contains in its provisions on Settlement of Disputes the following:

'The Conference and the Executive Council [two organs of the Organization for the Prohibition of Chemical Weapons which is set up under the Convention] are separately empowered, subject to authorization from the General Assembly of the United Nations, to request the International Court of Justice to give an advisory opinion on any legal question arising within the scope of the activities of the organization. An agreement between the Organization and the United Nations shall be concluded for this purpose in accordance with Article VIII, paragraphs 34 (a)'⁵⁷.

I believe that the validity of this provision was debated during the drafting of a relationship agreement between the Organization and the United Nations which was not concluded until 2001. The result was that the United Nations took note of the provision in the Chemical Weapons Convention and the two organizations agreed that 'such request for an advisory opinion shall first be submitted to the General Assembly, which will decide upon the request in accordance with Article 96 of the Charter'⁵⁸.

⁵³ Rome Statute, article 2. Resolution F of the Rome Conference, which created the Preparatory Commission for the ICC, listed the drafting of a relationship agreement as one of the tasks for the Preparatory Commission. The first meeting of the Assembly of States Parties approved a draft relationship agreement between the Court and the United Nations, Doc. ICC-ASP/1/3 G (2002), and a negotiated text was ultimately agreed upon in 2004, ICC-ASP/3/Res. 1, annex.

⁵⁴ UN Charter, article 57 speaks of a category of 'specialized agencies, established by intergovernmental agreement and having wide international responsibilities ... in economic, social, cultural, educational, health, and related fields'. Article 63 empowers the Economic and Social Council to bring such entities into a relationship with the UN, subject to approval by the General Assembly. There was little disposition during the drafting to regard the Court as coming within the categories with which ECOSOC is concerned, so that the only real discussion was of a relationship agreement through the General Assembly alone.

⁵⁵ GA Res. 1146 (XII).

⁵⁶ See Keith, *The Extent of the Advisory Jurisdiction of the International Court of Justice* (1971) 40–41.

⁵⁷ Convention for the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on Their Destruction, article 14 para. 5, UN Doc. CD/CW/WP.400/Rev.1 (1993), 32 *ILM* 800 (1993). Article VIII para. 34 (a) empowers the Executive Committee to 'conclude agreements or arrangements with States and international organizations on behalf of the Organization, subject to prior approval by the Conference'.

⁵⁸ Agreement concerning the Relationship between the United Nations and the Organization for the Prohibition of Chemical Weapons (2001).

- 18 While a general authorization to request advisory opinions may be a problem, a possible solution thus appears to be for the General Assembly adopt an appropriate resolution in a particular instance asking the Court a question of interest to the ICC under the Assembly's own powers to request.⁵⁹ Article 96 of the Charter, it must be emphasized, empowers the General Assembly to ask for the Court's opinion 'on any legal question'. There is no language suggesting that it may only be on a question within the scope of its own activities, as is the case with the specialized agencies. Hence, it would seem to be open to the General Assembly to ask, in a particular instance, a question which is only of marginal interest to the General Assembly itself, but which may be of crucial interest to an organization which is part of the United Nations family⁶⁰. This is different from giving an open authorization to the ICC Assembly of States Parties to ask its own questions. A decade ago, the Spanish delegation tested the waters on including some appropriate language in the ICC's relationship agreement with the General Assembly,⁶¹ but was unsuccessful in obtaining any language in the final agreement and the matter has not since been pursued.

⁵⁹ Such a course was suggested for the International Atomic Energy Agency, but not carried forward into the relationship agreement. See Study of the Question of the Relationship of the International Atomic Energy Agency to the United Nations, UN Doc. A/3122, para. 15 (1956).

⁶⁰ The ICJ's understanding of the difference between article 96 paras. 1 and 2 (only the latter contains the words 'arising within the scope of their activities') is apparent from the way in which the Court approached the nuclear weapons advisory request from the General Assembly, as opposed to that from the World Health Organization, see note 52. The Court barely hesitated with the question whether there were any limitations on the Assembly's power to ask questions beyond the requirement that the question be a 'legal' one. See *Legality of the Threat or Use of Nuclear Weapons*, 1996 I.C.J., paras. 11 and 12. It is perhaps theoretically possible that a question is so hypothetical or so remote from any conceivable interest of the United Nations that the Court would refuse to honour the request, but it is hard to imagine such a case getting beyond the General Assembly in the first place.

⁶¹ See statement by delegation of Spain in Doc. ICC-ASP/1/3, Annex I (Working Group of the Whole), para. 10 (2002): '[The delegation] expressed its understanding that the Assembly of States Parties would consider in due time the possibility to request an advisory opinion from the International Court of Justice within the context of article 119, paragraph 2 of the Rome Statute'.

Article 120 Reservations

No reservations may be made to this Statute.

Literature: Barriga, S., ‘Exercise of jurisdiction and entry into force of the amendments on the crime of aggression’, in: G. Dive, B. Goes and D. Vandermeersch (eds.), *From Rome to Kampala: The first 2 amendments to the Rome Statute* (Bruylant 2012) 31; Horn, F., *Reservations and Interpretative Declarations to Multilateral Treaties* (Elsevier 1988); Imbert, P.-H., *Les Reserves aux Traites Multilateraux. Evolution du Droit et de la Pratique depuis l’avis consultative donné par la Cour Internationale de Justice le 28 Mai 1951* (Pedone 1979); International Law Commission, ‘Guide to Practice on Reservations to Treaties’, in: United Nations, Report of the International Law Commission, Sixty-third session (26 April – 3 June and 4 July – 12 August 2011), UN Doc. A/66/10, 19–50 and UN Doc.A/66/10, Add.1.; Krefß, C. and von Holtzendorff, L., ‘The Kampala Compromise on the Crime of Aggression’, (2010) 8 *JICJ* 1179; Liechtenstein Institute on Self-Determination and the Woodrow Wilson School of Public and International Affairs, Princeton University, *Handbook. Ratification and Implementation of the Kampala Amendments to the Rome Statute of the ICC: Crime of aggression – war crimes* (Liechtenstein Institute on Self-Determination 2012); Lijnzaad, L., *Reservations to UN-Human Rights Treaties* (Nijhoff 1995); McRae, D.M., ‘The Legal Effect of Interpretative Declarations’, (1978) 49 *BYbIL* 155; Mendelson, M.H., ‘Reservations to the Constitution of International Organisations’, (1973) 45 *BYbIL* 137; Pellet, A., ‘Second Report on Reservations to Treaties. Bibliography concerning Reservations to Treaties’, U.N. Doc. A/CN.4/478; Reisinger Coracini, A., ‘The International Criminal Court’s Exercise of Jurisdiction Over the Crime of Aggression – at Least ...in Reach ... Over Some’, (2010) 2 *GoJIL* 745; Ruda, J.M., ‘Reservations to Treaties’, (1975) 46 *RCD* (Vol. I) 95–218, id., ‘Entry into Force and Amendment of the Statute, in: Cassese, A., Gaeta, P., Jones, J.R.W.D. (eds.) *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 145; Schmalenbach, K., ‘Das Verbrechen der Aggression vor dem Internationalen Strafgerichtshof: Ein politischer Erfolg mit rechtlichen Untiefen’, (2010) 15/16 *JZ* 745.

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A. Introduction/General remarks

I. Historical development

As the Statute of the ICC is a multilateral treaty the question of reservations inevitably arises. Reservations, a matter which is still subject to intensive discussions despite the regulation in articles 19–23 of the Vienna Convention on the Law of Treaties of 1969 (VCLT¹), stirred up problems in the field of international criminal law relatively early. When just after the adoption of the Convention on the Prevention and Punishment of Genocide²

¹ Vienna Convention on the Law of Treaties (adopted 23 May 1969, entered into force 27 January 1980) 1155 UNTS 331.

² Convention on the Prevention and Punishment of the Crime of Genocide (adopted 9 December 1948, entered into force 12 January 1951) 78 UNTS 277.

the Soviet Union wished to enter a reservation to article 9 of this Convention notwithstanding the absence of any specific provision on reservations, the International Court of Justice was requested to deliver an advisory opinion³ in which it introduced a certain flexibility in the treaty relations insofar as it declared the admissibility of the intended reservation as long as it was compatible with the object and purpose of the treaty⁴.

- 2 This opinion and the regime of the VCLT on reservations stimulated the formulation of a rule on reservations in the ‘Study On Ways And Means Of Insuring The Implementation Of International Instruments Such As The International Convention On The Suppression And Punishment Of The Crime Of Apartheid, Including The Establishment Of The International Jurisdiction Envisaged By The Convention’⁵: Draft article 33 read as follows:

‘Article 33 Reservations

1. States may make any reservations to this Convention but shall not be deemed States Parties for the purposes of representation in the Standing Committee if the reservation is as to a material aspect of the Tribunal’s jurisdiction, competence and the effects of its judgements.
2. The Secretary-General shall keep separate count of signatories making reservations not in conformity of paragraph 1 of this article.’⁶

The explanations to this article explicitly stated that the reservations clause ‘though in keeping with the Vienna Convention on treaty interpretation also takes into account the relevant aspects of the ‘Advisory Opinion By The International Court of Justice on Reservations to the Convention on the Prevention and Punishment of Genocide’, 1951 I.C.J., 15’⁷.

- 3 When it elaborated the Draft Statute of the ICC, the ILC pondered over the possibility of reservations despite its normal practice not to deal with final clauses in the drafts of possible codification conventions: It emphasized the particular conditions of a reservation to this Statute because of the latter’s nature being analogous to the constituent instrument of an international organization. In view of the important balances and qualifications relating to the working conditions of the Court incorporated in the text and of the integral nature of the Draft Statute, the Commission already suggested that ‘reservations to the Statute and its accompanying treaty should either not be permitted or should be limited in scope’. Nonetheless, it did not propose any specific text but left the decision on it to the States Parties⁸.
- 4 The ‘Siracusa Draft’, elaborated by a group of NGOs and experts under the chairmanship of M. Cherif Bassiouni in 1995, provided a restricted right to make reservations insofar as it permitted reservations only to the right to allow ‘on-site investigations’ of the Prosecutor either with or without the consent of the national State Party concerned⁹. However, the ‘Updated Siracusa Draft’ of 1996¹⁰, was of less specific nature:

‘(1) Any reservation a Contracting Party may wish to make to this Statute shall be subject to the provisions of the Vienna Convention of the Law of Treaties.

³ GA Res 478 (V).

⁴ Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide, Advisory Opinion (1951) ICJ Rep 15.

⁵ UN Doc. E/CN.4/1426, reproduced in: Bassiouni (ed.), *International Criminal Court: Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 743.

⁶ *Ibid.*, 777.

⁷ *Ibid.*, 795. The Draft Optional Protocol for the Penal Enforcement of the International Convention for the Suppression and Punishment of the Crime of Apartheid, attached to that Draft Convention, included in article 29 a similar provision:

- ‘1. States may make any reservations to this Protocol but shall not be deemed States Parties for the purposes of representation in the Standing Committee if the reservation is as to a material aspect of the Tribunal’s jurisdiction, competence and the effects of its judgement.
2. The Standing Committee shall undertake as its first order of business measures toward election of judges of the Tribunal.’

Ibid., 821. The reasons for this formulation were the same as for article 33 of the Draft Convention.

⁸ 1994 ILC Draft Statute, 147.

⁹ Siracusa Draft, 61.

¹⁰ Updated Siracusa Draft, 119.

(2) No reservation to the applicability of any provision of this Statute can be made with respect to existing international obligations and with respect to any crime defined in the Special part of the International Criminal Code.'

This right embodied in both formulations was nevertheless again of limited value as, like the ILC Draft, both texts proceeded from some sort of opting-in approach insofar as the jurisdiction of the Court should be dependent on additional declarations of the States Parties.

During the deliberations in the *Ad hoc* Committee on the Establishment of an International Criminal Court in 1995, the issue of the reservations did not become a matter of discussion as this matter which was deemed to belong to the final clauses of a future treaty was not considered as one of priority nature¹¹. This reluctance to take a stance on this issue was due to the uncertainty regarding the final nature of the Statute as well as the nature of the jurisdiction of the Court, whether it should become subject to the opting-in approach or should be of inherent, respectively automatic nature.

In the discussions in the Preparatory Committee in 1996, under the item 'Establishment of the Court and relationship between the Court and the United Nations', a suggestion was made to exclude the possibility of reservations in 'order to maintain the treaty as an integral whole' whereas other States considered this question still premature¹². This issue was only discussed on the basis of a proposal on the Final Clauses submitted by the Secretariat in December 1997. This proposal¹³ followed the suggestion made earlier by stating: 'No reservations may be made to this Statute.'

The Zutphen text included precisely this formulation in its article 92 lit. B¹⁴. The NGO Human Rights Watch recommended maintaining this text prohibiting reservations to the ICC treaty. In its commentary, it stressed that permitting reservations 'would undermine the force and moral authority behind the treaty and weaken the nature of the obligations in it'¹⁵. In this context, it referred to the comments of the Human Rights Committee on reservations to the ICCPR and particularly to the 'General Comment 24'¹⁶ without, however, taking into account the large criticisms it had aroused¹⁷. In the view of Human Rights Watch, a near-universal ratification, albeit being desirable, was not as essential as the need that the Court 'meet certain benchmarks of fairness and independence, and that the obligations of States Parties vis-à-vis the Court be clear'¹⁸.

On the basis of the Zutphen text, the session of the Preparatory Committee in March 1998 started the first in-depth discussion on reservations. These discussions resulted in a new text on reservations containing three options: the first interdicted reservations, the second declared reservations only to a not yet specified list of articles admissible, the third option proposed to include no provision on reservations so that the general regime of the VCLT would apply¹⁹. The 'Draft Statute for the International Criminal Court'²⁰ which was submitted to the Conference confirmed these three options and supplemented the second option by a new subparagraph declaring the Court competent to decide a dispute concerning the admissibility of reservations. It added a fourth alternative (*i. e.* option 3 whereas the

¹¹ *Ad hoc* Committee Report.

¹² Preparatory Committee Report, 9.

¹³ Article B, Draft text relating to final clauses, final act and establishment of a preparatory commission, prepared by the Secretariat, UN Doc. A/AC.249/1998/L.11.2.

¹⁴ Zutphen Draft, 169.

¹⁵ Human Rights Watch, *Commentary for the March – April 1998 Preparatory Committee Meeting on the Establishment of an International Criminal Court* (Human Rights Watch 1998) 9.

¹⁶ General comment adopted by the Human Rights Committee under article 40 para. 4, of the ICCPR: Addendum, General Comment No. 24 (52), UN Doc. CCPR/C/21/Rev.1/Add.6.

¹⁷ Cf., e.g., Report of the Human Rights Committee, UN Doc. A/51/40.

¹⁸ Human Rights Watch, see above note 15, 10.

¹⁹ UN Doc. A/AC.249/1998/CRP.4.

²⁰ Preparatory Committee Draft.

former option 3 became option 4) authorising States Parties to make any reservation except to certain – not yet identified – articles or parts of the Statute²¹.

The addition relating to the competence of the Court reflected a preliminary conclusion drawn by the ILC from its discussion of the reservations to multilateral normative treaties: According to this conclusion, treaty bodies of conventions of such kind should be entitled to appreciate or determine the admissibility of reservations²².

- 9 During the Conference, the issue of reservations became subject to negotiations only in the last phase. Beside the suggestion made by the Secretariat in December 1997 no formal proposals or Working papers were presented to the Conference²³. The first version of the Coordinator's rolling text²⁴ left an open space on reservations. The second²⁵ and the third version²⁶ of the Coordinator's rolling text of the main issues as well as the recommendations of the coordinator²⁷ still maintained the four options in article 109. This issue was then briefly discussed in a group coordinated by Ambassador Sloane (Samoa).

Irrespective of the critical voices from several States²⁸, the final text of the Draft of the Statute submitted to the Committee of the Whole on 16 July 1997 for adoption included the version on the inadmissibility of reservations in article 109²⁹ which finally became article 120 of the Statute.

²¹ The various options for draft article 109 were formulated in the following manner:

Reservations

Option 1

No reservations may be made to this Statute.

Option 2

Paragraphs 1 and 2

Option A

1. No reservations other than those made in accordance with paragraph 2 of the present article shall be permitted.

2. Any State may at the time of signature, ratification, acceptance, approval or accession make reservations in respect of the following ...

Option B

1. No reservations to this Statute shall be permitted unless expressly provided for in specific articles of the Statute.

2. No paragraph 2.

3. A State which has made reservations may at any time by notification in writing to the Secretary-General withdraw all or part of its reservations.

4. Option A

In the event of a dispute or legal question arising in connection with the admissibility of reservations made by a State under paragraph 2, the Court shall be competent to decide the admissibility of such reservations.

Option B

No paragraph 4.

[*194] Option 3

1. At the time of signature, ratification, acceptance, approval or accession, any State may make reservations to articles of this Statute except [those in Parts ...] [articles ...].

2. A State which has made reservations may at any time by notification in writing to the Secretary-General of the United Nations withdraw all or part of its reservation.

Option 4

No article on reservations.'

The view was expressed that the same procedure may be used for resolving disputes relating to the admissibility of reservations. It was also observed a cross reference in this article should be made to article 102 (Assembly of States Parties). *Ibid.*, 193.

²² Report of the International Law Commission on the Work of its Forty-Ninth Session, UN GAOR, 52nd Sess., Supp. No. 10, UN Doc. A/52/10 (1997), 127.

²³ See the Draft Report of the Committee of the Whole, UN Doc. A/CONF.183/C.1/L.92, 15.

²⁴ UN Doc. A/CONF.183/C.1/L.54 (7 July 1998).

²⁵ UN Doc. A/CONF.183/C.1/L.54/Rev.1 (9 July 1998).

²⁶ UN Doc. A/CONF.183/C.1/L.54/Rev.2 (10 July 1998).

²⁷ UN Doc. A/CONF.183/C.1/L.61 (11 July 1998).

²⁸ According to Pellet especially the United States, France, Russia and several Arab States objected to the exclusion of any reservation; Pellet, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 145, 159.

²⁹ UN Doc. A/CONF.183/C.1/L.76/Add.13.

II. Purpose

The legal instrument of reservations to international multilateral treaties is deemed to strike a balance between the rigidity and integrity of a multilateral treaty and the objective to bring as many States as possible under the umbrella of this treaty. Already in the course of the elaboration of any multilateral treaty, such as the Statute of the ICC, when the problem of whether and which reservations should be declared admissible has to be resolved, the participants in the elaboration procedure are inevitably confronted with the need to decide whether they wish to preserve the integrity of the treaty or whether they would like to open the treaty also to States which cannot accept all provisions of the treaty. In the latter case, the integral nature of the treaty is sacrificed for a larger participation. In excluding any reservation to the Statute article 120 opts for the first alternative. The exclusion of reservations preserves the integrity of the text which is infringed only by the transitional provision of article 124.

Although that solution had already been suggested by the ILC as well as some NGOs³⁰, it now has a different effect than those suggestions because of the different legal context: Whereas the Draft submitted by the ILC or proposed by some NGOs already reflected a certain flexibility through the opting-in approach which granted the States Parties free selection of the crime for which they would accept the jurisdiction of the ICC, this flexibility would have been preserved in the existing Statute only through the right to enter reservations, apart from the transitional provision of article 124. Hence, the question of reservations has gained a totally new weight in the Statute as compared to the former texts.

This solution reflects the particular nature of the ICC as a kind of international organization³¹. It particularly results from the character of the Statute as a normative treaty³² such as human rights instruments, *i. e.* as a treaty which does not intend to produce reciprocal rights and obligations among the States Parties, but grants rights to, or imposes obligations on, States vis-à-vis either individuals or the international community represented by international actors such as international organizations or other bodies.

In this regard, the very objective of the exclusion of any reservation has been derived from General Comment No. 24³³ of the Human Rights Committee. In line with these considerations it was argued by Human Rights Watch that 'permitting reservations would undermine the force and moral authority behind the treaty and weaken the nature of the obligations embodied in it'³⁴. Proceeding from the same General Comment, Amnesty International feared that such permission would 'defeat the object and purpose of the statute – to bring justice those responsible for the worst crimes in the world'. Reservations could undermine the Court's inherent jurisdiction over the core crimes of genocide, other crimes against humanity and serious violations of humanitarian law as well as aggression by allowing States to redefine crimes, to add defences not consistent with international law or to avoid obligations to cooperate with the court. It could lead to an unwieldy system in which the Prosecutor and Court would have to review reservations of all relevant States to determine

³⁰ See above note 9.

³¹ See Rückert, article 4.

³² According to G.G. Fitzmaurice, 'normative' treaties operate in the absolute, and not relatively to the other parties – '*i. e.* they operate for each party *per se*, and not *between* the parties *inter se*', Fitzmaurice(1953) 2 ICLQ 15; UN Doc. A/CN.4/477/Add. 1, 11.

³³ General Comment adopted by the Human Rights Committee under article 40 para. 4 of the ICCPR, General Comment on issues relating to reservations made upon ratification or accession to the Covenant or the Optional Protocol thereto, or in relation to declarations under article 41 of the Covenant, UN Doc. CCPR/C/21/Rev.1/Add.6.

³⁴ Human Rights Watch, see above note 15, 9; see also Human Rights Watch (H. Duffy), *Justice in the Balance: A Historic Moment. Recommendations for an independent and effective International Criminal Court* (Human Rights Watch 1998) 99.

the extent of the obligations each of the States had accepted³⁵. Similar reasons were also given by the NGO Lawyers Committee for Human Rights³⁶.

- 13 The reasons given by dissenting judges in the *Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide* Case are also applicable to the Statute; they argued that it was not universality, but ‘rather the acceptance of common obligations ... in order to attain a high objective for all humanity, that is of paramount importance’³⁷; these reasons were reiterated by Human Rights Watch³⁸.
- 14 In accordance with the view expressed by the Special Rapporteur in the ILC, Alain Pellet, with regard to normative treaties, the various reasons speaking against the admissibility of reservations to the Statute can be summarized in the following way:
 - Permitting reservations would encourage partial acceptance of the treaty,
 - the accumulation of reservations could ultimately void the treaty of any substance³⁹,
 - and would, in any event, compromise the quasi-legislative functioning of such treaties and the uniformity of their implementation⁴⁰.

Further reasons quoted by Amnesty International are the simplicity of the exclusion clause and the weakening of the deterrent and educational value of the Court⁴¹.

B. Analysis and interpretation of elements

I. Scope

- 15 The exclusion of reservations laid down in article 120 applies to the Statute as a whole. It also applies to future amendments to the Statute, including those concerning the crime of aggression as mentioned in article 5 para. 2⁴² and adopted at the Kampala Conference in 2010⁴³ or other crimes⁴⁴ to be submitted to the Review Conference. It would also apply to any instrument which is qualified as an integral part of the Statute, unless a different specific provision on reservations exists.
- 16 Although the meaning of the expression ‘treaty’ does not seem to raise problems in this context, questions may nevertheless arise concerning the extension of this clause to other instruments related to the establishment of the ICC and closely connected to its Statute. The Statute itself already calls for the elaboration of instruments such as the Rules of Procedure and Evidence (article 51), the Regulations of the Court (article 52) and the Elements of Crime (article 9). However, the nature of reservations as an act connected with the conclusion of international multilateral treaties rules out the applicability of this clause to those instruments. Despite some questions concerning their legal nature, these instruments are undoubtedly not concluded as treaties so that they are not subject to a conclusion procedure by the

³⁵ Amnesty International, *The International Criminal Court. Making the right choices – Part IV: Establishing and Financing the Court and Final Clauses* (1998) 23.

³⁶ Lawyers Committee for Human Rights, International Criminal Court Briefing Series, Vol. I, No. 7, 16 (1998): ‘Reservations would not only lead to confusion as to the exact extent of the obligations undertaken by states but could, depending on their scope, defeat the very object and purpose of the ICC treaty. As constant controversies generated by reservations to human rights treaties have shown, similar uncertainty and dilution of the ICC statute must be avoided.’.

³⁷ See above note 4, 47 (Dissenting Opinion of Judges Guerrero, Sir Arnold McNair, Read, Hsu Mo).

³⁸ Human Rights Watch, Justice, see above note 34, 100.

³⁹ See also Schabas(1995) 41 *Canybill* 39.

⁴⁰ UN Doc. A/CN.4/477/Add.1, 26.

⁴¹ *Ibid.*, 24.

⁴² Cf. article 5 para. 2.

⁴³ Resolution RC/Res.6.

⁴⁴ See also Resolution RC/Res.5 regarding amendments to Article 8 of the Rome statute; cf. also Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, Rome, 17 July 1998, Annex I, Resolution E.

individual States. On the contrary, they are conceived as acts which enter into force upon their collective adoption either by the States⁴⁵ or the judges⁴⁶. Consequently, they cannot be considered as instruments to which reservations can be made. However, should they nonetheless be included into the Statute as its integral part, the exclusion of reservations clause would also apply to these parts of the Statute in relation to any State which after the entry into effect of these instruments intends to accede to the Statute according to article 125 para. 3. However, this exclusion clause does not relate to agreements that are connected with the existence of the ICC such as the Agreement on Privileges and Immunities

II. Meaning of reservations

According to article 2 para. 1 (d) of the VCLT a reservation means ‘a unilateral statement, 17 however phrased or named, made by a State, when signing, ratifying, accepting, approving or acceding to a treaty, whereby it purports to exclude or to modify the legal effect of certain provisions of the treaty in their application to that State’. Despite the apparently clear definition of reservations in article 2 of the VCLT, certain questions on its precise meaning nevertheless remain. This matter is not only of a theoretical, but also practical nature since the exclusion of reservations does not affect other unilateral declarations made in connection with the consent to be bound by a State so that it could even be argued *e contrario* that such unilateral declarations other than reservations are admissible. Although several international conventions, in particular those on human rights, contain a clause on the prohibition of reservations like this article 120, States Parties nevertheless have not abstained from entering declarations without these declarations being contested by the other States Parties or the relevant treaty body⁴⁷.

III. Interpretative declarations

Despite the total exclusion of reservations, it cannot be ruled out from the outset that 18 States were motivated to make declarations. States could be induced to do so by the same reasons which encourage them to make reservations to other normative treaties such as treaties on human rights⁴⁸:

- ‘the need for a margin of flexibility in respect of human rights treaties which tend to touch on matters of particular sensitivity to States, particularly when the terms of the convention are backed up by a monitoring mechanism which ensures a dynamic interpretation of the instrument’;
- ‘as a proof that States take their treaty obligations seriously’;
- an ‘opportunity to harmonize their domestic law with the requirements of the convention while obligating them to abide by the most important provisions’.

The most frequent case of such other unilateral declarations are interpretative declarations 19 which, according to Special Rapporteur Alain Pellet, can be defined as unilateral declarations, ‘however phrased or named, made by a State or by an international organization whereby that State or that organization purports to clarify the meaning or scope attributed by the

⁴⁵ As to the Rules of Procedure and Evidence and the Elements of Crimes, they enter into force upon their adoption by a two thirds majority of the members of the Assembly of States Parties (article 51 para. 1 and article 9 para. 1).

⁴⁶ The Regulations of the Court take effect upon their adoption by the judges, subject, however, to a certain objection procedure involving the States Parties (article 52 para. 3).

⁴⁷ See, e.g., article 21 of the European Convention of 1987 for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment to which declarations were made by Germany, Italy, Netherlands and the United Kingdom, or article 6 para. 3 of the Additional Protocol to the European Convention of 1975 on Extradition to which declarations were made, e.g., by Netherlands and Hungary.

⁴⁸ These are the main considerations referred to by Special Rapporteur A. Pellet. See Pellet, ‘Second Report on Reservations to Treaties’, UN Doc. A/CN.4/477/Add.1, 29.

declarant to the treaty or to certain of its provisions⁴⁹. This definition was confirmed by the ILC⁵⁰. From the definition of reservations by the VCLT and this definition of interpretative declarations is to be followed that the particular designation of a declaration as one or the other is of no decisive effect for its qualification, but that this latter is only derived from the intention connected with it. This dispute on the qualification cannot be escaped if the wording leaves doubts on the intention underlying them, in particular whether or not they intend to alter the obligations under a given treaty. Cases occurred already that, if States designated their declarations as ‘interpretative declarations’, other States or judicial bodies treated them as reservations. One instance of this was the decision of the European Court of Human Rights in the *Belilos* case that declarations made by Switzerland to the European Convention for the Protection of Human Rights and Fundamental Freedoms in reality had to be treated like reservations⁵¹, or the European Commission of Human Rights which identified an interpretative declaration as a reservation in the *Temeltasch* case⁵². In view of the general prohibition of reservations, Guideline 1.3.3 as formulated by the ILC applies, according to which such a declaration ‘shall be presumed not to constitute a reservation. Such a statement nevertheless constitutes a reservation if it purports to exclude or modify the legal effect of certain provisions of the treaty, or of the treaty as a whole with respect to certain specific aspects, in their application to its author.’⁵³

- 20 Article 120 undoubtedly discards any declaration which intends to modify the extent of obligations and rights for individual States. Hence, if a declaration is made with the clear intention to exclude or modify the legal effect of provisions of the Statute, then it must be treated as an inadmissible reservation⁵⁴.
- 21 The same cannot be said with relation to other unilateral declarations. They remain under the general regime of international law regarding international treaties. The regime governing unilateral declarations is, however, unclear not the least because of the silence of the VCLT on this subject. According to some authors it resembles the regime governing reservations⁵⁵ whereas in the view of others the two regimes are rather distinct⁵⁶. In practice, such declarations have frequently been treated like reservations insofar as, for instance, they have been objected by other States Parties⁵⁷. What, however, can be considered as unquestionable is that a State making such an interpretative statement is bound by it, once it has not been contested by the other States Parties or by the competent organs of the Court⁵⁸. It must, however, also be borne in mind that they cannot have an effect on the rights and obligations under the Statute with regard to other Parties or to organs of the Court, unless the latter concur in this interpretation.

Since such declarations can neither alter nor exclude the legal effect of provisions of the Statute, they are admissible in relation to the entire Statute.

⁴⁹ Pellet, ‘Third Report on Reservations to Treaties, Addendum’, UN Doc.A/CN.4/491/Add.4, 33.

⁵⁰ Guideline 1.2, Report of the International Law Commission on the Work of its Sixty-Third Session, UN GAOR, UN Doc.A/66/10, Add.1, 62.

⁵¹ Pellet, see above note 49, §§ 293 *et seq.*; Publications of the European Court of Human Rights, Ser. A, Vol. 132, 22.

⁵² Pellet, see above note 49, § 295; European Commission of Human Rights, Decisions and Reports, No. 31, Apr. 1983, paras. 68 *et seq.* and 438 *et seq.*

⁵³ Report of the International Law Commission, see above note 50, 38.

⁵⁴ Pellet, see above note 49, § 301.

⁵⁵ *Ibid.*, § 241 citing authors like Tomuschat (1967) 27 ZaöRV 465; see also Horn, Reservations 235 and Pellet, above note 49, § 241.

⁵⁶ *Ibid.*

⁵⁷ *Ibid.*, §§ 284 *et seq.*

⁵⁸ According to D.W. Bowett, interpretative declarations have no legal consequences, Bowett, (1976–77) 48 BYBIL 67, 68.

IV. General international law

Since the Statute constitutes a treaty concluded among States after the entry into force of the VCLT⁵⁹ the latter is applicable to the Statute in relation to States Parties which are also Parties to the VCLT whereas the other States Parties to the Statute have to resort to customary international law which nevertheless has conformed to the regime of the VCLT⁶⁰. The famous advisory opinion of the ICJ in the Genocide Case⁶¹ had paved the way to the regime on reservations embodied in articles 19–23 VCLT which, yet, still contain enough lacunae to engage the ILC again with this issue, 20 years after the adoption of the VCLT⁶². Certainly, in the context of the Statute, the question on the applicability of the VCLT is of less significance not only because of the similarity or even identity of conventional and customary regime, but also in view of the plain and clear wording of article 120 which leaves no doubts on the inadmissibility of reservations in the sense of article 19 (a) VCLT⁶³. Likewise, the widely discussed problem of the legal particularities of reservations to ‘normative treaties’⁶⁴ was certainly a motivation for article 120⁶⁵, but has no significance for the Statute in view of the absolute prohibition of reservations.

Nonetheless, certain other issues connected with reservations still deserve a particular consideration since they permit a broader evaluation of the merits of article 120.

1. The need of article 120

According to article 19 (b) VCLT, a reservation is not permitted if it relates to a provision which does not figure among the provisions to which reservations are explicitly permitted. Hence, if the Statute permits reservations to certain of its provisions, a reservation to any other provision is not permitted and is, therefore, inadmissible. Although the Statute does not explicitly define provisions to which reservations could be made, it could nevertheless easily be argued that some of its provisions authorize States to make declarations having an effect like reservations. The first candidate in this regard is the transitional provision of article 124 which entitles States Parties to declare that they do not accept certain legal effects of article 8. A declaration under this article is undoubtedly one which intends to ‘exclude or modify the legal effect of certain provisions of the treaty in their application to that State’. If article 124 is understood in this sense and a declaration under this article as amounting to a reservation, no other reservations are admissible by virtue of article 19 (b) VCLT even in the absence of a clause excluding reservations; in the light of these considerations article 120 has to be considered redundant. If the proposal of ‘no clause on reservation’ which was proposed in the course of the discussion⁶⁶ had been carried, the legal consequence of that conclusion would have been the same as it is achieved by the existing article 120, namely the exclusion of (other) reservations.

⁵⁹ According to article 4 of the VCLT the latter ‘applies only to treaties which are concluded by States after the entry into force of the present Convention with regard to such States’; the VCLT entered into force in January 1980.

⁶⁰ Although, with respect to the regime of reservations, the VCLT at the moment of its adoption did hardly reflect customary international law, but rather its progressive development, the States presently refer to the regime on reservations embodied in the VCLT frequently without proving the applicability of the VCLT *strict sensu* to the case in question.

⁶¹ See above note 4.

⁶² Cf. the inclusion of this topic in the Commission’s agenda, in: Pellet, ‘First Report on Reservations to Treaties’, UN Doc. A/CN.4/470, 4.

⁶³ Article 19 (b) VCLT reads: ‘A State may, when signing, ratifying, accepting, approving or acceding to a treaty, formulate a reservation unless: (a) the reservation is prohibited by the treaty.’.

⁶⁴ See the reports by Special Rapporteur A. Pellet to the ILC, UN Doc. A/CN.4/470, A/CN.4/477 and A/CN.4/491 and Add.

⁶⁵ See above note 31.

⁶⁶ See above note 19.

2. Reservations to constituent instruments of international organizations

- 24 When it submitted the Draft Statute to the General Assembly, the ILC already drew attention to the fact that whether or not the Draft Statute would be considered to be ‘a constituent instrument of an international organization’ within the meaning of article 20 para. 3 VCLT, it is certainly closely analogous to a constituent instrument, and the considerations which led the drafters to require the consent of the ‘competent organ of that organization’ under article 20 para. 3 apply in rather similar fashion to it⁶⁷. Article 20 para. 3 VCLT provides that reservations to constituent instruments of international organizations need the acceptance by the relevant organ of the organizations affected by the reservation⁶⁸. This particular requirement results from the need to maintain the integrity of the organization since reservations of individual States to certain provisions, in particular to those provisions which are not of a reciprocal, but of a ‘normative’ nature⁶⁹, would destroy the whole concept of the organization and make it inoperative. It is, e.g., for obvious reasons absurd to allow for reservations to provisions on the composition of organs. According to Mendelson, such reservations would lead to a collapse of the organization and to chaos⁷⁰. This consequence had already been acknowledged by the ILC in the course of the preparation of the VCLT since it considered that ‘in the case of instruments which form the constitutions of international organizations, the integrity of the instrument is a consideration which outweighs other considerations and that it must be for the members of the organization, acting through its competent organ, to determine how far any relaxation of the integrity of the instrument is acceptable’⁷¹. In the discussions in the General Assembly, it had been generally recognized that reservations to constitutions of international organizations were a special case and that the integrity of the organization was the primary consideration⁷². This conclusion was confirmed by the ILC’s comment on Guideline 2.8.8⁷³ of the Guide to Practice on Reservations to Treaties, adopted by the Commission at its sixty-third session, according to which ‘(t)he constituent instruments of international organizations do not by nature lend themselves to the flexible system’.⁷⁴ The ILC qualified also the Draft Statute ‘as an overall scheme, incorporating important balances and qualifications in relation to the working of the Court’ which is intended to operate as a whole. For these reasons, the ILC supported the exclusion or strict limitation of reservations to the Statute⁷⁵.

3. The legal status of inadmissible reservations (declarations)

- 25 It cannot be excluded that despite the inadmissibility of reservations States will attach declarations to the documents expressing their consent to be bound, which, by their content, amount to reservations and are therefore inadmissible by virtue of article 120. The legal consequences of such inadmissible reservations, respectively declarations, are unclear; at least two schools of thoughts opposing each other exist. According to the first, inadmissible

⁶⁷ Report of the ILC, see above note 8.

⁶⁸ Article 20 para. 3 VCLT reads: ‘When a treaty is a constituent instrument of an international organization and unless it otherwise provides, a reservation requires the acceptance of the competent organ of that organization.’

⁶⁹ Mendelson, Reservations 145.

⁷⁰ *Ibid.*, 148.

⁷¹ Wetzel and Rauschnig (eds.), *The Vienna Convention on the Law of Treaties. Travaux Préparatoires* (1978) 192.

⁷² Mendelson, Reservations 145.

⁷³ This Guideline reads as follows:

‘Acceptance of a reservation to the constituent instrument of an international organization

When a treaty is a constituent instrument of an international organization and unless it otherwise provides, a reservation requires the acceptance of the competent organ of that organization.’ (Report of the ILC UN Doc. A/66/10, Add.1, 300).

⁷⁴ *Ibid.*, 301.

⁷⁵ 1994 ILC Draft Statute, 147.

reservations affect the consent to be bound and, consequently, destroy the legal effect of the consent to be bound. The second school of thought comes to the conclusion that such declaration has to be considered as not made and as not affecting in any way the consent to be bound⁷⁶. As to the legal consequences of impermissible reservations, Special Rapporteur Alain Pellet already posed the following questions⁷⁷ which singled out the most salient issues and their complex nature, but were differently answered by doctrine and practice:

‘Must the reservation be regarded as void, but the expression of consent to be bound by the treaty as valid?

On the contrary, does the impermissibility of the reservation affect the reliability of the expression of consent itself?

Does the impermissibility of the reservation produce effects independently of any objections which may be raised to it?

At most, have the other contracting States (or international organizations) an obligation in such circumstances to raise an objection to an impermissible reservation?

Or may they, rather, accept such a reservation, either expressly or tacitly?’

In the context of the Statute, such and similar questions could be stirred up if States issue 26 declarations amounting to – impermissible – reservations. According to the final version of the Guide to Practice on Reservations to Treaties as adopted by the ILC invalid reservations are to be considered as null and void, and therefore devoid of any legal effect.⁷⁸ The status of the author of such reservations depends ‘on the intention expressed by the reserving State or international organization on whether it intends to be bound by the treaty without the benefit of the reservation or whether it considers that it is not bound by the treaty’. Unless the relevant State has expressed a contrary intention or such an intention is otherwise established, ‘it is considered a contracting State or a contracting organization without the benefit of the reservation’.⁷⁹ However, it is not yet established whether this solution can and will gain universal acceptance. In view of the absence of a generally shared view, of the broad spectrum of possible answers to these questions, but also of the need to protect the integrity of the Statute not only because of its nature as the constituent instrument of an international body comparable to an organization, but also as a kind of a normative treaty, a decision on this issue will be required, which would have equal effect for all States Parties and for the ICC itself. In the course of the negotiations, it was proposed to confer the relevant decision on the ICC itself⁸⁰. This view was modelled on certain conclusions drawn by the ILC that monitoring bodies of human rights instruments should be endowed with the competence to decide on the admissibility of reservations⁸¹. However, the total exclusion of reservations and the absence of any provision regarding declarations made this proposal redundant.

⁷⁶ Bowett, see above note 58, 88.

⁷⁷ UN Doc. A/CN.4/470, 52.

⁷⁸ Guideline 4.5.1 reads as follows:

‘A reservation that does not meet the conditions of formal validity and permissibility set out in Parts 2 and 3 of the Guide to Practice is null and void, and therefore devoid of any legal effect.’

Report of the ILC, UN Doc. A/66/10, Add.1, 446.

⁷⁹ Guideline 4.5.3 *ibid.*, 524.

⁸⁰ See article 109 Preparatory Committee Draft.

⁸¹ The Commission drafted the following relevant conclusions:

‘5. The Commission also considers that where these treaties are silent on the subject, the monitoring bodies established thereby are competent to comment upon and express recommendations with regard, *inter alia*, to the admissibility of reservations by States, in order to carry out the functions assigned to them;
7. The Commission suggests providing specific clauses in normative multilateral treaties, including in particular human rights treaties, or elaborating protocols to existing treaties if States seek to confer competence on the monitoring body to appreciate or determine the admissibility of a reservation’; Report of the ILC, see above note 22, 126.

This conclusion was later reflected in Guideline 3.2 concerning the Assessment of the permissibility of reservations, which reads:

‘The following may assess, within their respective competences, the permissibility of reservations to a treaty formulated by a State or an international organization:

– contracting States or contracting organizations;

- 27 Despite the silence of the Statute in this regard, as far as declarations regarding its judicial functions are concerned and a case requires a decision, a certain competence of the ICC to decide on this issue can nevertheless be based on its competence-competence as is expressed in article 19 para. 1 and article 119 para. 1⁸². But in view of the complex nature of the Statute such a question on the admissibility of declarations and its legal effect could also surface in the form of a dispute other than one concerning the judicial functions of the Court. In that case article 119 para. 2 would apply according to which the Assembly of States Parties would become competent either to settle the dispute or to make recommendations on further means of settlement, including referral to the International Court of Justice.

4. The present practice

- 28 Among the 123 States being presently (30 August 2015) party to the Statute, 67 made declarations. These declarations are of different nature: One kind of declarations relates to those provisions which give the states the right to opt for one or the other conduct, others are of the type of interpretative declarations, whereas some relate to the territorial scope of the Statute.
- 29 Most of these declarations, namely 66, made use of the possibilities offered by article 87 (1) and (2). According to article 87 (1) States shall designate upon ratification, acceptance, approval or accession whether requests addressed by the ICC to States shall be transmitted through the diplomatic channel or any other appropriate channel. According to article 87 (2) States should indicate upon ratification, acceptance, approval or accession in which language requests for cooperation and any documents supporting the request issued by the ICC shall be translated. Nine States also made declarations referring to article 103 (1) (a) and (b) by which they declared their willingness to accept sentenced persons under different conditions.
- 30 France and Colombia made use of article 124 and excluded the jurisdiction of the Court with respect to the category of crimes referred to in article 8 (war crimes) when a crime was alleged to have been committed by its nationals or on its territory. By a declaration of 13 August 2008, the French Government informed the depositary, the Secretary-General of the United Nations, that it had decided to withdraw the declaration under article 124 made upon ratification⁸³.
- 31 Other declarations intend to furnish provisions of the Statute with a certain meaning so that they operate as ‘interpretative declarations’ in the sense addressed by the International Law Commission.⁸⁴ France made a general declaration concerning its inherent right of self-defense in accordance with article 51 of the Charter of the United Nations, Egypt subjected the interpretation and application of the Statute to the general principles and fundamental rights which were universally recognized and accepted by the whole international community, with the principles, purposes and provisions of the Charter of the United Nations and the general principles and rules of international law and international humanitarian law. It further declared that it would interpret the two terms fundamental rights and international standards on the understanding that they were accepted by the international community as a whole. Egypt also referred to article 7 in order to ensure the interpretation of all acts mentioned in this provision as being subject to the conditions, measures and rules appearing in the introductory phrase of this provision. Reference was also made to the meaning of the terms ‘the concrete and direct overall military advantage anticipated’ (Egypt) ‘the established

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- dispute settlement bodies;
 - treaty monitoring bodies.

The subsequent guidelines address the competence of such bodies in this respect.

⁸² The necessity to endow the ICC with this competence was emphasized by Human Rights Watch, Justice, see above note 34, 100.

⁸³ See UN Treaty Collection, Declarations and Reservations relating to the Rome Statute of the International Criminal Court <http://treaties.un.org/pages/ViewDetails.aspx?src=TREATY&mtdsd_no=XVIII-10&chapter=18&lang=en#12> accessed 1 September 2014.

⁸⁴ See above note 48 *et seq.*

framework of international law' (United Kingdom), 'armed conflict', 'military advantage' or 'military objective', to damage to the natural environment (France), as well as to the application of international humanitarian law (Egypt, New Zealand). As to the question of non-retroactivity of the Court's jurisdiction pursuant to articles 11 and 24 of the Statute, Egypt affirmed that this principle should not invalidate the principle of the inapplicability of the statute of limitations to war crimes. Several declarations emphasize the need of an interpretation of the Statute in conformity with the rules of international humanitarian law (Belgium, Colombia, Egypt, New Zealand). The declaration made by Portugal according to which it intended 'to exercise its jurisdictional powers over every person found in the Portuguese territory, that is being prosecuted for the crimes set forth in article 5, paragraph 1 of the Rome Statute of the International Criminal Court, within the respect for the Portuguese criminal legislation', could hardly qualify as an interpretative declaration, but rather a unilateral declaration relating to its future conduct.

A further type of declaration refers to the territory to which the Statute should apply: 32 Denmark excluded the Faroe Islands and Greenland from the Statute, but later declared by a communication to the Secretary-General the withdrawal of its declaration with regard to Greenland, New Zealand excluded Tokelau, whereas Netherlands extended the application to the Kingdom in Europe, the Netherlands Antilles and Aruba. The communication of United Kingdom to extend the application of the statute to, *inter alia*, the Falkland Islands was objected by Argentina that regarded Islas Malvinas, Georgias del Sur and Sandwich del Sur and the surrounding maritime areas as an integral part of the Argentine national territory. Although article 29 of the VCLT provides that a treaty is binding upon each party in respect of its entire territory unless a different intention appears from the treaty or is otherwise established and the Statute does not provide a right to limit the geographical scope of the Statute, the need of these declarations results from the disputed status of these territories. Otherwise problems could arise as to the territorial scope of the Statute.

Several declarations refer to the interpretation of article 8, mainly in connection with the 33 type of prohibited weapons: Some of them include the nuclear weapons among these weapons (Egypt, New Zealand and Sweden) or refer, in particular, to the advisory opinion of the ICJ in *Legality of the Threat or Use of Nuclear Weapons* (1996)⁸⁵, whereas others exclude them unless they are explicitly banned either by a treaty or an amendment to the Statute (France, implicitly United Kingdom).

A particular problem has been raised by the declaration of Uruguay, which states that 34 'Uruguay shall ensure its application to the full extent of the powers of the State insofar as it is competent in that respect and in strict accordance with the Constitutional provisions of the Republic'. Some States qualified this declaration as a prohibited reservation (Finland, Germany, Netherlands, Sweden in explicit objections and Ireland, United Kingdom, Denmark and Norway in communications to the Secretary-General) and objected to it. These objections, however, differ in their effect: Finland, Netherlands, Sweden, Denmark and Norway explicitly declared that Uruguay was bound by the Statute, but could not benefit from its reservation, whereas Germany, Ireland and United Kingdom only stated that the Statute entered into force between Germany and Uruguay. In its reply to these objections, Uruguay denied the intention to launch a reservation. In this respect, the question arises whether an inadmissible reservation would have to be considered as null and void, but would not affect the consent to be bound or whether the consent to be bound should be considered as being dependent on the reservation so that, in the case of an inadmissible reservation, the relevant State would not become party. In the present case, in light of the objections according to which Uruguay remained bound by the Statute regardless of its declaration and of the silence of the majority of States, Uruguay must be considered to be bound by the Statute. As to the effect of this declaration, the reply of Uruguay and the view of the objecting States clarified that Uruguay could not resort to the declaration in order to be exempt from

⁸⁵ *Legality of the Threat or Use of Nuclear Weapons*, Advisory Opinion, (1996) ICJ Rep 226.

any of the obligations under the Statute. By a communication of 26 February 2008, Uruguay informed the depositary, the Secretary-General of the United Nations, that it withdrew this interpretative declaration.

- 35 Several other declarations raise certain doubts about their intention since they are formulated in a manner that cannot exclude the effect of a reservation: Australia declared not to surrender any person without investigations or prosecution and a certificate from the Attorney-General; Colombia stated that its domestic law would not be altered by the Statute; similarly, Jordan declared its law as being fully consistent with the statute; according to Malta's declaration, persons pardoned for a certain offence would not be tried. The United Kingdom only confirmed and drew to the attention of the Court 'its views as expressed, inter alia, in its statements made on ratification of, inter alia, the Protocol Additional to the Geneva Conventions of 12th August 1949, and relating to the Protection of Victims of International Armed Conflicts (Protocol I) of 8th June 1977'. The United Kingdom had made several reservations to this Protocol so that it could be asked whether it intended to apply them also to the Statute itself. However, article 120 of the Statute undoubtedly excludes their application to the Statute, notwithstanding their continued application to the Additional Protocol. In this perspective, the purpose of this declaration could also be seen in rebuffing the assumption that the ratification of the Statute would entail the withdrawal of the reservations with relation to the Additional Protocol. Amnesty international qualifies the declarations of Australia, Colombia, France, Malta and the United Kingdom as reservations prohibited under article 120 of the Statute⁸⁶. However, these declarations should first be qualified in the light of Guideline 1.3.3. of the of the Guide to Practice on Reservations to Treaties elaborated so far by the International Law Commission⁸⁷ according to which in the case of prohibition of reservation a declaration should be viewed rather as an interpretative declaration than a reservation.
- 36 Any interpretative declaration could have effect only for the State launching it and only to the extent that they are not opposed. This effect could only relate to the rights and duties that are incumbent upon this State. As far as other rights and obligations are concerned these declarations cannot apply so that the Court is neither bound nor otherwise affected by them. As far as declarations that reflect a certain interpretation of the definition of the crimes falling under the jurisdiction of the Court have not been accepted by the other States Parties, they cannot amount to an authentic interpretation so that they can have effect only for the State making them, but not for the Court when it applies the definitions of crimes in a proceeding. For these reasons, the declarations regarding the use of nuclear weapons do in no way prejudice the decisions of the Court on this issue. However, a problem could arise if a State having made such a declaration denies the cooperation with the Court on the ground that it has no jurisdiction as a result of the interpretation reflected in the declaration. It will then be a matter of the Court to make a finding on the effect of such declarations according to the procedure under article 87 (7).
- 37 Some of the declarations, in particular those that purport to change the obligations under the Statute concerning, e.g., the duty of cooperation by making it subject to domestic legislation, seem to amount already to reservations in the sense of article 2 of the VCLT⁸⁸ so that they would become incompatible with article 120. However, neither by the depositary nor by a State Party protests to these reservations have been launched as yet and their admissibility has not been disputed. Any dispute on this question would be subject of the Assembly of States Parties according to article 119 para. 2.
- 38 Israel made a declaration upon signature, which, however, does not purport to provide a certain interpretation of provisions of the Statute, but only to explain its position towards the establishment of the ICC. A declaration under article 12 (3) of the Statute has been made by

⁸⁶ Amnesty International, 'International Criminal Court: Declarations amounting to prohibited reservations to the Rome Statute' (November 2005) AI Index IOR 40/032/200512.

⁸⁷ See above note 53.

⁸⁸ See mn 17.

the Republic of Côte d'Ivoire declaring to accept 'the jurisdiction of the Court for the purposes of identifying, investigating and trying the perpetrators and accomplices of acts committed on Ivorian territory since the events of 19 September 2002' and to cooperate accordingly with the Court. A further declaration of this kind, which, however, aroused certain discussions, was submitted by the Palestine National Authority on 22 January 2009 according to which the Government of Palestine recognized 'the jurisdiction of the Court for the purpose of identifying, prosecuting and judging the authors and accomplices of acts committed on the territory of Palestine since 1 July 2002'. The Prosecutor did not take a decision on the applicability of Article 12 of the Statute to this declaration due to the undecided status of Palestine as a State, being a matter of the United Nations or the Assembly of State Parties. In the meantime, however, the General Assembly adopted a resolution granting Palestine the status as a Non-Member Observer State⁸⁹, Palestine became a State Party to the Rome Statute by 1 April 2015. Nevertheless, the declaration already raised the question of its retroactive effect regarding the acceptance of jurisdiction.⁹⁰ By means of a declaration under article 12 (3), Ukraine accepted the jurisdiction of the Court for the purpose of identifying, prosecuting and judging the authors and accomplices of acts committed on the territory of Ukraine within the period 21 November 2013–22 February 2014. The Declaration came in force on 25 February 2014 and has been made for an indeterminate duration.⁹¹

5. Declarations with regard to the crime of aggression

A new form of declaration is to be expected under the amendments achieved at the Review Conference in Kampala regarding the crime of aggression. Article 15*bis* (4) that governs the exercise of jurisdiction over the crime of aggression in case of referral by a State Party or *proprio motu* investigations by the Prosecutor provides that a State Party can declare that it does not accept the jurisdiction of the Court with regard to the crime of aggression by lodging a declaration with the Registrar. Such a declaration can be withdrawn at any time and shall be reconsidered by the State party within three years. However, the precise effect of this declaration is not clear: different interpretations have been offered, in particular depending on whether the jurisdiction concerning the crime of aggression should be subject to article 12 or article 121 (5) of the Statute⁹².

⁸⁹ UN Doc.A/RES/67/19.

⁹⁰ Wills, (2014) 12 *JICJ* 407, 408.

⁹¹ See Note Verbale of the Embassy of the Ukraine in The Hague of 9 April 2014, No. 61219/35-673-384; <http://www.icc-cpi.int/en_menus/icc/press%20and%20media/press%20releases/Documents/997/declarationRecognitionJurisdiction09-04-2014.pdf>accessed 28 August 2014.

⁹² See, for instance, Krefß and von Holtzendorff (2010) 8 *JICJ* 1179–1217; Liechtenstein Institute on Self-Determination and the Woodrow Wilson School of Public and International Affairs, Princeton University, *Handbook. Ratification and Implementation of the Kampala Amendments to the Rome Statute of the ICC: Crime of aggression – war crimes* (2012); Barriga, in: Dive, Goes, and Vandermeersch (eds.) *From Rome to Kampala: The first 2 amendments to the Rome Statute* (2012) 31–53; Reisinger/Coracini (2010) 2 *GoJIL* 745, 745; Schmalenbach (2010) 15/16 *JZ* 745, 790.

Article 121 Amendments

1. After the expiry of seven years from the entry into force of this Statute, any State Party may propose amendments thereto. The text of any proposed amendment shall be submitted to the Secretary-General of the United Nations, who shall promptly circulate it to all States Parties.

2. No sooner than three months from the date of notification, the Assembly of States Parties, at its next meeting, shall, by a majority of those present and voting, decide whether to take up the proposal. The Assembly may deal with the proposal directly or convene a Review Conference if the issue involved so warrants.

3. The adoption of an amendment at a meeting of the Assembly of States Parties or at a Review Conference on which consensus cannot be reached shall require a two-thirds majority of States Parties.

4. Except as provided in paragraph 5, an amendment shall enter into force for all States Parties one year after instruments of ratification or acceptance have been deposited with the Secretary-General of the United Nations by seven-eighths of them.

5. Any amendment to articles 5, 6, 7 and 8 of this Statute shall enter into force for those States Parties which have accepted the amendment one year after the deposit of their instruments of ratification or acceptance. In respect of a State Party which has not accepted the amendment, the Court shall not exercise its jurisdiction regarding a crime covered by the amendment when committed by that State Party's nationals or on its territory.

6. If an amendment has been accepted by seven-eighths of States Parties in accordance with paragraph 4, any State Party which has not accepted the amendment may withdraw from this Statute with immediate effect, notwithstanding article 127, paragraph 1, but subject to article 127, paragraph 2, by giving notice no later than one year after the entry into force of such amendment.

7. The Secretary-General of the United Nations shall circulate to all States Parties any amendment adopted at a meeting of the Assembly of States Parties or at a Review Conference.

Literature: Barriga, S. 'Negotiating the Amendments on the crime of aggression', in: S. Barriga and C. Kress (eds.), *The Travaux Préparatoires of the Crime of Aggression* (CUP 2012) 3; id., 'Exercise of Jurisdiction and Entry into Force [of Amendments relating to the crime of aggression]', Brussels Colloquium, 'From Rome to Kampala' (2012) <http://www.regierung.li/uploads/media/2012-6-5_Stefan_Barriga_-_CoA_Exercise_of_Jurisdiction_and{EIF_-_Brussels_Colloquium_-_paginated_02.pdf> accessed 9 September 2014; Barriga, S. and Grover, L., 'A Historic Breakthrough on the Crime of Aggression', (2011) 105 *AJIL* 3 517; Clark, R. S., 'Building on Article 8 (2) (b) (xx) of the Rome Statute of the International Criminal Court: Weapons and Methods of Warfare', (2009) 12 *NCLRev* 3 366; id., 'Ambiguities in Article 5 (2), 121 and 123 of the Rome Statute', (2009) 41 *CaseWesternReserveJIL* 2-3 413; Kress, C. and von Holtzendorff, L., 'The Kampala Compromise on the Crime of Aggression', (2010) 8 *JICJ* 5 1179.

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A. Introduction/General remarks

Every significant aspect of this article was the subject of hard negotiation. 1

At the core of the debate was when amendments might first be considered. Some States believed that almost as soon as the Statute came into force it would be appropriate to consider improving and expanding upon it. This was particularly true of States who believed that some offences that were important to them, such as terrorism, drug trafficking and the use of weapons of mass destruction, should have been included within the jurisdiction of the Court. They were prepared to defer in the meantime, but only if there would be fair opportunity to raise their items in the future. Some wished for flexibility in amending so that unexpected flaws could rapidly be rectified. Others argued that, given the novel nature of what was being adopted, and the inroads that it entailed on state sovereignty, it was necessary to go slowly, to consolidate and assess the situation in a deliberate fashion before moving further. Five and ten years were the most common candidates for what might be a 'reasonable' time.

The compromise by which most amendments could not even be formally considered until 2 seven years after the Statute comes into force was the best that could be attained¹. It will be noticed that it applies also to the calling of the first Review Conference pursuant to article 123 of the Statute². It was argued in earlier editions of this Commentary that the seven year time-frame should not apply to the conclusion of the negotiations to define the crime of aggression which are a condition precedent to including aggression within the jurisdiction of the Court³. The issue became moot when the negotiations stretched on until the first Review Conference in 2010.

The second question had to do with majorities. There was little support for the position 3 that there must be unanimity of the States Parties before an amendment could take place. Most seemed to accept that a (fairly large) qualified majority would suffice, as is normal for the constitutions of international organizations. Unanimity is almost impossible to achieve where a few obstructionist governments or a few governments suffering from total inertia are in a position to block matters. Then, there is the need, if the organization is to be effective, for structural amendments to apply to all members.

The ultimate resolution in paragraphs 3, 4, 5 and 6 of this article makes amendments 4 extremely difficult, although some will apply to everybody. Paragraph 3 provides that two-thirds of the States Parties (acting at an Assembly of States Parties or at a Review Conference) may 'adopt' amendments. In order to 'come into force', however, the amendments need to be accepted by individual States Parties. Except as provided in paragraph 5, amendments will be effective for everybody once they have been accepted by seven-eighths – a very high threshold⁴. The extreme difficulty that this creates in amending is mitigated a little by article 122 which permits fast track amendments to provisions of an 'institutional' nature on the basis of a two-thirds vote at the Assembly of States Parties or a Review Conference, with no need for further acceptance. On the other hand, there was a price for obtaining the *erga omnes* application of amendments under paragraph 4. Paragraph 6 gives to a State that does not accept an amendment to which seven-eighths have agreed the right to withdraw from the Statute, with immediate effect⁵.

¹ Article 122, discussed there, permitted some technical amendments right from the entry into force, and article 36 para. 2 permitted the consideration of proposals to increase the number of judges without regard to the seven year period. Neither was invoked during the initial period and they have, to date, remained unused.

² Clark, *article 123*.

³ See Triffterer, Preliminary Remarks, mn 61 (2nd ed. 2008).

⁴ Article 108 UN Charter requires only a two-thirds majority for an amendment to apply to all, although in that instance, the permanent members of the Security Council must all accept. It was inconceivable that a special provision for the permanent members could be negotiated in the ICC process.

⁵ The UN Charter contains no express power of withdrawal but there was an understanding in Committee that it would not 'be the purpose of the Organization to compel a Member to remain in the Organization if its rights and obligations as such were changed by Charter amendment in which it has not concurred and which it finds

- 5 Paragraph 5 creates a different rule for amendments affecting the substance of the crimes over which the Court has jurisdiction pursuant to articles 5, 6, 7 and 8 of the Statute. In this instance, if a State Party does not accept the amendment, the Court is not able to exercise its jurisdiction regarding a crime covered by the amendment when committed by that State Party's nationals or on its own territory⁶.

B. Analysis and interpretation of elements

I. Paragraph 1: After seven years any State Party may propose amendments

- 6 There is nothing conceptually difficult about paragraph 1. It prohibits efforts to amend the main parts of the Statute until seven years have elapsed from its coming into force. After that, States Parties (alone)⁷ may propose amendments. The Secretary-General, exercising a typical depositary function⁸, will notify the other States Parties.

II. Paragraph 2: Consideration by Assembly of States Parties or Review Conference

- 7 Amendments are to be taken up by the next meeting of the Assembly of States Parties, but no sooner than three months from the date of notification, thus allowing a reasonable time for States Parties to develop their positions. The Assembly has broad authority then to consider whether to accept or reject the amendment itself, or 'if the issue so warrants', refer it to a Review Conference. The Assembly is the ultimate arbiter of the agenda for a review, and

itself unable to accept, or if an amendment duly accepted by the necessary majority in the Assembly or in a general conference fails to secure the ratification necessary to bring such amendment into effect'. See The United Nations Conference on International Organization (Selected Documents) (1946) 507. The Charter statement thus provides a precedent for the present provision. See also on withdrawal article 56 para. 1 VCLT (withdrawal from treaty which has no withdrawal provision is not possible unless it is 'established that the parties intended to admit the possibility').

⁶ The question whether paragraph 3 alone (adoption by Assembly or Review Conference), or paragraph 3 combined with paragraph 4 or paragraph 5 applies to the 'provision' on aggression contemplated by article 5 (2) of the Rome Statute, became highly controversial. See especially Report of the Informal Inter-Sessional Meeting of the Special Working Group on the Crime of Aggression of the Assembly of States Parties to the Rome Statute of the International Criminal Court, 13–15 June 2005, Doc. ICC-ASP/4/32 at 357 (2005) and Report of the Special Working Group, Doc. ICC-ASP/6/20/Add. 1, Annex II) (2008); R. S. Clark (2009) 41 *Case Western Reserve JIL* 2–3 [413]. The difference in effect is dramatic: if only paragraph 3 applies, no further action by way of ratification is necessary; if paragraph 4 applies, nobody is bound by the aggression provision until the seven-eighths is reached; once it is, though, everyone is bound (subject to a right for dissenters to withdraw entirely from the Statute); if paragraph 5 applies, when the first acceptance of the provision is received, and a year passes, the provision applies to that State. It applies, similarly, for each subsequent acceptor. But it never applies to the nationals or territory of States which do not accept it. Is the 'provision' an 'amendment'? Is it an 'amendment to articles 5, 6, 7, and 8 of [the] Statute'? Arguably it is a completion of them rather than an 'amendment'. What do the words 'adopted in accordance with articles 121 and 123' mean in article 5 para. 2? There is nothing definitive in the preparatory work and the combined language of the two articles is unclear. The solution adopted in Kampala does not fit precisely into any of the three possibilities. See discussion in article 5 and Barriga, in Barriga and Kress (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3; Kress, and von Holtzendorff (2010) 8 *JICJ* 5 [1179]; Barriga and Grover (2010) 105 *AJIL* 3 [517]; Barriga, 'Exercise of Jurisdiction and Entry into Force [of Amendments relating to the crime of aggression]', Brussels Colloquium, 'From Rome to Kampala' (2012) <http://www.regierung.li/uploads/media/2012-6-5_Stefan_Barriga_-_CoA_Exercise_of_Jurisdiction_and{EIF_-_Brussels_Colloquium_-_paginated_02.pdf> accessed 9 September 2014.

⁷ Should others, such as the Prosecutor, the Registrar, a State which is a non-Party, the judges or NGOs, wish to recommend amendments, they may, of course, do so, but in order to set the formal amendment procedure into motion they will need to persuade a State Party to espouse it at least to the extent of having it circulated by the Secretary-General.

⁸ Article 77 para. 1 (e) VCLT describes as one of the functions of a depositary, 'informing the parties and the States entitled to become parties to the treaty of acts, notifications and communications relating to the treaty'.

it exercised its gatekeeper role when it declined to forward several proposed amendments to the 2010 Review Conference.

The competence of the Assembly to itself examine and act upon proposed amendments is 8 entirely coextensive with that of a Review Conference. It is within the unfettered discretion of the Assembly how to proceed. Probably not much can be read into the words ‘if the issue so warrants’. There is no suggestion in the language or structure of articles 121 and 123 that any particular types of amendment are more appropriate than others for examination by a Review Conference rather than by the Assembly. Perhaps, in a very general way, the ‘most important’ ones should go before a Review Conference, if only because they will probably have more careful consideration there. According to article 123, the first Review Conference ‘may include, but is not limited to, the list of crimes contained in article 5’, which perhaps suggests that a Review Conference is especially appropriate for matters of substance. The agenda of the Assembly will contain many mundane matters along with potential possibilities of amendment and the time may just not be available to give careful consideration to proposed amendments, whereas a Review Conference has but one object in life.

III. Paragraph 3: Adoption requires two-thirds majority at Assembly or Review Conference

The Assembly of States Parties is exhorted under the Statute to make ‘every effort’ to ‘each 9 decisions by consensus’⁹ in all its endeavours and only after those efforts fail to proceed to a vote. The requirement here in article 121 of a ‘two-thirds majority of States Parties’ in order to adopt an amendment is more stringent than the general rule for the Assembly. The general rule is that decisions on matters of substance made by the Assembly must be approved by a two-thirds majority of those present and voting, provided that an absolute majority of States Parties constitutes the quorum for voting¹⁰. The two-thirds majority required here in paragraph 3 (which of course applies both to amendments made by a Review Conference and those done by the Assembly itself) must mean that at least two-thirds of the Parties at the particular time need to be present and vote affirmatively¹¹. One-third plus one of the States Parties can effectively block adoption of an amendment by some combination of voting no, by abstaining, by not participating in the vote, or even by failing to provide a quorum. At the Kampala Review Conference, all matters requiring decisions were dealt with by consensus, including the contentious provisions on the crime of aggression.

IV. Paragraph 4: Entry into force

After an amendment has been adopted by the Assembly or by a Review Conference, it 10 then awaits ‘ratification or acceptance’ by the States Parties¹². Except for the amendments

⁹ Article 112 para. 7.

¹⁰ Article 112 para. 7 (a) which, according to the chapeau of paragraph 7 applies ‘except as otherwise provided in the Statute’. Article 121 para. 3 provides otherwise. Article 112 para. 7 (a) is supplemented by rule 66 of the Rules of Procedure of the Assembly of States Parties. It provides that, for the purposes of the Rules, the phrase ‘States Parties present and voting’ means States Parties present and casting an affirmative or negative vote. States Parties which abstain shall be considered as not voting.

¹¹ See also rule 76 of the Rules of Procedure of the Assembly of States Parties, headed ‘Amendments to the Statute’. It provides that ‘Amendments to the Statute, proposed pursuant to article 121, paragraph 1, and article 122, paragraph 1 of the Statute, on which a consensus cannot be reached shall be adopted by the Assembly or by a Review Conference, by a two-thirds majority of States Parties’.

¹² In typical modern treaty practice, multilateral treaties are first signed and then the definitive act of becoming party to them is called ‘ratification’. Those States that do not sign (usually because a deadline has passed) may ‘accede’. Some States prefer the terms ‘acceptance’ and ‘approval’ to one or other of ‘ratification’ or ‘accession’. To accommodate such sentiments, these words all appear, for example, in article 125 which is entitled ‘Signature, ratification, acceptance, approval or accession’. In the case of amendments pursuant to article 121, there is no expectation of signature and a sparse reference to ‘ratification’ and ‘acceptance’ suffices to get across the point,

dealing with the substantive crimes within the jurisdiction of the Court (to which paragraph 5 applies), and the relatively minor institutional provisions (to which article 122 applies), paragraph 4 is the applicable rule on entry into force. As has been noted in the Introduction to the article¹³, those amendments to which paragraph 4 applies enter into force for all State Parties once seven-eighths of them accept.

It was understood throughout the negotiations that some special majority would be required for amendments to be effective for those who failed to accept them, but turning this principle into a particular number was a daunting task. The final report of the Coordinator on the Final Clauses¹⁴ had five-sixths and seven-eighths bracketed as options, both of which had supporters. Indeed, many thought that even five-sixths was requiring too much. The Bureau of the Committee of the Whole evidently concluded that the greater number had more support, particularly that of one or more of the major players.

V. Paragraph 5: Amendments to articles setting out the crimes within the jurisdiction of the Court

- 11 In the version of this article that was available for signature in Rome, paragraph 5 referred only to amendments to 'article 5 of this Statute'. This led some to think that the Bureau of the Committee of the Whole, which established the final form of the paragraph, had intended to draw a distinction between amendments to article 5 of the Statute, which would only become applicable to States which accepted them, and amendments to articles 6, 7 and 8 which would become applicable to all pursuant to paragraph 4. The effect of this would be that the addition of a new crime to the categories of crimes within the jurisdiction of the Court (for example by adding terrorism or drug offences) would apply only to those who agreed. On the other hand, changes to the definitions of the crimes already within the Statute as adopted, namely genocide, crimes against humanity and war crimes, could be made applicable *erga omnes* once the seven-eighths standard was met. This was a conceivable way to break the impasse that had remained on this paragraph after the final efforts of the Coordinator to resolve it. At the time of the final report of the Coordinator of the Final Clauses to the Committee of the Whole, article 5 still contained not only what is now article 5, but also what is now articles 6, 7 and 8. As reported to the Committee of the Whole, the Coordinator's recommendation read:

'[5. Any amendment to article 5 of the Statute shall enter into force for those States Parties which have accepted the amendment one year after the deposit of their instruments of ratification or acceptance [, unless the Assembly or the Conference has decided that the amendment shall come into force for all States Parties once it has been accepted by [5/6] [7/8] of them]]'¹⁵.

- 12 The careful reader will notice the brackets within the brackets indicating two levels of the controversial! In the event, the Bureau of the Committee of the Whole insisted that it had not intended to execute a compromise based on a different rule for article 5 than for articles 6, 7 and 8. Apparently (although I can find this nowhere publicly articulated) its intent was merely to drop the second set of bracketed words which would allow the Assembly or the Review Committee to make the amendment applicable to all¹⁶, and of course to remove the brackets around the whole paragraph. In a letter dated 3 September 1998 to Mr. Hans Corell, Under-Secretary-General and The Legal Counsel, The Chair of the Committee of the Whole stated that:

which is one of substance not terminology: A State must lodge an official document with the depositary indicating, whatever verb is used, its consent to be bound by the Statute or its amendments as the case may be.

¹³ See text accompanying, note 4.

¹⁴ UN Doc. A/CONF.183/C.1/L.61 of 11 July 1998.

¹⁵ *Ibid.*

¹⁶ Dropping the last part of the draft was important to at least one of the Permanent Members of the Security Council.

‘As you know, during the elaboration of the Statute, article 5 contained both the list of crimes within the jurisdiction of the Court, as well as their definitions. Article 5 remained undivided until very late in the Diplomatic Conference. References to article 5 elsewhere in the Statute, therefore, necessarily referred to the entire article, that is, the listing of crimes and their definitions. That is the case for article 121 para. 5.

When the Bureau of the Committee of the Whole of the Conference assigned new numbers to the definitions of the crimes, members of my staff made the consequent change to article 121 para. 5, so that it referred to articles 5–8. However, that change was inadvertently not included in the July 17th version of the Statute. The oversight was not noticed by Members of the Bureau or my staff until after the Rome Conference.

I have contacted the members of the Bureau of the Committee of the Whole of the Conference who confirm that a technical error as described above was made. It was not the intent of the Bureau in Rome to make a substantive change to article 121 para. 5 by having it refer only to the new article 5. We would be grateful if you would ensure that the United Nations, as depositary, takes the necessary steps to correct this inadvertent technical error¹⁷.

No objections having been received, the ‘technical error’ was duly corrected¹⁸. The differences have particular significance for the addition of new crimes to the Court’s jurisdiction. If article 5 alone were the subject of paragraph 5, then new **categories** of crimes (such as terrorism or drug offences) that were added by amendment would apply only to those States that accepted them. On the other hand, amendments to articles 6, 7 and 8 could be applied to all once the seven-eighths and time requirements were met. Once the ‘correction’ was made, amendments to those articles (for example by adding to the collection of crimes in non-international conflict contained in article 8)¹⁹ appear to apply only to those who accept them.

VI. Paragraph 6: Right to withdraw if not accepting amendment

A State which does not accept an amendment which commands the acceptances of seven- 13
eighths of the Parties may withdraw at any time up to one year after the entry into force of the amendment. As a practical matter, the words in the paragraph ‘by giving notice no later than one year’ mean that a State could give notice immediately it realizes that the seven-eighths requirement has been met, even if the amendment is not yet in force. That is to say, it may give its notice during the one year hiatus in paragraph 1 between the time of receipt of the last of the seven-eighths and the actual entry into force. It may also exercise its right up to another year after the entry into force. Effectively this gives a non-accepting State a two-year window to withdraw.

A withdrawal made pursuant to this power is said to have ‘immediate effect, notwith- 14
standing paragraph 1 of article 127’. Paragraph 1 of article 127 makes ordinary withdrawals subject to the condition that they have effect one year after the notice (or such later date that is chosen by the withdrawing party)²⁰. A State which withdraws may, however, have

¹⁷ Letter attached to Note from the Secretary-General, C.N.502.1998.TREATIES-3 (Depositary Notification) dated 25 September 1998.

¹⁸ Procès-Verbal of Rectification of the Rome Statute of the International Criminal Court, dated 10 November 1998. The procedure followed for rectifying the text was that set out in article 79 VCLT which permits the correction of technical errors where there is no objection. It is unclear what ultimately happens if anyone objects; the Vienna procedure stops with the depositary informing the relevant States. The United States had some doubts (which it described as ‘concerns and objections’) about the procedure followed, but did not object to this particular change. See Notes to Rome Statute in United Nations data base of Multilateral Treaties of which the Secretary-General Performs Depositary Functions.

¹⁹ Given the special provisions on forbidden weapons in article 8 (2) (b) (xx), it may be possible to argue that the paragraph 4 regime applies to the addition of crime such as using anti-personnel mines or cluster munitions. See Clark (2009) 12 *NCLRev* 3 [366], 385–9 (2009). The amendment made in Kampala to the non-international armed conflict provisions of the Statute refers expressly to article 121 (5). See Amendments to article 8 of the Rome Statute, ICC Doc. RC/Res. 5 (2010). As of late 2014, this amendment and the aggression amendments were the only amendments to the Statute.

²⁰ See also article 56 para. 2 VCLT, note 5, (providing that, in the case of treaties, to which that article applies, a party shall give not less than twelve months’ notice of its intention to denounce or withdraw).

continuing obligations in respect of events occurring prior to its notice, pursuant to article 127 para. 2²¹. These may include financial obligations and obligations to cooperate in proceedings already commenced before withdrawal²².

VII. Paragraph 7: Secretary-General to circulate amendments

- 15 Paragraph 7 specifically instructs the Secretary-General to circulate copies of amendments that have been adopted by the Assembly of States Parties or by a Review Conference. No doubt the Secretary-General will, in accordance with normal depositary practice, inform Parties of receipt of instruments of ratification or acceptance and of the entry into force of amendments²³.

²¹ Article 121 para. 6 states that a withdrawal under it is 'subject to paragraph 2 of article 127'.

²² See further discussion in Clark *article 127*.

²³ See, generally, article 77 VCLT.

Article 122 **Amendments to provisions of an institutional nature**

1. Amendments to provisions of this Statute which are of an exclusively institutional nature, namely, article 35, article 36, paragraphs 8 and 9, article 37, article 38, article 39, paragraphs 1 (first two sentences), 2 and 4, article 42, paragraphs 4 to 9, article 43, paragraphs 2 and 3, and articles 44, 46, 47 and 49, may be proposed at any time, notwithstanding article 121, paragraph 1, by any State Party. The text of any proposed amendment shall be submitted to the Secretary-General of the United Nations or such other person designated by the Assembly of States Parties who shall promptly circulate it to all States Parties and to others participating in the Assembly.
2. Amendments under this article on which consensus cannot be reached shall be adopted by the Assembly of States Parties or by a Review Conference, by a two-thirds majority of States Parties. Such amendments shall enter into force for all States Parties six months after their adoption by the Assembly or, as the case may be, the Conference.

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A. Introduction/General remarks

Article 122 was founded on the principle that there are bound to be unexpected developments that require a more rapid response than the leisurely procedures in articles 121 and 123 will permit. Yet, its provisions had not been invoked by 2014, the end of the first dozen years of the Court’s existence. This was paradoxical, given that the principle that there were items on which more rapid action could be desirable, the associated principle that ultimately the majority (albeit a large one) had to rule, and the practical task of agreeing on which the rapid items were, all demanded hard bargaining in Rome. Actually, the basic principle that some amendments are special and may require a speedy response was accepted not in the negotiations on the final clauses, but in the negotiations on what became article 36 dealing with qualifications, nomination and election of judges. A surge of work would obviously require more judges and the number 18 that was selected for the initial number of judges has no special magic to it. Hence it was agreed fairly early on that there would be a special procedure to be instituted by the Presidency, on behalf of the Court, that would lead to an increase in the number of judges (or a later return to 18) by a vote at the Assembly of States Parties, without the need for further ratification or acceptance. A specific procedure to enable this to occur is contained in article 36 para. 2¹.

Article 122 applied the speedy change principle to a number of other instances. The procedure for increasing (or decreasing) the number of judges will be commenced by a recommendation from the Presidency of the Court. Article 122 does not specify who can recommend appropriate amendments to provisions of an institutional measure, but the basic

¹ See Bohlander, *article 36*.

structure of article 122 follows that of article 121 and it must have been understood that the recommendations would come from States Parties. This is consistent with retaining article 36 para. 2 as a separate provision, aimed at the same type of objective but nonetheless subject to its own regime.

B. Analysis and interpretation of elements

I. Paragraph 1

1. ‘amendments to provisions ... of an exclusively institutional nature’

- 3 There is no room for argument about which features of the Statute can be amended by the streamlined procedure. The list is introduced by the word ‘namely’ that makes it clear that it is an exclusive list, no more, no less. The list is as follows:
- article 35, service of judges – while all must be available to serve full time decisions need to be made at least early in the life of the Court about how many and which ones will in fact serve on that basis,
 - article 36 paras. 8 and 9, factors to be taken into account in selecting judges, and term of office,
 - article 37, judicial vacancies,
 - article 38, the Presidency of the Court,
 - article 39 para. 1 (first two sentences), Court to organize itself into Appeals Division of President and four others, Trial Division of not less than six judges and Pre-Trial Division of not less than six judges,
 - article 39 para. 2, Appeals Chamber to be composed of all judges of Appeals Division, Trial and Pre-Trial Chambers to sit in threes,
 - article 39 para. 4, judges of Appeals Division may only sit in that Division, Trial and Pre-Trial judges may be temporarily assigned from Trial to Pre-Trial or *vice versa*,
 - article 42 paras. 4 to 9 (appointment and some of qualifications of Prosecutor and Deputy Prosecutors), the first three paragraphs, evidently regarded as more fundamental, may not be amended by the expedited procedure,
 - article 43 paras. 2 and 3, Registry to be headed by Registrar; qualifications of Registrar and Deputy Registrar,
 - article 44, Staff of Prosecutor and Registrar,
 - article 46, Removal of judges, Prosecutors and Registrars from office and
 - article 47, Disciplinary measures for judges, Prosecutors and Registrars.

For the most part, these provisions concern aspects of administration of the Court on which there may need to be some flexibility in response to the changing needs of the case-load. The power to amend article 46, which deals with the removal of judges, Prosecutors and Registrars, could be viewed as potentially more fundamental in impact than the other provisions.

2. Text of proposed amendment to be submitted to Secretary-General or other person

- 4 Normally, the depositary might be expected to circulate proposed amendments, and this is the case under article 122, the general amendment provision in the Statute. Here, however, the possibility has been left open that the Assembly of States Parties might, as an alternative to relying on the Secretary-General, streamline the process even further by providing for submission of amendments through some other means. It might, for example, provide for circulation by the Registrar, by any bureaucracy that the Assembly might itself set up eventually to manage its affairs, or by any other existing bureaucracy (say in a Foreign Office or another international organization) that it authorizes to act on its behalf.

II. Paragraph 2

1. Adoption by two-thirds majority of Assembly or Review Conference

As is the case with other amendments, the proposed institutional amendments must still 5
be considered by a meeting of the Assembly or by a Review Conference. While it is not
expressly stated, the Assembly of States Parties must have the discretion to determine
whether it will itself consider a matter or whether it will refer it to a Review Conference.
Given the rationale of speedy response to developing situations, one might expect that, unless
a Review Conference is fortuitously available, the Assembly itself would normally deal with
such amendments. If no consensus is reached, a two-thirds majority of Parties is required (all
parties that is, not just those participating in the vote)².

Once the amendment is adopted, there is no need for further reference to Governments or 6
for ratification or accession. It comes into force for all, six months after adoption by the
Assembly or a Review Conference, as the case may be.

2. No right to immediate withdrawal

In the case of amendments to which article 121 paras. 4 and 6 apply, a State Party which is 7
not among the seven-eighths majority accepting the amendment has an immediate right to
withdraw from the Statute³. No such immediate right of withdrawal is contained in article
122. A minority State that objects fundamentally to an amendment made by the article 122
procedure is left to avail itself of the general power to withdraw subject to at least a year's
notice under article 127 of the Statute⁴.

² See also discussion of voting, Clark, *article 121*, para. 3.

³ See Clark, *article 121*, para. 6.

⁴ *Infra*.

Article 123

Review of the Statute

1. Seven years after the entry into force of this Statute the Secretary-General of the United Nations shall convene a Review Conference to consider any amendments to this Statute. Such review may include, but is not limited to, the list of crimes contained in article 5. The Conference shall be open to those participating in the Assembly of States Parties and on the same conditions.

2. At any time thereafter, at the request of a State Party and for the purposes set out in paragraph 1, the Secretary-General of the United Nations shall, upon approval by a majority of States Parties, convene a Review Conference.

3. The provisions of article 121, paragraphs 3 to 7, shall apply to the adoption and entry into force of any amendment to the Statute considered at a Review Conference.

Literature: Clark, R. S., 'Building on Article 8 (2) (b) (xx) of the Rome Statute of the International Criminal Court: Weapons and Methods of Warfare', (2009) 12 *NCLRev* 3 366; *id.*, 'Amendments to the Rome Statute of the International Criminal Court Considered at the First Review Conference on the Court, Kampala, 31 May-11 June 2010', (2010) 2 *GoJIL* 2 689; Trahan, J. 'Potential Future Rome Statute Amendments' (2012) 18 *NewEngJlCompL* 1 331.

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A. Introduction/General remarks

- 1 This article was insisted upon by a number of States who believed it important to have a review procedure over and above the Assembly of States Parties. Such a procedure would ensure that the 'big picture' did not get overlooked among the minutiae of management that will inevitably take up most of the meeting time of the routine annual gatherings of the Assembly. For many of the supporters of a Review structure, having a set time after which the first Review meeting must take place was a crucial feature of such a provision. Such a meeting, they believed, would ensure that adequate attention would be given to re-examining the crimes within the jurisdiction of the Court, with the hope that the jurisdiction would be expanded to include, for example, terrorist and drug crimes¹ and perhaps additional examples of war crimes and crimes against humanity. When it became clear late in the Diplomatic Conference that a consensus would not be reached on a definition of the crime of aggression, setting a firm date for a Review Conference was of some consolation to those disappointed at the failure of this aspect of the negotiations.

¹ On the insistence, in particular, of Trinidad and Tobago and of Turkey, who had been among those arguing strongly for the inclusion of 'treaty crimes' in the Statute, Resolution E of the Final Act of the Rome Conference contains the recommendation that 'a [not necessarily the first] Review Conference ... consider the crimes of terrorism and drug crimes with a view to arriving at an acceptable definition and their inclusion in the list of crimes within the jurisdiction of the Court'. Final Act, Annex I.

The first Review Conference took place in Kampala, 2010. Article 124 of the Statute² supplied the only ‘mandatory’ part of the agenda, requiring, in its own words, a ‘review’ of that ‘Transitional Provision’. Having reviewed it, the Conference decided to leave it alone, but to ‘further review’ it during the fourteenth session of the Assembly of States Parties, which will take place in 2015³. Two amendments to the Statute were, however, adopted in Kampala, one dealing with the crime of aggression and one with forbidden weapons.

The package of amendments on aggression represented the culmination of the effort to complete the Rome negotiations so that the Court can ‘exercise’ its jurisdiction over the crime, pursuant to article 5 of the Statute⁴.

The ‘weapons’ amendment⁵ took the language currently in article 8, paragraph (2) (b), of the Statute concerning forbidden weapons in international armed conflict, and applied the same prohibitions in paragraph 2 (e) to non-international armed conflict. Several other proposals for expanding the list of proscribed weapons (including nuclear weapons), both in international and in non-international armed conflict, were before the Assembly of States Parties prior to Kampala, as were proposals to include some terrorism and drug crimes within the jurisdiction⁶. There was no consensus to send them forward and they are being considered at a leisurely pace by a Working Group of the Assembly.

Underscoring the open-ended nature of what might be considered as ‘review’, the 2010 Review Conference also devoted a significant amount of time to ‘stocktaking’. This entailed a rich discussion of the topics of complementarity, cooperation, the impact of the Rome Statute system on victims and affected communities, and peace and justice. There are some very useful papers on these topics on the Court’s website.

B. Analysis and interpretation of elements

I. Paragraph 1

1. First Review Conference seven years after entry into force

The Secretary-General of the United Nations was required to ‘convene’ the first Review Conference seven years after the entry into force of the Statute, that is, seven years after 1 July 2002. ‘Convene’ is a little ambiguous; it could refer either to the issue of a notice for a meeting a little in the future, or a firm scheduling of a date within the time-frame. Taking that into account, and bearing in mind the schedule for other international conferences, a date was found in May-June 2010 in Kampala which was regarded as generally acceptable. Some States would have liked the seven-year timing to be much shorter, some longer. Seven years at least ensured that there was some significant practice under the Statute to suggest lines for further development.

2. Review ‘may include, but is not limited to, the list of crimes contained in article 5’

As has been noted in the discussion of article 121 on Amendments⁷, the powers of a Review Conference in respect of amendments cover exactly the same field as the powers of the Assembly of States Parties. Paragraph 1 of article 123 states that the first review ‘may

² Zimmerman, *article 124*.

³ ICC Doc. RC/Res. 4 (2010).

⁴ The amendments were contained in ICC Doc. RC/Res. 6 (2010). See discussion by Zimmermann in article 5 and Clark, *article 121*.

⁵ This amendment was contained in ICC Doc. RC/Res. 5 (2010). See generally, Clark (2010) 2 *GoJIL* 2 [689], 707-11.

⁶ See Clark, note 5 at 709-11; Trahan (2012) 18 *NewEngJCompL* 1 [331]; Clark (2009) 12 *NCLRev* 3 [366].

⁷ Clark, *article 121*, mn 8.

include’, but not be limited to, the ‘list of crimes’ in article 5. It could, of course, extend to any other specific article of the Statute as well, or, as happened in Kampala, some general discussion of issues such as complementarity and cooperation with no specific proposals for amendment on the table. The words ‘may include’ gave the potential agenda for the first Review Conference considerable flexibility. The specific reference to the list of crimes underscored the expectation that the question of expanding the subject-matter jurisdiction of the Court was likely to be of first importance. This was borne out in the event, since the aggression amendments absorbed much of the time and energy of the Conference.

- 4 It will be observed that the reference is to article 5 only, and not to articles 6, 7 and 8 as well. As originally considered in the consultations in Rome carried on by the Coordinator, the reference was to the ‘catalogue of crimes contained in article 5’. ‘Catalogue’ (which perhaps was more appropriate for the detailed items contained in the definitions of war crimes and crimes against humanity) was replaced in the consultations by ‘list’. It might, perhaps, have been expected that when the Bureau of the Committee of the Whole broke out the original version of article 5 into articles 5 through 8, they would have intended to change the wording here in article 123 so that it referred to articles 5 through 8. Apparently they did not, since they did not seek to rectify any inadvertent error here⁸. It may well be that they thought the word ‘list’ went with article 5 better than with all four subject-matter articles. Of course, the power of the Review Conference to discuss ‘any amendment’ means that the singling out of any particular item is only of historical interest to indicate what, in the drafting process, people thought important.

3. ‘open to those participating in the Assembly of States Parties’

- 5 ‘Membership’ of a Review Conference is the same as that for the Assembly of States Parties. Pursuant to article 112⁹, the Assembly of States Parties consists of representatives of each State Party, along with observers from States which have signed the Statute or the Final Act. Observers have a broad right to participate in the work of the Assembly, but only States Parties are entitled to vote. If experience in other international forums is any indication, non-parties, especially from the ranks of the major powers, who take the trouble to participate as observers can have a substantial impact on developments. This is particularly true if they act along with a strong regional group. Rules 92 to 94 expand on the Statute by providing for the participation in the Assembly of various intergovernmental and non-governmental organizations and even States that do not have observer status, upon invitation. As a practical matter, then, all recognized States¹⁰ were invited to participate in the Kampala Review Conference in 2010. Non-parties such as the United States, the Russian Federation, China and Iran, took an active part in the proceedings.

II. Paragraph 2: Subsequent request for Review Conference

- 6 After the first Review Conference has taken place, any State Party may request the calling of a subsequent Conference and this will take place if a majority of (all) the Parties agree. The procedural steps to be taken following the State request are not spelt out in article 123 para. 2. The most obvious course is for the Secretary-General to circulate the request and give a time by which a response is expected. But there is nothing to prevent the Assembly of States Parties considering the request as an agenda item at its next scheduled meeting. Probably the procedure should be addressed ultimately in an addition to the Rules of the Assembly of States Parties. Some States have suggested that Conferences should take place on a regular seven-year cycle but no decision has yet been made either about the timing of the next Review or about any cycle.

⁸ For the correction made to article 121, see *ibid.*, mn 12.

⁹ See Rama Rao, *article 112*.

¹⁰ Clark, *article 125*, note 1.

III. Paragraph 3: Entry into force of amendments

Exactly the same rules apply for the entry into force of amendments done through a 7 Review Conference as is the case with those done through the Assembly of States Parties.

It should be noted, however, that the amendments adopted in 2010 to enable the Court to exercise its jurisdiction over the crime of aggression added their own set of hurdles to entry into force. First, 30 ratifications had to be obtained, and then a further decision would need 'to be taken after 1 January 2017 by the same majority of States Parties [an absolute majority of two-thirds] as is required for the adoption of an amendment to the Statute'¹¹.

¹¹ ICC Doc. RC/Res. 6, articles 15 *bis* (3) and 15 *ter* (3) (2010).

Article 124 Transitional Provision

Notwithstanding article 12, paragraphs 1 and 2, a State, on becoming a party to this Statute, may declare that, for a period of seven years after the entry into force of this Statute for the State concerned, it does not accept the jurisdiction of the Court with respect to the category of crimes referred to in article 8 when a crime is alleged to have been committed by its nationals or on its territory. A declaration under this article may be withdrawn at any time. The provisions of this article shall be reviewed at the Review Conference convened in accordance with article 123, paragraph 1.

Literature: Kaul, H. P., 'Der Internationale Strafgerichtshof: Das Ringen um seine Zuständigkeit und Reichweite', (1998) *Humanitäres Völkerrecht-Informationsschriften* 138 *et seq.* (in particular 143); Tabak, S., 'Article 124, war crimes, and the development of the Rome Statute' (2009), 40 *GeorgetownJIL* 1069; Scheers, I., 'From Rome to Kampala: An Analysis of Article 124 of the Statute of the International Criminal Court' (2010) *ICLRev* Volume 10, 3 301–323; Zimmermann, A., 'The Creation of a Permanent International Criminal Court' (1998), *MPYbUNL* 169 (in particular 236).

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I. Drafting history

- 1 The transitional provision contained in article 124 of the Statute was not contained in the Draft Statute elaborated by the ILC. It was neither discussed during the work of the Preparatory Commission. Accordingly it was not contained in the Draft Statute submitted by the Preparatory Commission to the Rome Conference, the so-called Zutphen Draft. To the contrary, the idea of such a transitional provision only appeared during the very last days of the Conference in order to secure the acceptance of the Statute by certain States, but in particular that of France.
- 2 The content of article 124 is closely linked to the different concepts of exercise of jurisdiction by the Court. In particular France, but also several other permanent members of the Security Council, had during the negotiation process taken the view that in regard of both, war crimes and crimes against humanity, the consent of the State of nationality of the suspect should be required in order for the Court to exercise jurisdiction, unless a situation had been referred to the Court by the Security Council. Only three days before the end of the Conference, France submitted an informal proposal which provided that a State could, either by a general declaration or *ad hoc*, give its consent to the exercise of jurisdiction by the Court in regard of these two groups of crimes. Otherwise the Court should not be able to exercise its jurisdiction.

This proposal then found its place in a slightly amended version submitted by the United Kingdom to a group of interested countries. This British proposal provided first – quite similar to a proposal later formally tabled by the United States¹ – that the ICC should not exercise its jurisdiction over a crime, if the act in question is an act of State of a third State,

¹ UN Doc. A/CONF.183/C.1/L.90.

not party to the Statute and is acknowledged as such by that State. If accepted, it would have made nationals of third States *de facto* immune from any prosecution by the ICC even for acts of genocide, provided that the third State had taken the political risk of declaring such act to constitute an act of State.

Besides, that very same British proposal reiterated the idea of an opting-out procedure in regard of both, war crimes and crimes against humanity. For that purpose, it proposed an optional protocol, reluctant States could ratify, in order for their nationals not being subject to the jurisdiction of the Court in regard of war crimes and crimes against humanity. This optional protocol, as proposed, was supposed to remain in force for a period of ten years and could have been prolonged by a simple majority vote within the Assembly of States Parties. This proposal gathered the support of all five permanent members of the Security Council.

As a reaction, and in order to avoid that the proposal just outlined would find its way into the Statute, it was Germany which, two days before the end of the Conference, submitted a counter-proposal to the member States of the European Union, which – still in the form of an Additional Protocol – suggested that a State Party might, by declaration lodged with the depositary, opt out from the jurisdiction of the ICC in regard of war crimes only. The German proposal also specified that any such opting-out could be limited to one or more of the war crimes listed in the Statute. Finally, the declaration could have only been made for a non-renewable period of three years.

It was against this background that the Bureau of the Conference came, after extensive consultations with interested parties, up with the formula, which is now to be found in article 124 of the Statute.

II. Relationship with article 12

Article 12 para. 1 of the Statute provides for a system of automatic jurisdiction: every contracting party to the Statute by its acceptance of the Statute *ipso facto* accepts the jurisdiction of the ICC with regard to the four core crimes: genocide, crimes against humanity, war crimes and the crime of aggression – though with regard to the later subject to the conditions set out in article 5 para. 2. Under article 124, a State may however opt-out from this automatic jurisdiction for a limited period of seven years.

The legal effects of such an opting-out are not completely clear. This is due to the fact that article 124 does not in itself – unlike the prior proposals leading to the adoption of article 124² – refer to the legal consequences which derive from such an opting-out. In that regard two interpretations of article 124 are possible:

- Under either what may be referred to as a ‘negative understanding’ of article 124 (in line with the same formula used with regard to article 121 para. 5³) the opting-out may be perceived as *completely* barring the exercise of jurisdiction by the Court in regard of alleged war crimes committed either by nationals or on the territory of the State which has made the declaration.
- Alternatively, a ‘positive understanding’ of article 124 (again in line with the parallel formula as used during the drafting of the Kampala compromise on the crime of aggression⁴) would signify that the opting-out would have the sole effect that the State which has made the declaration has simply not accepted the jurisdiction of the Court for its nationals under article 12 para. 2 of the Statute. Notwithstanding, the exercise of jurisdiction by the Court could then still be based on a possible alternative jurisdictional

² See mn 2–3.

³ For a further analysis on the so-called ‘positive’ and ‘negative understanding’ in the context of article 121 para. 5 see Krefß and von Holtzendorff, (2010) 8 *JICJ* 1179; Reisinger Coracini, (2008) 21 *LeidenJIL* 696; Trahan, (2011) *ICLRev* 11 49–104; Van Schaack, (2011) *ColTransnatL* 507 (particularly 529–530); see also see: RC/WGCA/1, p. 7, Annex III, understanding no. 6, Alternative 1.

⁴ *Ibid.*

link⁵, namely that the State on the territory of which the alleged crimes have been committed is a contracting party or has otherwise consented to the exercise of jurisdiction by the Court⁶.

- 6 The drafting history clearly militates in favour of the above-mentioned ‘negative understanding’ since it was the clear intention of the States most involved in the drafting of the provision to grant the declaring State an unequivocal opportunity to make sure that its nationals can, for the period provided for in article 124, not be prosecuted by the ICC for having committed war crimes. On the other hand, article 124 does *not* expressly stipulate that the Court shall under no circumstances exercise its jurisdiction when such a declaration has been made. Instead it simply states that the State concerned is supposed not to have accepted the jurisdiction of the Court. *E contrario*, one might therefore argue that the exercise of jurisdiction could then still be based on the consent by another State provided for in article 12 of the Statute.
- 7 On the whole, the formula ‘does not accept the jurisdiction of the Court’ as contained in article 124 seems to however confirm that an overall exclusion of the exercise of jurisdiction by the ICC was meant when the provision was adopted. Thus, it is submitted that any such declaration does, within the limits of its content, categorically bar the exercise of jurisdiction by the Court with regard to war crimes.

III. Relationship to referrals by the Security Council

- 8 Declarations made under article 124 are only relevant when the Court is exercising its jurisdiction by virtue of a State referral under article 14 or when the Prosecutor has initiated investigations *proprio motu*. Where a situation is referred to the Court by the Security Council, any such declarations are irrelevant since article 12 para. 2 of the Statute expressly stipulates that the acceptance of the jurisdiction of the ICC by either the home State of the suspect or the State on the territory of which the crime has been committed is superfluous. In none of the two Security Council referrals so far the issue of the interrelationship between article 124 and article 13 lit. b) has come up since neither Sudan nor Libya have been contracting parties of the Rome Statute at all.

IV. Effects of a declaration made under article 124 *ratione temporis*

- 9 The declaration to be made under article 124 may be made for a period of up to seven years. It may, however, be also made for a shorter period of time or may, under article 124 2nd sentence, even before the lapse of such period, be unilaterally terminated.

This seven year (or where applicable shorter) period of time begins to run when the Statute enters into force for that respective State, *i. e.* at the time the Statute becomes binding for it by virtue of ratification, acceptance or approval. Thus the earliest time is the moment at which the Statute entered into force in accordance with article 126 of the Statute, *i. e.* 1 July 2002.

In case of a State becoming a party by virtue of State succession, it seems to be now accepted that such succession becomes effective (either automatically or when a declaration of succession is made) with effect from the time when the respective successor State came into existence⁷. Accordingly, if one takes the view that any declaration made under article

⁵ In that regard, it has to be noted that article 12 para. 2 (a) and (b) indeed provide for two alternative possibilities to grant the ICC jurisdiction to deal with a crime; for details see Schabas and Pecorella, *article 12*, mn 14 *et seq.*

⁶ The same would be true *vice versa*, where the territorial State has made a declaration under article 124, but where the State of which the suspect is a national, is a contracting party.

⁷ See in that regard the decision of the ICJ in the *Case Concerning the Application of the Convention on the Prevention and Punishment of the Crime of Genocide* (Bosnia and Herzegovina v. Serbia and Montenegro), Provisional Measures, *ICJ Rep.* 1993, 3, 16, para. 25, where the Court observed ‘that the Secretary-General has

124 is inherited by the respective successor State⁸, the seven-year period also is supposed to have started with the coming into existence of that State.

Once a declaration made under article 124 lapses after seven years (or where applicable beforehand), the Court may then fully exercise its jurisdiction even with regard to war crimes to be eventually committed by nationals of the State that had previously made the declaration or with regard to war crimes to be eventually committed on its territory. Yet, in order to give full effect to article 124 and despite its wording which is not fully clear in that respect, it seems that the Court would still, *i. e.* even after the seven year period has ended, not be able to exercise its jurisdiction with regard to war crimes committed *prior* to this point in time on the territory of the State making the declaration or with regard to such crimes *previously* committed by its nationals.

Given that the French declaration became effective on 1 July 2002 (*i. e.* when the Rome Statute entered into force for France), it would have lost its relevance for those war crimes eventually committed by French nationals or on French soil after 1 July 2009. However, on 13 August 2008, France unilaterally withdrew its declaration regarding article 124, therefore shortening the applicability of the declaration, one year before its expiration⁹. As for Colombia, the seven year period having elapsed as of 1 November 2009, its declaration is no longer in effect either. There are therefore currently no active declarations under article 124.

V. Breadth of declarations to be made under article 124

A declaration under article 124 may either stipulate that crimes committed by its nationals 10
or on its territory should not come within the jurisdiction of the ICC. It seems that this ‘or’ was not meant to be an exclusive ‘or’ since the drafters would have then used an ‘either/or’ formula. Thus a State might also cumulatively exclude *both*, those war crimes committed by its nationals *and* those committed on its territory. This view is by now confirmed by the very wording of both, the French and the Colombian declaration made under article 124¹⁰, which refer to both, crimes allegedly committed by French respectively by Colombian nationals or on French respectively on Colombian soil.

Given the clear wording of article 124 and taking into account the fact that – in clear 11
contrast to article 12 para. 2 (a) – any reference to vessels or aircraft is missing, a State may not, by declaration made under article 124, exclude the jurisdiction of the Court with regard to crimes committed on board a vessel or an aircraft, being registered in the country making the declaration.

Any declaration made under article 124 presupposes that otherwise the Court would have 12
jurisdiction over the relevant crimes by virtue of article 12 para. 2 (a) of the Statute. Thus, article 124 does not come into play where a contracting party has, subject to article 120, validly declared that the Statute would not apply at all to certain parts of its territory¹¹.

Where a war crime has been committed by a person who possesses several nationalities, 13
the making of a declaration by only one of his or her home States does not lead to an exclusion of the jurisdiction of the Court, provided that the other country is a State Party and has not itself made a similar declaration.

treated Bosnia-Herzegovina, not as acceding, but as succeeding to the Genocide Convention, and if this be so the question of the application of articles XI and XIII of the Convention would not arise (...).

⁸ For a thorough discussion of the recent practice in regard of the succession in regard of reservations in the strict sense see Klabbers, in: Klabbers and Lefeber (eds.), *Essays on the Law of Treaties* (1998) 107 *et seq.*

⁹ France, Withdrawal of Declaration, C.N.592.2008.TREATIES-5, Depositary Notification (August 13, 2008) available at <http://treaties.un.org/doc/Publication/CN/2008/CN.592.2008-Eng.pdf>.

¹⁰ See below mn 20.

¹¹ See *e.g.* the declaration made by Denmark, when ratifying the Statute according to which ‘[u]ntil further notice, the Statute shall not apply to the Faroe Islands and Greenland’.

- 14 As mentioned¹², the German proposal, which together with others has led to the adoption of article 124, had provided *expressis verbis* that the opting-out might be limited to one or more of the specific war crimes now listed in article 8. The current article 124 does not, however, specifically address this question anymore. *E contrario*, one might therefore argue that a State making a declaration may only *in toto* opt out with regard to the complete list of war crimes. This seems to be further confirmed by the fact that article 124 refers to the ‘category of crimes’ mentioned in article 8 of the Statute. Accordingly, and at least at first glance a partial opt-out, *e.g.* only in regard of war crimes committed in internal armed conflicts, seems to be excluded.

On the other hand, one has to take into account the objective of article 124, which is to limit the derogation from the automatic jurisdiction of the ICC as far as possible. Thus, if a given State only has a specific problem with one or more of the war crimes listed in article 8 of the Statute, it seems to be appropriate to also allow for a more limited opting-out. Similarly, it might be also envisaged that a State making a declaration under article 124 limits its applicability to certain parts of its territory.

- 15 In addition there appears to be no reason why a State should not be permitted to withdraw its ‘reservation’ by a corresponding declaration *ad hoc* for a specific case.

VI. Addressee of the declaration

- 16 Notwithstanding the fact that the addressee of the declaration is not expressly mentioned, it seems to be logical that it shall be addressed to the depositary of the Statute, *i.e.* the Secretary-General of the United Nations. This can be derived from the fact that any such declaration has to be submitted at the time of becoming a party to the Statute, the notification of which under article 125 para. 2 is also to be sent to the depositary. As a matter of fact, both States, which so far had made declarations under article 124, *i.e.* France and Colombia, had addressed their respective declaration to the depositary.

VII. Review of article 124

- 17 Article 124 is the only provision in the Rome Statute, which, given its last phrase, was subject to a legally mandatory review that had to be carried out at the first Review Conference¹³. At the same time this last sentence of article 124 underlines that the regular review procedure, as provided for in article 123, also applies with regard to article 124.
- 18 Accordingly, during and prior to the first Review Conference held in 2010, discussions took place concerning the future of article 124. Three options were presented: deleting, retaining or redrafting article 124. There were also arguments in favour of introducing a ‘sunset’ clause, which would lead to article 124 expiring, according to a set time period¹⁴. A consensus was not reached regarding the deletion of the article; therefore it was retained in its current form¹⁵. It was also decided that there would be a further review of article 124 during the fourteenth session of the Assembly of States Parties to the Rome Statute¹⁶.
- 19 Yet, given the strict requirements for such a review, it seems to be quite unlikely that in the future substantive changes with a view of either enlarging the scope of application of article

¹² See mn 3.

¹³ See Review Conference: Scenarios and Options – Progress Report by the focal point, Mr. Rolf Einar Fife, ICC-ASP/6/INF.3, para. 22.

¹⁴ See Resolution ICC-ASP/8/Res. 6 (26 November 2009), Annex II, paras. 5–14.

¹⁵ Report of the working group on other amendments, RC/6/Rev.1 (10 June 2010).

¹⁶ Article 124 of the Rome Statute, RC/Res.4 (10 June 2010).

124 or to completely eliminate it, will take place¹⁷. Notwithstanding article 124 will still (hopefully and most probably) over time lose more and more of its importance given the very scarce practice of States making use of article 124.

VIII. Practice

As a matter of fact, so far, only Colombia and France had in the past made declarations under article 124 which, as mentioned above¹⁸, have however lapsed in the meantime. Said declarations read:

‘(...) the French Republic [the Government of Colombia] declares that it does not accept the jurisdiction of the Court with respect to the category of crimes referred to in article 8 when a crime is alleged to have been committed by its nationals [Colombian nationals] or on its [Colombian] territory’¹⁹.

There are no records of any incidents over the use of article 124 nor has article 124 given rise to any practice by the Court so far.

Finally it is worth noting, that Burundi after deliberating to invoke a declaration under article 124 ratified the Rome Statute in September 2004 without doing so²⁰.

¹⁷ Zimmermann, (1998) *MPYbUNL* 236. With regard to this question see also Triffterer (2nd edition, 2008), *Preliminary Remarks*, mn 61. See also the report on the discussion that took place during the Hemispheric Seminar ‘Toward the First Review Conference of the Rome Statute of the International Criminal Court’ Mexico City, 20–21 August 2007, ICC-ASP/INF.4, para. 53.

¹⁸ See mn 9.

¹⁹ It seems that the Colombian declaration had the objective of granting the peace process negotiations in said country at the time a fair opportunity to prosper, see Hemispheric Seminar ‘Toward the First Review Conference of the Rome Statute of the International Criminal Court’ Mexico City, 20–21 August 2007, ICC-ASP/INF.4, para. 51.

²⁰ See Tabak, (2009) 40 *GeorgetownJIL* 1069 (particularly 1094–1095) with further references.

Article 125

Signature, ratification, acceptance, approval or accession

1. This Statute shall be open for signature by all States in Rome, at the headquarters of the Food and Agriculture Organization of the United Nations, on 17 July 1998. Thereafter, it shall remain open for signature in Rome at the Ministry of Foreign Affairs in Italy until 17 October 1998. After that date, the Statute shall remain open for signature in New York, at United Nations Headquarters, until 31 December 2000.

2. This Statute is subject to ratification, acceptance or approval by signatory States. Instruments of ratification, acceptance or approval shall be deposited with the Secretary-General of the United Nations.

3. This Statute shall be open to accession by all States. Instruments of accession shall be deposited with the Secretary-General of the United Nations.

- 1 This is a standard-form final clause that requires little discussion. In accordance with normal modern practice for multilateral treaties, the Statute was open for signature by all States. Initially, it was available for signature in Rome and then at United Nations Headquarters, where it remained open for signature until 31 December 2000.

The reference to 'all States' has raised some issues. In addition to the 193 Members of the United Nations and the Holy See and Palestine, the two entities that have Observer Status with the organization, the other entities generally regarded by the international community as States are both small island countries in the Pacific: Cook Islands and Niue, formerly non-self-governing territories of New Zealand. The latter are parties to a number of multilateral treaties and members of Specialized Agencies. Cook Islands acceded to the Rome Statute in 2008. The total potential number of parties to the Rome Statute thus currently stands at 197, given the present political status of the World. Kosovo is a further potential member once its 'statehood' position becomes less controversial. In April 2012, the Prosecutor declined to proceed further on the basis of a declaration lodged by the Government of Palestine in January 2009 under article 12 (3), accepting the exercise of jurisdiction for 'acts committed on the territory of Palestine since 1 July 2002'. His reasoning was that in interpreting and applying article 12 it was for the relevant bodies at the United Nations, or for the Assembly of States Parties to make the call whether Palestine is a State for the purposes of that article¹. The General Assembly's subsequent action later in 2012 in according non-Member State observer status to Palestine would appear to provide a definitive affirmative answer to whether Palestine could accede to the Statute or make an effective article 12 (3) declaration.²

For those 139 States signing the Statute by the end of 2000, the definitive act to become a party is lodging an instrument of ratification. States that did not find it possible to sign within the relevant time period may always 'accede' to the Statute. Timor-Leste, for example, which had not achieved its independence at the relevant time, was among those acceding to the Statute. Some States, for domestic or historical reasons, seem to prefer the terms 'acceptance' or 'approval' rather than 'ratify' and some also use one or other of those terms in preference to 'accede'. The important point is that, regardless of the precise operative verb used, a State must clearly express in writing its intention to be bound. In October 2006, Montenegro informed the Secretary-General that it had succeeded to the 2001 ratification by Serbia and Montenegro and it has since been regarded as a party to the Statute.

¹ Office of the Prosecutor, Situation in Palestine, 3 April 2012.

² Cf. Ambos, *EJILTalk* 6 May 2014, <http://www.ejiltalk.org/palestine-un-non-member-observer-status-and-icc-jurisdiction/>.

The depositary functions in respect of the Statute are to be exercised by the Secretary-General of the United Nations, as is the case with many treaties entered into force under United Nations auspices, and a number entered into force during the life of the League of Nations³.

It should be noted that three of the signatories of the Statute, the United States, Israel and Sudan, subsequently informed the Secretary-General that they did not intend to become a party and accordingly did not regard themselves as having any obligations arising from their signatures⁴. The obvious intention of these, unprecedented, notes is to avoid the obligation on a State which has signed a treaty not to defeat the object and purpose of that instrument⁵.

³ See also Clark, *article 128*.

⁴ Notes from United States (6 May 2002), Israel (28 August 2002) and Sudan (26 August 20008) in End Notes to entry for Rome Statute in data base of Multilateral Treaties Deposited with the Secretary-General, <[https://treaties.un.org/pages/ViewDetails.aspx?src=TREATY &mtmsg_no=XVIII-10&chapter=18&lang=en](https://treaties.un.org/pages/ViewDetails.aspx?src=TREATY&mtmsg_no=XVIII-10&chapter=18&lang=en)> accessed 8 September 2014.

⁵ See article 18 VCLT.

Article 126

Entry into force

1. This Statute shall enter into force on the first day of the month after the 60th day following the date of the deposit of the 60th instrument of ratification, acceptance, approval or accession with the Secretary-General of the United Nations.

2. For each State ratifying, accepting, approving or acceding to this Statute after the deposit of the 60th instrument of ratification, acceptance, approval or accession, the Statute shall enter into force on the first day of the month after the 60th day following the deposit by such State of its instrument of ratification, acceptance, approval or accession.

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A. Introduction/General remarks

- 1 For the most part, this is a routine provision. The most controversial issue was the number of parties necessary to bring the Statute into force. Some enthusiasts (especially among the NGOs and among the European States) thought that a small number would be sufficient to get the Court up and running and then it would be possible to build from there. Others cautioned that, for the institution to have legitimacy, it needed a respectable number of parties. This was particularly true in those unusual circumstances where the Court, with the consent of the territorial State, would have jurisdiction over the nationals of States which had not become parties¹. A few States thought that a requirement that there should be parties from each of the customary regions would be a useful underpinning of legitimacy, but this proposal did not find general support. The resource implications of creating what could become a fairly substantial organization also pointed in the direction of spreading the costs as widely as possible. In the debates and consultations at Rome, a large cluster of States indicated that somewhere around 60–65 States (or about a third of the United Nations membership) would be acceptable. Some would have gone down to about 30 and others would have preferred a higher number. The Bureau of the Committee of the Whole settled for 60.

The Statute came into force in accordance with this article on 1 July 2002.

¹ See Schabas, *article 12*. (This cautionary argument had even more force when it seemed possible that there would be jurisdiction on a universal theory, or on the basis of the consent of the 'custodial' State.).

B. Analysis and interpretation of elements

I. Paragraph 1

1. Number of parties required for entry into force

As explained in the Introduction, the Statute required a reasonably high number of 2
ratifications, acceptances or approvals, namely 60, in order to come into force. Many
observers thought it impressive that this ambitious target had been reached within four years
of the Rome Conference.

2. ‘the first day of the month after the 60th day following the date of the deposit of the 60th instrument’

Two months, or sixty days, is a fairly standard time to allow in modern treaty practice 3
between the receipt of the last necessary instrument and the entry into force. It gives time for
the paper work to be completed and arrangements set in train for whatever machinery needs
to be in place to have the treaty regime up and running. The reference to the ‘first day’ was
added in Rome by a delegation that believed this would simplify the accounting steps that
would have to be taken nationally and internationally to apportion dues for the part of the
year that would be involved here in paragraph 1 and again in paragraph 2 for States who join
after the first sixty have brought the Statute into force.

3. ‘with the Secretary-General of the United Nations’

Receiving instruments and notifying other States of their receipt is one of the core 4
functions of a depositary².

II. Paragraph 2

1. Subsequent parties

Obviously there is no expectation that the number of States Parties will be frozen at 60. For 5
subsequent parties there is a similar 60 day hiatus between the deposit of the instrument and
the coming into force (for them) of the Statute. The timing might occasionally prove decisive
of the existence of obligations to cooperate with the Court or of consent to the jurisdiction of
the Court in respect of a State’s nationals or territory.

2. First day of the month

There is a similar first day of the month provision to that in paragraph 1. 6

² On the United Nations as depositary, see, generally, Clark, *article 128*. Article 77 para. 1 (e) VCLT states that one of the functions of a depositary is ‘informing the parties and the States entitled to become parties to the treaty of acts, notifications and communications relating to the treaty’.

Article 127 Withdrawal

1. A State Party may, by written notification addressed to the Secretary-General of the United Nations, withdraw from this Statute. The withdrawal shall take effect one year after the date of receipt of the notification, unless the notification specifies a later date.

2. A State shall not be discharged, by reason of its withdrawal, from the obligations arising from this Statute while it was Party to the Statute, including any financial obligations which may have accrued. Its withdrawal shall not affect any cooperation with the Court in connection with criminal investigations and proceedings in relation to which the withdrawing State had a duty to cooperate and which were commenced prior to the date on which the withdrawal became effective, nor shall it prejudice in any way the continued consideration of any matter which was already under consideration by the Court prior to the date on which the withdrawal became effective.

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A. Introduction/General remarks

- 1 Some general comments about the power to withdraw have already been made in the discussion of article 121 concerning amendments. The reader is referred to that discussion which need not be repeated here. While article 121 deals with the right to withdraw in a relatively narrow set of circumstances, namely where there is an amendment to the Statute to which the State objects, article 127 is entirely open-ended. In this respect, it is similar to withdrawal provisions in the constitutive instruments of many of the Specialized Agencies. There is no articulated limitation on the right of States to withdraw on any grounds, 'good' or 'bad'. In the case of the Specialized Agencies, a custom has perhaps developed that States explain why it is that they are withdrawing, in order to give the entity an opportunity to alter any course of action that the withdrawing State finds unacceptable. Whether States will ultimately avail themselves of the right to withdraw from the Statute and under what circumstances is entirely speculative at this stage. No withdrawals took place during the first twelve years of the Court's functioning. Withdrawal of significant parties is a nightmare that everyone fears, particularly those with memories of the ultimate unravelling of the League of Nations.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Withdrawal by notification to Secretary-General

Again, the Secretary-General exercises a standard depositary function in receiving written 2 notifications of withdrawal.

2. Takes effect one year after notification unless the notification specifies a later date

A State may make a notification at any time, but except in those cases to which article 121 3 applies where immediate withdrawal is possible¹, the withdrawal will not be effective for at least one year. A State which is using a threat to withdraw as a tool to try to shape the direction taken by the Court may perhaps offer a longer period than a year before its withdrawal is effective. The power of the withdrawing State to specify some longer period than a year for its withdrawal appears to be legally unfettered and dependent entirely on the discretion of the State concerned, although one might argue that a major contributor which uses a lengthy period as a threat hanging over the Court is behaving unreasonably.

While the article is silent on the matter, it must surely be the case that a State could 4 withdraw its notification at any time before the withdrawal becomes effective.

II. Paragraph 2

1. Not discharged from obligations, including financial obligations, which may have accrued

The first sentence of paragraph 2 states a general proposition about accrued obligations 5 which is then spelt out in more detail in the sentences that follow.

Specifically, the first sentence also refers to financial obligations. The budget of the Court will have been set on the assumption of the continued membership of the State in question and, especially if the State is a major contributor, significant adjustments to the budget may be necessary following withdrawal. Prudent management requires adequate time to deal with such adjustments. A departing State will thus be responsible for its budgetary commitments up until the time of its departure. That responsibility may perhaps extend for a period beyond departure, if the budgeting cycle agreed upon in due course by the Assembly of States Parties means that some obligations have 'accrued' in such a manner as to extend beyond the notification period.

2. Cooperation in connection with investigations and proceedings

Withdrawal is said, in the opening part of the second sentence of paragraph 2, not to 6 'affect any cooperation with the Court in connection with criminal investigations and proceedings in relation to which the withdrawing State had a duty to cooperate and which were commenced prior to the date on which the withdrawal became effective'. There may well be situations in which the obligation to cooperate with the Court is obscure because of the complexities of the legal or factual situation. A State may, nevertheless, agree to cooperate voluntarily without resolving the legal or factual issues. The first part of the second sentence was drafted with such a situation in mind. A State's 'voluntary' actions do not become

¹ See Clark, *article 121*, mn 13 *et seq.*

transformed into ‘obligations’ as a result of withdrawal. A vigilant Prosecutor who bears pending withdrawals in mind will need to be careful to commence proceedings formally within the relevant time-frame.

3. Consideration of any matter already under consideration

- 7 The scope of the last part of the second sentence overlaps considerably with that of the first part. Perhaps the most important point it makes is that a State whose nationals have been the subject of a referral to the Prosecutor by another State Party or by the Prosecutor acting *proprio motu* is not able to terminate such proceedings by withdrawing². This is the only possible meaning of the words ‘nor shall it prejudice in any way the continued consideration of any matter which was already under consideration by the Court’. Moreover, the relevant date by which proceedings must be commenced to render something ‘under consideration’ is the date on which the withdrawal becomes effective. If there is an ongoing genocide, say, at the time notification is given, so long as the prosecution is commenced during one year notification period, the obligations continue afterwards.
- 8 If the prosecution is not commenced by the effective date of withdrawal, the matter is more complicated. It would appear, however, that paragraph 2 does not cover all of the implications of a withdrawal. There is still room for the application of the general law. In particular, article 70 para. 1 (b) of the Vienna Convention on the Law of Treaties states that unless the parties otherwise agree, termination of a treaty (including withdrawal from a multilateral treaty) ‘does not affect any right, obligation or legal situation of the parties created through the execution of the treaty prior to its termination’. It would seem to follow that if there were breaches of the substantive provisions of the Rome Statute on a State’s territory or by its nationals prior to withdrawal, those offenses would still come within the jurisdiction of the Court, even if the prosecution had not been commenced before withdrawal.

² Different considerations apply to proceedings commenced by the Security Council. It is not possible to ‘withdraw’ from the obligation to answer to such jurisdiction, which will arise as a result of action taken under Chapter VII of the United Nations Charter.

Article 128

Authentic texts

The original of this Statute, of which the Arabic, Chinese, English, French, Russian and Spanish texts are equally authentic, shall be deposited with the Secretary-General of the United Nations, who shall send certified copies thereof to all States.

On this occasion, no more than general remarks are necessary. This is a standard-form designation of the United Nations Secretary-General as Depositary of the Statute¹, accompanied by a reiteration of the equal-authenticity principle concerning multilingual treaties stated in the Vienna Convention on the Law of Treaties². It was perhaps the only provision in the text that caused no controversy whatsoever and was adopted exactly as introduced on the basis of the Secretariat's Draft.

The languages listed are the official United Nations languages.

It will be noted that the depositary is required to send certified copies of the Statute to all 'States', a formula which includes the handful of States that are not United Nations Members³. One of those non-members, the Holy See, participated actively in the formulation of the Statute and another, Cook Islands, acceded to the Statute in 2008.

Fulfillment of the obligation to send certified copies was complicated by the need for the Secretary-General to make some ministerial corrections to the text, as adopted at Rome and established as certified true copies on 29 Sep. 1998. The need for the corrections was occasioned, for the most part, by the massive task of getting out an acceptable text at a late stage of the Conference⁴.

¹ On depositary functions in general, see article 77 VCLT; Jennings and Watts (eds.), *Oppenheim's international law* (1992) 1312–13 and material there cited.

² Article 33 VCLT. When the principle is applied, 'the meaning which best reconciles the texts, having regard to the object and purpose of the treaty, shall be adopted' (article 33 para. 4).

³ See Clark, *article 125*.

⁴ See Procès-Verbal of Rectification of the Original of the Statute, C.N.577.1998.TREATIES-8 (Depositary Notification) of 10 November 1998. See also the notification of proposed corrections contained in the Secretary-General's Note C.N.502.1998 TREATIES-3 (Depositary Notification) of 25 September 1998. The procedure followed for rectifying the text was that set out in article 79 VCLT. The only significant correction has been discussed under article 121. See also the 'concerns and objections' expressed by the United States concerning the course followed to make the corrections, Notes to the Rome Statute in the United Nations data base on Multilateral Treaties Deposited with the Secretary-General.

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